State of Iowa

JOURNAL OF THE SENATE

EIGHTY-NINTH GENERAL ASSEMBLY

2022 REGULAR SESSION

JAKE CHAPMAN, President of the Senate
W. CHARLES SMITHSON, Secretary of the Senate

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EIGHTY-NINTH GENERAL ASSEMBLY
2022 Regular Session

OFFICERS OF THE SENATE

JAKE CHAPMAN ..... *President of the Senate*

BRAD ZAUN ..... *President Pro Tempore*

JACK WHITVER ..... *Majority Leader*

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WILLIAM A. DOTZLER, JR. ..... *Assistant Minority Leader*

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HERMAN C. QUIRMBACH ..... *Assistant Minority Leader*

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W. CHARLES SMITHSON ..... *Secretary of the Senate*

TOM ASHWORTH ..... *Majority Caucus Senior Research Analyst*

ERIC BAKKER ..... *Senior Administrative Assistant to Minority Leader II*

MICHELLE BAUER ..... *Assistant Secretary of the Senate I*

KRIS BELL ..... *Minority Caucus Senior Research Analyst*

JENNIFER BEMINIO ..... *Administrative Services Officer II*

BOB BIRD ..... *Majority Caucus Research Analyst II*

CASSIE BOND ..... *Executive Secretary to Majority Leader*

LAURA BOOK ..... *Majority Caucus Research Analyst II*

JOSHUA BRONSINK ..... *Majority Caucus Senior Research Analyst*

JILLIAN CARLSON ..... *Majority Caucus Research Analyst II*

ANGIE COX ..... *Administrative Services Officer III*

KAY DEARIE ..... *Senior Administrative Services Officer*

SAMANTHA DICKSON ..... *Administrative Services Officer I*

PAMELA DUGDALE ..... *Majority Caucus Senior Research Analyst*

MARY EARNHARDT ..... *Senior Administrative Assistant to Majority Leader II*

JOEL EHLER ..... *Sergeant-at-Arms*

ZACH ENGSTROM ..... *Minority Caucus Research Analyst I*

SUE FOECKE ..... *Minority Caucus Senior Research Analyst*

KIMBERLY GLEASON ..... *Administrative Assistant to Senate President II*

BRIDGET GODES ..... *Minority Caucus Senior Research Analyst*

JAKE HEARD ..... *Senior Administrative Assistant to Senate President I*

GANNON HENDRICK ..... *Majority Caucus Senior Staff Director*

CALEB HUNTER ..... *Senior Administrative Assistant to Majority Leader II*

DEBBIE KATTENHORN ..... *Senior Administrative Assistant to Minority Leader II*

DYLAN KELLER ..... *Majority Caucus Research Analyst I*

RUSTY MARTIN ..... *Minority Caucus Communications Director*

JACE MIKELS ..... *Minority Caucus Senior Research Analyst*

KATHY OLAH ..... *Senior Administrative Services Officer*

RON PARKER ..... *Minority Caucus Senior Staff Director*

TYE REIMAN ..... *Bill Clerk*

SAMUEL SAMPSON ..... *Administrative Services Assistant*

MEGAN SCHLESKY ..... *Majority Caucus Research Analyst I*

KERRY SCOTT..... *Minority Caucus Senior Research Analyst*

ERICA SHORKEY..... *Minority Caucus Senior Research Analyst*

JULIE SIMON ..... *Minority Caucus Senior Research Analyst*

MAUREEN TAYLOR ..... *Administrative Services Officer III*

RUSS TRIMBLE..... *Majority Caucus Senior Research Analyst*

LARISSA WURM SKIPWORTH ..... *Majority Caucus Communications Director*

CAROLINE WARMUTH..... *Administrative Services Officer*

JOINT EMPLOYEES OF THE SENATE AND HOUSE

KATHLEEN BACUS..... *Security Officer I*

ZACHARY L. BUNKERS..... *Facilities Manager I*

JODY ELLIOTT..... *Security Officer I*

JAMES EYBERG..... *Security Officer I*

KEVIN FARVER ..... *Security Officer I*

DAVID W. GARRISON ..... *Security Officer II*

CURTIS HENDERSON ..... *Security Officer I*

TIMOTHY KNAPP ..... *Security Officer I*

MAC McBRIDE..... *Conservation/Restoration Specialist II*

JEFF QUIGLE..... *Security Officer I*

KERT SCHNELL..... *Security Officer I*

SCOTT SJOBAKKEN ..... *Conservation/Restoration Specialist*

RICHARD TAYLOR ..... *Security Officer I*

PHYLLIS TOY ..... *Postmaster*

MARK L. WILLEMSSEN..... *Senior Facilities Manager*

MARLAND WINTER ..... *Security Officer I*

MICHAEL H. WINTER..... *Security Officer I*

MEMBERS OF THE SENATE

EIGHTY-NINTH GENERAL ASSEMBLY
2022 Regular Session

(Underlined county indicates the county of residence.)

TONY BISIGNANO

Address ..... Des Moines
Age 69
Occupation ..... Retired
Political Party ..... Democratic
Previous Legislative Service ..... House: 1987–1992; Senate: 1993–1996, 2015–2021
Senatorial District 17–Polk

JOE BOLKCOM

Address ..... Iowa City
Age 65
Occupation ..... Outreach Dir., UI Ctr. for Global and Regional Environmental Research and Iowa Flood Center
Political Party ..... Democratic
Previous Legislative Service ..... Senate: 1999–2021
Senatorial District 43–Johnson

NATE BOULTON

Address ..... Des Moines
Age 41
Occupation ..... Attorney
Political Party ..... Democratic
Previous Legislative Service ..... Senate: 2017–2021
Senatorial District 16–Polk

WAYLON BROWN

Address ..... Osage
Age 42
Occupation ..... Small Business Owner/ Farmer
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2017–2021
Senatorial District ..... 26–Cerro Gordo, Chickasaw, Floyd, Howard, Mitchell, Winneshiek, Worth

JIM CARLIN

Address ..... Sioux City
Age 59
Occupation ..... Attorney
Political Party ..... Republican
Previous Legislative Service ..... House: 2017; Senate: 2018*–2021
Senatorial District ..... 3–Plymouth, Woodbury
*Elected in special election held on December 12, 2017.

CLAIRE A. CELSI

Address ..... West Des Moines
Age 55
Political Party ..... Democratic
Previous Legislative Service 2019–2021
Senatorial District ..... 21–Polk, Warren

JAKE CHAPMAN

Address ..... Adel
Age 37
Occupation ..... Businessman/EMT
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2013–2021
Senatorial District ..... 10–Adair, Cass, Dallas, Guthrie, Polk

MARK COSTELLO

Address ..... Imogene
Age 60
Occupation ..... Farmer
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2015–2021
Senatorial District ..... 12–Fremont, Mills, Montgomery, Page, Ringgold, Taylor

CHRIS COURNOYER

Address ..... LeClaire
Age 51
Occupation ..... Website Designer/Substitute Teacher
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2019–2021
Senatorial District ..... 49–Clinton, Scott

DAN DAWSON

Address ..... Council Bluffs
Age 43
Occupation ..... Peace Officer
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2017–2021
Senatorial District 8–Pottawattamie

ADRIAN DICKEY

Address ..... Packwood
Age 48
Occupation ..... President of Dickey Transport/Volunteer Fire Fighter
Political Party ..... Republican
Previous Legislative Service 2021
Senatorial District ..... 41–Davis, Jefferson, Van Buren, Wapello
*Elected in special election held on January 26, 2021.

WILLIAM A. DOTZLER, JR.

Address ..... Waterloo
Age 74
Occupation ..... Retired–John Deere
Political Party ..... Democratic
Previous Legislative Service ..... House: 1997–2002; Senate: 2003–2021
Senatorial District ..... 31–Black Hawk

DAWN DRISCOLL

Address ..... Williamsburg
Age 43
Political Party ..... Republican
Previous Legislative Service 2021
Senatorial District ..... 38–Benton, Iowa Poweshiek

JEFF EDLER

Address ..... State Center
Age 45
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2017–2021
Senatorial District ..... 36–Black Hawk, Marshall, Tama

JULIAN B. GARRETT

Address ..... Indianola
Age 81
Occupation ..... Farmer
Political Party ..... Republican
Previous Legislative Service ..... House: 2011–2013; Senate: 2013*–2021
Senatorial District ..... 13–Madison, Warren

*Elected in special election held on November 19, 2013.

ERIC GIDDENS

Address ..... Cedar Falls
Age 48
Occupation ..... Small Business Owner
Political Party ..... Democratic
Previous Legislative Service ..... Senate: 2019*–2021
Senatorial District 30–Blackhawk

*Elected in special election held on March 18, 2019.

TIM GOODWIN

Address ..... Burlington
Age 50
Political Party ..... Republican
Previous Legislative Service 2021
Senatorial District ..... 44–Des Moines, Louisa, Muscatine

JESSE GREEN

Address ..... Boone
Age 37
Occupation ..... Farmer
Political Party ..... Republican
Previous Legislative Service 2021
Senatorial District ..... 24–Boone, Greene, Hamilton, Story, Webster

DENNIS GUTH

Address ..... Klemme
Age 66
Occupation ..... Farmer
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2013–2021
Senatorial District ..... 4–Emmet, Hancock, Kossuth, Winnebago, Wright

ROBERT M. HOGG

Address ..... Cedar Rapids
Age 55
Occupation ..... Legislator
Political Party ..... Democratic
Previous Legislative Service ..... House: 2003–2006; Senate: 2007–2021
Senatorial District 33–Linn

PAM JOCHUM

Address ..... Dubuque
Age 67
Occupation ..... Legislator
Political Party ..... Democratic
Previous Legislative Service ..... House: 1993–2008; Senate: 2009–2021
Senatorial District 50–Dubuque

CRAIG JOHNSON

Address ..... Independence
Age 58
Occupation ..... Business Development/State Legislator
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2017–2021
Senatorial District ..... 32–Black Hawk, Bremer, Buchanan, Fayette

KEVIN KINNEY

Address ..... Oxford
Age 58
Occupation ..... Farmer/Retired Deputy Sheriff
Political Party ..... Democratic
Previous Legislative Service ..... Senate: 2015–2021
Senatorial District ..... 39–Johnson, Keokuk, Washington

MIKE KLIMESH

Address ..... Spillville
Age 52
Occupation ..... Management/Small Business Owner
Political Party ..... Republican
Previous Legislative Service 2021
Senatorial District ..... 28–Allamakee, Clayton, Fayette, Winneshiek

CARRIE KOELKER

Address ..... Dyersville
Age 51
Occupation ..... Executive Director-Tourism and Economic Development
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2019–2021
Senatorial District ..... 29–Dubuque, Jackson, Jones

TIM KRAAYENBRINK

Address ..... Fort Dodge
Age 62
Occupation ..... Investment Advisor
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2015–2021
Senatorial District ..... 5–Calhoun, Humboldt, Pocahontas, Webster

MARK S. LOFGREN

Address ..... Muscatine
Age 60
Occupation ..... Real Estate Sales Associate
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2017–2021
Senatorial District ..... 46–Muscatine, Scott

JIM LYKAM

Address ..... Davenport
Age 72
Occupation ..... Legislator
Political Party ..... Democratic
Previous Legislative Service ..... House: 1989–1990, 2003–2016; Senate: 2017–2021
Senatorial District 45–Scott

LIZ MATHIS

Address ..... Hiawatha
Age 64
Political Party ..... Democratic
Previous Legislative Service ..... Senate: 2012*–2021
Senatorial District 34–Linn

*Elected in special election held on November 8, 2011.

ZACH NUNN

Address ..... Altoona
Age 42
Occupation ..... US Air Force, Squadron Commander
Political Party ..... Republican
Previous Legislative Service ..... House: 2015–2017; Senate: 2019–2021
Senatorial District ..... 15–Jasper, Polk

JANET PETERSEN

Address ..... Des Moines
Age 51
Occupation ..... Marketing Communications
Political Party ..... Democratic
Previous Legislative Service ..... House: 2001–2012; Senate: 2013–2021
Senatorial District 18–Polk

HERMAN C. QUIRMBACH

Address ..... Ames
Age 71
Occupation ..... Associate Professor of Economics, retired–Iowa State University
Political Party ..... Democratic
Previous Legislative Service ..... Senate: 2003–2021
Senatorial District 23–Story

AMANDA RAGAN

Address ..... Mason City
Age 67
Occupation ..... Retired non-profit director
Political Party ..... Democratic
Previous Legislative Service ..... Senate: 2002*–2021
Senatorial District ..... 27–Butler, Cerro Gordo, Franklin
*Elected in special election held on March 12, 2002.

JEFF REICHMAN

Address ..... Montrose
Age 55
Political Party ..... Republican
Previous Legislative Service 2021
Senatorial District ..... 42–Henry, Jefferson, Lee, Washington

DAVID D. ROWLEY

Address ..... Spirit Lake
Age 67
Occupation ..... Insurance Agent
Political Party ..... Republican
Previous Legislative Service ..... None*
Senatorial District ..... 1–Clay, Dickinson, Lyon, Osceola, Palo Alto

*Elected in special election held on December 14, 2021.

KEN ROZENBOOM

Address ..... Oskaloosa
Age 70
Occupation ..... Farming/Ag Business
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2013–2021
Senatorial District ..... 40–Appanoose, Mahaska, Marion, Monroe, Wapello

JASON SCHULTZ

Address ..... Schleswig
Age 49
Occupation ..... Farmer
Political Party ..... Republican
Previous Legislative Service ..... House: 2009–2013; Senate: 2015–2021
Senatorial District ..... 9–Crawford, Harrison, Ida, Monona, Shelby, Woodbury

TOM SHIPLEY

Address ..... Nodaway
Age 68
Occupation ..... Farmer/Legislator
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2015–2021
Senatorial District ..... 11–Adams, Cass, Pottawattamie, Union

AMY SINCLAIR

Address ..... Allerton
Age 46
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2013–2021
Senatorial District ..... 14–Clarke, Decatur, Jasper, Lucas Marion, Wayne

JACKIE SMITH

Address ..... Sioux City
Age 66
Political Party ..... Democratic
Previous Legislative Service ..... Senate: 2019–2021
Senatorial District 7–Woodbury

ROBY SMITH

Address ..... Davenport
Age 44
Occupation ..... Small Business Owner
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2011–2021
Senatorial District 47–Scott

ANNETTE SWEENEY

Address ..... Alden
Age 64
Occupation ..... Farmer
Political Party ..... Republican
Previous Legislative Service ..... House: 2009–2011; Senate: 2018*–2021
Senatorial District ..... 25–Butler, Grundy, Harden, Story
*Elected to the Senate in special election held on April 10, 2018.

JEFF TAYLOR

Address ..... Sioux Center
Age 60
Political Party ..... Republican
Previous Legislative Service 2021
Senatorial District ..... 2–Cherokee, O'Brien, Plymouth, Sioux

TODD E. TAYLOR

Address ..... Cedar Rapids
Age 55
Occupation ..... AFSCME Representative-retired
Political Party ..... Democratic
Previous Legislative Service ..... House: 1995–2018, Senate: 2019–2021
Senatorial District 35–Linn

SARAH TRONE GARRIOTT

Address ..... West Des Moines
Age 43
Occupation ..... Minister
Political Party ..... Democratic
Previous Legislative Service 2021
Senatorial District ..... 22–Dallas, Polk

ZACH WAHLS

Address ..... Coralville
Age 30
Occupation ..... Small Business Owner/Credit Union Executive
Political Party ..... Democratic
Previous Legislative Service ..... Senate: 2019–2021
Senatorial District ..... 37–Cedar, Johnson, Muscatine

JACK WHITVER

Address ..... Ankeny
Age 41
Occupation ..... Business Owner/Attorney
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2011*–2021
Senatorial District 19–Polk

*Elected in special election held on January 18, 2011.

CRAIG WILLIAMS

Address ..... Manning
Age 58
Political Party ..... Republican
Previous Legislative Service 2021
Senatorial District ..... 6–Audubon, Buena Vista, Carroll, Crawford, Sac

BRAD ZAUN

Address ..... Urbandale
Age 60
Occupation ..... Director–Master Dowel
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2005–2021
Senatorial District 20–Polk

DAN ZUMBACH

Address ..... Ryan
Age 61
Occupation ..... Farmer
Political Party ..... Republican
Previous Legislative Service ..... Senate: 2013–2021
Senatorial District ..... 48–Buchanan, Delaware, Jones, Linn

JOURNAL OF THE SENATE

FIRST CALENDAR DAY
FIRST SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, January 10, 2022

The Senate met in regular session at 10:07 a.m., President Chapman presiding.

Prayer was offered by Reverend Jeremy Carr, Lead Pastor of NorthPoint Church in Johnston, Iowa. He was the guest of President Chapman.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Ian Critelli.

COMMITTEE ON CREDENTIALS

Senator Whitver moved that a committee of five be appointed as a committee on credentials.

The motion prevailed by a voice vote, and the Chair announced the appointment of Senators Kraayenbrink, Chair; Dickey, Jochum, Quirmbach, and J. Taylor.

REPORT OF THE COMMITTEE ON CREDENTIALS

MR. PRESIDENT: We, your committee on credentials, respectfully report that we find the persons named in the attached copies of certification of the Secretary of State duly elected to and entitled to seats in the Senate for the Eighty-ninth General Assembly.

TIM KRAAYENBRINK, Chair
ADRIAN DICKEY
PAM JOCHUM
HERMAN C. QUIRMBACH
JEFF TAYLOR

STATE OF IOWA

Office of the
Secretary of State
CERTIFICATION

To the Honorable Secretary of the Senate:

I, PAUL D. PATE, Secretary of State of the State of Iowa, custodian of the files and records pertaining to elections in the State, do hereby certify that the State Canvassing Board has declared that at the Special Election held on December 14, 2021, the following named person was duly elected to the office of State Senate for the residue of the term ending January 2, 2023:

First Dave Rowley

(SEAL)

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed the official seal of the Secretary of State at the Statehouse, in Des Moines, this twenty-seventh day of December, 2021.

PAUL D. PATE
Secretary of State

I hereby acknowledge receipt of the original copy of this document on this twenty-seventh day of December, 2021.

W. CHARLES SMITHSON
Secretary of Senate

OATH OF OFFICE

On motion of Senator Kraayenbrink, the reports were duly adopted by a voice vote, and the duly elected senator appeared before the bar of the Senate, was duly sworn, and subscribed his name to the oath of office.

COMMITTEE FROM THE HOUSE

A committee from the House appeared and notified the Senate that the House was duly organized and ready to receive any communication the Senate might be ready to transmit.

OPENING REMARKS BY THE PRESIDENT OF THE SENATE

President Chapman addressed the Senate with the following remarks:

Friends, family, colleagues, and to our newly-elected Senator, it is my honor to welcome you to the 2022 legislative session. I have always enjoyed the first day of session. It's a time in which friends and colleagues are reunited, hope and excitement flourishes, and optimism for the future resonates.

Colleagues, the time has come for us to take a stand. It has become increasingly evident that we live in a world in which many, including our media, wish to confuse, misguide, and deceive us, calling good evil and evil good. One doesn't have to look far to see the sinister agenda occurring right before our eyes. The attack on our children is no longer hidden. Those who wish to normalize sexually deviant behavior against our children, including pedophilia and incest, are pushing this movement more than ever before. Our children should be safe and free from this atrocious assault. Our students should be learning about science, and mathematics; they should be learning about engineering and innovation. Instead, some teachers are disguising sexually obscene material as desired subject matter and profess it has artistic and literary value. The literature being pushed on our students should disturb all of us and if you aren't disturbed, I can only hope it is because you have not actually heard or seen the content. Nobody, regardless of their race, religion, ethnicity, gender, sexual orientation, or occupation has the right to expose children to obscene material. It is for that reason that this body should use this session to address this very issue.

When students are subjected to this violating content, we need to ensure parents have the ability to protect their children by removing them from the district. We can and must tear down the financial barriers that prevent parents from making this decision. We must hold those who distribute this repulsive and criminal content to minors accountable. Let us not forget the quote on the first floor of this capitol which reads "nothing is politically right that is morally wrong." In other words, we can't be right by doing the wrong thing, and doing the right thing can never be wrong.

Since 1973 nearly 70 million Americans have had their voices silenced. Their lives were taken in the so-called name of "choice." We have courageously stood for and defended those who could not defend themselves. I am proud of the work done by this body to give a voice to the voiceless. As the United States Supreme Court takes up this important issue, we will stand ready to take whatever steps necessary to defend the dignity of life.

Colleagues, because of your dedication to being fiscally responsible, we come into this legislative session with our economic reserves totally full. Our revenues are at a historic all time high, and our ending fund balances are flourishing. This economic prosperity has come from sound fiscal policies and reducing taxes on Iowans. When individual economic freedoms abound, economic prosperity follows. Yet, let's not forget that there will be some who wish to spend this money on expanding government; our focus must be to return these dollars to the rightful owners – the taxpayers. Now is the time to take a bold stand. We have come a long way in reducing taxes on Iowans but it's not enough. Let's keep our eyes set on the total elimination of income taxes. Now is the time for action, now is the time to be bold! We cannot allow another year to go by sitting on the sidelines, while other states are aggressively reducing taxes. This is the year to take action!

Lastly, may we always remember that the work we do here in this building will impact the lives of millions of Iowans and future generations to come. Let's make 2022 a year to look back on with humility and thanksgiving for the bold stand we took to give greater freedom and liberty to Iowans, where we stood for parental choice in education, where we lifted the crushing weight of tax burdens on Iowans, and where we stood for what is right, even among those who call it wrong. Right is right, all of the time, and wrong is wrong, all of the time. May this body choose to do what is right. God has so richly blessed and prospered our state, may we recognize Him and His hand in all we do! May He continue to bless our great state and may He bless each of you throughout this session!

REMARKS BY THE MINORITY LEADER

Senator Wahls addressed the Senate with the following remarks:

Mr. President, ladies and gentlemen of the Senate, staff, members of the press, members of the public, and everyone watching at home, welcome to the 2022 legislative session.

Our session should be laser-focused on the Reynolds Workforce Crisis. All of us see and are overwhelmed by the 'Help Wanted' signs we see in our districts — the reduced hours, the limited service, and even shuttered businesses. In my district, businesses in towns like Tipton, suburban communities like Coralville, and big cities like Iowa City, are all struggling because of the Reynolds Workforce Crisis. In countless meetings, business and community leaders bring up workforce as not just their top priority, but as priorities one, two, three, four, and five. The good news is that we all agree — Democrats and Republicans alike — that workforce is the most important issue facing our state.

Let's start with the facts: Today, on January 10, 2022, there are fewer Iowans in the workforce than there were a decade ago. At the same time, nationally, there are nearly ten million more Americans who have entered the workforce nationwide. We all know there is a labor shortage in America – but the problem is significantly worse in Iowa. Why is that? As Republican leaders gladly tell us, they have been in full control of our state government since 2017. And Republicans are now promising us more of the same — that hasn't worked. We've been told it will be more of the GOP Greatest Hits this session: more attacks on LGBTQ Iowans, more gasoline on the culture war fire, and more attacks on the first amendment. Just last week, Senate Republicans announced they are banning members of the media from the floor of the Senate chamber – continuing Republican attacks on the First Amendment from last year.

If Republican proposals worked, talented, younger Americans would be flocking to live and work in Iowa, and our population would be growing across the state. Is this happening? We all know the answer. Governor Reynolds and Iowa Republicans have not made Iowa a place where more people want to live, work, raise a family, or start a business. And now — Republicans want to double down on the same policies that have already brought devastating consequences to Iowa. The facts are clear: Iowa is on the wrong track. And we're seeing these impacts in our schools, in our health care system, and especially in our rural communities.

In our schools, just last week, students in Davenport couldn't get to school because there weren't enough bus drivers. In Mason City – and in other districts across the state – schools are increasing class sizes because they don't have enough teachers and substitutes to cover their classes. Every week there is a new story about a school that unexpectedly closed because they didn't have enough staff.

The Reynolds Workforce Crisis is contributing directly to the crisis we're seeing in our public education, which is creating massive uncertainty for Iowa students and parents. Across Iowa, the coronavirus has disrupted learning – both in-person learning and virtual learning – and we know both students and parents have experienced unprecedented, untold stress. Iowa's education crisis isn't happening because of critical race theory or books Republicans are trying to ban — it's happening because of the extreme, anti-public education policies enacted by Governor Reynolds and this Republican legislature that are driving teachers out of Iowa. It's happening because Iowa Republicans do not value the work of our hardworking public educators. Iowa's public-school teachers are underpaid, underappreciated, forced to work in unsafe conditions and because of Republican attacks on collective bargaining, they are unable to negotiate over workplace safety. Governor Reynolds turned down $95 million in federal funds to make our schools safer for teachers, staff, and students. Why? This decision is inexplicable. It shouldn't be a surprise that we are struggling to find enough teachers to teach our kids – Republican policies are driving teachers out of Iowa.

The Reynolds Workforce Crisis is also severely impacting Iowa's health care system. Our hospitals and ICUs are filled to the brink with COVID patients, over 80% of whom are unvaccinated. Iowans are still
getting sick, and Iowans are still dying from COVID. To keep our schools and economy open, and to protect our health care system, we need every Iowan to get fully vaccinated. That's how we'll defeat COVID once and for all and finally get back to normal. Until then, we will continue to see too many stories like that of Dale Weeks, a retired superintendent from Seymour, who died of a non-COVID disease that would have been treatable if there had been an open bed for him a major medical center — but there wasn't. As his daughter told the Des Moines Register quote "It's infuriating that people who are not vaccinated are clogging it up," end-quote. Our state failed Dale Weeks, after Dale spent his life serving our state. But COVID is just the tip of the iceberg when it comes to the crisis in our health care system.

Because of the Reynolds Workforce Crisis, Iowans are paying more for lower quality health care. The Reynolds Workforce Crisis — and as a recent report demonstrated, the privatization of Medicaid — are both driving up health care costs for all Iowans. And yet, Republicans have no plan to reverse course on Managed Care. Hopefully, Governor Reynolds will include health care workers in her forthcoming workforce plan.

And as challenging as these struggles are in urban Iowa, we all know that our small town and rural communities are bearing the brunt of this crisis. The numbers speak for themselves. 2020 census data showed that two-thirds of Iowa counties lost population from 2010 to 2020. Rural Iowans are currently dying at a rate twice as fast as Iowans living in urban areas. Too few rural Iowans don't have access to basic necessities like clean drinking water and reliable Internet access. Thankfully, President Biden and Representative Axne passed the American Rescue Plan and the historic Bipartisan Infrastructure Deal, which have allowed our state to invest
over $500 million in rural broadband. But President Biden's leadership may not be enough to overcome the Reynolds Workforce Crisis and the Republican policies that are hollowing out rural Iowa.

Senate Democrats are focused on recruiting more Iowans, younger Iowans, and better-paid Iowans to our state.

We believe Iowa needs to end the divisive culture wars that pit Iowans against Iowans and instead bring our state together.

We need to make Iowa an inclusive and welcoming place to get our state growing again.

We need comprehensive tax reform that closes loopholes and attracts new investment instead of alienating new employers.

We need to expand apprenticeships, career training, and technical education by investing in our higher education system.

Fully fund our public schools so our students attend the best public schools in the country instead of trying to privatize and consolidate Iowa schools with a vouchers program that uses public dollars for private schools.

Stop talking about making childcare more affordable throughout Iowa and pass overdue legislation to fix Iowa's broken childcare system and guarantee access to free, universal Pre-K programs.

Invest in more affordable housing and help more Iowans become homeowners and finally fix Iowa's broken laws affecting Iowans who own and live in manufactured homes.

Senate Democrats are guided by Iowa values. We believe hard work deserves fair pay, every Iowan deserves to be treated fairly, and we all do better when we all do better. We believe every Iowan wants their family to be happy, safe, healthy, and nearby. That's what Democrats are fighting for. We need to bring economic opportunity back to every corner of the state – from our big cities to small towns, our suburban communities to our rural farms.

Democrats are ready and eager to find bipartisan solutions to the problems Iowans face. Let's stop pouring gasoline on the divisive culture war and focus on getting our state back to work. Let's work together for our neighbors, our communities, and the future of our great state. Let's improve the lives of Iowans and get Iowa back on the right track.

REMARKS BY THE MAJORITY LEADER

Senator Whitver addressed the Senate with the following remarks:

Mister President and colleagues of the Senate,

The 2022 legislative session provides exciting opportunities for us as we continue our work to make Iowa the best state in the country - the best state to live, the best state to work, and the best state to raise your family. Recently, Iowa was rated as one of the best states for opportunity. We were named the state in the strongest position to withstand the Covid pandemic and we were also named the fastest state to recover from it. After 5 years of a Republican trifecta, Iowa's success is no longer subjective - it's objective.

In the five years since Republicans have had the majority in the Iowa Senate, we have enacted legislation to help Iowa grow and make the state better for those who call it home. The priority being tax relief for those hard-working people who make our state the great place it is. After implementing conservative, responsible budgeting practices, we passed truly historic income tax relief and we have continued to pass tax relief measures every year. We started as one of the states with the highest, most complicated income taxes in the country. Even after the measures we have taken, we have more work to do.

In a post pandemic economy, the competition is fierce for jobs and citizens. If policy makers want this state to grow, then we must be on the list of states with the lowest income tax in America.

Census data from 2021 was released recently and it showed a dark picture for states with high tax rates, punitive regulations, and regular lockdowns. Look no farther than east of the Mississippi river to see a state lose more than 140,000 residents last year. High taxes, closed schools, and an oppressive government chase residents to other states. Just like Illinois, California and New York have all had a net loss of hundreds of thousands of residents. People are voting with their feet and with their wallets. They are moving to low tax, pro freedom states.

In an increasingly competitive and fluid economy, we must improve Iowa's competitive advantage to attract new residents and create new career opportunities. We started down that path in 2017 by implementing sound, reliable, and sustainable budgets and maintained that discipline each year. We continued in 2018 by passing the largest income tax cut in Iowa history. In 2019 we approved property tax transparency and in 2021 we accelerated the 2018 tax cuts and eliminated a property tax levy. All of that work has set the stage for another significant reduction in the income tax rates.

We have almost a billion dollars in the rainy day funds. Another billion in the taxpayer trust fund. Another billion dollar projected surplus in this current budget year, and a huge structural surplus as we brought in almost a billion dollars more than we spent this year.

In short, our policies are working and that success has led to an overcollection of taxes on hard working Iowans. When Republicans collect too much of your hard earned dollars, we will keep our promise to give it back. We must return that money to taxpayers in the form of major, permanent pro-growth tax reform. Iowans deserve a simpler, more transparent, and more competitive tax code.

It is more important now than ever for Iowans to keep what they earn and be motivated to join the workforce so our economy can continue to grow. Cutting taxes is not only good for the hard-working Iowans who earned it, but also for small businesses paying that same rate. They have more money to invest and build their business. More money to reward employees with higher wages, attract new customers, and expand their opportunities. It makes Iowa more competitive with the states around us, and a more attractive place to live.

One of my colleagues has already been quoted as saying we are looking at building a 21st century model for our tax code, and that there is no reason we should settle for mediocrity. The tax code should not punish Iowans for wanting more in life, trying to provide more for your family, or getting a promotion at work.

In addition to tax relief, Iowans from nearly every sector of the economy are looking for solutions to the demand for workforce. I would propose instead of creating another government program to fix a government-created problem, we get government out of the way and empower Iowans to solve the problem. Let's make it easier to open and operate a child care facility in Iowa so Iowa parents who want to return to the workforce, can. Let's eliminate outdated licensing requirements and make sure someone with the necessary training and skills can get to work sooner, without government-imposed delays. Let's ensure Iowa's public assistance programs are there for the truly needy and not a lifestyle option for healthy, capable Iowans. Let's improve the tangible incentive to work by reducing income taxes on all Iowans.

I am proud to be the leader of this caucus and proud of the accomplishments we have made so far. I am most proud because we deliver on the promises we make to Iowans. Promises like sustainable budgets, reliable funding for education, empowering parents in their children's education and supporting law enforcement.

We will not stop now. The Senate Republican agenda for this session is tax relief for Iowans, and we do not intend to waste the opportunity we have here with one-time checks. We are here to deliver real, permanent tax reform to give employers and families the confidence to know their work and investments will be worth the risk.

You have all heard me say we shouldn't be just thinking and working for next year, but for the next generation of Iowans, and the next generation after that. Nothing we do here is just for today.

Colleagues, we begin the 2022 session with Iowa in the strongest position we have ever been. The 5 years of hard work, leadership by many of you in this room, and the patience for our policies to work, has given us a tremendous opportunity.

When given an opportunity, we must deliver. We must keep our promises to the voters who send us to the capitol. Promises that ensure that the next generation of Iowans is better off than we are.

Few policies have shown more long-term growth impact than significant, permanent income tax cuts. Implementing pro-growth tax policy to make Iowa one of the fastest growing states in the country is policy that makes a generational difference.

It is great to see everyone back at the Capitol. Let's get to work.

COMMITTEE TO NOTIFY THE HOUSE

Senator Whitver moved that a committee of three be appointed to notify the House of Representatives that the Senate was organized and ready for business.

The motion prevailed by a voice vote, and the Chair announced the appointment of Senators Johnson, Chair; Celsi and Guth.

COMMITTEE TO NOTIFY THE GOVERNOR

Senator Whitver moved that a committee of three be appointed to notify the Governor that the Senate was organized and ready to receive any communication that he might be ready to transmit.

The motion prevailed by a voice vote, and the Chair announced the appointment of Senators Carlin, Chair; Driscoll and T. Taylor.

RECESS

On motion of Senator Whitver, the Senate recessed at 10:37 a.m. until the completion of a meeting of the committee on Rules and Administration.

RECONVENED

The Senate reconvened at 10:39 a.m., President Chapman presiding.

APPOINTMENT OF PERMANENT AND PART-TIME OFFICERS AND EMPLOYEES

MR. PRESIDENT: Your committee on Rules and Administration begs leave to submit the names of the following individuals as permanent and part-time officers and employees of the Senate for the 2022 Session of the Eighty-ninth General Assembly:

Secretary of the Senate ..... W. Charles Smithson
Sr. Administrative Services Officer ..... Kay Dearie
Administrative Services Officer ..... Caroline Warmuth

Administrative Services Assistant ..... Sam Sampson
Administrative Services Officer I ..... Samantha Dickson
Sr. Administrative Services Officer ..... Kathy Olah
Administrative Services Officer III ..... Angela Cox
Administrative Services Officer II ..... Jennifer Beminio
Assistant Secretary of the Senate I ..... Michelle Bauer
Administrative Services Officer III ..... Maureen Taylor

President of the Senate's Office

Sr. Administrative Assistant to President I ..... Jake Heard
Administrative Assistant to President ..... Kimberly Gleason

Republican Caucus

Sr. Administrative Assistant to Leader II ..... Mary Earnhardt
Sr. Administrative Assistant to Leader II ..... Caleb Hunter
Sr. Caucus Staff Director ..... Gannon Hendrick
Sr. Legislative Research Analyst ..... Thomas Ashworth
Sr. Legislative Research Analyst ..... Laura Book
Sr. Legislative Research Analyst ..... Josh Bronsink
Sr. Legislative Research Analyst ..... Pamela Dugdale
Sr. Legislative Research Analyst ..... Russ Trimble
Legislative Research Analyst II ..... Bob Bird
Legislative Research Analyst II ..... Jillian Carlson
Legislative Research Analyst II ..... Larissa Wurm-Skipworth
Legislative Research Analyst I ..... Megan Schlesky
Legislative Research Analyst I ..... Dylan Keller
Executive Secretary to Leader ..... Cassie Bond

Democratic Caucus

Sr. Administrative Assistant to Leader II ..... Eric Bakker
Sr. Administrative Assistant to Leader II ..... Debbie Kattenhorn
Sr. Caucus Staff Director ..... Ron Parker
Sr. Legislative Research Analyst ..... Kris Bell
Legislative Research Analyst I ..... Zach Engstrom
Sr. Legislative Research Analyst ..... Sue Foecke
Sr. Legislative Research Analyst ..... Bridget Godes
Sr. Legislative Research Analyst ..... Rusty Martin
Sr. Legislative Research Analyst ..... Jace Mikels
Sr. Legislative Research Analyst ..... Kerry Scott
Sr. Legislative Research Analyst ..... Erica Shorkey
Sr. Legislative Research Analyst ..... Julie Simon

Sergeant-at-Arms

Sergeant-at-Arms ..... Joel Ehler
Bill Clerk ..... Tye Reiman

JACK WHITVER, Chair

REPORT OF THE COMMITTEE ON RULES AND ADMINISTRATION

MR. PRESIDENT: Your committee on Rules and Administration begs leave to submit the names of the following persons as Pages for the Senate for the 2022 Session of the Eighty-ninth General Assembly:

Ian Critelli, West Des Moines
Kennedy Haag, Waukee
Elizabeth Hunter, Jesup
Thomas Knudsen, West Des Moines
Jackson Maddox, Ankeny
Maren Rasmussen, Johnston
Cecilia Redman, Gowrie
Grace Tollefson, State Center

JACK WHITVER, Chair

Senator Whitver moved the adoption of the reports and appointments of the permanent officers and employees of the Senate.

The motion prevailed by a voice vote, and the foregoing officers and employees appeared before the bar of the Senate and were duly sworn.

REPORT OF COMMITTEE ON MILEAGE

MR. PRESIDENT: Pursuant to Iowa Code section 2.10, the following has been determined to be the mileage to which Senators are entitled for the Eighty-ninth General Assembly:

NAME	ROUND TRIP MILES
BISIGNANO, Anthony	0
BOLKCOM, Joe	234
BOULTON, Nate	0
BROWN, Waylon	302
CARLIN, Jim	400
CELSI, Claire	22
CHAPMAN, Jake	53
COSTELLO, Mark	276
COURNOYER, Chris	350
DAWSON, Dan.	254
DOTZLER, William	260
DRISCOLL, Dawn	170
EDLER, Jeff	94
GARRETT, Julian	54
GIDDENS, Eric	220
GOODWIN, Tim	332
GREEN, Jesse	152
GUTH, Dennis	204

HOGG, Robert M. 260
JOCHUM, Pam 400
JOHNSON, Craig 304
KINNEY, Kevin 200
KLIMESH, Michael 386
KOELKER, Carrie 380
KRAAYENBRINK, Tim 200
LOFGREN, Mark 298
LYKAM, Jim 330
MATHIS, Liz 264
NUNN, Zach 0
PETERSEN, Janet 0
QUIRMBACH, Herman 75
RAGAN, Amanda 240
REICHMAN, Jeffrey 348
ROWLEY, David 400
ROZENBOOM, Ken 134
SCHULTZ, Jason 282
SHIPLEY, Tom 216
SINCLAIR, Amy 137
SMITH, Jackie 402
SMITH, Roby 334
SWEENEY, Annette 146
TAYLOR, Jeffrey 470
TAYLOR, Tod 248
TRONE-GARRIOTT, Sarah 0
WAHLS, Zach 218
WHITVER, Jack 0
WILLIAMS, Craig 212
ZAUN, Brad 0
ZUMBACH, Dan 344

WAYLON BROWN, Chair
TONY BISIGNANO
JESSE GREEN
LIZ MATHIS

REPORT OF THE COMMITTEE TO NOTIFY THE HOUSE

Senator Johnson reported that the committee assigned to notify the House that the Senate was organized and ready for business had performed its duty.

The report was accepted, and the committee was discharged.

REPORT OF THE COMMITTEE TO NOTIFY THE GOVERNOR

Senator Carlin reported that the committee assigned to notify the Governor that the Senate was organized and ready for business had performed its duty.

The report was accepted, and the committee was discharged.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on January 10, 2022, **adopted** the following resolutions in which the concurrence of the Senate is asked:

House Concurrent Resolution 101, a concurrent resolution providing for a joint convention for the Condition of the State Address.

Read first time and **placed on calendar**.

House Concurrent Resolution 102, a concurrent resolution providing for a joint convention for the Condition of the Judiciary Address.

Read first time and **placed on calendar**.

House Concurrent Resolution 103, a concurrent resolution to provide for a joint convention for the Condition of the Iowa National Guard Address.

Read first time and **placed on calendar**.

CONSIDERATION OF RESOLUTIONS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Concurrent Resolutions 101, 102, and 103.

House Concurrent Resolution 101

On motion of Senator Whitver, **House Concurrent Resolution 101**, a concurrent resolution providing for a joint convention for the Condition of the State Address, was taken up for consideration.

Senator Whitver moved the adoption of House Concurrent Resolution 101, which motion prevailed by a voice vote.

House Concurrent Resolution 102

On motion of Senator Whitver, **House Concurrent Resolution 102**, a concurrent resolution providing for a joint convention for the Condition of the Judiciary Address, was taken up for consideration.

Senator Whitver moved the adoption of House Concurrent Resolution 102, which motion prevailed by a voice vote.

House Concurrent Resolution 103

On motion of Senator Whitver, **House Concurrent Resolution 103**, a concurrent resolution to provide for a joint convention for the Condition of the Iowa National Guard Address, was taken up for consideration.

Senator Whitver moved the adoption of House Concurrent Resolution 103, which motion prevailed by a voice vote.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Concurrent Resolutions 101**, **102**, and **103** be **immediately messaged** to the House.

Senator Whitver asked and received unanimous consent for the committees on Human Resources, Local Government, and Veterans Affairs to meet beginning at 2:00 p.m.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 10:50 a.m. until 9:00 a.m., Tuesday, January 11, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF ADMINISTRATIVE SERVICES

Annual Report, pursuant to Iowa Code section 7E.3. Report received on December 6, 2021.

Comprehensive Annual Financial Report (CAFR), pursuant to Iowa Code section 8A.502. Report received on October 5, 2021.

Condition of Affirmative Action, Diversity, and Multicultural Programs Report, pursuant to Iowa Code 19B.5(2). Report received on September 30, 2021.

Experimental Research Report, pursuant to Iowa Code section 8A.414. Report received on September 8, 2021.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on August 31, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on June 29, 2021.

Solicitations for Capitol Complex Report, pursuant to Iowa Code section 8A.108. Report received on August 30, 2021.

State-Owned Real Property by County Report, pursuant to Iowa Code section 8A.111. Report received on December 21, 2021.

DEPARTMENT ON AGING

Guardianship and Conservatorship Monitoring Pilot Project, pursuant to 2013 Iowa Acts, Chapter 138, section 52. Report received on August 4, 2021.

Joint Investment Trust Report, pursuant to Iowa Code section 12B.10A. Report received on August 4, 2021.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on August 4, 2021.

Long-Term Care Options Counseling Pilot Initiative Report, pursuant 2021 Iowa Acts, HF 891, section 1. Report received on December 15, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on August 4, 2021.

State Public Guardian's Report, pursuant to 231E.4. Report received on December 28, 2021.

DEPARTMENT OF AGRICULTURE AND LAND STEWARDSHIP

Annual Report, pursuant to Iowa Code section 7E.3. Report received on November 30, 2021.

Artisanal Butchery Program Task Force Report, pursuant to 2021 Iowa Acts, HF 857, section 2. Report received on December 30, 2021.

Control of Pathogenic Viruses in Poultry Report, pursuant to Iowa Code section 165B.2. Report received on January 4, 2022.

Department of Agriculture and Land Stewardship Expenditures SFY21 as of June 30, 2021, pursuant to 2021 Iowa Acts, HF 860, section 1. Report received on July 1, 2021.

Department of Agriculture and Land Stewardship Expenditures SFY22 as of September 30, 2021, pursuant to 2021 Iowa Acts, HF 860, section 1. Report received on October 1, 2021.

Department of Agriculture and Land Stewardship Expenditures SFY22 as of December 31, 2021, pursuant to 2021 Iowa Acts, HF 860, section 1. Report received on January 4, 2022.

Farm-To-Table Task Force Report, pursuant to 2021 Iowa Acts, SF 578, section 22. Report received on December 10, 2021.

Home Base Iowa–Licensed Professions and Occupations Annual Report, pursuant to Iowa Code section 272C.4. Report received on December 14, 2021.

Water Quality Agriculture Infrastructure Programs Itemized Expenditures, pursuant to Iowa Code section 466B.43. Report received on October 1, 2021.

Watershed Planning Advisory Council Report, pursuant to Iowa Code section 466B.31. Report received on November 15, 2021.

ALCOHOLIC BEVERAGES DIVISION

Annual Report FY 2021, pursuant to Iowa Code section 7E.3. Report received on December 14, 2021.

AUDITOR OF STATE

Single Audit Report for FY Ended June 30, 2020. Report received on November 15, 2021.

COMMISSION FOR THE BLIND

Blind Recycling Report, pursuant to Iowa Code section 216B.3. Report received on July 28, 2021.

Joint Investment Trust Report, pursuant to Iowa Code section 12B.10A. Report received on July 28, 2021.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on July 28, 2021.

CHIEF INFORMATION OFFICER

Annual Report, pursuant to Iowa Code section 8B.6. Report received on June 29, 2021.

Donations, Grants, Gifts, and Contributions Report, pursuant to Iowa Code section 8B.6. Report received on December 20, 2021.

Internal Service Fund Report, pursuant to Iowa Code section 8B.13. Report received on November 8, 2021.

Status of Technology Upgrades or Enhancements for State Agencies Quarterly Report 7/1/21, pursuant to Iowa Code section 8B.9. Report received on July 1, 2021.

Status of Technology Upgrades or Enhancements for State Agencies Quarterly Report 10/1/21, pursuant to Iowa Code section 8B.9. Report received on December 1, 2021.

Status of Technology Upgrades or Enhancements for State Agencies Quarterly Report 1/1/22, pursuant to Iowa Code section 8B.9. Report received on December 30, 2021.

COLLEGE STUDENT AID COMMISSION

College Student Aid Commission Tuition Grant Report, pursuant to Iowa Code section 261.15. Report received on November 30, 2021.

Educational Credits Awarded to Veterans Report, pursuant to Iowa Code section 261.9. Report received on December 14, 2021.

Health Care Loan Repayment Program Report, pursuant to Iowa Code section 261.116. Report received on November 30, 2021.

Iowa Minority Academic Grants for Economic Success Program Report, pursuant to Iowa Code section 261.104. Report received on July 13, 2021.

Iowa Vocational–Technical Tuition Grant Program Report, pursuant to Iowa Code section 261.17. Report received on November 30, 2021.

Joint Investment Trust Report, pursuant to Iowa Code section 12B.10A. Report received on July 13, 2021.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on July 13, 2021.

Reversion Report–Training and Technology Expenditures, pursuant to Iowa Code section 8.62. Report received on July 13, 2021.

Scholarship and Tuition Grant Reserve Fund Report, pursuant to Iowa Code section 261.20. Report received on November 30, 2021.

Skilled Workforce Shortage Tuition Grant Program Report, pursuant to Iowa Code section 261.130. Report received on November 30, 2021.

Teacher Shortage Loan Forgiveness Program Report, pursuant to Iowa Code section 261.112. Report received on November 30, 2021.

DEPARTMENT OF COMMERCE (BANKING DIVISION)

Annual Report, pursuant to Iowa Code section 7E.3. Report received on November 18, 2021.

Annual Report of Superintendent of Banking, pursuant to Iowa Code section 524.216. Report received on December 22, 2021.

Bank Required Collateral 9/1/21 Report, pursuant to Iowa Code section 12C.20. Report received on September 1, 2021.

Bank Required Collateral 11/18/21 Report, pursuant to Iowa Code section 12C.20. Report received on November 18, 2021.

Home Base Iowa–Licensed Professions and Occupations Annual Report, pursuant to Iowa Code section 272C.4. Report received on December 14, 2021.

DEPARTMENT OF COMMERCE (CREDIT UNION DIVISION)

Annual Report, pursuant to Iowa Code section 533.114. Report received on July 19, 2021.

DEPARTMENT OF COMMERCE (INSURANCE DIVISION)

Annual Report, pursuant to Iowa Code section 7E.3. Report received on December 16, 2021.

Health Spending Costs Report, pursuant to Iowa Code section 505.18. Report received on November 15, 2021.

Interstate Insurance Product Regulation Compact 2016 Annual Report, pursuant to Iowa Code section 505A.1. Report received on October 19, 2021.

Interstate Insurance Product Regulation Compact 2017 Annual Report, pursuant to Iowa Code section 505A.1. Report received on October 19, 2021.

Interstate Insurance Product Regulation Compact 2018 Annual Report, pursuant to Iowa Code section 505A.1. Report received on October 19, 2021.

Interstate Insurance Product Regulation Compact 2019 Annual Report, pursuant to Iowa Code section 505A.1. Report received on October 19, 2021.

Interstate Insurance Product Regulation Compact 2020 Annual Report, pursuant to Iowa Code section 505A.1. Report received on October 19, 2021.

Medical Malpractice Insurance Annual, pursuant to Iowa Code section 505.27. Report received on October 19, 2021.

DEPARTMENT OF CORRECTIONS

Annual Report, pursuant to Iowa Code section 904.115. Report received on December 2, 2021.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on June 30, 2021.

Reversion Report–Training and Technology Expenditures, pursuant to Iowa Code section 8.62(3). Report received on June 30, 2021.

BOARD OF DENTISTRY

Home Base Iowa–Licensed Professions and Occupations Annual Report, pursuant to Iowa Code section 272C.4. Report received on December 13, 2021.

Iowa Dental Board Veteran's Report, pursuant to Iowa Code section 272.C4(11)(12). Report received on December 13, 2021.

OFFICE OF DRUG CONTROL POLICY

2022 Drug Control Strategy Report, pursuant to Iowa Code section 80E.1(2)(b). Report received on November 1, 2021.

ECONOMIC DEVELOPMENT AUTHORITY

Building Energy Management Report, pursuant to Iowa Code section 473.19. Report received on January 6, 2022.

Financial Assistance Report, pursuant to 2021 Iowa Acts, Chapter 171, section 5. Report received on October 21, 2021.

Iowa Commission on Volunteer Services Quarterly Report #4 FY 2021, pursuant to Iowa Code section 15H.2(2)(h). Report received on August 17, 2021.

Iowa Commission on Volunteer Services Quarterly Report #1 FY 2022, pursuant to Iowa Code section 15H.2(2)(h). Report received on November 2, 2021.

Iowa Energy Strategic Plan, pursuant to Iowa Code section 15.107B. Report received on January 6, 2022.

RefugeeRise AmeriCorps Program Annual Report, pursuant to Iowa Code section 15H.8. Report received on June 29, 2021.

DEPARTMENT OF EDUCATION

Charter School and Innovation Zone School Report, pursuant to Iowa Code section 256F.10. Report received on November 18, 2021.

Charter School Program Findings and Recommendations Report, pursuant to 2021 Iowa Acts, Chapter 112, section 12. Report received on November 18, 2021.

Child Development Coordinating Council Annual Report, pursuant to Iowa Code section 256A.3. Report received on December 27, 2021.

Commission on Educator Leadership and Compensation Report, pursuant to Iowa Code section 284.15. Report received on December 16, 2021.

Computer Science Work Group Report, pursuant to 2020 Iowa Acts, Chapter 1117, section 12. Report received on June 24, 2021.

Growing a Diverse PreK-12 Teacher Base in Iowa Task Force Report, pursuant to 2021 Iowa Acts, Chapter 170, section 22. Report received on December 15, 2021.

Home Base Iowa Postsecondary Education Report, pursuant to Iowa Code sections 260C.14, 261.9, and 262.9. Report received on December 16, 2021.

Incidents of Violence That Result in Injury or Property Damage Report, pursuant to Iowa Code section 279.51A. Report received on November 2, 2021.

Interstate Compact on Education of Military Children Report, pursuant to Iowa Code section 256.H.1(10)(o). Report received on July 13, 2021.

Iowa Autism Council Report, pursuant to Iowa Code section 256.35A. Report received on December 15, 2021.

Iowa Dyslexia Board Findings and Recommendations Report, pursuant to Iowa Code section 256.32A. Report received on November 5, 2021.

Special Education Federal Reports, pursuant to Iowa Code section 256B.3. Report received on June 24, 2021.

BOARD OF EDUCATIONAL EXAMINERS

Administrative Rules Review–Triennial Report, pursuant to Iowa Code section 272.29. Report received on December 21, 2021.

Detailed Financial Report–Licensing Fees, pursuant to Iowa Code section 272.10. Report received on January 3, 2022.

Home Base Iowa–Licensed Professions and Occupations Annual Report, pursuant to Iowa Code section 272C.4. Report received on December 3, 2021.

IOWA ETHICS AND CAMPAIGN DISCLOSURE BOARD

Joint Investment Trust Report, pursuant to Iowa Code section 12B.10A. Report received on November 30, 2021.

Reversion Report–Training and Technology Expenditures, pursuant to Iowa Code section 8.62(3). Report received on June 22, 2021.

IOWA FINANCE AUTHORITY

Wastewater and Drinking Water Treatment Financial Assistance Program Itemized Expenditures, pursuant to Iowa Code section 16.134. Report received on August 19, 2021.

Water Quality Financing Program Fund Itemized Expenditures, pursuant to Iowa Code section 16.153. Report received on September 27, 2021.

HOMELAND SECURITY AND EMERGENCY MANAGEMENT

911 Status Report, pursuant to Iowa Code section 34A.7A. Report received on January 5, 2022.

SFY 2021 Annual Report, pursuant to Iowa Code section 7E.3. Report received on January 3, 2022.

DEPARTMENT OF HUMAN RIGHTS

Annual Report FY 2021, pursuant to Iowa Code section 216A.2. Report received on November 1, 2021.

Correctional Policy Project Plans and Findings, pursuant to Iowa Code section 216A.137. Report received on December 2, 2021.

Criminal and Juvenile Justice Planning Advisory Council–Legislation Monitoring Report, pursuant to Iowa Code section 476.66. Report received on September 10, 2021.

Family Development and Self-Sufficiency Grant Program Report, pursuant to Iowa Code section 216A.107(4)(e). Report received on November 30, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on July 15, 2021.

Three-Year Criminal and Juvenile Justice Plan, pursuant to Iowa Code section 216A.135. Report received on December 1, 2021.

DEPARTMENT OF HUMAN SERVICES

Analysis of Medicaid Member Appeals 1/1/20–6/30/20 Report, pursuant to 2018 Iowa Acts, Chapter 1165, section 128. Report received on August 9, 2021.

Analysis of Medicaid Member Appeals 7/1/20–12/31/20 Report, pursuant to 2018 Iowa Acts, Chapter 1165, section 128. Report received on November 10, 2021.

Analysis of Medicaid Member Appeals 1/1/21–6/30/21 Report, pursuant to 2018 Iowa Acts, Chapter 1165, section 128. Report received on September 29, 2021.

Annual Report, pursuant to Iowa Code section 217.21. Report received on July 2, 2021.

Autism Support Program Fund Report, pursuant to Iowa Code section 225D.2. Report received on December 20, 2021.

Child Abuse Registry Report, pursuant to Iowa Code section 235A.23. Report received on July 15, 2021.

Children's Behavioral Health System State Board Activities Report, pursuant to Iowa Code section 225C.52. Report received on November 22, 2021.

Department of Human Services Operational and Program Expenditures Report, pursuant to 2021 Iowa Acts, Chapter 182, section 28. Report received on July 20, 2021.

Direct Care Worker in Nursing Facilities Turnover Report, pursuant to 2008 Iowa Acts, Chapter 1188, section 71. Report received on December 1, 2021.

Disaster Case Management Fund and Program, pursuant to Iowa Code section 29C.20B. Report received on December 20, 2021.

Drug Utilization Report, pursuant to Iowa Code section 249A.24. Report received on September 13, 2021.

Emergency Rule Expenditure Report, pursuant to 2021 Iowa Acts, Chapter 182, section 32. Report received on July 15, 2021.

Family Investment Program Transfer, pursuant to 2021 Iowa Acts, Chapter 182, section 9. Report received on September 21, 2021.

Family Support Subsidy and Children at Home Program Report, pursuant to Iowa Code section 225C.42. Report received on September 10, 2021.

Financial Condition of the Mental Health and Disability Services Regional Service Fund Report, pursuant to 2021 Iowa Acts, SF 619, section 83. Report received on August 2, 2021.

Hawk-I Board Report, pursuant to Iowa Code section 514I.5. Report received on December 22, 2021.

Independent Living Services Report, pursuant to Iowa Code section 234.35. Report received on December 7, 2021.

Inpatient Psychiatric Bed Tracking System Study Committee, pursuant to 2021 Iowa Acts, SF 524, section 1. Report received on November 30, 2021.

Iowa Individual Assistance Grant Program Report, pursuant to Iowa Code section 29C.20A. Report received on December 20, 2021.

Joint Investment Trust Report–Department of Human Services, pursuant to Iowa Code section 12B.10A. Report received on November 30, 2021.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on July 8, 2021.

Medicaid-Eligible Children–Provision of Pediatric Health Care Services Review and Report, pursuant to 2021 Iowa Acts, Chapter 182, section 41. Report received on October 1, 2021.

Medicaid Home and Community-Based Services Brain Injury Waiver Report, pursuant to 2019 Iowa Acts, Chapter 82, section 1. Report received on October 29, 2021.

Medicaid Home and Community-Based Services Elderly Waiver Report, pursuant to 2020 Iowa Acts, Chapter 1053, section 1. Report received on October 29, 2021.

Medicaid Managed Care Contracts Notification Report, pursuant to 2020 Iowa Acts, HF 2643, section 1. Report received on August 9, 2021.

Medicaid Managed Care Oversight Annual Report July 2020–June 2021, pursuant to 2016 Iowa Acts, Chapter 1139, section 93. Report received on November 30, 2021.

Medicaid Managed Care Oversight Quarterly Meeting Minutes SFY 2021 Qtr 4, pursuant to 2016 Iowa Acts, Chapter 1139, section 94. Report received on July 2, 2021.

Medicaid Managed Care Oversight Quarterly Meeting Minutes SFY 2022 Qtr 1, pursuant to 2016 Iowa Acts, Chapter 1139, section 94. Report received on September 23, 2021.

Medicaid Managed Care Oversight Quarterly Meeting Minutes SFY 2022 Qtr 2, pursuant to 2016 Iowa Acts, Chapter 1139, section 94. Report received on November 22, 2021.

Medicaid Managed Care Oversight Quarterly Report SFY 2021 Qtr 3, pursuant to 2016 Iowa Acts, Chapter 1139, section 93. Report received on July 2, 2021.

Medicaid Managed Care Oversight Quarterly Report SFY 2021 Qtr 4, pursuant to 2016 Iowa Acts, Chapter 1139, section 93. Report received on September 23, 2021.

Medicaid Managed Care Oversight Quarterly Report SFY 2022 Qtr 1, pursuant to 2016 Iowa Acts, Chapter 1139, section 93. Report received on December 7, 2021.

Medical Assistance Act Report, pursuant to Iowa Code section 249A.4. Report received on July 2, 2021.

Medical Assistance Program Transfer, pursuant to 2021 Iowa Acts, Chapter 182, section 13. Report received on September 23, 2021.

Mental Health and Disabilities Services Annual Report, pursuant to Iowa Code section 225C.6. Report received on December 7, 2021.

Mental Health Services Annual Report, pursuant to Iowa Code section 249N.8. Report received on November 30, 2021.

Nonreversion of Funds Quarterly Report June 2021, pursuant to 2021 Iowa Acts, Chapter 182, section 65. Report received on July 2, 2021.

Nonreversion of Funds Quarterly Report September 2021, pursuant to 2021 Iowa Acts, Chapter 182, section 65. Report received on October 8, 2021.

Nonreversion of Funds Quarterly Report December 2021, pursuant to 2021 Iowa Acts, Chapter 182, section 65. Report received on December 28, 2021.

Nursing Facility Qualities Assurance Assessment Fee Usage Report, pursuant to Iowa Code section 249L.4. Report received on July 7, 2021.

Nursing Facility Reimbursement Study Report, pursuant to 2021 Iowa Acts, Chapter 182, section 40. Report received on November 30, 2021.

Preferred Drug List Program Report September 2021, pursuant to Iowa Code section 249A.20A. Report received on September 29, 2021.

Preferred Drug List (PDL) Quarterly Statement, pursuant to Iowa Code section 249A.20A. Report received on December 7, 2021.

Requests for Mental Health and Disability Services Region Incentive Fund Report, pursuant to 2021 Iowa Acts, Chapter 177, section 83. Report received on December 21, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on July 2, 2021.

Temporary Assistance for Needy Families Block Grant Expenditures, pursuant to 2021 Iowa Acts, Chapter 182, section 7. Report received on July 2, 2021.

DEPARTMENT OF INSPECTIONS AND APPEALS

Annual Report, pursuant to Iowa Code section 7E.3. Report received on October 21, 2021.

Fraud in Public Assistance Programs Report, pursuant to 2020 Iowa Acts, HF 2643, section 1. Report received on October 20, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on June 30, 2021.

IOWA ASSOCIATION OF SCHOOL BOARDS

Annual Financial Report, pursuant to Iowa Code section 12B.10A(7). Report received on October 13, 2021.

IOWA COMMUNICATIONS NETWORK

Annual Report, pursuant to Iowa Code section 7E.3. Report received on November 19, 2021.

Iowa Telecommunications and Technology Commission, pursuant to Iowa Code section 8D.3. Report received on November 22, 2021.

IOWA PUBLIC EMPLOYEES' RETIREMENT SYSTEM

Comprehensive Annual Financial Report (CAFR), pursuant to Iowa Code section 97B.4. Report received on December 15, 2021.

Public Fund Iran Divestment Report, pursuant to Iowa Code section 12H.5(2). Report received on September 30, 2021.

Public Fund Israel Divestment Report, pursuant to Iowa Code section 12J.5(2). Report received on September 30, 2021.

Public Fund Sudan Divestment Report, pursuant to Iowa Code section 12F.5(2). Report received on September 30, 2021.

LAW ENFORCEMENT ACADEMY

Annual Report, pursuant to Iowa Code section 7E.3. Report received on December 1, 2021.

LOESS HILLS DEVELOPMENT AND CONSERVATION AUTHORITY

Loess Hills Alliance Board of Directors Report, pursuant to Iowa Code section 161D.6. Report received on December 29, 2021.

IOWA LOTTERY AUTHORITY

2021 Annual Report, pursuant to Iowa Code section 99G.7. Report received on December 15, 2021.

Iowa Lottery Authority Government Oversight Report June 2021, pursuant to Iowa Code section 99G.7. Report received on June 30, 2021.

Iowa Lottery Authority Government Oversight Report December 2021, pursuant to Iowa Code section 99G.7. Report received on December 30, 2021.

Iowa Lottery Authority Quarterly Report Qtr Ending June 30, 2021, pursuant to Iowa Code section 99G.7. Report received on December 22, 2021.

Iowa Lottery Authority Quarterly Report Qtr Ending September 30, 2021, pursuant to Iowa Code section 99G.7. Report received on October 26, 2021.

DEPARTMENT OF MANAGEMENT

Block Grants Report, pursuant to Iowa Code section 8.22. Report received on October 21, 2021.

Grants Enterprise Management Compliance July 2021 Report, pursuant to Iowa Code section 8.9. Report received on October 21, 2021.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on October 22, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on October 21, 2021.

Standing Appropriations Report, pursuant to Iowa Code section 8.6. Report received on October 26, 2021.

State Tort Claims Report, pursuant to Iowa Code section 669.12. Report received on October 21, 2021.

Transfer of Appropriations Report, pursuant to Iowa Code section 8.39. Report received on December 13, 2021.

Utility Replacement Task Force Report, pursuant to Iowa Code section 437A.15(7)(b). Report received on October 21, 2021.

BOARD OF MEDICINE

Board of Medicine and Board of Physician Assistants Joint Report, pursuant to Iowa Code section 148C.12. Report received on December 21, 2021.

Home Base Iowa–Licensed Professions and Occupations Annual Report, pursuant to Iowa Code section 272C.4. Report received on January 4, 2022.

Interstate Medical Licensure Compact Report, pursuant to Iowa Code section 147B.1. Report received on January 4, 2022.

DEPARTMENT OF NATURAL RESOURCES

Annual Report on Hazardous Waste/Substance Disposal, pursuant to Iowa Code section 455B.427. Report received on December 16, 2021.

Aquatic Invasive Species Report, pursuant to Iowa Code section 462A.52. Report received on December 30, 2021.

Compliance with Federal Air Quality Standards Report, pursuant to Iowa Code section 455B.134. Report received on December 8, 2021.

Department of Natural Resources Quarterly Expenditure Report FY 21 Qtr Ending 6/30/21, pursuant to 2021 Iowa Acts, Chapter 143, section 14. Report received on September 14, 2021.

Department of Natural Resources Quarterly Expenditure Report FY 22 Qtr Ending 9/30/21, pursuant to 2021 Iowa Acts, Chapter 143, section 14. Report received on October 7, 2021.

Department of Natural Resources Quarterly Expenditure Report FY 22 Qtr Ending 12/31/21, pursuant to 2021 Iowa Acts, Chapter 143, section 14. Report received on January 6, 2022.

Evaluation of License Fees Report, pursuant to Iowa Code section 483A.1. Report received on December 15, 2021.

Fees and Occupancy Rates for State Camping and Rental Facilities Report, pursuant to Iowa Code section 455A.14. Report received on December 28, 2021.

Greenhouse Gas Emissions Report, pursuant to Iowa Code 455B.104. Report received on December 30, 2021.

Hazardous Substance Remedial Fund, pursuant to Iowa Code section 455B.425. Report received on December 30, 2021.

Home Base Iowa–Licensed Professions and Occupations Annual Report, pursuant to Iowa Code section 272C.4. Report received on December 7, 2021.

Household Hazardous Waste Account Report, pursuant to Iowa Code section 455E.11. Report received on December 21, 2021.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on December 27, 2021.

Lake Restoration Report, pursuant to Iowa Code section 456A.33B. Report received on December 27, 2021.

Low-Level Radioactive Waste Compact Report, pursuant to Iowa Code section 457B.1. Report received on June 30, 2021.

Natural Resources and Outdoor Recreation Trust Fund Report, pursuant to Iowa Code section 461.22. Report received on December 17, 2021.

Proceeds Deposited to the State Fish and Game Protection Fund, pursuant to Iowa Code section 483A.33(5). Report received on December 30, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on September 14, 2021.

Turtle Population in the State by Region, pursuant to Iowa Code section 481A.67. Report received on June 30, 2021.

Visitor Parking at State Parks Report, pursuant to 2021 Iowa Acts, Chapter 143, section 22. Report received on December 14, 2021.

BOARD OF NURSING

Home Base Iowa–Licensed Professions and Occupations Annual Report, pursuant to Iowa Code section 272.C.4. Report received on December 16, 2021.

OFFICE OF OMBUDSMAN

FY 2020 Annual Report, pursuant to Iowa Code section 2C.18. Report received on June 30, 2021.

FY 2021 Annual Report, pursuant to Iowa Code section 2C.18. Report received on December 29, 2021.

IOWA COMPREHENSIVE PETROLEUM UNDERGROUND STORAGE TANK FUND BOARD

FY 2021 Qtr 4 Progress and Activities Report, pursuant to Iowa Code section 455G.4. Report received on August 3, 2021.

FY 2022 Qtr 1 Progress and Activities Report, pursuant to Iowa Code section 455G.4. Report received on October 27, 2021.

BOARD OF PHARMACY

Home Base Iowa–Licensed Professions and Occupations Annual Report, pursuant to Iowa Code section 272C.4. Report received on December 14, 2021.

POLK COUNTY BOARD OF SUPERVISORS

Mental Health and Disability Services Transfer of Funds Report, pursuant to 2018 Iowa Acts, chapter 1165, section 109. Report received on September 23, 2021.

IOWA PROPANE EDUCATION AND RESEARCH COUNCIL

Auditor's Report, pursuant to Iowa Code section 101C.3. Report received on August 5, 2021.

IOWA PUBLIC AGENCY INVESTMENT TRUST

Joint Investment Trust Report, pursuant to Iowa Code section 12B.10A. Report received on September 17, 2021.

IOWA PBS

Joint Investment Trust Report, pursuant to Iowa Code section 12B.10A. Report received on January 3, 2022.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on January 3, 2022.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on January 3, 2022.

STATE PUBLIC DEFENDER

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on July 1, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on July 1, 2021.

DEPARTMENT OF PUBLIC DEFENSE

Annual Report, pursuant to Iowa Code section 7E.3. Report received on November 5, 2021.

Projects Funded by the Iowa Department of Public Defense Report, pursuant to 2021 Iowa Acts, Chapter 167, section 1. Report received on December 16, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on June 22, 2021.

STEM Educational Incentives Report, pursuant to Iowa Code section 261.86(6). Report received on December 29, 2021.

PUBLIC EMPLOYMENT RELATIONS BOARD

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on June 24, 2021.

DEPARTMENT OF PUBLIC HEALTH

Activities of the Medical Cannabidiol Report, pursuant to Iowa Code section 124E.5. Report received on January 4, 2022.

Anatomical Gift Public Awareness Donation and Compliance Report, pursuant to Iowa Code section 142C.17. Report received on December 30, 2021.

Annual Report, pursuant to Iowa Code section 7E.3. Report received on December 17, 2021.

Distribution of Federal Public Health Services Act Funds for Family Planning Report, pursuant to 2019 Iowa Acts, Chapter 85, section 98. Report received on January 5, 2022.

Gambling Treatment Program Report, pursuant to Iowa Code section 135.150(2). Report received on June 30, 2021.

Home Base Iowa–Licensed Professions and Occupations Annual Report, pursuant to Iowa Code section 272C.4. Report received on December 15, 2021.

Tobacco use Prevention and Control Report, pursuant to Iowa Code section 142A.4. Report received on December 15, 2021.

IOWA PUBLIC INFORMATION BOARD

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on June 29, 2021.

DEPARTMENT OF PUBLIC SAFETY

Annual Report, pursuant to Iowa Code section 7E.3. Report received on November 3, 2021.

DCI Report of Activities at Racetrack Enclosures, pursuant to Iowa Code section 99D.14. Report received on December 28, 2021.

Home Base Iowa–Licensed Professions and Occupations Annual Report, pursuant to Iowa Code section 272C.4. Report received on December 2, 2021.

Human Trafficking Report, pursuant to Iowa Code section 80.45. Report received on November 1, 2021.

Public Safety Equipment Fund Report, pursuant to 2021 Iowa Acts, HF 708, section 1. Report received on December 30, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on June 30, 2021.

Statewide Interoperable Communications System Board Report, pursuant to Iowa Code section 80.29. Report received on December 21, 2021.

BOARD OF REGENTS

Activities, Projects, and Programs Funded with Board of Regents Innovation Fund Appropriations, pursuant to 2021 Iowa Acts, Chapter 171, section 17. Report received on January 6, 2022.

Annual Articulation Report, pursuant to Iowa Code section 262.9. Report received on December 14, 2021.

Annual Report, pursuant to Iowa Code section 7E.3. Report received on November 3, 2021.

Board of Regents Report, pursuant to Iowa Code section 262.26. Report received on October 21, 2021.

College Bound and IMAGES Annual Report, pursuant to Iowa Code section 262.93. Report received on January 5, 2022.

Educational Credits Awarded to Veterans Report, pursuant to Iowa Code section 262.9. Report received on September 14, 2021.

Farm-To-Table Task Force Report, pursuant to 2021 Iowa Acts, SF 578, section 22. Report received on December 10, 2021.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on December 1, 2021.

Patents and Licenses Report, pursuant to Iowa Code section 262B.3. Report received on January 6, 2022.

Postsecondary Enrollment Program Annual Report, pursuant to Iowa Code section 262.9(35). Report received on September 28, 2021.

Private Enterprise Investment Report, pursuant to Iowa Code section 262.14. Report received on October 26, 2021.

Public Fund Iran Divestment Report, pursuant to Iowa Code section 12H.5. Report received on September 14, 2021.

Public Fund Israel Divestment Report, pursuant to Iowa Code section 12J.5(2). Report received on September 14, 2021.

Public Fund Sudan Divestment Report, pursuant to Iowa Code section 12F.5(2). Report received on September 14, 2021.

Quarterly Financial Report Qtr Ending 3/31/21, pursuant to 2021 Iowa Acts, Chapter 170, section 10. Report received on June 29, 2021.

Quarterly Financial Report Qtr Ending 6/30/21, pursuant to 2021 Iowa Acts, Chapter 170, section 10. Report received on August 30, 2021.

Quarterly Financial Report Qtr Ending 9/30/21, pursuant to 2021 Iowa Acts, Chapter 170, section 10. Report received on December 1, 2021.

Reversion Report, pursuant to Iowa Code section 8.62. Report received on June 22, 2021.

State Geologist Annual Report, pursuant to Iowa Code section 456.7. Report received on January 5, 2022.

Technology Commercialization, Entrepreneurship, Regional Development, and Market Research Report, pursuant to 2017 Iowa Acts, Chapter 169, section 17. Report received on January 6, 2022.

Use of Medical Cannabidiol–UI Carver College of Medicine and UI College of Pharmacy, pursuant to 2014 Iowa Acts, Chapter 1125, section 10. Report received on June 22, 2021.

DEPARTMENT OF REVENUE

Central Collections Unit Quarterly Debt Collection Report Qtr Ending 6/30/21, pursuant to Iowa Code section 421.17(27)(h). Report received on September 2, 2021.

Central Collections Unit Quarterly Debt Collection Report Qtr Ending 9/30/21, pursuant to Iowa Code section 421.17(27)(h). Report received on November 5, 2021.

Iowa Collection Enterprise (ICE) Report, pursuant to Iowa Code section 421.17. Report received on September 20, 2021.

Iowa Streamlined Sales Tax Advisory Council Annual Report, pursuant to Iowa Code section 423.9A. Report received on January 6, 2022.

Joint Investment Trust Report, pursuant to Iowa Code section 12B.10A. Report received on January 6, 2022.

Nonfilers of Returns, Nonpayers of Taxes, and Refund Fraud FY 2020, pursuant to Iowa Code section 421.17. Report received on January 6, 2022.

Nonfilers of Returns, Nonpayers of Taxes, and Refund Fraud FY 2021, pursuant to Iowa Code section 421.17. Report received on January 6, 2022.

Solar Energy System Tax Credits, pursuant to Iowa Code section 422.11L. Report received on January 3, 2022.

Tax Expenditure Cost Estimate Report, pursuant to Iowa Code section 2.48. Report received on January 6, 2022.

Tax Gap Compliance Project Report, pursuant to Iowa Code section 421.17. Report received on November 5, 2021.

SECRETARY OF STATE

Annual Report, pursuant to Iowa Code section 7E.3. Report received on November 30, 2021.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on July 30, 2021.

STATEWIDE FIRE AND POLICE RETIREMENT SYSTEM BOARD OF TRUSTEES

Annual Report, pursuant to Iowa Code section 411.5. Report received on December 14, 2021.

Public Fund Iran Divestment Report, pursuant to Iowa Code section 12H.5(2). Report received on September 17, 2021.

Public Fund Israel Divestment Report, pursuant to Iowa Code section 12J.5(2). Report received on September 17, 2021.

Public Fund Sudan Divestment Report, pursuant to Iowa Code section 12F.5(2). Report received on September 17, 2021.

DEPARTMENT OF TRANSPORTATION

Cost Savings from Adding Additional FTE Employees Report, pursuant to 2020 Iowa Acts, Chapter 1122, section 4. Report received on December 27, 2021.

Effectiveness of Rumble Strips Report, pursuant to 2020 Iowa Acts, Chapter 1122, section 3. Report received on December 27, 2021.

Iowa Automated Permitting System Report, pursuant to 2019 Iowa Acts, Chapter 158, section 7. Report received on December 30, 2021.

Natural Resources and Outdoor Recreation Trust Fund Report, pursuant to Iowa Code section 461.22. Report received on December 22, 2021.

Nature and Scope of Enforcement Activities by Peace Officers Report, pursuant to Iowa Code section 321.477. Report received on December 1, 2021.

Periodic Review of Revenues–Road Use Tax Fund, pursuant to Iowa Code section 307.31. Report received on December 30, 2021.

Permits for the Operation of Vehicles of Excessive Size or Weight Report, pursuant to 2019 Iowa Acts, SF 629, section 7. Report received on December 30, 2021.

Road use Tax Fund Efficiency Measures, pursuant to 2014 Iowa Acts, Chapter 1123, section 21. Report received on December 30, 2021.

Use of Reversions Report, pursuant to Iowa Code section 307.46. Report received on September 7, 2021.

TREASURER OF STATE

ABLE Savings Trust Financial Report, pursuant to Iowa Code section 12I.7. Report received on October 27, 2021.

Iowa Educational Savings Plan Trust Report, pursuant to Iowa Code section 12D.8(1)(a). Report received on October 27, 2021.

Public Fund Iran Divestment Report, pursuant to Iowa Code section 12H.5(2). Report received on September 28, 2021.

Public Fund Israel Divestment Report, pursuant to Iowa Code section 12J.5(2). Report received on September 28, 2021.

Public Fund Sudan Divestment Report, pursuant to Iowa Code section 12F.5(2). Report received on September 28, 2021.

Reversion Report, pursuant to Iowa Code section 8.62. Report received on July 19, 2021.

Tobacco Settlement Authority Annual Report, pursuant to Iowa Code section 12E.15. Report received on December 30, 2021.

UTILITIES BOARD

Annual Report, pursuant to Iowa Code section 7E.3. Report received on November 29, 2021.

Reversion Report, pursuant to Iowa Code section 8.62. Report received on November 1, 20201.

Small Wind Innovation Zone Report, pursuant to Iowa Code section 476.48. Report received on December 27, 2021.

VETERANS AFFAIRS

County Allocation Fund Report, pursuant to Iowa Code section 35A.5. Report received on September 8, 2021.

IOWA VETERANS HOME

FY 2021 Annual Report, pursuant to Iowa Code section 35D.17. Report received on October 21, 2021.

REPORTS OF COMMITTEE MEETINGS

ETHICS

Convened: Monday, September 13, 2021, 3:30 p.m.

Members Present: Koelker, Chair; Carlin, Vice Chair; Jochum, Ranking Member; Costello, Hogg, and Kinney.

Members Absent: None.

Committee Business: Approved minutes of February 2021 meeting. Reviewed six complaints against 29 senators who voted in favor of HF 847. Committee voted 6-0 to dismiss all of the complaints.

Adjourned: 3:50 p.m.

RULES AND ADMINISTRATION

Convened: Monday, January 10, 2022, 10:30 a.m.

Members Present: Whitver, Chair; Chapman, Vice Chair; Wahls, Ranking Member; Bolkcom, Brown, Jochum, Ragan, Sinclair, R. Smith, and Zumbach.

Members Absent: Zaun (excused).

Committee Business: Call to order. Approve minutes. First day of session reports. Adjourn.

Adjourned: 10:35 a.m.

VETERANS AFFAIRS

Convened: Monday, January 10, 2022, 3:05 p.m.

Members Present: Lofgren, Chair; Reichman, Vice Chair; Giddens, Ranking Member; Carlin, Costello, Dawson, Dotzler, Edler, Green, Mathis, and Ragan.

Members Absent: None.

Committee Business: Organizational meeting.

Adjourned: 3:10 p.m.

INTRODUCTION OF BILLS

Senate File 2001, by Green, a bill for an act to require proof of financial liability coverage upon registration of a motor vehicle.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2002, by Nunn, a bill for an act creating the second amendment preservation Act, and providing penalties.

Read first time under Rule 28 and referred to committee on **Judiciary**.

REPORT OF THE COMMITTEE ON RULES AND ADMINISTRATION

Pursuant to Senate Concurrent Resolution 6, duly adopted during the 2021 Session of 89th General Assembly, the following is a list of officers and employees of the Senate for the Eighty-ninth General Assembly, 2022 Session, and their respective classification, grades and steps:

Position	Name	Grade-Step	Class of Appt
Secretary of the Senate	W. Charles Smithson	44-7	
Assistant Secretary of the Senate I	Michelle Bauer	32-7	P-FT
Administrative Assistant II to President	Kimberly Gleason	32-4	P-FT
Sr. Administrative Assistant to President	Jake Heard	38-4	P-FT
Sr. Administrative Assistant to Leader II	Mary Earnhardt	41-8	P-FT
Sr. Administrative Assistant to Leader II	Caleb Hunter	41-8	P-FT
Sr. Administrative Assistant to Leader II	Eric Bakker	41-8	P-FT
Sr. Administrative Assistant to Leader II	Debbie Kattenhorn	41-8	P-FT
Sr. Caucus Staff Director	Gannon Hendrick	41-7	P-FT
Sr. Caucus Staff Director	Ron Parker	41-8	P-FT
Legislative Research Analyst I	Zachary Engstrom	29-1	P-FT
Legislative Research Analyst I	Dylan Keller	29-3	P-FT
Legislative Research Analyst II	Jillian Carlson	32-2	P-FT
Legislative Research Analyst I	Megan Schlesky	29-5	P-FT
Legislative Research Analyst II	Laura Book	32-2	P-FT
Legislative Research Analyst II	Larissa Wurm-Skipworth	32-4	P-FT
Legislative Research Analyst II	Bob Bird	32-6	P-FT
Sr. Legislative Research Analyst	Thomas Ashworth	38-8	P-FT

Sr. Legislative Research Analyst	Kris Bell	38-8	P-FT
Sr. Legislative Research Analyst	Joshua Bronsink	38-6	P-FT
Sr. Legislative Research Analyst	Pamela Dugdale	38-8	P-FT
Sr. Legislative Research Analyst	Sue Foecke	38-8	P-FT
Sr. Legislative Research Analyst	Bridget Godes	38-8	P-FT
Sr. Legislative Research Analyst	Rusty Martin	38-8	P-FT
Sr. Legislative Research Analyst	Jace Mikels	38-8	P-FT
Sr. Legislative Research Analyst	Kerry Scott	38-8	P-FT
Sr. Legislative Research Analyst	Erica Shorkey	38-8	P-FT
Sr. Legislative Research Analyst	Julie Simon	38-8	P-FT
Sr. Legislative Research Analyst	Russ Trimble	38-8	P-FT
Executive Secretary to Leader	Cassie Bond	24-4	P-FT
Administrative Services Officer II	Jennifer Beminio	29-6	P-FT
Administrative Services Officer III	Angela Cox	32-6	P-FT
Administrative Services Officer III	Maureen Taylor	32-6	P-FT
Sr. Administrative Services Officer	Kay Dearie	35-8	P-FT
Sr. Administrative Services Officer	Kathy Olah	35-8	P-FT
Administrative Services Officer I	Samantha Dickson	26-6	P-FT
Administrative Services Officer	Caroline Warmuth	23-1	P-FT
Administrative Services Assistant	Samuel Sampson	20-1	P-FT
Sergeant-at-Arms	Joel Ehler	17-2	S-O
Bill Clerk	Tye Reiman	14-5	S-O
Legislative Secretary	Bobby Bailey	18-2	S-O
Legislative Secretary	Jackson Boaz	18-1	S-O
Legislative Secretary	Michelle Bruggenthies	18-1	S-O
Legislative Secretary	Bob Christenson	18-3	S-O
Legislative Secretary	Andrew Dunn	17-1	S-O
Legislative Secretary	Kathy Ellett	16-5	S-O
Legislative Secretary	Judith Elliott	18-5	S-O
Legislative Secretary	Cathy Engel	17-1	S-O
Legislative Secretary	Katelyn Fleming	16-1	S-O
Legislative Secretary	Beth Freeman	17-1	S-O
Legislative Secretary	Witt Harberts	16-1	S-O
Legislative Secretary	Nathaniel Harwood	17-1	S-O
Legislative Secretary	Claire Haws	16-4	S-O
Legislative Secretary	Rebecca Hoeppner	18-3	S-O
Legislative Secretary	Marce Huhn	16-7	S-O
Legislative Secretary	Benjamin Klimesh	16-1	S-O
Legislative Secretary	Adam Koch	16-1	S-O
Legislative Secretary	Olivia Mackel-Wiederanders	18-1	S-O
Legislative Secretary	Mary Ryan	15-1	S-O
Legislative Secretary	Nicole Schmitt	17-1	S-O
Legislative Secretary	Noah Schrad	17-1	S-O
Legislative Secretary	Ryan Simatovich	17-1	S-O
Legislative Secretary	Josh Treat	15-1	S-O
Legislative Secretary	Emily Vering	16-1	S-O
Legislative Secretary	Blaine Watkins	16-1	S-O
Legislative Secretary	Susie Wengert	16-2	S-O
Legislative Committee Secretary	Devin Devore	17-1	S-O
Legislative Committee Secretary	Nancy Garrett	18-3	S-O
Legislative Committee Secretary	Margaret Guth	17-3	S-O
Legislative Committee Secretary	Greg Heartsill	18-1	S-O

Legislative Committee Secretary	Theresa Hildreth	18-2	S-O
Legislative Committee Secretary	Sally Kraayenbrink	17-2	S-O
Legislative Committee Secretary	Caden Larson	18-1	S-O
Legislative Committee Secretary	Haley Ledford	17-1	S-O
Legislative Committee Secretary	Paula Lofgren	18-1	S-O
Legislative Committee Secretary	Jennifer Long	17-4	S-O
Legislative Committee Secretary	Madisyn Moorman	17-1	S-O
Legislative Committee Secretary	Sarah Moore	17-4	S-O
Legislative Committee Secretary	Gina Noll	18-2	S-O
Legislative Committee Secretary	Levi Schultz	18-1	S-O
Legislative Committee Secretary	Renee Severson	18-1	S-O
Legislative Committee Secretary	Kari Smith	17-1	S-O
Legislative Committee Secretary	Beth Stearns	18-2	S-O
Legislative Committee Secretary	Christopher Taylor-Bice	18-1	S-O
Legislative Committee Secretary	Gina Ten Pas	18-2	S-O
Legislative Committee Secretary	Cynthia Ulem Christy	17-1	S-O
Legislative Committee Secretary	Dede Zaun	18-4	S-O
Legislative Committee Secretary	Michelle Zumbach	18-1	S-O
Page	Ian Critelli	9-1	S-O
Page	Kennedy Haag	9-1	S-O
Page	Elizabeth Hunter	9-1	S-O
Page	Thomas Knudsen	9-1	S-O
Page	Jackson Maddox	9-1	S-O
Page	Maren Rasmussen	9-1	S-O
Page	Ceclia Redman	9-1	S-O
Page	Grace Tollefson	9-1	S-O

JACK WHITVER, Chair

STANDING COMMITTEES APPOINTED

The Majority and Minority Leaders announced the following appointments to the standing committees of the Senate for the Eighty-ninth General Assembly, 2022 session:

*Vice Chair
**Ranking Member

AGRICULTURE—13 Members

Zumbach, Chair	Driscoll	Mathis	Shipley
Sweeney*	Edler	Ragan	Smith, J.
Kinney**	Green	Rozenboom	Wahls
Costello			

APPROPRIATIONS—21 Members

Kraayenbrink, Chair	Dotzler	Koelker	Smith, J.
Lofgren*	Edler	Mathis	Taylor, T.
Bolkcom**	Garrett	Petersen	Williams

Celsi	Guth	Ragan	
Costello	Johnson	Reichman	
Cournoyer	Klimesh	Rozenboom	

COMMERCE—17 Members

Schultz, Chair	Chapman	Mathis	Sinclair
Koelker*	Goodwin	Nunn	Smith, R.
Lykam**	Johnson	Petersen	Wahls
Bisignano	Klimesh	Quirmbach	Williams
Brown			

EDUCATION—15 Members

Sinclair, Chair	Celsi	Johnson	Sweeney
Taylor, J.*	Cournoyer	Kraayenbrink	Trone Garriott
Quirmbach**	Giddens	Rozenboom	Zaun
Carlin	Goodwin	Smith, J.	

ETHICS—6 Members

Koelker, Chair	Jochum**	Hogg	Kinney
Carlin*	Costello		

GOVERNMENT OVERSIGHT—5 Members

Schultz, Chair	Celsi**	Lofgren	Petersen
Williams*			

HUMAN RESOURCES—13 Members

Edler, Chair	Garrett	Johnson	Rowley
Costello*	Green	Lofgren	Sweeney
Mathis**	Jochum	Ragan	Trone Garriott
Bolkcom			

JUDICIARY—15 Members

Zaun, Chair	Bolkcom	Petersen	Shipley
Garrett*	Boulton	Reichman	Sinclair
Kinney**	Dawson	Rowley	Taylor, J.
Bisignano	Johnson	Schultz	

LABOR AND BUSINESS RELATIONS—11 Members

Dickey, Chair	Dotzler	Jochum	Taylor, J.
Green*	Driscoll	Rowley	Taylor, T.
Boulton**	Guth	Schultz	

LOCAL GOVERNMENT—11 Members

Shipley, Chair	Driscoll	Hogg	Taylor, T.
Klimesh*	Garrett	Lofgren	Williams
Smith, J.**	Guth	Quirmbach	

NATURAL RESOURCES AND ENVIRONMENT—13 Members

Sweeney, Chair	Celsi	Hogg	Shipley
Driscoll*	Cournoyer	Lykam	Taylor, J.
Trone Garriott**	Green	Rozenboom	Zumbach
Boulton			

RULES AND ADMINISTRATION—11 Members

Whitver, Chair	Bolkcom	Ragan	Zaun
Chapman*	Brown	Sinclair	Zumbach
Wahls**	Jochum	Smith, R.	

STATE GOVERNMENT—15 Members

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Cournoyer*	Celsi	Guth	Reichman
Bisignano**	Dawson	Jochum	Schultz
Boulton	Giddens	Johnson	

TRANSPORTATION—13 Members

Brown, Chair	Driscoll	Lykam	Smith, J.
Dickey*	Klimesh	Rozenboom	Taylor T.
Giddens**	Koelker	Shipley	Zumbach
Bisignano			

VETERANS AFFAIRS—11 Members

Lofgren, Chair	Carlin	Dotzler	Mathis
Reichman*	Costello	Edler	Ragan
Giddens**	Dawson	Green	

WAYS AND MEANS—17 Members

Dawson, Chair	Dickey	Quirmbach	Sweeney
Goodwin*	Dotzler	Schultz	Taylor, J.
Jochum**	Green	Sinclair	Taylor, T.
Bolkcom	Petersen	Smith, R.	Zaun
Brown			

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ADMINISTRATION AND REGULATION

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Zumbach*	Giddens	

AGRICULTURE AND NATURAL RESOURCES

Rozenboom, Chair	Mathis**	Williams
Shipley*	Kinney	

ECONOMIC DEVELOPMENT

Koelker, Chair	Dotzler**	Lofgren
Reichman*	Hogg	

EDUCATION

Cournoyer, Chair	Smith, J.**	Sweeney
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HEALTH AND HUMAN SERVICES

Costello, Chair	Ragan**	Trone Garriott
Edler*	Klimesh	

JUSTICE SYSTEM

Garrett, Chair	Taylor, T.**	Taylor, J.
Carlin*	Boulton	

TRANSPORTATION, INFRASTRUCTURE AND CAPITALS

Johnson, Chair	Petersen**	Rowley
Driscoll*	Lykam	

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BOLKCOM, Joe	Appropriations, Ranking Member Human Resources Judiciary Rules and Administration Ways and Means
BOULTON, Nate	Judiciary Labor and Business Relations, Ranking Member Natural Resources and Environment State Government Justice System Appropriations Subcommittee

BROWN, Waylon	Commerce Rules and Administration State Government Transportation, Chair Ways and Means
CARLIN, Jim	Education Ethics, Vice Chair Veterans Affairs Justice System Appropriations Subcommittee, Vice Chair
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GREEN, Jesse	Agriculture Human Resources Labor and Business Relations, Vice Chair Natural Resources and Environment Veterans Affairs

	Ways and Means Educations Appropriations Subcommittee, Vice Chair
GUTH, Dennis	Appropriations Labor and Business Relations Local Government State Government Administration and Regulation Appropriations Subcommittee, Chair
HOGG, Robert	Ethics Local Government Natural Resources and Environment Economic Development Appropriations Subcommittee
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	Health and Human Services Appropriations Subcommittee, Ranking Member
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SMITH, Jackie	Agriculture Appropriations Education Local Government, Ranking Member Transportation

	Education Appropriations Subcommittee, Ranking Member
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JOURNAL OF THE SENATE

SECOND CALENDAR DAY
SECOND SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, January 11, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Johnson, member of the Senate from Buchanan County, Independence, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Elizabeth Hunter.

The Journal of Monday, January 10, 2022, was approved.

COMMITTEE FROM THE HOUSE

A committee from the House appeared and announced that the House was ready to receive the Senate in joint convention.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:20 a.m. until 5:35 p.m.

RECONVENED

The Senate reconvened at 5:42 p.m., President Chapman presiding.

In accordance with House Concurrent Resolution 101, duly adopted, the Senate proceeded to the House chamber under the direction of the Secretary of the Senate.

JOINT CONVENTION

The joint convention convened at 5:45 p.m., President Chapman presiding.

Senator Whitver moved that the roll call be dispensed with and that the President of the joint convention be authorized to declare a quorum present, which motion prevailed by a voice vote.

President Chapman declared a quorum present and the joint convention duly organized.

Senator Whitver moved that a committee of four, two members from the Senate and two members from the House, be appointed to notify Governor Kim Reynolds that the joint convention was ready to receive her.

The motion prevailed by a voice vote, and the Chair announced the appointment of Senators Rozenboom and Trone Garriott on the part of the Senate, and Representatives Dolecheck and Konfrst on the part of the House.

The Chief Justice and the Justices of the Supreme Court and the Chief Judge and the Judges of the Court of Appeals were escorted into the House chamber.

Lieutenant Governor Adam Gregg and his family were escorted into the House chamber.

First Gentleman Kevin Reynolds and family of the Governor were escorted into the House chamber.

The committee waited upon Governor Kim Reynolds and escorted her to the Speaker's station.

President Chapman presented Governor Kim Reynolds, who delivered the following Condition of the State Address:

Mr. President, Mr. Speaker, Lieutenant Governor, legislative leaders and members, justices and judges, my fellow Iowans:

Two years ago, Ilee and Michael Muller were living in California but they were looking for something else. Something away from the hustle and bustle, the crowded highways and high cost of living.

They had visited the city of Elk Horn in Shelby county and fallen in love with it, so when a restaurant came up for sale, they made the leap and put their faith in Iowa.

They bought an acreage outside of town, packed their belongings, and began to build a life and introduce themselves and their two daughters to the community.

They opened their restaurant, Grace on Main, in March of 2020—and you know what came next.

But the Mullers quickly realized that the Iowa way of life isn't a myth.

The community came together—and came in droves to the restaurant window to buy their unique pizzas.

Unlike so many states, Iowa's economy stayed open, and so did Grace on Main.

And they did more than stay open. The Mullers and their restaurant have thrived, winning multiple awards, including the Rural Operator of the Year from the Iowa Restaurant Association.

When I stopped by Grace on Main for lunch this fall, Ilee told me "Iowa Nice isn't just a slogan, it's real. It's not who has a nicer car and how much money you have. If you need help, everyone is willing to drop everything. You don't get that back in California."

I couldn't help but smile, because that's exactly what we've always done. And what we'll always do.

The Mullers had faith in Iowa. And Iowa came through.

The Mullers, along with some of their most loyal customers, are with us tonight. Won't you please join me in welcoming the Mullers to Iowa and recognizing the community that embraced them.

Two years ago, about the time the Mullers were moving to Iowa, I stood here before you at the beginning of a new decade. I talked about how far we'd come in ten years.

About how we'd gone from a time when families lost their life savings, Iowans lost their jobs, and our state government lost control of its budget—to a time of record-low unemployment, a budget surplus, and record investments in K-12 education.

But most important, I talked about a vision for our future. About the need to be bold; to show the world that Iowa truly is the state of opportunity.

The pandemic delayed some of our efforts, but it didn't change our direction. In the last eight months alone we:

- Invested $300 million more in broadband,
- Strengthened funding for mental health by making it more sustainable,
- Made our communities safer and supported our law enforcement;
- Encouraged more quality housing,
- Extended and expanded our water-quality efforts,
- Repealed the inheritance tax on families,
- Gave parents more choices in their child's education,
- Protected life,
- and expanded telehealth services to increase access to affordable health care across every part of our state.

When US News and World Report ranked Iowa the #1 state for opportunity last year, it wasn't because we wanted it. It was because we earned it.

It was because we had faith in Iowans. And Iowans came through.

Of course, rankings are nice. But they're not what matters.

What matters is how we come together in our own communities —from cities like Des Moines to small towns like Elk Horn—where we live and work and worship.

This is my fourth time speaking to you from this chamber on the condition of the state. And I'm proud to report, for the fourth time, in every corner of Iowa, the condition of our state is strong.

We're strong because we've been guided by the lights of common sense, fairness, and freedom. By the knowledge that bold action isn't always government action. It's Iowans making their own decisions for their own families and future.

Under these high ceilings, next to this marble, among these columns and portraits, it's tempting to believe that nothing good happens unless we legislate it, regulate it, or fund it.

But in the small towns, around kitchen tables, in the fields and back-offices, Iowans understand that we in this building don't fund anything. They do.

And right now, they're paying too much.

Last year, the state ended with a $1.2 billion surplus, on top of nearly $1 billion cash reserves.

That's good. We kept spending down.

But it also means that, despite the historic 2018 tax cuts, we're still taking too much from Iowans' paychecks.

That needs to stop. Now.

Tomorrow, I'll introduce a comprehensive bill that significantly cuts taxes for all Iowans.

First, it eliminates our complex system of multiple tax brackets and sets one tax rate of 4%. Flat and fair.

The cuts will occur gradually over the next four years so that we protect priorities like education and public safety. But in the first year alone, taxpayers will save almost $500 million. And by 2026, when the bill is fully implemented, an average Iowa family will pay over $1,300 less in taxes, which is on top of their $1,000 tax cut from the 2018 bill.

That's money that can be reinvested into our economy and used to promote the prosperity of every Iowan.

Yes, we'll have less to spend once a year at the Capitol, but we'll see it spent every single day on Main Streets, in grocery stores, and at restaurants across Iowa. We'll see it spent in businesses instead of on bureaucracies.

We'll put our faith in Iowans, and they won't let us down.

Also, starting next year, for Iowans who have worked all their lives and saved for retirement, this bill will do even more by eliminating the taxation of retirement income.

For the vast majority of retired Iowans—those who rely on their 401K, IRA, or pension—that's not just an income-tax cut; it's a full income-tax repeal.

And that's how it should be. You've worked hard all your life, saving for retirement and paying your fair share in taxes. It's time you get a break from the tax collector; you've earned it, now you should enjoy it.

Under my plan, the tax repeal on retirement income won't be limited to bank accounts.

For farmers, whose savings is as much the black dirt under their boots as the money in the bank, this bill will eliminate the tax on cash-rent payments they receive when they retire from farming.

And for employees who received stock in their company for years of hard work, the bill will eliminate the tax on the sale of those shares.

This will be a game-changer that will incentivize employers to share ownership with their employees and send a message to the rest of the country: Come. Move to Iowa. Work here and become an owner in a company and grow your investment tax free. Have faith in Iowa and we'll come through.

All of these tax cuts have one thing in common—they reward work. Work to be done and a lifetime of work to be proud of.

That's never been more important, as the country is facing an unprecedented worker shortage.

Across the nation, job openings far outnumber the workers available to fill them, and 4 million fewer Americans are working now than they were before the pandemic.

Iowa is better positioned than most, with the ninth highest labor participation rate in the country. But we're still down from where we were at the beginning of 2020. And if we don't take bold action, other states will.

Thanks to the leadership and careful planning of many of you in this room, we're building on a solid foundation.

Through bipartisan efforts, we established Future Ready Iowa, which provides tuition-free community college and certification programs to Iowans training for high-demand jobs.

Since the fall of 2019, more than 35,000 scholarships have been awarded empowering nearly 17,000 Iowans to pursue careers and advance Iowa's workforce—with thousands more to come.

We've also focused on expanding apprenticeship programs, incorporating work-based learning in our schools, integrating computer science into the curriculum, and so much more.

With these efforts, we're on the path to giving every Iowan the opportunity to find a rewarding career. But barriers to work still exist, including the need for childcare.

That's also a national issue but, contrary to what some in D.C. believe, there isn't a national solution.

In Iowa we've taken a bottom up approach. Last legislative session we created the Childcare Challenge, a program where providers apply for grants that fit the needs of *their* communities. It's already paying off.

In less than a year, we've awarded grants that will create 4,000 new childcare spots across the state.

Sprouts Early Learning Academy in Carlisle is a great example. Paige and Taylor Smothers own the Academy, and thanks to a state grant they overcame inflated construction costs and regulatory burdens to open an amazing preschool and child care center for 70 2-5 year-olds.

When I visited the academy, I could see that we're on the right path.

I've invited Paige and Taylor to be with us tonight so they can be recognized for their achievement and hear firsthand that their efforts, and the efforts of others like them, have inspired us to do even more. Won't you please stand.

Because of the positive results from the Childcare Challenge, and because of the overwhelming number of outstanding applicants, I'm announcing that the State is expanding this program to provide another 5,000-plus childcare openings across the state.

Last week, I had the privilege of calling some of the applicants to let them know they would be receiving a state grant. Let me give you a sample of what's to come.

In Dubuque, Aspire Home Daycare Network will remodel and equip homes that will help stay-at-home moms start their own daycare business. In Williamsburg, the school district will renovate a vacant house, in partnership with the high-school construction club, that will serve as a childcare center for teachers' children. And in Hull, the Bright Start Daycare and Preschool will expand its facility to help cut the current waitlist of 67 children in this rural community.

These are more than just buildings. They are the physical reminders of the thousands of lives that will be enriched. And it's not just the children—it's also the lives of parents empowered to go to work knowing their child is cared for.

Last spring I established the Governor's Childcare Task Force and charged the group with developing a comprehensive strategy to address this issue. I'm happy to report that we've already made progress in implementing many of their recommendations, including relieving childcare providers of onerous regulations.

There's more to do, and I look forward to working with the legislature this session. Because no one should be forced to choose between earning a living and caring for their child.

There are many reasons for the worker shortage, but we need to recognize that, in some cases, it's because the government has taken away the need or desire to work. The safety net has become a hammock.

Don't mistake me; this isn't the only cause. But it's a growing problem, and it's not just an economic one.

There is dignity in work; it gives us meaning and purpose. So when it's degraded, when idleness is rewarded with enhanced unemployment and stimulus checks, when work begins to seem optional rather than fundamental, then society begins to decay.

I'm worried that we're reaching that point. Where workers who stay home are being put ahead of the workers who show up.

Tomorrow, somewhere in Iowa, a carpenter will struggle to set rafters by himself in the freezing cold. He needs help, and he's been asking for it. But too many are at home, living on his tax dollars. It's been the same for almost two years now. His hands are tired; his back is tired. He's just tired.

He has faith in Iowa—he believes we'll come through—but D.C. doesn't seem to care.

So let's show him that Iowa does care. Let's show him that in this State, we appreciate the value of work and will promote it at every turn.

We start by revamping our unemployment system so that it becomes a *re*-employment system.

Unemployment benefits serve an important purpose as a short-term safety net for Iowans who are unexpectedly out of work, through no fault of their own. But we can't forget these are taxpayer funds, and we have to recognize that we're living in a time of prolonged low unemployment.

Today, there are many more job openings than Iowans on unemployment.

Those Iowans have six months to collect unemployment benefits while they look for one of the many open jobs. Frankly, that's more time than necessary.

I'll be introducing a bill that lowers benefits to 16 weeks–about four months—and ensures that those collecting unemployment can't turn down suitable jobs while living on taxpayer funds.

We'll also increase our efforts to match unemployed Iowans with new opportunities. To that end, I'm announcing the creation of a separate re-employment division within the State, whose sole focus will be helping Iowans get back to work.

We want these Iowans to succeed, and we'll give them every opportunity to do so.

Unemployment payments and stimulus checks aren't the only government-created problems we're facing.

We need to continue our work this session to eliminate unnecessary licensing requirements that keep people from moving to or working in Iowa.

We also need to address a legal system that is awarding millions of dollars in damages without regard to the consequences.

When accidents and mistakes happen, injured Iowans deserve to be fairly compensated. But arbitrary, multi-million dollar jury awards do more than that. They act as a tax on all Iowans, raising the costs of goods and services and jeopardizing our healthcare system.

Like many states have already done, we need to put reasonable caps on non-economic damages for trucking accidents and medical malpractice. Let's work together to do just that.

The shortage of healthcare workers is one of our greatest workforce concerns, especially in rural Iowa.

Five of the state's top-10 job postings are healthcare careers, with registered nurses and nursing assistants at the top of the list. And the problem is expected to get worse, as the US Bureau of Labor Statistics projects the need for 1.1 million more nurses nationally by 2030.

Once again, Iowa is ahead of the curve, as we've already begun the process to recruit and train.

We're expanding our loan forgiveness programs for healthcare professionals who commit to Iowa, especially our rural areas. And we're making it easier for part-time nurses to teach while they work.

We're also starting our training programs earlier, to give our students a first-hand view of what a career in healthcare looks like.

In Pella, the high-school Career Academy recently launched a patient-care registered apprenticeship program that offers students hands-on experience in a variety of medical settings, while at the same time earning a wage.

Before they even leave high school, these students can become a certified nursing assistant, and then qualify to work as a lab or surgical technician. And within a few short years, they can go on to become an OB tech, RN or BSN—all while being paid.

This innovative approach, and the public-private partnerships that make it possible, are what Iowa's education and healthcare systems need. That's why we're launching a new healthcare registered apprenticeship program that will provide funding to at least five communities to scale what Pella has done.

Marie Vander Wilt, the first apprentice in Pella's program, said that getting hands-on experience in healthcare gave her a new appreciation for this career path. She told me "the job isn't always easy but I get to leave work each day knowing that I made a difference."

Marie, along with her instructor, Kay Landon, and the program partners from Pella Regional Hospital and Wesley Life are with us tonight. Let's thank them for leading.

Across the state, educators are teaming up with professionals in their field to train our students. In fact, we're a national leader in work-based learning.

But for all the real-world experience we've brought to the classroom—from welding to information technology to healthcare—we've missed an important one: education.

When it comes to training the next generation of teachers, we haven't been using our best asset: our teachers in the classroom. The ones who put their skills to work every day to make a difference.

Starting tomorrow, we'll be launching the first teacher registered apprenticeship program in the country, letting schools effectively grow their own workforce.

High school apprentices start classroom instruction in their junior year and, within a year of graduation, they can earn a paraeducator credential and associates degree. And for paraeducators, their day jobs will count toward student teaching requirements, greatly reducing the cost and time required to become a teacher.

The teachers of tomorrow are in our schools today. Let's give them a head start on their journey to one of the most rewarding careers.

Talk to someone who's been successful and without fail they'll tell you about a teacher who set them on their path. About someone who inspired them; who pushed them to be what they are today.

Our teachers provide more than textbook instruction. They give emotional support and structure. They help guide our children through their most difficult and formative years.

That's why it was and is so important that our schools stay open. And that's why I'm proud of the tens of thousands of Iowa educators who stayed in the classroom when so many in other states did not.

As a means of saying "Thank you"—and to help retain our educators—I'm announcing tonight that we'll use federal ESSER funds to award a $1,000 retention bonus to teachers who stayed on the job through the pandemic and who will continue teaching next year. Your work is essential and we want you to know it.

The importance of a strong public school system is reflected in the State budget, where public education accounts for more than 56% of all state spending.

And for PreK-12 education, that's over $3.7 billion, with an increase of nearly $1 billion in the last decade.

For most Iowa families, that's money well spent. Across the State, in every one of our 99 counties, there are strong schools with dedicated teachers.

But for some families, the school district doesn't fit their values or meet the needs of their child.

And sadly, in some cases, school administrators are ignoring the problem or just not listening. Some even believe that it's a school's responsibility to not just teach kids to learn but to control *what* they learn—to push their worldview.

The problem has been building for some time, but parents are no longer in the dark.

Recently, several parents brought to light that schools are buying and teaching with books that contain vulgar and sexually explicit material involving minors. These books are so explicit they'd be X-rated if they were shown in the theater. The content is so bad that after a parent read one of them at a school board meeting, the school district took the live stream down from its website because the passages were too inappropriate—and *yet* many of these books remain in school libraries today.

We live in a free country with free expression. But there's a difference between shouting vulgarities from a street corner and assigning them as required classroom reading. There's a difference between late-night cable TV and the school library.

If school boards and administrators refuse to understand that—if they believe the classroom is about pushing their worldview—then we're on the wrong path.

So to the parents who are listening tonight, who are frustrated with what's happening: Know that I and members of this legislature have heard you loud and clear. Enough is enough. Parents matter, and we're going to make sure you stay in charge of your child's education.

It starts with full transparency. All schools should be required to publish what they're teaching. There's no reason to hide it—at least no *good* reason.

The same goes for the books in the library. Parents should know what their kids have access to, and they should have a timely process to address their concerns. Because when our parents are fully informed, they can make informed choices.

And ultimately, that's what every parent deserves: a choice. Even when the school is doing what it should, that doesn't necessarily mean the unique needs and values of every student are being met.

Wealthier parents always have an alternative. But many middle- and lower-income families don't. They don't have a choice.

Jacky Ochoa, a mother of four daughters who attend St. Rose of Lima Catholic school in Denison said it best. Writing to the Des Moines Register, she said that "school choice is personal; it's about students. Choice empowers parents—a child's strongest advocates, and the people who best know their skills and interests—to select the learning environment that will allow their child to shine."

Jacky, I couldn't agree more—which is why I'll be introducing legislation that allows middle- and low-income families and students with an individualized educational plan to receive a portion of the 'per pupil' funds allocated annually by the state to move their child to the education system of their choice.

About 70% (over $5,300) of those funds will go directly into an account for families to customize their child's education. The remaining 30% will be distributed by the state to smaller school districts.

We want to ensure our small districts stay strong while, at the same time, empowering parents to choose what's best for their child.

As I said last year, school choice isn't a zero sum game. It has the potential to raise the quality of all schools. After we expanded open enrollment last session, one superintendent responded by setting the goal of making his district the "destination of choice."

That is precisely what we want: For every school, public or private, to strive to be the best it can be. Because when our schools succeed, Iowa becomes a "destination of choice" for parents everywhere.

My focus tonight is about work and workers. About what puts food on the table and a roof over our head. About what gives us meaning and purpose.

But sometimes work means more than that. Sometimes—for a small but brave few—it means putting someone else's life above their own.

For those workers—those who serve in our armed forces, who patrol our streets, guard our prisons, or in any other way protect and serve—an occasion like this would be incomplete without saying thank you and recognizing those Iowans who gave the ultimate sacrifice this year.

Cpl. Daegan William-Tyeler Page, who was killed by terrorists as he bravely protected US citizens and Afghan refugees attempting to evacuate Kabul.

Nurse Lorena Schulte and Correctional Officer Robert McFarland, who sacrificed their lives to stop two inmates from escaping Anamosa prison.

And State Patrol Sgt. Jim Smith and Trooper Ted Benda, who spent their careers protecting Iowans and keeping our communities safe, who tragically lost their lives in the line of duty.

I also want to honor the life of Congressman Neal Smith, a man who served this state and his country for almost all of his 101 years, including as a military pilot who earned the Purple Heart in World War II.

And I want to recognize the absence of my friend, John Landon, who served his country in Vietnam and served this State as a representative of this body. John, I miss seeing your reassuring face from this podium, but I'm so happy that your legacy lives on.

To honor all of these brave men and women we lost this year, please join me and the family members who are with us tonight in a moment of silence.

Whether it's patrolling our streets or guarding our prisons, public safety jobs are difficult and absolutely vital.

I want to thank the legislature for giving additional funds to the Department of Corrections to help keep our prisons secure. And I want to recognize the importance of the Back the Blue Bill you passed last year.

It's more important than ever that we show these men and women that we appreciate what they do.

Because across the country, far too many don't have that appreciation; they don't believe in prisons and don't see the need for police.

That way of thinking isn't just wrong; it's dangerous. And in Iowa, it has no place.

To re-enforce that message, we're using federal ARPA funds to give our brave men and women in law enforcement and corrections a $1,000 retention bonus, while also aggressively recruiting officers in other states.

When officers are treated like villains and other jobs are plentiful, it's no wonder that applications nationally are down and resignations are up. It's no wonder that our young people are saying, "no thanks" to a career in public safety.

While we can't fix attitudes in other states, we can certainly let our officers—and officers across the country—know that in Iowa, they're welcome and will receive the respect and support they deserve.

Most of what we do here in this building is about what happens in Iowa. It's about educating our children in our schools, getting Iowans back to work, or just making sure that we, the government, aren't standing in their way.

But Iowa is also a national and international leader; what we do here reverberates beyond our borders.

That's certainly true when it comes to agriculture and energy—especially when the two meet.

Iowa is a leader in renewable energy. In fact, we lead the nation in the production of both ethanol and biodiesel and the crops that make them.

Everyone knows that renewable fuel is important to Iowa. But D.C. is losing sight of its importance to the country.

Time and again—in administrations of both parties—the federal government has walked away from its commitment to renewable fuels, and we've had to bring them back.

We need to do it again. The Biden Administration has focused almost all of its efforts on electric vehicles, actively working to eliminate gas-powered cars.

That's a mistake, especially as China works to lock up the precious metals that make EV batteries.

Instead, we must continue to embrace an all-of-the-above approach, where we support energy sources that come from right here in Iowa.

To do that, I am introducing new legislation that will improve access to E15 and B20 and upgrade Iowa's fuel infrastructure to offer higher blends. And I'm proposing that we invest in carbon-capture solutions to sustain and build on our leadership position in renewable energy.

Let's send DC a message that can't be ignored. Let's remind them that America's energy is growing, right here, in Iowa's fields.

I want to end tonight where I began—by highlighting the amazing things that are happening in our communities.

I do this to shine a light on what Iowans are doing, and to remind us, in here, that it's not our doing.

In Mason City, residents are completely remaking their downtown. With the historic Frank Lloyd Wright hotel as an anchor, they've created a beautiful park on Main Street, repurposed a mall as an ice arena, and lined the street's buildings with second-floor housing.

In Elkader, the small community of just 1,200 remade itself into a destination by creating one of Iowa's first whitewater courses, by reviving landmarks like the Elkader Theater and the Opera House, and by opening numerous restaurants, bars, and coffee shops that have created a cultural hub.

In Woodbine, the school, businesses, and local leaders partnered together to create the CREW Center, a place that combines recreation, education, and community. Where the small school district created an innovative work-based learning program, IGNITE Pathways, that is a magnet for all of SW Iowa.

Revitalization efforts like these are happening all over the state. They're happening because people see something special in our small towns and cities. They see something special in each other.

At the end of Field of Dreams—a magical movie that we got to relive last summer—James Earl Jones' character tells Ray Kinsella, in a baritone voice I can't imitate: "People will come Ray. They'll come to Iowa for reasons they can't even fathom."

If we get this right, if we take this opportunity, then people will come—but for reasons that are obvious.

They'll come because here they can find freedom and opportunity. Because of our small towns and thriving cities. They'll come because we reward work, value personal responsibility, and care for our neighbors.

Above all, they'll come because we put our faith in Iowans—and because Iowans always come through.

Thank you, God Bless you, and God Bless the great State of Iowa.

Governor Reynolds was escorted from the House chamber by the committee previously appointed.

Representative Windschitl moved that the joint convention be dissolved, which motion prevailed by a voice vote.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 6:52 p.m. until 9:00 a.m., Wednesday, January 12, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF ADMINISTRATIVE SERVICES

Capitol Planning Commission, pursuant to Iowa Code section 8A.373. Report received on January 11, 2022.

IOWA LAND RECORDS

County Land Record Information System Budget and Recording Services Costs Report, pursuant to 2021 Iowa Acts, HF 837, section 3. Report received on January 11, 2022.

JUDICIAL BRANCH

Judicial Nominating Commissioners Elections Results Report, pursuant to Iowa Code section 46.9. Report received on January 11, 2022.

LAW ENFORCEMENT ACADEMY

Iowa Law Enforcement Academy Council Domestic Abuse Training Report, pursuant to Iowa Code section 80B.11. Report received on January 10, 2022.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on January 11, 2022.

DEPARTMENT OF PUBLIC DEFENSE

Offenses Reported to Civilian Law Enforcement Authorities, pursuant to 2021 Iowa Acts, Chapter 65, Section 3. Report received on January 10, 2022.

DEPARTMENT OF PUBLIC HEALTH

Behavior Analyst and Assistant Behavior Analyst Grants Program Report, pursuant to Iowa Code section 135.181. Report received on January 11, 2022.

Plumbing and Mechanical Systems Board Report, pursuant to Iowa Code section 105.9. Report received on January 11, 2022.

DEPARTMENT OF REVENUE

Earned Income Tax Credit (EITC) Evaluation Study Report, pursuant to Iowa Code section 2.48. Report received on January 11, 2022.

Franchise Tax Credit Evaluation Study Report, pursuant to Iowa Code section 2.48. Report received on January 11, 2022.

High Quality Jobs Program Tax Credit Evaluation Study Report, pursuant to Iowa Code section 2.48. Report received on January 11, 2022.

Research Activities Tax Credit Evaluation Study Report, pursuant to Iowa Code section 2.48. Report received on January 11, 2022.

Tax Expenditure Cost Estimate Report, pursuant to Iowa Code section 2.48. Report received on January 11, 2022.

DEPARTMENT OF TRANSPORTATION

Highway Construction Program Expenditures and Contractual Obligations, pursuant to Iowa Code section 307.12. Report received on January 11, 2022.

UTILITIES BOARD

Customer Contribution Utility Fund Report, pursuant to Iowa Code section 476.66. Report received on January 10, 2022.

REPORTS OF COMMITTEE MEETINGS

AGRICULTURE

Convened: Tuesday, January 11, 2022, 10:00 a.m.

Members Present: Zumbach, Chair; Sweeney, Vice Chair; Kinney, Ranking Member; Costello, Driscoll, Edler, Green, Mathis, Ragan, Rozenboom, Shipley, J. Smith, and Wahls.

Members Absent: None.

Committee Business: Introductions.

Adjourned: 10:30 a.m.

APPROPRIATIONS

Convened: Tuesday, January 11, 2022, 2:30 p.m.

Members Present: Kraayenbrink, Chair; Lofgren, Vice Chair; Bolkcom, Ranking Member; Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Mathis, Petersen, Ragan, Reichman, Rozenboom, J. Smith, T. Taylor, and Williams.

Members Absent: None.

Committee Business: Appropriations committee.

Adjourned: 2:45 p.m.

COMMERCE

Convened: Tuesday, January 11, 2022, 1:05 p.m.

Members Present: Schultz, Chair; Koelker, Vice Chair; Lykam, Ranking Member; Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, Wahls, and Williams.

Members Absent: None.

Committee Business: Organizational meeting.

Adjourned: 1:10 p.m.

EDUCATION

Convened: Tuesday, January 11, 2022, 1:35 p.m.

Members Present: Sinclair, Chair; J. Taylor, Vice Chair; Quirmbach, Ranking Member; Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, and Trone Garriott.

Members Absent: Zaun (excused).

Committee Business: Organizational.

Adjourned: 1:45 p.m.

HUMAN RESOURCES

Convened: Monday, January 10, 2022, 2:00 p.m.

Members Present: Edler, Chair; Costello, Vice Chair; Mathis, Ranking Member; Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott.

Members Absent: None.

Committee Business: Organizational meeting.

Adjourned: 2:15 p.m.

JUDICIARY

Convened: Tuesday, January 11, 2022, 2:00 p.m.

Members Present: Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: Zaun, Chair; and Bolkcom (both excused).

Committee Business: Organizational/introductions.

Adjourned: 2:10 p.m.

LOCAL GOVERNMENT

Convened: Monday, January 10, 2022, 2:30 p.m.

Members Present: Shipley, Chair; Klimesh, Vice Chair; J. Smith, Ranking Member; Driscoll, Garrett, Guth, Hogg, Lofgren, Quirmbach, T. Taylor, and Williams.

Members Absent: None.

Committee Business: Organizational meeting.

Adjourned: 2:35 p.m.

INTRODUCTION OF BILLS

Senate File 2003, by Cournoyer, a bill for an act relating to certain amounts of school district funding for programs for at-risk students, secondary students who attend alternative programs or alternative schools, or returning dropouts and dropout prevention, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2004, by Petersen, Boulton, Lykam, Jochum, Celsi, J. Smith, Kinney, Dotzler, T. Taylor, and Hogg, a bill for an act relating to the submission and posting of hospital policies.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2005, by Petersen, Ragan, Mathis, Boulton, Lykam, Jochum, Celsi, J. Smith, Kinney, Dotzler, T. Taylor, Trone Garriott, Giddens, Quirmbach, Bolkcom, Wahls, and Hogg, a bill for an act relating to the Medicaid extended postpartum coverage option.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2006, by Petersen, Ragan, Mathis, Boulton, Lykam, Jochum, Celsi, J. Smith, Kinney, Dotzler, T. Taylor, Trone Garriott, Giddens, Quirmbach, Bolkcom, Wahls, and Hogg, a bill for an act relating to Medicaid reimbursement for maternal and child health.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2007, by Petersen, Ragan, Mathis, Boulton, Lykam, Jochum, Celsi, J. Smith, Kinney, Dotzler, T. Taylor, Trone Garriott, Giddens, Quirmbach, Bolkcom, and Wahls, a bill for an act relating to evidence-based maternal and infant home visiting services.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2008, by Petersen, Ragan, Mathis, Boulton, Lykam, Jochum, Celsi, J. Smith, Kinney, Dotzler, T. Taylor, Trone Garriott, Giddens, Quirmbach, Bolkcom, and Wahls, a bill for an act relating to maternal health best practices.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2009, by Ragan, Mathis, Boulton, Lykam, Celsi, J. Smith, Dotzler, T. Taylor, Petersen, Trone Garriott, Giddens, Quirmbach, Bolkcom, Wahls, Jochum, Kinney, Hogg, and Bisignano, a bill for an act relating to the state child care assistance eligibility requirements and provider reimbursement rates.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2010, by Green, a bill for an act relating to safety and sanitation criteria for tattooing establishments, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2011, by Costello, a bill for an act relating to the purchasing of a youth deer hunting license and tag.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

SUBCOMMITTEE ASSIGNMENTS

Senate File 50
(Reassigned)

WAYS AND MEANS: Goodwin, Chair; Dawson and Quirmbach

Senate File 219
(Reassigned)

WAYS AND MEANS: Dawson, Chair; Dotzler and Goodwin

Senate File 441
(Reassigned)

WAYS AND MEANS: Zaun, Chair; Green and T. Taylor

Senate File 490
(Reassigned)

WAYS AND MEANS: Dawson, Chair; Quirmbach and Sinclair

House File 774
(Reassigned)

WAYS AND MEANS: Schultz, Chair; Dickey and Dotzler

JOURNAL OF THE SENATE

THIRD CALENDAR DAY
THIRD SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, January 12, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Zach Wahls, member of the Senate from Johnson County, Coralville, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Thomas Knudsen.

The Journal of Tuesday, January 11, 2022, was approved.

COMMITTEE FROM THE HOUSE

A committee from the House appeared and announced that the House was ready to receive the Senate in joint convention.

The Senate stood at ease at 9:07 am. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 9:51 a.m., President Chapman presiding.

In accordance with House Concurrent Resolution 102, the Senate proceeded to the House chamber led by the Senate President and the Secretary of the Senate.

JOINT CONVENTION

In accordance with law and House Concurrent Resolution 102, duly adopted, the joint convention was called to order at 9:59 a.m., President Chapman presiding.

Senator Whitver moved that the roll call be dispensed with and that the President of the joint convention be authorized to declare a quorum present, which motion prevailed by a voice vote.

President Chapman declared a quorum present and the joint convention duly organized.

Senator Whitver moved that a committee of four, two members from the Senate and two members from the House, be appointed to escort Governor Kim Reynolds to the Condition of the Iowa Judiciary Message.

The motion prevailed by a voice vote and the Chair announced the appointment of Senators J. Smith and Williams on the part of the Senate, and Representatives Bloomingdale and Hansen on the part of the House.

Senator Whitver moved that a committee of four, two members from the Senate and two members from the House, be appointed to notify Chief Justice Christensen that the joint convention was ready to receive her.

The motion prevailed by a voice vote and the Chair announced the appointment of Senators Boulton and Garrett on the part of the Senate, and Representatives Wolfe and Worthan on the part of the House.

The Justices of the Supreme Court, the Chief Judge and the Judges of the Court of Appeals were escorted into the House chamber.

The family of Chief Justice Susan Christensen was escorted to their seats.

Lieutenant Governor Adam Gregg was escorted into the House chamber.

Governor Kim Reynolds was escorted into the House chamber.

The committee waited upon Chief Justice Susan Christensen and escorted her to the Speaker's station.

President Chapman then presented Chief Justice Susan Christensen who delivered the following Condition of the Judiciary Message:

Mr. President, Mr. Speaker, Members of the General Assembly, Governor Reynolds, Lt. Governor Gregg, state officials, colleagues, family, friends and all Iowans who are, once again, watching remotely or here in person.

Thank you for the opportunity to address this joint convention of the 89th General Assembly on the condition of the judiciary.

As introduced, I am Suzy Christensen. I continue to live in Harlan with my husband of 40 years, Jay. He is with me today as well as four of our five children and a couple of our grandchildren.

Last year, I gave my first condition of the judiciary. Not only did I mix up naming the two guys behind me…but much to my family's amusement, I messed up naming my own grandchildren. I would like to stop their ruthless teasing and fix that monumental boo boo right now: Logan, Karsyn, Connor, Emily, Jack, Levi (last year's forgotten child) and our newest addition, Grayson.

Emily Dickinson wrote, "HOPE is the thing with feathers." It's like a feathered bird forever perched in the soul of every human. You may remember that I started and ended last year's speech on the theme of HOPE. At that point, we were not yet one year into this pandemic. Emotions were swirling in every direction—frustration, anger and a paralyzing fear just to name a few. We were learning to adapt to unprecedented circumstances, and my intent was to send a positive message—to let the people of Iowa know that the judiciary did not succumb to COVID-19 and we remained open for business to ensure continued access to justice.

This year, I'd like to make PEACE the theme of my Condition of the Judiciary. It's been said that PEACE does not mean to be in a place where there is no noise, trouble or hard work. No. Peace means to be in the midst of those things and still be calm in your heart.

While leading the judiciary during a pandemic that is now entering its third year, acquiring a sense of peace has been absolutely critical for me. I'd like to share with you a story about finding peace amongst the noise, trouble and hard work that comes along with life's challenges.

I've told this story in only a couple quaint settings as a way of showing the importance of stick-to-itiveness. But it seems appropriate today for a larger audience because of the pandemic times we're experiencing and the temptation to say, "I don't want to do this anymore" when there is very important work yet to be done.

As you may know, my oldest son, Nic was diagnosed with cerebral palsy at the age of two. During adolescence, Nic's heart was full of wishes, but hands down—number one was to drive a car. Like every other kid.

So we signed him up for regular driver's ed and took him to Omaha for a special driver's ed that would help him learn to drive with hand controls. On July 13, 1998—his 16th birthday—I took him to a driver's license station outside Shelby County because our hometown office wasn't open for licensing that day. We took a number and waited. And waited. And waited…while other people came and went. I started to smell a rat. I went to the front desk and asked, "Is there a problem?" at which time I learned they were waiting for someone to take Nic for a test drive. I called ahead of time and was told he wouldn't have to drive. And we didn't have his car with hand controls. I whispered so Nic wouldn't hear, "May I see your supervisor?" I went into her office alone and asked why she was requiring Nic to drive. She said, "Because we can all see he's handicapped." I knew at that moment I wanted to pounce…like a lawyer. But I was there as Nic's mom. I put on my sunglasses, to hide my tears, and walked out of her office. I headed over to Nic and said, "Come on bud." He said, with his chin quivering, "Am I not getting my license today?" "No buddy, not today."

It was a painfully quiet ride on the way home. Neither one of us said a word. I knew what just happened was BIG and we needed to talk about it. So I pulled over. "Nic, are you okay with what happened back there?" He slowly shook his head no. I told him that if he was my client, I would have said more, but I didn't want to embarrass him. Nic said, "I like it when you fight for me." Okay. I was just hired. And this was the legal advice I gave my new client:

If something like this ever happens to you again, I want you to:

(1) Say "That's not fair." Everyone knows what that means.

(2) Ask the person, "What's your name?"

(3) Call me.

Although Nic was very aware of his own diagnosis, cerebral palsy was not something our family ever talked about. It was just a normal part of our lives. But I decided to ask him something I never dared ask before. "Nic, what is the hardest part about having CP?" I made a conscientious effort to keep my mouth shut, to not answer for him. He looked straight ahead and pondered, for maybe 4 45 or 60 seconds. That's a really, really long time when you're waiting for an answer.

During that pause, my mind raced…what will he say? Maybe that he can't walk independently? Or that he talks different than everyone else? Or how about having the driver's license lady literally crush his dream right before his eyes? He finally turned to me and said, "I can't think of anything."

He couldn't think of one thing that's hard about having CP. And I was ready to fill his head with a bunch of negative things. Up to that day, we tackled one day at a time. Some of those days were unremarkable, others were a nightmare like the day he turned 16 years old. But Nic's response, "I can't think of anything" gave me a sudden and palpable sense of PEACE amidst a storm that continues to rage even today. If I ever had a doubt before—and I had many—for the first time, I truly believed, "We are going to get through this, Nic."

You might wonder what my story about Nic has to do with the Condition of the Judiciary. Today, as I look in the judicial branch's 2021 rear view mirror, I sense a similar feeling of PEACE in the midst of ongoing challenges.

COVID has had an abrupt and brutal impact on the judiciary. Last year, we spent most of the year trying to figure out new ways to perform basic fundamental tasks in our quest to provide Iowan's access to justice. Another year has now passed. What's different? Not only did everyone in the judicial branch get really good at handling the daily challenges that once nearly threw us under the bus, but we got stronger. We got better. And you can feel it. We are not on auto pilot, but there is certainly a sense of calmness, a sense of peace.

Each and every one of our judicial branch members has been a profile of what it takes to work effectively in a crisis and move us to this profound sense of peace within our branch. A sense of, "We can get through anything" even in the midst of this COVID storm that continues to rage.

We were also able to accomplish many great things this past year because you, our legislature, provided us with a steadier platform on which to base Iowa's administration of justice by increasing our funding. On behalf of the entire judiciary, thank you.

Here are just a few highlights of the 2021 judicial branch accomplishments as the pandemic continued to swirl around most every aspect of our lives. These accomplishments helped to ensure all Iowans would have continued access to our judicial branch. A more detailed summary can be found in our Annual Report which was released just today.

You may recall that last year I talked about a distributive work pilot program coming out of the 1st and 4th judicial districts where work from one busier county is shared with judicial branch employees in a less busy county in the same district. Like I said then, for one county to be able to assist another county in need within the same district keeps each county relevant—no matter the size. We expanded those pilots and today, I am excited to report that all eight judicial districts have either begun distributive work processing or are in the final stages of implementing such a plan.

Something else that has had uniform application across the state involves much needed improvements in our courtrooms. When I was a trial judge, one of 6 the most common complaints made by jurors in virtually every trial was that they could not hear well in the courtroom. They had trouble hearing witnesses testify or lawyers make their closing arguments. The problem wasn't their hearing—it had to do with poor acoustics in big, old courtrooms. It is incredibly concerning if a juror cannot hear every word uttered during a trial.

Something pretty cool happened to address that problem. Through the use of Iowa CARES funding, new technology was installed in nearly every courthouse across the state. This technology does more than allow us to hold virtual hearings with video-conferencing. One of the bells that came with this new technology is a sound system and strategically placed microphones which enhance the ability for jurors to hear clearly. One of the whistles that came along is an evidence presentation capability which allows jurors to clearly view exhibits rather than having hard copies passed through the jury box. The benefits of this technology made available with CARES funding will be utilized by every county and certainly last years beyond COVID.

During the last Condition of the Judiciary, I detailed the steps the judicial branch has taken to ensure that all persons are treated equally before the law. I also assured you that the judicial branch would remain steadfast in its commitment in identifying and implementing tools that will assist us in becoming better public servants. In 2021, that monumental journey continued.

All Iowans should be proud that the judicial branch is taking active steps to become a leader when it comes to research and education on issues related to procedural fairness and access to justice. Given the educational investments we've already made, the judicial branch is well-positioned to continue our role as a leader in the area of educating judges and court personnel.

Of course, leadership requires making sober assessments concerning what needs are not being met. In 2021, we recognized that in order for us to continue to properly serve the people of this great state, we need to develop a more comprehensive educational curriculum for judges and judicial branch employees. These educational opportunities would embrace a full range of adult learning. Issues related to race and disproportionality will remain critical components of our educational curriculum.

Simply put, expanding the range of educational opportunities for judicial officers and judicial branch staff will help enable the judicial branch to achieve our mission of administering justice under the law equally to all people, whether you live in Polk County or Page County.

Starting in July, and for the first time since becoming chief, I began traveling to our eight judicial districts. I wanted to personally listen to the many voices of our legal profession in this great state. I asked local lawyers and judges, "What are we doing well? What could we do better? What should I take back to Des Moines?" My sojourn took me to Dubuque, Mason City, Sioux City, Council Bluffs, Des Moines, Indianola, Cedar Rapids, Davenport, Ottumwa, Fairfield and Oskaloosa.

Speaking of Oskaloosa, Justice Waterman, Justice Oxley and I were invited to attend the Mahaska County Bar's weekly lunch. With the exception of Thanksgiving, they have been meeting for lunch every single Thursday…since well before FDR was President of the United States. Garold Heslinga has been a card-carrying member of the Mahaska County Bar since 1948. Interesting little fact for legal nerds like myself…Mr. Heslinga was the prevailing attorney in the spring-gun case of Katko v. Briney…a staple of most every law school tort class.

Each and every town or city I visited was deeply committed to honoring the legal profession and proud to show off their stomping grounds. What I learned through these visits will equip me with a deeper understanding of what Iowan's from every corner of our state need from the judiciary to ensure access to justice.

One of the reasons I wanted to get out to the districts was because the judicial branch was beginning to plan for a post COVID-19 world. We reviewed about 30 formal COVID orders entered by our court and considered the numerous informal policies and practices that had popped up across the state. Did it make sense to simply unwind our orders in an effort to get back to normal? Maybe not. Some of the emergency changes ended up being really good changes that might not have ever happened if the pandemic hadn't forced our hand.

In an effort to evaluate what changes were made in the prior year, the Lessons Learned Task Force was established by the supreme court. I fondly refer to this as the Lemonade Task Force. The task force was made up of representatives such as court reporters, district court and state court administration, trial court and appellate judges, clerks of court, and attorneys in private practice as well as county attorneys and the state public defender's office. They were tasked with reviewing all of the supervisory orders and making recommendations to the supreme court on rules, policies or practices that should be retained, modified or stopped.

The task force submitted its recommendations to the supreme court. After careful review of the task force's recommendations, public comments and considering the current status of the pandemic, on December 6th we entered one COVID order to replace all of the earlier orders.

This omnibus order recognizes the court system is 100 percent fully operational, but we are continuing some practices adopted on an emergency basis when the pandemic started. These practices not only keep court proceedings moving along but allow people to participate in a meaningful way without jeopardizing health or conflicting with work schedules.

Here are a few examples of what's included in the court's December 6th omnibus order which balances the need for efficiency with the value of doing business in person:

In criminal cases, the defendant does not have to appear at certain pretrial proceedings or depositions, and sentencing can go forward with parties appearing by remote video technology. Juvenile courts may conduct proceedings such as child in need of assistance and termination of parental rights by videoconference. In family law matters, courts may conduct divorce or custody trials by videoconference as needed.

It is clear from a review of the lemonade task force's recommendations that there was a heavy reliance on the significant work being done by the criminal rules committee already in place pre-pandemic. This month the court is also approving and sending to Legislative Council a comprehensive revision of the rules governing all criminal cases in Iowa. Since the current rules came into effect nearly 44 years ago, they have undergone piecemeal amendments but no comprehensive review. In the words of Justice Mansfield who chaired the task force reviewing our criminal rules, this piecemeal approach resulted in our rules becoming somewhat "wordy, out of date and hodge-podgy."

The comprehensive revision is the work product of a task force made up of prosecutors, judges, and defense lawyers from around the state as well as representation from Drake and Iowa law schools.

The proposed rules are streamlined and fill in some gaps where the old rules didn't reflect what is actually being done in court. A few substantive changes are recommended by the committee, but only where there was consensus between prosecution and defense that the change would be an improvement. Many of those substantive changes are the result of lessons learned during COVID and would make permanent some of the language included in the criminal portion of our December 6th supervisory order.

Right about the time our criminal rules task force began winding down its four-year project, we threw other court rules into the hopper for review. In particular, Justice Oxley is chairing a task force charged with reviewing our rules of appellate procedure, and Justice Waterman is chairing a task force charged with reviewing our rules of evidence. I look forward to updating you on the work of those newer task forces when their reviews are completed.

You may remember last year, I announced that juvenile justice is my priority as chief. In particular, I am committed to ensuring that Iowa stands out among all the other states in implementing Family First, a federal funding bill based on the belief that kids do best with their families. I am so thrilled to stand up here today and say…we can start to check that box off.

The 4 Questions, 7 Judges program catapulted from pilot status to statewide implementation based on its proven effectiveness at cutting removals by nearly half. There is now talk about asking specific questions not only at the time of removal but at two other critical points in a child welfare case: (1) after a child is actually removed; and (2) once the family is reunited. An example of what kind of question could be asked at those critical stages came from one of our outstanding colleagues, the late Judge Colin Witt. In his courtroom, Judge Witt began asking, "Why can't this child go home today?" The Witt Question has begun to spread across the state…perhaps it will become a pilot program of its own?

We're not the only ones impressed by the 4 Questions program. Street Roots is an Oregon publication dedicated to the topic of homelessness and extreme poverty. About two months ago, an article was published called "Foster Care Shuffle." The focus of this article was Iowa's 4 Questions, 7 Judges program because it was showing evidence of success in reducing the number of moves for kids in foster care. Other states were encouraged to replicate Iowa's program. And apparently that's happening, because we continue to field calls from other states who are attempting to adopt a similar program.

And the judicial branch isn't alone in its mission to keep Iowa's children in the home, with family, whenever it can be done safely. As a part of Family First implementation, the department of human services took the lead on a review of Iowa's juvenile justice legislation found in Iowa Code Chapter 232 and proposing code changes to comply with Family First requirements. I thank DHS for beginning this conversation and I assure you that the Judicial Branch is committed to working with all stakeholders to implement Family First.

I'd like to end my speech by sharing with you something truly exciting that will be happening in the not so distant future. I think it's going to have a profound impact on Iowa's entire juvenile justice system.

In Iowa, our juvenile justice system is made up of two different kinds of judicial proceedings for children. In child welfare cases, it is the court's job to protect the child from the actions of someone else, sadly—that is usually a close family member. You may have heard of a CINA proceeding which is short for Child in Need of Assistance. In those cases, the court relies heavily on the expertise and attention of the Department of Human Services in trying to keep kids in their family home or reunite the family after they have been provided rehabilitative services.

A second kind of juvenile proceeding involves delinquency cases. In those cases, it is the court's job to protect society from the criminal acts of a child. In those types of cases, the court relies heavily on the expertise and attention of juvenile court probation officers in supervising the child and providing rehabilitative services.

Oftentimes, children are living in both of those worlds—CINA and delinquency—where the child's parents cannot provide a safe home and the child has acted out in a way that has resulted in criminal charges being filed.

It has been almost 30 years since Iowa's juvenile justice system has had a comprehensive, holistic review. Unlike nearly every other state, our juvenile justice system is decentralized with its services, governance, funding and data collection divided among four different entities: (1) the judicial branch; (2) the department of human services; (3) the department of human rights; and (4) the department of public health.

In the past few years, stakeholders implemented various programs intended to improve the juvenile justice system from their perspective. While well intentioned, those individualized improvements oftentimes have unintended ripples throughout the system.

The Iowa Supreme Court recently established a Juvenile Justice Task Force to review the continuum of care in our juvenile justice system and make recommendations to improve services, governance, funding and data collection as well as address the system's racial and gender disparities. Task force members are made up all kinds of experts in the juvenile justice world such as service providers, law enforcement, judges, juvenile court officers, county attorneys, public defenders, private attorneys, youth and family members as well as the four state entities I mentioned earlier. Knowing that the recommendations may very well include revisions to our current laws, we are honored to have legislators on our task force as well. Thank you, Senator Cournoyer, Senator Ragan, Representative Mohr and Representative Wessel-Kroeschell for agreeing to serve on this very important task force. The work of this task force could not be completed without staff support which is bring provided by Creighton, Drake and Iowa law schools.

It is our plan to release a task force report in November of this year, so stay tuned…I'm sure it will be mentioned in next year's Condition of the Judiciary.

I promised this was the end of my speech—sharing the exciting news about the newly formed Juvenile Justice Task Force. But I'd like to add a P.S. Remember Shawn and his journey through family treatment court? In preparation for today's speech, of course I had to check in with him. I learned that he is in the process of buying his first home ever. And of course I asked him, how many days of sobriety? As of today, that number is 1,396 (4 months shy of 4 years). Shawn and his son, Rylan, are here today with Shawn's twin brother, Jason. Once again, thank you, Shawn, for allowing me to share your story of HOPE and how Iowa's judicial branch provided a path for your enduring sobriety.

In closing, I want to thank my colleagues for their commitment to our work and to the legislature for its support of our work and for giving me this opportunity to speak with you today.

As chief, I look forward to providing Iowans with a sense of PEACE that we've got this. The judicial branch will continue to block out all the noise brought on by the pandemic and stay laser focused on our steadfast commitment to ensure that each and every Iowan has meaningful access to justice.

Chief Justice Susan Christensen was escorted from the House chamber by the committee previously appointed.

Governor Kim Reynolds was escorted from the House chamber by the committee previously appointed.

Representative Windschitl moved that the joint convention be dissolved, which motion prevailed by a voice vote.

The Senate returned to the Senate chamber.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 10:46 a.m. until 9:00 a.m., Thursday, January 13, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF COMMERCE (INSURANCE DIVISION)

Financial Exploitation of Eligible Adults Report, pursuant to 2021 Iowa Acts, Chapter 137, section 12. Report received on January 12, 2022.

IOWA STUDENT LOAN LIQUIDITY CORPORATION

FY 2021 Annual Report, pursuant to Iowa Code section 7C.13(2). Report received on January 12, 2022.

DEPARTMENT VETERANS AFFAIRS

Veterans' Trust Fund Report, pursuant to Iowa Code section 35A.13. Report received on January 12, 2022.

REPORTS OF COMMITTEE MEETINGS

GOVERNMENT OVERSIGHT

Convened: Wednesday, January 12, 2022, 2:00 p.m.

Members Present: Schultz, Chair; Williams, Vice Chair; Celsi, Ranking Member; and Petersen.

Members Absent: Lofgren (excused).

Committee Business: Organizational.

Adjourned: 2:05 p.m.

LABOR AND BUSINESS RELATIONS

Convened: Wednesday, January 12, 2022, 1:00 p.m.

Members Present: Dickey, Chair; Green, Vice Chair; Boulton, Ranking Member; Driscoll, Guth, Jochum, Rowley, Schultz, and T. Taylor.

Members Absent: Dotzler and J. Taylor (both excused).

Committee Business: Introductions and opening comments.

Adjourned: 1:10 p.m.

NATURAL RESOURCES AND ENVIRONMENT

Convened: Wednesday, January 12, 2022, 3:00 p.m.

Members Present: Sweeney, Chair; Driscoll, Vice Chair; Trone Garriott, Ranking Member; Boulton, Celsi, Cournoyer, Green, Rozenboom, Shipley, and Zumbach.

Members Absent: Hogg, Lykam, and J. Taylor (all excused).

Committee Business: Committee introductions. Committee session goals.

Adjourned: 3:15 p.m.

TRANSPORTATION

Convened: Wednesday, January 12, 2022, 2:30 p.m.

Members Present: Brown, Chair; Dickey, Vice Chair; Giddens, Ranking Member; Bisignano, Driscoll, Klimesh, Koelker, Rozenboom, Shipley, J. Smith, T. Taylor, and Zumbach.

Members Absent: Lykam (excused).

Committee Business: Introductions.

Adjourned: 2:35 p.m.

WAYS AND MEANS

Convened: Wednesday, January 12, 2022, 1:35 p.m.

Members Present: Dawson, Chair; Goodwin, Vice Chair; Jochum, Ranking Member; Bolkcom, Brown, Dickey, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, T. Taylor, and Zaun.

Members Absent: Dotzler and J. Taylor (both excused).

Committee Business: Organization meeting.

Adjourned: 1:45 p.m.

INTRODUCTION OF BILLS

Senate File 2012, by Nunn, Guth, Shipley, Green, Klimesh, Lofgren, Reichman, Sweeney, Zaun, and Costello, a bill for an act prohibiting the labor commissioner from implementing, enforcing, or conforming to certain federal occupational safety and health standards relating to COVID-19 and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Labor and Business Relations**.

Senate File 2013, by Petersen, Ragan, Mathis, Boulton, Lykam, Jochum, Celsi, J. Smith, Kinney, Dotzler, T. Taylor, Trone Garriott, Giddens, Quirmbach, Bolkcom, and Wahls, a bill for an act relating to Medicaid coverage of maternity care including doula care.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2014, by Garrett, a bill for an act relating to the membership of the district judicial nominating commissions.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2015, by Brown, a bill for an act relating to cognitive screenings by audiologists and speech pathologists.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2016, by Carlin, a bill for an act relating to continuity of care and nonmedical switching by health carriers, health benefit plans, and utilization review organizations, and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2017, by Jochum, Quirmbach, Giddens, Trone Garriott, Dotzler, J. Smith, Lykam, Boulton, Ragan, and Wahls, a bill for an act providing for the registration of eligible electors upon review of electronic records received from state agencies and including effective date provisions.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2018, by Sinclair, a bill for an act relating to building design element regulation by governmental subdivisions, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Local Government**.

Senate File 2019, by T. Taylor, a bill for an act relating to the construction and maintenance of walkways in railroad yards, and providing penalties.

Read first time under Rule 28 and referred to committee on **Transportation**.

STUDY BILLS RECEIVED

SSB 3001 Transportation

Relating to wrecked or salvage vehicles with cosmetic damage.

SSB 3002 Education

Relating to disbursements from the computer science professional development incentive fund and including applicability provisions.

SSB 3003 Education

Establishing the mental health professional loan repayment program within the college student aid commission.

SSB 3004 Education

Relating to limitations on the immunization of children for enrollment in any licensed child care center or elementary or secondary school in the state and including effective date provisions.

SSB 3005 Education

Relating to the administration of certain physical examinations and student health screenings by school districts.

SSB 3006 State Government

Relating to the practices of pharmacy and nursing and the administration of immunizations and vaccinations, and the licensure of nonresident pharmacies.

SSB 3007 State Government

Relating to authorized uses of interest earned on funds in the flood recovery fund and including effective date provisions.

SSB 3008 State Government

Relating to the membership, procedures, and functions of the Iowa council on homelessness.

SSB 3009 State Government

Relating to the comprehensive financial report of the state and including effective date provisions.

SSB 3010 Judiciary

Relating to antisemitism in the state of Iowa.

SSB 3011 Judiciary

Relating to penalties for the manufacture, delivery, or possession with the intent to manufacture or deliver heroin.

SSB 3012 Judiciary

Prohibiting the use of automated or remote systems for traffic law enforcement, including prohibiting the sharing of related information and requiring the removal of existing systems, and including effective date provisions.

SSB 3013 Judiciary

Relating to spousal privilege and confidential communication between spouses.

SSB 3014 Judiciary

Relating to wills, including witness requirements for the execution of a will and procedure for wills to be admitted into probate.

SSB 3015 Judiciary

Relating to documents that may be filed pro se by a defendant represented by counsel or an applicant for postconviction relief represented by counsel.

SSB 3016 Judiciary

Relating to the admissibility of evidence in a prosecution for physical abuse or a sexual offense upon or against a child, person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability.

SSB 3017 Judiciary

Relating to post-arrest release after an initial appearance for persons taken into custody or arrested for certain sexual abuse offenses and no-contact orders.

SSB 3018 Judiciary

Relating to the discovery of evidence in criminal cases involving victims of sexual abuse.

SSB 3019 Judiciary

Relating to traffic violations involving the approach of certain stationary vehicles, including by providing for reporting of violations, requiring investigations, and providing for enforcement against vehicle owners.

SSB 3020 Judiciary

Relating to the apportionment of district associate judges.

SSB 3021 Judiciary

Relating to the appointment of counsel for indigent persons by the court in certain cases.

SSB 3022 Judiciary

Relating to video and telephonic hearings in criminal proceedings.

SSB 3023 Judiciary

Relating to the salary of the state court administrator.

SSB 3024 Judiciary

Relating to the Iowa drug policy coordinator and the Iowa drug policy advisory council.

SUBCOMMITTEE ASSIGNMENTS

Senate File 89
(Reassigned)

EDUCATION: Carlin, Chair; Johnson and Trone Garriott

Senate File 107
(Reassigned)

STATE GOVERNMENT: Dawson, Chair; Bisignano and Schultz

Senate File 128
(Reassigned)

EDUCATION: Carlin, Chair; Celsi and Zaun

Senate File 168
(Reassigned)

EDUCATION: Cournoyer, Chair; Giddens and Johnson

Senate File 218
(Reassigned)

STATE GOVERNMENT: Brown, Chair; Bisignano and Johnson

Senate File 255
(Reassigned)

VETERANS AFFAIRS: Lofgren, Chair; Ragan and Reichman

Senate File 310
(Reassigned)

EDUCATION: Carlin, Chair; Giddens and Goodwin

Senate File 339

JUDICIARY: Garrett, Chair; Kinney and Schultz

Senate File 405
(Reassigned)

STATE GOVERNMENT: Goodwin, Chair; Celsi and R. Smith

Senate File 545

EDUCATION: Cournoyer, Chair; Quirmbach and Sweeney

Senate File 2014

JUDICIARY: Garrett, Chair; Boulton and Schultz

Senate File 2015

STATE GOVERNMENT: Brown, Chair; Guth and Jochum

House File 803
(Reassigned)

STATE GOVERNMENT: Cournoyer, Chair; Bisignano and R. Smith

SSB 1024
(Reassigned)

STATE GOVERNMENT: Koelker, Chair; Bisignano and Cournoyer

SSB 1116
(Reassigned)

STATE GOVERNMENT: Cournoyer, Chair; Boulton and Guth

SSB 1211
(Reassigned)

STATE GOVERNMENT: R. Smith, Chair; Celsi and Cournoyer

SSB 3001

TRANSPORTATION: Brown, Chair; Dickey and J. Smith

SSB 3002

EDUCATION: Cournoyer, Chair; J. Smith and J. Taylor

SSB 3003

EDUCATION: Cournoyer, Chair; Quirmbach and Sweeney

SSB 3004

EDUCATION: Kraayenbrink, Chair; Celsi and Johnson

SSB 3005

EDUCATION: Sinclair, Chair; Rozenboom and Trone Garriott

SSB 3006

STATE GOVERNMENT: Reichman, Chair; Cournoyer and Jochum

SSB 3007

STATE GOVERNMENT: Cournoyer, Chair; Celsi and Reichman

SSB 3008

STATE GOVERNMENT: Koelker, Chair; Bisignano and Cournoyer

SSB 3009

STATE GOVERNMENT: Johnson, Chair; Giddens and Goodwin

SSB 3010

JUDICIARY: Schultz, Chair; Bolkcom and Zaun

SSB 3011

JUDICIARY: Dawson, Chair; Kinney and Zaun

SSB 3012

JUDICIARY: Zaun, Chair; Bisignano and Garrett

SSB 3013

JUDICIARY: Garrett, Chair; Petersen and Shipley

SSB 3014

JUDICIARY: Garrett, Chair; Boulton and Johnson

SSB 3015

JUDICIARY: J. Taylor, Chair; Boulton and Reichman

SSB 3016

JUDICIARY: Shipley, Chair; Garrett and Kinney

SSB 3017

JUDICIARY: Garrett, Chair; Bolkcom and Schultz

SSB 3018

JUDICIARY: Shipley, Chair; Garrett and Kinney

SSB 3019

JUDICIARY: Reichman, Chair; Bisignano and J. Taylor

SSB 3020

JUDICIARY: Garrett, Chair; Boulton and Schultz

SSB 3021

JUDICIARY: Schultz, Chair; Bolkcom and Garrett

SSB 3022

JUDICIARY: Garrett, Chair; Boulton and Schultz

SSB 3023

JUDICIARY: J. Taylor, Chair; Bisignano and Rowley

SSB 3024

JUDICIARY: Shipley, Chair; Bolkcom and J. Taylor

JOURNAL OF THE SENATE

FOURTH CALENDAR DAY
FOURTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, January 13, 2022

The Senate met in regular session at 9:05 a.m., President Chapman presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Jackson Maddox.

The Journal of Wednesday, January 12, 2022, was approved.

COMMITTEE FROM THE HOUSE

A committee from the House appeared and announced that the House was ready to receive the Senate in joint convention.

The Senate stood at ease at 9:11 a.m. until the fall of the gavel.

The Senate resumed session at 9:52 a.m., President Chapman presiding.

In accordance with House Concurrent Resolution 103, the Senate proceeded to the House chamber led by the Senate President and the Secretary of the Senate.

JOINT CONVENTION

In accordance with law and House Concurrent Resolution 103, duly adopted, the joint convention was called to order at 9:57 a.m., President Chapman presiding.

Senator Whitver moved that the roll call be dispensed with and that the President of the joint convention be authorized to declare a quorum present, which motion prevailed by a voice vote.

Senator Whitver moved that a committee of four, two members from the Senate and two members from the House, be appointed to notify the Major General of the Iowa National Guard, Benjamin Corell, that the joint convention was ready to receive him.

The motion prevailed by a voice vote and the Chair announced the appointment of Senators Giddens and Nunn on the part of the Senate, and Representatives Cahill and Thompson on the part of the House.

The Executive Council was escorted into the House chamber.

Lieutenant Governor Adam Gregg was escorted into the House chamber.

Major General Benjamin Corell's family was escorted into the House chamber.

The committee waited upon Major General Benjamin Corell and escorted him to the Speaker's station.

President Chapman presented Major General Benjamin Corell, Adjutant General of the Iowa National Guard. Major General Corell delivered the following Condition of the Guard Address:

Good morning everyone, and thank you for the warm welcome.

President Chapman, Speaker Grassley, Governor Reynolds, Lieutenant Governor Gregg, distinguished members of the Iowa General Assembly, and my fellow Iowans.

Thank you for inviting me to address this distinguished body and to once again share the story of our Iowa National Guard.

It is a tremendous honor to stand before you today representing the dedicated men and women of the Iowa National Guard. On their behalf, I want to say "THANK YOU" for all you have done over the years to assist us in building a professional, world class organization.

We are so very grateful for the strong support we receive from the members of this general assembly.

I want to publicly thank Governor Reynolds and Lt Governor Gregg for their leadership and support of all Iowans who serve, or have served our Nation and our State in uniform.

I continue to be appreciative of your trust and confidence in me as I serve as Iowa's 27th Adjutant General. I am extremely honored to lead and represent the Soldiers and Airmen of the Iowa National Guard.

I truly thank this legislative body for your continued support of the Iowa National Guard. The resources and support that you provide make it possible for the Iowa National Guard to be prepared to respond to the needs of our State and our Nation.

I realize it is our people, the individual members of the Iowa National Guard, our families, and our employers who continue to sacrifice their time and talents that allow us to be always ready to respond when needed.

Our success is noteworthy considering the challenging and dynamic environment we're operating in, not only with COVID -19, but also with the fluid situations that exist around the world.

Since the attacks on 9/11, we've mobilized and deployed more Soldiers and Airmen than any time in recent history.

More than 17,000 men and women serving in the Iowa National Guard have deployed in support of numerous campaigns around the globe.

This past year, twenty years after the attacks on our country, we all watched as the last U.S. service members left Afghanistan. For me, like many others who served there, it was difficult to watch.

I do realize these past two decades have not been an easy chapter in our Nation's history, nor have they been without setbacks and sacrifice.

Almost every community in Iowa has been affected in some way as our all-volunteer military met the security needs of our Nation. Sadly, not all of our brothers and sisters returned home. Twenty members of our Iowa National Guard have made the ultimate sacrifice while defending the nation since 9/11.

Today we have a new generation of heroes in our midst. The men and women who returned home after serving in the Global War on Terrorism are carrying freedom's torch in the same proud tradition as veterans of previous conflicts.

Like the veterans of World War II, our next "Greatest Generation" have returned with a renewed sense of purpose and energy, eager to contribute their skills and talents to improving life for their neighbors and in their communities here in Iowa.

The Soldiers and Airmen of the Iowa National Guard answered the call on 9/11, and have served continuously since. We haven't had the wealth of such experience and talent concentrated in our state since the end of World War II.

I want to thank the thousands of Soldiers and Airmen and their families for their time, service and sacrifice. Through them, the Iowa National Guard has made a difference in the world we live in.

Although the war in Afghanistan has now ended, the demand placed on the Iowa National Guard remains high.

Iowa's Soldiers and Airmen have continued to deploy in support of our Nation's defense, filling the operational requirements of our Nation's armed forces around the world and here at home.

During this past year, the Iowa National Guard played a critical role in both overseas and domestic operations for our Nation.

In 2021, over 1,600 Iowa Soldiers and over 200 Iowa Airmen served on active duty missions throughout Europe, the Middle East, and Africa.

620 Soldiers from the 1st-133rd Infantry Battalion, deployed to Qatar and the UAE in support of Operation Spartan Shield. This was the fifth federal mobilization for the Ironman Battalion in recent years including a 22-month mobilization in support of Operation Iraqi Freedom from 2005 through 2007.

Members of the 1st-113th Cavalry Squadron along with members of 1st-168th Infantry Battalion deployed 160 Soldiers to support Operation Enduring Freedom, in the Horn of Africa.

The 1st-194th Field Artillery Battalion, deployed 250 Soldiers that supported security operations in Afghanistan and Iraq.

The 2nd Infantry Brigade Combat Team deployed 360 Soldiers to Kosovo supporting NATO's KFOR mission focused on security and stability of the Western Balkans.

The 734th Regional Support Group deployed 80 Soldiers to Iraq and Kuwait and provided Forward Operations Base Life-Support in the Central Command area of responsibility.

The 3654 Support Maintenance Company deployed 150 Soldiers to Kuwait maintaining military equipment at 22 separate locations within the U.S. Central Command.

75 Soldiers from the 171st Aviation Regiment deployed to Kuwait and supported Operation Enduring Freedom and Operation Spartan Shield.

We have now welcomed home almost all of these units, our Soldiers and our Airmen as they successfully completed these overseas missions this past year.

In addition to our overseas mission requirements, we have continued to provide Iowa National Guard members to respond here at home. In the last few years, we've been as busy on the home front as we have been overseas.

Last January, we sent 265 Iowa Soldiers and Airmen to assist federal agencies with security missions during the 59th Presidential Inauguration.

This past October, we welcomed home 24 Soldiers from the 2nd Infantry Brigade Combat Team who spent a year supporting federal operations on the Southwest Border.

As they returned, we sent off several dozen Soldiers from the 376th Aviation Detachment, serving on federal duty supporting Customs and Border operations on the Southwest border again this year.

This past November, 65 Airmen from both the 185th Air Refueling Wing in Sioux City and the 132nd Wing in Des Moines deployed stateside to support Operation Allies Welcome.

Operation Allies Welcome is the ongoing effort to bring Americans home from Afghanistan and bring vulnerable Afghans to the United States and support their resettlement.

This past year saw a significant number of deployments for the Iowa National Guard both at home and across the globe.

I could not be any prouder of these great men and women who make so many sacrifices to continue to serve in our Iowa National Guard.

While executing all these missions, our units still found time to demonstrate that they are among the best in the nation at what they do.

The 185th Air Refueling Wing, in Sioux City, was awarded its 15th overall, and 5th consecutive Air Force Outstanding Unit Award.

The 132nd Air Wing, in Des Moines, was awarded its 16th overall, and 6th consecutive Air Force Outstanding Unit Award.

These accomplishments are a direct reflection of the training and readiness of the Iowa National Guard, along with the individual commitment, motivation, and pride of our members.

While we are proud of our past accomplishments, we now look forward to the year ahead.

The Iowa National Guard will continue to be asked to support our Nation's federal missions overseas.

We have alerted several units for possible deployment later this year. We anticipate we will deploy members of the 209th Medical Company from Iowa City and members of the 1133rd Transportation Company from Mason City to support Operation Atlantic Resolve in Poland.

Atlantic Resolve is part of the Deterrence Initiative focused in Eastern Europe, which enables the U.S. to provide deterrence to adversaries while supporting our NATO partners.

As we continue to meet the demands of deployments and respond to our State and Nation's homeland security needs, we remain mindful of the unpredictable nature of the world we live in –

A world where extremist ideologies and great power competitions are realities that must be dealt with.

We must maintain resilience and provide responsive capabilities from our all-volunteer force.

We as a Nation must choose wisely when we want to use our military power, and then clearly define what the desired end state is for the missions that we ask our military to perform.

One way the Iowa National Guard continues to support stability and peace efforts around the world is through our State Partnership Program relationship with the Kosovo Security Force, or KSF under the National Guard Bureau's State Partnership Program.

Last year, the Iowa National Guard and Kosovo Security Force accomplished an historic co-deployment to the Middle East.

KSF logistics officers deployed with us serving in the 734th Regional Support Group and KSF maintenance personnel deployed with us serving in the 3654 Maintenance Company.

All KSF members were based out of Kuwait supporting Operation Spartan Shield and Operation Inherent Resolve.

This deployment demonstrated the KSF's operational readiness for future missions while building trust and interoperability for additional opportunities for Kosovo to be a security partner to stand side by side with our partners and allies.

This strong partnership with Kosovo didn't happen overnight. It developed over years of engagements that built relationships through mutual goals, respect, and shared interests.

This past November, the Iowa National Guard held a series of events celebrating our decade-long partnership with Kosovo.

This anniversary was celebrated not only with senior leadership of the KSF, but also with senior Kosovo government leaders such as the Deputy Prime Minister and the Minister of Defense, demonstrating the level of importance that we each place on this relationship.

We will continue to strengthen this partnership. We have plans for several more training opportunities this year as we work for additional co-deployment opportunities between the KSF and the Iowa National Guard.

Just like our relationship with Kosovo, partnerships within our State are equally important and vital to our success.

When talking about the Iowa National Guard, people often focus on our state and overseas missions. But we can't forget that the Iowa National Guard is a community-based organization with an important community mission.

Through interagency partnerships with local and State partners, we strive to add value for the people of Iowa.

The West Des Moines Armory project is a great example of this. It involves a partnership between the City of West Des Moines, West Des Moines Fire Department and the Iowa National Guard.

This 20 million dollar project, 75% federal and 25% state-funded, will posture the organization well into the future. I thank this legislative body for your support on this project that was approved last legislative session.

Another example of interagency partnership we are working on is the concept of a Midwest Traffic Incident Management Training Center.

This training facility would be constructed on Camp Dodge facilitating driver training, accident investigation, and on-scene management of roadside incidents for the

Iowa Department of Transportation, the Iowa Department of Public Safety and the Iowa National Guard.

The Iowa Department of Transportation has the lead on this initiative but the Iowa National Guard is in full support of the concept and a partner in this effort.

These types of partnerships facilitate our ability as a state to respond rapidly to emerging threats to help our fellow Iowans during times of need. These partnerships, at every level, reflect the sense of community and teamwork that Iowans expect and depend on.

As I've said before, my vision for the Iowa National Guard is focused on always being ready, whether defending our country or coming to the aid of Iowans during times of need.

This requires us to be responsible stewards of our resources, ensuring our organization is ready for any task or mission put before us in order to be responsive to the needs of our State and Nation.

The Iowa National Guard is focused on four lines of effort to help accomplish this vision: Fielding a Competent and Ready Force; Maintaining the Right Force Structure in Iowa;

Developing and Maintaining Sustainable Infrastructure across the state; and Caring for our Service Members, our Employers, and our Families.

To meet the needs here at home and the security requirements abroad, the Iowa National Guard must remain focused on fielding a competent and ready force.

We often talk about the impact federal funding has with the Iowa National Guard's support to the state's economy.

But just as important, is the impact in terms of human capital created by our members returning from military training or from deployments.

This training and operational experience is a value-added component that Citizen Soldiers and Airmen bring back to their military and civilian jobs, enhancing the value they provide to their workplace.

This operational experience and training is something impossible to replicate, regardless of time or resources available to our civilian employers.

When our Soldiers and Airmen leave Iowa for a deployment, they embark on a journey that leaves them forever changed.

They are challenged both physically and mentally in ways that are hard to imagine.

They are charged with performing, often in dangerous and inhospitable environments, incredible tasks day in and day out.

Yet, they do so with a steely professionalism and determination that few who have not experienced this can understand.

And when they complete their mission, they return home to their families, friends, employers, and communities to pick up where they left off.

For the great majority of these individuals, they return to Iowa more focused, more disciplined, and generally more capable than when they left.

Ensuring that our Soldiers and Airmen are Always Ready to respond comes with challenges;

Challenges that are no different than those being experienced across this country. This leads into our second line of effort: Maintain Force Structure.

Businesses and organizations across the country struggle to maintain their readiness and ability to operate at full capacity due to the lack of personnel.

The sudden emergence of COVID has delivered, and continues to deliver, a severe blow to our economy, our businesses, and our communities.

Federal vaccine mandates will no doubt impact our organization, as members must decide to either get vaccinated, or be forced to leave military service.

We see ourselves as complementary to our full-time Iowa employers. As a primarily part-time work force, our members typically enter our ranks as recent high school graduates.

By utilizing the job training and education benefits, they enter the workforce as disciplined, skilled, and educated employees.

Regarding education benefits, last year the number of service members that utilized the Iowa National Guard Service Scholarship increased by 18%. The most recent fall semester has seen our highest benefit usage ever: $2.8 million in assistance.

That's Iowans serving Iowa, going to Iowa schools, investing in Iowa's future.

It is only from the support of this legislative body and your commitment to fund the Iowa National Guard Service Scholarship that we are able to provide this incentive.

This not only benefits our men and women, but also the communities and employers across the state where they live and work.

I am proud to say that in 2021, the Iowa Army National Guard's strength numbers were 102% of our authorized strength.

Additionally, 81% of eligible soldiers chose to reenlist and continue to serve in the Iowa Army National Guard.

The Iowa Air National Guard is doing equally well. In 2021, we finished the year at 101% percent of assigned strength, with a retention rate of 93%.

Recruiting and retention is a critical task for us; when our ranks are full, we maintain the flexibility to perform all of our State and Federal missions when we are called upon.

The Soldiers and Airmen we are recruiting today are high quality young men and women,

Iowan's who join knowing they could be called upon to serve our Nation and State at any time.

This success didn't happen by accident.

It is the result of the hard work of our members working together as a team-building and community-based organization that the people of Iowa can trust and depend on today and in the future.

Our third line of effort is our ability to Maintain and Develop Sustainable Infrastructure.

Part of my responsibility as the Adjutant General is to look to the future and ensure the Iowa National Guard is postured for continued success.

Stewardship of the resources entrusted to us requires us to be responsible not only for our people, but also for the State and Federal resources with which we are entrusted.

Iowa National Guard's annual federal dollar investment into Infrastructure spending in an average year is over $25 million dollars, putting money back into our economy and providing Iowa companies with projects and employment for their workforce.

In the past 21 years, the Iowa Army National Guard has completed major modernization projects on 33 of its older Readiness Centers and Maintenance Facilities across the state.

Our most recent Readiness Center renovation was in Carroll, a facility that had not received any major renovations since it was built in 1987.

This $2.5 million renovation was completed last year and included updated mechanical, electrical, and plumbing systems – paid for with both federal and state funds.

These types of renovations, using Rebuild Iowa Infrastructure Funds, allow us to leverage federal dollars to ensure that our infrastructure can support our ability to quickly mobilize and respond to meet our State and Federal obligations.

I appreciate this body's continued support with the Rebuild Iowa Infrastructure Funding. Completing these updates and renovations is of particular importance allowing

us to safeguard continuous operations and prevent disruptions when disasters strike, whether natural or manmade.

Our ability to mass our forces across the state in key locations was especially important during the Eastern Iowa Derecho, where we staged Iowa National Guard members at our Cedar Rapids Readiness Center in order to quickly assist utility companies in electrical power restoration.

Another way we are improving our state response ability across agencies is though our Continuity of Operations initiative.

This effort will allow all State and local partners a redundant backup system in order to facilitate essential functions and maintain communications across the state in the event of any action that takes down our state's primary communications system.

Through State and Federal funding sources, we are investing in capabilities that will make Iowa's emergency management systems more responsive.
This will prevent lapses in critical communication capabilities during a crisis, ensuring our ability to meet the expectations of Iowans in times of need.

Finally, I want to share with you a little about a few of our Soldiers, Airmen, and Families.

As I've said before, without our people, the Iowa National Guard would not exist.

We recognize that military service places significant demands and stress not only on our service members but also on their families.

Today I have with me several members of the Iowa National Guard I want to introduce to you:

I'd like to first introduce Private First Class (PFC) Taylor Patterson.

PFC Patterson is the 1st female in Iowa National Guard history to enlist, and become qualified as an infantry soldier after successfully completing infantry training at Fort Benning, Georgia.

PFC Patterson is from Ankeny and is attending Iowa State University studying animal science as she breaks barriers for others to follow.

Next, I would like to introduce to you Chief Warrant Officer 5 Stephen L. Swisher.

Chief Swisher retired this past November as the longest serving member in Iowa National Guard history having actively served our State and Nation for 44 years, 7 months and 18 days.

Chief Swisher enlisted on December 2, 1976, at the age of 17. Chief Swisher and his wife Lori live in Glenwood.

Please join me in recognizing both of these outstanding members of the Iowa National Guard.

Our people are truly what makes our organization world class.

I want to make you aware of a program we are using that helps make the Iowa National Guard unique and stand out among others while adding value to our communities and our State.

It is called the Expedited Citizenship and Sponsorship (ECAS) Program.

This program allows the Iowa National Guard to help Soldiers gain U.S. citizenship after completing at least one year of Iowa National Guard service.

We began supporting this program in April 2020. Since then, at least 45 Iowa Soldiers from 18 different countries have gained U.S. citizenship and continue to serve as Iowa Citizen Soldiers.

This program is changing lives while adding value and diversity to our organization and to our State.

In closing, if we are to be truly successful in our mission, we must continue look into the future.

We must be prepared for what the world will look like in the years to come.

There are complicated security challenges emerging in our world everyday and we know that we must always be ready to respond when called.

Trust that we are well postured to fulfill any mission that may arise whether it be for the people of Iowa or for our Nation –

From our strong strength numbers, to our sound infrastructure management, our solid partnerships, and the consistent support from communities across Iowa.

Most importantly with our greatest resource, the thousands of Iowa men and women who are willing to stand beside me and answer the call to serve our Nation and our State.

I assure each of you that the condition of our Iowa National Guard is now, and will continue to remain, strong.

Your Iowa National Guard has always been there, we've always answered the call, and we have never failed a mission.

We are ALWAYS READY!

Thank you!

Major General Benjamin Corell was escorted from the House chamber by the committee previously appointed.

Representative Windschitl moved that the joint convention be dissolved, which motion prevailed by a voice vote.

The Senate returned to the Senate chamber.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 10:37 a.m. until 9:00 a.m., Friday, January 14, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF COMMERCE (BANKING DIVISION)

Annual Review of Qualified Student Loan Bond Issuer, pursuant to Iowa Code section 7C.13. Report received on January 13, 2022.

DEPARTMENT OF EDUCATION

Adult Education and Literacy Program Report, pursuant to Iowa Code section 260C.50. Report received on January 12, 2022.

Commission on Educator Leadership and Compensation Report, pursuant to Iowa Code section 284.15. Report received on January 12, 2022.

Statewide Work-Based Intermediary Network Report, pursuant to Iowa Code section 256.40. Report received on January 12, 2022.

DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY MANAGEMENT

Iowa Flood Mitigation Board Annual Report, pursuant to Iowa Code section 418.8. Report received on January 13, 2022.

DEPARTMENT OF MANAGEMENT

Annual Report, pursuant to Iowa Code section 7E.3. Report received on January 13, 2022.

PUBLIC EMPLOYMENT RELATIONS BOARD

Annual Report, pursuant to Iowa Code section 7E.3. Report received on January 12, 2022.

DEPARTMENT OF PUBLIC HEALTH

Board of Medicine and Board of Physician Assistants Joint Report, pursuant to Iowa Code section 148C.12. Report received on January 13, 2022.

REPORT OF COMMITTEE MEETING

STATE GOVERNMENT

Convened: Thursday, January 13, 2022, 11:30 a.m.

Members Present: R. Smith, Chair; Cournoyer, Vice Chair; Bisignano, Ranking Member; Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz.

Members Absent: None.

Committee Business: Organizational.

Adjourned: 11:35 a.m.

INTRODUCTION OF BILLS

Senate File 2020, by Petersen, a bill for an act relating to the provision of period products.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2021, by Petersen, Ragan, Mathis, Celsi, and Hogg, a bill for an act relating to the elimination of the exemption of gaming floors from the prohibitions of the smokefree air Act.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2022, by Zaun, a bill for an act relating to the practice of cosmetology and barbering in a home.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2023, by Boulton, a bill for an act relating to preexisting military service-related disabilities covered by the second injury fund and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Veterans Affairs**.

Senate File 2024, by Carlin, a bill for an act relating to instruction relating to gender identity in the curriculum provided to students enrolled in elementary education programs.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2025, by Carlin, a bill for an act prohibiting persons from entering single and multiple occupancy toilet facilities in elementary and secondary schools that do not correspond with the person's biological sex.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2026, by Carlin, a bill for an act relating to applicant priority and grant award amounts under the teach Iowa scholar program.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2027, by Carlin, a bill for an act providing for a study committee to determine best practices for the placement of juveniles in foster care with histories of violent or sexually predatory behavior.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2028, by Carlin, a bill for an act relating to required written consent prior to immunization or vaccination of a minor.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2029, by Carlin, a bill for an act relating to the postfertilization age of an unborn child relative to an abortion, and making licensee discipline and civil penalties applicable.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2030, by Carlin, a bill for an act relating to proof of immunity as an exception to COVID-19 vaccination.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2031, by Carlin, a bill for an act relating to protections for physicians who prescribe certain prescription drugs.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2032, by Carlin, a bill for an act requiring the reporting of COVID-19 vaccination information on a death certificate form.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2033, by Carlin, a bill for an act requiring the provision of a product-specific fact sheet to each patient or caregiver prior to administration of the COVID-19 vaccine.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2034, by Carlin, a bill for an act relating to the penalties for defendants who aid and abet the commission of murder in the first degree.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2035, by Dickey, a bill for an act relating to service dogs and county or city dog breed restrictions.

Read first time under Rule 28 and referred to committee on **Local Government**.

Senate File 2036, by Dickey, a bill for an act relating to jury notifications of attorney compensation and litigation financing.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2037, by Dickey, a bill for an act prohibiting administrators from permitting the teaching of certain specified concepts in school districts.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2038, by Dickey, a bill for an act relating to applications for certificates of title and annual registration fees for commercial vehicles.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2039, by Dickey, a bill for an act requiring the board of directors of a school district and the authorities in charge of each accredited nonpublic school to adopt a policy prohibiting certain school-sponsored activities related to race.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2040, by Dickey, a bill for an act prohibiting the collection of certain specified information from students enrolled in school districts or charter schools.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2041, by Dickey, a bill for an act relating to relocation of a minor child's residence outside the minor child's established school district.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2042, by Dickey, a bill for an act relating to the undergraduate programs offered by the institutions of higher education governed by the state board of regents.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2043, by Dickey, a bill for an act prohibiting certain conduct of teachers related to the pledge of allegiance.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2044, by Dickey, a bill for an act relating to school employees who are determined to have been wrongfully accused of inflicting corporal punishment upon a student.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2045, by Dickey, a bill for an act relating to continued annual training requirements for certain volunteer fire fighters.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2046, by Dickey, a bill for an act relating to health care facilities and requirements for itemized billing.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2047, by Dickey, a bill for an act prohibiting the expenditure of certain public moneys for dues or membership fees to high school organizations that do not meet certain requirements concerning school classifications for extracurricular interscholastic activities.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2048, by Dickey, a bill for an act relating to the disbursement and accounting of child support payments, providing penalties, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Human Resources**.

STUDY BILLS RECEIVED

SSB 3025 Judiciary

Relating to the requirements for a sex offender to be granted a modification of sex offender registry requirements.

SSB 3026 Judiciary

Relating to paternity in certain actions before the juvenile court.

SSB 3027 Judiciary

Relating to the modification and extension of a no-contact order.

SSB 3028 State Government

Relating to the records of the Iowa public broadcasting board.

SSB 3029 State Government

Concerning state agency response to a proclamation of disaster emergency.

SSB 3030 Commerce

Eliminating specific requirements relating to no smoking signs or symbols.

SSB 3031 Commerce

Relating to the Iowa telecommunications and technology commission contract approval process.

SSB 3032 Commerce

Related to matters under the purview of the economic development authority including the high quality jobs program, the Iowa energy center, and the workforce housing tax incentive program.

SUBCOMMITTEE ASSIGNMENTS

Senate File 233

TRANSPORTATION: Koelker, Chair; Driscoll and T. Taylor

Senate File 330

TRANSPORTATION: Rozenboom, Chair; Brown and Giddens

Senate File 525

HUMAN RESOURCES: Edler, Chair; Costello and Mathis

Senate File 528

HUMAN RESOURCES: Edler, Chair; Costello and Mathis

Senate File 2001

TRANSPORTATION: Klimesh, Chair; J. Smith and Zumbach

Senate File 2002

JUDICIARY: Reichman, Chair; Bisignano and Shipley

Senate File 2011

NATURAL RESOURCES AND ENVIRONMENT: Rozenboom, Chair; Boulton and Cournoyer

Senate File 2017

STATE GOVERNMENT: Schultz, Chair; Dawson and Jochum

Senate File 2021

STATE GOVERNMENT: Dawson, Chair; Celsi and Schultz

House File 419
(Reassigned)

WAYS AND MEANS: Goodwin, Chair; Quirmbach and Sinclair

SSB 3025

JUDICIARY: Reichman, Chair; Johnson and Kinney

SSB 3026

JUDICIARY: J. Taylor, Chair; Bisignano and Rowley

SSB 3027

JUDICIARY: Reichman, Chair; Kinney and Rowley

SSB 3028

STATE GOVERNMENT: R. Smith, Chair; Bisignano and Schultz

SSB 3029

STATE GOVERNMENT: Cournoyer, Chair; Boulton and Guth

SSB 3030

COMMERCE: Schultz, Chair; Johnson and Lykam

SSB 3031

COMMERCE: Goodwin, Chair; Bisignano and Williams

SSB 3032

COMMERCE: Koelker, Chair; Goodwin and Mathis

JOURNAL OF THE SENATE

FIFTH CALENDAR DAY
FIFTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Friday, January 14, 2022

The Senate met in regular session at 9:00 a.m., President Chapman presiding.

Prayer and the Pledge of Allegiance were offered by the Honorable Jake Chapman, President of the Senate from Dallas County, Adel, Iowa.

The Journal of Thursday, January 13, 2022, was approved.

ADJOURNMENT

On motion of Senator Zaun, the Senate adjourned at 9:02 a.m. until 10:00 a.m., Tuesday, January 18, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

COLLEGE STUDENT AID COMMISSION

Annual Report, pursuant to Iowa Code section 261.2. Report received on January 14, 2022.

DEPARTMENT OF EDUCATION

Antibullying Program Report, pursuant to 2021 Iowa Acts, Chapter 170, section 6. Report received on January 13, 2022.

Condition of Iowa's Community College Report, pursuant to Iowa Code section 260C.14. Report received on January 14, 2022.

Enrich Iowa Program–Library Services Division, pursuant to Iowa Code section 256.57. Report received on January 13, 2022.

Iowa Association of School Boards Annual Report, pursuant to Iowa Code section 279.38. Report received on January 13, 2022.

Online Learning in Iowa Annual Report, pursuant to Iowa Code section 256.7. Report received on January 13, 2022.

SAVE/SILO Report, pursuant to Iowa Code section 256.9. Report received on January 13, 2022.

Senior Year Plus Program Report, pursuant to Iowa Code section 261E.3. Report received on January 13, 2022.

Supplemental Assistance for High-Need Schools Report, pursuant to Iowa Code section 284.11. Report received on January 13, 2022.

Workforce Training and Economic Development (WTED) Fund Annual Report, pursuant to Iowa Code section 260C.18A. Report received on January 13, 2022.

DEPARTMENT OF HUMAN RIGHTS

Sex Offender Research Council Report, pursuant to Iowa Code section 216A.139. Report received on January 14, 2022.

DEPARTMENT OF PUBLIC HEALTH

Obstetrical Care in Iowa Report, pursuant to Iowa Code section 135.11. Report received on January 14, 2022.

BOARD OF REGENTS

UIHC Audited Financial Report, pursuant to Iowa Code section 263A.13. Report received on January 14, 2022.

DEPARTMENT OF VETERANS AFFAIRS

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on January 14, 2022.

STUDY BILLS RECEIVED

SSB 3033 Commerce

Relating to beverage containers control provisions, including handling fees, refund value, applicability to certain beverages, and acceptance of beverage containers, and providing penalties.

SSB 3034 Commerce

Relating to broadband grant eligibility for public utilities and affiliates of public utilities in projects with communications service providers and including applicability provisions.

SSB 3035 Commerce

Relating to certificate of need exclusions relative to required immunization against COVID-19.

SSB 3036 Veterans Affairs

Relating to motor vehicle registration fees for disabled veterans.

SSB 3037 Commerce

Prohibiting the use of financial incentives or penalties relative to vaccine administration.

SUBCOMMITTEE ASSIGNMENTS

Senate File 493

LABOR AND BUSINESS RELATIONS: J. Taylor, Chair; Rowley and T. Taylor

SSB 1034
(Reassigned)

LABOR AND BUSINESS RELATIONS: Green, Chair; Driscoll and Jochum

SSB 3033

COMMERCE: Brown, Chair; Klimesh and Quirmbach

SSB 3034

COMMERCE: Koelker, Chair; Quirmbach and Williams

SSB 3035

COMMERCE: Brown, Chair; Bisignano and Johnson

SSB 3036

VETERANS AFFAIRS: Green, Chair; Giddens and Lofgren

SSB 3037

COMMERCE: Brown, Chair; Johnson and Petersen

JOURNAL OF THE SENATE

NINTH CALENDAR DAY
SIXTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, January 18, 2022

The Senate met in regular session at 10:05 a.m., President Chapman presiding.

Prayer was offered by the Honorable Sarah Trone Garriott, member of the Senate from Polk County, Windsor Heights, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Maren Rasmussen.

The Journal of Friday, January 14, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 10:09 a.m. until 9:00 a.m., Wednesday, January 19, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF ADMINISTRATIVE SERVICES

Contracts Awarded to Targeted Small Businesses Report, pursuant to Iowa Code section 8A.311(10). Report received on January 14, 2022.

CHIEF INFORMATION OFFICER

Information Technology Services Financial Report, pursuant to Iowa Code section 8B.21. Report received on January 14, 2022.

DEPARTMENT OF COMMERCE (INSURANCE DIVISION)

Consumer Advocate Bureau Annual Report, pursuant to Iowa Code section 505.8. Report received on January 14, 2022.

DEPARTMENT OF MANAGEMENT

Grants Enterprise Management Compliance Report, pursuant to Iowa Code section 8.9. Report received on January 14, 2022.

REPORT OF COMMITTEE MEETING

NATURAL RESOURCES AND ENVIRONMENT

Convened: Tuesday, January 18, 2022, 11:00 a.m.

Members Present: Driscoll, Vice Chair; Trone Garriott, Ranking Member; Celsi, Cournoyer, Green, Hogg, Rozenboom, Shipley, J. Taylor, and Zumbach.

Members Absent: Sweeney, Chair; Boulton, and Lykam (all excused).

Committee Business: Subcommittee assignments announced.

Adjourned: 11:05 a.m.

INTRODUCTION OF BILLS

Senate File 2049, by Nunn, a bill for an act relating to affirmative defenses for entities using cybersecurity programs and electronic transactions recorded by blockchain technology.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2050, by Nunn, a bill for an act making an appropriation to support efforts relating to the U.S.S. Iowa and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Veterans Affairs**.

Senate File 2051, by Green, a bill for an act relating to railroad trains, including train length limits and the operation of trains by a crew of two or more persons, providing penalties, making penalties applicable, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Labor and Business Relations**.

Senate File 2052, by Guth, Schultz, Johnson, J. Taylor, Green, Zaun, and Carlin, a bill for an act relating to discrimination on the basis of medical creed under the Iowa civil rights Act of 1965 and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2053, by Ragan, a bill for an act relating to the information required to be included in name change petitions.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2054, by Hogg, a bill for an act requiring the department of natural resources to develop a plan to match the nationally determined commitment to cut greenhouse gas pollution.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

Senate File 2055, by Carlin, a bill for an act permitting businesses' new on-site daycare facilities or businesses' expansion of existing on-site daycare facilities to qualify as projects under the high quality jobs program, and making penalties applicable.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2056, by Carlin, a bill for an act relating to the development of an actionable strategic plan to promote and support breastfeeding in the state.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2057, by Carlin, a bill for an act relating to the requirements for authorized electronic monitoring in nursing facilities, and providing penalties.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2058, by Carlin, a bill for an act establishing a surviving spouse property tax deferral program for certain persons who have attained the age of sixty-five, applying income limitations, providing a penalty, making appropriations, and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2059, by Carlin, a bill for an act exempting homestead property owned by certain elderly persons from specified school property tax levies and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2060, by Edler, a bill for an act relating to massage therapy, including child and dependent adult abuse reporting and continuing education requirements, and making penalties applicable.

Read first time under Rule 28 and referred to committee on **State Government**.

STUDY BILLS RECEIVED

SSB 3038 Ethics

Relating to the requirements under the Senate Code of Ethics for filing personal financial disclosure forms by senators and candidates for senate.

SSB 3039 Labor and Business Relations

Relating to employment security benefits.

SSB 3040 Natural Resources and Environment

Relating to matters under the purview of the department of natural resources, including administration, dams and spillways, personal flotation devices, and operating a motorboat or sailboat while intoxicated, providing penalties, and making penalties applicable.

SSB 3041 Natural Resources and Environment

Relating to programs within the department of natural resources, including specifications of procedures relating to solid waste disposal and the repeal of the state interagency Missouri river authority and the mercury-free recycling Act.

SSB 3042 Natural Resources and Environment

Relating to underground storage tanks, including by creating the Iowa tanks fund and Iowa tanks fund financing program, repealing the Iowa comprehensive petroleum underground storage tank fund, and eliminating the Iowa comprehensive petroleum underground storage tank fund board, requiring a study, and including effective date and transition provisions.

SSB 3043 Human Resources

Relating to violations by a health care facility.

SUBCOMMITTEE ASSIGNMENTS

Senate File 355

STATE GOVERNMENT: Koelker, Chair; Bisignano and Cournoyer

Senate File 409

STATE GOVERNMENT: Cournoyer, Chair; Boulton and Guth

Senate File 410

STATE GOVERNMENT: Dawson, Chair; Bisignano and Schultz

Senate File 480

STATE GOVERNMENT: Brown, Chair; Bisignano and Johnson

Senate File 485

LABOR AND BUSINESS RELATIONS: J. Taylor, Chair; Boulton and Driscoll

Senate File 573

STATE GOVERNMENT: Goodwin, Chair; Celsi and R. Smith

Senate File 2004

HUMAN RESOURCES: Garrett, Chair; Costello and Jochum

Senate File 2005

HUMAN RESOURCES: Costello, Chair; Garrett and Ragan

Senate File 2006

HUMAN RESOURCES: Garrett, Chair; Costello and Trone Garriott

Senate File 2007

HUMAN RESOURCES: Costello, Chair; Bolkcom and Garrett

Senate File 2008

HUMAN RESOURCES: Garrett, Chair; Costello and Trone Garriott

Senate File 2009

HUMAN RESOURCES: Garrett, Chair; Costello and Ragan

Senate File 2010

HUMAN RESOURCES: Johnson, Chair; Bolkcom and Green

Senate File 2012

LABOR AND BUSINESS RELATIONS: Driscoll, Chair; Green and Jochum

Senate File 2013

HUMAN RESOURCES: Garrett, Chair; Costello and Trone Garriott

Senate File 2020

HUMAN RESOURCES: Garrett, Chair; Costello and Jochum

House File 724

LABOR AND BUSINESS RELATIONS: Schultz, Chair; Boulton and Guth

Senate Joint Resolution 15

STATE GOVERNMENT: R. Smith, Chair; Celsi and Cournoyer

Senate Joint Resolution 16

NATURAL RESOURCES AND ENVIRONMENT: Rozenboom, Chair; Sweeney and Trone Garriott

SSB 3038

ETHICS: Koelker, Chair; Carlin, Costello, Hogg, Jochum, and Kinney

SSB 3039

LABOR AND BUSINESS RELATIONS: Guth, Chair; Boulton and Driscoll

SSB 3040

NATURAL RESOURCES AND ENVIRONMENT: Zumbach, Chair; Green and Trone Garriott

SSB 3041

NATURAL RESOURCES AND ENVIRONMENT: Shipley, Chair; Celsi and Rozenboom

SSB 3042

NATURAL RESOURCES AND ENVIRONMENT: Green, Chair; Driscoll and Hogg

SSB 3043

HUMAN RESOURCES: Costello, Chair; Ragan and Rowley

COMMITTEES CHANGES

COMMERCE—17 Members

Schultz, Chair	Chapman	Lykam	Quirmbach
Koelker*	Goodwin	Mathis	Sinclair
Giddens**	Johnson	Nunn	Smith, R.
Bisignano	Klimesh	Petersen	Williams
Brown			

TRANSPORTATION—13 Members

Brown, Chair	Driscoll	Koelker	Shipley
Dickey*	Giddens	Lykam	Taylor T.
Smith, J.**	Klimesh	Rozenboom	Zumbach
Bisignano			

JOURNAL OF THE SENATE

TENTH CALENDAR DAY
SEVENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, January 19, 2022

The Senate met in regular session at 9:07 a.m., President Chapman presiding.

Prayer was offered by the Honorable Ken Rozenboom, member of the Senate from Mahaska County, Oskaloosa, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Cecilia Redman.

The Journal of Tuesday, January 18, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:18 a.m. until 9:00 a.m., Thursday, January 20, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF CORRECTIONS

Electronic Monitoring System Report, pursuant to 2021 Iowa Acts, Chapter 166, section 8. Report received on January 19, 2022.

DEPARTMENT OF EDUCATION

Additional Data Report, pursuant to Iowa Code section 260C.14. Report received on January 18, 2022.

Gap Tuition Assistance Program Report, pursuant to Iowa Code section 260I. Report received on January 18, 2022.

Iowa Community Colleges 260G ACE Infrastructure Report, pursuant to Iowa Code section 260G. Report received on January 18, 2022.

Job Placement of Individuals with Disabilities Vocational Rehabilitation Division, pursuant to 2021 Iowa Acts, Chapter 170, section 6. Report received on January 18, 2022.

Pathways for Academic Career and Employment (PACE) Program Report, pursuant to Iowa Code section 260H. Report received on January 18, 2022.

DEPARTMENT OF HUMAN SERVICES

Department of Human Services Operational and Program Expenditures Report, pursuant to 2021 Iowa Acts, Chapter 182, section 28. Report received on January 19, 2022.

IOWA LOTTERY AUTHORITY

Iowa Lottery Authority Quarterly Report, pursuant to Iowa Code section 99G.7. Report received on January 19, 2022.

IOWA VETERANS HOME

Veterans Home Discharge Report, pursuant to Iowa Code section 35D.15. Report received on January 18, 2022.

REPORTS OF COMMITTEE MEETINGS

EDUCATION

Convened: Wednesday, January 19, 2022, 1:00 p.m.

Members Present: Sinclair, Chair; J. Taylor, Vice Chair; Quirmbach, Ranking Member; Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, and Trone Garriott.

Members Absent: Zaun (excused).

Committee Business: Presentation from Iowa Alliance for Arts Education SSB 3002 SSB 3004 SSB 3005.

Adjourned: 2:00 p.m.

ETHICS

Convened: Tuesday, January 18, 2022, 2:00 p.m.

Members Present: Koelker, Chair; Carlin, Vice Chair; Jochum, Ranking Member; Costello, and Hogg.

Members Absent: Kinney (excused).

Committee Business: SSB 3038.

Adjourned: 2:25 p.m.

HUMAN RESOURCES

Convened: Wednesday, January 19, 2022, 11:05 a.m.

Members Present: Edler, Chair; Costello, Vice Chair; Mathis, Ranking Member; Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott.

Members Absent: Bolkcom (excused).

Committee Business: Family First Presentation by Janee Harvey, Division Administrator of Adult, Children and Family Services.

Adjourned: 12:00 p.m.

TRANSPORTATION

Convened: Wednesday, January 19, 2022, 3:00 p.m.

Members Present: Brown, Chair; Dickey, Vice Chair; J. Smith, Ranking Member; Driscoll, Giddens, Klimesh, Koelker, Rozenboom, Shipley, and Zumbach.

Members Absent: Bisignano, Lykam, and T. Taylor (all excused).

Committee Business: Distribution of Subcommittee Assignments.

Adjourned: 3:05 p.m.

INTRODUCTION OF RESOLUTION

Senate Resolution 101, by committee on Ethics, a resolution relating to the requirements under the Senate Code of Ethics for filing personal financial disclosure forms by senators and candidates for senate.

Read first time under Rule 28 and **placed on calendar**.

INTRODUCTION OF BILLS

Senate File 2061, by Dickey, a bill for an act relating to the use of automated or remote systems for traffic law enforcement involving out-of-state businesses, and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2062, by Dickey, a bill for an act relating to data and alternative measures required prior to implementing automated or remote systems for traffic law enforcement, and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2063, by Dickey, a bill for an act exempting certain trailers from annual registration fees and registration plate issuance requirements.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2064, by Nunn, a bill for an act establishing a criminal penalty for violent repeat offenders and providing for risk assessments.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2065, by Ragan and Mathis, a bill for an act relating to claims incorrectly denied or underpaid by Medicaid managed care organizations.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2066, by Ragan and Mathis, a bill for an act relating to Medicaid program improvements.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2067, by Ragan and Mathis, a bill for an act relating to the reimbursement of providers under the Medicaid program.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2068, by Petersen, a bill for an act relating to the official language of the state of Iowa.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2069, by Petersen, a bill for an act creating a health equity program and fund, and providing an appropriation.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2070, by Rowley, a bill for an act relating to the transfer of ownership of certain foreign vehicles.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2071, by Petersen, a bill for an act relating to the health and human growth and development instruction provided by school districts and accredited nonpublic schools.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2072, by Cournoyer, a bill for an act relating to budgets of local emergency management agencies and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Local Government**.

Senate File 2073, by J. Smith, Kinney, Dotzler, Petersen, Trone Garriott, Giddens, Boulton, Lykam, Mathis, Wahls, Bolkcom, Ragan, Bisignano, Celsi, T. Taylor, Quirmbach, Hogg, and Jochum, a bill for an act establishing a neighborhood housing revitalization assistance program within the Iowa finance authority.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2074, by Mathis, a bill for an act authorizing school districts to use funding from the secure an advanced vision for education fund for certain preschool program costs.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2075, by Mathis, a bill for an act relating to suicide prevention hotline information on student identification cards and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2076, by Mathis, a bill for an act relating to hunting, trapping, and fishing privileges for disabled veterans.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

Senate File 2077, by Mathis, a bill for an act providing for the automatic registration of eligible electors upon review of electronic records received from state agencies and including effective date provisions.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2078, by Klimesh, a bill for an act relating to the use and calibration of automated or remote systems for traffic law enforcement.

Read first time under Rule 28 and referred to committee on **Transportation**.

STUDY BILLS RECEIVED

SSB 3044 Ways and Means

Relating to state revenue and finance by modifying individual and corporate income taxes, and including effective date and applicability provisions.

SSB 3045 Transportation

Relating to the display of a county name on vehicle registration plates.

SSB 3046 Education

Relating to students who are eligible to receive a scholarship from the future ready Iowa skilled workforce last-dollar scholarship fund.

SSB 3047 Education

Relating to education, including the education of students who are not fully English proficient and the standards applicable to the hiring, developing, and evaluation of community college faculty.

SSB 3048 Education

Relating to schools that are required to register with the college student aid commission.

SSB 3049 Transportation

Relating to airport registration and site approval by the department of transportation.

SSB 3050 Agriculture

Relating to mowing on rights-of-way and medians of interstate highways, primary highways, and secondary roads.

SSB 3051 Agriculture

Providing a personal use exemption from inspection and licensing requirements of the Meat and Poultry Inspection Act.

SUBCOMMITTEE ASSIGNMENTS

Senate Joint Resolution 8
(Reassigned)

JUDICIARY: Zaun, Chair; Boulton and Schultz

Senate File 169

WAYS AND MEANS: Dawson, Chair; Goodwin and Jochum

Senate File 332

TRANSPORTATION: Shipley, Chair; Klimesh and J. Smith

Senate File 557
(Reassigned)

JUDICIARY: J. Taylor, Chair; Boulton and Zaun

Senate File 590

WAYS AND MEANS: Dawson, Chair; Petersen and Zaun

Senate File 591

WAYS AND MEANS: R. Smith, Chair; Dotzler and Green

Senate File 593

WAYS AND MEANS: Goodwin, Chair; Petersen and Sinclair

Senate File 601

WAYS AND MEANS: Dawson, Chair; Goodwin and Quirmbach

Senate File 602

WAYS AND MEANS: Goodwin, Chair; Sinclair and T. Taylor

Senate File 603

WAYS AND MEANS: Dawson, Chair; Goodwin and T. Taylor

Senate File 604

WAYS AND MEANS: Sinclair, Chair; Goodwin and Quirmbach

Senate File 609

WAYS AND MEANS: Dawson, Chair; Goodwin and Petersen

Senate File 617

WAYS AND MEANS: Dawson, Chair; Goodwin and T. Taylor

Senate File 618

WAYS AND MEANS: Schultz, Chair; Dawson and Dotzler

Senate File 2003

EDUCATION: Cournoyer, Chair; Goodwin and Trone Garriott

Senate File 2018

LOCAL GOVERNMENT: Klimesh, Chair; Quirmbach and Williams

Senate File 2019

TRANSPORTATION: Zumbach, Chair; Klimesh and T. Taylor

Senate File 2023

VETERANS AFFAIRS: Edler, Chair; Costello and Dotzler

Senate File 2035

LOCAL GOVERNMENT: Driscoll, Chair; Guth and J. Smith

Senate File 2038

TRANSPORTATION: Dickey, Chair; Giddens and Shipley

Senate File 2046

COMMERCE: Williams, Chair; Goodwin and Lykam

Senate File 2049

COMMERCE: Nunn, Chair; Mathis and Williams

Senate File 2050

VETERANS AFFAIRS: Reichman, Chair; Giddens and Lofgren

Senate File 2061

TRANSPORTATION: Dickey, Chair; Klimesh and Lykam

Senate File 2062

TRANSPORTATION: Dickey, Chair; Klimesh and Lykam

Senate File 2063

TRANSPORTATION: Dickey, Chair; Bisignano and Rozenboom

Senate File 2070

TRANSPORTATION: Shipley, Chair; T. Taylor and Zumbach

House File 842

WAYS AND MEANS: Goodwin, Chair; Petersen and Sinclair

SSB 3044

WAYS AND MEANS: Dawson, Chair; Bolkcom, Jochum, R. Smith, and Zaun

SSB 3045

TRANSPORTATION: Brown, Chair; Klimesh and T. Taylor

SSB 3046

EDUCATION: Sinclair, Chair; Giddens and Sweeney

SSB 3047

EDUCATION: Sweeney, Chair; Johnson and J. Smith

SSB 3048

EDUCATION: J. Taylor, Chair; Kraayenbrink and Quirmbach

SSB 3049

TRANSPORTATION: Koelker, Chair; Driscoll and J. Smith

SSB 3050

AGRICULTURE: Zumbach, Chair; Ragan and Shipley

SSB 3051

AGRICULTURE: Zumbach, Chair; Driscoll and Kinney

FINAL COMMITTEE REPORT OF BILL ACTION

ETHICS

Bill Title: *SENATE RESOLUTION 101 (SSB 3038), a resolution relating to the requirements under the Senate Code of Ethics for filing personal financial disclosure forms by senators and candidates for senate.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 5: Koelker, Carlin, Jochum, Costello, and Hogg. Nays, none. Absent, 1: Kinney.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ethics Committee on Senate Resolution 101, and they were attached to the committee report.

JOURNAL OF THE SENATE

ELEVENTH CALENDAR DAY
EIGHTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, January 20, 2022

The Senate met in regular session at 9:04 a.m., President Chapman presiding.

Prayer was offered by the Honorable Tim Kraayenbrink, member of the Senate from Webster County, Fort Dodge, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Grace Tollefson.

The Journal of Wednesday, January 19, 2022, was approved.

ADJOURNMENT

On motion of Senator Goodwin, the Senate adjourned at 9:07 a.m. until 1:00 p.m., Monday, January 24, 2022.

APPENDIX

REPORT OF COMMITTEE MEETING

STATE GOVERNMENT

Convened: Thursday, January 20, 2022, 11:05 a.m.

Members Present: R. Smith, Chair; Cournoyer, Vice Chair; Bisignano, Ranking Member; Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, and Reichman.

Members Absent: Boulton and Schultz (both excused).

Committee Business: SSB 3006 SSB 3008 SSB 3009

Adjourned: 11:30 a.m.

INTRODUCTION OF BILLS

Senate File 2079, by committee on Education, a bill for an act relating to limitations on the immunization of children for enrollment in any licensed child care center or elementary or secondary school in the state and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2080, by committee on Education, a bill for an act relating to the administration of certain physical examinations and student health screenings by school districts, charter schools, or innovation zone schools.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2081, by committee on Education, a bill for an act relating to disbursements from the computer science professional development incentive fund and including applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2082, by Dickey, a bill for an act prohibiting negative option billing practices in subscription contracts and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2083, by Dickey, a bill for an act relating to the abatement of property taxes owed on property owned by certain volunteer emergency services providers and including effective date and applicability provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2084, by Dickey, a bill for an act relating to repair or service estimates for certain older motor vehicles, and making penalties applicable.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2085, by Dickey, a bill for an act prohibiting litigation financing contracts.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2086, by committee on State Government, a bill for an act relating to the membership, procedures, and functions of the Iowa council on homelessness.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2087, by committee on State Government, a bill for an act relating to the comprehensive financial report of the state and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2088, by committee on State Government, a bill for an act relating to the practices of pharmacy and nursing and the administration of immunizations and vaccinations, and the licensure of nonresident pharmacies.

Read first time under Rule 28 and **placed on calendar**.

STUDY BILLS RECEIVED

SSB 3052 Natural Resources and Environment

Relating to the adoption and use of certain general permits issued by the department of natural resources.

SSB 3053 State Government

Relating to alcoholic beverage control and matters under the purview of the alcoholic beverages division of the department of commerce and including effective date provisions.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2016

COMMERCE: Williams, Chair; Brown and Petersen

Senate File 2022

STATE GOVERNMENT: Schultz, Chair; Bisignano and Dawson

Senate File 2027

HUMAN RESOURCES: Costello, Chair; Bolkcom and Rowley

Senate File 2028

HUMAN RESOURCES: Johnson, Chair; Green and Trone Garriott

Senate File 2029

HUMAN RESOURCES: Edler, Chair; Rowley and Trone Garriott

Senate File 2030

HUMAN RESOURCES: Costello, Chair; Jochum and Johnson

Senate File 2031

HUMAN RESOURCES: Lofgren, Chair; Bolkcom and Garrett

Senate File 2032

HUMAN RESOURCES: Edler, Chair; Costello and Ragan

Senate File 2033

HUMAN RESOURCES: Edler, Chair; Johnson and Ragan

Senate File 2045

STATE GOVERNMENT: Reichman, Chair; Brown and Giddens

Senate File 2048

HUMAN RESOURCES: Costello, Chair; Ragan and Sweeney

Senate File 2051

LABOR AND BUSINESS RELATIONS: Green, Chair; Rowley and T. Taylor

Senate File 2052

HUMAN RESOURCES: Edler, Chair; Jochum and Sweeney

Senate File 2054

NATURAL RESOURCES AND ENVIRONMENT: Rozenboom, Chair; Driscoll and Hogg

Senate File 2056

HUMAN RESOURCES: Sweeney, Chair; Rowley and Trone Garriott

Senate File 2057

HUMAN RESOURCES: Johnson, Chair; Bolkcom and Green

Senate File 2060

STATE GOVERNMENT: Brown, Chair; Celsi and Cournoyer

Senate File 2061
(Reassigned)

TRANSPORTATION: Dickey, Chair; Bisignano and Klimesh

Senate File 2062
(Reassigned)

TRANSPORTATION: Dickey, Chair; Bisignano and Klimesh

Senate File 2068

STATE GOVERNMENT: Schultz, Chair; Bisignano and Dawson

Senate File 2077

STATE GOVERNMENT: Schultz, Chair; Dawson and Jochum

SSB 3052

NATURAL RESOURCES AND ENVIRONMENT: Driscoll, Chair; Sweeney and Trone Garriott

SSB 3053

STATE GOVERNMENT: Cournoyer, Chair; Boulton and Reichman

FINAL COMMITTEE REPORTS OF BILL ACTION

EDUCATION

Bill Title: *SENATE FILE 2079 (SSB 3004), a bill for an act relating to limitations on the immunization of children for enrollment in any licensed child care center or elementary or secondary school in the state and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, and Trone Garriott. Nays, none. Absent, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2079, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2080 (SSB 3005), a bill for an act relating to the administration of certain physical examinations and student health screenings by school districts, charter schools, or innovation zone schools.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, and Trone Garriott. Nays, none. Absent, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2080, and they were attached to the committee report.

ALSO:

Bill Title: SENATE FILE 2081 (SSB 3002), a bill for an act relating to disbursements from the computer science professional development incentive fund and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, and Trone Garriott. Nays, none. Absent, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

STATE GOVERNMENT

Bill Title: SENATE FILE 2086 (SSB 3008), a bill for an act relating to the membership, procedures, and functions of the Iowa council on homelessness.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: R. Smith, Cournoyer, Bisignano, Brown, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, and Reichman. Nays, 1: Celsi. Absent, 2: Boulton and Schultz.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2087 (SSB 3009), a bill for an act relating to the comprehensive financial report of the state and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: R. Smith, Cournoyer, Bisignano, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, and Reichman. Nays, none. Absent, 2: Boulton and Schultz.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2088 (SSB 3006), a bill for an act relating to the practices of pharmacy and nursing and the administration of immunizations and vaccinations, and the licensure of nonresident pharmacies.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: R. Smith, Cournoyer, Bisignano, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, and Reichman. Nays, none. Absent, 2: Boulton and Schultz.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

REPORT OF THE SECRETARY OF THE SENATE

January 20, 2022

Members of the Senate Ethics Committee
Via Email

Re: Report of Personal Financial Disclosure Forms

Dear Senate Ethics Committee Members:

Pursuant to Iowa Code section 68B.35 and Rule 11 of the Senate Code of Ethics, Senators and certain Senate employees are required to file Personal Financial Disclosure Statements. Rule 11 also requires the Secretary of the Senate to inform the Ethics Committee with the results of these filings and I do so as follows:

1. The filing period commenced on January 10, 2022, and ended on January 20, 2022.

2. By 10:30 a.m. on January 20, 2022, all Senators and the Secretary of the Senate had filed the appropriate form. The forms will be published on the General Assembly Web site.

3. To the best of my knowledge, each form has been completed. As such, all Senators and the Secretary of the Senate are in compliance with Iowa Code section 68B.35 and Senate Ethics Rule 11 and your Committee need not take any action.

If the Ethics Committee has any questions or concerns, please notify me.

Respectfully submitted,

W. Charles Smithson
Secretary of the Senate

JOURNAL OF THE SENATE

FIFTEENTH CALENDAR DAY
NINTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, January 24, 2022

The Senate met in regular session at 1:02 p.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Johnson, member of the Senate from Buchanan County, Independence, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Ian Critelli.

The Journal of Thursday, January 20, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 1:04 p.m. until 9:00 a.m., Tuesday, January 25, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF ADMINISTRATIVE SERVICES

Equal Opportunity–Contract Compliance Policy Report, pursuant to Iowa Code section 19B.7. Report received on January 24, 2022.

IOWA COUNTY ENGINEERS ASSOCIATION SERVICE BUREAU

Annual report, pursuant to Iowa Code section 312.3B. Report received on January 17, 2022.

BOARD OF REGENTS

Affirmative Action, Diversity, and Multicultural Accomplishment, pursuant to Iowa Code section 19B.5. Report received on January 20, 2022.

Minority and Women Educators Enhancement Program Report, pursuant to Iowa Code sections 262.93 and 262.82. Report received on January 20, 2022.

REPORTS OF COMMITTEE MEETINGS

APPROPRIATIONS SUBCOMMITTEE ON AGRICULTURE AND NATURAL RESOURCES

Convened: Monday, January 24, 2022, 11:05 a.m.

Members Present: Rozenboom, Chair; Mathis, Ranking Member; and Kinney.

Members Absent: Shipley, Vice Chair; and Williams (both excused).

Committee Business: Mike Naig, Secretary of Agriculture spoke.

Adjourned: 11:55 a.m.

APPROPRIATIONS SUBCOMMITTEE ON HEALTH AND HUMAN SERVICES

Convened: Monday, January 24, 2022, 12:00 p.m.

Members Present: Costello, Chair; Edler, Vice Chair; Ragan, Ranking Member; Klimesh, and Trone Garriott.

Members Absent: None.

Committee Business: Presentation by Legislative Services Agency on the Analysis of the Governor's Budget Recommendations.

Adjourned: 12:25 p.m.

INTRODUCTION OF RESOLUTION

Senate Concurrent Resolution 101, by Zaun, a concurrent resolution urging the United States Drug Enforcement Administration to grant an exception to the classification of cannabis under schedule I of the federal Controlled Substances Act in Iowa.

Read first time under Rule 28 and referred to committee on **Judiciary**.

INTRODUCTION OF BILLS

Senate File 2089, by Zaun, a bill for an act modifying provisions relating to the additional property tax credit for elderly persons and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2090, by Dawson, a bill for an act relating to pretrial bond amounts for certain felonies.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2091, by Dawson, a bill for an act relating to jury service disqualification for certain felons.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2092, by Dawson, a bill for an act relating to pharmacy benefits managers, pharmacies, and prescription drug benefits, and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2093, by Dawson, a bill for an act relating to accommodations in housing provided to persons with a disability-related need for assistance animals and service animals, and providing penalties.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2094, by Zaun, a bill for an act relating to consideration of the educational setting of a minor child in a child custody proceeding.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2095, by Zaun, a bill for an act relating to the statute of limitations in a civil action involving the sexual abuse of a minor.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2096, by Klimesh, a bill for an act relating to requirements for additional members of a city planning and zoning commission and a board of adjustment when a city extends its zoning jurisdiction.

Read first time under Rule 28 and referred to committee on **Local Government**.

Senate File 2097, by Sinclair, a bill for an act relating to the lookback period for prior operating-while-intoxicated convictions.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2098, by Sinclair, a bill for an act relating to statements required to be submitted to the state building code commissioner by state agencies and governmental subdivisions of costs associated with building regulations involving residential structures.

Read first time under Rule 28 and referred to committee on **State Government**.

STUDY BILLS RECEIVED

SSB 3054 Judiciary

Relating to disclosure of psychological test material.

SSB 3055 Judiciary

Relating to public safety answering point cost and expense data collection and the responsibilities of the auditor of state.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2024

EDUCATION: Sinclair, Chair; Quirmbach and Rozenboom

Senate File 2025

EDUCATION: Sinclair, Chair; Quirmbach and Rozenboom

Senate File 2026

EDUCATION: Carlin, Chair; Cournoyer and Quirmbach

Senate File 2034

JUDICIARY: Garrett, Chair; Dawson and Kinney

Senate File 2036

JUDICIARY: J. Taylor, Chair; Boulton and Garrett

Senate File 2037

EDUCATION: Goodwin, Chair; Quirmbach and Sinclair

Senate File 2039

EDUCATION: Goodwin, Chair; Celsi and Sinclair

Senate File 2040

EDUCATION: Goodwin, Chair; Celsi and Sinclair

Senate File 2041

EDUCATION: Goodwin, Chair; Sinclair and J. Smith

Senate File 2042

EDUCATION: Goodwin, Chair; Giddens and Sinclair

Senate File 2043

EDUCATION: Goodwin, Chair; Celsi and Sinclair

Senate File 2044

EDUCATION: Goodwin, Chair; Celsi and Sinclair

Senate File 2047

EDUCATION: Goodwin, Chair; Sinclair and J. Smith

Senate File 2053

JUDICIARY: Shipley, Chair; Bolkcom and Johnson

Senate File 2064

JUDICIARY: Sinclair, Chair; Petersen and Shipley

Senate File 2065

HUMAN RESOURCES: Garrett, Chair; Edler and Ragan

Senate File 2066

HUMAN RESOURCES: Johnson, Chair; Green and Ragan

Senate File 2067

HUMAN RESOURCES: Garrett, Chair; Johnson and Ragan

Senate File 2069

HUMAN RESOURCES: Costello, Chair; Garrett and Trone Garriott

Senate File 2071

EDUCATION: Sinclair, Chair; Rozenboom and Trone Garriott

Senate File 2076

NATURAL RESOURCES AND ENVIRONMENT: Rozenboom, Chair; Celsi and Cournoyer

SSB 1003
(Reassigned)

JUDICIARY: Garrett, Chair; Bisignano and Schultz

SSB 3054

JUDICIARY: J. Taylor, Chair; Bolkcom and Reichman

SSB 3055

JUDICIARY: Johnson, Chair; Bisignano and J. Taylor

JOURNAL OF THE SENATE

SIXTEENTH CALENDAR DAY
TENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, January 25, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Williams, member of the Senate from Carroll County, Manning, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Kennedy Haag.

The Journal of Monday, January 24, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:06 a.m. until 9:00 a.m., Wednesday, January 26, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF EDUCATION

Condition of Education Annual Report, pursuant to Iowa Code section 256.7. Report received on January 25, 2022.

Condition of Iowa's Community College Report, pursuant to Iowa Code section 260C.14. Report received on January 25, 2022.

DEPARTMENT OF NATURAL RESOURCES

Resources Enhancement and Protection Recommendations, pursuant to Iowa Code section 455A.17. Report received on January 25, 2022.

IOWA COMPREHENSIVE PETROLEUM UNDERGROUND STORAGE TANK FUND BOARD

Petroleum Underground Storage Tank Fund Progress and Activities Report, pursuant to Iowa Code section 455G.4. Report received on January 25, 2022.

DEPARTMENT OF TRANSPORTATION

Biodiesel and Biodiesel Blended Fuel Revolving Fund, pursuant to Iowa Code section 307.20. Report received on January 24, 2022.

Secondary Road Research Fund Report, pursuant to Iowa Code section 310.36. Report received on January 24, 2022.

Street Research Fund Report, pursuant to Iowa Code section 312.3A. Report received on January 24, 2022.

REPORT OF COMMITTEE MEETING

VETERANS AFFAIRS

Convened: Tuesday, January 25, 2022, 1:00 p.m.

Members Present: Lofgren, Chair; Reichman, Vice Chair; Giddens, Ranking Member; Carlin, Costello, Dawson, Dotzler, Edler, Green, Mathis, and Ragan.

Members Absent: None.

Committee Business: Presentation by Executive Director Iowa Department of Veterans Affairs, Steven Lukan.

Adjourned: 1:30 p.m.

INTRODUCTION OF RESOLUTION

Senate Joint Resolution 2001, by Carlin, a joint resolution proposing an amendment to the Constitution of the State of Iowa relating to medical freedom.

Read first time under Rule 28 and referred to committee on **State Government**.

INTRODUCTION OF BILLS

Senate File 2099, by Brown, a bill for an act relating to the establishment of emergency response districts.

Read first time under Rule 28 and referred to committee on **Local Government**.

Senate File 2100, by Rozenboom, a bill for an act relating to the crime of indecent exposure and making penalties applicable.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2101, by Rozenboom, a bill for an act relating to the crimes of indecent exposure and public masturbation, and making penalties applicable.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2102, by Green, a bill for an act relating to operation of an off-road utility vehicle by an unlicensed person at a designated off-highway vehicle riding area, and making penalties applicable.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2103, by J. Taylor, a bill for an act relating to the establishment of a cold case investigation unit within the department of public safety.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2104, by Jochum, a bill for an act relating to the earned income tax credit available against the individual income tax and including retroactive applicability provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2105, by Carlin, a bill for an act excluding from the computation of net income for purposes of the individual income tax the unreimbursed cost of prescribed drugs or insulin of certain taxpayers at least sixty-five years of age, and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2106, by Shipley, a bill for an act relating to landlords and tenants, including rental property utilities, the definition of rent, and forcible entry and detainer actions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2107, by Carlin, a bill for an act directing the department of education to convene a working group to study the impact of technology on cognitive learning.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2108, by Carlin, a bill for an act providing a nursing home visitation shelter tax credit available against the individual and corporate income taxes, and including effective date and applicability provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2109, by J. Taylor, a bill for an act relating to the penalties for defendants who aid and abet the commission of murder in the first degree.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2110, by Shipley, a bill for an act relating to acreage limitations for the production of hemp, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Agriculture**.

STUDY BILLS RECEIVED

SSB 3056 Commerce

Relating to the sale, lease, or rental of water treatment systems and including effective date and applicability provisions.

SSB 3057 Commerce

Relating to public utility access to public road rights-of-way.

SSB 3058 Commerce

Relating to preneed sellers and purchase agreements for cemetery merchandise, funeral merchandise, and funeral services, providing penalties, and including applicability provisions.

SSB 3059 Transportation

Relating to department of transportation employees designated as peace officers, and including effective date provisions.

SSB 3060 Judiciary

Relating to probate indigent defense fees and trial transcript fees.

SSB 3061 Judiciary

Relating to remote testimony in civil and criminal court proceedings.

SSB 3062 Commerce

Relating to financial reporting by insurance holding company systems.

SUBCOMMITTEE ASSIGNMENTS

Senate Concurrent Resolution 101

JUDICIARY: Zaun, Chair; Bolkcom and Sinclair

Senate File 2055

COMMERCE: Koelker, Chair; Quirmbach and Williams

Senate File 2072

LOCAL GOVERNMENT: Klimesh, Chair; Hogg and Lofgren

Senate File 2073

COMMERCE: R. Smith, Chair; Mathis and Schultz

Senate File 2078

TRANSPORTATION: Klimesh, Chair; Bisignano and Dickey

Senate File 2090

JUDICIARY: Dawson, Chair; Johnson and Kinney

Senate File 2091

JUDICIARY: Dawson, Chair; Bisignano and Johnson

Senate File 2095

JUDICIARY: Zaun, Chair; Petersen and Rowley

Senate File 2096

LOCAL GOVERNMENT: Klimesh, Chair; Lofgren and J. Smith

Senate File 2097

TRANSPORTATION: Rozenboom, Chair; Giddens and Klimesh

Senate File 2098

STATE GOVERNMENT: Schultz, Chair; Brown and Giddens

Senate File 2099

LOCAL GOVERNMENT: Driscoll, Chair; Guth and Quirmbach

SSB 3056

COMMERCE: Klimesh, Chair; Chapman and Giddens

SSB 3057

COMMERCE: Williams, Chair; Giddens and Goodwin

SSB 3058

COMMERCE: Williams, Chair; Johnson and Petersen

SSB 3059

TRANSPORTATION: Brown, Chair; T. Taylor and Zumbach

SSB 3060

JUDICIARY: Garrett, Chair; Boulton and Rowley

SSB 3061

JUDICIARY: Garrett, Chair; Petersen and J. Taylor

SSB 3062

COMMERCE: Williams, Chair; Bisignano and Goodwin

FINAL COMMITTEE REPORT OF BILL ACTION

VETERANS AFFAIRS

Bill Title: SENATE FILE 255, a bill for an act relating to county commissions of veteran affairs contacting discharged veterans regarding veteran benefits.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Lofgren, Reichman, Giddens, Carlin, Costello, Dawson, Dotzler, Edler, Green, Mathis, and Ragan. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JOURNAL OF THE SENATE

SEVENTEENTH CALENDAR DAY
ELEVENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, January 26, 2022

The Senate met in regular session at 9:01 a.m., President Chapman presiding.

Prayer was offered by the Honorable Adrian Dickey, member of the Senate from Jefferson County, Packwood, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Thomas Knudsen.

The Journal of Tuesday, January 25, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:04 a.m. until 9:00 a.m., Thursday, January 27, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF EDUCATION

Iowa Reading Research Center Annual Report, pursuant to Iowa Code section 256.9. Report received on January 25, 2022.

DEPARTMENT OF REVENUE

Central Collections Unit (CCU) Quarterly Debt Collection Report, pursuant to Iowa Code section 421.17. Report received on January 26, 2022.

REPORTS OF COMMITTEE MEETINGS

EDUCATION

Convened: Wednesday, January 26, 2022, 1:00 p.m.

Members Present: Sinclair, Chair; J. Taylor, Vice Chair; Quirmbach, Ranking Member; Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun.

Members Absent: None.

Committee Business: SSB 3048 with Senator Taylor. SSB 3047 with Senator Sweeney. SSB 3046 with Senator Sinclair.

Adjourned: 1:10 p.m.

JUDICIARY

Convened: Wednesday, January 26, 2022, 2:00 p.m.

Members Present: Zaun, Chair; Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: None.

Committee Business: SF 2014, SSB 3019, SSB 3023.

Adjourned: 3:00 p.m.

INTRODUCTION OF BILLS

Senate File 2111, by Dawson, a bill for an act relating to a peace officer's search of garbage placed outside of a person's residence for waste collection in a publicly accessible area.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2112, by Carlin, a bill for an act directing the department of education to convene an achievement gap working group.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2113, by J. Taylor, a bill for an act relating to parole board review of the status of certain persons committed to the department of corrections.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2114, by Rowley, a bill for an act relating to the operation of registered all-terrain vehicles and off-road utility vehicles on secondary roads.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2115, by Rowley, a bill for an act relating to the regulation of certain short-term rental properties by counties and cities.

Read first time under Rule 28 and referred to committee on **Local Government**.

Senate File 2116, by Nunn, a bill for an act relating to reimbursement rates for providers of substance use disorder treatment services.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2117, by Edler, a bill for an act relating to experimental treatments for terminally ill persons, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2118, by Kinney, a bill for an act relating to mental health and disability services funds to establish county-controlled accounts for administrative expenses and increase the amount mental health and disability services funds may carryforward.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2119, by Cournoyer, a bill for an act relating to cosmetology and the practice of threading.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2120, by Sinclair, a bill for an act relating to the authority granted native distilleries.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2121, by Cournoyer, a bill for an act relating to health insurance coverage for hearing aids for covered persons age eighteen and younger.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2122, by Rozenboom, a bill for an act relating to the redemption of and payment of refund value on beverage containers, making appropriations, providing penalties, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2123, by Cournoyer, a bill for an act relating to the Iowa law enforcement academy council including the revocation or suspension of certifications of law enforcement officers and reserve peace officers in this state and certifications of law enforcement officers in other states, and the peace officer, public safety, and emergency personnel bill of rights including formal administrative investigations of officers.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2124, by Guth, a bill for an act relating to immunization information requested on a medical examiner investigation form.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2125, by T. Taylor, a bill for an act relating to railroad trains, including train length limits and the operation of trains by a crew of two or more persons, providing penalties, making penalties applicable, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2126, by T. Taylor, a bill for an act relating to motor vehicles that traverse certain railroad grade crossings against a gate or signal, and providing penalties.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2127, by Zumbach, a bill for an act relating to commercially owned solar panel field installation on agricultural land.

Read first time under Rule 28 and referred to committee on **Agriculture**.

Senate File 2128, by committee on Education, a bill for an act relating to education, including the education of students who are not fully English proficient and the standards applicable to the hiring, developing, and evaluation of community college faculty.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2129, by committee on Education, a bill for an act relating to students who are eligible to receive a scholarship from the future ready Iowa skilled workforce last-dollar scholarship fund.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2130, by committee on Education, a bill for an act relating to schools that are required to register with the college student aid commission.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2131, by committee on Labor and Business Relations, a bill for an act relating to employment security benefits.

Read first time under Rule 28 and **placed on calendar**.

STUDY BILLS RECEIVED

SSB 3063 Ways and Means

Relating to sales, use, and motor vehicle fuel taxes administered by the department of revenue including distributions to local governments and school districts, the liability of sellers, tax refund and tax credit incentives, and motor fuel tax reporting and terminology modifications, and providing penalties, and including effective date and applicability provisions.

SSB 3064 Ways and Means

Proposing an amendment to the Constitution of the State of Iowa requiring a two-thirds majority vote for certain state tax law changes.

SSB 3065 Human Resources

Relating to child care center staff ratios.

SSB 3066 Human Resources

Relating to programs and services under the purview of the department of human services including child care assistance, child and family services, foster care, adoption, and the dependent adult abuse information registry.

SSB 3067 Education

Relating to education, including eligibility for grants under the teach Iowa scholar program, licenses issued by the board of educational examiners, and the use of revenues from the district management levy, and including applicability provisions.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2058

WAYS AND MEANS: Dawson, Chair; Goodwin and T. Taylor

Senate File 2059

WAYS AND MEANS: Dawson, Chair; Goodwin and Quirmbach

Senate File 2074

EDUCATION: Sinclair, Chair; Rozenboom and Trone Garriott

Senate File 2075

EDUCATION: Sinclair, Chair; Rozenboom and J. Smith

Senate File 2083

WAYS AND MEANS: Dawson, Chair; Dotzler and Goodwin

Senate File 2089

WAYS AND MEANS: Dawson, Chair; Goodwin and Quirmbach

Senate File 2094

EDUCATION: Zaun, Chair; J. Taylor and Trone Garriott

Senate File 2100

JUDICIARY: Schultz, Chair; Petersen and J. Taylor

Senate File 2101

JUDICIARY: Schultz, Chair; Petersen and J. Taylor

Senate File 2102

TRANSPORTATION: Brown, Chair; Lykam and Zumbach

Senate File 2107

EDUCATION: J. Taylor, Chair; Carlin and Giddens

Senate File 2110

AGRICULTURE: Shipley, Chair; Green and Kinney

Senate File 2112

EDUCATION: J. Taylor, Chair; Carlin and Giddens

SSB 3063

WAYS AND MEANS: Dawson, Chair; Bolkcom and Goodwin

SSB 3064

WAYS AND MEANS: Dawson, Chair; Goodwin and Petersen

SSB 3065

HUMAN RESOURCES: Edler, Chair; Costello and Jochum

SSB 3066

HUMAN RESOURCES: Edler, Chair; Costello and Ragan

SSB 3067

EDUCATION: Sinclair, Chair; Goodwin and Quirmbach

FINAL COMMITTEE REPORTS OF BILL ACTION

EDUCATION

Bill Title: SENATE FILE 2128 (SSB 3047), a bill for an act relating to education, including the education of students who are not fully English proficient and the standards applicable to the hiring, developing, and evaluation of community college faculty.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, and Trone Garriott. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2129 (SSB 3046), a bill for an act relating to students who are eligible to receive a scholarship from the future ready Iowa skilled workforce last-dollar scholarship fund.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, and Trone Garriott. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2130 (SSB 3048), a bill for an act relating to schools that are required to register with the college student aid commission.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, and Trone Garriott. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

LABOR AND BUSINESS RELATIONS

Bill Title: SENATE FILE 493, a bill for an act relating to the registration of construction contractors.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Dickey, Green, Boulton, Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2131 (SSB 3039), a bill for an act relating to employment security benefits.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Dickey, Green, Boulton, Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JOURNAL OF THE SENATE

EIGHTEENTH CALENDAR DAY
TWELFTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, January 27, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Jackson Maddox.

The Journal of Wednesday, January 26, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:12 a.m. until 1:00 p.m., Monday, January 31, 2022.

APPENDIX

REPORT OF COMMITTEE MEETING

TRANSPORTATION

Convened: Thursday, January 27, 2022, 10:00 a.m.

Members Present: Brown, Chair; Dickey, Vice Chair; J. Smith, Ranking Member; Bisignano, Driscoll, Giddens, Klimesh, Koelker, Rozenboom, Shipley, T. Taylor, and Zumbach.

Members Absent: Lykam (excused).

Committee Business: SSB 3001, SF 330, SSB 3049.

Adjourned: 10:40 a.m.

INTRODUCTION OF BILLS

Senate File 2132, by committee on Judiciary, a bill for an act relating to the membership of the district judicial nominating commissions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2133, by committee on Judiciary, a bill for an act relating to traffic violations involving the approach of certain stationary vehicles, including by providing for reporting of violations, requiring investigations, and providing for enforcement against vehicle owners.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2134, by committee on Judiciary, a bill for an act relating to the salary of the state court administrator.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2135, by Cournoyer, a bill for an act providing that a licensed veterinarian is immune from administrative, civil, or criminal liability in investigations or proceedings involving the mistreatment of animals.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2136, by Guth, J. Taylor, Green, and Johnson, a bill for an act relating to elective social studies courses emphasizing religious scripture that school districts may offer and teach.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2137, by Brown, a bill for an act relating to terms used in the context of land surveying.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2138, by Schultz, a bill for an act relating to shotguns that may be used to hunt turkey.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

Senate File 2139, by committee on Transportation, a bill for an act relating to wrecked or salvage vehicles with cosmetic damage.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2140, by committee on Transportation, a bill for an act relating to airport registration and site approval by the department of transportation.

Read first time under Rule 28 and **placed on calendar**.

STUDY BILLS RECEIVED

SSB 3068 Commerce

Modifying the definitions of essential county purpose and essential corporate purpose to include cybersecurity purposes.

SSB 3069 Commerce

Relating to life insurance company or association investments in foreign countries other than Canada, and including applicability provisions.

SSB 3070 Commerce

Regarding port authorities, including by allowing port authorities to enter into certain loan agreements and lease contracts.

SSB 3071 Commerce

Relating to direct health care agreements, and including effective date and applicability provisions.

SSB 3072 Labor and Business Relations

Relating to the use of child labor for certain bakery machine occupations utilizing pizza dough rollers.

SSB 3073 Judiciary

Relating to controlled substances, including amending the controlled substance schedules and information collection and reporting requirements under the Iowa prescription monitoring program, and including effective date provisions.

SSB 3074 Ways and Means

Relating to state and local revenue and finances by modifying sales and use taxes, individual and corporate income taxes, the franchise tax, the insurance premiums tax, the equipment tax, the automobile rental excise tax, the water service tax, and local option taxes, crediting moneys to the natural resources and outdoor recreation trust fund, and including effective date and applicability provisions.

SSB 3075 State Government

Relating to the confirmation by the senate of certain appointees.

SSB 3076 Natural Resources and Environment

Relating to the submission of a groundwater hazard statement.

SSB 3077 Human Resources

Relating to child welfare, including provisions relating to foster care and the child advocacy board.

SUBCOMMITTEE ASSIGNMENTS

Senate Joint Resolution 2001

STATE GOVERNMENT: Goodwin, Chair; Bisignano and Koelker

Senate File 241

JUDICIARY: Shipley, Chair; Bisignano and J. Taylor

Senate File 513

JUDICIARY: Dawson, Chair; Bisignano and J. Taylor

Senate File 616

WAYS AND MEANS: Sweeney, Chair; Green and Quirmbach

Senate File 2082

COMMERCE: Klimesh, Chair; Bisignano and Brown

Senate File 2084

COMMERCE: Klimesh, Chair; Brown and Lykam

Senate File 2085

COMMERCE: Nunn, Chair; Goodwin and Quirmbach

Senate File 2092

COMMERCE: Klimesh, Chair; Koelker and Petersen

Senate File 2104

WAYS AND MEANS: Dawson, Chair; Goodwin and Jochum

Senate File 2105

WAYS AND MEANS: Goodwin, Chair; Dawson and Quirmbach

Senate File 2106

COMMERCE: Brown, Chair; Bisignano and Sinclair

Senate File 2108

WAYS AND MEANS: Goodwin, Chair; Dawson and Dotzler

Senate File 2111

JUDICIARY: Dawson, Chair; Kinney and Zaun

Senate File 2113

JUDICIARY: J. Taylor, Chair; Bisignano and Reichman

Senate File 2115

LOCAL GOVERNMENT: Lofgren, Chair; Guth and J. Smith

Senate File 2119

STATE GOVERNMENT: Cournoyer, Chair; Bisignano and Koelker

Senate File 2120

COMMERCE: Sinclair, Chair; Lykam and Schultz

Senate File 2121

COMMERCE: Williams, Chair; Brown and Mathis

Senate File 2123

JUDICIARY: Reichman, Chair; Kinney and Rowley

Senate File 2127

AGRICULTURE: Zumbach, Chair; Driscoll and Kinney

SSB 3068

COMMERCE: Nunn, Chair; Giddens and Johnson

SSB 3069

COMMERCE: Goodwin, Chair; Johnson and Quirmbach

SSB 3070

COMMERCE: Koelker, Chair; Johnson and Lykam

SSB 3071

COMMERCE: Williams, Chair; Goodwin and Petersen

SSB 3072

LABOR AND BUSINESS RELATIONS: Rowley, Chair; Driscoll and T. Taylor

SSB 3073

JUDICIARY: Zaun, Chair; Bolkcom and Rowley

SSB 3074

WAYS AND MEANS: Dawson, Chair; Bolkcom, Jochum, R. Smith and Zaun

SSB 3075

STATE GOVERNMENT: R. Smith, Chair; Boulton and Cournoyer

SSB 3076

NATURAL RESOURCES AND ENVIRONMENT: J. Taylor, Chair; Celsi and Driscoll

SSB 3077

HUMAN RESOURCES: Costello, Chair; Johnson and Ragan

FINAL COMMITTEE REPORTS OF BILL ACTION

JUDICIARY

Bill Title: SENATE FILE 2132 (formerly SF 2014), a bill for an act relating to the membership of the district judicial nominating commissions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Zaun, Garrett, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 5: Kinney, Bisignano, Bolkcom, Boulton, and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2133 (SSB 3019), a bill for an act relating to traffic violations involving the approach of certain stationary vehicles, including by providing for reporting of violations, requiring investigations, and providing for enforcement against vehicle owners.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Zaun, Garrett, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 5: Kinney, Bisignano, Bolkcom, Boulton, and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2134 (SSB 3023), a bill for an act relating to the salary of the state court administrator.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

TRANSPORTATION

Bill Title: SENATE FILE 2139 (SSB 3001), a bill for an act relating to wrecked or salvage vehicles with cosmetic damage.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 8: Brown, Dickey, Driscoll, Klimesh, Koelker, Rozenboom, Shipley, and Zumbach. Nays, 4: J. Smith, Bisignano, Giddens, and T. Taylor. Excused, 1: Lykam.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2140 (SSB 3049), a bill for an act relating to airport registration and site approval by the department of transportation.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Brown, Dickey, J. Smith, Bisignano, Driscoll, Giddens, Klimesh, Koelker, Rozenboom, Shipley, T. Taylor, and Zumbach. Nays, none. Excused, 1: Lykam.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JOURNAL OF THE SENATE

TWENTY-SECOND CALENDAR DAY
THIRTEENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, January 31, 2022

The Senate met in regular session at 1:03 p.m., President Chapman presiding.

Prayer was offered by the Honorable Ken Rozenboom, member of the Senate from Mahaska County, Oskaloosa, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Maren Rasmussen.

The Journal of Thursday, January 27, 2022, was approved.

BILLS REFERRED TO COMMITTEE

President Chapman announced that **Senate Files 2093** and **2120** were referred from the committee on **Commerce** to the committee on **State Government**; and **Senate File 2122** was referred from the committee on **Commerce** to the committee on **Ways and Means** under Senate Rule 38.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 1:09 p.m. until 9:00 a.m., Tuesday, February 1, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

CHIEF INFORMATION OFFICER

IowAccess Revolving Fund Report, pursuant to Iowa Code section 8B.33. Report received on January 31, 2022.

ECONOMIC DEVELOPMENT AUTHORITY

Iowa Commission on Volunteer Service Quarterly Report, pursuant to Iowa Code section 15H.2. Report received on January 28, 2022.

DEPARTMENT OF EDUCATION

Iowa Association of School Boards Annual Report, pursuant to Iowa Code section 279.38. Report received on January 31, 2022.

SAVE/SILO Report, pursuant to Iowa Code section 256.9. Report received on January 31, 2022.

IOWA PUBLIC INFORMATION BOARD

Annual Report, pursuant to Iowa Code section 23.6. Report received on January 28, 2022.

DEPARTMENT OF TRANSPORTATION

Midwest Regional Rail Passenger Initiative, pursuant to Iowa Code section 327.J.3. Report received on January 28, 2022.

OFFICE OF THE TREASURER OF STATE

Linked Investments for Tomorrow Report, pursuant to Iowa Code section 12.38. Report received on January 28, 2022.

REPORTS OF COMMITTEE MEETINGS

AGRICULTURE AND NATURAL RESOURCES APPROPRIATIONS SUBCOMMITTEE

Convened: Monday, January 31, 2022, 11:00 a.m.

Members Present: Rozenboom, Chair; Shipley, Vice Chair; Mathis, Ranking Member; Kinney, and Williams.

Members Absent: None.

Committee Business: Director Kayla Lyon, Iowa Department of Natural Resources presented.

Adjourned: 11:55 a.m.

HEALTH AND HUMAN SERVICES APPROPRIATIONS SUBCOMMITTEE

Convened: Monday, January 31, 2022, 12:00 p.m.

Members Present: Costello, Chair; Edler, Vice Chair; Ragan, Ranking Member; Klimesh, and Trone Garriott.

Members Absent: None.

Committee Business: Zoom presentations by Mark Mendoza, Pear Therapeutics and John McNamara, Texas Pregnancy Care Network.

Adjourned: 1:00 p.m.

INTRODUCTION OF RESOLUTIONS

Senate Joint Resolution 2002, by Green, Zaun, Lofgren, and Guth, a joint resolution calling for an Article V convention in order to propose amendments to the Constitution of the United States that impose fiscal restraints, limit the power and jurisdiction of the federal government, and impose term limits on federal officials and members of Congress.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate Joint Resolution 2003, by Bolkcom, Petersen, Trone Garriott, Dotzler, Lykam, Jochum, Wahls, Celsi, and J. Smith, a joint resolution proposing an amendment to the Constitution of the State of Iowa relating to cannabis.

Read first time under Rule 28 and referred to committee on **Judiciary**.

INTRODUCTION OF BILLS

Senate File 2141, by committee on Transportation, a bill for an act relating to the use of an electronic device in a voice-activated or hands-free mode while driving, providing penalties, and making penalties applicable.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2142, by Klimesh, a bill for an act relating to deer hunting licenses available to nonresident hunters.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

Senate File 2143, by Schultz, a bill for an act relating to the carrying, transportation, or possession of firearms on real property comprising a person's place of employment.

Read first time under Rule 28 and referred to committee on **Labor and Business Relations**.

Senate File 2144, by Shipley, a bill for an act relating to flashing lights equipped on motor vehicles, and making penalties applicable.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2145, by Schultz, a bill for an act relating to the conveyance of guns in or on vehicles on public highways.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

Senate File 2146, by Mathis, a bill for an act relating to a study regarding reimbursement for administrative days.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2147, by Ragan and Mathis, a bill for an act relating to the validation of Medicaid managed care organization encounter data, providing an appropriation, and providing an effective date.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2148, by Zaun, a bill for an act regarding donated leave by state employees.

Read first time under Rule 28 and referred to committee on **Labor and Business Relations**.

Senate File 2149, by Quirmbach, a bill for an act relating to funding amounts for the statewide preschool program and including effective date and applicability provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2150, by J. Smith, Giddens, Trone Garriott, Ragan, Kinney, Wahls, and Celsi, a bill for an act relating to the college student aid commission, including vocational-technical tuition grants and skilled workforce shortage tuition grants, and making appropriations.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2151, by J. Smith, Kinney, Giddens, Wahls, Trone Garriott, Ragan, and Celsi, a bill for an act relating to the determination of funding for the statewide preschool program for four-year-old children and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2152, by Klimesh, a bill for an act relating to the inventory of state lands managed or owned by the department of natural resources.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

Senate File 2153, by Klimesh, a bill for an act authorizing a local emergency management commission to assume the duties of a joint 911 service board.

Read first time under Rule 28 and referred to committee on **Local Government**.

Senate File 2154, by Bolkcom, a bill for an act relating to science instruction and the Iowa core content standards applicable to certain specified students of school districts and accredited nonpublic schools.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2155, by Bolkcom, a bill for an act relating to additional penalties for certain violations against bicyclists causing serious injury or death committed by a person operating a motor vehicle.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2156, by Guth, a bill for an act relating to information to be provided, recorded, and reported by health care providers relative to certain vaccinations, and providing penalties.

Read first time under Rule 28 and referred to committee on **Local Government**.

STUDY BILLS RECEIVED

SSB 3078 Veterans Affairs

Appropriating moneys to the Iowa finance authority for the home ownership assistance program for eligible service members.

SSB 3079 Education

Relating to the rights of parents and guardians of students enrolled in school districts.

SSB 3080 Education

Relating to education, including establishing a student first scholarship program and a student first enrollment supplement fund, requiring the boards of directors of school districts to publish certain specified information, modifying provisions related to required social studies instruction, open enrollment, teacher librarian endorsements, competent private instruction, and special education, making appropriations, providing penalties, and including effective date, applicability, and retroactive applicability provisions.

SSB 3081 Education

Relating to the district-to-community college sharing or concurrent enrollment program and the community colleges through which school districts may offer courses.

SSB 3082 Education

Relating to Iowa tuition grants and the definition of accredited private institutions.

SSB 3083 Judiciary

Relating to corporations by providing for the use of electronic mail and other electronic transmissions, and shareholders' lists.

SSB 3084 Agriculture

Relating to renewable fuels, including ethanol blended gasoline and biodiesel blended fuel used to power internal combustion engines, by providing for compliance requirements and promotional initiatives that relate to establishing classifications and standards for renewable fuels, advertising and selling renewable fuels, storing and dispensing renewable fuels, using state motor vehicles powered by renewable fuels, and taxes, tax credits, and tax refunds relating to renewable fuels; providing penalties and making penalties applicable; and including effective date and retroactive applicability provisions.

SSB 3085 Education

Authorizing the boards of directors of school districts to engage certain specified individuals to serve without compensation as substitute teachers.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2103

JUDICIARY: J. Taylor, Chair; Johnson and Kinney

Senate File 2109

JUDICIARY: J. Taylor, Chair; Kinney and Rowley

Senate File 2114

TRANSPORTATION: Brown, Chair; Bisignano and Zumbach

Senate File 2116

HUMAN RESOURCES: Costello, Chair; Bolkcom and Johnson

Senate File 2117

HUMAN RESOURCES: Edler, Chair; Bolkcom and Costello

Senate File 2118

HUMAN RESOURCES: Edler, Chair; Costello and Jochum

Senate File 2124

HUMAN RESOURCES: Costello, Chair; Johnson and Trone Garriott

Senate File 2125

TRANSPORTATION: Zumbach, Chair; Rozenboom and T. Taylor

Senate File 2126

TRANSPORTATION: Zumbach, Chair; Rozenboom and T. Taylor

Senate File 2136

EDUCATION: J. Taylor, Chair; Johnson and Quirmbach

Senate File 2137

COMMERCE: Brown, Chair; Giddens and Johnson

Senate File 2144

TRANSPORTATION: Shipley, Chair; Driscoll and Lykam

House File 456
(Reassigned)

JUDICIARY: Reichman, Chair; Boulton and Johnson

SSB 3078

VETERANS AFFAIRS: Lofgren, Chair; Costello and Ragan

SSB 3079

EDUCATION: Sinclair, Chair; Quirmbach and J. Taylor

SSB 3080

EDUCATION: Sinclair, Chair; Celsi and Rozenboom

SSB 3081

EDUCATION: Johnson, Chair; Giddens and J. Taylor

SSB 3082

EDUCATION: Sinclair, Chair; Kraayenbrink and Quirmbach

SSB 3083

JUDICIARY: Zaun, Chair; Boulton and Rowley

SSB 3084

AGRICULTURE: Zumbach, Chair; Costello and Ragan

SSB 3085

EDUCATION: Sinclair, Chair; Carlin and J. Smith

FINAL COMMITTEE REPORT OF BILL ACTION

TRANSPORTATION

Bill Title: *SENATE FILE 2141 (formerly SF 330), a bill for an act relating to the use of an electronic device in a voice-activated or hands-free mode while driving, providing penalties, and making penalties applicable.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Brown, Dickey, J. Smith, Bisignano, Driscoll, Giddens, Klimesh, Koelker, Rozenboom, Shipley, T. Taylor, and Zumbach. Nays, none. Excused, 1: Lykam.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Transportation Committee on Senate File 2141, and they were attached to the committee report.

JOURNAL OF THE SENATE

TWENTY-THIRD CALENDAR DAY
FOURTEENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, February 1, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Jason Schultz, member of the Senate from Crawford County, Schleswig, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Cecilia Redman.

The Journal of Monday, January 31, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:12 a.m. until 9:00 a.m., Wednesday, February 2, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

ECONOMIC DEVELOPMENT AUTHORITY

Annual Report, pursuant to Iowa Code section 15.107B. Report received on February 1, 2022.

DEPARTMENT OF EDUCATION

Commission on Educator Leadership and Compensation Report, pursuant to Iowa Code section 284.15. Report received on February 1, 2022.

DEPARTMENT OF HUMAN RIGHTS

Iowa Collaboration for Youth Development Council Annual Report, pursuant to Iowa Code section 216A.140. Report received on February 1, 2022.

DEPARTMENT OF HUMAN SERVICES

Annual Report, pursuant to Iowa Code section 217.21. Report received on February 1, 2022.

REPORTS OF COMMITTEE MEETINGS

HUMAN RESOURCES

Convened: Tuesday, February 1, 2022, 10:00 a.m.

Members Present: Edler, Chair; Costello, Vice Chair; Mathis, Ranking Member; Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott.

Members Absent: None.

Committee Business: Consideration and passage of the following bills: SSB 3066, SSB 3043, and SSB 3077.

Adjourned: 10:30 a.m.

NATURAL RESOURCES AND ENVIRONMENT

Convened: Tuesday, February 1, 2022, 2:00 p.m.

Members Present: Sweeney, Chair; Driscoll, Vice Chair; Trone Garriott, Ranking Member; Boulton, Celsi, Cournoyer, Green, Hogg, Lykam, Rozenboom, Shipley, and J. Taylor.

Members Absent: Zumbach (excused).

Committee Business: SF 2011 SSB 3040 SSB 3041.

Adjourned: 2:30 p.m.

VETERANS AFFAIRS

Convened: Tuesday, February 1, 2022, 1:00 p.m.

Members Present: Lofgren, Chair; Reichman, Vice Chair; Giddens, Ranking Member; Carlin, Costello, Dawson, Dotzler, Edler, Green, Mathis, and Ragan.

Members Absent: None.

Committee Business: Committee work and presentations.

Adjourned: 2:00 p.m.

INTRODUCTION OF BILLS

Senate File 2157, by Brown, a bill for an act relating to medical cannabidiol by providing deductions from the individual and corporate income taxes for expenses incurred by medical cannabidiol manufacturers and dispensaries, and exempting the sale of medical cannabidiol products from the sales and use tax, and including retroactive applicability provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2158, by Carlin, a bill for an act relating to the printing and counting of absentee ballots by requiring a watermark, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2159, by Bolkcom, a bill for an act relating to application of specific penalties to an assault on a social worker under certain circumstances.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2160, by J. Taylor, a bill for an act relating to certain actions of utility companies and the Iowa utilities board and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2161, by Kinney, a bill for an act establishing a return to work incentive program, making an appropriation, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Labor and Business Relations**.

Senate File 2162, by Dickey, a bill for an act relating to the authority of a law enforcement officer over local businesses operating during an annual recreational bicycle ride across the state.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2163, by Mathis, a bill for an act relating to a mental health service providers competitive grant program for school districts and area education agencies, making an appropriation, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2164, by Sweeney, a bill for an act relating to insurance coverage for diagnostic breast cancer examinations, and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2165, by Sweeney, a bill for an act relating to insurance coverage for prescription drugs used in the treatment of metastatic cancer and associated conditions, and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2166, by Kraayenbrink, a bill for an act concerning compensation and benefits limits, relating to the earnings limitation for retirees under the Iowa public employees' retirement system and compensation limits for school corporation board members.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2167, by Quirmbach, Trone Garriott, Petersen, Bisignano, Dotzler, Giddens, J. Smith, Jochum, Boulton, Mathis, Ragan, Wahls, and Bolkcom, a bill for an act relating to commercial and industrial property tax replacement payments and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2168, by committee on Human Resources, a bill for an act relating to violations by a health care facility.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2169, by Sweeney, a bill for an act relating to assisted reproduction fraud, and providing penalties.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2170, by J. Taylor, Schultz, Garrett, Williams, Green, Johnson, and Costello, a bill for an act prohibiting the burdening of a person's free exercise of religion.

Read first time under Rule 28 and referred to committee on **Local Government**.

Senate File 2171, by committee on Human Resources, a bill for an act relating to programs and services under the purview of the department of human services including child care assistance, child and family services, foster care, adoption, and the dependent adult abuse information registry.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2172, by Cournoyer, a bill for an act relating to alcoholic beverage control concerning the sale of beer and liquor for resale.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2173, by Kinney, a bill for an act relating to the use of a simulated firearm or simulated explosive when committing a robbery, the criminal offense of intimidation, or other crimes, and providing penalties.

Read first time under Rule 28 and referred to committee on **Judiciary**.

STUDY BILLS RECEIVED

SSB 3086 Judiciary

Relating to excuse from jury service for persons at least seventy-two years of age.

SSB 3087 Local Government

Providing for the removal of municipal utility board members under specified circumstances and including effective date provisions.

SSB 3088 Commerce

Relating to scrap metal transactions, including by regulating the sale of catalytic converters to scrap metal dealers and providing for recordkeeping requirements, providing penalties, and making penalties applicable.

SSB 3089 State Government

Relating to restrictions regarding companies boycotting Israel.

SSB 3090 Education

Relating to public school funding by establishing the state percent of growth and the categorical state percent of growth for the budget year beginning July 1, 2022, modifying provisions relating to the regular program state cost per pupil, modifying provisions relating to the property tax replacement payment and the transportation equity payments, and including effective date provisions.

SSB 3091 Judiciary

Relating to the uniform commercial code by providing for controllable electronic records.

SSB 3092 Appropriations

Relating to the prohibition of specific public fund expenditures and the certification of human trafficking prevention training of certain lodging providers, and including effective date provisions.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2122

WAYS AND MEANS: Dawson, Chair; Dotzler and Schultz

Senate File 2135

JUDICIARY: Shipley, Chair; Kinney and Rowley

Senate File 2138

NATURAL RESOURCES AND ENVIRONMENT: Cournoyer, Chair; Boulton and Shipley

Senate File 2142

NATURAL RESOURCES AND ENVIRONMENT: Rozenboom, Chair; Driscoll and Lykam

Senate File 2143

LABOR AND BUSINESS RELATIONS: Schultz, Chair; Dickey and Dotzler

Senate File 2145

NATURAL RESOURCES AND ENVIRONMENT: Cournoyer, Chair; Celsi and J. Taylor

Senate File 2146

HUMAN RESOURCES: Garrett, Chair; Johnson and Mathis

Senate File 2147

HUMAN RESOURCES: Garrett, Chair; Johnson and Ragan

Senate File 2149

EDUCATION: Sinclair, Chair; Quirmbach and Rozenboom

Senate File 2150

EDUCATION: Sinclair, Chair; Giddens and Rozenboom

Senate File 2151

EDUCATION: Sinclair, Chair; Rozenboom and J. Smith

Senate File 2152

NATURAL RESOURCES AND ENVIRONMENT: Shipley, Chair; Hogg and J. Taylor

Senate File 2153

LOCAL GOVERNMENT: Klimesh, Chair; Lofgren and T. Taylor

Senate File 2154

EDUCATION: Sinclair, Chair; Rozenboom and Trone Garriott

Senate File 2156

LOCAL GOVERNMENT: Guth, Chair; Lofgren and Quirmbach

Senate File 2164

COMMERCE: Schultz, Chair; Mathis and Williams

Senate File 2165

COMMERCE: Schultz, Chair; Mathis and Williams

SSB 3086

JUDICIARY: Shipley, Chair; Bolkcom and Rowley

SSB 3087

LOCAL GOVERNMENT: Garrett, Chair; Hogg and Williams

SSB 3088

COMMERCE: Brown, Chair; Koelker and Lykam

SSB 3089

STATE GOVERNMENT: Guth, Chair; Boulton and R. Smith

SSB 3090

EDUCATION: Sinclair, Chair; Cournoyer and Quirmbach

SSB 3091

JUDICIARY: J. Taylor, Chair; Boulton and Rowley

SSB 3092

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom and Lofgren

FINAL COMMITTEE REPORTS OF BILL ACTION

HUMAN RESOURCES

Bill Title: SENATE FILE 2168 (SSB 3043), a bill for an act relating to violations by a health care facility.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2171 (SSB 3066), a bill for an act relating to programs and services under the purview of the department of human services including child care assistance, child and family services, foster care, adoption, and the dependent adult abuse information registry.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

NATURAL RESOURCES AND ENVIRONMENT

Bill Title: SENATE FILE 2011, a bill for an act relating to the purchasing of a youth deer hunting license and tag.

Recommendation: DO PASS.

Final Vote: Yeas, 12: Sweeney, Driscoll, Trone Garriott, Boulton, Celsi, Cournoyer, Green, Hogg, Lykam, Rozenboom, Shipley, and J. Taylor. Nays, none. Excused, 1: Zumbach.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

APPOINTED POSITIONS

February 1, 2022

Mr. W. Charles Smithson
Secretary of the Senate
State Capitol Building
LOCAL

Dear Mr. Smithson:

Enclosed please find a list of all of the appointment positions requiring gubernatorial action pursuant to Iowa Code section 2.32(2).
If you have any questions, please contact my Director of Boards and Commissions, Megan Hall, via email: megan.hall@governor.iowa.gov.

Sincerely,



Governor Kim Reynolds

BY THE GOVERNOR

DIRECTORS	NUMBER OF POSITIONS
PAROLE, BOARD OF (CHAIR)	1
ALCOHOLIC BEVERAGES DIVISION	1

OFFICE OF THE CHIEF INFORMATION OFFICER	1
PUBLIC EMPLOYMENT RELATIONS BOARD (CHAIR AND MEMBER)	1
IOWA DEPARTMENT OF PUBLIC HEALTH	1
DEPARTMENT OF VETERANS AFFAIRS	1
DEPARTMENT OF MANAGEMENT	1

BOARD	NUMBER OF POSITIONS
ACCOUNTANCY EXAMINING BOARD	3
AFRICAN AMERICANS, COMMISSION ON THE STATUS OF	3
AGRICULTURAL DEVELOPMENT BOARD	1
ALCOHOLIC BEVERAGES COMMISSION	1
ARCHITECTURAL EXAMINING BOARD	2
ASIAN AND PACIFIC ISLANDER AFFAIRS, COMMISSION OF	3
ATHLETIC TRAINING, BOARD OF	3
AUTISM COUNCIL, IOWA	6
BARBERING, BOARD OF	1
BEHAVIORAL SCIENCE, BOARD OF	7
BLIND, COMMISSION FOR THE	1
BOILER AND PRESSURE VESSEL BOARD	7
CHILD ADVOCACY BOARD	5
CHILDREN'S BEHAVIORAL HEALTH SYSTEM STATE BOARD	5
CHIROPRACTIC, BOARD OF	1
CITY DEVELOPMENT BOARD	2

COMMUNITY ACTION AGENCIES, COMMISSION ON	5
CORRECTIONS, BOARD OF	1
COSMETOLOGY ARTS AND SCIENCES, BOARD OF	2
COUNTY FINANCE COMMITTEE	1
CREDIT UNION REVIEW BOARD	3
DEAF SERVICES, COMMISSION OF	2
DENTISTRY, BOARD OF	3
DIETETICS, BOARD OF	3
DRUG POLICY ADVISORY COUNCIL, IOWA	2
EARLY CHILDHOOD IOWA STATE BOARD	5
ECONOMIC DEVELOPMENT AUTHORITY	4
EDUCATION, STATE BOARD OF	3
EDUCATIONAL EXAMINERS, STATE BOARD OF	2
ELECTRICAL EXAMINING BOARD	5
ELEVATOR SAFETY BOARD	6
EMPLOYMENT APPEAL BOARD	1
ENGINEERING AND LAND SURVEYING EXAMINING BOARD	2
ENHANCE IOWA BOARD	4
ETHICS AND CAMPAIGN DISCLOSURE BOARD, IOWA	2
GRAIN FUND INDEMNITY BOARD	2
GREAT PLACES ADVISORY BOARD, IOWA	5
HEALTHY AND WELL KIDS IN IOWA (HAWK-I) BOARD	2
HEARING AID SPECIALISTS, BOARD OF	4

HIGHER EDUCATION LOAN AUTHORITY, IOWA 1

INTERIOR DESIGN EXAMINING BOARD 2

IPERS, INVESTMENT BOARD OF THE 1

JUDICIAL NOMINATING COMMISSION, STATE 3

JUSTICE ADVISORY BOARD 3

LANDSCAPE ARCHITECTURAL EXAMINING BOARD 4

LATINO AFFAIRS COMMISSION 4

LAW ENFORCEMENT ACADEMY COUNCIL, IOWA 4

LOTTERY AUTHORITY BOARD OF DIRECTORS, IOWA 2

MASSAGE THERAPY, BOARD OF 4

MEDICINE, BOARD OF 5

MENTAL HEALTH AND DISABILITY SERVICES COMMISSION 9

MORTUARY SCIENCE, BOARD OF 2

NATIVE AMERICAN AFFAIRS, COMMISSION OF 4

NURSING HOME ADMINISTRATORS, BOARD OF 5

NURSING, BOARD OF 4

OPTOMETRY, BOARD OF 3

PAROLE, BOARD OF 2

PEACE OFFICERS RETIREMENT ACCIDENT AND DISABILITY SYSTEMS TRUSTEE 1

PERSONS WITH DISABILITIES, COMMISSION OF 4

PHARMACY, BOARD OF 4

PHYSICAL AND OCCUPATIONAL THERAPY, BOARD OF 3

PHYSICIAN ASSISTANTS, BOARD OF 5

PLUMBING AND MECHANICAL SYSTEMS BOARD 7

PODIATRY, BOARD OF 3

PSYCHOLOGY, BOARD OF 3

PUBLIC EMPLOYMENT RELATIONS BOARD 1

PUBLIC INFORMATION BOARD, IOWA 6

RACING AND GAMING COMMISSION, STATE 1
REAL ESTATE APPRAISER EXAMINING BOARD 3

REAL ESTATE COMMISSION 2

RESPIRATORY CARE AND POLYSOMNOGRAPHY, BOARD OF 3

SCHOOL BUDGET REVIEW COMMITTEE 2

SIGN LANGUAGE INTERPRETERS AND TRANSLITERATORS, BOARD OF 5

SOCIAL WORK, BOARD OF 3

SOIL CONSERVATION AND WATER QUALITY COMMITTEE, STATE 1

SPEECH PATHOLOGY AND AUDIOLOGY, BOARD OF 3

STATUS OF WOMEN, COMMISSION ON THE 4

TELECOMMUNICATIONS AND TECHNOLOGY COMMISSION, IOWA 1

TOBACCO USE PREVENTION AND CONTROL, COMMISSION ON 3

TRANSPORTATION COMMISSION, STATE 2

VETERANS AFFAIRS, DEPARTMENT OF	4
VETERINARY MEDICINE, IOWA BOARD OF	1
WORKFORCE DEVELOPMENT BOARD, IOWA	7

BY THE COMMISSION

DIRECTOR	NUMBER OF POSITIONS
ADMINISTRATOR OF THE STATE RACING AND GAMING COMMISSION	1

REPORT OF THE SECRETARY OF THE SENATE

February 1, 2022

The Honorable Kim Reynolds
Governor
State Capitol Building
Local Mail

Dear Governor Reynolds:

Thank you for submitting the list of appointment positions requiring gubernatorial action, pursuant to Iowa Code section 2.32(2). This letter is the official acknowledgement, pursuant to the same section, of my receipt of your timely submission.

Sincerely,

W. Charles Smithson
Secretary of the Senate

JOURNAL OF THE SENATE

TWENTY-FOURTH CALENDAR DAY
FIFTEENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, February 2, 2022

The Senate met in regular session at 9:05 a.m., President Pro Tempore Zaun presiding.

Prayer was offered by the Honorable Jim Carlin, member of the Senate from Woodbury County, Sioux City, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Grace Tollefson.

The Journal of Tuesday, February 1, 2022, was approved.

ADJOURNMENT

On motion of Senator Cournoyer, the Senate adjourned at 9:12 a.m. until 9:00 a.m., Thursday, February 3, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

BOARD OF PHARMACY

Iowa Prescription Monitoring Program Report, pursuant to Iowa Code section 124.554. Report received on February 1, 2022.

DEPARTMENT OF TRANSPORTATION

Department of Transportation Recycling Report, pursuant to Iowa Code section 307.21. Report received on February 2, 2022.

REPORTS OF COMMITTEE MEETINGS

JUDICIARY

Convened: Tuesday, February 1, 2022, 3:00 p.m.

Members Present: Zaun, Chair; Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: None.

Committee Business: SF 339, SSB 3010, SSB 3027, SSB 3011, SSB 3015.

Adjourned: 4:10 p.m.

LABOR AND BUSINESS RELATIONS

Convened: Wednesday, January 26, 2022, 11:00 a.m.

Members Present: Dickey, Chair; Green, Vice Chair; Boulton, Ranking Member; Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor.

Members Absent: None.

Committee Business: SSB 3039 SF 493.

Adjourned: 11:30 a.m.

ALSO:

Convened: Wednesday, February 2, 2022, 10:15 a.m.

Members Present: Dickey, Chair; Green, Vice Chair; Boulton, Ranking Member; Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor.

Members Absent: None.

Committee Business: SSB 3072 with amendment SSB 3072.2803.

Adjourned: 10:20 a.m.

TRANSPORTATION

Convened: Wednesday, February 2, 2022, 2:00 p.m.

Members Present: Brown, Chair; Dickey, Vice Chair; J. Smith, Ranking Member; Bisignano, Driscoll, Giddens, Klimesh, Koelker, Lykam, Rozenboom, Shipley, and T. Taylor.

Members Absent: Zumbach (excused).

Committee Business: Presentation from Iowa Department of Transportation.

Adjourned: 2:50 p.m.

INTRODUCTION OF BILLS

Senate File 2174, by committee on Human Resources, a bill for an act relating to child welfare, including provisions relating to foster care and the child advocacy board.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2175, by committee on Veterans Affairs, a bill for an act making an appropriation to support efforts relating to the U.S.S. Iowa and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2176, by committee on Natural Resources and Environment, a bill for an act relating to programs within the department of natural resources, including specifications of procedures relating to solid waste disposal and the repeal of the state interagency Missouri river authority and the mercury-free recycling Act.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2177, by committee on Natural Resources and Environment, a bill for an act relating to matters under the purview of the department of natural resources, including administration, dams and spillways, personal flotation devices, and operating a motorboat or sailboat while intoxicated, providing penalties, and making penalties applicable.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2178, by committee on Judiciary, a bill for an act relating to the modification and extension of a no-contact order.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2179, by committee on Judiciary, a bill for an act relating to penalties for the manufacture, delivery, or possession with the intent to manufacture or deliver heroin.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2180, by Kinney, a bill for an act relating to driver's licenses and nonoperator identification cards for victims of domestic abuse.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2181, by Dawson and Costello, a bill for an act relating to the enforcement of the lake Manawa and Waubonsie state park user fee pilot programs, and including effective date and applicability provisions.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

Senate File 2182, by Dawson and Schultz, a bill for an act relating to taking feral hogs from an aircraft.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

Senate File 2183, by committee on Judiciary, a bill for an act relating to antisemitism in the state of Iowa.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2184, by Quirmbach, Trone Garriott, Bisignano, Dotzler, Giddens, J. Smith, Jochum, Boulton, Mathis, Ragan, Wahls, and Bolkcom, a bill for an act creating the community law enforcement enhancement fund and providing an appropriation.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2185, by committee on Judiciary, a bill for an act relating to documents that may be filed pro se by a defendant represented by counsel or an applicant for postconviction relief represented by counsel.

Read first time under Rule 28 and **placed on calendar**.

STUDY BILLS RECEIVED

SSB 3093 Commerce

Relating to matters under the purview of the state, including unemployment benefits and civil torts.

SSB 3094 Committee on Labor and Business Relations

Relating to registration and bonding requirements for home improvement contractors, providing penalties, and including applicability provisions.

SUBCOMMITTEE ASSIGNMENTS

Senate Joint Resolution 2002

STATE GOVERNMENT: Guth, Chair; Celsi and R. Smith

Senate Joint Resolution 2003

JUDICIARY: Zaun, Chair; Bolkcom and Dawson

Senate File 2093

STATE GOVERNMENT: Dawson, Chair; Bisignano and Schultz

Senate File 2120

STATE GOVERNMENT: Cournoyer, Chair; Giddens and Johnson

Senate File 2148

LABOR AND BUSINESS RELATIONS: Driscoll, Chair; Rowley and T. Taylor

Senate File 2155

TRANSPORTATION: Brown, Chair; Koelker and J. Smith

Senate File 2157

WAYS AND MEANS: Dawson, Chair; Bolkcom and Goodwin

Senate File 2158

STATE GOVERNMENT: R. Smith, Chair; Cournoyer and Jochum

Senate File 2159

JUDICIARY: Shipley, Chair; Bolkcom and J. Taylor

Senate File 2161

LABOR AND BUSINESS RELATIONS: Dickey, Chair; Boulton and Green

Senate File 2162

JUDICIARY: Schultz, Chair; Bolkcom and Sinclair

Senate File 2163

EDUCATION: Sinclair, Chair; Rozenboom and Trone Garriott

Senate File 2166

STATE GOVERNMENT: Goodwin, Chair; Boulton and Cournoyer

Senate File 2167

WAYS AND MEANS: Dawson, Chair; Goodwin and Quirmbach

Senate File 2170

LOCAL GOVERNMENT: Garrett, Chair; J. Smith and Williams

Senate File 2172

STATE GOVERNMENT: Cournoyer, Chair; Bisignano and Koelker

Senate File 2173

JUDICIARY: Shipley, Chair; Kinney and Rowley

SSB 3093

COMMERCE: Schultz, Chair; Brown and Petersen

SSB 3094

LABOR AND BUSINESS RELATIONS: Schultz, Chair; Jochum and Rowley

FINAL COMMITTEE REPORTS OF BILL ACTION

HUMAN RESOURCES

Bill Title: *SENATE FILE 2174 (SSB 3077), a bill for an act relating to child welfare, including provisions relating to foster care and the child advocacy board.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Human Resources Committee on Senate File 2174, and they were attached to the committee report.

JUDICIARY

Bill Title: SENATE FILE 339, a bill for an act relating to the employment of unauthorized aliens and providing penalties.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Zaun, Garrett, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 5: Kinney, Bisignano, Bolkcom, Boulton, and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2178 (SSB 3027), a bill for an act relating to the modification and extension of a no-contact order.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Zaun, Garrett, Kinney, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 1: Bisignano. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2179 (SSB 3011), a bill for an act relating to penalties for the manufacture, delivery, or possession with the intent to manufacture or deliver heroin.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Boulton, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 2: Bolkcom and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2183 (SSB 3010), a bill for an act relating to antisemitism in the state of Iowa.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2183, and they were attached to the committee report.

ALSO:

Bill Title: SENATE FILE 2185 (SSB 3015), a bill for an act relating to documents that may be filed pro se by a defendant represented by counsel or an applicant for postconviction relief represented by counsel.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

NATURAL RESOURCES AND ENVIRONMENT

Bill Title: SENATE FILE 2176 (SSB 3041), a bill for an act relating to programs within the department of natural resources, including specifications of procedures relating to solid waste disposal and the repeal of the state interagency Missouri river authority and the mercury-free recycling Act.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Sweeney, Driscoll, Trone Garriott, Boulton, Celsi, Cournoyer, Green, Hogg, Lykam, Rozenboom, Shipley, and J. Taylor. Nays, none. Excused, 1: Zumbach.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2177 (SSB 3040), a bill for an act relating to matters under the purview of the department of natural resources, including administration, dams and spillways, personal flotation devices, and operating a motorboat or sailboat while intoxicated, providing penalties, and making penalties applicable.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Sweeney, Driscoll, Trone Garriott, Boulton, Celsi, Cournoyer, Green, Hogg, Lykam, Rozenboom, Shipley, and J. Taylor. Nays, none. Excused, 1: Zumbach.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

STATE GOVERNMENT

Bill Title: SENATE JOINT RESOLUTION 15, a joint resolution proposing an amendment to the Constitution of the State of Iowa relating to the gubernatorial line of succession.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 409, a bill for an act relating to filing complaints with the Iowa public information board.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2022, a bill for an act relating to the practice of cosmetology and barbering in a home.

Recommendation: DO PASS.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

VETERANS AFFAIRS

Bill Title: SENATE FILE 2175 (formerly SF 2050), a bill for an act making an appropriation to support efforts relating to the U.S.S. Iowa and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Lofgren, Reichman, Giddens, Carlin, Costello, Dawson, Dotzler, Edler, Green, Mathis, and Ragan. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JOURNAL OF THE SENATE

TWENTY-FIFTH CALENDAR DAY
SIXTEENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, February 3, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Waylon Brown, member of the Senate from Mitchell County, Osage, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Ian Critelli.

The Journal of Wednesday, February 2, 2022, was approved.

BILL REFERRED TO COMMITTEE

President Chapman announced that **Senate File 2175** was referred from the Regular Calendar to the committee on **Appropriations** under Senate Rule 38.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:11 a.m. until 9:00 a.m., Monday, February 7, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF EDUCATION

Kindergarten Literacy Assessment (KLA) Report, pursuant to Iowa Code section 279.60. Report received February 3, 2022.

REPORTS OF COMMITTEE MEETINGS

COMMERCE

Convened: Wednesday, February 2, 2022, 1:00 p.m.

Members Present: Schultz, Chair; Koelker, Vice Chair; Giddens, Ranking Member; Bisignano, Brown, Goodwin, Johnson, Klimesh, Lykam, Mathis, Petersen, Quirmbach, Sinclair, R. Smith, and Williams.

Members Absent: Chapman and Nunn (both excused).

Committee Business: SSB 3030, SSB 3057, SSB 3058.

Adjourned: 2:00 p.m.

EDUCATION

Convened: Wednesday, February 2, 2022, 3:00 p.m.

Members Present: Sinclair, Chair; J. Taylor, Vice Chair; Quirmbach, Ranking Member; Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun.

Members Absent: None.

Committee Business: Discussed SF 168, SSB 3033, SSB 3067.

Adjourned: 3:45 p.m.

ALSO:

Convened: Thursday, February 3, 2022, 11:05 a.m.

Members Present: Sinclair, Chair; J. Taylor, Vice Chair; Quirmbach, Ranking Member; Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun.

Members Absent: None.

Committee Business: Discussed SSB 3079 and SSB 3090.

Adjourned: 12:05 p.m.

WAYS AND MEANS

Convened: Thursday, February 3, 2022, 10:00 a.m.

Members Present: Dawson, Chair; Goodwin, Vice Chair; Jochum, Ranking Member; Bolkcom, Brown, Dickey, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun.

Members Absent: None.

Committee Business: SSB 3074 – Dawson.

Adjourned: 11:05 a.m.

INTRODUCTION OF BILLS

Senate File 2186, by T. Taylor, a bill for an act relating to public employee collective bargaining concerning the designation of public safety officers and providing for retention and recertification elections.

Read first time under Rule 28 and referred to committee on **Labor and Business Relations**.

Senate File 2187, by Sweeney, a bill for an act relating to the information required on an application for a driver's license or nonoperator's identification card.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2188, by committee on Commerce, a bill for an act eliminating specific requirements relating to no smoking signs or symbols.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2189, by committee on Commerce, a bill for an act relating to public utility access to public road rights-of-way.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2190, by committee on Labor and Business Relations, a bill for an act relating to the use of child labor for certain bakery machine occupations utilizing pizza dough rollers.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2191, by committee on State Government, a bill for an act relating to authorized uses of interest earned on funds in the flood recovery fund and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2192, by committee on State Government, a bill for an act concerning state agency response to a proclamation of disaster emergency.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2193, by committee on State Government, a bill for an act relating to cognitive screenings by audiologists and speech pathologists.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2194, by committee on Commerce, a bill for an act relating to preneed sellers and purchase agreements for cemetery merchandise, funeral merchandise, and funeral services, providing penalties, and including applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2195, by committee on Education, a bill for an act establishing the mental health professional loan repayment program within the college student aid commission.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2196, by committee on State Government, a bill for an act relating to fees charged to employees by employers for copies of personnel files.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2197, by committee on Education, a bill for an act providing for the establishment of a task force related to special education support for students at nonpublic schools.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2198, by Chapman, a bill for an act relating to the prohibition of certain specified materials in schools and school libraries and providing penalties.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2199, by Trone Garriott, a bill for an act relating to funding sources for preschool programs and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2200, by Trone Garriott, a bill for an act relating to the composition of the boards of directors of school districts by including nonvoting student members.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2201, by Trone Garriott, a bill for an act relating to the statewide preschool program by modifying provisions relating to eligibility, funding, and compulsory attendance and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2202, by committee on Education, a bill for an act relating to education, including eligibility for grants under the teach Iowa scholar program, licenses issued by the board of educational examiners, and the use of revenues from the district management levy, and including applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2203, by Goodwin, a bill for an act relating to meetings of the boards of directors of school districts and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Education**.

STUDY BILLS RECEIVED

SSB 3095 Agriculture

Providing for programs and regulations administered and enforced by the department of agriculture and land stewardship, providing fees, providing penalties, and making penalties applicable.

SSB 3096 Labor and Business Relations

Relating to unemployment benefits and including effective date provisions.

SSB 3097 Labor and Business Relations

Concerning restrictions on workforce advertising by state agencies.

SSB 3098 Appropriations

Relating to transportation and other infrastructure-related appropriations to the department of transportation, including allocation and use of moneys from the road use tax fund and the primary road fund.

SSB 3099 Appropriations

Relating to and making appropriations involving certain state departments, agencies, funds, and certain other entities, providing for regulatory authority, and providing for other properly related matters.

SSB 3100 Transportation

Prohibiting parking meter fees if snow is blocking the parking meter.

SSB 3101 Transportation

Relating to motor vehicle body damage repairs performed under a motor vehicle insurance policy and deceptive acts or practices by motor vehicle insurers.

SSB 3102 Human Resources

Relating to juvenile justice including juvenile delinquency, child in need of assistance and family in need of assistance proceedings, juvenile justice reform, and juvenile court expenses and costs, and including effective date provisions.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2170
(Reassigned)

LOCAL GOVERNMENT: Garrett, Chair; Hogg and Williams

Senate File 2180

TRANSPORTATION: Zumbach, Chair; Rozenboom and J. Smith

Senate File 2181

NATURAL RESOURCES AND ENVIRONMENT: Shipley, Chair; Sweeney and Trone Garriott

Senate File 2182

NATURAL RESOURCES AND ENVIRONMENT: Shipley, Chair; Boulton and Cournoyer

SSB 3095

AGRICULTURE: Driscoll, Chair; Kinney and Shipley

SSB 3096

LABOR AND BUSINESS RELATIONS: Dickey, Chair; Boulton and Schultz

SSB 3097

LABOR AND BUSINESS RELATIONS: J. Taylor, Chair; Dickey and Dotzler

SSB 3098

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom and Lofgren

SSB 3099

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom and Lofgren

SSB 3100

TRANSPORTATION: Brown, Chair; Bisignano and Rozenboom

SSB 3101

TRANSPORTATION: Klimesh, Chair; Lykam and Rozenboom

SSB 3102

HUMAN RESOURCES: Edler, Chair; Costello and Ragan

FINAL COMMITTEE REPORTS OF BILL ACTION

COMMERCE

Bill Title: SENATE 2188 (SSB 3030), a bill for an act eliminating specific requirements relating to no smoking signs or symbols.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Schultz, Koelker, Giddens, Bisignano, Brown, Goodwin, Johnson, Klimesh, Lykam, Sinclair, R. Smith, and Williams. Nays, 3: Mathis, Petersen, and Quirmbach. Excused, 2: Chapman and Nunn.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE 2189 (SSB 3057), a bill for an act relating to public utility access to public road rights-of-way.

Recommendation: WITHOUT RECOMMENDATION.

Final Vote: Yeas, 15: Schultz, Koelker, Giddens, Bisignano, Brown, Goodwin, Johnson, Klimesh, Lykam, Mathis, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, 2: Chapman and Nunn.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *****SENATE 2194 (SSB 3058), a bill for an act relating to preneed sellers and purchase agreements for cemetery merchandise, funeral merchandise, and funeral services, providing penalties, and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Schultz, Koelker, Giddens, Bisignano, Brown, Goodwin, Johnson, Klimesh, Lykam, Mathis, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, 2: Chapman and Nunn.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Commerce Committee on Senate File 2194, and they were attached to the committee report.

EDUCATION

Bill Title: SENATE FILE 2195 (SSB 3003), a bill for an act establishing the mental health professional loan repayment program within the college student aid commission.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, Carlin.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2197 (formerly SF 168), a bill for an act providing for the establishment of a task force related to special education support for students at nonpublic schools.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, Carlin.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2197, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2202 (SSB 3067), a bill for an act relating to education, including eligibility for grants under the teach Iowa scholar program, licenses issued by the board of educational examiners, and the use of revenues from the district management levy, and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, Carlin.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2202, and they were attached to the committee report.

LABOR AND BUSINESS RELATIONS

Bill Title: *SENATE FILE 2190 (SSB 3072), a bill for an act relating to the use of child labor for certain bakery machine occupations utilizing pizza dough rollers.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Dickey, Green, Boulton, Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Labor and Business Relations Committee on Senate File 2190, and they were attached to the committee report.

STATE GOVERNMENT

Bill Title: SENATE FILE 2191 (SSB 3007), a bill for an act relating to authorized uses of interest earned on funds in the flood recovery fund and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2192 (SSB 3029), a bill for an act concerning state agency response to a proclamation of disaster emergency.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate File 2192, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2193 (formerly SF 2015), a bill for an act relating to cognitive screenings by audiologists and speech pathologists.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate File 2193, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2196 (formerly SF 355), a bill for an act relating to fees charged to employees by employers for copies of personnel files.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate File 2196, and they were attached to the committee report.

SPONSOR ADDED

Senate File 2184 — Kinney of Johnson

JOURNAL OF THE SENATE

TWENTY-NINTH CALENDAR DAY
SEVENTEENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, February 7, 2022

The Senate met in regular session at 9:00 a.m., President Chapman presiding.

Prayer and the Pledge of Allegiance were offered by the Honorable Jake Chapman, President of the Senate from Dallas County, Adel, Iowa.

The Journal of Thursday, February 3, 2022, was approved.

HOUSE MESSAGE RECEIVED AND CONSIDERED

The following message was received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on February 2, 2022, **passed** the following bill in which the concurrence of the Senate is asked:

House File 2128, a bill for an act relating to renewable fuels, including ethanol blended gasoline and biodiesel blended fuel used to power internal combustion engines, by providing for compliance requirements and promotional initiatives that relate to establishing classifications and standards for renewable fuels, advertising and selling renewable fuels, storing and dispensing renewable fuels, using state motor vehicles powered by renewable fuels, and taxes, tax credits, and tax refunds relating to renewable fuels; providing penalties and making penalties applicable; and including effective date and retroactive applicability provisions.

Read first time and referred to committee on **Agriculture**.

BILLS REFERRED TO COMMITTEE

President Chapman announced that **Senate File 2202** was referred from the Regular Calendar to the committee on **Ways and Means;** and **Senate File 2204** was referred from the Regular Calendar to the committee on **Appropriations** under Senate Rule 38.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:03 a.m. until 10:00 a.m., Tuesday, February 8, 2022.

APPENDIX

INTRODUCTION OF BILLS

Senate File 2204, by committee on Education, a bill for an act relating to public school funding by establishing the state percent of growth and the categorical state percent of growth for the budget year beginning July 1, 2022, modifying provisions relating to the regular program state cost per pupil, modifying provisions relating to the property tax replacement payment and the transportation equity payments, and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2205, by committee on Education, a bill for an act relating to the rights of students enrolled in school districts or charter schools and the rights of parents and guardians of those students.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2206, by committee on Ways and Means, a bill for an act relating to state and local revenue and finances by modifying sales and use taxes, individual and corporate income taxes, the franchise tax, the insurance premiums tax, the equipment tax, the automobile rental excise tax, the water service tax, and local option taxes, crediting moneys to the natural resources and outdoor recreation trust fund, and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

STUDY BILLS RECEIVED

SSB 3103 Education

Relating to supplemental aid and modified supplemental amounts for certain school districts relating to open enrollment and including effective date and applicability provisions.

SSB 3104 Education

Relating to entities supported in whole or in part by public moneys, including the sale of public bonds, the duties and responsibilities of school boards, school districts, the department of education, the board of educational examiners, and accredited nonpublic schools, and the membership of county conference boards.

SSB 3105 Human Resources

Relating to the application of the certificate of need process only to nursing facilities.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2010
(Reassigned)

HUMAN RESOURCES: Green, Chair; Bolkcom and Rowley

SSB 3103

EDUCATION: Goodwin, Chair; Rozenboom and Trone Garriott

SSB 3104

EDUCATION: Cournoyer, Chair; J. Smith and J. Taylor

SSB 3105

HUMAN RESOURCES: Edler, Chair; Costello and Jochum

FINAL COMMITTEE REPORTS OF BILL ACTION

EDUCATION

Bill Title: *SENATE FILE 2204 (SSB 3090), a bill for an act relating to public school funding by establishing the state percent of growth and the categorical state percent of growth for the budget year beginning July 1, 2022, modifying provisions relating to the regular program state cost per pupil, modifying provisions relating to the property tax replacement payment and the transportation equity payments, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Sinclair, J. Taylor, Carlin, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, Sweeney, and Zaun. Nays, 5: Quirmbach, Celsi, Giddens, J. Smith, and Trone Garriott. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2204, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2205 (SSB 3079), a bill for an act relating to the rights of students enrolled in school districts or charter schools and the rights of parents and guardians of those students.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2205, and they were attached to the committee report.

WAYS AND MEANS

Bill Title: *SENATE FILE 2206 (SSB 3074), a bill for an act relating to state and local revenue and finances by modifying sales and use taxes, individual and corporate income taxes, the franchise tax, the insurance premiums tax, the equipment tax, the automobile rental excise tax, the water service tax, and local option taxes, crediting moneys to the natural resources and outdoor recreation trust fund, and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Dawson, Goodwin, Brown, Dickey, Green, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and Zaun. Nays, 6: Jochum, Bolkcom, Dotzler, Petersen, Quirmbach, and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2206, and they were attached to the committee report.

JOURNAL OF THE SENATE

THIRTIETH CALENDAR DAY
EIGHTEENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, February 8, 2022

The Senate met in regular session at 10:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Annette Sweeney, member of the Senate from Hardin County, Alden, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Kennedy Haag.

The Journal of Monday, February 7, 2022, was approved.

ADJOURNMENT

On motion of Senator Sinclair, the Senate adjourned at 10:06 a.m. until 9:00 a.m., Wednesday, February 9, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

BOARD OF REGENTS

Quarterly Financial Report, pursuant to 2021 Iowa Acts, Chapter 170, section 10. Report received on February 7, 2022.

TREASURER OF STATE

Tobacco Settlement Authority Annual Report, pursuant to Iowa Code section 12E.15. Report received on February 7, 2022.

REPORTS OF COMMITTEE MEETINGS

APPROPRIATIONS

Convened: Tuesday, February 8, 2022, 11:00 a.m.

Members Present: Kraayenbrink, Chair; Lofgren, Vice Chair; Bolkcom, Ranking Member; Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Klimesh, Koelker, Mathis, Petersen, Ragan, Reichman, Rozenboom, J. Smith, T. Taylor, and Williams.

Members Absent: Johnson (excused).

Committee Business: SF 2204.

Adjourned: 11:45 a.m.

RULES AND ADMINISTRATION

Convened: Tuesday, February 8, 2022, 10:30 a.m.

Members Present: Whitver, Chair; Chapman, Vice Chair; Wahls, Ranking Member; Bolkcom, Jochum, Ragan, Sinclair, R. Smith, Zaun, and Zumbach.

Members Absent: Brown (excused).

Committee Business: Call to order Approval of Minutes Approval of Final Personnel Report for 89th GA Section 17 Amendments Assign Interim Governor Appointments Adjourn

Adjourned: 10:35 a.m.

TRANSPORTATION

Convened: Tuesday, February 8, 2022, 12:30 p.m.

Members Present: Brown, Chair; Dickey, Vice Chair; J. Smith, Ranking Member; Bisignano, Driscoll, Giddens, Klimesh, Koelker, Lykam, Rozenboom, Shipley, T. Taylor, and Zumbach.

Members Absent: None.

Committee Business: SF 2070 and SSB 3045

Adjourned: 12:50 p.m.

INTRODUCTION OF BILLS

Senate File 2207, by Nunn, a bill for an act prohibiting the state and political subdivisions of the state from expending public moneys for payment to persons responsible for ransomware attacks.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2208, by Nunn, a bill for an act relating to consumer data protection, making penalties applicable, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2209, by Reichman, a bill for an act relating to the practice of barbering and cosmetology arts and sciences and providing transition provisions.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2210, by Edler, a bill for an act relating to health care employment agencies, and providing penalties.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2211, by Cournoyer, a bill for an act relating to homeownership by creating the home loan program fund and the housing renewal program fund within the Iowa finance authority and amending qualifications for individual development accounts, and making appropriations and transfers.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2212, by Green, a bill for an act relating to chiropractic treatment for animals by persons licensed to practice chiropractic.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2213, by Koelker, a bill for an act relating to the delivery of restaurant food pursuant to a third-party food delivery service.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2214, by Edler, a bill for an act establishing a therapeutic foster care services study committee.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2215, by Dickey, a bill for an act relating to the administration of the habitat and public access program and establishing an annual payment under the program.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

Senate File 2216, by Edler, a bill for an act relating to the establishment of state intensive psychiatric units at the state mental health institutes.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2217, by Sweeney, a bill for an act relating to requirements for veteran special registration plates.

Read first time under Rule 28 and referred to committee on **Veterans Affairs**.

Senate File 2218, by Petersen, a bill for an act relating to sexual abuse evidence collection kits.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2219, by Dickey, a bill for an act relating to the transferability of free deer hunting licenses for use on farm units.

Read first time under Rule 28 and referred to committee on **Natural Resources and Environment**.

Senate File 2220, by Cournoyer, a bill for an act relating to sales of native distilled spirits by a native distillery.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2221, by Trone Garriott, a bill for an act relating to school district class size and student performance, making appropriations, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2222, by Edler, a bill for an act relating to the juvenile detention home fund.

Read first time under Rule 28 and referred to committee on **Appropriations**.

Senate File 2223, by Cournoyer, a bill for an act relating to disciplinary proceedings under civil service.

Read first time under Rule 28 and referred to committee on **Local Government**.

Senate File 2224, by Nunn, a bill for an act relating to utility service cost disclosures in connection with certain rental properties, providing civil penalties, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2225, by T. Taylor, a bill for an act relating to the possession of marijuana, and providing penalties.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2226, by Chapman, a bill for an act relating to criminal law including the disclosure of a defendant's privileged records in a criminal action, permanent no-contact orders, penalties for domestic abuse assault, limitations on criminal actions involving certain sexual offenses, criminal sentencing and corrections, parole and work release, crime victim rights, discovery in criminal actions, postconviction relief procedure, and certain reporting requirements, and making penalties applicable.

Read first time under Rule 28 and referred to committee on **Judiciary**.

Senate File 2227, by Koelker, a bill for an act relating to certain emergency services provided by a city.

Read first time under Rule 28 and referred to committee on **Local Government**.

STUDY BILLS RECEIVED

SSB 3106 Transportation

Relating to annual all-systems permits issued by the department of transportation for vehicles of excessive weight.

SSB 3107 Transportation

Relating to motor vehicle speed, including by increasing the speed limit on certain roads and increasing fines for excessive speed in road work zones, and making penalties applicable.

SSB 3108 Transportation

Relating to special minor's driver's licenses, including applications certified by the department of transportation and authorized use by students who receive competent private instruction or independent private instruction, and making penalties applicable.

SSB 3109 Judiciary

Relating to statutory corrections which may adjust language to reflect current practices, insert earlier omissions, delete redundancies and inaccuracies, delete temporary language, resolve inconsistencies and conflicts, update ongoing provisions, or remove ambiguities, and including retroactive applicability provisions.

SSB 3110 Judiciary

Relating to nonsubstantive Code corrections, and including retroactive applicability provisions.

SSB 3111 Judiciary

Relating to trusts, including optional notices to creditors when a will has been admitted to probate without administration and the trust is the beneficiary of the estate, trust accounting, specific powers of a trustee, and representation of holders of power and similar interests.

SSB 3112 Judiciary

Relating to the administration of medical cannabidiol by educational institutions and long-term care facilities.

SSB 3113 State Government

Relating to utility service cost disclosures in connection with certain rental properties, providing civil penalties, and including effective date provisions.

SSB 3114 State Government

Relating to professional licensing boards, including requirements related to the submission of official transcripts or diplomas.

SSB 3115 State Government

Relating to the designation of real estate teams and the display of real estate licenses.

SSB 3116 Human Resources

Increasing the amount of cash reserves mental health and disability services regions may have before affecting quarterly payment amounts and incentive fund eligibility.

SSB 3117 Local Government

Relating to required considerations by a county compensation board.

SSB 3118 Local Government

Relating to electronic meetings of governmental bodies.

SSB 3119 Local Government

Regarding electronic submission of bids for public improvement contracts.

SSB 3120 Local Government

Relating to certain deadlines relating to the informal review and protest of property assessments in counties declared to be a disaster area.

SSB 3121 Local Government

Relating to the authority of a county treasurer to postpone or cancel an annual tax sale.

SSB 3122 Human Resources

Relating to the newborn screening.

SSB 3123 State Government

Relating to various matters under the purview of the state, including city and county zoning, work-based learning, recruitment of health care professionals, regulations affecting veterans and military spouses, insurance producer temporary licenses, and the state building code, and including applicability provisions.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2169
(Reassigned)

HUMAN RESOURCES: Sweeney, Chair; Costello and Ragan

Senate File 2184

JUDICIARY: Johnson, Chair; Bisignano and J. Taylor

Senate File 2199

EDUCATION: Sinclair, Chair; Rozenboom and Trone Garriott

Senate File 2200

EDUCATION: Sinclair, Chair; Rozenboom and Trone Garriott

Senate File 2201

EDUCATION: Sinclair, Chair; Rozenboom and Trone Garriott

Senate File 2203

EDUCATION: Goodwin, Chair; J. Smith and Zaun

Senate File 2221

EDUCATION: Sinclair, Chair; Rozenboom and Trone Garriott

House File 2128

AGRICULTURE: Zumbach, Chair; Costello and Ragan

SSB 3028
(Reassigned)

STATE GOVERNMENT: Reichman, Chair; Bisignano and R. Smith

SSB 3106

TRANSPORTATION: Zumbach, Chair; Shipley and T. Taylor

SSB 3107

TRANSPORTATION: Klimesh, Chair; Bisignano and Koelker

SSB 3108

TRANSPORTATION: Brown, Chair; Koelker and J. Smith

SSB 3109

JUDICIARY: Zaun, Chair; Bolkcom and Dawson

SSB 3110

JUDICIARY: Zaun, Chair; Bolkcom and Dawson

SSB 3111

JUDICIARY: J. Taylor, Chair; Boulton and Reichman

SSB 3112

JUDICIARY: Zaun, Chair; Bolkcom and Sinclair

SSB 3113

STATE GOVERNMENT: R. Smith, Chair; Boulton and Johnson

SSB 3114

STATE GOVERNMENT: Koelker, Chair; Brown and Celsi

SSB 3115

STATE GOVERNMENT: R. Smith, Chair; Dawson and Giddens

SSB 3116

HUMAN RESOURCES: Edler, Chair; Bolkcom and Costello

SSB 3117

LOCAL GOVERNMENT: Shipley, Chair; Klimesh and J. Smith

SSB 3118

LOCAL GOVERNMENT: Williams, Chair; Lofgren and T. Taylor

SSB 3119

LOCAL GOVERNMENT: Klimesh, Chair; Driscoll and Quirmbach

SSB 3120

LOCAL GOVERNMENT: Lofgren, Chair; Guth and Hogg

SSB 3121

LOCAL GOVERNMENT: Driscoll, Chair; Garrett and T. Taylor

SSB 3122

HUMAN RESOURCES: Costello, Chair; Green and Trone Garriott

SSB 3123

STATE GOVERNMENT: Brown, Chair; Boulton and R. Smith

FINAL COMMITTEE REPORT OF BILL ACTION

APPROPRIATIONS

Bill Title: SENATE FILE 2204, a bill for an act relating to public school funding by establishing the state percent of growth and the categorical state percent of growth for the budget year beginning July 1, 2022, modifying provisions relating to the regular program state cost per pupil, modifying provisions relating to the property tax replacement payment and the transportation equity payments, and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 12: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 8: Bolkcom, Celsi, Dotzler, Mathis, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 1: Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

REPORT OF THE COMMITTEE ON RULES AND ADMINISTRATION

MR. PRESIDENT: Pursuant to Senate Concurrent Resolution 6, duly adopted during the 89th General Assembly, the Committee on Rules and Administration submits the following increases, reclassifications and the effective dates of Senate employees:

Assistant Secretary of of the Senate I	Michelle Bauer	Step 6 to Step 7 Effective 7/9
Administrative Services Officer II	Jennifer Beminio	Step 5 to Step 6 Effective 7/9
Research Analyst II	Bob Bird	Step 5 to Step 6 Effective 7/9
Confidential Secretary to Leader	Christina Bettini	Resigned Effective 10/28
Executive Secretary to Leader	Cassie Bond	Grade 24 Step 4 Effective 12/20
Research Analyst II	Laura Book	Grade 32 Step 2 Effective 11/12
Sr. Research Analyst	Josh Bronsink	Step 5 to Step 6 Effective 7/9
Sr. Finance Officer III	Lois Brownell	Effective 6/24 Resigned
Research Analyst I Research Analyst II	Jillian Carlson	Grade 29 Step 2 to Grade 32 Step 2 Effective 7/9
Admin. Assistant to President II	Jennifer Chapman	Resigned Effective 12/23
Administrative Services Officer III	Angela Cox	Step 5 to Step 6 Effective 7/9
Administrative Services Officer I	Samantha Dickson	Step 5 to Step 6 Effective 12/24
Sr. Research Analyst	Cathy Engel	Effective 6/10 Resigned
Research Analyst I	Zachary Engstrom	Grade 29 Step 1 Effective 10/25
Sr. Research Analyst	Sue Foecke	Step 7 to Step 8 Effective 7/9

Admin. Assistant to President II	Kimberly Gleason	Grade 32 Step 4 Effective 1/7
Sr. Admin Assistant to President I	Jake Heard	Step 3 to Step 4 Effective 7/9
Sr. Caucus Staff Director	Gannon Hendrick	Step 6 to Step 7 Effective 7/9
Research Analyst to Research Analyst I	Dylan Keller	Grade 27 Step 3 to Grade 29 Step 3
Research Analyst II	Jace Mikels	Step 6 to Step 8 Effective 7/9
Sergeant-at-Arms to Admin Services Assistant	Samuel Sampson	Grade 17 Step 3 to Grade 20 Step 1 Effective 11/22
Research Analyst	Megan Schlesky	Step 4 to Step 5 Effective 7/9
Administrative Services Officer III	Maureen Taylor	Step 5 to Step 6 Effective 7/9
Admin. Services Assistant to Admin. Services Officer	Caroline Warmuth	Grade 20 Step 1 to Grade 23 Step 1 Effective 7/9
Research Analyst I to Research Analyst II	Larissa Wurm-Skipworth	Grade 29 Step 6 to Grade 32 Step 4 Effective 7/9

JACK WHITVER, Chair

APPOINTMENTS

The following appointees were submitted to the Secretary of the Senate for Senate confirmation (all appointees are submitted as **members** unless otherwise specified):

BY THE GOVERNOR

	TERM
ADMINISTRATIVE SERVICES, DIRECTOR OF THE DEPARTMENT OF (Sec. 8A.102)	
Adam Steen, Pleasant Hill	01/11/2021 – Pleasure of the Governor
AFRICAN AMERICANS, COMMISSION ON THE STATUS OF (Sec. 216A.142)	
Wendell Talley, Dubuque	12/08/2021 – 04/30/2025

AGING, COMMISSION ON (Sec. 231.11)
Joel Wulf, Urbandale 12/08/2021 – 04/30/2025

ATHLETIC TRAINING, BOARD OF (Sec. 147.14(1)(R))
Erica Boer, Pella 09/09/2021 – 04/30/2024

BARBERING, BOARD OF (Sec. 147.14(1)(A))
Rebecca Brockmann, Hartley 06/30/2021 – 04/30/2024

BEHAVIORAL SCIENCE, BOARD OF (Sec. 147.14(1)(M))
Kevin Allemagne, Johnston 09/09/2021 – 04/30/2024
Cody Samec, Des Moines 09/01/2021 – 04/30/2024
Mary Wink, Urbandale 09/13/2021 – 04/30/2024

CHILDREN'S BEHAVIORAL HEALTH SYSTEM STATE BOARD (Sec. 225C.51(2))
Darci Alt, Newhall 06/28/2021 – 04/30/2025
Melanie Cleveringa, Sioux Center 06/28/2021 – 04/30/2025
Scott Hobart, Davenport 06/28/2021 – 04/30/2025
Carol Meade, Newhall 06/28/2021 – 04/30/2025

CHIROPRACTIC, BOARD OF (Sec. 147.14(1)(H))
Kirby Connell, Altoona 09/24/2021 – 04/30/2024

CIVIL RIGHTS COMMISSION, DIRECTOR OF THE IOWA STATE (Sec. 216.3(3))
Stanley Thompson, Clive 01/10/2022 – Pleasure of the Governor

CIVIL RIGHTS COMMISSION, IOWA STATE (Sec. 216.3(1))
Gina Battani, Grimes 09/07/2021 – 04/30/2023

COMMUNITY ACTION AGENCIES, COMMISSION ON (Sec. 216A.92A)
Nicole Conrad, Fort Dodge 09/07/2021 – 04/30/2024

CREDIT UNION REVIEW BOARD (Sec. 533.107(2))
Bobbi Terrell, Ottumwa 09/07/2021 – 04/30/2024

DEAF SERVICES, COMMISSION OF (Sec. 216A.113)
Brian Gongol, West Des Moines 08/18/2021 – 04/30/2025
Telina McKenna-Quintana, Waterloo 09/13/2021 – 04/30/2025

DIETETICS, BOARD OF (Sec. 147.14(1)(K))
Janet Rydberg, West Des Moines 08/11/2021 – 04/30/2024

DISABILITIES, COMMISSION OF PERSONS WITH (Sec. 216A.74)
Timothy Dowie, Urbandale 09/07/2021 – 04/30/2024
Adam Koch, Grimes 12/08/2021 – 04/30/2022

DRUG POLICY ADVISORY COUNCIL (Sec. 80E.2(2))
Brenna Bird, Dexter 09/07/2021 – 04/30/2025
Patrick Coughlin, Des Moines 09/09/2021 – 04/30/2023

ECONOMIC DEVELOPMENT AUTHORITY (Sec. 15.105(2))
Samuel Eathington, Johnston 12/08/2021 – 04/30/2025

EDUCATION, STATE BOARD OF (Sec. 256.3)
Rodney Bradley, Denison 07/01/2021 – 04/30/2024

EDUCATIONAL EXAMINERS, EXECUTIVE DIRECTOR OF THE BOARD OF (Sec. 272.5(2))
Michael Cavin, Urbandale 08/16/2021 – Pleasure of the Governor

EDUCATIONAL EXAMINERS, BOARD OF (Sec. 272.3(2))
Pamela Bleam, Rockwell City 08/26/2021 – 04/30/2025

ELECTRICAL EXAMINING BOARD (Sec. 103.2)
Sara Fasching, Ottumwa 06/28/2021 – 04/30/2022
Tim Gerald, Des Moines 08/12/2021 – 04/30/2024
Luke Maloney, Marion 06/28/2021 – 04/30/2024
Dan Wood, Des Moines 09/08/2021 – Pleasure of the Governor

ELEVATOR SAFETY BOARD (Sec. 89A.13(2))
Candace Biddle, Des Moines 08/12/2021 – 04/30/2022
Kelly Still, Des Moines 08/11/2021 – 04/30/2025

ENGINEERING AND LAND SURVEYING EXAMINING BOARD (Sec. 542B.3)
James Sweeney, Alden 09/24/2021 – 04/30/2023

FLOOD MITIGATION BOARD (Sec. 418.5(3))
Jodi Freet, Tipton 09/07/2021 – 04/30/2024

GREAT PLACES BOARD, IOWA (Sec. 303.3C(2)(B))
Aaron Burnett, Mason City 08/12/2021 – 04/30/2024
Danna Kehm, Council Bluffs 08/26/2021 – 04/30/2024
Angel Wallace, Sioux City 08/12/2021 – 04/30/2024

HEALTH FACILITIES COUNCIL (Sec. 135.62(2)(B))
Kelly Blackford, Marion 07/20/2021 – 04/30/2025

HEALTHY AND WELL KIDS IN IOWA (HAWK-I) BOARD (Sec. 514I.5(2))
Mary Scieszinski, West Des Moines 08/11/2021 – 04/30/2023
Michael Stopulos, Bettendorf 09/16/2021 – 04/30/2023

HUMAN SERVICES, COUNCIL ON (Sec. 217.2)
Eldora (Kay) Fisk, Mt. Vernon 08/18/2021 – 04/30/2023
Monika Jindal, Tiffin 08/18/2021 – 04/30/2025
Skylar Mayberry-Mayes, Des Moines 08/26/2021 – 04/30/2027
Samuel Wallace, Des Moines 08/26/2021 – 04/30/2027

IOWA PUBLIC EMPLOYEES' RETIREMENT SYSTEM, INVESTMENT BOARD OF THE (Sec. 97B.8A(4)(2)(D))
William Bemis, Waukee 09/07/2021 – 04/30/2027

JUDICIAL NOMINATING COMMISSION, STATE (Sec. 46.1)
William (Bill) Anderson II, Cherokee 09/03/2021 – 04/30/2026

JUSTICE ADVISORY BOARD (Sec. 216A.132(1)(A))
Maria Valdez Guerrero, West Des Moines 12/08/2021 – 04/30/2023

LATINO AFFAIRS, COMMISSION OF (Sec. 216A.12)
Jose Ayala, Williamsburg 09/27/2021 – 04/30/2022
Juan Himar Hernandez, Ottumwa 12/08/2021 – 04/30/2022

MEDICINE, BOARD OF (Sec. 147.14(1)(B))
Patricia Fasbender, Des Moines 08/11/2021 – 04/30/2024
Dalton Hayes, Des Moines 09/07/2021 – 04/30/2024
Chad Stadsvold, Sioux City 08/11/2021 – 04/30/2023

MENTAL HEALTH AND DISABILITY SERVICES COMMISSION (Sec. 225C.5)
Sarah Berndt, Mount Pleasant 07/01/2021 – 04/30/2024
Donald Kass, Remsen 07/01/2021 – 04/30/2024
June Klein-Bacon, Waterloo 07/01/2021 – 04/30/2023
Jeffrey Sorensen, Muscatine 07/01/2021 – 04/30/2023
Richard Whitaker, Jr., Davenport 07/01/2021 – 04/30/2024
Russell Wood, Hampton 07/01/2021 – 04/30/2024

NATIVE AMERICAN AFFAIRS, COMMISSION OF (Sec. 216A.162)
Taylor Beyal, Iowa City 12/08/2021 – 04/30/2025
Patrick Bigsby, Coralville 08/16/2021 – 04/30/2025
Calvin Harlan, Sioux City 08/31/2021 – 04/30/2023
T. JoAn Schlotman, Sioux City 08/26/2021 – 04/30/2025

NATURAL RESOURCE COMMISSION (Sec. 455A.5)
Tammi Kircher, Keokuk 07/01/2021 – 04/30/2027

NURSING, BOARD OF (Sec. 147.14(1)(C))
Ryan Stuck, Jewell 12/08/2021 – 04/30/2023

NURSING HOME ADMINISTRATORS, BOARD OF (Sec. 147.14(1)(W))
Karen Bentsen, Sioux Center 12/08/2021 – 04/30/2024
Cindy Dozark, Denison 08/18/2021 – 04/30/2024
Theresa Nielsen, Camanche 08/18/2021 – 04/30/2024
Billy Meyers, Lamoni 12/08/2021 – 04/30/2024

OPTOMETRY, BOARD OF (Sec. 147.14(1)(F))
Brian Kirschling, Iowa City 12/08/2021 – 04/30/2023

PAROLE, CHAIRPERSON OF THE BOARD OF (Sec. 904A.3)
Andrew Boettger, Des Moines 07/16/2021 – Pleasure of the Governor

PAROLE, BOARD OF (Sec. 904A.3)
Meredith Lamberti, Ankeny 11/01/2021 – 04/30/2022

PAROLE - ALTERNATE, BOARD OF (Sec. 904A.3)
Carolyn Schulte, Urbandale 09/09/2021 – 04/30/2025

PHARMACY, BOARD OF (Sec. 147.14(1)(E))
James Mennen, Coralville 06/29/2021 – 04/30/2024

PLUMBING AND MECHANICAL SYSTEMS BOARD (Sec. 105.3(3))
Curt Baker, Indianola 08/11/2021 – 04/30/2023
Toni Knight, Ankeny 08/18/2021 – 04/30/2024

PODIATRY, BOARD OF (Sec. 147.14(1)(S))
Andrew Steele, Waterloo 09/07/2021 – 04/30/2024
Kelsey Sukovaty Cain, Marshalltown 09/07/2021 – 04/30/2022

PUBLIC EMPLOYMENT RELATIONS BOARD, CHAIR & MEMBER OF THE (Sec. 20.5(1)(C))
Erik Helland, Des Moines 07/16/2021 – 04/30/2022

PUBLIC EMPLOYMENT RELATIONS BOARD (Sec. 20.5(1)(A))
Jane Dufoe, Center Point 10/01/2021 – 04/30/2024

RACING AND GAMING COMMISSION, STATE (Sec. 99D.5)
Amy Burkhart, Burlington 12/13/2021 – Pleasure of the Governor

SCHOOL BUDGET REVIEW COMMITTEE (Sec. 257.30)
Susan Battani, Johnston 08/26/2021 – 04/30/2024

SOIL CONSERVATION AND WATER QUALITY COMMITTEE, STATE (Sec. 161A.4(4)(A))
Judy Loonan, Corning 07/01/2021 – 04/30/2027

SPEECH PATHOLOGY AND AUDIOLOGY, BOARD OF (Sec. 147.14(1)(I))
Nancy Almasi, Robins 09/24/2021 – 04/30/2024
Caitlin McKenney, West Des Moines 09/24/2021 – 04/30/2024

STATE-FEDERAL RELATIONS, DIRECTOR OF OFFICE FOR (Sec. 7F.1(3))
Meaghan O'Brien, Des Moines 08/01/2021 – Pleasure of the Governor

TOBACCO USE PREVENTION AND CONTROL, COMMISSION ON (Sec. 142A.3(3)(A))
Chad Jensen, Marion 09/24/2021 – 04/30/2024

TRANSPORTATION COMMISSION, STATE (Sec. 307A.1A)
Sally Stutsman, Riverside 07/01/2021 – 06/30/2025

VETERANS AFFAIRS, COMMISSION OF (Sec. 35A.2)
George Mosby, Boone 08/11/2021 – 04/30/2022

VETERANS HOME, COMMANDANT OF THE IOWA (Sec. 35D.13)
Matthew Peterson, Liberty Hill 07/27/2021 – Pleasure of the Governor

WORKFORCE DEVELOPMENT BOARD, IOWA (Sec. 84A.1A(A)(A)(8))
Kelly Barrick, Johnston 12/08/2021 – 04/30/2023
Brad Elliott, Mount Ayr 09/27/2021 – 04/30/2025
Mary Landhuis, Clarinda 09/27/2021 – 04/30/2025

Deborah Mauricio, Sioux Center	11/15/2021 – 04/30/2022
Ofelia Rumbo, Lakeside	09/07/2021 – 04/30/2025
Alexander Severn, Urbandale	09/07/2021 – 04/30/2025
Jason Shanks, Ankeny	09/07/2021 – 04/30/2025
Alicia Stafford, Creston	10/13/2021 – 04/30/2025

The appointments were referred to the committee on **Rules and Administration**.

WITHDRAWAL OF GOVERNOR'S APPOINTEES

The following letters from the Governor were received in the office of the Secretary of the Senate:

I am withdrawing the name of Melanie Cleveringa for confirmation as a member of the Children's Behavioral Health System State Board from further consideration by the Senate.

I am withdrawing the name of Kelly Still for confirmation as a member of the Elevator Safety Board from further consideration by the Senate.

I am withdrawing the name of Theresa Nielsen for confirmation as a member of the Board of Nursing Home Administrators from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

REPORT OF THE COMMITTEE ON RULES AND ADMINISTRATION

The committee on Rules and Administration referred the following Governor's appointments to state boards, commissions, and departments to Senate standing committees, as indicated for investigation on February 8, 2022:

AGRICULTURE

Judy Loonan – State Soil Conservation and Water Quality Committee

COMMERCE

Bobbi Terrell – Credit Union Review Board

EDUCATION

Darci Alt – Children's Behavioral Health System State Board
Scott Hobart – Children's Behavioral Health System State Board
Carol Meade – Children's Behavioral Health System State Board

Rodney Bradley – State Board of Education

Michael Cavin – Executive Director of the Board of Educational Examiners

Pamela Bleam – Board of Educational Examiners

Susan Battani – School Budget Review Committee

HUMAN RESOURCES

Joel Wulf – Commission on Aging

Erica Boer – Board of Athletic Training

Kevin Allemagne – Board of Behavioral Science
Cody Samec – Board of Behavioral Science
Mary Wink – Board of Behavioral Science

Timothy Dowie – Commission of Persons with Disabilities
Adam Koch – Commission of Persons with Disabilities

Kelly Blackford – Health Facilities Council

Mary Scieszinski – Healthy and Well Kids in Iowa (HAWK-I) Board
Michael Stopulos – Healthy and Well Kids in Iowa (HAWK-I) Board

Eldora (Kay) Fisk – Council on Human Services
Monika Jindal – Council on Human Services
Skylar Mayberry-Mayes – Council on Human Services
Samuel Wallace – Council on Human Services

Jose Ayala – Commission of Latino Affairs
Juan Himar Hernandez – Commission of Latino Affairs

Sarah Berndt – Mental Health and Disability Services Commission
Donald Kass – Mental Health and Disability Services Commission
June Klein-Bacon – Mental Health and Disability Services Commission
Jeffrey Sorensen – Mental Health and Disability Services Commission
Richard Whitaker, Jr. – Mental Health and Disability Services Commission
Russell Wood – Mental Health and Disability Services Commission

Chad Jensen – Commission on Tobacco Use Prevention and Control

JUDICIARY

Stanley Thompson – Director of the Iowa State Civil Rights Commission

Gina Battani – Iowa State Civil Rights Commission

Brenna Bird – Drug Policy Advisory Council
Patrick Coughlin – Drug Policy Advisory Council

William (Bill) Anderson II – State Judicial Nominating Commission

Maria Valdez Guerrero – Justice Advisory Board

Andrew Boettger – Chairperson of the Board of Parole

Meredith Lamberti – Board of Parole

Carolyn Schulte Parole – Board of Parole, Alternate

LABOR AND BUSINESS RELATIONS

Curt Baker – Plumbing and Mechanical Systems Board
Toni Knight – Plumbing and Mechanical Systems Board

Erik Helland – Public Employment Relations Board, Chair & member of the

Jane Dufoe – Public Employment Relations Board

Kelly Barrick – Iowa Workforce Development Board
Brad Elliott – Iowa Workforce Development Board
Mary Landhuis – Iowa Workforce Development Board
Deborah Mauricio – Iowa Workforce Development Board
Ofelia Rumbo – Iowa Workforce Development Board
Alexander Severn – Iowa Workforce Development Board
Jason Shanks – Iowa Workforce Development Board
Alicia Stafford – Iowa Workforce Development Board

NATURAL RESOURCES AND ENVIRONMENT

Jodi Freet – Flood Mitigation Board

Tammi Kircher – Natural Resource Commission

STATE GOVERNMENT

Adam Steen – Director of the Department of Administrative Services

Wendell Talley – Commission on the Status of African Americans

Rebecca Brockmann – Board of Barbering

Kirby Connell – Board of Chiropractic

Nicole Conrad – Commission on Community Action Agencies

Brian Gongol – Commission of Deaf Services
Telina McKenna-Quintana – Commission of Deaf Services

Janet Rydberg – Board of Dietetics

Sara Fasching – Electrical Examining Board
Tim Gerald – Electrical Examining Board
Luke Maloney – Electrical Examining Board
Dan Wood – Electrical Examining Board

Candace Biddle – Elevator Safety Board

James Sweeney – Engineering and Land Surveying Examining Board

William Bemis – Investment Board of the Iowa Public Employees' Retirement System

Patricia Fasbender – Board of Medicine
Dalton Hayes – Board of Medicine
Chad Stadsvold – Board of Medicine

Taylor Beyal – Commission of Native American Affairs
Patrick Bigsby – Commission of Native American Affairs
Calvin Harlan – Commission of Native American Affairs
T. JoAn Schlotman – Commission of Native American Affairs

Ryan Stuck – Board of Nursing

Karen Bentsen – Board of Nursing Home Administrators
Cindy Dozark – Board of Nursing Home Administrators
Billy Meyers – Board of Nursing Home Administrators

Brian Kirschling – Board of Optometry

James Mennen – Board of Pharmacy

Andrew Steele – Board of Podiatry
Kelsey Sukovaty Cain – Board of Podiatry

Amy Burkhart – State Racing and Gaming Commission

Nancy Almasi – Board of Speech Pathology and Audiology
Caitlin McKenney – Board of Speech Pathology and Audiology

Meaghan O'Brien – Director of Office for State-Federal Relations

TRANSPORTATION

Sally Stutsman – State Transportation Commission

VETERANS AFFAIRS

George Mosby –Commission of Veterans Affairs

Matthew Peterson – Commandant of the Iowa Veterans Home

WAYS AND MEANS

Samuel Eathington – Economic Development Authority

Aaron Burnett – Iowa Great Places Board
Danna Kehm – Iowa Great Places Board
Angel Wallace – Iowa Great Places Board

AMENDMENT FILED

S–5001 S.R. 101 Carrie Koelker

JOURNAL OF THE SENATE

THIRTY-FIRST CALENDAR DAY
NINETEENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, February 9, 2022

The Senate met in regular session at 9:01 a.m., Senator Rozenboom presiding.

Prayer was offered by the Honorable Sarah Trone Garriott, member of the Senate form Dallas County, West Des Moines, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Elizabeth Hunter.

The Journal of Tuesday, February 8, 2022, was approved.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:10 a.m. until the completion of a meeting of the committee on Natural Resources and Environment.

RECONVENED

The Senate reconvened at 3:52 p.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Carlin, Dawson, Johnson, and Sinclair, until they arrive, on request of Senator Whitver.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2197 and 2190.

Senate File 2197

On motion of Senator Cournoyer, **Senate File 2197**, a bill for an act providing for the establishment of a task force related to special education support for students at nonpublic schools, was taken up for consideration.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2197), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, none.

Absent, 4:

Carlin	Dawson	Johnson	Sinclair

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2190

On motion of Senator Rowley, **Senate File 2190**, a bill for an act relating to the use of child labor for certain bakery machine occupations utilizing pizza dough rollers, was taken up for consideration.

Senator Rowley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2190), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, none.

Absent, 4:

Carlin	Dawson	Johnson	Sinclair

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2190** and **2197** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2130.

Senate File 2130

On motion of Senator J. Taylor, **Senate File 2130**, a bill for an act relating to schools that are required to register with the college student aid commission, was taken up for consideration.

Senator J. Taylor moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2130), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, none.

Absent, 4:

Carlin	Dawson	Johnson	Sinclair

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2130** be **immediately messaged** to the House.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 101.

Senate Resolution 101

On motion of Senator Koelker, **Senate Resolution 101**, a resolution relating to the requirements under the Senate Code of Ethics for filing personal financial disclosure forms by senators and candidates for senate, was taken up for consideration.

Senator Koelker offered amendment S–5001, filed by her on February 8, 2022, to page 3 of the bill.

Senator Hogg offered amendment S–5002, filed by him from the floor to page 1 of amendment S–5001, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5002 to amendment S–5001 be adopted?" (S.R. 101), the vote was:

Yeas, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Nays, 28:

Brown	Chapman	Costello	Cournoyer
Dickey	Driscoll	Edler	Garrett
Goodwin	Green	Guth	Klimesh
Koelker	Kraayenbrink	Lofgren	Nunn

Reichman	Rowley	Rozenboom	Schultz
Shipley	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Absent, 4:

Carlin	Dawson	Johnson	Sinclair

Amendment S–5002 to amendment S–5001 lost.

Senator Koelker moved the adoption of amendment S–5001.

Amendment S–5001 was adopted by a voice vote.

Senator Koelker moved the adoption of Senate Resolution 101, which motion prevailed by a voice vote.

ADJOURNMENT

On motion of Senator Brown, the Senate adjourned at 4:27 p.m. until 9:00 a.m., Thursday, February 10, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

JUDICIAL BRANCH

Judicial Nominating Commissioners Elections Results Report, pursuant to Iowa Code section 46.9. Report received on February 9, 2022.

REPORTS OF COMMITTEE MEETINGS

COMMERCE

Convened: Tuesday, February 8, 2022, 3:10 p.m.

Members Present: Schultz, Chair; Koelker, Vice Chair; Giddens, Ranking Member; Bisignano, Brown, Chapman, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams.

Members Absent: Goodwin and Johnson (both excused).

Committee Business: SF 2137, SSB 3062, SF 2092, SSB 3056.

Adjourned: 3:25 p.m.

HUMAN RESOURCES

Convened: Wednesday, February 9, 2022, 1:40 p.m.

Members Present: Edler, Chair; Costello, Vice Chair; Mathis, Ranking Member; Bolkcom, Garrett, Green, Jochum, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott.

Members Absent: Johnson (excused).

Committee Business: Consideration and passage of the following bills: SSB 3102, SSB 3105, and SSB 3065.

Adjourned: 2:15 p.m.

JUDICIARY

Convened: Tuesday, February 8, 2022, 3:30 p.m.

Members Present: Zaun, Chair; Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Bolkcom, Boulton, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: Dawson and Johnson (both excused).

Committee Business: SSB 3061, SSB 3020, SSB 3018, SSB 3014, SSB 3017, SCR 101, SF 2103, SSB 3086, SSB 3073, SSB 3026.

Adjourned: 4:45 p.m.

LABOR AND BUSINESS RELATIONS

Convened: Wednesday, February 9, 2022, 10:00 a.m.

Members Present: Dickey, Chair; Green, Vice Chair; Boulton, Ranking Member; Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor.

Members Absent: None.

Committee Business: SF 2143; SF 2148 (w/amendments); SSB 3097; SSB 3096.

Adjourned: 11:45 a.m.

NATURAL RESOURCES AND ENVIRONMENT

Convened: Wednesday, February 9, 2022, 2:30 p.m.

Members Present: Sweeney, Chair; Driscoll, Vice Chair; Trone Garriott, Ranking Member; Boulton, Celsi, Cournoyer, Green, Hogg, Lykam, Rozenboom, Shipley, J. Taylor, and Zumbach.

Members Absent: None.

Committee Business: Iowa Nutrient Reduction Strategy Presentation.

Adjourned: 3:10 p.m.

INTRODUCTION OF RESOLUTION

Senate Concurrent Resolution 102, by committee on Judiciary, a concurrent resolution urging the United States Drug Enforcement Administration to grant an exception to the classification of cannabis under schedule I of the federal Controlled Substances Act in Iowa.

Read first time under Rule 28 and **placed on calendar**.

INTRODUCTION OF BILLS

Senate File 2228, by committee on Transportation, a bill for an act relating to the transfer of ownership of certain foreign vehicles.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2229, by committee on Transportation, a bill for an act relating to the display of a county name on vehicle registration plates.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2230, by committee on Agriculture, a bill for an act providing for programs and regulations administered and enforced by the department of agriculture and land stewardship, providing fees, providing penalties, and making penalties applicable.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2231, by committee on Commerce, a bill for an act relating to pharmacy benefits managers, pharmacies, and prescription drug benefits, and including applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2232, by committee on Commerce, a bill for an act relating to the sale, lease, or rental of water treatment systems and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2233, by committee on Commerce, a bill for an act relating to terms used in the context of land surveying.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2234, by committee on Judiciary, a bill for an act relating to the establishment of a cold case investigation unit within the department of public safety.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2235, by committee on Judiciary, a bill for an act relating to excuse from jury service for persons at least seventy-two years of age.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2236, by committee on Judiciary, a bill for an act relating to post-arrest release after an initial appearance for persons taken into custody or arrested for certain sexual abuse offenses and no-contact orders.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2237, by committee on Commerce, a bill for an act relating to financial reporting by insurance holding company systems.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2238, by Zaun, a bill for an act requiring primary elections for the nomination of candidates for city, school district, and merged area elections, and including applicability provisions.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2239, by R. Smith, a bill for an act relating to high school event admission fees for people eighteen years of age or younger, making appropriations, and including effective date and applicability provisions.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2240, by committee on Judiciary, a bill for an act relating to wills, including witness requirements for the execution of a will and procedure for wills to be admitted into probate.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2241, by committee on Judiciary, a bill for an act relating to the apportionment of district associate judges.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2242, by committee on Judiciary, a bill for an act relating to controlled substances, including amending the controlled substance schedules and information collection and reporting requirements under the Iowa prescription monitoring program, and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2243, by Giddens and Dotzler, a bill for an act relating to an experiential learning competitive grant program in the department of education, making an appropriation, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2244, by Giddens, a bill for an act establishing the nonprofit employer recruitment and retention loan repayment program within the college student aid commission and making appropriations.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2245, by committee on Agriculture, a bill for an act providing a personal use exemption from licensing requirements of the Meat and Poultry Inspection Act.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2246, by committee on Judiciary, a bill for an act relating to remote testimony in civil and criminal court proceedings.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2247, by Nunn, a bill for an act relating to the trading and holding of certain securities by members of the general assembly and their spouses and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Commerce**.

Senate File 2248, by Rowley, a bill for an act relating to the state school foundation program and the calculation of minimum state foundation aid for school districts and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2249, by committee on Labor and Business Relations, a bill for an act relating to unemployment benefits and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2250, by committee on Labor and Business Relations, a bill for an act relating to the carrying, transportation, or possession of firearms on real property comprising a person's place of employment.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2251, by committee on Labor and Business Relations, a bill for an act concerning restrictions on workforce advertising by state agencies.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2252, by Bolkcom, a bill for an act relating to identification markings on firearms and firearm parts, and providing penalties.

Read first time under Rule 28 and referred to committee on **Judiciary**.

STUDY BILLS RECEIVED

SSB 3124 Commerce

Relating to multiple housing cooperatives, including by providing for the conversion to a cooperative under the Iowa cooperative associations Act and merger with a limited liability company.

SSB 3125 Commerce

Relating to the regulation of specified gas and electric utilities.

SSB 3126 Commerce

Relating to milk and associated products, by providing for certain items relating to milk to be transferred directly by operators of dairy farms, providing for the labeling of unpasteurized and ungraded milk and products, and making penalties applicable.

SSB 3127 Commerce

Relating to communication methods regarding the disposition of unclaimed property and including applicability provisions.

SSB 3128 Commerce

Relating to contract pharmacies and covered entities that participate in the 340B drug program.

SSB 3129 Judiciary

Providing for the award of attorney fees and litigation costs in civil actions to prevailing parties and including effective date and applicability provisions.

SSB 3130 Ways and Means

Relating to the assessment and taxation of wind energy conversion property and including effective date and retroactive applicability provisions.

SSB 3131 Judiciary

Relating to the expungement of certain criminal history records of victims of human trafficking, and including penalties.

SSB 3132 Transportation

Relating to third-party testers and test examiners for commercial driver's license knowledge and driving skills tests.

SSB 3133 Commerce

Relating to electronic delivery of certain insurance notices and documents.

SSB 3134 Natural Resources and Environment

Relating to the acquisition of real property by county conservation boards and the department of natural resources.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2160

COMMERCE: Klimesh, Chair; Quirmbach and Williams

Senate File 2175

APPROPRIATIONS: Lofgren, Chair; Dotzler and Reichman

Senate File 2187

TRANSPORTATION: Driscoll, Chair; Giddens and Koelker

Senate File 2198

JUDICIARY: Zaun, Chair; Petersen and Schultz

Senate File 2207

COMMERCE: Nunn, Chair; Quirmbach and Williams

Senate File 2208

COMMERCE: Nunn, Chair; Mathis and Williams

Senate File 2209

STATE GOVERNMENT: Schultz, Chair; Bisignano and Brown

Senate File 2210

HUMAN RESOURCES: Costello, Chair; Edler and Trone Garriott

Senate File 2211

STATE GOVERNMENT: Cournoyer, Chair; Celsi and Johnson

Senate File 2212

STATE GOVERNMENT: Brown, Chair; Giddens and Schultz

Senate File 2213

COMMERCE: Koelker, Chair; Bisignano and Johnson

Senate File 2214

HUMAN RESOURCES: Edler, Chair; Costello and Mathis

Senate File 2216

HUMAN RESOURCES: Edler, Chair; Costello and Jochum

Senate File 2217

VETERANS AFFAIRS: Lofgren, Chair; Dotzler and Green

Senate File 2218

JUDICIARY: Sinclair, Chair; Petersen and Schultz

Senate File 2220

STATE GOVERNMENT: Cournoyer, Chair; Bisignano and Johnson

Senate File 2223

LOCAL GOVERNMENT: Driscoll, Chair; Lofgren and T. Taylor

Senate File 2224

COMMERCE: Nunn, Chair; Lykam and Williams

Senate File 2225

JUDICIARY: Zaun, Chair; Bolkcom and Dawson

Senate File 2226

JUDICIARY: Reichman, Chair; Boulton and Dawson

Senate File 2227

LOCAL GOVERNMENT: Klimesh, Chair; Quirmbach and Williams

Senate File 2238

STATE GOVERNMENT: Schultz, Chair; Cournoyer and Jochum

Senate File 2239

STATE GOVERNMENT: R. Smith, Chair; Boulton and Dawson

Senate File 2247

COMMERCE: Nunn, Chair; Giddens and Koelker

SSB 3124

COMMERCE: Williams, Chair; Koelker and Lykam

SSB 3125

COMMERCE: Williams, Chair; Giddens and Klimesh

SSB 3126

COMMERCE: Schultz, Chair; Bisignano and Sinclair

SSB 3127

COMMERCE: Koelker, Chair; Giddens and Williams

SSB 3128

COMMERCE: Koelker, Chair; Johnson and Petersen

SSB 3129

JUDICIARY: Zaun, Chair; Boulton and Schultz

SSB 3130

WAYS AND MEANS: Brown, Chair; Dawson and Dotzler

SSB 3131

JUDICIARY: Reichman, Chair; Petersen and J. Taylor

SSB 3132

TRANSPORTATION: Brown, Chair; Lykam and Rozenboom

SSB 3133

COMMERCE: Williams, Chair; Giddens and Goodwin

SSB 3134

NATURAL RESOURCES AND ENVIRONMENT: Sweeney, Chair; Hogg and Shipley

FINAL COMMITTEE REPORTS OF BILL ACTION

AGRICULTURE

Bill Title: SENATE FILE 2110, a bill for an act relating to acreage limitations for the production of hemp, and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Zumbach, Sweeney, Kinney, Costello, Driscoll, Edler, Green, Mathis, Ragan, Rozenboom, Shipley, J. Smith, and Wahls. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2230 (SSB 3095), a bill for an act providing for programs and regulations administered and enforced by the department of agriculture and land stewardship, providing fees, providing penalties, and making penalties applicable.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zumbach, Sweeney, Kinney, Costello, Driscoll, Edler, Green, Mathis, Ragan, Rozenboom, Shipley, J. Smith, and Wahls. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: ***SENATE FILE 2245 (SSB 3051), a bill for an act providing a personal use exemption from licensing requirements of the Meat and Poultry Inspection Act.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zumbach, Sweeney, Kinney, Costello, Driscoll, Edler, Green, Mathis, Ragan, Rozenboom, Shipley, J. Smith, and Wahls. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Agriculture Committee on Senate File 2245, and they were attached to the committee report.

ALSO:

Bill Title: HOUSE FILE 2128, a bill for an act relating to renewable fuels, including ethanol blended gasoline and biodiesel blended fuel used to power internal combustion engines, by providing for compliance requirements and promotional initiatives that relate to establishing classifications and standards for renewable fuels, advertising and selling renewable fuels, storing and dispensing renewable fuels, using state motor vehicles powered by renewable fuels, and taxes, tax credits, and tax refunds relating to renewable fuels; providing penalties and making penalties applicable; and including effective date and retroactive applicability provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Zumbach, Sweeney, Kinney, Costello, Driscoll, Edler, Green, Mathis, Ragan, Rozenboom, Shipley, J. Smith, and Wahls. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

COMMERCE

Bill Title: SENATE FILE 2231 (formerly SF 2092), a bill for an act relating to pharmacy benefits managers, pharmacies, and prescription drug benefits, and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, 2: Goodwin and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2232 (SSB 3056), a bill for an act relating to the sale, lease, or rental of water treatment systems and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, 2: Goodwin and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2233 (formerly SF 2137), a bill for an act relating to terms used in the context of land surveying.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, 2: Goodwin and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2237 (SSB 3062), a bill for an act relating to financial reporting by insurance holding company systems.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, 2: Goodwin and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JUDICIARY

Bill Title: SENATE CONCURRENT RESOLUTION 102 (formerly SCR 101), a concurrent resolution urging the United States Drug Enforcement Administration to grant an exception to the classification of cannabis under schedule I of the federal Controlled Substances Act in Iowa.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2234 (formerly SF 2103), a bill for an act relating to the establishment of a cold case investigation unit within the department of public safety.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2235 (SSB 3086), a bill for an act relating to excuse from jury service for persons at least seventy-two years of age.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Zaun, Garrett, Kinney, Bisignano, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 2: Bolkcom and Boulton. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2236 (SSB 3017), a bill for an act relating to post-arrest release after an initial appearance for persons taken into custody or arrested for certain sexual abuse offenses and no-contact orders.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2240 (SSB 3014), a bill for an act relating to wills, including witness requirements for the execution of a will and procedure for wills to be admitted into probate.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2240, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2241 (SSB 3020), a bill for an act relating to the apportionment of district associate judges.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2241, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2242 (SSB 3073), a bill for an act relating to controlled substances, including amending the controlled substance schedules and information collection and reporting requirements under the Iowa prescription monitoring program, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2242, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2246 (SSB 3061), a bill for an act relating to remote testimony in civil and criminal court proceedings.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2246, and they were attached to the committee report.

LABOR AND BUSINESS RELATIONS

Bill Title: SENATE FILE 2249 (SSB 3096), a bill for an act relating to unemployment benefits and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Dickey, Green, Driscoll, Guth, Rowley, Schultz, and J. Taylor. Nays, 4: Boulton, Dotzler, Jochum, and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2250 (formerly SF 2143), a bill for an act relating to the carrying, transportation, or possession of firearms on real property comprising a person's place of employment.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Dickey, Green, Driscoll, Guth, Rowley, Schultz, and J. Taylor. Nays, 4: Boulton, Dotzler, Jochum, and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2251 (SSB 3097), a bill for an act concerning restrictions on workforce advertising by state agencies.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Dickey, Green, Boulton, Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

TRANSPORTATION

Bill Title: SENATE FILE 2228 (formerly SF 2070), a bill for an act relating to the transfer of ownership of certain foreign vehicles.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Brown, Dickey, J. Smith, Bisignano, Driscoll, Giddens, Klimesh, Koelker, Lykam, Rozenboom, Shipley, T. Taylor, and Zumbach. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2229 (SSB 3045), a bill for an act relating to the display of a county name on vehicle registration plates.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Brown, Dickey, J. Smith, Driscoll, Giddens, Klimesh, Koelker, Lykam, Rozenboom, Shipley, and Zumbach. Nays, 2: Bisignano and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

AMENDMENT FILED

S–5002 S.R. 101 Robert M. Hogg

JOURNAL OF THE SENATE

THIRTY-SECOND CALENDAR DAY
TWENTIETH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, February 10, 2022

The Senate met in regular session at 9:03 a.m., President Pro Tempore Zaun presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate form Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Thomas Knudsen.

The Journal of Wednesday, February 9, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:27 a.m. until 1:00 p.m., Monday, February 14, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

IOWA HEALTH INFORMATION NETWORK

Iowa Health Information Network (CyncHealth Iowa) Annual Report, pursuant to Iowa Code section 135D.6. Report received on February 10, 2022.

REPORTS OF COMMITTEE MEETINGS

LOCAL GOVERNMENT

Convened: Thursday, February 10, 2022, 1:20 p.m.

Members Present: Shipley, Chair; Klimesh, Vice Chair; J. Smith, Ranking Member; Driscoll, Garrett, Guth, Hogg, Lofgren, Quirmbach, T. Taylor, and Williams.

Members Absent: None.

Committee Business: SF 2099, SF 2096, SF 2156, SF 2156.2923.

Adjourned: 1:45 p.m.

VETERANS AFFAIRS

Convened: Thursday, February 10, 2022, 10:00 a.m.

Members Present: Lofgren, Chair; Reichman, Vice Chair; Giddens, Ranking Member; Costello, Dotzler, Edler, Green, Mathis, and Ragan.

Members Absent: Carlin and Dawson (both excused).

Committee Business: Committee business.

Adjourned: 10:15 a.m.

INTRODUCTION OF BILLS

Senate File 2253, by committee on Judiciary, a bill for an act relating to the discovery of evidence in a criminal or postconviction relief action involving victims of sexual abuse.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2254, by committee on Judiciary, a bill for an act relating to paternity in certain actions before the juvenile court.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2255, by committee on Human Resources, a bill for an act relating to the application of the certificate of need process only to nursing facilities.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2256, by committee on Labor and Business Relations, a bill for an act regarding donated leave by state employees.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2257, by committee on Human Resources, a bill for an act relating to juvenile justice including juvenile delinquency, child in need of assistance and family in need of assistance proceedings, juvenile justice reform, and juvenile court expenses and costs, and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2258, by Costello, a bill for an act relating to the release of nursing facility reimbursement rates under the Medicaid program.

Read first time under Rule 28 and referred to committee on **Human Resources**.

Senate File 2259, by Dickey, a bill for an act relating to damages owed by a person at fault in crashes and collisions involving commercial motor vehicles.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2260, by Dawson, a bill for an act providing for the adoption of certain animals confined by research facilities.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2261, by committee on Veterans Affairs, a bill for an act relating to motor vehicle registration fees for disabled veterans.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2262, by Dickey, a bill for an act relating to the annual registration fee for certain vehicles owned by a volunteer fire fighter.

Read first time under Rule 28 and referred to committee on **Transportation**.

Senate File 2263, by committee on State Government, a bill for an act relating to the confirmation by the senate of certain appointees.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2264, by committee on Veterans Affairs, a bill for an act appropriating moneys to the Iowa finance authority for the home ownership assistance program for eligible service members.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2265, by committee on State Government, a bill for an act relating to restrictions regarding companies boycotting Israel.

Read first time under Rule 28 and **placed on calendar**.

STUDY BILL RECEIVED

SSB 3135 Agriculture

Establishing a dairy processing and milk production innovation and revitalization fund and program to be administered by the economic development authority, in consultation with the department of agriculture and land stewardship, and creating a task force to explore the feasibility of establishing an artisanal dairy processing program at a community college or at an institution governed by the state board of regents.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2186

LABOR AND BUSINESS RELATIONS: Schultz, Chair; Driscoll and T. Taylor

SSB 3135

AGRICULTURE: Shipley, Chair; Mathis and Sweeney

FINAL COMMITTEE REPORTS OF BILL ACTION

HUMAN RESOURCES

Bill Title: SENATE FILE 2255 (SSB 3105), a bill for an act relating to the application of the certificate of need process only to nursing facilities.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Edler, Costello, Garrett, Green, Lofgren, Rowley, and Sweeney. Nays, 5: Mathis, Bolkcom, Jochum, Ragan, and Trone Garriott. Excused, 1: Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2257 (SSB 3102), a bill for an act relating to juvenile justice including juvenile delinquency, child in need of assistance and family in need of assistance proceedings, juvenile justice reform, and juvenile court expenses and costs, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, 1: Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JUDICIARY

Bill Title: ***SENATE FILE 2253 (SSB 3018), a bill for an act relating to the discovery of evidence in a criminal or postconviction relief action involving victims of sexual abuse.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2253, and they were attached to the committee report.

ALSO:

Bill Title: ***SENATE FILE 2254 (SSB 3026), a bill for an act relating to paternity in certain actions before the juvenile court.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2254, and they were attached to the committee report.

LABOR AND BUSINESS RELATIONS

Bill Title: *SENATE FILE 2256 (formerly SF 2148), a bill for an act regarding donated leave by state employees.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Dickey, Green, Boulton, Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Labor and Business Relations Committee on Senate File 2256, and they were attached to the committee report.

STATE GOVERNMENT

Bill Title: SENATE FILE 573, a bill for an act relating to the frequency of meetings of a committee created to establish the minimum rate to be earned on state funds placed in time deposits.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Giddens, Goodwin, Guth, Jochum, Koelker, Reichman, and Schultz. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2060, a bill for an act relating to massage therapy, including child and dependent adult abuse reporting and continuing education requirements, and making penalties applicable.

Recommendation: DO PASS.

Final Vote: Yeas, 13: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Giddens, Goodwin, Guth, Jochum, Koelker, Reichman, and Schultz. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2119, a bill for an act relating to cosmetology and the practice of threading.

Recommendation: DO PASS.

Final Vote: Yeas, 13: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Giddens, Goodwin, Guth, Jochum, Koelker, Reichman, and Schultz. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2263 (SSB 3075), a bill for an act relating to the confirmation by the senate of certain appointees.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 8: R. Smith, Cournoyer, Brown, Goodwin, Guth, Koelker, Reichman, and Schultz. Nays, 5: Bisignano, Boulton, Celsi, Giddens, and Jochum. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2265 (SSB 3089), a bill for an act relating to restrictions regarding companies boycotting Israel.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Giddens, Goodwin, Guth, Jochum, Koelker, Reichman, and Schultz. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

VETERANS AFFAIRS

Bill Title: SENATE FILE 2261 (SSB 3036), a bill for an act relating to motor vehicle registration fees for disabled veterans.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 9: Lofgren, Reichman, Giddens, Costello, Dotzler, Edler, Green, Mathis, and Ragan. Nays, none. Excused, 2: Carlin and Dawson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2264 (SSB 3078), a bill for an act appropriating moneys to the Iowa finance authority for the home ownership assistance program for eligible service members.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 9: Lofgren, Reichman, Giddens, Costello, Dotzler, Edler, Green, Mathis, and Ragan. Nays, none. Excused, 2: Carlin and Dawson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

COMMITTEE CHANGE

Senator Lykam is replacing Senator Kinney on Ethics.

JOURNAL OF THE SENATE

THIRTY-SIXTH CALENDAR DAY
TWENTY-FIRST SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, February 14, 2022

The Senate met in regular session at 1:00 p.m., President Chapman presiding.

Prayer was offered by the Honorable Dennis Guth, member of the Senate from Hancock County, Klemme, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Maren Rasmussen.

The Journal of Thursday, February 10, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on February 10, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2315, a bill for an act establishing a school district funding supplement, making appropriations, and including effective date provisions.

Read first time and referred to committee on **Appropriations**.

House File 2316, a bill for an act relating to public school funding by establishing the state percent of growth and the categorical state percent of growth for the budget year beginning July 1, 2022, modifying provisions relating to the regular program state cost per pupil, modifying provisions relating to the property tax replacement payment and the transportation equity payments, and including effective date provisions.

Read first time and **attached to similar Senate File 2204**.

The Senate stood at ease at 1:09 p.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 2:28 p.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senator Giddens, until he arrives, on request of Senator Wahls; and Senator Nunn, until he arrives, on request of Senator Whitver.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2204.

Senate File 2204

On motion of Senator Sinclair, **Senate File 2204**, a bill for an act relating to public school funding by establishing the state percent of growth and the categorical state percent of growth for the budget year beginning July 1, 2022, modifying provisions relating to the regular program state cost per pupil, modifying provisions relating to the property tax replacement payment and the transportation equity payments, and including effective date provisions, with report of committee on Appropriations recommending passage, was taken up for consideration.

Senator Sinclair offered amendment S–5003, filed by her from the floor to pages 1, 2, and 6 of the bill, and moved its adoption.

Amendment S–5003 was adopted by a voice vote.

Senator Sinclair asked and received unanimous consent that **House File 2316** be **substituted** for **Senate File 2204**.

House File 2316

On motion of Senator Sinclair, **House File 2316**, a bill for an act relating to public school funding by establishing the state percent of growth and the categorical state percent of growth for the budget year beginning July 1, 2022, modifying provisions relating to the regular program state cost per pupil, modifying provisions relating to the property tax replacement payment and the transportation equity payments, and including effective date provisions, was taken up for consideration.

Senator Celsi offered amendment S–5005, filed by her from the floor to pages 1 and 2 of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5005 be adopted?" (H.F. 2316), the vote was:

Yeas, 17:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Hogg	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott
Wahls			

Nays, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun	Zumbach	

Absent, 2:

Giddens	Nunn

Amendment S–5005 lost.

Senator Trone Garriott offered amendment S–5006, filed by her from the floor to page 1 and amending the title page of the bill.

Senator Sinclair raised the point of order that amendment S–5006 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5006 out of order.

Senator J. Smith offered amendment S–5008, filed by her from the floor to pages 1 and 6 and amending the title page of the bill.

Senator Sinclair raised the point of order that amendment S–5008 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5008 out of order.

Senator Quirmbach offered amendment S–5004, filed by him from the floor to page 1 of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5004 be adopted?" (H.F. 2316), the vote was:

Yeas, 17:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Hogg	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott
Wahls			

Nays, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green

Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun	Zumbach	

Absent, 2:

Giddens	Nunn

Amendment S–5004 lost.

Senator Boulton offered amendment S–5007, filed by him from the floor to page 6 and amending the title page of the bill.

Senator Sinclair raised the point of order that amendment S–5007 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5007 out of order.

Senator Sinclair moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2316), the vote was:

Yeas, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun	Zumbach	

Nays, 17:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Hogg	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott
Wahls			

Absent, 2:

Giddens Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Sinclair asked and received unanimous consent that **Senate File 2204** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2316** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Sinclair, the Senate adjourned at 4:02 p.m. until 9:00 a.m., Tuesday, February 15, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF COMMERCE (BANKING DIVISION)

Bank Required Collateral, pursuant to Iowa Code section 12C.20. Report received on February 14, 2022.

ECONOMIC DEVELOPMENT AUTHORITY

Historic Preservation Tax Credit Program Progress Report, pursuant to Iowa Code section 404A.5. Report received on February 10, 2022.

DEPARTMENT OF REVENUE

Corporate Income Tax–Research Activities Credit Report, pursuant to Iowa Code section 422.33. Report received on February 14, 2022.

Economic Development Award–Research Activities Credit Report, pursuant to Iowa Code section 15.335. Report received on February 14, 2022.

Individual Income Tax–Research Activities Credit Report, pursuant to Iowa Code section 422.10. Report received on February 14, 2022.

REPORTS OF COMMITTEE MEETINGS

HEALTH AND HUMAN SERVICES APPROPRIATIONS SUBCOMMITTEE

Convened: Monday, January 31, 2022, 12:00 p.m.

Members Present: Costello, Chair; Edler, Vice Chair; Ragan, Ranking Member; Klimesh, and Trone Garriott.

Members Absent: None.

Committee Business: Zoom presentations by Mark Mendoza, Pear Therapeutics and John McNamara, Texas Pregnancy Care Network.

Adjourned: 1:00 p.m.

ALSO:

Convened: Monday, February 14, 2022, 11:05 a.m.

Members Present: Costello, Chair; Edler, Vice Chair; Ragan, Ranking Member; Klimesh, and Trone Garriott.

Members Absent: None.

Committee Business: Presentations by: -Safety Net Rx- John Michael Rosmann, CEO-Iowa Association of Community Providers, Shell Chandler, CEO-CYNC Health, Jamie Bland, CEO, and Timoree Klingler, Government Relations Manager-Iowa Medicaid, Liz Matney, Medicaid Director-Marshalltown Police and Community Team (IMPACT), Chief Michael W Tupper and David Hicks.

Adjourned: 12:55 p.m.

ECONOMIC DEVELOPMENT APPROPRIATIONS SUBCOMMITTEE

Convened: Monday, February 14, 2022, 12:10 p.m.

Members Present: Koelker, Chair; Hogg, and Lofgren.

Members Absent: Reichman, Vice Chair; and Dotzler, Ranking Member (both excused).

Committee Business: Presentation by Debi Durham.

Adjourned: 12:40 p.m.

INTRODUCTION OF RESOLUTION

Senate Joint Resolution 2004, by committee on State Government, a joint resolution calling for an Article V convention in order to propose amendments to the Constitution of the United States that impose fiscal restraints, limit the power and jurisdiction of the federal government, and impose term limits on federal officials and members of Congress.

Read first time under Rule 28 and **placed on calendar**.

INTRODUCTION OF BILLS

Senate File 2266, by committee on State Government, a bill for an act concerning compensation and benefits limits, relating to the earnings limitation for retirees under the Iowa public employees' retirement system and compensation limits for school corporation board members, and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2267, by committee on Local Government, a bill for an act relating to the establishment of emergency response districts.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2268, by committee on Human Resources, a bill for an act relating to child care center staff ratios, and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2269, by committee on Local Government, a bill for an act relating to information to be provided, recorded, and reported by health care providers relative to certain vaccinations, and providing penalties.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2270, by Mathis, a bill for an act relating to state aid for juvenile detention homes, and including effective date and retroactive applicability provisions.

Read first time under Rule 28 and referred to committee on **Appropriations**.

Senate File 2271, by Guth, Klimesh, Williams, Dickey, Kraayenbrink, Johnson, J. Taylor, and Schultz, a bill for an act relating to the investment of certain public funds in companies that are owned or controlled by Chinese military or government services.

Read first time under Rule 28 and referred to committee on **State Government**.

Senate File 2272, by J. Smith, a bill for an act codifying a first home buyer program administered by the Iowa finance authority.

Read first time under Rule 28 and referred to committee on **Veterans Affairs**.

Senate File 2273, by J. Smith, a bill for an act relating to the future ready Iowa skilled workforce last-dollar scholarship program, making appropriations, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Education**.

STUDY BILLS RECEIVED

SSB 3136 Human Resources

Relating to qualifications for maximum benefit amounts from the state food assistance program.

SSB 3137 Appropriations

Relating to and making appropriations to state departments and agencies from the rebuild Iowa infrastructure fund and the technology reinvestment fund, providing for related matters, and including effective date provisions.

SSB 3138 Transportation

Authorizing certain motor vehicles to display one registration plate.

SSB 3139 Education

Requiring the department of education to convene a working group to study the feasibility of integrating crossbow instruction into the physical education curriculum and extracurricular programs.

SSB 3140 State Government

Relating to alcoholic beverage control and licensing, providing for fees, and including effective date provisions.

SSB 3141 Judiciary

Relating to discrimination and disparate treatment by local entities including law enforcement.

SSB 3142 Judiciary

Relating to the sale of certain consumer products by high-volume third-party sellers using online marketplaces and including effective date provisions.

SSB 3143 State Government

Relating to the conduct of elections, including provisions related to absentee ballots, recounts, and contested gubernatorial elections and impeachments, making penalties applicable, and including effective date and applicability provisions.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2202

WAYS AND MEANS: Sinclair, Chair; Dawson and Quirmbach

Senate File 2215

NATURAL RESOURCES AND ENVIRONMENT: Rozenboom, Chair; Driscoll and Hogg

Senate File 2219

NATURAL RESOURCES AND ENVIRONMENT: Shipley, Chair; Lykam and J. Taylor

Senate File 2222

APPROPRIATIONS: Edler, Chair; Costello and Ragan

Senate File 2243

EDUCATION: Sinclair, Chair; Giddens and Rozenboom

Senate File 2244

EDUCATION: Sinclair, Chair; Giddens and Rozenboom

Senate File 2248

EDUCATION: Kraayenbrink, Chair; Quirmbach and J. Taylor

Senate File 2252

JUDICIARY: Schultz, Chair; Bolkcom and Rowley

Senate File 2258

HUMAN RESOURCES: Costello, Chair; Green and Ragan

Senate File 2259

TRANSPORTATION: Dickey, Chair; Klimesh and T. Taylor

Senate File 2260

STATE GOVERNMENT: Dawson, Chair; Bisignano and Schultz

Senate File 2262

TRANSPORTATION: Dickey, Chair; Shipley and J. Smith

SSB 3136

HUMAN RESOURCES: Costello, Chair; Edler and Jochum

SSB 3137

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom and Lofgren

SSB 3138

TRANSPORTATION: Brown, Chair; Driscoll and Lykam

SSB 3139

EDUCATION: Sweeney, Chair; Celsi and Johnson

SSB 3140

STATE GOVERNMENT: Cournoyer, Chair; Boulton and R. Smith

SSB 3141

JUDICIARY: Dawson, Chair; Kinney and Schultz

SSB 3142

JUDICIARY: J. Taylor, Chair; Bolkcom and Rowley

SSB 3143

STATE GOVERNMENT: R. Smith, Chair; Cournoyer and Jochum

FINAL COMMITTEE REPORTS OF BILL ACTION

HUMAN RESOURCES

Bill Title: *SENATE FILE 2268 (SSB 3065), a bill for an act relating to child care center staff ratios, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Edler, Costello, Garrett, Green, Lofgren, Rowley, and Sweeney. Nays, 5: Mathis, Bolkcom, Jochum, Ragan, and Trone Garriott. Excused, 1: Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Human Resources Committee on Senate File 2268, and they were attached to the committee report.

LOCAL GOVERNMENT

Bill Title: SENATE FILE 2267 (formerly SF 2099), a bill for an act relating to the establishment of emergency response districts.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Shipley, Klimesh, J. Smith, Driscoll, Garrett, Guth, Hogg, Lofgren, Quirmbach, T. Taylor, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *****SENATE FILE 2269 (formerly SF 2156), a bill for an act relating to information to be provided, recorded, and reported by health care providers relative to certain vaccinations, and providing penalties.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Shipley, Klimesh, Driscoll, Garrett, Guth, Lofgren, and Williams. Nays, 4: J. Smith, Hogg, Quirmbach, and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Local Government Committee on Senate File 2269, and they were attached to the committee report.

STATE GOVERNMENT

Bill Title: *****SENATE JOINT RESOLUTION 2004 (formerly SJR 2002), a joint resolution calling for an Article V convention in order to propose amendments to the Constitution of the United States that impose fiscal restraints, limit the power and jurisdiction of the federal government, and impose term limits on federal officials and members of Congress.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 8: R. Smith, Cournoyer, Brown, Goodwin, Guth, Koelker, Reichman, and Schultz. Nays, 5: Bisignano, Boulton, Celsi, Giddens, and Jochum. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate Joint Resolution 2004, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2266 (formerly SF 2166), a bill for an act concerning compensation and benefits limits, relating to the earnings limitation for retirees under the Iowa public employees' retirement system and compensation limits for school corporation board members, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Giddens, Goodwin, Guth, Jochum, Koelker, Reichman, and Schultz. Nays, none. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate File 2266, and they were attached to the committee report.

APPOINTMENTS TO BOARDS AND COMMISSIONS

In accordance with Senate Rule 59, the following senators were appointed to subcommittees of standing committees on February 14, 2022, to investigate the appointment and reappointment of the following appointees:

AGRICULTURE

As a member of the State Soil Conservation and Water Quality Committee:

Judy Loonan – Sweeney, Chair; Mathis and Shipley

COMMERCE

As a member of the Credit Union Review Board:

Bobbi Terrell – Williams, Chair; Johnson and Petersen

EDUCATION

As members of the Children's Behavioral Health System State Board:

Darci Alt – Sweeney, Chair; Celsi and Johnson
Scott Hobart – Sweeney, Chair; Celsi and Johnson
Carol Meade – Sweeney, Chair; Celsi and Johnson

As a member of the State Board of Education:

Rodney Bradley – J. Taylor, Chair; Quirmbach and Rozenboom

As Executive Director of the Board of Educational Examiners:

Michael Cavin – Sinclair, Chair; Goodwin and Quirmbach

As a member of the Board of Educational Examiners:

Pamela Bleam – Sinclair, Chair; Giddens and Goodwin

As a member of the School Budget Review Committee:

Susan Battani – Cournoyer, Chair; Kraayenbrink and J. Smith

HUMAN RESOURCES

As a member of the Commission on Aging:

Joel Wulf – Johnson, Chair; Green and Trone Garriott

As a member of the Board of Athletic Training:

Erica Boer – Green, Chair; Jochum and Johnson

As members of the Board of Behavioral Science:

Kevin Allemagne – Lofgren, Chair; Costello and Trone Garriott
Cody Samec – Rowley, Chair; Green and Trone Garriott
Mary Wink – Rowley, Chair; Green and Trone Garriott

As members of the Commission of Persons with Disabilities:

Timothy Dowie – Sweeney, Chair; Johnson and Trone Garriott
Adam Koch – Garrett, Chair; Green and Jochum

As a member of the Health Facilities Council:

Kelly Blackford – Costello, Chair; Green and Mathis

As members of the Healthy and Well Kids in Iowa (HAWK-I) Board:

Mary Scieszinski – Rowley, Chair; Johnson and Trone Garriott
Michael Stopulos – Sweeney, Chair; Green and Jochum

As members of the Council on Human Services:

Eldora (Kay) Fisk – Sweeney, Chair; Jochum and Rowley
Monika Jindal – Costello, Chair; Bolkcom and Johnson
Skylar Mayberry-Mayes – Green, Chair; Ragan and Rowley
Samuel Wallace – Lofgren, Chair; Ragan and Sweeney

As members of the Commission of Latino Affairs:

Jose Ayala – Lofgren, Chair; Bolkcom and Rowley
Juan Himar Hernandez – Green, Chair; Bolkcom and Costello

As members of the Mental Health and Disability Services Commission:

Sarah Berndt – Costello, Chair; Bolkcom and Rowley
Donald Kass – Costello, Chair; Ragan and Sweeney
June Klein-Bacon – Johnson, Chair; Costello and Ragan
Jeffrey Sorensen – Lofgren, Chair; Bolkcom and Green
Richard Whitaker, Jr. – Lofgren, Chair; Jochum and Johnson
Russell Wood – Edler, Chair; Costello and Ragan

As a member of the Commission on Tobacco Use Prevention and Control:

Chad Jensen – Costello, Chair; Johnson and Mathis

JUDICIARY

As Director of the Iowa State Civil Rights Commission:

Stanley Thompson – Zaun, Chair; Boulton and Shipley

As a member of the Iowa State Civil Rights Commission:

Gina Battani – Schultz, Chair; Bisignano and Dawson

As members of the Drug Policy Advisory Council:

Brenna Bird – Zaun, Chair; Bolkcom and Shipley
Patrick Coughlin – J. Taylor, Chair; Bisignano and Reichman

As a member of the State Judicial Nominating Commission:

William (Bill) Anderson II – Zaun, Chair; Garrett and Kinney

As a member of the Justice Advisory Board:

Maria Valdez Guerrero – Johnson, Chair; Garrett and Petersen

As Chairperson of the Board of Parole:

Andrew Boettger – Zaun, Chair; Kinney and J. Taylor

As a member of the Board of Parole:

Meredith Lamberti – Schultz, Chair; Bolkcom and Shipley

As a member of the Board of Parole, Alternate:

Carolyn Schulte Parole – Reichman, Chair; Bolkcom and Rowley

LABOR AND BUSINESS RELATIONS

As members of the Plumbing and Mechanical Systems Board:

Curt Baker – Green, Chair; Jochum and J. Taylor
Toni Knight – Driscoll, Chair; Jochum and Rowley

As Chair and a member of the Public Employment Relations Board:

Erik Helland – Dickey, Chair; Schultz and T. Taylor

As a member of the Public Employment Relations Board:

Jane Dufoe – J. Taylor, Chair; Guth and T. Taylor

As members of the Iowa Workforce Development Board:

Kelly Barrick – Dickey, Chair; Dotzler and Driscoll
Brad Elliott – Guth, Chair; Dotzler and Driscoll
Mary Landhuis – Dickey, Chair; Dotzler and Schultz
Deborah Mauricio – Green, Chair; Dotzler and Guth
Ofelia Rumbo – Schultz, Chair; Dotzler and Guth
Alexander Severn – Schultz, Chair; Dotzler and Rowley
Jason Shanks – Driscoll, Chair; Boulton and J. Taylor
Alicia Stafford – Rowley, Chair; Dotzler and Green

NATURAL RESOURCES AND ENVIRONMENT

As a member of the Flood Mitigation Board:

Jodi Freet – Sweeney, Chair; Hogg and Shipley

As a member of the Natural Resource Commission:

Tammi Kircher – Sweeney, Chair; Celsi and Driscoll

STATE GOVERNMENT

As Director of the Department of Administrative Services:

Adam Steen – R. Smith, Chair; Dawson and Jochum

As a member of the Commission on the Status of African Americans:

Wendell Talley – Koelker, Chair; Bisignano and Cournoyer

As a member of the Board of Barbering:

Rebecca Brockmann – Koelker, Chair; Bisignano and Cournoyer

As a member of the Board of Chiropractic:

Kirby Connell – Koelker, Chair; Bisignano and Cournoyer

As a member of the Commission on Community Action Agencies:

Nicole Conrad – Koelker, Chair; Bisignano and Cournoyer

As members of the Commission of Deaf Services:

Brian Gongol – Koelker, Chair; Bisignano and Cournoyer
Telina McKenna-Quintana – Koelker, Chair; Bisignano and Cournoyer

As a member of the Board of Dietetics:

Janet Rydberg – Koelker, Chair; Bisignano and Cournoyer

As members of the Electrical Examining Board:

Sara Fasching – Reichman, Chair; Giddens and Guth
Tim Gerald – Reichman, Chair; Giddens and Guth
Luke Maloney – Reichman, Chair; Giddens and Guth
Dan Wood – Reichman, Chair; Giddens and Guth

As a member of the Elevator Safety Board:

Candace Biddle – Reichman, Chair; Giddens and Guth

As a member of the Engineering and Land Surveying Examining Board:

James Sweeney – Reichman, Chair; Guth and Jochum

As a member of the Investment Board of the Iowa Public Employees' Retirement System:

William Bemis – Goodwin, Chair; Boulton and Brown

As members of the Board of Medicine:

Patricia Fasbender – Goodwin, Chair; Boulton and Brown
Dalton Hayes – Goodwin, Chair; Boulton and Brown
Chad Stadsvold – Goodwin, Chair; Boulton and Brown

As members of the Commission of Native American Affairs:

Taylor Beyal – Johnson, Chair; Celsi and Schultz
Patrick Bigsby – Johnson, Chair; Celsi and Schultz
Calvin Harlan – Johnson, Chair; Celsi and Schultz
T. JoAn Schlotman – Johnson, Chair; Celsi and Schultz

As a member of the Board of Nursing:

Ryan Stuck – Johnson, Chair; Celsi and Schultz

As members of the Board of Nursing Home Administrators:

Karen Bentsen – Johnson, Chair; Celsi and Schultz
Cindy Dozark – Johnson, Chair; Celsi and Schultz
Billy Meyers – Johnson, Chair; Celsi and Schultz

As a member of the Board of Optometry:

Brian Kirschling – Guth, Chair; Bisignano and Reichman

As a member of the Board of Pharmacy:

James Mennen – Guth, Chair; Bisignano and Reichman

As members of the Board of Podiatry:

Andrew Steele – Guth, Chair; Bisignano and Reichman
Kelsey Sukovaty Cain – Guth, Chair; Bisignano and Reichman

As a member of the State Racing and Gaming Commission:

Amy Burkhart – R. Smith, Chair; Bisignano and Dawson

As members of the Board of Speech Pathology and Audiology:

Nancy Almasi – Cournoyer, Chair; Bisignano and Koelker
Caitlin McKenney – Cournoyer, Chair; Celsi and Koelker

As Director of Office for State-Federal Relations:

Meaghan O'Brien – R. Smith, Celsi and Dawson

TRANSPORTATION

As a member of the State Transportation Commission:

Sally Stutsman – Driscoll, Chair; J. Smith and Zumbach

VETERANS AFFAIRS

As a member of the Commission of Veterans Affairs:

George Mosby – Green, Chair; Dotzler and Lofgren

As Commandant of the Iowa Veterans Home:

Matthew Peterson – Edler, Chair; Giddens and Lofgren

WAYS AND MEANS

As a member of the Economic Development Authority:

Samuel Eathington – Dawson, Chair; Dotzler and Goodwin

As members of the Iowa Great Places Board:

Aaron Burnett – Dawson, Chair; Dotzler and Goodwin
Danna Kehm – Dawson, Chair; Dotzler and Goodwin
Angel Wallace – Dawson, Chair; Dotzler and Goodwin

EXPLANATION OF VOTES

MR. PRESIDENT: I was necessarily absent from the Senate chamber on Wednesday, February 9, 2022, when the votes were taken on Senate Files 2197, 2190, 2130, and Senate Resolution 101. Had I been present, I would have voted yea on all.

CRAIG JOHNSON

COMMITTEE CHANGE

Senator Kinney is replacing Senator Lykam on Ethics.

AMENDMENTS FILED

S–5003	S.F.	2204	Amy Sinclair
S–5004	H.F.	2316	Herman C. Quirmbach
S–5005	H.F.	2316	Claire A. Celsi
S–5006	H.F.	2316	Sarah Trone Garriott
S–5007	H.F.	2316	Nate Boulton
S–5008	H.F.	2316	Jackie Smith

JOURNAL OF THE SENATE

THIRTY-SEVENTH CALENDAR DAY
TWENTY-SECOND SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, February 15, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Johnson, member of the Senate from Buchanan County, Independence, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Cecilia Redman.

The Journal of Monday, February 14, 2022, was approved.

BILLS REFERRED TO COMMITTEE

President Chapman announced that **Senate File 2261** was referred from the Regular Calendar to the committee on **Ways and Means;** and **Senate File 2264** was referred from the Regular Calendar to the committee on **Appropriations** under Senate Rule 38.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:19 a.m. until 9:00 a.m., Wednesday, February 16, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT FOR THE BLIND

Blind Recycling Report, pursuant to Iowa Code section 216B.3. Report received on February 15, 2022.

ECONOMIC DEVELOPMENT AUTHORITY

Renewable Chemical Production Tax Credits Report, pursuant to Iowa Code section 15.320. Report received on February 14, 2022.

Targeted Small Business Report, pursuant to Iowa Code section 15.108. Report received on February 14, 2022.

DEPARTMENT OF EDUCATION

Commission on Educator Leadership and Compensation Report, pursuant to Iowa Code section 284.15. Report received on February 15, 2022.

DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY MANAGEMENT

Comprehensive Public Safety Answering Point Cost and Expenditure Data, pursuant to Iowa Code section 34A.7A. Report received on February 15, 2022.

LEGISLATIVE SERVICES AGENCY

Urban Renewal Report–Tax Increment Financing (TIF), pursuant to Iowa Code section 331.403. Report received on February 15, 2022.

DEPARTMENT OF TRANSPORTATION

Replacement and Repair of Structurally Deficient Secondary Bridges, pursuant to Iowa Code section 307.32. Report received on February 15, 2022.

REPORTS OF COMMITTEE MEETINGS

AGRICULTURE

Convened: Tuesday, February 15, 2022, 2:20 p.m.

Members Present: Zumbach, Chair; Sweeney, Vice Chair; Kinney, Ranking Member; Costello, Edler, Green, Mathis, Ragan, Rozenboom, Shipley, J. Smith, and Wahls.

Members Absent: Driscoll (excused).

Committee Business: SSB 3135 passed 12 yeas 0 nays, SF 2127 passed 7 yeas 5 nays (Kinney, Ragan, Mathis, J. Smith, and Wahls).

Adjourned: 2:35 p.m.

COMMERCE

Convened: Monday, February 14, 2022, 4:40 p.m.

Members Present: Schultz, Chair; Koelker, Vice Chair; Bisignano, Brown, Goodwin, Johnson, Klimesh, Lykam, Mathis, Petersen, Quirmbach, Sinclair, R. Smith, and Williams.

Members Absent: Giddens, Ranking Member; Chapman, and Nunn (all excused).

Committee Business: SSB 3069, SSB 3071, SSB 3088, and SSB 3093.

Adjourned: 5:20 p.m.

LABOR AND BUSINESS RELATIONS

Convened: Tuesday, February 15, 2022, 11:25 a.m.

Members Present: Dickey, Chair; Green, Vice Chair; Boulton, Ranking Member; Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor.

Members Absent: None.

Committee Business: SF 2051 with amendment SF 2051.3139.

Adjourned: 11:35 a.m.

LOCAL GOVERNMENT

Convened: Tuesday, February 15, 2022, 10:30 a.m.

Members Present: Shipley, Chair; Klimesh, Vice Chair; J. Smith, Ranking Member; Driscoll, Garrett, Guth, Hogg, Lofgren, Quirmbach, T. Taylor, and Williams.

Members Absent: None.

Committee Business: SSB 3087, SF 2170, SF 2153, SF 2096, SSB 3120, SSB 3119, SF 2227, SF 2223, SSB 3121, and SSB 3117.

Adjourned: 11:10 a.m.

VETERANS AFFAIRS

Convened: Tuesday, February 15, 2022, 1:00 p.m.

Members Present: Lofgren, Chair; Reichman, Vice Chair; Carlin, Costello, Dawson, Dotzler, Edler, Green, Mathis, and Ragan.

Members Absent: Giddens, Ranking Member (excused).

Committee Business: Committee business.

Adjourned: 1:10 p.m.

INTRODUCTION OF RESOLUTION

Senate Joint Resolution 2005, by Sweeney, a joint resolution designating the American cream draft horse as the official state horse of the State of Iowa.

Read first time under Rule 28 and referred to committee on **State Government**.

INTRODUCTION OF BILLS

Senate File 2274, by committee on State Government, a bill for an act relating to the records of the Iowa public broadcasting board.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2275, by committee on Commerce, a bill for an act relating to matters under the purview of the state, including unemployment benefits and civil torts.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2276, by committee on Commerce, a bill for an act relating to direct health care agreements, and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2277, by committee on Local Government, a bill for an act relating to certain emergency services provided by a city.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2278, by committee on Local Government, a bill for an act relating to disciplinary proceedings under civil service.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2279, by committee on Local Government, a bill for an act regarding electronic submission of bids for public improvement contracts.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2280, by committee on Local Government, a bill for an act relating to certain deadlines relating to the informal review and protest of property assessments in counties declared to be a disaster area.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2281, by committee on Local Government, a bill for an act relating to the authority of a county treasurer to postpone or cancel an annual tax sale.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2282, by committee on Local Government, a bill for an act providing for the removal of municipal utility board members under specified circumstances and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2283, by committee on Local Government, a bill for an act relating to required considerations by a county compensation board.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2284, by committee on Local Government, a bill for an act prohibiting the burdening of a person's free exercise of religion.

Read first time under Rule 28 and **placed on calendar**.

STUDY BILLS RECEIVED

SSB 3144 Human Resources

Relating to reimbursement of psychiatric intensive inpatient care under the Medicaid program.

SSB 3145 Human Resources

Relating to pregnancy support including by creating the more options for maternal support program and expanding Medicaid postpartum coverage and making appropriations.

SUBCOMMITTEE ASSIGNMENTS

Senate Joint Resolution 2001
(Reassigned)

STATE GOVERNMENT: Johnson, Chair; Bisignano and Koelker

Senate File 2224
(Reassigned)

COMMERCE: Nunn, Chair; Lykam and R. Smith

Senate File 2264

APPROPRIATIONS: Costello, Chair; Lofgren and Ragan

Senate File 2271

STATE GOVERNMENT: Guth, Chair; Celsi and Johnson

Senate File 2273

EDUCATION: Sinclair, Chair; Rozenboom and J. Smith

SSB 3144

HUMAN RESOURCES: Edler, Chair; Costello and Trone Garriott

SSB 3145

HUMAN RESOURCES: Costello, Chair; Edler and Jochum

FINAL COMMITTEE REPORTS OF BILL ACTION

COMMERCE

Bill Title: SENATE FILE 2275 (SSB 3093), a bill for an act relating to matters under the purview of the state, including unemployment benefits and civil torts.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 9: Schultz, Koelker, Brown, Goodwin, Johnson, Klimesh, Sinclair, R. Smith, and Williams. Nays, 5: Bisignano, Lykam, Mathis, Petersen, and Quirmbach. Excused, 3: Giddens, Chapman, and Nunn.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2276 (SSB 3071), a bill for an act relating to direct health care agreements, and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 9: Schultz, Koelker, Brown, Goodwin, Johnson, Klimesh, Sinclair, R. Smith, and Williams. Nays, 5: Bisignano, Lykam, Mathis, Petersen, and Quirmbach. Excused, 3: Giddens, Chapman, and Nunn.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

LOCAL GOVERNMENT

Bill Title: SENATE FILE 2277 (formerly SF 2227), a bill for an act relating to certain emergency services provided by a city.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 9: Shipley, Klimesh, Driscoll, Garrett, Guth, Hogg, Lofgren, Quirmbach, and Williams. Nays, 2: J. Smith and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2278 (formerly SF 2223), a bill for an act relating to disciplinary proceedings under civil service.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Shipley, Klimesh, Driscoll, Garrett, Guth, Lofgren, and Williams. Nays, 4: J. Smith, Hogg, Quirmbach, and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2279 (SSB 3119), a bill for an act regarding electronic submission of bids for public improvement contracts.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Shipley, Klimesh, J. Smith, Driscoll, Garrett, Guth, Hogg, Lofgren, Quirmbach, T. Taylor, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2280 (SSB 3120), a bill for an act relating to certain deadlines relating to the informal review and protest of property assessments in counties declared to be a disaster area.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Shipley, Klimesh, J. Smith, Driscoll, Garrett, Guth, Hogg, Lofgren, Quirmbach, T. Taylor, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2281 (SSB 3121), a bill for an act relating to the authority of a county treasurer to postpone or cancel an annual tax sale.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Shipley, Klimesh, J. Smith, Driscoll, Garrett, Guth, Hogg, Lofgren, Quirmbach, T. Taylor, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2282 (SSB 3087), a bill for an act providing for the removal of municipal utility board members under specified circumstances and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Shipley, Klimesh, Driscoll, Garrett, Guth, Lofgren, and Williams. Nays, 4: J. Smith, Hogg, Quirmbach, and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2283 (SSB 3117), a bill for an act relating to required considerations by a county compensation board.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Shipley, Klimesh, Driscoll, Garrett, Guth, Lofgren, and Williams. Nays, 4: J. Smith, Hogg, Quirmbach, and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2284 (formerly SF 2170), a bill for an act prohibiting the burdening of a person's free exercise of religion.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Shipley, Klimesh, Driscoll, Garrett, Guth, Lofgren, and Williams. Nays, 4: J. Smith, Hogg, Quirmbach, and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

STATE GOVERNMENT

Bill Title: *SENATE FILE 2274 (SSB 3028), a bill for an act relating to the records of the Iowa public broadcasting board.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 9: R. Smith, Cournoyer, Bisignano, Brown, Goodwin, Guth, Koelker, Reichman, and Schultz. Nays, 4: Boulton, Celsi, Giddens, and Jochum. Excused, 2: Dawson and Johnson.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate File 2274, and they were attached to the committee report.

GOVERNOR'S APPOINTEE PLACED ON INDIVIDUAL CONFIRMATION CALENDAR

The following appointee, assigned to standing committee for investigation, was placed on the Individual Confirmation Calendar with recommendation for confirmation:

VETERANS AFFAIRS

Matthew Peterson – Commandant of the Iowa Veterans Home

JOURNAL OF THE SENATE

THIRTY-EIGHTH CALENDAR DAY
TWENTY-THIRD SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, February 16, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Williams, member of the Senate from Carroll County, Manning, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Grace Tollefson.

The Journal of Tuesday, February 15, 2022, was approved.

BILL REFERRED TO COMMITTEE

President Chapman announced that **House File 2128** was referred from the Regular Calendar to the committee on **Ways and Means** under Senate Rule 38.

ADJOURNMENT

On motion of Senator Cournoyer, the Senate adjourned at 9:09 a.m. until 9:00 a.m., Thursday, February 17, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

ECONOMIC DEVELOPMENT AUTHORITY

Businesses and Community-Based Seed Capital Funds Tax Credits Report, pursuant to Iowa Code section 15E.46. Report received on February 15, 2022.

DEPARTMENT OF TRANSPORTATION

Replacement and Repair of Structurally Deficient Secondary Bridges, pursuant to Iowa Code section 307.32. Report received on February 16, 2022.

REPORTS OF COMMITTEE MEETINGS

COMMERCE

Convened: Wednesday, February 16, 2022, 11:00 a.m.

Members Present: Schultz, Chair; Koelker, Vice Chair; Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams.

Members Absent: Giddens, Ranking Member (excused).

Committee Business: SSB 3126, SSB 3070, SSB 3125, SSB 3032, SSB 3124, SSB 3127, SF 2213, and SF 2224.

Adjourned: 12:40 p.m.

HUMAN RESOURCES

Convened: Wednesday, February 16, 2022, 1:30 p.m.

Members Present: Edler, Chair; Costello, Vice Chair; Mathis, Ranking Member; Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott.

Members Absent: None.

Committee Business: Consideration and passage of the following bills: SF 2169, SF 2210, SF 2214, and SSB 3116.

Adjourned: 1:40 p.m.

JUDICIARY

Convened: Tuesday, February 15, 2022, 3:00 p.m.

Members Present: Zaun, Chair; Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: None.

Committee Business: SSB 3021, SSB 3024, SF 2111, SF 2091, SSB 3016, SSB 3083, SF 241, SF 2173, SF 2159, SSB 3109, and SSB 3110.

Adjourned: 4:20 p.m.

NATURAL RESOURCES AND ENVIRONMENT

Convened: Wednesday, February 16, 2022, 2:30 p.m.

Members Present: Sweeney, Chair; Driscoll, Vice Chair; Trone Garriott, Ranking Member; Boulton, Celsi, Cournoyer, Green, Hogg, Lykam, Shipley, J. Taylor, and Zumbach.

Members Absent: Rozenboom (excused).

Committee Business: Consider eligible bills.

Adjourned: 3:05 p.m.

INTRODUCTION OF BILLS

Senate File 2285, by committee on Local Government, a bill for an act relating to requirements for additional members of a city planning and zoning commission and a board of adjustment when a city extends its zoning jurisdiction.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2286, by committee on Labor and Business Relations, a bill for an act relating to railroad train length limits, and making penalties applicable.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2287, by committee on Commerce, a bill for an act relating to scrap metal transactions, including by regulating the sale of catalytic converters to scrap metal dealers and providing for recordkeeping requirements, providing penalties, and making penalties applicable.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2288, by committee on Commerce, a bill for an act relating to life insurance company or association investments in foreign countries other than Canada, and including applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2289, by committee on Veterans Affairs, a bill for an act relating to requirements for veteran special registration plates.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2290, by committee on Agriculture, a bill for an act establishing a dairy processing and milk production innovation and revitalization fund and program to be administered by the economic development authority, in consultation with the department of agriculture and land stewardship, and creating a task force to explore the feasibility of establishing an artisanal dairy processing program at a community college or at an institution governed by the state board of regents.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2291, by Administrative Rules Review Committee, a bill for an act relating to para-educators holding substitute authorizations and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2292, by committee on Judiciary, a bill for an act relating to application of specific penalties to an assault on a social worker under certain circumstances.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2293, by committee on Judiciary, a bill for an act relating to the Iowa drug policy coordinator and the Iowa drug policy advisory council.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2294, by committee on Judiciary, a bill for an act relating to nonsubstantive Code corrections, and including retroactive applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2295, by committee on Judiciary, a bill for an act relating to statutory corrections which may adjust language to reflect current practices, insert earlier omissions, delete redundancies and inaccuracies, delete temporary language, resolve inconsistencies and conflicts, update ongoing provisions, or remove ambiguities, and including retroactive applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2296, by committee on Judiciary, a bill for an act relating to a peace officer's search of garbage placed outside of a person's residence for waste collection in a publicly accessible area.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2297, by committee on Judiciary, a bill for an act relating to jury service disqualification for certain felons.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2298, by committee on Local Government, a bill for an act authorizing a local emergency management commission to assume the duties of a joint 911 service board.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2299, by Boulton, a bill for an act relating to the disabled veteran homestead tax credit and the military service property tax exemption and credit and including effective date, applicability, and retroactive applicability provisions.

Read first time under Rule 28 and referred to committee on **Veterans Affairs**.

Senate File 2300, by Boulton, a bill for an act including the loss of or lost use of a shoulder as a compensable injury for second injury fund benefits.

Read first time under Rule 28 and referred to committee on **Labor and Business Relations**.

Senate File 2301, by Boulton, a bill for an act relating to temporary, seasonal layoffs that may waive or alter work search requirements for unemployment benefits.

Read first time under Rule 28 and referred to committee on **Labor and Business Relations**.

Senate File 2302, by Boulton, a bill for an act relating to prohibitions on noncompete covenants and including applicability provisions.

Read first time under Rule 28 and referred to committee on **Labor and Business Relations**.

Senate File 2303, by committee on Judiciary, a bill for an act relating to corporations by providing for the use of electronic mail and other electronic transmissions, and shareholders' lists.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2304, by T. Taylor, a bill for an act relating to providing family and medical leave for railroad employees and providing a penalty.

Read first time under Rule 28 and referred to committee on **Labor and Business Relations**.

STUDY BILLS RECEIVED

SSB 3146 Education

Relating to student eligibility requirements in school district, accredited nonpublic school, charter school, community college, and regent institution athletics based on sex.

SSB 3147 Ways and Means

Relating to state and local finances and the duties and procedures of the department of revenue by providing for electronic filing, communications, and records, modifying transfer tax remittances, the assessment of property, the collection of debt, and the taxation of pass-through entities, reducing inheritance taxes for unknown heirs, establishing salaries, providing for a fee, making appropriations, and providing penalties, and including effective date, applicability, and retroactive applicability provisions.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2261

WAYS AND MEANS: Goodwin, Chair; Dawson and Dotzler

SSB 3146

EDUCATION: Goodwin, Chair; Celsi, Cournoyer, Quirmbach, and Sinclair

SSB 3147

WAYS AND MEANS: Dawson, Chair; Goodwin and Petersen

FINAL COMMITTEE REPORTS OF BILL ACTION

AGRICULTURE

Bill Title: SENATE FILE 2290 (SSB 3135), a bill for an act establishing a dairy processing and milk production innovation and revitalization fund and program to be administered by the economic development authority, in consultation with the department of agriculture and land stewardship, and creating a task force to explore the feasibility of establishing an artisanal dairy processing program at a community college or at an institution governed by the state board of regents.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Zumbach, Sweeney, Kinney, Costello, Edler, Green, Mathis, Ragan, Rozenboom, Shipley, J. Smith, and Wahls. Nays, none. Excused, 1: Driscoll.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

COMMERCE

Bill Title: *SENATE FILE 2287 (SSB 3088), a bill for an act relating to scrap metal transactions, including by regulating the sale of catalytic converters to scrap metal dealers and providing for recordkeeping requirements, providing penalties, and making penalties applicable.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 9: Schultz, Koelker, Brown, Goodwin, Johnson, Klimesh, Sinclair, R. Smith, and Williams. Nays, 5: Bisignano, Lykam, Mathis, Petersen, and Quirmbach. Excused, 3: Giddens, Chapman, and Nunn.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Commerce Committee on Senate File 2287, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2288 (SSB 3069), a bill for an act relating to life insurance company or association investments in foreign countries other than Canada, and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Schultz, Koelker, Bisignano, Brown, Goodwin, Johnson, Klimesh, Lykam, Mathis, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, 3: Giddens, Chapman, and Nunn.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Commerce Committee on Senate File 2288, and they were attached to the committee report.

HUMAN RESOURCES

Bill Title: SENATE FILE 2169, a bill for an act relating to assisted reproduction fraud, and providing penalties.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2210, a bill for an act relating to health care employment agencies, and providing penalties.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2214, a bill for an act establishing a therapeutic foster care services study committee.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JUDICIARY

Bill Title: SENATE FILE 241, a bill for an act relating to the dissemination and exhibition of obscene material to a minor by the parent or guardian of the minor, and providing penalties.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2292 (formerly SF 2159), a bill for an act relating to application of specific penalties to an assault on a social worker under certain circumstances.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2293 (SSB 3024), a bill for an act relating to the Iowa drug policy coordinator and the Iowa drug policy advisory council.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2294 (SSB 3110), a bill for an act relating to nonsubstantive Code corrections, and including retroactive applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2295 (SSB 3109), a bill for an act relating to statutory corrections which may adjust language to reflect current practices, insert earlier omissions, delete redundancies and inaccuracies, delete temporary language, resolve inconsistencies and conflicts, update ongoing provisions, or remove ambiguities, and including retroactive applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2296 (formerly SF 2111), a bill for an act relating to a peace officer's search of garbage placed outside of a person's residence for waste collection in a publicly accessible area.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2297 (formerly SF 2091), a bill for an act relating to jury service disqualification for certain felons.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2303 (SSB 3083), a bill for an act relating to corporations by providing for the use of electronic mail and other electronic transmissions, and shareholders' lists.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

LABOR AND BUSINESS RELATIONS

Bill Title: *SENATE FILE 2286 (formerly SF 2051), a bill for an act relating to railroad train length limits, and making penalties applicable.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Dickey, Green, Boulton, Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Labor and Business Relations Committee on Senate File 2286, and they were attached to the committee report.

LOCAL GOVERNMENT

Bill Title: *SENATE FILE 2285 (formerly SF 2096), a bill for an act relating to requirements for additional members of a city planning and zoning commission and a board of adjustment when a city extends its zoning jurisdiction.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Shipley, Klimesh, J. Smith, Driscoll, Garrett, Guth, Hogg, Lofgren, Quirmbach, T. Taylor, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Local Government Committee on Senate File 2285, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2298 (formerly SF 2153), a bill for an act authorizing a local emergency management commission to assume the duties of a joint 911 service board.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Shipley, Klimesh, J. Smith, Driscoll, Garrett, Guth, Hogg, Lofgren, Quirmbach, T. Taylor, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Local Government Committee on Senate File 2298, and they were attached to the committee report.

STATE GOVERNMENT

Bill Title: SENATE FILE 2093, a bill for an act relating to accommodations in housing provided to persons with a disability-related need for assistance animals and service animals, and providing penalties.

Recommendation: DO PASS.

Final Vote: Yeas, 14: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

VETERANS AFFAIRS

Bill Title: *SENATE FILE 2289 (formerly SF 2217), a bill for an act relating to requirements for veteran special registration plates.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Lofgren, Reichman, Carlin, Costello, Dawson, Dotzler, Edler, Green, Mathis, and Ragan. Nays, none. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Veterans Affairs Committee on Senate File 2289, and they were attached to the committee report.

JOURNAL OF THE SENATE

THIRTY-NINTH CALENDAR DAY
TWENTY-FOURTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, February 17, 2022

The Senate met in regular session at 9:02 a.m., President Chapman presiding.

Prayer was offered by the Honorable Jason Schultz, member of the Senate from Crawford County, Schleswig, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Ian Critelli.

The Journal of Wednesday, February 16, 2022, was approved.

HOUSE MESSAGE RECEIVED AND CONSIDERED

The following message was received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on February 16, 2022, **passed** the following bill in which the concurrence of the Senate is asked:

House File 2317, a bill for an act relating to state revenue and finance by modifying the individual income tax, making appropriations, and including effective date and applicability provisions.

Read first time and attached to **similar Senate File 2206**.

INTRODUCTION OF GOVERNOR'S APPOINTEE

The Secretary of the Senate introduced to the Senate chamber Stanley Thompson, the Governor's appointee to be the Director of the Iowa State Civil Rights Commission.

BILLS MOVED TO UNFINISHED BUSINESS CALENDAR

Senator Whitver asked and received unanimous consent that **House File 2317** and **attached Senate File 2206** be placed on the Unfinished Business Calendar.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:12 a.m. until 1:00 p.m., Monday, February 21, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

ECONOMIC DEVELOPMENT AUTHORITY

Iowa Energy Center Annual Report, pursuant to Iowa Code section 15.120. Report received on February 17, 2022.

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Gerald "Bud" Claude, Alden—For celebrating his 90th birthday. Senator Sweeney.

Alice Mae Williams, New Providence—For celebrating her 90th birthday. Senator Sweeney.

REPORTS OF COMMITTEE MEETINGS

EDUCATION

Convened: Thursday, February 17, 2022, 11:40 a.m.

Members Present: Sinclair, Chair; J. Taylor, Vice Chair; Quirmbach, Ranking Member; Carlin, Celsi, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun.

Members Absent: Giddens (excused).

Committee Business: Consideration and passage of the following bills: SF 89, SF 2107, SF 2112, SF 2203, SF 2248, SSB 3103, SSB 3104, SSB 3080, SSB 3082, SSB 3085, and SSB 3146.

Adjourned: 12:25 p.m.

HUMAN RESOURCES

Convened: Thursday, February 17, 2022, 9:20 a.m.

Members Present: Edler, Chair; Costello, Vice Chair; Mathis, Ranking Member; Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott.

Members Absent: None.

Committee Business: Consideration and passage of the following bills: SF 2216, SSB 3144, SF 2028, SF 2258, SSB 3122, and SSB 3145.

Adjourned: 10:15 a.m.

JUDICIARY

Convened: Wednesday, February 16, 2022, 3:00 p.m.

Members Present: Zaun, Chair; Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: None.

Committee Business: SSB 3060, SF 2090, SF 513, SSB 3091, SSB 3111, SSB 3012, SF 2198, SSB 3025, and SF 2226.

Adjourned: 5:00 p.m.

TRANSPORTATION

Convened: Thursday, February 17, 2022, 10:20 a.m.

Members Present: Brown, Chair; Dickey, Vice Chair; J. Smith, Ranking Member; Bisignano, Driscoll, Klimesh, Lykam, Rozenboom, Shipley, T. Taylor, and Zumbach.

Members Absent: Giddens and Koelker (both excused).

Committee Business: SF 2078, SF 2144, SSB 3106, SSB 3059, SSB 3132, and SSB 3138.

Adjourned: 10:35 a.m.

INTRODUCTION OF BILLS

Senate File 2305, by committee on Commerce, a bill for an act regarding port authorities, including by allowing port authorities to enter into certain loan agreements and lease contracts.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2306, by committee on State Government, a bill for an act relating to high school event admission fees for people eighteen years of age or younger, making appropriations, and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2307, by committee on State Government, a bill for an act relating to professional licensing boards, including requirements related to the submission of official transcripts or diplomas.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2308, by committee on Commerce, a bill for an act relating to utility service cost disclosures in connection with certain rental properties, providing civil penalties, and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2309, by committee on Commerce, a bill for an act relating to milk and associated products, by providing for certain items relating to milk to be transferred directly by operators of dairy farms, providing for the labeling of unpasteurized and ungraded milk and products, and making penalties applicable.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2310, by committee on Commerce, a bill for an act relating to multiple housing cooperatives, including by providing for the conversion to a cooperative under the Iowa cooperative associations Act and merger with a limited liability company.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2311, by committee on Natural Resources and Environment, a bill for an act relating to the adoption and use of certain general permits issued by the department of natural resources.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2312, by committee on Natural Resources and Environment, a bill for an act relating to the acquisition of real property by county conservation boards and the department of natural resources.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2313, by committee on Commerce, a bill for an act relating to communication methods regarding the disposition of unclaimed property and including applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2314, by committee on Human Resources, a bill for an act increasing the amount of cash reserves mental health and disability services regions may have before affecting quarterly payment amounts and incentive fund eligibility.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2315, by committee on Judiciary, a bill for an act relating to probate indigent defense fees and trial transcript fees.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2316, by committee on Judiciary, a bill for an act relating to trusts, including optional notices to creditors when a will has been admitted to probate without administration and the trust is the beneficiary of the estate, trust accounting, specific powers of a trustee, and representation of holders of power and similar interests.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2317, by committee on Natural Resources and Environment, a bill for an act relating to the conveyance of guns in or on vehicles on public highways.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2318, by T. Taylor, a bill for an act relating to the solar energy system tax credit available against the individual or corporate income tax, the franchise tax, and the moneys and credits tax, and including effective date and retroactive applicability provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2319, by committee on Judiciary, a bill for an act prohibiting the use of automated or remote systems for traffic law enforcement, including prohibiting the sharing of related information and requiring the removal of existing systems, and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2320, by committee on Commerce, a bill for an act relating to the delivery of restaurant food pursuant to a third-party food delivery service.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2321, by committee on Agriculture, a bill for an act relating to utility-scale solar energy facilities installation on agricultural land.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2322, by committee on State Government, a bill for an act relating to the assessment of fees when a person requests examination and copying of public records.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2323, by committee on Natural Resources and Environment, a bill for an act relating to the inventory of state lands managed or owned by the department of natural resources.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2324, by committee on State Government, a bill for an act relating to the designation of real estate teams and the display of real estate licenses, and including applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2325, by committee on Commerce, a bill for an act related to matters under the purview of the economic development authority including the high quality jobs program, the Iowa energy center, and the workforce housing tax incentive program, and including effective date and retroactive applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2326, by Klimesh, Driscoll, Johnson, and Reichman, a bill for an act relating to the solar energy system tax credit, and including effective date and applicability provisions.

Read first time under Rule 28 and referred to committee on **Ways and Means**.

Senate File 2327, by committee on Judiciary, a bill for an act relating to the appointment of counsel for indigent persons by the court in certain cases.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2328, by committee on Judiciary, a bill for an act relating to criminal law including the disclosure of a defendant's privileged records in a criminal action, permanent no-contact orders, penalties for domestic abuse assault, limitations on criminal actions involving certain sexual offenses, criminal sentencing and corrections, parole and work release, crime victim rights, discovery in criminal actions, postconviction relief procedure, and certain reporting requirements, and making penalties applicable.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2329, by committee on Judiciary, a bill for an act relating to evidence, including spousal privilege and confidential communications between spouses, and the admissibility of evidence in a prosecution for physical abuse or a sexual offense upon or against a child, person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2330, by committee on Natural Resources and Environment, a bill for an act relating to the submission of a groundwater hazard statement.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2331, by committee on Human Resources, a bill for an act relating to reimbursement of psychiatric intensive inpatient care under the Medicaid program.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2332, by committee on Judiciary, a bill for an act relating to pretrial bond amounts for certain felonies.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2333, by committee on Judiciary, a bill for an act relating to the uniform commercial code by providing for controllable electronic records.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2334, by committee on Natural Resources and Environment, a bill for an act relating to shotguns that may be used to hunt turkey.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2335, by committee on Human Resources, a bill for an act relating to required documented consent prior to immunization or vaccination of a minor.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2336, by committee on Transportation, a bill for an act authorizing certain motor vehicles to display one registration plate.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2337, by committee on Transportation, a bill for an act relating to third-party testers and test examiners for commercial driver's license knowledge and driving skills tests.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2338, by committee on Transportation, a bill for an act relating to department of transportation employees designated as peace officers, and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2339, by Celsi, a bill for an act relating to excused absences for public school district student mental health days.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2340, by Celsi, a bill for an act relating to education, including responsibilities of the board of educational examiners with respect to background checks, endorsements, and authorizations, requiring the boards of directors of school districts to make payments to certain specified student teachers and full-time employees, requiring the boards of directors of school districts to hire a certain specified amount of substitute teachers, making appropriations, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2341, by Celsi, a bill for an act establishing a school mental health staff supplement, making appropriations, and including effective date provisions.

Read first time under Rule 28 and referred to committee on **Education**.

Senate File 2342, by committee on Education, a bill for an act relating to student eligibility requirements in school district, accredited nonpublic school, charter school, community college, and regent institution athletics based on sex.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2343, by committee on State Government, a bill for an act relating to the conduct of elections, including provisions related to absentee ballots, recounts, and contested gubernatorial elections and impeachments, making penalties applicable, and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

STUDY BILLS RECEIVED

SSB 3148 Appropriations

Relating to the funding of, the operation of, and appropriation of moneys to the college student aid commission, the department for the blind, the department of education, and the state board of regents, and providing for properly related matters.

SSB 3149 Appropriations

Relating to appropriations to the justice system.

SUBCOMMITTEE ASSIGNMENTS

Senate Joint Resolution 2005

STATE GOVERNMENT: Johnson, Chair; Celsi and Guth

Senate File 2270

APPROPRIATIONS: Edler, Chair; Costello and Ragan

Senate File 2272

VETERANS AFFAIRS: Edler, Chair; Costello and Ragan

Senate File 2291

EDUCATION: Cournoyer, Chair; Johnson and J. Smith

Senate File 2299

VETERANS AFFAIRS: Edler, Chair; Costello and Giddens

House File 2128

WAYS AND MEANS: Brown, Chair; Dawson, Petersen, Sweeney, and T. Taylor

House File 2315

APPROPRIATIONS: Kraayenbrink, Chair; Cournoyer and J. Smith

SSB 3148

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom and Lofgren

SSB 3149

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom and Lofgren

FINAL COMMITTEE REPORTS OF BILL ACTION

AGRICULTURE

Bill Title: *SENATE FILE 2321 (formerly SF 2127), a bill for an act relating to utility-scale solar energy facilities installation on agricultural land.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Zumbach, Sweeney, Costello, Edler, Green, Rozenboom, and Shipley. Nays, 5: Kinney, Mathis, Ragan, J. Smith, and Wahls. Excused, 1: Driscoll.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Agriculture Committee on Senate File 2321, and they were attached to the committee report.

COMMERCE

Bill Title: SENATE FILE 2305 (SSB 3070), a bill for an act regarding port authorities, including by allowing port authorities to enter into certain loan agreements and lease contracts.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 16: Schultz, Koelker, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2308 (formerly SF 2224), a bill for an act relating to utility service cost disclosures in connection with certain rental properties, providing civil penalties, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Schultz, Koelker, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, 1: Lykam. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2309 (SSB 3126), a bill for an act relating to milk and associated products, by providing for certain items relating to milk to be transferred directly by operators of dairy farms, providing for the labeling of unpasteurized and ungraded milk and products, and making penalties applicable.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Schultz, Koelker, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Nunn, Sinclair, and Williams. Nays, 3: Mathis, Petersen, and Quirmbach. Excused, 2: Giddens and R. Smith.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2310 (SSB 3124), a bill for an act relating to multiple housing cooperatives, including by providing for the conversion to a cooperative under the Iowa cooperative associations Act and merger with a limited liability company.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Schultz, Koelker, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, and Williams. Nays, none. Excused, 2: Giddens and R. Smith.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2313 (SSB 3127), a bill for an act relating to communication methods regarding the disposition of unclaimed property and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Schultz, Koelker, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, and Williams. Nays, none. Excused, 2: Giddens and R. Smith.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2320 (formerly SF 2213), a bill for an act relating to the delivery of restaurant food pursuant to a third-party food delivery service.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Schultz, Koelker, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, and Williams. Nays, none. Excused, 2: Giddens and R. Smith.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2325 (SSB 3032), a bill for an act related to matters under the purview of the economic development authority including the high quality jobs program, the Iowa energy center, and the workforce housing tax incentive program, and including effective date and retroactive applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Schultz, Koelker, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, and Williams. Nays, none. Excused, 2: Giddens and R. Smith.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Commerce Committee on Senate File 2325, and they were attached to the committee report.

EDUCATION

Bill Title: SENATE FILE 2342 (SSB 3146), a bill for an act relating to student eligibility requirements in school district, accredited nonpublic school, charter school, community college, and regent institution athletics based on sex.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Sinclair, J. Taylor, Carlin, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, Sweeney, and Zaun. Nays, 4: Quirmbach, Celsi, J. Smith, and Trone Garriott. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

HUMAN RESOURCES

Bill Title: SENATE FILE 2216, a bill for an act relating to the establishment of state intensive psychiatric units at the state mental health institutes.

Recommendation: DO PASS.

Final Vote: Yeas, 12: Edler, Costello, Mathis, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, 1: Bolkcom. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2258, a bill for an act relating to the release of nursing facility reimbursement rates under the Medicaid program.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2314 (SSB 3116), a bill for an act increasing the amount of cash reserves mental health and disability services regions may have before affecting quarterly payment amounts and incentive fund eligibility.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2331 (SSB 3144), a bill for an act relating to reimbursement of psychiatric intensive inpatient care under the Medicaid program.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2335 (formerly SF 2028), a bill for an act relating to required documented consent prior to immunization or vaccination of a minor.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 8: Edler, Costello, Garrett, Green, Johnson, Lofgren, Rowley, and Sweeney. Nays, 5: Mathis, Bolkcom, Jochum, Ragan, and Trone Garriott. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Human Resources Committee on Senate File 2335, and they were attached to the committee report.

JUDICIARY

Bill Title: SENATE FILE 513, a bill for an act relating to the confidentiality of certain law enforcement information involving a person experiencing a mental health crisis, substance-related disorder crisis, or housing crisis.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2315 (SSB 3060), a bill for an act relating to probate indigent defense fees and trial transcript fees.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2316 (SSB 3111), a bill for an act relating to trusts, including optional notices to creditors when a will has been admitted to probate without administration and the trust is the beneficiary of the estate, trust accounting, specific powers of a trustee, and representation of holders of power and similar interests.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2319 (SSB 3012), a bill for an act prohibiting the use of automated or remote systems for traffic law enforcement, including prohibiting the sharing of related information and requiring the removal of existing systems, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 9: Zaun, Garrett, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 6: Kinney, Bisignano, Bolkcom, Boulton, Dawson, and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2327 (SSB 3021), a bill for an act relating to the appointment of counsel for indigent persons by the court in certain cases.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2327, and they were attached to the committee report.

ALSO:

Bill Title: SENATE FILE 2328 (formerly SF 2226), a bill for an act relating to criminal law including the disclosure of a defendant's privileged records in a criminal action, permanent no-contact orders, penalties for domestic abuse assault, limitations on criminal actions involving certain sexual offenses, criminal sentencing and corrections, parole and work release, crime victim rights, discovery in criminal actions, postconviction relief procedure, and certain reporting requirements, and making penalties applicable.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Zaun, Garrett, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 5: Kinney, Bisignano, Bolkcom, Boulton, and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2329 (SSB 3016), a bill for an act relating to evidence, including spousal privilege and confidential communications between spouses, and the admissibility of evidence in a prosecution for physical abuse or a sexual offense upon or against a child, person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2329, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2332 (formerly SF 2090), a bill for an act relating to pretrial bond amounts for certain felonies.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2332, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2333 (SSB 3091), a bill for an act relating to the uniform commercial code by providing for controllable electronic records.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2333, and they were attached to the committee report.

NATURAL RESOURCES AND ENVIRONMENT

Bill Title: SENATE FILE 2311 (SSB 3052), a bill for an act relating to the adoption and use of certain general permits issued by the department of natural resources.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Sweeney, Driscoll, Trone Garriott, Boulton, Cournoyer, Green, Lykam, Shipley, J. Taylor, and Zumbach. Nays, 2: Celsi and Hogg. Excused, 1: Rozenboom.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2312 (SSB 3134), a bill for an act relating to the acquisition of real property by county conservation boards and the department of natural resources.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Sweeney, Driscoll, Cournoyer, Green, Shipley, J. Taylor, and Zumbach. Nays, 5: Trone Garriott, Boulton, Celsi, Hogg, and Lykam. Excused, 1: Rozenboom.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2317 (formerly SF 2145), a bill for an act relating to the conveyance of guns in or on vehicles on public highways.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Sweeney, Driscoll, Cournoyer, Green, Shipley, J. Taylor, and Zumbach. Nays, 5: Trone Garriott, Boulton, Celsi, Hogg, and Lykam. Excused, 1: Rozenboom.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2323 (formerly SF 2152), a bill for an act relating to the inventory of state lands managed or owned by the department of natural resources.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Sweeney, Driscoll, Trone Garriott, Boulton, Cournoyer, Green, Lykam, Shipley, J. Taylor, and Zumbach. Nays, 2: Celsi and Hogg. Excused, 1: Rozenboom.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Natural Resources and Environment Committee on Senate File 2323, and they were attached to the committee report.

ALSO:

**Bill Title: ***SENATE FILE 2330 (SSB 3076), a bill for an act relating to the submission of a groundwater hazard statement.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Sweeney, Driscoll, Trone Garriott, Boulton, Celsi, Cournoyer, Green, Hogg, Lykam, Shipley, J. Taylor, and Zumbach. Nays, none. Excused, 1: Rozenboom.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Natural Resources and Environment Committee on Senate File 2330, and they were attached to the committee report.

ALSO:

**Bill Title: ***SENATE FILE 2334 (formerly SF 2138), a bill for an act relating to shotguns that may be used to hunt turkey.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Sweeney, Driscoll, Trone Garriott, Boulton, Celsi, Cournoyer, Green, Hogg, Lykam, Shipley, J. Taylor, and Zumbach. Nays, none. Excused, 1: Rozenboom.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Natural Resources and Environment Committee on Senate File 2334, and they were attached to the committee report.

STATE GOVERNMENT

Bill Title: SENATE FILE 2260, a bill for an act providing for the adoption of certain animals confined by research facilities.

Recommendation: DO PASS.

Final Vote: Yeas, 13: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Goodwin, Guth, Jochum, Johnson, Reichman, and Schultz. Nays, none. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2271, a bill for an act relating to the investment of certain public funds in companies that are owned or controlled by Chinese military or government services.

Recommendation: DO PASS.

Final Vote: Yeas, 12: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Dawson, Goodwin, Guth, Jochum, Johnson, Reichman, and Schultz. Nays, 1: Celsi. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2306 (formerly SF 2239), a bill for an act relating to high school event admission fees for people eighteen years of age or younger, making appropriations, and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, 1: Goodwin. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate File 2306, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2307 (SSB 3114), a bill for an act relating to professional licensing boards, including requirements related to the submission of official transcripts or diplomas.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Dawson, Goodwin, Guth, Johnson, Koelker, Reichman, and Schultz. Nays, 2: Celsi and Jochum. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate File 2307, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2322 (formerly SF 480), a bill for an act relating to the assessment of fees when a person requests examination and copying of public records.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate File 2322, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2324 (SSB 3115), a bill for an act relating to the designation of real estate teams and the display of real estate licenses, and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate File 2324, and they were attached to the committee report.

ALSO:

Bill Title: SENATE FILE 2343 (SSB 3143), a bill for an act relating to the conduct of elections, including provisions related to absentee ballots, recounts, and contested gubernatorial elections and impeachments, making penalties applicable, and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 9: R. Smith, Cournoyer, Brown, Dawson, Goodwin, Guth, Johnson, Reichman, and Schultz. Nays, 4: Bisignano, Boulton, Celsi, and Jochum. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

TRANSPORTATION

Bill Title: SENATE FILE 2336 (SSB 3138), a bill for an act authorizing certain motor vehicles to display one registration plate.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 8: Brown, Dickey, Bisignano, Driscoll, Klimesh, Rozenboom, Shipley, and Zumbach. Nays, 3: J. Smith, Lykam, and T. Taylor. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2337 (SSB 3132), a bill for an act relating to third-party testers and test examiners for commercial driver's license knowledge and driving skills tests.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Brown, Dickey, J. Smith, Bisignano, Driscoll, Klimesh, Lykam, Rozenboom, Shipley, T. Taylor, and Zumbach. Nays, none. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2338 (SSB 3059), a bill for an act relating to department of transportation employees designated as peace officers, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Brown, Dickey, J. Smith, Bisignano, Driscoll, Klimesh, Lykam, Rozenboom, Shipley, T. Taylor, and Zumbach. Nays, none. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

AMENDMENTS FILED

S–5009	S.F.	2295	Judiciary
S–5010	S.F.	2294	Judiciary

JOURNAL OF THE SENATE

FORTY-THIRD CALENDAR DAY
TWENTY-FIFTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, February 21, 2022

The Senate met in regular session at 1:04 p.m., President Chapman presiding.

Prayer was offered by the Honorable Eric Giddens, member of the Senate from Black Hawk County, Cedar Falls, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Kennedy Haag.

The Journal of Thursday, February 17, 2022, was approved.

BILLS REFERRED TO COMMITTEE

President Chapman announced that the following bills were referred from the Regular Calendar to committee under Senate Rule 38:

Senate File 2230	Ways and Means
Senate File 2280	Ways and Means
Senate File 2281	Ways and Means
Senate File 2306	Appropriations
Senate File 2349	Appropriations
Senate File 2350	Ways and Means
Senate File 2353	Ways and Means
Senate File 2354	Appropriations
Senate File 2361	Ways and Means

The Senate stood at ease at 1:12 p.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 2:12 p.m., President Chapman presiding.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Hogg, until he arrives, on request of Senator Wahls.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2011, 2232, 2233, and 2245.

Senate File 2011

On motion of Senator Rozenboom, **Senate File 2011**, a bill for an act relating to the purchasing of a youth deer hunting license and tag, with report of committee recommending passage, was taken up for consideration.

Senator Rozenboom moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2011), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2232

On motion of Senator Klimesh, **Senate File 2232**, a bill for an act relating to the sale, lease, or rental of water treatment systems and including effective date and applicability provisions, was taken up for consideration.

Senator Klimesh moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2232), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2233

On motion of Senator Brown, **Senate File 2233**, a bill for an act relating to terms used in the context of land surveying, was taken up for consideration.

Senator Brown offered amendment S–5011, filed by him from the floor to page 1 of the bill, and moved its adoption.

Amendment S–5011 was adopted by a voice vote.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2233), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2245

On motion of Senator Zumbach, **Senate File 2245**, a bill for an act providing a personal use exemption from licensing requirements of the Meat and Poultry Inspection Act, was taken up for consideration.

Senator Zumbach moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2245), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2011**, **2232**, **2233**, and **2245** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2266, 2268, 2288, and 2295.

Senate File 2266

On motion of Senator Goodwin, **Senate File 2266**, a bill for an act concerning compensation and benefits limits, relating to the earnings limitation for retirees under the Iowa public employees' retirement system and compensation limits for school corporation board members, and including effective date provisions, was taken up for consideration.

Senator Goodwin moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2266), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2268

On motion of Senator Edler, **Senate File 2268**, a bill for an act relating to child care center staff ratios, and including effective date provisions, was taken up for consideration.

Senator Jochum asked and received unanimous consent that action on **Senate File 2268** be **deferred**.

Senate File 2288

On motion of Senator Goodwin, **Senate File 2288**, a bill for an act relating to life insurance company or association investments in foreign countries other than Canada, and including applicability provisions, was taken up for consideration.

Senator Goodwin moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2288), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2295

On motion of Senator Zaun, **Senate File 2295**, a bill for an act relating to statutory corrections which may adjust language to reflect current practices, insert earlier omissions, delete redundancies and inaccuracies, delete temporary language, resolve inconsistencies and conflicts, update ongoing provisions, or remove ambiguities, and including retroactive applicability provisions, was taken up for consideration.

Senator Zaun offered amendment S–5009, filed by the committee on Judiciary on February 17, 2022, to pages 68–69 of the bill, and moved its adoption.

Amendment S–5009 was adopted by a voice vote.

Senator Zaun moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2295), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2266**, **2288**, and **2295** be **immediately messaged** to the House.

BUSINESS PENDING

Senate File 2268

The Senate resumed consideration of **Senate File 2268**, a bill for an act relating to child care center staff ratios, and including effective date provisions, previously deferred.

Senator Jochum offered amendment S–5012, filed by her from the floor to page 1 of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5012 be adopted?" (S.F. 2268), the vote was:

Yeas, 19:

Bisignano	Bolkcom	Boulton	Carlin
Celsi	Dotzler	Giddens	Hogg
Jochum	Kinney	Lykam	Mathis
Petersen	Quirmbach	Ragan	Smith, J.
Taylor, T.	Trone Garriott	Wahls	

Nays, 31:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Kraayenbrink
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun	Zumbach	

Absent, none.

Amendment S–5012 lost.

Senator Edler moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2268), the vote was:

Yeas, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Nays, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Absent, none.

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2268** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 3:14 p.m. until 9:00 a.m., Tuesday, February 22, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

ECONOMIC DEVELOPMENT AUTHORITY

Industrial New Jobs Training Program Review, pursuant to Iowa Code section 260E.7. Report received on February 21, 2022.

DEPARTMENT OF HUMAN SERVICES

Department of Human Services Operational and Program Expenditures Report, pursuant to 2021 Iowa Acts, Chapter 182, section 28. Report received on February 21, 2022.

INTRODUCTION OF RESOLUTION

Senate Concurrent Resolution 103, by Whitver, a concurrent resolution to approve and confirm the appointment of Bernardo Granwehr as Ombudsman.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

INTRODUCTION OF BILLS

Senate File 2344, by committee on Natural Resources and Environment, a bill for an act relating to deer hunting licenses available to nonresident hunters.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2345, by committee on Human Resources, a bill for an act relating to the newborn screening.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2346, by committee on Transportation, a bill for an act relating to flashing lights equipped on motor vehicles, and making penalties applicable.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2347, by committee on Transportation, a bill for an act relating to annual all-systems permits issued by the department of transportation for vehicles of excessive weight, and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2348, by committee on Education, a bill for an act relating to supplemental aid and modified supplemental amounts for certain school districts relating to open enrollment and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2349, by committee on Education, a bill for an act relating to education, including establishing a student first scholarship program and a student first enrollment supplement fund, requiring the boards of directors of school districts to publish certain specified information, modifying provisions related to required social studies instruction, open enrollment, teacher librarian endorsements, competent private instruction, and special education, making appropriations, providing penalties, and including effective date, applicability, and retroactive applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2350, by committee on State Government, a bill for an act relating to alcoholic beverage control and licensing, providing for fees, and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2351, by committee on Education, a bill for an act requiring cursive instruction for students enrolled in public elementary schools.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2352, by committee on Transportation, a bill for an act relating to automated or remote systems for traffic law enforcement, including by requiring data and alternative measures prior to implementation of such systems and by regulating the use and calibration of certain systems, and including applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2353, by committee on Natural Resources and Environment, a bill for an act relating to the enforcement of the lake Manawa and Waubonsie state park user fee pilot programs, and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2354, by committee on Human Resources, a bill for an act relating to pregnancy support including by creating the more options for maternal support program and expanding Medicaid postpartum coverage and making appropriations.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2355, by committee on Commerce, a bill for an act relating to the regulation of specified gas and electric utilities.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2356, by committee on Education, a bill for an act authorizing the boards of directors of school districts to engage certain specified individuals to serve without compensation as substitute teachers.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2357, by committee on Education, a bill for an act relating to voting during meetings of the boards of directors of school districts and including effective date provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2358, by committee on Education, a bill for an act directing the department of education to convene an achievement gap working group.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2359, by committee on Education, a bill for an act directing the department of education to convene a working group to study the impact of technology on the cognitive function of students.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2360, by committee on Judiciary, a bill for an act relating to the use of a simulated firearm or simulated explosive when committing certain criminal offenses, and providing penalties.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2361, by committee on State Government, a bill for an act relating to various matters under the purview of the state, including city and county zoning, work-based learning, recruitment of health care professionals, regulations affecting veterans and military spouses, insurance producer temporary licenses, and the state building code, and including applicability provisions.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2362, by committee on Education, a bill for an act relating to entities supported in whole or in part by public moneys, including the sale of public bonds, the duties and responsibilities of school boards, school districts, the department of education, accredited nonpublic schools, charter schools, and children's residential facilities, and the membership and voting units of county and city conference boards.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2363, by committee on Judiciary, a bill for an act relating to the requirements for a sex offender to be granted a modification of sex offender registry requirements.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2364, by committee on Judiciary, a bill for an act relating to the dissemination of certain specified materials, including the prohibition of certain specified materials in schools and school libraries, civil actions to determine obscenity, and providing penalties.

Read first time under Rule 28 and **placed on calendar**.

Senate File 2365, by Giddens, a bill for an act relating to domestic abuse risk assessment and deterrence.

Read first time under Rule 28 and referred to committee on **Judiciary**.

STUDY BILL RECEIVED

SSB 3150 Appropriations

Relating to and making appropriations involving state government entities involved with agriculture, natural resources, and environmental protection.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2339

EDUCATION: Sinclair, Chair; Celsi and Rozenboom

Senate File 2340

EDUCATION: Sinclair, Chair; Celsi and Rozenboom

Senate File 2341

EDUCATION: Sinclair, Chair; Celsi and Rozenboom

SSB 3150

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom and Lofgren

FINAL COMMITTEE REPORTS OF BILL ACTION

COMMERCE

Bill Title: *SENATE FILE 2355 (SSB 3125), a bill for an act relating to the regulation of specified gas and electric utilities.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Schultz, Koelker, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Quirmbach, Sinclair, and Williams. Nays, 2: Bisignano and Petersen. Excused, 2: Giddens and R. Smith.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Commerce Committee on Senate File 2355, and they were attached to the committee report.

EDUCATION

Bill Title: *SENATE FILE 2348 (SSB 3103), a bill for an act relating to supplemental aid and modified supplemental amounts for certain school districts relating to open enrollment and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2348, and they were attached to the committee report.

ALSO:

Bill Title: SENATE FILE 2349 (SSB 3080), a bill for an act relating to education, including establishing a student first scholarship program and a student first enrollment supplement fund, requiring the boards of directors of school districts to publish certain specified information, modifying provisions related to required social studies instruction, open enrollment, teacher librarian endorsements, competent private instruction, and special education, making appropriations, providing penalties, and including effective date, applicability, and retroactive applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Sinclair, J. Taylor, Carlin, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, Sweeney, and Zaun. Nays, 4: Quirmbach, Celsi, J. Smith, and Trone Garriott. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE FILE 2351 (formerly SF 89), a bill for an act requiring cursive instruction for students enrolled in public elementary schools.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Sinclair, J. Taylor, Carlin, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, Sweeney, and Zaun. Nays, 4: Quirmbach, Celsi, J. Smith, and Trone Garriott. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2356 (SSB 3085), a bill for an act authorizing the boards of directors of school districts to engage certain specified individuals to serve without compensation as substitute teachers.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Sinclair, J. Taylor, Quirmbach, Carlin, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, Sweeney, and Zaun. Nays, 3: Celsi, J. Smith, and Trone Garriott. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2356, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2357 (formerly SF 2203), a bill for an act relating to voting during meetings of the boards of directors of school districts and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2357, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2358 (formerly SF 2112), a bill for an act directing the department of education to convene an achievement gap working group.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2358, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2359 (formerly SF 2107), a bill for an act directing the department of education to convene a working group to study the impact of technology on the cognitive function of students.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2359, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2362 (SSB 3104), a bill for an act relating to entities supported in whole or in part by public moneys, including the sale of public bonds, the duties and responsibilities of school boards, school districts, the department of education, accredited nonpublic schools, charter schools, and children's residential facilities, and the membership and voting units of county and city conference boards.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, 1: Giddens.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Education Committee on Senate File 2362, and they were attached to the committee report.

HUMAN RESOURCES

Bill Title: *SENATE FILE 2345 (SSB 3122), a bill for an act relating to the newborn screening.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Human Resources Committee on Senate File 2345, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2354 (SSB 3145), a bill for an act relating to pregnancy support including by creating the more options for maternal support program and expanding Medicaid postpartum coverage and making appropriations.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 8: Edler, Costello, Garrett, Green, Johnson, Lofgren, Rowley, and Sweeney. Nays, 5: Mathis, Bolkcom, Jochum, Ragan, and Trone Garriott. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Human Resources Committee on Senate File 2354, and they were attached to the committee report.

JUDICIARY

**Bill Title: ***SENATE FILE 2360 (formerly SF 2173), a bill for an act relating to the use of a simulated firearm or simulated explosive when committing certain criminal offenses, and providing penalties.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Zaun, Garrett, Kinney, Bisignano, Boulton, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 2: Bolkcom and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2360, and they were attached to the committee report.

ALSO:

**Bill Title: ***SENATE FILE 2363 (SSB 3025), a bill for an act relating to the requirements for a sex offender to be granted a modification of sex offender registry requirements.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 14: Zaun, Garrett, Kinney, Bisignano, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 1: Bolkcom. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2363, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2364 (formerly SF 2198), a bill for an act relating to the dissemination of certain specified materials, including the prohibition of certain specified materials in schools and school libraries, civil actions to determine obscenity, and providing penalties.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Zaun, Garrett, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 5: Kinney, Bisignano, Bolkcom, Boulton, and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Judiciary Committee on Senate File 2364, and they were attached to the committee report.

NATURAL RESOURCES AND ENVIRONMENT

Bill Title: *SENATE FILE 2344 (formerly SF 2142), a bill for an act relating to deer hunting licenses available to nonresident hunters.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Sweeney, Driscoll, Cournoyer, Green, Shipley, J. Taylor, and Zumbach. Nays, 5: Trone Garriott, Boulton, Celsi, Hogg, and Lykam. Excused, 1: Rozenboom.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Natural Resources and Environment Committee on Senate File 2344, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2353 (formerly SF 2181), a bill for an act relating to the enforcement of the lake Manawa and Waubonsie state park user fee pilot programs, and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Sweeney, Driscoll, Trone Garriott, Boulton, Celsi, Cournoyer, Green, Hogg, Lykam, Shipley, J. Taylor, and Zumbach. Nays, none. Excused, 1: Rozenboom.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Natural Resources and Environment Committee on Senate File 2353, and they were attached to the committee report.

STATE GOVERNMENT

Bill Title: SENATE FILE 2350 (SSB 3140), a bill for an act relating to alcoholic beverage control and licensing, providing for fees, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Goodwin, Guth, Jochum, Johnson, Reichman, and Schultz. Nays, none. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2361 (SSB 3123), a bill for an act relating to various matters under the purview of the state, including city and county zoning, work-based learning, recruitment of health care professionals, regulations affecting veterans and military spouses, insurance producer temporary licenses, and the state building code, and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 9: R. Smith, Cournoyer, Brown, Dawson, Goodwin, Guth, Johnson, Reichman, and Schultz. Nays, 4: Bisignano, Boulton, Celsi, and Jochum. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the State Government Committee on Senate File 2361, and they were attached to the committee report.

TRANSPORTATION

Bill Title: *SENATE FILE 2346 (formerly SF 2144), a bill for an act relating to flashing lights equipped on motor vehicles, and making penalties applicable.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Brown, Dickey, J. Smith, Bisignano, Driscoll, Klimesh, Lykam, Rozenboom, Shipley, T. Taylor, and Zumbach. Nays, none. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Transportation Committee on Senate File 2346, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2347 (SSB 3106), a bill for an act relating to annual all-systems permits issued by the department of transportation for vehicles of excessive weight, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Brown, Dickey, J. Smith, Bisignano, Driscoll, Klimesh, Lykam, Rozenboom, Shipley, T. Taylor, and Zumbach. Nays, none. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Transportation Committee on Senate File 2347, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2352 (formerly SF 2078), a bill for an act relating to automated or remote systems for traffic law enforcement, including by requiring data and alternative measures prior to implementation of such systems and by regulating the use and calibration of certain systems, and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 7: Brown, Dickey, Driscoll, Klimesh, Rozenboom, Shipley, and Zumbach. Nays, 4: J. Smith, Bisignano, Lykam, and T. Taylor. Excused, 2: Giddens and Koelker.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Transportation Committee on Senate File 2352, and they were attached to the committee report.

AMENDMENTS FILED

S–5011	S.F.	2233	Waylon Brown
S–5012	S.F.	2268	Pam Jochum
S–5013	S.F.	2285	Mike Klimesh
S–5014	S.F.	2279	Mike Klimesh

JOURNAL OF THE SENATE

FORTY-FOURTH CALENDAR DAY
TWENTY-SIXTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, February 22, 2022

The Senate met in regular session at 9:09 a.m., President Chapman presiding.

Prayer was offered by the Honorable Jesse Green, member of the Senate from Boone County, Boone, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Elizabeth Hunter.

The Journal of Monday, February 21, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on February 21, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2078, a bill for an act relating to the provision of certified copies of wills.

Read first time and attached to **similar Senate File 2240**.

House File 2080, a bill for an act relating to school districts that share operational functions, including operational functions in the areas of superintendent management and special education director, and including effective date and applicability provisions.

Read first time and referred to committee on **Education**.

House File 2097, a bill for an act relating to forfeiture of bail.

Read first time and referred to committee on **Judiciary**.

House File 2123, a bill for an act authorizing a criminal or juvenile justice agency to redisseminate driver's license photos in missing persons cases, and including effective date provisions.

Read first time and referred to committee on **Judiciary**.

House File 2124, a bill for an act relating to airport registration and site approval by the department of transportation.

Read first time and attached to **companion Senate File 2140**.

House File 2126, a bill for an act relating to the comprehensive financial report of the state and including effective date provisions.

Read first time and attached to **companion Senate File 2087**.

House File 2152, a bill for an act relating to the duties of the revenue estimating conference, and including effective date provisions.

Read first time and referred to committee on **Appropriations**.

House File 2155, a bill for an act relating to preneed sellers and purchase agreements for cemetery merchandise, funeral merchandise, and funeral services, providing penalties, and including applicability provisions.

Read first time and attached to **companion Senate File 2194**.

House File 2416, a bill for an act relating to student eligibility requirements in school district, accredited nonpublic school, regent institution, community college, and certain other institution of higher education athletics based on sex, and including effective date provisions.

Read first time and attached to **similar Senate File 2342**.

INTRODUCTION OF GOVERNOR'S APPOINTEES

The Secretary of the Senate introduced to the Senate chamber Michael Cavin, the Governor's appointee to be the Executive Director of the Board of Educational Examiners. He was the guest of the committee on Education.

The Secretary of the Senate introduced to the Senate chamber Andrew Boettger, the Governor's appointee to be the Chair of the Board of Parole. He was the guest of the committee on Judiciary.

The Secretary of the Senate introduced to the Senate chamber Erik Helland, the Governor's appointee to be the Chair and a member of the Public Employment Relations Board. He was the guest of the committee on Labor and Business Relations.

The Senate stood at ease at 9:17 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 10:05 a.m., President Chapman presiding.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Zaun, until he arrives, on request of Senator Whitver.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2119, 2279, 2285, and 2176.

Senate File 2119

On motion of Senator Cournoyer, **Senate File 2119**, a bill for an act relating to cosmetology and the practice of threading, with report of committee recommending passage, was taken up for consideration.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2119), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zumbach			

Nays, none.

Absent, 1:

Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2279

On motion of Senator Klimesh, **Senate File 2279**, a bill for an act regarding electronic submission of bids for public improvement contracts, was taken up for consideration.

Senator Klimesh offered amendment S–5014, filed by him on February 21, 2022, to page 1 of the bill, and moved its adoption.

Amendment S–5014 was adopted by a voice vote.

Senator Klimesh moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2279), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zumbach			

Nays, none.

Absent, 1:

Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2285

On motion of Senator Klimesh, **Senate File 2285**, a bill for an act relating to requirements for additional members of a city planning and zoning commission and a board of adjustment when a city extends its zoning jurisdiction, was taken up for consideration.

Senator Klimesh offered amendment S–5013, filed by him on February 21, 2022, to pages 1–2 of the bill, and moved its adoption.

Amendment S–5013 was adopted by a voice vote.

Senator Klimesh moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2285), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zumbach			

Nays, none.

Absent, 1:

Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2176

On motion of Senator Shipley, **Senate File 2176**, a bill for an act relating to programs within the department of natural resources, including specifications of procedures relating to solid waste disposal and the repeal of the state interagency Missouri river authority and the mercury-free recycling Act, was taken up for consideration.

Senator Shipley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2176), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zumbach			

Nays, none.

Absent, 1:

Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2119**, **2176**, **2279**, and **2285** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2296 and 2311.

Senate File 2296

On motion of Senator Dawson, **Senate File 2296**, a bill for an act relating to a peace officer's search of garbage placed outside of a person's residence for waste collection in a publicly accessible area, was taken up for consideration.

The Senate stood at ease at 10:24 a.m. until the fall of the gavel for the purpose of a Democratic party caucus.

The Senate resumed session at 10:46 a.m., President Chapman presiding.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2296), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zumbach			

Nays, none.

Absent, 1:

Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2311

On motion of Senator Driscoll, **Senate File 2311**, a bill for an act relating to the adoption and use of certain general permits issued by the department of natural resources, was taken up for consideration.

Senator Driscoll moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2311), the vote was:

Yeas, 36:

Bisignano	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Dickey	Driscoll	Edler	Garrett
Goodwin	Green	Guth	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Nunn	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zumbach

Nays, 13:

Bolkcom	Celsi	Dotzler	Giddens
Hogg	Jochum	Mathis	Petersen
Quirmbach	Smith, J.	Taylor, T.	Trone Garriott
Wahls			

Absent, 1:

Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2296** and **2311** be **immediately messaged** to the House.

RECESS

On motion of Senator Whitver, the Senate recessed at 11:10 a.m. until 1:30 p.m.

RECONVENED

The Senate reconvened at 1:33 p.m., President Chapman presiding.

QUORUM CALL

Senator Goodwin requested a nonrecord roll call to determine that a quorum was present. The Chair declared a quorum present.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Mathis, until she returns, on request of Senator Wahls.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2324, 2334, and 2128.

Senate File 2324

On motion of Senator R. Smith, **Senate File 2324**, a bill for an act relating to the designation of real estate teams and the display of real estate licenses, and including applicability provisions, was taken up for consideration.

Senator R. Smith moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2324), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Mathis Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2334

On motion of Senator Cournoyer, **Senate File 2334**, a bill for an act relating to shotguns that may be used to hunt turkey, was taken up for consideration.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2334), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Mathis Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2128

On motion of Senator Sweeney, **Senate File 2128**, a bill for an act relating to education, including the education of students who are not fully English proficient and the standards applicable to the hiring, developing, and evaluation of community college faculty, was taken up for consideration.

Senator Sweeney moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2128), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Mathis Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2128**, **2324**, and **2334** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Cournoyer, the Senate adjourned at 1:51 p.m. until 9:00 a.m., Wednesday, February 23, 2022.

APPENDIX

INTRODUCTION OF RESOLUTION

Senate Resolution 102, by Koelker, a resolution designating February 23, annually, as Utility Worker Appreciation Day.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

STUDY BILLS RECEIVED

SSB 3151 Ways and Means

Relating to property law, including mobile homes and manufactured housing, rental agreements, landlord and tenant remedies for retaliation, wrongful failure to provide essential services, rent increases, the sale of manufactured home community or mobile home park, the repeal of the manufactured home community and mobile home tax, forcible entry and detainer actions, abandoned mobile homes, and including effective date and applicability provisions.

SSB 3152 Ways and Means

Relating to aircraft, including special certificates issued to aircraft manufacturers, transporters, and dealers, and sales and use tax exemptions associated with aircraft, providing fees, making penalties applicable, and including effective date and applicability provisions.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2230

WAYS AND MEANS: Sweeney, Chair; Green and Petersen

Senate File 2280

WAYS AND MEANS: Green, Chair; Goodwin and Quirmbach

Senate File 2281

WAYS AND MEANS: Goodwin, Chair; Dickey and Quirmbach

Senate File 2306

APPROPRIATIONS: Koelker, Chair; Celsi and Johnson

Senate File 2318

WAYS AND MEANS: Dawson, Chair; Goodwin and T. Taylor

Senate File 2326

WAYS AND MEANS: Goodwin, Chair; Dawson and T. Taylor

Senate File 2349

APPROPRIATIONS: Rozenboom, Chair; Celsi and Cournoyer

Senate File 2350

WAYS AND MEANS: R. Smith, Chair; Dawson and Jochum

Senate File 2353

WAYS AND MEANS: Dawson, Chair; Dotzler and Zaun

Senate File 2354

APPROPRIATIONS: Costello, Chair; Edler and Petersen

Senate File 2361

WAYS AND MEANS: Brown, Chair; Jochum and R. Smith

House File 2080

EDUCATION: Rozenboom, Chair; Kraayenbrink and J. Smith

House File 2097
(Reassigned)

JUDICIARY: Rowley, Chair; Bisignano and J. Taylor

House File 2123

JUDICIARY: Reichman, Chair; Johnson and Kinney

SSB 3151

WAYS AND MEANS: Sinclair, Chair; Dawson and Quirmbach

SSB 3152

WAYS AND MEANS: Dawson, Chair; Dotzler and R. Smith

AMENDMENTS FILED

S–5015	S.F.	2329	Tom Shipley
S–5016	S.F.	2277	Mike Klimesh

JOURNAL OF THE SENATE

FORTY-FIFTH CALENDAR DAY
TWENTY-SEVENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, February 23, 2022

The Senate met in regular session at 9:05 a.m., President Chapman presiding.

Prayer was offered by the Honorable Jason Schultz, member of the Senate from Crawford County, Schleswig, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Thomas Knudsen.

The Journal of Tuesday, February 22, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on February 22, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2153, a bill for an act relating to county jurisdiction over portions of certain cemeteries.

Read first time and referred to committee on **Local Government**.

House File 2154, a bill for an act relating to release of certain records maintained by the statewide fire and police retirement system.

Read first time and referred to committee on **State Government**.

House File 2166, a bill for an act designating certain county flood mitigation activities as an essential county purpose.

Read first time and referred to committee on **Local Government**.

House File 2167, a bill for an act relating to the definition of autism spectrum disorder for purposes of certain health care coverage, making conforming changes, and including applicability provisions.

Read first time and referred to committee on **Commerce**.

House File 2169, a bill for an act relating to the practices of pharmacy and nursing and the administration of immunizations and vaccinations, and the licensure of nonresident pharmacies.

Read first time and attached to **companion Senate File 2088**.

House File 2171, a bill for an act relating to the release of nursing facility reimbursement rates under the Medicaid program.

Read first time and attached to **companion Senate File 2258**.

House File 2172, a bill for an act relating to violations by a health care facility.

Read first time and attached to **companion Senate File 2168**.

House File 2201, a bill for an act relating to controlled substances, including amending the controlled substance schedules and information collection and reporting requirements under the Iowa prescription monitoring program, and including effective date provisions.

Read first time and attached to **companion Senate File 2242**.

House File 2202, a bill for an act relating to Medicaid program reporting requirements.

Read first time and referred to committee on **Human Resources**.

House File 2217, a bill for an act relating to financial reporting by insurance holding company systems.

Read first time and attached to **companion Senate File 2237**.

House File 2222, a bill for an act relating to documents that may be filed pro se by a defendant represented by counsel or an applicant for postconviction relief represented by counsel.

Read first time and attached to **companion Senate File 2185**.

House File 2239, a bill for an act relating to the discovery of evidence in a criminal or postconviction relief action involving victims of sexual abuse.

Read first time and attached to **companion Senate File 2253**.

House File 2252, a bill for an act relating to programs and services under the purview of the department of human services including child care assistance, child and family services, foster care, adoption, and the dependent adult abuse information registry.

Read first time and attached to **similar Senate File 2171**.

House File 2258, a bill for an act relating to the membership, procedures, and functions of the Iowa council on homelessness.

Read first time and attached to **similar Senate File 2086**.

House File 2259, a bill for an act authorizing licensed occupational therapists, licensed physical therapists, and certain medical professionals licensed in other states to provide a statement for purposes of persons with disabilities special registration plates or parking permits, and making penalties applicable.

Read first time and referred to committee on **Transportation**.

House File 2288, a bill for an act modifying the definitions of essential county purpose and essential corporate purpose to include cybersecurity purposes.

Read first time and referred to committee on **Commerce**.

INTRODUCTION OF GOVERNOR'S APPOINTEE

The Secretary of the Senate introduced to the Senate chamber Adam Steen, the Governor's appointee to be the Director of the Department of Administrative Services. He was the guest of the committee on State Government.

BILLS REFERRED TO COMMITTEE

President Chapman announced that **Senate File 2314** and **Senate File 2347** were referred from the Regular Calendar to the committee on **Ways and Means** under Senate Rule 38.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:09 a.m. until 10:00 a.m.

RECONVENED

The Senate reconvened at 10:06 a.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Zaun and Zumbach, until they arrive, on request of Senator Whitver.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2322 and 2337.

Senate File 2322

On motion of Senator Brown, **Senate File 2322**, a bill for an act relating to the assessment of fees when a person requests examination and copying of public records, was taken up for consideration.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2322), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams

Nays, none.

Absent, 2:

Zaun	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2337

On motion of Senator Brown, **Senate File 2337**, a bill for an act relating to third-party testers and test examiners for commercial driver's license knowledge and driving skills tests, was taken up for consideration.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2337), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams

Nays, none.

Absent, 2:

Zaun Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2322** and **2337** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2081, 2297, and 2362.

Senate File 2081

On motion of Senator Cournoyer, **Senate File 2081**, a bill for an act relating to disbursements from the computer science professional development incentive fund and including applicability provisions, was taken up for consideration.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2081), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams

Nays, none.

Absent, 2:

Zaun	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2297

On motion of Senator Dawson, **Senate File 2297**, a bill for an act relating to jury service disqualification for certain felons, was taken up for consideration.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2297), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler

Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams

Nays, none.

Absent, 2:

Zaun	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2362

On motion of Senator Cournoyer, **Senate File 2362**, a bill for an act relating to entities supported in whole or in part by public moneys, including the sale of public bonds, the duties and responsibilities of school boards, school districts, the department of education, accredited nonpublic schools, charter schools, and children's residential facilities, and the membership and voting units of county and city conference boards, was taken up for consideration.

Senator Cournoyer offered amendment S–5017, filed by her from the floor to pages 8–9 of the bill, and moved its adoption.

Amendment S–5017 was adopted by a voice vote.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2362), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens

Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams

Nays, none.

Absent, 2:

Zaun	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2081**, **2297**, and **2362** be **immediately messaged** to the House.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Concurrent Resolution 103.

Senate Concurrent Resolution 103

On motion of Senator Whitver, **Senate Concurrent Resolution 103**, a concurrent resolution to approve and confirm the appointment of Bernardo Granwehr as Ombudsman, with report of committee recommending passage, was taken up for consideration.

A record roll call was requested.

On the question "Shall the resolution be adopted? (S.C.R. 103), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams

Nays, none.

Absent, 2:

Zaun	Zumbach

The resolution, having received a constitutional majority, was declared to have been adopted by the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Concurrent Resolution 103** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 10:26 a.m. until 9:00 a.m., Thursday, February 24, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF TRANSPORTATION

Disputed Highway Project Report, pursuant to Iowa Code section 306.54. Report received on February 23, 2022.

REPORTS OF COMMITTEE MEETINGS

RULES AND ADMINISTRATION

Convened: Wednesday, February 23, 2022, 9:10 a.m.

Members Present: Whitver, Chair; Chapman, Vice Chair; Wahls, Ranking Member; Brown, Jochum, Ragan, Sinclair, and R. Smith.

Members Absent: Bolkcom, Zaun, and Zumbach (all excused).

Committee Business: Consider SCR 103.

Adjourned: 9:15 a.m.

WAYS AND MEANS

Convened: Wednesday, February 23, 2022, 1:40 p.m.

Members Present: Dawson, Chair; Goodwin, Vice Chair; Jochum, Ranking Member; Bolkcom, Brown, Dickey, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and T. Taylor.

Members Absent: Zaun (excused).

Committee Business: Governor appointments SF 590–Dawson SSB 3147 w/amendment–Dawson (pulled from agenda) SSB 3063 w/amendment–Dawson SSB 3130 w/amendment–Brown HF 419–Goodwin.

Adjourned: 2:00 p.m.

STUDY BILL RECEIVED

SSB 3153 Appropriations

Relating to appropriations to the judicial branch.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2300

LABOR AND BUSINESS RELATIONS: J. Taylor, Chair; Boulton and Guth

Senate File 2301

LABOR AND BUSINESS RELATIONS: Rowley, Chair; Boulton and Schultz

Senate File 2302

LABOR AND BUSINESS RELATIONS: Rowley, Chair; Boulton and Green

Senate File 2304

LABOR AND BUSINESS RELATIONS: Green, Chair; Driscoll and T. Taylor

Senate File 2314

WAYS AND MEANS: Goodwin, Chair; Dawson and Jochum

Senate File 2347

WAYS AND MEANS: Brown, Chair; Sweeney and T. Taylor

House File 2152

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom and Lofgren

House File 2153

LOCAL GOVERNMENT: Driscoll, Chair; Hogg and Lofgren

SSB 3153

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom and Lofgren

FINAL COMMITTEE REPORTS OF BILL ACTION

RULES AND ADMINISTRATION

Bill Title: SENATE CONCURRENT RESOLUTION 103, a concurrent resolution to approve and confirm the appointment of Bernardo Granwehr as Ombudsman.

Recommendation: DO PASS.

Final Vote: Yeas, 8: Whitver, Chapman, Wahls, Brown, Jochum, Ragan, Sinclair, and R. Smith. Nays, none. Excused, 3: Bolkcom, Zaun, and Zumbach.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

WAYS AND MEANS

Bill Title: SENATE FILE 590, a bill for an act relating to the creation of land banks.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and T. Taylor. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 419, a bill for an act allowing counties to collect a fee for the issuance and renewal of driver's licenses and nonoperator's identification cards to persons who reside outside the county.

Recommendation: DO PASS.

Final Vote: Yeas, 12: Dawson, Goodwin, Jochum, Brown, Dickey, Dotzler, Green, Schultz, Sinclair, R. Smith, Sweeney, and J. Taylor. Nays, 4: Bolkcom, Petersen, Quirmbach, and T. Taylor. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

GOVERNOR'S APPOINTEES PLACED ON EN BLOC CONFIRMATION CALENDAR

The following appointees, assigned to standing committees for investigation, were placed on the En Bloc Confirmation Calendar with recommendation for confirmation:

WAYS AND MEANS

Samuel Eathington – Economic Development Authority

Aaron Burnett – Iowa Great Places Board
Danna Kehm – Iowa Great Places Board
Angel Wallace – Iowa Great Places Board

AMENDMENTS FILED

S–5017	S.F.	2362	Chris Cournoyer
S–5018	S.F.	493	Jeff Taylor
S–5019	S.F.	2086	Carrie Koelker
S–5020	S.F.	2323	Tom Shipley

JOURNAL OF THE SENATE

FORTY-SIXTH CALENDAR DAY
TWENTY-EIGHTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, February 24, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Jackson Maddox.

The Journal of Wednesday, February 23, 2022, was approved.

INTRODUCTION OF GOVERNOR'S APPOINTEE

The Secretary of the Senate introduced to the Senate chamber Matthew Peterson, the Governor's appointee to be the Commandant of the Iowa Veterans Home. He was the guest of the committee on Veterans Affairs.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on February 23, 2022, **adopted** the following resolution in which the concurrence of the Senate is asked:

House Joint Resolution 2005, a joint resolution proposing an amendment to the Constitution of the State of Iowa relating to the gubernatorial line of succession.

Read first time and attached to **companion Senate Joint Resolution 15**.

ALSO: That the House has on February 23, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2083, a bill for an act relating to matters under the purview of the college student aid commission, including grant programs and the definition of accredited private institutions.

Read first time and referred to committee on **Education**.

House File 2160, a bill for an act relating to assisted reproduction and providing penalties.

Read first time and attached to **similar Senate File 2169**.

House File 2220, a bill for an act relating to antisemitism in the state of Iowa.

Read first time and attached to **similar Senate File 2183**.

House File 2221, a bill for an act relating to the admissibility of evidence in a prosecution for physical abuse or a sexual offense upon or against a child, person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability.

Read first time and attached to **similar Senate File 2329**.

House File 2282, a bill for an act relating to spousal privilege and confidential communication between spouses.

Read first time and referred to committee on **Judiciary**.

House File 2293, a bill for an act increasing the amount the commission of veterans affairs may use from certain designated sources for the benefit of veterans.

Read first time and referred to committee on **Veterans Affairs**.

House File 2296, a bill for an act relating to broadband infrastructure installation pursuant to a public road right-of-way or municipality-owned conduit.

Read first time and attached to **similar Senate File 2189**.

House File 2299, a bill for an act relating to fire insurance policies and to appraisals of insured losses, and including applicability provisions.

Read first time and referred to committee on **Commerce**.

House File 2300, a bill for an act relating to protections for certain members of the military concerning employment and insurance coverage and making penalties applicable.

Read first time and referred to committee on **Veterans Affairs**.

House File 2330, a bill for an act relating to electronic delivery of certain insurance notices and documents.

Read first time and referred to committee on **Commerce**.

House File 2337, a bill for an act relating to underground storage tanks, including by creating the Iowa tanks fund and Iowa tanks fund financing program, repealing the Iowa comprehensive petroleum underground storage tank fund, and eliminating the Iowa comprehensive petroleum underground storage tank fund board, requiring a study, making appropriations, and including effective date and transition provisions.

Read first time and referred to committee on **Natural Resources and Environment**.

House File 2338, a bill for an act relating to the apportionment of district associate judges.

Read first time and attached to **companion Senate File 2241**.

House File 2341, a bill for an act relating to the transfer of ownership of certain foreign vehicles.

Read first time and attached to **companion Senate File 2228**.

House File 2346, a bill for an act requiring vehicle identification information to be provided in a no-contact or protective order, and making penalties applicable.

Read first time and referred to committee on **Judiciary**.

House File 2348, a bill for an act relating to the registration of antique snowmobiles.

Read first time and referred to committee on **Transportation**.

House File 2357, a bill for an act relating to sessions of the local board of review and including effective date provisions.

Read first time and referred to committee on **Local Government**.

House File 2358, a bill for an act relating to the Iowa law enforcement academy.

Read first time and referred to committee on **Judiciary**.

House File 2359, a bill for an act relating to the authority of a county treasurer to postpone or cancel an annual tax sale.

Read first time and referred to committee on **Ways and Means**.

House File 2360, a bill for an act relating to the salary of the state court administrator.

Read first time and attached to **similar Senate File 2134**.

House File 2367, a bill for an act relating to the Iowa drug policy coordinator and the Iowa drug policy advisory council.

Read first time and attached to **companion Senate File 2293**.

House File 2372, a bill for an act relating to the nonconsensual termination of a human pregnancy, and providing penalties.

Read first time and referred to committee on **Judiciary**.

House File 2373, a bill for an act relating to restrictions regarding companies boycotting Israel.

Read first time and attached to **companion Senate File 2265**.

House File 2374, a bill for an act providing for membership in a protection occupation under the Iowa public employees' retirement system and including effective date and retroactive applicability provisions.

Read first time and referred to committee on **State Government**.

House File 2375, a bill for an act relating to petitions to change the form of management of a drainage or levee district to a board of trustees.

Read first time and referred to committee on **State Government**.

House File 2378, a bill for an act relating to pari-mutuel wagering, concerning distribution of horse racing purse moneys and establishing a fund for certain race horse organizations.

Read first time and referred to committee on **State Government**.

House File 2390, a bill for an act relating to child welfare, including provisions relating to foster care and the child advocacy board.

Read first time and attached to **similar Senate File 2174**.

House File 2401, a bill for an act relating to the disclosure of specified information in connection with designated online marketplace transactions and including effective date provisions.

Read first time and referred to committee on **Judiciary**.

House File 2411, a bill for an act relating to replacements of permanent prosthetic devices for injured workers.

Read first time and referred to committee on **Labor and Business Relations**.

House File 2427, a bill for an act relating to certifications on applications for veteran special registration plates.

Read first time and referred to committee on **Veterans Affairs**.

House File 2428, a bill for an act relating to compensation for county hospital trustees.

Read first time and referred to committee on **Local Government**.

House File 2429, a bill for an act providing for the conduct of licensed veterinarians when involved in certain legal matters involving the alleged mistreatment of animals, including by providing for immunity from administrative, civil, or criminal liability when acting in good faith; providing for administrative, civil, or criminal liability when not acting in good faith; and making penalties applicable.

Read first time and referred to committee on **Judiciary**.

House File 2436, a bill for an act relating to public safety answering point cost and expense data collected from county joint 911 service boards.

Read first time and referred to committee on **Local Government**.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:11 a.m. until the completion of a meeting of the committee on State Government.

RECONVENED

The Senate reconvened at 11:42 a.m., President Chapman presiding.

CONSIDERATION OF BILL
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2206.

Senate File 2206

On motion of Senator Dawson, **Senate File 2206**, a bill for an act relating to state and local revenue and finances by modifying sales and use taxes, individual and corporate income taxes, the franchise tax, the insurance premiums tax, the equipment tax, the automobile rental excise tax, the water service tax, and local option taxes, crediting moneys to the natural resources and outdoor recreation trust fund, and including effective date and applicability provisions, placed on the Unfinished Business Calendar on February 17, 2022, was taken up for consideration.

Senator Dawson offered amendment S–5021, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5021 was adopted by a voice vote.

Senator Dawson asked and received unanimous consent that **House File 2317** be **substituted** for **Senate File 2206**.

House File 2317

On motion of Senator Dawson, **House File 2317**, a bill for an act relating to state and local revenue and finances by modifying sales and use taxes, individual and corporate income taxes, the franchise tax, the insurance premiums tax, the equipment tax, the automobile rental excise tax, the water service tax, and local option taxes, crediting moneys to the natural resources and outdoor recreation trust fund, and including effective date and applicability provisions, was taken up for consideration.

Senator Dawson offered amendment S–5022, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill.

Senator Wahls asked and received unanimous consent that action on amendment S–5022 and **House File 2317** be **deferred**.

The Senate stood at ease at 11:46 a.m. until the fall of the gavel.

The Senate resumed session at 2:22 p.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Zaun and Zumbach, until they arrive, on request of Senator Whitver.

BUSINESS PENDING

House File 2317

The Senate resumed consideration of **House File 2317**, a bill for an act relating to state revenue and finance by modifying the individual income tax, making appropriations, and including effective date and applicability provisions, previously deferred.

Senator Mathis offered amendment S–5024, filed by Senators Mathis and Kinney from the floor to pages 3 and 4 of amendment S–5022, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5024 to amendment S–5022 be adopted?" (H.F. 2317), the vote was:

Yeas, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Nays, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams		

Absent, 2:

Zaun Zumbach

Amendment S–5024 to amendment S–5022 lost.

Senator J. Smith offered amendment S–5027, filed by her from the floor to pages 9–15 of amendment S–5022, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5027 to amendment S–5022 be adopted?" (H.F. 2317), the vote was:

Yeas, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Nays, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams		

Absent, 2:

Zaun Zumbach

Amendment S–5027 to amendment S–5022 lost.

Senator Giddens offered amendment S–5023, filed by him from the floor to page 38 of amendment S–5022.

Senator Dawson raised the point of order that amendment S–5023 to amendment S–5022 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5023 to amendment S–5022 out of order.

Senator Trone Garriott offered amendment S–5025, filed by her from the floor to page 38 of amendment S–5022.

Senator Dawson raised the point of order that amendment S–5025 to amendment S–5022 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5025 to amendment S–5022 out of order.

Senator Wahls raised the point of order that amendment S–5022 was not germane to the bill.

The Chair ruled the point not well-taken and amendment S–5022 in order.

Senator Dawson moved the adoption of amendment S–5022.

A record roll call was requested.

On the question "Shall amendment S–5022 be adopted?" (H.F. 2317), the vote was:

Yeas, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams		

Nays, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Absent, 2:

Zaun	Zumbach

Amendment S–5022 was adopted.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2317), the vote was:

Yeas, 32:

Bisignano	Brown	Carlin	Chapman
Costello	Cournoyer	Dawson	Dickey
Driscoll	Edler	Garrett	Goodwin
Green	Guth	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams

Nays, 16:

Bolkcom	Boulton	Celsi	Dotzler
Giddens	Hogg	Jochum	Lykam
Mathis	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 2:

Zaun	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

WITHDRAWN

Senator Dawson asked and received unanimous consent that **Senate File 2206** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2317** be **immediately messaged** to the House.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on February 24, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 825, a bill for an act relating to consent agreements for domestic abuse and sexual abuse protective orders.

Read first time and referred to committee on **Judiciary**.

House File 2246, a bill for an act relating to provisional licensing of interns enrolled in a doctoral degree program in psychology.

Read first time and referred to committee on **Human Resources**.

House File 2247, a bill for an act relating to the sale of native distilled spirits for on-premises consumption by certain manufacturers of native wine.

Read first time and referred to committee on **State Government**.

House File 2297, a bill for an act relating to the medical assistance and hawk-i programs, and managed care organizations.

Read first time and referred to committee on **Human Resources**.

House File 2380, a bill for an act relating to acreage limitations for the production of hemp, and including effective date provisions.

Read first time and attached to **similar Senate File 2110**.

House File 2399, a bill for an act relating to reimbursement for health care services provided after receipt of a prior authorization, and including applicability provisions.

Read first time and referred to committee on **Commerce**.

House File 2419, a bill for an act relating to the expungement of domestic abuse and sexual abuse dismissals.

Read first time and referred to committee on **Judiciary**.

House File 2446, a bill for an act relating to sexual exploitation of a minor, and making penalties applicable.

Read first time and referred to committee on **Judiciary**.

ALSO: That the House has on February 24, 2022, **passed** the following bill in which the concurrence of the House was asked:

Senate File 183, a bill for an act relating to a construction manager-at-risk commercial construction alternative delivery method and prohibiting certain other alternative delivery methods in the public sector and including effective date and applicability provisions.

ADJOURNMENT

On motion of Senator Dawson, the Senate adjourned at 3:57 p.m. until 1:00 p.m., Monday, February 28, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF MANAGEMENT

Early Childhood Iowa State Board, pursuant to Iowa Code section 256I.4. Report received on February 24, 2022.

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Brett Handsaker—For receiving the Iowa Department of Agriculture and Land Stewardship Leader in Conservation Award. Senator Sweeney.

Brian Handsaker—For receiving the Iowa Department of Agriculture and Land Stewardship Leader in Conservation Award. Senator Sweeney.

David Handsaker—For receiving the Iowa Department of Agriculture and Land Stewardship Leader in Conservation Award. Senator Sweeney.

Jacob Handsaker—For receiving the Iowa Department of Agriculture and Land Stewardship Leader in Conservation Award. Senator Sweeney.

Kurt and Arliss Kelsey—For celebrating their 50th wedding anniversary. Senator Sweeney.

Roger and Arenda Maxwell—In gratitude for their legacy and ongoing commitment to enhancing education and opportunity for all people. Senator Trone Garriott.

Evelyn Reifschneider—For celebrating her 90th birthday. Senator Sweeney.

LaRita Rose—For celebrating her 90th birthday. Senator Sweeney.

Ryan Shclarmann, Hopkinton—For achieving the rank of Eagle Scout, Troop #60. Senator Koelker.

Tom and Pam Schutt—For celebrating their 50th wedding anniversary. Senator Sweeney.

Doug See—For celebrating his 80th birthday. Senator Sweeney.

Jane Taylor—For celebrating her 18th birthday. Senator J. Taylor.
Charles Warren, Leon—For celebrating his 92nd birthday. Senator Sinclair.

Douglas M. Woods—In recognition of his community leadership, inspiring others through his own generosity to raise nearly $600,000 to feed hungry neighbors over nine years. Senator Trone Garriott.

INTRODUCTION OF RESOLUTION

Senate Resolution 103, by Koelker, a resolution designating March 8, annually, as Utility Worker Appreciation Day.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

INTRODUCTION OF BILLS

Senate File 2366, by committee on Ways and Means, a bill for an act relating to the assessment and taxation of wind energy conversion property and including effective date and retroactive applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

Senate File 2367, by committee on Ways and Means, a bill for an act relating to sales, use, and motor vehicle fuel taxes administered by the department of revenue including distributions to local governments and school districts, the liability of sellers, tax refund and tax credit incentives, and motor fuel tax reporting modifications, and providing penalties, and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2122
(Reassigned)

WAYS AND MEANS: Schultz, Chair; Dawson and Dotzler

House File 2154

STATE GOVERNMENT: R. Smith, Chair; Boulton and Goodwin

House File 2166

LOCAL GOVERNMENT: Shipley, Chair; J. Smith and Williams

House File 2167

COMMERCE: Sinclair, Chair; Johnson and Quirmbach

House File 2202

HUMAN RESOURCES: Costello, Chair; Johnson and Trone Garriott

House File 2259

TRANSPORTATION: Driscoll, Chair; Koelker and J. Smith

House File 2282

JUDICIARY: Garrett, Chair; Boulton and Schultz

House File 2288

COMMERCE: Williams, Chair; Giddens and Klimesh

House File 2293

VETERANS AFFAIRS: Green, Chair; Giddens and Lofgren

House File 2300

VETERANS AFFAIRS: Lofgren, Chair; Dotzler and Green

House File 2346

JUDICIARY: Johnson, Chair; Kinney and Sinclair

House File 2348

TRANSPORTATION: Klimesh, Chair; Giddens and Shipley

House File 2357

LOCAL GOVERNMENT: Klimesh, Chair; Garrett and Quirmbach

House File 2358

JUDICIARY: J. Taylor, Chair; Kinney and Reichman

House File 2359

WAYS AND MEANS: Goodwin, Chair; Dickey and Quirmbach

House File 2372

JUDICIARY: J. Taylor, Chair; Johnson and Petersen

House File 2374

STATE GOVERNMENT: Goodwin, Chair; Boulton and Johnson

House File 2375

STATE GOVERNMENT: Guth, Chair; Brown and Celsi

House File 2378

STATE GOVERNMENT: R. Smith, Chair; Dawson and Jochum

House File 2401

JUDICIARY: Johnson, Chair; Bolkcom and Rowley

House File 2427

VETERANS AFFAIRS: Reichman, Chair; Dotzler and Lofgren

House File 2428

LOCAL GOVERNMENT: Klimesh, Chair; Hogg and Lofgren

House File 2436

LOCAL GOVERNMENT: Klimesh, Chair; Driscoll and T. Taylor

FINAL COMMITTEE REPORTS OF BILL ACTION

STATE GOVERNMENT

Bill Title: HOUSE FILE 803, a bill for an act relating to duties performed by physician assistants.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5026.

Final Vote: Yeas, 14: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, Celsi.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

WAYS AND MEANS

Bill Title: *SENATE FILE 2366 (SSB 3130), a bill for an act relating to the assessment and taxation of wind energy conversion property and including effective date and retroactive applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and T. Taylor. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2366, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2367 (SSB 3063), a bill for an act relating to sales, use, and motor vehicle fuel taxes administered by the department of revenue including distributions to local governments and school districts, the liability of sellers, tax refund and tax credit incentives, and motor fuel tax reporting modifications, and providing penalties, and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and T. Taylor. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2367, and they were attached to the committee report.

GOVERNOR'S APPOINTEES PLACED ON EN BLOC CONFIRMATION CALENDAR

The following appointees, assigned to standing committees for investigation, were placed on the En Bloc Confirmation Calendar with recommendation for confirmation:

STATE GOVERNMENT

Adam Steen – Director of the Department of Administrative Services

Wendell Talley – Commission on the Status of African Americans

Rebecca Brockmann – Board of Barbering

Kirby Connell – Board of Chiropractic

Nicole Conrad – Commission on Community Action Agencies

Brian Gongol – Commission of Deaf Services
Telina McKenna-Quintana – Commission of Deaf Services

Janet Rydberg – Board of Dietetics

Sara Fasching – Electrical Examining Board
Tim Gerald – Electrical Examining Board
Luke Maloney – Electrical Examining Board
Dan Wood – Electrical Examining Board

Candace Biddle – Elevator Safety Board

James Sweeney – Engineering and Land Surveying Examining Board

William Bemis – Investment Board of the Iowa Public Employees' Retirement System

Patricia Fasbender – Board of Medicine
Dalton Hayes – Board of Medicine
Chad Stadsvold – Board of Medicine

Taylor Beyal – Commission of Native American Affairs
Patrick Bigsby – Commission of Native American Affairs
Calvin Harlan – Commission of Native American Affairs
T. JoAn Schlotman – Commission of Native American Affairs

Ryan Stuck – Board of Nursing

Karen Bentsen – Board of Nursing Home Administrators
Cindy Dozark – Board of Nursing Home Administrators
Billy Meyers – Board of Nursing Home Administrators

Brian Kirschling – Board of Optometry

James Mennen – Board of Pharmacy

Andrew Steele – Board of Podiatry
Kelsey Sukovaty Cain – Board of Podiatry

Amy Burkhart – State Racing and Gaming Commission

Nancy Almasi – Board of Speech Pathology and Audiology
Caitlin McKenney – Board of Speech Pathology and Audiology

Meaghan O'Brien – Director of Office for State-Federal Relations

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate on February 23, 2022:

I am withdrawing the name of Gina Battani for confirmation as a member of the Iowa State Civil Rights Commission from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

AMENDMENTS FILED

S–5021	S.F.	2206	Dan Dawson
S–5022	H.F.	2317	Dan Dawson
S–5023	H.F.	2317	Eric Giddens
S–5024	H.F.	2317	Liz Mathis Kevin Kinney
S–5025	H.F.	2317	Sarah Trone Garriott
S–5026	H.F.	803	State Government
S–5027	H.F.	2317	Jackie Smith

JOURNAL OF THE SENATE

FIFTIETH CALENDAR DAY
TWENTY-NINTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, February 28, 2022

The Senate met in regular session at 1:06 p.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Johnson, member of the Senate from Buchanan County, Independence, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Maren Rasmussen.

The Journal of Thursday, February 24, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on February 24, 2022, **concurred** in the Senate amendment **and passed** the following bill in which the concurrence of the House was asked:

House File 2317, a bill for an act relating to state revenue and finance by modifying individual income tax rates, exemptions, and credits, corporate income tax rates and credits, credits against the franchise tax, the insurance premiums tax, and the moneys and credits tax, and the tax expenditure committee, making contingent transfers from the taxpayer relief fund, and including effective date and applicability provisions.

ALSO: That the House has on February 24, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2443, a bill for an act relating to contract enforceability regarding smart contracts and distributed ledger technology.

Read first time and referred to committee on **Judiciary**.

House File 2468, a bill for an act relating to statutes of limitations on arbitration proceedings and including applicability provisions.

Read first time and referred to committee on **Judiciary**.

The Senate stood at ease at 1:10 p.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 2:03 p.m., President Chapman presiding.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2356 and 2325.

Senate File 2356

On motion of Senator Sinclair, **Senate File 2356**, a bill for an act authorizing the boards of directors of school districts to engage certain specified individuals to serve without compensation as substitute teachers, was taken up for consideration.

Senator Sinclair moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2356), the vote was:

Yeas, 38:

Bisignano	Boulton	Brown	Chapman
Costello	Cournoyer	Dawson	Dickey
Dotzler	Driscoll	Edler	Garrett
Giddens	Goodwin	Green	Guth

Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, T.
Whitver	Williams		

Nays, 7:

Bolkcom	Celsi	Jochum	Petersen
Smith, J.	Trone Garriott	Wahls	

Absent, 5:

Carlin	Hogg	Taylor, J.	Zaun
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2325

On motion of Senator Koelker, **Senate File 2325**, a bill for an act related to matters under the purview of the economic development authority including the high quality jobs program, the Iowa energy center, and the workforce housing tax incentive program, and including effective date and retroactive applicability provisions, was taken up for consideration.

Senator Koelker moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2325), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman

Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams			

Nays, none.

Absent, 5:

Carlin	Hogg	Taylor, J.	Zaun
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2325** and **2356** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2323, 2265, and 2193.

Senate File 2323

On motion of Senator Shipley, **Senate File 2323**, a bill for an act relating to the inventory of lands managed or owned by the department of natural resources or a county conservation board, and including applicability provisions, was taken up for consideration.

Senator Shipley offered amendment S–5029, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5029 was adopted by a voice vote.

With the passage of amendment S–5029 the Chair ruled amendment S–5020, filed by Senator Shipley on February 23, 2020, to page 1 and amending the title page of the bill, out of order.

Senator Shipley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2323), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams			

Nays, none.

Absent, 5:

Carlin	Hogg	Taylor, J.	Zaun
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

Senate File 2265

On motion of Senator Guth, **Senate File 2265**, a bill for an act relating to restrictions regarding companies boycotting Israel, was taken up for consideration.

Senator Guth asked and received unanimous consent that **House File 2373** be **substituted** for **Senate File 2265**.

House File 2373

On motion of Senator Guth, **House File 2373**, a bill for an act relating to restrictions regarding companies boycotting Israel, was taken up for consideration.

Senator Guth moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2373), the vote was:

Yeas, 40:

Boulton	Brown	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams

Nays, 5:

Bisignano	Bolkcom	Celsi	Kinney
Petersen			

Absent, 5:

Carlin	Hogg	Taylor, J.	Zaun
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Guth asked and received unanimous consent that **Senate File 2265** be **withdrawn** from further consideration of the Senate.

Senate File 2193

On motion of Senator Brown, **Senate File 2193**, a bill for an act relating to cognitive screenings by audiologists and speech pathologists, was taken up for consideration.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2193), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams			

Nays, none.

Absent, 5:

Carlin	Hogg	Taylor, J.	Zaun
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2193** and **2323** and **House File 2373** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2139 and 2022.

Senate File 2139

On motion of Senator Brown, **Senate File 2139**, a bill for an act relating to wrecked or salvage vehicles with cosmetic damage, was taken up for consideration.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2139), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams

Nays, 1:

Smith, J.

Absent, 5:

Carlin	Hogg	Taylor, J.	Zaun
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2022

On motion of Senator Schultz, **Senate File 2022**, a bill for an act relating to the practice of cosmetology and barbering in certain locations, with report of committee recommending passage, was taken up for consideration.

Senator Schultz offered amendment S–5028, filed by him from the floor to page 1 and amending the title page of the bill, and moved its adoption.

Amendment S–5028 was adopted by a voice vote.

Senator Schultz moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2022), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams			

Nays, none.

Absent, 5:

Carlin	Hogg	Taylor, J.	Zaun
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

CONSIDERATION OF BILL
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 728.

House File 728

On motion of Senator Sweeney, **House File 728**, a bill for an act relating to noncompliance with rules adopted by a county sanitarian regarding septic tank pumping, with report of committee recommending passage, was taken up for consideration.

Senator Sweeney moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 728), the vote was:

Yeas, 28:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Whitver

Nays, 17:

Bisignano	Bolkcom	Boulton	Celsi
Giddens	Jochum	Kinney	Lykam
Mathis	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls
Williams			

Absent, 5:

Carlin	Hogg	Taylor, J.	Zaun
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2022** and **2139** and **House File 728** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 2:41 p.m. until 9:00 a.m., Tuesday, March 1, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

COLLEGE STUDENT AID COMMISSION

Ethnic Diversity Report, pursuant to Iowa Code section 261.2. Report received on February 28, 2022.

DEPARTMENT OF HUMAN SERVICES

Financial Condition of the Mental Health and Disability Services Regional Service Fund Report, pursuant to Iowa Code section 225C.7A. Report received on February 25, 2022.

INTRODUCTION OF BILL

Senate File 2368, by Mathis, Boulton, Lykam, Kinney, J. Smith, Dotzler, Bisignano, Hogg, Petersen, Jochum, Trone Garriott, Bolkcom, Ragan, T. Taylor, Giddens, Wahls, and Celsi, a bill for an act relating to education, including examinations administered to students by higher education institutions providing practitioner preparation, obligations of the department of education increasing the salary of initial teachers, modifying provisions related to endorsements issued by the board of educational examiners, and the use of certain specified school district moneys, and making appropriations.

Read first time under Rule 28 and referred to committee on **Education**.

SUBCOMMITTEE ASSIGNMENTS

House File 2083

EDUCATION: Sinclair, Chair; Kraayenbrink and Quirmbach

House File 2337

NATURAL RESOURCES AND ENVIRONMENT: Green, Chair; Driscoll and Lykam

AMENDMENTS FILED

S–5028	S.F.	2022	Jason Schultz
S–5029	S.F.	2323	Tom Shipley
S–5030	S.F.	2251	Adrian Dickey

JOURNAL OF THE SENATE

FIFTY-FIRST CALENDAR DAY
THIRTIETH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, March 1, 2022

The Senate met in regular session at 9:04 a.m., President Chapman presiding.

Prayer was offered by the Honorable Jason Schultz, member of the Senate from Crawford County, Schleswig, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Cecilia Redman.

The Journal of Monday, February 28, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on February 28, 2022, **passed** the following bill in which the concurrence of the House was asked:

Senate File 2176, a bill for an act relating to programs within the department of natural resources, including specifications of procedures relating to solid waste disposal and the repeal of the state interagency Missouri river authority and the mercury-free recycling Act.

ALSO: That the House has on February 28, 2022, **amended and passed** the following bill in which the concurrence of the Senate is asked:

Senate File 463, a bill for an act establishing the occupational therapy licensure compact. (S–5031)

ALSO: That the House has on February 28, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2081, a bill for an act relating to teachers, including the assessments administered to practitioner preparation program admission candidates and to practitioner preparation program students prior to students' completion of a practitioner preparation program, field experiences, and certain specified licenses for teachers created by the board of educational examiners, and including notice, effective date, and applicability provisions.

Read first time and referred to committee on **Education**.

House File 2248, a bill for an act relating to the information to be provided by a health care provider as part of a referral of a patient to an ambulatory surgical center, and providing for licensee discipline.

Read first time and referred to committee on **Human Resources**.

House File 2298, a bill for an act relating to immunization against COVID-19 requirements for enrollment in any licensed child care center, elementary or secondary school, or postsecondary school in Iowa.

Read first time and referred to committee on **Judiciary**.

House File 2340, a bill for an act relating to public safety nuisances concerning licensed premises where alcoholic beverages, wine, or beer is sold or consumed.

Read first time and referred to committee on **State Government**.

House File 2345, a bill for an act relating to department of transportation employees designated as peace officers, and including effective date provisions.

Read first time and attached to **similar Senate File 2338**.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:18 a.m. until 9:00 a.m., Wednesday, March 2, 2022.

APPENDIX

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Erica Brewer, Dubuque—For receiving the America's SBDC Iowa Deb Dalziel Woman Entrepreneur of the Year Award. Senator Jochum.

Dorothy Glew, Ackley—For celebrating her 95th birthday. Senator Sweeney.

REPORTS OF COMMITTEE MEETINGS

APPROPRIATIONS

Convened: Monday, February 28, 2022, 2:45 p.m.

Members Present: Kraayenbrink, Chair; Lofgren, Vice Chair; Bolkcom, Ranking Member; Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Mathis, Petersen, Ragan, Reichman, Rozenboom, J. Smith, T. Taylor, and Williams.

Members Absent: None.

Committee Business: SF 2349.

Adjourned: 3:30 p.m.

EDUCATION

Convened: Tuesday, March 1, 2022, 2:30 p.m.

Members Present: Sinclair, Chair; J. Taylor, Vice Chair; Quirmbach, Ranking Member; Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun.

Members Absent: Carlin (excused).

Committee Business: Consideration for confirmation: Darci Alt, Scott Hobart, Carol Meade, Rodney Bradley, Pamela Bleam, Michael Cavin , Susan Battani, consideration and passage of the following bills: SF 2291

Adjourned: 3:00 p.m.

HUMAN RESOURCES

Convened: Tuesday, March 1, 2022, 1:35 p.m.

Members Present: Edler, Chair; Costello, Vice Chair; Mathis, Ranking Member; Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott.

Members Absent: None.

Committee Business: Consideration of Governor Appointments: Erica Boer, Kevin Allemagne, Cody Samec, Mary Wink, Timothy Dowie, Adam Koch, Kelly Blackford, Mary Scieszinski, Michael Stopulos, Eldora (Kay) Fisk, Skylar MayberryMayes, Samuel Wallace, Monika Jindal, Jose Ayala, Juan Himar Hernandez, Sarah Berndt, Donald Kass, June KleinBacon, Jeffrey Sorensen, Richard Whitaker Jr., Russell Wood, Chad Jensen, and Joel Wulf.

Adjourned: 1:40 p.m.

JUDICIARY

Convened: Tuesday, March 1, 2022, 11:00 a.m.

Members Present: Zaun, Chair; Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: None.

Committee Business: Confirmation of Governor Appointments En Bloc Confirmation Calendar: William (Bill) Anderson II, Judicial Nominating Commission, State Carolyn Schulte, Parole – Alternate, Board of Meredith Lamberti, Parole, Board of Maria Valdez Guerrero, Justice Advisory Board Stanley Thompson, Civil Rights Commission, Director of the Iowa State Andrew Boettger, Parole, Chairperson of the Board of Patrick Coughlin, Drug Policy Advisory Council Individual Confirmation Calendar: Brenna Bird, Drug Policy Advisory Council HF 2123.

Adjourned: 11:15 a.m.

LABOR AND BUSINESS RELATIONS

Convened: Tuesday, March 1, 2022, 2:00 p.m.

Members Present: Dickey, Chair; Green, Vice Chair; Boulton, Ranking Member; Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor.

Members Absent: None.

Committee Business: Gubernatorial Appointments – En Bloc Jason Shanks – Iowa Workforce Development Board Alicia Stafford – Iowa Workforce Development Board Mary Landhuis – Iowa Workforce Development Board Kelly Barrick – Iowa Workforce Development Board Brad Elliott – Iowa Workforce Development Board Deborah Mauricio – Iowa Workforce Development Board Alexander Severn – Iowa Workforce Development Board Ofiela Rumbo – Iowa Workforce Development Board Curt Baker – Plumbing and Mechanical Systems Board Toni Knight – Plumbing and Mechanical Systems Board Gubernatorial Appointments – Individual Jane Dufoe – Public Employment Relations Board Erik Helland – Public Employment Relations Board

Adjourned: 2:15 p.m.

NATURAL RESOURCES AND ENVIRONMENT

Convened: Tuesday, March 1, 2022, 1:20 p.m.

Members Present: Sweeney, Chair; Driscoll, Vice Chair; Trone Garriott, Ranking Member; Boulton, Celsi, Cournoyer, Green, Lykam, Rozenboom, Shipley, and J. Taylor.

Members Absent: Hogg and Zumbach (both excused).

Committee Business: Vote to confirm governor's appointees.

Adjourned: 1:25 p.m.

TRANSPORTATION

Convened: Tuesday, March 1, 2022, 3:30 p.m.

Members Present: Brown, Chair; Dickey, Vice Chair; J. Smith, Ranking Member; Bisignano, Driscoll, Giddens, Klimesh, Koelker, Lykam, Rozenboom, Shipley, and T. Taylor.

Members Absent: Zumbach (excused).

Committee Business: Governor appointee.

Adjourned: 3:35 p.m.

VETERANS AFFAIRS

Convened: Tuesday, March 1, 2022, 3:00 p.m.

Members Present: Lofgren, Chair; Reichman, Vice Chair; Giddens, Ranking Member; Costello, Dawson, Dotzler, Edler, Green, and Ragan.

Members Absent: Carlin and Mathis (both excused).

Committee Business: Committee business.

Adjourned: 3:10 p.m.

INTRODUCTION OF RESOLUTIONS

Senate Resolution 104, by Rozenboom, a resolution honoring the achievements and contributions of Gene Elliott.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

Senate Resolution 105, by Nunn, Wahls, Bisignano, Bolkcom, Boulton, Brown, Carlin, Celsi, Chapman, Costello, Cournoyer, Dawson, Dickey, Dotzler, Driscoll, Edler, Garrett, Giddens, Goodwin, Green, Guth, Hogg, Jochum, Johnson, Kinney, Klimesh, Koelker, Kraayenbrink, Lofgren, Lykam, Mathis, Petersen, Quirmbach, Ragan, Reichman, Rowley, Rozenboom, Schultz, Shipley, Sinclair, J. Smith, R. Smith, Sweeney, T. Taylor, Trone Garriott, Williams, and Zaun, a resolution reaffirming Iowa's commitment to its relationship with the Ukrainian people and supporting Ukraine's efforts to remain an independent and autonomous nation.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

INTRODUCTION OF BILL

Senate File 2369, by committee on Appropriations, a bill for an act relating to education, including establishing a student first scholarship program and a student first enrollment supplement fund, requiring the boards of directors of school districts to publish certain specified information, modifying provisions related to required social studies instruction, open enrollment, teacher librarian endorsements, competent private instruction, and special education, making appropriations, providing penalties, and including effective date, applicability, and retroactive applicability provisions.

Read first time under Rule 28 and **placed on Appropriations calendar**.

SUBCOMMITTEE ASSIGNMENTS

House File 825

JUDICIARY: J. Taylor, Chair; Petersen and Sinclair

House File 2246

HUMAN RESOURCES: Edler, Chair; Costello and Trone Garriott

House File 2247

STATE GOVERNMENT: Cournoyer, Chair; Boulton and R. Smith

House File 2297

HUMAN RESOURCES: Costello, Chair; Green and Jochum

House File 2298

JUDICIARY: Schultz, Chair; Bisignano and Zaun

House File 2299

COMMERCE: Nunn, Chair; Johnson and Quirmbach

House File 2330

COMMERCE: Williams, Chair; Giddens and Klimesh

House File 2399

COMMERCE: Klimesh, Chair; Bisignano and Williams

House File 2419

JUDICIARY: Johnson, Chair; Petersen and Reichman

House File 2429

JUDICIARY: Shipley, Chair; Kinney and Schultz

House File 2443

JUDICIARY: Garrett, Chair; Boulton and Shipley

House File 2446

JUDICIARY: Dawson, Chair; Kinney and J. Taylor

House File 2468

JUDICIARY: Schultz, Chair; Bolkcom and Rowley

FINAL COMMITTEE REPORTS OF BILL ACTION

APPROPRIATIONS

Bill Title: SENATE FILE 2369 (formerly SF 2349), a bill for an act relating to education, including establishing a student first scholarship program and a student first enrollment supplement fund, requiring the boards of directors of school districts to publish certain specified information, modifying provisions related to required social studies instruction, open enrollment, teacher librarian endorsements, competent private instruction, and special education, making appropriations, providing penalties, and including effective date, applicability, and retroactive applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 8: Bolkcom, Celsi, Dotzler, Mathis, Petersen, Ragan, J. Smith, and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

EDUCATION

Bill Title: SENATE FILE 2291, a bill for an act relating to para-educators holding substitute authorizations and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 14: Sinclair, J. Taylor, Quirmbach, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, 1: Carlin.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JUDICIARY

Bill Title: HOUSE FILE 2123**,** a bill for an act authorizing a criminal or juvenile justice agency to redisseminate driver's license photos in missing persons cases, and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

VETERANS AFFAIRS

Bill Title: HOUSE FILE 2300, a bill for an act relating to protections for certain members of the military concerning employment and insurance coverage and making penalties applicable.

Recommendation: DO PASS.

Final Vote: Yeas, 9: Lofgren, Reichman, Giddens, Costello, Dawson, Dotzler, Edler, Green, and Ragan. Nays, none. Excused, 2: Carlin and Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

GOVERNOR'S APPOINTEES PLACED ON EN BLOC CONFIRMATION CALENDAR

The following appointees, assigned to standing committees for investigation, were placed on the En Bloc Confirmation Calendar with recommendation for confirmation:

EDUCATION

Darci Alt – Children's Behavioral Health System State Board
Scott Hobart – Children's Behavioral Health System State Board
Carol Meade – Children's Behavioral Health System State Board

Pamela Bleam – Board of Educational Examiners

Susan Battani – School Budget Review Committee

HUMAN RESOURCES

Joel Wulf – Commission on Aging

Erica Boer – Board of Athletic Training

Kevin Allemagne – Board of Behavioral Science
Cody Samec – Board of Behavioral Science
Mary Wink – Board of Behavioral Science

Timothy Dowie – Commission of Persons with Disabilities
Adam Koch – Commission of Persons with Disabilities

Kelly Blackford – Health Facilities Council

Mary Scieszinski – Healthy and Well Kids in Iowa (HAWK-I) Board
Michael Stopulos – Healthy and Well Kids in Iowa (HAWK-I) Board

Eldora (Kay) Fisk – Council on Human Services
Monika Jindal – Council on Human Services
Skylar Mayberry-Mayes – Council on Human Services
Samuel Wallace – Council on Human Services

Jose Ayala – Commission of Latino Affairs
Juan Himar Hernandez – Commission of Latino Affairs

Sarah Berndt – Mental Health and Disability Services Commission
Donald Kass – Mental Health and Disability Services Commission
June Klein-Bacon – Mental Health and Disability Services Commission
Jeffrey Sorensen – Mental Health and Disability Services Commission
Richard Whitaker, Jr. – Mental Health and Disability Services Commission
Russell Wood – Mental Health and Disability Services Commission

Chad Jensen – Commission on Tobacco Use Prevention and Control

JUDICIARY

Stanley Thompson – Director of the Iowa State Civil Rights Commission

Patrick Coughlin – Drug Policy Advisory Council

William (Bill) Anderson II – State Judicial Nominating Commission

Maria Valdez Guerrero – Justice Advisory Board

Andrew Boettger – Chairperson of the Board of Parole

Meredith Lamberti – Board of Parole

Carolyn Schulte Parole – Board of Parole, Alternate

LABOR AND BUSINESS RELATIONS

Curt Baker – Plumbing and Mechanical Systems Board
Toni Knight – Plumbing and Mechanical Systems Board

Kelly Barrick – Iowa Workforce Development Board
Brad Elliott – Iowa Workforce Development Board
Mary Landhuis – Iowa Workforce Development Board
Deborah Mauricio – Iowa Workforce Development Board
Ofelia Rumbo – Iowa Workforce Development Board
Alexander Severn – Iowa Workforce Development Board
Jason Shanks – Iowa Workforce Development Board
Alicia Stafford – Iowa Workforce Development Board

NATURAL RESOURCES AND ENVIRONMENT

Jodi Freet – Flood Mitigation Board

Tammi Kircher – Natural Resource Commission

TRANSPORTATION

Sally Stutsman – State Transportation Commission

VETERANS AFFAIRS

George Mosby – Commission of Veterans Affairs

GOVERNOR'S APPOINTEES PLACED ON INDIVIDUAL CONFIRMATION CALENDAR

The following appointees, assigned to standing committees for investigation, were placed on the Individual Confirmation Calendar with recommendation for confirmation:

EDUCATION

Rodney Bradley – State Board of Education

Michael Cavin – Executive Director of the Board of Educational Examiners

JUDICIARY

Brenna Bird – Drug Policy Advisory Council

LABOR AND BUSINESS RELATIONS

Erik Helland – Public Employment Relations Board, Chair & member of the

Jane Dufoe – Public Employment Relations Board

AMENDMENTS FILED

S–5031	S.F.	463	House
S–5032	S.F.	2255	Jeff Edler
S–5033	S.F.	2309	Jason Schultz

JOURNAL OF THE SENATE

FIFTY-SECOND CALENDAR DAY
THIRTY-FIRST SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, March 2, 2022

The Senate met in regular session at 9:07 a.m., President Chapman presiding.

Prayer was offered by the Honorable Dennis Guth, member of the Senate from Hancock County, Klemme, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Grace Tollefson.

The Journal of Tuesday, March 1, 2022, was approved.

RECESS

On motion of Senator Brown, the Senate recessed at 9:10 a.m. until 1:00 p.m.

RECONVENED

The Senate reconvened at 1:05 p.m., President Chapman presiding.

QUORUM CALL

Senator Sweeney requested a nonrecord roll call to determine that a quorum was present. The Chair declared a quorum present.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senator Zumbach, until he arrives, on request of Senator Whitver; and Senator Kinney, until he arrives, on request of Senator Wahls.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2342.

Senate File 2342

On motion of Senator Goodwin, **Senate File 2342**, a bill for an act relating to student eligibility requirements in school district, accredited nonpublic school, charter school, community college, and regent institution athletics based on sex, was taken up for consideration.

Senator Goodwin offered amendment S–5034, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5034 was adopted by a voice vote.

Senator Goodwin asked and received unanimous consent that **House File 2416** be **substituted** for **Senate File 2342**.

House File 2416

On motion of Senator Goodwin, **House File 2416**, a bill for an act relating to student eligibility requirements in school district, accredited nonpublic school, charter school, community college, and regent institution athletics based on sex, was taken up for consideration.

President Pro Tempore Zaun took the chair at 1:38 p.m.

Senator Goodwin moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2416), the vote was:

Yeas, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	

Nays, 17:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott
Wahls			

Absent, 2:

Kinney	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Goodwin asked and received unanimous consent that **Senate File 2342** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2416** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2169 and 2183.

Senate File 2169

On motion of Senator Sweeney, **Senate File 2169**, a bill for an act relating to assisted reproduction fraud, and providing penalties, with report of committee recommending passage, was taken up for consideration.

Senator Sweeney offered amendment S–5035, filed by her from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5035 was adopted by a voice vote.

Senator Sweeney asked and received unanimous consent that **House File 2160** be **substituted** for **Senate File 2169**.

House File 2160

On motion of Senator Sweeney, **House File 2160**, a bill for an act relating to assisted reproduction fraud, and providing penalties, was taken up for consideration.

Senator Sweeney offered amendment S–5036, filed by her from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5036 was adopted by a voice vote.

President Chapman took the chair at 3:07 p.m.

Senator Sweeney moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2160), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun

Nays, none.

Absent, 2:

Kinney Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

WITHDRAWN

Senator Sweeney asked and received unanimous consent that **Senate File 2169** be **withdrawn** from further consideration of the Senate.

Senate File 2183

On motion of Senator Schultz, **Senate File 2183**, a bill for an act relating to antisemitism in the state of Iowa, was taken up for consideration.

Senator Schultz asked and received unanimous consent that **House File 2220** be **substituted** for **Senate File 2183**.

House File 2220

On motion of Senator Schultz, **House File 2220**, a bill for an act relating to antisemitism in the state of Iowa, was taken up for consideration.

Senator Schultz moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2220), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun

Nays, none.

Absent, 2:

Kinney Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Schultz asked and received unanimous consent that **Senate File 2183** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2160** and **2220** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2287, 2305, and 2310.

Senate File 2287

On motion of Senator Brown, **Senate File 2287**, a bill for an act relating to used catalytic converter transactions, providing penalties, and making penalties applicable, was taken up for consideration.

Senator Brown offered amendment S–5038, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5038 was adopted by a voice vote.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2287), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Klimesh	Koelker	Kraayenbrink
Lofgren	Mathis	Nunn	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun

Nays, 4:

Dotzler	Lykam	Petersen	Smith, J.

Absent, 2:

Kinney	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

Senate File 2305

On motion of Senator Koelker, **Senate File 2305**, a bill for an act regarding port authorities, including by allowing port authorities to enter into certain loan agreements and lease contracts, was taken up for consideration.

Senator Koelker moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2305), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun

Nays, none.

Absent, 2:

Kinney	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2310

On motion of Senator Williams, **Senate File 2310**, a bill for an act relating to multiple housing cooperatives, including by providing for the conversion to a cooperative under the Iowa cooperative associations Act and merger with a limited liability company, was taken up for consideration.

Senator Williams moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2310), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun

Nays, none.

Absent, 2:

Kinney	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2287**, **2305**, and **2310** be **immediately messaged** to the House.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 2, 2022, **passed** the following bills in which the concurrence of the House was asked:

Senate File 2128, a bill for an act relating to education, including the education of students who are not fully English proficient and the standards applicable to the hiring, developing, and evaluation of community college faculty.

Senate File 2130, a bill for an act relating to schools that are required to register with the college student aid commission.

Senate File 2279, a bill for an act regarding electronic submission of bids for public improvement contracts.

Senate File 2325, a bill for an act related to matters under the purview of the economic development authority including the high quality jobs program, the Iowa energy center, and the workforce housing tax incentive program, and including effective date and retroactive applicability provisions.

ALSO: That the House has on March 2, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2147, a bill for an act making an appropriation to support efforts relating to the U.S.S. Iowa and including effective date provisions.

Read first time and referred to committee on **Appropriations**.

House File 2165, a bill for an act relating to employment, including modifying provisions related to the list of high-demand jobs created by community colleges and students who are eligible to receive a scholarship from the future ready Iowa skilled workforce last-dollar scholarship fund.

Read first time and attached to **similar Senate File 2129**.

House File 2200, a bill for an act relating to direct health care agreements, and including effective date and applicability provisions.

Read first time and attached to **similar Senate File 2276**.

House File 2302, a bill for an act relating to affirmative defenses for entities using cybersecurity programs.

Read first time and referred to committee on **Commerce**.

House File 2408, a bill for an act relating to the delivery of restaurant food pursuant to a food delivery platform, providing civil penalties, and including applicability provisions.

Read first time and attached to **similar Senate File 2320**.

House File 2414, a bill for an act relating to waiver of the placement investigations and reports related to the adoption of a minor by a minor's legal guardian.

Read first time and referred to committee on **Judiciary**.

House File 2415, a bill for an act relating to private land available for public use for recreational purposes.

Read first time and referred to committee on **Natural Resources and Environment**.

House File 2420, a bill for an act relating to the newborn safe haven Act.

Read first time and referred to committee on **State Government**.

House File 2445, a bill for an act relating to the uniform commercial code by providing for controllable electronic records.

Read first time and attached to **companion Senate File 2333**.

House File 2461, a bill for an act relating to ransomware and providing penalties.

Read first time and referred to committee on **Commerce**.

House File 2463, a bill for an act relating to nonsubstantive Code corrections, and including retroactive applicability provisions.

Read first time and attached to **companion Senate File 2294**.

House File 2470, a bill for an act adopting and implementing the recommendations of the artisanal butchery task force.

Read first time and referred to committee on **Commerce**.

House File 2472, a bill for an act relating to tampering with witnesses or jurors, and providing penalties.

Read first time and referred to committee on **Judiciary**.

House File 2493, a bill for an act relating to para-educators holding substitute authorizations and including effective date provisions.

Read first time and attached to **companion Senate File 2291**.

House File 2495, a bill for an act establishing the comprehensive transition and postsecondary program scholarship program.

Read first time and referred to committee on **Education**.

House File 2521, a bill for an act relating to health care employment agencies, and providing penalties.

Read first time and attached to **companion Senate File 2210**.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 3:24 p.m. until 9:00 a.m., Thursday, March 3, 2022.

APPENDIX

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Kennedy Bigwood, Camanche High School—For winning the Class 1A Individual State Championship. Senator Cournoyer.

Eric Kinkaid, Camanche High School—For winning the 145lb, 2A 2022 Iowa High School State Wrestling Championship. Senator Cournoyer.

REPORTS OF COMMITTEE MEETINGS

COMMERCE

Convened: Wednesday, March 2, 2022, 10:10 a.m.

Members Present: Schultz, Chair; Koelker, Vice Chair; Giddens, Ranking Member; Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams.

Members Absent: None.

Committee Business: HF 2167.

Adjourned: 10:20 a.m.

STATE GOVERNMENT

Convened: Wednesday, March 2, 2022, 3:30 p.m.

Members Present: R. Smith, Chair; Cournoyer, Vice Chair; Boulton, Brown, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, and Reichman.

Members Absent: Bisignano, Ranking Member; Celsi, and Schultz (all excused).

Committee Business: Distribution of committee assignments.

Adjourned: 3:35 p.m.

WAYS AND MEANS

Convened: Tuesday, March 2, 2022, 11:25 a.m.

Members Present: Dawson, Chair; Goodwin, Vice Chair; Jochum, Ranking Member; Bolkcom, Brown, Dickey, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun.

Members Absent: None.

Committee Business: SSB 3147 w/amendment SSB 3152 w/amendment SSB 3151 w/amendment (pulled from agenda).

Adjourned: 11:40 a.m.

INTRODUCTION OF RESOLUTION

Senate Resolution 106, by Nunn and Boulton, a resolution honoring the nation of Taiwan.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

SUBCOMMITTEE ASSIGNMENTS

House File 2340

STATE GOVERNMENT: Cournoyer, Chair; Bisignano, Boulton, Dawson, and R. Smith

House File 2411

LABOR AND BUSINESS RELATIONS: Dickey, Chair; Boulton and Driscoll

FINAL COMMITTEE REPORT OF BILL ACTION

COMMERCE

Bill Title: HOUSE FILE 2167, a bill for an act relating to the definition of autism spectrum disorder for purposes of certain health care coverage, making conforming changes, and including applicability provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 17: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate on March 2, 2022:

I am withdrawing the name of Judy Loonan for confirmation as a member of the State Soil Conservation and Water Quality Committee from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

GOVERNOR'S APPOINTEE PLACED ON EN BLOC CONFIRMATION CALENDAR

The following appointee, assigned to standing committee for investigation, was placed on the En Bloc Confirmation Calendar with recommendation for confirmation:

COMMERCE

Bobbi Terrell – Credit Union Review Board

AMENDMENTS FILED

S–5034	S.F.	2342	Tim Goodwin
S–5035	S.F.	2169	Annette Sweeney
S–5036	H.F.	2160	Annette Sweeney
S–5037	S.F.	2260	Dan Dawson
S–5038	S.F.	2287	Waylon Brown
S–5039	S.F.	2251	Adrian Dickey

JOURNAL OF THE SENATE

FIFTY-THIRD CALENDAR DAY
THIRTY-SECOND SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, March 3, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Ian Critelli.

The Journal of Wednesday, March 2, 2022, was approved.

SPECIAL GUESTS

Senator Jochum introduced to the Senate chamber the recipient of the Deb Dalziel Woman Entrepreneurial Award, Erica Brewer, owner of Belle Allure Minkz and Boutique.

The Senate rose and expressed its congratulations.

Senator Ragan introduced to the Senate chamber the recipient of the Neal Smith Entrepreneurs of the Year Award, Matt Curtis, owner of Wayne's Ski and Cycle.

The Senate rose and Expressed its congratulations.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 2, 2022, **passed** the following bills in which the concurrence of the House was asked:

Senate File 2119, a bill for an act relating to cosmetology and the practice of threading.

Senate File 2266, a bill for an act concerning compensation and benefits limits, relating to the earnings limitation for retirees under the Iowa public employees' retirement system and compensation limits for school corporation board members, and including effective date provisions.

ALSO: That the House has on March 2, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2127, a bill for an act relating to payments to child care providers from families participating in the state child care assistance program.

Read first time and referred to committee on **Human Resources**.

House File 2198, a bill for an act relating to the minimum age requirements for employees and substitutes working at a child care center.

Read first time and referred to committee on **Human Resources**.

House File 2203, a bill for an act relating to health care including protections for health care providers against disciplinary actions for acts or omissions related to COVID-19 and to experimental treatments for terminally ill persons, and including effective date provisions.

Read first time and referred to committee on **Human Resources**.

House File 2398, a bill for an act relating to certain specified employees of school districts, accredited nonpublic schools, and charter schools, including renewal requirements associated with licenses issued by the board of educational examiners to practitioners with master's or doctoral degrees, fees associated with the review of certain specified records, and background checks for employees of school districts, accredited nonpublic schools, and charter schools.

Read first time and referred to committee on **Education**.

House File 2462, a bill for an act relating to penalties for the manufacture, delivery, or possession with the intent to manufacture or deliver heroin.

Read first time and attached to **companion Senate File 2179**.

House File 2497, a bill for an act relating to gambling regulation and wagering, concerning cashless wagering, forfeiture and withholding of certain gaming winnings, sports wagering, occupational licenses, and providing penalties.

Read first time and referred to committee on **State Government**.

House File 2501, a bill for an act relating to the investment and use of funds in the veterans trust fund.

Read first time and referred to committee on **Veterans Affairs**.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:19 a.m. until 1:00 p.m., Monday, March 7, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF HUMAN SERVICES

Preferred Drug List Program Report, pursuant to Iowa Code section 249A.20A. Report received on March 3, 2022.

INTRODUCTION OF BILLS

Senate File 2370, by committee on Ways and Means, a bill for an act relating to aircraft, including special certificates issued to aircraft manufacturers, transporters, and dealers, and sales tax exemptions associated with aircraft, providing fees, making penalties applicable, and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

Senate File 2371, by committee on Ways and Means, a bill for an act relating to state and local finances and the duties and procedures of the department of revenue by providing for electronic filing, communications, and records, modifying transfer tax remittances, the assessment of property, the collection of debt, the refunds of certain fuel taxes, and the taxation of pass-through entities, reducing inheritance taxes for unknown heirs, establishing salaries, providing for a fee, making appropriations, and providing penalties, and including effective date, applicability, and retroactive applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2122
(Reassigned)

WAYS AND MEANS: Schultz, Chair; Brown and Dotzler

House File 2501

VETERANS AFFAIRS: Lofgren, Chair; Giddens and Reichman

FINAL COMMITTEE REPORTS OF BILL ACTION

WAYS AND MEANS

Bill Title: *SENATE FILE 2370 (SSB 3152), a bill for an act relating to aircraft, including special certificates issued to aircraft manufacturers, transporters, and dealers, and sales tax exemptions associated with aircraft, providing fees, making penalties applicable, and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Green, Petersen, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, 1: Quirmbach. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2370, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2371 (SSB 3147), a bill for an act relating to state and local finances and the duties and procedures of the department of revenue by providing for electronic filing, communications, and records, modifying transfer tax remittances, the assessment of property, the collection of debt, the refunds of certain fuel taxes, and the taxation of pass-through entities, reducing inheritance taxes for unknown heirs, establishing salaries, providing for a fee, making appropriations, and providing penalties, and including effective date, applicability, and retroactive applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Dawson, Goodwin, Brown, Dickey, Green, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and Zaun. Nays, 6: Jochum, Bolkcom, Dotzler, Petersen, Quirmbach, and T. Taylor. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2371, and they were attached to the committee report.

JOURNAL OF THE SENATE

FIFTY-SEVENTH CALENDAR DAY
THIRTY-THIRD SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, March 7, 2022

The Senate met in regular session at 1:03 p.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Johnson, member of the Senate from Buchanan County, Independence, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Maren Rasmussen.

The Journal of Thursday, March 3, 2022, was approved.

ADJOURNMENT

On motion of Senator Brown, the Senate adjourned at 1:10 p.m. until 9:00 a.m., Tuesday, March 8, 2022.

APPENDIX

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Lisa Hoerschelmann, 1st Gateway Credit Union in Clinton—For receiving the Consumer Protection Hero Award. Senator Cournoyer.

Jacob Ludwig, Ankeny—For being elected Student Body President of Iowa State University. Senator Nunn.

REPORT OF COMMITTEE MEETING

HUMAN RESOURCES

Convened: Monday, March 7, 2022, 2:10 p.m.

Members Present: Edler, Chair; Costello, Vice Chair; Mathis, Ranking Member; Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott.

Members Absent: None.

Committee Business: Consideration and passage of bills: HF 2202, HF 2297, and HF 2246.

Adjourned: 2:20 p.m.

STUDY BILL RECEIVED

SSB 3154 Ways and Means

Relating to state taxation and administration by modifying sales and use taxes, individual and corporate income taxes, the automobile rental excise tax, the franchise tax, and the insurance premiums tax, and including effective date, applicability, and retroactive applicability provisions.

SUBCOMMITTEE ASSIGNMENTS

House File 2302

COMMERCE: Johnson, Chair; Mathis and Williams

House File 2415

NATURAL RESOURCES AND ENVIRONMENT: Sweeney, Chair; Green and Hogg

House File 2470

COMMERCE: Johnson, Chair; Bisignano and Koelker

SSB 3154

WAYS AND MEANS: Dawson, Chair; Bolkcom and Goodwin

FINAL COMMITTEE REPORTS OF BILL ACTION

HUMAN RESOURCES

Bill Title: HOUSE FILE 2202, a bill for an act relating to Medicaid program reporting requirements.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2246, a bill for an act relating to provisional licensing of interns enrolled in a doctoral degree program in psychology.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2297, a **b**ill for an act relating to the medical assistance and hawk-i programs, and managed care organizations.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Edler, Costello, Mathis, Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

AMENDMENTS FILED

S–5040	S.F.	2329	Tom Shipley
S–5041	H.F.	2221	Tom Shipley

JOURNAL OF THE SENATE

FIFTY-EIGHTH CALENDAR DAY
THIRTY-FOURTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, March 8, 2022

The Senate met in regular session at 9:10 a.m., President Chapman presiding.

Prayer was offered by the Honorable Zach Nunn, member of the Senate from Polk County, Altoona, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Elizabeth Hunter.

The Journal of Monday, March 7, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 7, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2281, a bill for an act relating to video conferences in judicial proceedings and certified shorthand reporter audio and video recordings, and including effective date provisions.

Read first time and referred to committee on **Judiciary**.

House File 2331, a bill for an act establishing daylight saving time as the official time in this state throughout the year and including effective date provision.

Read first time and referred to committee on **State Government**.

House File 2412, a bill for an act requiring radon testing and mitigation in public schools, and including applicability provisions.

Read first time and referred to committee on **Education**.

House File 2520, a bill for an act exempting from the state sales and use tax the purchase price of specified digital products, prewritten computer software, and related services sold to public utilities, and including effective date provisions.

Read first time and referred to committee on **Ways and Means**.

House File 2547, a bill for an act relating to midwife licensure, providing for fees, and making penalties applicable.

Read first time and referred to committee on **State Government**.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:18 a.m. until the completion of a meeting of the committee on Rules and Administration.

RECONVENED

The Senate reconvened at 9:20 a.m., President Chapman presiding.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 103.

Senate Resolution 103

On motion of Senator Koelker, **Senate Resolution 103**, a resolution designating March 8, annually, as Utility Worker Appreciation Day, was taken up for consideration.

Senator Koelker moved the adoption of Senate Resolution 103, which motion prevailed by a voice vote.

The Senate stood at ease at 9:23 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 10:48 a.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Kinney and Hogg, until they arrive, on request of Senator Wahls; and Senator Dickey, until he arrives, on request of Senator Whitver.

CONFIRMATION OF GOVERNOR'S APPOINTMENTS

In accordance with Senate Rule 59, Senator Whitver called up the following eligible appointees on the En Bloc Confirmation Calendar:

Wendell Talley, Commission on the Status of African Americans

Joel Wulf, Commission on Aging

Erica Boer, Board of Athletic Training

Rebecca Brockmann, Board of Barbering

Kevin Allemagne, Board of Behavioral Science
Cody Samec, Board of Behavioral Science
Mary Wink, Board of Behavioral Science

Darci Alt, Children's Behavioral Health System State Board
Scott Hobart, Children's Behavioral Health System State Board
Carol Meade, Children's Behavioral Health System State Board

Kirby Connell, Board of Chiropractic

Nicole Conrad, Commission on Community Action Agencies

Bobbi Terrell, Credit Union Review Board

Brian Gongol, Commission of Deaf Services
Telina McKenna-Quintana, Commission of Deaf Services

Janet Rydberg, Board of Dietetics

Timothy Dowie, Commission of Persons with Disabilities
Adam Koch,Commission of Persons with Disabilities

Patrick Coughlin, Drug Policy Advisory Council

Samuel Eathington, Economic Development Authority

Pamela Bleam, Board of Educational Examiners

Sara Fasching, Electrical Examining Board
Tim Gerald, Electrical Examining Board
Luke Maloney, Electrical Examining Board
Dan Wood, Electrical Examining Board

Candace Biddle, Elevator Safety Board

James Sweeney, Engineering and Land Surveying Examining Board

Jodi Freet, Flood Mitigation Board

Aaron Burnett, Iowa Great Places Board
Danna Kehm, Iowa Great Places Board
Angel Wallace, Iowa Great Places Board

Kelly Blackford, Health Facilities Council

Mary Scieszinski, Healthy and Well Kids in Iowa (HAWK-I) Board
Michael Stopulos, Healthy and Well Kids in Iowa (HAWK-I) Board

Eldora (Kay) Fisk, Council on Human Services
Monika Jindal, Council on Human Services
Skylar Mayberry-Mayes, Council on Human Services
Samuel Wallace, Council on Human Services

William Bemis, Investment Board of the Iowa Public Employees' Retirement System

William (Bill) Anderson II, State Judicial Nominating Commission

Maria Valdez Guerrero, Justice Advisory Board

Jose Ayala, Commission of Latino Affairs
Juan Himar Hernandez, Commission of Latino Affairs

Patricia Fasbender, Board of Medicine
Dalton Hayes, Board of Medicine
Chad Stadsvold, Board of Medicine

Sarah Berndt, Mental Health and Disability Services Commission
Donald Kass, Mental Health and Disability Services Commission
June Klein-Bacon, Mental Health and Disability Services Commission
Jeffrey Sorensen, Mental Health and Disability Services Commission
Richard Whitaker, Jr., Mental Health and Disability Services Commission
Russell Wood, Mental Health and Disability Services Commission

Taylor Beyal, Commission of Native American Affairs
Patrick Bigsby, Commission of Native American Affairs
Calvin Harlan, Commission of Native American Affairs
T. JoAn Schlotman, Commission of Native American Affairs

Tammi Kircher, Natural Resource Commission

Ryan Stuck, Board of Nursing

Karen Bentsen, Board of Nursing Home Administrators
Cindy Dozark, Board of Nursing Home Administrators
Billy Meyers, Board of Nursing Home Administrators

Brian Kirschling, Board of Optometry

Andrew Boettger, Chairperson of the Board of Parole

Meredith Lamberti, Board of Parole

Carolyn Schulte Parole, Board of Parole, Alternate

James Mennen, Board of Pharmacy

Curt Baker, Plumbing and Mechanical Systems Board
Toni Knight, Plumbing and Mechanical Systems Board

Andrew Steele, Board of Podiatry
Kelsey Sukovaty Cain, Board of Podiatry

Amy Burkhart, State Racing and Gaming Commission

Susan Battani, School Budget Review Committee

Nancy Almasi, Board of Speech Pathology and Audiology
Caitlin McKenney, Board of Speech Pathology and Audiology

Meaghan O'Brien, Director of Office for State-Federal Relations

Chad Jensen, Commission on Tobacco Use Prevention and Control

Sally Stutsman, State Transportation Commission

George Mosby, Commission of Veterans Affairs

Kelly Barrick, Iowa Workforce Development Board
Brad Elliott, Iowa Workforce Development Board
Mary Landhuis, Iowa Workforce Development Board
Deborah Mauricio, Iowa Workforce Development Board
Ofelia Rumbo, Iowa Workforce Development Board
Alexander Severn, Iowa Workforce Development Board
Jason Shanks, Iowa Workforce Development Board
Alicia Stafford, Iowa Workforce Development Board

Senator Whitver moved that the foregoing appointees be confirmed by the Senate.

On the question "Shall the appointees be confirmed?" the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Dickey	Hogg	Kinney

The appointees, having received a two-thirds vote, were declared to have been confirmed by the Senate.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2196 and 2291.

Senate File 2196

On motion of Senator Koelker, **Senate File 2196**, a bill for an act relating to fees charged to employees by employers for copies of personnel files, was taken up for consideration.

Senator Koelker moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2196), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Dickey	Hogg	Kinney

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2291

On motion of Senator Cournoyer, **Senate File 2291**, a bill for an act relating to para-educators holding substitute authorizations and including effective date provisions, with report of committee recommending passage, was taken up for consideration.

Senator Cournoyer offered amendment S–5042, filed by her from the floor to page 1 of the bill, and moved its adoption.

Amendment S–5042 was adopted by a voice vote.

Senator Cournoyer asked and received unanimous consent that **House File 2493** be **substituted** for **Senate File 2291**.

House File 2493

On motion of Senator Cournoyer, **House File 2493**, a bill for an act relating to para-educators holding substitute authorizations and including effective date provisions, was taken up for consideration.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2493), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Dickey	Hogg	Kinney

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Cournoyer asked and received unanimous consent that **Senate File 2291** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2196** and **House File 2493** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2307, 2329, and 2345.

Senate File 2307

On motion of Senator Koelker, **Senate File 2307**, a bill for an act relating to professional licensing boards, including requirements related to the submission of official transcripts or diplomas, was taken up for consideration.

Senator Koelker moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2307), the vote was:

Yeas, 37:

Bisignano	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Johnson
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, 10:

Bolkcom	Celsi	Dotzler	Jochum
Petersen	Quirmbach	Ragan	Smith, J.
Taylor, T.	Trone Garriott		

Absent, 3:

Dickey	Hogg	Kinney

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2329

On motion of Senator Shipley, **Senate File 2329**, a bill for an act relating to evidence, including spousal privilege and confidential communications between spouses, and the admissibility of evidence in a prosecution for physical abuse or a sexual offense upon or against a child, person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability, was taken up for consideration.

Senator Shipley offered amendment S–5040, filed by him on March 7, 2022, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5040 was adopted by a voice vote.

With the adoption of amendment S–5040, the Chair ruled amendment S–5015, filed by Senator Shipley on February 22, 2022, to page 3 of the bill, out of order.

Senator Shipley asked and received unanimous consent that **House File 2221** be **substituted** for **Senate File 2329**.

House File 2221

On motion of Senator Shipley, **House File 2221**, a bill for an act relating to evidence, including spousal privilege and confidential communications between spouses, and the admissibility of evidence in a prosecution for physical abuse or a sexual offense upon or against a child, person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability, was taken up for consideration.

Senator Shipley offered amendment S–5041, filed by him on March 7, 2022, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5041 was adopted by a voice vote.

Senator Shipley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2221), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Dickey	Hogg	Kinney

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

WITHDRAWN

Senator Shipley asked and received unanimous consent that **Senate File 2329** be **withdrawn** from further consideration of the Senate.

Senate File 2345

On motion of Senator Costello, **Senate File 2345**, a bill for an act relating to the newborn screening, was taken up for consideration.

Senator Costello moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2345), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Dickey	Hogg	Kinney

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2307** and **2345** and **House File 2221** be **immediately messaged** to the House.

President Pro Tempore Zaun took the chair at 11:18 a.m.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2263.

Senate File 2263

On motion of Senator R. Smith, **Senate File 2263**, a bill for an act relating to the confirmation by the senate of certain appointees, was taken up for consideration.

Senator Boulton asked and received unanimous consent that action on **Senate File 2263** be **deferred.**

RECESS

On motion of Senator Whitver, the Senate recessed at 11:19 a.m. until 12:30 p.m.

RECONVENED

The Senate reconvened at 12:42 p.m., President Pro Tempore Zaun presiding.

QUORUM CALL

Senator Goodwin requested a nonrecord roll call to determine that a quorum was present. The Chair declared a quorum present.

BUSINESS PENDING

Senate File 2263

The Senate resumed consideration of **Senate File 2263**, a bill for an act relating to the confirmation by the senate of certain appointees, previously deferred.

Senator R. Smith offered amendment S–5043, filed by him from the floor to page 3 of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5043 be adopted?" (S.F. 2263), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman

Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Dickey	Hogg

Amendment S–5043 was adopted.

The Senate stood at ease at 12:53 p.m. until the fall of the gavel for the purpose of a Democratic party caucus.

The Senate resumed session at 1:03 p.m., President Pro Tempore Zaun presiding.

Senator R. Smith moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2263), the vote was:

Yeas, 33:

Bolkcom	Brown	Carlin	Chapman
Costello	Cournoyer	Dawson	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Quirmbach
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun
Zumbach			

Nays, 15:

Bisignano	Boulton	Celsi	Dotzler
Giddens	Jochum	Kinney	Lykam
Mathis	Petersen	Ragan	Smith, J.
Taylor, T.	Trone Garriott	Wahls	

Absent, 2:

Dickey	Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2263** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2260, 2346, and 2357.

Senate File 2260

On motion of Senator Dawson, **Senate File 2260**, a bill for an act providing for the adoption of certain animals confined by research facilities, with report of committee recommending passage, was taken up for consideration.

Senator Dawson offered amendment S–5037, filed by him on March 2, 2022, to page 1 of the bill, and moved its adoption.

Amendment S–5037 was adopted by a voice vote.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2260), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dotzler	Driscoll
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren

Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, 1:

Edler

Absent, 2:

Dickey Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2346

On motion of Senator Shipley, **Senate File 2346**, a bill for an act relating to flashing lights equipped on motor vehicles, and making penalties applicable, was taken up for consideration.

Senator Shipley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2346), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Dickey Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2357

On motion of Senator Goodwin, **Senate File 2357**, a bill for an act relating to voting during meetings of the boards of directors of school districts and including effective date provisions, was taken up for consideration.

Senator Goodwin moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2357), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Dickey Hogg

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2260**, **2346**, and **2357** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Dawson, the Senate adjourned at 1:52 p.m. until 9:00 a.m., Wednesday, March 9, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

BOARD OF REGENTS

Span of Control Policy Report, pursuant to 262.9C. Report received on March 7, 2022.

REPORTS OF COMMITTEE MEETINGS

NATURAL RESOURCES AND ENVIRONMENT

Convened: Tuesday, March 8, 2022, 1:15 p.m.

Members Present: Sweeney, Chair; Driscoll, Vice Chair; Trone Garriott, Ranking Member; Boulton, Celsi, Cournoyer, Green, Lykam, Rozenboom, Shipley, J. Taylor, and Zumbach.

Members Absent: Hogg (excused).

Committee Business: HF 2337.

Adjourned: 1:20 p.m.

VETERANS AFFAIRS

Convened: Tuesday, March 8, 2022, 2:25 p.m.

Members Present: Lofgren, Chair; Reichman, Vice Chair; Giddens, Ranking Member; Carlin, Costello, Dawson, Dotzler, Edler, Green, Mathis, and Ragan.

Members Absent: None.

Committee Business: Committee business.

Adjourned: 2:30 p.m.

WAYS AND MEANS

Convened: Tuesday, March 8, 2022, 3:35 p.m.

Members Present: Dawson, Chair; Goodwin, Vice Chair; Jochum, Ranking Member; Bolkcom, Brown, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun.

Members Absent: Dickey (excused).

Committee Business: SSB 3154 – Sales, Insurance Premium, Franchise Taxes – Dawson w/amendment SF 2353 – Nonresident user fee – Dawson w/amendment SF 2350 – Alcohol Beverage Division Smith w/amendment.

Adjourned: 4:05 p.m.

INTRODUCTION OF BILL

Senate File 2372, by committee on Ways and Means, a bill for an act relating to state taxation and administration by modifying sales and use taxes, individual and corporate income taxes, the automobile rental excise tax, the franchise tax, and the insurance premiums tax, and including effective date, applicability, and retroactive applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

STUDY BILL RECEIVED

SSB 3155 Ways and Means

Relating to electric motor vehicle registration fees for antique motor vehicles.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2368

EDUCATION: Johnson, Chair; Carlin and J. Smith

House File 771
(Reassigned)

EDUCATION: Rozenboom, Chair; Celsi and Johnson

House File 2081

EDUCATION: Sinclair, Chair; Giddens and Johnson

House File 2127

HUMAN RESOURCES: Lofgren, Chair; Green and Trone Garriott

House File 2147

APPROPRIATIONS: Lofgren, Chair; Dotzler and Reichman

House File 2198

HUMAN RESOURCES: Johnson, Chair; Jochum and Rowley

House File 2203

HUMAN RESOURCES: Costello, Chair; Bolkcom and Green

House File 2248

HUMAN RESOURCES: Edler, Chair; Costello and Ragan

House File 2281

JUDICIARY: J. Taylor, Chair; Kinney and Shipley

House File 2398

EDUCATION: Sinclair, Chair; Celsi and J. Taylor

House File 2412

EDUCATION: Johnson, Chair; J. Smith and Sweeney

House File 2414

JUDICIARY: Shipley, Chair; Petersen and Rowley

House File 2461

COMMERCE: Johnson, Chair; Quirmbach and Williams

House File 2472

JUDICIARY: Reichman, Chair; Boulton and Shipley

House File 2495

EDUCATION: J. Taylor, Chair; Kraayenbrink and Quirmbach

House File 2520

WAYS AND MEANS: Goodwin, Chair; Dawson and Jochum

SSB 3155

WAYS AND MEANS: Goodwin, Chair; Brown and Jochum

FINAL COMMITTEE REPORTS OF BILL ACTION

NATURAL RESOURCES AND ENVIRONMENT

Bill Title: HOUSE FILE 2337, a bill for an act relating to underground storage tanks, including by creating the Iowa tanks fund and Iowa tanks fund financing program, repealing the Iowa comprehensive petroleum underground storage tank fund, and eliminating the Iowa comprehensive petroleum underground storage tank fund board, requiring a study, making appropriations, and including effective date and transition provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 12: Sweeney, Driscoll, Trone Garriott, Boulton, Celsi, Cournoyer, Green, Lykam, Rozenboom, Shipley, J. Taylor, and Zumbach. Nays, none. Excused, 1: Hogg.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

VETERANS AFFAIRS

Bill Title: HOUSE FILE 2501, a bill for an act relating to the investment and use of funds in the veterans trust fund.

Recommendation: DO PASS.

Final Vote: Yeas, 11: Lofgren, Reichman, Giddens, Carlin, Costello, Dawson, Dotzler, Edler, Green, Mathis, and Ragan. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

WAYS AND MEANS

Bill Title: *SENATE FILE 2372 (SSB 3154), a bill for an act relating to state taxation and administration by modifying sales and use taxes, individual and corporate income taxes, the automobile rental excise tax, the franchise tax, and the insurance premiums tax, and including effective date, applicability, and retroactive applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, none. Excused, 1: Dickey.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2372, and they were attached to the committee report.

PLACEMENT ON INDIVIDUAL CONFIRMATION CALENDAR

MR. PRESIDENT: Pursuant to Senate Rule 59, I hereby request that the name of Adam Steen to Director of the Department of Administrative Services be removed from the "En Bloc Confirmation Calendar" and placed on the "Individual Confirmation Calendar":

ZACH WAHLS

MR. PRESIDENT: Pursuant to Senate Rule 59, I hereby request that the name of Stanley Thompson to Civil Rights Commission be removed from the "En Bloc Confirmation Calendar" and placed on the "Individual Confirmation Calendar":

CLAIRE A. CELSI

AMENDMENTS FILED

S–5042	S.F.	2291	Chris Cournoyer
S–5043	S.F.	2263	Roby Smith
S–5044	H.F.	780	Mark Lofgren
S–5045	S.F.	2309	Jason Schultz

JOURNAL OF THE SENATE

FIFTY-NINTH CALENDAR DAY
THIRTY-FIFTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, March 9, 2022

The Senate met in regular session at 9:08 a.m., President Chapman presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Thomas Knudsen.

The Journal of Tuesday, March 8, 2022, was approved.

The Senate stood at ease at 9:14 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 9:26 a.m., President Chapman presiding.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:27 a.m. until the fall of the gavel.

RECONVENED

The Senate reconvened at 11:22 a.m., President Chapman presiding.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2328.

Senate File 2328

On motion of Senator Reichman, **Senate File 2328**, a bill for an act relating to criminal law including the disclosure of a defendant's privileged records in a criminal action, permanent no-contact orders, penalties for domestic abuse assault, limitations on criminal actions involving certain sexual offenses, criminal sentencing and corrections, parole and work release, crime victim rights, discovery in criminal actions, postconviction relief procedure, and certain reporting requirements, and making penalties applicable, was taken up for consideration.

Senator Boulton asked and received unanimous consent that action on **Senate File 2328** be **deferred**.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senator Zaun, until he arrives, on request of Senator Whitver; and Senator Hogg, until he arrives, on request of Senator Wahls.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 513, 2267, and 2290.

Senate File 513

On motion of Senator Dawson, **Senate File 513**, a bill for an act relating to persons experiencing a mental health crisis, substance-related disorder crisis, or housing crisis, was taken up for consideration.

Senator Dawson offered amendment S–5046, filed by him from the floor to page 1 and amending the title page of the bill, and moved its adoption.

Amendment S–5046 was adopted by a voice vote.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 513), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Hogg	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

Senate File 2267

On motion of Senator Driscoll, **Senate File 2267**, a bill for an act relating to the establishment of emergency response districts, was taken up for consideration.

Senator Driscoll moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2267), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Hogg	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2290

On motion of Senator Shipley, **Senate File 2290**, a bill for an act establishing a dairy processing and milk production innovation and revitalization fund and program to be administered by the economic development authority, in consultation with the department of agriculture and land stewardship, and requiring the department to study the feasibility of establishing an artisanal dairy processing program at a community college or at an institution governed by the state board of regents, was taken up for consideration.

Senator Shipley offered amendment S–5047, filed by him from the floor to pages 2–4 and amending the title page of the bill, and moved its adoption.

Amendment S–5047 was adopted by a voice vote.

Senator Shipley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2290), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Hogg Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 513**, **2267**, and **2290** be **immediately messaged** to the House.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Goodwin, until he arrives, on request of Senator Whitver.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2309.

Senate File 2309

On motion of Senator Schultz, **Senate File 2309**, a bill for an act relating to milk and associated products, by providing for certain items relating to milk to be transferred directly to individuals by milk producers owning or operating certain dairy farms, providing for the labeling of raw milk and associated products, and making penalties applicable, was taken up for consideration.

Senator Schultz withdrew amendment S–5033, filed by him on March 1, 2022, to pages 1–5 and amending the title page of the bill.

Senator Schultz offered amendment S–5045, filed by him on March 8, 2022, to pages 1–6 and amending the title page of the bill, and moved its adoption.

Amendment S–5045 was adopted by a voice vote.

Senator Petersen offered amendment S–5049, filed by her from the floor to page 3 of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5049 be adopted?" (S.F. 2309), the vote was:

Yeas, 17:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott
Wahls			

Nays, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Green	Guth
Johnson	Klimesh	Koelker	Kraayenbrink
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zumbach		

Absent, 3:

Goodwin	Hogg	Zaun

Amendment S–5049 lost.

Senator Schultz moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2309), the vote was:

Yeas, 32:

Bisignano	Brown	Carlin	Chapman
Costello	Cournoyer	Dawson	Dickey
Driscoll	Edler	Garrett	Green
Guth	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Nunn
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zumbach

Nays, 15:

Bolkcom	Boulton	Celsi	Dotzler
Giddens	Jochum	Lykam	Mathis
Petersen	Quirmbach	Ragan	Smith, J.
Taylor, T.	Trone Garriott	Wahls	

Absent, 3:

Goodwin	Hogg	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2309** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2298.

Senate File 2298

On motion of Senator Klimesh, **Senate File 2298**, a bill for an act authorizing a local emergency management commission to assume the duties of a joint 911 service board, was taken up for consideration.

Senator Klimesh moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2298), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zumbach	

Nays, none.

Absent, 3:

Goodwin	Hogg	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2298** be **immediately messaged** to the House.

RECESS

On motion of Senator Whitver, the Senate recessed at 12:26 p.m. until the completion of a meeting of the committee on Judiciary.

RECONVENED

The Senate reconvened at 5:41 p.m., President Chapman presiding.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 9, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2464, a bill for an act relating to the expungement of certain criminal history records of victims of human trafficking, child abuse and minors engaged in prostitution, and including penalties.

Read first time and referred to committee on **Judiciary**.

House File 2485, a bill for an act relating to access to confidential records of the commission on judicial qualifications by standing committees of the general assembly.

Read first time and referred to committee on **Judiciary**.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 5:43 p.m. until 9:00 a.m., Thursday, March 10, 2022.

APPENDIX

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Korynn Dickey, Packwood—For achieving a 4.0 GPA her freshman year at Carrington College. Senator Dickey.

Kyler Dickey, Packwood—For being named the 2021–2022 Hoosier Arenacross National Championship. Senator Dickey.

REPORT OF COMMITTEE MEETING

JUDICIARY

Convened: Wednesday, March 9, 2022, 1:00 p.m.

Members Present: Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: Zaun, Chair (excused).

Committee Business: HF 2097, HF 2401, HF 2346, HF 2468, and HF 2419.

Adjourned: 1:30 p.m.

INTRODUCTION OF BILLS

Senate File 2373, by committee on Ways and Means, a bill for an act relating to the enforcement of the lake Manawa and Waubonsie state park user fee pilot programs, and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

Senate File 2374, by committee on Ways and Means, a bill for an act relating to alcoholic beverage control and licensing, providing for fees, and including effective date provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

STUDY BILLS RECEIVED

SSB 3156 Ways and Means

Exempting the storage of household goods and mini-storage from the sales tax on services.

SSB 3157 Ways and Means

Relating to state and local revenue and finances by modifying sales and use taxes, the charitable conservation contribution tax credit available against individual and corporate income taxes, the automobile rental excise tax, the water service tax, and local option taxes, crediting moneys to the natural resources and outdoor recreation trust fund, making appropriations, and including effective date and applicability provisions.

SSB 3158 Appropriations

Relating to appropriations for health and human services and veterans and including other related provisions and appropriations, providing penalties, and including effective date and retroactive and other applicability date provisions.

SUBCOMMITTEE ASSIGNMENTS

House File 2331

STATE GOVERNMENT: Reichman, Chair; Giddens and Johnson

House File 2420

STATE GOVERNMENT: R. Smith, Chair; Celsi and Cournoyer

House File 2497

STATE GOVERNMENT: R. Smith, Chair; Bisignano and Johnson

SSB 3156

WAYS AND MEANS: J. Taylor, Chair; Dawson and T. Taylor

SSB 3157

WAYS AND MEANS: Dawson, Chair; Goodwin and Jochum

SSB 3158

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom and Lofgren

FINAL COMMITTEE REPORTS OF BILL ACTION

JUDICIARY

Bill Title: HOUSE FILE 2097, bill for an act relating to forfeiture of bail.

Recommendation: DO PASS.

Final Vote: Yeas, 14: Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2346, a bill for an act requiring vehicle identification information to be provided in a no-contact or protective order, and making penalties applicable.

Recommendation: DO PASS.

Final Vote: Yeas, 14: Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2401, a bill for an act relating to the disclosure of specified information in connection with designated online marketplace transactions and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 14: Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2419, a bill for an act relating to the expungement of domestic abuse and sexual abuse dismissals.

Recommendation: DO PASS.

Final Vote: Yeas, 14: Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2468, a bill for an act relating to statutes of limitations on arbitration proceedings and including applicability provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 9: Garrett, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 5: Kinney, Bisignano, Bolkcom, Boulton, and Petersen. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

WAYS AND MEANS

Bill Title: *SENATE FILE 2373 (formerly SF 2353), a bill for an act relating to the enforcement of the lake Manawa and Waubonsie state park user fee pilot programs, and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, none. Excused, 1: Dickey.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2373, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2374 (formerly SF 2350), a bill for an act relating to alcoholic beverage control and licensing, providing for fees, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, none. Excused, 1: Dickey.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2374, and they were attached to the committee report.

AMENDMENTS FILED

S–5046	S.F.	513	Dan Dawson
S–5047	S.F.	2290	Tom Shipley
S–5048	S.F.	2328	Jeff Reichman
S–5049	S.F.	2309	Janet Petersen
S–5050	S.F.	2328	Nate Boulton

JOURNAL OF THE SENATE

SIXTIETH CALENDAR DAY
THIRTY-SIXTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, March 10, 2022

The Senate met in regular session at 9:09 a.m., President Chapman presiding.

Prayer was offered by the Honorable Sarah Trone Garriott, member of the Senate from Dallas County, West Des Moines, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Jackson Maddox.

The Journal of Wednesday, March 9, 2022, was approved.

BILL REFERRED TO COMMITTEE

President Chapman announced that **Senate File 2319** was referred from the Regular Calendar to the committee on **Ways and Means** under Senate Rule 38.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 104.

Senate Resolution 104

On motion of Senator Rozenboom, **Senate Resolution 104**, a resolution honoring the achievements and contributions of Gene Elliott, with report of committee recommending passage, was taken up for consideration.

Senator Rozenboom moved the adoption of Senate Resolution 104, which motion prevailed by a voice vote.

The Senate stood at ease at 9:23 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 10:22 a.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Hogg, Mathis, and Lykam, until they arrive, on request of Senator Wahls.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2132.

Senate File 2132

On motion of Senator Garrett, **Senate File 2132**, a bill for an act relating to the membership of the district judicial nominating commissions, was taken up for consideration.

Senator Garrett moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2132), the vote was:

Yeas, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Nays, 15:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Petersen	Quirmbach	Ragan	Smith, J.
Taylor, T.	Trone Garriott	Wahls	

Absent, 3:

Hogg	Lykam	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2132** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2080, 2214, and 2216.

Senate File 2080

On motion of Senator Sinclair, **Senate File 2080**, a bill for an act relating to the administration of certain physical examinations and student health screenings by school districts, charter schools, or innovation zone schools, was taken up for consideration.

Senator Trone Garriott offered amendment S–5055, filed by her from the floor to page 1 and amending the title page of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5055 be adopted?" (S.F. 2080), the vote was:

Yeas, 15:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Petersen	Quirmbach	Ragan	Smith, J.
Taylor, T.	Trone Garriott	Wahls	

Nays, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Absent, 3:

Hogg	Lykam	Mathis

Amendment S–5055 lost.

Senator Sinclair moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2080), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Hogg	Lykam	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2214

On motion of Senator Edler, **Senate File 2214**, a bill for an act establishing a therapeutic foster care services study committee, with report of committee recommending passage, was taken up for consideration.

Senator Edler moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2214), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Hogg	Lykam	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2216

On motion of Senator Edler, **Senate File 2216**, a bill for an act relating to the establishment of state intensive psychiatric units at the state mental health institutes, with report of committee recommending passage, was taken up for consideration.

Senator Edler moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2216), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Hogg	Lykam	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2080**, **2214**, and **2216** be **immediately messaged** to the House.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Zaun, until he arrives, on request of Senator Whitver.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2359.

Senate File 2359

On motion of Senator J. Taylor, **Senate File 2359**, a bill for an act directing the department of education to convene a working group to study the impact of technology on the cognitive function of students, was taken up for consideration.

Senator J. Taylor moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2359), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zumbach		

Nays, none.

Absent, 4:

Hogg	Lykam	Mathis	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2359** be **immediately messaged** to the House.

RECESS

On motion of Senator Whitver, the Senate recessed at 11:36 a.m. until the completion of committee meetings.

RECONVENED

The Senate reconvened at 3:19 p.m., President Chapman presiding.

The Senate stood at ease at 3:20 p.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 3:38 p.m., President Chapman presiding.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Zumbach, until he arrives, on request of Senator Whitver.

UNFINISHED BUSINESS
(Deferred March 9, 2022)

Senate File 2328

The Senate resumed consideration of **Senate File 2328**, a bill for an act relating to criminal law including the disclosure of a defendant's privileged records in a criminal action, permanent no-contact orders, penalties for domestic abuse assault, limitations on criminal actions involving certain sexual offenses, criminal sentencing and corrections, parole and work release, crime victim rights, discovery in criminal actions, postconviction relief procedure, and certain reporting requirements, and making penalties applicable, deferred March 9, 2022.

Senator Quirmbach offered amendment S–5052, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill.

Senator Reichman offered amendment S–5058, filed by him from the floor to pages 1–17 and amending the title page of amendment S–5052, and moved its adoption.

Amendment S–5058 to amendment S–5052 was adopted by a voice vote.

Senator Quirmbach moved the adoption of amendment S–5052, as amended.

A record roll call was requested.

On the question "Shall amendment S–5052 be adopted?" (S.F. 2328), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams			

Nays, none.

Absent, 5:

Hogg	Lykam	Mathis	Zaun
Zumbach			

Amendment S–5052, as amended, was adopted.

With the adoption of amendment S–5052, as amended, the Chair ruled the following amendments out of order:

Amendment S–5048, filed by Senator Reichman on March 9, 2022, to pages 1, 9, 11, 14, 16, 17, 19–21, and amending the title page of the bill;

Amendment S–5050, filed by Senator Boulton on March 9, 2022, to pages 2–3, and amending the title provisions of amendment S–5048; and

Amendment S–5054, filed by Senator Petersen from the floor to page 3 of amendment S–5048.

Senator Reichman moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2328), the vote was:

Yeas, 35:

Bisignano	Brown	Carlin	Chapman
Costello	Cournoyer	Dawson	Dickey
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Trone Garriott	Whitver	Williams	

Nays, 10:

Bolkcom	Boulton	Celsi	Dotzler
Jochum	Petersen	Quirmbach	Ragan
Taylor, T.	Wahls		

Absent, 5:

Hogg	Lykam	Mathis	Zaun
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2328** be **immediately messaged** to the House.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 10, 2022, **passed** the following bills in which the concurrence of the House was asked:

Senate File 2288, a bill for an act relating to life insurance company or association investments in foreign countries other than Canada, and including applicability provisions.

Senate File 2334, a bill for an act relating to shotguns that may be used to hunt turkey.

Senate File 2337, a bill for an act relating to third-party testers and test examiners for commercial driver's license knowledge and driving skills tests.

Senate File 2345, a bill for an act relating to the newborn screening.

ALSO: That the House has on March 10, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2209, a bill for an act relating to residents under sixteen years of age accompanying an adult who is hunting or trapping.

Read first time and referred to committee on **Natural Resources and Environment**.

House File 2245, a bill for an act prohibiting certain health carriers from excluding certain out-of-state health care professionals from participating as providers, via telehealth, under the carriers' policies, plans, and contracts, and including effective date and applicability provisions.

Read first time and referred to committee on **Human Resources**.

House File 2369, a bill for an act relating to taking fur-bearing animals without prior permission of the natural resource commission.

Read first time and referred to committee on **Natural Resources and Environment**.

House File 2430, a bill for an act relating to methods of determining compensation for elected county officers.

Read first time and attached to **similar Senate File 2283**.

House File 2431, a bill for an act relating to the regulation of home-based businesses by counties and cities.

Read first time and referred to committee on **Commerce**.

House File 2481, a bill for an act relating to judicial selection, including the nominees to the court of appeals, and the appointments, resignations, and residency requirements of district judges, district associate judges, associate juvenile judges, and associate probate judges.

Read first time and referred to committee on **Judiciary**.

House File 2489, a bill for an act relating to the auditor of state and including effective date and applicability provisions.

Read first time and referred to committee on **State Government**.

House File 2507, a bill for an act relating to juvenile justice including juvenile delinquency, child in need of assistance and family in need of assistance proceedings, juvenile justice reform, and juvenile court expenses and costs, and including effective date provisions.

Read first time and attached to **similar Senate File 2257**.

House File 2518, a bill for an act relating to oversize and overweight permits for cranes.

Read first time and referred to committee on **Transportation**.

House File 2540, a bill for an act relating to the sale of travel insurance.

Read first time and referred to committee on **Commerce**.

ADJOURNMENT

On motion of Senator Brown, the Senate adjourned at 4:13 p.m. until 1:00 p.m., Monday, March 14, 2022.

APPENDIX

REPORTS OF COMMITTEE MEETINGS

LOCAL GOVERNMENT

Convened: Thursday, March 10, 2022, 1:10 p.m.

Members Present: Shipley, Chair; Klimesh, Vice Chair; J. Smith, Ranking Member; Driscoll, Garrett, Guth, Lofgren, Quirmbach, T. Taylor, and Williams.

Members Absent: Hogg (excused).

Committee Business: HF 2436, HF 2357, HF 2428, and HF 2153.

Adjourned: 1:25 p.m.

RULES AND ADMINISTRATION

Convened: Monday, March 8, 2022, 9:15 a.m.

Members Present: Whitver, Chair; Chapman, Vice Chair; Wahls, Ranking Member; Bolkcom, Brown, Jochum, Ragan, R. Smith, Zaun, and Zumbach.

Members Absent: Sinclair (excused).

Committee Business: SR 103 and SR 104.

Adjourned: 9:20 a.m.

STATE GOVERNMENT

Convened: Thursday, March 10, 2022, 12:20 p.m.

Members Present: R. Smith, Chair; Cournoyer, Vice Chair; Bisignano, Ranking Member; Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz.

Members Absent: None.

Committee Business: HF 2374, HF 2375, and HF 2154.

Adjourned: 12:25 p.m.

INTRODUCTION OF RESOLUTION

Senate Concurrent Resolution 104, by Jochum, Trone Garriott, Giddens, Quirmbach, Wahls, Bolkcom, Ragan, Mathis, Boulton, Lykam, Petersen, Celsi, J. Smith, Kinney, Dotzler, and T. Taylor, a concurrent resolution calling upon the President of the United States, the United States Congress, the Governor, the executive branch of Iowa, and the Iowa General Assembly to work to improve communities by bolstering the care workforce.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2083
(Reassigned)

WAYS AND MEANS: Dickey, Chair; Dawson and Dotzler

Senate File 2319

WAYS AND MEANS: Zaun, Chair; Schultz and T. Taylor

House File 604
(Reassigned)

EDUCATION: Rozenboom, Chair; Sweeney and Trone Garriott

House File 626
(Reassigned)

WAYS AND MEANS: Sinclair, Chair; Quirmbach and Schultz

House File 853
(Reassigned)

STATE GOVERNMENT: Brown, Chair; Giddens and R. Smith

FINAL COMMITTEE REPORTS OF BILL ACTION

LABOR AND BUSINESS RELATIONS

Bill Title: HOUSE FILE 724, a bill for an act relating to the treatment of adoptive parent employees and making penalties applicable.

Recommendation: DO PASS.

Final Vote: Yeas, 11: Dickey, Green, Boulton, Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2411, a bill for an act relating to replacements of permanent prosthetic devices for injured workers.

Recommendation: DO PASS.

Final Vote: Yeas, 11: Dickey, Green, Boulton, Dotzler, Driscoll, Guth, Jochum, Rowley, Schultz, J. Taylor, and T. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

LOCAL GOVERNMENT

Bill Title: HOUSE FILE 2153, a bill for an act relating to county jurisdiction over portions of certain cemeteries.

Recommendation: DO PASS.

Final Vote: Yeas, 10: Shipley, Klimesh, J. Smith, Driscoll, Garrett, Guth, Lofgren, Quirmbach, T. Taylor, and Williams. Nays, none. Excused, 1: Hogg.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2357, a bill for an act relating to sessions of the local board of review and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 10: Shipley, Klimesh, J. Smith, Driscoll, Garrett, Guth, Lofgren, Quirmbach, T. Taylor, and Williams. Nays, none. Excused, 1: Hogg.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2428, a bill for an act relating to compensation for county hospital trustees.

Recommendation: DO PASS.

Final Vote: Yeas, 8: Shipley, Klimesh, Driscoll, Garrett, Guth, Lofgren, T. Taylor, and Williams. Nays, 2: J. Smith and Quirmbach. Excused, 1: Hogg.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2436, a bill for an act relating to public safety answering point cost and expense data collected from county joint 911 service boards.

Recommendation: DO PASS.

Final Vote: Yeas, 10: Shipley, Klimesh, J. Smith, Driscoll, Garrett, Guth, Lofgren, Quirmbach, T. Taylor, and Williams. Nays, none. Excused, 1: Hogg.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

RULES AND ADMINISTRATION

Bill Title: SENATE RESOLUTION 103, a resolution designating March 8, annually, as Utility Worker Appreciation Day.

Recommendation: DO PASS.

Final Vote: Yeas, 10: Whitver, Chapman, Wahls, Bolkcom, Brown, Jochum, Ragan, R. Smith, Zaun, and Zumbach. Nays, none. Excused, 1: Sinclair.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE RESOLUTION 104, a resolution honoring the achievements and contributions of Gene Elliott.

Recommendation: DO PASS.

Final Vote: Yeas, 10: Whitver, Chapman, Wahls, Bolkcom, Brown, Jochum, Ragan, R. Smith, Zaun, and Zumbach. Nays, none. Excused, 1: Sinclair.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

STATE GOVERNMENT

Bill Title: HOUSE FILE 2154, a bill for an act relating to release of certain records maintained by the statewide fire and police retirement system.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5057.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2374, a bill for an act providing for membership in a protection occupation under the Iowa public employees' retirement system and including effective date and retroactive applicability provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2375, a bill for an act relating to petitions to change the form of management of a drainage or levee district to a board of trustees.

Recommendation: DO PASS.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

AMENDMENTS FILED

S–5051	H.F.	2346	Craig Johnson
S–5052	S.F.	2328	Herman C. Quirmbach
S–5053	S.F.	2344	Dawn Driscoll
S–5054	S.F.	2328	Janet Petersen
S–5055	S.F.	2080	Sarah Trone Garriott
S–5056	S.F.	2333	Jeff Taylor
S–5057	H.F.	2154	State Government
S–5058	S.F.	2328	Jeff Reichman

JOURNAL OF THE SENATE

SIXTY-FOURTH CALENDAR DAY
THIRTY-SEVENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, March 14, 2022

The Senate met in regular session at 1:09 p.m., President Chapman presiding.

Prayer was offered by the Honorable Chris Cournoyer, member of the Senate member from Scott County, LeClaire, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Maren Rasmussen.

The Journal of Thursday, March 10, 2022, was approved.

BILLS REFERRED TO COMMITTEE

President Chapman announced that **House File 2357** and **House File 2518** were referred from the Regular Calendar to the committee on **Ways and Means;** and **House File 2337** was referred from the Regular Calendar to the committee on **Appropriations** under Senate Rule 38.

INTRODUCTION OF GOVERNOR'S APPOINTEE

The Secretary of the Senate introduced to the Senate chamber Brian Ohorilko, the Governor's appointee to be the Administrator of the State Racing and Gaming Commission. He was the guest of the committee on State Government.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 1:16 p.m. until 9:00 a.m., Tuesday, March 15, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF HUMAN SERVICES

Medicaid Managed Care Oversight Quarterly Meeting Minutes, pursuant to 2016 Iowa Acts, Chapter 1139, section 94. Report received on March 14, 2022.

CERTIFICATE OF RECOGNITION

The Secretary of the Senate issued the following certificate of recognition:

David McGaughy, Fort Dodge—For his exemplary service to his country, state, and community. Senator Kraayenbrink.

REPORT OF COMMITTEE MEETING

TRANSPORTATION

Convened: Monday, March 14, 2022, 2:00 p.m.

Members Present: Brown, Chair; Dickey, Vice Chair; J. Smith, Ranking Member; Bisignano, Driscoll, Giddens, Klimesh, Koelker, Lykam, Rozenboom, Shipley, and Zumbach.

Members Absent: T. Taylor (excused).

Committee Business: HF 2259 and HF 2348.

Adjourned: 2:05 p.m.

SUBCOMMITTEE ASSIGNMENTS

House File 2431

COMMERCE: Schultz, Chair; Bisignano and Johnson

House File 2464

JUDICIARY: Zaun, Chair; Dawson and Kinney

House File 2481

JUDICIARY: Garrett, Chair; Boulton and Rowley

House File 2485

JUDICIARY: J. Taylor, Chair; Boulton and Shipley

House File 2540

COMMERCE: Williams, Chair; Giddens and Sinclair

House File 2547

STATE GOVERNMENT: Cournoyer, Chair; Jochum and Schultz

FINAL COMMITTEE REPORTS OF BILL ACTION

TRANSPORTATION

Bill Title: HOUSE FILE 2259, a bill for an act authorizing licensed occupational therapists, licensed physical therapists, and certain medical professionals licensed in other states to provide a statement for purposes of persons with disabilities special registration plates or parking permits, and making penalties applicable.

Recommendation: DO PASS.

Final Vote: Yeas, 12: Brown, Dickey, J. Smith, Bisignano, Driscoll, Giddens, Klimesh, Koelker, Lykam, Rozenboom, Shipley, and Zumbach. Nays, none. Excused, 1: T. Taylor.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2348, a bill for an act relating to the registration of antique snowmobiles.

Recommendation: DO PASS.

Final Vote: Yeas, 12: Brown, Dickey, J. Smith, Bisignano, Driscoll, Giddens, Klimesh, Koelker, Lykam, Rozenboom, Shipley, and Zumbach. Nays, none. Excused, 1: T. Taylor.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JOURNAL OF THE SENATE

SIXTY-FIFTH CALENDAR DAY
THIRTY-EIGHTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, March 15, 2022

The Senate met in regular session at 9:07 a.m., President Chapman presiding.

Prayer was offered by the Honorable Annette Sweeney, member of the Senate from Hardin County, Alden, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Cecilia Redman.

The Journal of Monday, March 14, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 14, 2022, **adopted** the following resolution in which the concurrence of the House was asked:

Senate Concurrent Resolution 103, a concurrent resolution to approve and confirm the appointment of Bernardo Granwehr as Ombudsman.

ALSO: That the House has on March 14, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2079, a bill for an act relating to post-arrest release after an initial appearance for persons taken into custody or arrested for certain sexual abuse offenses and no-contact orders.

Read first time and attached to **companion Senate File 2236**.

House File 2130, a bill for an act relating to registered all-terrain vehicles and off-road utility vehicles, and making penalties applicable.

Read first time and referred to committee on **Transportation**.

House File 2295, a bill for an act concerning state agency response to a proclamation of disaster emergency.

Read first time and attached to **companion Senate File 2192**.

House File 2343, a bill for an act relating to the submission of a groundwater hazard statement.

Read first time and attached to **similar Senate File 2330**.

House File 2379, a bill for an act relating to alcoholic beverage control concerning the sale of beer and liquor for resale.

Read first time and referred to committee on **State Government**.

House File 2442, a bill for an act authorizing the reduction of damages payable to an unresponsive property owner in condemnation proceedings and including applicability provisions.

Read first time and referred to committee on **Judiciary**.

House File 2469, a bill for an act relating to corporations by providing for the use of electronic mail and other electronic transmissions, and shareholders' lists.

Read first time and attached to **similar Senate File 2303**.

House File 2471, a bill for an act relating to the use of inventory checklists upon commencement and termination of residential tenancies and including applicability provisions.

Read first time and referred to committee on **Local Government**.

House File 2474, a bill for an act relating to adoption proceedings by providing for representation of adoptive parents and guardians ad litem by local public defenders for children in certain adoption proceedings and modifying filing requirements for adoption petitions and notice requirements for adoption hearings of adults.

Read first time and referred to committee on **Judiciary**.

House File 2475, a bill for an act providing for the removal of municipal utility board members under specified circumstances and including effective date provisions.

Read first time and attached to **similar Senate File 2282**.

House File 2484, a bill for an act relating to trusts, including optional notices to creditors when a will has been admitted to probate without administration and the trust is the beneficiary of the estate, trust accounting, specific powers of a trustee, and representation of holders of power and similar interests.

Read first time and attached to **companion Senate File 2316**.

House File 2488, a bill for an act relating to public records of the Iowa public broadcasting board.

Read first time and attached to **similar Senate File 2274**.

House File 2496, a bill for an act relating to the procedural requirements for placing an officer's name on a Brady-Giglio list, and for a prosecuting agency disclosing exculpatory evidence.

Read first time and referred to committee on **Judiciary**.

House File 2506, a bill for an act relating to consumer data protection, providing civil penalties, and including effective date provisions.

Read first time and referred to committee on **Judiciary**.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:15 a.m. until 9:00 a.m., Wednesday, March 16, 2022.

APPENDIX

REPORTS OF COMMITTEE MEETINGS

EDUCATION

Convened: Tuesday, March 15, 2022, 10:30 a.m.

Members Present: Sinclair, Chair; J. Taylor, Vice Chair; Quirmbach, Ranking Member; Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun.

Members Absent: None.

Committee Business: HF 2080, HF 2495, HF 2412, HF 771, HF 604, HF 2083, HF 2398, and HF 2081.

Adjourned: 11:00 a.m.

JUDICIARY

Convened: Monday, March 14, 2022, 3:00 p.m.

Members Present: Zaun, Chair; Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: None.

Committee Business: HF 825, HF 2414, HF 2443, HF 2358, and HF 2281.

Adjourned: 4:00 p.m.

RULES AND ADMINISTRATION

Convened: Tuesday, March 15, 2022, 9:20 a.m.

Members Present: Whitver, Chair; Chapman, Vice Chair; Wahls, Ranking Member; Bolkcom, Brown, Jochum, Ragan, Sinclair, R. Smith, and Zumbach.

Members Absent: Zaun (excused).

Committee Business: SR 105 Gubernatorial Appointments.

Adjourned: 9:25 a.m.

STUDY BILL RECEIVED

SSB 3159 Ways and Means

Exempting certain leases or rentals between affiliates from the sales and use tax and from the fee for new vehicle registration, and including effective date and retroactive applicability provisions.

SUBCOMMITTEE ASSIGNMENTS

House File 2209

NATURAL RESOURCES AND ENVIRONMENT: Cournoyer, Chair; Boulton and Rozenboom

House File 2245

HUMAN RESOURCES: Edler, Chair; Costello and Ragan

House File 2357

WAYS AND MEANS: Goodwin, Chair; Dawson and Quirmbach

House File 2369

NATURAL RESOURCES AND ENVIRONMENT: Shipley, Chair; Boulton and Sweeney

House File 2442

JUDICIARY: Schultz, Chair; Boulton and Zaun

House File 2474

JUDICIARY: Schultz, Chair; Petersen and J. Taylor

House File 2489

STATE GOVERNMENT: Dawson, Chair; Boulton and Guth

House File 2496

JUDICIARY: Dawson, Chair; Kinney and Zaun

House File 2506

JUDICIARY: Sinclair, Chair; Boulton and Zaun

House File 2518

WAYS AND MEANS: Brown, Chair; Dickey and T. Taylor

SSB 3159

WAYS AND MEANS: Dawson, Chair; Dotzler and Goodwin

FINAL COMMITTEE REPORTS OF BILL ACTION

EDUCATION

Bill Title: HOUSE FILE 604, a bill for an act relating to language and literacy development for deaf and hard-of-hearing children.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 771, a bill for an act relating to the self-administration and storage of bronchodilators and bronchodilator canisters and spacers relative to schools and students.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2080, a bill for an act relating to school districts that share operational functions, including operational functions in the areas of superintendent management and special education director, and including effective date and applicability provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2081, a bill for an act relating to teachers, including the assessments administered to practitioner preparation program admission candidates and to practitioner preparation program students prior to students' completion of a practitioner preparation program, field experiences, and certain specified licenses for teachers created by the board of educational examiners, and including notice, effective date, and applicability provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2083, a bill for an act relating to matters under the purview of the college student aid commission, including grant programs and the definition of accredited private institutions.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2398, a bill for an act relating to certain specified employees of school districts, accredited nonpublic schools, and charter schools, including renewal requirements associated with licenses issued by the board of educational examiners to practitioners with master's or doctoral degrees, fees associated with the review of certain specified records, and background checks for employees of school districts, accredited nonpublic schools, and charter schools.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2412, a bill for an act requiring radon testing and mitigation in public schools, and including applicability provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2495, a bill for an act establishing the comprehensive transition and postsecondary program scholarship program.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Sinclair, J. Taylor, Quirmbach, Carlin, Celsi, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JUDICIARY

Bill Title: HOUSE FILE 825, a bill for an act relating to consent agreements for domestic abuse and sexual abuse protective orders.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2281, a bill for an act relating to video conferences in judicial proceedings and certified shorthand reporter audio and video recordings, and including effective date provisions.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5061.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2358, a bill for an act relating to the Iowa law enforcement academy.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2414, a bill for an act relating to waiver of the placement investigations and reports related to the adoption of a minor by a minor's legal guardian.

Recommendation: DO PASS.

Final Vote: Yeas, 10: Zaun, Garrett, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 5: Kinney, Bisignano, Bolkcom, Boulton, and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2443, a bill for an act relating to contract enforceability regarding smart contracts and distributed ledger technology.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

RULES AND ADMINISTRATION

Bill Title: SENATE RESOLUTION 105, a resolution reaffirming Iowa's commitment to its relationship with the Ukrainian people and supporting Ukraine's efforts to remain an independent and autonomous nation.

Recommendation: DO PASS.

Final Vote: Yeas, 10: Whitver, Chapman, Wahls, Bolkcom, Brown, Jochum, Ragan, Sinclair, R. Smith, and Zumbach. Nays, none. Excused, 1: Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

APPOINTMENTS

The following appointees were submitted to the Secretary of the Senate for Senate confirmation (all appointees are submitted as **members** unless otherwise specified):

BY THE GOVERNOR

	TERM
ACCOUNTANCY EXAMINING BOARD (Sec. 542.4(1)(a))	
Allen Kockler, Nevada	05/01/2022 – 04/30/2025
Michelle O'Neill, Waukon	05/01/2022 – 04/30/2025
Jessica Richter, Waukee	05/01/2022 – 04/30/2025
AFRICAN AMERICANS, COMMISSION ON THE STATUS OF (Sec. 216A.142)	
Aaron Sewell, West Des Moines	05/01/2022 – 04/30/2026
Whitney Smith, Altoona	02/18/2022 – 04/30/2024
AGRICULTURAL DEVELOPMENT BOARD (Sec. 16.2C(3))	
Lyle Borg, Pella	05/01/2022 – 04/30/2028
ALCOHOLIC BEVERAGES COMMISSION (Sec. 123.5(2))	
Sara Winkleman, Bancroft	05/01/2022 – 04/30/2027
ALCOHOLIC BEVERAGES DIVISION, ADMINISTRATOR OF THE (Sec. 123.7)	
Stephen Larson, Polk City	05/01/2022 – 04/30/2026
ARCHITECTURAL EXAMINING BOARD (Sec. 544A.1(2))	
Dan Dutcher, Waukee	05/01/2022 – 04/30/2025
ASIAN AND PACIFIC ISLANDER AFFAIRS, COMMISSION OF (Sec. 216A.152)	
Caleb Lillquist, Des Moines	05/01/2022 – 04/30/2026
Karlai Thornburg, Ames	05/01/2022 – 04/30/2026
Shaochen Yu, West Des Moines	05/01/2022 – 04/30/2026
ATHLETIC TRAINING, BOARD OF (Sec. 147.14(1)(r))	
Andrew Jedlicka, Waukee	05/01/2022 – 04/30/2025
Emily Reese, Coralville	03/01/2022 – 04/30/2023
Austin Steil, Ankeny	05/01/2022 – 04/30/2025
AUTISM COUNCIL, IOWA (Sec. 256.35A)	
Stephanie Boyle, Ankeny	02/25/2022 – 04/30/2023
Pam Gronau, Urbandale	02/25/2022 – 04/30/2024
Colin Wixted, West Des Moines	05/01/2022 – 04/30/2025
Michael Zehr, West Des Moines	05/01/2022 – 04/30/2025
BARBERING, BOARD OF (Sec. 147.14(1)(a))	
Maureen Hardy, Waterloo	05/01/2022 – 04/30/2025

BEHAVIORAL SCIENCE, BOARD OF (Sec. 147.14(1)(m))

Nolan Byrnes, Des Moines	02/25/2022 – 04/30/2023
Echo Kent, Coralville	05/01/2022 – 04/30/2025
Kerry Lust, Ankeny	05/01/2022 – 04/30/2025
Amy Mooney, Ames	05/01/2022 – 04/30/2025
Blake Stephenson, Cedar Rapids	05/01/2022 – 04/30/2025
Maria Valdovinos, Des Moines	05/01/2022 – 04/30/2025
Laura Wilcke, Clear Lake	05/01/2022 – 04/30/2025

BLIND, COMMISSION FOR THE (Sec. 216B.2)

Geneva Jacobsen, Avoca	05/01/2022 – 04/30/2025

BOILER AND PRESSURE VESSEL BOARD (Sec. 89.14(2)(b))

Bret Brecke, Cedar Rapids	02/14/2022 – 04/30/2025
Kenneth Lamb, Denver	05/01/2022 – 04/30/2026
Daniel LaPole, West Des Moines	02/14/2022 – 04/30/2025
Lynne Rush, Victor	02/14/2022 – 04/30/2025
Nathan Whipple, Waterloo	02/18/2022 – 04/30/2023

CHILD ADVOCACY BOARD (Sec. 237.16)

Ashley Baker, Des Moines	05/01/2022 – 04/30/2026
Donald Logan, Van Horne	05/01/2022 – 04/30/2026
Rick McIntosh, Altoona	02/14/2022 – 04/30/2025
William Owens, Ottumwa	05/01/2022 – 04/30/2026
Angela Stokes, Sioux City	05/01/2022 – 04/30/2026

CHILDHOOD IOWA STATE BOARD, EARLY (Sec. 256I.3(2)(a))

Jennifer Banta, Iowa City	05/01/2022 – 04/30/2025
Michael Linnenbrink, Donnellson	05/01/2022 – 04/30/2025
Dawn Oliver Wiand, North Liberty	03/01/2022 – 04/30/2024

CHILDREN'S BEHAVIORAL HEALTH SYSTEM STATE BOARD (Sec. 225C.51(2))

Andrew Allen, Huxley	05/01/2022 – 04/30/2026
Nathan Noble, Clive	05/01/2022 – 04/30/2026
Kari Price, Altoona	02/25/2022 – 04/30/2025
Jason Sandholdt, Knoxville	05/01/2022 – 04/30/2026

CITY DEVELOPMENT BOARD (Sec. 368.9)

Chris McKee, Gilmore City	05/01/2022 – 04/30/2026
Dennis Plautz, Fort Dodge	05/01/2022 – 04/30/2026

COMMUNITY ACTION AGENCIES, COMMISSION ON (Sec. 216A.92A)

Bobbi Baker-Maynes, Corning	02/25/2022 – 04/30/2024
Kevin Brown, Spencer	05/01/2022 – 04/30/2025
John Murphy, Dubuque	05/01/2022 – 04/30/2025

CORRECTIONS, BOARD OF (Sec. 904.104)

Denise Bubeck, Grimes	05/01/2022 – 04/30/2026

COSMETOLOGY ARTS AND SCIENCES, BOARD OF (Sec. 147.14(1)(n))

Jeremy Kemp, Burlington	05/01/2022 – 04/30/2025
Joshua Spencer, Waukee	02/14/2022 – 04/30/2024

COUNTY FINANCE COMMITTEE (Sec. 333A.2(2))

Jenny Blankenship, Clive	02/14/2022 – 04/30/2025

CREDIT UNION REVIEW BOARD (Sec. 533.107(2))

Tyler Campbell, Des Moines	05/01/2022 – 04/30/2025
Jordan Hensley, Webster City	05/01/2022 – 04/30/2025
Jami Weems, Pleasant Hill	05/01/2022 – 04/30/2025

DEAF SERVICES, COMMISSION OF (Sec. 216A.113)

Tina Caloud, Council Bluffs	02/14/2022 – 04/30/2024
Bruce Kawahara, West Des Moines	02/25/2022 – 04/30/2024

DENTISTRY, BOARD OF (Sec. 147.14(1)(d))

Gregory Ceraso, Johnston	05/01/2022 – 04/30/2025
Lisa Holst, West Des Moines	05/01/2022 – 04/30/2025
Thomas Peek, Cedar Rapids	05/01/2022 – 04/30/2025

DIETETICS, BOARD OF (Sec. 147.14(1)(k))

Julie Eichenberger, Iowa City	05/01/2022 – 04/30/2025
Philip Pitzen, Urbandale	02/25/2022 – 04/30/2023
Nicholas Rouse, Urbandale	02/25/2022 – 04/30/2024

DISABILITIES, COMMISSION OF PERSONS WITH (Sec. 216A.74)

Jessica Fasselius, Clive	05/01/2022 – 04/30/2026
Adam Koch, Grimes (Reappt.)	05/01/2022 – 04/30/2026
Clint Sargent, Missouri Valley	05/01/2022 – 04/30/2026
Beth Wilde, Mitchellville	05/01/2022 – 04/30/2026

DRUG POLICY ADVISORY COUNCIL (Sec. 80E.2(2))

Jason Feaker, Dike	05/01/2022 – 04/30/2026
David McDaniel, Eldora	05/01/2022 – 04/30/2026

ECONOMIC DEVELOPMENT AUTHORITY (Sec. 15.105(2))

Doug Boone, Sioux Center	05/01/2022 – 04/30/2026
Mark Kittrell, Cedar Falls	05/01/2022 – 04/30/2026
Pankaj Monga, Marion	05/01/2022 – 04/30/2026
Jennifer Steffensmeier, Pilot Grove	05/01/2022 – 04/30/2026

EDUCATION, STATE BOARD OF (Sec. 256.3)

Cindy Dietz, Cedar Rapids	05/01/2022 – 04/30/2028
Cassandra Halls, Carlisle	05/01/2022 – 04/30/2028
Nathan Peterson, Iowa City	02/14/2022 – 04/30/2024

EDUCATIONAL EXAMINERS, BOARD OF (Sec. 272.3(2))

Kathy Behrens, Carroll	05/01/2022 – 04/30/2026
Timothy McKinney, St. Charles	05/01/2022 – 04/30/2026

ELECTRICAL EXAMINING BOARD (Sec. 103.2)

Colby Black, Rhodes	05/01/2022 – 04/30/2025
Sara Fasching, Ottumwa (Reappt.)	05/01/2022 – 04/30/2025
Jonathan Gettler, Cedar Rapids	05/01/2022 – 04/30/2025
Jeremy Price, Cedar Rapids	02/14/2022 – 04/30/2024

ELEVATOR SAFETY BOARD (Sec. 89A.13(2))

Candace Biddle, Des Moines (Reappt.)	05/01/2022 – 04/30/2026
Craig Clabaugh, Urbandale	05/01/2022 – 04/30/2026
Kerry Dixon, Iowa City	02/14/2022 – 04/30/2025
Troy Tilleraas, Waverly	05/01/2022 – 04/30/2026
Michael Wallace, Ankeny	02/14/2022 – 04/30/2025

EMPLOYMENT APPEAL BOARD (Sec. 10A.601(2))

James Strohman, Ames	05/01/2022 – 04/30/2028

ENGINEERING AND LAND SURVEYING EXAMINING BOARD (Sec. 542B.3)

Paul Herold, Fort Atkinson	05/01/2022 – 04/30/2025
Jack Jones, Mondamin	05/01/2022 – 04/30/2025

ENHANCE IOWA BOARD (Sec. 15F.102(3)(b))

Rita Frahm, Galva	05/01/2022 – 04/30/2025
Brad Leeper, Cedar Falls	05/01/2022 – 04/30/2025
Steve Roesner, Orange City	02/24/2022 – 04/30/2023
Valerie Van Kooten, Pella	05/01/2022 – 04/30/2025
Mary Wells, Rathbun	05/01/2022 – 04/30/2025

ETHICS AND CAMPAIGN DISCLOSURE BOARD, IOWA (Sec. 68B.32)

Daniel Jessop, Williamsburg	05/01/2022 – 04/30/2028
Leah Rodenberg, Marion	05/01/2022 – 04/30/2028

GRAIN INDEMNITY FUND BOARD, IOWA (Sec. 203D.4)

Rhonda Shelman, Washington	05/01/2022 – 04/30/2025
Michael Winter, New Hampton	05/01/2022 – 04/30/2025

GREAT PLACES BOARD, IOWA (Sec. 303.3C(2)(b))

Ryan Bosch, Cedar Rapids	05/01/2022 – 04/30/2025
Barbara Determan, Early	05/01/2022 – 04/30/2025
Duane Hagerty, Dubuque	02/28/2022 – 04/30/2024
Darryl High, Cedar Rapids	05/01/2022 – 04/30/2025
Jacque Rahe, Dyersville	05/01/2022 – 04/30/2025

HEALTHY AND WELL KIDS IN IOWA (HAWK-I) BOARD (Sec. 514I.5(2))

Shawn Garrington, Wellsburg	05/01/2022 – 04/30/2024
Mary Nelle Trefz, Des Moines	05/01/2022 – 04/30/2024

HEARING AID SPECIALISTS, BOARD OF (Sec. 147.14(1)(v))

Rick Knudson, Clear Lake	02/14/2022 – 04/30/2024
Molly Parker, Bettendorf	05/01/2022 – 04/30/2025
Tricia Veik, Clive	05/01/2022 – 04/30/2025

HIGHER EDUCATION LOAN AUTHORITY, IOWA (Sec. 261A.6)

Randy Fehr, Washington	05/01/2022 – 04/30/2028

INTERIOR DESIGN EXAMINING BOARD (Sec. 544C.2)

Amy Guhl, West Branch	05/01/2022 – 04/30/2025
Todd Mithelman, Johnston	05/01/2022 – 04/30/2025

IOWA PUBLIC EMPLOYEES' RETIREMENT SYSTEM, INVESTMENT BOARD OF THE (Sec. 97B.8A(4)(2)(d))

Tami Loge, Granger	05/01/2022 – 04/30/2028

JUDICIAL NOMINATING COMMISSION, STATE (Sec. 46.1)

Gwendolyn (Gwen) Ecklund, Denison	05/01/2022 – 04/30/2026
Jeremy Kidd, Polk City	05/01/2022 – 04/30/2028
Kathleen Law, Des Moines	05/01/2022 – 04/30/2028
Derek Muller, Iowa City	05/01/2022 – 04/30/2028

JUSTICE ADVISORY BOARD (Sec. 216A.132(1)(a))

Dee Sandquist, Fairfield	02/25/2022 – 04/30/2023
Monique Scarlett, Sioux City	02/18/2022 – 04/30/2023

LANDSCAPE ARCHITECTURAL EXAMINING BOARD (Sec. 544B.3)

Colleen Byrnes, Osage	02/25/2022 – 04/30/2023
M. Martz, Ames	05/01/2022 – 04/30/2025
Brenda Nelson, Iowa City	05/01/2022 – 04/30/2025

LATINO AFFAIRS, COMMISSION OF (Sec. 216A.12)

Jose Ayala, Williamsburg (Reappt.)	05/01/2022 – 04/30/2026
Juan Himar Hernandez, Ottumwa (Reappt.)	05/01/2022 – 04/30/2026
Isabel Yanez, Urbandale	05/01/2022 – 04/30/2026

LAW ENFORCEMENT ACADEMY COUNCIL, IOWA (Sec. 80B.6)

Gene Beinke, Clinton	05/01/2022 – 04/30/2026
Tiffany Hamilton-Howell, Mason City	05/01/2022 – 04/30/2026
Ricardo Martinez II, Nevada	05/01/2022 – 04/30/2026
Elizabeth Quinn, Nevada	02/14/2022 – 04/30/2023

LOTTERY AUTHORITY BOARD OF DIRECTORS, IOWA (Sec. 99G.8)

Sherrae Hanson, West Des Moines	05/01/2022 – 04/30/2026
Dana Wingert, Des Moines	05/01/2022 – 04/30/2026

MASSAGE THERAPY, BOARD OF (Sec. 147.14(1)(q))

Douglas Dollison, Ankeny	05/01/2022 – 04/30/2025
Amy Heinz, Des Moines	05/01/2022 – 04/30/2025
Jacob Schrader, Des Moines	02/18/2022 – 04/30/2023
LeAnn Stevens, Altoona	05/01/2022 – 04/30/2025

MEDICINE, BOARD OF (Sec. 147.14(1)(b))

Eugene Cherny, Des Moines	05/01/2022 – 04/30/2025
Rose Kleyweg Mitchell, Clive	05/01/2022 – 04/30/2025
Jason Meyers, Clive	02/28/2022 – 04/30/2024

Vickie Pyevich, Bettendorf	05/01/2022 – 04/30/2025
Joyce Vista-Wayne, Clive	05/01/2022 – 04/30/2025

MENTAL HEALTH AND DISABILITY SERVICES COMMISSION (Sec. 225C.5)

Betsy Akin, Corning	05/01/2022 – 04/30/2025
Teresa Daubitz, Cedar Rapids	05/01/2022 – 04/30/2025
Sue Gehling, Breda	02/18/2022 – 04/30/2024
Jack Seward, Jr., Washington	02/25/2022 – 04/30/2023
Cory Turner, Cherokee	05/01/2022 – 04/30/2025
Kenneth Wayne, Clive	05/01/2022 – 04/30/2025

MORTUARY SCIENCE, BOARD OF (Sec. 147.14(1)(p))

Maria Lundberg, Newton	05/01/2022 – 04/30/2025
David Moore, Clear Lake	05/01/2022 – 04/30/2025

NATIVE AMERICAN AFFAIRS, COMMISSION OF (Sec. 216A.162)

John Big Eagle Jr., Sioux City	02/18/2022 – 04/30/2025

NURSING, BOARD OF (Sec. 147.14(1)(c))

Jacklyn Barber, Sioux City	05/01/2022 – 04/30/2025
Brian Feist, Johnston	05/01/2022 – 04/30/2025
Gordon Goettsch, Manchester	05/01/2022 – 04/30/2025
Casey Kenneavy, Cedar Rapids	02/14/2022 – 04/30/2023

NURSING HOME ADMINISTRATORS, BOARD OF (Sec. 147.14(1)(w))

Patricia Ross, Coralville	05/01/2022 – 04/30/2025
Tracy Trotter, Fort Dodge	05/01/2022 – 04/30/2025
Devon Wood, New Market	02/14/2022 – 04/30/2024

OPTOMETRY, BOARD OF (Sec. 147.14(1)(f))

Matthew Howie,Grimes	05/01/2022 – 04/30/2025
Heidi Wood, North Liberty	05/01/2022 – 04/30/2025

PAROLE, BOARD OF (Sec. 904A.3)

William Bushell, Des Moines	05/01/2022 – 04/30/2026
Meredith Lamberti, Ankeny (Reappt.)	05/01/2022 – 04/30/2026

PAROLE, CHAIRPERSON OF THE BOARD OF (Sec. 904A.3)

William Bushell, Des Moines	05/01/2022 – Pleasure of the Governor

PHARMACY, BOARD OF (Sec. 147.14(1)(e))

Robert Egeland, Urbandale	02/14/2022 – 04/30/2023
Dane Nealson, Nevada	05/01/2022 – 04/30/2025
Joan Skogstrom, Urbandale	05/01/2022 – 04/30/2025
Kathryn (Kathy) Stone, Missouri Valley	05/01/2022 – 04/30/2025

PHYSICAL AND OCCUPATIONAL THERAPY, BOARD OF (Sec. 147.14(1)(j))

Holly Little, Waverly	05/01/2022 – 04/30/2025
Brett Speirs, Waukee	05/01/2022 – 04/30/2025

PHYSICIAN ASSISTANTS, BOARD OF (Sec. 147.14(1)(l))

Mona Alqulali, Clinton	02/25/2022 – 04/30/2023
Kevin de Regnier, Winterset	05/01/2022 – 04/30/2025
Laura Delaney, Ankeny	05/01/2022 – 04/30/2025
Amber Houge, Estherville	05/01/2022 – 04/30/2025
Michael Schnurr, Roland	05/01/2022 – 04/30/2025

PLUMBING AND MECHANICAL SYSTEMS BOARD (Sec. 105.3(3))

Kiya Boozell, Des Moines	02/25/2022 – 04/30/2023
Mike O'Day, Davenport	05/01/2022 – 04/30/2025
Shon Smith, Melbourne	02/25/2022 – 04/30/2023
Randy Watts, Atlantic	02/25/2022 – 04/30/2024
Matthew Wyant, Crescent	05/01/2022 – 04/30/2025

PODIATRY, BOARD OF (Sec. 147.14(1)(s))

Theresa Hughes, Dubuque	05/01/2022 – 04/30/2025
Eugene Nassif, Jr., Cedar Rapids	05/01/2022 – 04/30/2025
Kelsey Sukovaty , Marshalltown (Reappt.)	05/01/2022 – 04/30/2025

PSYCHOLOGY, BOARD OF (Sec. 147.14(1)(g))

Justin Rhode, Des Moines	05/01/2022 – 04/30/2025
Lisa Streyffeler, Clive	05/01/2022 – 04/30/2025
Sara Swansen, Johnston	02/18/2022 – 04/30/2023

PUBLIC EMPLOYMENT RELATIONS BOARD, CHAIR AND MEMBER OF THE (Sec. 20.5(1)(c))

Erik Helland, Des Moines (Reappt.)	05/01/2022 – 04/30/2026

PUBLIC INFORMATION BOARD, IOWA (Sec. 23.3)

Daniel Breitbarth, Des Moines	05/01/2022 – 04/30/2026
Emil Giovannetti, Urbandale	05/01/2022 – 04/30/2026
James McCrea, Pleasant Hill	05/01/2022 – 04/30/2026
Monica McHugh, Zwingle	05/01/2022 – 04/30/2026
Jackie Schmillen, Urbandale	05/01/2022 – 04/30/2026

PUBLIC SAFETY PEACE OFFICERS' RETIREMENT, ACCIDENT, AND DISABILITY SYSTEM, BOARD OF TRUSTEES OF THE IOWA DEPARTMENT OF (Sec. 97A.5(5))

Mark Oiler, Urbandale	05/01/2022 – 04/30/2024

RACING AND GAMING COMMISSION, STATE (Sec. 99D.5)

Julie Andres, Okoboji	05/01/2022 – Pleasure of the Governor

REAL ESTATE APPRAISER EXAMINING BOARD (Sec. 543D.4(2))

Jonathan Bodwell, Des Moines	02/14/2022 – 04/30/2024
Loretta Laubach, Sanborn	05/01/2022 – 04/30/2025
Cody Seeley, Clinton	05/01/2022 – 04/30/2025

REAL ESTATE COMMISSION (Sec. 543B.8)

Susan Clark, Des Moines	05/01/2022 – 04/30/2025
Mitchell Kearns, Des Moines	05/01/2022 – 04/30/2024

RESPIRATORY CARE AND POLYSOMNOGRAPHY, BOARD OF (Sec. 147.14(1)(o))
Cynthia Duncan, Sioux City 05/01/2022 – 04/30/2025
Thomas Graham, Cedar Falls 02/18/2022 – 04/30/2024
Benjamin Jagow, Urbandale 02/14/2022 – 04/30/2024

SCHOOL BUDGET REVIEW COMMITTEE (Sec. 257.30)
Patricia Schroeder, Ankeny 05/01/2022 – 04/30/2025
Leland Tack, Johnston 05/01/2022 – 04/30/2025

SIGN LANGUAGE INTERPRETERS AND TRANSLITERATORS, BOARD OF (Sec. 147.14(1)(u))
Sarah Boury, Ankeny 02/14/2022 – 04/30/2024
Amanda Gallant, Des Moines 05/01/2022 – 04/30/2025
Dylan Heuer, Clive 02/14/2022 – 04/30/2024

SOCIAL WORK, BOARD OF (Sec. 147.14(1)(t))
Aaron Culley, Cedar Falls 05/01/2022 – 04/30/2025

SOIL CONSERVATION AND WATER QUALITY COMMITTEE, STATE (Sec. 161A.4(4)(a))
Dennis Carlson, Hampton 05/01/2022 – 04/30/2028

SPEECH PATHOLOGY AND AUDIOLOGY, BOARD OF (Sec. 147.14(1)(i))
Jordan Cook, Nevada 02/14/2022 – 04/30/2024
Kevin Kock, Davenport 05/01/2022 – 04/30/2025
Stacy Robinson, Iowa City 05/01/2022 – 04/30/2025

TELECOMMUNICATIONS AND TECHNOLOGY COMMISSION, IOWA (Sec. 8D.3(2)(a))
Bob Holz, Clive 05/01/2022 – 04/30/2028

TOBACCO USE PREVENTION AND CONTROL, COMMISSION ON (Sec. 142A.3(3)(a))
Lorene Mein, Ankeny 05/01/2022 – 04/30/2025
Robert Nichols, Waterloo 05/01/2022 – 04/30/2025
Bridget Saffold, Waterloo 05/01/2022 – 04/30/2025

TRANSPORTATION COMMISSION, STATE (Sec. 307A.1A)
Raymond Gaesser, Corning 07/01/2022 – 06/30/2026
Linda Juckette, Cumming 07/01/2022 – 06/30/2026

VETERANS AFFAIRS, COMMISSION OF (Sec. 35A.2)
Elizabeth Ledvina, Toledo 05/01/2022 – 04/30/2026
George Mosby, Boone (Reappt.) 05/01/2022 – 04/30/2026
Carol Whitmore, Des Moines 05/01/2022 – 04/30/2026

VETERANS AFFAIRS, EXECUTIVE DIRECTOR OF THE IOWA DEPARTMENT OF (Sec. 35A.8)
Steven Lukan, West Des Moines 11/20/2021 – Pleasure of the Governor

VETERINARY MEDICINE, IOWA BOARD OF (Sec. 169.5(1)(a))
Scott Shuey, Corning 05/01/2022 – 04/30/2025

WOMEN, COMMISSION ON THE STATUS OF (Sec. 216A.53)

Andrew Lauver, Lohrville	05/01/2022 – 04/30/2026
Esperance Nibizi, Johnston	05/01/2022 – 04/30/2026
Sherill Whisenand, Des Moines	05/01/2022 – 04/30/2026

WORKFORCE DEVELOPMENT BOARD, IOWA (Sec. 84A.1A(1)(a)(8))

Josh Cobbs, Sioux City	02/28/2022 – 04/30/2025
Carrie Duncan, New London	05/01/2022 – 04/30/2026
Kellie Gottner, Urbandale	05/01/2022 – 04/30/2026
Rich Kurtenbach, Waterloo	05/01/2022 – 04/30/2026
Deborah Mauricio, Sioux Center (Reappt.)	05/01/2022 – 04/30/2026
Matthew Nicol, Davenport	05/01/2022 – 04/30/2026

BY THE COMMISSION

	TERM

RACING AND GAMING COMMISSION, ADMINISTRATOR OF THE STATE (Sec. 99D.6(2))

Brian Ohorilko, Altoona	05/01/2022 – 04/30/2026

The appointments were referred to the committee on **Rules and Administration**.

REPORT OF THE COMMITTEE ON RULES AND ADMINISTRATION

The committee on Rules and Administration referred the following Governor's appointments to state boards, commissions, and departments to Senate standing committees, as indicated for investigation on March 15, 2022:

AGRICULTURE

Lyle Borg – Agricultural Development Board

Rhonda Shelman – Iowa Grain Indemnity Fund Board
Michael Winter – Iowa Grain Indemnity Fund Board

Dennis Carlson – State Soil Conservation and Water Quality Committee

APPROPRIATIONS

Rita Frahm – Enhance Iowa Board
Brad Leeper – Enhance Iowa Board
Steve Roesner – Enhance Iowa Board
Valerie Van Kooten – Enhance Iowa Board
Mary Wells – Enhance Iowa Board

COMMERCE

Tyler Campbell – Credit Union Review Board
Jordan Hensley – Credit Union Review Board
Jami Weems – Credit Union Review Board

Bob Holz – Iowa Telecommunications and Technology Commission

EDUCATION

Stephanie Boyle – Iowa Autism Council
Pam Gronau – Iowa Autism Council
Colin Wixted – Iowa Autism Council
Michael Zehr – Iowa Autism Council

Jennifer Banta – Early Childhood Iowa State Board
Michael Linnenbrink – Early Childhood Iowa State Board
Dawn Oliver Wiand – Early Childhood Iowa State Board

Andrew Allen – Children's Behavioral Health System State Board
Nathan Noble – Children's Behavioral Health System State Board
Kari Price – Children's Behavioral Health System State Board
Jason Sandholdt – Children's Behavioral Health System State Board

Cindy Dietz – State Board of Education
Cassandra Halls – State Board of Education
Nathan Peterson – State Board of Education

Kathy Behrens – Board of Educational Examiners
Timothy McKinney – Board of Educational Examiners

Randy Fehr – Iowa Higher Education Loan Authority

Patricia Schroeder – School Budget Review Committee
Leland Tack – School Budget Review Committee

HUMAN RESOURCES

Andrew Jedlicka – Board of Athletic Training
Emily Reese – Board of Athletic Training
Austin Steil – Board of Athletic Training

Nolan Byrnes – Board of Behavioral Science
Echo Kent – Board of Behavioral Science
Kerry Lust – Board of Behavioral Science
Amy Mooney – Board of Behavioral Science
Blake Stephenson – Board of Behavioral Science
Maria Valdovinos – Board of Behavioral Science
Laura Wilcke – Board of Behavioral Science

Ashley Baker – Child Advocacy Board
Donald Logan – Child Advocacy Board
Rick McIntosh – Child Advocacy Board
William Owens – Child Advocacy Board
Angela Stokes – Child Advocacy Board

Jessica Fasselius – Commission of Persons with Disabilities
Adam Koch – Commission of Persons with Disabilities
Clint Sargent – Commission of Persons with Disabilities
Beth Wilde – Commission of Persons with Disabilities

Shawn Garrington – Healthy and Well Kids in Iowa (HAWK-I) Board
Mary Nelle Trefz – Healthy and Well Kids in Iowa (HAWK-I) Board

Jose Ayala – Commission of Latino Affairs
Juan Himar Hernandez – Commission of Latino Affairs
Isabel Yanez – Commission of Latino Affairs

Betsy Akin – Mental Health and Disability Services Commission
Teresa Daubitz – Mental Health and Disability Services Commission
Sue Gehling – Mental Health and Disability Services Commission
Jack Seward, Jr. – Mental Health and Disability Services Commission
Cory Turner – Mental Health and Disability Services Commission
Kenneth Wayne – Mental Health and Disability Services Commission

Sarah Boury – Board of Sign Language Interpreters and Transliterators
Amanda Gallant – Board of Sign Language Interpreters and Transliterators
Dylan Heuer – Board of Sign Language Interpreters and Transliterators

Lorene Mein – Commission on Tobacco Use Prevention and Control
Robert Nichols – Commission on Tobacco Use Prevention and Control
Bridget Saffold – Commission on Tobacco Use Prevention and Control

JUDICIARY

Denise Bubeck – Board of Corrections

Jason Feaker – Drug Policy Advisory Council
David McDaniel – Drug Policy Advisory Council

Gwendolyn (Gwen) Ecklund – State Judicial Nominating Commission
Jeremy Kidd – State Judicial Nominating Commission
Kathleen Law – State Judicial Nominating Commission
Derek Muller – State Judicial Nominating Commission

Dee Sandquist – Justice Advisory Board
Monique Scarlett – Justice Advisory Board

Gene Beinke – Iowa Law Enforcement Academy Council
Tiffany Hamilton-Howell – Iowa Law Enforcement Academy Council
Ricardo Martinez II – Iowa Law Enforcement Academy Council
Elizabeth Quinn – Iowa Law Enforcement Academy Council

William Bushell – Chairperson of the Board of Parole

William Bushell – Board of Parole
Meredith Lamberti – Board of Parole

LABOR AND BUSINESS RELATIONS

James Strohman – Employment Appeal Board

Kiya Boozell – Plumbing and Mechanical Systems Board
Mike O'Day – Plumbing and Mechanical Systems Board
Shon Smith – Plumbing and Mechanical Systems Board
Randy Watts – Plumbing and Mechanical Systems Board
Matthew Wyant – Plumbing and Mechanical Systems Board

Erik Helland – Chair and member of the Public Employment Relations Board

Josh Cobbs – Iowa Workforce Development Board
Carrie Duncan – Iowa Workforce Development Board
Kellie Gottner – Iowa Workforce Development Board
Rich Kurtenbach – Iowa Workforce Development Board
Deborah Mauricio – Iowa Workforce Development Board
Matthew Nicol – Iowa Workforce Development Board

LOCAL GOVERNMENT

Chris McKee – City Development Board
Dennis Plautz – City Development Board

Jenny Blankenship – County Finance Committee

STATE GOVERNMENT

Allen Kockler – Accountancy Examining Board
Michelle O'Neill – Accountancy Examining Board
Jessica Richter – Accountancy Examining Board

Aaron Sewell – Commission on the Status of African Americans
Whitney Smith – Commission on the Status of African Americans

Sara Winkleman – Alcoholic Beverages Commission

Stephen Larson – Administrator of the Alcoholic Beverages Division

Dan Dutcher – Architectural Examining Board

Caleb Lillquist – Commission of Asian and Pacific Islander Affairs
Karlai Thornburg – Commission of Asian and Pacific Islander Affairs
Shaochen Yu – Commission of Asian and Pacific Islander Affairs

Maureen Hardy – Board of Barbering

Geneva Jacobsen – Commission for the Blind

Bret Brecke – Boiler and Pressure Vessel Board
Kenneth Lamb – Boiler and Pressure Vessel Board
Daniel LaPole – Boiler and Pressure Vessel Board
Lynne Rush – Boiler and Pressure Vessel Board
Nathan Whipple – Boiler and Pressure Vessel Board

Bobbi Baker-Maynes – Commission on Community Action Agencies
Kevin Brown – Commission on Community Action Agencies
John Murphy – Commission on Community Action Agencies

Jeremy Kemp – Board of Cosmetology Arts and Sciences
Joshua Spencer – Board of Cosmetology Arts and Sciences

Tina Caloud – Commission of Deaf Services
Bruce Kawahara – Commission of Deaf Services

Gregory Ceraso – Board of Dentistry
Lisa Holst – Board of Dentistry
Thomas Peek – Board of Dentistry

Julie Eichenberger – Board of Dietetics
Philip Pitzen – Board of Dietetics
Nicholas Rouse – Board of Dietetics

Colby Black – Electrical Examining Board
Sara Fasching – Electrical Examining Board
Jonathan Gettler – Electrical Examining Board
Jeremy Price – Electrical Examining Board

Candace Biddle – Elevator Safety Board
Craig Clabaugh – Elevator Safety Board
Kerry Dixon – Elevator Safety Board
Troy Tilleraas – Elevator Safety Board
Michael Wallace – Elevator Safety Board

Paul Herold – Engineering and Land Surveying Examining Board
Jack Jones – Engineering and Land Surveying Examining Board

Daniel Jessop – Iowa Ethics and Campaign Disclosure Board
Leah Rodenberg – Iowa Ethics and Campaign Disclosure Board

Rick Knudson – Board of Hearing Aid Specialists
Molly Parker – Board of Hearing Aid Specialists
Tricia Veik – Board of Hearing Aid Specialists

Amy Guhl – Interior Design Examining Board
Todd Mithelman – Interior Design Examining Board

Tami Loge – Investment Board of the Iowa Public Employees' Retirement System

Colleen Byrnes – Landscape Architectural Examining Board
M. Martz – Landscape Architectural Examining Board
Brenda Nelson – Landscape Architectural Examining Board

Sherrae Hanson – Iowa Lottery Authority Board of Directors
Dana Wingert – Iowa Lottery Authority Board of Directors

Douglas Dollison – Board of Massage Therapy
Amy Heinz – Board of Massage Therapy
Jacob Schrader – Board of Massage Therapy
LeAnn Stevens – Board of Massage Therapy

Eugene Cherny – Board of Medicine
Rose Kleyweg Mitchell – Board of Medicine
Jason Meyers – Board of Medicine
Vickie Pyevich – Board of Medicine
Joyce Vista-Wayne – Board of Medicine

Maria Lundberg – Board of Mortuary Science
David Moore – Board of Mortuary Science

John Big Eagle, Jr. – Commission of Native American Affairs

Jacklyn Barber – Board of Nursing
Brian Feist – Board of Nursing
Gordon Goettsch – Board of Nursing
Casey Kenneavy – Board of Nursing

Patricia Ross – Board of Nursing Home Administrators
Tracy Trotter – Board of Nursing Home Administrators
Devon Wood – Board of Nursing Home Administrators

Heidi Wood – Board of Optometry

Robert Egeland – Board of Pharmacy
Dane Nealson – Board of Pharmacy
Joan Skogstrom – Board of Pharmacy
Kathryn (Kathy) Stone – Board of Pharmacy

Holly Little – Board of Physical and Occupational Therapy
Brett Speirs – Board of Physical and Occupational Therapy

Mona Alqulali – Board of Physician Assistants
Kevin de Regnier – Board of Physician Assistants
Laura Delaney – Board of Physician Assistants
Amber Houge – Board of Physician Assistants
Michael Schnurr – Board of Physician Assistants

Theresa Hughes – Board of Podiatry
Eugene Nassif, Jr. – Board of Podiatry
Kelsey Sukovaty – Board of Podiatry

Justin Rhode – Board of Psychology
Lisa Streyffeler – Board of Psychology
Sara Swansen – Board of Psychology

Daniel Breitbarth – Iowa Public Information Board
Emil Giovannetti – Iowa Public Information Board
James McCrea – Iowa Public Information Board
Monica McHugh – Iowa Public Information Board
Jackie Schmillen – Iowa Public Information Board

Mark Oiler – Board of Trustees of the Iowa Department of Public Safety Peace Officers' Retirement, Accident, and Disability System

Brian Ohorilko – Administrator of the State Racing and Gaming Commission

Julie Andres – State Racing and Gaming Commission

Jonathan Bodwell – Real Estate Appraiser Examining Board
Loretta Laubach – Real Estate Appraiser Examining Board
Cody Seeley – Real Estate Appraiser Examining Board

Susan Clark – Real Estate Commission
Mitchell Kearns – Real Estate Commission

Cynthia Duncan – Board of Respiratory Care and Polysomnography
Thomas Graham – Board of Respiratory Care and Polysomnography
Benjamin Jagow – Board of Respiratory Care and Polysomnography

Aaron Culley – Board of Social Work

Jordan Cook – Board of Speech Pathology and Audiology
Kevin Kock – Board of Speech Pathology and Audiology
Stacy Robinson – Board of Speech Pathology and Audiology

Scott Shuey – Iowa Board of Veterinary Medicine

Andrew Lauver – Commission on the Status of Women
Esperance Nibizi – Commission on the Status of Women
Sherill Whisenand – Commission on the Status of Women

TRANSPORTATION

Raymond Gaesser – State Transportation Commission
Linda Juckette – State Transportation Commission

VETERANS AFFAIRS

Steven Lukan – Executive Director of the Iowa Department of Veterans Affairs

Elizabeth Ledvina – Commission of Veterans Affairs
George Mosby – Commission of Veterans Affairs
Carol Whitmore – Commission of Veterans Affairs

WAYS AND MEANS

Doug Boone – Economic Development Authority
Mark Kittrell – Economic Development Authority
Pankaj Monga – Economic Development Authority
Jennifer Steffensmeier – Economic Development Authority

Ryan Bosch – Iowa Great Places Board
Barbara Determan – Iowa Great Places Board
Duane Hagerty – Iowa Great Places Board
Darryl High – Iowa Great Places Board
Jacque Rahe – Iowa Great Places Board

WITHDRAWAL OF GOVERNOR'S APPOINTEES

The following letters from the Governor were received in the office of the Secretary of the Senate:

I am withdrawing the name of Matthew Howie for confirmation as a member of the Board of Optometry from further consideration by the Senate.

I am withdrawing the name of Jonathan Bodwell for confirmation as a member of the Real Estate Appraiser Examining Board from further consideration by the Senate.

I am withdrawing the name of Mitchell Kearns for confirmation as a member of the Real Estate Commission from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

GOVERNOR'S DEFERRAL LETTERS

The following letters from the Governor were received in the office of the Secretary of the Senate on March 15, 2022:

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission on the Status of African Americans, formerly held by Kenneth Morris, Jr. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Architectural Examining Board, formerly held by Anna Harmon. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Iowa Autism Council, formerly held by Andrew Beer. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Iowa Autism Council, formerly held by Matthew O'Brien. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Boiler and Pressure Vessel Board, formerly held by Frank Ballantini. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Boiler and Pressure Vessel Board, formerly held by Thomas Dye. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Children's Behavioral Health System State Board, formerly held by Peggy Huppert. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Please accept this notice of deferred appointment pursuant to section 2.32 of the Iowa Code for Chief Information Officer, formerly held by Annette Dunn. This appointment has been deferred because the Governor's Office has initiated, but not yet completed, the selection process for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Board of Chiropractic, formerly held by Jason Wall. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Iowa State Civil Rights Commission, formerly held by Gina Battani. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission on Community Action Agencies, formerly held by Anna Hilpipre. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission on Community Action Agencies, formerly held by John Johnson. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Early Childhood Iowa State Board, formerly held by Jean Stadtlander. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Early Childhood Iowa State Board, formerly held by Zachary Stier. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Iowa Cultural Trust Board of Trustees, formerly held by Mary Ellen Kimball. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Electrical Examining Board, formerly held by Jonathan Gettler. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Elevator Safety Board, formerly held by Wayne Sims. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Board of Hearing Aid Specialists, formerly held by Jon McAvoy. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Justice Advisory Board, formerly held by Brian Gladney. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Landscape Architectural Examining Board, formerly held by Debra Schiel-Larson. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Latino Affairs Commission, formerly held by Marlu Abarca. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Please accept this notice of deferred appointment pursuant to section 2.32 of the Iowa Code for Director of the Iowa Department of Management, formerly held by Michael Bousselot. This appointment has been deferred because the Governor's Office has initiated, but not yet completed, the selection process for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission on Mental Health and Disability Services, formerly held by Shari O'Bannon. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission on Mental Health and Disability Services, formerly held by Marilyn Seeman. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission on Mental Health and Disability Services, formerly held by Maria Sorensen. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission of Native American Affairs, formerly held by Larry Lasley. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission of Native American Affairs, formerly held by Anthony Waseskuk. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission of Native American Affairs, formerly held by Judy Yellowbank. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Board of Nursing Home Administrators, formerly held by Matt Niemeir. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Board of Nursing Home Administrators, formerly held by Therese Nielsen. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Board of Optometry, formerly held by Anne Langguth. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Board of Physical and Occupational Therapy, formerly held by Stephanie Kelsick. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Plumbing and Mechanical Systems Board, formerly held by Robert Kunkel. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Plumbing and Mechanical Systems Board, formerly held by Rodney Schultz. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Public Employment Relations Board, formerly held by Erik Helland. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Please accept this notice of deferred appointment pursuant to section 2.32 of the Iowa Code for Director of the Iowa Department of Public Health, formerly held by Gerd Clabaugh. This appointment has been deferred because the Governor's Office has initiated, but not yet completed, the selection process for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Iowa Public Information Board, formerly held by Stanley Thompson. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Board of Sign Language Interpreters and Transliterators, formerly held by Megan Johnson. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Board of Sign Language Interpreters and Transliterators, formerly held by Susan Tyrrell. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Board of Social Work, formerly held by Amy Courneya. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Board of Social Work, formerly held by Tony Raymer. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the State Soil Conservation and Water Quality Committee, formerly held by Judy Loonan. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission of Veterans Affairs, formerly held by Dan Gannon. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Commission on the Status of Women, formerly held by Thomas Carnahan. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Pursuant to Iowa Code section 2.32, please accept this letter as the notice of deferment of the appointment to the Iowa Workforce Development Board, formerly held by Becky Jacobsen. The appointment has been deferred because our Administration has initiated, but has not yet completed, the selection process which will result in determining the most appropriate person to nominate for this position.

Sincerely,
KIM REYNOLDS
Governor

AMENDMENTS FILED

S–5059	S.F.	2251	Adrian Dickey
S–5060	H.F.	2411	Adrian Dickey
S–5061	H.F.	2281	Judiciary

JOURNAL OF THE SENATE

SIXTY-SIXTH CALENDAR DAY
THIRTY-NINTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, March 16, 2022

The Senate met in regular session at 9:04 a.m., President Chapman presiding.

Prayer was offered by the Honorable Jason Schultz, member of the Senate from Crawford County, Schleswig, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Grace Tollefson.

The Journal of Tuesday, March 15, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 15, 2022, **adopted** the following resolution in which the concurrence of the House was asked:

Senate Joint Resolution 9, a joint resolution proposing an amendment to the Constitution of the State of Iowa relating to the qualifications of electors.

ALSO: That the House has on March 15, 2022, **passed** the following bill in which the concurrence of the House was asked:

Senate File 2295, a bill for an act relating to statutory corrections which may adjust language to reflect current practices, insert earlier omissions, delete redundancies and inaccuracies, delete temporary language, resolve inconsistencies and conflicts, update ongoing provisions, or remove ambiguities, and including retroactive applicability provisions.

ALSO: That the House has on March 15, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2466, a bill for an act concerning signature requirements for county supervisor candidate nominations and including effective date provisions.

Read first time and referred to committee on **State Government**.

House File 2494, a bill for an act relating to nursing facility construction or expansion.

Read first time and referred to committee on **Human Resources**.

House File 2529, a bill for an act relating to a state-funded psychiatry residency program at various state institutions, creating a program fund, and making appropriations.

Read first time and referred to committee on **Appropriations**.

House File 2537, a bill for an act relating to motor vehicles that traverse certain railroad grade crossings against a gate or signal, and providing penalties.

Read first time and referred to committee on **Transportation**.

House File 2538, a bill for an act relating to legislative and congressional redistricting concerning the duties of the temporary redistricting advisory commission.

Read first time and referred to committee on **State Government**.

House File 2546, a bill for an act relating to reimbursement of psychiatric intensive inpatient care under the Medicaid program.

Read first time and attached to **similar Senate File 2331**.

House File 2549, a bill for an act relating to the establishment of a mental health practitioner loan repayment program, and providing an appropriation.

Read first time and attached to **similar Senate File 2195**.

INTRODUCTION OF GOVERNOR'S APPOINTEES

The Secretary of the Senate introduced to the Senate chamber Stephen Larson, the Governor's appointee to be the Administrator of the Alcoholic Beverages Division. He was the guest of the committee on State Government.

The Secretary of the Senate introduced to the Senate chamber William Bushell, the Governor's appointee to be the Chairperson of the Board of Parole. He was the guest of the committee on Judiciary.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 105.

Senate Resolution 105

On motion of Senator Nunn, **Senate Resolution 105**, a resolution reaffirming Iowa's commitment to its relationship with the Ukrainian people and supporting Ukraine's efforts to remain an independent and autonomous nation, with report of committee recommending passage, was taken up for consideration.

Senator Nunn moved the adoption of Senate Resolution 105, which motion prevailed by a voice vote.

BILL REFERRED TO COMMITTEE

President Chapman announced that **House File 2130** was referred from the committee on **Transportation** to the committee on **State Government** under Senate Rule 38.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:30 a.m. until 9:00 a.m., Thursday, March 17, 2022.

APPENDIX

REPORTS OF COMMITTEE MEETINGS

COMMERCE

Convened: Wednesday, March 16, 2022, 10:40 a.m.

Members Present: Schultz, Chair; Koelker, Vice Chair; Giddens, Ranking Member; Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams.

Members Absent: None.

Committee Business: HF 2431, HF 2470, HF 2540, HF 2302, HF 2399, HF 2330, and HF 2461.

Adjourned: 11:00 a.m.

HUMAN RESOURCES

Convened: Tuesday, March 15, 2022, 3:35 p.m.

Members Present: Edler, Chair; Costello, Vice Chair; Mathis, Ranking Member; Bolkcom, Garrett, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott.

Members Absent: Green (excused).

Committee Business: Consideration and passage of bills: HF 2198, HF 2127, HF 736, HF 2203, and HF 2248.

Adjourned: 4:15 p.m.

NATURAL RESOURCES AND ENVIRONMENT

Convened: Wednesday, March 16, 2022, 1:25 p.m.

Members Present: Sweeney, Chair; Driscoll, Vice Chair; Trone Garriott, Ranking Member; Boulton, Celsi, Cournoyer, Lykam, Rozenboom, Shipley, J. Taylor, and Zumbach.

Members Absent: Green and Hogg (both excused).

Committee Business: HF 2209, HF 2369, and HF 2415.

Adjourned: 1:35 p.m.

SUBCOMMITTEE ASSIGNMENTS

House File 2130

STATE GOVERNMENT: Koelker, Chair Bisignano, Boulton, Brown, Celsi, Cournoyer, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Reichman, Schultz, and R. Smith

House File 2337

APPROPRIATIONS: Cournoyer, Chair; Celsi and Rozenboom

House File 2466

STATE GOVERNMENT: R. Smith, Chair Bisignano, Boulton, Brown, Celsi, Cournoyer, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz

House File 2529

APPROPRIATIONS: Costello, Chair; Bolkcom and Edler

FINAL COMMITTEE REPORTS OF BILL ACTION

COMMERCE

Bill Title: HOUSE FILE 2302, a bill for an act relating to affirmative defenses for entities using cybersecurity programs.

Recommendation: DO PASS.

Final Vote: Yeas, 17: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2399, a bill for an act relating to reimbursement for health care services provided after receipt of a prior authorization, and including applicability provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 17: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2431, a bill for an act relating to the regulation of home-based businesses, including food establishments and home food processing establishments, and providing civil penalties.

Recommendation: DO PASS.

Final Vote: Yeas, 11: Schultz, Koelker, Brown, Chapman, Goodwin, Johnson, Klimesh, Nunn, Sinclair, R. Smith, and Williams. Nays, 6: Giddens, Bisignano, Lykam, Mathis, Petersen, and Quirmbach. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2461, a bill for an act relating to ransomware and providing penalties.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5066.

Final Vote: Yeas, 17: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2470, a bill for an act adopting and implementing the recommendations of the artisanal butchery task force.

Recommendation: DO PASS.

Final Vote: Yeas, 17: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

HUMAN RESOURCES

Bill Title: HOUSE FILE 736, a bill for an act relating to limitations on activities related to paid claims under the Medicaid program, and including effective date provisions.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5064.

Final Vote: Yeas, 12: Edler, Costello, Mathis, Bolkcom, Garrett, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott. Nays, none. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2127, a bill for an act relating to payments to child care providers from families participating in the state child care assistance program.

Recommendation: DO PASS.

Final Vote: Yeas, 7: Edler, Costello, Garrett, Johnson, Lofgren, Rowley, and Sweeney. Nays, 5: Mathis, Bolkcom, Jochum, Ragan, and Trone Garriott. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2198, a bill for an act relating to the minimum age requirements for employees and substitutes working at a child care center.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5063.

Final Vote: Yeas, 7: Edler, Costello, Garrett, Johnson, Lofgren, Rowley, and Sweeney. Nays, 5: Mathis, Bolkcom, Jochum, Ragan, and Trone Garriott. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2203, a bill for an act relating to health care including protections for health care providers against disciplinary actions for acts or omissions related to COVID-19 and to experimental treatments for terminally ill persons, and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 7: Edler, Costello, Garrett, Johnson, Lofgren, Rowley, and Sweeney. Nays, 5: Mathis, Bolkcom, Jochum, Ragan, and Trone Garriott. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2248, a bill for an act relating to the information to be provided by a health care provider as part of a referral of a patient to an ambulatory surgical center, and providing for licensee discipline.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5065.

Final Vote: Yeas, 7: Edler, Costello, Garrett, Johnson, Lofgren, Rowley, and Sweeney. Nays, 5: Mathis, Bolkcom, Jochum, Ragan, and Trone Garriott. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

NATURAL RESOURCES AND ENVIRONMENT

Bill Title: HOUSE FILE 2209, a bill for an act relating to residents under sixteen years of age accompanying an adult who is hunting or trapping.

Recommendation: DO PASS.

Final Vote: Yeas, 11: Sweeney, Driscoll, Trone Garriott, Boulton, Celsi, Cournoyer, Lykam, Rozenboom, Shipley, J. Taylor, and Zumbach. Nays, none. Excused, 2: Green and Hogg.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2369, a bill for an act relating to taking fur-bearing animals without prior permission of the natural resource commission.

Recommendation: DO PASS.

Final Vote: Yeas, 11: Sweeney, Driscoll, Trone Garriott, Boulton, Celsi, Cournoyer, Lykam, Rozenboom, Shipley, J. Taylor, and Zumbach. Nays, none. Excused, 2: Green and Hogg.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2415, a bill for an act relating to private land available for public use for recreational purposes.

Recommendation: DO PASS.

Final Vote: Yeas, 11: Sweeney, Driscoll, Trone Garriott, Boulton, Celsi, Cournoyer, Lykam, Rozenboom, Shipley, J. Taylor, and Zumbach. Nays, none. Excused, 2: Green and Hogg.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

STATE GOVERNMENT

Bill Title: HOUSE FILE 781, a bill for an act relating to the practice of interior design, providing penalties, and including effective date provisions.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5067.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 853, a bill for an act relating to snowmobile user permits and registration fees.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5068.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2130, a bill for an act relating to registered all-terrain vehicles and off-road utility vehicles, and making penalties applicable.

Recommendation: DO PASS.

Final Vote: Yeas, 14: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, 1: Celsi. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2331, a bill for an act establishing daylight saving time as the official time in this state throughout the year and including effective date provision.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5070.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2340, a bill for an act relating to public safety nuisances concerning licensed premises where alcoholic beverages, wine, or beer is sold or consumed.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5071.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2378, a bill for an act relating to pari-mutuel wagering, concerning distribution of horse racing purse moneys and establishing a fund for certain race horse organizations.

Recommendation: DO PASS.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2420, a bill for an act relating to the newborn safe haven Act.

Recommendation: DO PASS.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2466, a bill for an act concerning signature requirements for county supervisor candidate nominations and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2489, a bill for an act relating to the auditor of state and including effective date and applicability provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 15: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Celsi, Dawson, Giddens, Goodwin, Guth, Jochum, Johnson, Koelker, Reichman, and Schultz. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2497, a bill for an act relating to gambling regulation and wagering, concerning cashless wagering, forfeiture and withholding of certain gaming winnings, sports wagering, occupational licenses, and providing penalties.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5072.

Final Vote: Yeas, 12: R. Smith, Cournoyer, Bisignano, Boulton, Brown, Dawson, Giddens, Goodwin, Jochum, Johnson, Koelker, and Reichman. Nays, 3: Celsi, Guth, and Schultz. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2547, a bill for an act relating to midwife licensure, providing for fees, and making penalties applicable.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5069.

Final Vote: Yeas, 10: R. Smith, Cournoyer, Brown, Dawson, Goodwin, Guth, Johnson, Koelker, Reichman, and Schultz. Nays, 5: Bisignano, Boulton, Celsi, Giddens, Jochum. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of Sue Clark for confirmation as a member of the Real Estate Commission from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

AMENDMENTS FILED

S–5062	H.F.	780	Mark Lofgren
S–5063	H.F.	2198	Human Resources
S–5064	H.F.	736	Human Resources
S–5065	H.F.	2248	Human Resources
S–5066	H.F.	2461	Commerce
S–5067	H.F.	781	State Government
S–5068	H.F.	853	State Government
S–5069	H.F.	2547	State Government
S–5070	H.F.	2331	State Government
S–5071	H.F.	2340	State Government
S–5072	H.F.	2497	State Government

JOURNAL OF THE SENATE

SIXTY-SEVENTH CALENDAR DAY
FORTIETH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, March 17, 2022

The Senate met in regular session at 9:05 a.m., Senator R. Smith presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Ian Critelli.

The Journal of Wednesday, March 16, 2022, was approved.

BILLS PLACED ON UNFINISHED BUSINESS

Senator Sinclair asked and received unanimous consent that the following bills be placed on the Unfinished Business Calendar:

SF 2369
SF 2366
SF 2370
SF 2371
SF 2372
SF 2060
SF 2086 attached HF 2258
SF 2087 attached HF 2126
SF 2088 attached HF 2169
SF 2093
SF 2110 attached HF 2380
SF 2129 attached HF 2165
SF 2131
SF 2133
SF 2237 attached HF 2217
SF 2240 attached HF 2078
SF 2241 attached HF 2338
SF 2242 attached HF 2201
SF 2253 attached HF 2239
SF 2254
SF 2257 attached HF 2507
SF 2258 attached HF 2171
SF 2274 attached HF 2488
SF 2275
SF 2276 attached HF 2200
SF 2282 attached HF 2475
SF 2283 attached HF 2430
SF 2284

SF 2134 attached HF 2360
SF 2140 attached HF 2124
SF 2168 attached HF 2172
SF 2171 attached HF 2252
SF 2174 attached HF 2390
SF 2179 attached HF 2462
SF 2185 attached HF 2222
SF 2189 attached HF 2296
SF 2191
SF 2192 attached HF 2295
SF 2194 attached HF 2155
SF 2195 attached HF 2549
SF 2210 attached HF 2521
SF 2228 attached HF 2341
SF 2229
SF 2231
SF 2236 attached HF 2079
SF 2286
SF 2293 attached HF 2367
SF 2294 attached HF 2463
SF 2303 attached HF 2469
SF 2315
SF 2316 attached HF 2484
SF 2317
SF 2320 attached HF 2408
SF 2327
SF 2330 attached HF 2343
SF 2331 attached HF 2546
SF 2333 attached HF 2445
SF 2338 attached HF 2345
SF 2343
SF 2355
SF 2363
SJR 15 attached HJR 2005

ADJOURNMENT

On motion of Senator Sinclair, the Senate adjourned at 9:13 a.m. until 1:00 p.m., Monday, March 21, 2022.

APPENDIX

REPORTS OF COMMITTEE MEETINGS

JUDICIARY

Convened: Wednesday, March 16, 2022, 3:00 p.m.

Members Present: Zaun, Chair; Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: None.

Committee Business: HF 2496, HF 2372, HF 2298, HF 2464, HF 2481, and HF 2472.

Adjourned: 4:30 p.m.

WAYS AND MEANS

Convened: Thursday, March 17, 2022, 11:05 a.m.

Members Present: Dawson, Chair; Goodwin, Vice Chair; Jochum, Ranking Member; Bolkcom, Brown, Dickey, Dotzler, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun.

Members Absent: Green (excused).

Committee Business: HF 2518 – Heavy cranes – Brown – subcommittee of the whole SF 2347 – Weighted trucks – Brown SSB 3151 – Manufactured housing – Sinclair SF 2202 – Teacher retirement incentives – Sinclair HF 626 – Redlining – Sinclair w/amendment SF 2083 – EMS property tax incentive – Dickey w/amendment SF 2122 – Bottle Bill – Schultz w/amendment.

Adjourned: 12:05 p.m.

FINAL COMMITTEE REPORTS OF BILL ACTION

COMMERCE

Bill Title: HOUSE FILE 2330, a bill for an act relating to electronic delivery of certain insurance notices and documents.

Recommendation: DO PASS.

Final Vote: Yeas, 17: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2540, a bill for an act relating to the sale of travel insurance.

Recommendation: DO PASS.

Final Vote: Yeas, 17: Schultz, Koelker, Giddens, Bisignano, Brown, Chapman, Goodwin, Johnson, Klimesh, Lykam, Mathis, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

JUDICIARY

Bill Title: HOUSE FILE 2298, a bill for an act relating to immunization against COVID-19 requirements for enrollment in any licensed child care center, elementary or secondary school, or postsecondary school in Iowa.

Recommendation: DO PASS.

Final Vote: Yeas, 10: Zaun, Garrett, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 5: Kinney, Bisignano, Bolkcom, Boulton, and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2372, a bill for an act relating to the nonconsensual termination of a human pregnancy, and providing penalties.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2464, a bill for an act relating to the expungement of certain criminal history records of victims of human trafficking, child abuse and minors engaged in prostitution, and including penalties.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2472, a bill for an act relating to tampering with witnesses or jurors, and providing penalties.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2481, a bill for an act relating to judicial selection, including the nominees to the court of appeals, and the appointments, resignations, and residency requirements of district judges, district associate judges, associate juvenile judges, and associate probate judges.

Recommendation: DO PASS.

Final Vote: Yeas, 10: Zaun, Garrett, Dawson, Johnson, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, 5: Kinney, Bisignano, Bolkcom, Boulton, and Petersen. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2496, a bill for an act relating to the procedural requirements for placing an officer's name on a Brady-Giglio list, and for a prosecuting agency disclosing exculpatory evidence.

Recommendation: DO PASS.

Final Vote: Yeas, 15: Zaun, Garrett, Kinney, Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

WAYS AND MEANS

Bill Title: HOUSE FILE 2518, a bill for an act relating to annual overweight permits for cranes, and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, none. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of Michael Zehr for confirmation as a member of the Iowa Autism Council from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

JOURNAL OF THE SENATE

SEVENTY-FIRST CALENDAR DAY
FORTY-FIRST SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, March 21, 2022

The Senate met in regular session at 1:02 p.m., President Chapman presiding.

Prayer was offered by the Honorable Jake Chapman, president of the Senate from Dallas County, Adel, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Kennedy Haag.

The Journal of Thursday, March 17, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 17, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2437, a bill for an act prohibiting the burdening of a person's free exercise of religion by governmental entities, officials, and employees.

Read first time and attached to **similar Senate File 2284**.

House File 2532, a bill for an act relating to the compensation of sanitary district board of trustees members.

Read first time and referred to committee on **Local Government**.

House File 2552, a bill for an act relating to state and local finances and the duties and procedures of the department of revenue by providing for electronic filing, communications, and records, modifying transfer tax remittances, the assessment of property, the collection of debt, the refunds of certain fuel taxes, and the taxation of pass-through entities, reducing inheritance taxes for unknown heirs, establishing salaries, providing for a fee, making appropriations, and providing penalties, and including effective date, applicability, and retroactive applicability provisions.

Read first time and attached to **companion Senate File 2371**.

BILL REFERRED TO COMMITTEE

President Chapman announced that **House File 853** was referred from the Regular Calendar to the committee on **Ways and Means** under Senate Rule 38.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 1:06 p.m. until 9:00 a.m., Tuesday, March 22, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF HUMAN SERVICES

Department of Human Services Operational and Program Expenditures Report, pursuant to 2021 Iowa Acts, Chapter 182, section 28. Report received on March 18, 2022.

Medicaid Managed Care Oversight Quarterly Report, pursuant to 2016 Iowa Acts, Chapter 1139, section 93. Report received on March 18, 2022.

Temporary Assistance for Needy Families Block Grant Expenditures, pursuant to 2021 Iowa Acts, Chapter 182, section 7. Report received on March 18, 2022.

INTRODUCTION OF BILLS

Senate File 2375, by committee on Ways and Means, a bill for an act relating to the abatement of property taxes owed on property owned by certain volunteer emergency services providers and including effective date and retroactive applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

Senate File 2376, by committee on Ways and Means, a bill for an act relating to annual all-systems permits issued by the department of transportation for vehicles of excessive weight, and including effective date provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

Senate File 2377, by committee on Ways and Means, a bill for an act relating to education, including eligibility for grants under the teach Iowa scholar program, licenses issued by the board of educational examiners, and the use of revenues from the district management levy, and including applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

Senate File 2378, by committee on Ways and Means, a bill for an act relating to beverages, including the barrel tax and the acceptance of beverage containers for refund value, providing penalties, and including effective date provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

Senate File 2379, by committee on Ways and Means, a bill for an act relating to property law, including mobile homes and manufactured housing, rental agreements, landlord and tenant remedies for retaliation, wrongful failure to provide essential services, rent increases, the sale of manufactured home community or mobile home park, the repeal of the manufactured home community and mobile home tax, forcible entry and detainer actions, abandoned mobile homes, and including effective date and applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

SUBCOMMITTEE ASSIGNMENTS

House File 2471

LOCAL GOVERNMENT: Lofgren, Chair; Guth and J. Smith

House File 2494

HUMAN RESOURCES: Edler, Chair; Bolkcom and Costello

House File 2532

LOCAL GOVERNMENT: Driscoll, Chair; Quirmbach and Williams

FINAL COMMITTEE REPORTS OF BILL ACTION

WAYS AND MEANS

Bill Title: *SENATE FILE 2375 (formerly SF 2083), a bill for an act relating to the abatement of property taxes owed on property owned by certain volunteer emergency services providers and including effective date and retroactive applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, none. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2375, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2376 (formerly SF 2347), a bill for an act relating to annual all-systems permits issued by the department of transportation for vehicles of excessive weight, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dotzler, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, 1: Dickey. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2376, and they were attached to the committee report.

ALSO:

Bill Title: SENATE FILE 2377 (formerly SF 2202), a bill for an act relating to education, including eligibility for grants under the teach Iowa scholar program, licenses issued by the board of educational examiners, and the use of revenues from the district management levy, and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, none. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: *SENATE FILE 2378 (formerly SF 2122), a bill for an act relating to beverages, including the barrel tax and the acceptance of beverage containers for refund value, providing penalties, and including effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Dawson, Goodwin, Brown, Dickey, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and Zaun. Nays, 6: Jochum, Bolkcom, Dotzler, Petersen, Quirmbach, and T. Taylor. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2378, and they were attached to the committee report.

ALSO:

Bill Title: *SENATE FILE 2379 (SSB 3151), a bill for an act relating to property law, including mobile homes and manufactured housing, rental agreements, landlord and tenant remedies for retaliation, wrongful failure to provide essential services, rent increases, the sale of manufactured home community or mobile home park, the repeal of the manufactured home community and mobile home tax, forcible entry and detainer actions, abandoned mobile homes, and including effective date and applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Dawson, Goodwin, Brown, Dickey, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and Zaun. Nays, 6: Jochum, Bolkcom, Dotzler, Petersen, Quirmbach, and T. Taylor. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2379, and they were attached to the committee report.

ALSO:

Bill Title: HOUSE FILE 626, a bill for an act relating to revitalization areas by authorizing cities and counties to provide property tax exemptions for certain owner-occupied residential property located in areas previously subjected to lending discrimination and including applicability provisions.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5073.

Final Vote: Yeas, 15: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Petersen, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, 1: Quirmbach. Excused, 1: Green.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

APPOINTMENTS TO BOARDS AND COMMISSIONS

In accordance with Senate Rule 59, the following senators were appointed to subcommittees of standing committees on March 21, 2022, to investigate the appointment and reappointment of the following appointees:

AGRICULTURE

As a member of the Agricultural Development Board:

Lyle Borg – Rozenboom, Chair; Shipley and J. Smith

As members of the Iowa Grain Indemnity Fund Board:

Rhonda Shelman – Driscoll, Chair; Costello and Kinney
Michael Winter – Sweeney, Chair; Green and J. Smith

As a member of the State Soil Conservation and Water Quality Committee:

Dennis Carlson – Green, Chair; Ragan and Sweeney

APPROPRIATIONS

As members of the Enhance Iowa Board:

Rita Frahm – Guth, Chair; Dotzler and Reichman
Brad Leeper – Johnson, Chair; Dotzler and Lofgren
Steve Roesner – Kraayenbrink, Chair; Dotzler and Koelker
Valerie Van Kooten – Rozenboom, Chair; Dotzler and Kraayenbrink
Mary Wells – Garrett, Chair; Dotzler and Klimesh

COMMERCE

As members of the Credit Union Review Board:

Tyler Campbell – Schultz, Chair; Giddens and Williams
Jordan Hensley – Schultz, Chair; Giddens and Williams
Jami Weems – Schultz, Chair; Giddens and Williams

As a member of the Iowa Telecommunications and Technology Commission:

Bob Holz – Schultz, Chair; Giddens and Williams

EDUCATION

As members of the Iowa Autism Council:

Stephanie Boyle – Johnson, Chair; J. Smith and Sweeney
Pam Gronau – Johnson, Chair; J. Smith and Sweeney
Colin Wixted – Johnson, Chair; J. Smith and Sweeney

As members of the Early Childhood Iowa State Board:

Jennifer Banta – Kraayenbrink, Chair; Celsi and Zaun
Michael Linnenbrink – Kraayenbrink, Chair; Celsi and Zaun
Dawn Oliver Wiand – Kraayenbrink, Chair; Celsi and Zaun

As members of the Children's Behavioral Health System State Board:

Andrew Allen – J. Taylor, Chair; Carlin and Trone Garriott
Nathan Noble – J. Taylor, Chair; Carlin and Trone Garriott
Kari Price – J. Taylor, Chair; Carlin and Trone Garriott
Jason Sandholdt – J. Taylor, Chair; Carlin and Trone Garriott

As members of the State Board of Education:

Cindy Dietz – Sinclair, Chair; Goodwin and Quirmbach
Cassandra Halls – Sinclair, Chair; Goodwin and Quirmbach
Nathan Peterson – Sinclair, Chair; Goodwin and Quirmbach

As members of the Board of Educational Examiners:

Kathy Behrens – Cournoyer, Chair; Giddens and Rozenboom
Timothy McKinney – Cournoyer, Chair; Giddens and Rozenboom

As a member of the Iowa Higher Education Loan Authority:

Randy Fehr – Cournoyer, Chair; Quirmbach and Rozenboom

As members of the School Budget Review Committee:

Patricia Schroeder – Cournoyer, Chair; Rozenboom and J. Smith
Leland Tack – Cournoyer, Chair; Rozenboom and J. Smith

HUMAN RESOURCES

As members of the Board of Athletic Training:

Andrew Jedlicka – Green, Chair; Sweeney and Trone Garriott
Emily Reese – Green, Chair; Bolkcom and Johnson
Austin Steil – Garrett, Chair; Green and Trone Garriott

As members of the Board of Behavioral Science:

Nolan Byrnes – Johnson, Chair; Lofgren and Trone Garriott
Echo Kent – Lofgren, Chair; Bolkcom and Johnson
Kerry Lust – Sweeney, Chair; Rowley and Trone Garriott
Amy Mooney – Rowley, Chair; Green and Ragan
Blake Stephenson – Rowley, Chair; Lofgren and Mathis
Maria Valdovinos – Lofgren, Chair; Green and Ragan
Laura Wilcke – Garrett, Chair; Johnson and Ragan

As members of the Child Advocacy Board:

Ashley Baker – Johnson, Chair; Green and Ragan
Donald Logan – Green, Chair; Ragan and Rowley
Rick McIntosh – Costello, Chair; Edler and Jochum
William Owens – Costello, Chair; Bolkcom and Sweeney
Angela Stokes – Edler, Chair; Ragan and Sweeney

As members of the Commission of Persons with Disabilities:

Jessica Fasselius – Edler, Chair; Rowley and Trone Garriott
Adam Koch – Lofgren, Chair; Green and Trone Garriott
Clint Sargent – Sweeney, Chair; Bolkcom and Green
Beth Wilde – Green, Chair; Bolkcom and Lofgren

As members of the Healthy and Well Kids in Iowa (HAWK-I) Board:

Shawn Garrington – Green, Chair; Jochum and Lofgren
Mary Nelle Trefz – Green, Chair; Jochum and Rowley

As members of the Commission of Latino Affairs:

Jose Ayala – Rowley, Chair; Green and Jochum
Juan Himar Hernandez – Lofgren, Chair; Bolkcom and Edler
Isabel Yanez – Costello, Chair; Edler and Trone Garriott

As members of the Mental Health and Disability Services Commission:

Betsy Akin – Green, Chair; Jochum and Rowley
Teresa Daubitz – Green, Chair; Lofgren and Mathis
Sue Gehling – Lofgren, Chair; Green and Jochum
Jack Seward, Jr. – Rowley, Chair; Bolkcom and Sweeney
Cory Turner – Costello, Chair; Edler and Ragan
Kenneth Wayne – Edler, Chair; Sweeney and Trone Garriott

As members of the Board of Sign Language Interpreters and Transliterators:

Sarah Boury – Green, Chair; Bolkcom and Sweeney
Amanda Gallant – Rowley, Chair; Bolkcom and Johnson
Dylan Heuer – Johnson, Chair; Garrett and Trone Garriott

As members of the Commission on Tobacco Use Prevention and Control:

Lorene Mein – Garrett, Chair; Jochum and Johnson
Robert Nichols – Green, Chair; Lofgren and Ragan
Bridget Saffold – Lofgren, Chair; Green and Ragan

JUDICIARY

As a member of the Board of Corrections:

Denise Bubeck – Zaun, Chair; Petersen and Rowley

As members of the Drug Policy Advisory Council:

Jason Feaker – Rowley, Chair; Kinney and Schultz
David McDaniel – Johnson, Chair; Petersen and Shipley

As members of the State Judicial Nominating Commission:

Gwendolyn (Gwen) Ecklund – Zaun, Chair; Boulton and Rowley
Jeremy Kidd – Zaun, Chair; Boulton and Rowley
Kathleen Law – Zaun, Chair; Boulton and Johnson
Derek Muller – Zaun, Chair; Johnson and Petersen

As members of the Justice Advisory Board:

Dee Sandquist – J. Taylor, Chair; Bolkcom and Johnson
Monique Scarlett – Reichman, Chair; Bolkcom and J. Taylor

As members of the Iowa Law Enforcement Academy Council:

Gene Beinke – Dawson, Chair; Kinney and Schultz
Tiffany Hamilton-Howell – Dawson, Chair; Kinney and Schultz
Ricardo Martinez II – Dawson, Chair; Kinney and Sinclair
Elizabeth Quinn – Dawson, Chair; Kinney and Sinclair

As Chairperson of the Board of Parole:

William Bushell – Garrett, Chair; Bisignano and Johnson

As members of the Board of Parole:

William Bushell – Garrett, Chair; Bisignano and Johnson
Meredith Lamberti – Garrett, Chair; Bisignano and Johnson

LABOR AND BUSINESS RELATIONS

As a member of the Employment Appeal Board:

James Strohman – Schultz, Chair; Boulton and Driscoll

As members of the Plumbing and Mechanical Systems Board:

Kiya Boozell – Green, Chair; Guth and Jochum
Mike O'Day – Guth, Chair; Driscoll and Jochum
Shon Smith – J. Taylor, Chair; Jochum and Rowley
Randy Watts – Rowley, Chair; Guth and Jochum
Matthew Wyant – Driscoll, Chair; Green and Jochum

As Chair and a member of the Public Employment Relations Board:

Erik Helland – Dickey, Chair; Schultz and T. Taylor

As members of the Iowa Workforce Development Board:

Josh Cobbs – Schultz, Chair; Dotzler and Rowley
Carrie Duncan – Driscoll, Chair; Dotzler and Green
Kellie Gottner – Guth, Chair; Dotzler and J. Taylor
Rich Kurtenbach – J. Taylor, Chair; Dickey and Dotzler
Deborah Mauricio – Schultz, Chair; Dickey and Dotzler
Matthew Nicol – Green, Chair; Dotzler and Rowley

LOCAL GOVERNMENT

As members of the City Development Board:

Chris McKee – Williams, Chair; Lofgren and J. Smith
Dennis Plautz – Driscoll, Chair; Guth and T. Taylor

As a member of the County Finance Committee:

Jenny Blankenship – Garrett, Chair; Guth and Quirmbach

STATE GOVERNMENT

As members of the Accountancy Examining Board:

Allen Kockler – Goodwin, Chair; Bisignano and Brown
Michelle O'Neill – Goodwin, Chair; Bisignano and Brown
Jessica Richter – Goodwin, Chair; Bisignano and Brown

As members of the Commission on the Status of African Americans:

Aaron Sewell – Guth, Chair; Bisignano and Johnson
Whitney Smith – Guth, Chair; Bisignano and Johnson

As a member of the Alcoholic Beverages Commission:

Sara Winkleman – R. Smith, Chair; Bisignano and Johnson

As Administrator of the Alcoholic Beverages Division:

Stephen Larson – R. Smith, Chair; Bisignano and Johnson

As a member of the Architectural Examining Board:

Dan Dutcher – Guth, Chair; Bisignano and Johnson

As members of the Commission of Asian and Pacific Islander Affairs:

Caleb Lillquist – Guth, Chair; Bisignano and Johnson
Karlai Thornburg – Guth, Chair; Bisignano and Johnson
Shaochen Yu – Guth, Chair; Bisignano and Johnson

As a member of the Board of Barbering:

Maureen Hardy – Guth, Chair; Bisignano and Johnson

As a member of the Commission for the Blind:

Geneva Jacobsen – Brown, Chair; Celsi and Goodwin

As members of the Boiler and Pressure Vessel Board:

Bret Brecke – Brown, Chair; Celsi and Goodwin
Kenneth Lamb – Brown, Chair; Celsi and Goodwin
Daniel LaPole – Brown, Chair; Celsi and Goodwin
Lynne Rush – Brown, Chair; Celsi and Goodwin
Nathan Whipple – Brown, Chair; Celsi and Goodwin

As members of the Commission on Community Action Agencies:

Bobbi Baker-Maynes – Brown, Chair; Celsi and Goodwin
Kevin Brown – Brown, Chair; Celsi and Goodwin
John Murphy – Brown, Chair; Celsi and Goodwin

As members of the Board of Cosmetology Arts and Sciences:

Jeremy Kemp – Guth, Chair; Celsi and Johnson
Joshua Spencer – Guth, Chair; Celsi and Johnson

As members of the Commission of Deaf Services:

Tina Caloud – Guth, Chair; Celsi and Johnson
Bruce Kawahara – Guth, Chair; Celsi and Johnson

As members of the Board of Dentistry:

Gregory Ceraso – Goodwin, Chair; Brown and Giddens
Lisa Holst – Goodwin, Chair; Brown and Giddens
Thomas Peek – Goodwin, Chair; Brown and Giddens

As members of the Board of Dietetics:

Julie Eichenberger – Goodwin, Chair; Brown and Giddens
Philip Pitzen – Goodwin, Chair; Brown and Giddens
Nicholas Rouse – Goodwin, Chair; Brown and Giddens

As members of the Electrical Examining Board:

Colby Black – Goodwin, Chair; Brown and Giddens
Sara Fasching – Goodwin, Chair; Brown and Giddens
Jonathan Gettler – Goodwin, Chair; Brown and Giddens
Jeremy Price – Goodwin, Chair; Brown and Giddens

As members of the Elevator Safety Board:

Candace Biddle – Reichman, Chair; Giddens and Johnson
Craig Clabaugh – Reichman, Chair; Giddens and Johnson
Kerry Dixon – Reichman, Chair; Giddens and Johnson
Troy Tilleraas – Reichman, Chair; Giddens and Johnson
Michael Wallace – Reichman, Chair; Giddens and Johnson

As members of the Engineering and Land Surveying Examining Board:

Paul Herold – Reichman, Chair; Giddens and Johnson
Jack Jones – Reichman, Chair; Giddens and Johnson

As members of the Iowa Ethics and Campaign Disclosure Board:

Daniel Jessop – R. Smith, Chair; Cournoyer and Giddens
Leah Rodenberg – R. Smith, Chair; Cournoyer and Giddens

As members of the Board of Hearing Aid Specialists:

Rick Knudson – Cournoyer, Chair; Boulton and Koelker
Molly Parker – Cournoyer, Chair; Boulton and Koelker
Tricia Veik – Cournoyer, Chair; Boulton and Koelker

As members of the Interior Design Examining Board:

Amy Guhl – Cournoyer, Chair; Boulton and Koelker
Todd Mithelman – Cournoyer, Chair; Boulton and Koelker

As a member of the Investment Board of the Iowa Public Employees' Retirement System:

Tami Loge – R. Smith, Chair; Boulton and Goodwin

As members of the Landscape Architectural Examining Board:

Colleen Byrnes – Johnson, Chair; Boulton and Guth
M. Martz – Johnson, Chair; Boulton and Guth
Brenda Nelson – Johnson, Chair; Boulton and Guth

As members of the Iowa Lottery Authority Board of Directors:

Sherrae Hanson – R. Smith, Chair; Boulton and Cournoyer
Dana Wingert – R. Smith, Chair; Boulton and Cournoyer

As members of the Board of Massage Therapy:

Douglas Dollison – Johnson, Chair; Bisignano and Guth
Amy Heinz – Johnson, Chair; Bisignano and Guth
Jacob Schrader – Johnson, Chair; Bisignano and Guth
LeAnn Stevens – Johnson, Chair; Bisignano and Guth

As members of the Board of Medicine:

Eugene Cherny – Schultz, Chair; Bisignano and Dawson
Rose Kleyweg Mitchell – Schultz, Chair; Bisignano and Dawson
Jason Meyers – Schultz, Chair; Bisignano and Dawson
Vickie Pyevich – Schultz, Chair; Bisignano and Dawson
Joyce Vista-Wayne – Schultz, Chair; Bisignano and Dawson

As members of the Board of Mortuary Science:

Maria Lundberg – Schultz, Chair; Bisignano and Dawson
David Moore – Schultz, Chair; Bisignano and Dawson

As a member of the Commission of Native American Affairs:

John Big Eagle, Jr. – Schultz, Chair; Bisignano and Dawson

As members of the Board of Nursing:

Jacklyn Barber – Reichman, Chair; Celsi and Johnson
Brian Feist – Reichman, Chair; Celsi and Johnson
Gordon Goettsch – Reichman, Chair; Celsi and Johnson
Casey Kennavy – Reichman, Chair; Celsi and Johnson

As members of the Board of Nursing Home Administrators:

Patricia Ross – Schultz, Chair; Celsi and Dawson
Tracy Trotter – Schultz, Chair; Celsi and Dawson
Devon Wood – Schultz, Chair; Celsi and Dawson

As a member of the Board of Optometry

Heidi Wood – Brown, Chair; Celsi and R. Smith

As members of the Board of Pharmacy:

Robert Egeland – Koelker, Chair; Celsi and Cournoyer
Dane Nealson – Koelker, Chair; Celsi and Cournoyer
Joan Skogstrom – Koelker, Chair; Celsi and Cournoyer
Kathryn (Kathy) Stone – Koelker, Chair; Celsi and Cournoyer

As members of the Board of Physical and Occupational Therapy:

Holly Little – Cournoyer, Chair; Giddens and Koelker
Brett Speirs – Cournoyer, Chair; Giddens and Koelker

As members of the Board of Physician Assistants:

Mona Alqulali – Koelker, Chair; Cournoyer and Giddens
Kevin de Regnier – Koelker, Chair; Cournoyer and Giddens
Laura Delaney – Koelker, Chair; Cournoyer and Giddens
Amber Houge – Koelker, Chair; Cournoyer and Giddens
Michael Schnurr – Koelker, Chair; Cournoyer and Giddens

As members of the Board of Podiatry:

Theresa Hughes – Johnson, Chair; Giddens and Schultz
Eugene Nassif, Jr. – Johnson, Chair; Giddens and Schultz
Kelsey Sukovaty – Johnson, Chair; Giddens and Schultz

As members of the Board of Psychology:

Justin Rhode – Dawson, Chair; Giddens and Schultz
Lisa Streyffeler – Dawson, Chair; Giddens and Schultz
Sara Swansen – Dawson, Chair; Giddens and Schultz

As members of the Iowa Public Information Board:

Daniel Breitbarth – Dawson, Chair; Jochum and Schultz
Emil Giovannetti – Dawson, Chair; Jochum and Schultz
James McCrea – Dawson, Chair; Jochum and Schultz
Monica McHugh – Dawson, Chair; Jochum and Schultz
Jackie Schmillen – Dawson, Chair; Jochum and Schultz

As a member of the Board of Trustees of the Iowa Department of Public Safety Peace Officers' Retirement, Accident, and Disability System:

Mark Oiler – Dawson, Chair; Jochum and Schultz

As Administrator of the State Racing and Gaming Commission:

Brian Ohorilko – R. Smith, Chair; Bisignano and Dawson

As a member of the State Racing and Gaming Commission:

Julie Andres – R. Smith, Chair; Bisignano and Dawson

As members of the Real Estate Appraiser Examining Board:

Loretta Laubach – Cournoyer, Chair; Bisignano and Koelker
Cody Seeley – Cournoyer, Chair; Bisignano and Koelker

As members of the Board of Respiratory Care and Polysomnography:

Cynthia Duncan – Johnson, Chair; Guth and Jochum
Thomas Graham – Johnson, Chair; Guth and Jochum
Benjamin Jagow – Johnson, Chair; Guth and Jochum

As a member of the Board of Social Work:

Aaron Culley – Johnson, Chair; Guth and Jochum

As members of the Board of Speech Pathology and Audiology:

Jordan Cook – Cournoyer, Chair; Jochum and Koelker
Kevin Kock – Cournoyer, Chair; Jochum and Koelker
Stacy Robinson – Cournoyer, Chair; Jochum and Koelker

As a member of the Iowa Board of Veterinary Medicine:

Scott Shuey – Cournoyer, Chair; Jochum and Koelker

As members of the Commission on the Status of Women:

Andrew Lauver – Koelker, Chair; Cournoyer and Jochum
Esperance Nibizi – Koelker, Chair; Cournoyer and Jochum
Sherill Whisenand – Koelker, Chair; Cournoyer and Jochum

TRANSPORTATION

As members of the State Transportation Commission:

Raymond Gaesser – Driscoll, Chair; Giddens and Zumbach
Linda Juckette – Rozenboom, Chair; Shipley and T. Taylor

VETERANS AFFAIRS

As Executive Director of the Department of Veterans Affairs:

Steven Lukan – Lofgren, Chair; Giddens and Reichman

As members of the Commission of Veterans Affairs:

Elizabeth Ledvina – Reichman, Chair; Giddens and Green
George Mosby – Green, Chair; Dotzler and Lofgren
Carol Whitmore – Lofgren, Chair; Giddens and Reichman

WAYS AND MEANS

As members of the Economic Development Authority:

Doug Boone – Dawson, Chair; Dotzler and Goodwin
Mark Kittrell – Dawson, Chair; Dotzler and Goodwin
Pankaj Monga – Dawson, Chair; Dotzler and Goodwin
Jennifer Steffensmeier – Dawson, Chair; Dotzler and Goodwin

As members of the Iowa Great Places Board:

Ryan Bosch – Sweeney, Chair; Green and T. Taylor
Barbara Determan – Sweeney, Chair; Green and T. Taylor
Duane Hagerty – Green, Chair; Sweeney and T. Taylor
Darryl High – Green, Chair; Sweeney and T. Taylor
Jacque Rahe – Green, Chair; Sweeney and T. Taylor

AMENDMENT FILED

S–5073 H.F. 626 Ways and Means

JOURNAL OF THE SENATE

SEVENTY-SECOND CALENDAR DAY
FORTY-SECOND SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, March 22, 2022

The Senate met in regular session at 9:02 a.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Johnson, member of the Senate from Buchanan County, Independence, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Elizabeth Hunter.

The Journal of Monday, March 21, 2022, was approved.

The Senate stood at ease at 9:09 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 11:00 a.m., President Chapman presiding.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2372.

Senate File 2372

On motion of Senator Dawson, **Senate File 2372**, a bill for an act relating to state taxation and administration by modifying sales and use taxes, individual and corporate income taxes, the automobile rental excise tax, the franchise tax, and the insurance premiums tax, and including effective date, applicability, and retroactive applicability provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Wahls asked and received unanimous consent that action on **Senate File 2372** be **deferred**.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Nunn, until he arrives, on request of Senator Whitver.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2540 and 2466.

House File 2540

On motion of Senator Williams, **House File 2540**, a bill for an act relating to the sale of travel insurance, with report of committee recommending passage, was taken up for consideration.

Senator Williams moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2540), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2466

On motion of Senator R. Smith, **House File 2466**, a bill for an act concerning signature requirements for county supervisor candidate nominations and including effective date provisions, with report of committee recommending passage, was taken up for consideration.

Senator R. Smith moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2466), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2466** and **2540** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2371.

Senate File 2371

On motion of Senator Dawson, **Senate File 2371**, a bill for an act relating to state and local finances and the duties and procedures of the department of revenue by providing for electronic filing, communications, and records, modifying transfer tax remittances, the assessment of property, the collection of debt, the refunds of certain fuel taxes, and the taxation of pass-through entities, reducing inheritance taxes for unknown heirs, establishing salaries, providing for a fee, making appropriations, and providing penalties, and including effective date, applicability, and retroactive applicability provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Dawson asked and received unanimous consent that **House File 2552** be **substituted** for **Senate File 2371**.

House File 2552

On motion of Senator Dawson, **House File 2552**, a bill for an act relating to state and local finances and the duties and procedures of the department of revenue by providing for electronic filing, communications, and records, modifying transfer tax remittances, the assessment of property, the collection of debt, the refunds of certain fuel taxes, and the taxation of pass-through entities, reducing inheritance taxes for unknown heirs, establishing salaries, providing for a fee, making appropriations, and providing penalties, and including effective date, applicability, and retroactive applicability provisions, was taken up for consideration.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2552), the vote was:

Yeas, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun	Zumbach	

Nays, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Absent, 1:

Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Dawson asked and received unanimous consent that **Senate File 2371** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2552** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2210.

Senate File 2210

On motion of Senator Costello, **Senate File 2210**, a bill for an act relating to health care employment agencies, and providing penalties, placed on the Unfinished Business Calendar on March 17, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Costello offered amendment S–5074, filed by him from the floor, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5074 was adopted by a voice vote.

Senator Costello asked and received unanimous consent that **House File 2521** be **substituted** for **Senate File 2210**.

House File 2521

On motion of Senator Costello, **House File 2521**, a bill for an act relating to health care employment agencies, and providing penalties, was taken up for consideration.

Senator Costello moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2521), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Costello asked and received unanimous consent that **Senate File 2210** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2521** be **immediately messaged** to the House.

President Pro Tempore Zaun took the chair at 11:25 a.m.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2140 and 2276.

Senate File 2140

On motion of Senator Koelker, **Senate File 2140**, a bill for an act relating to airport registration and site approval by the department of transportation, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Koelker asked and received unanimous consent that **House File 2124** be **substituted** for **Senate File 2140**.

House File 2124

On motion of Senator Koelker, **House File 2124**, a bill for an act relating to airport registration and site approval by the department of transportation, was taken up for consideration.

Senator Koelker moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2124), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Koelker asked and received unanimous consent that **Senate File 2140** be **withdrawn** from further consideration of the Senate.

Senate File 2276

On motion of Senator Williams, **Senate File 2276**, a bill for an act relating to direct health care agreements, and including effective date and applicability provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Williams offered amendment S–5075, filed by him from the floor, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5075 was adopted by a voice vote.

Senator Williams asked and received unanimous consent that **House File 2200** be **substituted** for **Senate File 2276**.

House File 2200

On motion of Senator Williams, **House File 2200**, a bill for an act relating to direct health care agreements, and including effective date and applicability provisions, was taken up for consideration.

Senator Williams moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2200), the vote was:

Yeas, 33:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott

Absent, 1:

Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Williams asked and received unanimous consent that **Senate File 2276** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2124** and **2200** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2179.

Senate File 2179

On motion of Senator Dawson, **Senate File 2179**, a bill for an act relating to penalties for the manufacture, delivery, or possession with the intent to manufacture or deliver heroin, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Dawson asked and received unanimous consent that **House File 2462** be **substituted** for **Senate File 2179**.

House File 2462

On motion of Senator Dawson, **House File 2462**, a bill for an act relating to penalties for the manufacture, delivery, or possession with the intent to manufacture or deliver heroin, was taken up for consideration.

Senator Bolkcom offered amendment S–5079, filed by Senator Bolkcom, et al., from the floor to page 1 and amending the title page of the bill.

Senator Dawson raised the point of order that amendment S–5079 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5079 out of order.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2462), the vote was:

Yeas, 44:

Bisignano	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, 5:

Bolkcom	Celsi	Hogg	Petersen
Quirmbach			

Absent, 1:

Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Dawson asked and received unanimous consent that **Senate File 2179** be **withdrawn** from further consideration of the Senate.

CONSIDERATION OF RESOLUTION
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Joint Resolution 15.

Senate Joint Resolution 15

On motion of Senator R. Smith, **Senate Joint Resolution 15**, a joint resolution proposing an amendment to the Constitution of the State of Iowa relating to the gubernatorial line of succession, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator R. Smith asked and received unanimous consent that **House Joint Resolution 2005** be **substituted** for **Senate Joint Resolution 15**.

House Joint Resolution 2005

On motion of Senator R. Smith, **House Joint Resolution 2005**, a joint resolution proposing an amendment to the Constitution of the State of Iowa relating to the gubernatorial line of succession, was taken up for consideration.

Senator R. Smith moved that the resolution be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the resolution was read the last time.

House Joint Resolution 2005, a joint resolution proposing an amendment to the Constitution of the State of Iowa relating to the gubernatorial line of succession. BE IT RESOLVED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA: Section 1. The following amendment to the Constitution of the State of Iowa is proposed: Section 17 of Article IV of the Constitution of the State of Iowa is repealed and the following adopted in lieu thereof: Sec. 17. **Lieutenant governor or lieutenant governor-elect to become or act as governor or governor-elect.** If there is a temporary disability of the governor, the lieutenant governor shall act as governor until the disability is removed, or the governor dies, resigns, or is removed from office. In case of the death, resignation, or removal from office of the governor, the lieutenant governor shall become governor for the remainder of the term, which shall create a vacancy in the office of lieutenant governor. This section shall also apply, as appropriate, to the governor-elect and the lieutenant governor-elect. Sec. 2. REFERRAL AND PUBLICATION. The foregoing proposed amendment to the Constitution of the State of Iowa is referred to the general assembly to be chosen at the next general election for members of the general assembly, and shall be published as provided by law for three consecutive months previous to the date of that election. This joint resolution proposes an amendment to the Constitution of the State of Iowa relating to the gubernatorial line of succession. The amendment creates a system of succession in the case of a permanent or temporary disability of the governor or governor-elect. In the case of a temporary disability of the governor or governor-elect, the lieutenant governor or lieutenant governor-elect shall act as

governor or governor-elect until the disability is removed, or the governor dies, resigns, or is removed from office. In the case of the death, resignation, or removal from office of the governor or governor-elect, the lieutenant governor or lieutenant governor-elect shall become governor or governor-elect for the residue of the term, and the office of lieutenant governor shall become vacant. The resolution, if adopted, would be published and then referred to the next general assembly (90th) for adoption, before being submitted to the electorate for ratification.

On the question "Shall the resolution be adopted?" (H.J.R. 2005), the vote was:

Yeas, 46:

Bolkcom	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Petersen
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, 3:

Bisignano	Hogg	Quirmbach

Absent, 1:

Nunn

The resolution, having received a constitutional majority, was declared to have been adopted by the Senate and the title was agreed to.

WITHDRAWN

Senator R. Smith asked and received unanimous consent that **Senate Joint Resolution 15** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Joint Resolution 2005** and **House File 2462** be **immediately messaged** to the House.

President Chapman took the chair at 12:03 p.m.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2363 and 2294.

Senate File 2363

On motion of Senator Reichman, **Senate File 2363**, a bill for an act relating to the requirements for a sex offender to be granted a modification of sex offender registry requirements, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Reichman offered amendment S–5077, filed by him from the floor, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5077 was adopted by a voice vote.

Senator Reichman moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2363), the vote was:

Yeas, 48:

Bisignano	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Petersen	Quirmbach	Ragan	Reichman

Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, 1:

Bolkcom

Absent, 1:

Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2294

On motion of Senator Zaun, **Senate File 2294**, a bill for an act relating to nonsubstantive Code corrections, and including retroactive applicability provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Zaun offered amendment S–5010, filed by the committee on Judiciary on February 17, 2022, to pages 34–35 of the bill, and moved its adoption.

Amendment S–5010 was adopted by a voice vote.

Senator Zaun asked and received unanimous consent that **House File 2463** be **substituted** for **Senate File 2294**.

House File 2463

On motion of Senator Zaun, **House File 2463**, a bill for an act relating to nonsubstantive Code corrections, and including retroactive applicability provisions, was taken up for consideration.

Senator Zaun moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2463), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Zaun asked and received unanimous consent that **Senate File 2294** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2363** and **House File 2463** be **immediately messaged** to the House.

RECESS

On motion of Senator Whitver, the Senate recessed at 12:12 p.m. until 2:30 p.m.

RECONVENED

The Senate reconvened at 2:39 p.m., President Chapman presiding.

The Senate stood at ease at 2:40 p.m. until the fall of the gavel for the purpose of a Democratic party caucus.

The Senate resumed session at 2:53 p.m., President Chapman presiding.

BUSINESS PENDING

Senate File 2372

The Senate resumed consideration of **Senate File 2372**, a bill for an act relating to state taxation and administration by modifying sales and use taxes, individual and corporate income taxes, the franchise tax, and the insurance premiums tax, and including effective date, applicability, and retroactive applicability provisions, previously deferred.

Senator Dawson withdrew amendment S–5076, filed by him from the floor to pages 1–3 and 6–8 of the bill.

Senator Dawson offered amendment S–5078, filed by him from the floor to pages 1–4 and 6–8 and amending the title page of the bill, and moved its adoption.

Amendment S–5078 was adopted by a voice vote.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2372), the vote was:

Yeas, 43:

Bisignano	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Mathis
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley

Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Whitver
Williams	Zaun	Zumbach	

Nays, 6:

Bolkcom	Dotzler	Giddens	Hogg
Lykam	Wahls		

Absent, 1:

Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2372** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 3:17 p.m. until 9:00 a.m., Wednesday, March 23, 2022.

APPENDIX

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Shirley Imsland, Radcliffe—For celebrating her 90th birthday. Senator Sweeney.

Joyce Wheeler, Martelle—For celebrating her 90th birthday. Senator Koelker.

SUBCOMMITTEE ASSIGNMENTS

House File 853

WAYS AND MEANS: Brown, Chair; Dickey and Jochum

House File 2379

STATE GOVERNMENT: Cournoyer, Chair; Bisignano and R. Smith

House File 2538

STATE GOVERNMENT: Cournoyer, Chair; Jochum and R. Smith

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of Candace Biddle for confirmation as a member of the Elevator Safety Board from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

AMENDMENTS FILED

S–5074	S.F.	2210	Mark Costello
S–5075	S.F.	2276	Craig Williams
S–5076	S.F.	2372	Dan Dawson
S–5077	S.F.	2363	Jeff Reichman
S–5078	S.F.	2372	Dan Dawson
S–5079	H.F.	2462	Joe Bolkcom
			Janet Petersen
			William A. Dotzler, Jr.
			Todd Taylor
			Jackie Smith
			Claire Celsi
			Pam Jochum
			Zach Wahls
			Tony Bisignano

JOURNAL OF THE SENATE

SEVENTY-THIRD CALENDAR DAY
FORTY-THIRD SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, March 23, 2022

The Senate met in regular session at 9:06 a.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Williams, member of the Senate from Carroll County, Manning, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Thomas Knudsen.

The Journal of Tuesday, March 22, 2023, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 22, 2022, **passed** the following bills in which the concurrence of the House was asked:

Senate File 384, a bill for an act allowing counties to enter into agreements to jointly share a county assessor.

Senate File 2232, a bill for an act relating to the sale, lease, or rental of water treatment systems and including effective date and applicability provisions.

Senate File 2245, a bill for an act providing a personal use exemption from licensing requirements of the Meat and Poultry Inspection Act.

Senate File 2296, a bill for an act relating to a peace officer's search of garbage placed outside of a person's residence for waste collection in a publicly accessible area.

ALSO: That the House has on March 22, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2490, a bill for an act relating to probate indigent defense fees and trial transcript fees.

Read first time and attached to **companion Senate File 2315**.

House File 2554, a bill for an act relating to adding functional family therapy and multisystemic therapy for youth as covered services under the Medicaid program.

Read first time and referred to committee on **Appropriations**.

House File 2555, a bill for an act establishing the cybersecurity simulation training center at the Iowa state university of science and technology.

Read first time and referred to committee on **Commerce**.

House File 2557, a bill for an act relating to transportation and other infrastructure-related appropriations to the department of transportation, including allocation and use of moneys from the road use tax fund and the primary road fund.

Read first time and referred to committee on **Appropriations**.

House File 2558, a bill for an act relating to appropriations to the judicial branch.

Read first time and referred to committee on **Appropriations**.

House File 2559, a bill for an act relating to appropriations to the justice system.

Read first time and referred to committee on **Appropriations**.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:10 a.m. until the completion of a meeting of the committee on Rules and Administration.

RECONVENED

The Senate reconvened at 9:14 a.m., President Chapman presiding.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 107.

Senate Resolution 107

On motion of Senator Edler, **Senate Resolution 107**, a resolution to honor Joshua William Bronsink, was taken up for consideration.

Senator Edler moved the adoption of Senate Resolution 107, which motion prevailed by a voice vote.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 108.

Senate Resolution 108

On motion of Senator Sweeney, **Senate Resolution 108**, a resolution recognizing National Agriculture Week, with report of committee recommending passage, was taken up for consideration.

Senator Edler moved the adoption of Senate Resolution 108, which motion prevailed by a voice vote.

The Senate stood at ease at 9:24 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 11:18 a.m., President Chapman presiding.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2131.

Senate File 2131

On motion of Senator Guth, **Senate File 2131**, a bill for an act relating to employment security benefits, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Wahls asked and received unanimous consent that action on **Senate File 2131** be **deferred**.

CONSIDERATION OF BILLS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2436 and 2167.

House File 2436

On motion of Senator Klimesh, **House File 2436**, a bill for an act relating to public safety answering point cost and expense data collected from county joint 911 service boards, with report of committee recommending passage, was taken up for consideration.

Senator Klimesh moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2436), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Reichman

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2167

On motion of Senator Sinclair, **House File 2167**, a bill for an act relating to the definition of autism spectrum disorder for purposes of certain health care coverage, making conforming changes, and including applicability provisions, with report of committee recommending passage, was taken up for consideration.

Senator Sinclair moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2167), the vote was:

Yeas, 50:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg

Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, none.

Absent, none.

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2167** and **2436** be **immediately messaged** to the House.

UNFINISHED BUSINESS
(Deferred April 28, 2021)

House File 364

The Senate resumed consideration of **House File 364**, a bill for an act relating to prohibited conduct by athlete agents and making penalties applicable, deferred April 28, 2021.

Senator Boulton withdrew amendment S–3179, filed by him on April 28, 2021, to page 2 and amending the title page of the bill.

Senator Johnson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 364), the vote was:

Yeas, 50:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh

Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, none.

Absent, none.

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2370.

Senate File 2370

On motion of Senator Dawson, **Senate File 2370**, a bill for an act relating to aircraft, including special certificates issued to aircraft manufacturers, transporters, and dealers, and sales tax exemptions associated with aircraft, providing fees, making penalties applicable, and including effective date and applicability provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2370), the vote was:

Yeas, 48:

Bolkcom	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis

Nunn	Petersen	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, 2:

Bisignano	Quirmbach

Absent, none.

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2370** and **House File 364** be **immediately messaged** to the House.

President Pro Tempore Zaun took the chair at 11:48 a.m.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2228, 2236, and 2293.

Senate File 2228

On motion of Senator Shipley, **Senate File 2228**, a bill for an act relating to the transfer of ownership of certain foreign vehicles, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Shipley asked and received unanimous consent that **House File 2341** be **substituted** for **Senate File 2228**.

House File 2341

On motion of Senator Shipley, **House File 2341**, a bill for an act relating to the transfer of ownership of certain foreign vehicles, was taken up for consideration.

Senator Shipley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2341), the vote was:

Yeas, 50:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, none.

Absent, none.

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Shipley asked and received unanimous consent that **Senate File 2228** be **withdrawn** from further consideration of the Senate.

Senate File 2236

On motion of Senator Garrett, **Senate File 2236**, a bill for an act relating to post-arrest release after an initial appearance for persons taken into custody or arrested for certain sexual abuse offenses and no-contact orders, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Garrett asked and received unanimous consent that **House File 2079** be **substituted** for **Senate File 2236**.

House File 2079

On motion of Senator Garrett, **House File 2079**, a bill for an act relating to post-arrest release after an initial appearance for persons taken into custody or arrested for certain sexual abuse offenses and no-contact orders, was taken up for consideration.

Senator Garrett moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2079), the vote was:

Yeas, 50:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, none.

Absent, none.

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Garrett asked and received unanimous consent that **Senate File 2236** be **withdrawn** from further consideration of the Senate.

Senate File 2293

On motion of Senator Shipley, **Senate File 2293**, a bill for an act relating to the Iowa drug policy coordinator and the Iowa drug policy advisory council, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Shipley asked and received unanimous consent that **House File 2367** be **substituted** for **Senate File 2293**.

House File 2367

On motion of Senator Shipley, **House File 2367**, a bill for an act relating to the Iowa drug policy coordinator and the Iowa drug policy advisory council, was taken up for consideration.

Senator Shipley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2367), the vote was:

Yeas, 50:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, none.

Absent, none.

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Shipley asked and received unanimous consent that **Senate File 2293** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2079**, **2341**, and **2367** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2087 and 2330.

Senate File 2087

On motion of Senator Johnson, **Senate File 2087**, a bill for an act relating to the comprehensive financial report of the state and including effective date provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Johnson asked and received unanimous consent that **House File 2126** be **substituted** for **Senate File 2087**.

House File 2126

On motion of Senator Johnson, **House File 2126**, a bill for an act relating to the comprehensive financial report of the state and including effective date provisions, was taken up for consideration.

Senator Johnson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2126), the vote was:

Yeas, 50:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, none.

Absent, none.

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Johnson asked and received unanimous consent that **Senate File 2087** be **withdrawn** from further consideration of the Senate.

Senate File 2330

On motion of Senator J. Taylor, **Senate File 2330**, a bill for an act relating to the submission of a groundwater hazard statement, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator J. Taylor offered amendment S–5081, filed by him from the floor to page 2 of the bill, and moved its adoption.

Amendment S–5081 was adopted by a voice vote.

Senator J. Taylor asked and received unanimous consent that **House File 2343** be **substituted** for **Senate File 2330**.

House File 2343

On motion of Senator J. Taylor, **House File 2343**, A bill for an act relating to the submission of a groundwater hazard statement, was taken up for consideration.

Senator J. Taylor moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2343), the vote was:

Yeas, 50:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, none.

Absent, none.

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator J. Taylor asked and received unanimous consent that **Senate File 2330** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2126** and **2343** be **immediately messaged** to the House.

The Senate stood at ease at 12:16 p.m. until the fall of the gavel for the purpose of a Democratic party caucus.

The Senate resumed session at 2:32 p.m., President Chapman presiding.

QUORUM CALL

Senator Klimesh requested a nonrecord roll call to determine that a quorum was present.

The Chair declared a quorum present.

SPECIAL GUEST

President Chapman introduced to the Senate chamber Thomas Greene, former member of the Senate from Des Moines County, Burlington, Iowa.

The Senate rose and expressed its welcome.

BUSINESS PENDING

Senate File 2131

The Senate resumed consideration of **Senate File 2131**, a bill for an act relating to employment security benefits, previously deferred.

Senator Schultz offered amendment S–5080, filed by Senators Schultz and Guth from the floor, striking and replacing everything after the enacting clause of the bill.

Senator Boulton offered amendment S–5085, filed by Senator Boulton, et al., from the floor to pages 2 and 6 of amendment S–5080, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5085 to amendment S–5080 be adopted? (S.F. 2131), the vote was:

Yeas, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Nays, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Absent, none.

Amendment S–5085 to amendment S–5080 lost.

Senator J. Smith offered amendment S–5084, filed by her from the floor to page 3 of amendment S–5080, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5084 to amendment S–5080 be adopted? (S.F. 2131), the vote was:

Yeas, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Nays, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Absent, none.

Amendment S–5084 to amendment S–5080 lost.

Senator Boulton offered amendment S–5083, filed by him from the floor to page 3 of amendment S–5080, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5083 to amendment S–5080 be adopted? (S.F. 2131), the vote was:

Yeas, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Nays, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Absent, none.

Amendment S–5083 to amendment S–5080 lost.

The Senate stood at ease at 3:27 p.m. until the fall of the gavel.

The Senate resumed session at 5:29 p.m., President Chapman presiding.

HOUSE MESSAGE RECEIVED AND CONSIDERED

The following message was received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 23, 2022, **passed** the following bill in which the concurrence of the Senate is asked:

House File 2355, a bill for an act relating to employment security benefits.

Read first time and attached to **similar Senate File 2131**.

The Senate resumed consideration of Senate File 2131.

Senator Schultz asked and received unanimous consent to withdraw amendment S–5080.

Senator Guth offered amendment S–5086, filed by Senators Guth and Schultz from the floor, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5086 was adopted by a voice vote.

Senator Guth asked and received unanimous consent that **House File 2355** be **substituted** for **Senate File 2131**.

House File 2355

On motion of Senator Guth, **House File 2355**, a bill for an act relating to employment security benefits, was taken up for consideration.

Senator Schultz offered amendment S–5087, filed by Senators Schultz and Guth from the floor to page 3 of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5087 be adopted?" (H.F. 2355), the vote was:

Yeas, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Nays, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Absent, none.

Amendment S–5087 was adopted.

Senator Guth moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2355), the vote was:

Yeas, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams
Zaun	Zumbach		

Nays, 20:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, none.

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Guth asked and received unanimous consent that **Senate File 2131** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2355** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 6:52 p.m. until 9:00 a.m., Thursday, March 24, 2022.

APPENDIX

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Cecilia Bruning, Red Oak—For celebrating her 96th birthday. Senator Koelker.

Harlan "Bud" Hockenberg—For being awarded the Iowa's Distinguished Foreign Service Medal. Senator Nunn.

Edwin "Ed" Skinner—For being awarded the Iowa's Distinguished Foreign Service Medal. Senator Nunn.

REPORT OF COMMITTEE MEETING

RULES AND ADMINISTRATION

Convened: Wednesday, March 23, 2022, 9:10 a.m.

Members Present: Whitver, Chair; Chapman, Vice Chair; Wahls, Ranking Member; Bolkcom, Brown, Ragan, Sinclair, R. Smith, Zaun, and Zumbach.

Members Absent: Jochum (excused).

Committee Business: SR 107 and SR 108.

Adjourned: 9:15 a.m.

INTRODUCTION OF RESOLUTIONS

Senate Resolution 107, by committee on Rules and Administration, a resolution to honor Joshua William Bronsink.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

Senate Resolution 108, by Sweeney, a resolution recognizing National Agriculture Week.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

Senate Resolution 109, by Nunn, a resolution urging the President of the United States to consider measures to ensure America's long-term energy affordability, security, and leadership and progress, including the continued operation of existing oil and natural gas pipelines, the construction of new pipelines, and an end to restrictions on developing our nation's onshore and offshore oil and natural gas resources.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

FINAL COMMITTEE REPORTS OF BILL ACTION

RULES AND ADMINISTRATION

Bill Title: SENATE RESOLUTION 107, a resolution to honor Joshua William Bronsink.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 10: Whitver, Chapman, Wahls, Bolkcom, Brown, Ragan, Sinclair, R. Smith, Zaun, and Zumbach. Nays, none. Excused, 1: Jochum.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE RESOLUTION 108, a a resolution recognizing National Agriculture Week.

Recommendation: DO PASS.

Final Vote: Yeas, 10: Whitver, Chapman, Wahls, Bolkcom, Brown, Ragan, Sinclair, R. Smith, Zaun, and Zumbach. Nays, none. Excused, 1: Jochum.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of Laura Wilcke for confirmation as a member of the Board of Behavioral Science from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

BILLS ENROLLED, SIGNED, AND SENT TO GOVERNOR

The Secretary of the Senate submitted the following report:

MR. PRESIDENT: The Secretary of the Senate respectfully reports that the following bills have been enrolled, signed by the President of the Senate and the Speaker of the House, and presented to the Governor for her approval on this 23rd day of March, 2022.

Senate Files 2119, 2266, and 2325.

W. CHARLES SMITHSON
Secretary of the Senate

BILLS SIGNED BY THE GOVERNOR

A communication was received announcing that on March 23, 2022, the Governor approved and transmitted to the Secretary of State the following bills:

Senate File 2119 – Relating to cosmetology and the practice of threading.

Senate File 2266 – Concerning compensation and benefits limits, relating to the earnings limitation for retirees under the Iowa public employees' retirement system and compensation limits for school corporation board members, and including effective date provisions.

Senate File 2325 – Related to matters under the purview of the economic development authority including the high quality jobs program, the Iowa energy center, and the workforce housing tax incentive program, and including effective date and retroactive applicability provisions.

AMENDMENTS FILED

S–5080	S.F.	2131	Dennis Guth Jason Schultz
S–5081	S.F.	2330	Jeff Taylor
S–5082	H.F.	781	Chris Cournoyer
S–5083	S.F.	2131	Nate Boulton
S–5084	S.F.	2131	Jackie Smith
S–5085	S.F.	2131	Nate Boulton William A. Dotzler, Jr. Tony Bisignano Pam Jochum Todd Taylor

S–5086	S.F.	2131	Dennis Guth Jason Schultz
S–5087	H.F.	2355	Dennis Guth Jason Schultz

JOURNAL OF THE SENATE

SEVENTY-FOURTH CALENDAR DAY
FORTY-FOURTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, March 24, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Dennis Guth, member of the Senate from Hancock County, Klemme, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Jackson Maddox.

The Journal of Wednesday, March 23, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 23, 2022, **amended and passed** the following bill in which the concurrence of the Senate is asked:

Senate File 522, a bill for an act relating to older individuals and dependent adults and creating certain criminal offenses and civil actions, and providing penalties. (S–5088)

ALSO: That the House has on March 23, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2384, a bill for an act relating to pharmacy benefits managers, pharmacies, and prescription drug benefits, and including applicability provisions.

Read first time and attached to **similar Senate File 2231**.

House File 2560, a bill for an act relating to and making appropriations involving state government entities involved with agriculture, natural resources, and environmental protection, and making related statutory changes, and including effective date provisions.

Read first time and referred to committee on **Appropriations**.

SPECIAL GUEST

Senator Nunn introduced to the Senate chamber Yinam Cohen, Consul General of Israel to the Midwest.

Consul General Cohen addressed the Senate with brief remarks.

The Senate rose and expressed its welcome.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:18 a.m. until 3:00 p.m.

RECONVENED

The Senate reconvened at 3:01 p.m., President Chapman presiding.

BILLS PLACED ON UNFINISHED BUSINESS

Senator Whitver asked and received unanimous consent that the following bills be placed on the Unfinished Business Calendar:

HF 604
HF 724
HF 771
HF 736
HF 803
HF 825
HF 2080
HF 2081
HF 2083
HF 2097
HF 2123
HF 2127
HF 2130
HF 2198
HF 2202
HF 2209
HF 2298
HF 2300
HF 2330
HF 2340
HF 2346
HF 2369
HF 2372
HF 2378
HF 2398
HF 2411
HF 2411
HF 2412
HF 2414
HF 2419
HF 2420
HF 2428
HF 2431
HF 2443
HF 2464
HF 2470
HF 2481
HF 2489
HF 2495
HF 2496
HF 2497
HF 2501
HF 2468
HF 2154
HF 2259
HF 2281
HF 2399
HF 2401
HF 2246
HF 2461
HF 2302

BILLS REFERRED TO COMMITTEE

Senator Whitver announced that the following bills were referred from the calendar to the following committees:

SF 2286	Labor and Business Relations
SF 241	Judiciary
SF 255	Veterans Affairs
SF 339	Judiciary
SF 409	State Government
SF 493	Labor and Business Relations
SF 573	State Government
SF 2079	Education
SF 2141	Transportation
SF 2177	Natural Resources and Environment
SF 2178	Judiciary
SF 2188	Commerce
SF 2205	Education
SF 2234	Judiciary
SF 2235	Judiciary
SF 2249	Labor and Business Relations
SF 2250	Labor and Business Relations
SF 2251	Labor and Business Relations
SF 2255	Human Resources
SF 2256	Labor and Business Relations
SF 2269	Local Government
SF 2271	State Government
SF 2277	Local Government
SF 2278	Local Government
SF 2289	Veterans Affairs
SF 2292	Judiciary
SF 2308	Commerce
SF 2312	Natural Resources and Environment
SF 2313	Commerce
SF 2321	Agriculture
SF 2332	Judiciary
SF 2335	Human Resources
SF 2336	Transportation
SF 2344	Natural Resources and Environment
SF 2348	Education
SF 2351	Education

SF 2352	Transportation
SF 2358	Education
SF 2364	Judiciary
SJR 2004	State Government
SCR 102	Judiciary
HF 259	Labor and Business Relations
HF 318	Education
HF 416	Judiciary
HF 419	Ways and Means
HF 468	Education
HF 485	State Government
HF 488	Human Resources
HF 498	Commerce
HF 528	State Government
HF 532	Appropriations
HF 554	Judiciary
HF 730	Commerce
HF 760	State Government
HF 780	Human Resources
HF 781	State Government
HF 2153	Local Government
HF 2203	Human Resources
HF 2248	Human Resources
HF 2297	Human Resources
HF 2331	State Government
HF 2348	Transportation
HF 2374	State Government
HF 2375	State Government
HF 2415	Natural Resources and Environment
HF 2472	Judiciary
HF 2547	State Government

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 3:02 p.m. until 1:00 p.m., Monday, March 28, 2022.

APPENDIX

SUBCOMMITTEE ASSIGNMENTS

House File 2554

APPROPRIATIONS: Kraayenbrink, Chair; Costello and Mathis

House File 2557

APPROPRIATIONS: Johnson, Chair; Lofgren and Petersen

House File 2558

APPROPRIATIONS: Garrett, Chair; Kraayenbrink and T. Taylor

House File 2559

APPROPRIATIONS: Garrett, Chair; Kraayenbrink and T. Taylor

AMENDMENT FILED

S–5088 S.F. 522 House

JOURNAL OF THE SENATE

SEVENTY-EIGHTH CALENDAR DAY
FORTY-FIFTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, March 28, 2022

The Senate met in regular session at 1:02 p.m., President Chapman presiding.

Prayer was offered by the Honorable Jake Chapman, president of the Senate from Dallas County, Adel, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Maren Rasmussen.

The Journal of Thursday, March 24, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 24, 2022, **passed** the following bills in which the concurrence of the House was asked:

Senate File 2190, a bill for an act relating to the use of child labor for certain bakery machine occupations utilizing pizza dough rollers.

Senate File 2233, a bill for an act relating to terms used in the context of land surveying.

Senate File 2310, a bill for an act relating to multiple housing cooperatives, including by providing for the conversion to a cooperative under the Iowa cooperative associations Act and merger with a limited liability company.

Senate File 2322, a bill for an act relating to the assessment of fees when a person requests examination and copying of public records.

Senate File 2363, a bill for an act relating to the requirements for a sex offender to be granted a modification of sex offender registry requirements.

ALSO: That the House has on March 24, 2022, **amended and passed** the following bills in which the concurrence of the Senate is asked:

Senate File 551, a bill for an act relating to fire fighters and emergency medical services members responding to emergency situations in certain vehicles. (S–5089)

Senate File 2285, a bill for an act relating to requirements for additional members of a city planning and zoning commission and a board of adjustment when a city extends its zoning jurisdiction. (S–5090)

ALSO: That the House has on March 24, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2168, a bill for an act relating to massage therapy, including child and dependent adult abuse reporting and continuing education requirements, and making penalties applicable.

Read first time and attached to **companion Senate File 2060**.

House File 2516, a bill for an act relating to the appointment of counsel for indigent persons by the court in certain cases.

Read first time and attached to **companion Senate File 2327**.

House File 2564, a bill for an act making appropriations to the department of cultural affairs, the economic development authority, the Iowa finance authority, the public employment relations board, the department of workforce development, the state board of regents and certain regents institutions, and the department of agriculture and land stewardship, providing for properly related matters, and including contingent effective date and applicability provisions.

Read first time and referred to committee on **Appropriations**.

House File 2565, a bill for an act relating to and making appropriations involving certain state departments, agencies, funds, and certain other entities, providing for regulatory authority, and providing for other properly related matters, and including effective date provisions.

Read first time and referred to committee on **Appropriations**.

House File 2566, a bill for an act appropriating certain tax receipts concerning internet fantasy sports contests and sports wagering to the county endowment fund and for gambling treatment programs.

Read first time and referred to committee on **State Government**.

House File 2567, a bill for an act relating to education, including requirements related to mandatory reporters, a process for investigating complaints against licensed practitioners, and the responsibilities of the department of education, school districts, charter schools, accredited nonpublic schools, and the board of educational examiners.

Read first time and referred to committee on **Education**.

INTRODUCTION OF GOVERNOR'S APPOINTEE

The Secretary of the Senate introduced to the Senate chamber Steven Lukan, the Governor's appointee to be the Executive Director of the Iowa Department of Veterans Affairs. He was the guest of the committee on Veterans Affairs.

The Senate rose and expressed its welcome.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 1:06 p.m. until 9:00 a.m., Tuesday, March 29, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

IOWA RACING AND GAMING COMMISSION

2021 Annual Report, pursuant to Iowa Code section. Report received on March 28, 2022.

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of Ryan Bosch for confirmation as a member of the Iowa Great Places Advisory Board from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

AMENDMENTS FILED

S–5089	S.F.	551	House
S–5090	S.F.	2285	House
S–5091	S.F.	2374	Chris Cournoyer
S–5092	S.F.	2110	Tom Shipley
S–5093	H.F.	2369	Tom Shipley

JOURNAL OF THE SENATE

SEVENTY-NINTH CALENDAR DAY
FORTY-SIXTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, March 29, 2022

The Senate met in regular session at 9:04 a.m., President Chapman presiding.

Prayer was offered by the Honorable Tim Kraayenbrink, member of the Senate from Webster County, Fort Dodge, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Kennedy Haag.

The Journal of Monday, March 28, 2022, was approved.

HOUSE MESSAGE RECEIVED AND CONSIDERED

The following message was received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 28, 2022, **adopted** the following resolution in which the concurrence of the Senate is asked:

House Concurrent Resolution 104, a concurrent resolution relating to Pioneer Lawmakers.

Read first time and referred to committee on **Rules and Administration**.

SPECIAL GUEST

Senator Sweeney introduced to the Senate chamber Thomas Botzios, Consul General of Italy.

Consul General Botzios addressed the Senate with brief remarks.

The Senate rose and expressed its welcome.

The Senate stood at ease at 9:16 a.m. until the fall of the gavel for party caucuses.

The Senate resumed session at 11:12 a.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Celsi and Hogg, until they arrive, on request of Senator Wahls; and Senator Rozenboom, until he arrives, on request of Senator Brown.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2110, 2253, and 2303; and House File 736.

Senate File 2110

On motion of Senator Shipley, **Senate File 2110**, a bill for an act relating to acreage limitations for the production of hemp, and including effective date provisions, placed on the Unfinished Business Calendar on March 17, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Shipley offered amendment S–5092, filed by him on March 28, 2022, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5092 was adopted by a voice vote.

Senator Shipley asked and received unanimous consent that **House File 2380** be **substituted** for **Senate File 2110**.

House File 2380

On motion of Senator Shipley, **House File 2380**, a bill for an act relating to acreage limitations for the production of hemp, and including effective date provisions, was taken up for consideration.

Senator Shipley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2380), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Celsi	Hogg	Rozenboom

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Shipley asked and received unanimous consent that **Senate File 2110** be **withdrawn** from further consideration of the Senate.

Senate File 2253

On motion of Senator Shipley, **Senate File 2253**, a bill for an act relating to the discovery of evidence in a criminal or postconviction relief action involving victims of sexual abuse, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Shipley asked and received unanimous consent that **House File 2239** be **substituted** for **Senate File 2253**.

House File 2239

On motion of Senator Shipley, **House File 2239**, a bill for an act relating to the discovery of evidence in a criminal or postconviction relief action involving victims of sexual abuse, was taken up for consideration.

Senator Dawson offered amendment S–5094, filed by him from the floor to page 1 and amending the title page of the bill, and moved its adoption.

Amendment S–5094 was adopted by a voice vote.

Senator Shipley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2239), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Celsi Hogg Rozenboom

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

WITHDRAWN

Senator Shipley asked and received unanimous consent that **Senate File 2253** be **withdrawn** from further consideration of the Senate.

Senate File 2303

On motion of Senator Zaun, **Senate File 2303**, a bill for an act relating to corporations by providing for the use of electronic mail and other electronic transmissions, and shareholders' lists, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Zaun offered amendment S–5098, filed by him from the floor, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5098 was adopted by a voice vote.

Senator Zaun asked and received unanimous consent that **House File 2469** be **substituted** for **Senate File 2303**.

House File 2469

On motion of Senator Zaun, **House File 2469**, a bill for an act relating to corporations by providing for the use of electronic mail and other electronic transmissions, and shareholders' lists, was taken up for consideration.

Senator Zaun moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2469), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Celsi	Hogg	Rozenboom

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Zaun asked and received unanimous consent that **Senate File 2303** be **withdrawn** from further consideration of the Senate.

House File 736

On motion of Senator Costello, **House File 736**, a bill for an act relating to limitations on activities related to paid claims under the Medicaid program, and including effective date provisions, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending amendment and passage, was taken up for consideration.

Senator Costello asked and received unanimous consent to withdraw amendment S–5064, filed by the committee on Human Resources on March 16, 2022, striking and replacing everything after the enacting clause and amending the title page of the bill.

Senator Costello offered amendment S–5095, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5095 was adopted by a voice vote.

Senator Costello moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 736), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Celsi	Hogg	Rozenboom

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 736**, **2239**, **2380**, and **2469** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 803, 2412, and 2481.

House File 803

On motion of Senator Cournoyer, **House File 803**, a bill for an act relating to duties performed by physician assistants, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending amendment and passage, was taken up for consideration.

Senator Cournoyer offered amendment S–5026, filed by the committee on State Government on February 24, 2022, to pages 1–19 of the bill, and moved its adoption.

Amendment S–5026 was adopted by a voice vote.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 803), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Celsi	Hogg	Rozenboom

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2412

On motion of Senator Johnson, **House File 2412**, a bill for an act requiring radon testing and mitigation in public schools, and including applicability provisions, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Johnson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2412), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Celsi	Hogg	Rozenboom

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2481

On motion of Senator Garrett, **House File 2481**, a bill for an act relating to judicial selection, including the nominees to the court of appeals, and the appointments, resignations, and residency requirements of district judges, district associate judges, associate juvenile judges, and associate probate judges, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Boulton offered amendment S–5099, filed by him from the floor to page 1 of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5099 be adopted?" (H.F. 2481), the vote was:

Yeas, 16:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Jochum	Kinney	Lykam
Mathis	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Nays, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun	Zumbach	

Absent, 3:

Celsi	Hogg	Rozenboom

Amendment S–5099 lost.

Senator Garrett moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2481), the vote was:

Yeas, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun	Zumbach	

Nays, 16:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Jochum	Kinney	Lykam
Mathis	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 3:

Celsi	Hogg	Rozenboom

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 803**, **2412**, and **2481** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2373 and 2374.

Senate File 2373

On motion of Senator Dawson, **Senate File 2373**, a bill for an act relating to the enforcement of the lake Manawa and Waubonsie state park user fee pilot programs, and including effective date and applicability provisions, was taken up for consideration.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2373), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Celsi	Hogg	Rozenboom

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2374

On motion of Senator Cournoyer, **Senate File 2374**, a bill for an act relating to alcoholic beverage control and licensing, providing for fees, and including effective date provisions, was taken up for consideration.

Senator Cournoyer offered amendment S–5091, filed by her on March 28, 2022, to page 20 of the bill, and moved its adoption.

Amendment S–5091 was adopted by a voice vote.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2374), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, 3:

Costello	Green	Guth

Absent, 3:

Celsi	Hogg	Rozenboom

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2373** and **2374** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2376.

Senate File 2376

On motion of Senator Brown, **Senate File 2376**, a bill for an act relating to annual all-systems permits issued by the department of transportation for vehicles of excessive weight, and including effective date provisions, was taken up for consideration.

Senator Brown offered amendment S–5097, filed by him from the floor to pages 1 and 3 of the bill, and moved its adoption.

Amendment S–5097 was adopted by a voice vote.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2376), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, 1:

Dickey

Absent, 3:

Celsi	Hogg	Rozenboom

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2376** be **immediately messaged** to the House.

RECESS

On motion of Senator Whitver, the Senate recessed at 12:14 p.m. until 1:30 p.m.

RECONVENED

The Senate reconvened at 2:39 p.m., President Chapman presiding.

CONSIDERATION OF BILL
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2378.

Senate File 2378

On motion of Senator Schultz, **Senate File 2378**, a bill for an act relating to beverages, including the barrel tax and the acceptance of beverage containers for refund value, providing penalties, and including effective date provisions, was taken up for consideration.

Senator Schultz offered amendment S–5101, filed by him from the floor to pages 1–8 of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5101 be adopted?" (S.F. 2378), the vote was:

Yeas, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Nays, 17:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Hogg	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott
Wahls			

Absent, 1:

Celsi

Amendment S–5101 was adopted.

Senator Schultz moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2378), the vote was:

Yeas, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun	Zumbach	

Nays, 18:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Hogg	Jochum	Kinney
Lofgren	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Absent, 1:

Celsi

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2378** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2377.

Senate File 2377

On motion of Senator Sinclair, **Senate File 2377**, a bill for an act relating to education, including eligibility for grants under the teach Iowa scholar program, licenses issued by the board of educational examiners, and the use of revenues from the district management levy, and including applicability provisions, was taken up for consideration.

Senator Sinclair offered amendment S–5096, filed by her from the floor to pages 1, 2, 4, and 5 of the bill.

Senator Sinclair offered amendment S–5100, filed by her from the floor to page 1 of amendment S–5096, and moved its adoption.

Amendment S–5100 to amendment S–5096 was adopted by a voice vote.

Senator Sinclair moved the adoption of amendment S–5096, as amended.

Amendment S–5096, as amended, was adopted by a voice vote.

Senator Sinclair moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2377), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Celsi

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2377** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 3:10 p.m. until 9:00 a.m., Wednesday, March 30, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF HUMAN SERVICES

Analysis of Medicaid Member Appeals Report, pursuant to 2018 Iowa Acts, Chapter 1165, section 128. Report filed March 29, 2022.

SUBCOMMITTEE ASSIGNMENTS

House File 2560

APPROPRIATIONS: Rozenboom, Chair; Mathis and Williams

House File 2564

APPROPRIATIONS: Koelker, Chair; Dotzler and Lofgren

House File 2565

APPROPRIATIONS: Guth, Chair; Celsi and Kraayenbrink

House File 2566

STATE GOVERNMENT: R. Smith, Chair; Bisignano and Dawson

House File 2567

EDUCATION: Sinclair, Chair; Goodwin and Quirmbach

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of Bruce Kawahara for confirmation as a member of the Commission of Deaf Services from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

AMENDMENTS FILED

S–5094	H.F.	2239	Dan Dawson
S–5095	H.F.	736	Mark Costello
S–5096	S.F.	2377	Amy Sinclair
S–5097	S.F.	2376	Waylon Brown
S–5098	S.F.	2303	Brad Zaun
S–5099	H.F.	2481	Nate Boulton
S–5100	S.F.	2377	Amy Sinclair
S–5101	S.F.	2378	Jason Schultz

JOURNAL OF THE SENATE

EIGHTIETH CALENDAR DAY
FORTY-SEVENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, March 30, 2022

The Senate met in regular session at 9:04 a.m., President Chapman presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Elizabeth Hunter.

The Journal of Tuesday, March 29, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 29, 2022, **passed** the following bill in which the concurrence of the House was asked:

Senate File 2267, a bill for an act relating to the establishment of emergency response districts.

ALSO: That the House has on March 29, 2022, **amended and passed** the following bills in which the concurrence of the Senate is asked:

Senate File 586, a bill for an act relating to banks, making appropriations, providing civil penalties, and making civil penalties applicable. (S–5104)

Senate File 2324, a bill for an act relating to the designation of real estate teams and the display of real estate licenses, and including applicability provisions. (S–5103)

ALSO: That the House has on March 29, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2487, a bill for an act relating to paternity in certain actions before the juvenile court.

Read first time and attached to **similar Senate File 2254**.

House File 2575, a bill for an act relating to the funding of, the operation of, and appropriation of moneys to the college student aid commission, the department for the blind, the department of education, and the state board of regents, providing for properly related matters, and including effective date and retroactive applicability provisions.

Read first time and referred to committee on **Appropriations**.

House File 2577, a bill for an act relating to education, including requiring the boards of directors of school districts and the governing boards of charter schools to publish certain specified information, modifying provisions related to required social studies instruction, and providing civil penalties.

SPECIAL GUESTS

Senator Rozenboom presented Sarah Gritters, Queen of the Eighty-Seventh Annual Tulip Time Festival, who in turn introduced the members of her court: Kelly Dykema, Emily Buckingham, Ashley Uitermarkt, and Trinity Vos.

Queen Sarah invited members of the Senate to attend the Tulip Time Festival in Pella on May 5, 6, and 7.

The Senate rose and expressed its welcome.

HERBERT HOOVER UNCOMMON PUBLIC SERVICE AWARD

Senators Rozenboom and Jochum announced the 2022 Herbert Hoover Uncommon Public Service Award recipient, Senator Janet Petersen.

Senator Petersen addressed the Senate with brief remarks and was presented the Uncommon Public Service Award.

The Senate rose and expressed its congratulations.

The Senate stood at ease at 9:22 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 11:10 a.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senator Celsi, until she arrives, on request of Senator Wahls; and Senator Nunn, until he arrives, on request of Senator Whitver.

HOUSE AMENDMENTS CONSIDERED

Senate File 551

Senator Whitver called up for consideration **Senate File 551**, a bill for an act relating to fire fighters and emergency medical services members responding to emergency situations in certain vehicles, amended by the House in House amendment S–5089, filed March 28, 2022.

Senator Dickey moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Dickey moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 551), the vote was:

Yeas, 47:

Bolkcom	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, 1:

Bisignano

Absent, 2:

Celsi Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2285

Senator Whitver called up for consideration **Senate File 2285**, a bill for an act relating to requirements for additional members of a city planning and zoning commission and a board of adjustment when a city extends its zoning jurisdiction, amended by the House in House amendment S–5090, filed March 28, 2022.

Senator Hogg asked and received unanimous consent that action on **Senate File 2285** be **deferred**.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2316.

Senate File 2316

On motion of Senator J. Taylor, **Senate File 2316**, a bill for an act relating to trusts, including optional notices to creditors when a will has been admitted to probate without administration and the trust is the beneficiary of the estate, trust accounting, specific powers of a trustee, and representation of holders of power and similar interests, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator J. Taylor asked and received unanimous consent that **House File 2484** be **substituted** for **Senate File 2316**.

House File 2484

On motion of Senator J. Taylor, **House File 2484**, a bill for an act relating to trusts, including optional notices to creditors when a will has been admitted to probate without administration and the trust is the beneficiary of the estate, trust accounting, specific powers of a trustee, and representation of holders of power and similar interests, was taken up for consideration.

Senator J. Taylor moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2484), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Petersen	Quirmbach	Ragan	Reichman

Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Celsi	Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator J. Taylor asked and received unanimous consent that **Senate File 2316** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 551** and **House File 2484** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2327 and 2366.

Senate File 2327

On motion of Senator Schultz, **Senate File 2327**, a bill for an act relating to the appointment of counsel for indigent persons by the court in certain cases, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Schultz asked and received unanimous consent that **House File 2516** be **substituted** for **Senate File 2327**.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Bolkcom, until he arrives, on request of Senator Wahls.

House File 2516

On motion of Senator Schultz, **House File 2516**, a bill for an act relating to the appointment of counsel for indigent persons by the court in certain cases, was taken up for consideration.

Senator Schultz moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2516), the vote was:

Yeas, 47:

Bisignano	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Bolkcom	Celsi	Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Schultz asked and received unanimous consent that **Senate File 2327** be **withdrawn** from further consideration of the Senate.

Senate File 2366

On motion of Senator Brown, **Senate File 2366**, a bill for an act relating to the assessment and taxation of wind energy conversion property and including effective date, applicability, and retroactive applicability provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Brown offered amendment S–5102, filed by him from the floor to pages 2 and amending the title page of the bill, and moved its adoption.

Amendment S–5102 was adopted by a voice vote.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2366), the vote was:

Yeas, 47:

Bisignano	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Bolkcom Celsi Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2366** and **House File 2516** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2369 and 2501.

House File 2369

On motion of Senator Shipley, **House File 2369**, a bill for an act relating to taking fur-bearing animals without prior permission of the natural resource commission, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Shipley offered amendment S–5093, filed by him on March 28, 2022, to page 1 of the bill, and moved its adoption.

Amendment S–5093 was adopted by a voice vote.

Senator Shipley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2369), the vote was:

Yeas, 47:

Bisignano	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Bolkcom	Celsi	Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2501

On motion of Senator Lofgren, **House File 2501**, a bill for an act relating to the investment and use of funds in the veterans trust fund, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Lofgren moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2501), the vote was:

Yeas, 47:

Bisignano	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink

Lofgren	Lykam	Mathis	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Bolkcom	Celsi	Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF BILL
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2367.

Senate File 2367

On motion of Senator Dawson, **Senate File 2367**, a bill for an act relating to sales, use, and motor vehicle fuel taxes administered by the department of revenue including distributions to local governments and school districts, the liability of sellers, tax refund and tax credit incentives, and motor fuel tax reporting modifications, and providing penalties, and including effective date and applicability provisions, was taken up for consideration.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2367), the vote was:

Yeas, 47:

Bisignano	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink

Lofgren	Lykam	Mathis	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Bolkcom	Celsi	Nunn

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2369** and **2501** be **immediately messaged** to the House.

RECESS

On motion of Senator Whitver, the Senate recessed at 11:56 a.m. until 2:00 p.m.

RECONVENED

The Senate reconvened at 2:12 p.m., President Chapman presiding.

The Senate stood at ease at 2:15 p.m. until the fall of the gavel for the purpose of a Democratic party caucus.

The Senate resumed session at 3:06 p.m., President Chapman presiding.

BUSINESS PENDING

Senate File 2285

The Senate resumed consideration of **Senate File 2285**, a bill for an act relating to requirements for additional members of a city planning and zoning commission and a board of adjustment when a city extends its zoning jurisdiction, previously deferred.

Senator Bisignano offered amendment S–5105, filed by him from the floor to page 1 of House amendment S–5090, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5105 to House amendment S–5090 be adopted?" (S.F. 2285), the vote was:

Yeas, 16:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Hogg	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Nays, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Absent, 2:

Celsi	Mathis

Amendment S–5105 to House amendment S–5090 lost.

Senator Klimesh moved that the Senate concur in the House amendment.

A record roll call was requested.

On the question "Shall the motion to concur be adopted?" (S.F. 2285), the vote was:

Yeas, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman

Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Whitver
Williams	Zaun	Zumbach	

Nays, 17:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Hogg	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, J.	Taylor, T.	Trone Garriott
Wahls			

Absent, 2:

Celsi	Mathis

The motion prevailed and the Senate **concurred** in the House amendment.

Senator Klimesh moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2285), the vote was:

Yeas, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Whitver
Williams	Zaun	Zumbach	

Nays, 17:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Hogg	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, J.	Taylor, T.	Trone Garriott
Wahls			

Absent, 2:

Celsi Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2285** and **2367** be **immediately messaged** to the House.

The Senate stood at ease at 3:35 p.m. until the fall of the gavel.

The Senate resumed session at 4:30 p.m., President Chapman presiding.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2369.

Senate File 2369

On motion of Senator Sinclair, **Senate File 2369**, a bill for an act relating to education, including establishing a student first scholarship program and a student first enrollment supplement fund, requiring the boards of directors of school districts to publish certain specified information, modifying provisions related to required social studies instruction, open enrollment, teacher librarian endorsements, competent private instruction, and special education, making appropriations, providing penalties, and including effective date, applicability, and retroactive applicability provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Sinclair offered amendment S–5106, filed by her from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill.

Senator Quirmbach offered amendment S–5108, filed by him from the floor to pages 1–31 and amending the title provisions of amendment S–5106, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5108 to amendment S–5106 be adopted?" (S.F. 2369), the vote was:

Yeas, 19:

Bisignano	Bolkcom	Boulton	Dotzler
Driscoll	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Sweeney
Taylor, T.	Trone Garriott	Wahls	

Nays, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Kraayenbrink
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Taylor, J.	Whitver	Williams
Zaun	Zumbach		

Absent, 1:

Celsi

Amendment S–5108 to amendment S–5106 lost.

Senator Giddens offered amendment S–5109, filed by him from the floor to pages 1–4 of amendment S–5106, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5109 to amendment S–5106 be adopted?" (S.F. 2369), the vote was:

Yeas, 17:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Hogg	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott
Wahls			

Nays, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Absent, 1:

Celsi

Amendment S–5109 to amendment S–5106 lost.

Senator Quirmbach offered amendment S–5107, filed by him from the floor to page 2 of amendment S–5106, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5107 to amendment S–5106 be adopted?" (S.F. 2369), the vote was:

Yeas, 17:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Hogg	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott
Wahls			

Nays, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green

Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Absent, 1:

Celsi

Amendment S–5107 to amendment S–5106 lost.

Senator Sinclair moved the adoption of amendment S–5106.

A record roll call was requested.

On the question "Shall amendment S–5106 be adopted?" (S.F. 2369), the vote was:

Yeas, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Nays, 17:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Hogg	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott
Wahls			

Absent, 1:

Celsi

Amendment S–5106 was adopted.

The Senate stood at ease at 5:47 p.m. until the fall of the gavel for the purpose of a Democratic party caucus.

The Senate resumed session at 6:12 p.m., President Chapman presiding.

Senator Sinclair moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2369), the vote was:

Yeas, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Taylor, J.	Whitver
Williams	Zaun	Zumbach	

Nays, 18:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Hogg	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Sweeney	Taylor, T.
Trone Garriott	Wahls		

Absent, 1:

Celsi

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2369** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 7:10 p.m. until 9:00 a.m., Thursday, March 31, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

JUDICIAL BRANCH

Court Debt Report, pursuant to Iowa Code section 602.8107. Report received on March 30, 2022.

REPORTS OF COMMITTEE MEETINGS

EDUCATION

Convened: Wednesday, March 30, 2022, 12:20 p.m.

Members Present: Sinclair, Chair; J. Taylor, Vice Chair; Quirmbach, Ranking Member; Carlin, Cournoyer, Giddens, Goodwin, Johnson, Kraayenbrink, Rozenboom, J. Smith, Sweeney, Trone Garriott, and Zaun.

Members Absent: Celsi (excused).

Committee Business: Consideration for confirmation: Stephanie Boyle, Pam Gronau, Colin Wixted, Cindy Dietz, Cassandra Halls, Nathan Peterson, Leland Tack, Timothy McKinney, Patricia Schroeder, Kathy Behrens, Randy Fehr, Michael Linnenbrink, Jennifer Banta, Dawn Oliver Wiand, Kari Price, Jason Sandholdt, Andrew Allen, and Nathan Noble.

Adjourned: 12:25 p.m.

HUMAN RESOURCES

Convened: Wednesday, March 30, 2022, 12:55 p.m.

Members Present: Edler, Chair; Costello, Vice Chair; Mathis, Ranking Member; Bolkcom, Garrett, Green, Jochum, Johnson, Lofgren, Ragan, Rowley, Sweeney, and Trone Garriott.

Members Absent: None.

Committee Business: Consideration of Governor Appointments: Andrew Jedlicka, Emily Reese, Austin Steil, Nolan Byrnes, Echo Kent, Kerry Lust, Amy Mooney, Blake Stephenson, Maria Valdovinos, Ashley Baker, Donald Logan, Rick McIntosh, William Owens, Angela Stokes, Jessica Fasselius, Adam Koch, Clint Sargent, Beth Wilde, Shawn Garrington, Mary Nelle Trefz, Jose Ayala, Juan Himar Hernandez, Isabel Yanez, Betsy Akin, Teresa Daubitz, Sue Gehling, Jack Seward, Cory Turner, Kenneth Wayne, Sarah Boury, Amanda Gallant, Dylan Heuer, Lorene Mein, Robert Nichols, and Bridget Saffold.

Adjourned: 1:15 p.m.

JUDICIARY

Convened: Wednesday, March 30, 2022, 1:40 p.m.

Members Present: Zaun, Chair; Garrett, Vice Chair; Kinney, Ranking Member; Bisignano, Bolkcom, Boulton, Dawson, Johnson, Petersen, Reichman, Rowley, Schultz, Shipley, Sinclair, and J. Taylor.

Members Absent: None.

Committee Business: Governor Appointments: Iowa Law Enforcement Academy Council: Tiffany Hamilton-Howell, Elizabeth Quinn, Gene Beinke, Ricardo Martinez II, Drug Policy Advisory Council: David McDaniel, Jason Feaker, Justice Advisory Board: Monique Scarlett, Dee Sandquist, State Judicial Nominating Commission: Derek Muller, Jeremy Kidd, Gwendolyn (Gwen) Ecklund, Kathleen Law, Board of Corrections: Denise Bubeck, Board of Parole: Meredith Lamberti, William Bushell, Chairperson of the Board of Parole: William Bushell.

Adjourned: 2:00 p.m.

SUBCOMMITTEE ASSIGNMENT

House File 2555

COMMERCE: Williams, Chair; Johnson and Quirmbach

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of Matthew Wyant for confirmation as a member of the Plumbing and Mechanical Systems Board from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

PLACEMENT ON INDIVIDUAL CONFIRMATION CALENDAR

MR. PRESIDENT: Pursuant to Senate Rule 59, I hereby request that the name of Ashley Baker to Child Advocacy Board be removed from the "En Bloc Confirmation Calendar" and placed on the "Individual Confirmation Calendar".

AMANDA RAGAN

GOVERNOR'S APPOINTEES PLACED ON INDIVIDUAL CONFIRMATION CALENDAR

The following appointees, assigned to standing committees for investigation, were placed on the Individual Confirmation Calendar with recommendation for confirmation:

EDUCATION

Cindy Dietz – State Board of Education
Cassandra Halls – State Board of Education
Nathan Peterson – State Board of Education

JUDICIARY

Denise Bubeck – Board of Corrections

Gwendolyn (Gwen) Ecklund – State Judicial Nominating Commission
Jeremy Kidd – State Judicial Nominating Commission
Kathleen Law – State Judicial Nominating Commission
Derek Muller – State Judicial Nominating Commission

William Bushell – Chairperson of the Board of Parole

William Bushell – Board of Parole

GOVERNOR'S APPOINTEES PLACED ON EN BLOC CONFIRMATION CALENDAR

The following appointees, assigned to standing committees for investigation, were placed on the En Bloc Confirmation Calendar with recommendation for confirmation:

EDUCATION

Stephanie Boyle – Iowa Autism Council
Pam Gronau – Iowa Autism Council
Colin Wixted – Iowa Autism Council

Jennifer Banta – Early Childhood Iowa State Board
Michael Linnenbrink – Early Childhood Iowa State Board
Dawn Oliver Wiand – Early Childhood Iowa State Board

Andrew Allen – Children's Behavioral Health System State Board
Nathan Noble – Children's Behavioral Health System State Board
Kari Price – Children's Behavioral Health System State Board
Jason Sandholdt – Children's Behavioral Health System State Board

Kathy Behrens – Board of Educational Examiners
Timothy McKinney – Board of Educational Examiners

Randy Fehr – Iowa Higher Education Loan Authority

Patricia Schroeder – School Budget Review Committee
Leland Tack – School Budget Review Committee

HUMAN RESOURCES

Andrew Jedlicka – Board of Athletic Training
Emily Reese – Board of Athletic Training
Austin Steil – Board of Athletic Training

Nolan Byrnes – Board of Behavioral Science
Echo Kent – Board of Behavioral Science
Kerry Lust – Board of Behavioral Science
Amy Mooney – Board of Behavioral Science
Blake Stephenson – Board of Behavioral Science
Maria Valdovinos – Board of Behavioral Science

Ashley Baker – Child Advocacy Board
Donald Logan – Child Advocacy Board
Rick McIntosh – Child Advocacy Board
William Owens – Child Advocacy Board
Angela Stokes – Child Advocacy Board

Jessica Fasselius – Commission of Persons with Disabilities
Adam Koch – Commission of Persons with Disabilities
Clint Sargent – Commission of Persons with Disabilities
Beth Wilde – Commission of Persons with Disabilities

Shawn Garrington – Healthy and Well Kids in Iowa (HAWK-I) Board
Mary Nelle Trefz – Healthy and Well Kids in Iowa (HAWK-I) Board

Jose Ayala – Commission of Latino Affairs
Juan Himar Hernandez – Commission of Latino Affairs
Isabel Yanez – Commission of Latino Affairs

Betsy Akin – Mental Health and Disability Services Commission
Teresa Daubitz – Mental Health and Disability Services Commission
Sue Gehling – Mental Health and Disability Services Commission
Jack Seward, Jr. – Mental Health and Disability Services Commission
Cory Turner – Mental Health and Disability Services Commission
Kenneth Wayne – Mental Health and Disability Services Commission

Sarah Boury – Board of Sign Language Interpreters and Transliterators
Amanda Gallant – Board of Sign Language Interpreters and Transliterators
Dylan Heuer – Board of Sign Language Interpreters and Transliterators

Lorene Mein – Commission on Tobacco Use Prevention and Control
Robert Nichols – Commission on Tobacco Use Prevention and Control
Bridget Saffold – Commission on Tobacco Use Prevention and Control

JUDICIARY

Jason Feaker – Drug Policy Advisory Council
David McDaniel – Drug Policy Advisory Council

Dee Sandquist – Justice Advisory Board
Monique Scarlett – Justice Advisory Board

Gene Beinke – Iowa Law Enforcement Academy Council
Tiffany Hamilton-Howell – Iowa Law Enforcement Academy Council
Ricardo Martinez II – Iowa Law Enforcement Academy Council
Elizabeth Quinn – Iowa Law Enforcement Academy Council

Meredith Lamberti – Board of Parole

STATE GOVERNMENT

Allen Kockler – Accountancy Examining Board
Michelle O'Neill – Accountancy Examining Board
Jessica Richter – Accountancy Examining Board

Sara Winkleman – Alcoholic Beverages Commission

Gregory Ceraso – Board of Dentistry
Lisa Holst – Board of Dentistry
Thomas Peek – Board of Dentistry

Julie Eichenberger – Board of Dietetics
Philip Pitzen – Board of Dietetics
Nicholas Rouse – Board of Dietetics

Colby Black – Electrical Examining Board
Sara Fasching – Electrical Examining Board
Jonathan Gettler – Electrical Examining Board

Craig Clabaugh – Elevator Safety Board
Kerry Dixon – Elevator Safety Board

Paul Herold – Engineering and Land Surveying Examining Board

Daniel Jessop – Iowa Ethics and Campaign Disclosure Board
Leah Rodenberg – Iowa Ethics and Campaign Disclosure Board

Rick Knudson – Board of Hearing Aid Specialists
Molly Parker – Board of Hearing Aid Specialists
Tricia Veik – Board of Hearing Aid Specialists

Amy Guhl – Interior Design Examining Board

Colleen Byrnes – Landscape Architectural Examining Board
M. Martz – Landscape Architectural Examining Board
Brenda Nelson – Landscape Architectural Examining Board

Douglas Dollison – Board of Massage Therapy
Amy Heinz – Board of Massage Therapy
Jacob Schrader – Board of Massage Therapy
LeAnn Stevens – Board of Massage Therapy

Holly Little – Board of Physical and Occupational Therapy
Brett Speirs – Board of Physical and Occupational Therapy

Theresa Hughes – Board of Podiatry
Eugene Nassif, Jr. – Board of Podiatry
Kelsey Sukovaty – Board of Podiatry

Brian Ohorilko – Administrator of the State Racing and Gaming Commission

Loretta Laubach – Real Estate Appraiser Examining Board
Cody Seeley – Real Estate Appraiser Examining Board

Cynthia Duncan – Board of Respiratory Care and Polysomnography
Thomas Graham – Board of Respiratory Care and Polysomnography
Benjamin Jagow – Board of Respiratory Care and Polysomnography

Aaron Culley – Board of Social Work

Jordan Cook – Board of Speech Pathology and Audiology
Kevin Kock – Board of Speech Pathology and Audiology
Stacy Robinson – Board of Speech Pathology and Audiology

Scott Shuey – Iowa Board of Veterinary Medicine

TRANSPORTATION

Raymond Gaesser – State Transportation Commission
Linda Juckette – State Transportation Commission

AMENDMENTS FILED

S–5102	S.F.	2366	Waylon Brown
S–5103	S.F.	2324	House
S–5104	S.F.	586	House
S–5105	S.F.	2285	Tony Bisignano
S–5106	S.F.	2369	Amy Sinclair
S–5107	S.F.	2369	Herman C. Quirmbach
S–5108	S.F.	2369	Herman C. Quirmbach
S–5109	S.F.	2369	Eric Giddens

JOURNAL OF THE SENATE

EIGHTY-FIRST CALENDAR DAY
FORTY-EIGHTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, March 31, 2022

The Senate met in regular session at 9:04 a.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Williams, member of the Senate from Carroll County, Manning, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Jackson Maddox.

The Journal of Wednesday, March 30, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on March 30, 2022, **passed** the following bills in which the concurrence of the House was asked:

Senate File 2080, a bill for an act relating to the administration of certain physical examinations and student health screenings by school districts, charter schools, or innovation zone schools.

Senate File 2197, a bill for an act providing for the establishment of a task force related to special education support for students at nonpublic schools.

ALSO: That the House has on March 30, 2022, **amended and passed** the following bills in which the concurrence of the Senate is asked:

Senate File 348, a bill for an act relating to the opening, administration, and termination of adult and minor guardianships and conservatorships. (S–5111)

Senate File 577, a bill for an act relating to a certificate of nonviable birth. (S–5110)

ALSO: That the House has on March 30, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2515, a bill for an act relating to authorized uses of interest earned on funds in the flood recovery fund and including effective date provisions.

Read first time and attached to **companion Senate File 2191**.

House File 2517, a bill for an act relating to the reversion of moneys appropriated for a governance and funding of levee districts study, and including effective date provisions.

Read first time and referred to committee on **Appropriations**.

House File 2551, a bill for an act establishing an exemption for certain property classified as agricultural based on levee and drainage district assessments.

Read first time and referred to committee on **Ways and Means**.

House File 2556, a bill for an act relating to the solar energy system tax credit, and including effective date and retroactive applicability provisions.

Read first time and referred to committee on **Ways and Means**.

House File 2573, a bill for an act creating funds relating to the abatement of and response to opioid use.

Read first time and referred to committee on **Appropriations**.

House File 2574, a bill for an act authorizing length of service award programs for volunteer fire fighters, volunteer emergency medical care providers, and reserve peace officers, and making appropriations.

Read first time and referred to committee on **Appropriations**.

COMMITTEE FROM THE HOUSE

A committee from the House appeared and announced that the House was ready to receive the Senate in joint convention.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:09 a.m. until the completion of a meeting of the committee on Rules and Administration.

RECONVENED

The Senate reconvened at 9:11 a.m., President Chapman presiding.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Concurrent Resolution 104.

House Concurrent Resolution 104

On motion of Senator Whitver, **House Concurrent Resolution 104**, a concurrent resolution relating to Pioneer Lawmakers, with report of committee recommending passage, was taken up for consideration.

Senator Whitver moved the adoption of House Concurrent Resolution 104, which motion prevailed by a voice vote.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:22 a.m. until 1:40 p.m.

RECONVENED

The Senate reconvened at 1:52 p.m., President Chapman presiding.

The Senate proceeded to the House chamber, in accordance with House Concurrent Resolution 104, in columns of two led by the Secretary of the Senate and the Sergeant-at-Arms.

JOINT CONVENTION
PIONEER LAWMAKERS

Sixty-Seventh Biennial Session
House Chamber

In accordance with House Concurrent Resolution 104, duly adopted, the joint convention was called to order at 2:01 p.m., President Chapman presiding.

President Chapman declared a quorum present and the joint convention duly organized.

The Pioneer Lawmakers were seated in the House chamber.

President Pro Tempore Zaun welcomed the Pioneer Lawmakers on behalf of the Senate.

President Chapman presented the Honorable Pat Grassley, Speaker of the House of Representatives, who welcomed the Pioneer Lawmakers on behalf of the House.

President Chapman presented the Honorable Cecil Dolecheck, member of the House and President of the Pioneer Lawmakers Association, who responded to the welcome.

Representative Dolecheck announced the following 2001 class of Pioneer Lawmakers: Thomas Fiegen, Paul McKinley, Andra Atteberry, George Eichhorn, Gregory Hoversten, Gene Manternach, Brian Quirk, Rod Roberts, Mark Smith, Jodi Tymeson, Cindy Winckler, Betty De Boef, Jeffrey Elgin, Vicki Lensing, Janet Petersen, Leigh Rekow, Bryan Sievers, Mark Tremmel, Paul Wilderdyke, Roger Broers, Joe Seng, Barbara Finch, Mark Zieman.

Honorary members of the 2022 class were the following: Lon Anderson, Mary Neubauer, Mike St. Clair, Mark Joyce, Cindy Schulte.

Representative Dolecheck presented the Honorable Geri Huser, former member of the House from Polk County, Altoona, Iowa who addressed the joint convention:

Speaker Grassley, President Chapman, legislative leaders, members of the House and Senate, staff, and lobby: In 1886, it was determined to be necessary to establish a manner for men to attend social gatherings and to reunite with their colleagues in this, the people's house. As tradition encompasses much of our legislative process, so too does it prevail with the call of the reunion of the old-time lawmakers of Iowa, for those living, from the 11th through the 79th General Assemblies, to welcome and recognize our newest inductees.

I have one formality to address. As the Chair of the Iowa Utilities Board, I declare that I am acting today in my personal capacity as a Pioneer and former lawmaker. I speak only for myself. Further, to the best of my knowledge, the contents of this speech are accurate — and whether that's how I remember it, how the story was told, or simply fabricated by those who shared with me, let me take responsibility for any error at this time.

For those wondering about the rules for the length of time I was given, Representative Dolecheck and I have carefully allotted my time for this speech in the following way: I plan to exceed the ten minutes I would have been provided as a House member per House rules, and I have borrowed the extra five minutes from the Senate's filibuster techniques.

It was an honor for me to have been inducted into this group in 2017, alongside current members Representative Cecil Dolecheck and Senator Bill Dotzler. It has been 25 years since I first entered this building as an elected official with my class of 29 freshman legislators. I am pretty confident that neither Cecil nor Bill were asked on that first day whose representative *they* were a secretary for — but I never asked them.

Two legislators in today's inductee class are still serving Iowans. Senator Janet Petersen and Representative Cindy Winckler, congratulations. Can you believe it has been 20 years?

The first session of the 79th General Assembly met on January 8, 2001. At that time, I know we didn't anticipate that we would have four special sessions, nor that one of those special sessions would take place outside of the Capitol.

The leadership from the House and Senate included Speaker of the House Brent Siegrist, President of the Senate Mary Kramer, Majority Leaders Christopher Rants and Stew Iverson, and Minority Leaders Dick Myers and Mike Gronstal.

Opening remarks in the 2001 session noted that the members, especially new members, "[were] now a part of a wonderful family. It is a family that is periodically dysfunctional, but a family that will be part of your lives forever." That is the case, as this group has convened in fellowship again here today.

Being a family, whether dysfunctional or not, may be described along these lines: A group of people brought together from varying backgrounds, experiences, and political philosophies, who all work together on common causes for the benefit of all Iowans. As Shakespeare stated in "The Tempest": "Misery acquaints a man with strange bedfellows." Or as more commonly applied today: *politics* makes strange bedfellows.

While each General Assembly is unique in its own way, there are commonalities that perpetuate the adage that history has a way of repeating itself. I wish to review but a few of these in the form of redistricting, special sessions, and life-changing global events. Those serving in the first year of a new decade traditionally have a unique role to play in Iowa's governmental process with legislative redistricting. In 2001, we declined to adopt the map initially proposed, but we approved the second version when we reconvened for a special session.

The process this last year was not so different. The current General Assembly adjourned its first regular session *sine die*, without receipt of the first maps, and then reconvened in special sessions, declining the first map and then approving the second map.

Both the 79th General Assembly and today's legislators witnessed life-changing global events. In 2001, it was the events of September 11th that will forever be remembered, as our country experienced the worst terrorist attack in American history. In 2021, the world attempted to address the pandemic. Both impacted our legislative family, our own individual families, and our first responders. Each situation was horrible in its own way, and each required elected officials to address challenging circumstances.

We reconvened in an extra session on November 8, 2001 — the House met in our chambers and the Senate met in Room 116 — to pass legislation with new authorizations for Homeland Security and de-appropriations for the state's budget. Lest you think we were done, in 2002 we held our regular session and then reconvened twice more.

One issue that we took up in 2002, of particular interest to me as a friend of agriculture, was the creation of the master matrix. Today I provided Representative Windschitl with a picture that I was tasked by a former House member with saving for posterity. If you are not familiar, this was a bipartisan, agriculturally minded group who created a statewide siting standard for animal feeding operations. The picture depicts the headshots of the 12 legislators, aptly named the "12 apostles," who met and created the master matrix. While I was not in the room, I heard they set aside their political differences and worked diligently — an example of a dysfunctional family gathering together to find common ground.

Another example of the commonalities of our legislative family might be the pranks. One story I will share; the other I will leave to former Senator and current Representative Hansen to explain — but if he tells you that you have been called to the Governor's office, I would question it. My story is about the microphones of old, which had to be raised to signify your request to speak from the floor. Now, I am not admitting anything or identifying anyone, but I recall instances where well-placed grease *may* have required a legislator to stay at their desk, arm raised in the air, physically holding the microphone in order to keep it aloft while waiting to be recognized by the Speaker. It's just not as easy to cause intrafamily mischief today now that the system only requires a simple press of a button.

Concluding the similarities that unite the 79th and 89th General Assemblies, and in recognition of the honorees of the third house, who have been known to claim offices in the rotunda or behind the Senate, 40 years of job security could be summarized in one statement: If I had a nickel for every time we discussed reforming the state's bottle bill…

I offer to you now two principles that I believe unite us as a legislative body and as part of this large family. The first is statesmanship. The second is a drive to set the bar ever higher.

Statesmanship is defined as wisdom and skill in managing public affairs. We achieve success in public service by the manner in which we present ourselves and the respect extended to others. The traditional process for a new legislator is to walk into this building, become completely overwhelmed, and attempt to introduce yourself to 149 other legislators. However, you quickly learn there is more to statesmanship than reciting the oath of office.

The quote "my word is my bond" comes to mind when describing characteristics of a statesman. There are few places where our actions speak louder than our words, and to lose the graces of another because of your failure to speak or act on your promises is a tough cross to bear.

Now I, like many of you, have things I would change about my legislative career. While I don't know that I would have changed my position, I would have been clearer on where I stood and my intent. One of those issues was with a colleague and it involved selecting the location of a state office building. I believe the outcome was correct, my process was flawed, and I learned from that experience. But it hurt our friendship… and for that I do have regrets.

Statesmanship is not perfection. I have spoken with a number of former colleagues, those elected and those in the third house. I have opinions on legislative years past and certainly on debates and conclusions and processes related to those sessions. I have received advice and recognized that those who are more experienced have much to share. In hindsight, there are things I would have changed.

We learn by reaching towards each other.

Out of statesmanship can grow friendship.

I met and worked with a great group of professionals. They taught me much … from the things I wanted to strive to be, to the tactics used by those in leadership to achieve great things. I worked across the aisle and made a lot of friends who I know to this day would assist me if I needed it or asked, and many have.

As Democratic Chair of the House Transportation Committee and a member of local government, I had occasion to work with two freshman legislators, neither of whom had ever had the opportunity to run a subcommittee, a bill, or work with the lobby. I assigned one of these individuals a bill, and the other scripted out their introduction and closing. I wish I would have done more of this, because it was a rewarding experience.

That and teaching certain representatives how to pronounce "reciprocity."

Both of those former freshman legislators, who represent different parties, continue to serve today, and I consider both to be my friends.

Both statesmanship and friendship can surpass our political differences. The Pioneer lawmakers being recognized today may have been the ones who taught some of you in this room how to run a bill, file an amendment, or serve as a committee chair. They pass on to you their experiences and teach you the characteristics necessary to become a statesman. I hope you choose to pass that knowledge on to those who come after you.

But what do we use that statesmanship for? We use it to accomplish great things that make our world a better place to live. And that is the second principle I wish to share: a drive to set the bar ever higher.

I could give numerous examples of how lawmakers have set and reset the bar, both personally and professionally, to improve the world around them. Representative Dolecheck and Senator Petersen, presented with the Herbert Hoover Award only yesterday, are but one example.

As we celebrate the 79th General Assembly, and its new inductees, on this final day of Women's History Month, I wish to conclude by sharing the achievements of many Iowa women who have set the bar higher:

- In my first year in the Legislature, Senator Mary Kramer was elected as the first woman President of the Iowa Senate.
- In 2006, Marsha Ternus became our first female Chief Justice.
- In 2014, Senator Joni Ernst was the first woman in Iowa to serve in Iowa's congressional delegation.
- In 2015, the daughter of a former Speaker, Linda Upmeyer, became the first female Speaker of the Iowa House.
- In 2017 Lt. Governor Kim Reynolds became Iowa's first female governor.
- In 2018 Representatives Cindy Axne and Abby Finkenauer became the first women from Iowa to serve in the U.S. House.
- And in 2022, Representatives Ashley Hinson and Mariannette Miller-Meeks turned our congressional delegation to majority female.

The increasing number of women in public service over the last two decades gives me confidence that the shoulders we stand on, and the impact we've made, matters.

To the inductees of the Class of 2021: The last 20 years have taught and challenged. These 20 years have given each of you opportunities to shine, to mentor your colleagues, to change the world around us for the better. Welcome to this group.

To everyone here: May our touchstones continue to be statesmanship and the drive to strive to raise the bar ever higher in our service to Iowans.

Representative Windschitl moved that the joint convention be dissolved.

The motion prevailed by a voice vote.

The Senate returned to the Senate chamber.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 2:31 p.m. until 1:00 p.m., Monday, April 4, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF HUMAN SERVICES

Nonreversion of Funds Quarterly Report, pursuant to 2021 Iowa Acts, Chapter 182, section 65. Report received on March 31, 2022.

CHIEF INFORMATION OFFICER

Status of Technology Upgrades or Enhancements for State Agencies Quarterly Report, pursuant to Iowa Code section 8B.9. Report received on March 31, 2022.

REPORTS OF COMMITTEE MEETINGS

APPROPRIATIONS

Convened: Thursday, March 31, 2022, 9:50 a.m.

Members Present: Kraayenbrink, Chair; Lofgren, Vice Chair; Bolkcom, Ranking Member; Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Petersen, Ragan, Reichman, Rozenboom, J. Smith, T. Taylor, and Williams.

Members Absent: Celsi and Mathis (both excused).

Committee Business: SF 2354 and HF 2147.

Adjourned: 10:15 a.m.

RULES AND ADMINISTRATION

Convened: Thursday, March 31, 2022, 9:10 a.m.

Members Present: Whitver, Chair; Chapman, Vice Chair; Wahls, Ranking Member; Bolkcom, Ragan, and Zumbach.

Members Absent: Brown, Jochum, Sinclair, R. Smith, and Zaun (all excused).

Committee Business: HCR 104.

Adjourned: 9:15 a.m.

WAYS AND MEANS

Convened: Thursday, March 31, 2022, 11:10 a.m.

Members Present: Dawson, Chair; Goodwin, Vice Chair; Jochum, Ranking Member; Bolkcom, Brown, Dickey, Dotzler, Green, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and Zaun.

Members Absent: Petersen and T. Taylor (both excused).

Committee Business: Gubernatorial appointments: Mark Kittrell, Economic Development Authority – Senator Dawson Pankaj Monga, Iowa Economic Development Authority – Senator Dawson Jennifer Steffensmeier, Iowa Economic Development Authority – Senator Dawson Douglas Boone, Iowa Economic Development Authority – Senator Dawson Duane Hagerty, Iowa Great Places Board – Senator Green Darryl High, Iowa Great Places Board – Senator Green Jacque Rahe, Great Places Board, Iowa – Senator Green Barbara Determan, Great Places Board, Iowa – Senator Sweeney SSB 3155 Antique vehicles – Senator Goodwin w/amendment SF 2361 Workforce bill – Senator Brown w/amendment SSB 3064 Constitutional tax limitation – Senator Dawson w/amendment.

Adjourned: 11:30 a.m.

INTRODUCTION OF BILL

Senate File 2380, by Whitver and Wahls, a bill for an act to designate February 1 of each year as George Washington Carver Day.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

SUBCOMMITTEE ASSIGNMENT

House File 2575

APPROPRIATIONS: Cournoyer, Chair; Kraayenbrink and J. Smith

FINAL COMMITTEE REPORTS OF BILL ACTION

APPROPRIATIONS

Bill Title: HOUSE FILE 2147, a bill for an act making an appropriation to support efforts relating to the U.S.S. Iowa and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 6: Bolkcom, Dotzler, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 2: Celsi and Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

RULES AND ADMINISTRATION

Bill Title: HOUSE CONCURRENT RESOLUTION 104, a concurrent resolution relating to Pioneer Lawmakers.

Recommendation: DO PASS.

Final Vote: Yeas, 6: Whitver, Chapman, Wahls, Bolkcom, Ragan, and Zumbach. Nays, none. Excused, 5: Brown, Jochum, Sinclair, R. Smith, and Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

REPORT OF THE SECRETARY OF THE SENATE

March 31, 2022

The Honorable Paul Pate
Secretary of State
Hand-Delivered

Re: Transmittal of Senate Joint Resolution 9 Relating to Qualifications of Electors

Dear Secretary Pate:

Please find the attached Senate Joint Resolution 9 for filing with your office. The Resolution deals with a proposed amendment to Iowa's Constitution relating to the qualifications of electors. The Iowa General Assembly will initiate the required publication process as outlined in Iowa Code chapter 49A.
Pursuant to Joint Senate/House Rule 21(2), this specific type of "joint resolution" does not require consideration and signature by the Governor.

Sincerely,

W. Charles Smithson
Secretary of the Senate

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of Sherrae Hanson for confirmation as a member of the Iowa Lottery Authority Board of Directors from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

AMENDMENTS FILED

S–5110	S.F.	577	House
S–5111	S.F.	348	House

JOINT MEMORIAL SERVICE
EIGHTY-NINTH GENERAL ASSEMBLY
SENATE CHAMBER
MARCH 31, 2022

PROGRAM

President Jake Chapman, Presiding

"Iowa, My Iowa"-……..……..……Memorial Choir

Invocation…….……President Jake Chapman

MEMORIALS

Readers: Sen. Celsi, Sen. Ragan, Sen. T. Taylor, Rep. Gobble, Rep. Jacobsen

Hon. Quentin Anderson [H/S] Hon. Elaine Baxter [H] Hon. Gary Blodgett [H]
Hon. Rich Byerly [H] Hon. John Clark [H] Hon. Dick Dearden [S]
Hon. Gene Fraise [S] Hon.Dennis Freeman [H] Hon. Robert Fuller [H]
Hon.Richard [Rick] Groth [H] Hon. Joan Hester [H]
Hon. Betty Hoffmann-Bright [H] Hon. C.W. [Bill] Hutchins [H/S]

"How Great Thou Art"……..……Memorial Choir

MEMORIALS

Readers: Sen. Bisignano, Rep. Jacobsen, Sen. Jochum, Rep. Bousselot, Rep. Steckman

Hon. Tom Jochum [H] Hon. Paul Johnson [H] Hon. Gerald Jones [H]
Hon. Gene V. Kennedy [H/S] Hon. John Landon [H] Hon. Clark Edward McNeal II [H]
Hon. Jay Mennenga [H] Hon. Dan Muhlbauer [H] Hon. Bill Palmer [H/S]

"American Anthem"……..……Memorial Choir

MEMORIALS

Readers: Sen. Ragan, Rep. Winckler, Rep. Running-Marquardt, Rep. Bousselot, Rep. Holt

Hon. Dennis Parmenter [H] Hon. Henry Rayhons [H] Hon. Laverne Schroeder [H]
Hon. Ray Taylor [H] Hon. Richard Taylor [H] Hon. Richard Vande Hoef [H/S]
Hon. James Van Engelenhoven [H] Hon. Harold Van Maanen [H]
Hon. Jack E. Woods [H] Hon. Mark Zieman [S] Hon. Jo Ann Zimmerman [H]

Responsorial Reading……Led by President Chapman

"God Be With You"……..……Memorial Choir

2022 Memorial Choir

Rep. Eddie Andrews
Ms. Mary Braun
Mrs. Deb Bush
Rep. Dennis Bush
Ms. Ashline Bussanmas
Ms. Cynthia Christy
Rep. Thomas Gerhold
Ms. Grace Gibbins
Mr. Wayne Gieselman
Ms. Kennedy Haag
Ms. Lydia Hand
Rep. Steven Holt
Rep. Tom Jeneary
Ms. Marlene Martens
Rep. Mary Mascher
Ms. Kelly Meyers
Mrs. Catherine Miller-Sands
Mr. Grant Pedersen
Ms. Maren Rasmussen
Ms. Cecilia Redman
Sen. David Rowley
Mr. Tom Sands
Mr. Isaac Schaben
Mr. Ryan Simatovich
Ms. Julie Smith
Ms. Beth Stearns
Mr. Christian Stillings
Sen. Annette Sweeney
Mrs. Diane Walsh

Choir Director: Rep. Rob Bacon
Pianists: Mrs. Margaret Guth
Ms. Cecilia Redman

IN MEMORIAM
SERVED IN THE SENATE

Hon. Dick Dearden (Polk) 76th, 77th, 78th, 79th, 79th X, 79th XX, 80th, 80th X, 80th XX, 81st, 81st X, 82nd, 83rd, 84th, 85th, 86th G.A. (1995-2017)

Hon. Gene Fraise (Lee) 71st, 72nd, 72nd X, 72nd XX, 73rd, 74th, 74th X, 74th XX, 75th, 76th, 77th, 78th, 79th, 79th X, 79th XX, 80th, 80th X, 80th XX, 81st, 81st X, 82nd, 83rd, 84th G.A. (1985-2013)

Hon. Mark Zieman (Allamakee) 79th, 79th X, 79th XX, 80th, 80th X, 80th XX, 81st, 81st X, 82nd G.A. (2001-2009)

SERVED IN THE SENATE AND IN THE HOUSE OF REPRESENTATIVES

Hon. Quentin Anderson (Ringgold) 60th, 61st, 63rd, 64th, 65th G.A. (1963-1975)

Hon. C.W. Bill Hutchins (Audubon) 65th, 66th, 67th, 67th X, 68th, 69th, 69th X, 69th XX, 70th, 71st, 72nd, 72nd X, 72nd XX, 73rd, 74th, 74th X, 74th XX G.A. (1973-1993)

Hon. Gene V. Kennedy (Dubuque) 63rd, 64th, 65th G.A. (1969-1975)

Hon. Bill Palmer (Polk) 61st, 62nd, 63rd, 64th, 65th, 66th, 67th, 67th X, 68th, 69th, 69th X, 69th XX, 70th, 71st, 72nd, 72nd X, 72nd XX, 73rd, 74th, 74th X, 74th XX, 75th, 76th, 77th G.A. (1965-1999)

Hon. Richard Vande Hoef (Osceola) 69th, 69th X, 69th XX, 70th, 71st, 72nd, 72nd X, 72nd XX, 73rd, 74th, 74th X, 74th XX, 75th, 76th, 77th G.A. (1981-1999)

SERVED IN THE HOUSE OF REPRESENTATIVES

Hon. Elaine Baxter (Des Moines) 69th, 70th, 71st G.A. (1982 - 1987)

Hon. Gary Blodgett (Cerro Gordo) 75th, 76th, 77th, 78th, G.A. (1993 - 2001)

Hon. Rich Byerly (Polk) 65th, 66th, 67th, 67th X, 68th, 69th, 69th X, 69th XX G.A. (1973-1983)

Hon. John Clark (Lee) 64th , 65th , 66th , 67th , 67th X, 68th , 69th , 69th X, 69th XX G.A. (1971-1983)

Hon. Dennis Freeman (Buena Vista) 63rd, 64th, 65th G.A. (1969-1975)

Hon. Robert Fuller (Hardin) 72nd, 72nd X, 72nd XX, 73rd G.A. (1987-1991)

Honorable Richard "Rick" Groth (Buena Vista) 68th, 69th, 69th X, 69th XX, 70th, 71st G.A. (1978-1987)

Hon. Joan Hester (Pottawattamie) 71st, 72nd, 72nd X, 72nd XX, 73rd, 74th, 74th X, 74th XX, 75th G.A. (1985-1995)

Hon. Betty Hoffmann-Bright (Muscatine) 67th, 67th X, 68th, 69th, 69th X, 69th XX, 70th G.A. (1979-1985)

Hon. Tom Jochum (Dubuque) 66th, 67th, 67th X,68th, 69th, 69th X, 69th XX, 70th, 71st, 72nd, 72nd X, 72nd XX, 73rd, 74th, 74th X, 74th XX G.A. (1975-1993)

Hon. Paul Johnson (Winneshiek) 71st, 72nd, 72nd X, 72nd XX, 73rd G.A. (1985-1991)

Hon. Gerald Jones (Mills) 79th, 79th X, 79th XX, 80th, 80th X, 80th XX, 81st, 81st X G.A. (2001-2007)

Hon. John Landon (Polk) 85th, 86th, 87th, 88th, 89th G.A. (2013-2021)

Hon. Clark McNeal II (Hardin) 74th, 74th X, 74th XX, 75th G.A. (1991-1995)

Hon. Jay Mennenga (Clinton) 65th, 66th G.A. (1973-1977)

Hon. Dan Muhlbauer (Crawford) 84th, 85th G.A. (2011-2015)

Hon. Dennis Parmenter (Story) 78th G.A. (1999-2001)

Hon. Henry Rayhons (Hancock) 77th, 78th, 79th, 79th X, 79th XX, 80th, 80th X, 80th XX, 81st, 81st X, 82nd, 83rd, 84th, 85th G.A. (1997-2015)

Hon. Laverne Schroeder (Pottawattamie) 62nd, 63rd, 64th, 65th, 66th, 67th, 67th X, 68th, 69th, 69th X, 69th XX, 70th G.A. (1967-1985)

Hon. Raymond Taylor (Dubuque) 64th G.A. (1971-1973)

Hon. Richard "Dick" Taylor (Linn) 78th, 79th, 79th X, 79th XX, 80th , 80thX, 80th XX, 81st, 81st X, 82nd, 83rd G.A. (1999-2011)

Hon. James Van Engelenhoven (Marion) 78th , 79th , 79th X, 79th XX, 80th, 80th X, 80th XX, 81st, 81st X, 82nd, 83rd, 84th G.A. (1999-2013)

Hon. Harold Van Maanen (Mahaska) 68th , 69th , 69th X, 69th XX, 70th , 71st , 72nd , 72nd X, 72nd XX, 73rd , 74th , 74th X, 74th XX, 75th , 76th , 77th G.A. (1979-1999)

Hon. Jack E. Woods (Polk) 65th, 66th , 67th , 67th X, 68th , 69th , 69th X, 69th XX, 70th , 71st G.A. (1973-1987)

Hon. Jo Ann Zimmerman (Dallas) 70th, 71st G.A. (1983-1987)

RESPONSORIAL READING

Please respond by reading the verses in *italics*

[Leader] In the rising of the sun and in its going down, we remember them.

In the blowing of the wind and in the chill of winter, we remember them.

[L] In the opening of the buds and in the rebirth of spring, we remember them.

In the blueness of the sky and in the warmth of summer, we remember them.

[L] In the rustling of the leaves and in the beauty of autumn, we remember them.

In the beginning of the year and when it ends, we remember them.

[L] When we are weary and in need of strength, we remember them.

When we are lost and sick at heart, we remember them.

[L] When we have joys we yearn to share, we remember them.

[ALL] *So long as we live, they too shall live,*

or they are now a part of us, as we remember them.

Senate Memorial Committee
Senator Tony Bisignano
Senator Claire Celsi
Senator Jesse Green
Senator Pam Jochum
Senator Craig Johnson
Senator Amanda Ragan
Senator Todd Taylor
Senator Roby Smith

House Memorial Committee
RepresentativeRob Bacon
Representative Sue Cahill
RepresentativeCecil Dolecheck
Representative Lindsay James
Representative Brent Siegrist

Candle Lighters
Mr. Greg Heartsill
Senator Craig Johnson
Representative Monica Kurth
Senator Roby Smith
Senator Sarah Trone-Garriott

Hosts
Senator Dennis Guth
Representative Bruce Hunter

Co-Coordinators: Jason Chapman [House] & Maureen Taylor [Senate]
Flowers Arranged by Hy-Vee, West Des Moines, Iowa
Refreshments provided by Hy-Vee

JOURNAL OF THE SENATE

EIGHTY-FIFTH CALENDAR DAY
FORTY-NINTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, April 4, 2022

The Senate met in regular session at 1:02 p.m., Senator Rozenboom presiding.

Prayer was offered by the Honorable Sarah Trone Garriott, member of the Senate from Dallas County, West Des Moines, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Jackson Maddox.

The Journal of Thursday, March 31, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 1:10 p.m. until 9:00 a.m., Tuesday, April 5, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF AGRICULTURE AND LAND STEWARDSHIP

Department of Agriculture and Land Stewardship Expenditures, pursuant to 2021 Iowa Acts, Chapter 143, section 1. Report received on April 1, 2022.

DEPARTMENT OF HUMAN SERVICES

Department of Human Services Operational and Program Expenditures Report, pursuant to 2021 Iowa Acts, Chapter 182, section 28. Report received on April 4, 2022.

CERTIFICATE OF RECOGNITION

The Secretary of the Senate issued the following certificate of recognition:

Jordon Bohannon, University of Iowa—For his outstanding and record-setting career achievements in men's basketball. Senator Boulton.

INTRODUCTION OF RESOLUTION

Senate Joint Resolution 2006, by committee on Ways and Means, a joint resolution proposing an amendment to the Constitution of the State of Iowa requiring a two-thirds majority vote for certain state tax law changes.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

INTRODUCTION OF BILLS

Senate File 2381, by committee on Appropriations, a bill for an act relating to pregnancy support including by creating the more options for maternal support program and expanding Medicaid postpartum coverage and making appropriations.

Read first time under Rule 28 and **placed on Appropriations calendar**.

Senate File 2382, by committee on Ways and Means, a bill for an act relating to electric motor vehicle registration fees for antique motor vehicles.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

Senate File 2383, by committee on Ways and Means, a bill for an act relating to various matters under the purview of the state, including city and county inspections, work-based learning, recruitment of health care professionals, regulations affecting veterans and military spouses, insurance producer temporary licenses, and including applicability provisions.

Read first time under Rule 28 and **placed on Ways and Means calendar**.

SUBCOMMITTEE ASSIGNMENTS

House File 2551

WAYS AND MEANS: Goodwin, Chair; Quirmbach and Zaun

House File 2556

WAYS AND MEANS: Goodwin, Chair; Dawson and T. Taylor

FINAL COMMITTEE REPORTS OF BILL ACTION

APPROPRIATIONS

Bill Title: *SENATE FILE 2381 (formerly SF 2354), a bill for an act relating to pregnancy support including by creating the more options for maternal support program and expanding Medicaid postpartum coverage and making appropriations.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 6: Bolkcom, Dotzler, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 2: Celsi and Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Appropriations Committee on Senate File 2381, and they were attached to the committee report.

WAYS AND MEANS

Bill Title: *SENATE JOINT RESOLUTION 2006 (SSB 3064), a joint resolution proposing an amendment to the Constitution of the State of Iowa requiring a two-thirds majority vote for certain state tax law changes.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 11: Dawson, Goodwin, Brown, Dickey, Green, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and Zaun. Nays, 4: Jochum, Bolkcom, Dotzler, and Quirmbach. Excused, 2: Petersen and T. Taylor.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate Joint Resolution 2006, and they were attached to the committee report.

ALSO:

**Bill Title: ***SENATE FILE 2382 (SSB 3155), a bill for an act relating to electric motor vehicle registration fees for antique motor vehicles.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Green, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and Zaun. Nays, none. Excused, 2: Petersen and T. Taylor.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2382, and they were attached to the committee report.

ALSO:

**Bill Title: ***SENATE FILE 2383 (formerly SF 2361), a bill for an act relating to various matters under the purview of the state, including city and county inspections, work-based learning, recruitment of health care professionals, regulations affecting veterans and military spouses, insurance producer temporary licenses, and including applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 15: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Green, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, and Zaun. Nays, none. Excused, 2: Petersen and T. Taylor.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

*Pursuant to Rule 40, the Legislative Services Agency reported nonsubstantive changes to the members of the Ways and Means Committee on Senate File 2383, and they were attached to the committee report.

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of Michael Wallace for confirmation as a member of the Elevator Safety Board from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

JOURNAL OF THE SENATE

EIGHTY-SIXTH CALENDAR DAY
FIFTIETH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, April 5, 2022

The Senate met in regular session at 9:04 a.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Johnson, member of the Senate from Buchanan County, Independence, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Maren Rasmussen.

The Journal of Monday, April 4, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on April 4, 2022, **passed** the following bills in which the concurrence of the House was asked:

Senate File 2260, a bill for an act providing for the adoption of certain animals confined by research facilities.

Senate File 2323, a bill for an act relating to the inventory of lands managed or owned by the department of natural resources or a county conservation board, and including applicability provisions.

Senate File 2366, a bill for an act relating to the assessment and taxation of wind energy conversion property and including effective date, applicability, and retroactive applicability provisions.

ALSO: That the House has on April 4, 2022, **amended and passed** the following bill in which the concurrence of the Senate is asked:

Senate File 2290, a bill for an act establishing a dairy processing and milk production innovation and revitalization fund and program to be administered by the economic development authority, in consultation with the department of agriculture and land stewardship, and requiring the department to study the feasibility of establishing an artisanal dairy processing program at a community college or at an institution governed by the state board of regents. (S–5112)

ALSO: That the House has on April 4, 2022, **concurred** in the Senate amendment **and passed** the following bills in which the concurrence of the House was asked:

House File 803, a bill for an act relating to duties performed by physician assistants.

House File 2239, a bill for an act relating to the discovery of evidence in a criminal or postconviction relief action involving victims of sexual abuse.

ALSO: That the House has on April 4, 2022, **amended** the Senate amendment, **concurred** in the Senate amendment **as amended**, **and passed** the following bill in which the concurrence of the Senate is asked:

House File 2160, a bill for an act relating to assisted reproduction and providing penalties. (S–5113)

ALSO: That the House has on April 4, 2022, **passed** the following bill in which the concurrence of the Senate is asked:

House File 2576, a bill for an act relating to the practice of barbering and cosmetology arts and sciences, including fees, and providing transition provisions.

Read first time and referred to the committee on **Ways and Means**.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 110.

Senate Resolution 110

On motion of Senator Ragan, **Senate Resolution 110**, a resolution honoring Senator Joe Bolkcom for his service in the Iowa Senate, was taken up for consideration.

The Senate rose and expressed its tribute to Senator Bolkcom.

Senator Bolkcom addressed the Senate with brief remarks.

Senator Ragan moved the adoption of Senate Resolution 110, which motion prevailed by a voice vote.

RECESS

On motion of Senator Whitver, the Senate recessed at 10:24 a.m. until 1:00 p.m.

RECONVENED

The Senate reconvened at 1:09 p.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Dawson and Zaun, until they arrive, on request of Senator Whitver.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 604.

House File 604

On motion of Senator Rozenboom, **House File 604**, a bill for an act relating to language and literacy development for deaf and hard-of-hearing children, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Rozenboom offered amendment S–5114, filed by him from the floor to pages 1–6 of the bill, and moved its adoption.

Amendment S–5114 was adopted by a voice vote.

Senator Rozenboom moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 604), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 604** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2381.

Senate File 2381

On motion of Senator Costello, **Senate File 2381**, a bill for an act relating to pregnancy support including by creating the more options for maternal support program and expanding Medicaid postpartum coverage and making appropriations, was taken up for consideration.

Senator Petersen offered amendment S–5116, filed by her from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5116 be adopted?" (S.F. 2381), the vote was:

Yeas, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Nays, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Kraayenbrink
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zumbach		

Absent, 2:

Dawson	Zaun

Amendment S–5116 lost.

Senator Costello moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2381), the vote was:

Yeas, 32:

Bisignano	Brown	Carlin	Chapman
Costello	Cournoyer	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Nunn
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zumbach

Nays, 16:

Bolkcom	Boulton	Celsi	Dotzler
Giddens	Hogg	Jochum	Lykam
Mathis	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 2:

Dawson	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2381** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2383.

Senate File 2383

On motion of Senator Brown, **Senate File 2383**, a bill for an act relating to various matters under the purview of the state, including city and county inspections, work-based learning, recruitment of health care professionals, regulations affecting veterans and military spouses, insurance producer temporary licenses, and including applicability provisions, was taken up for consideration.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2383), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2330, 2300, 2154, and 2097.

House File 2330

On motion of Senator Williams, **House File 2330**, a bill for an act relating to electronic delivery of certain insurance notices and documents, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Williams moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2330), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2300

On motion of Senator Lofgren, **House File 2300**, a bill for an act relating to protections for certain members of the military concerning employment and insurance coverage and making penalties applicable, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Lofgren moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2300), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2154

On motion of Senator R. Smith, **House File 2154**, a bill for an act relating to release of certain records maintained by the statewide fire and police retirement system, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending amendment and passage, was taken up for consideration.

Senator R. Smith offered amendment S–5057, filed by the committee on State Government on March 10, 2022, to page 1 of the bill, and moved its adoption.

Amendment S–5057 was adopted by a voice vote.

Senator R. Smith moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2154), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2097

On motion of Senator Rowley, **House File 2097**, a bill for an act relating to forfeiture of bail, placed on the Unfinished Business Calendar on March 22, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Rowley moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2097), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis

Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2383** and **House Files 2097**, **2154**, **2300**, and **2330** be **immediately messaged** to the House.

HOUSE AMENDMENTS CONSIDERED

Senate File 522

Senator Whitver called up for consideration **Senate File 522**, a bill for an act relating to older individuals and dependent adults and creating certain criminal offenses and civil actions, and providing penalties, amended by the House in House amendment S–5088, filed March 24, 2022.

Senator Garrett moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Garrett moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 522), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 586

Senator Whitver called up for consideration **Senate File 586**, a bill for an act relating to banks, making appropriations, providing civil penalties, and making civil penalties applicable, amended by the House in House amendment S–5104, filed March 30, 2022.

Senator Williams moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Williams moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 586), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2086, 2171, and 2194.

Senate File 2086

On motion of Senator Koelker, **Senate File 2086**, a bill for an act relating to the membership, procedures, and functions of the Iowa council on homelessness, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Koelker offered amendment S–5019, filed by her on February 23, 2022, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5019 was adopted by a voice vote.

Senator Koelker asked and received unanimous consent that **House File 2258** be **substituted** for **Senate File 2086**.

House File 2258

On motion of Senator Koelker, **House File 2258**, a bill for an act relating to the membership, procedures, and functions of the Iowa council on homelessness, was taken up for consideration.

Senator Koelker moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2258), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Koelker asked and received unanimous consent that **Senate File 2086** be **withdrawn** from further consideration of the Senate.

Senate File 2171

On motion of Senator Edler, **Senate File 2171**, a bill for an act relating to programs and services under the purview of the department of human services including child care assistance, child and family services, foster care, adoption, and the dependent adult abuse information registry, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Edler offered amendment S–5115, filed by him from the floor, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5115 was adopted by a voice vote.

Senator Edler asked and received unanimous consent that **House File 2252** be **substituted** for **Senate File 2171**.

House File 2252

On motion of Senator Edler, **House File 2252**, a bill for an act relating to programs and services under the purview of the department of human services including child care assistance, child and family services, foster care, adoption, and the dependent adult abuse information registry, was taken up for consideration.

Senator Edler moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2252), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan

Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Edler asked and received unanimous consent that **Senate File 2171** be **withdrawn** from further consideration of the Senate.

Senate File 2194

On motion of Senator Williams, **Senate File 2194**, a bill for an act relating to preneed sellers and purchase agreements for cemetery merchandise, funeral merchandise, and funeral services, providing penalties, and including applicability provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Williams asked and received unanimous consent that **House File 2155** be **substituted** for **Senate File 2194**.

House File 2155

On motion of Senator Williams, **House File 2155**, a bill for an act relating to preneed sellers and purchase agreements for cemetery merchandise, funeral merchandise, and funeral services, providing penalties, and including applicability provisions, was taken up for consideration.

Senator Williams moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2155), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zumbach

Nays, none.

Absent, 2:

Dawson Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Williams asked and received unanimous consent that **Senate File 2194** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 522** and **586** and **House Files 2155**, **2252**, and **2258** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Brown, the Senate adjourned at 3:00 p.m. until 9:00 a.m., Wednesday, April 6, 2022.

APPENDIX

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Lorene Meek, Toledo—For celebrating her 102nd birthday. Senator Sweeney.

Vern Woebbeking, Lincoln—For celebrating his 90th birthday. Senator Sweeney.

Willie Mae Wright, Waterloo—For celebrating her 90th birthday. Senator Dotzler.

INTRODUCTION OF RESOLUTION

Senate Resolution 110, by committee on Rules and Administration, a resolution honoring Senator Joe Bolkcom for his service in the Iowa Senate.

Read first time under Rule 28 and **placed on calendar**.

AMENDMENTS FILED

S–5112	S.F.	2290	House
S–5113	H.F.	2160	House
S–5114	H.F.	604	Ken Rozenboom
S–5115	S.F.	2171	Jeff Edler
S–5116	S.F.	2381	Janet Petersen
S–5117	H.F.	2147	Appropriations

JOURNAL OF THE SENATE

EIGHTY-SEVENTH CALENDAR DAY
FIFTY-FIRST SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, April 6, 2022

The Senate met in regular session at 9:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Zach Nunn, member of the Senate from Polk County, Altoona, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Cecelia Redman.

The Journal of Tuesday, April 5, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on April 4, 2022, **passed** the following bills in which the concurrence of the House was asked:

Senate File 513, a bill for an act relating to persons experiencing a mental health crisis, substance-related disorder crisis, or housing crisis.

Senate File 2370, a bill for an act relating to aircraft, including special certificates issued to aircraft manufacturers, transporters, and dealers, and sales tax exemptions associated with aircraft, providing fees, making penalties applicable, and including effective date and applicability provisions.

ALSO: That the House has on April 4, 2022, **passed** the following bills in which the concurrence of the Senate is asked:

House File 2562, a bill for an act relating to property law, including mobile homes and manufactured housing, rental agreements, landlord and tenant remedies for retaliation, wrongful failure to provide essential services, rent increases, the sale of manufactured home community or mobile home park, regulation by counties and cities of continuing nonconforming uses of manufactured, modular, and mobile homes, forcible entry and detainer actions, abandoned mobile homes, and including effective date and applicability provisions.

Read first time and attached to **similar Senate File 2379**.

House File 2578, a bill for an act relating to appropriations for health and human services and veterans and including other related provisions and appropriations, providing penalties, and including effective date and retroactive and other applicability date provisions.

Read first time and referred to committee on **Appropriations**.

House File 2579, a bill for an act relating to and making appropriations to state departments and agencies from the rebuild Iowa infrastructure fund and the technology reinvestment fund, providing for related matters, and including effective date and retroactive applicability provisions.

Read first time and referred to committee on **Appropriations**.

House File 2581, a bill for an act providing for programs and regulations administered and enforced by the department of agriculture and land stewardship, providing fees, providing penalties, and making penalties applicable.

Read first time and referred to committee on **Ways and Means**.

House File 2582, a bill for an act creating a state sales tax rebate to the owner or operator of a newly constructed baseball and softball park project.

Read first time and referred to committee on **Ways and Means**.

SPECIAL GUESTS

Senator J. Taylor introduced to the Senate chamber the Orange City Tulip Festival Queen and her court.

The Senate rose and expressed its welcome.

RECESS

On motion of Senator Whitver, the Senate recessed at 9:18 a.m. until the completion of a meeting of the committee on State Government.

RECONVENED

The Senate reconvened at 12:43 p.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senator Hogg, until he arrives, on request of Senator Wahls; and Senators Dawson, Lofgren, and Zaun, until they arrive, on request of Senator Whitver.

HOUSE AMENDMENT CONSIDERED

Senate File 577

Senator Whitver called up for consideration **Senate File 577**, a bill for an act relating to a certificate of nonviable birth, amended by the House in House amendment S–5110, filed March 31, 2022.

Senator Sinclair moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Sinclair moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 577), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zumbach		

Nays, none.

Absent, 4:

Dawson	Hogg	Lofgren	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2168 and 2174.

Senate File 2168

On motion of Senator Costello, **Senate File 2168**, a bill for an act relating to violations by a health care facility, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Costello asked and received unanimous consent that **House File 2172** be **substituted** for **Senate File 2168.**

House File 2172

On motion of Senator Costello, **House File 2172**, a bill for an act relating to the use of an electronic device in a voice-activated or hands-free mode while driving, providing penalties, and making penalties applicable, was taken up for consideration.

Senator Costello moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2172), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zumbach		

Nays, none.

Absent, 4:

Dawson	Hogg	Lofgren	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Costello asked and received unanimous consent that **Senate File 2168** be **withdrawn** from further consideration of the Senate.

Senate File 2174

On motion of Senator Costello, **Senate File 2174**, a bill for an act relating to child welfare, including provisions relating to foster care and the child advocacy board, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Costello offered amendment S–5119, filed by Senators Edler and Costello from the floor, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5119 was adopted by a voice vote.

Senator Costello asked and received unanimous consent that **House File 2390** be **substituted** for **Senate File 2174**.

House File 2390

On motion of Senator Costello, **House File 2390**, a bill for an act relating to child welfare, including provisions relating to foster care and the child advocacy board, was taken up for consideration.

Senator Costello offered amendment S–5118, filed by Senators Edler and Costello from the floor to page 1 of the bill, and moved its adoption.

Amendment S–5118 was adopted by a voice vote.

Senator Costello moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2390), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zumbach		

Nays, none.

Absent, 4:

Dawson	Hogg	Lofgren	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Costello asked and received unanimous consent that **Senate File 2174** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 577** and **House Files 2172** and **2390** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2237 and 2282; and House Files 825, 2340, and 2399.

Senate File 2237

On motion of Senator Williams, **Senate File 2237**, a bill for an act relating to financial reporting by insurance holding company systems, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Williams asked and received unanimous consent that **House File 2217** be **substituted** for **Senate File 2237**.

House File 2217

On motion of Senator Williams, **House File 2217**, a bill for an act relating to financial reporting by insurance holding company systems, was taken up for consideration.

Senator Williams moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2217), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zumbach		

Nays, none.

Absent, 4:

Dawson	Hogg	Lofgren	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Williams asked and received unanimous consent that **Senate File 2237** be **withdrawn** from further consideration of the Senate.

Senate File 2282

On motion of Senator Garrett, **Senate File 2282**, a bill for an act providing for the removal of municipal utility board members under specified circumstances and including effective date provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Garrett offered amendment S–5120, filed by him from the floor, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5120 was adopted by a voice vote.

Senator Garrett asked and received unanimous consent that **House File 2475** be **substituted** for **Senate File 2282**.

House File 2475

On motion of Senator Garrett, **House File 2475**, a bill for an act providing for the removal of municipal utility board members under specified circumstances and including effective date provisions, was taken up for consideration.

Senator Garrett moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2475), the vote was:

Yeas, 42:

Bisignano	Brown	Carlin	Celsi
Chapman	Costello	Cournoyer	Dickey
Dotzler	Driscoll	Edler	Garrett
Giddens	Goodwin	Green	Guth
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zumbach		

Nays, 5:

Bolkcom	Boulton	Jochum	Quirmbach
Smith, J.			

Absent, 3:

Dawson	Hogg	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Garrett asked and received unanimous consent that **Senate File 2282** be **withdrawn** from further consideration of the Senate.

House File 825

On motion of Senator J. Taylor, **House File 825**, a bill for an act relating to consent agreements for domestic abuse and sexual abuse protective orders, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator J. Taylor moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 825), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zumbach	

Nays, none.

Absent, 3:

Dawson	Hogg	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2340

On motion of Senator Cournoyer, **House File 2340**, a bill for an act relating to public safety nuisances concerning licensed premises where alcoholic beverages, wine, or beer is sold or consumed, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending amendment and passage, was taken up for consideration.

Senator Cournoyer offered amendment S–5071, filed by the committee on State Government on March 16, 2022, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5071 was adopted by a voice vote.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2340), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zumbach	

Nays, none.

Absent, 3:

Dawson	Hogg	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2399

On motion of Senator Klimesh, **House File 2399**, a bill for an act relating to reimbursement for health care services provided after receipt of a prior authorization, and including applicability provisions, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Klimesh moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2399), the vote was:

Yeas, 47:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zumbach	

Nays, none.

Absent, 3:

Dawson	Hogg	Zaun

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 825**, **2217**, **2340**, **2399**, and **2475** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Cournoyer, the Senate adjourned at 1:28 p.m. until 9:00 a.m., Thursday, April 7, 2022.

APPENDIX

REPORTS OF COMMITTEE MEETINGS

COMMERCE

Convened: Wednesday, April 6, 2022, 1:35 p.m.

Members Present: Schultz, Chair; Koelker, Vice Chair; Giddens, Ranking Member; Chapman, Goodwin, Johnson, Klimesh, Lykam, Nunn, Petersen, Quirmbach, Sinclair, R. Smith, and Williams.

Members Absent: Bisignano, Brown, and Mathis (all excused).

Committee Business: Governor's Appointments.

Adjourned: 1:40 p.m.

LOCAL GOVERNMENT

Convened: Wednesday, April 6, 2022, 2:10 p.m.

Members Present: Shipley, Chair; Klimesh, Vice Chair; J. Smith, Ranking Member; Driscoll, Garrett, Guth, Lofgren, T. Taylor, and Williams.

Members Absent: Hogg and Quirmbach (both excused).

Committee Business: Governor's Appointments.

Adjourned: 2:15 p.m.

VETERANS AFFAIRS

Convened: Wednesday, April 6, 2022, 10:30 a.m.

Members Present: Lofgren, Chair; Reichman, Vice Chair; Giddens, Ranking Member; Carlin, Costello, Dotzler, Edler, Green, and Ragan.

Members Absent: Dawson and Mathis (both excused).

Committee Business: Governor's Appointments.

Adjourned: 11:00 a.m.

SUBCOMMITTEE ASSIGNMENTS

Senate File 2380

RULES AND ADMINISTRATION: R. Smith, Chair; Wahls and Zumbach

House File 2517

APPROPRIATIONS: Costello, Chair; T. Taylor and Williams

House File 2573

APPROPRIATIONS: Garrett, Chair; Bolkcom and Cournoyer

House File 2574

APPROPRIATIONS: Costello, Chair; Guth and J. Smith

REPORT OF THE SECRETARY OF THE SENATE

April 6, 2022

Members of the Senate Ethics Committee
Via Email

Re: Report of Personal Financial Disclosure Forms by Senate Candidates

Dear Senate Ethics Committee Members:

Pursuant to Iowa Code section 68B.35 and Senate Ethics Rule 11A, candidates for the Senate are required to file Personal Financial Disclosure Statements. Rule 11A also requires the Secretary of the Senate to inform the Ethics Committee with the results of these filings.

As a reminder, the Committee sponsored Senate Resolution 101 adopting Rule 11A. Candidates are now required to file statements within fourteen days of the candidate filing deadline. If the statement is not filed, the Secretary of the Senate is to issue notice that the individual has five days to file or be subject to a $50 penalty and possible referral to the Committee.

1. The candidate filing deadline concluded on March 18, 2022. An official candidate list was posted on March 21, 2022. Therefore, the deadline for filing statements was April 4, 2022.

2. With the exception of one individual, by the end of April 4, 2022, all Senate candidates on the primary election ballot and both candidates who are on the general election ballot had filed.

3. The remaining candidate was issued a "Past Due Notice" on April 5, 2022. The individual then filed the statement almost immediately.

As such, all candidates have now filed the statements and the same will be posted to the General Assembly Website today. No further action by the Committee is required. I do want to thank the Committee for helping implement Senate Ethics Rule 11A. The new rule was instrumental in creating a smooth and expeditious filing period. If additional candidates are placed on the ballot this year, I will file supplemental reports with the Committee as to compliance with Rule 11A.

Respectfully submitted,

W. Charles Smithson
Secretary of the Senate

GOVERNOR'S APPOINTEES PLACED ON INDIVIDUAL CONFIRMATION CALENDAR

The following appointees, assigned to standing committees for investigation, were placed on the Individual Confirmation Calendar with recommendation for confirmation:

LABOR AND BUSINESS RELATIONS

Erik Helland (Reappt)– Chair and member of the Public Employment Relations Board

VETERANS AFFAIRS

Steven Lukan – Executive Director of the Department of Veterans Affairs

GOVERNOR'S APPOINTEES PLACED ON EN BLOC CONFIRMATION CALENDAR

The following appointees, assigned to standing committees for investigation, were placed on the En Bloc Confirmation Calendar with recommendation for confirmation:

AGRICULTURE

Lyle Borg – Agricultural Development Board

Rhonda Shelman – Iowa Grain Indemnity Fund Board
Michael Winter – Iowa Grain Indemnity Fund Board

Dennis Carlson – State Soil Conservation and Water Quality Committee

APPROPRIATIONS

Rita Frahm – Enhance Iowa Board
Brad Leeper – Enhance Iowa Board
Steve Roesner – Enhance Iowa Board
Valerie Van Kooten – Enhance Iowa Board
Mary Wells – Enhance Iowa Board

COMMERCE

Tyler Campbell – Credit Union Review Board
Jordan Hensley – Credit Union Review Board
Jami Weems – Credit Union Review Board

Bob Holz – Iowa Telecommunications and Technology Commission

LABOR AND BUSINESS RELATIONS

James Strohman – Employment Appeal Board

Kiya Boozell – Plumbing and Mechanical Systems Board
Mike O'Day – Plumbing and Mechanical Systems Board
Shon Smith – Plumbing and Mechanical Systems Board
Randy Watts – Plumbing and Mechanical Systems Board

Josh Cobbs – Iowa Workforce Development Board
Carrie Duncan – Iowa Workforce Development Board
Kellie Gottner – Iowa Workforce Development Board
Rich Kurtenbach – Iowa Workforce Development Board
Deborah Mauricio – Iowa Workforce Development Board
Matthew Nicol – Iowa Workforce Development Board

LOCAL GOVERNMENT

Chris McKee – City Development Board
Dennis Plautz – City Development Board

Jenny Blankenship – County Finance Committee

STATE GOVERNMENT

Aaron Sewell – Commission on the Status of African Americans
Whitney Smith – Commission on the Status of African Americans

Stephen Larson – Administrator of the Alcoholic Beverages Division

Dan Dutcher – Architectural Examining Board

Caleb Lillquist – Commission of Asian and Pacific Islander Affairs
Karlai Thornburg – Commission of Asian and Pacific Islander Affairs
Shaochen Yu – Commission of Asian and Pacific Islander Affairs

Maureen Hardy – Board of Barbering

Geneva Jacobsen – Commission for the Blind

Bret Brecke – Boiler and Pressure Vessel Board
Kenneth Lamb – Boiler and Pressure Vessel Board
Daniel LaPole – Boiler and Pressure Vessel Board
Lynne Rush – Boiler and Pressure Vessel Board
Nathan Whipple – Boiler and Pressure Vessel Board

Bobbi Baker-Maynes – Commission on Community Action Agencies
Kevin Brown – Commission on Community Action Agencies
John Murphy – Commission on Community Action Agencies

Jeremy Kemp – Board of Cosmetology Arts and Sciences
Joshua Spencer – Board of Cosmetology Arts and Sciences

Tina Caloud – Commission of Deaf Services

Troy Tilleraas – Elevator Safety Board

Todd Mithelman – Interior Design Examining Board

Tami Loge – Investment Board of the Iowa Public Employees' Retirement System

Dana Wingert – Iowa Lottery Authority Board of Directors

Eugene Cherny – Board of Medicine
Rose Kleyweg Mitchell – Board of Medicine
Jason Meyers – Board of Medicine
Vickie Pyevich – Board of Medicine
Joyce Vista-Wayne – Board of Medicine

Maria Lundberg – Board of Mortuary Science
David Moore – Board of Mortuary Science

John Big Eagle, Jr. – Commission of Native American Affairs

Jacklyn Barber – Board of Nursing
Brian Feist – Board of Nursing
Gordon Goettsch – Board of Nursing
Casey Kenneavy – Board of Nursing

Patricia Ross – Board of Nursing Home Administrators
Tracy Trotter – Board of Nursing Home Administrators

Heidi Wood – Optometry, Board of

Robert Egeland – Board of Pharmacy
Dane Nealson – Board of Pharmacy
Joan Skogstrom – Board of Pharmacy
Kathryn (Kathy) Stone – Board of Pharmacy

Kevin de Regnier – Board of Physician Assistants
Laura Delaney – Board of Physician Assistants
Amber Houge – Board of Physician Assistants
Michael Schnurr – Board of Physician Assistants

Justin Rhode – Board of Psychology
Lisa Streyffeler – Board of Psychology
Sara Swansen – Board of Psychology

Daniel Breitbarth – Iowa Public Information Board
Emil Giovannetti – Iowa Public Information Board

James McCrea – Iowa Public Information Board
Monica McHugh – Iowa Public Information Board
Jackie Schmillen – Iowa Public Information Board

Mark Oiler – Board of Trustees of the Iowa Department of Public Safety Peace Officers' Retirement, Accident, and Disability System

Julie Andres – State Racing and Gaming Commission

Andrew Lauver – Commission on the Status of Women
Esperance Nibizi – Commission on the Status of Women
Sherill Whisenand – Commission on the Status of Women

VETERANS AFFAIRS

Elizabeth Ledvina – Commission of Veterans Affairs
George Mosby – Commission of Veterans Affairs
Carol Whitmore – Commission of Veterans Affairs

WAYS AND MEANS

Doug Boone – Economic Development Authority
Mark Kittrell – Economic Development Authority
Pankaj Monga – Economic Development Authority
Jennifer Steffensmeier – Economic Development Authority

Barbara Determan – Iowa Great Places Board
Duane Hagerty – Iowa Great Places Board
Darryl High – Iowa Great Places Board
Jacque Rahe – Iowa Great Places Board

GOVERNOR'S APPOINTEES PLACED ON EN BLOC CONFIRMATION CALENDAR

The following appointees, assigned to standing committees for investigation, were placed on the En Bloc Confirmation Calendar without recommendation for confirmation:

STATE GOVERNMENT

Jeremy Price – Electrical Examining Board

Jack Jones – Engineering and Land Surveying Examining Board

Devon Wood – Board of Nursing Home Administrators

Mona Alqulali – Board of Physician Assistants

PLACEMENT ON INDIVIDUAL CONFIRMATION CALENDAR

MR. PRESIDENT: Pursuant to Senate Rule 59, I hereby request that the name of Daniel Breitbarth to Iowa Public Information Board be removed from the "En Bloc Confirmation Calendar" and placed on the "Individual Confirmation Calendar".

PAM JOCHUM

AMENDMENTS FILED

S–5118	H.F.	2390	Jeff Edler Mark Costello
S–5119	S.F.	2174	Jeff Edler Mark Costello
S–5120	S.F.	2282	Julian B. Garrett

JOURNAL OF THE SENATE

EIGHTY-EIGHTH CALENDAR DAY
FIFTY-SECOND SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, April 7, 2022

The Senate met in regular session at 9:04 a.m., Senator R. Smith presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Grace Tollefson.

The Journal of Wednesday, April 6, 2022, was approved.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on April 6, 2022, **passed** the following bill in which the concurrence of the House was asked:

Senate File 2298, a bill for an act authorizing a local emergency management commission to assume the duties of a joint 911 service board.

ALSO: That the House has on April 6, 2022, **amended and passed** the following bill in which the concurrence of the Senate is asked:

Senate File 581, a bill for an act relating to deer population management. (S–5121)

ALSO: That the House has on April 6, 2022, **concurred** in the Senate amendment **and passed** the following bills in which the concurrence of the House was asked:

House File 604, a bill for an act relating to language and literacy development for deaf and hard-of-hearing children.

House File 736, a bill for an act relating to limitations on activities related to paid claims under the Medicaid program, and including effective date provisions.

House File 2154, a bill for an act relating to release of certain records maintained by the statewide fire and police retirement system.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:22 a.m. until 1:00 p.m., Monday, April 11, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF NATURAL RESOURCES

Department of Natural Resources Quarterly Expenditure Report, pursuant to 2021 Iowa Acts, Chapter 143, section 14. Report received on April 7, 2022.

CERTIFICATE OF RECOGNITION

The Secretary of the Senate issued the following certificate of recognition:

David Shilling and Extreme Body Shaping—Upon celebration of their grand reopening. Senator Nunn.

SUBCOMMITTEE ASSIGNMENTS

House File 2581

WAYS AND MEANS: Sweeney, Chair; Green and T. Taylor

House File 2582

WAYS AND MEANS: Goodwin, Chair; Jochum and R. Smith

AMENDMENT FILED

S–5121 S.F. 581 House

JOURNAL OF THE SENATE

NINETY-SECOND CALENDAR DAY
FIFTY-THIRD SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, April 11, 2022

The Senate met in regular session at 1:02 p.m., President Chapman presiding.

Prayer was offered by the Honorable Jake Chapman, president of the Senate from Dallas County, Adel, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Ian Critelli.

The Journal of Thursday, April 7, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 1:04 p.m. until 9:00 a.m., Tuesday, April 12, 2022.

APPENDIX

INTRODUCTION OF RESOLUTIONS

Senate Resolution 111, by committee on Rules and Administration, a resolution honoring Senator Jim Lykam for his years of service in the Iowa General Assembly.

Read first time under Rule 28 and **placed on calendar**.

Senate Resolution 112, by committee on Rules and Administration, a resolution honoring Senator Jim Carlin for his service in the Iowa Senate.

Read first time under Rule 28 and **placed on calendar**.

Senate Resolution 113, by committee on Rules and Administration, a resolution honoring Senator Tim Goodwin for his years of service in the Iowa Senate.

Read first time under Rule 28 and **placed on calendar**.

Senate Resolution 114, by committee on Rules and Administration, a resolution honoring Senator Zach Nunn for his service in the Iowa Senate.

Read first time under Rule 28 and **placed on calendar**.

Senate Resolution 115, by Cournoyer, a resolution urging the Governor and the Director of the Department of Transportation to develop plans for the new Interstate 80 bridge over the Mississippi River in Scott County that include the incorporation of the Bison Bridge.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

JOURNAL OF THE SENATE

NINETY-THIRD CALENDAR DAY
FIFTY-FOURTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, April 12, 2022

The Senate met in regular session at 9:05 a.m., President Chapman presiding.

Prayer was offered by the Honorable Zach Nunn, member of the Senate from Polk County, Altoona, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Kennedy Haag.

The Journal of Monday, April 11, 2022, was approved.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 111.

Senate Resolution 111

On motion of Senator Dotzler, **Senate Resolution 111**, a resolution honoring Senator Jim Lykam for his years of service in the Iowa General Assembly, was taken up for consideration.

The Senate rose and expressed its tribute to Senator Lykam.

Senator Lykam addressed the Senate with brief remarks.

Senator Dotzler moved the adoption of Senate Resolution 111, which motion prevailed by a voice vote.

The Senate stood at ease at 9:51 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 10:45 a.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Rozenboom and Williams, until they arrive, on request of Senator Whitver.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2185 and 2242.

Senate File 2185

On motion of Senator J. Taylor, **Senate File 2185**, a bill for an act relating to documents that may be filed pro se by a defendant represented by counsel or an applicant for postconviction relief represented by counsel, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator J. Taylor asked and received unanimous consent that **House File 2222** be **substituted** for **Senate File 2185**.

House File 2222

On motion of Senator J. Taylor, **House File 2222**, a bill for an act relating to documents that may be filed pro se by a defendant represented by counsel or an applicant for postconviction relief represented by counsel, was taken up for consideration.

Senator J. Taylor moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2222), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Zaun	Zumbach

Nays, none.

Absent, 2:

Rozenboom	Williams

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator J. Taylor asked and received unanimous consent that **Senate File 2185** be **withdrawn** from further consideration of the Senate.

Senate File 2242

On motion of Senator Zaun, **Senate File 2242**, a bill for an act relating to controlled substances, including amending the controlled substance schedules and information collection and reporting requirements under the Iowa prescription monitoring program, and including effective date provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Zaun asked and received unanimous consent that **House File 2201** be **substituted** for **Senate File 2242**.

House File 2201

On motion of Senator Zaun, **House File 2201**, a bill for an act relating to controlled substances, including amending the controlled substance schedules and information collection and reporting requirements under the Iowa prescription monitoring program, and including effective date provisions, was taken up for consideration.

Senator Zaun moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2201), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Zaun	Zumbach

Nays, none.

Absent, 2:

Rozenboom	Williams

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Zaun asked and received unanimous consent that **Senate File 2242** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2201** and **2222** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2378.

House File 2378

On motion of Senator R. Smith, **House File 2378**, a bill for an act relating to pari-mutuel wagering, concerning distribution of horse racing purse moneys and establishing a fund for certain race horse organizations, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator R. Smith moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2378), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Zaun	Zumbach		

Nays, 2:

Costello	Guth

Absent, 2:

Rozenboom	Williams

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF BILL
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2382.

Senate File 2382

On motion of Senator Goodwin, **Senate File 2382**, a bill for an act relating to electric motor vehicle registration fees for antique motor vehicles, was taken up for consideration.

Senator Goodwin moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2382), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Zaun	Zumbach

Nays, none.

Absent, 2:

Rozenboom Williams

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Joint Resolution 2006.

Senate Joint Resolution 2006

On motion of Senator Dawson, **Senate Joint Resolution 2006**, a joint resolution proposing an amendment to the Constitution of the State of Iowa requiring a two-thirds majority vote for certain state tax law changes, was taken up for consideration.

Senate Joint Resolution 2006, a joint resolution proposing an amendment to the Constitution of the State of Iowa requiring a two-thirds majority vote for certain state tax law changes. BE IT RESOLVED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA: Section 1. The following amendment to the Constitution of the State of Iowa is proposed: Article III, Legislative Department, Constitution of the State of Iowa, is hereby amended by adding the following new section: Sec. 41. **Two-thirds majority vote for state tax law changes.** Passage of a bill that increases the individual income tax rate or the corporate income tax rate shall require the affirmative votes of at least two-thirds of the members elected to each house of the general assembly. This requirement does not apply to taxes imposed at the option of a local government. Passage of a bill that establishes a new tax to be imposed by the state shall require the affirmative votes of at least two-thirds of the members elected to each house of the general assembly. A lawsuit challenging the proper enactment of a bill under this section must be filed no later than one year following the enactment. If such a lawsuit is not filed within the one-year limit, the bill shall be considered properly enacted under this section. Each bill to which this section applies must include a separate provision describing the requirements for enactment prescribed by this

section. The general assembly shall enact laws to implement this section. Sec. 2. REFERRAL AND PUBLICATION. The foregoing proposed amendment to the Constitution of the State of Iowa is referred to the general assembly to be chosen at the next general election for members of the general assembly, and shall be published as provided by law for three months previous to the date of that election.

Senator Dawson moved that the resolution be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the resolution was read the last time.

On the question "Shall the resolution be adopted?" (S.J.R. 2006), the vote was:

Yeas, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Zaun	Zumbach		

Nays, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Absent, 2:

Rozenboom	Williams

The resolution, having received a constitutional majority, was declared to have been adopted by the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Joint Resolution 2006**, **Senate File 2382**, and **House File 2378** be **immediately messaged** to the House.

President Pro Tempore Zaun took the chair at 11:15 a.m.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 112.

Senate Resolution 112

On motion of Senator Klimesh, **Senate Resolution 112**, a resolution honoring Senator Jim Carlin for his service in the Iowa Senate, was taken up for consideration.

The Senate rose and expressed its tribute to Senator Carlin.

Senator Carlin addressed the Senate with brief remarks.

Senator Klimesh moved the adoption of Senate Resolution 112, which motion prevailed by a voice vote.

President Chapman took the chair at 12:22 p.m.

CONFIRMATION OF GOVERNOR'S APPOINTMENTS
(Individual Confirmation Calendar)

Senator Whitver called up the appointment of Rodney Bradley as a member of the State Board of Education, placed on the Individual Confirmation Calendar on March 1, 2022, found on page 427 of the Senate Journal.

Senator J. Taylor moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Zaun	Zumbach

Nays, none.

Absent, 2:

Rozenboom	Williams

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

Senator Whitver called up the appointment of Cindy Dietz as a member of the State Board of Education, placed on the Individual Confirmation Calendar on March 30, 2022, found on page 668 of the Senate Journal.

Senator Sinclair moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Schultz

Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Zaun	Zumbach

Nays, none.

Absent, 2:

Rozenboom	Williams

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

Senator Whitver called up the appointment of Cassandra Halls as a member of the State Board of Education, placed on the Individual Confirmation Calendar on March 30, 2022, found on page 668 of the Senate Journal.

Senator Sinclair moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Zaun	Zumbach

Nays, none.

Absent, 2:

Rozenboom	Williams

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

Senator Whitver called up the appointment of Michael Cavin as Executive Director of the Board of Educational Examiners, placed on the Individual Confirmation Calendar on March 1, 2022, found on page 427 of the Senate Journal.

Senator Sinclair moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Zaun	Zumbach

Nays, none.

Absent, 2:

Rozenboom	Williams

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

Senator Whitver called up the appointment of Steven Lukan as Executive Director of the Iowa Department of Veterans Affairs, placed on the Individual Confirmation Calendar on April 6, 2022, found on page 727 of the Senate Journal.

Senator Lofgren moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Zaun	Zumbach

Nays, none.

Absent, 2:

Rozenboom Williams

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

Senator Whitver called up the appointment of Matthew Peterson as Commandant of the Iowa Veterans Home, placed on the Individual Confirmation Calendar on February 15, 2022, found on page 297 of the Senate Journal.

Senator Edler moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Hogg
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Schultz

Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Zaun	Zumbach

Nays, none.

Absent, 2:

Rozenboom	Williams

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

CONSIDERATION OF RESOLUTIONS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolutions 114 and 113.

Senate Resolution 114

On motion of Senator Sinclair, **Senate Resolution 114**, a resolution honoring Senator Zach Nunn for his service in the Iowa Senate, was taken up for consideration.

The Senate rose and expressed its tribute to Senator Nunn.

Senator Nunn addressed the Senate with brief remarks.

Senator Sinclair moved the adoption of Senate Resolution 114, which motion prevailed by a voice vote.

Senate Resolution 113

On motion of Senator Sinclair, **Senate Resolution 113**, a resolution honoring Senator Tim Goodwin for his years of service in the Iowa Senate, was taken up for consideration.

The Senate rose and expressed its tribute to Senator Goodwin.

Senator Goodwin addressed the Senate with brief remarks.

Senator Sinclair moved the adoption of Senate Resolution 113, which motion prevailed by a voice vote.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on April 12, 2022, **concurred** in the Senate amendment **and passed** the following bills in which the concurrence of the House was asked:

House File 2340, a bill for an act relating to public safety nuisances concerning licensed premises where alcoholic beverages, wine, or beer is sold or consumed.

House File 2390, a bill for an act relating to child welfare, including provisions relating to foster care and the child advocacy board.

ALSO: That the House has on April 12, 2022, **amended and passed** the following bills in which the concurrence of the Senate is asked:

Senate File 333, a bill for an act relating to authorized emergency vehicles, making penalties applicable, and including effective date and applicability provisions. (S–5123)

Senate File 2287, a bill for an act relating to used catalytic converter transactions, providing penalties, and making penalties applicable. (S–5122)

Senate File 2297, a bill for an act relating to jury service disqualification for certain felons. (S–5126)

Senate File 2374, a bill for an act relating to alcoholic beverage control and licensing, providing for fees, and including effective date provisions. (S–5124)

Senate File 2376, a bill for an act relating to annual all-systems permits issued by the department of transportation for vehicles of excessive weight, and including effective date provisions. (S–5125)

ADJOURNMENT

On motion of Senator Goodwin, the Senate adjourned at 2:00 p.m. until 9:00 a.m., Wednesday, April 13, 2022.

APPENDIX

SUBCOMMITTEE ASSIGNMENTS

House File 2576

WAYS AND MEANS: Zaun, Chair; Goodwin and Jochum

House File 2578

APPROPRIATIONS: Costello, Chair; Edler and Ragan

House File 2579

APPROPRIATIONS: Johnson, Chair; Lofgren and Petersen

AMENDMENTS FILED

S–5122	S.F.	2287	House
S–5123	S.F.	333	House
S–5124	S.F.	2374	House
S–5125	S.F.	2376	House
S–5126	S.F.	2297	House

JOURNAL OF THE SENATE

NINETY-FOURTH CALENDAR DAY
FIFTY-FIFTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, April 13, 2022

The Senate met in regular session at 9:05 a.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Williams, member of the Senate from Carroll County, Manning, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Elizabeth Hunter.

The Journal of Tuesday, April 12, 2022, was approved.

HOUSE MESSAGE RECEIVED AND CONSIDERED

The following message was received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on April 12, 2022, **amended and passed** the following bill in which the concurrence of the Senate is asked:

Senate File 2378, a bill for an act relating to beverages, including the barrel tax and the acceptance of beverage containers for refund value, providing penalties, and including effective date provisions. (S–5127)

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 118.

Senate Resolution 118

On motion of Senator Jochum, **Senate Resolution 118**, a resolution honoring Senator Liz Mathis for her years of service in the Iowa Senate, was taken up for consideration.

The Senate rose and expressed its tribute to Senator Mathis.

Senator Mathis addressed the Senate with brief remarks.

Senator Jochum moved the adoption of Senate Resolution 118, which motion prevailed by a voice vote.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Sinclair asked and received unanimous consent to take up for consideration Senate Resolution 117.

Senate Resolution 117

On motion of Senator T. Taylor, **Senate Resolution 117**, a resolution honoring Senator Robert Hogg for his service in the Iowa Senate, was taken up for consideration.

The Senate rose and expressed its tribute to Senator Hogg.

President Pro Tempore Zaun took the chair at 10:39 a.m.

Senator Hogg addressed the Senate with brief remarks.

Senator T. Taylor moved the adoption of Senate Resolution 117, which motion prevailed by a voice vote.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 116.

Senate Resolution 116

On motion of Senator Zumbach, **Senate Resolution 116**, a resolution honoring Senator Craig Johnson for his service in the Iowa Senate, was taken up for consideration.

The Senate rose and expressed its tribute to Senator Johnson.

President Chapman took the chair at 11:37 a.m.

Senator Johnson addressed the Senate with brief remarks.

Senator Zumbach moved the adoption of Senate Resolution 116, which motion prevailed by a voice vote.

RECESS

On motion of Senator Whitver, the Senate recessed at 12:13 p.m. until the completion of a meeting of the committee on Rules and Administration.

RECONVENED

The Senate reconvened at 12:15 p.m., President Chapman presiding.

CONSIDERATION OF RESOLUTIONS
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolutions 119 and 120.

Senate Resolution 119

On motion of Senator Whitver, **Senate Resolution 119**, a resolution deferring action on the confirmation of certain appointments submitted by the Governor, with report of committee recommending passage, was taken up for consideration.

Senator Whitver moved the adoption of Senate Resolution 119, which motion prevailed by a voice vote.

Senate Resolution 120

On motion of Senator Whitver, **Senate Resolution 120**, a resolution deferring action on the confirmation of certain appointments, with report of committee recommending passage, was taken up for consideration.

Senator Whitver moved the adoption of Senate Resolution 120, which motion prevailed by a voice vote.

ADJOURNMENT

On motion of Senator Koelker, the Senate adjourned at 12:34 p.m. until 9:00 a.m., Thursday, April 14, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF HUMAN SERVICES

Nursing Facilities Private Room Supplementation Report, pursuant to Iowa Code section 249A.4. Report received on April 13, 2022.

STATE PUBLIC DEFENDER

Joint Investment Trust Report, pursuant to Iowa Code section 12B.10A. Report received on April 12, 2022.

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on April 12, 2022.

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Barb Bauch, Traer—For celebrating her 90th birthday. Senator Sweeney.

Fern Groeneveld, Eldora—For celebrating her 100th birthday. Senator Sweeney.

Maxine Shutts, Grinnell—For celebrating her 100th birthday. Senator Sweeney.

REPORTS OF COMMITTEE MEETINGS

APPROPRIATIONS

Convened: Wednesday, April 13, 2022, 1:00 p.m.

Members Present: Kraayenbrink, Chair; Lofgren, Vice Chair; Bolkcom, Ranking Member; Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Mathis, Petersen, Ragan, Rozenboom, J. Smith, and T. Taylor.

Members Absent: Reichman and Williams (both excused).

Committee Business: HF 2517, HF 2573, and HF 2557.

Adjourned: 1:50 p.m.

RULES AND ADMINISTRATION

Convened: Wednesday, April 13, 2022, 12:10 p.m.

Members Present: Whitver, Chair; Chapman, Vice Chair; Wahls, Ranking Member; Bolkcom, Brown, Jochum, Ragan, Zaun, and Zumbach.

Members Absent: Sinclair and R. Smith (both excused).

Committee Business: SR 119 and SR 120.

Adjourned: 12:15 p.m.

INTRODUCTION OF RESOLUTIONS

Senate Resolution 116, by committee on Rules and Administration, a resolution honoring Senator Craig Johnson for his service in the Iowa Senate.

Read first time under Rule 28 and **placed on calendar**.

Senate Resolution 117, by committee on Rules and Administration, a resolution honoring Senator Robert Hogg for his service in the Iowa Senate.

Read first time under Rule 28 and **placed on calendar**.

Senate Resolution 118, by committee on Rules and Administration, a resolution honoring Senator Liz Mathis for her years of service in the Iowa Senate.

Read first time under Rule 28 and **placed on calendar**.

Senate Resolution 119, by Whitver, a resolution deferring action on the confirmation of certain appointments submitted by the Governor.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

Senate Resolution 120, by Whitver, a resolution deferring action on the confirmation of certain appointments.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

FINAL COMMITTEE REPORTS OF BILL ACTION

APPROPRIATIONS

Bill Title: HOUSE FILE 2517, a bill for an act relating to the reversion of moneys appropriated for a governance and funding of levee districts study, and including effective date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 19: Kraayenbrink, Lofgren, Bolkcom, Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Mathis, Petersen, Ragan, Rozenboom, J. Smith, and T. Taylor. Nays, none. Excused, 2: Reichman and Williams.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2557, a bill for an act relating to transportation and other infrastructure-related appropriations to the department of transportation, including allocation and use of moneys from the road use tax fund and the primary road fund.

Recommendation: DO PASS.

Final Vote: Yeas, 19: Kraayenbrink, Lofgren, Bolkcom, Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Mathis, Petersen, Ragan, Rozenboom, J. Smith, and T. Taylor. Nays, none. Excused, 2: Reichman and Williams.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

RULES AND ADMINISTRATION

Bill Title: SENATE RESOLUTION 119, a resolution deferring action on the confirmation of certain appointments submitted by the Governor.

Recommendation: DO PASS.

Final Vote: Yeas, 9: Whitver, Chapman, Wahls, Bolkcom, Brown, Jochum, Ragan, Zaun, and Zumbach. Nays, none. Excused, 2: Sinclair and R. Smith.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: SENATE RESOLUTION 120, a resolution deferring action on the confirmation of certain appointments.

Recommendation: DO PASS.

Final Vote: Yeas, 9: Whitver, Chapman, Wahls, Bolkcom, Brown, Jochum, Ragan, Zaun, and Zumbach. Nays, none. Excused, 2: Sinclair and R. Smith.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

AMENDMENTS FILED

S–5127	S.F.	2378	House
S–5128	H.F.	2130	Carrie Koelker Waylon Brown

JOURNAL OF THE SENATE

NINETY-FIFTH CALENDAR DAY
FIFTY-SIXTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, April 14, 2022

The Senate met in regular session at 9:01 a.m., Senator Cournoyer presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Thomas Knudsen.

The Journal of Wednesday, April 13, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:03 a.m. until 1:00 p.m., Monday, April 18, 2022.

APPENDIX

FINAL COMMITTEE REPORT OF BILL ACTION

APPROPRIATIONS

Bill Title: HOUSE FILE 2573, a bill for an act creating funds relating to the abatement of and response to opioid use.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5129.

Final Vote: Yeas, 19: Kraayenbrink, Lofgren, Bolkcom, Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Mathis, Petersen, Ragan, Rozenboom, J. Smith, and T. Taylor. Nays, none. Excused, 2: Reichman and Williams.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

AMENDMENT FILED

S–5129 H.F. 2573 Appropriations

JOURNAL OF THE SENATE

NINETY-NINTH CALENDAR DAY
FIFTY-SEVENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, April 18, 2022

The Senate met in regular session at 1:08 p.m., President Chapman presiding.

Prayer was offered by the Honorable Craig Johnson, member of the Senate from Buchanan County, Independence, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Jackson Maddox.

The Journal of Thursday, April 14, 2022, was approved.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 121.

Senate Resolution 121

On motion of Senator Bolkcom, **Senate Resolution 121**, a resolution honoring Senator Amanda Ragan for her service in the Iowa Senate, was taken up for consideration.

The Senate rose and expressed its tribute to Senator Ragan.

Senator Ragan addressed the Senate with brief remarks.

Senator Bolkcom moved the adoption of Senate Resolution 121, which motion prevailed by a voice vote.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Sinclair asked and received unanimous consent to take up for consideration Senate Resolution 122.

Senate Resolution 122

On motion of Senator Klimesh, **Senate Resolution 122**, a resolution honoring Senator Craig Williams for his service in the Iowa Senate, was taken up for consideration.

The Senate rose and expressed its tribute to Senator Williams.

Senator Williams addressed the Senate with brief remarks.

Senator Klimesh moved the adoption of Senate Resolution 122, which motion prevailed by a voice vote.

The Senate stood at ease at 2:31 p.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 3:25 p.m., President Chapman presiding.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Goodwin, until he arrives, on request of Senator Whitver.

HOUSE AMENDMENT CONSIDERED

Senate File 333

Senator Whitver called up for consideration **Senate File 333**, a bill for an act relating to authorized emergency vehicles, making penalties applicable, and including effective date and applicability provisions, amended by the House in House amendment S–5123, filed April 12, 2022.

Senator Koelker moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Koelker moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 333), the vote was:

Yeas, 33:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Green	Guth
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Nunn
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun
Zumbach			

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Mathis	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 1:

Goodwin

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 333** be **immediately messaged** to the House.

HOUSE AMENDMENTS CONSIDERED

Senate File 2324

Senator Whitver called up for consideration **Senate File 2324**, a bill for an act relating to the designation of real estate teams and the display of real estate licenses, and including applicability provisions, amended by the House in House amendment S–5103, filed March 30, 2022.

Senator R. Smith moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator R. Smith moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2324), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Goodwin

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2376

Senator Whitver called up for consideration **Senate File 2376**, a bill for an act relating to annual all-systems permits issued by the department of transportation for vehicles of excessive weight, and including effective date provisions, amended by the House in House amendment S–5125, filed April 12, 2022.

Senator Brown moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Brown moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2376), the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dotzler	Driscoll
Edler	Garrett	Giddens	Green
Guth	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, 1:

Dickey

Absent, 1:

Goodwin

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 2324** and **2376** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2191 and 2192.

Senate File 2191

On motion of Senator Cournoyer, **Senate File 2191**, a bill for an act relating to authorized uses of interest earned on funds in the flood recovery fund and including effective date provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Cournoyer asked and received unanimous consent that **House File 2515** be **substituted** for **Senate File 2191**.

House File 2515

On motion of Senator Cournoyer, **House File 2515**, a bill for an act relating to authorized uses of interest earned on funds in the flood recovery fund and including effective date provisions, was taken up for consideration.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2515), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Goodwin

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Cournoyer asked and received unanimous consent that **Senate File 2191** be **withdrawn** from further consideration of the Senate.

Senate File 2192

On motion of Senator Cournoyer, **Senate File 2192**, a bill for an act concerning state agency response to a proclamation of disaster emergency, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Cournoyer asked and received unanimous consent that **House File 2295** be **substituted** for **Senate File 2192**.

House File 2295

On motion of Senator Cournoyer, **House File 2295**, a bill for an act concerning state agency response to a proclamation of disaster emergency, was taken up for consideration.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2295), the vote was:

Yeas, 49:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Mathis
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 1:

Goodwin

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Cournoyer asked and received unanimous consent that **Senate File 2192** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2295** and **2515** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2198.

House File 2198

On motion of Senator Johnson, **House File 2198**, a bill for an act relating to the minimum age requirements for employees and substitutes working at a child care center, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending amendment and passage, was taken up for consideration.

Senator Edler offered amendment S–5063, filed by the committee on Human Resources on March 16, 2022, to page 1 and amending the title page of the bill.

Senator Jochum offered amendment S–5130, filed by Senator Jochum, et al., from the floor to page 1 of amendment S–5063, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5130 to amendment S–5063 be adopted?" (H.F. 2198), the vote was:

Yeas, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Nays, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Green	Guth
Johnson	Klimesh	Koelker	Kraayenbrink
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun	Zumbach	

Absent, 1:

Goodwin

Amendment S–5130 to amendment S–5063 lost.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Carlin, until he arrives, on request of Senator Sinclair.

Senator Edler moved the adoption of amendment S–5063.

A record roll call was requested.

On the question "Shall amendment S–5063 be adopted?" (H.F. 2198), the vote was:

Yeas, 30:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Green	Guth	Johnson
Klimesh	Koelker	Kraayenbrink	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams
Zaun	Zumbach		

Nays, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Absent, 2:

Carlin	Goodwin

Amendment S–5063 was adopted.

Senator Johnson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2198), the vote was:

Yeas, 30:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Green	Guth	Johnson
Klimesh	Koelker	Kraayenbrink	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams
Zaun	Zumbach		

Nays, 18:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Hogg	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Absent, 2:

Carlin	Goodwin

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2198** be **immediately messaged** to the House.

CONFIRMATION OF GOVERNOR'S APPOINTMENTS

In accordance with Senate Rule 59, Senator Whitver called up the following eligible appointees on the En Bloc Confirmation Calendar:

Allen Kockler, Accountancy Examining Board
Michelle O'Neill, Accountancy Examining Board
Jessica Richter, Accountancy Examining Board

Aaron Sewell, Commission on the Status African Americans
Whitney Smith McIntosh, Commission on the Status of African Americans

Lyle Borg, Agricultural Development Board

Stephen Larson, Administrator of the Alcoholic Beverages Division

Sara Winkleman, Alcoholic Beverages Commission

Dan Dutcher, Architectural Examining Board

Caleb Lillquist, Commission of Asian and Pacific Islander Affairs
Karlai Thornburg, Commission of Asian and Pacific Islander Affairs
Shaochen Yu, Commission of Asian and Pacific Islander Affairs

Andrew Jedlicka, Board of Athletic Training
Emily Reese, Board of Athletic Training
Austin Steil, Board of Athletic Training

Stephanie Boyle, Iowa Autism Council
Pam Gronau, Iowa Autism Council
Colin Wixted, Iowa Autism Council

Maureen Hardy, Board of Barbering

Nolan Byrnes, Board of Behavioral Science
Echo Kent, Board of Behavioral Science
Kerry Lust, Board of Behavioral Science
Amy Mooney, Board of Behavioral Science
Blake Stephenson, Board of Behavioral Science
Maria Valdovinos, Board of Behavioral Science

Geneva Jacobsen, Commission for the Blind

Bret Brecke, Boiler and Pressure Vessel Board
Kenneth Lamb, Boiler and Pressure Vessel Board
Daniel LaPole, Boiler and Pressure Vessel Board
Lynne Rush, Boiler and Pressure Vessel Board
Nathan Whipple, Boiler and Pressure Vessel Board

Donald Logan, Child Advocacy Board
Rick McIntosh, Child Advocacy Board
William Owens, Child Advocacy Board
Angela Stokes, Child Advocacy Board

Jennifer Banta, Early Childhood Iowa State Board
Michael Linnenbrink, Early Childhood Iowa State Board
Dawn Oliver Wiand, Early Childhood Iowa State Board

Andrew Allen, Children's Behavioral Health System State Board
Nathan Noble, Children's Behavioral Health System State Board
Kari Price, Children's Behavioral Health System State Board
Jason Sandholdt, Children's Behavioral Health System State Board

Christina McKee, City Development Board
Dennis Plautz, City Development Board

Stanley Thompson, Director of the Iowa Civil Rights Commission

Bobbi Baker-Maynes, Commission on Community Action Agencies
Kevin Brown, Commission on Community Action Agencies
John Murphy, Commission on Community Action Agencies

Jeremy Kemp, Board of Cosmetology Arts and Sciences
Joshua Spencer, Board of Cosmetology Arts and Sciences

Jenny Blankenship, County Finance Committee

Tyler Campbell, Credit Union Review Board
Jordan Hensley, Credit Union Review Board
Jami Weems, Credit Union Review Board

Tina Caloud, Commission of Deaf Services

Gregory Ceraso, Board of Dentistry
Lisa Holst, Board of Dentistry
Thomas Peek, Board of Dentistry

Julie Eichenberger, Board of Dietetics
Philip Pitzen, Board of Dietetics
Nicholas Rouse, Board of Dietetics

Jessica Fasselius, Commission of Persons with Disabilities
Adam Koch Disabilities, Commission of Persons with Disabilities (Reappointment)
Clint Sargent, Commission of Persons with Disabilities
Beth Wilde, Commission of Persons with Disabilities

Jason Feaker, Drug Policy Advisory Council
David McDaniel, Drug Policy Advisory Council

Douglas Boone, Economic Development Authority
Mark Kittrell, Economic Development Authority
Pankaj Monga, Economic Development Authority
Jennifer Steffensmeier, Economic Development Authority

Kathy Behrens, Board of Educational Examiners
Timothy McKinney, Board of Educational Examiners

Colby Black, Electrical Examining Board
Sara Fasching, Electrical Examining Board (Reappointment)
Jonathan Gettler, Electrical Examining Board

Craig Clabaugh, Elevator Safety Board
Kerry Dixon, Elevator Safety Board
Troy Tilleraas, Elevator Safety Board

James Strohman, Employment Appeal Board

Paul Herold, Engineering and Land Surveying Examining Board

Rita Frahm, Enhance Iowa Board
Brad Leeper, Enhance Iowa Board
Steve Roesner, Enhance Iowa Board
Valerie Van Kooten, Enhance Iowa Board
Mary Wells, Enhance Iowa Board

Daniel Jessop, Iowa Ethics and Campaign Disclosure Board
Leah Rodenberg, Iowa Ethics and Campaign Disclosure Board

Rhonda Shelman, Iowa Grain Indemnity Fund Board
Michael Winter, Iowa Grain Indemnity Fund Board

Barbara Determan, Iowa Great Places Board
Duane Hagerty, Iowa Great Places Board
Darryl High, Iowa Great Places Board
Jacque Rahe, Iowa Great Places Board

Shawn Garrington, Healthy and Well Kids in Iowa (HAWK-I) Board
Mary Nelle Trefz, Healthy and Well Kids in Iowa (HAWK-I) Board

Rick Knudson, Board of Hearing Aid Specialists
Molly Parker, Board of Hearing Aid Specialists
Tricia Veik, Board of Hearing Aid Specialists

Randy Fehr, Iowa Higher Education Loan Authority

Amy Guhl, Interior Design Examining Board
Todd Mithelman, Interior Design Examining Board

Tami Loge, Investment Board of the Iowa Public Employees' Retirement System

Dee Sandquist, Justice Advisory Board
Monique Scarlett, Justice Advisory Board

Colleen Byrnes, Landscape Architectural Examining Board
M. Martz, Landscape Architectural Examining Board
Brenda Nelson, Landscape Architectural Examining Board

Jose Ayala, Commission of Latino Affairs (Reappointment)
Juan Himar Hernandez, Commission of Latino Affairs (Reappointment)
Isabel Yanez, Commission of Latino Affairs

Tiffany Hamilton-Howell, Iowa Law Enforcement Academy Council
Ricardo Martinez II, Iowa Law Enforcement Academy Council
Elizabeth Quinn, Iowa Law Enforcement Academy Council

Dana Wingert, Iowa Lottery Authority Board of Directors

Douglas Dollison, Board of Massage Therapy
Amy Heinz, Board of Massage Therapy
Jacob Schrader, Board of Massage Therapy
LeAnn Stevens, Board of Massage Therapy

Eugene Cherny, Board of Medicine
Rose Kleyweg Mitchell, Board of Medicine
Jason Meyers, Board of Medicine
Vickie Pyevich, Board of Medicine
Joyce Vista-Wayne, Board of Medicine

Betsy Akin, Mental Health and Disability Services Commission
Teresa Daubitz, Mental Health and Disability Services Commission
Sue Gehling, Mental Health and Disability Services Commission
Jack Seward, Jr., Mental Health and Disability Services Commission
Cory Turner, Mental Health and Disability Services Commission
Kenneth Wayne, Mental Health and Disability Services Commission

Maria Lundberg, Board of Mortuary Science
David Moore, Board of Mortuary Science

John Big Eagle Jr., Commission of Native American Affairs,

Jacklyn Barber, Board of Nursing
Brian Feist, Board of Nursing
Gordon Goettsch, Board of Nursing
Casey Kenneavy, Board of Nursing

Patricia Ross, Board of Nursing Home Administrators
Tracy Trotter, Board of Nursing Home Administrators

Heidi Wood, Board of Optometry

Meredith Lamberti, Board of Parole (Reappointment)

Robert Egeland, Board of Pharmacy
Dane Nealson, Board of Pharmacy
Joan Skogstrom, Board of Pharmacy
Kathryn (Kathy) Stone, Board of Pharmacy

Holly Little, Board of Physical and Occupational Therapy
Brett Speirs, Board of Physical and Occupational Therapy

Mona Alqulali, Board of Physician Assistants
Kevin de Regnier, Board of Physician Assistants
Laura Delaney, Board of Physician Assistants
Amber Houge, Board of Physician Assistants
Michael Schnurr, Board of Physician Assistants

Kiya Boozell, Plumbing and Mechanical Systems Board
Michael O'Day, Plumbing and Mechanical Systems Board
Shon Smith, Plumbing and Mechanical Systems Board
Randy Watts, Plumbing and Mechanical Systems Board

Theresa Hughes, Board of Podiatry
Eugene Nassif, Jr., Board of Podiatry
Kelsey Sukovaty, Board of Podiatry (Reappointment)

Justin Rhode, Board of Psychology
Lisa Streyffeler, Board of Psychology
Sara Swansen, Board of Psychology

Emil Giovannetti, Iowa Public Information Board
James McCrea, Iowa Public Information Board
Monica McHugh, Iowa Public Information Board
Jackie Schmillen, Iowa Public Information Board

Mark Oiler, Board of Trustees of the Iowa Department of Public Safety Peace Officers' Retirement, Accident, and Disability System

Brian Ohorilko, Administrator of the State Racing and Gaming Commission

Julie Andres, State Racing and Gaming Commission

Loretta Laubach, Real Estate Appraiser Examining Board
Cody Seeley, Real Estate Appraiser Examining Board

Cynthia Duncan, Board of Respiratory Care and Polysomnography
Thomas Graham, Board of Respiratory Care and Polysomnography
Benjamin Jagow, Board of Respiratory Care and Polysomnography

Patricia Schroeder, School Budget Review Committee
Leland Tack, School Budget Review Committee

Amanda Gallant, Board of Sign Language Interpreters and Transliterators
Dylan Heuer, Board of Sign Language Interpreters and Transliterators

Aaron Culley, Board of Social Work

Jordan Cook, Board of Speech Pathology and Audiology
Kevin Kock, Board of Speech Pathology and Audiology
Stacy Robinson, Board of Speech Pathology and Audiology

Bob Holz, Iowa Telecommunications and Technology Commission,

Lorene Mein, Commission on Tobacco Use Prevention and Control
Robert Nichols, Commission on Tobacco Use Prevention and Control
Bridget Saffold, Commission on Tobacco Use Prevention and Control

Raymond Gaesser, State Transportation Commission
Linda Juckette, State Transportation Commission

Elizabeth Ledvina, Commission of Veterans Affairs
George Mosby, Commission of Veterans Affairs (Reappointment)
Carol Whitmore, Commission of Veterans Affairs

Scott Shuey, Iowa Board of Veterinary Medicine

Andrew Lauver, Commission on the Status of Women
Esperance Nibizi, Commission on the Status of Women
Sherill Whisenand, Commission on the Status of Women

Josh Cobbs, Iowa Workforce Development Board
Carrie Duncan, Iowa Workforce Development Board
Kellie Gottner, Iowa Workforce Development Board
Deborah Lord Mauricio, Iowa Workforce Development Board (Reappointment)
Matthew Nicol, Iowa Workforce Development Board

Senator Whitver moved that the foregoing appointees be confirmed by the Senate.

On the question "Shall the appointees be confirmed?" the vote was:

Yeas, 48:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Green
Guth	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Carlin	Goodwin

The appointees, having received a two-thirds vote, were declared to have been confirmed by the Senate.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 4:40 p.m. until 9:00 a.m., Tuesday, April 19, 2022.

APPENDIX

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Captain Clarissa Atwell, Urbandale—For being awarded the Iowa Distinguished Foreign Service medal. Senator Nunn.

Governor Terry E. Branstad, Johnston—For being awarded the Iowa Distinguished Foreign Service medal. Senator Nunn.

Floyd and Kathy Hammer, Union—For being awarded the Iowa Distinguished Foreign Service medal. Senator Nunn.

Nabi Mohammadi, Des Moines—For being awarded the Iowa Distinguished Foreign Service medal. Senator Nunn.

Bonnie Olsen, Waterloo—For celebrating her 100th birthday. Senator Dotzler.

Major General Timothy Orr, Boone—For being awarded the Iowa Distinguished Foreign Service medal. Senator Nunn.

Taras Slyvka, Dubuque—For being awarded the Iowa Distinguished Foreign Service medal. Senator Nunn.

REPORT OF COMMITTEE MEETING

RULES AND ADMINISTRATION

Convened: Monday, April 18, 2022, 4:40 p.m.

Members Present: Whitver, Chair; Chapman, Vice Chair; Wahls, Ranking Member; Bolkcom, Brown, Jochum, Ragan, R. Smith, and Zumbach.

Members Absent: Sinclair and Zaun (both excused).

Committee Business: SF 2380.

Adjourned: 4:45 p.m.

INTRODUCTION OF RESOLUTIONS

Senate Resolution 121, by committee on Rules and Administration, a resolution honoring Senator Amanda Ragan for her service in the Iowa Senate.

Read first time under Rule 28 and **placed on calendar**.

Senate Resolution 122, by committee on Rules and Administration, a resolution honoring Senator Craig Williams for his service in the Iowa Senate.

Read first time under Rule 28 and **placed on calendar**.

STUDY BILLS RECEIVED

SSB 3160 Ways and Means

Relating to motor vehicle registration fees for disabled veterans.

SSB 3161 Ways and Means

Relating to the sales tax imposed on amusement devices.

SUBCOMMITTEE ASSIGNMENTS

SSB 3160

WAYS AND MEANS: Goodwin, Chair; Dawson and Dotzler

SSB 3161

WAYS AND MEANS: Dawson, Chair; Goodwin and Jochum

FINAL COMMITTEE REPORT OF BILL ACTION

RULES AND ADMINISTRATION

Bill Title: SENATE FILE 2380, a bill for an act to designate February 1 of each year as George Washington Carver Day.

Recommendation: DO PASS.

Final Vote: Yeas, 9: Whitver, Chapman, Wahls, Bolkcom, Brown, Jochum, Ragan, R. Smith, and Zumbach. Nays, none. Excused, 2: Sinclair and Zaun.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

PLACEMENT ON INDIVIDUAL CONFIRMATION CALENDAR

MR. PRESIDENT: Pursuant to Senate Rule 59, I hereby request that the name of Jeremy Price to Electrical Examining Board be removed from the "En Bloc Confirmation Calendar" and placed on the "Individual Confirmation Calendar".

TODD TAYLOR

MR. PRESIDENT: Pursuant to Senate Rule 59, I hereby request that the name of Ritchie Kertenbach to Workforce Development Board be removed from the "En Bloc Confirmation Calendar" and placed on the "Individual Confirmation Calendar".

JACK WHITVER

AMENDMENT FILED

S–5130	H.F.	2198	Pam Jochum Liz Mathis Amanda Ragan Zach Wahls Claire A. Celsi Jackie Smith Nate Boulton Joe Bolkcom Herman C. Quirmbach Eric Giddens Sarah Trone Garriott Janet Petersen Todd Taylor Tony Bisignano William A. Dotzler, Jr. Kevin Kinney Jim Lykam Robert M. Hogg

JOURNAL OF THE SENATE

ONE HUNDREDTH CALENDAR DAY
FIFTY-EIGHTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, April 19, 2022

The Senate met in regular session at 9:07 a.m., President Chapman presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Maren Rasmussen.

The Journal of Monday, April 18, 2022, was approved.

SPECIAL PRESENTATION TO SENATE PAGES

The Senate Pages were invited to the well of the Senate for a special presentation and were thanked by Senators Wahls and Whitver and President Chapman for their service to the Senate.

A Certificate of Excellence for serving with honor and distinction as a Senate Page during the 2022 Regular Eighty-ninth General Assembly and a gift were presented to each of the following pages:

Ian Critelli	Jackson Maddox
Kennedy Haag	Maren Rasmussen
Elizabeth Hunter	Cecilia Redman
Thomas Knudsen	Grace Tollefson

The Senate rose and expressed its appreciation.

Senator Sinclair took the chair at 9:16 a.m.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Resolution 123.

Senate Resolution 123

On motion of President Chapman, **Senate Resolution 123**, a resolution honoring Senator Roby Smith for his service in the Iowa Senate, was taken up for consideration.

The Senate Rose and expressed its tribute to Senator R. Smith.

Senator R. Smith addressed the Senate with brief remarks.

Senator Chapman moved the adoption of Senate Resolution 123, which motion prevailed by a voice vote.

RECESS

On motion of Senator Whitver, the Senate recessed at 11:48 a.m. until 12:45 p.m.

RECONVENED

The Senate reconvened at 2:30 p.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Bolkcom and Mathis, until they arrive, on request of Senator Ragan.

CONFIRMATION OF GOVERNOR'S APPOINTMENTS
(Individual Confirmation Calendar)

Senator Whitver called up the appointment of Ashley Baker as a member of the Child Advocacy Board, placed on the Individual Confirmation Calendar on March 30, 2022, found on page 668 of the Senate Journal.

Senator Johnson moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 44:

Bisignano	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Nunn	Quirmbach	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, 4:

Celsi	Jochum	Petersen	Ragan

Absent, 2:

Bolkcom	Mathis

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

Senator Whitver called up the appointment of Denise Bubeck as a member of the Board of Corrections, placed on the Individual Confirmation Calendar on March 30, 2022, found on page 668 of the Senate Journal.

Senator Zaun moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 48:

Bisignano	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker

Kraayenbrink	Lofgren	Lykam	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Bolkcom	Mathis

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

Senator Whitver called up the appointment of Nathan Peterson as a member of the State Board of Education, placed on the Individual Confirmation Calendar on March 30, 2022, found on page 668 of the Senate Journal.

Senator Sinclair moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 47:

Bisignano	Boulton	Brown	Carlin
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, 1:

Celsi

Absent, 2:

Bolkcom Mathis

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

SPECIAL GUEST

The Chair introduced to the Senate chamber the Honorable Jeff Danielson, former member of the Senate from Black Hawk County, Cedar Falls, Iowa.

The Senate rose and expressed its welcome.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2380.

Senate File 2380

On motion of Senator R. Smith, **Senate File 2380**, a bill for an act to designate February 1 of each year as George Washington Carver Day, with report of committee recommending passage, was taken up for consideration.

Senator R. Smith moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2380), the vote was:

Yeas, 48:

Bisignano	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum

Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Bolkcom	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

The Senate stood at ease at 2:50 p.m. until the fall of the gavel for the purpose of a Democratic party caucus.

The Senate resumed session at 3:06 p.m., President Chapman presiding.

CONSIDERATION OF BILLS
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2518 and Senate File 2379.

House File 2518

On motion of Senator Brown, **House File 2518**, a bill for an act relating to annual overweight permits for cranes, and including effective date provisions, with report of committee recommending passage, was taken up for consideration.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2518), the vote was:

Yeas, 48:

Bisignano	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Bolkcom	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2379

On motion of Senator Sinclair, **Senate File 2379**, a bill for an act relating to property law, including mobile homes and manufactured housing, rental agreements, landlord and tenant remedies for retaliation, wrongful failure to provide essential services, rent increases, the sale of manufactured home community or mobile home park, the repeal of the manufactured home community and mobile home tax, forcible entry and detainer actions, abandoned mobile homes, and including effective date and applicability provisions, was taken up for consideration.

Senator Sinclair offered amendment S–5131, filed by her from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5131 was adopted by a voice vote.

Senator Sinclair asked and received unanimous consent that **House File 2562** be **substituted** for **Senate File 2379**.

House File 2562

On motion of Senator Sinclair, **House File 2562**, a bill for an act relating to property law, including mobile homes and manufactured housing, rental agreements, landlord and tenant remedies for retaliation, wrongful failure to provide essential services, rent increases, the sale of manufactured home community or mobile home park, the repeal of the manufactured home community and mobile home tax, forcible entry and detainer actions, abandoned mobile homes, and including effective date and applicability provisions, was taken up for consideration.

Senator Wahls offered amendment S–5134, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill.

Senator Sinclair raised the point of order that amendment S–5134 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5134 out of order.

Senator Wahls offered amendment S–5137, filed by Senators Wahls and Trone Garriott from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill.

Senator Sinclair raised the point of order that amendment S–5137 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5137 out of order.

Senator Quirmbach offered amendment S–5136, filed by him from the floor to pages 1–2 of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5136 be adopted?" (H.F. 2562), the vote was:

Yeas, 18:

Bisignano	Boulton	Celsi	Dotzler
Giddens	Hogg	Jochum	Kinney
Koelker	Lykam	Petersen	Quirmbach
Ragan	Smith, J.	Sweeney	Taylor, T.
Trone Garriott	Wahls		

Nays, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Kraayenbrink
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Taylor, J.	Whitver	Williams
Zaun	Zumbach		

Absent, 2:

Bolkcom	Mathis

Amendment S–5136 lost.

Senator Quirmbach offered amendment S–5135, filed by him from the floor to page 2 of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5135 be adopted?" (H.F. 2562), the vote was:

Yeas, 16:

Bisignano	Boulton	Celsi	Dotzler
Giddens	Hogg	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Nays, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker

Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Absent, 2:

Bolkcom	Mathis

Amendment S–5135 lost.

The Senate stood at ease at 3:55 p.m. until the fall of the gavel for the purpose of a Democratic party caucus.

The Senate resumed session at 4:03 p.m., President Chapman presiding.

Senator Sinclair moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2562), the vote was:

Yeas, 32:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Kraayenbrink	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	Zumbach

Nays, 16:

Bisignano	Boulton	Celsi	Dotzler
Giddens	Hogg	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 2:

Bolkcom	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Sinclair asked and received unanimous consent that **Senate File 2379** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2380** and **House Files 2518** and **2562** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2489, 2372, 2123; and Senate Files 2258 and 2240.

House File 2489

On motion of Senator Dawson, **House File 2489**, a bill for an act relating to the auditor of state and including effective date and applicability provisions, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2489), the vote was:

Yeas, 48:

Bisignano	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley

Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Bolkcom	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Bisignano, until he arrives, on request of Senator Wahls.

House File 2372

On motion of Senator J. Taylor, **House File 2372**, a bill for an act relating to the nonconsensual termination of a human pregnancy, and providing penalties, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator J. Taylor moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2372), the vote was:

Yeas, 47:

Boulton	Brown	Carlin	Celsi
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Hogg	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, none.

Absent, 3:

Bisignano	Bolkcom	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2123

On motion of Senator Reichman, **House File 2123**, a bill for an act authorizing a criminal or juvenile justice agency to redisseminate driver's license photos in missing persons cases, and including effective date provisions, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Reichman moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2123), the vote was:

Yeas, 48:

Bisignano	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Bolkcom	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 2258

On motion of Senator Costello, **Senate File 2258**, a bill for an act relating to the release of nursing facility reimbursement rates under the Medicaid program, placed on the Unfinished Business Calendar on March 17, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Costello asked and received unanimous consent that **House File 2171** be **substituted** for **Senate File 2258**.

House File 2171

On motion of Senator Costello, **House File 2171**, a bill for an act relating to the release of nursing facility reimbursement rates under the Medicaid program, was taken up for consideration.

Senator Costello moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2171), the vote was:

Yeas, 48:

Bisignano	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Bolkcom	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Costello asked and received unanimous consent that **Senate File 2258** be **withdrawn** from further consideration of the Senate.

Senate File 2240

On motion of Senator Garrett, **Senate File 2240**, a bill for an act relating to wills, including witness requirements for the execution of a will and procedure for wills to be admitted into probate, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Garrett offered amendment S–5132, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5132 was adopted by a voice vote.

Senator Garrett asked and received unanimous consent that **House File 2078** be **substituted** for **Senate File 2240**.

House File 2078

On motion of Senator Garrett, **House File 2078**, a bill for an act relating to wills, including witness requirements for the execution of a will and procedure for wills to be admitted into probate, was taken up for consideration.

Senator Garrett offered amendment S–5133, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5133 was adopted by a voice vote.

Senator Garrett moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2078), the vote was:

Yeas, 48:

Bisignano	Boulton	Brown	Carlin
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Hogg	Jochum
Johnson	Kinney	Klimesh	Koelker
Kraayenbrink	Lofgren	Lykam	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 2:

Bolkcom	Mathis

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

WITHDRAWN

Senator Garrett asked and received unanimous consent that **Senate File 2240** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2078**, **2123**, **2171**, **2372**, and **2489** be **immediately messaged** to the House.

Senator Green took the chair at 5:00 p.m.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 5:21 p.m. until 9:00 a.m., Thursday, April 21, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

IOWA LOTTERY AUTHORITY

Quarterly Report, pursuant to Iowa Code section 99G.7. Report received on April 19, 2022.

IOWA COMPREHENSIVE PETROLEUM UNDERGROUND STORAGE TANK FUND BOARD

Progress and Activities Report, pursuant to Iowa Code section 455G.4. Report received on April 19, 2022.

INTRODUCTION OF RESOLUTIONS

Senate Resolution 123, by committee on Rules and Administration, a resolution honoring Senator Roby Smith for his service in the Iowa Senate.

Read first time under Rule 28 and **placed on calendar**.

Senate Resolution 124, by Boulton, a resolution honoring the responders to the March 7, 2022, East High School shooting.

Read first time under Rule 28 and referred to committee on **Rules and Administration**.

REPORT OF THE SECRETARY OF THE SENATE

April 19, 2022

The Honorable Paul Pate
Secretary of State
Hand-Delivered

Re: Certified Copy of Senate Journal

Dear Secretary Pate:

Pursuant to Iowa Code section 2.9(1)(b), my office is required to "preserve copies of the printed daily journals…as corrected, certify to their correctness, and file them with the secretary of state…."

With this letter I am providing your office a copy of the Senate Journal for the 89th Iowa General Assembly 2021 Regular Session January 11-May 19 and Extraordinary Sessions October 5 and October 28. The certification of the correctness of the same is limited to the avoidance of intentional error, oversight, or knowing mistake by either the Secretary of the Senate's office or the publishing company.

If you have any questions or concerns, please notify me.

Sincerely,

W. Charles Smithson
Secretary of the Senate

AMENDMENTS FILED

S–5131	S.F.	2379	Amy Sinclair
S–5132	S.F.	2240	Julian B. Garrett
S–5133	H.F.	2078	Julian B. Garrett
S–5134	H.F.	2562	Zach Wahls
S–5135	H.F.	2562	Herman C. Quirmbach
S–5136	H.F.	2562	Herman C. Quirmbach
S–5137	H.F.	2562	Zach Wahls Sarah Trone Garriott
S–5138	H.F.	2507	Jeff Edler

JOURNAL OF THE SENATE

ONE HUNDRED SECOND CALENDAR DAY
FIFTY-NINTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, April 21, 2022

The Senate met in regular session at 9:07 a.m., Senator R. Smith presiding.

Prayer was offered by the Honorable Roby Smith, member of the Senate from Scott County, Davenport, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Jake Heard.

The Journal of Tuesday, April 19, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:09 a.m. until 1:00 p.m., Monday, April 25, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF HUMAN SERVICES

Judicial Review Report, pursuant to Iowa Code section 625.29. Report received on April 20, 2022.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on April 20, 2022.

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of William Bushell for confirmation and from further consideration by the Senate, both as Chair of the Board of Parole and as a member of the Board of Parole.

Sincerely,
KIM REYNOLDS
Governor

BILLS ENROLLED, SIGNED, AND SENT TO GOVERNOR

The Secretary of the Senate submitted the following reports:

MR. PRESIDENT: The Secretary of the Senate respectfully reports that the following bills have been enrolled, signed by the President of the Senate and the Speaker of the House, and presented to the Governor for her approval on this 21st day of April, 2022.

Senate Files 384, 2128, 2130, 2176, 2197, 2232, 2245, 2267, 2279, 2285, 2288, 2295, 2296, and 2345.

W. CHARLES SMITHSON
Secretary of the Senate

AMENDMENT FILED

S–5139 S.F. 2257 Jeff Edler

JOURNAL OF THE SENATE

ONE HUNDRED SIXTH CALENDAR DAY
SIXTIETH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, April 25, 2022

The Senate met in regular session at 1:07 p.m., President Pro Tempore Zaun presiding.

Prayer was offered by the Honorable Jason Schultz, member of the Senate from Crawford County, Schleswig, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Cecilia Redman.

The Journal of Thursday, April 21, 2022, was approved.

RECESS

On motion of Senator Whitver, the Senate recessed at 1:12 p.m. until the completion of a meeting of the committee on Ways and Means.

RECONVENED

The Senate reconvened at 4:03 p.m., President Pro Tempore Zaun presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Celsi, Hogg, and Mathis, until they arrive, on request of Senator Wahls; and Senators Carlin, Chapman, and Rowley, until they arrive, on request of Senator Whitver.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Files 2060, 2195, and 2257; and House File 2259.

Senate File 2060

On motion of Senator Brown, **Senate File 2060**, a bill for an act relating to massage therapy, including child and dependent adult abuse reporting and continuing education requirements, and making penalties applicable, placed on the Unfinished Business Calendar on March 17, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Brown asked and received unanimous consent that **House File 2168** be **substituted** for **Senate File 2060**.

House File 2168

On motion of Senator Brown, **House File 2168**, a bill for an act relating to massage therapy, including child and dependent adult abuse reporting and continuing education requirements, and making penalties applicable, was taken up for consideration.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2168), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Costello	Cournoyer	Dawson	Dickey
Dotzler	Driscoll	Edler	Garrett
Giddens	Goodwin	Green	Guth
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam

Nunn	Petersen	Quirmbach	Ragan
Reichman	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 6:

Carlin	Celsi	Chapman	Hogg
Mathis	Rowley		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Brown asked and received unanimous consent that **Senate File 2060** be **withdrawn** from further consideration of the Senate.

Senate File 2195

On motion of Senator Cournoyer, **Senate File 2195**, a bill for an act establishing the mental health professional loan repayment program within the college student aid commission, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Cournoyer offered amendment S–5141, filed by her from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5141 was adopted by a voice vote.

Senator Cournoyer asked and received unanimous consent that **House File 2549** be **substituted** for **Senate File 2195**.

House File 2549

On motion of Senator Cournoyer, **House File 2549**, a bill for an act establishing the mental health professional loan repayment program within the college student aid commission, was taken up for consideration.

Senator Cournoyer offered amendment S–5140, filed by her from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5140 be adopted?" (H.F. 2549), the vote was:

Yeas, 29:

Brown	Costello	Cournoyer	Dawson
Dickey	Driscoll	Edler	Garrett
Goodwin	Green	Guth	Johnson
Klimesh	Koelker	Kraayenbrink	Lofgren
Nunn	Reichman	Rozenboom	Schultz
Shipley	Sinclair	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun
Zumbach			

Nays, 15:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Jochum	Kinney	Lykam
Petersen	Quirmbach	Ragan	Smith, J.
Taylor, T.	Trone Garriott	Wahls	

Absent, 6:

Carlin	Celsi	Chapman	Hogg
Mathis	Rowley		

Amendment S–5140 was adopted.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2549), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Costello	Cournoyer	Dawson	Dickey
Dotzler	Driscoll	Edler	Garrett
Giddens	Goodwin	Green	Guth
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam

Nunn	Petersen	Quirmbach	Ragan
Reichman	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 6:

Carlin	Celsi	Chapman	Hogg
Mathis	Rowley		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

WITHDRAWN

Senator Cournoyer asked and received unanimous consent that **Senate File 2195** be **withdrawn** from further consideration of the Senate.

Senate File 2257

On motion of Senator Edler, **Senate File 2257**, a bill for an act relating to juvenile justice including juvenile delinquency, child in need of assistance and family in need of assistance proceedings, juvenile justice reform, and juvenile court expenses and costs, and including effective date provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Edler offered amendment S–5139, filed by him on April 21, 2022, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5139 was adopted by a voice vote.

Senator Edler asked and received unanimous consent that **House File 2507** be **substituted** for **Senate File 2257**.

House File 2507

On motion of Senator Edler, **House File 2507**, a bill for an act relating to juvenile justice including juvenile delinquency, child in need of assistance and family in need of assistance proceedings, juvenile justice reform, and juvenile court expenses and costs, and including effective date provisions, was taken up for consideration.

Senator Edler offered amendment S–5138, filed by him on April 19, 2022, to pages 20–25, 41, 42, and amending the title page of the bill, and moved its adoption.

Amendment S–5138 was adopted by a voice vote.

Senator Edler moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2507), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Costello	Cournoyer	Dawson	Dickey
Dotzler	Driscoll	Edler	Garrett
Giddens	Goodwin	Green	Guth
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 6:

Carlin	Celsi	Chapman	Hogg
Mathis	Rowley		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

WITHDRAWN

Senator Edler asked and received unanimous consent that **Senate File 2257** be **withdrawn** from further consideration of the Senate.

House File 2259

On motion of Senator Driscoll, **House File 2259**, a bill for an act authorizing licensed occupational therapists, licensed physical therapists, and certain medical professionals licensed in other states to provide a statement for purposes of persons with disabilities special registration plates or parking permits, and making penalties applicable, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Driscoll moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2259), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Costello	Cournoyer	Dawson	Dickey
Dotzler	Driscoll	Edler	Garrett
Giddens	Goodwin	Green	Guth
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 6:

Carlin	Celsi	Chapman	Hogg
Mathis	Rowley		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2168**, **2259**, **2507**, and **2549** be **immediately messaged** to the House.

CONFIRMATION OF GOVERNOR'S APPOINTMENT
(Individual Confirmation Calendar)

Senator Whitver called up the appointment of Adam Steen as Director of the Department of Administrative Services, placed on the Individual Confirmation Calendar on March 8, 2022, found on page 473 of the Senate Journal.

Senator R. Smith moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Costello	Cournoyer	Dawson	Dickey
Dotzler	Driscoll	Edler	Garrett
Giddens	Goodwin	Green	Guth
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Nunn	Petersen	Quirmbach	Ragan
Reichman	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 6:

Carlin	Celsi	Chapman	Hogg
Mathis	Rowley		

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 5:00 p.m. until 9:00 a.m., Tuesday, April 26, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF INSPECTIONS AND APPEALS

Citizen Foster Care Evaluation Report, pursuant to Iowa Code section 237.18. Report received on April 25, 2022.

Court Appointed Special Advocate Program Report, pursuant to Iowa Code section 237.18. Report received on April 25, 2022.

Iowa Child Advocacy Board Annual Report, pursuant to Iowa Code section 237.18. Report received on April 25, 2022.

DEPARTMENT OF REVENUE

Iowa Capital Investment Board Annual Report, pursuant to Iowa Code section 15E.63. Report received on April 25, 2022.

CERTIFICATE OF RECOGNITION

The Secretary of the Senate issued the following certificate of recognition:

Rick and Beth Moeller, Conrad—For celebrating their 50th wedding anniversary. Senator Sweeney.

REPORT OF COMMITTEE MEETING

WAYS AND MEANS

Convened: Monday, April 25, 2022, 1:35 p.m.

Members Present: Dawson, Chair; Goodwin, Vice Chair; Jochum, Ranking Member; Bolkcom, Brown, Dickey, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun.

Members Absent: None.

Committee Business: Subcommittee of the whole HF 2128 Biofuels HF 2128 Biofuels w/amendment Senator Brown HF 2581 Department of Agriculture Senator Sweeney.

Adjourned: 3:00 p.m.

FINAL COMMITTEE REPORTS OF BILL ACTION

WAYS AND MEANS

Bill Title: HOUSE FILE 2128, a bill for an act relating to renewable fuels, including ethanol blended gasoline and biodiesel blended fuel used to power internal combustion engines, by providing for compliance requirements and promotional initiatives that relate to establishing classifications and standards for renewable fuels, advertising and selling renewable fuels, storing and dispensing renewable fuels, using state motor vehicles powered by renewable fuels, and taxes, tax credits, and tax refunds relating to renewable fuels; providing penalties and making penalties applicable; and including effective date and retroactive applicability provisions.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5143.

Final Vote: Yeas, 16: Dawson, Goodwin, Jochum, Brown, Dickey, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, 1: Bolkcom. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2581, a bill for an act providing for programs and regulations administered and enforced by the department of agriculture and land stewardship, providing fees, providing penalties, and making penalties applicable.

Recommendation: DO PASS.

Final Vote: Yeas, 17: Dawson, Goodwin, Jochum, Bolkcom, Brown, Dickey, Dotzler, Green, Petersen, Quirmbach, Schultz, Sinclair, R. Smith, Sweeney, J. Taylor, T. Taylor, and Zaun. Nays, none. Excused, none.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

BILLS SIGNED BY THE GOVERNOR

A communication was received announcing that on April 21, 2022, the Governor approved and transmitted to the Secretary of State the following bills:

Senate File 384 – Allowing counties to enter into agreements to jointly share a county assessor.

Senate File 2128 – Relating to education, including the education of students who are not fully English proficient and the standards applicable to the hiring, developing, and evaluation of community college faculty.

Senate File 2130 – Relating to schools that are required to register with the college student aid commission.

Senate File 2176 – Relating to programs within the department of natural resources, including specifications of procedures relating to solid waste disposal and the repeal of the state interagency Missouri river authority and the mercury-free recycling Act.

Senate File 2197 – Providing for the establishment of a task force related to special education support for students at nonpublic schools.

Senate File 2232 – Relating to the sale, lease, or rental of water treatment systems and including effective date and applicability provisions.

Senate File 2245 – Providing a personal use exemption from licensing requirements of the Meat and Poultry Inspection Act.

Senate File 2267 – Relating to the establishment of emergency response districts.

Senate File 2279 – Regarding electronic submission of bids for public improvement contracts.

Senate File 2285 – Relating to zoning by counties and cities, and including effective date provisions.

Senate File 2288 – Relating to life insurance company or association investments in foreign countries other than Canada, and including applicability provisions.

Senate File 2295 – Relating to statutory corrections which may adjust language to reflect current practices, insert earlier omissions, delete redundancies and inaccuracies, delete temporary language, resolve inconsistencies and conflicts, update ongoing provisions, or remove ambiguities, and including retroactive applicability provisions.

Senate File 2296 – Relating to a peace officer's search of garbage placed outside of a person's residence for waste collection in a publicly accessible area.

Senate File 2345 – Relating to the newborn screening.

AMENDMENTS FILED

S–5140	H.F.	2549	Chris Cournoyer
S–5141	S.F.	2195	Chris Cournoyer
S–5142	H.F.	2130	Carrie Koelker Waylon Brown
S–5143	H.F.	2128	Ways and Means

JOURNAL OF THE SENATE

ONE HUNDRED SEVENTH CALENDAR DAY
SIXTY-FIRST SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, April 26, 2022

The Senate met in regular session at 9:01 a.m., Senator Shipley presiding.

Prayer was offered by the Honorable Tom Shipley, member of the Senate from Adams County, Nodaway, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Grace Tollefson.

The Journal of Monday, April 25, 2022, was approved.

The Senate stood at ease at 9:03 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 10:13 a.m., President Pro Tempore Zaun presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Celsi, Hogg, and Petersen, until they arrive, on request of Senator Wahls; and Senators Chapman and Rowley, until they arrive, on request of Senator Whitver.

CONSIDERATION OF BILL
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2128.

House File 2128

On motion of Senator Brown, **House File 2128**, a bill for an act relating to renewable fuels, including ethanol blended gasoline and biodiesel blended fuel used to power internal combustion engines, by providing for compliance requirements and promotional initiatives that relate to establishing classifications and standards for renewable fuels, advertising and selling renewable fuels, storing and dispensing renewable fuels, using state motor vehicles powered by renewable fuels, and taxes, tax credits, and tax refunds relating to renewable fuels; providing penalties and making penalties applicable; and including effective date and retroactive applicability provisions, with report of committee recommending amendment and passage, was taken up for consideration.

Senator Brown offered amendment S–5143, filed by the committee on Ways and Means on April 25, 2022, to pages 1–16, 28, 31–32, 36, and 38–43 of the bill, and moved its adoption.

Amendment S–5143 was adopted by a voice vote.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2128), the vote was:

Yeas, 42:

Bisignano	Boulton	Brown	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Jochum	Johnson
Kinney	Klimesh	Koelker	Kraayenbrink
Lofgren	Lykam	Mathis	Nunn
Quirmbach	Ragan	Reichman	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, 3:

Bolkcom	Carlin	Guth	

Absent, 5:

Celsi	Chapman	Hogg	Petersen
Rowley			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2128** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Ways and Means Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2581.

House File 2581

On motion of Senator Sweeney, **House File 2581**, a bill for an act providing for programs and regulations administered and enforced by the department of agriculture and land stewardship, providing fees, providing penalties, and making penalties applicable, with report of committee recommending passage, was taken up for consideration.

Senator Sweeney moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2581), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren

Lykam	Mathis	Nunn	Quirmbach
Ragan	Reichman	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 5:

Celsi	Chapman	Hogg	Petersen
Rowley			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2338.

Senate File 2338

On motion of Senator Brown, **Senate File 2338**, a bill for an act relating to department of transportation employees designated as peace officers, and including effective date provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Brown offered amendment S–5144, filed by him from the floor to page 1 of the bill, and moved its adoption.

Amendment S–5144 was adopted by a voice vote.

Senator Brown asked and received unanimous consent that **House File 2345** be **substituted** for **Senate File 2338**.

House File 2345

On motion of Senator Brown, **House File 2345**, a bill for an act relating to department of transportation employees designated as peace officers, and including effective date provisions, was taken up for consideration.

Senator Brown moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2345), the vote was:

Yeas, 44:

Bolkcom	Boulton	Brown	Carlin
Costello	Cournoyer	Dawson	Dickey
Dotzler	Driscoll	Edler	Garrett
Giddens	Goodwin	Green	Guth
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Lykam
Mathis	Nunn	Quirmbach	Ragan
Reichman	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, 1:

Bisignano

Absent, 5:

Celsi	Chapman	Hogg	Petersen
Rowley			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Brown asked and received unanimous consent that **Senate File 2338** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2345** and **2581** be **immediately messaged** to the House.

CONFIRMATION OF GOVERNOR'S APPOINTMENT
(Individual Confirmation Calendar)

Senator Whitver called up the appointment of Daniel Breitbarth as a member of the Iowa Public Information Board, placed on the Individual Confirmation Calendar on April 6, 2022, found on page 731 of the Senate Journal.

Senator Dawson moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 35:

Boulton	Brown	Carlin	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Jochum	Johnson	Klimesh
Koelker	Kraayenbrink	Lofgren	Nunn
Ragan	Reichman	Rozenboom	Schultz
Shipley	Sinclair	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Wahls	Whitver
Williams	Zaun	Zumbach	

Nays, 10:

Bisignano	Bolkcom	Dotzler	Giddens
Kinney	Lykam	Mathis	Quirmbach
Taylor, T.	Trone Garriott		

Absent, 5:

Celsi	Chapman	Hogg	Petersen
Rowley			

The appointee, having received a two-thirds vote, was declared to have been confirmed by the Senate.

RECESS

On motion of Senator Whitver, the Senate recessed at 11:07 a.m. until 2:30 p.m.

RECONVENED

The Senate reconvened at 2:26 p.m., President Pro Tempore Zaun presiding.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on April 26, 2022, **passed** the following bill in which the concurrence of the House was asked:

Senate File 2383, a bill for an act relating to various matters under the purview of the state, including city and county inspections, work-based learning, recruitment of health care professionals, regulations affecting veterans and military spouses, insurance producer temporary licenses, and including applicability provisions.

ALSO: That the House has on April 26, 2022, **concurred** in the Senate amendment **and passed** the following bills in which the concurrence of the House was asked:

House File 2128, a bill for an act relating to renewable fuels, including ethanol blended gasoline and biodiesel blended fuel used to power internal combustion engines, by providing for compliance requirements and promotional initiatives that relate to establishing classifications and standards for renewable fuels, advertising and selling renewable fuels, storing and dispensing renewable fuels, using state motor vehicles powered by renewable fuels, and taxes, tax credits, and tax refunds relating to renewable fuels; providing penalties and making penalties applicable; and including effective date and retroactive applicability provisions.

House File 2198, a bill for an act relating to the minimum age requirements for employees and substitutes working at a child care center.

House File 2507, a bill for an act relating to juvenile justice including juvenile delinquency, child in need of assistance and family in need of assistance proceedings, juvenile justice reform, and juvenile court expenses and costs, and including effective date, applicability, and retroactive applicability provisions.

ALSO: That the House has on April 26, 2022, **refused to concur** in the Senate amendment to the following bill in which the concurrence of the House was asked:

House File 2355, a bill for an act relating to employment security benefits.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Mathis and Quirmbach, until they arrive, on request of Senator Wahls.

SENATE RECEDES

House File 2355

Senator Whitver called up for consideration **House File 2355**, a bill for an act relating to employment security benefits, amended by the Senate, and moved that the Senate recede from its amendment.

A record roll call was requested.

On the question "Shall the Senate recede from its amendment?" (H.F. 2355), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Nunn	Petersen	Ragan
Reichman	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	Zumbach

Nays, none.

Absent, 6:

Celsi	Chapman	Hogg	Mathis
Quirmbach	Rowley		

The motion prevailed and the Senate **receded** from its amendment.

Senator Schultz moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2355), the vote was:

Yeas, 30:

Brown	Carlin	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Kraayenbrink
Lofgren	Nunn	Reichman	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams
Zaun	Zumbach		

Nays, 14:

Bisignano	Bolkcom	Boulton	Dotzler
Giddens	Jochum	Kinney	Lykam
Petersen	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Absent, 6:

Celsi	Chapman	Hogg	Mathis
Quirmbach	Rowley		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Dawson asked and received unanimous consent that **House File 2355** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Dawson, the Senate adjourned at 2:34 p.m. until 9:00 a.m., Thursday, April 28, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF COMMERCE (INSURANCE DIVISION)

Annual Report of the Iowa Comprehensive Health Association, pursuant to Iowa Code section 514E.2(9). Report received on April 26, 2022.

DEPARTMENT OF HUMAN SERVICES

Medical Assistance Act Report, pursuant to Iowa Code section 249A.4. Report received on April 26, 2022.

AMENDMENT FILED

S–5144 S.F. 2338 Waylon Brown

JOURNAL OF THE SENATE

ONE HUNDRED NINTH CALENDAR DAY
SIXTY-SECOND SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, April 28, 2022

The Senate met in regular session at 9:01 a.m., President Pro Tempore Zaun presiding.

Prayer and the Pledge of Allegiance were offered by the Honorable Brad Zaun, member of the Senate from Polk County, Urbandale, Iowa.

The Journal of Tuesday, April 26, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:03 a.m. until 11:00 a.m., Monday, May 2, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

ECONOMIC DEVELOPMENT AUTHORITY

Iowa Commission on Volunteer Service Quarterly Report FY 2022 Quarterly Report #3, pursuant to Iowa Code section 15H.2. Report received on April 27, 2022.

STATE PUBLIC DEFENDER

Indigent Defense System Report, pursuant to Iowa Code section 13B.2A. Report received on April 27, 2022.

DEPARTMENT OF REVENUE

Central Collections Unit (CCU) Quarter Debt Collection Report, pursuant to Iowa Code section 421.17. Report received on April 27, 2022.

JOURNAL OF THE SENATE

ONE HUNDRED THIRTEENTH CALENDAR DAY
SIXTY-THIRD SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, May 2, 2022

The Senate met in regular session at 11:02 a.m., President Pro Tempore Zaun presiding.

Prayer was offered by the Honorable Craig Johnson, member of the Senate from Buchanan County, Independence, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Ian Critelli.

The Journal of Thursday, April 28, 2022, was approved.

The Senate stood at ease at 11:06 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 12:36 p.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Bisignano and Hogg, until they arrive, on request of Senator Wahls; and Senators Carlin, Nunn, and J. Taylor, until they arrive, on request of Senator Whitver.

HOUSE AMENDMENTS CONSIDERED

Senate File 463

Senator Whitver called up for consideration **Senate File 463**, a bill for an act establishing the occupational therapy licensure compact, amended by the House in House amendment S–5031, filed March 1, 2022.

Senator Costello moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Costello moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 463), the vote was:

Yeas, 45:

Bolkcom	Boulton	Brown	Celsi
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 5:

Bisignano	Carlin	Hogg	Nunn
Taylor, J.			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

Senate File 529

Senator Whitver called up for consideration **Senate File 529**, a bill for an act relating to assisted reproduction fraud, and providing penalties, amended by the House in House amendment S–3175, filed April 28, 2021.

Senator Sweeney offered amendment S–5146, filed by her from the floor to pages 1–2 of House amendment S–3175, and moved its adoption.

Amendment S–5146 to House amendment S–3175 was adopted by a voice vote.

Senator Sweeney moved that the Senate concur in the House amendment, as amended.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment, as amended.

Senator Sweeney moved that the bill, as amended by the House, further amended and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 529), the vote was:

Yeas, 45:

Bolkcom	Boulton	Brown	Celsi
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 5:

Bisignano	Carlin	Hogg	Nunn
Taylor, J.			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

Senate File 581

Senator Whitver called up for consideration **Senate File 581**, a bill for an act relating to deer population management, amended by the House in House amendment S–5121, filed April 7, 2022.

Senator Rozenboom withdrew amendment S–5145, filed by him from the floor to pages 1–2 of House amendment S–5121.

Senator Rozenboom offered amendment S–5147, filed by him from the floor to pages 1–2 of House amendment S–5121, and moved its adoption.

Amendment S–5147 to House amendment S–5121 was adopted by a voice vote.

Senator Rozenboom moved that the Senate concur in the House amendment, as amended.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment, as amended.

Senator Rozenboom moved that the bill, as amended by the House, further amended and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 581), the vote was:

Yeas, 45:

Bolkcom	Boulton	Brown	Celsi
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 5:

Bisignano	Carlin	Hogg	Nunn
Taylor, J.			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Files 463**, **529**, and **581** be **immediately messaged** to the House.

HOUSE AMENDMENT CONSIDERED

Senate File 2287

Senator Whitver called up for consideration **Senate File 2287**, a bill for an act relating to used catalytic converter transactions, providing penalties, and making penalties applicable, amended by the House in House amendment S–5122, filed April 12, 2022.

Senator Brown moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Brown moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2287), the vote was:

Yeas, 42:

Bolkcom	Boulton	Brown	Celsi
Chapman	Costello	Cournoyer	Dawson
Dickey	Driscoll	Edler	Garrett
Giddens	Goodwin	Green	Guth
Jochum	Johnson	Kinney	Klimesh
Koelker	Kraayenbrink	Lofgren	Mathis
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun	Zumbach		

Nays, 3:

Dotzler	Lykam	Smith, J.

Absent, 5:

Bisignano	Carlin	Hogg	Nunn
Taylor, J.			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2127 and 2202.

House File 2127

On motion of Senator Lofgren, **House File 2127**, a bill for an act relating to payments to child care providers from families participating in the state child care assistance program, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Lofgren moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2127), the vote was:

Yeas, 29:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Kraayenbrink
Lofgren	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Whitver	Williams	Zaun
Zumbach			

Nays, 16:

Bolkcom	Boulton	Celsi	Dotzler
Giddens	Jochum	Kinney	Lykam
Mathis	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 5:

Bisignano	Carlin	Hogg	Nunn
Taylor, J.			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2202

On motion of Senator Costello, **House File 2202**, a bill for an act relating to Medicaid program reporting requirements, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Costello moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2202), the vote was:

Yeas, 45:

Bolkcom	Boulton	Brown	Celsi
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 5:

Bisignano	Carlin	Hogg	Nunn
Taylor, J.			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2287** and **House Files 2127** and **2202** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2246 and 2443.

House File 2246

On motion of Senator Edler, **House File 2246**, a bill for an act relating to provisional licensing of interns enrolled in a doctoral degree program in psychology, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Edler moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2246), the vote was:

Yeas, 45:

Bolkcom	Boulton	Brown	Celsi
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 5:

Bisignano	Carlin	Hogg	Nunn
Taylor, J.			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2443

On motion of Senator Garrett, **House File 2443**, a bill for an act relating to contract enforceability regarding smart contracts and distributed ledger technology, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Garrett moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2443), the vote was:

Yeas, 45:

Bolkcom	Boulton	Brown	Celsi
Chapman	Costello	Cournoyer	Dawson
Dickey	Dotzler	Driscoll	Edler
Garrett	Giddens	Goodwin	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Kraayenbrink	Lofgren
Lykam	Mathis	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun
Zumbach			

Nays, none.

Absent, 5:

Bisignano	Carlin	Hogg	Nunn
Taylor, J.			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2246** and **2443** be **immediately messaged** to the House.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 1:56 p.m. until 9:00 a.m., Thursday, May 5, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

JUDICIAL BRANCH

Judicial Nominating Commissioners Elections Results Report, pursuant to Iowa Code section 46.9. Report received on May 2, 2022.

OFFICE OF THE SECRETARY OF STATE

Verification of Voters Report, pursuant to Iowa Code section 47.7(2). Report received on May 2, 2022.

BILLS ENROLLED, SIGNED, AND SENT TO GOVERNOR

The Secretary of the Senate submitted the following report:

MR. PRESIDENT: The Secretary of the Senate respectfully reports that the following bills have been enrolled, signed by the President of the Senate and the Speaker of the House, and presented to the Governor for her approval on this 2nd day of May, 2022.

Senate Files 2080, 2233, 2310, 2322, and 2324.

W. CHARLES SMITHSON
Secretary of the Senate

BILLS SIGNED BY THE GOVERNOR

A communication was received announcing that on May 2, 2022, the Governor approved and transmitted to the Secretary of State the following bills:

Senate File 2080 – Relating to the administration of certain physical examinations and student health screenings by school districts, charter schools, or innovation zone schools.

Senate File 2233 – Relating to terms used in the context of land surveying.

Senate File 2310 – Relating to multiple housing cooperatives, including by providing for the conversion to a cooperative under the Iowa cooperative associations Act and merger with a limited liability company.

Senate File 2322 – Relating to the assessment of fees when a person requests examination and copying of public records.

Senate File 2324 – Relating to the designation of real estate teams and the display of real estate licenses, and including applicability provisions.

WITHDRAWAL OF GOVERNOR'S APPOINTEE

The following letter from the Governor was received in the office of the Secretary of the Senate:

I am withdrawing the name of Brenna Bird for confirmation as a member of the Iowa Drug Policy Advisory Council for further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

AMENDMENTS FILED

S–5145	S.F.	581	Ken Rozenboom
S–5146	S.F.	529	Annette Sweeney
S–5147	S.F.	581	Ken Rozenboom

JOURNAL OF THE SENATE

ONE HUNDRED SIXTEENTH CALENDAR DAY
SIXTY-FOURTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, May 5, 2022

The Senate met in regular session at 9:04 a.m., Senator Dickey presiding.

Prayer and the Pledge of Allegiance were offered by the Honorable Jake Chapman, president of the Senate from Dallas County, Adel, Iowa.

The Journal of Monday, May 2, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:06 a.m. until 9:00 a.m., Monday, May 9, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF HUMAN SERVICES

DHS Operational and Program Expenditures Report, pursuant to 2021 Iowa Acts, Chapter 182, section 28. Report received on May 4, 2022.

Preferred Drug List Program Report, pursuant to Iowa Code section 249A.20A. Report received on May 4, 2022.

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Leah Alliman—For her work in public education. Senator Trone Garriott.

Margaret Burns-Fees—For her work in public education. Senator Trone Garriott.

Ginny Davis—For her work in public education. Senator Trone Garriott.

Maureen Findlay—For her work in public education. Senator Trone Garriott.

Ben Hicks—For his work in public education. Senator Trone Garriott.

Emily House—For her work in public education. Senator Trone Garriott.

Donny Hughes—For his work in public education. Senator Trone Garriott.

Jill Kasparbauer—For her work in public education. Senator Trone Garriott.

Tessa Kelly—For her work in public education. Senator Trone Garriott.

Emily Luymes—For her work in public education. Senator Trone Garriott.

Abigal Miller—For her work in public education. Senator Trone Garriott.

Paige Miller—For her work in public education. Senator Trone Garriott.

Jeremy Mueller—For his work in public education. Senator Trone Garriott.

Kayla Schafbuch—For her work in public education. Senator Trone Garriott.

Matt Spreacker—For his work in public education. Senator Trone Garriott.

Karla St. John—For her work in public education. Senator Trone Garriott.

Teresa Stanzyk—For her work in public education. Senator Trone Garriott.

Katie Teff Blumberg—For her work in public education. Senator Trone Garriott.

Joseph Van Sant—For his work in public education. Senator Trone Garriott.

Sarah Volkens—For her work in public education. Senator Trone Garriott.

Kaitlin Walters—For her work in public education. Senator Trone Garriott.

Pete Westerkamp—For his work in public education. Senator Trone Garriott.

Kacie Whipps—For her work in public education. Senator Trone Garriott.

Andrew Withers—For his work in public education. Senator Trone Garriott.

JOURNAL OF THE SENATE

ONE HUNDRED TWENTIETH CALENDAR DAY
SIXTY-FIFTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, May 9, 2022

The Senate met in regular session at 9:00 a.m., President Pro Tempore Zaun presiding.

Prayer and the Pledge of Allegiance were offered by the Honorable Brad Zaun, president pro tempore of the Senate from Polk County, Urbandale, Iowa.

The Journal of Thursday, May 5, 2022, was approved.

ADJOURNMENT

On motion of Senator Chapman, the Senate adjourned at 9:15 a.m. until 9:00 a.m., Thursday, May 12, 2022.

JOURNAL OF THE SENATE

ONE HUNDRED TWENTY-THIRD CALENDAR DAY
SIXTY-SIXTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, May 12, 2022

The Senate met in regular session at 9:00 a.m., President Pro Tempore Zaun presiding.

Prayer and the Pledge of Allegiance were offered by the Honorable Brad Zaun, president pro tempore of the Senate from Polk County, Urbandale, Iowa.

The Journal of Monday, May 9, 2022, was approved.

ADJOURNMENT

On motion of Senator Chapman, the Senate adjourned at 9:03 a.m. until 9:00 a.m., Monday, May 16, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF COMMERCE (BANKING DIVISION)

Bank Required Collateral, pursuant to Iowa Code section 12C.20. Report received on May 11, 2022.

CERTIFICATE OF RECOGNITION

The Secretary of the Senate issued the following certificate of recognition:

Prime Minister Albin Kurti—For receiving the Iowa Distinguished Foreign Service medal. Senator Nunn.

BILLS ENROLLED, SIGNED, AND SENT TO GOVERNOR

The Secretary of the Senate submitted the following report:

MR. PRESIDENT: The Secretary of the Senate respectfully reports that the following bills have been enrolled, signed by the President of the Senate and the Speaker of the House, and presented to the Governor for her approval on this 12th day of May, 2022.

Senate Files 586 and 2363.

W. CHARLES SMITHSON
Secretary of the Senate

BILLS SIGNED BY THE GOVERNOR

A communication was received announcing that on May 12, 2022, the Governor approved and transmitted to the Secretary of State the following bills:

Senate File 586 – Relating to banks, making appropriations, and making civil penalties applicable.

Senate File 2363 – Relating to the requirements for a sex offender to be granted a modification of sex offender registry requirements.

JOURNAL OF THE SENATE

ONE HUNDRED TWENTY-SEVENTH CALENDAR DAY
SIXTY-SEVENTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, May 16, 2022

The Senate met in regular session at 9:05 a.m., President Chapman presiding.

Prayer and the Pledge of Allegiance were offered by the Honorable Jake Chapman, president of the Senate from Dallas County, Adel, Iowa.

The Journal of Thursday, May 12, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:07 a.m. until 9:00 a.m., Tuesday, May 17, 2022.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF CORRECTIONS

Use of Offenders in Private Sector Employment Report 7/1/21–9/30/21, pursuant to 2021 Iowa Acts, Chapter 166, section 7. Report received on May 16, 2022.

Use of Offenders in Private Sector Employment Report 10/1/21–12/31/21, pursuant to 2021 Iowa Acts, Chapter 166, section 7. Report received on May 16, 2022.

BOARD OF REGENTS

Continuous Improvement Plan, pursuant to Iowa Code section 262.9. Report received on May 13, 2022.

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on May 13, 2022.

JOURNAL OF THE SENATE

ONE HUNDRED TWENTY-EIGHTH CALENDAR DAY
SIXTY-EIGHTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, May 17, 2022

The Senate met in regular session at 9:01 a.m., President Chapman presiding.

Prayer and the Pledge of Allegiance were offered by the Honorable Jake Chapman, president of the Senate from Dallas County, Adel, Iowa.

The Journal of Monday, May 16, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:03 a.m. until 9:00 a.m., Wednesday, May 18, 2022.

APPENDIX

STUDY BILLS RECEIVED

SSB 3162 Appropriations

Relating to state and local finances by making appropriations, providing for legal and regulatory responsibilities, providing for other properly related matters, and including effective date and retroactive applicability provisions.

SSB 3163 Appropriations

Relating to and making appropriations involving certain state departments, agencies, funds, and certain other entities, providing for regulatory authority, providing for other properly related matters, and including contingent effective date provisions.

SUBCOMMITTEE ASSIGNMENTS

SSB 3162

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom, Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Lofgren, Mathis, Petersen, Ragan, Reichman, Rozenboom, J. Smith, T. Taylor, and Williams.

SSB 3163

APPROPRIATIONS: Kraayenbrink, Chair; Bolkcom, Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Lofgren, Mathis, Petersen, Ragan, Reichman, Rozenboom, J. Smith, T. Taylor, and Williams.

JOURNAL OF THE SENATE

ONE HUNDRED TWENTY-NINTH CALENDAR DAY
SIXTY-NINTH SESSION DAY

Senate Chamber
Des Moines, Iowa, Wednesday, May 18, 2022

The Senate met in regular session at 9:04 a.m., President Pro Tempore Zaun presiding.

Prayer and the Pledge were offered by the Honorable Brad Zaun, president pro tempore of the Senate from Polk County, Urbandale, Iowa.

The Journal of Tuesday, May 17, 2022, was approved.

ADJOURNMENT

On motion of Senator Edler, the Senate adjourned at 9:06 a.m. until 9:00 a.m., Thursday, May 19, 2022.

APPENDIX

CERTIFICATE OF RECOGNITION

The Secretary of the Senate issued the following certificate of recognition:

Mildred Christensen, Janesville—For celebrating her 100th birthday. Senator Driscoll.

REPORT OF COMMITTEE MEETING

APPROPRIATIONS

Convened: Wednesday, May 18, 2022, 11:45 a.m.

Members Present: Kraayenbrink, Chair; Lofgren, Vice Chair; Bolkcom, Ranking Member; Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Klimesh, Koelker, Petersen, Ragan, Reichman, Rozenboom, J. Smith, T. Taylor, and Williams.

Members Absent: Johnson and Mathis (both excused).

Committee Business: HF 2337, HF 2560, HF 2558, HF 2564, HF 2575, and SSB 3162.

Adjourned: 1:45 p.m.

INTRODUCTION OF BILL

Senate File 2384, by committee on Appropriations, a bill for an act relating to state and local finances by making appropriations, providing for legal and regulatory responsibilities, providing for other properly related matters, and including effective date and retroactive applicability provisions.

Read first time under Rule 28 and **placed on Appropriations calendar**.

FINAL COMMITTEE REPORTS OF BILL ACTION

APPROPRIATIONS

Bill Title: SENATE FILE 2384 (SSB 3162), a bill for an act relating to state and local finances by making appropriations, providing for legal and regulatory responsibilities, providing for other properly related matters, and including effective date and retroactive applicability provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 12: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 7: Bolkcom, Celsi, Dotzler, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 2: Johnson and Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2337, a bill for an act relating to underground storage tanks, including by creating the Iowa tanks fund and Iowa tanks fund financing program, repealing the Iowa comprehensive petroleum underground storage tank fund, and eliminating the Iowa comprehensive petroleum underground storage tank fund board, requiring a study, making appropriations, and including effective date and transition provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 19: Kraayenbrink, Lofgren, Bolkcom, Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Klimesh, Koelker, Petersen, Ragan, Reichman, Rozenboom, J. Smith, T. Taylor, and Williams. Nays, none. Excused, 2: Johnson and Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2558, a bill for an act relating to appropriations to the judicial branch.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5149.

Final Vote: Yeas, 12: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 7: Bolkcom, Celsi, Dotzler, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 2: Johnson and Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2560, a bill for an act relating to and making appropriations involving state government entities involved with agriculture, natural resources, and environmental protection, and making related statutory changes, and including effective date provisions.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5150.

Final Vote: Yeas, 12: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 7: Bolkcom, Celsi, Dotzler, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 2: Johnson and Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2564, a bill for an act making appropriations to the department of cultural affairs, the economic development authority, the Iowa finance authority, the public employment relations board, the department of workforce development, the state board of regents and certain regents institutions, and the department of agriculture and land stewardship, providing for properly related matters, and including contingent effective date and applicability provisions.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5151.

Final Vote: Yeas, 12: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 7: Bolkcom, Celsi, Dotzler, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 2: Johnson and Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2575, a **b**ill for an act relating to the funding of, the operation of, and appropriation of moneys to the college student aid commission, the department for the blind, the department of education, and the state board of regents, providing for properly related matters, and including effective date and retroactive applicability provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 12: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 7: Bolkcom, Celsi, Dotzler, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 2: Johnson and Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

APPOINTMENTS

The following appointees were submitted to the Secretary of the Senate for Senate confirmation (all appointees are submitted as **members** unless otherwise specified):

BY THE GOVERNOR

	TERM
AFRICAN AMERICANS, COMMISSION ON THE STATUS OF (Sec. 216A.142)	
Jonathan Whitfield, West Des Moines	05/01/2022 – 04/30/2026
CHIROPRACTIC, BOARD OF (Sec. 147.14(1)(h))	
Jennifer Rasmussen, Cedar Falls	05/01/2022 – 04/30/2025
LOTTERY AUTHORITY BOARD OF DIRECTORS, IOWA (Sec. 99G.8)	
Kathleen New, Indianola	05/01/2022 – 04/30/2026
REAL ESTATE APPRAISER EXAMINING BOARD (Sec. 543D.4(2))	
Susan Clark, Des Moines	04/18/2022 – 04/30/2024
REAL ESTATE COMMISSION (Sec. 543B.8)	
John Sweeney, Waukon	05/01/2022 – 04/30/2025

The appointments were referred to the committee on **Rules and Administration**.

WITHDRAWAL OF GOVERNOR'S APPOINTEES

The following letters from the Governor were received in the office of the Secretary of the Senate:

I am withdrawing the name of Gene Beinke for confirmation as a member of the Iowa Law Enforcement Academy Council from further consideration by the Senate.

I am withdrawing the name of Devon Wood for confirmation as a member of the Board of Nursing Home Administrators from further consideration by the Senate.

I am withdrawing the name of Sarah Boury for confirmation as a member of the Board of Sign Language Interpreters and Transliterators from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

AMENDMENTS FILED

S–5148	S.F.	2331	Jeff Edler
S–5149	H.F.	2558	Appropriations
S–5150	H.F.	2560	Appropriations
S–5151	H.F.	2564	Appropriations

JOURNAL OF THE SENATE

ONE HUNDRED THIRTIETH CALENDAR DAY
SEVENTIETH SESSION DAY

Senate Chamber
Des Moines, Iowa, Thursday, May 19, 2022

The Senate met in regular session at 9:05 a.m., President Pro Tempore Zaun presiding.

Prayer was offered by the Honorable Adrian Dickey, member of the Senate from Jefferson County, Packwood, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senator Zaun.

The Journal of Wednesday, May 18, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 9:07 a.m. until 10:00 a.m., Friday, May 20, 2022.

APPENDIX

CERTIFICATES OF RECOGNITION

The Secretary of the Senate issued the following certificates of recognition:

Benjamin Ahlrichs—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Trey Armistead—For their work in public education. Senator Trone Garriott.

Saumya Balaji—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Kayleen Bertman—For their work in public education. Senator Trone Garriott.

Ida Bonkafo—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Staci Braun—For their work in public education. Senator Trone Garriott.

Cindy Byrnes—For their work in public education. Senator Trone Garriott.

Laura Calvert—For their work in public education. Senator Trone Garriott.

Rebecca Comer—For their work in public education. Senator Trone Garriott.

Dani Cox—For their work in public education. Senator Trone Garriott.

Mia Dukle—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Uma Dukle—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Tracy Ferguson—For their work in public education. Senator Trone Garriott.

Chris Guess—For their work in public education. Senator Trone Garriott.

Sheri Guess—For their work in public education. Senator Trone Garriott.

Holly Heard—For their work in public education. Senator Trone Garriott.

Riley Johnson—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Roaa Kordeir—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Amanda Le—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Jakema Levy—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Derek Louden—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Alyssa Makena—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Christa McClintock—For their work in public education. Senator Trone Garriott.

Lana McKinney—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Kent Miller—For their work in public education. Senator Trone Garriott.

Lucy Murugami—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Fynlan Nadel—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Savannah Nguyen—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Joy Nyamu—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Stacy Peterson—For their work in public education. Senator Trone Garriott.

Lorie Prouty—For their work in public education. Senator Trone Garriott.

Dysean (Gresyn) Schmitz—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Tiz Sheppard—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Jackie Smith—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Melanie Smith—For their work in public education. Senator Trone Garriott.

Jenny Stephens—For their work in public education. Senator Trone Garriott.

Josh Studer—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Aidan Topolinski—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Eric Trudo—For their work in public education. Senator Trone Garriott.

Jasmine Villanueva—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Ann Volk—For their work in public education. Senator Trone Garriott.

Elaine Wang—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Jenna Woodsmall—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

Amanda Wright—For their work in public education. Senator Trone Garriott.

Dustin Wright—For their work in public education. Senator Trone Garriott.

Stacey Wright—For their work in public education. Senator Trone Garriott.

Imman Yimer—For their leadership among students, faculty, and staff during their high school career as a member of CORE. Senator Trone Garriott.

REPORT OF COMMITTEE MEETING

APPROPRIATIONS

Convened: Wednesday, May 18, 2022, 4:00 p.m.

Members Present: Kraayenbrink, Chair; Lofgren, Vice Chair; Bolkcom, Ranking Member; Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Petersen, Ragan, Reichman, Rozenboom, J. Smith, T. Taylor, and Williams.

Members Absent: Mathis (excused).

Committee Business: HF 2578, HF 2579, HF 2559, and SSB 3163.

Adjourned: 5:15 p.m.

INTRODUCTION OF BILL

Senate File 2385, by committee on Appropriations, a bill for an act relating to and making appropriations involving certain state departments, agencies, funds, and certain other entities, providing for regulatory authority, providing for other properly related matters, and including contingent effective date provisions.

Read first time under Rule 28 and **placed on Appropriations calendar**.

FINAL COMMITTEE REPORTS OF BILL ACTION

APPROPRIATIONS

Bill Title: SENATE FILE 2385 (SSB 3163), a bill for an act relating to and making appropriations involving certain state departments, agencies, funds, and certain other entities, providing for regulatory authority, providing for other properly related matters, and including contingent effective date provisions.

Recommendation: APPROVED COMMITTEE BILL.

Final Vote: Yeas, 13: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 7: Bolkcom, Celsi, Dotzler, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 1: Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2559, a bill for an act relating to appropriations to the justice system.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5152.

Final Vote: Yeas, 13: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 7: Bolkcom, Celsi, Dotzler, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 1: Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2578, a bill for an act relating to appropriations for health and human services and veterans and including other related provisions and appropriations, providing penalties, and including effective date and retroactive and other applicability date provisions.

Recommendation: DO PASS.

Final Vote: Yeas, 13: Kraayenbrink, Lofgren, Costello, Cournoyer, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Reichman, Rozenboom, and Williams. Nays, 7: Bolkcom, Celsi, Dotzler, Petersen, Ragan, J. Smith, and T. Taylor. Excused, 1: Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

ALSO:

Bill Title: HOUSE FILE 2579, a bill for an act relating to and making appropriations to state departments and agencies from the rebuild Iowa infrastructure fund and the technology reinvestment fund, providing for related matters, and including effective date and retroactive applicability provisions.

Recommendation: AMEND AND DO PASS, AS PROVIDED IN AMENDMENT S–5153.

Final Vote: Yeas, 20: Kraayenbrink, Lofgren, Bolkcom, Celsi, Costello, Cournoyer, Dotzler, Edler, Garrett, Guth, Johnson, Klimesh, Koelker, Petersen, Ragan, Reichman, Rozenboom, J. Smith, T. Taylor, and Williams. Nays, none. Excused, 1: Mathis.

Fiscal Note: NOT REQUIRED UNDER JOINT RULE 17.

AMENDMENTS FILED

S–5152	H.F.	2559	Appropriations
S–5153	H.F.	2579	Appropriations

JOURNAL OF THE SENATE

ONE HUNDRED THIRTY-FIRST CALENDAR DAY
SEVENTY-FIRST SESSION DAY

Senate Chamber
Des Moines, Iowa, Friday, May 20, 2022

The Senate met in regular session at 10:00 a.m., President Pro Tempore Zaun presiding.

Prayer and the Pledge of Allegiance were offered by the Honorable Brad Zaun, president pro tempore of the Senate from Polk County, Urbandale, Iowa.

The Journal of Thursday, May 19, 2022, was approved.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 10:01 a.m. until 10:00 a.m., Monday, May 23, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

BOARD OF PAROLE

Annual Report, pursuant to Iowa Code section 7E.3. Report received on May 20, 2022.

AMENDMENTS FILED

S–5154	H.F.	2575	Chris Cournoyer
S–5155	H.F.	2578	Mark Costello

JOURNAL OF THE SENATE

ONE HUNDRED THIRTY-FOURTH CALENDAR DAY
SEVENTY-SECOND SESSION DAY

Senate Chamber
Des Moines, Iowa, Monday, May 23, 2022

The Senate met in regular session at 10:03 a.m., President Chapman presiding.

Prayer was offered by the Honorable Roby Smith, member of the Senate from Scott County, Davenport, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Jackson Maddox.

The Journal of Friday, May 20, 2022, was approved.

The Senate stood at ease at 10:05 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 11:35 a.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Hogg and Wahls, until they arrive, on request of Senator Ragan; and Senators Guth, Kraayenbrink, and Zumbach, until they arrive, on request of Senator Whitver.

CONSIDERATION OF BILLS
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2560 and 2578.

House File 2560

On motion of Senator Rozenboom, **House File 2560**, a bill for an act relating to and making appropriations involving state government entities involved with agriculture, natural resources, and environmental protection, and making related statutory changes, and including effective date provisions, with report of committee recommending amendment and passage, was taken up for consideration.

Senator Rozenboom offered amendment S–5150, filed by the committee on Appropriations on May 18, 2022, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5150 was adopted by a voice vote.

Senator Rozenboom moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2560), the vote was:

Yeas, 33:

Bisignano	Brown	Carlin	Chapman
Costello	Cournoyer	Dawson	Dickey
Driscoll	Edler	Garrett	Goodwin
Green	Johnson	Kinney	Klimesh
Koelker	Lofgren	Mathis	Nunn
Quirmbach	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams
Zaun			

Nays, 12:

Bolkcom	Boulton	Celsi	Dotzler
Giddens	Jochum	Lykam	Petersen
Ragan	Smith, J.	Taylor, T.	Trone Garriott

Absent, 5:

Guth	Hogg	Kraayenbrink	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2578

On motion of Senator Costello, **House File 2578**, a bill for an act relating to appropriations for health and human services and veterans and including other related provisions and appropriations, providing penalties, and including effective date and retroactive and other applicability date provisions, with report of committee recommending passage, was taken up for consideration.

Senator Costello offered amendment S–5155, filed by him on May 20, 2022, striking and replacing everything after the enacting clause of the bill.

Senator J. Smith offered amendment S–5161, filed by her from the floor to pages 13 and 14 of amendment S–5155, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5161 to amendment S–5155 be adopted?" (H.F. 2578), the vote was:

Yeas, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott

Nays, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun		

Absent, 4:

Hogg	Kraayenbrink	Wahls	Zumbach

Amendment S–5161 to amendment S–5155 lost.

Senator Costello moved the adoption of amendment S–5155.

Amendment S–5155 was adopted by a voice vote.

Senator Costello moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2578), the vote was:

Yeas, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun		

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott

Absent, 4:

Hogg	Kraayenbrink	Wahls	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2560** and **2578** be **immediately messaged** to the House.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2497 and 2081.

House File 2497

On motion of Senator R. Smith, **House File 2497**, a bill for an act relating to gambling regulation and wagering, concerning cashless wagering, forfeiture and withholding of certain gaming winnings, sports wagering, occupational licenses, and providing penalties, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending amendment and passage, was taken up for consideration.

Senator R. Smith asked and received unanimous consent to withdraw amendment S–5072, filed by the committee on State Government on March 16, 2022, to pages 1–6 and amending the title page of the bill.

Senator R. Smith offered amendment S–5160, filed by him from the floor to pages 1–7 and amending the title page of the bill, and moved its adoption.

Amendment S–5160 was adopted by a voice vote.

Senator R. Smith moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2497), the vote was:

Yeas, 35:

Bisignano	Bolkcom	Boulton	Brown
Chapman	Cournoyer	Dawson	Dickey
Dotzler	Driscoll	Edler	Giddens
Goodwin	Green	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Shipley	Smith, J.	Smith, R.	Sweeney
Trone Garriott	Whitver	Williams	

Nays, 11:

Carlin	Celsi	Costello	Garrett
Guth	Mathis	Schultz	Sinclair
Taylor, J.	Taylor, T.	Zaun	

Absent, 4:

Hogg	Kraayenbrink	Wahls	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

House File 2081

On motion of Senator Sinclair, **House File 2081**, a bill for an act relating to teachers, including the assessments administered to practitioner preparation program admission candidates and to practitioner preparation program students prior to students' completion of a practitioner preparation program, field experiences, and certain specified licenses for teachers created by the board of educational examiners, and including notice, effective date, and applicability provisions, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Sinclair moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2081), the vote was:

Yeas, 46:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Lofgren	Lykam	Mathis	Nunn
Petersen	Quirmbach	Ragan	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Whitver
Williams	Zaun		

Nays, none.

Absent, 4:

Hogg	Kraayenbrink	Wahls	Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2081** and **2497** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2559.

House File 2559

On motion of Senator Garrett, **House File 2559**, a bill for an act relating to appropriations to the justice system, with report of committee recommending amendment and passage, was taken up for consideration.

Senator T. Taylor asked and received unanimous consent that action on **House File 2559** be **deferred**.

The Senate stood at ease at 12:10 p.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 1:01 p.m., President Chapman presiding.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Lofgren, until he arrives, on request of Senator Whitver.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2209.

House File 2209

On motion of Senator Cournoyer, **House File 2209**, a bill for an act relating to residents under sixteen years of age accompanying an adult who is hunting or trapping, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2209), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Hogg	Kraayenbrink	Lofgren	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

HOUSE AMENDMENT CONSIDERED

Senate File 2378

Senator Whitver called up for consideration **Senate File 2378**, a bill for an act relating to beverages, including the barrel tax and the acceptance of beverage containers for refund value, providing penalties, and including effective date provisions, amended by the House in House amendment S–5127, filed April 13, 2022.

Senator Schultz moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Schultz moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2378), the vote was:

Yeas, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Kinney	Klimesh
Koelker	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun		

Nays, 15:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Lykam
Mathis	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	

Absent, 5:

Hogg	Kraayenbrink	Lofgren	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2378** and **House File 2209** be **immediately messaged** to the House.

BUSINESS PENDING

House File 2559

The Senate resumed consideration of **House File 2559**, a bill for an act relating to appropriations to the justice system, previously deferred.

Senator Garrett offered amendment S–5152, filed by the committee on Appropriations on May 19, 2022, striking and replacing everything after the enacting clause of the bill.

Senator Boulton offered amendment S–5167, filed by him from the floor to pages 11 and 12 of amendment S–5152, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5167 to amendment S–5152 be adopted?" (H.F. 2559), the vote was:

Yeas, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott

Nays, 29:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams
Zaun			

Absent, 5:

Hogg	Kraayenbrink	Lofgren	Wahls
Zumbach			

Amendment S–5167 to amendment S–5152 lost.

Senator Quirmbach offered amendment S–5165, filed by him from the floor to page 15 of amendment S–5152, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5165 to amendment S–5152 be adopted?" (H.F. 2559), the vote was:

Yeas, 17:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Edler	Giddens	Jochum
Kinney	Lykam	Mathis	Petersen
Quirmbach	Ragan	Smith, J.	Taylor, T.
Trone Garriott			

Nays, 28:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Nunn
Reichman	Rowley	Rozenboom	Schultz
Shipley	Sinclair	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Absent, 5:

Hogg	Kraayenbrink	Lofgren	Wahls
Zumbach			

Amendment S–5165 to amendment S–5152 lost.

Senator T. Taylor offered amendment S–5163, filed by Senators T. Taylor and Boulton from the floor to page 22 of amendment S–5152.

Senator Garrett raised the point of order that amendment S–5163 to amendment S–5152 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5163 to amendment S–5152 out of order.

Senator Garrett moved the adoption of amendment S–5152.

Amendment S–5152 was adopted by a voice vote.

Senator Garrett moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2559), the vote was:

Yeas, 29:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams
Zaun			

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott

Absent, 5:

Hogg	Kraayenbrink	Lofgren	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2559** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2557.

House File 2557

On motion of Senator Johnson, **House File 2557**, a bill for an act relating to transportation and other infrastructure-related appropriations to the department of transportation, including allocation and use of moneys from the road use tax fund and the primary road fund, with report of committee recommending passage, was taken up for consideration.

Senator Johnson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2557), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair

Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Hogg	Kraayenbrink	Lofgren	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

HOUSE AMENDMENT CONSIDERED

Senate File 2374

Senator Whitver called up for consideration **Senate File 2374**, a bill for an act relating to alcoholic beverage control and licensing, providing for fees, and including effective date provisions, amended by the House in House amendment S–5124, filed April 12, 2022.

Senator Cournoyer moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Cournoyer moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2374), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom

Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Whitver	Williams	Zaun

Nays, 1:

Celsi

Absent, 5:

Hogg	Kraayenbrink	Lofgren	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2080.

House File 2080

On motion of Senator Rozenboom, **House File 2080**, a bill for an act relating to school districts that share operational functions, including operational functions in the areas of superintendent management and special education director, and including effective date and applicability provisions, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Cournoyer offered amendment S–5157, filed by Senator Sinclair from the floor to pages 1 and 2 and amending the title page of the bill, and moved its adoption.

Amendment S–5157 was adopted by a voice vote.

Senator Rozenboom moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2080), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Hogg	Kraayenbrink	Lofgren	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2374** and **House Files 2080** and **2557** be **immediately messaged** to the House.

The Senate stood at ease at 2:08 p.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 3:29 p.m., President Chapman presiding.

LEAVES OF ABSENCE

Leaves of absence were granted as follows:

Senators Carlin and Goodwin, until they arrive, on request of Senator Whitver.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2129.

Senate File 2129

On motion of Senator Sinclair, **Senate File 2129**, a bill for an act relating to students who are eligible to receive a scholarship from the future ready Iowa skilled workforce last-dollar scholarship fund, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Sinclair offered amendment S–5164, filed by her from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5164 was adopted by a voice vote.

Senator Sinclair asked and received unanimous consent that **House File 2165** be **substituted** for **Senate File 2129**.

House File 2165

On motion of Senator Sinclair, **House File 2165**, a bill for an act relating to students who are eligible to receive a scholarship from the future ready Iowa skilled workforce last-dollar scholarship fund, was taken up for consideration.

Senator Sinclair offered amendment S–5166, filed by her from the floor to page 1 and amending the title page of the bill, and moved its adoption.

Amendment S–5166 was adopted by a voice vote.

Senator Sinclair moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2165), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Green
Guth	Jochum	Johnson	Kinney
Klimesh	Koelker	Lofgren	Lykam
Mathis	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Whitver	Williams	Zaun

Nays, none.

Absent, 6:

Carlin	Goodwin	Hogg	Kraayenbrink
Wahls	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

WITHDRAWN

Senator Sinclair asked and received unanimous consent that **Senate File 2129** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2165** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2496.

House File 2496

On motion of Senator Dawson, **House File 2496**, a bill for an act relating to the procedural requirements for placing an officer's name on a Brady-Giglio list, and for a prosecuting agency disclosing exculpatory evidence, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Dawson offered amendment S–5168, filed by him from the floor to pages 1, 2, and 4 of the bill, and moved its adoption.

Amendment S–5168 was adopted by a voice vote.

Senator Dawson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2496), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Goodwin	Hogg	Kraayenbrink	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF BILL
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2579.

House File 2579

On motion of Senator Johnson, **House File 2579**, a bill for an act relating to and making appropriations to state departments and agencies from the rebuild Iowa infrastructure fund and the technology reinvestment fund, providing for related matters, and including effective date and retroactive applicability provisions, with report of committee recommending amendment and passage, was taken up for consideration.

Senator Johnson offered amendment S–5153, filed by the committee on Appropriations on May 19, 2022, striking and replacing everything after the enacting clause and amending the title page of the bill.

Senator Johnson offered amendment S–5162, filed by him from the floor to pages 6, 22, and 25 of amendment S–5153, and moved its adoption.

Amendment S–5162 to amendment S–5153 was adopted by a voice vote.

Senator Johnson moved the adoption of amendment S–5153, as amended.

Amendment S–5153 was adopted by a voice vote.

Senator Johnson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2579), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler

Driscoll	Edler	Garrett	Giddens
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Goodwin	Hogg	Kraayenbrink	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2333.

Senate File 2333

On motion of Senator J. Taylor, **Senate File 2333**, a bill for an act relating to the uniform commercial code by providing for controllable electronic records, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator J. Taylor offered amendment S–5056, filed by him on March 10, 2022, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5056 was adopted by a voice vote.

Senator J. Taylor asked and received unanimous consent that **House File 2445** be **substituted** for **Senate File 2333**.

House File 2445

On motion of Senator J. Taylor, **House File 2445**, a bill for an act relating to the uniform commercial code by providing for controllable electronic records, was taken up for consideration.

Senator J. Taylor moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2445), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Goodwin	Hogg	Kraayenbrink	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator J. Taylor asked and received unanimous consent that **Senate File 2333** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2445**, **2496**, and **2579** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2470.

House File 2470

On motion of Senator Johnson, **House File 2470**, a bill for an act adopting and implementing the recommendations of the artisanal butchery task force, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Johnson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2470), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Sinclair
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Goodwin Hogg Kraayenbrink Wahls Zumbach

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF BILLS
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2575 and 2564.

House File 2575

On motion of Senator Cournoyer, **House File 2575**, a bill for an act relating to the funding of, the operation of, and appropriation of moneys to the college student aid commission, the department for the blind, the department of education, and the state board of regents, providing for properly related matters, and including effective date and retroactive applicability provisions, with report of committee recommending passage, was taken up for consideration.

Senator Cournoyer offered amendment S–5154, filed by her on May 20, 2022, striking and replacing everything after the enacting clause and amending the title page of the bill.

Senator Whitver asked and received unanimous consent that action on amendment S–5154 and **House File 2575** be **deferred**.

House File 2564

On motion of Senator Koelker, **House File 2564**, a bill for an act making appropriations to the department of cultural affairs, the economic development authority, the Iowa finance authority, the public employment relations board, the department of workforce development, the state board of regents and certain regents institutions, and the department of agriculture and land stewardship, providing for properly related matters, and including contingent effective date and applicability provisions, with report of committee recommending amendment and passage, was taken up for consideration.

Senator Koelker offered amendment S–5151, filed by the committee on Appropriations on May 18, 2022, striking and replacing everything after the enacting clause and amending the title page of the bill, and moved its adoption.

Amendment S–5151 was adopted by a voice vote.

Senator Koelker moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2564), the vote was:

Yeas, 31:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Green	Guth
Johnson	Kinney	Klimesh	Koelker
Lofgren	Mathis	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Sinclair	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	

Nays, 14:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Lykam
Petersen	Quirmbach	Ragan	Smith, J.
Taylor, T.	Trone Garriott		

Absent, 5:

Goodwin	Hogg	Kraayenbrink	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2470** and **2564** be **immediately messaged** to the House.

BUSINESS PENDING

House File 2575

The Senate resumed consideration of **House File 2575**, a bill for an act relating to the funding of, the operation of, and appropriation of moneys to the college student aid commission, the department for the blind, the department of education, and the state board of regents, providing for properly related matters, and including effective date and retroactive applicability provisions, and amendment S–5154, previously deferred.

Senator Cournoyer offered amendment S–5156, filed by her from the floor to pages 19 and 30 of amendment S–5154, and moved its adoption.

Amendment S–5156 to amendment S–5154 was adopted by a voice vote.

Senator Sinclair offered amendment S–5169, filed by her from the floor to page 30 of amendment S–5154, and moved its adoption.

Amendment S–5169 to amendment S–5154 was adopted by a voice vote.

Senator Cournoyer moved the adoption of amendment S–5154, as amended.

Amendment S–5154 was adopted by a voice vote.

Senator Cournoyer moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2575), the vote was:

Yeas, 29:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Sinclair	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams
Zaun			

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott

Absent, 5:

Goodwin	Hogg	Kraayenbrink	Wahls
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2575** be **immediately messaged** to the House.

RECESS

On motion of Senator Whitver, the Senate recessed at 4:44 p.m. until 7:00 p.m.

RECONVENED

The Senate reconvened at 8:02 p.m., President Chapman presiding.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Sinclair, until she returns, on request of Senator Whitver.

CONSIDERATION OF BILL
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2558.

House File 2558

On motion of Senator Garrett, **House File 2558**, a bill for an act relating to appropriations to the judicial branch, with report of committee recommending amendment and passage, was taken up for consideration.

Senator Garrett offered amendment S–5149, filed by the committee on Appropriations on May 18, 2022, striking and replacing everything after the enacting clause of the bill.

Senator Boulton offered amendment S–5171, filed by him from the floor to pages 5–6 of amendment S–5149, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5171 to amendment S–5149 be adopted?" (H.F. 2558), the vote was:

Yeas, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott

Nays, 28:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Absent, 6:

Goodwin	Hogg	Kraayenbrink	Sinclair
Wahls	Zumbach		

Amendment S–5171 to amendment S–5149 lost.

Senator Petersen offered amendment S–5172, filed by her from the floor to page 6 of amendment S–5149.

Senator Garrett raised the point of order that amendment S–5172 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5172 out of order.

The Senate resumed consideration of amendment S–5149.

Senator Boulton raised the point of order that amendment S–5149 was not germane to the bill.

The Chair ruled the point not well-taken and amendment S–5149 in order.

Senator Garrett moved the adoption of amendment S–5149.

Amendment S–5149 was adopted by a voice vote.

Senator Garrett moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2558), the vote was:

Yeas, 28:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott

Absent, 6:

Goodwin	Hogg	Kraayenbrink	Sinclair
Wahls	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2558** be **immediately messaged** to the House.

LEAVE OF ABSENCE

Senator Carlin, until he arrives, on request of Senator Whitver.

HOUSE AMENDMENT CONSIDERED

Senate File 2367

Senator Whitver called up for consideration **Senate File 2367**, a bill for an act relating to sales, use, and motor vehicle fuel taxes administered by the department of revenue including distributions to local governments and school districts, the liability of sellers, tax refund and tax credit incentives, and motor fuel tax reporting modifications, and providing penalties, and including effective date and applicability provisions, amended by the House in House amendment S–5170, filed May 23, 2022.

Senator Dawson moved that the Senate concur in the House amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment.

Senator Dawson moved that the bill, as amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2367), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Whitver	Williams	Zaun

Nays, none.

Absent, 6:

Carlin	Hogg	Kraayenbrink	Sinclair
Wahls	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2367** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2385.

Senate File 2385

On motion of Senator Guth, **Senate File 2385**, a bill for an act relating to and making appropriations involving certain state departments, agencies, funds, and certain other entities, providing for regulatory authority, providing for other properly related matters, and including contingent effective date provisions, was taken up for consideration.

Senator Guth moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (S.F. 2385), the vote was:

Yeas, 28:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Mathis	Petersen	Quirmbach
Ragan	Smith, J.	Taylor, T.	Trone Garriott

Absent, 6:

Carlin	Hogg	Kraayenbrink	Sinclair
Wahls	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate File 2385** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2401.

House File 2401

On motion of Senator Johnson, **House File 2401**, a bill for an act relating to the disclosure of specified information in connection with designated online marketplace transactions and including effective date provisions, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Johnson moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2401), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Mathis	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Whitver	Williams	Zaun

Nays, none.

Absent, 6:

Carlin	Hogg	Kraayenbrink	Sinclair
Wahls	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF BILL
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2147.

House File 2147

On motion of Senator Reichman, **House File 2147**, a bill for an act making an appropriation to support efforts relating to the U.S.S. Iowa and including effective date provisions, with report of committee recommending passage, was taken up for consideration.

Senator Reichman offered amendment S–5117, filed by the committee on Appropriations on April 5, 2022, to page 1 of the bill, and moved its adoption.

Amendment S–5117 was adopted by a voice vote.

The Senate stood at ease at 9:33 p.m. until the fall of the gavel for the purpose of a Democratic party caucus.

The Senate resumed session at 9:52 p.m., President Chapman presiding.

Senator Reichman moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2147), the vote was:

Yeas, 37:

Bisignano	Boulton	Brown	Celsi
Chapman	Costello	Cournoyer	Dawson
Dickey	Driscoll	Edler	Garrett
Goodwin	Green	Guth	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Mathis	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Smith, J.	Smith, R.	Sweeney	Taylor, J.
Taylor, T.	Trone Garriott	Whitver	Williams
Zaun			

Nays, 7:

Bolkcom	Dotzler	Giddens	Jochum
Petersen	Quirmbach	Ragan	

Absent, 6:

Carlin	Hogg	Kraayenbrink	Sinclair
Wahls	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2147** and **2401** be **immediately messaged** to the House.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on May 23, 2022, **amended and passed** the following bill in which the concurrence of the Senate is asked:

Senate File 2367, a bill for an act relating to sales, use, and motor vehicle fuel taxes administered by the department of revenue including distributions to local governments and school districts, the liability of sellers, tax refund and tax credit incentives, and motor fuel tax reporting modifications, and providing penalties, and including effective date and applicability provisions. (S–5170)

ALSO: That the House has on May 23, 2022, **concurred** in the Senate amendment to the House amendment, a**nd passed** the following bill in which the concurrence of the House was asked:

Senate File 529, a bill for an act relating to assisted reproduction fraud, and providing penalties.

ALSO: That the House has on May 23, 2022, **concurred** in the Senate amendment a**nd passed** the following bills in which the concurrence of the House was asked:

House File 2496, a bill for an act relating to the procedural requirements for placing an officer's name on a Brady-Giglio list, and for a prosecuting agency disclosing exculpatory evidence.

House File 2497, a bill for an act relating to gambling regulation and wagering, concerning cashless wagering, forfeiture and withholding of certain gaming winnings, sports wagering, occupational licenses, and providing penalties.

House File 2549, a bill for an act relating to the establishment of a mental health practitioner loan repayment program, and providing an appropriation.

House File 2559, a bill for an act relating to appropriations to the justice system.

House File 2560, a bill for an act relating to and making appropriations involving state government entities involved with agriculture, natural resources, and environmental protection, and making related statutory changes, and including effective date provisions.

House File 2575, a bill for an act relating to the funding of, the operation of, and appropriation of moneys to the college student aid commission, the department for the blind, the department of education, and the state board of regents, providing for properly related matters, and including effective date and retroactive applicability provisions.

House File 2578, a bill for an act relating to appropriations for health and human services and veterans and including other related provisions and appropriations, providing penalties, and including effective date and retroactive and other applicability date provisions.

House File 2579, a bill for an act relating to and making appropriations to state departments and agencies from the rebuild Iowa infrastructure fund and the technology reinvestment fund, providing for related matters, and including effective date and retroactive applicability provisions.

ADJOURNMENT

On motion of Senator Whitver, the Senate adjourned at 10:05 p.m. until 9:00 a.m., Tuesday, May 24, 2022.

APPENDIX

COMMUNICATION RECEIVED

The following communication was received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF CORRECTIONS

Use of Offenders in Private Sector Employment, pursuant to 2021 Iowa Acts, Chapter 166, section 7. Report received on May 23, 2022.

CERTIFICATE OF RECOGNITION

The Secretary of the Senate issued the following certificate of recognition:

Jane Elizabeth Taylor, Sioux Center—For graduating from Unity Christian High School and being accepted into Oberlin College. Senator Jeff Taylor.

REPORT OF COMMITTEE MEETING

RULES AND ADMINISTRATION

Convened: Monday, May 23, 2022, 9:35 a.m.

Members Present: Whitver, Chair; Chapman, Vice Chair; Bolkcom, Brown, Jochum, Ragan, Sinclair, R. Smith, and Zaun.

Members Absent: Wahls, Ranking Member; and Zumbach (both excused).

Committee Business: Approval of minutes. Referral of appointees to En Bloc Calendar.

Adjourned: 9:40 a.m.

REPORT OF THE COMMITTEE ON RULES AND ADMINISTRATION

The committee on Rules and Administration referred the following Governor's appointments to the En Bloc Calendar on May 23, 2022:

EN BLOC CALENDAR

Jonathan Whitfield – Commission on the Status of African Americans

Jennifer Rasmussen – Board of Chiropractic

Kathleen New – Iowa Lottery Board of Directors

Susan Clark – Real Estate Appraiser Examining Board

John Sweeney – Real Estate Commission

BILLS ENROLLED, SIGNED, AND SENT TO GOVERNOR

The Secretary of the Senate submitted the following report:

MR. PRESIDENT: The Secretary of the Senate respectfully reports that the following bills have been enrolled, signed by the President of the Senate and the Speaker of the House, and presented to the Governor for her approval on this 23rd day of May, 2022.

Senate Files 513, 2260, 2298, 2323, 2366, and 2376.

W. CHARLES SMITHSON
Secretary of the Senate

BILLS SIGNED BY THE GOVERNOR

A communication was received announcing that on May 23, 2022, the Governor approved and transmitted to the Secretary of State the following bills:

Senate File 513 – Relating to persons experiencing a mental health crisis, substance-related disorder crisis, or housing crisis.

Senate File 2260 – Providing for the adoption of certain animals confined by research facilities.

Senate File 2298 – **A**uthorizing a local emergency management commission to assume the duties of a joint 911 service board.

Senate File 2323 – Relating to the inventory of lands managed or owned by the department of natural resources or a county conservation board, and including applicability provisions.

Senate File 2366 – Relating to the assessment and taxation of wind energy conversion property and including effective date, applicability, and retroactive applicability provisions.

Senate File 2376 – Relating to annual all-systems permits issued by the department of transportation for vehicles of excessive weight, and including effective date provisions.

AMENDMENTS FILED

S–5156	H.F.	2575	Chris Cournoyer
S–5157	H.F.	2080	Amy Sinclair
S–5158	S.F.	2231	Mike Klimesh
S–5159	H.F.	2384	Mike Klimesh
S–5160	H.F.	2497	Roby Smith
S–5161	H.F.	2578	Jackie Smith
S–5162	H.F.	2579	Craig Johnson
S–5163	H.F.	2559	Todd Taylor Nate Boulton
S–5164	S.F.	2129	Amy Sinclair
S–5165	H.F.	2559	Herman C. Quirmbach
S–5166	H.F.	2165	Amy Sinclair
S–5167	H.F.	2559	Nate Boulton
S–5168	H.F.	2496	Dan Dawson
S–5169	H.F.	2575	Amy Sinclair
S–5170	S.F.	2367	House
S–5171	H.F.	2558	Nate Boulton
S–5172	H.F.	2558	Janet Petersen

JOURNAL OF THE SENATE

ONE HUNDRED THIRTY-FIFTH CALENDAR DAY
SEVENTY-THIRD SESSION DAY

Senate Chamber
Des Moines, Iowa, Tuesday, May 24, 2022

The Senate met in regular session at 9:05 a.m., President Chapman presiding.

Prayer was offered by the Honorable Joe Bolkcom, member of the Senate from Johnson County, Iowa City, Iowa.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was led by Senate Page Jackson Maddox.

The Journal of Monday, May 23, 2022, was approved.

The Senate stood at ease at 9:08 a.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 11:10 a.m., President Chapman presiding.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2331.

Senate File 2331

On motion of Senator Edler, **Senate File 2331**, a bill for an act relating to reimbursement of psychiatric intensive inpatient care under the Medicaid program, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Edler offered amendment S–5148, filed by him on May 18, 2022, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5148 was adopted by a voice vote.

Senator Edler asked and received unanimous consent that **House File 2546** be **substituted** for **Senate File 2331.**

House File 2546

On motion of Senator Edler, **House File 2546**, a bill for an act relating to reimbursement of psychiatric intensive inpatient care under the Medicaid program, was taken up for consideration.

Senator Edler moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2546), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Lofgren	Lykam	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Hogg	Kraayenbrink	Mathis	Sinclair
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Edler asked and received unanimous consent that **Senate File 2331** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2546** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2358.

House File 2358

On motion of Senator J. Taylor, **House File 2358**, a bill for an act relating to the Iowa law enforcement academy, with report of committee recommending passage, was taken up for consideration.

Senator J. Taylor moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2358), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Lofgren	Lykam	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Hogg	Kraayenbrink	Mathis	Sinclair
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2358** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2468.

House File 2468

On motion of Senator Schultz, **House File 2468**, a bill for an act relating to statutes of limitations on arbitration proceedings and including applicability provisions, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator J. Smith offered amendment S–5173, filed by her from the floor to page 1 and amending the title page of the bill.

Senator Schultz raised the point of order that amendment S–5173 was not germane to the bill.

The Chair ruled the point well-taken and amendment S–5173 out of order.

Senator Schultz moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2468), the vote was:

Yeas, 30:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Kinney	Klimesh
Koelker	Lofgren	Nunn	Reichman
Rowley	Rozenboom	Schultz	Shipley
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun		

Nays, 15:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Lykam
Petersen	Quirmbach	Ragan	Smith, J.
Taylor, T.	Trone Garriott	Wahls	

Absent, 5:

Hogg	Kraayenbrink	Mathis	Sinclair
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2468** be **immediately messaged** to the House.

The Senate stood at ease at 11:36 a.m. until the fall of the gavel for the purpose of a Republican party caucus.

The Senate resumed session at 11:55 a.m., President Chapman presiding.

CONSIDERATION OF BILLS
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House Files 2298 and 2420.

House File 2298

On motion of Senator Schultz, **House File 2298**, a bill for an act relating to immunization against COVID-19 requirements for enrollment in any licensed child care center, elementary or secondary school, or postsecondary school in Iowa, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Schultz moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2298), the vote was:

Yeas, 29:

Brown	Carlin	Chapman	Costello
Cournoyer	Dawson	Dickey	Driscoll
Edler	Garrett	Goodwin	Green
Guth	Johnson	Klimesh	Koelker
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams
Zaun			

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 5:

Hogg	Kraayenbrink	Mathis	Sinclair
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

House File 2420

On motion of Senator R. Smith, **House File 2420**, a bill for an act relating to the newborn safe haven Act, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator R. Smith moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2420), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Lofgren	Lykam	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Hogg	Kraayenbrink	Mathis	Sinclair
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

CONSIDERATION OF BILL
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2517.

House File 2517

On motion of Senator Costello, **House File 2517**, a bill for an act relating to the reversion of moneys appropriated for a governance and funding of levee districts study, and including effective date provisions, with report of committee recommending passage, was taken up for consideration.

Senator Costello moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2517), the vote was:

Yeas, 45:

Bisignano	Bolkcom	Boulton	Brown
Carlin	Celsi	Chapman	Costello
Cournoyer	Dawson	Dickey	Dotzler
Driscoll	Edler	Garrett	Giddens
Goodwin	Green	Guth	Jochum
Johnson	Kinney	Klimesh	Koelker
Lofgren	Lykam	Nunn	Petersen
Quirmbach	Ragan	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, J.
Smith, R.	Sweeney	Taylor, J.	Taylor, T.
Trone Garriott	Wahls	Whitver	Williams
Zaun			

Nays, none.

Absent, 5:

Hogg	Kraayenbrink	Mathis	Sinclair
Zumbach			

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House Files 2298**, **2420**, and **2517** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2573.

House File 2573

On motion of Senator Garrett, **House File 2573**, a bill for an act creating funds relating to the abatement of and response to opioid use, with report of committee recommending amendment and passage, was taken up for consideration.

Senator Whitver asked and received unanimous consent that action on **House File 2573** be **deferred.**

The Senate stood at ease at 12:15 p.m. until the fall of the gavel for the purpose of party caucuses.

The Senate resumed session at 3:25 p.m., President Chapman presiding.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on May 24, 2022, **concurred** in the Senate amendment to the House amendment, **and passed** the following bill in which the concurrence of the House was asked:

Senate File 581, a bill for an act relating to deer population management.

ALSO: That the House has on May 24, 2022, passed the following bills in which the concurrence of the House was asked:

Senate File 2373, a bill for an act relating to the enforcement of the lake Manawa and Waubonsie state park user fee pilot programs, and including effective date and applicability provisions.

Senate File 2380, a bill for an act to designate February 1 of each year as George Washington Carver Day.

Senate File 2385, a bill for an act relating to and making appropriations involving certain state departments, agencies, funds, and certain other entities, providing for regulatory authority, providing for other properly related matters, and including contingent effective date provisions.

ALSO: That the House has on May 24, 2022, concurred in the Senate amendment **and passed** the following bills in which the concurrence of the House was asked:

House File 2080, a bill for an act relating to school districts that share operational functions, including operational functions in the areas of superintendent management and special education director, and including effective date and applicability provisions.

House File 2165, a bill for an act relating to employment, including modifying provisions related to the list of high-demand jobs created by community colleges and students who are eligible to receive a scholarship from the future ready Iowa skilled workforce last-dollar scholarship fund.

House File 2564, a bill for an act making appropriations to the department of cultural affairs, the economic development authority, the Iowa finance authority, the public employment relations board, the department of workforce development, the state board of regents and certain regents institutions, and the department of agriculture and land stewardship, providing for properly related matters, and including contingent effective date and applicability provisions.

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Carlin, until he arrives, on request of Senator Whitver.

CONFIRMATION OF GOVERNOR'S APPOINTMENTS
(Individual Confirmation Calendar)

Senator Whitver called up the appointment of Gwendolyn (Gwen) Ecklund as a member of the State Judicial Nominating Commission, placed on the Individual Confirmation Calendar on March 30, 2022, found on page 668 of the Senate Journal.

Senator Zaun moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 28:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

The appointee, having failed to receive a two-thirds vote, was declared to have not been confirmed by the Senate.

Senator Whitver called up the appointment of Kathleen Law as a member of the State Judicial Nominating Commission, placed on the Individual Confirmation Calendar on March 30, 2022, found on page 668 of the Senate Journal.

Senator Zaun moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 29:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Kinney	Klimesh	Koelker
Lofgren	Nunn	Reichman	Rowley
Rozenboom	Schultz	Shipley	Smith, R.
Sweeney	Taylor, J.	Whitver	Williams
Zaun			

Nays, 15:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Lykam
Petersen	Quirmbach	Ragan	Smith, J.
Taylor, T.	Trone Garriott	Wahls	

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

The appointee, having failed to receive a two-thirds vote, was declared to have not been confirmed by the Senate.

Senator Whitver called up the appointment of Jeremy Kidd as a member of the State Judicial Nominating Commission, placed on the Individual Confirmation Calendar on March 30, 2022, found on page 668 of the Senate Journal.

Senator Zaun moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 28:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

The appointee, having failed to receive a two-thirds vote, was declared to have not been confirmed by the Senate.

Senator Whitver called up the appointment of Derek Muller as a member of the State Judicial Nominating Commission, placed on the Individual Confirmation Calendar on March 30, 2022, found on page 668 of the Senate Journal.

Senator Zaun moved that the foregoing appointment be confirmed by the Senate.

On the question "Shall the appointee be confirmed?" the vote was:

Yeas, 28:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

The appointee, having failed to receive a two-thirds vote, was declared to have not been confirmed by the Senate.

BUSINESS PENDING

House File 2573

The Senate resumed consideration of **House File 2573**, a bill for an act creating funds relating to the abatement of and response to opioid use, previously deferred.

Senator Garrett offered amendment S–5129, filed by the committee on Appropriations on April 14, 2022, to page 1 and amending the title page of the bill.

Senator Garrett offered amendment S–5175, filed by him from the floor to pages 1 and 3 and amending the title page of amendment S–5129, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5175 to amendment S–5129 be adopted?" (H.F. 2573), the vote was:

Yeas, 28:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

Amendment S–5175 to amendment S–5129 was adopted.

Senator Garrett moved the adoption of amendment S–5129, as amended.

A record roll call was requested.

On the question "Shall amendment S–5129 be adopted?" (H.F. 2573), the vote was:

Yeas, 28:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

Amendment S–5129, as amended, was adopted.

Senator Garrett moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2573), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun

Nays, none.

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2573** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 771.

House File 771

On motion of Senator Rozenboom, **House File 771**, a bill for an act relating to the self-administration and storage of bronchodilators and bronchodilator canisters and spacers relative to schools and students, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Rozenboom offered amendment S–5176, filed by him from the floor to pages 1–6 and amending the title page of the bill, and moved its adoption.

Amendment S–5176 was adopted by a voice vote.

Senator Rozenboom moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 771), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun

Nays, none.

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 771** be **immediately messaged** to the House.

The Senate stood at ease at 4:32 p.m. until the fall of the gavel for the purpose of a Republican party caucus.

The Senate resumed session at 5:05 p.m., President Chapman presiding.

Senator R. Smith took the chair at 5:06 p.m.

HOUSE MESSAGES RECEIVED AND CONSIDERED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on May 24, 2022, **concurred** in the Senate amendment **and passed** the following bill in which the concurrence of the House was asked:

House File 2147, a bill for an act making an appropriation to support efforts relating to the U.S.S. Iowa and including effective date provisions.

ALSO: That the House has on May 24, 2022, **amended** the Senate amendment, **concurred** in the Senate amendment **as amended**, **and passed** the following bill in which the concurrence of the Senate is asked:

House File 2558, a bill for an act relating to appropriations to the judicial branch. (S–5177)

LEAVE OF ABSENCE

Leave of absence was granted as follows:

Senator Nunn, until he arrives, on request of Senator Whitver.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2411.

House File 2411

On motion of Senator Dickey, **House File 2411**, a bill for an act relating to replacements of permanent prosthetic devices for injured workers, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Dickey offered amendment S–5060, filed by him on March 15, 2022, to page 1 of the bill, and moved its adoption.

Amendment S–5060 was adopted by a voice vote.

Senator Dickey moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2411), the vote was:

Yeas, 43:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	

Nays, none.

Absent, 7:

Carlin	Hogg	Kraayenbrink	Mathis
Nunn	Sinclair	Zumbach	

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2411** be **immediately messaged** to the House.

President Chapman took the chair at 5:13 p.m.

CONSIDERATION OF BILL
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2088.

Senate File 2088

On motion of Senator Reichman, **Senate File 2088**, a bill for an act relating to the practices of pharmacy and nursing and the administration of immunizations and vaccinations, and the licensure of nonresident pharmacies, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Reichman asked and received unanimous consent that **House File 2169** be **substituted** for **Senate File 2088**.

House File 2169

On motion of Senator Reichman, **House File 2169**, a bill for an act relating to the practices of pharmacy and nursing and the administration of immunizations and vaccinations, and the licensure of nonresident pharmacies, was taken up for consideration.

Senator Reichman moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2169), the vote was:

Yeas, 43:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	

Nays, none.

Absent, 7:

Carlin	Hogg	Kraayenbrink	Mathis
Nunn	Sinclair	Zumbach	

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Reichman asked and received unanimous consent that **Senate File 2088** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2169** be **immediately messaged** to the House.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2431.

House File 2431

On motion of Senator Schultz, **House File 2431**, a bill for an act relating to the regulation of home-based businesses, including food establishments and home food processing establishments, and providing civil penalties, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Bisignano withdrew amendment S–5174, filed by him from the floor to page 1 and amending the title page of the bill.

Senator Schultz moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2431), the vote was:

Yeas, 28:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Kinney	Klimesh	Koelker
Lofgren	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Nays, 15:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Lykam
Petersen	Quirmbach	Ragan	Smith, J.
Taylor, T.	Trone Garriott	Wahls	

Absent, 7:

Carlin	Hogg	Kraayenbrink	Mathis
Nunn	Sinclair	Zumbach	

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2431** be **immediately messaged** to the House.

HOUSE AMENDMENT TO SENATE AMENDMENT CONSIDERED

House File 2558

Senator Whitver called up for consideration **House File 2558**, a bill for an act relating to appropriations to the judicial branch, amended by the Senate and further amended by the House in House amendment S–5177 to Senate amendment H–8387, filed May 24, 2022.

Senator Garrett moved that the Senate concur in the House amendment to the Senate amendment.

The motion prevailed by a voice vote and the Senate **concurred** in the House amendment to the Senate amendment.

Senator Garrett moved that the bill, as amended by the Senate, further amended by the House and concurred in by the Senate, be read the last time now and placed upon its passage, which motion prevailed by voice vote and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2558), the vote was:

Yeas, 27:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Reichman	Rowley	Rozenboom	Schultz
Shipley	Smith, R.	Sweeney	Taylor, J.
Whitver	Williams	Zaun	

Nays, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Absent, 7:

Carlin	Hogg	Kraayenbrink	Mathis
Nunn	Sinclair	Zumbach	

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2558** be **immediately messaged** to the House.

CONFIRMATION OF GOVERNOR'S APPOINTMENTS

In accordance with Senate Rule 59, Senator Whitver called up the following eligible appointees on the En Bloc Confirmation Calendar:

Jonathan Whitfield, Commission on the Status of African Americans

Jennifer Rasmussen, Board of Chiropractic

Jack Jones, Engineering and Land Surveying Examining Board

Kathleen New, Iowa Lottery Authority Board of Directors

Susan Clark, Real Estate Appraiser Examining Board

John Sweeney, Real Estate Commission

Dennis Carlson, State Soil Conservation and Water Quality Committee

Senator Whitver moved that the foregoing appointees be confirmed by the Senate.

On the question "Shall the appointees be confirmed?" the vote was:

Yeas, 43:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Petersen	Quirmbach	Ragan
Reichman	Rowley	Rozenboom	Schultz
Shipley	Smith, J.	Smith, R.	Sweeney
Taylor, J.	Taylor, T.	Trone Garriott	Wahls
Whitver	Williams	Zaun	

Nays, none.

Absent, 7:

Carlin	Hogg	Kraayenbrink	Mathis
Nunn	Sinclair	Zumbach	

The appointees, having received a two-thirds vote, were declared to have been confirmed by the Senate.

RECESS

On motion of Senator Whitver, the Senate recessed at 5:38 p.m. until 7:30 p.m.

RECONVENED

The Senate reconvened at 9:48 p.m., President Chapman presiding.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration House File 2130.

House File 2130

On motion of Senator Koelker, **House File 2130**, a bill for an act relating to registered all-terrain vehicles and off-road utility vehicles, and making penalties applicable, placed on the Unfinished Business Calendar on March 24, 2022, with report of committee recommending passage, was taken up for consideration.

Senator Koelker asked and received unanimous consent to withdraw amendment S–5128, filed by Senators Koelker and Brown on April 13, 2022, striking and replacing everything after the enacting clause of the bill.

With the withdrawal of amendment S–5128, the Chair ruled amendment S–5142, filed by Senators Koelker and Brown on April 25, 2022, to pages 1 and 2 of amendment S–5128, out of order.

Senator Koelker offered amendment S–5178, filed by Senators Koelker and Brown from the floor, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5178 was adopted by a voice vote.

Senator Koelker moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2130), the vote was:

Yeas, 40:

Bisignano	Boulton	Brown	Chapman
Costello	Cournoyer	Dawson	Dickey
Dotzler	Driscoll	Edler	Garrett
Giddens	Goodwin	Green	Guth
Jochum	Johnson	Kinney	Klimesh
Koelker	Lofgren	Lykam	Nunn
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun

Nays, 4:

Bolkcom	Celsi	Petersen	Quirmbach

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2130** be **immediately messaged** to the House.

The Senate stood at ease at 9:54 p.m. until the fall of the gavel.

The Senate resumed session at 10:31 p.m., President Chapman presiding.

CONSIDERATION OF BILL
(Appropriations Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2384.

Senate File 2384

On motion of Senator Whitver, **Senate File 2384**, a bill for an act relating to state and local finances by making appropriations, providing for legal and regulatory responsibilities, providing for other properly related matters, and including effective date and retroactive applicability provisions, was taken up for consideration.

Senator Whitver offered amendment S–5179, filed by him from the floor, striking and replacing everything after the enacting clause and amending the title page of the bill.

Senator Bolkcom offered amendment S–5181, filed by him from the floor to pages 1–25 and amending the title provisions of amendment S–5179, and moved its adoption.

A record roll call was requested.

On the question "Shall amendment S–5181 to amendment S–5179 be adopted?" (S.F. 2384), the vote was:

Yeas, 16:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Kinney
Lykam	Petersen	Quirmbach	Ragan
Smith, J.	Taylor, T.	Trone Garriott	Wahls

Nays, 28:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Klimesh	Koelker	Lofgren
Nunn	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, R.	Sweeney
Taylor, J.	Whitver	Williams	Zaun

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

Amendment S–5181 to amendment S–5179 lost.

Senator Nunn withdrew amendment S–5180, filed by him from the floor to page 20 of the bill.

Senator Whitver moved the adoption of amendment S–5179.

Amendment S–5179 was adopted by a voice vote.

HOUSE MESSAGE RECEIVED AND CONSIDERED

The following message was received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on May 24, 2022, **passed** the following bill in which the concurrence of the Senate is asked:

House File 2589, a bill for an act relating to state and local finances by making appropriations, providing for legal and regulatory responsibilities, providing for other properly related matters, providing penalties, making penalties applicable, and including effective date, applicability, and retroactive applicability provisions.

Read first time and attached to **companion Senate File 2384**.

Senator Whitver asked and received unanimous consent that **House File 2589** be **substituted** for **Senate File 2384**.

House File 2589

On motion of Senator Whitver, **House File 2589**, a bill for an act relating to state and local finances by making appropriations, providing for legal and regulatory responsibilities, providing for other properly related matters, and including effective date and retroactive applicability provisions, was taken up for consideration.

Senator Whitver moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2589), the vote was:

Yeas, 30:

Brown	Chapman	Costello	Cournoyer
Dawson	Dickey	Driscoll	Edler
Garrett	Goodwin	Green	Guth
Johnson	Kinney	Klimesh	Koelker
Lofgren	Nunn	Quirmbach	Reichman
Rowley	Rozenboom	Schultz	Shipley
Smith, R.	Sweeney	Taylor, J.	Whitver
Williams	Zaun		

Nays, 14:

Bisignano	Bolkcom	Boulton	Celsi
Dotzler	Giddens	Jochum	Lykam
Petersen	Ragan	Smith, J.	Taylor, T.
Trone Garriott	Wahls		

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title was agreed to.

WITHDRAWN

Senator Whitver asked and received unanimous consent that **Senate File 2384** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2589** be **immediately messaged** to the House.

HOUSE MESSAGES RECEIVED

The following messages were received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on May 24, 2022, **concurred** in the Senate amendment **and passed** the following bills in which the concurrence of the House was asked:

House File 771, a bill for an act relating to the self-administration and storage of bronchodilators and bronchodilator canisters and spacers relative to schools and students.

House File 2130, a bill for an act relating to registered all-terrain vehicles and off-road utility vehicles, and making penalties applicable.

House File 2411, a bill for an act relating to replacements of permanent prosthetic devices for injured workers.

House File 2573, a bill for an act creating funds relating to the abatement of and response to opioid use.

The Senate stood at ease at 10:50 p.m. until the fall of the gavel.

The Senate resumed session at 11:27 p.m., President Chapman presiding.

CONSIDERATION OF BILL
(Unfinished Business Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate File 2231.

Senate File 2231

On motion of Senator Klimesh, **Senate File 2231**, a bill for an act relating to pharmacy benefits managers, pharmacies, and prescription drug benefits, and including applicability provisions, placed on the Unfinished Business Calendar on March 17, 2022, was taken up for consideration.

Senator Klimesh offered amendment S–5158, filed by him on May 23, 2022, striking and replacing everything after the enacting clause of the bill, and moved its adoption.

Amendment S–5158 was adopted by a voice vote.

Senator Klimesh asked and received unanimous consent that **House File 2384** be **substituted** for **Senate File 2231**.

House File 2384

On motion of Senator Klimesh, **House File 2384**, a bill for an act relating to pharmacy benefits managers, pharmacies, and prescription drug benefits, and including applicability provisions, was taken up for consideration.

Senator Klimesh withdrew amendment S–5159, filed by him on May 23, 2022, to pages 1–7 and 12 of the bill.

Senator Klimesh offered amendment S–5182, filed by him from the floor to pages 1–7, 9, 10, 12, and amending the title page of the bill, and moved its adoption.

Amendment S–5182 was adopted by a voice vote.

Senator Klimesh moved that the bill be read the last time now and placed upon its passage, which motion prevailed by a voice vote, and the bill was read the last time.

On the question "Shall the bill pass?" (H.F. 2384), the vote was:

Yeas, 44:

Bisignano	Bolkcom	Boulton	Brown
Celsi	Chapman	Costello	Cournoyer
Dawson	Dickey	Dotzler	Driscoll
Edler	Garrett	Giddens	Goodwin
Green	Guth	Jochum	Johnson
Kinney	Klimesh	Koelker	Lofgren
Lykam	Nunn	Petersen	Quirmbach
Ragan	Reichman	Rowley	Rozenboom
Schultz	Shipley	Smith, J.	Smith, R.
Sweeney	Taylor, J.	Taylor, T.	Trone Garriott
Wahls	Whitver	Williams	Zaun

Nays, none.

Absent, 6:

Carlin	Hogg	Kraayenbrink	Mathis
Sinclair	Zumbach		

The bill, having received a constitutional majority, was declared to have passed the Senate and the title, as amended, was agreed to.

WITHDRAWN

Senator Klimesh asked and received unanimous consent that **Senate File 2231** be **withdrawn** from further consideration of the Senate.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **House File 2384** be **immediately messaged** to the House.

REMARKS BY THE PRESIDENT OF THE SENATE

President Chapman provided the following remarks:

Mr. Majority Leader, Colleagues, and Fellow Iowans:

I want to take this opportunity thank all of you for the privilege it is to serve the people of Iowa as the President of the Iowa Senate. As we conclude this legislative session I am reminded of our state motto "Our liberties we prize and our rights we will maintain." It's a motto that has resounded from its beginning and still holds true today. The Senate has done tremendous work in preserving, protecting, and defending our rights and our liberties. Over these past two years I am proud of the incredible work and the accomplishments of this legislative body. From protecting girls sports to enacting the largest tax cut in Iowa's history, to adjourning today with Iowa in a strong economic position; the Iowa Senate will continue to fight for Iowans and Iowa values.

While we want to celebrate our successes, we know there is much work still to be done. I pray my colleagues will remember to always fear God, not man, as we continue to fight to protect our children, and to maintain the rights and liberties for future generations. May God bless each and every one of you and may he continue to bless our great State!

REMARKS BY THE MINORITY LEADER

Senator Wahls provided the following remarks:

As we wrap up the 2022 Legislative session, I am grateful to my Democratic colleagues for the honor of leading our caucus, and I am especially grateful to the several retiring members of my caucus for their decades of dedicated public service to our state. Thank you.

I also thank our smart, caring, and hardworking caucus staff and interns, on both sides of the aisle, and we all grieve the loss of the late Joshua William Bronsink.

Finally, I thank the Secretary of the Senate and his staff, this year's wonderful Senate pages, all the hardworking staff of LSA and DAS who keep this building working, the statehouse press corps, and most importantly, our families and constituents back home.

Iowa's 2022 Legislative Session began with Senate President Jake Chapman accusing teachers and the media of a "sinister agenda," and trying to "normalize sexually deviant behavior against our children, including pedophilia and incest."

And now, the 2022 Legislative Session is ending after a month of overtime with Governor Kim Reynolds campaigning against incumbent members of her own party in the House because she wants to use our public, taxpayer dollars to pay for private school vouchers.

There could be no clearer sign that Republicans have zero interest in addressing the substantial economic headwinds facing our state: inflation, high gas prices, a formula shortage, and the ongoing Reynolds Workforce Crisis. Because rather than tackle these issues head-on, Iowa Republicans have spent 2022 pouring gasoline on the flames of the culture war and made many of these challenges much worse.

On inflation, Iowa Republicans passed tax giveaways that overwhelmingly benefit the ultrarich and big corporations — at the exact moment that corporations are posting record profits because of their high prices.

On gas prices and the formula shortage, Iowa's Republican politicians in Washington voted against legislation to hold Big Oil accountable for their price gouging and voted against legislation to authorize emergency relief for families searching for formula.

And on the Reynolds Workforce Crisis, Republican policies created this crisis. That's why there are fewer Iowans working today than when Governor Reynolds took office, even as the United States has added over ten million new jobs during that same time span. And in 2022, Iowa Republican policies are making the Reynolds Workforce Crisis substantially worse, in four specific ways: (1) Attacking public schools and false accusations of having a "sinister agenda." (2) Continued attacks on Labor rights and unemployment benefits. (3) Refusing to fix our state's worst-in-the-nation childcare crisis. (4) Driving people out of the state with their relentless culture war.

While Republicans falsely accuse teachers of trying to "normalize sexually deviant behavior against our children, including pedophilia and incest," in the words of Senator Chapman on opening day — everyday Iowans know this is simply not true. Here's what we know.

We know that it's Iowa Republican politicians who have blocked efforts to fix Iowa's broken child sex abuse laws, not Democrats. We know that public school teachers are not the enemy.

We know that families with two moms or two dads are just as real as every other Iowa family. We know that nobody is changing their gender just to get an advantage in high school sports. We know that Iowans who have been raped or are the victims of incest and choose an abortion to end an unwanted or medically threatening pregnancy are not murderers.

We know that religion and faith are meant to bring us together, not be used to divide us.

We know that we all do better when we all do better, and that's why the ultrarich and big corporations should pay their fair share in taxes. We know that Iowans who live in mobile homes deserve the same dignity and protections as everyone else who owns their own home. We know that there is dignity in work and that every Iowan who works full time should be able to join the middle class.

We know that Iowa's future can be brighter than our past and that the way things have been is not how they have to be. We know that we can keep more young people in our state, we know a better future is possible, and we'll work with anyone to make that dream a reality.

REMARKS BY THE MAJORITY LEADER

Senator Whitver provided the following remarks:

Friends and colleagues –

I want to start by simply thanking everyone for their hard work this year. Senators, staff, and pages. Thank you for your service to Iowa.

Traditionally, the end of session speech recaps the session just completed. However, this year I want to take a look at the last two years of accomplishments. The 89th General Assembly will go down as one of the most productive and exceptional General Assemblies in Iowa history. It will also go down as one of the most successful.

We took our seats in this chamber in January of 2021, 9 months into the first worldwide pandemic in 100 years. It was a time of hardship for many people. It was a time of great uncertainty. It was a time of great stress for so many Iowans.

It was also a difficult time to legislate. The issues facing us were issues none of us ever expected to address in our years in the Senate. Issues we don't consider when we decided to run for office. Issues like pandemics, vaccine policies, mask requirements, or lockdowns.

It was a time that needed strong leadership. It needed smart leadership. And it needed good leadership.

That leadership was provided by Governor Reynolds through the summer and fall of 2020 when we were not in session.

But when the legislature returned in January of 2021, it was time to get to work WITH the governor to legislate solutions to the issues in front of us. While most governors around the country continued to govern through executive orders, this caucus and this legislature sat down and worked WITH our governor to pass the necessary LEGISLATION to move this state forward. We worked together to lead this state through the challenges brought by the pandemic in a way consistent with the founding principles of this republic.

In January of 2021, the hottest issue in the state was: Should our kids go to school? As liberal school boards literally locked our kids out of school or forced our students into part time school, the Republicans in the legislature stood up and passed one of the first laws in the country saying that no matter where you live, no matter which school you attend… if you want your kids in school, they have the option to go to school 100% of the time in Iowa.

History may look back at this decision as an obvious decision… the easy solution.

It wasn't that easy. Education unions decried the common-sense solution of giving parents and students the option of being in school in person full time. Only a handful of states had the courage and ability to step up and pass legislation to ensure our kids were in school. We were one of them. 32 Republicans in this chamber stood up for our kids to make sure our kids were being educated. Every Democrat voted NO!

As liberal cities and states across the country rushed to DEFUND THE POLICE, Iowa did the opposite. Common sense will tell you that if you defund the police, you will see an increase in crime. This legislature passed one of the most comprehensive Back the Blue bills in the entire country. In Iowa, our law enforcement officers know – when they have our back, we have their back! 32 Republican senators voted to support our law enforcement. Every single Democrat voted NO!

The covid pandemic was also a very difficult for state budgets across the country. A shutdown of the economy for several months naturally had a tremendous impact on our state revenues.

Because of the hard work done by Republicans in the Iowa Legislature on our state budget over the past few years, our finances were strong in March of 2020. The Council of State Governments analyzed every state fiscal situation in March of 2020, and Iowa ranked as the state best prepared to weather the pandemic financially.

If that wasn't enough, because of the decisions made by the governor and this legislature, Iowa opened back up and we were named by Wallet Hub as the one of the fastest states to recover from the pandemic.

Our strong fiscal conservatism has led to record surpluses, record balances in our rainy day funds, and a record amount in our taxpayer relief fund. This year we promised to do what every government should do when it has too much taxpayer money.

Our Ways and Means committee got to work! In 2021, we passed one of the biggest tax reform bills in history. We expedited income tax cuts, we eliminated the death tax in Iowa, and we made good on our promise to fund mental health, while reducing property taxes.

This tax bill would be historic in any normal General Assembly. But continued growth and surpluses positioned us to enact another tax cut. This time the biggest income tax cut in state history! We began our Republican trifecta with a tax rate of 8.9%. This legislature has reduced that rate to 3.9%!

Over the last two years, we have seen relentless government overreach in a way few of us ever could imagine. At every turn, we have had Iowans' backs.

When cities and states across the country were implementing vaccine passports, this legislature stood up to support Iowans. We passed a ban on vaccine passports so Iowans would not be shut out of local businesses due to their personal medical decisions.

When schools continued with unnecessary mask mandates that took power out of parents' hands and defied common sense, we were there for our students. Iowa was one of only a few states to pass a mask mandate ban in our schools.

When the Biden Administration imposed vaccine mandates on millions of employees, we again stood up for Iowa employees and passed a bill last fall to ensure that Iowans would be protected against these unconstitutional mandates.

If there is one thing that I would tell Iowans about the 89th General Assembly…it is this: Republicans in the legislature have had your back. We made sure you kept more of what you earned. We made sure Iowans had the choice to wear a mask and whether to attend school full time. We protected Iowans against the non-stop government overreach by some cities, schools, and the federal government. We have had your back and we made sure common sense prevails in Iowa.

This two-year General Assembly has been productive and historic. As we end this session and head out to talk with our constituents, we know our work is not done. Despite all we have accomplished, we have much more to do. This generational tax cut will be implemented over the next several years and a conservative, sustainable budget must accompany that tax relief.

In addition to implementing tax relief and sustainable budgets, more work remains to give Iowa parents a greater ability to direct their children's education. Iowa has some excellent public schools but they don't always work for every student. Putting parents first has been a theme for Senate Republicans for the last 6 years. From in-person learning, to choosing to wear a mask, and ensuring open enrollment exists for all Iowa students, we have led on empowering parents. We continued that work this year and we will continue to advance that goal next year.

The path forward is clear. I look forward to the next several months of communicating our positive, pro-growth message to Iowans. Followed by the 90th General Assembly, when we will continue to deliver results for this great state.

Thank you, Mr. President.

INTRODUCTION OF RESOLUTION

Senate Concurrent Resolution 105, by Rules and Administration, a concurrent resolution to provide for adjournment sine die.

Read first time under Rule 28 and **placed on calendar**.

CONSIDERATION OF RESOLUTION
(Regular Calendar)

Senator Whitver asked and received unanimous consent to take up for consideration Senate Concurrent Resolution 105.

Senate Concurrent Resolution 105

On motion of Senator Whitver, **Senate Concurrent Resolution 105**, a concurrent resolution to provide for adjournment sine die, was taken up for consideration.

Senator Whitver moved the adoption of Senate Concurrent Resolution 105, which motion prevailed by a voice vote.

The Senate stood at ease at 11:56 p.m. until the fall of the gavel.

The Senate resumed session at 12:10 a.m., President Chapman presiding.

IMMEDIATELY MESSAGED

Senator Whitver asked and received unanimous consent that **Senate Concurrent Resolution 105** be **immediately messaged** to the House.

HOUSE MESSAGE RECEIVED

The following message was received from the Chief Clerk of the House:

MR. PRESIDENT: I am directed to inform your honorable body that the House has on May 24, 2022, **concurred** in the Senate amendment **and passed** the following bill in which the concurrence of the House was asked:

House File 2384, a bill for an act relating to pharmacy benefits managers, pharmacies, and prescription drug benefits, and including applicability provisions.

FINAL ADJOURNMENT

By virtue of Senate Concurrent Resolution 105, duly adopted, the day of May 24, 2022, having arrived, President Chapman declared the 2022 Regular Session of the Eighty-ninth General Assembly adjourned sine die.

APPENDIX

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

BOARD OF REGENTS

Institute for Physical Research and Technology (ISU), pursuant to 2021 Iowa Acts, Chapter 171, section 17. Report received on May 24, 2022.

Quarterly Financial Report, pursuant to 2021 Iowa Acts, Chapter 170, section 10. Report received on May 24, 2022.

CERTIFICATE OF RECOGNITION

The Secretary of the Senate issued the following certificate of recognition:

Laverne Kock, Avoca—For celebrating his 100th birthday. Senator Shipley.

WITHDRAWAL OF GOVERNOR'S APPOINTEES

The following letters from the Governor were received in the office of the Secretary of the Senate:

I am withdrawing the name of Jeremy Price for confirmation as a member of the Electrical Examining Board from further consideration by the Senate.

I am withdrawing the name of Jane Dufoe for confirmation as a member of the Public Employment Relations Board from further consideration by the Senate.

I am withdrawing the name of Erik Helland for confirmation as Chair and member of the Public Employment Relations Board from further consideration by the Senate.

I am withdrawing the name of Ritchie Kurtenbach for confirmation as a member of the Iowa Workforce Development Board from further consideration by the Senate.

Sincerely,
KIM REYNOLDS
Governor

REPORTS OF THE SECRETARY OF THE SENATE

May 24, 2022

The Honorable Kim Reynolds
Governor of Iowa
Via Email

Re: Notice of Senate Disapproval of a Gubernatorial Nominee

Dear Governor Reynolds:

On May 24, 2022, the Iowa Senate failed to approve the confirmation of Gwen Ecklund as a member of the State Judicial Nominating Commission. Pursuant to Iowa Code section 2.32(11), this disapproval triggers certain timelines.

Notice of this disapproval is hereby being filed with your office on May 24, 2022.

If you have any questions or concerns, please notify me.

Sincerely,

W. Charles Smithson
Secretary of the Senate

May 24, 2022

The Honorable Kim Reynolds
Governor of Iowa
Via Email

Re: Notice of Senate Disapproval of a Gubernatorial Nominee

Dear Governor Reynolds:

On May 24, 2022, the Iowa Senate failed to approve the confirmation of Jeremy Kidd as a member of the State Judicial Nominating Commission. Pursuant to Iowa Code section 2.32(11), this disapproval triggers certain timelines.

Notice of this disapproval is hereby being filed with your office on May 24, 2022.

If you have any questions or concerns, please notify me.

Sincerely,

W. Charles Smithson
Secretary of the Senate

May 24, 2022

The Honorable Kim Reynolds
Governor of Iowa
Via Email

Re: Notice of Senate Disapproval of a Gubernatorial Nominee

Dear Governor Reynolds:

On May 24, 2022, the Iowa Senate failed to approve the confirmation of Kathleen Law as a member of the State Judicial Nominating Commission. Pursuant to Iowa Code section 2.32(11), this disapproval triggers certain timelines.

Notice of this disapproval is hereby being filed with your office on May 24, 2022.

If you have any questions or concerns, please notify me.

Sincerely,

W. Charles Smithson
Secretary of the Senate

May 24, 2022

The Honorable Kim Reynolds
Governor of Iowa
Via Email

Re: Notice of Senate Disapproval of a Gubernatorial Nominee

Dear Governor Reynolds:

On May 24, 2022, the Iowa Senate failed to approve the confirmation of Derek Muller as a member of the State Judicial Nominating Commission. Pursuant to Iowa Code section 2.32(11), this disapproval triggers certain timelines.

Notice of this disapproval is hereby being filed with your office on May 24, 2022.

If you have any questions or concerns, please notify me.

Sincerely,

W. Charles Smithson
Secretary of the Senate

BILLS ENROLLED, SIGNED, AND SENT TO GOVERNOR

The Secretary of the Senate submitted the following report:

MR. PRESIDENT: The Secretary of the Senate respectfully reports that the following bills have been enrolled, signed by the President of the Senate and the Speaker of the House, and presented to the Governor for her approval on this 24th day of May, 2022.

Senate Files 333, 463, 551, 577, 2190, 2287, and 2334.

W. CHARLES SMITHSON
Secretary of the Senate

BILLS SIGNED BY THE GOVERNOR

A communication was received announcing that on May 24, 2022, the Governor approved and transmitted to the Secretary of State the following bills:

Senate File 333 – Relating to authorized emergency vehicles, making penalties applicable, and including effective date and applicability provisions.

Senate File 463 – Establishing the occupational therapy licensure compact and the audiology and speech language pathology interstate compact.

Senate File 551 – Relating to fire fighters and emergency medical services members operating certain vehicles.

Senate File 577 – Relating to a certificate of nonviable birth.

Senate File 2190 – Relating to the use of child labor for certain bakery machine occupations utilizing pizza dough rollers.

Senate File 2287 – Relating to used catalytic converter transactions, providing penalties, and making penalties applicable.

Senate File 2334 – Relating to shotguns that may be used to hunt turkey.

AMENDMENTS FILED

S–5173	H.F.	2468	Jackie Smith
S–5174	H.F.	2431	Tony Bisignano
S–5175	H.F.	2573	Julian B. Garrett
S–5176	H.F.	771	Ken Rozenboom
S–5177	H.F.	2558	House

S–5178	H.F.	2130	Carrie Koelker Waylon Brown
S–5179	S.F.	2384	Jack Whitver
S–5180	S.F.	2384	Zach Nunn
S–5181	S.F.	2384	Joe Bolkcom
S–5182	H.F.	2384	Mike Klimesh

SENATE REPORTS RECEIVED AFTER ADJOURNMENT

The following is a record of Senate reports received after the close of the 2022 Regular Session.

COMMUNICATIONS RECEIVED

The following communications were received in the office of the Secretary of the Senate and placed on file in the Legislative Services Agency:

DEPARTMENT OF AGRICULTURE AND LAND STEWARDSHIP

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on June 15, 2022.

DEPARTMENT OF EDUCATION

Closing the Achievement Gap Report, pursuant to Iowa Code section 256.9. Report received on June 1, 2022.

Special Education Federal Reports, pursuant to Iowa Code section 256B.3. Report received on June 21, 2022.

DEPARTMENT OF HUMAN SERVICES

Child Abuse Registry Report, pursuant to Iowa Code section 235A.23. Report received on June 16, 2022.

Department of Human Services Operational and Program Expenditures Report, pursuant to 2021 Iowa Acts, Chapter 182, section 28. Report received on June 2, 2022.

Dependent Adult Abuse Registry Report, pursuant to Iowa Code section 235B.13. Report received on June 23, 2022.

Emergency Rule Expenditure Report, pursuant to 2021 Iowa Acts, Chapter 182, section 32. Report received on June 2, 2022.

Medicaid Managed Care Contracts Notification Report, pursuant to 2020 Iowa Acts, Chapter 1121, section 1. Report received on June 20, 2022.

Medicaid Managed Care Oversight Quarterly Meeting Minutes, pursuant to 2016 Iowa Acts, Chapter 1139, section 94. Report received on June 13, 2022.

Medicaid Managed Care Oversight Quarterly Report, pursuant to 2016 Iowa Acts, Chapter 1139, section 93. Report received on June 16, 2022.

Nursing Facility Qualities Assurance Assessment Fee Usage Report, pursuant to Iowa Code section 249L4. Report received on June 9, 2022.

Temporary Assistance for Needy Families Block Grant Expenditures, pursuant to 2021 Iowa Acts, Chapter 182, section 7. Report received on June 2, 2022.

DEPARTMENT OF MANAGEMENT

Block Grants Report, pursuant to Iowa Code section 8.22. Report received on June 21, 2022.

Grants Enterprise Management Compliance Report, pursuant to Iowa Code section 8.9. Report received on June 22, 2022.

Joint Investment Trust Report–Department of Management, pursuant to Iowa Code section 12B.10A. Report received on June 22, 2022.

Judicial Review Report–Department of Management, pursuant to Iowa Code section 625.29. Report received on June 22, 2022.

Reversion Report–Training and Technology Expenditures Report–Department of Management, pursuant to Iowa Code section 8.62. Report received on June 22, 2022.

State Tort Claims Report, pursuant to Iowa Code section 669.12. Report received on June 22, 2022.

DEPARTMENT OF PUBLIC SAFETY

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on June 15, 2022.

DEPARTMENT OF REVENUE

Reversion Report–Training and Technology Expenditures Report, pursuant to Iowa Code section 8.62. Report received on June 23, 2022.

BILLS ENROLLED, SIGNED, AND SENT TO GOVERNOR

The Secretary of the Senate submitted the following reports:

MR. PRESIDENT: The Secretary of the Senate respectfully reports that the following bills have been enrolled, signed by the President of the Senate and the Speaker of the House, and presented to the Governor on the 1st day of June, 2022:

Senate Files 183, 522, 2337, 2370, and 2383.

ALSO: The Secretary of the Senate respectfully reports that the following bills have been enrolled, signed by the President of the Senate and the Speaker of the House, and presented to the Governor on the 2nd day of June, 2022:

Senate Files 529, 581, 2367, 2373, 2374, 2378, 2380, and 2385.

W. CHARLES SMITHSON
Secretary of the Senate

SENATE BILLS APPROVED AFTER ADJOURNMENT

The following is a record of action by the Governor transmitted to the Secretary of State after the close of the 2022 Regular Session:

SENATE BILLS APPROVED

Senate File 183–Relating to a construction manager-at-risk commercial construction alternative delivery method and prohibiting certain other alternative delivery methods in the public sector and including effective date and applicability provisions. Approved June 14, 2022.

Senate File 522–Relating to older individuals and dependent adults and creating certain criminal offenses and civil actions, and providing penalties. Approved June 15, 2022.

Senate File 529–Relating to assisted reproduction fraud, and providing penalties. Approved June 14, 2022.

Senate File 581–Relating to fishing and hunting licenses and permits. Approved June 17, 2022.

Senate File 2337–Relating to third-party testers and test examiners for commercial driver's license knowledge and driving skills tests. Approved June 14, 2022.

Senate File 2367–Relating to state taxation by specifying when returns are due, striking sales tax exemptions and exempting other products, and modifying distributions of revenue to local governments and school districts, the liability of sellers, the franchise tax, motor fuel tax reporting, tax refunds and credits, and the individual state income tax, and providing penalties, and including effective date, applicability, and retroactive applicability provisions. Approved June 17, 2022.

Senate File 2370–Relating to aircraft, including special certificates issued to aircraft manufacturers, transporters, and dealers, and sales tax exemptions associated with aircraft, providing fees, making penalties applicable, and including effective date and applicability provisions. Approved June 14, 2022.

Senate File 2373–Relating to the enforcement of the lake Manawa and Waubonsie state park user fee pilot programs, and including effective date and applicability provisions. Approved June 13, 2022.

Senate File 2374–Concerning the regulation of food and beverages, relating to alcoholic beverage control and delivery of restaurant food, providing for fees and civil penalties, and including effective date and applicability provisions. Approved June 7, 2022.

Senate File 2378–Relating to beverage containers control provisions, including handling fees, refund value, applicability to certain beverages, and acceptance of beverage containers, providing penalties, and including effective date provisions. Approved June 17, 2022.

Senate File 2380–To designate February 1 of each year as George Washington Carver Day. Approved June 16, 2022.

Senate File 2383–Relating to various matters under the purview of the state, including city and county inspections, work-based learning, recruitment of health care professionals, regulations affecting veterans and military spouses, insurance producer temporary licenses, and including applicability provisions. Approved June 16, 2022.

Senate File 2385–Relating to and making appropriations involving certain state departments, agencies, funds, and certain other entities, providing for regulatory authority, providing for other properly related matters, and including contingent effective date provisions. Approved June 17, 2022.

REPORT OF THE SECRETARY OF THE SENATE

June 21, 2022

The Honorable Paul Pate
Secretary of State
Via Email

Re: Filing of Constitutional Amendment Certificates of Newspaper Selections

Dear Secretary Pate:

Please find the attached "Certificate of Newspapers for Constitutional Amendment Publication" concerning HJR 5, SJR 9, and HJR 2005. These documents are required to be filed with your office pursuant to Iowa Code section 49A.3 as part of the "proof of publication" process involving proposed amendments to the Iowa Constitution.

Sincerely,

W. Charles Smithson
Secretary of the Senate

AMENDMENTS FILED

EIGHTY-NINTH GENERAL ASSEMBLY
2021 REGULAR SESSION

S–5001

Amend Senate Resolution 101 as follows:

1. Page 3, by striking lines 19 through 29 and inserting:

<The secretary of the senate shall inform the ethics committee of the financial statements that are filed and shall report to the ethics committee the names of any candidates for senate who appear not to have filed complete financial statements. The secretary of the senate shall request that a candidate for senate who has failed to complete the financial statement or appears to have filed an incomplete financial report to do so within five days. If a candidate for senate does not file a complete financial statement within five days, the candidate shall be fined fifty dollars, payable to the Iowa senate for deposit in the general fund, and the ethics committee may require the candidate to appear before the committee.>

CARRIE KOELKER

S–5002

Amend the amendment, S–5001, to Senate Resolution 101, as follows:

1. Page 1, after line 1 by inserting:

<___. Page 2, line 15, after <comply,> by inserting <the senator shall be fined fifty dollars, payable to the Iowa senate for deposit in the general fund, and>>

2. By renumbering as necessary.

ROBERT M. HOGG

S–5003

Amend Senate File 2204 as follows:

1. Page 1, line 10, by striking <one-fourth> and inserting <one-half>

2. Page 1, line 24, by striking <one-fourth> and inserting <one-half>

3. Page 2, line 28, by striking <ten> and inserting <five>

4. Page 6, after line 1 by inserting:

<Sec. ___. CODE SECTION 257.8 —— IMPLEMENTATION. The requirements of section 257.8, subsections 1 and 2, regarding the enactment of bills establishing the state percent of growth and the categorical state percent of growth within thirty days of the transmission of the governor's budget required by

February 1 under section 8.21 during the regular legislative session beginning in the base year, do not apply to this Act.>

5. By renumbering as necessary.

AMY SINCLAIR

S–5004

Amend House File 2316, as amended, passed, and reprinted by the House, as follows:

1. Page 1, lines 9 and 10, by striking <two and one-half> and inserting <five>

2. Page 1, line 24, by striking <two and one-half> and inserting <five>

HERMAN C. QUIRMBACH

S–5005

Amend House File 2316, as amended, passed, and reprinted by the House, as follows:

1. Page 1, before line 1 by inserting:

<Section 1. Section 257.1, subsection 2, paragraph b, Code 2022, is amended to read as follows:

b. For the budget year commencing July 1, 1999, and for each succeeding budget year beginning before July 1, 2022, the regular program foundation base per pupil is eighty-seven and five-tenths percent of the regular program state cost per pupil. For the budget year commencing July 1, 2022, and for each succeeding budget year, the regular program foundation base per pupil is eighty-eight and four-tenths percent of the regular program state cost per pupil. For the budget year commencing July 1, 1991, and for each succeeding budget year the special education support services foundation base is seventy-nine percent of the special education support services state cost per pupil. The combined foundation base is the sum of the regular program foundation base, the special education support services foundation base, the total teacher salary supplement district cost, the total professional development supplement district cost, the total early intervention supplement district cost, the total teacher leadership supplement district cost, the total area education agency teacher salary supplement district cost, the total mental health supplement district cost, and the total area education agency professional development supplement district cost.

Sec. ___. Section 257.1, subsection 3, Code 2022, is amended to read as follows:

3. *Computations rounded.* In making computations and payments under this chapter, except in the case of computations relating to funding of special education support services, media services, and educational services provided through the area education agencies, and the teacher salary supplement, the

professional development supplement, the early intervention supplement, the mental health supplement, and the teacher

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leadership supplement, the department of management shall round amounts to the nearest whole dollar.

Sec. ___. Section 257.4, subsection 1, paragraph a, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (11) The total mental health supplement district cost.>

2. Page 1, line 32, after <leadership supplement,> by inserting <the mental health supplement,>

3. Page 2, after line 33 by inserting:

<Sec. ___. Section 257.9, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 12. *Mental health supplement state cost per pupil.* For the budget year beginning July 1, 2022, the mental health supplement state cost per pupil is equal to one-half percent of the regular program state cost per pupil for the budget year beginning July 1, 2022. The mental health supplement state cost per pupil for the budget year beginning July 1, 2023, and succeeding budget years, shall be the amount calculated by the department of management under this subsection for the base year plus a supplemental state aid amount that is equal to the mental health supplement categorical state percent of growth, pursuant to section 257.8, subsection 2, for the budget year, multiplied by the amount calculated by the department of management under this subsection for the base year.

Sec. ___. Section 257.10, subsection 8, paragraph a, Code 2022, is amended to read as follows:

a. Combined district cost is the sum of the regular program district cost per pupil multiplied by the weighted enrollment, the special education support services district cost, the total teacher salary supplement district cost, the total professional development supplement district cost, the total mental health supplement district cost, the total early intervention supplement district cost, and the total teacher leadership supplement district cost, plus the sum of the

Page 3

additional district cost allocated to the district to fund media services and educational services provided through the area education agency, the area education agency total teacher salary supplement district cost and the area education agency total professional development supplement district cost.

Sec. ___. Section 257.10, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 12A. *Mental health supplement district cost per pupil and district cost.*

a. For the budget year beginning July 1, 2022, and each succeeding budget year, the mental health supplement district cost per pupil is equal to the mental health supplement state cost per pupil as determined under section 257.9, subsection 12, for the same budget year.

b. The total mental health supplement district cost is the product of the mental health supplement district cost per pupil multiplied by the school district's weighted enrollment for the budget year.

c. The funds calculated under this subsection shall be used by the school district for costs to employ student mental health and behavioral staff and professionals including school counselors, school nurses, and school social workers, and for evidence-based mental health services, supports, and programming. Funding provided under this subsection is intended to supplement, not supplant, existing school district funding for student mental health and behavioral professionals and services.>

4. By renumbering as necessary.

CLAIRE A. CELSI

S–5006

Amend House File 2316, as amended, passed, and reprinted by the House, as follows:

1. Page 1, before line 1 by inserting:

<Section 1. Section 256C.4, subsection 1, paragraphs b, d, and f, Code 2022, are amended to read as follows:

b. (1) A school district approved to participate in the preschool program may authorize expenditures for the district's preschool programming from any of the revenue sources available to the district from the sources listed in chapter 298A, provided the expenditures are within the uses permitted for the revenue source, including from the school district's general fund as provided in subparagraph (2), or from the school district's flexibility account under section 298A.2, subsection 2. In addition, the use of the revenue source for preschool or prekindergarten programming must have been approved prior to any expenditure from the revenue source for the district's approved local program.

(2) For the school budget year beginning July 1, 2023, and succeeding budget years, if fifty percent of a district's actual enrollment of eligible students in the preschool programming for the budget year, determined under section 256C.5, subsection 1, paragraph *"c"*, is greater than the school district's preschool budget enrollment for the budget year, the district shall be eligible to receive a preschool on-time funding budget adjustment for the budget year to be funded using revenues from the school district's general fund. The adjustment shall not exceed an amount equal to the difference between fifty percent of the actual enrollment for

the budget year as determined under section 256C.5, subsection 1, paragraph *"c"*, and the preschool budget enrollment for the budget year, multiplied by the regular program state cost per pupil. The board of directors of a school district that wishes to receive a budget adjustment shall adopt a resolution approving the use of funds from the district's general fund and notify the department of education and the department of

Page 2

management annually, but not earlier than November 1.

d. Preschool foundation aid funding ~~shall not be commingled with the other state aid payments made under section 257.16 to a school district and~~ shall be accounted for by the local school district separately from the other state aid payments. Preschool foundation aid payments made to school districts are miscellaneous income for purposes of chapter 257. A school district shall maintain a separate listing within its budget for preschool foundation aid payments received and expenditures made. A school district shall certify to the department of education that preschool foundation aid funding received by the school district was used to supplement, not supplant, moneys otherwise received and used by the school district for preschool programming.

f. The receipt of funding by a school district for the purposes of this chapter, the need for additional funding for the purposes of this chapter, or the enrollment count of eligible students under this chapter shall not be considered to be unusual circumstances, create an unusual need for additional funds, or qualify under any other circumstances that may be used by the school budget review committee to grant supplemental aid to or establish a modified supplemental amount for a school district under section 257.31. However, a school district may approve the use of funds from the school district's general fund as provided in paragraph *"a"*, subparagraph (2), if additional funding under this chapter is needed as the result of the enrollment count of eligible students in the district's program.>

2. Title page, line 4, after <to> by inserting <certain funding and>

3. By renumbering as necessary.

SARAH TRONE GARRIOTT

S–5007

Amend House File 2316, as amended, passed, and reprinted by the House, as follows:

1. Page 6, after line 1 by inserting:

<Sec. ___. CLASSROOM FUNDING SUPPLEMENT —— APPROPRIATION.

1. For the school budget year beginning July 1, 2022, each school district shall receive a classroom funding supplement.

The supplement for each district shall be in an amount equal to the share of the appropriation under subsection 5 that is proportionate to the school district's enrollment in grades kindergarten through eight for the school budget year beginning July 1, 2021, as a share of the total enrollment in grades kindergarten through eight for the school budget year beginning July 1, 2021, among all school districts.

2. The classroom funding supplement shall be miscellaneous income, shall be deposited in the general fund of the school district, and shall not be included in district cost.

3. The classroom funding supplement amount received by a school district shall be used by the school district during the school budget years beginning on or after July 1, 2022, and ending before July 1, 2025, and shall be used as follows:

a. For school districts that have an average class size for grades kindergarten through eight during the school year beginning July 1, 2021, of eighteen students or greater, the classroom funding supplement may be used to address student underperformance following the beginning of the COVID-19 pandemic by funding early intervention initiatives and reducing class sizes among grades kindergarten through eight.

b. If the school district does not meet the class-size threshold under paragraph "a", the classroom funding supplements may be used by a school district for the same purposes allowed for the teacher salary supplement funding under section 257.10, subsection 9, and for the hiring of additional teachers, teacher recruitment bonuses, and teacher retention bonuses.

4. The classroom funding supplement shall be paid in full

Page 2

at the same time and in the same manner as the final monthly foundation aid payment under section 257.16 for the fiscal year ending June 30, 2022.

5. There is appropriated from the general fund of the state to the department of management for the fiscal year beginning July 1, 2021, fifteen million dollars to make all supplement payments as calculated under this section.>

2. Title page, line 6, after <payments,> by inserting <establishing certain funding, making appropriations,>

3. By renumbering as necessary.

NATE BOULTON

S–5008

Amend House File 2316, as amended, passed, and reprinted by the House, as follows:

1. Page 1, before line 1 by inserting:

<Section 1. Section 135.173A, subsection 4, paragraph p, Code 2022, is amended to read as follows:

p. One person who is part of a local program implementing the statewide preschool program for ~~four-year-old~~ young children under chapter 256C.

Sec. ___. Section 135.173A, subsection 6, paragraph f, Code 2022, is amended to read as follows:

f. Make recommendations for improving collaborations between the child care programs involving the department of human services and programs supporting the education and development of young children including but not limited to the federal head start program; the statewide preschool program for ~~four-year-old~~ young children; and the early childhood, at-risk, and other early education programs administered by the department of education.

Sec. ___. Section 256C.1, subsections 1 and 4, Code 2022, are amended to read as follows:

1. *"Approved local program"* means a school district's program for ~~four-year-old~~ young children approved by the department of education to provide high quality preschool instruction.

4. *"Preschool program"* means the statewide preschool program for ~~four-year-old~~ young children created in accordance with this chapter.

Sec. ___. Section 256C.2, Code 2022, is amended to read as follows:

256C.2 Statewide preschool program for ~~four-year-old~~ young children —— purpose.

1. A statewide preschool program for ~~four-year-old~~ young children is established. The purpose of the preschool program is to provide an opportunity for all young children in the state to enter school ready to learn by expanding voluntary

Page 2

access to quality preschool curricula ~~for all children who are four years old~~.

2. The state board shall adopt rules in accordance with chapter 17A as necessary to implement the preschool program as provided in this chapter.

Sec. ___. Section 256C.3, subsection 1, paragraphs a and b, Code 2022, are amended to read as follows:

a. A child who is a resident of Iowa and who is four years of age on or before September 15 of a school year shall be eligible to enroll in the preschool program under this chapter. For school budget years beginning July 1, 2023, July 1, 2024, and July 1, 2025, a child who is a resident of Iowa and who reaches five years of age on or after March 15 but on or before September 15 of the calendar year during which the school year begins shall be eligible to enroll in the preschool program under this chapter if the school district elects to enroll children who are five years of age for the three-year period. For school districts that elect to enroll children who are five years of age during such three-year period, a

child who enrolled as a four-year-old may enroll again as a five-year-old. However, if insufficient space is available in a preschool program for all eligible children, priority for enrollment shall be given to children who are four years of age on or before September 15 of a school year. If such a child is enrolled under this chapter, the child shall be considered to be of compulsory attendance age as provided in section 299.1A, subsection 3.

b. If space and funding are available, including funding from another school district account or fund from which preschool program expenditures are authorized by law, a school district approved to participate in the preschool program may enroll and pay the cost of attendance for a ~~younger or older~~ child in the preschool program who does not satisfy the requirements under paragraph *"a"*; however, the child shall not be counted for state funding purposes.

Page 3

Sec. ___. Section 256C.3, subsection 4, paragraphs b and c, Code 2022, are amended to read as follows:

b. Subject to implementation of chapter 28E agreements between a school district and community-based providers of services to four-year-old children and eligible five-year-old children, a four-year-old child or eligible five-year-old child who is enrolled in a child care center or child development home licensed or registered under chapter 237A, or in an existing public or private preschool program, shall be eligible for services provided by the school district's local preschool program.

c. A school district shall participate in data collection and performance measurement processes and reporting as defined by rule. In addition to preschool program data collection, the school district data collected by the department shall include data related to the number and birth month and year of pupils who enroll in kindergarten, including all-day, half-day, or transitional kindergarten programs, for more than one school year and whether those pupils previously or concurrently enrolled in the school district's approved local program. To the extent feasible, the data reporting relating to kindergarten program enrollment shall be done in a manner so as to avoid duplication of individual pupil data within multiple categories.

Sec. ___. Section 256C.3, subsection 4, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *e.* For budget years beginning on or after July 1, 2023, each approved local program shall provide consultation services for parents or guardians of children enrolled in the approved local program and parents or guardians of children eligible to enroll in the approved local program to assist parents or guardians in assessing the child's readiness for enrollment in kindergarten or in a preschool program, as

applicable.

Sec. ___. Section 256C.4, subsection 2, Code 2022, is

Page 4

amended to read as follows:

2. *Eligible student enrollment.*

a. To be included as an eligible student in the enrollment count of the preschool programming provided by a school district approved to participate in the preschool program, a child must ~~be four years of~~ satisfy the age ~~by September 15~~ requirements of section 256C.3, subsection 1, paragraph *"a"*, in the base year and be attending the school district's approved local program.

b. The enrollment count of eligible students shall not include a child who is included in the enrollment count determined under section 257.6 or a child who is served by a program already receiving state or federal funds for the purpose of the provision of four-year-old or five-year-old preschool programming while the child is being served by the program. Such preschool programming includes but is not limited to child development assistance programs provided under chapter 256A, special education programs provided under section 256B.9, school ready children grant programs and other programs provided under chapter 256I, and federal head start programs and the services funded by Tit. I of the federal Elementary and Secondary Education Act of 1965.>

2. Page 6, after line 1 by inserting:

<Sec. ___. Section 298A.2, subsection 2, paragraph a, subparagraph (1), Code 2022, is amended to read as follows:

(1) An approved local program under the statewide preschool program for ~~four-year-old~~ young children under chapter 256C.

Sec. ___. Section 298A.2, subsection 2, paragraph c, subparagraph (1), Code 2022, is amended to read as follows:

(1) Start-up costs for an approved local program under the statewide preschool program for ~~four-year-old~~ young children under chapter 256C.

Sec. ___. Section 299.1A, subsection 3, Code 2022, is amended to read as follows:

3. A child who has reached the age of four ~~by September 15~~

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or five and who is enrolled in the statewide preschool program under chapter 256C shall be considered to be of compulsory attendance age unless the parent or guardian of the child submits written notice to the school district implementing the program of the parent's or guardian's intent to remove the child from enrollment in the preschool program.>

3. Page 6, after line 10 by inserting:

<Sec. ___. APPLICABILITY. The following apply July 1, 2023, for school budget years beginning on or after that date:

1. The section of this Act amending section 135.173A, subsection 4, paragraph "p".
2. The section of this Act amending section 135.173A, subsection 6, paragraph "f".
3. The section of this Act amending section 256C.1, subsections 1 and 4.
4. The section of this Act amending section 256C.2.
5. The section of this Act amending section 256C.3, subsection 1, paragraphs "a" and "b".
6. The section of this Act amending section 256C.3, subsection 4, paragraphs "b" and "c".
7. The section of this Act enacting section 256C.3, subsection 4, paragraph "e".
8. The section of this Act amending section 256C.4, subsection 2.
9. The section of this Act amending section 298A.2, subsection 2, paragraph "a", subparagraph (1).
10. The section of this Act amending section 298A.2, subsection 2, paragraph "c", subparagraph (1).
11. The section of this Act amending section 299A.1A, subsection 3.>
4. Title page, line 4, after <to> by inserting <certain programs and>
5. By renumbering as necessary.

JACKIE SMITH

S–5009

Amend Senate File 2295 as follows:
1. By striking page 68, line 19, through page 69, line 2.
2. By renumbering as necessary.

COMMITTEE ON JUDICIARY
BRAD ZAUN, CHAIRPERSON

S–5010

Amend Senate File 2294 as follows:
1. By striking page 34, line 25, through page 35, line 4.
2. By renumbering as necessary.

COMMITTEE ON JUDICIARY
BRAD ZAUN, CHAIRPERSON

S–5011

Amend Senate File 2233 as follows:
1. Page 1, line 10, by striking <shall> and inserting <may>

2. Page 1, line 11, by striking <surveys.> and inserting <surveys, as defined by the United States national geodetic survey or a successor agency.>

WAYLON BROWN

S–5012

Amend Senate File 2268 as follows:

1. Page 1, line 8, after <age.> by inserting <At least thirty days prior to a child care center increasing its child-to-staff ratio, the child care center shall provide written notice of the prospective child-to-staff ratio increase to the parents of children currently attending the child care center.>

PAM JOCHUM

S–5013

Amend Senate File 2285 as follows:

1. By striking page 1, line 35, through page 2, line 5, and inserting <the municipality exercising this power. A city may request, but shall not require, from a property owner affected by zoning regulations pursuant to this section the consent to annexation under chapter 368 as a condition of receiving approval for a zoning classification, special or conditional use, variance, permit, or division of land into two or more tracts.>

MIKE KLIMESH

S–5014

Amend Senate File 2279 as follows:

1. Page 1, after line 9 by inserting:

<Sec. ___. Section 26.10, subsection 1, Code 2022, is amended to read as follows:

1. The date and time that each bid is received by the governmental entity, together with the name of the person receiving the bid, shall be recorded on the envelope containing the bid. If bids are received in an electronic format as provided in section 26.7, the governmental entity shall electronically record the date and time each bid is received. All bids received after the deadlines for submission of bids as stated in the project specifications shall not be considered and shall be returned to the late bidder unopened. The governmental entity shall open, announce the amount of the bids, and file all proposals received, at the time and place specified in the notice to bidders. The governmental entity may, by resolution, award the contract for the public improvement to the bidder submitting the lowest responsive,

responsible bid, determined as provided in section 26.9, or the governmental entity may reject all bids received, fix a new date for receiving bids, and order publication of a new notice to bidders. The governmental entity shall retain the bid security furnished by the successful bidder until the approved contract form has been executed, a bond has been filed by the bidder guaranteeing the performance of the contract, and the contract and bond have been approved by the governmental entity. The provisions of chapter 573, where applicable, apply to contracts awarded under this chapter.>

2. By renumbering as necessary.

MIKE KLIMESH

S–5015

Amend Senate File 2329 as follows:

1. Page 3, by striking lines 13 through 15 and inserting:

<5. This section shall not prevent the admission of any evidence based upon forfeiture by wrongdoing.>

TOM SHIPLEY

S–5016

Amend Senate File 2277 as follows:

1. Page 2, line 11, after <city.> by inserting <However, if a city uses moneys from its general fund to cover costs to repair or replace damaged police, fire, or emergency medical services equipment or vehicles, the city may deposit into its general fund an amount of moneys received from the payment, award, judgment, or insurance settlement that is equal to the amount used from the general fund; the city shall deposit any remaining amount received from the payment, award, judgment, or insurance settlement into the relevant fund for police, fire, or other emergency services.>

MIKE KLIMESH

S–5017

Amend Senate File 2362 as follows:

1. By striking page 8, line 28, through page 9, line 11.

2. By renumbering as necessary.

CHRIS COURNOYER

S–5018

Amend Senate File 493 as follows:

1. Page 1, line 1, by striking <2021> and inserting <2022>

JEFF TAYLOR

S–5019

Amend Senate File 2086 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 16.2D, subsection 1, Code 2022, is amended to read as follows:

1. A council on homelessness is created consisting of ~~thirty-eight voting~~ twenty members, eleven of whom are voting members and nine of whom are nonvoting members. At all times, at least one voting member shall be a member of a minority group.

Sec. 2. Section 16.2D, subsection 2, paragraph a, Code 2022, is amended to read as follows:

a. (1) ~~Twenty-six~~ Eleven voting members ~~of~~ from the general public appointed to two-year staggered terms by the governor in consultation with the nominating committee under subsection 4~~, paragraph "a"~~.

~~(1)~~ (2) ~~Voting members~~ Members from the general public may include but are not limited to the following types of individuals and representatives of the following programs: homeless or formerly homeless individuals and their family members, youth shelters, faith-based organizations, local homeless service providers, emergency shelters, transitional housing providers, family and domestic violence shelters, private business, local government, veterans or veteran organizations, and community-based organizations.

~~(2)~~ (3) ~~Five~~ Two of the ~~twenty-six voting~~ eleven members selected from the general public shall be individuals who are homeless, formerly homeless, or family members of homeless or formerly homeless individuals.

~~(3) One of the twenty-six members selected from the general public shall be a representative of the Iowa state association of counties.~~

~~(4) One of the twenty-six members selected from the general public shall be a representative of the Iowa league of cities.~~

Sec. 3. Section 16.2D, subsection 2, paragraph b, Code 2022,

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is amended by striking the paragraph and inserting in lieu thereof the following:

b. Nine nonvoting agency director members consisting of all of the following:

(1) The director of the department of education or the

director's designee.

(2) The director of human services or the director's designee.

(3) The attorney general or the attorney general's designee.

(4) The director of public health or the director's designee.

(5) The director of the department on aging or the director's designee.

(6) The director of the department of corrections or the director's designee.

(7) The director of the department of workforce development or the director's designee.

(8) The executive director of the Iowa finance authority or the executive director's designee.

(9) The director of the department of veterans affairs or the director's designee.

Sec. 4. Section 16.2D, subsection 3, Code 2022, is amended by striking the subsection.

Sec. 5. Section 16.2D, subsection 4, paragraph a, Code 2022, is amended by striking the paragraph and inserting in lieu thereof the following:

a. The council shall annually elect five members to a nominating committee, at least two of whom shall be nonvoting members and at least two of whom shall be voting members. The governor shall appoint members of the general public to the council from names the nominating commission submits to the governor.

Sec. 6. Section 16.2D, subsection 6, paragraphs a and b, Code 2022, are amended by striking the paragraphs and inserting

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in lieu thereof the following:

a. Seven voting members of the council shall constitute a quorum. Any action taken by the council shall require the affirmative vote of a majority of the quorum. The majority shall not include any member who has a conflict of interest and a statement by a member who asserts a conflict of interest shall be conclusive for this purpose.

b. The council shall annually elect a chairperson and vice chairperson from the membership of the council, and other officers as determined by the council.

Sec. 7. Section 16.2D, subsection 8, paragraphs d and e, Code 2022, are amended by striking the paragraphs.

Sec. 8. Section 16.2D, subsection 9, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

9. The council shall file a point-in-time report on homelessness in Iowa with the governor and the general assembly on or before December 1 of each year.

Sec. 9. TRANSITION —— APPOINTMENT AND TERM OF MEMBERS ON THE

IOWA COUNCIL ON HOMELESSNESS. Notwithstanding any provision of section 16.2D, Code 2022, and any provision to the contrary as enacted in this Act, the terms of all members from the general public serving on the Iowa council of homelessness on July 1, 2022, shall terminate as of that date. The governor shall appoint eleven members of the general public to the council from names submitted by a nominating committee comprised of the nine agency director members on the council. It is the intent of the general assembly that the governor should appoint at least eight members from the general public whose terms terminated on July 1, 2022, in the interest of maintaining institutional knowledge on the council. All new general public members shall be appointed by not later than September 1, 2022, with five members appointed to terms ending June 30, 2023, and six members appointed to terms ending June 30, 2024. All terms beginning on or after July 1, 2023, shall be subject to the

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provision of this Act amending section 16.2D, subsection 2, paragraph "a".>

CARRIE KOELKER

S–5020

Amend Senate File 2323 as follows:

1. Page 1, line 3, after <1.> by inserting <*a.*>
2. Page 1, line 6, by striking <maintain>
3. Page 1, by striking lines 7 through 16 and inserting <managed or owned on behalf of the state by the department.>
4. Page 1, before line 17 by inserting:

<*b.* The department shall maintain the inventory created in paragraph *"a"* on the department's internet site and update the inventory within sixty days of the department acquiring new property or acquiring a management interest in any property. The department shall also update the inventory within sixty days of receiving a report of a county conservation board's acquisition of property as required under paragraph *"c"*. The inventory shall include the common name, county, acres acquired, seller, year of acquisition, price paid, federal moneys used, state moneys used, county moneys used, and the manager of all land owned or managed by the department or by a county conservation board.

c. Each county conservation board shall regularly submit to the department in a manner determined by the department and consistent with section 350.4, subsection 3, an inventory of all land owned or managed by the respective county conservation board.>

5. Title page, line 1, by striking <state>
6. Title page, line 2, by striking <resources.> and inserting <resources or a county conservation board.>

TOM SHIPLEY

S–5021

Amend Senate File 2206 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

SALE OF CERTAIN QUALIFIED STOCK —— NET CAPITAL GAIN EXCLUSION

Section 1. Section 422.7, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 63. *a.* Subtract the following percentage of the net capital gain from the sale or exchange of capital stock of a qualified corporation for which an election is made by an employee-owner:

(1) For the tax year beginning in the 2023 calendar year, thirty-three percent.

(2) For the tax year beginning in the 2024 calendar year, sixty-six percent.

(3) For tax years beginning on or after January 1, 2025, one hundred percent.

b. (1) An employee-owner is entitled to make one irrevocable lifetime election to exclude the net capital gain from the sale or exchange of capital stock of one qualified corporation which capital stock was acquired by the employee-owner while employed and on account of employment by such qualified corporation.

(2) The election shall apply to all subsequent sales or exchanges of qualifying capital stock of the elected corporation within fifteen years of the date of the election, provided that the subsequent sales or exchanges were of capital stock in the same qualified corporation and were acquired by the employee-owner while employed and on account of employment by such qualified corporation.

(3) The election shall apply to qualifying capital stock that has been transferred by inter vivos gift from the employee-owner to the employee-owner's spouse or to a trust for the benefit of the employee-owner's spouse following the transfer. This subparagraph (3) shall apply to a spouse

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only if the spouse was married to the employee-owner on the date of the sale or exchange or the date of death of the employee-owner.

(4) If the employee-owner dies after having sold or exchanged qualifying capital stock without having made an election under this subsection, the surviving spouse or, if

there is no surviving spouse, the personal representative of the employee-owner's estate, may make the election that would have qualified under this subsection.

(5) The election shall be made in the manner and form prescribed by the department and shall be included with the taxpayer's state income tax return for the taxable year in which the election is made.

c. For purposes of this subsection:

(1) *"Capital stock"* means common or preferred stock, either voting or nonvoting. *"Capital stock"* does not include stock rights, stock warrants, stock options, or debt securities.

(2) *"Employee-owner"* means an individual who owns capital stock in a qualified corporation for at least ten years, which capital stock was acquired by the individual while employed and on account of employment by such corporation for at least ten cumulative years.

(3) *"Personal representative"* means the same as defined in section 633.3, or if there is no such personal representative appointed, then the person legally authorized to perform substantially the same functions.

(4) (a) *"Qualified corporation"* means, with respect to an employee-owner, a corporation which, at the time of the first sale or exchange for which an election is made by the employee-owner under this subsection, meets all of the following conditions:

(i) The corporation employed individuals in this state for at least ten years.

(ii) The corporation has had at least five shareholders for the ten years prior to the first sale or exchange under this

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subsection.

(iii) The corporation has had at least two shareholders or groups of shareholders who are not related for the ten years prior to the first sale or exchange under this subsection. Two persons are considered related when, under section 318 of the Internal Revenue Code, one is a person who owns, directly or indirectly, capital stock that if directly owned would be attributed to the other person, or is the brother, sister, aunt, uncle, cousin, niece, or nephew of the other person who owns capital stock either directly or indirectly.

(b) *"Qualified corporation"* includes any member of an Iowa affiliated group if the Iowa affiliated group includes a member that has employed individuals in this state for at least ten years. For purposes of this subparagraph division, *"Iowa affiliated group"* means an affiliated group that has made a valid election to file an Iowa consolidated income tax return under section 422.37 in the year in which the deduction under this subsection is claimed. *"Member"* includes any entity included in the consolidated return under section 422.37, subsection 2, for the tax year in which the deduction is

claimed.

(c) *"Qualified corporation"* also includes any corporation that was a party to a reorganization that was entirely or substantially tax free if such reorganization occurred during or after the employment of the employee-owner.

Sec. 2. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

Sec. 3. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2023.

DIVISION II

RETIRED FARMER LEASE INCOME EXCLUSION

Sec. 4. Section 422.7, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 21A. *a.* Subtract, to the extent included, net income received by an eligible individual pursuant to a

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farm tenancy agreement covering real property held by the eligible individual for ten or more years, if the eligible individual materially participated in a farming business for ten or more years.

b. An individual who elects to exclude income received pursuant to a farm tenancy agreement under this subsection shall not claim any of the following in the tax year in which the election is made or in any succeeding year:

(1) The capital gain exclusion under section 422.7, subsection 21.

(2) The beginning farmer tax credit under section 422.11E.

c. Married individuals who file separate state income tax returns shall allocate their combined annual exclusion limit to each spouse in the proportion that each spouse's respective net income from a farm tenancy agreement bears to the total net income from a farm tenancy agreement.

d. The department shall establish criteria, by rule, relating to whether and how a surviving spouse may claim the income exclusion for which a deceased eligible individual would have been eligible under this subsection.

e. Net income from a farm tenancy agreement earned, received, or reported by an entity taxed as a partnership for federal tax purposes, an S corporation, or a trust or estate is not eligible for the election and deduction in this subsection, even if such net income ultimately passes through to an eligible individual.

f. For purposes of this subsection:

(1) *"Eligible individual"* means an individual who is disabled or who is fifty-five years of age or older at the time the election is made, who no longer materially participates in a farming business at the time the election is made, and who,

as an owner-lessor, is party to a farm tenancy agreement.

(2) *"Farm tenancy agreement"* means a written agreement outlining the rights and obligations of an owner-lessor and a tenant-lessee where the tenant-lessee has a farm tenancy as

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defined in section 562.1A. A *"farm tenancy agreement"* includes cash leases, crop share leases, or livestock share leases.

(3) *"Farming business"* means the production, care, growing, harvesting, preservation, handling, or storage of crops or forest or fruit trees; the production, care, feeding, management, and housing of livestock; or horticulture, all intended for profit.

(4) *"Livestock"* means the same as defined in section 717.1.

(5) *"Materially participated"* means the same as *"material participation"* in section 469(h) of the Internal Revenue Code.

Sec. 5. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

Sec. 6. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2023.

DIVISION III

RETIRED FARMER CAPITAL GAIN EXCLUSION

Sec. 7. Section 422.7, subsection 21, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

21. *a.* For purposes of this subsection:

(1) *"Farming business"* means the production, care, growing, harvesting, preservation, handling, or storage of crops or forest or fruit trees; the production, care, feeding, management, and housing of livestock; or horticulture, all for intended profit.

(2) *"Held"* shall be determined with reference to the holding period provisions of section 1223 of the Internal Revenue Code and the federal regulations pursuant thereto.

(3) *"Livestock"* means the same as defined in section 717.1.

(4) *"Materially participated"* means the same as *"material participation"* in section 469(h) of the Internal Revenue Code.

(5) (a) *"Real property used in a farming business"* means all tracts of land and the improvements and structures located on such tracts which are in good faith used primarily for a farming business. Buildings which are primarily used or

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intended for human habitation are deemed to be used in a farming business when the building is located on or adjacent to the parcel used in the farming business. Land and the nonresidential improvements and structures located on such land that shall be considered to be used primarily in a farming business include but are not limited to land, improvements or structures used for the storage or maintenance of farm

machinery or equipment, for the drying, storage, handling, or preservation of agricultural crops, or for the storage of farm inputs, feed, or manure. Real property used in a farming business shall also include woodland, wasteland, pastureland, and idled land used for the conservation of natural resources including soil and water.

(b) Real property classified as agricultural property for Iowa property tax purposes, except real property described in section 441.21, subsection 12, paragraph *"a"* or *"b"*, shall be presumed to be real property used in a farming business. This presumption is rebuttable by the department by a preponderance of evidence that the real property did not meet the requirements of subparagraph division (a).

(6) *"Relative"* means a person that satisfies one or more of the following conditions:

(a) The individual is related to the taxpayer by consanguinity or affinity within the second degree as determined by common law.

(b) The individual is a lineal descendent of the taxpayer. For purposes of this subparagraph division, *"lineal descendent"* means children of the taxpayer, including legally adopted children and biological children, stepchildren, grandchildren, great-grandchildren, and any other lineal descendent of the taxpayer.

(c) An entity in which an individual who satisfies the conditions of either subparagraph division (a) or (b) has a legal or equitable interest as an owner, member, partner, or beneficiary.

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(7) *"Retired farmer"* means an individual who is disabled or who is fifty-five years of age or older and who no longer materially participates in a farming business when an exclusion and deduction is claimed under this subsection.

b. Subtract the net capital gain from the sale of real property used in a farming business if one of the following conditions are satisfied:

(1) The taxpayer has materially participated in a farming business for a minimum of ten years and has held the real property used in a farming business for a minimum of ten years. If the taxpayer is a retired farmer, the taxpayer is considered to meet the material participation requirement if the taxpayer materially participated in a farming business for ten years or more in the aggregate, prior to making an election under this subsection.

(2) The taxpayer has held the real property used in a farming business which is sold to a relative of the taxpayer.

c. For a taxpayer who is a retired farmer, subtract the net capital gain from the sale of cattle or horses held by the taxpayer for breeding, draft, dairy, or sporting purposes for a period of twenty-four months or more from the date of

acquisition; but only if the taxpayer materially participated in the farming business for five of the eight years preceding the farmer's retirement or disability and who has sold all or substantially all of the taxpayer's interest in the farming business by the time the election under this paragraph is made.

d. For a taxpayer who is a retired farmer, subtract the net capital gain from the sale of breeding livestock, other than cattle and horses, if the livestock is held by the taxpayer for a period of twelve months or more from the date of acquisition; but only if the taxpayer materially participated in the farming business for five of the eight years preceding the farmer's retirement or disability and who has sold all or substantially all of the taxpayer's interest in the farming business by the time the election under this paragraph is made.

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e. A taxpayer who is a retired farmer may make, subject to the limitations described in paragraphs *"f"* and *"g"*, a single, lifetime election to exclude all qualifying capital gains under paragraphs *"b"*, *"c"*, and *"d"*.

f. A taxpayer who is a retired farmer who elects to exclude capital gains under paragraph *"b"*, *"c"*, or *"d"* shall not claim the beginning farmer tax credit under section 422.11E or the exclusion for net income received pursuant to a farm tenancy agreement in section 422.7, subsection 21A, in the tax year in which this election is made or in any subsequent year.

g. A taxpayer who is a retired farmer who claims the beginning farmer tax credit under section 422.11E shall not, in the same year, make an election under this subsection. A taxpayer who is a retired farmer and who elects to exclude the net income received from a farm tenancy agreement under section 422.7, subsection 21A, shall not, in the same tax year or in any subsequent tax year, make the election under this subsection.

h. Married individuals who file separate state income tax returns shall allocate their combined annual net capital gain exclusion under paragraphs *"b"*, *"c"*, and *"d"* to each spouse in the proportion that each spouse's respective net capital gain bears to the total net capital gain.

i. The department shall establish criteria, by rule, relating to whether and how a surviving spouse may claim the income exclusion for which a deceased retired farmer would have been eligible under this subsection.

Sec. 8. REPEAL. 2018 Iowa Acts, chapter 1161, section 113, is repealed.

Sec. 9. REPEAL. 2019 Iowa Acts, chapter 162, section 1, is repealed.

Sec. 10. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

Sec. 11. APPLICABILITY.

1. This division of this Act applies to tax years beginning

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on or after January 1, 2023.

2. This division of this Act applies to sales consummated on or after the effective date of this division of this Act, and sales consummated prior to the effective date of this division of this Act shall be governed by the law as it existed prior to the effective date of this division of this Act.

DIVISION IV

INDIVIDUAL INCOME TAX RATES —— TAX YEARS 2023–2025

Sec. 12. Section 422.5, subsection 3, paragraph b, Code 2022, is amended to read as follows:

b. (1) In lieu of the computation in subsection 1 or 2, or in paragraph *"a"* of this subsection, if the married persons', filing jointly ~~or filing separately on a combined return~~, head of household's, or surviving spouse's net income exceeds thirteen thousand five hundred dollars, the regular tax imposed under this subchapter shall be the lesser of the ~~maximum~~ alternate state individual income tax rate specified in subparagraph (2) times the portion of the net income in excess of thirteen thousand five hundred dollars or the regular tax liability computed without regard to this sentence. Taxpayers electing to file separately shall compute the alternate tax described in this paragraph using the total net income of the ~~husband and wife~~ spouses. The alternate tax described in this paragraph does not apply if one spouse elects to carry back or carry forward the loss as provided in section 422.9, subsection 3.

(2) (a) (i) (A) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, the alternate tax rate is 6.00 percent.

(B) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, the alternate tax rate is 5.70 percent.

(C) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, the alternate tax rate is 5.20 percent.

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(ii) This subparagraph division (a) is repealed January 1, 2026.

(b) For tax years beginning on or after January 1, 2026, the alternate tax rate is 4.50 percent.

Sec. 13. Section 422.5, subsection 3B, paragraph b, Code 2022, is amended to read as follows:

b. (1) In lieu of the computation in subsection 1, 2, or 3, if the married persons', filing jointly ~~or filing separately on a combined return~~, head of household's, or surviving spouse's net income exceeds thirty-two thousand dollars, the regular tax imposed under this subchapter shall be the lesser of the ~~maximum~~ alternate state individual income tax rate specified in

subparagraph (2) times the portion of the net income in excess of thirty-two thousand dollars or the regular tax liability computed without regard to this sentence. Taxpayers electing to file separately shall compute the alternate tax described in this paragraph using the total net income of the ~~husband and wife~~ spouses. The alternate tax described in this paragraph does not apply if one spouse elects to carry back or carry forward the loss as provided in section 422.9, subsection 3.

(2) (a) (i) (A) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, the alternate tax rate is 6.00 percent.

(B) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, the alternate tax rate is 5.70 percent.

(C) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, the alternate tax rate is 5.20 percent.

(ii) This subparagraph division (a) is repealed January 1, 2026.

(b) For tax years beginning on or after January 1, 2026, the alternate tax rate is 4.50 percent.

Sec. 14. Section 422.5, subsection 6, Code 2022, is amended to read as follows:

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6. *a.* Upon determination of the latest cumulative inflation factor, the director shall multiply each dollar amount set forth in section 422.5A by this cumulative inflation factor, shall round off the resulting product to the nearest one dollar, and shall incorporate the result into the income tax forms and instructions for each tax year.

b. This subsection is repealed on January 1, 2026.

Sec. 15. Section 422.5A, Code 2022, is amended by striking the section and inserting in lieu thereof the following:

422.5A Tax rates.

1. *a.* The tax imposed in section 422.5 shall be calculated using the following rates in the following tax years in the case of married persons filing jointly:

(1) For the tax year beginning on or after January 1, 2023, but before January 1, 2024:

(a) On taxable income from 0 through $12,000, the rate of 4.40 percent.

(b) On taxable income exceeding $12,000 but not exceeding $60,000, the rate of 4.82 percent.

(c) On taxable income exceeding $60,000 but not exceeding $150,000, the rate of 5.70 percent.

(d) On taxable income exceeding $150,000, the rate of 6.00 percent.

(2) For the tax year beginning on or after January 1, 2024, but before January 1, 2025:

(a) On taxable income from 0 through $12,000, the rate of

4.40 percent.

(b) On taxable income exceeding $12,000 but not exceeding $60,000, the rate of 4.82 percent.

(c) On taxable income exceeding $60,000, the rate of 5.70 percent.

(3) For the tax year beginning on or after January 1, 2025, but before January 1, 2026:

(a) On taxable income from 0 through $12,000, the rate of 4.40 percent.

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(b) On taxable income exceeding $12,000, the rate of 4.82 percent.

b. The tax imposed in section 422.5 shall be calculated using the following rates in the following tax years in the case of any other taxpayer other than married persons filing jointly:

(1) For the tax year beginning on or after January 1, 2023, but before January 1, 2024:

(a) On taxable income from 0 through $6,000, the rate of 4.40 percent.

(b) On taxable income exceeding $6,000 but not exceeding $30,000, the rate of 4.82 percent.

(c) On taxable income exceeding $30,000 but not exceeding $75,000, the rate of 5.70 percent.

(d) On taxable income exceeding $75,000, the rate of 6.00 percent.

(2) For the tax year beginning on or after January 1, 2024, but before January 1, 2025:

(a) On taxable income from 0 through $6,000, the rate of 4.40 percent.

(b) On taxable income exceeding $6,000 but not exceeding $30,000, the rate of 4.82 percent.

(c) On taxable income exceeding $30,000, the rate of 5.70 percent.

(3) For the tax year beginning on or after January 1, 2025, but before January 1, 2026:

(a) On taxable income from 0 through $6,000, the rate of 4.40 percent.

(b) On taxable income exceeding $6,000, the rate of 4.82 percent.

2. This section is repealed January 1, 2026.

Sec. 16. REPEAL. 2018 Iowa Acts, chapter 1161, section 107, is repealed.

Sec. 17. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

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Sec. 18. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2023.

DIVISION V
INDIVIDUAL INCOME TAX —— FLAT RATE

Sec. 19. Section 421.27, subsection 9, paragraph a, subparagraph (3), Code 2022, is amended to read as follows:

(3) In the case of all other entities, including corporations described in section 422.36, subsection 5, and all other entities required to file an information return under section 422.15, subsection 2, the entity's Iowa net income after the application of the Iowa business activity ratio, if applicable, multiplied by the ~~top~~ income tax rate imposed under section ~~422.5A~~ 422.5 for the tax year, less any Iowa tax credits available to the entity.

Sec. 20. Section 422.5, subsection 1, paragraph a, Code 2022, is amended to read as follows:

a. A tax is imposed upon every resident and nonresident of the state which tax shall be levied, collected, and paid annually upon and with respect to the entire taxable income as defined in this subchapter at ~~rates as provided in section 422.5A~~ a rate of four percent.

Sec. 21. Section 422.16B, subsection 2, paragraph a, Code 2022, is amended to read as follows:

a. (1) A pass-through entity shall file a composite return on behalf of all nonresident members and shall report and pay the income or franchise tax imposed under this chapter at the maximum state income or franchise tax rate applicable to the member under section ~~422.5A~~ 422.5, 422.33, or 422.63 on the nonresident members' distributive shares of the income from the pass-through entity.

(2) The tax rate applicable to a tiered pass-through entity shall be the ~~maximum~~ state income tax rate under section ~~422.5A~~ 422.5.

Sec. 22. Section 422.25A, subsection 5, paragraph c, subparagraphs (3), (4), and (5), Code 2022, are amended to read

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as follows:

(3) Determine the total distributive share of all final federal partnership adjustments and positive reallocation adjustments as modified by this title that are reported to nonresident individual partners and nonresident fiduciary partners and allocate and apportion such adjustments as provided in section 422.33 at the partnership or tiered partner level, and multiply the resulting amount by the ~~maximum~~ individual income tax rate pursuant to section ~~422.5A~~ 422.5 for the reviewed year.

(4) For the total distributive share of all final federal partnership adjustments and positive reallocation adjustments as modified by this title that are reported to tiered partners:

(a) Determine the amount of such adjustments which are of a type that would be subject to sourcing to Iowa under section 422.8, subsection 2, paragraph *"a"*, as a nonresident, and then

determine the portion of this amount that would be sourced to Iowa under those provisions as if the tiered partner were a nonresident.

(b) Determine the amount of such adjustments which are of a type that would not be subject to sourcing to Iowa under section 422.8, subsection 2, paragraph *"a"*, as a nonresident.

(c) Determine the portion of the amount in subparagraph division (b) that can be established, as prescribed by the department by rule, to be properly allocable to indirect partners that are nonresident partners or other partners not subject to tax on the adjustments.

(d) Multiply the total of the amounts determined in subparagraph divisions (a) and (b), reduced by any amount determined in subparagraph division (c), by the ~~highest~~ individual income tax rate pursuant to section ~~422.5A~~ 422.5 for the reviewed year.

(5) For the total distributive share of all final federal partnership adjustments and positive reallocation adjustments as modified by this title that are reported to resident

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individual partners and resident fiduciary partners, multiply that amount by the ~~highest~~ individual income tax rate pursuant to section ~~422.5A~~ 422.5 for the reviewed year.

Sec. 23. EFFECTIVE DATE. This division of this Act takes effect January 1, 2026.

Sec. 24. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2026.

DIVISION VI

RETIREMENT INCOME

Sec. 25. Section 8.57E, subsection 2, Code 2022, is amended to read as follows:

2. Moneys in the taxpayer relief fund shall only be used pursuant to appropriations or transfers made by the general assembly for tax relief~~, including but not limited to increases in the general retirement income exclusion under section 422.7, subsection 31,~~ or reductions in income tax rates.

Sec. 26. Section 422.5, subsection 3, paragraph a, Code 2022, is amended to read as follows:

a. The tax shall not be imposed on a resident or nonresident whose net income, as defined in section 422.7, is thirteen thousand five hundred dollars or less in the case of married persons filing jointly or filing separately on a combined return, heads of household, and surviving spouses or nine thousand dollars or less in the case of all other persons; but in the event that the payment of tax under this subchapter would reduce the net income to less than thirteen thousand five hundred dollars or nine thousand dollars as applicable, then the tax shall be reduced to that amount which would result in allowing the taxpayer to retain a net income of thirteen thousand five hundred dollars or nine thousand dollars as

applicable. The preceding sentence does not apply to estates or trusts. For the purpose of this subsection, the entire net income, including any part of the net income not allocated to Iowa, shall be taken into account. ~~For purposes of this subsection, net income includes all amounts of pensions or~~

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~~other retirement income, except for military retirement pay excluded under section 422.7, subsection 31A, paragraph "a", or section 422.7, subsection 31B, paragraph "a", received from any source which is not taxable under this subchapter as a result of the government pension exclusions in section 422.7, or any other state law.~~ If the combined net income of a husband and wife exceeds thirteen thousand five hundred dollars, neither of them shall receive the benefit of this subsection, and it is immaterial whether they file a joint return or separate returns. However, if a husband and wife file separate returns and have a combined net income of thirteen thousand five hundred dollars or less, neither spouse shall receive the benefit of this paragraph, if one spouse has a net operating loss and elects to carry back or carry forward the loss as provided in section 422.9, subsection 3. A person who is claimed as a dependent by another person as defined in section 422.12 shall not receive the benefit of this subsection if the person claiming the dependent has net income exceeding thirteen thousand five hundred dollars or nine thousand dollars as applicable or the person claiming the dependent and the person's spouse have combined net income exceeding thirteen thousand five hundred dollars or nine thousand dollars as applicable.

Sec. 27. Section 422.5, subsection 3B, paragraph a, Code 2022, is amended to read as follows:

a. The tax shall not be imposed on a resident or nonresident who is at least sixty-five years old on December 31 of the tax year and whose net income, as defined in section 422.7, is thirty-two thousand dollars or less in the case of married persons filing jointly or filing separately on a combined return, heads of household, and surviving spouses or twenty-four thousand dollars or less in the case of all other persons; but in the event that the payment of tax under this subchapter would reduce the net income to less than thirty-two thousand dollars or twenty-four thousand dollars as applicable,

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then the tax shall be reduced to that amount which would result in allowing the taxpayer to retain a net income of thirty-two thousand dollars or twenty-four thousand dollars as applicable. The preceding sentence does not apply to estates or trusts. For the purpose of this subsection, the entire net income, including any part of the net income not allocated to Iowa,

shall be taken into account. ~~For purposes of this subsection, net income includes all amounts of pensions or other retirement income, except for military retirement pay excluded under section 422.7, subsection 31A, paragraph "a", or section 422.7, subsection 31B, paragraph "a", received from any source which is not taxable under this subchapter as a result of the government pension exclusions in section 422.7, or any other state law.~~ If the combined net income of a husband and wife exceeds thirty-two thousand dollars, neither of them shall receive the benefit of this subsection, and it is immaterial whether they file a joint return or separate returns. However, if a husband and wife file separate returns and have a combined net income of thirty-two thousand dollars or less, neither spouse shall receive the benefit of this paragraph, if one spouse has a net operating loss and elects to carry back or carry forward the loss as provided in section 422.9, subsection 3. A person who is claimed as a dependent by another person as defined in section 422.12 shall not receive the benefit of this subsection if the person claiming the dependent has net income exceeding thirty-two thousand dollars or twenty-four thousand dollars as applicable or the person claiming the dependent and the person's spouse have combined net income exceeding thirty-two thousand dollars or twenty-four thousand dollars as applicable.

Sec. 28. Section 422.7, subsection 31, Code 2022, is amended to read as follows:

31. *a.* ~~For a person who is disabled, or is fifty-five years of age or older, or is the surviving spouse of an individual or a survivor having an insurable interest in an individual who would have qualified for the exemption under this subsection~~

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~~for the tax year, subtract~~ Subtract, to the extent included, the total amount ~~of~~ received from a governmental or other pension or retirement ~~pay~~ plan, including~~, but not limited to,~~ defined benefit or defined contribution plans, annuities, individual retirement accounts, plans maintained or contributed to by an employer, or maintained or contributed to by a self-employed person as an employer, and deferred compensation plans or any earnings attributable to the deferred compensation plans~~, up to a maximum of six thousand dollars for a person, other than a husband or wife, who files a separate state income tax return and up to a maximum of twelve thousand dollars for a husband and wife who file a joint state income tax return. However, a surviving spouse who is not disabled or fifty-five years of age or older can only exclude the amount of pension or retirement pay received as a result of the death of the other spouse. A husband and wife filing separate state income tax returns or separately on a combined state return are allowed a combined maximum exclusion under this subsection of up to twelve thousand dollars. The twelve thousand dollar exclusion shall be allocated to the husband or wife in the~~

~~proportion that each spouse's respective pension and retirement pay received bears to total combined pension and retirement pay received~~ received by a person who is disabled, or is fifty-five years of age or older, or is the surviving spouse of an individual or is a survivor having an insurable interest in an individual who would have qualified for the exemption under this subsection for the tax year.

b. Married taxpayers who file separate state income tax returns shall allocate their combined annual exclusion amount to each spouse in the proportion that each spouse's respective income received from a pension or retirement plan bears to the total combined pension or retirement pay received.

c. A taxpayer who is not disabled or fifty-five years of age or older and who receives pension or retirement pay as a surviving spouse or as a survivor with an insurable interest

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in an individual who would have qualified for the exemption for the tax year may only exclude the amount received from a pension or retirement plan in the tax year as a result of the death of the decedent.

Sec. 29. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

Sec. 30. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2023.

DIVISION VII

TAXPAYER RELIEF FUND

Sec. 31. Section 8.57E, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 5. *a.* For the purposes of tax relief provided in this Act, the following amounts shall be transferred from the taxpayer relief fund to the general fund of the state for the following fiscal years:

(1) For the fiscal year beginning July 1, 2022, and ending June 30, 2023, one hundred thirteen million dollars.

(2) For the fiscal year beginning July 1, 2023, and ending June 30, 2024, one hundred fifty-nine million one hundred thousand dollars.

(3) For the fiscal year beginning July 1, 2024, and ending June 30, 2025, ninety-two million three hundred thousand dollars.

(4) For the fiscal year beginning July 1, 2025, and ending June 30, 2026, two hundred fifty-nine million four hundred thousand dollars.

(5) For the fiscal year beginning July 1, 2026, and ending June 30, 2027, one hundred ninety-five million six hundred thousand dollars.

(6) For the fiscal year beginning July 1, 2027, and ending

June 30, 2028, nine million six hundred thousand dollars.

b. This subsection is repealed July 1, 2028.>

2. Title page, by striking lines 1 through 7 and inserting

<An Act relating to state revenue and finance by modifying the

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individual income tax, making appropriations, and including effective date and applicability provisions.>

DAN DAWSON

S–5022

Amend House File 2317, as passed by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

SALE OF CERTAIN QUALIFIED STOCK —— NET CAPITAL GAIN EXCLUSION

Section 1. Section 422.7, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 63. *a.* Subtract the following percentage of the net capital gain from the sale or exchange of capital stock of a qualified corporation for which an election is made by an employee-owner:

(1) For the tax year beginning in the 2023 calendar year, thirty-three percent.

(2) For the tax year beginning in the 2024 calendar year, sixty-six percent.

(3) For tax years beginning on or after January 1, 2025, one hundred percent.

b. (1) An employee-owner is entitled to make one irrevocable lifetime election to exclude the net capital gain from the sale or exchange of capital stock of one qualified corporation which capital stock was acquired by the employee-owner while employed and on account of employment by such qualified corporation.

(2) The election shall apply to all subsequent sales or exchanges of qualifying capital stock of the elected corporation within fifteen years of the date of the election, provided that the subsequent sales or exchanges were of capital stock in the same qualified corporation and were acquired by the employee-owner while employed and on account of employment by such qualified corporation.

(3) The election shall apply to qualifying capital stock that has been transferred by inter vivos gift from the employee-owner to the employee-owner's spouse or to a trust for the benefit of the employee-owner's spouse following the transfer. This subparagraph (3) shall apply to a spouse

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only if the spouse was married to the employee-owner on the date of the sale or exchange or the date of death of the employee-owner.

(4) If the employee-owner dies after having sold or exchanged qualifying capital stock without having made an election under this subsection, the surviving spouse or, if there is no surviving spouse, the personal representative of the employee-owner's estate, may make the election that would have qualified under this subsection.

(5) The election shall be made in the manner and form prescribed by the department and shall be included with the taxpayer's state income tax return for the taxable year in which the election is made.

c. For purposes of this subsection:

(1) *"Capital stock"* means common or preferred stock, either voting or nonvoting. *"Capital stock"* does not include stock rights, stock warrants, stock options, or debt securities.

(2) *"Employee-owner"* means an individual who owns capital stock in a qualified corporation for at least ten years, which capital stock was acquired by the individual while employed and on account of employment by such corporation for at least ten cumulative years.

(3) *"Personal representative"* means the same as defined in section 633.3, or if there is no such personal representative appointed, then the person legally authorized to perform substantially the same functions.

(4) (a) *"Qualified corporation"* means, with respect to an employee-owner, a corporation which, at the time of the first sale or exchange for which an election is made by the employee-owner under this subsection, meets all of the following conditions:

(i) The corporation employed individuals in this state for at least ten years.

(ii) The corporation has had at least five shareholders for the ten years prior to the first sale or exchange under this

Page 3

subsection.

(iii) The corporation has had at least two shareholders or groups of shareholders who are not related for the ten years prior to the first sale or exchange under this subsection. Two persons are considered related when, under section 318 of the Internal Revenue Code, one is a person who owns, directly or indirectly, capital stock that if directly owned would be attributed to the other person, or is the brother, sister, aunt, uncle, cousin, niece, or nephew of the other person who owns capital stock either directly or indirectly.

(b) *"Qualified corporation"* includes any member of an Iowa affiliated group if the Iowa affiliated group includes a member

that has employed individuals in this state for at least ten years. For purposes of this subparagraph division, *"Iowa affiliated group"* means an affiliated group that has made a valid election to file an Iowa consolidated income tax return under section 422.37 in the year in which the deduction under this subsection is claimed. *"Member"* includes any entity included in the consolidated return under section 422.37, subsection 2, for the tax year in which the deduction is claimed.

(c) *"Qualified corporation"* also includes any corporation that was a party to a reorganization that was entirely or substantially tax free if such reorganization occurred during or after the employment of the employee-owner.

Sec. 2. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

Sec. 3. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2023.

DIVISION II

RETIRED FARMER LEASE INCOME EXCLUSION

Sec. 4. Section 422.7, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 21A. *a.* Subtract, to the extent included, net income received by an eligible individual pursuant to a

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farm tenancy agreement covering real property held by the eligible individual for ten or more years, if the eligible individual materially participated in a farming business for ten or more years.

b. An individual who elects to exclude income received pursuant to a farm tenancy agreement under this subsection shall not claim any of the following in the tax year in which the election is made or in any succeeding year:

(1) The capital gain exclusion under subsection 21.

(2) The beginning farmer tax credit under section 422.11E.

c. Married individuals who file separate state income tax returns shall allocate their combined annual exclusion limit to each spouse in the proportion that each spouse's respective net income from a farm tenancy agreement bears to the total net income from a farm tenancy agreement.

d. The department shall establish criteria, by rule, relating to whether and how a surviving spouse may claim the income exclusion for which a deceased eligible individual would have been eligible under this subsection.

e. Net income from a farm tenancy agreement earned, received, or reported by an entity taxed as a partnership for federal tax purposes, an S corporation, or a trust or estate is not eligible for the election and deduction in this subsection, even if such net income ultimately passes through to an eligible individual.

f. For purposes of this subsection:

(1) *"Eligible individual"* means an individual who is disabled or who is fifty-five years of age or older at the time the election is made, who no longer materially participates in a farming business at the time the election is made, and who, as an owner-lessor, is party to a farm tenancy agreement.

(2) *"Farm tenancy agreement"* means a written agreement outlining the rights and obligations of an owner-lessor and a tenant-lessee where the tenant-lessee has a farm tenancy as defined in section 562.1A. A *"farm tenancy agreement"* includes

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cash leases, crop share leases, or livestock share leases.

(3) *"Farming business"* means the production, care, growing, harvesting, preservation, handling, or storage of crops or forest or fruit trees; the production, care, feeding, management, and housing of livestock; or horticulture, all intended for profit.

(4) *"Livestock"* means the same as defined in section 717.1.

(5) *"Materially participated"* means the same as *"material participation"* in section 469(h) of the Internal Revenue Code.

Sec. 5. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

Sec. 6. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2023.

DIVISION III

RETIRED FARMER CAPITAL GAIN EXCLUSION

Sec. 7. Section 422.7, subsection 21, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

21. *a.* For purposes of this subsection:

(1) *"Farming business"* means the production, care, growing, harvesting, preservation, handling, or storage of crops or forest or fruit trees; the production, care, feeding, management, and housing of livestock; or horticulture, all for intended profit.

(2) *"Held"* shall be determined with reference to the holding period provisions of section 1223 of the Internal Revenue Code and the federal regulations pursuant thereto.

(3) *"Livestock"* means the same as defined in section 717.1.

(4) *"Materially participated"* means the same as *"material participation"* in section 469(h) of the Internal Revenue Code.

(5) (a) *"Real property used in a farming business"* means all tracts of land and the improvements and structures located on such tracts which are in good faith used primarily for a farming business. Buildings which are primarily used or intended for human habitation are deemed to be used in a

Page 6

farming business when the building is located on or adjacent to the parcel used in the farming business. Land and the

nonresidential improvements and structures located on such land that shall be considered to be used primarily in a farming business include but are not limited to land, improvements or structures used for the storage or maintenance of farm machinery or equipment, for the drying, storage, handling, or preservation of agricultural crops, or for the storage of farm inputs, feed, or manure. Real property used in a farming business shall also include woodland, wasteland, pastureland, and idled land used for the conservation of natural resources including soil and water.

(b) Real property classified as agricultural property for Iowa property tax purposes, except real property described in section 441.21, subsection 12, paragraph *"a"* or *"b"*, shall be presumed to be real property used in a farming business. This presumption is rebuttable by the department by a preponderance of evidence that the real property did not meet the requirements of subparagraph division (a).

(6) *"Relative"* means a person that satisfies one or more of the following conditions:

(a) The individual is related to the taxpayer by consanguinity or affinity within the second degree as determined by common law.

(b) The individual is a lineal descendent of the taxpayer. For purposes of this subparagraph division, *"lineal descendent"* means children of the taxpayer, including legally adopted children and biological children, stepchildren, grandchildren, great-grandchildren, and any other lineal descendent of the taxpayer.

(c) An entity in which an individual who satisfies the conditions of either subparagraph division (a) or (b) has a legal or equitable interest as an owner, member, partner, or beneficiary.

(7) *"Retired farmer"* means an individual who is disabled

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or who is fifty-five years of age or older and who no longer materially participates in a farming business when an exclusion and deduction is claimed under this subsection.

b. Subtract the net capital gain from the sale of real property used in a farming business if one of the following conditions are satisfied:

(1) The taxpayer has materially participated in a farming business for a minimum of ten years and has held the real property used in a farming business for a minimum of ten years. If the taxpayer is a retired farmer, the taxpayer is considered to meet the material participation requirement if the taxpayer materially participated in a farming business for ten years or more in the aggregate, prior to making an election under this subsection.

(2) The taxpayer has held the real property used in a farming business which is sold to a relative of the taxpayer.

c. For a taxpayer who is a retired farmer, subtract the net capital gain from the sale of cattle or horses held by the taxpayer for breeding, draft, dairy, or sporting purposes for a period of twenty-four months or more from the date of acquisition; but only if the taxpayer materially participated in the farming business for five of the eight years preceding the farmer's retirement or disability and who has sold all or substantially all of the taxpayer's interest in the farming business by the time the election under this paragraph is made.

d. For a taxpayer who is a retired farmer, subtract the net capital gain from the sale of breeding livestock, other than cattle and horses, if the livestock is held by the taxpayer for a period of twelve months or more from the date of acquisition; but only if the taxpayer materially participated in the farming business for five of the eight years preceding the farmer's retirement or disability and who has sold all or substantially all of the taxpayer's interest in the farming business by the time the election under this paragraph is made.

e. A taxpayer who is a retired farmer may make, subject to

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the limitations described in paragraphs *"f"* and *"g"*, a single, lifetime election to exclude all qualifying capital gains under paragraphs *"b"*, *"c"*, and *"d"*.

f. A taxpayer who is a retired farmer who elects to exclude capital gains under paragraph *"b"*, *"c"*, or *"d"* shall not claim the beginning farmer tax credit under section 422.11E or the exclusion for net income received pursuant to a farm tenancy agreement in subsection 21A, in the tax year in which this election is made or in any subsequent year.

g. A taxpayer who is a retired farmer who claims the beginning farmer tax credit under section 422.11E shall not, in the same year, make an election under this subsection. A taxpayer who is a retired farmer and who elects to exclude the net income received from a farm tenancy agreement under subsection 21A, shall not, in the same tax year or in any subsequent tax year, make the election under this subsection.

h. Married individuals who file separate state income tax returns shall allocate their combined annual net capital gain exclusion under paragraphs *"b"*, *"c"*, and *"d"* to each spouse in the proportion that each spouse's respective net capital gain bears to the total net capital gain.

i. The department shall establish criteria, by rule, relating to whether and how a surviving spouse may claim the income exclusion for which a deceased retired farmer would have been eligible under this subsection.

Sec. 8. REPEAL. 2018 Iowa Acts, chapter 1161, section 113, is repealed.

Sec. 9. REPEAL. 2019 Iowa Acts, chapter 162, section 1, is repealed.

Sec. 10. EFFECTIVE DATE. This division of this Act takes

effect January 1, 2023.

Sec. 11. APPLICABILITY.

1. This division of this Act applies to tax years beginning on or after January 1, 2023.

2. This division of this Act applies to sales consummated on

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or after the effective date of this division of this Act, and sales consummated prior to the effective date of this division of this Act shall be governed by the law as it existed prior to the effective date of this division of this Act.

DIVISION IV

INDIVIDUAL INCOME TAX RATES —— TAX YEARS 2023–2025

Sec. 12. Section 422.5, subsection 3, paragraph b, Code 2022, is amended to read as follows:

b. (1) In lieu of the computation in subsection 1 or 2, or in paragraph *"a"* of this subsection, if the married persons', filing jointly ~~or filing separately on a combined return~~, head of household's, or surviving spouse's net income exceeds thirteen thousand five hundred dollars, the regular tax imposed under this subchapter shall be the lesser of the ~~maximum~~ alternate state individual income tax rate specified in subparagraph (2) times the portion of the net income in excess of thirteen thousand five hundred dollars or the regular tax liability computed without regard to this sentence. Taxpayers electing to file separately shall compute the alternate tax described in this paragraph using the total net income of the ~~husband and wife~~ spouses. The alternate tax described in this paragraph does not apply if one spouse elects to carry back or carry forward the loss as provided in section 422.9, subsection 3.

(2) (a) (i) (A) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, the alternate tax rate is 6.00 percent.

(B) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, the alternate tax rate is 5.70 percent.

(C) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, the alternate tax rate is 5.20 percent.

(ii) This subparagraph division (a) is repealed January 1, 2026.

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(b) For tax years beginning on or after January 1, 2026, the alternate tax rate is 4.40 percent.

Sec. 13. Section 422.5, subsection 3B, paragraph b, Code 2022, is amended to read as follows:

b. (1) In lieu of the computation in subsection 1, 2, or 3, if the married persons', filing jointly ~~or filing separately on~~

~~a combined return~~, head of household's, or surviving spouse's net income exceeds thirty-two thousand dollars, the regular tax imposed under this subchapter shall be the lesser of the ~~maximum~~ alternate state individual income tax rate specified in subparagraph (2) times the portion of the net income in excess of thirty-two thousand dollars or the regular tax liability computed without regard to this sentence. Taxpayers electing to file separately shall compute the alternate tax described in this paragraph using the total net income of the ~~husband and wife~~ spouses. The alternate tax described in this paragraph does not apply if one spouse elects to carry back or carry forward the loss as provided in section 422.9, subsection 3.

(2) (a) (i) (A) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, the alternate tax rate is 6.00 percent.

(B) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, the alternate tax rate is 5.70 percent.

(C) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, the alternate tax rate is 5.20 percent.

(ii) This subparagraph division (a) is repealed January 1, 2026.

(b) For tax years beginning on or after January 1, 2026, the alternate tax rate is 4.40 percent.

Sec. 14. Section 422.5, subsection 6, Code 2022, is amended to read as follows:

6. *a.* Upon determination of the latest cumulative inflation factor, the director shall multiply each dollar amount set

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forth in section 422.5A by this cumulative inflation factor, shall round off the resulting product to the nearest one dollar, and shall incorporate the result into the income tax forms and instructions for each tax year.

b. This subsection is repealed on January 1, 2026.

Sec. 15. Section 422.5A, Code 2022, is amended by striking the section and inserting in lieu thereof the following:

422.5A Tax rates.

1. *a.* The tax imposed in section 422.5 shall be calculated using the following rates in the following tax years in the case of married persons filing jointly:

(1) For the tax year beginning on or after January 1, 2023, but before January 1, 2024:

(a) On taxable income from 0 through $12,000, the rate of 4.40 percent.

(b) On taxable income exceeding $12,000 but not exceeding $60,000, the rate of 4.82 percent.

(c) On taxable income exceeding $60,000 but not exceeding $150,000, the rate of 5.70 percent.

(d) On taxable income exceeding $150,000, the rate of 6.00

percent.
(2) For the tax year beginning on or after January 1, 2024, but before January 1, 2025:
(a) On taxable income from 0 through $12,000, the rate of 4.40 percent.
(b) On taxable income exceeding $12,000 but not exceeding $60,000, the rate of 4.82 percent.
(c) On taxable income exceeding $60,000, the rate of 5.70 percent.
(3) For the tax year beginning on or after January 1, 2025, but before January 1, 2026:
(a) On taxable income from 0 through $12,000, the rate of 4.40 percent.
(b) On taxable income exceeding $12,000, the rate of 4.82 percent.

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b. The tax imposed in section 422.5 shall be calculated using the following rates in the following tax years in the case of any other taxpayer other than married persons filing jointly:
(1) For the tax year beginning on or after January 1, 2023, but before January 1, 2024:
(a) On taxable income from 0 through $6,000, the rate of 4.40 percent.
(b) On taxable income exceeding $6,000 but not exceeding $30,000, the rate of 4.82 percent.
(c) On taxable income exceeding $30,000 but not exceeding $75,000, the rate of 5.70 percent.
(d) On taxable income exceeding $75,000, the rate of 6.00 percent.
(2) For the tax year beginning on or after January 1, 2024, but before January 1, 2025:
(a) On taxable income from 0 through $6,000, the rate of 4.40 percent.
(b) On taxable income exceeding $6,000 but not exceeding $30,000, the rate of 4.82 percent.
(c) On taxable income exceeding $30,000, the rate of 5.70 percent.
(3) For the tax year beginning on or after January 1, 2025, but before January 1, 2026:
(a) On taxable income from 0 through $6,000, the rate of 4.40 percent.
(b) On taxable income exceeding $6,000, the rate of 4.82 percent.
2. This section is repealed January 1, 2026.
Sec. 16. REPEAL. 2018 Iowa Acts, chapter 1161, section 107, is repealed.
Sec. 17. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.
Sec. 18. APPLICABILITY. This division of this Act applies

to tax years beginning on or after January 1, 2023.

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DIVISION V
INDIVIDUAL INCOME TAX —— FLAT RATE

Sec. 19. Section 421.27, subsection 9, paragraph a, subparagraph (3), Code 2022, is amended to read as follows:

(3) In the case of all other entities, including corporations described in section 422.36, subsection 5, and all other entities required to file an information return under section 422.15, subsection 2, the entity's Iowa net income after the application of the Iowa business activity ratio, if applicable, multiplied by the ~~top~~ income tax rate imposed under section ~~422.5A~~ 422.5 for the tax year, less any Iowa tax credits available to the entity.

Sec. 20. Section 422.5, subsection 1, paragraph a, Code 2022, is amended to read as follows:

a. A tax is imposed upon every resident and nonresident of the state which tax shall be levied, collected, and paid annually upon and with respect to the entire taxable income as defined in this subchapter at ~~rates as provided in section 422.5A~~ a rate of three and nine-tenths percent.

Sec. 21. Section 422.16B, subsection 2, paragraph a, Code 2022, is amended to read as follows:

a. (1) A pass-through entity shall file a composite return on behalf of all nonresident members and shall report and pay the income or franchise tax imposed under this chapter at the maximum state income or franchise tax rate applicable to the member under section ~~422.5A~~ 422.5, 422.33, or 422.63 on the nonresident members' distributive shares of the income from the pass-through entity.

(2) The tax rate applicable to a tiered pass-through entity shall be the ~~maximum~~ state income tax rate under section ~~422.5A~~ 422.5.

Sec. 22. Section 422.25A, subsection 5, paragraph c, subparagraphs (3), (4), and (5), Code 2022, are amended to read as follows:

(3) Determine the total distributive share of all final

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federal partnership adjustments and positive reallocation adjustments as modified by this title that are reported to nonresident individual partners and nonresident fiduciary partners and allocate and apportion such adjustments as provided in section 422.33 at the partnership or tiered partner level, and multiply the resulting amount by the ~~maximum~~ individual income tax rate pursuant to section ~~422.5A~~ 422.5 for the reviewed year.

(4) For the total distributive share of all final federal partnership adjustments and positive reallocation adjustments

as modified by this title that are reported to tiered partners:

(a) Determine the amount of such adjustments which are of a type that would be subject to sourcing to Iowa under section 422.8, subsection 2, paragraph *"a"*, as a nonresident, and then determine the portion of this amount that would be sourced to Iowa under those provisions as if the tiered partner were a nonresident.

(b) Determine the amount of such adjustments which are of a type that would not be subject to sourcing to Iowa under section 422.8, subsection 2, paragraph *"a"*, as a nonresident.

(c) Determine the portion of the amount in subparagraph division (b) that can be established, as prescribed by the department by rule, to be properly allocable to indirect partners that are nonresident partners or other partners not subject to tax on the adjustments.

(d) Multiply the total of the amounts determined in subparagraph divisions (a) and (b), reduced by any amount determined in subparagraph division (c), by the ~~highest~~ individual income tax rate pursuant to section ~~422.5A~~ 422.5 for the reviewed year.

(5) For the total distributive share of all final federal partnership adjustments and positive reallocation adjustments as modified by this title that are reported to resident individual partners and resident fiduciary partners, multiply that amount by the ~~highest~~ individual income tax rate pursuant

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to section ~~422.5A~~ 422.5 for the reviewed year.

Sec. 23. EFFECTIVE DATE. This division of this Act takes effect January 1, 2026.

Sec. 24. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2026.

DIVISION VI

RETIREMENT INCOME

Sec. 25. Section 422.5, subsection 3, paragraph a, Code 2022, is amended to read as follows:

a. The tax shall not be imposed on a resident or nonresident whose net income, as defined in section 422.7, is thirteen thousand five hundred dollars or less in the case of married persons filing jointly or filing separately on a combined return, heads of household, and surviving spouses or nine thousand dollars or less in the case of all other persons; but in the event that the payment of tax under this subchapter would reduce the net income to less than thirteen thousand five hundred dollars or nine thousand dollars as applicable, then the tax shall be reduced to that amount which would result in allowing the taxpayer to retain a net income of thirteen thousand five hundred dollars or nine thousand dollars as applicable. The preceding sentence does not apply to estates or trusts. For the purpose of this subsection, the entire net income, including any part of the net income not allocated

to Iowa, shall be taken into account. ~~For purposes of this subsection, net income includes all amounts of pensions or other retirement income, except for military retirement pay excluded under section 422.7, subsection 31A, paragraph "a", or section 422.7, subsection 31B, paragraph "a", received from any source which is not taxable under this subchapter as a result of the government pension exclusions in section 422.7, or any other state law.~~ If the combined net income of a husband and wife exceeds thirteen thousand five hundred dollars, neither of them shall receive the benefit of this subsection, and it is immaterial whether they file a joint return or separate

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returns. However, if a husband and wife file separate returns and have a combined net income of thirteen thousand five hundred dollars or less, neither spouse shall receive the benefit of this paragraph, if one spouse has a net operating loss and elects to carry back or carry forward the loss as provided in section 422.9, subsection 3. A person who is claimed as a dependent by another person as defined in section 422.12 shall not receive the benefit of this subsection if the person claiming the dependent has net income exceeding thirteen thousand five hundred dollars or nine thousand dollars as applicable or the person claiming the dependent and the person's spouse have combined net income exceeding thirteen thousand five hundred dollars or nine thousand dollars as applicable.

Sec. 26. Section 422.5, subsection 3B, paragraph a, Code 2022, is amended to read as follows:

a. The tax shall not be imposed on a resident or nonresident who is at least sixty-five years old on December 31 of the tax year and whose net income, as defined in section 422.7, is thirty-two thousand dollars or less in the case of married persons filing jointly or filing separately on a combined return, heads of household, and surviving spouses or twenty-four thousand dollars or less in the case of all other persons; but in the event that the payment of tax under this subchapter would reduce the net income to less than thirty-two thousand dollars or twenty-four thousand dollars as applicable, then the tax shall be reduced to that amount which would result in allowing the taxpayer to retain a net income of thirty-two thousand dollars or twenty-four thousand dollars as applicable. The preceding sentence does not apply to estates or trusts. For the purpose of this subsection, the entire net income, including any part of the net income not allocated to Iowa, shall be taken into account. ~~For purposes of this subsection, net income includes all amounts of pensions or other retirement income, except for military retirement pay excluded under~~

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~~section 422.7, subsection 31A, paragraph "a", or section 422.7, subsection 31B, paragraph "a", received from any source which is not taxable under this subchapter as a result of the government pension exclusions in section 422.7, or any other state law.~~ If the combined net income of a husband and wife exceeds thirty-two thousand dollars, neither of them shall receive the benefit of this subsection, and it is immaterial whether they file a joint return or separate returns. However, if a husband and wife file separate returns and have a combined net income of thirty-two thousand dollars or less, neither spouse shall receive the benefit of this paragraph, if one spouse has a net operating loss and elects to carry back or carry forward the loss as provided in section 422.9, subsection 3. A person who is claimed as a dependent by another person as defined in section 422.12 shall not receive the benefit of this subsection if the person claiming the dependent has net income exceeding thirty-two thousand dollars or twenty-four thousand dollars as applicable or the person claiming the dependent and the person's spouse have combined net income exceeding thirty-two thousand dollars or twenty-four thousand dollars as applicable.

Sec. 27. Section 422.7, subsection 31, Code 2022, is amended to read as follows:

31. *a.* ~~For a person who is disabled, or is fifty-five years of age or older, or is the surviving spouse of an individual or a survivor having an insurable interest in an individual who would have qualified for the exemption under this subsection for the tax year, subtract~~ Subtract, to the extent included, the total amount ~~of~~ received from a governmental or other pension or retirement ~~pay~~ plan, including~~, but not limited to,~~ defined benefit or defined contribution plans, annuities, individual retirement accounts, plans maintained or contributed to by an employer, or maintained or contributed to by a self-employed person as an employer, and deferred compensation plans or any earnings attributable to the deferred compensation plans~~, up to a maximum of six thousand dollars for a person,~~

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~~other than a husband or wife, who files a separate state income tax return and up to a maximum of twelve thousand dollars for a husband and wife who file a joint state income tax return. However, a surviving spouse who is not disabled or fifty-five years of age or older can only exclude the amount of pension or retirement pay received as a result of the death of the other spouse. A husband and wife filing separate state income tax returns or separately on a combined state return are allowed a combined maximum exclusion under this subsection of up to twelve thousand dollars. The twelve thousand dollar exclusion shall be allocated to the husband or wife in the proportion that each spouse's respective pension and retirement~~

~~pay received bears to total combined pension and retirement pay received~~ received by a person who is disabled, or is fifty-five years of age or older, or is the surviving spouse of an individual or is a survivor having an insurable interest in an individual who would have qualified for the exemption under this subsection for the tax year.

b. Married taxpayers who file separate state income tax returns shall allocate their combined annual exclusion amount to each spouse in the proportion that each spouse's respective income received from a pension or retirement plan bears to the total combined pension or retirement pay received.

c. A taxpayer who is not disabled or fifty-five years of age or older and who receives pension or retirement pay as a surviving spouse or as a survivor with an insurable interest in an individual who would have qualified for the exemption for the tax year may only exclude the amount received from a pension or retirement plan in the tax year as a result of the death of the decedent.

Sec. 28. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

Sec. 29. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2023.

DIVISION VII

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RESEARCH ACTIVITIES TAX CREDIT

Sec. 30. Section 15.335, subsection 4, paragraph a, Code 2022, is amended to read as follows:

a. In lieu of the credit amount computed in subsection 2, an eligible business ~~may~~ shall elect to compute the credit amount for qualified research expenses incurred in this state in a manner consistent with the alternative simplified credit described in section 41(c)(4) of the Internal Revenue Code if the taxpayer elected or was required to use the alternative simplified credit method for federal income tax purposes for the same taxable year. ~~The taxpayer may make this election regardless of the method used for the taxpayer's federal income tax. The election made under this paragraph is for the tax year and the taxpayer may use another or the same method for any subsequent tax year.~~

Sec. 31. Section 15.335, subsection 5, Code 2022, is amended to read as follows:

5. The credit allowed in this section is in addition to the credit authorized in section 422.10 and section 422.33, subsection 5. ~~However, if the alternative credit computation method is used in section 422.10 or section 422.33, subsection 5, the credit allowed in this section shall also be computed using that method.~~ The regular or alternative credit allowed in this section shall be computed according to the same claim, calculation, and refund limitations in section 422.10 and section 422.33, subsection 5, as applicable, including those

described in section 422.10, subsection 1, paragraph *"a"*, and section 422.10, subsection 1, paragraph *"b"*, subparagraph (3), and section 422.10, subsection 4, and those described in section 422.33, subsection 5, paragraph *"b"*, subparagraph (2), and section 422.33, subsection 5, paragraphs *"e"* and *"g"*.

Sec. 32. Section 15.335, subsection 8, Code 2022, is amended to read as follows:

8. *a.* ~~Any~~ The following percentage of any credit in excess of the tax liability for the taxable year shall be refunded

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with interest in accordance with section 421.60, subsection 2, paragraph *"e"*:

(1) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, ninety-five percent.

(2) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, ninety percent.

(3) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, eighty-five percent.

(4) For the tax year beginning on or after January 1, 2026, but before January 1, 2027, eighty percent.

(5) For tax years beginning on or after January 1, 2027, seventy-five percent.

b. In lieu of claiming a refund, a taxpayer may elect to have the overpayment otherwise eligible for a refund shown on its final, completed return credited to the tax liability for the following tax year.

Sec. 33. Section 422.10, subsection 1, paragraph a, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (3) The credit provided in this section is claimed on a return filed by the due date for filing the return, including extensions of time. If timely claimed, the business shall not increase the credit claim on an amended return or otherwise unless either of the following apply:

(a) The amended return is filed within six months of the due date for filing the return which includes extensions of time.

(b) The increase results from an audit or examination by the internal revenue service or the department.

Sec. 34. Section 422.10, subsection 1, paragraph b, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (3) For the purpose of calculating the state's apportioned share of the qualifying expenditures for increasing research activities in subparagraph (2), the following criteria shall apply only to the determination of qualified research expenditures in this state:

(a) Wages paid to an employee for qualified services,

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or contract research expenses paid to a third party for the performance of qualified research services, shall only

constitute qualified research expenses in this state if the services are performed in this state, and if the following conditions are met, as applicable:

(i) For qualified services performed by employees, during the period of the tax year that the business is engaging in one or more research projects, a majority of the total services performed by the employee for the business are directly related to those research projects.

(ii) For the performance of qualified research services by a third party, during the period of the business's tax year that the third party is performing research services for the business, a majority of the total services performed by the person for the third party are directly related to those research projects of the business.

(b) The substantially all rule for determining qualified services as described in section 41(b)(2)(B) of the Internal Revenue Code and Treas. Reg. 1.41-2(d)(2) does not apply.

(c) Amounts paid for the right to use computers as described in section 41(b)(2)(A)(iii) of the Internal Revenue Code shall not be qualified research expenses in this state.

(d) For tax years beginning on or after January 1, 2023, but before January 1, 2027, amounts paid for supplies as defined in section 41(b)(2)(C) of the Internal Revenue Code shall only constitute qualified research expenses in this state if the supplies directly relate to research performed in this state and shall be limited to the following allowable percentages:

(i) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, eighty percent of the amounts paid for supplies directly related to research performed in this state.

(ii) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, sixty percent of the amounts paid for supplies directly related to research performed in this

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state.

(iii) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, forty percent of the amounts paid for supplies directly related to research performed in this state.

(iv) For the tax year beginning on or after January 1, 2026, but before January 1, 2027, twenty percent of the amounts paid for supplies directly related to research performed in this state.

(e) For tax years beginning on or after January 1, 2027, amounts paid for supplies as defined in section 41(b)(2)(C) of the Internal Revenue Code shall not be qualified research expenses in this state.

Sec. 35. Section 422.10, subsection 1, paragraphs c and d, Code 2022, are amended to read as follows:

c. In lieu of the credit amount computed in paragraph *"b"*,

subparagraph (1), subparagraph division (a), a taxpayer ~~may~~ shall elect to compute the credit amount for qualified research expenses incurred in this state in a manner consistent with the alternative simplified credit described in section 41(c)(4) of the Internal Revenue Code if the taxpayer elected or was required to use the alternative simplified credit method for federal income tax purposes for the same taxable year. ~~The taxpayer may make this election regardless of the method used for the taxpayer's federal income tax. The election made under this paragraph is for the tax year and the taxpayer may use another or the same method for any subsequent year.~~

d. For purposes of the alternate credit computation method in paragraph *"c"*, the following criteria shall apply:

(1) The credit percentages applicable to qualified research expenses described in section 41(c)(4)(A) and clause (ii) of section 41(c)(4)(B) of the Internal Revenue Code are four and fifty-five hundredths percent and one and ninety-five hundredths percent, respectively.

(2) Basic research payments and qualified research expenses

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shall only include amounts for research conducted in this state. A taxpayer's qualified research expenses in this state and average prior year qualified research expenses in this state shall be determined in accordance with the criteria in subsection 1, paragraph *"b"*, subparagraph (3).

Sec. 36. Section 422.10, subsection 3, paragraph b, Code 2022, is amended to read as follows:

b. For purposes of this section, *"basic research payment"* and *"qualified research expense"* mean the same as defined for the federal credit for increasing research activities under section 41 of the Internal Revenue Code, except ~~that for the alternative simplified credit such amounts are for research conducted within this state~~ as otherwise described in subsection 1, paragraph *"b"*, subparagraph (3), and subsection 1, paragraph *"d"*, subparagraph (2).

Sec. 37. Section 422.10, subsection 4, Code 2022, is amended to read as follows:

4. *a.* (1) ~~Any~~ The following percentage of any credit in excess of the tax liability imposed by section 422.5 less the amounts of nonrefundable credits allowed under this subchapter for the taxable year shall be refunded with interest in accordance with section 421.60, subsection 2, paragraph *"e"*:

(a) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, ninety percent.

(b) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, eighty percent.

(c) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, seventy percent.

(d) For the tax year beginning on or after January 1, 2026, but before January 1, 2027, sixty percent.

(2) In lieu of claiming a refund pursuant to this paragraph, a taxpayer may elect to have the overpayment otherwise eligible for a refund shown on the taxpayer's final, completed return credited to the tax liability for the following taxable year.

b. Commencing with tax years beginning on or after

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January 1, 2027, fifty percent of any credit in excess of the tax liability imposed by section 422.5 less the amounts of nonrefundable credits allowed under this subchapter for the taxable year shall be refunded with interest in accordance with section 421.60, subsection 2, paragraph *"e"*. In lieu of claiming a refund, a taxpayer may elect to have the overpayment otherwise eligible for a refund shown on the taxpayer's final, completed return credited to the tax liability for the following taxable year.

c. In applying the credit in this section against tax liability and computing the eligible refund amount, the credit shall be applied after all nonrefundable credits available to the taxpayer are applied, but before any other refundable credit available to the taxpayer is applied.

Sec. 38. Section 422.33, subsection 5, paragraph b, Code 2022, is amended to read as follows:

b. (1) The state's apportioned share of the qualifying expenditures for increasing research activities is a percent equal to the ratio of qualified research expenditures in this state to the total qualified research expenditures.

(2) For the purpose of calculating the state's apportioned share of the qualifying expenditures for increasing research activities in subparagraph (1), the following criteria shall apply only to the determination of qualified research expenditures in this state:

(a) Wages paid to an employee for qualified services, or contract research expenses paid to a third party for the performance of qualified research services, shall only constitute qualified research expenses in this state if the services are performed in this state, and if the following conditions are met, as applicable:

(i) For qualified services performed by employees, during the period of the tax year that the business is engaging in one or more research projects, a majority of the total services performed by the employee for the business are directly related

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to those research projects.

(ii) For the performance of qualified research services by a third party, during the period of the business's tax year that the third party is performing research services for the business, a majority of the total services performed by the person for the third party are directly related to those

research projects of the business.

(b) The substantially all rule for determining qualified services as described in section 41(b)(2)(B) of the Internal Revenue Code and Treas. Reg. 1.41-2(d)(2) does not apply.

(c) Amounts paid for the right to use computers as described in section 41(b)(2)(A)(iii) of the Internal Revenue Code shall not be qualified research expenses in this state.

(d) For tax years beginning on or after January 1, 2023, but before January 1, 2027, amounts paid for supplies as defined in section 41(b)(2)(C) of the Internal Revenue Code shall only constitute qualified research expenses in this state if the supplies directly relate to research performed in this state and shall be limited to the following allowable percentages:

(i) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, eighty percent of the amounts paid for supplies directly related to research performed in this state.

(ii) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, sixty percent of the amounts paid for supplies directly related to research performed in this state.

(iii) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, forty percent of the amounts paid for supplies directly related to research performed in this state.

(iv) For the tax year beginning on or after January 1, 2026, but before January 1, 2027, twenty percent of the amounts paid for supplies directly related to research performed in this state.

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(e) For tax years beginning on or after January 1, 2027, amounts paid for supplies as defined in section 41(b)(2)(C) of the Internal Revenue Code shall not be qualified research expenses in this state.

Sec. 39. Section 422.33, subsection 5, paragraphs c and d, Code 2022, are amended to read as follows:

c. In lieu of the credit amount computed in paragraph *"a"*, subparagraph (1), a corporation ~~may~~ shall elect to compute the credit amount for qualified research expenses incurred in this state in a manner consistent with the alternative simplified credit described in section 41(c)(4) of the Internal Revenue Code if the taxpayer elected or was required to use the alternative simplified credit method for federal income tax purposes for the same taxable year. ~~The taxpayer may make this election regardless of the method used for the taxpayer's federal income tax. The election made under this paragraph is for the tax year and the taxpayer may use another or the same method for any subsequent year.~~

d. For purposes of the alternate credit computation method in paragraph *"c"*, the following criteria shall apply:

(1) The credit percentages applicable to qualified research expenses described in section 41(c)(4)(A) and clause (ii) of section 41(c)(4)(B) of the Internal Revenue Code are four and fifty-five hundredths percent and one and ninety-five hundredths percent, respectively.

(2) Basic research payments and qualified research expenses shall only include amounts for research conducted in this state. A taxpayer's qualified research expenses in this state and average prior year qualified research expenses in this state shall be determined in accordance with the rules in paragraph *"b"*, subparagraph (2).

Sec. 40. Section 422.33, subsection 5, paragraph e, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (3) The credit provided in this subsection is claimed on a return filed by the due date for

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filing the return, including extensions of time. If timely claimed, the business shall not increase the credit claim on an amended return or otherwise unless either of the following apply:

(a) The amended return is filed within six months of the due date for filing the return which includes extensions of time.

(b) The increase results from an audit or examination by the internal revenue service or the department.

Sec. 41. Section 422.33, subsection 5, paragraph f, subparagraph (2), Code 2022, is amended to read as follows:

(2) For purposes of this subsection, *"basic research payment"* and *"qualified research expense"* mean the same as defined for the federal credit for increasing research activities under section 41 of the Internal Revenue Code, except ~~that for the alternative simplified credit such amounts are for research conducted within this state~~ as otherwise described in paragraph *"b"*, subparagraph (2), and paragraph *"d"*, subparagraph (2).

Sec. 42. Section 422.33, subsection 5, paragraph g, Code 2022, is amended to read as follows:

g. (1) (a) ~~Any~~ The following percentage of the credit in excess of the tax liability for the taxable year shall be refunded with interest in accordance with section 421.60, subsection 2, paragraph *"e"*:

(i) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, ninety percent.

(ii) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, eighty percent.

(iii) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, seventy percent.

(iv) For the tax year beginning on or after January 1, 2026, but before January 1, 2027, sixty percent.

(b) In lieu of claiming a refund pursuant to this subparagraph, a taxpayer may elect to have the overpayment otherwise eligible for a refund shown on its final, completed

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return credited to the tax liability for the following taxable year.

(2) Commencing with tax years beginning on or after January 1, 2027, fifty percent of any credit in excess of the tax liability for the taxable year shall be refunded with interest in accordance with section 421.60, subsection 2, paragraph *"e"*. In lieu of claiming a refund, a taxpayer may elect to have the overpayment otherwise eligible for a refund shown on its final, completed return credited to the tax liability for the following taxable year.

(3) In applying the credit in this subsection against tax liability and computing the eligible refund amount, the credit shall be applied after all nonrefundable credits available to the taxpayer are applied, but before any other refundable credit available to the taxpayer is applied.

Sec. 43. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

Sec. 44. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2023.

DIVISION VIII

OTHER TAX CREDITS

Sec. 45. Section 15.119, subsection 2, paragraph a, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (3) In allocating tax credits pursuant to this subsection, the authority shall prioritize issuing additional research activities tax credits pursuant to section 15.335.

Sec. 46. Section 15.293A, subsection 1, paragraph c, subparagraph (2), Code 2022, is amended to read as follows:

(2) (a) A tax credit in excess of the taxpayer's liability for the tax year is refundable if all of the following conditions are met:

~~(a)~~ (i) The taxpayer is an investor making application for tax credits provided in this section and is an entity organized under chapter 504 and qualifying under section 501(c)(3) of the

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Internal Revenue Code as an organization exempt from federal income tax under section 501(a) of the Internal Revenue Code.

~~(b)~~ (ii) The taxpayer establishes during the application process described in section 15.293B that the requirement in subparagraph division (a) is satisfied. The authority, when issuing a certificate to a taxpayer that meets the requirements in this subparagraph (2), shall indicate on the certificate that such requirements have been satisfied.

(b) For a tax credit deemed refundable pursuant to subparagraph division (a), the following percentage of the tax credit in excess of the taxpayer's liability for the tax year is refundable:

(i) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, ninety-five percent.

(ii) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, ninety percent.

(iii) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, eighty-five percent.

(iv) For the tax year beginning on or after January 1, 2026, but before January 1, 2027, eighty percent.

(v) For tax years beginning on or after January 1, 2027, seventy-five percent.

Sec. 47. Section 15.293A, subsection 2, paragraph d, Code 2022, is amended to read as follows:

d. Tax credit certificates issued under this section may be transferred to any person or entity, except a tax credit certificate that is refundable under subsection 1, paragraph *"c"*, subparagraph (2), shall not be transferable. Within ninety days of transfer, the transferee shall submit the transferred tax credit certificate to the department of revenue along with a statement containing the transferee's name, tax identification number, and address, the denomination that each replacement tax credit certificate is to carry, and any other information required by the department of revenue.

Sec. 48. Section 15E.305, subsection 2, paragraph a, Code

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2022, is amended to read as follows:

a. The maximum amount of tax credits granted to a taxpayer shall not exceed ~~five percent~~ one hundred thousand dollars of the aggregate amount of tax credits authorized.

Sec. 49. Section 15.331C, subsection 1, Code 2022, is amended to read as follows:

1. *a.* An eligible business may claim a tax credit in an amount equal to the sales and use taxes paid by a third-party developer under chapter 423 for gas, electricity, water, or sewer utility services, goods, wares, or merchandise, or on services rendered, furnished, or performed to or for a contractor or subcontractor and used in the fulfillment of a written contract relating to the construction or equipping of a facility of the eligible business. Taxes attributable to intangible property and furniture and furnishings shall not be included, but taxes attributable to racks, shelving, and conveyor equipment to be used in a warehouse or distribution center shall be included. ~~Any credit in excess of the tax liability for the tax year may be credited to the tax liability for the following seven years or until depleted, whichever occurs earlier.~~ An eligible business may elect to receive ~~a refund~~ as a refund the following percentage of all or a portion

of ~~an unused~~ any tax credit in excess of the tax liability as follows:

(1) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, ninety-five percent.

(2) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, ninety percent.

(3) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, eighty-five percent.

(4) For the tax year beginning on or after January 1, 2026, but before January 1, 2027, eighty percent.

(5) For tax years beginning on or after January 1, 2027, seventy-five percent.

b. In lieu of claiming a refund, a taxpayer may elect to

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have the overpayment otherwise eligible for a refund shown on the taxpayer's final, completed return credited to the tax liability for the following seven years or until depleted, whichever occurs earlier.

Sec. 50. Section 404A.2, subsection 4, Code 2022, is amended to read as follows:

4. *a.* For a tax credit claimed by an eligible taxpayer or a transferee for qualified rehabilitation projects with agreements entered into on or after July 1, 2014, the following percentage of any credit in excess of the taxpayer's tax liability for the tax year may be refunded ~~or, at the taxpayer's election, credited to the taxpayer's tax liability for the following five years or until depleted, whichever is earlier~~:

(1) For the tax year beginning on or after January 1, 2023, but before January 1, 2024, ninety-five percent.

(2) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, ninety percent.

(3) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, eighty-five percent.

(4) For the tax year beginning on or after January 1, 2026, but before January 1, 2027, eighty percent.

(5) For tax years beginning on or after January 1, 2027, seventy-five percent.

b. In lieu of claiming a refund, a taxpayer may elect to have the overpayment otherwise eligible for a refund shown on the taxpayer's final, completed return credited to the tax liability for the following five tax years or until depleted, whichever is earlier.

c. A tax credit shall not be carried back to a tax year prior to the tax year in which the taxpayer redeems the tax credit. As used in this subsection, *"taxpayer"* includes an eligible taxpayer or a person transferred a tax credit certificate pursuant to subsection 3.

Sec. 51. Section 422.12N, Code 2022, is amended by adding

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the following new subsections:

NEW SUBSECTION. 6. This section does not apply to a geothermal heat pump installation occurring after December 31, 2023.

NEW SUBSECTION. 7. This section is repealed January 1, 2034.

Sec. 52. Section 422.33, subsection 9, paragraph a, Code 2022, is amended to read as follows:

a. (1) The taxes imposed under this subchapter shall be reduced by an assistive device tax credit. A small business purchasing, renting, or modifying an assistive device or making workplace modifications for an individual with a disability who is employed or will be employed by the small business is eligible, subject to availability of credits, to receive this assistive device tax credit which is equal to fifty percent of the first five thousand dollars paid during the tax year for the purchase, rental, or modification of the assistive device or for making the workplace modifications. ~~Any~~ The following percentage of any credit in excess of the tax liability shall be refunded with interest in accordance with section 421.60, subsection 2, paragraph *"e"*, as follows:

(a) For the For the tax year beginning on or after January 1, 2023, but before January 1, 2024, ninety-five percent.

(b) For the tax year beginning on or after January 1, 2024, but before January 1, 2025, ninety percent.

(c) For the tax year beginning on or after January 1, 2025, but before January 1, 2026, eighty-five percent.

(d) For the tax year beginning on or after January 1, 2026, but before January 1, 2027, eighty percent.

(e) For tax years beginning on or after January 1, 2027, seventy-five percent.

(2) In lieu of claiming a refund, a taxpayer may elect to have the overpayment otherwise eligible for a refund shown on the taxpayer's final, completed return credited to the tax liability for the following tax year. If the small business

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elects to take the assistive device tax credit, the small business shall not deduct for Iowa tax purposes any amount of the cost of an assistive device or workplace modifications which is deductible for federal income tax purposes.

Sec. 53. PRESERVATION OF EXISTING RIGHTS. This division of this Act is not intended to and shall not limit, modify, or otherwise adversely affect any amount of tax credit issued, awarded, or allowed prior to January 1, 2023, nor shall it limit, modify, or otherwise adversely affect a taxpayer's right to claim or redeem a tax credit issued, awarded, or allowed prior to January 1, 2023, including but not limited to any tax credit carryforward amount.

Sec. 54. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

Sec. 55. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2023.

DIVISION IX

CORPORATE INCOME TAX RATES —— ADJUSTMENTS

Sec. 56. Section 422.33, subsection 1, Code 2022, is amended to read as follows:

1. *a.* A tax is imposed annually upon each corporation doing business in this state, or deriving income from sources within this state, in an amount computed by applying the following rates of taxation to the net income received by the corporation during the income year:

~~*a.*~~ (1) On the first twenty-five thousand dollars of taxable income, or any part thereof, the rate of six percent for tax years beginning prior to January 1, 2021, and the rate of five and one-half percent for tax years beginning on or after January 1, 2021.

~~*b.*~~ (2) On taxable income between twenty-five thousand dollars and one hundred thousand dollars or any part thereof, the rate of eight percent for tax years beginning prior to January 1, 2021, and the rate of five and one-half percent for tax years beginning on or after January 1, 2021.

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~~*c.*~~ (3) On taxable income between one hundred thousand dollars and two hundred fifty thousand dollars or any part thereof, the rate of ten percent for tax years beginning prior to January 1, 2021, and the rate of nine percent for tax years beginning on or after January 1, 2021.

~~*d.*~~ (4) On taxable income of two hundred fifty thousand dollars or more, the rate of twelve percent for tax years beginning prior to January 1, 2021, and the rate of nine and eight-tenths percent for tax years beginning on or after January 1, 2021.

b. (1) (a) Notwithstanding paragraph *"a"*, the department of management and the department of revenue shall determine corporate income tax rates as provided in this paragraph. A tax rate in this subsection shall remain in effect until the tax rate is adjusted pursuant to this paragraph.

(b) By November 1, 2022, and by November 1 each year thereafter, the department of management shall determine the net corporate income tax receipts for the fiscal year preceding the determination date. If net corporate income tax receipts for the preceding fiscal year exceed seven hundred million dollars, the department of revenue shall adjust and apply new corporate income tax rates as provided in subparagraph (2).

(2) (a) If a determination has been made that net corporate income tax receipts for the preceding fiscal year exceeded seven hundred million dollars, the department of revenue shall adjust the tax rates specified in paragraph *"a"*,

subparagraphs (3) and (4), and apply the adjusted rates for tax years beginning on or after the next January 1 following the determination date.

(b) (i) The tax rates subject to adjustment shall be adjusted in such a way that when combined with all the other rates specified in paragraph *"a"*, the tax rates would have generated net corporate income tax receipts that equal seven hundred million dollars in the preceding fiscal year.

(ii) When adjusting the tax rates, the tax rates shall be

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adjusted as follows:

(A) The tax rate in effect that corresponds with the specified tax rate in paragraph *"a"*, subparagraph (4), shall first be adjusted but not below the tax rate in effect that corresponds with the specified rate in paragraph *"a"*, subparagraph (3).

(B) If after the adjustment in subparagraph part (A) is made, and an additional adjustment is necessary, the tax rates that correspond with the rates specified in paragraph *"a"*, subparagraphs (3) and (4), shall be adjusted on an equal basis.

(iii) The tax rates adjusted pursuant to this paragraph shall not be adjusted below five and one-half percent.

(iv) The tax rates, when adjusted, shall be rounded down to the nearest one-tenth of one percent.

(3) If a tax rate is adjusted pursuant to this paragraph, the director of revenue shall cause an advisory notice containing the new corporate tax rates to be published in the Iowa administrative bulletin and on the internet site of the department of revenue. The calculation and publication of the adjusted tax rate by the director of revenue is exempt from chapter 17A, and shall be submitted for publication by the first December 31 following the determination date to adjust the tax rates.

DIVISION X

CORPORATE INCOME TAX —— FLAT RATE

Sec. 57. Section 422.33, subsection 1, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

1. A tax is imposed annually upon each corporation doing business in this state, or deriving income from sources within this state, in an amount computed by applying the rate of five and one-half percent to the net income received by the corporation during the income year.

Sec. 58. CONTINGENT EFFECTIVE DATE. This division of this Act takes effect on the first January 1 after each rate

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of taxation on the net income received by a corporation is equalized to equal five and one-half percent pursuant to

section 422.33, subsection 1, paragraph "b", as amended by this Act. The director of revenue shall inform the Code editor upon the occurence of this contingency.

Sec. 59. APPLICABILITY. This division of this Act applies to tax years beginning on or after the effective date of this division of this Act.

DIVISION XI

TAX EXPENDITURE COMMITTEE

Sec. 60. Section 2.45, subsection 5, Code 2022, is amended by striking the subsection.

Sec. 61. Section 2.48, subsections 1 and 2, Code 2022, are amended by striking the subsections and inserting in lieu thereof the following:

1. As used in this section, *"tax expenditure"* means an exclusion from the operation or collection of a tax imposed in this state. Tax expenditures include tax credits, exemptions, deductions, and rebates. Tax expenditures also include sales tax refunds issued pursuant to section 423.3 or 423.4.

2. *a.* (1) The department administering a tax expenditure described in subsection 3 shall engage in a review of the tax expenditure based upon the schedule in subsection 3. If multiple departments administer the tax expenditure, the departments shall cooperate in the review.

(2) The review shall consist of evaluating any tax expenditure described in subsection 3 and assess its equity, simplicity, competitiveness, public purpose, adequacy, and extent of conformance with the original purpose of the legislation that enacted the tax expenditure, as those issues pertain to taxation in Iowa.

b. (1) The department shall file a report detailing the review with the general assembly no later than December 15 of the year the credit is scheduled to be reviewed in subsection 3.

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(2) The report may include recommendations for better aligning tax expenditures with the original intent of the legislation that enacted the tax expenditure.

Sec. 62. Section 2.48, subsection 3, unnumbered paragraph 1, Code 2022, is amended to read as follows:

The ~~committee~~ applicable department shall review the following tax expenditures and incentives according to the following schedule:

Sec. 63. Section 2.48, subsection 4, Code 2022, is amended to read as follows:

4. ~~*Subsequent additional review.*~~ A tax expenditure or incentive reviewed pursuant to subsection 3 shall be reviewed again not more than five years after the tax expenditure or incentive was most recently reviewed.

DIVISION XII

TAXPAYER RELIEF FUND CONTINGENT TRANSFERS

Sec. 64. Section 8.54, subsection 5, Code 2022, is amended to read as follows:

5. *a.* For fiscal years in which it is anticipated that the distribution of moneys from the Iowa economic emergency fund in accordance with section 8.55, subsection 2, will result in moneys being transferred to the general fund of the state, the original state general fund expenditure limitation amount provided for in subsection 3 shall be readjusted to include the amount of moneys anticipated to be so transferred.

b. For fiscal years in which it is anticipated that moneys will be transferred from the taxpayer relief fund to the general fund of the state in accordance with section 8.57E, subsection 2, paragraph *"b"*, the original state general fund expenditure limitation amount provided for in subsection 3 shall be readjusted to include the amount of moneys anticipated to be so transferred. This paragraph is repealed on the date that section 8.57E, subsection 2, paragraph *"b"*, is repealed.

Sec. 65. Section 8.57E, subsection 2, Code 2022, is amended to read as follows:

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2. *a.* ~~Moneys~~ Except as otherwise provided in this section, moneys in the taxpayer relief fund shall only be used pursuant to appropriations or transfers made by the general assembly for tax relief~~, including but not limited to increases in the general retirement income exclusion under section 422.7, subsection 31,~~ or reductions in income tax rates.

b. (1) For the fiscal year beginning July 1, 2023, and for each fiscal year thereafter, if the actual net revenue for the general fund of the state for the fiscal year plus the amount transferred to the general fund of the state under section 8.55, subsection 2, paragraph *"b"*, for the fiscal year, if any, is less than one hundred three and one-half percent of the actual net revenue for the general fund of the state for the prior fiscal year, there is transferred from the taxpayer relief fund to the general fund of the state an amount equal to the difference or the remaining balance of the taxpayer relief fund, whichever is lower, subject to subparagraph (2).

(2) The transfer made under subparagraph (1) shall not exceed an amount necessary to increase the ending balance of the general fund of the state for the fiscal year to one percent of the adjusted revenue estimate, as defined in section 8.54, for the fiscal year.

(3) This paragraph is repealed on the date the remaining balance of the taxpayer relief fund is transferred to the general fund of the state under subparagraph (1).>

2. Title page, by striking lines 1 through 3 and inserting <An Act relating to state revenue and finance by modifying individual income tax rates, exemptions, and credits, corporate income tax rates and credits, credits against the franchise tax, the insurance premiums tax, and the moneys and credits

tax, and the tax expenditure committee, making contingent transfers from the taxpayer relief fund, and including effective date and applicability provisions.>

DAN DAWSON

S–5023

Amend the amendment, S–5022, to House File 2317, as passed by the House, as follows:

1. Page 38, after line 25 by inserting:

<DIVISION ___

EARNED INCOME TAX CREDIT

Sec. ___. Section 422.12B, subsection 1, paragraph a, Code 2022, is amended to read as follows:

a. The taxes imposed under this subchapter less the credits allowed under section 422.12 shall be reduced by an earned income credit equal to the following percentage of the federal earned income credit provided in section 32 of the Internal Revenue Code:

(1) For the tax year beginning in the 2013 calendar year, fourteen percent.

(2) For tax years beginning on or after January 1, 2014, but before January 1, 2023, fifteen percent.

(3) For tax years beginning on or after January 1, 2023, thirty percent.>

2. By renumbering as necessary.

ERIC GIDDENS

S–5024

Amend the amendment, S–5022, to House File 2317, as passed by the House, as follows:

1. Page 3, line 34, by striking <Subtract> and inserting <Except as provided in paragraph *"0b"*, subtract>

2. Page 3, line 35, before <net> by inserting <fifty percent of>

3. Page 4, after line 4 by inserting:

<*0b.* Subtract, to the extent included, all net income received by an eligible individual pursuant to a farm tenancy agreement covering real property held by an eligible individual for ten or more years, if the farm tenancy agreement is with a tenant-lessee who does not participate in the beginning farmer tax credit program but would be eligible to participate in the beginning farmer tax credit program under chapter 16, subchapter VIII, part 5, subpart B, and who meets the definition of beginning farmer in section 16.58.>

LIZ MATHIS
KEVIN KINNEY

S–5025

Amend the amendment, S–5022, to House File 2317, as passed by the House, as follows:

1. Page 38, after line 25 by inserting:

<Sec. ___. Section 422.12C, subsection 1, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

1. The taxes imposed under this subchapter, less the amounts of nonrefundable credits allowed under this subchapter, shall be reduced by a child and dependent care credit equal to the following percentages of the federal child and dependent care credit provided in section 21 of the Internal Revenue Code, without regard to whether or not the federal credit was limited by the taxpayer's federal tax liability:

a. For a taxpayer of net income of less than twenty-five thousand dollars, one hundred percent.

b. For a taxpayer with net income of twenty-five thousand dollars or more but less than forty thousand dollars, ninety percent.

c. For a taxpayer with net income of forty thousand dollars or more but less than sixty thousand dollars, seventy-five percent.

d. For a taxpayer with net income of sixty thousand dollars or more but less than ninety thousand dollars, fifty percent.

e. For a taxpayer with net income of ninety thousand dollars or more, zero percent.

Sec. ___. Section 422.12C, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 5. *a.* Upon determination of the latest cumulative inflation factor, the director shall multiply each net income level set forth in subsection 1 or 2 by this cumulative inflation factor, shall round off the resulting product to the nearest one dollar, and shall incorporate the result into the net income levels in subsection 1 or 2 for each tax year beginning on or after January 1, 2022.

b. For purposes of this subsection, *"cumulative inflation*

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factor" means the product of the annual inflation factor for the 2023 calendar year and all annual inflation factors for subsequent calendar years as determined by section 422.4, subsection 1, paragraph *"a"*. The cumulative inflation factor applies to all tax years beginning on or after January 1 of the calendar year for which the latest annual inflation factor has been determined. Notwithstanding any other provision, the annual inflation factor for the 2022 calendar year is one hundred percent.

Sec. ___. RETROACTIVE APPLICABILITY. This division of this Act applies retroactively to January 1, 2022, for tax years beginning on or after that date.>

2. Page 38, line 33, by striking <date and> and inserting <date, applicability, and retroactive>
3. By renumbering as necessary.

SARAH TRONE GARRIOTT

S–5026

Amend House File 803, as amended, passed, and reprinted by the House, as follows:
1. Page 1, line 3, by striking <2021> and inserting <2022>
2. Page 1, by striking lines 9 through 26 and inserting:
<Sec. ___. Section 90A.8, subsection 2, Code 2022, is amended to read as follows:
2. A contestant shall not take part in a boxing match unless the contestant has presented a valid registration identification card issued pursuant to section 90A.3 to the commissioner prior to the weigh-in for the boxing match. The contestant shall pass a rigorous physical examination to determine the contestant's fitness to engage in any such match within twenty-four hours of the start of the match. The examination shall be conducted by a licensed practicing physician or physician assistant designated or authorized by the commissioner.>
3. Page 1, line 28, by striking <2021> and inserting <2022>
4. Page 2, line 16, by striking <2021> and inserting <2022>
5. Page 2, line 20, by striking <2021> and inserting <2022>
6. Page 2, line 35, by striking <2021> and inserting <2022>
7. Page 3, line 6, by striking <2021> and inserting <2022>
8. Page 3, line 12, by striking <2021> and inserting <2022>
9. Page 3, line 20, by striking <2021> and inserting <2022>
10. Page 4, line 14, by striking <2021> and inserting <2022>
11. Page 4, line 24, by striking <2021> and inserting <2022>
12. Page 5, line 12, by striking <2021> and inserting <2022>
13. Page 5, line 20, by striking <2021> and inserting <2022>
14. Page 5, line 34, by striking <2021> and inserting <2022>
15. Page 6, line 9, by striking <2021> and inserting <2022>
16. Page 6, line 11, by striking <2021> and inserting <2022>
17. Page 6, line 18, by striking <2021> and inserting <2022>
18. Page 7, line 9, by striking <2021> and inserting <2022>
19. Page 7, line 26, by striking <2021> and inserting <2022>
20. By striking page 7, line 32, through page 8, line 10, and inserting:

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<Sec. ___. Section 144F.2, subsection 1, paragraph b, Code 2022, is amended to read as follows:
b. A legal representative who is an agent under a durable power of attorney for health care pursuant to chapter 144B shall be given the opportunity to designate a lay caregiver in lieu of the patient's designation of a lay caregiver only

if, consistent with chapter 144B, in the judgment of the attending physician or attending physician assistant, the patient is unable to make the health care decision. A legal representative who is a guardian shall be given the opportunity to designate a lay caregiver in lieu of the patient's designation of a lay caregiver to the extent consistent with the powers and duties granted the guardian pursuant to sections 232D.401 and 232D.402 or section 633.635.>

21. Page 8, line 11, by striking <2021> and inserting <2022>

22. Page 9, line 5, by striking <2021> and inserting <2022>

23. Page 9, line 20, by striking <2021> and inserting <2022>

24. Page 9, line 30, by striking <2021> and inserting <2022>

25. Page 10, line 8, by striking <2021> and inserting <2022>

26. By striking page 10, line 19, through page 11, line 8, and inserting:

<Sec. ___. Section 225.15, subsection 1, Code 2022, is amended to read as follows:

1. When a respondent arrives at the state psychiatric hospital, the admitting physician, or a physician assistant who meets the qualifications set forth in the definition of a mental health professional in section 228.1, shall examine the respondent and determine whether or not, in the physician's or physician assistant's judgment, the respondent is a fit subject for observation, treatment, and hospital care. If, upon examination, the physician or physician assistant who meets the qualifications set forth in the definition of a mental health professional in section 228.1 decides that the respondent should be admitted to the hospital, the respondent shall be provided a proper bed in the hospital. The physician

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or physician assistant who meets the qualifications set forth in the definition of a mental health professional in section 228.1 who has charge of the respondent shall proceed with observation, medical treatment, and hospital care as in the physician's or physician assistant's judgment are proper and necessary, in compliance with sections 229.13, 229.14, this section, and section 229.16. After the respondent's admission, the observation, medical treatment, and hospital care of the respondent may be provided by a mental health professional, as defined in section 228.1, who is licensed as a physician, advanced registered nurse practitioner, or physician assistant.>

27. Page 11, line 9, by striking <2021> and inserting <2022>

28. Page 11, line 27, by striking <2021> and inserting <2022>

29. Page 12, line 4, by striking <2021> and inserting <2022>

30. Page 12, line 22, by striking <2021> and inserting <2022>

31. Page 12, line 35, by striking <2021> and inserting <2022>

32. Page 13, line 6, by striking <2021> and inserting <2022>
33. Page 13, line 18, by striking <2021> and inserting <2022>
34. Page 13, line 28, by striking <2021> and inserting <2022>
35. Page 13, line 34, by striking <2021> and inserting <2022>
36. Page 14, line 13, by striking <2021> and inserting <2022>
37. Page 14, line 17, by striking <2021> and inserting <2022>
38. Page 14, line 27, by striking <2021> and inserting <2022>
39. Page 14, line 32, by striking <2021> and inserting <2022>

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40. Page 15, line 10, by striking <2021> and inserting <2022>
41. Page 15, line 17, by striking <2021> and inserting <2022>
42. Page 15, line 23, by striking <2021> and inserting <2022>
43. Page 15, line 30, by striking <2021> and inserting <2022>
44. Page 16, line 2, by striking <2021> and inserting <2022>
45. Page 16, line 14, by striking <2021> and inserting <2022>
46. Page 16, line 30, by striking <2021> and inserting <2022>
47. Page 17, line 23, by striking <2021> and inserting <2022>
48. Page 17, line 35, by striking <2021> and inserting <2022>
49. Page 18, line 19, by striking <2021> and inserting <2022>
50. Page 19, line 2, by striking <2021> and inserting <2022>
51. By renumbering as necessary.

COMMITTEE ON STATE GOVERNMENT
ROBY SMITH, CHAIRPERSON

S–5027

Amend the amendment, S–5022, to House File 2317, as passed by the House, as follows:

1. By striking page 9, line 5, through page 15, line 5, and inserting the following:

<DIVISION ___
INDIVIDUAL INCOME TAX RATES FOR TAX YEARS BEGINNING ON OR AFTER 2023

Sec. ___. 2018 Iowa Acts, chapter 1161, section 107, is amended by striking the section and inserting in lieu thereof the following:

SEC. 107. Section 422.5A, as enacted in this Act, is amended by striking the section and inserting in lieu thereof the following:

422.5A Tax rates.

1. The tax imposed in section 422.5 shall be calculated at the following rates in the case of a married couple filing jointly:

a. On all taxable income from 0 through $500,000, the rate of 3.90 percent.

b. On all taxable income exceeding $500,000, the rate of 6.50 percent.

2. The tax imposed in section 422.5 shall be calculated at the following rates in the case of any taxpayer other than a married couple filing jointly:

a. On all taxable income from 0 through $250,000, the rate of 3.90 percent.

b. On all taxable income exceeding $250,000, the rate of 6.50 percent.>

2. By renumbering as necessary.

JACKIE SMITH

S–5028

Amend Senate File 2022 as follows:

1. Page 1, before line 1 by inserting:

<Section 1. Section 157.1, subsection 26, Code 2022, is amended to read as follows:

26. *"Salon"* means ~~a fixed~~ an establishment ~~or place~~ in a fixed location, or a location that is readily movable, where one or more persons engage in the practice of cosmetology arts and sciences, including, but not limited to, a retail establishment where cosmetologists engage in the practice of cosmetology arts and sciences.>

2. Page 1, line 5, by striking <if the location is the home of>

3. Page 1, by striking lines 6 and 7 and inserting <pursuant to rules adopted by the board.>

4. Page 1, line 22, by striking <if the>

5. Page 1, by striking lines 23 and 24 and inserting <pursuant to rules adopted by the board.>

6. Page 1, after line 27 by inserting:

<Sec. ___. EMERGENCY RULES. The board of cosmetology arts and sciences and board of barbering may adopt emergency rules under section 17A.4, subsection 3, and section 17A.5, subsection 2, paragraph "b", to implement the provisions of this Act and the rules shall be effective immediately upon filing unless a later date is specified in the rules. Any rules adopted in accordance with this section shall also be

published as a notice of intended action as provided in section 17A.4.>

7. Title page, line 2, by striking <a home> and inserting <certain locations>

8. By renumbering as necessary.

JASON SCHULTZ

S–5029

Amend Senate File 2323 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. 2018 Iowa Acts, chapter 1172, section 44, subsection 1, is amended to read as follows:

1. a. By December 1, 2018, the department of natural resources shall submit a report to the general assembly including all financial assistance provided to private entities for the acquisition of land and an inventory of all land managed or owned on behalf of the state by the department.

b. The department shall maintain the inventory created in paragraph "a" on the department's internet site and update the inventory within sixty days of the department acquiring new property or acquiring a management interest in any property. The department shall also update the inventory within sixty days of receiving a report of a county conservation board's acquisition of property as required under paragraph "c". The inventory shall include the common name, county, acres acquired, seller, year of acquisition, price paid, federal moneys used, state moneys used, county moneys used, and the manager of all land owned or managed by the department or by a county conservation board.

c. Each county conservation board shall regularly submit to the department in a manner determined by the department and consistent with section 350.4, subsection 3, an inventory of all land owned or managed by the respective county conservation board.

Sec. 2. APPLICABILITY. The requirement for the inventory maintained pursuant to this 2022 Iowa Act to include the price paid or the seller of land owned or managed by a county conservation board shall not apply to land acquired by a county conservation board prior to the effective date of this 2022 Iowa Act.>

2. Title page, line 1, by striking <state>

3. Title page, line 2, by striking <resources.> and

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inserting <resources or a county conservation board, and including applicability provisions.>

TOM SHIPLEY

S–5030

Amend Senate File 2251 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 7E.3, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 6. *Workforce advertising.* Ensure that companies that have no physical presence in the state shall not be allowed to advertise for workers on an internet site maintained by the department or independent agency or through any other means funded by an appropriation to the department or independent agency. However, this subsection shall not apply to advertisements for internships or other employment opportunities on an internet site or at an employee recruitment event maintained or sponsored by an institution under the control of the state board of regents.>

ADRIAN DICKEY

S–5031

HOUSE AMENDMENT TO
SENATE FILE 463

Amend Senate File 463, as passed by the Senate, as follows:

1. Page 27, after line 17 by inserting:

<Sec. ___. NEW SECTION. **147F.1 Audiology and speech language pathology interstate compact.**

1. *Purpose.* The purpose of this compact is to facilitate interstate practice of audiology and speech language pathology with the goal of improving public access to audiology and speech language pathology services. The practice of audiology and speech language pathology occurs in the state where the patient, client, or student is located at the time of the patient, client, or student encounter. The compact preserves the regulatory authority of states to protect public health and safety through the current system of state licensure. This compact is designed to achieve the following objectives:

a. Increase public access to audiology and speech language pathology services by providing for the mutual recognition of other member state licenses.

b. Enhance the states' ability to protect the public's health and safety.

c. Encourage the cooperation of member states in regulating multistate audiology and speech language pathology practice.

d. Support spouses of relocating active duty military personnel.

e. Enhance the exchange of licensure, investigative, and disciplinary information between member states.

f. Allow a remote state to hold a provider of services with a compact privilege in that state accountable to that state's

practice standards.

g. Allow for the use of telehealth technology to facilitate increased access to audiology and speech language pathology services.

2. *Definitions.* As used in this compact, and except as otherwise provided, the following definitions shall apply:

a. "Active duty military" means full-time duty status in the active uniformed service of the United States, including

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members of the national guard and the reserves on active duty orders pursuant to 10 U.S.C. §1209 and 10 U.S.C. §1211.

b. "Adverse action" means any administrative, civil, equitable, or criminal action permitted by a state's laws which is imposed by a licensing board or other authority against an audiologist or speech language pathologist, including actions against an individual's license or privilege to practice such as revocation, suspension, probation, monitoring of the licensee, or restriction of the licensee's practice.

c. "Alternative program" means a nondisciplinary monitoring process approved by an audiology or speech language pathology licensing board to address impaired practitioners.

d. "Audiologist" means an individual who is licensed by a state to practice audiology.

e. "Audiology" means the care and services provided by a licensed audiologist as set forth in the member state's statutes and rules.

f. "Audiology and speech language pathology compact commission" or *"commission"* means the national administrative body whose membership consists of all states that have enacted the compact.

g. "Audiology and speech language pathology licensing board", "audiology licensing board","speech language pathology licensing board", or *"licensing board"* means the agency of a state that is responsible for the licensing and regulation of audiologists or speech language pathologists.

h. "Compact privilege" means the authorization granted by a remote state to allow a licensee from another member state to practice as an audiologist or speech language pathologist in the remote state under its laws and rules. The practice of audiology or speech language pathology occurs in the member state where the patient, client, or student is located at the time of the patient, client, or student encounter.

i. "Current significant investigative information" means investigative information that a licensing board, after an

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inquiry or investigation that includes notification and an opportunity for the audiologist or speech language pathologist to respond, if required by state law, has reason to believe is

not groundless and, if proved true, would indicate more than a minor infraction.

j. "Data system" means a repository of information about licensees, including but not limited to continuing education, examination, licensure, investigative, compact privilege, and adverse action.

k. "Encumbered license" means a license in which an adverse action restricts the practice of audiology or speech language pathology by the licensee and said adverse action has been reported to the national practitioners data bank.

l. "Executive committee" means a group of directors elected or appointed to act on behalf of, and within the powers granted to them by, the commission.

m. "Home state" means the member state that is the licensee's primary state of residence.

n. "Impaired practitioner" means an individual whose professional practice is adversely affected by substance abuse, addiction, or other health-related conditions.

o. "Licensee" means an individual who currently holds an authorization from the state licensing board to practice as an audiologist or speech language pathologist.

p. "Member state" means a state that has enacted the compact.

q. "Privilege to practice" means a legal authorization permitting the practice of audiology or speech language pathology in a remote state.

r. "Remote state" means a member state, other than the home state, where a licensee is exercising or seeking to exercise the compact privilege.

s. "Rule" means a regulation, principle, or directive promulgated by the commission that has the force of law.

t. "Single-state license" means an audiology or speech

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language pathology license issued by a member state that authorizes practice only within the issuing state and does not include a privilege to practice in any other member state.

u. "Speech language pathologist" means an individual who is licensed by a state to practice speech language pathology.

v. "Speech language pathology" means the care and services provided by a licensed speech language pathologist as set forth in the member state's statutes and rules.

w. "State" means any state, commonwealth, district, or territory of the United States that regulates the practice of audiology and speech language pathology.

x. "State practice laws" means a member state's laws, rules, and regulations that govern the practice of audiology or speech language pathology, define the scope of audiology or speech language pathology practice, and create the methods and grounds for imposing discipline.

y. "Telehealth" means the application of telecommunication,

audiovisual, or other technologies that meet the applicable standard of care to deliver audiology or speech language pathology services at a distance for assessment, intervention, or consultation.

3. *State participation in the compact.*

a. A license issued to an audiologist or speech language pathologist by a home state to a resident in that state shall be recognized by each member state as authorizing an audiologist or speech language pathologist to practice audiology or speech language pathology, under a privilege to practice, in each member state.

b. A state must implement or utilize procedures for considering the criminal history records of applicants for initial privilege to practice. These procedures shall include the submission of fingerprints or other biometric-based information by applicants for the purpose of obtaining an applicant's criminal history record information from the federal bureau of investigation and the agency responsible for

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retaining that state's criminal records.

(1) A member state must fully implement a criminal background check requirement, within a time frame established by rule, by receiving the results of the federal bureau of investigation record search on criminal background checks and use the results in making licensure decisions.

(2) Communication between a member state, the commission, and among member states regarding the verification of eligibility for licensure through the compact shall not include any information received from the federal bureau of investigation relating to a federal criminal records check performed by a member state under the Department of State, Justice, and Commerce, the Judiciary, and Related Agencies Appropriation Act, 1973, Pub. L. No. 92-544.

c. Upon application for a privilege to practice, the licensing board in the issuing remote state shall ascertain, through the data system, whether the applicant has ever held, or is the holder of, a license issued by any other state, whether there are any encumbrances on any license or privilege to practice held by the applicant, and whether any adverse action has been taken against any license or privilege to practice held by the applicant.

d. Each member state shall require an applicant to obtain or retain a license in the home state and meet the home state's qualifications for licensure or renewal of licensure as well as all other applicable state laws.

e. For an audiologist:

(1) Must meet one of the following educational requirements:

(a) On or before December 31, 2007, has graduated with a master's degree or doctorate in audiology, or equivalent degree

regardless of degree name, from a program that is accredited by an accrediting agency recognized by the council for higher education accreditation, or its successor, or by the United States department of education and operated by a college or

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university accredited by a regional or national accrediting organization recognized by the board.

(b) On or after January 1, 2008, has graduated with a doctoral degree in audiology, or equivalent degree regardless of degree name, from a program that is accredited by an accrediting agency recognized by the council for higher education accreditation, or its successor, or by the United States department of education and operated by a college or university accredited by a regional or national accrediting organization recognized by the board.

(c) Has graduated from an audiology program that is housed in an institution of higher education outside of the United States for which the program and institution have been approved by the authorized accrediting body in the applicable country and the degree program has been verified by an independent credentials review agency to be comparable to a state licensing board-approved program.

(2) Has completed a supervised clinical practicum experience from an accredited educational institution or its cooperating programs as required by the board.

(3) Has successfully passed a national examination approved by the commission.

(4) Holds an active, unencumbered license.

(5) Has not been convicted or found guilty, and has not entered into an agreed disposition, of a felony related to the practice of audiology, under applicable state or federal criminal law.

(6) Has a valid United States social security or national practitioner identification number.

f. For a speech language pathologist:

(1) Must meet one of the following educational requirements:

(a) Has graduated with a master's degree from a speech language pathology program that is accredited by an organization recognized by the United States department of

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education and operated by a college or university accredited by a regional or national accrediting organization recognized by the board.

(b) Has graduated from a speech language pathology program that is housed in an institution of higher education outside of the United States for which the program and institution have been approved by the authorized accrediting body in the

applicable country and the degree program has been verified by an independent credentials review agency to be comparable to a state licensing board-approved program.

(2) Has completed a supervised clinical practicum experience from an educational institution or its cooperating programs as required by the commission.

(3) Has completed a supervised postgraduate professional experience as required by the commission.

(4) Has successfully passed a national examination approved by the commission.

(5) Holds an active, unencumbered license.

(6) Has not been convicted or found guilty, and has not entered into an agreed disposition, of a felony related to the practice of speech language pathology, under applicable state or federal criminal law.

(7) Has a valid United States social security or national practitioner identification number.

g. The privilege to practice is derived from the home state license.

h. An audiologist or speech language pathologist practicing in a member state must comply with the state practice laws of the state in which the client is located at the time service is provided. The practice of audiology and speech language pathology shall include all audiology and speech language pathology practice as defined by the state practice laws of the member state in which the client is located. The practice of audiology and speech language pathology in a member state under a privilege to practice shall subject an audiologist or speech

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language pathologist to the jurisdiction of the licensing board and the courts and the laws of the member state in which the client is located at the time service is provided.

i. Individuals not residing in a member state shall continue to be able to apply for a member state's single-state license as provided under the laws of each member state. However, the single-state license granted to these individuals shall not be recognized as granting the privilege to practice audiology or speech language pathology in any other member state. Nothing in this compact shall affect the requirements established by a member state for the issuance of a single-state license.

j. Member states may charge a fee for granting a compact privilege.

k. Member states must comply with the bylaws and rules and regulations of the commission.

4. *Compact privilege.*

a. To exercise the compact privilege under the terms and provisions of the compact, the audiologist or speech language pathologist shall do all of the following:

(1) Hold an active license in the home state.

(2) Have no encumbrance on any state license.

(3) Be eligible for a compact privilege in any member state in accordance with subsection 3.

(4) Have not had any adverse action against any license or compact privilege within the previous two years from date of application.

(5) Notify the commission that the licensee is seeking the compact privilege within a remote state.

(6) Pay any applicable fees, including any state fee, for the compact privilege.

(7) Report to the commission adverse action taken by any nonmember state within thirty days from the date the adverse action is taken.

b. For the purposes of the compact privilege, an audiologist or speech language pathologist shall only hold one home state

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license at a time.

c. Except as provided in subsection 6, if an audiologist or speech language pathologist changes primary state of residence by moving between two member states, the audiologist or speech language pathologist must apply for licensure in the new home state, and the license issued by the prior home state shall be deactivated in accordance with applicable rules adopted by the commission.

d. The audiologist or speech language pathologist may apply for licensure in advance of a change in the primary state of residence.

e. A license shall not be issued by the new home state until the audiologist or speech language pathologist provides satisfactory evidence of a change in the primary state of residence to the new home state and satisfies all applicable requirements to obtain a license from the new home state.

f. If an audiologist or speech language pathologist changes the primary state of residence by moving from a member state to a nonmember state, the license issued by the prior home state shall convert to a single-state license, valid only in the former home state.

g. The compact privilege is valid until the expiration date of the home state license. The licensee must comply with the requirements of subsection 4, paragraph *"a"*, to maintain the compact privilege in the remote state.

h. A licensee providing audiology or speech language pathology services in a remote state under the compact privilege shall function within the laws and regulations of the remote state.

i. A licensee providing audiology or speech language pathology services in a remote state is subject to that state's regulatory authority. A remote state may, in accordance with due process and that state's laws, remove a licensee's compact privilege in the remote state for a specific period of time, impose fines, or take any other necessary actions to protect

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the health and safety of its citizens.

j. If a home state license is encumbered, the licensee shall lose the compact privilege in any remote state until both of the following occur:

(1) The home state license is no longer encumbered.

(2) Two years have elapsed from the date of the adverse action.

k. Once an encumbered license in the home state is restored to good standing, the licensee must meet the requirements of subsection 4, paragraph *"a"*, to obtain a compact privilege in any remote state.

l. Once the requirements of subsection 4, paragraph *"j"*, have been met, the licensee must meet the requirements in subsection 4, paragraph *"a"*, to obtain a compact privilege in a remote state.

5. *Compact privilege to practice telehealth.*

a. Member states shall recognize the right of an audiologist or speech language pathologist, licensed by a home state in accordance with subsection 3 and under rules promulgated by the commission, to practice audiology or speech language pathology in any member state via telehealth under a privilege to practice as provided in the compact and rules promulgated by the commission.

b. A licensee providing audiology or speech language pathology services in a remote state under the compact privilege shall function within the laws and regulations of the state where the patient or client is located.

6. *Active duty military personnel or their spouses.*

Active duty military personnel, or their spouse, shall designate a home state where the individual has a current license in good standing. The individual may retain the home state designation during the period the service member is on active duty. Subsequent to designating a home state, the individual shall only change their home state through application for licensure in the new state.

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7. *Adverse actions.*

a. In addition to the other powers conferred by state law, a remote state shall have the authority, in accordance with existing state due process law, to do all of the following:

(1) Take adverse action against an audiologist's or speech language pathologist's privilege to practice within that member state.

(2) Issue subpoenas for both hearings and investigations that require the attendance and testimony of witnesses as well

as the production of evidence. Subpoenas issued by a licensing board in a member state for the attendance and testimony of witnesses or the production of evidence from another member state shall be enforced in the latter state by any court of competent jurisdiction, according to the practice and procedure of that court applicable to subpoenas issued in proceedings pending before it. The issuing authority shall pay any witness fees, travel expenses, mileage, and other fees required by the service statutes of the state in which the witnesses or evidence are located.

(3) Only the home state shall have the power to take adverse action against an audiologist's or speech language pathologist's license issued by the home state.

b. For purposes of taking adverse action, the home state shall give the same priority and effect to reported conduct received from a member state as it would if the conduct had occurred within the home state. In so doing, the home state shall apply its own state laws to determine appropriate action.

c. The home state shall complete any pending investigations of an audiologist or speech language pathologist who changes primary state of residence during the course of the investigations. The home state shall also have the authority to take appropriate action and shall promptly report the conclusions of the investigations to the administrator of the data system. The administrator of the data system shall promptly notify the new home state of any adverse actions.

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d. If otherwise permitted by state law, the member state may recover from the affected audiologist or speech language pathologist the costs of investigations and disposition of cases resulting from any adverse action taken against that audiologist or speech language pathologist.

e. The member state may take adverse action based on the factual findings of the remote state, provided that the member state follows the member state's own procedures for taking the adverse action.

f. Joint investigations.

(1) In addition to the authority granted to a member state by its respective audiology or speech language pathology practice act or other applicable state law, any member state may participate with other member states in joint investigations of licensees.

(2) Member states shall share any investigative, litigation, or compliance materials in furtherance of any joint or individual investigation initiated under the compact.

g. If adverse action is taken by the home state against an audiologist's or speech language pathologist's license, the audiologist's or speech language pathologist's privilege to practice in all other member states shall be deactivated until all encumbrances have been removed from the home state license.

All home state disciplinary orders that impose adverse action against an audiologist's or speech language pathologist's license shall include a statement that the audiologist's or speech language pathologist's privilege to practice is deactivated in all member states during the pendency of the order.

h. If a member state takes adverse action, it shall promptly notify the administrator of the data system. The administrator of the data system shall promptly notify the home state of any adverse actions by remote states.

i. Nothing in this compact shall override a member state's decision that participation in an alternative program may be

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used in lieu of adverse action.

8. *Establishment of the audiology and speech language pathology compact commission.*

a. The compact member states hereby create and establish a joint public agency known as the audiology and speech language pathology compact commission.

(1) The commission is an instrumentality of the compact states.

(2) Venue is proper and judicial proceedings by or against the commission shall be brought solely and exclusively in a court of competent jurisdiction where the principal office of the commission is located. The commission may waive venue and jurisdictional defenses to the extent it adopts or consents to participate in alternative dispute resolution proceedings.

(3) Nothing in this compact shall be construed to be a waiver of sovereign immunity.

b. Membership, voting, and meetings.

(1) Each member state shall have two delegates selected by that member state's licensing board. The delegates shall be current members of the licensing board. One shall be an audiologist and one shall be a speech language pathologist.

(2) An additional five delegates, who are either a public member or board administrator from a state licensing board, shall be chosen by the executive committee from a pool of nominees provided by the commission at large.

(3) Any delegate may be removed or suspended from office as provided by the law of the state from which the delegate is appointed.

(4) The member state board shall fill any vacancy occurring on the commission within ninety days of a vacancy.

(5) Each delegate shall be entitled to one vote with regard to the promulgation of rules and creation of bylaws and shall otherwise have an opportunity to participate in the business and affairs of the commission.

(6) A delegate shall vote in person or by other means as

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provided in the bylaws. The bylaws may provide for delegates' participation in meetings by telephone or other means of communication.

(7) The commission shall meet at least once during each calendar year. Additional meetings shall be held as set forth in the bylaws.

c. The commission shall have the following powers and duties:

(1) Establish the fiscal year of the commission.

(2) Establish bylaws.

(3) Establish a code of ethics.

(4) Maintain its financial records in accordance with the bylaws.

(5) Meet and take actions as are consistent with the provisions of this compact and the bylaws.

(6) Promulgate uniform rules to facilitate and coordinate implementation and administration of this compact. The rules shall have the force and effect of law and shall be binding in all member states to the extent and in the manner provided for in the compact.

(7) Bring and prosecute legal proceedings or actions in the name of the commission, provided that the standing of any state audiology or speech language pathology licensing board to sue or be sued under applicable law shall not be affected.

(8) Purchase and maintain insurance and bonds.

(9) Borrow, accept, or contract for services of personnel, including but not limited to employees of a member state.

(10) Hire employees, elect or appoint officers, fix compensation, define duties, grant individuals appropriate authority to carry out the purposes of the compact, and establish the commission's personnel policies and programs relating to conflicts of interest, qualifications of personnel, and other related personnel matters.

(11) Accept any and all appropriate donations and grants of money, equipment, supplies, materials, and services, and

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receive, utilize and dispose of the same; provided that at all times the commission shall avoid any appearance of impropriety or conflict of interest.

(12) Lease, purchase, accept appropriate gifts or donations of, or otherwise own, hold, improve, or use, any property, real, personal, or mixed; provided that at all times the commission shall avoid any appearance of impropriety.

(13) Sell, convey, mortgage, pledge, lease, exchange, abandon, or otherwise dispose of any property real, personal, or mixed.

(14) Establish a budget and make expenditures.

(15) Borrow money.

(16) Appoint committees, including standing committees composed of members, and other interested persons as may be designated in this compact and the bylaws.

(17) Provide and receive information from, and cooperate with, law enforcement agencies.

(18) Establish and elect an executive committee.

(19) Perform other functions as may be necessary or appropriate to achieve the purposes of this compact consistent with the state regulation of audiology and speech language pathology licensure and practice.

d. The commission shall have no authority to change or modify the laws of the member states which define the practice of audiology and speech language pathology in the respective states.

e. The executive committee. The executive committee shall have the power to act on behalf of the commission according to the terms of this compact.

(1) The executive committee shall be composed of ten members:

(a) Seven voting members who are elected by the commission from the current membership of the commission.

(b) Two ex officio members, consisting of one nonvoting member from a recognized national audiology professional

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association and one nonvoting member from a recognized national speech language pathology association.

(c) One ex officio, nonvoting member from the recognized membership organization of the audiology and speech language pathology licensing boards.

(d) The ex officio members shall be selected by their respective organizations.

(2) The commission may remove any member of the executive committee as provided in the bylaws.

(3) The executive committee shall meet at least annually.

(4) The executive committee shall have the following duties and responsibilities:

(a) Recommend to the entire commission changes to the rules or bylaws, changes to this compact, fees paid by compact member states such as annual dues, and any commission compact fee charged to licensees for the compact privilege.

(b) Ensure compact administration services are appropriately provided, contractual or otherwise.

(c) Prepare and recommend the budget.

(d) Maintain financial records on behalf of the commission.

(e) Monitor compact compliance of member states and provide compliance reports to the commission.

(f) Establish additional committees as necessary.

(g) Other duties as provided in rules or bylaws.

(5) *Meetings of the commission.*

All meetings shall be open to the public, and public notice

of meetings shall be given in the same manner as required under the rulemaking provisions in subsection 10.

(6) (a) The commission or the executive committee or other committees of the commission may convene in a closed, nonpublic meeting if the commission or executive committee or other committees of the commission must discuss any of the following:

(i) Noncompliance of a member state with its obligations under the compact.

(ii) The employment, compensation, discipline, or other

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matters, practices, or procedures related to specific employees or other matters related to the commission's internal personnel practices and procedures.

(iii) Current, threatened, or reasonably anticipated litigation.

(iv) Negotiation of contracts for the purchase, lease, or sale of goods, services, or real estate.

(v) Accusing any person of a crime or formally censuring any person.

(vi) Disclosure of trade secrets or commercial or financial information that is privileged or confidential.

(vii) Disclosure of information of a personal nature where disclosure would constitute a clearly unwarranted invasion of personal privacy.

(viii) Disclosure of investigative records compiled for law enforcement purposes.

(ix) Disclosure of information related to any investigative reports prepared by or on behalf of or for use of the commission or other committee charged with responsibility of investigation or determination of compliance issues pursuant to the compact.

(x) Matters specifically exempted from disclosure by federal or member state statute.

(b) If a meeting, or portion of a meeting, is closed pursuant to this provision, the commission's legal counsel or designee shall certify that the meeting may be closed and shall reference each relevant exempting provision.

(7) The commission shall keep minutes that fully and clearly describe all matters discussed in a meeting and shall provide a full and accurate summary of actions taken, and the reasons therefor, including a description of the views expressed. All documents considered in connection with an action shall be identified in such minutes. All minutes and documents of a closed meeting shall remain under seal, subject to release by a majority vote of the commission or order of a court of

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competent jurisdiction.

(8) *Financing the commission.*

(a) The commission shall pay, or provide for the payment of, the reasonable expenses of its establishment, organization, and ongoing activities.

(b) The commission may accept any and all appropriate revenue sources, donations, and grants of money, equipment, supplies, materials, and services.

(c) The commission may levy on and collect an annual assessment from each member state or impose fees on other parties to cover the cost of the operations and activities of the commission and its staff, which must be in a total amount sufficient to cover its annual budget as approved each year for which revenue is not provided by other sources. The aggregate annual assessment amount shall be allocated based upon a formula to be determined by the commission, which shall promulgate a rule binding upon all member states.

(d) The commission shall not incur obligations of any kind prior to securing the funds adequate to meet the same; nor shall the commission pledge the credit of any of the member states, except by and with the authority of the member state.

(e) The commission shall keep accurate accounts of all receipts and disbursements. The receipts and disbursements of the commission shall be subject to the audit and accounting procedures established under its bylaws. However, all receipts and disbursements of funds handled by the commission shall be audited yearly by a certified or licensed public accountant, and the report of the audit shall be included in and become part of the annual report of the commission.

f. Qualified immunity, defense, and indemnification.

(1) The members, officers, executive director, employees, and representatives of the commission shall be immune from suit and liability, either personally or in their official capacity, for any claim for damage to or loss of property or personal injury or other civil liability caused by or arising

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out of any actual or alleged act, error, or omission that occurred, or that the person against whom the claim is made had a reasonable basis for believing occurred within the scope of commission employment, duties, or responsibilities; provided that nothing in this paragraph *"f"* shall be construed to protect any person from suit or liability for any damage, loss, injury, or liability caused by the intentional, willful, or wanton misconduct of that person.

(2) The commission shall defend any member, officer, executive director, employee, or representative of the commission in any civil action seeking to impose liability arising out of any actual or alleged act, error, or omission that occurred within the scope of commission employment, duties, or responsibilities, or that the person against whom the claim is made had a reasonable basis for believing occurred within the scope of commission employment, duties,

or responsibilities; provided that nothing herein shall be construed to prohibit that person from retaining the person's own counsel; and provided further, that the actual or alleged act, error, or omission did not result from that person's intentional, willful, or wanton misconduct.

(3) The commission shall indemnify and hold harmless any member, officer, executive director, employee, or representative of the commission for the amount of any settlement or judgment obtained against that person arising out of any actual or alleged act, error, or omission that occurred within the scope of commission employment, duties, or responsibilities, or that such person had a reasonable basis for believing occurred within the scope of commission employment, duties, or responsibilities, provided that the actual or alleged act, error, or omission did not result from the intentional, willful, or wanton misconduct of that person.

9. *Data system*.

a. The commission shall provide for the development, maintenance, and utilization of a coordinated database and

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reporting system containing licensure, adverse action, and investigative information on all licensed individuals in member states.

b. Notwithstanding any other provision of state law to the contrary, a member state shall submit a uniform data set to the data system on all individuals to whom this compact is applicable as required by the rules of the commission, including all of the following:

(1) Identifying information.

(2) Licensure data.

(3) Adverse actions against a license or compact privilege.

(4) Nonconfidential information related to alternative program participation.

(5) Any denial of application for licensure, and the reason for denial.

(6) Other information that may facilitate the administration of this compact, as determined by the rules of the commission.

c. Investigative information pertaining to a licensee in any member state shall only be available to other member states.

d. The commission shall promptly notify all member states of any adverse action taken against a licensee or an individual applying for a license. Adverse action information pertaining to a licensee in any member state shall be available to any other member state.

e. Member states contributing information to the data system may designate information that may not be shared with the public without the express permission of the contributing state.

f. Any information submitted to the data system that is

subsequently required to be expunged by the laws of the member state contributing the information shall be removed from the data system.

10. *Rulemaking.*

a. The commission shall exercise its rulemaking powers

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pursuant to the criteria set forth in this subsection and the rules adopted thereunder. Rules and amendments shall become binding as of the date specified in each rule or amendment.

b. If a majority of the legislatures of the member states rejects a rule, by enactment of a statute or resolution in the same manner used to adopt the compact within four years of the date of adoption of the rule, the rule shall have no further force and effect in any member state.

c. Rules or amendments to the rules shall be adopted at a regular or special meeting of the commission.

d. Prior to promulgation and adoption of a final rule or rules by the commission, and at least thirty days in advance of the meeting at which the rule shall be considered and voted upon, the commission shall file a notice of proposed rulemaking in all of the following locations:

(1) On the internet site of the commission or other publicly accessible platform.

(2) On the internet site of each member state audiology or speech language pathology licensing board or other publicly accessible platform or the publication in which each state would otherwise publish proposed rules.

e. A notice of proposed rulemaking shall include all of the following:

(1) The proposed time, date, and location of the meeting in which the rule shall be considered and voted upon.

(2) The text of the proposed rule or amendment and the reason for the proposed rule.

(3) A request for comments on the proposed rule from any interested person.

(4) The manner in which interested persons may submit notice to the commission of their intention to attend the public hearing and any written comments.

f. Prior to the adoption of a proposed rule, the commission shall allow persons to submit written data, facts, opinions, and arguments, which shall be made available to the public.

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g. The commission shall grant an opportunity for a public hearing before it adopts a rule or amendment if a hearing is requested by any of the following:

(1) At least twenty-five persons.

(2) A state or federal governmental subdivision or agency.

(3) An association having at least twenty-five members.

h. If a hearing is held on the proposed rule or amendment, the commission shall publish the place, time, and date of the scheduled public hearing. If the hearing is held via electronic means, the commission shall publish the mechanism for access to the electronic hearing.

(1) All persons wishing to be heard at the hearing shall notify the executive director of the commission or other designated member in writing of their desire to appear and testify at the hearing not less than five business days before the scheduled date of the hearing.

(2) Hearings shall be conducted in a manner providing each person who wishes to comment a fair and reasonable opportunity to comment orally or in writing.

(3) All hearings shall be recorded. A copy of the recording shall be made available on request.

(4) Nothing in this paragraph *"h"* shall be construed as requiring a separate hearing on each rule. Rules may be grouped for the convenience of the commission at hearings required by this paragraph *"h"*.

i. Following the scheduled hearing date, or by the close of business on the scheduled hearing date if the hearing was not held, the commission shall consider all written and oral comments received.

j. If no written notice of intent to attend the public hearing by interested parties is received, the commission may proceed with promulgation of the proposed rule without a public hearing.

k. The commission shall, by majority vote of all members, take final action on the proposed rule and shall determine the

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effective date of the rule, if any, based on the rulemaking record and the full text of the rule.

l. Upon determination that an emergency exists, the commission may consider and adopt an emergency rule without prior notice, opportunity for comment, or hearing, provided that the usual rulemaking procedures provided in the compact and in this section shall be retroactively applied to the rule as soon as reasonably possible, in no event later than ninety days after the effective date of the rule. For the purposes of this provision, an emergency rule is one that must be adopted immediately in order to do any of the following:

(1) Meet an imminent threat to public health, safety, or welfare.

(2) Prevent a loss of commission or member state funds.

(3) Meet a deadline for the promulgation of an administrative rule that is established by federal law or rule.

m. The commission or an authorized committee of the commission may direct revisions to a previously adopted rule or amendment for purposes of correcting typographical errors, errors in format, errors in consistency, or grammatical

errors. Public notice of any revisions shall be posted on the internet site of the commission. The revision shall be subject to challenge by any person for a period of thirty days after posting. The revision may be challenged only on grounds that the revision results in a material change to a rule. A challenge shall be made in writing and delivered to the chair of the commission prior to the end of the notice period. If no challenge is made, the revision shall take effect without further action. If the revision is challenged, the revision may not take effect without the approval of the commission.

11. *Oversight, dispute resolution, and enforcement.*

a. Dispute resolution.

(1) Upon request by a member state, the commission shall attempt to resolve disputes related to the compact that arise among member states and between member and nonmember states.

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(2) The commission shall promulgate a rule providing for both mediation and binding dispute resolution for disputes as appropriate.

b. Enforcement.

(1) The commission, in the reasonable exercise of its discretion, shall enforce the provisions and rules of this compact.

(2) By majority vote, the commission may initiate legal action in the United States district court for the District of Columbia or the federal district where the commission has its principal offices against a member state in default to enforce compliance with the provisions of the compact and its promulgated rules and bylaws. The relief sought may include both injunctive relief and damages. In the event judicial enforcement is necessary, the prevailing member shall be awarded all costs of litigation, including reasonable attorney fees.

(3) The remedies herein shall not be the exclusive remedies of the commission. The commission may pursue any other remedies available under federal or state law.

12. *Date of implementation of the interstate commission for audiology and speech language pathology practice and associated rules, withdrawal, and amendment.*

a. The compact shall come into effect on the date on which the compact statute is enacted into law in the tenth member state. The provisions, which become effective at that time, shall be limited to the powers granted to the commission relating to assembly and the promulgation of rules. Thereafter, the commission shall meet and exercise rulemaking powers necessary to the implementation and administration of the compact.

b. Any state that joins the compact subsequent to the

commission's initial adoption of the rules shall be subject to the rules as they exist on the date on which the compact becomes law in that state. Any rule that has been previously

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adopted by the commission shall have the full force and effect of law on the day the compact becomes law in that state.

c. A member state may withdraw from this compact by enacting a statute repealing the same.

(1) A member state's withdrawal shall not take effect until six months after enactment of the repealing statute.

(2) Withdrawal shall not affect the continuing requirement of the withdrawing state's audiology or speech language pathology licensing board to comply with the investigative and adverse action reporting requirements of this compact prior to the effective date of withdrawal.

d. Nothing contained in this compact shall be construed to invalidate or prevent any audiology or speech language pathology licensure agreement or other cooperative arrangement between a member state and a nonmember state that does not conflict with the provisions of this compact.

e. This compact may be amended by the member states. No amendment to this compact shall become effective and binding upon any member state until it is enacted into the laws of all member states.

13. *Construction and severability.*

This compact shall be liberally construed so as to effectuate the purposes thereof. The provisions of this compact shall be severable, and if any phrase, clause, sentence, or provision of this compact is declared to be contrary to the constitution of any member state or of the United States or the applicability thereof to any government, agency, person, or circumstance is held invalid, the validity of the remainder of this compact and the applicability thereof to any government, agency, person, or circumstance shall not be affected thereby. If this compact shall be held contrary to the constitution of any member state, the compact shall remain in full force and effect as to the remaining member states and in full force and effect as to the member state affected as to all severable matters.

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14. *Binding effect of compact and other laws.*

a. Nothing herein prevents the enforcement of any other law of a member state that is not inconsistent with the compact.

b. All laws in a member state in conflict with the compact are superseded to the extent of the conflict.

c. All lawful actions of the commission, including all rules and bylaws promulgated by the commission, are binding upon the member states.

d. All agreements between the commission and the member states are binding in accordance with their terms.

e. In the event any provision of the compact exceeds the constitutional limits imposed on the legislature of any member state, the provision shall be ineffective to the extent of the conflict with the constitutional provision in question in that member state.>

2. Title page, line 1, after <compact> by inserting <and the audiology and speech language pathology interstate compact>

3. By renumbering as necessary.

S–5032

Amend Senate File 2255 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 135.61, subsection 18, Code 2022, is amended to read as follows:

18. *"New institutional health service"* or *"changed institutional health service"* means any of the following:

a. (1) The construction, development, or other establishment of a new institutional health facility other than a nursing facility regardless of ownership if the building or structure of the new institutional health facility has an interior floor space of forty thousand square feet or more.

(2) The construction, development, or other establishment of a nursing facility regardless of ownership.

b. Relocation of ~~an institutional health~~ a nursing facility.

c. Any capital expenditure, lease, or donation by or on behalf of ~~an institutional health~~ a nursing facility in excess of one million five hundred thousand dollars within a twelve-month period.

d. A permanent change in the bed capacity, as determined by the department, of ~~an institutional health~~ a nursing facility. For purposes of this paragraph, a change is permanent if it is intended to be effective for one year or more.

e. Any expenditure in excess of five hundred thousand dollars by or on behalf of ~~an institutional health~~ a nursing facility for health services which are or will be offered in or through ~~an institutional health~~ a nursing facility at a specific time but which were not offered on a regular basis in or through that ~~institutional health~~ nursing facility within the twelve-month period prior to that time.

f. The deletion of one or more health services, previously offered on a regular basis by ~~an institutional health~~ a nursing facility ~~or health maintenance organization~~ or the relocation of one or more health services from one physical facility to another.

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g. Any acquisition by or on behalf of a health care provider or a group of health care providers of any piece of replacement equipment with a value in excess of ~~one~~ ten million ~~five hundred thousand~~ dollars, whether acquired by purchase, lease, or donation.

h. Any acquisition by or on behalf of a health care provider or group of health care providers of any piece of equipment with a value in excess of ~~one~~ ten million ~~five hundred thousand~~ dollars, whether acquired by purchase, lease, or donation, which results in the offering or development of a health service not previously provided. A mobile service provided on a contract basis is not considered to have been previously provided by a health care provider or group of health care providers.

i. (1) Any acquisition by or on behalf of an institutional health facility, other than a nursing facility, or a health maintenance organization of any piece of replacement equipment with a value in excess of ~~one~~ ten million ~~five hundred thousand~~ dollars, whether acquired by purchase, lease, or donation.

(2) Any acquisition by or on behalf of a nursing facility of any piece of replacement equipment with a value in excess of one million five hundred thousand dollars, whether acquired by purchase, lease, or donation.

j. (1) Any acquisition by or on behalf of an institutional health facility, other than a nursing facility, or health maintenance organization of any piece of equipment with a value in excess of ~~one~~ ten million ~~five hundred thousand~~ dollars, whether acquired by purchase, lease, or donation, which results in the offering or development of a health service not previously provided. A mobile service provided on a contract basis is not considered to have been previously provided by an institutional health facility.

(2) Any acquisition by or on behalf of a nursing facility of any piece of equipment with a value in excess of one million five hundred thousand dollars, whether acquired by

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purchase, lease, or donation, which results in the offering or development of a health service not previously provided.

k. Any air transportation service for transportation of patients or medical personnel in excess of ten million dollars offered through an institutional health facility at a specific time but which was not offered on a regular basis in or through that institutional health facility within the twelve-month period prior to the specific time.

l. Any mobile health service with a value in excess of ~~one~~ ten million ~~five hundred thousand~~ dollars.

m. Any of the following with a value in excess of ten million dollars:

(1) Cardiac catheterization service.
(2) Open heart surgical service.
(3) Organ transplantation service.
(4) Radiation therapy service applying ionizing radiation for the treatment of malignant disease using megavoltage external beam equipment.

Sec. 2. Section 135.61, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 18A. *"Nursing facility"* means the same as defined in section 135C.1.

Sec. 3. Section 135.63, Code 2022, is amended to read as follows:

135.63 Certificate of need required —— exclusions.

1. A new institutional health service or changed institutional health service shall not be offered or developed in this state without prior application to the department for and receipt of a certificate of need, pursuant to this subchapter. The application shall be made upon forms furnished or prescribed by the department and shall contain such information as the department may require under this subchapter. The application shall be accompanied by a fee equivalent to three-tenths of one percent of the anticipated cost of the project with a minimum fee of six hundred dollars

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and a maximum fee of twenty-one thousand dollars. The fee shall be remitted by the department to the treasurer of state, who shall place it in the general fund of the state. If an application is voluntarily withdrawn within thirty calendar days after submission, seventy-five percent of the application fee shall be refunded; if the application is voluntarily withdrawn more than thirty but within sixty days after submission, fifty percent of the application fee shall be refunded; if the application is withdrawn voluntarily more than sixty days after submission, twenty-five percent of the application fee shall be refunded. Notwithstanding the required payment of an application fee under this subsection, an applicant for a new institutional health service or a changed institutional health service offered or developed by an intermediate care facility for persons with an intellectual disability or an intermediate care facility for persons with mental illness as defined pursuant to section 135C.1 is exempt from payment of the application fee.

2. This subchapter shall not be construed to augment, limit, contravene, or repeal in any manner any other statute of this state which may authorize or relate to licensure, regulation, supervision, or control of, nor to be applicable to:

~~a. Private offices and private clinics of an individual physician, dentist, or other practitioner or group of health care providers, except as provided by section 135.61, subsection 18, paragraphs *"g"*, *"h"*, and *"m"*, and section 135.61,~~

~~subsections 20 and 21.~~

~~*b.* Dispensaries and first aid stations, located within schools, businesses, or industrial establishments, which are maintained solely for the use of students or employees of those establishments and which do not contain inpatient or resident beds that are customarily occupied by the same individual for more than twenty-four consecutive hours.~~

~~*c.* Establishments such as motels, hotels, and boarding houses which provide medical, nursing personnel, and other~~

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~~health related services as an incident to their primary business or function.~~

~~*d.*~~ *a.* The remedial care or treatment of residents or patients in any home or institution conducted only for those who rely solely upon treatment by prayer or spiritual means in accordance with the creed or tenets of any recognized church or religious denomination.

~~*e.* A health maintenance organization or combination of health maintenance organizations or an institutional health facility controlled directly or indirectly by a health maintenance organization or combination of health maintenance organizations, except when the health maintenance organization or combination of health maintenance organizations does any of the following:~~

~~(1) Constructs, develops, renovates, relocates, or otherwise establishes an institutional health facility.~~

~~(2) Acquires major medical equipment as provided by section 135.61, subsection 18, paragraphs *"i"* and *"j"*.~~

~~*f.*~~ *b.* A residential care facility, as defined in section 135C.1, including a residential care facility for persons with an intellectual disability, notwithstanding any provision in this subchapter to the contrary.

~~*g.* (1)~~ *c.* A reduction in bed capacity of an institutional health facility, notwithstanding any provision in this subchapter to the contrary, if all of the following conditions exist:

~~(a)~~ (1) The institutional health facility reports to the department the number and type of beds reduced on a form prescribed by the department at least thirty days before the reduction. In the case of a health care facility, the new bed total must be consistent with the number of licensed beds at the facility. In the case of a hospital, the number of beds must be consistent with bed totals reported to the department of inspections and appeals for purposes of licensure and certification.

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~~(b)~~ (2) The institutional health facility reports the new bed total on its next annual report to the department.

~~(2) If these conditions are not met, the institutional health facility is subject to review as a "new institutional health service" or "changed institutional health service" under section 135.61, subsection 18, paragraph "d", and subject to sanctions under section 135.73. If the institutional health facility reestablishes the deleted beds at a later time, review as a "new institutional health service" or "changed institutional health service" is required pursuant to section 135.61, subsection 18, paragraph "d".~~

~~h. (1)~~ *d.* The deletion of one or more health services, previously offered on a regular basis by an institutional health facility or health maintenance organization, notwithstanding any provision of this subchapter to the contrary, if all of the following conditions exist:

~~(a)~~ (1) The institutional health facility or health maintenance organization reports to the department the deletion of the service or services at least thirty days before the deletion on a form prescribed by the department.

~~(b)~~ (2) The institutional health facility or health maintenance organization reports the deletion of the service or services on its next annual report to the department.

~~(2) If these conditions are not met, the institutional health facility or health maintenance organization is subject to review as a "new institutional health service" or "changed institutional health service" under section 135.61, subsection 18, paragraph "f", and subject to sanctions under section 135.73.~~

~~(3) If the institutional health facility or health maintenance organization reestablishes the deleted service or services at a later time, review as a "new institutional health service" or "changed institutional health service" may be required pursuant to section 135.61, subsection 18.~~

~~i.~~ *e.* A residential program exempt from licensing as a

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health care facility under chapter 135C in accordance with section 135C.6, subsection 8.

~~j.~~ *f.* The construction, modification, or replacement of nonpatient care services, including parking facilities, heating, ventilation and air conditioning systems, computers, telephone systems, medical office buildings, and other projects of a similar nature, notwithstanding any provision in this subchapter to the contrary.

~~k. (1)~~ *g.* The redistribution of beds by a hospital within the acute care category of bed usage, notwithstanding any provision in this subchapter to the contrary, if all of the following conditions exist:

~~(a)~~ (1) The hospital reports to the department the number and type of beds to be redistributed on a form prescribed by the department at least thirty days before the redistribution.

~~(b)~~ (2) The hospital reports the new distribution of beds

on its next annual report to the department.

~~(2) If these conditions are not met, the redistribution of beds by the hospital is subject to review as a new institutional health service or changed institutional health service pursuant to section 135.61, subsection 18, paragraph "d", and is subject to sanctions under section 135.73.~~

~~*l.*~~ *h.* The replacement or modernization of any institutional health facility if the replacement or modernization does not add new health services or additional bed capacity for existing health services, notwithstanding any provision in this subchapter to the contrary. With respect to a nursing facility, *"replacement"* means establishing a new facility within the same county as the prior facility to be closed. With reference to a hospital, *"replacement"* means establishing a new hospital that demonstrates compliance with all of the following criteria through evidence submitted to the department:

(1) Is designated as a critical access hospital pursuant to 42 U.S.C. §1395i-4.

(2) Serves at least seventy-five percent of the same service

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area that was served by the prior hospital to be closed and replaced by the new hospital.

(3) Provides at least seventy-five percent of the same services that were provided by the prior hospital to be closed and replaced by the new hospital.

(4) Is staffed by at least seventy-five percent of the same staff, including medical staff, contracted staff, and employees, as constituted the staff of the prior hospital to be closed and replaced by the new hospital.

~~*m.*~~ *i.* Hemodialysis services provided by a hospital or freestanding facility, notwithstanding any provision in this subchapter to the contrary.

~~*n.*~~ *j.* Hospice services provided by a hospital, notwithstanding any provision in this subchapter to the contrary.

~~*o.*~~ *k.* The change in ownership, licensure, organizational structure, or designation of the type of institutional health facility if the health services offered by the successor institutional health facility are unchanged. This exclusion is applicable only if the institutional health facility consents to the change in ownership, licensure, organizational structure, or designation of the type of institutional health facility and ceases offering the health services simultaneously with the initiation of the offering of health services by the successor institutional health facility.

~~*p.*~~ *l.* The conversion of an existing number of beds by an intermediate care facility for persons with an intellectual disability to a smaller facility environment, including but not limited to a community-based environment which does not result in an increased number of beds, notwithstanding any provision

in this subchapter to the contrary, including subsection 4, if all of the following conditions exist:

(1) The intermediate care facility for persons with an intellectual disability reports the number and type of beds to be converted on a form prescribed by the department at least

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thirty days before the conversion.

(2) The intermediate care facility for persons with an intellectual disability reports the conversion of beds on its next annual report to the department.

~~3. This subchapter shall not be construed to be applicable to a health care facility operated by and for the exclusive use of members of a religious order, which does not admit more than two individuals to the facility from the general public, and which was in operation prior to July 1, 1986. However, this subchapter is applicable to such a facility if the facility is involved in the offering or developing of a new or changed institutional health service on or after July 1, 1986.~~

~~4.~~ 3. A copy of the application shall be sent to the department of human services at the time the application is submitted to the ~~Iowa~~ department of public health.

4. The department shall not process applications for and the council shall not consider a new or changed institutional health service for an intermediate care facility for persons with an intellectual disability unless both of the following conditions are met:

a. The new or changed beds shall not result in an increase in the total number of medical assistance certified intermediate care facility beds for persons with an intellectual disability in the state, exclusive of those beds at the state resource centers or other state institutions, beyond one thousand six hundred thirty-six beds.

b. A letter of support for the application is provided by the county board of supervisors, or the board's designee, in the county in which the beds would be located.

Sec. 4. Section 135.64, subsection 2, Code 2022, is amended to read as follows:

2. In addition to the findings required with respect to any of the criteria listed in subsection 1 of this section, the council shall grant a certificate of need for a new institutional health service or changed institutional health

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service only if it finds in writing, on the basis of data submitted to it by the department, that all of the following conditions are met:

a. Less costly, more efficient, or more appropriate alternatives to the proposed institutional health service are not available and the development of such alternatives is not practicable~~;~~.

b. Any existing facilities providing institutional health services similar to those proposed are being used in an appropriate and efficient manner~~;~~.

c. In the case of new construction, alternatives including but not limited to modernization or sharing arrangements have been considered and have been implemented to the maximum extent practicable~~;~~.

d. Patients will experience serious problems in obtaining care of the type which will be furnished by the proposed new institutional health service or changed institutional health service, in the absence of that proposed new service.

Sec. 5. Section 135.67, subsection 1, Code 2022, is amended to read as follows:

1. The department may waive the letter of intent procedures prescribed by section 135.65 and substitute a summary review procedure, which shall be established by rules of the department, when it accepts an application for a certificate of need for a project which meets any of the criteria in paragraphs *"a"* through *"e"*:

a. A project which is limited to repair or replacement of a facility or equipment damaged or destroyed by a disaster, and which will not expand the facility nor increase the services provided beyond the level existing prior to the disaster.

b. A project necessary to enable the facility or service to achieve or maintain compliance with federal, state, or other appropriate licensing, certification, or safety requirements.

c. A project which will not change the existing bed capacity of the nursing facility applicant's facility or service, as

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determined by the department, by more than ten percent or ten beds, whichever is less, over a two-year period.

d. A nursing facility project the total cost of which will not exceed one hundred fifty thousand dollars.

e. Any other project for which the applicant proposes and the department agrees to summary review.

Sec. 6. Section 135B.5A, Code 2022, is amended to read as follows:

135B.5A Conversion of a hospital.

A conversion of a long-term acute care hospital, rehabilitation hospital, or psychiatric hospital as defined by federal regulations to a general hospital or to a specialty hospital of a different type ~~is a permanent change in bed capacity and~~ that results in a building or structure with a floor space of forty thousand square feet or more shall require a certificate of need pursuant to section 135.63.

Sec. 7. Section 135H.6, subsection 1, paragraph d, Code 2022, is amended to read as follows:

d. The applicant has been awarded a certificate of need, if applicable pursuant to chapter 135~~, unless exempt as provided in this section~~.

Sec. 8. ADMINISTRATIVE RULES. The department of public health, in accordance with section 135.72, may adopt rules pursuant to chapter 17A to administer this Act.>

2. Title page, by striking lines 1 and 2 and inserting <An Act relating to the certificate of need process.>

JEFF EDLER

S–5033

Amend Senate File 2309 as follows:

1. Page 1, before line 1 by inserting:

<Section 1. NEW SECTION. **137D.2A Raw milk, raw milk products, and raw milk dairy products.**

A home bakery shall not advertise for sale, offer for sale, sell or otherwise distribute, or use raw milk, a raw milk product, or a raw milk dairy product as provided in section 192.145.

Sec. ___. Section 137F.1, subsection 8, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *o.* (1) The premises of a dairy farm where raw milk is produced, processed, labeled, marketed, or distributed by a milk producer in compliance with section 192.145.

(2) The premises of a dairy farm where a raw milk product or a raw milk dairy product is manufactured, labeled, marketed, or distributed by a milk producer in compliance with section 192.145.

Sec. ___. Section 137F.1, subsection 9, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *d.* (1) The premises of a dairy farm where raw milk is produced, processed, labeled, marketed, or distributed in compliance with section 192.145.

(2) A premises of a dairy farm where a raw milk product or raw milk dairy product is manufactured, labeled, marketed, or distributed in compliance with section 192.145.

Sec. ___. NEW SECTION. **137F.8B Raw milk, raw milk products, and raw milk dairy products.**

A food establishment or farmers market shall not advertise for sale, offer for sale, sell or otherwise distribute, or use raw milk, a raw milk product, or a raw milk dairy product, regardless of whether the food establishment or farmers market is regulated by the department under this chapter or another chapter, another state agency, or a municipality.>

2. Page 1, by striking lines 8 through 10 and inserting:

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<*a.* The production, processing, labeling, marketing, and distribution of raw milk by a milk producer in compliance with section 192.145.>

3. Page 1, by striking lines 11 through 13 and inserting:

<*b.* The manufacture, labeling, marketing, and distribution of a raw milk product or raw milk dairy product by a milk producer in>

4. By striking page 2, line 34, through page 3, line 1, and inserting:

<NEW SUBSECTION. 5A. *Raw milk, raw milk products, and raw milk dairy products.* A container holding raw milk, a raw milk product, or a raw milk dairy product sold by a milk producer shall be labeled as required in>

5. Page 3, by striking line 4 and inserting **<raw milk, raw milk products, and raw milk dairy products.>**

6. Page 3, by striking lines 5 through 10 and inserting:

<1. A milk producer who sells raw milk, a raw milk product, or a raw milk dairy product to an individual in compliance with section 192.145 shall label the container holding the raw milk, raw milk product, or raw milk dairy product. The label shall be permanently affixed to the>

7. Page 3, line 15, by striking <unpasteurized> and inserting <raw>

8. Page 3, line 21, by striking <milk product or> and inserting <raw milk product or raw milk>

9. Page 3, line 24, before <dairy> by inserting <raw milk>

10. Page 3, line 25, by striking <includes raw milk> and inserting <is>

11. Page 4, lines 3 and 4, by striking <sell milk or a milk product> and inserting <distribute raw milk, a raw milk product, or a raw milk dairy product>

12. Page 4, after line 27 by inserting:

<___. *"Milk producer"* means a person who owns or operates a dairy farm where raw milk is produced from one or more cows, sheep, or goats.

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___. *"Raw milk"* means milk that is not pasteurized or graded.

___. *"Raw milk dairy product"* means a dairy product that includes raw milk or a raw milk product.

___. *"Raw milk product"* means a milk product that includes raw milk.>

13. Page 4, line 29, by striking **<and marketing>** and inserting **<marketing, and distribution>**

14. By striking page 4, line 30, through page 5, line 22, and inserting:

<1. A milk producer may elect to process, market, or distribute raw milk produced at that milk producer's dairy farm. To the extent that the milk producer makes this election, all of the following apply:

a. A milk producer must only take an order for the distribution of raw milk at the milk producer's dairy farm where the raw milk was produced. The milk producer must only distribute the raw milk to the individual placing the

order. The milk producer may distribute the raw milk to the individual without charge or on a retail basis. A person shall not resell the raw milk. The milk producer must distribute the raw milk directly to the individual at the dairy farm or to a location specified by the individual. However, a person shall not deliver the raw milk to a place of business where food items are distributed on a retail basis, including but not limited to a home bakery regulated under chapter 137D or a food establishment or farmers market regulated under chapter 137F. The raw milk shall only be used for consumption by the individual, members of the individual's household, and the individual's nonpaying guests or nonpaying employees.

b. If the milk producer sells raw milk in a container, that container shall be labeled as provided in section 191.9A.

2. A milk producer may elect to manufacture, market, or distribute a raw milk product or raw milk dairy product at that milk producer's dairy farm. To the extent that the milk

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producer makes this election, all of the following apply:

a. The raw milk product or raw milk dairy product must only include raw milk produced at the milk producer's dairy farm.

b. A milk producer must only take an order for the distribution of a raw milk product or raw milk dairy product at the milk producer's dairy farm where the raw milk product or raw milk dairy product was manufactured. The milk producer must only distribute the raw milk product or raw milk dairy product to the individual placing the order. The milk producer may distribute the raw milk product or raw milk dairy product to the individual without charge or on a retail basis. A person shall not resell the raw milk product or raw milk dairy product. The milk producer must distribute the raw milk product or raw milk dairy product directly to the individual at the dairy farm or to a location specified by the individual. However, a person shall not deliver the raw milk product or raw milk dairy product to a place of business where food items are distributed on a retail basis, including but not limited to a home bakery regulated under chapter 137D or a food establishment or farmers market regulated under chapter 137F. The raw milk product or raw milk dairy product shall only be distributed for consumption by the individual, members of the individual's household, or the individual's nonpaying guests or nonpaying employees.

c. If the milk producer sells a raw milk product or raw milk dairy product in a container, that container shall be labeled as provided in section 191.9A.

3. This section does not prevent a milk producer from also electing to produce and sell milk under the other applicable provisions of this chapter and related provisions in chapters 190 and 194. This chapter does not apply to a receiving station, transfer station, milk handler, milk grader, or

milk plant. A dairy farm is not a food establishment, food processing plant, or other person regulated under chapter 137F or other chapter regulating such entities.>

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15. Page 5, line 23, by striking <3.> and inserting <4.>
16. Page 5, line 27, after <194.> by inserting <The department shall not adopt rules to administer or enforce this section.>
17. Page 5, line 29, by striking **<and marketing>** and inserting **<marketing, and distribution>**
18. Page 5, by striking lines 31 and 32 and inserting:
<1. The production, processing, marketing, and distribution of raw milk, if the raw milk is produced by a milk producer in>
19. By striking page 5, line 34, through page 6, line 1, and inserting:
<2. The manufacture, marketing, and distribution of a raw milk product or raw milk dairy product, if the raw milk product or raw milk dairy product is manufactured by a milk producer in compliance with section>
20. Title page, line 4, by striking <unpasteurized and ungraded milk and> and inserting <raw milk and associated>
21. By renumbering, redesignating, and correcting internal references as necessary.

JASON SCHULTZ

S–5034

Amend Senate File 2342 as follows:
1. By striking everything after the enacting clause and inserting:
<Section 1. NEW SECTION. **261I.1 Definitions.**
For the purposes of this chapter:
1. *"Educational institution"* means any of the following:
a. A nonpublic school accredited pursuant to section 256.11.
b. A public school district.
c. An institution governed by the state board of regents pursuant to chapter 262.
d. A community college as defined in section 260C.2.
e. Any institution of higher education located in this state that is a member of the national collegiate athletic association, national association of intercollegiate athletics, or national junior college athletic association.
2. *"Organization"* means the same as defined in section 280.13.
3. *"Sex"* means a person's biological sex as either female or male. The sex listed on a student's official birth certificate or certificate issued upon adoption may be relied upon if the certificate was issued at or near the time of the student's birth.

Sec. 2. NEW SECTION. **261I.2 Extracurricular athletics —— eligibility —— cause of action.**

1. *a.* An interscholastic athletic team, sport, or athletic event that is sponsored or sanctioned by an educational institution or organization must be designated as one of the following, based on the sex at birth of the participating students:

(1) Females, women, or girls.

(2) Males, men, or boys.

(3) Coeducational or mixed.

b. Only female students, based on their sex, may participate in any team, sport, or athletic event designated as being for females, women, or girls.

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c. Protections pursuant to chapter 669 or chapter 670 shall not apply to an educational institution or an employee of an educational institution that does not comply with the requirements of this section.

2. *a.* If a student suffers direct or indirect harm as a result of a violation of subsection 1, that student has a private cause of action for injunctive, mandamus, damages, and declaratory relief against the entity that violated subsection 1.

b. If a student is subjected to retaliation or other adverse action by an educational institution or organization as a result of reporting a violation of subsection 1 to an employee or representative of the educational institution, organization, or to a state or federal governmental entity having oversight authority, that student has a private cause of action for injunctive, mandamus, damages, and declaratory relief, against the educational institution or organization. In addition, a governmental entity shall not investigate a complaint or take any adverse action against an educational institution or organization, or any employee of a board of directors of a school district, the authorities in charge of an accredited nonpublic school or nonpublic institution of higher education, the board of directors of a merged area, or the board of regents for compliance with subsection 1.

3. If an educational institution or organization suffers any direct or indirect harm as a result of a violation of subsection 1, that educational institution or organization has a private cause of action for injunctive, mandamus, damages, and declaratory relief against the entity that violated subsection 1.

4. *a.* A governmental entity, educational institution, or organization shall not be liable to any student for complying with subsection 1.

b. A civil action under subsection 2 or 3 must be initiated within two years from the date the alleged harm occurred.

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c. Any party prevailing on a claim brought under subsection 2 or 3 is entitled to reasonable attorney fees and costs.

5. *a.* For any lawsuit brought or any complaint filed against an educational institution or organization, or an employee, a member of the board of directors of a school district, a member of the authorities in charge of a nonpublic school or nonpublic institution of higher education, a member of the board of directors of a merged area, or a member of the board of regents as a result of compliance with subsection 1, the attorney general shall provide legal representation at no cost to that entity or individual.

b. In addition to the expenses of representation, the state shall assume financial responsibility for any other expense related to the lawsuit or complaint and incurred by an educational institution or organization, or an employee, a member of the board of directors of a school district, a member of the authorities in charge of a nonpublic school or nonpublic institution of higher education, a member of the board of directors of a merged area, or a member of the board of regents including any award for attorney fees and costs for which that entity or individual would be otherwise responsible.

Sec. 3. EFFECTIVE DATE. This Act, being deemed of immediate importance, takes effect upon enactment.>

2. Title page, by striking lines 1 through 4 and inserting <An Act relating to student eligibility requirements in school district, accredited nonpublic school, regent institution, community college, and certain other institution of higher education athletics based on sex, and including effective date provisions.>

TIM GOODWIN

S–5035

Amend Senate File 2169 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 147.55, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 7A. Sexual abuse in the fourth degree in violation of section 709.4A.

Sec. 2. Section 692A.102, subsection 1, paragraph c, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (012) Sexual abuse in the fourth degree in violation of section 709.4A.

Sec. 3. NEW SECTION. **709.4A Sexual abuse in the fourth degree —— health care professionals.**

1. A health care professional commits sexual abuse in the fourth degree when the health care professional implants the health care professional's own human reproductive material

through assisted reproduction without the patient's prior knowledge and written consent.

2. Sexual abuse in the fourth degree is an aggravated misdemeanor.

3. For the purposes of this section:

a. "Assisted reproduction" means a method of causing pregnancy other than sexual intercourse involving medical or scientific intervention.

b. "Gamete" means a sperm, an egg, or any part of a sperm or an egg.

c. "Health care professional" means a person who is licensed, certified, or otherwise authorized or permitted by the laws of this state to administer health care in the ordinary course of business or in the practice of a profession.

d. "Human reproductive material" means a human gamete or a human organism at any stage of development from fertilized ovum to embryo.

e. "Patient" means a person who has received or is receiving health services from a health care professional.

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Sec. 4. Section 802.2, Code 2022, is amended to read as follows:

802.2 Sexual abuse —— first, second, ~~or~~ third, or fourth degree.

1. An information or indictment for sexual abuse in the first, second, ~~or~~ third, or fourth degree committed on or with a person who is under the age of eighteen years may be commenced at any time after the commission of the offense.

2. An information or indictment for any other sexual abuse in the first, second, ~~or~~ third, or fourth degree shall be commenced within ten years after its commission, or if the person against whom the information or indictment is sought is identified through the use of a DNA profile, an information or indictment shall be commenced within three years from the date the person is identified by the person's DNA profile, whichever is later.

3. As used in this section, *"identified"* means a person's legal name is known and the person has been determined to be the source of the DNA.>

2. Title page, line 1, by striking <fraud,>

ANNETTE SWEENEY

S–5036

Amend House File 2160, as passed by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. NEW SECTION. **714I.1 Short title.**

This chapter shall be known and may be cited as the *"Fraud*

in Assisted Reproduction Act".

Sec. 2. NEW SECTION. **714I.2 Definitions.**

For purposes of this chapter, unless the context otherwise requires:

1. *"Assisted reproduction"* means a method of causing pregnancy other than sexual intercourse.

2. *"Donor"* means an individual who provides gametes intended for use in assisted reproduction, whether or not for consideration.

3. *"Gamete"* means a sperm, an egg, or any part of a sperm or an egg.

4. *"Health care professional"* means a person who is licensed, certified, or otherwise authorized or permitted by the law of this state to administer health care in the ordinary course of business or in the practice of a profession.

5. *"Health facility"* means a hospital, clinic, sperm bank, laboratory, or other health care institution involved in the assisted reproduction process.

6. *"Human reproductive material"* means a human gamete or a human organism at any stage of development from fertilized ovum to embryo.

7. *"Patient"* means a person who has received or is receiving health services from a health care professional.

8. *"Physician"* means an individual licensed under chapter 148.

Sec. 3. NEW SECTION. **714I.3 Prohibited practices and acts.**

1. A person shall not engage in a practice or act the person knows or reasonably should have known provides false information to a patient related to an assisted reproduction procedure or treatment including false information relating to

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any of the following:

a. The human reproductive material used or provided for assisted reproduction.

b. The identity of a donor of human reproductive material used or provided for assisted reproduction including but not limited to the donor's name, birthdate, or address at the time of donation.

c. A donor's medical history including but not limited to an illness of the donor at the time of donation, any past illness of the donor, or the social, genetic, or family history of the donor.

2. A physician or a health facility shall not knowingly or intentionally do any of the following:

a. Use or provide a patient with human reproductive material for assisted reproduction other than that to which the patient expressly consented in writing.

b. Use or provide a patient with human reproductive material for assisted reproduction that is not provided with the donor's consent or in a manner or to an extent other than that to which

the donor consented.

3. *a.* A person that violates subsection 1 is guilty of a class "D" felony, punishable by the applicable maximum years of confinement and maximum fine.

b. A physician or health facility that violates subsection 2 is guilty of a class "C" felony, punishable by the applicable maximum years of confinement and maximum fine.

4. It is not a defense to a violation of this section that a patient expressly consented in writing to the use of human reproductive material from an anonymous donor.

5. A violation of this section by a physician, health care professional, or health facility is grounds for denial of an application for, denial of renewal of, or revocation of any license, permit, certification, or any other form of permission required to practice a profession or establish, conduct, or maintain a facility regulated by the state. A violation

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of this section by a physician or health care professional constitutes unprofessional conduct.

Sec. 4. NEW SECTION. **714I.4 Private right of action —— damages.**

1. Any of the following persons may bring a cause of action for compensatory and punitive damages against any person that engaged in a prohibited practice or act in violation of this chapter:

a. The patient who conceives or conceives and gives birth to a child conceived through assisted reproduction in violation of this chapter.

b. The spouse of a patient at the time the patient utilized assisted reproduction services, if the patient conceives or conceives and gives birth to a child conceived through assisted reproduction in violation of this chapter.

c. A child born as the result of being conceived through assisted reproduction in violation of this chapter.

d. A donor whose human reproductive material resulted in the conception or conception and birth of a child conceived through assisted reproduction in violation of this chapter or whose human reproductive material was used without the donor's consent or in a manner or to an extent other than that to which the donor consented.

2. *a.* A patient or the spouse of a patient has a separate cause of action under this section for each conception or conception and birth of a child resulting from assisted reproduction performed on the patient in violation of this chapter.

b. A donor has a separate cause of action under this section for each conception or conception and birth of a child conceived through assisted reproduction in violation of this chapter using the donor's human reproductive material, and for each instance in which the donor's human reproductive material

was used without the donor's consent or in a manner or to an extent other than that to which the donor consented.

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3. In an action brought under this section, in addition to any compensatory and punitive damages, the court shall award the prevailing plaintiff the costs of any applicable fertility treatments, court costs, and reasonable attorney fees.

Sec. 5. NEW SECTION. **714I.5 Statute of limitations —— other remedies.**

1. Notwithstanding any provision of law to the contrary, an action brought pursuant to this chapter may be commenced:

a. Within ten years after the eighteenth birthday of a child conceived through assisted reproduction as the result of a violation of this chapter.

b. If paragraph *"a"* does not apply, within twenty years from the date the procedure resulting in the conception through assisted reproduction in violation of this chapter was performed.

c. If paragraph *"a"* or *"b"* does not apply, or if an action would otherwise be barred because the statute of limitations under paragraph *"a"* or *"b"* is exhausted, an action under this chapter may be commenced within five years of any of the following, whichever occurs latest:

(1) The date the person bringing the action first discovers evidence sufficient to bring an action against the defendant identified through the use of an analysis of a DNA profile as defined in section 81.1. As used in this subparagraph, *"identified"* means a person's legal name is known and the person has been determined to be the source of the DNA.

(2) The date the person bringing the action first discovers the existence of a recording that provides evidence sufficient to bring an action against the defendant.

(3) The date the defendant admits to the facts giving rise to the action.

2. This chapter shall not be construed to prohibit a person from pursuing any other remedy provided by law.

Sec. 6. Section 147.55, Code 2022, is amended by adding the following new subsection:

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NEW SUBSECTION. 7A. Unprofessional conduct constituted by sexual abuse in the third degree in violation of section 709.4, subsection 1A, or a violation of section 714I.3.

Sec. 7. Section 692A.102, subsection 1, paragraph c, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (11A) Sexual abuse in the third degree in violation of section 709.4, subsection 1A.

Sec. 8. Section 709.4, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 1A. A physician commits sexual abuse in the third degree when the physician violates chapter 714I by knowingly and intentionally implanting the physician's own human reproductive material through assisted reproduction without the patient's prior knowledge and express written consent. It is not a defense to a violation of chapter 714I under this subsection that a patient expressly consented in writing to the use of human reproductive material from an anonymous donor. For the purposes of this subsection, *"assisted reproduction"*, *"human reproductive material"*, *"patient"*, and *"physician"* mean the same as defined in section 714I.2.>

2. Title page, line 1, after <reproduction> by inserting <fraud,>

ANNETTE SWEENEY

S–5037

Amend Senate File 2260 as follows:

1. Page 1, by striking lines 1 through 24.

2. Page 1, after line 26 by inserting:

<1. As used in this section, unless the context otherwise requires:

a. "Animal rescue organization" means a person other than an animal shelter operating on a nonprofit basis to place unwanted, abandoned, abused, or stray dogs or cats in permanent adopted homes as provided by rules adopted by the department.

b. (1) *"Qualified research facility"* means a research facility, including but not limited to a regents institution, that conducts experiments on dogs or cats for research, education, testing, or another scientific purpose; and that receives moneys from the state or federal government.

(2) *"Qualified research facility"* includes a research facility that conducts experiments on dogs or cats for research, education, testing, or another scientific purpose, in collaboration with a research facility described in subparagraph (1).

c. "Retired animal" means a dog or cat confined at a qualified research facility, if the dog or cat has been previously used for research, education, testing, or another scientific purpose; and the dog or cat is no longer required to be confined by the qualified research facility for any of those purposes.>

3. Page 1, line 27, by striking <1.> and inserting <2.>

4. Page 1, line 34, by striking <2.> and inserting <3.>

5. By renumbering as necessary.

DAN DAWSON

S–5038

Amend Senate File 2287 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 714.1, subsection 4, Code 2022, is amended to read as follows:

4. Exercises control over stolen property, knowing such property to have been stolen, or having reasonable cause to believe that such property has been stolen, unless the person's purpose is to promptly restore it to the owner or to deliver it to an appropriate public officer. The fact that the person is found in possession of property which has been stolen from two or more persons on separate occasions, or that the person is a dealer or other person familiar with the value of such property and has acquired it for a consideration which is far below its reasonable value, or that the person violated section 714.27A in a transaction involving the property, shall be evidence from which the court or jury may infer that the person knew or believed that the property had been stolen.

Sec. 2. Section 714.27, subsection 1, paragraph a, Code 2022, is amended to read as follows:

a. "Scrap metal" means any metal suitable for reprocessing. *"Scrap metal"* does not include a motor vehicle~~, but does include~~ or a catalytic converter detached from a motor vehicle.

Sec. 3. Section 714.27, subsection 5, paragraph a, Code 2022, is amended to read as follows:

a. Transactions in which the total sale price is fifty dollars or less~~, except transactions for the sale of catalytic converters~~.

Sec. 4. Section 714.27, subsection 5, paragraph b, Code 2022, is amended by striking the paragraph.

Sec. 5. NEW SECTION. **714.27A Used catalytic converter transactions —— reporting —— penalties.**

1. For purposes of this section:

a. "Business transaction" means an exchange of consideration for a catalytic converter between a scrap metal dealer, as

defined in section 714.27, and another scrap metal dealer, an authorized vehicle recycler licensed under chapter 321H operating a business at a fixed location, a motor vehicle dealer licensed under chapter 322 operating a business at a fixed location, a towable recreational vehicle dealer licensed under chapter 322C operating a business at a fixed location, a mechanic or an automotive repair facility operating a business at a fixed location, or a person operating a similar business at a fixed location in another state.

b. "Catalytic converter" means a catalytic converter that was previously installed in a motor vehicle and subsequently removed.

2. *a.* A person shall not sell a catalytic converter in this state unless the person provides to the purchaser, at or before the time of sale, the person's name, address, and place of business, if any, and presents to the purchaser a valid driver's license or nonoperator's identification card, military identification card, passport, or other government-issued photo identification.

b. For a business transaction in which the person selling the catalytic converter operates a business at a fixed location in this state, the person shall provide to the purchaser a copy of the person's valid sales tax permit issued pursuant to chapter 423. For a business transaction in which the person selling the catalytic converter operates a business at a fixed location in another state and is authorized to conduct a business transaction in this state, the person shall provide to the purchaser a copy of the person's valid sales tax permit issued pursuant to chapter 423, if the person has such a permit, or a copy of the person's valid business license or permit from the other state. If a person is unable to provide the documentation required in this paragraph, the person shall instead comply with paragraph *"c"*.

c. For transactions other than business transactions, the person selling the catalytic converter shall provide to the

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purchaser an original receipt or invoice for a replacement catalytic converter purchased fewer than thirty days before the person sells the replaced catalytic converter, or a junking certificate for a vehicle that was issued fewer than thirty days before the person sells the catalytic converter.

(1) The receipt, invoice, or junking certificate presented by the person to the purchaser must be unmarked by a purchaser pursuant to subsection 3.

(2) This paragraph does not apply to a transaction if the person presents proof, unmarked pursuant to subsection 3, to the purchaser that the sale is approved by the sheriff of the county in which the vehicle from which the catalytic converter was removed is registered.

3. *a.* A person shall not purchase a catalytic converter from a seller without demanding and receiving the information required by subsection 2.

b. A person who purchases a catalytic converter shall mark the receipt, invoice, junking certificate, or proof of sheriff approval presented under subsection 2 to indicate the catalytic converter has been sold. The person shall take a photograph of the catalytic converter that clearly identifies the item as a catalytic converter.

c. A person who purchases a catalytic converter shall have a residence or fixed business address within this state.

4. A person who purchases a catalytic converter shall keep a confidential register or log of each transaction, including a

copy of the information required by subsections 2, 3, and 5. All records and information kept pursuant to this subsection shall be retained for at least two years, and shall be provided to a law enforcement agency or other officer or employee designated by a county or city to enforce this section upon request during normal business hours when the law enforcement agency or designated officer or employee of a county or city has reasonable grounds to request such information as part of an investigation. A law enforcement agency or designated

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officer or employee of a county or city shall preserve the confidentiality of the information provided under this subsection and shall not disclose it to a third party, except as may be necessary in enforcement of this section or the prosecution of a criminal violation.

5. A transaction under this section shall be made by check or electronic funds transfer.

6. A person, including a person who conducts a business transaction on behalf of another person, who violates this section shall be subject to a civil penalty as follows:

a. For an initial violation, one thousand dollars.

b. For a second violation within two years, five thousand dollars.

c. For a third or subsequent violation within two years, ten thousand dollars.

7. Proof that a person, including a person who conducted a business transaction on behalf of another person, violated subsection 2 or 3 shall be evidence from which the court or jury may infer any of the following:

a. The person aided and abetted the underlying theft of the catalytic converter involved in the transaction from a vehicle, under section 703.1.

b. The person had knowledge that a public offense has been committed and that a certain person committed it, for purposes of proving the person acted as an accessory after the fact under section 703.3.

Sec. 6. Section 805.8C, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 10A. *Used catalytic converter transaction violations.* For violations of section 714.27A, the scheduled fine is one thousand dollars for a first violation, five thousand dollars for a second violation within two years, and ten thousand dollars for a third or subsequent violation within two years. The scheduled fine under this subsection is a civil penalty which shall be deposited into the general

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fund of the county or city if imposed by a designated officer or employee of a county or city, or deposited in the general

fund of the state if imposed by a state agency, and the crime services surcharge under section 911.1 shall not be added to the penalty.>

2. Title page, by striking lines 1 through 4 and inserting <An Act relating to used catalytic converter transactions, providing penalties, and making penalties applicable.>

WAYLON BROWN

S–5039

Amend Senate File 2251 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 7E.3, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 6. *Workforce advertising.* Ensure that companies that have no physical presence in the state shall not be allowed to advertise for workers on an internet site maintained by the department or independent agency or through any other means funded by an appropriation to the department or independent agency. However, this subsection shall not apply to advertisements for internships or other employment opportunities on an internet site or at an employee recruitment event maintained or sponsored by an institution under the control of the state board of regents or a community college.>

ADRIAN DICKEY

S–5040

Amend Senate File 2329 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. NEW SECTION. **622.31A Admissibility of evidence in certain physical abuse and sexual offense cases.**

1. As used in this section:

a. "Child" means a person under fourteen years of age.

b. "Cognitive impairment" means a deficiency in a person's short-term or long-term memory; orientation as to person, place, and time; deductive or abstract reasoning; or judgment as it relates to safety awareness.

c. "Developmental disability" means the same as defined under the federal Developmental Disabilities Assistance and Bill of Rights Act of 2000, Pub. L. No. 106-402, as codified in 42 U.S.C. §15002(8).

d. "Intellectual disability" means a disability of children and adults who as a result of inadequately developed intelligence have a significant impairment in ability to learn or to adapt to the demands of society.

2. In a prosecution for physical abuse or a sexual offense including but not limited to a sexual offense in violation of

section 709.2, 709.3, 709.4, 709.11, 709.12, 709.14, 709.15, 709.16, or 709.23, upon or against a child, a person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability, the following evidence shall be admitted as an exception to the hearsay rule if all of the requirements in subsection 3 apply:

a. Testimony by the victim concerning an out-of-court statement, whether consistent or inconsistent, made by the victim to another person that is an initial disclosure of the offense.

b. Testimony by another concerning an out-of-court statement, whether consistent or inconsistent, made by the victim that is an initial disclosure of an offense charged for physical abuse or a sexual offense against the victim.

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3. The testimony described in subsection 2 shall be admitted into evidence at trial as an exception to the hearsay rule if all of the following apply:

a. The party intending to offer the statement does all of the following:

(1) Notifies the adverse party of the intent to offer the statement.

(2) Provides the adverse party with the name of the witness through whom the statement will be offered.

(3) Provides the adverse party with a written summary of the statement to be offered.

b. The court finds, in a hearing conducted outside the presence of the jury, that the timing of the statement, the content of the statement, and the circumstances surrounding the making of the statement provide sufficient safeguards of reliability.

c. The child, person with an intellectual disability, person with a cognitive impairment, or a person with a developmental disability testifies at the trial.

4. If a statement is admitted pursuant to this section, the court shall instruct the jury that it is for the jury to determine the weight and credibility to be given to the statement, and in making that determination, the jury shall consider the age and maturity of the child or the disability of the person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability; the nature of the statement; the circumstances under which the statement was made, and any other relevant factors.

5. This section shall not prevent the admission of any evidence based upon forfeiture by wrongdoing.>

2. Title page, by striking lines 1 through 6 and inserting <An Act relating to the admissibility of evidence in a prosecution for physical abuse or a sexual offense upon or against a child, person with an intellectual disability, person

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with a cognitive impairment, or person with a developmental disability.>

TOM SHIPLEY

S–5041

Amend House File 2221, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 622.9, Code 2022, is amended to read as follows:

622.9 Communications between husband and wife.

1. Neither husband nor wife can be examined in any case as to any communication made by the one to the other while married, nor shall they, after the marriage relation ceases, be permitted to reveal in testimony any such communication made while the marriage subsisted.

2. Notwithstanding subsection 1, a husband or wife may be examined about, and reveal in testimony, any of the following communications:

a. Communications of threats against the husband or wife or third party.

b. Communications that have been transmitted or revealed to a third party.

3. Subsection 1 does not apply in any proceeding in which either husband or wife is charged with an offense against the other.

Sec. 2. NEW SECTION. **622.31A Admissibility of evidence in certain physical abuse and sexual offense cases.**

1. As used in this section:

a. "Child" means a person under fourteen years of age.

b. "Cognitive impairment" means a deficiency in a person's short-term or long-term memory; orientation as to person, place, and time; deductive or abstract reasoning; or judgment as it relates to safety awareness.

c. "Developmental disability" means the same as defined under the federal Developmental Disabilities Assistance and Bill of Rights Act of 2000, Pub. L. No. 106-402, as codified in 42 U.S.C. §15002(8).

d. "Intellectual disability" means a disability of

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children and adults who as a result of inadequately developed intelligence have a significant impairment in ability to learn or to adapt to the demands of society.

2. In a prosecution for physical abuse or a sexual offense including but not limited to a sexual offense in violation of

section 709.2, 709.3, 709.4, 709.11, 709.12, 709.14, 709.15, 709.16, or 709.23, upon or against a child, a person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability, the following evidence shall be admitted as an exception to the hearsay rule if all of the requirements in subsection 3 apply:

a. Testimony by the victim concerning an out-of-court statement made by the victim to another person regarding the occurrence of the offense.

b. Testimony by another concerning an out-of-court statement made by the victim describing any act or detail pertaining to any act which is an element of an offense charged for physical abuse or a sexual offense against the victim.

3. The testimony described in subsection 2 shall be admitted into evidence at trial as an exception to the hearsay rule if all of the following apply:

a. The party intending to offer the statement does all of the following:

(1) Notifies the adverse party of the intent to offer the statement.

(2) Provides the adverse party with the name of the witness through whom the statement will be offered.

(3) Provides the adverse party with a written summary of the statement to be offered.

b. The court finds, in a hearing conducted outside the presence of the jury, that the timing of the statement, the content of the statement, and the circumstances surrounding the making of the statement provide sufficient safeguards of reliability.

c. The child, person with an intellectual disability, person

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with a cognitive impairment, or person with a developmental disability satisfies one of the following:

(1) Testifies at the trial.

(2) Is unavailable to testify but provides corroborative evidence of the act which is the subject of the statement.

4. If a statement is admitted pursuant to this section, the court shall instruct the jury that it is for the jury to determine the weight and credibility to be given to the statement, and in making that determination, the jury shall consider the age and maturity of the child or the disability of the person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability; the nature of the statement whether consistent or inconsistent; the circumstances under which the statement whether consistent or inconsistent was made; and any other relevant factors.

5. This section shall not prevent the admission of any evidence based upon forfeiture by wrongdoing.>

2. Title page, by striking lines 1 through 5 and inserting

<An Act relating to evidence, including spousal privilege and confidential communications between spouses, and the admissibility of evidence in a prosecution for physical abuse or a sexual offense upon or against a child, person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability.>

TOM SHIPLEY

S–5042

Amend Senate File 2291 as follows:

1. Page 1, by striking lines 13 and 14 and inserting <higher rate of either the school district's substitute pay per diem or the hourly pay to which the para-educator is otherwise entitled.>

CHRIS COURNOYER

S–5043

Amend Senate File 2263 as follows:

1. Page 3, by striking lines 13 through 22.
2. By renumbering as necessary.

ROBY SMITH

S–5044

Amend the amendment, S–3157, to House File 780, as passed by the House, as follows:

1. Page 1, after line 1 by inserting:

<___. Page 1, line 1, by striking <2021> and inserting <2022>>

2. Page 1, by striking lines 2 through 4 and inserting:

<___. Page 1, line 7, after <135.1> by inserting <except for optometrists, physician assistant as defined in section 148C.1, or advanced practice registered nurse as defined in section 152E.3>>

3. By renumbering as necessary.

MARK LOFGREN

S–5045

Amend Senate File 2309 as follows:

1. Page 1, before line 1 by inserting:

<Section 1. NEW SECTION. **137D.2A Raw milk, raw milk products, and raw milk dairy products.**

A home bakery shall not advertise for sale, offer for sale, sell or otherwise distribute, or use raw milk, a raw milk product, or a raw milk dairy product as provided in section

192.145.

Sec. ___. Section 137F.1, subsection 8, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *o.* (1) The premises of a raw milk dairy where raw milk is produced, processed, labeled, marketed, or distributed by a raw milk producer in compliance with section 192.145.

(2) The premises of a raw milk dairy where a raw milk product or a raw milk dairy product is manufactured, labeled, marketed, or distributed by a raw milk producer in compliance with section 192.145.

Sec. ___. Section 137F.1, subsection 9, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *d.* (1) The premises of a raw milk dairy where raw milk is produced, processed, labeled, marketed, or distributed by a raw milk producer in compliance with section 192.145.

(2) A premises of a raw milk dairy where a raw milk product or raw milk dairy product is manufactured, labeled, marketed, or distributed by a raw milk producer in compliance with section 192.145.

Sec. ___. NEW SECTION. **137F.8B Raw milk, raw milk products, and raw milk dairy products.**

A food establishment or farmers market shall not advertise for sale, offer for sale, sell or otherwise distribute, or use raw milk, a raw milk product, or a raw milk dairy product, regardless of whether the food establishment or farmers market is regulated by the department under this chapter or another

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chapter, another state agency, or a municipality.>

2. Page 1, by striking lines 8 through 10 and inserting:

<*a.* The production, processing, labeling, marketing, or distribution of raw milk by a raw milk producer in compliance with section 192.145.>

3. Page 1, by striking lines 11 through 13 and inserting:

<*b.* The manufacture, labeling, marketing, or distribution of a raw milk product or raw milk dairy product by a raw milk producer in>

4. By striking page 2, line 34, through page 3, line 1, and inserting:

<NEW SUBSECTION. 5A. *Raw milk, raw milk products, and raw milk dairy products.* A container holding raw milk, a raw milk product, or a raw milk dairy product sold by a raw milk producer shall be labeled as required in>

5. Page 3, line 3, by striking **<Dairy farms>** and inserting **<Raw milk dairies>**

6. Page 3, by striking line 4 and inserting **<raw milk, raw milk products, and raw milk dairy products.>**

7. Page 3, by striking lines 5 through 10 and inserting:

<1. A raw milk producer who sells raw milk, a raw milk

product, or a raw milk dairy product to an individual in compliance with section 192.145 shall label the container holding the raw milk, raw milk product, or raw milk dairy product. The label shall be permanently affixed to the>

8. Page 3, line 15, by striking <unpasteurized> and inserting <raw>

9. Page 3, line 21, by striking <milk product or> and inserting <raw milk product or raw milk>

10. Page 3, line 24, before <dairy> by inserting <raw milk>

11. Page 3, line 25, by striking <includes raw milk> and inserting <is>

12. Page 4, by striking lines 3 and 4 and inserting:

<*b.* A raw milk producer may sell raw milk, a raw milk product, or a raw milk dairy product to an individual in

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compliance with section>

13. Page 4, after line 16 by inserting:

<1. *"Dairy animal"* means a cow, goat, or sheep that is actively producing milk.>

14. Page 4, line 17, by striking <1.> and inserting <2.>

15. Page 4, line 24, by striking <2.> and inserting <3.>

16. Page 4, after line 27 by inserting:

<___. *"Raw milk"* means milk that is not pasteurized or graded.

___. *"Raw milk dairy"* means an operation where not more than a total of ten dairy animals are maintained, and milk produced from any of those animals is not pasteurized or graded.

___. *"Raw milk dairy product"* means a dairy product that includes raw milk or a raw milk product.

___. *"Raw milk producer"* means a person who owns or operates a raw milk dairy.

___. *"Raw milk product"* means a milk product that includes raw milk.>

17. By striking page 4, line 28, through page 5, line 27, and inserting:

<Sec. ___. NEW SECTION. **192.145 Raw milk dairies —— production, processing, marketing, and distribution.**

1. A raw milk producer may elect to process, market, or distribute raw milk produced at the raw milk producer's raw milk dairy in compliance with this section. A raw milk producer may also elect to use the raw milk to manufacture, market, or distribute a raw milk product or raw milk dairy product at the raw milk producer's raw milk dairy in compliance with this section. If a raw milk producer makes either election, all of the following apply:

a. The raw milk producer shall not pasteurize or grade milk produced from dairy animals maintained at the raw milk dairy.

b. The raw milk producer shall ensure the health and safety of consumers of the raw milk produced from dairy animals maintained at the raw milk dairy by doing all of the following:

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(1) Each month, test each dairy animal to determine a coliform count and standard plate count. The raw milk producer shall maintain a record of each test. The raw milk producer shall retain the record at the raw milk dairy for at least three years.

(2) Each twelve-month period, employ a licensed veterinarian to examine each dairy animal to determine the dairy animal's health status. The examination must at least include a blood test for common diseases afflicting the type of dairy animal being examined.

2. A raw milk producer shall only take an order for the distribution of raw milk at the raw milk producer's raw milk dairy where the raw milk was produced. The raw milk producer shall only distribute the raw milk to an individual placing the order. The raw milk producer may distribute the raw milk to the individual without charge or on a retail basis.

a. The raw milk producer shall post the summary of the test to determine the coliform count and standard plate count of the dairy animals maintained at the raw milk dairy as provided in subsection 1. The summary shall be posted at the raw milk dairy's distribution point for the raw milk. The individual being distributed the raw milk may examine the records for the three-year period that the records are required to be retained by the raw milk producer under subsection 1.

b. If the raw milk producer sells raw milk in a container, the container shall be labeled as provided in section 191.9A.

c. The raw milk producer shall distribute the raw milk directly to the individual at the raw milk dairy or to a location specified by the individual. However, a person shall not deliver the raw milk to a place of business where food items are distributed on a retail basis, including but not limited to a home bakery regulated under chapter 137D or a food establishment or farmers market regulated under chapter 137F. The raw milk shall only be used for consumption by the individual, members of the individual's household, and the

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individual's nonpaying guests or nonpaying employees.

d. A person shall not resell raw milk.

3. A raw milk producer shall only take an order for the distribution of a raw milk product or raw milk dairy product at the raw milk producer's raw milk dairy where the raw milk product or raw milk dairy product is manufactured. The raw milk producer shall only distribute the raw milk product or raw milk dairy product to an individual placing the order. The raw milk producer may distribute the raw milk product or raw milk dairy product to the individual without charge or on a retail basis.

a. The raw milk producer shall post the summary of the most

recent test to determine the coliform count and standard plate count of dairy animals maintained at the raw milk dairy as provided in subsection 1. The summary shall be posted at the raw milk dairy's distribution point for the raw milk products or raw milk dairy products. The individual being distributed the raw milk product or raw milk dairy product may examine the records for the three-year period that the records are required to be retained by the raw milk producer under subsection 1.

b. If the raw milk producer sells a raw milk product or raw milk dairy product in a container, the container shall be labeled as provided in section 191.9A.

c. The raw milk producer shall distribute the raw milk product or raw milk dairy product directly to the individual at the raw milk dairy or to a location specified by the individual. However, a person shall not deliver the raw milk product or raw milk dairy product to a place of business where food items are distributed on a retail basis, including but not limited to a home bakery regulated under chapter 137D or a food establishment or farmers market regulated under chapter 137F. The raw milk product or raw milk dairy product shall only be used for consumption by the individual, members of the individual's household, or the individual's nonpaying guests or nonpaying employees.

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d. A person shall not resell the raw milk product or raw milk dairy product.

4. Based on an affidavit signed by a licensed physician certifying that in the physician's opinion an individual contracted an illness as a direct result of consuming raw milk produced at a raw milk dairy, or consuming a raw milk product or a raw milk dairy product manufactured at a raw milk dairy, the Iowa department of public health acting under chapter 135 or a local board of health acting under chapter 137 may demand that the raw milk producer provide it with all records of tests to determine the coliform count and standard plate count of dairy animals maintained at the raw milk dairy as required in subsection 1.

5. The department shall not adopt rules to administer or enforce this section.

6. This chapter does not apply to a receiving station, transfer station, milk handler, milk grader, or milk plant. A raw milk dairy is not a food establishment, food processing plant, or other person regulated under chapter 137F or other chapter regulating such entities.>

18. Page 5, line 28, by striking **<On-farm>** and inserting **<Raw milk dairies ——>**

19. Page 5, line 29, by striking **<and marketing —— exception>** and inserting **<marketing, and distribution —— exceptions>**

20. Page 5, by striking lines 31 and 32 and inserting:

<1. The production, processing, marketing, and distribution of raw milk, if the raw milk is produced by a raw milk producer at a raw milk dairy in>

21. By striking page 5, line 34, through page 6, line 1, and inserting:

<2. The manufacture, marketing, and distribution of a raw milk product or raw milk dairy product, if the raw milk product or raw milk dairy product is manufactured by a raw milk producer at a raw milk dairy in compliance with section>

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22. Title page, line 3, by striking <by operators of> and inserting <to individuals by milk producers owning or operating certain>

23. Title page, line 4, by striking <unpasteurized and ungraded milk and> and inserting <raw milk and associated>

24. By renumbering, redesignating, and correcting internal references as necessary.

JASON SCHULTZ

S–5046

Amend Senate File 513 as follows:

1. Page 1, line 1, by striking <2021> and inserting <2022>

2. Page 1, line 3, by striking <Any reports> and inserting <A crisis intervention report>

3. Page 1, line 15, after <A> by inserting <crisis intervention>

4. Page 1, line 22, by striking <Reports> and inserting <Crisis intervention reports>

5. Page 1, by striking lines 24 through 27 and inserting:

<*d.* Notwithstanding other provisions of this subsection, the date, time, specific location, and immediate facts and circumstances surrounding a crime or incident shall not be kept confidential under this subsection, except where disclosure would pose a clear and present danger to the safety of the person subject to the crisis intervention report or the safety of others.

e. For the purposes of this subsection:

(1) *"Crisis intervention report"* or *"report"* means a report generated by a law enforcement agency using a prescribed form created by the department of justice to record the following information relevant to assess the nature of a crisis:

(a) Any biological or chemical causes of the crisis.

(b) Any observed demeanors and behaviors of the person experiencing the crisis.

(c) Persons notified in relation to the crisis.

(d) Whether suicide or injuries occurred in relation to the crisis and the extent of those injuries.

(e) Whether weapons were involved in the crisis and a

description of the weapon.

(f) The disposition of the crisis intervention and any crime committed.

(2) *"Housing crisis"* means a situation where a person is experiencing homelessness, a lack of adequate or safe housing, or is in imminent danger of homelessness or lack of adequate or safe housing.>

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6. Page 1, before line 28 by inserting:

<Sec. ___. Section 125.2, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 11A. *"Magistrate"* means the same as defined in section 801.4, subsection 10.

Sec. ___. Section 125.91, subsection 2, Code 2022, is amended to read as follows:

2. *a.* A peace officer who has reasonable grounds to believe that the circumstances described in subsection 1 are applicable may, without a warrant, take or cause that person to be taken to the nearest available facility referred to in section 125.81, subsection 2, paragraph *"b"* or *"c"*. Such a person with a substance-related disorder due to intoxication or substance-induced incapacitation who also demonstrates a significant degree of distress or dysfunction may also be delivered to a facility by someone other than a peace officer upon a showing of reasonable grounds. Upon delivery of the person to a facility under this section, the attending physician and surgeon or osteopathic physician and surgeon may order treatment of the person, but only to the extent necessary to preserve the person's life or to appropriately control the person's behavior if the behavior is likely to result in physical injury to the person or others if allowed to continue. The peace officer or other person who delivered the person to the facility shall describe the circumstances of the matter to the attending physician and surgeon or osteopathic physician and surgeon. If the person is a peace officer, the peace officer may do so either in person or by written report.

b. If the attending physician and surgeon or osteopathic physician and surgeon has reasonable grounds to believe that the circumstances in subsection 1 are applicable, the facility shall have the authority to detain the person for a period of no longer than twelve hours. Within twelve hours of detaining a person pursuant to this section, the attending physician shall ~~at once~~ communicate with the nearest available magistrate

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~~as defined in section 801.4, subsection 10~~.

c. ~~The~~ Once contacted pursuant to paragraph *"b"*, the magistrate shall, based upon the circumstances described by the attending physician and surgeon or osteopathic physician

and surgeon, give the attending physician and surgeon or osteopathic physician and surgeon oral instructions either directing that the person be released forthwith, or authorizing the person's detention in an appropriate facility. The magistrate may also give oral instructions and order that the detained person be transported to an appropriate facility.

~~*b.*~~ *d.* If the magistrate orders that the person be detained, the magistrate shall, by the close of business on the next working day, file a written order with the clerk in the county where it is anticipated that an application may be filed under section 125.75. The order may be filed by facsimile if necessary. The order shall state the circumstances under which the person was taken into custody or otherwise brought to a facility and the grounds supporting the finding of probable cause to believe that the person is a person with a substance-related disorder likely to result in physical injury to the person or others if not detained. The order shall confirm the oral order authorizing the person's detention including any order given to transport the person to an appropriate facility. The clerk shall provide a copy of that order to the attending physician and surgeon or osteopathic physician and surgeon at the facility to which the person was originally taken, any subsequent facility to which the person was transported, and to any law enforcement department or ambulance service that transported the person pursuant to the magistrate's order.

Sec. ___. Section 229.1, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 8A. *"Magistrate"* means the same as defined in section 801.4, subsection 10.

Sec. ___. Section 229.22, subsection 2, paragraph a,

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subparagraphs (4) and (5), Code 2022, are amended to read as follows:

(4) (a) If the examining physician, examining physician assistant, examining mental health professional, or examining psychiatric advanced registered nurse practitioner finds that there is reason to believe that the person is seriously mentally impaired, and because of that impairment is likely to physically injure the person's self or others if not immediately detained, the facility shall have the authority to detain the person for a period of no longer than twelve hours. Within twelve hours of detaining a person pursuant to this section, the examining physician, examining physician assistant, examining mental health professional, or examining psychiatric advanced registered nurse practitioner shall ~~at once~~ communicate with the nearest available magistrate ~~as defined in section 801.4, subsection 10~~.

~~(5)~~ (b) ~~The~~ Once contacted pursuant to subparagraph division (a), the magistrate shall, based upon the

circumstances described by the examining physician, examining physician assistant, examining mental health professional, or examining psychiatric advanced registered nurse practitioner, give the examining physician, examining physician assistant, examining mental health professional, or examining psychiatric advanced registered nurse practitioner oral instructions either directing that the person be released forthwith or authorizing the person's detention in an appropriate facility. A peace officer from the law enforcement agency that took the person into custody, if available, during the communication with the magistrate, may inform the magistrate that an arrest warrant has been issued for or charges are pending against the person and request that any oral or written order issued under this subsection require the facility or hospital to notify the law enforcement agency about the discharge of the person prior to discharge. The magistrate may also give oral instructions and order that the detained person be transported to an appropriate

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facility.

Sec. ___. Section 331.910, subsection 3, paragraph a, Code 2022, is amended to read as follows:

a. A region may contract with a receiving agency in a bordering state to secure substance abuse or mental health care and treatment under this subsection for persons who receive substance abuse or mental health care and treatment pursuant to section 125.33 ~~or~~, 125.91, 229.2, or 229.22 through a region.

Sec. ___. Section 331.910, subsection 4, paragraphs a and b, Code 2022, are amended to read as follows:

a. A person who is detained, committed, or placed on an involuntary basis under section 125.75 ~~or~~, 125.91, 229.6, or 229.22 may be civilly committed and treated in another state pursuant to a contract under this subsection.

b. A person who is detained, committed, or placed on an involuntary basis under the civil commitment laws of a bordering state substantially similar to section 125.75 ~~or~~, 125.91, 229.6, or 229.22 may be civilly committed and treated in this state pursuant to a contract under this subsection.>

7. Title page, lines 1 and 2, by striking <the confidentiality of certain law enforcement information involving a person> and inserting <persons>

8. By renumbering as necessary.

DAN DAWSON

S–5047

Amend Senate File 2290 as follows:

1. Page 2, line 2, by striking <all> and inserting <any>

2. Page 3, line 6, after <new> by inserting <dairy processing>

3. Page 3, after line 16 by inserting:

<8. The authority may use not more than five percent of the moneys in the fund at the beginning of each fiscal year for purposes of administrative costs, marketing, technical assistance, and other program support.>

4. Page 3, line 17, by striking <8.> and inserting <9.>

5. By striking page 3, line 20, through page 4, line 26, and inserting:

<Sec. ___. ARTISANAL DAIRY PROCESSING PROGRAM REPORT.

1. The department of agriculture and land stewardship shall study the feasibility of establishing an artisanal dairy processing program at a community college or at an institution governed by the state board of regents. The department shall consider staffing and equipment requirements, potential enrollment numbers, overall employment outlook for graduates, apprenticeship and internship opportunities, program costs, curriculum, and regulatory and legal requirements.

2. The department shall submit a report by December 31, 2022, to the general assembly that includes findings and recommendations of the department based on the study.>

6. Title page, by striking line 5 and inserting

<stewardship, and requiring the department to study the>

7. By renumbering as necessary.

TOM SHIPLEY

S–5048

Amend Senate File 2328 as follows:

1. By striking page 1, line 1, through page 6, line 4, and inserting:

<DIVISION I

NO-CONTACT ORDERS

Section 1. Section 664A.8, Code 2022, is amended to read as follows:

664A.8 Extension of no-contact order.

~~Upon the filing of an application by the state or by the victim of any public offense referred to in section 664A.2, subsection 1 which is filed within ninety days prior to the expiration of a modified no-contact order, the~~ The court shall modify and extend the no-contact order upon the expiration of the no-contact order for an additional period of five years, unless, upon the filing of an application by the defendant within ninety days prior to the expiration of a modified no-contact order, the court finds that the defendant no longer poses a threat to the safety of the victim, persons residing with the victim, or members of the victim's family. The number of modifications extending the no-contact order permitted by this section is not limited.>

2. Page 9, line 20, by striking <**and misdemeanors**>

3. Page 11, by striking lines 22 through 34.

4. Page 14, by striking lines 24 through 26 and inserting:

<(1) The recorded statement describes conduct that constitutes a public offense committed against or involving a child, or describes circumstances relevant to such conduct.>

5. By striking page 15, line 25, through page 16, line 9, and inserting:

<Sec. ___. NEW SECTION. **915.44A Limitation of evidence in sexual abuse cases.**

A defendant charged with a criminal offense under chapter 709 who has filed an application for postconviction relief upon conviction for a criminal offense under chapter 709 shall be precluded from questioning any victim or any other person

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regarding evidence which is inadmissible under rule of evidence 5.412 or any other successor provision. Prohibited evidence includes all of the following:

1. Reputation or opinion evidence of a victim offered to prove that a victim engaged in other sexual behavior.

2. Evidence of a victim's other sexual behavior other than reputation or opinion evidence.

3. Evidence of a victim's sexual predisposition.

Sec. ___. COMMISSION ON CONTINUING LEGAL EDUCATION —— CONTINUING LEGAL EDUCATION REQUIREMENTS. The supreme court shall amend Iowa court rule 42.2 to require all attorneys licensed in this state to complete a minimum of one hour, annually, of continuing legal education that focuses on crime victims and how to improve a crime victim's experience within the criminal justice system.>

6. By striking page 16, line 34, through page 17, line 3, and inserting:

<4. This section shall not apply to a subpoena issued solely to secure the presence of a witness listed in the minutes of testimony at an authorized deposition or to secure the presence of a witness listed in either the minutes of testimony or in the defendant's witness list submitted for a hearing or trial.>

7. Page 17, after line 35 by inserting:

<3. A person who is not yet a party to a criminal action shall not be permitted to depose another person until the time the person who is not yet a party to the criminal action is charged with or indicted for the associated criminal offense.>

8. Page 19, by striking lines 11 through 13 and inserting:

<*a.* The evidence is necessary to prove the applicant is actually innocent of the underlying public offense and all lesser-included offenses.>

9. Page 19, by striking lines 19 through 24 and inserting:

<3. The privileges contained in section 622.10 shall be absolute, except that the filing of an application shall waive any privilege an applicant may claim regarding an attorney who

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represented the applicant in the underlying criminal action or any previous postconviction action.>

10. Page 20, after line 5 by inserting:

<9. Depositions shall only be permitted upon a showing of exceptional circumstances, except that the applicant's criminal trial counsel may be deposed by the respondent upon request or by the applicant pursuant to subsection 1 and a victim may only be deposed pursuant to subsection 2.>

11. Page 20, by striking lines 8 through 11 and inserting:

<Sec. ___. NEW SECTION. **602.6204 Reporting requirement.**

The state court administrator shall submit to the governor and to the general assembly, not later than December 15 each year, an annual report which shall include, for the violent and sexual criminal offenses listed in section 902.12, all of the following:>

12. Page 21, after line 23 by inserting:

<DIVISION ___

CONDITIONAL GUILTY PLEAS

Sec. ___. NEW SECTION. **814.30 Conditional guilty pleas not allowed.**

A conditional guilty plea that reserves the right to appellate review of an adverse determination of a specified pretrial motion shall not be allowed.>

13. Title page, by striking lines 1 through 3 and inserting

<An Act relating to criminal law including no-contact orders, penalties for domestic abuse>

14. Title page, by striking lines 7 and 8 and inserting

<actions, postconviction relief procedure, certain reporting requirements, conditional guilty pleas, and making penalties applicable.>

15. By renumbering, redesignating, and correcting internal references as necessary.

JEFF REICHMAN

S–5049

Amend Senate File 2309 as follows:

1. Page 3, after line 20 by inserting:

<DANGERS OF LISTERIA AND PREGNANCY

Pregnant women run a serious risk of becoming ill from the bacteria listeria, which is often found in raw milk and can cause miscarriage, or illness, stillbirth, or death of the newborn baby. If you are pregnant, drinking raw milk —— or eating foods made from raw milk —— can harm your baby even if you don't feel sick.>

2. Page 3, after line 27 by inserting:

<DANGERS OF LISTERIA AND PREGNANCY

Pregnant women run a serious risk of becoming ill from the bacteria listeria, which is often found in raw milk and can

cause miscarriage, or illness, stillbirth, or death of the newborn baby. If you are pregnant, drinking raw milk —— or eating foods made from raw milk —— can harm your baby even if you don't feel sick.>

JANET PETERSEN

S–5050

Amend the amendment, S–5048, to Senate File 2328, as follows:

1. By striking page 2, line 16, through page 3, line 8, and inserting:

<___. By striking page 16, line 10, through page 20, line 5.>

2. Page 3, by striking lines 17 through 23.

3. Page 3, by striking lines 27 through 30 and inserting:

<___. Title page, by striking lines 6 through 8 and inserting <and work release, crime victim rights, and certain reporting requirements, and making penalties applicable.>>

4. By renumbering as necessary.

NATE BOULTON

S–5051

Amend House File 2346, as passed by the House, as follows:

1. Page 2, after line 5 by inserting:

<Sec. ___. EFFECTIVE DATE. This Act takes effect January 1, 2023.>

2. Title page, lines 2 and 3, by striking <and making penalties applicable.> and inserting <making penalties applicable, and including effective date provisions.>

3. By renumbering as necessary.

CRAIG JOHNSON

S–5052

Amend Senate File 2328 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

PERMANENT NO-CONTACT ORDERS —— MODIFICATION —— REINSTATEMENT —— CONVERSION —— APPELLATE REVIEW

Section 1. Section 664A.5, Code 2022, is amended by striking the section and inserting in lieu thereof the following:

664A.5 Modification —— entry of permanent no-contact order.

1. If a defendant is convicted of, receives a deferred judgment for, or pleads guilty to a public offense referred to in section 664A.2, subsection 1, or is held in contempt for a violation of a no-contact order issued under section 664A.3

or for a violation of a protective order issued pursuant to chapter 232, 235F, 236, 236A, 598, or 915, the court shall enter a permanent no-contact order which shall remain in effect until modified or dissolved under this section.

2. A permanent no-contact order entered under this section may be modified or dissolved upon application by the victim to the district court subject to all of the following:

a. The application may be filed by the victim, a victim counselor as defined in section 915.20A, the victim's attorney, or the prosecuting attorney.

b. The prosecuting attorney shall be notified of the application if filed by the victim.

c. The prosecuting attorney shall be given the opportunity to be heard at a hearing prior to the modification or dissolution of the no-contact order.

d. If a hearing is held, the court shall do all of the following:

(1) The victim may appear electronically, in person, or in writing, or through a victim counselor as defined in section 915.20A, through the victim's attorney, or through the prosecuting attorney.

(2) The victim shall not be subject to cross-examination

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by the defendant, but may be questioned by the prosecuting attorney under such conditions as the court may impose.

(3) The defendant shall not have the right to appear in person, but the defendant may be compelled to appear by the court.

3. A permanent no-contact order entered under this section may be modified or dissolved upon application by the defendant to the district court subject to all of the following:

a. The application must be verified.

b. The application must be served upon the prosecuting attorney for the county in which the defendant principally resides.

c. The application must be served upon the prosecuting attorney for any county in which the defendant has been convicted of an offense requiring entry of a no-contact order under this chapter.

d. Prior to disposition of an application under this subsection, the prosecuting attorney must notify the victim, if the victim's address is known, and afford the victim the opportunity to be heard.

e. Five or more years have passed since the discharge of the sentence for the offense resulting in the issuance of the no-contact order, including any special sentence imposed under chapter 903B.

f. The defendant is not incarcerated for any offense at the time the application is filed.

g. The defendant has not been convicted of any new

indictable offense since the imposition of the permanent no-contact order.

4. Upon consideration of an application by the defendant to modify or dissolve a permanent no-contact order, the district court shall conduct an electronic or in-person hearing on the application and do all of the following:

a. Consider any evidence offered by the parties, subject to limitations under this section and any additional limitations

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the court may impose.

b. Provide the victim an opportunity to be heard in any of the following manners:

(1) Electronically, in person, or in writing.

(2) Personally, through a victim counselor as defined in section 915.20A, through the victim's attorney, or through the prosecuting attorney.

c. Prohibit the cross-examination of the victim by the defendant, but allow the prosecuting attorney to question the victim under such conditions as the court may impose.

5. The district court shall not modify or dissolve a permanent no-contact order unless the district court makes a written finding that the defendant no longer presents a danger to the victim and that the modification or dissolution is in the interest of justice.

Sec. 2. NEW SECTION. **664A.5A Reinstatement of expired no-contact orders.**

1. Upon the filing of an application by the victim, a victim counselor as defined in section 915.20A, the victim's attorney, or the prosecuting attorney, the court shall reinstate any permanent no-contact order that expired because it was not extended pursuant to section 664A.8, Code 2022.

2. A no-contact order issued prior to July 1, 2022, that is reinstated pursuant to this section shall be governed by section 664A.5.

3. An application to reinstate an expired no-contact order shall create a rebuttable presumption that the offender continues to present a danger to the victim and that reinstating an expired no-contact order is in the interest of justice. The application shall not require a statement that the offender committed a recent overt act.

4. The court shall only deny an application to reinstate an expired no-contact order if the court makes written findings that the defendant no longer presents a danger to the victim and that denying the request is in the interest of justice.

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Sec. 3. NEW SECTION. **664A.5B Conversion of existing no-contact orders.**

1. A five-year no-contact order entered prior to July 1,

2022, that has not expired as of July 1, 2022, may be converted into a permanent no-contact order as if the order was entered after July 1, 2022, upon application by the victim, a victim counselor as defined in section 915.20A, the victim's attorney, or the prosecuting attorney.

2. An application to convert a five-year no-contact order into a permanent no-contact order shall create a rebuttable presumption that the offender continues to present a danger to the victim and that converting the no-contact order is in the interest of justice. The application shall not require a statement that the offender committed a recent overt act.

3. The court shall only deny an application to convert a five-year no-contact order into a permanent no-contact order if the court makes written findings that the defendant no longer presents a danger to the victim and that denying the request is in the interest of justice.

Sec. 4. NEW SECTION. **664A.7A Appellate review.**

1. The provisions of this chapter are the only means by which a party may seek to modify a no-contact order, including any challenge to the conversion of a five-year no-contact order into a permanent no-contact order.

2. Appellate review of court order granting or denying a modification or dissolution of a no-contact order, including proceedings related to conversion of a five-year no-contact order, shall be by writ of certiorari. Such an order is not appealable as a matter of right.

Sec. 5. Section 708.2A, subsection 8, Code 2022, is amended to read as follows:

8. If a person is convicted for, receives a deferred judgment for, or pleads guilty to a violation of this section, the court shall modify the no-contact order issued upon initial appearance and enter a permanent no-contact order in the manner

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provided in section 664A.5, regardless of whether the person is placed on probation.

Sec. 6. LEGISLATIVE FINDINGS —— REINSTATEMENT OF EXPIRED NO-CONTACT ORDERS. The general assembly finds and declares all of the following:

1. The procedure required to extend no-contact orders issued pursuant to chapter 664A prior to July 1, 2022, imposed unreasonable barriers for crime victims to ensure no-contact orders remained in place.

2. It is against the public policy of this state to deny a crime victim the protection of a no-contact order because the victim was unaware of the deadline to extend a no-contact order or was unable to navigate the complexities of the court system.

3. The law of this state in existence prior to July 1, 2022, does not provide an adequate remedy to safeguard crime victims from offenders who continue to present a danger to the victim after a no-contact order has expired.

4. A crime victim previously protected by an expired no-contact order should not have to wait for the offender to commit additional criminal acts to remain protected.

5. Reinstating expired no-contact orders pursuant to section 664A.5A, as enacted in this division of this Act, furthers the interest of justice and serves the compelling government interest of protecting crime victims from further harm by offenders whose guilt has already been adjudicated.

6. Reinstating expired no-contact orders pursuant to section 664A.5A, as enacted in this division of this Act, does not impose a new punishment on the offender, but instead provides collateral relief and protection for the victim without requiring the victim to bear the cost of a separate court action.

Sec. 7. REPEAL. Section 664A.8, Code 2022, is repealed.

DIVISION II

DOMESTIC ABUSE ASSAULT PENALTIES

Sec. 8. Section 708.2A, subsection 6, paragraph a, Code

2022, is amended by striking the paragraph.

DIVISION III

LIMITATION OF CRIMINAL ACTIONS INVOLVING CERTAIN SEXUAL OFFENSES

Sec. 9. Section 802.2B, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 5A. Continuous sexual abuse of a child in violation of section 709.23.

NEW SUBSECTION. 5B. Kidnapping in the first degree when the person kidnapped, and as a consequence of the kidnapping, is intentionally subjected to sexual abuse in violation of section 710.2.

NEW SUBSECTION. 5C. Burglary in the first degree in violation of section 713.3, subsection 1, paragraph *"d"*.

Sec. 10. Section 802.2C, Code 2022, is amended to read as follows:

802.2C Kidnapping.

An information or indictment for kidnapping in the first, second, or third degree, except as provided in section 802.2B, committed on or with a person who is under the age of eighteen years shall be found within ten years after the person upon whom the offense is committed attains eighteen years of age, or if the person against whom the information or indictment is sought is identified through the use of a DNA profile, an information or indictment shall be found within three years from the date the person is identified by the person's DNA profile, whichever is later.

DIVISION IV

CRIMINAL SENTENCING AND CORRECTIONS

Sec. 11. Section 901.4B, subsection 2, Code 2022, is amended to read as follows:

2. After hearing any statements presented pursuant to subsection 1, and before imposing sentence, the court shall address any victim of the crime who is physically present at the sentencing and shall ~~allow~~ do all of the following:

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a. Ask any victim or representative of the victim whether the victim has been informed by the prosecuting attorney or the prosecuting attorney's designee of the status of the case and of the prosecuting attorney's recommendation for sentencing.

b. Allow any victim to be reasonably heard, including but not limited to by presenting a victim impact statement in the manner described in section 915.21.

Sec. 12. Section 901.8, Code 2022, is amended to read as follows:

901.8 Consecutive sentences.

1. If a person is sentenced for two or more separate offenses, the sentencing judge may order the second or further sentence to begin at the expiration of the first or succeeding sentence.

2. If a person is sentenced for escape under section 719.4 or for a crime committed while confined in a detention facility or penal institution, the sentencing judge shall order the sentence to begin at the expiration of any existing sentence. If the person is presently in the custody of the director of the Iowa department of corrections, the sentence shall be served at the facility or institution in which the person is already confined unless the person is transferred by the director.

3. If a person is sentenced for two or more separate offenses contained in section 902.12, subsection 1, and one or more of the convictions is for an offense under chapter 709 or chapter 710, the sentencing judge shall require that the sentences be served consecutively.

4. Except as otherwise provided in section 903A.7, if consecutive sentences are specified in the order of commitment, the several terms shall be construed as one continuous term of imprisonment.

Sec. 13. Section 901.11, subsections 2, 3, 4, and 5, Code 2022, are amended to read as follows:

2. At the time of sentencing, the court shall determine

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when a person convicted of child endangerment as described in section 902.12, subsection ~~2~~ 3, shall first become eligible for parole or work release within the parameters specified in section 902.12, subsection ~~2~~ 3, based upon all pertinent information including the person's criminal record, a validated risk assessment, and whether the offense involved multiple intentional acts or a series of intentional acts, or whether

the offense involved torture or cruelty.

3. At the time of sentencing, the court shall determine when a person convicted of robbery in the first degree as described in section 902.12, subsection ~~3~~ 4, shall first become eligible for parole or work release within the parameters specified in section 902.12, subsection ~~3~~ 4, based upon all pertinent information including the person's criminal record, a validated risk assessment, and the negative impact the offense has had on the victim or other persons.

4. At the time of sentencing, the court shall determine when a person convicted of robbery in the second degree as described in section 902.12, subsection ~~4~~ 5, shall first become eligible for parole or work release within the parameters specified in section 902.12, subsection ~~4~~ 5, based upon all pertinent information including the person's criminal record, a validated risk assessment, and the negative impact the offense has had on the victim or other persons.

5. At the time of sentencing, the court shall determine when a person convicted of arson in the first degree as described in section 902.12, subsection ~~5~~ 6, shall first become eligible for parole or work release within the parameters specified in section 902.12, subsection ~~5~~ 6, based upon all pertinent information including the person's criminal record, a validated risk assessment, and the negative impact the offense has had on the victim or other persons.

Sec. 14. NEW SECTION. **902.9A Minimum sentence —— certain felonies.**

The minimum sentence for any person convicted of a felony

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contained in section 902.12, and who did not receive a deferred judgment or a deferred or suspended sentence under chapter 907, shall be that prescribed by statute or, if not prescribed by statute, shall be determined as follows:

1. A class "B" felon shall be confined for no less than one year.

2. A class "C" felon shall be confined for no less than two months.

3. A class "D" felon shall be confined for no less than one month.

Sec. 15. Section 902.12, Code 2022, is amended to read as follows:

902.12 Minimum sentence for certain felonies —— eligibility for parole or work release.

1. A person serving a sentence for conviction of any of the following felonies that occur on or after July 1, 2022, if other than a class "A" felony, shall be denied parole or work release unless the person has served at least nine-tenths of the maximum term of the person's sentence:

a. Homicide or a related crime in violation of chapter 707.

b. Assault in violation of chapter 708.

c. Terrorism in violation of chapter 708A.

d. Sexual abuse in violation of chapter 709.

e. Kidnapping or related offenses in violation of chapter 710.

f. Human trafficking in violation of chapter 710A, except for a violation of section 710A.2A.

g. Robbery, aggravated theft, or extortion in violation of chapter 711.

h. Arson in violation of chapter 712.

i. Burglary in violation of chapter 713, except for a violation of section 713.7.

j. Criminal gang participation or gang recruitment in violation of chapter 723A.

k. Obscenity in violation of chapter 728.

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~~1.~~ 2. A person serving a sentence for conviction of any of the following felonies~~, including a person serving a sentence for conviction of the following felonies~~ that occur prior to July 1, ~~2003~~ 2022, shall be denied parole or work release unless the person has served at least seven-tenths of the maximum term of the person's sentence:

a. Murder in the second degree in violation of section 707.3.

b. Attempted murder in violation of section 707.11, except as provided in section 707.11, subsection 5.

c. Sexual abuse in the second degree in violation of section 709.3.

d. Kidnapping in the second degree in violation of section 710.3.

e. Robbery in the second degree in violation of section 711.3, except as determined in subsection ~~4~~ 5.

f. Vehicular homicide in violation of section 707.6A, subsection 1 or 2, if the person was also convicted under section 321.261, subsection 4, based on the same facts or event that resulted in the conviction under section 707.6A, subsection 1 or 2.

~~2.~~ 3. A person serving a sentence for a conviction of child endangerment as defined in section 726.6, subsection 1, paragraph *"b"*, that is described and punishable under section 726.6, subsection 5, shall be denied parole or work release until the person has served between three-tenths and seven-tenths of the maximum term of the person's sentence as determined under section 901.11, subsection 2.

~~3.~~ 4. A person serving a sentence for a conviction for robbery in the first degree in violation of section 711.2 for a conviction that occurs ~~on or after July 1, 2018~~ prior to July 1, 2022, shall be denied parole or work release until the person has served between one-half and seven-tenths of the maximum term of the person's sentence as determined under section 901.11, subsection 3.

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~~4.~~ 5. A person serving a sentence for a conviction for robbery in the second degree in violation of section 711.3 for a conviction that occurs ~~on or after July 1, 2016~~ prior to July 1, 2022, shall be denied parole or work release until the person has served between one-half and seven-tenths of the maximum term of the person's sentence as determined under section 901.11, subsection 4.

~~5.~~ 6. A person serving a sentence for a conviction for arson in the first degree in violation of section 712.2 that occurs ~~on or after July 1, 2019~~ prior to July 1, 2022, shall be denied parole or work release until the person has served between one-half and seven-tenths of the maximum term of the person's sentence as determined under section 901.11, subsection 5.

Sec. 16. Section 903A.2, subsection 1, paragraph c, Code 2022, is amended to read as follows:

c. Category "C" sentences are those sentences for attempted murder described in section 707.11, subsection 5, and sentences for the offenses described in section 902.12, subsection 1. Notwithstanding ~~paragraphs~~ paragraph *"a"* or *"b"*, an inmate serving a category "C" sentence is ineligible for a reduction of sentence under this section.

DIVISION V

PAROLE AND WORK RELEASE

Sec. 17. Section 906.4, subsection 1, Code 2022, is amended to read as follows:

1. A parole or work release shall be ordered only for the best interest of society, any victim of the person, and the ~~offender~~ person, not as an award of clemency. The board shall release on parole or work release any person whom it has the power to so release, only when in its opinion there is ~~reasonable~~ a significant probability that the person can be released without detriment to the community, any victim of the person, or to the person. A person's release is not a detriment to the community, any victim of the person,

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or the person if the person is able and willing to fulfill the obligations of a law-abiding citizen, in the board's determination.

Sec. 18. Section 906.5, subsection 1, paragraph a, Code 2022, is amended to read as follows:

a. The board shall establish and implement a plan by which the board systematically reviews the status of each person who has been committed to the custody of the director of the Iowa department of corrections and considers the person's prospects for parole or work release. The board shall, at least annually ~~shall~~ but no more frequently than every six months, review the status of a person other than a class "A" felon, a class

"B" felon serving a sentence of more than twenty-five years, ~~or~~ a felon serving an offense punishable under section 902.9, subsection 1, paragraph *"a"*, or a felon serving a mandatory minimum sentence other than a class "A" felon, and provide the person with notice of the board's parole or work release decision.

Sec. 19. Section 906.5, subsection 1, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *c.* The board shall require that all parole hearings be recorded and maintained as public records under chapter 22 for a minimum of three years from the date of the hearing or the most recent release of an inmate on parole.

Sec. 20. Section 906.5, subsection 2, Code 2022, is amended to read as follows:

2. It is the intent of the general assembly that the board shall implement a plan of early release ~~in an effort to assist in controlling the prison population and assuring prison space for the confinement of offenders whose release would be detrimental to the citizens of this state~~ to ensure that parole or work release is only ordered when in the best interest of society, any victim of the person, and the person. The board shall report to the legislative services agency on a monthly basis concerning the implementation of this plan and the number

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of inmates paroled pursuant to this plan and the average length of stay of those paroled.

DIVISION VI

CRIME VICTIMS —— RIGHTS

Sec. 21. Section 915.11, subsection 1, Code 2022, is amended to read as follows:

1. *a.* A local police department or county sheriff's department shall advise a victim of the right to register with the county attorney, and shall provide a request-for-registration form to each victim. A local police department or county sheriff's department shall provide a telephone number and internet site to each victim to register with the automated victim notification system established pursuant to section 915.10A.

b. A local police department or county sheriff's department shall provide a victim with a pamphlet explaining the victim's rights as a victim of a public offense or delinquent act.

Sec. 22. Section 915.20, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 1A. A local police department or county sheriff's department shall provide to the crime victim assistance division of the department of justice with the contact information for a victim of a public offense or delinquent act. A victim counselor shall contact a victim to determine whether the victim is in need of further assistance from the victim counselor or whether the victim has any

questions regarding the person's rights as a victim.

Sec. 23. Section 915.38, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 3A. *a.* It is the public policy of the state that statements made by children to forensic interviewers at child advocacy centers and child protection centers are presumptively reliable and should be admitted into evidence in the courts.

b. Notwithstanding any other provision of law, the court

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shall upon motion of a party admit a recorded statement of a child as defined in section 702.5, if all of the following apply:

(1) The recorded statement describes conduct that violates chapter 709 or describes circumstances relevant to such conduct.

(2) The recorded statement was obtained by a forensic interviewer employed by an accredited child advocacy center or child protection center.

(3) The interview was conducted substantially in accordance with a nationally recognized protocol for interviewing children.

(4) The recorded statement is offered in a criminal proceeding, the opposing party was given at least ten days' notice prior to the trial commencing of the intention to admit the recorded statement, and any of the following apply:

(a) The child testifies at trial.

(b) The child has been questioned by the defendant or the defendant's attorney at a deposition or at any substantially similar setting.

(c) The child is unavailable as a witness as provided in rule of evidence 5.804(a).

(d) The court finds by a preponderance of the evidence that the child would suffer significant emotional or psychological trauma from testifying in the personal presence of the defendant at the time of the criminal proceeding.

c. A court may deny the admission of a recorded statement under this section only if the party opposing the admission proves by clear and convincing evidence that the recorded statement is unreliable.

d. Portions of a recorded interview admitted pursuant to this section may be redacted under the following circumstances:

(1) By agreement of the parties.

(2) By order of the court, if the court finds by a preponderance of the evidence that redaction is necessary to

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either:

(a) Minimize embarrassment or trauma to the child.

(b) Effectuate a provision of the rules of evidence other than the rules against hearsay.

Sec. 24. NEW SECTION. **915.44A Limitation of evidence in sexual abuse cases.**

A defendant charged with a criminal offense for sexual abuse under chapter 709 or who has filed an application for postconviction relief upon conviction for a sexual offense under chapter 709 shall be precluded from questioning any victim regarding evidence which is inadmissible under rule of evidence 5.412. Prohibited evidence includes all of the following:

1. Reputation or opinion evidence of a victim offered to prove that a victim engaged in other sexual behavior.

2. Evidence of a victim's other sexual behavior other than reputation or opinion evidence.

Sec. 25. COMMISSION ON CONTINUING LEGAL EDUCATION —— CONTINUING LEGAL EDUCATION REQUIREMENTS. The commission on continuing legal education shall amend Iowa court rule 42.2 to require all attorneys licensed in this state complete a minimum of one hour, annually, of continuing legal education that focuses on crime victims and how to improve a crime victim's experience within the criminal justice system.

DIVISION VII

REQUIRED REPORTS TO THE GENERAL ASSEMBLY

Sec. 26. NEW SECTION. **602.6204 Reporting requirement.**

Each district judge shall submit to the governor and to the general assembly, not later than December 15 each year, an annual report which shall include all of the following:

1. The number of deferred judgments, deferred sentences, and suspended sentences the court entered, including the criminal offenses involved, during the previous year.

2. The number of defendants who received deferred judgments, deferred sentences, and suspended sentences during

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the previous year.

3. The number of cases where the court pronounced judgment and imposed sentence after a defendant failed to comply with the conditions set by the court for a deferred judgment or deferred sentence.

4. The number of cases where the court revoked a suspended sentence after a defendant failed to comply with conditions set by the court.

5. The types of violations by a defendant of the conditions imposed by the court that resulted in the court pronouncing judgment and imposing sentence or revoking a suspended sentence of a defendant. The report shall include information on whether the violations were technical violations, due to the commission of a new crime, or due to any other reason.

Sec. 27. NEW SECTION. **904.103A Recidivism —— annual report.**

1. The department, in cooperation with the board of parole,

shall submit to the governor and to the general assembly, not later than December 15 each year, an annual report detailing the recidivism rate in the state specifically for the violent and sexual criminal offenses contained in section 902.12.

2. The report shall include, at a minimum, all of the following:

a. The rate of recidivism, including the percentage and number of offenders who committed another crime within three years of being released from the custody of the department.

b. The percentage and number of offenders paroled or placed on probation who violate the conditions of the offender's release and are reincarcerated including information regarding offenders who were returned for technical violations, and those who were returned for the commission of a new crime.

c. Whether there were victims involved in the crimes committed while an offender was paroled or on probation, and whether any of the victims were previous victims of the offender.

d. The types of offenses that caused the offender to be

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returned to the custody of the department.

e. The type of release that preceded the offender's return to the custody of the department.

f. The number of hearings the board of parole held before the release of an offender who subsequently violated the conditions of release and who was subsequently returned to the custody of the department.>

2. Title page, by striking lines 1 and 2 and inserting <An Act relating to criminal law including>

3. Title page, by striking lines 6 through 8 and inserting < and work release, crime victim rights, and certain reporting requirements, and making penalties applicable.>

4. By renumbering as necessary.

HERMAN C. QUIRMBACH

S–5053

Amend Senate File 2344 as follows:

1. Page 2, line 5, by striking <commission by rule,> and inserting <commission,>

DAWN DRISCOLL

S–5054

Amend the amendment, S–5048, to Senate File 2328, as follows:

1. Page 3, after line 23 by inserting:

<DIVISION ___

COURT PROCEDURE IN CIVIL CASES —— STATUTES OF LIMITATIONS FOR CERTAIN CIVIL ACTIONS

Sec. ___. Section 602.1205, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 3. *a.* The district court shall try civil cases in the order in which cases are initiated by the filing of a petition, provided that the following cases shall be entitled to a preference:

(1) Actions that have been revived pursuant to section 614.1, subsection 12, paragraph *"b"*, or section 614.8A, subsection 2.

(2) An action in which the interests of justice, as determined by the supreme court, will be served by early trial.

b. The court shall adopt rules to implement this subsection.

c. Unless the court otherwise orders, notice of a motion for preference shall be served with the petition by the party serving the petition, or ten days after such service by any other party.

Sec. ___. Section 614.1, subsection 12, Code 2022, is amended to read as follows:

12. *a.* (1) *Sexual abuse or sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction.* ~~An~~ If the victim was eighteen years of age or older, an action for damages for injury suffered as a result of sexual abuse, as defined in section 709.1, by a counselor, therapist, school employee, or adult providing training or instruction, as defined in section 709.15, or as a result of sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction shall be brought within five years of the date the victim was last treated by the counselor or therapist, or within five years

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of the date the victim was last enrolled in or attended the school.

(2) If the victim was a minor, an action for damages for injury suffered as a result of sexual abuse, as defined in section 709.1, by a counselor, therapist, or school employee, as defined in section 709.15, or as a result of sexual exploitation by a counselor, therapist, or school employee may be brought at any time.

b. (1) Notwithstanding paragraph *"a"*, subparagraph (2), every claim or cause of action brought against any party alleging intentional or negligent acts or omissions by a person for physical, psychological, or other injury or condition suffered as a result of conduct which would constitute sexual abuse as defined in section 709.1, by a counselor, therapist, or school employee as defined in section 709.15, or as a result of sexual exploitation by a counselor, therapist, or school, which is barred as of the effective date of this Act because the applicable period of limitation has expired or

the plaintiff previously failed to file a petition, is hereby revived, and action thereon may be commenced not later than three years after the effective date of this Act.

(2) Dismissal of a previous action, ordered before the effective date of this Act, on grounds that such previous action was time-barred, or of failure of a party to file a petition, shall not be grounds for dismissal of a revival action pursuant to this paragraph.

Sec. ___. Section 614.8, Code 2022, is amended to read as follows:

614.8 Minors and persons with mental illness.

1. ~~The~~ Except as provided in section 614.1, subsection 12, or section 614.8A, the times limited for actions in this chapter, or for complaints or claims in chapter 216, 669, or 670, except those brought for penalties and forfeitures, are extended in favor of persons with mental illness, so that they shall have one year from and after the termination of the

disability within which to file a complaint pursuant to chapter 216, to make a claim pursuant to chapter 669 or 670, or to otherwise commence an action.

2. Except as provided in section 614.1, subsection 9 or 12, or section 614.8A, the times limited for actions in this chapter, or for complaints or claims in chapter 216, 659A, 669, or 670, except those brought for penalties and forfeitures, are extended in favor of minors, so that they shall have one year from and after attainment of majority within which to file a complaint pursuant to chapter 216, to make a claim pursuant to chapter 669, or to otherwise commence an action.

Sec. ___. Section 614.8A, Code 2022, is amended to read as follows:

614.8A ~~Damages~~ Commencement of action for minor or child sexual abuse and other sexual offenses —— no time limitation.

~~An action for damages for injury suffered as a result of sexual abuse which occurred when the injured person was a child, but not discovered until after the injured person is of the age of majority, shall be brought within four years from the time of discovery by the injured party of both the injury and the causal relationship between the injury and the sexual abuse.~~

1. Notwithstanding the times limited for actions in this chapter, an action relating to injuries suffered as a result of sexual abuse as defined in section 802.2, and injuries suffered as a result of other sexual offenses including lascivious acts with a child in violation of section 709.8, assault with intent to commit sexual abuse in violation of section 709.11, indecent contact with a child in violation of section 709.12, lascivious conduct with a minor in violation of section 709.14, sexual misconduct with a juvenile in violation of section 709.16, subsection 2, child endangerment in violation of section 726.6,

or sexual exploitation of a minor in violation of section 728.12, which occurred when the injured party was a minor may be brought at any time.

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2. *a.* Notwithstanding subsection 1, every claim or cause of action brought against any party alleging intentional or negligent acts or omissions by a person for physical, psychological, or other injury or condition suffered as a result of conduct which would constitute sexual abuse as defined in section 709.1, by a counselor, therapist, or school employee as defined in section 709.15, subsection 1, or as a result of sexual exploitation by a counselor, therapist, or school, which is barred as of the effective date of this Act because the applicable period of limitation has expired or the plaintiff previously failed to file a petition, is hereby revived, and action thereon may be commenced not later than three years after the effective date of this Act.

b. Dismissal of a previous action, ordered before the effective date of this Act, on grounds that such previous action was time-barred, or of failure of a party to file a petition, shall not be grounds for dismissal of a revival action pursuant to this section.>

2. Page 3, line 29, after <conditional guilty pleas,> by inserting <court procedure in civil cases, statues of limitations in civil actions,>

JANET PETERSEN

S–5055

Amend Senate File 2080 as follows:

1. Page 1, line 13, after <district> by inserting <and accredited nonpublic school>

2. Page 1, line 22, after <district> by inserting <or an accredited nonpublic school>

3. Title page, line 3, after <districts,> by inserting <accredited nonpublic schools,>

SARAH TRONE GARRIOTT

S–5056

Amend Senate File 2333 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

CONTROLLABLE ELECTRONIC RECORDS

Section 1. NEW SECTION. **554.14101 Short title.**

This Article may be cited as the Uniform Commercial Code —— Controllable Electronic Records.

Sec. 2. NEW SECTION. **554.14102 Definitions.**

1. Article 14 definitions. In this Article:

a. "Controllable electronic record" means a record stored in an electronic medium that can be subjected to control under section 554.14105. The term does not include a deposit account, electronic chattel paper, electronic copy of a record evidencing chattel paper, electronic document of title, electronic money, investment property, or a transferable record.

b. "Qualifying purchaser" means a purchaser of a controllable electronic record or an interest in the controllable electronic record that obtains control of the controllable electronic record for value, in good faith, and without notice of a claim of a property right in the controllable electronic record.

c. "Transferable record" means:

(1) *"Transferable record"*, as defined in the federal Electronic Signatures in Global and National Commerce Act, 15 U.S.C. §7021(a)(1), as amended.

(2) *"Transferable record"* as defined in the uniform electronic transactions Act, section 554D.118, subsection 1.

d. "Value" has the meaning provided in section 554.3303, subsection 1.

2. Definitions in Article 9. The definitions in Article 9 of *"account debtor"*, *"authenticate"*, *"controllable account"*, *"controllable payment intangible"*, *"chattel paper"*, *"deposit account"*, *"electronic chattel paper"*, *"electronic money"*, and

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"investment property" apply to this Article.

Sec. 3. NEW SECTION. **554.14103 Scope.**

1. *Article 9 governs in case of conflict.* If there is conflict between this Article and Article 9, Article 9 governs.

2. *Applicable consumer law and other laws.* A transaction subject to this Article is subject to:

a. any applicable rule of law that establishes a different rule for consumers, including as provided in chapter 537 and any other consumer protection statute or regulation of this state; and

b. any other statute or regulation of this state that regulates the rates, charges, agreements, and practices for loans, credit sales, or other extensions of credit or credit transactions, including as provided in chapter 535.

Sec. 4. NEW SECTION. **554.14104 Rights in controllable account, controllable electronic record, and controllable payment intangible.**

1. *Applicability of section to controllable account and controllable payment intangible.* This section applies to the acquisition and purchase of rights in a controllable account or controllable payment intangible, including the rights of a purchaser and a qualifying purchaser and under subsections

3, 4, and 6, and in the same manner this section applies to a controllable electronic record.

2. *Applicability of other law to acquisition of rights.* Except as provided in this section, law other than this Article determines whether a person acquires a right in a controllable electronic record and the right the person acquires.

3. *Shelter principle and purchase of limited interest.* A purchaser of a controllable electronic record acquires all rights in the controllable electronic record that the transferor had or had power to transfer, except that a purchaser of a limited interest in a controllable electronic record acquires rights only to the extent of the interest

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purchased.

4. *Rights of qualifying purchaser.* A qualifying purchaser acquires its rights in the controllable electronic record free of a claim of a property right in the controllable electronic record.

5. *Limitation of rights of qualifying purchaser in other property.* Except as provided in subsections 1 and 4 for controllable accounts and controllable payment intangibles or law other than this Article, a qualifying purchaser takes a right to payment, right to performance, or interest in property evidenced by the controllable electronic record subject to a claim of a property right in the right to payment, right to performance, or other interest in property.

6. *No-action protection for qualifying purchaser.* An action shall not be asserted against a qualifying purchaser based on both a purchase by the qualifying purchaser of a controllable electronic record and a claim of a property right in another controllable electronic record, whether framed in conversion, replevin, constructive trust, equitable lien, or other theory.

7. *Filing notice.* Filing of a financing statement under Article 9 is not notice of a claim of a property right in a controllable electronic record.

Sec. 5. NEW SECTION. **554.14105 Control of controllable electronic record.**

1. *General rule —— control of controllable electronic record.* A person has control of a controllable electronic record if:

a. the electronic record, a record attached to or logically associated with the electronic record, or a system in which the electronic record is recorded gives the person:

(1) the power to avail itself of substantially all the benefit from the electronic record; and

(2) exclusive power, subject to subsection 2, to:

(a) prevent others from availing themselves of substantially all the benefit from the electronic record; and

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(b) transfer control of the electronic record to another person or cause another person to obtain control of another controllable electronic record as a result of the transfer of the electronic record; and

b. the electronic record, a record attached to or logically associated with the electronic record, or a system in which the electronic record is recorded enables the person readily to identify itself in any way, including by name, identifying number, cryptographic key, office, or account number, as having the powers specified in paragraph *"a"*.

2. *Control through another person.* A person has control of a controllable electronic record if another person, other than the transferor of an interest in the electronic record:

a. has control of the electronic record and acknowledges that it has control on behalf of the person, or

b. obtains control of the electronic record after having acknowledged that it will obtain control of the electronic record on behalf of the person.

3. *Meaning of exclusive.* A power specified in subsection 1, paragraph *"a"*, subparagraph (2), is exclusive, even if:

a. the controllable electronic record or a system in which the electronic record is recorded limits the use of the electronic record or has a protocol programmed to cause a change, including a transfer or loss of control or a modification of benefits afforded by the electronic record; or

b. the person has agreed to share the power with another person.

Sec. 6. NEW SECTION. **554.14106 Discharge of account debtor on controllable account or controllable payment intangible.**

1. *Discharge of account debtor.* An account debtor on a controllable account or controllable payment intangible may discharge its obligation by paying:

a. the person having control of the controllable electronic record that evidences the controllable account or controllable payment intangible; or

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b. except as provided in subsection 2, a person that formerly had control of the controllable electronic record.

2. *Effect of notification.* Subject to subsection 4, an account debtor shall not discharge its obligation by paying a person that formerly had control of the controllable electronic record if the account debtor receives a notification that:

a. is authenticated by a person that formerly had control or the person to which control was transferred;

b. reasonably identifies the controllable account or controllable payment intangible;

c. notifies the account debtor that control of the controllable electronic record that evidences the controllable

account or controllable payment intangible was transferred;
d. identifies the transferee, in any reasonable way, including by name, identifying number, cryptographic key, office, or account number; and
e. provides a commercially reasonable method by which the account debtor is to pay the transferee.
3. *Discharge following effective notification.* After receipt of a notification that complies with subsection 2, the account debtor may discharge its obligation only by paying in accordance with the notification and shall not discharge the obligation by paying a person that formerly had control.
4. *When notification ineffective.* Notification is ineffective under subsection 2:
a. unless, before the notification is sent, an account debtor and the person that, at that time, had control of the controllable electronic record that evidences the controllable account or controllable payment intangible agree in an authenticated record to a commercially reasonable method by which a person must furnish reasonable proof that control has been transferred;
b. to the extent an agreement between an account debtor and seller of a payment intangible limits the account debtor's duty to pay a person other than the seller and the limitation is

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effective under law other than this Article; or
c. at the option of an account debtor, if the notification notifies the account debtor to:
(1) divide a payment;
(2) make less than the full amount of any installment or other periodic payment; or
(3) pay any part of a payment by more than one method or to more than one person.
5. *Proof of transfer of control.* If requested by the account debtor, the person giving the notification seasonably shall furnish reasonable proof, using the agreed method, that control of the controllable electronic record has been transferred. Unless the person complies with the request, the account debtor may discharge its obligation by paying a person that formerly had control, even if the account debtor has received a notification under subsection 2.
6. *What constitutes reasonable proof.* A person furnishes reasonable proof that control has been transferred if the person demonstrates, using the agreed method, that the transferee has the power to:
a. avail itself of substantially all the benefit from the controllable electronic record;
b. prevent others from availing themselves of substantially all the benefit from the controllable electronic record; and
c. transfer the powers mentioned in paragraphs *"a"* and *"b"* to another person.

7. *Rights not waivable.* An account debtor shall not waive or vary its rights under subsection 4, paragraph *"a"*, and subsection 5 or its option under subsection 4, paragraph *"c"*.

Sec. 7. NEW SECTION. **554.14107 Governing law.**

Unless otherwise agreed to by the parties, the laws of this state shall govern any actions taken pursuant to this Article. This Article and the local law of this state shall apply to any transaction involving a controllable account, controllable electronic record, or controllable payment intangible if

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under section 554.9306A, the local law of this state governs perfection, the effect of perfection or nonperfection, and the priority of a security interest in such controllable account, controllable electronic record, or controllable payment intangible.

Sec. 8. NEW SECTION. **554.14108 Applicability.**

This Article applies to any transaction involving a controllable electronic record that arises on or after the effective date of this Article. This Article does not apply to any transaction involving a controllable electronic record that arises before the effective date of this Article even if the transaction would be subject to this Article if the transaction had arisen on or after the effective date of this Article. This Article does not apply to a right of action with regard to any transaction involving a controllable electronic record that has accrued before the effective date of this Article.

Sec. 9. NEW SECTION. **554.14109 Savings clause.**

Any transaction involving a controllable electronic record that arose before the effective date of this Article and the rights, obligations, and interests flowing from that transaction are governed by any statute or other rule amended or repealed by this Article as if such amendment or repeal had not occurred and may be terminated, completed, consummated, or enforced under that statute or other rule.

DIVISION II

CORRESPONDING CHANGES

PART A

GENERAL PROVISIONS

Sec. 10. Section 554.1201, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *0q. "Electronic"* means relating to technology having electrical, digital, magnetic, wireless, optical, electromagnetic, or similar capabilities.

Sec. 11. Section 554.1201, subsection 2, paragraph x, Code 2022, is amended to read as follows:

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x. "Money" means a medium of exchange that:

(1) is currently authorized or adopted by a domestic or

foreign government, by an intergovernmental organization, or pursuant to an agreement between two or more governments; and

(2) was initially issued, created, or distributed by a domestic or foreign government, by an intergovernmental organization, or pursuant to an agreement between two or more governments. ~~The term includes a monetary unit of account established by an intergovernmental organization or by agreement between two or more countries.~~

Sec. 12. Section 554.1204, unnumbered paragraph 1, Code 2022, is amended to read as follows:

Except as otherwise provided in Articles 3, 4, ~~and~~ 5, and 14, a person gives value for rights if the person acquires them:

PART B

SECURED TRANSACTIONS

Sec. 13. Section 554.9102, subsection 1, paragraphs b and bi, Code 2022, are amended to read as follows:

b. "Account", except as used in *"account for"*, *"on account of"*, and paragraph *"ac"*, means a right to payment of a monetary obligation, whether or not earned by performance, (i) for property that has been or is to be sold, leased, licensed, assigned, or otherwise disposed of; (ii) for services rendered or to be rendered; (iii) for a policy of insurance issued or to be issued; (iv) for a secondary obligation incurred or to be incurred; (v) for energy provided or to be provided; (vi) for the use or hire of a vessel under a charter or other contract; (vii) arising out of the use of a credit or charge card or information contained on or for use with the card; or (viii) as winnings in a lottery or other game of chance operated or sponsored by a state, governmental unit of a state, or person licensed or authorized to operate the game by a state or governmental unit of a state. The term includes controllable accounts and health care insurance receivables. The term does not include ~~rights to payment evidenced by chattel paper~~

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~~or an instrument,~~ (i) chattel paper, (ii) commercial tort claims, (iii) deposit accounts, (iv) investment property, (v) letter-of-credit rights or letters of credit, ~~or~~ (vi) rights to payment for money or funds advanced or sold, other than rights arising out of the use of a credit or charge card or information contained on or for use with the card, or (vii) rights to payment evidenced by an instrument.

bi. "Payment intangible" means a general intangible under which the account debtor's principal obligation is a monetary obligation. The term includes a controllable payment intangible.

Sec. 14. Section 554.9102, subsection 1, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *0ab. "Controllable account"* means an account evidenced by a controllable electronic record that provides that the account debtor undertakes to pay the person that under

section 554.14105 has control of the controllable electronic record.

NEW PARAGRAPH. *00ab. "Controllable payment intangible"* means a payment intangible evidenced by a controllable electronic record that provides that the account debtor undertakes to pay the person that under section 554.14105 has control of the controllable electronic record.

NEW PARAGRAPH. *0af. "Electronic money"* means money that is in an electronic form.

NEW PARAGRAPH. *0bc. "Money"* has the meaning provided in section 554.1201, subsection 2, paragraph *"x"*, but does not include a deposit account.

NEW PARAGRAPH. *0cb. "Tangible money"* means money in a tangible form.

Sec. 15. Section 554.9102, subsection 2, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *0i.* "Controllable electronic record" Section 554.14102.

NEW PARAGRAPH. *0ae.* "Qualifying

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purchaser" Section 554.14102.

Sec. 16. NEW SECTION. **554.9105A Control of electronic money.**

1. *General rule —— control of electronic money.* A person has control of electronic money if:

a. the electronic money or a system in which the electronic money is recorded gives the person:

(1) the power to avail itself of substantially all the benefit from the electronic money; and

(2) exclusive power, subject to subsection 2, to:

(a) prevent others from availing themselves of substantially all the benefit from the electronic money; and

(b) transfer control of the electronic money to another person or cause another person to obtain control of other electronic money as a result of the transfer of the electronic money; and

b. the electronic money, a record attached to or logically associated with the electronic money, or a system in which the electronic money is recorded enables the person readily to identify itself in any way, including by name, identifying number, cryptographic key, office, or account number, as having the powers under paragraph *"a"*.

2. *Control through another person.* A person has control of electronic money if another person, other than the transferor of an interest in the electronic money:

a. has control of the electronic money and acknowledges that it has control on behalf of the person, or

b. obtains control of the electronic money after having acknowledged that it will obtain control of the electronic money on behalf of the person.

3. *Meaning of exclusive.* A power is exclusive under subsection 1, paragraph *"a"*, subparagraph (2), even if:

a. the electronic money or a system in which the electronic money is recorded limits the use of the electronic money or has a protocol programmed to transfer control; or

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b. the person has agreed to share the power with another person.

Sec. 17. NEW SECTION. **554.9107A Control of controllable account, controllable electronic record, or controllable payment intangible.**

1. *Control under section 554.14105.* A secured party has control of a controllable electronic record as provided in section 554.14105.

2. *Control of controllable account and controllable payment intangible.* A secured party has control of a controllable account or controllable payment intangible if the secured party has control of the controllable electronic record that evidences the controllable account or controllable payment intangible.

Sec. 18. Section 554.9203, subsection 2, Code 2022, is amended to read as follows:

2. *Enforceability.* Except as otherwise provided in subsections 3 through ~~9~~ 10, a security interest is enforceable against the debtor and third parties with respect to the collateral only if:

a. value has been given;

b. the debtor has rights in the collateral or the power to transfer rights in the collateral to a secured party; and

c. one of the following conditions is met:

(1) the debtor has authenticated a security agreement that provides a description of the collateral and, if the security interest covers timber to be cut, a description of the land concerned;

(2) the collateral is not a certificated security and is in the possession of the secured party under section 554.9313 pursuant to the debtor's security agreement;

(3) the collateral is a certificated security in registered form and the security certificate has been delivered to the secured party under section 554.8301 pursuant to the debtor's security agreement; or

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(4) the collateral is controllable accounts, controllable electronic records, controllable payment intangibles, deposit accounts, electronic chattel paper, electronic documents, electronic money, investment property, or letter-of-credit rights, ~~or electronic documents,~~ and the secured party has control under section 554.7106, 554.9104, 554.9105, 554.9105A,

554.9106, ~~or~~ 554.9107, or 554.9107A pursuant to the debtor's security agreement.

Sec. 19. Section 554.9203, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 10. *Controllable account or controllable payment intangible.* The attachment of a security interest in a controllable electronic record that evidences a controllable account or controllable payment intangible is also attachment of a security interest in the controllable account or controllable payment intangible.

Sec. 20. Section 554.9207, subsection 3, Code 2022, is amended to read as follows:

3. *Duties and rights when secured party in possession or control.* Except as otherwise provided in subsection 4, a secured party having possession of collateral or control of collateral under section 554.7106, 554.9104, 554.9105, 554.9105A, 554.9106, ~~or~~ 554.9107, or 554.9107A:

a. may hold as additional security any proceeds, except money or funds, received from the collateral;

b. shall apply money or funds received from the collateral to reduce the secured obligation, unless remitted to the debtor; and

c. may create a security interest in the collateral.

Sec. 21. Section 554.9208, subsection 2, paragraphs e and f, Code 2022, are amended to read as follows:

e. a secured party having control of a letter-of-credit right under section 554.9107 shall send to each person having an unfulfilled obligation to pay or deliver proceeds of the letter of credit to the secured party an authenticated release

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from any further obligation to pay or deliver proceeds of the letter of credit to the secured party; ~~and~~

f. a secured party having control of an electronic document shall:

(1) give control of the electronic document to the debtor or its designated custodian;

(2) if the debtor designates a custodian that is the designated custodian with which the authoritative copy of the electronic document is maintained for the secured party, communicate to the custodian an authenticated record releasing the designated custodian from any further obligation to comply with instructions originated by the secured party and instructing the custodian to comply with instructions originated by the debtor; and

(3) take appropriate action to enable the debtor or its designated custodian to make copies of or revisions to the authoritative copy which add or change an identified assignee of the authoritative copy without the consent of the secured party~~.~~; and

Sec. 22. Section 554.9208, subsection 2, Code 2022, is

amended by adding the following new paragraphs:

NEW PARAGRAPH. *g.* a secured party having control under section 554.9105A of electronic money shall transfer control of the electronic money to the debtor or a person designated by the debtor; and

NEW PARAGRAPH. *h.* a secured party having control under section 554.14105 of a controllable electronic record shall transfer control of the controllable electronic record to the debtor or a person designated by the debtor.

Sec. 23. Section 554.9301, subsection 3, Code 2022, is amended to read as follows:

3. Except as otherwise provided in subsection 4, while tangible negotiable documents, goods, instruments, tangible money, or tangible chattel paper is located in a jurisdiction, the local law of that jurisdiction governs:

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a. perfection of a security interest in the goods by filing a fixture filing;

b. perfection of a security interest in timber to be cut; and

c. the effect of perfection or nonperfection and the priority of a nonpossessory security interest in the collateral.

Sec. 24. NEW SECTION. **554.9306A Law governing perfection and priority of security interests in controllable accounts, controllable electronic records, and controllable payment intangibles.**

The local law of this state governs perfection, the effect of perfection or nonperfection, and the priority of a security interest in a controllable account, controllable electronic record, or controllable payment intangible granted by a debtor located in this state at the time the security interest becomes enforceable against the debtor with respect to the collateral under section 554.9203.

Sec. 25. Section 554.9308, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 8. *Controllable account or payment intangible.* Perfection of a security interest in a controllable electronic record that evidences a controllable account or controllable payment intangible also perfects a security interest in the controllable account or controllable payment intangible.

Sec. 26. Section 554.9310, subsection 2, paragraph h, Code 2022, is amended to read as follows:

h. in controllable accounts, controllable electronic records, controllable payment intangibles, deposit accounts, electronic chattel paper, electronic documents, investment property, or letter-of-credit rights which is perfected by

control under section 554.9314;

Sec. 27. Section 554.9312, Code 2022, is amended to read as follows:

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554.9312 Perfection of security interests in <u>controllable accounts, controllable electronic records, controllable payment intangibles,</u> chattel paper, deposit accounts, documents, goods covered by documents, instruments, investment property, letter-of-credit rights, and money —— perfection by permissive filing —— temporary perfection without filing or transfer of possession.

1. *Perfection by filing permitted.* A security interest in <u>controllable accounts, controllable electronic records, controllable payment intangibles,</u> chattel paper, negotiable documents, instruments, or investment property may be perfected by filing.

2. *Control or possession of certain collateral.* Except as otherwise provided in section 554.9315, subsections 3 and 4, for proceeds:

a. a security interest in a deposit account may be perfected only by control under section 554.9314;

b. and except as otherwise provided in section 554.9308, subsection 4, a security interest in a letter-of-credit right may be perfected only by control under section 554.9314; ~~and~~

c. a security interest in <u>tangible</u> money may be perfected only by the secured party's taking possession under section 554.9313<u>; and</u>

<u>*d.* a security interest in electronic money may be perfected only by control under section 554.9314</u>.

3. *Goods covered by negotiable document.* While goods are in the possession of a bailee that has issued a negotiable document covering the goods:

a. a security interest in the goods may be perfected by perfecting a security interest in the document; and

b. a security interest perfected in the document has priority over any security interest that becomes perfected in the goods by another method during that time.

4. *Goods covered by nonnegotiable document.* While goods are in the possession of a bailee that has issued a nonnegotiable

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document covering the goods, a security interest in the goods may be perfected by:

a. issuance of a document in the name of the secured party;

b. the bailee's receipt of notification of the secured party's interest; or

c. filing as to the goods.

5. *Temporary perfection —— new value.* A security interest in certificated securities, negotiable documents,

or instruments is perfected without filing or the taking of possession or control for a period of twenty days from the time it attaches to the extent that it arises for new value given under an authenticated security agreement.

6. *Temporary perfection —— goods or documents made available to debtor.* A perfected security interest in a negotiable document or goods in possession of a bailee, other than one that has issued a negotiable document for the goods, remains perfected for twenty days without filing if the secured party makes available to the debtor the goods or documents representing the goods for the purpose of:

a. ultimate sale or exchange; or

b. loading, unloading, storing, shipping, transshipping, manufacturing, processing, or otherwise dealing with them in a manner preliminary to their sale or exchange.

7. *Temporary perfection —— delivery of security certificate or instrument to debtor.* A perfected security interest in a certificated security or instrument remains perfected for twenty days without filing if the secured party delivers the security certificate or instrument to the debtor for the purpose of:

a. ultimate sale or exchange; or

b. presentation, collection, enforcement, renewal, or registration of transfer.

8. *Expiration of temporary perfection.* After the twenty-day period specified in subsection 5, 6, or 7 expires, perfection depends upon compliance with this Article.

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Sec. 28. Section 554.9313, subsection 1, Code 2022, is amended to read as follows:

1. *Perfection by possession or delivery.* Except as otherwise provided in subsection 2, a secured party may perfect a security interest in tangible negotiable documents, goods, instruments, tangible money, or tangible chattel paper by taking possession of the collateral. A secured party may perfect a security interest in certificated securities by taking delivery of the certificated securities under section 554.8301.

Sec. 29. Section 554.9314, subsections 1 and 2, Code 2022, are amended to read as follows:

1. *Perfection by control.* A security interest in ~~investment property, deposit accounts, letter-of-credit rights, electronic chattel paper, or electronic documents~~ controllable accounts, controllable electronic records, controllable payment intangibles, deposit accounts, electronic chattel paper, electronic documents, electronic money, investment property, or letter-of-credit rights, may be perfected by control of the collateral under section 554.7106, 554.9104, 554.9105, 554.9105A, 554.9106, ~~or~~ 554.9107, or 554.9107A.

2. *Specified collateral —— time of perfection by control ——*

continuation of perfection. A security interest in ~~deposit accounts, electronic chattel paper, letter of credit rights, or electronic documents~~ controllable accounts, controllable electronic records, controllable payment intangibles, deposit accounts, electronic chattel paper, electronic documents, electronic money, or letter-of-credit rights, is perfected by control under section 554.7106, 554.9104, 554.9105, 554.9105A ~~or~~ 554.9107, or 554.9107A when the secured party obtains control and remains perfected by control only while the secured party retains control.

Sec. 30. NEW SECTION. **554.9326A Priority of security interests in controllable account, controllable electronic record, and controllable payment intangible.**

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A security interest in a controllable account, controllable electronic record, or controllable payment intangible held by a secured party having control of the account, electronic record, or payment intangible has priority over a conflicting security interest held by a secured party that does not have control.

Sec. 31. Section 554.9331, Code 2022, is amended to read as follows:

554.9331 Priority of rights of purchasers of ~~instruments,~~ controllable accounts, controllable records, controllable payment intangibles, documents, instruments, and securities under other ~~articles~~ Articles —— priority of interests in financial assets and security entitlements and protections against assertions of claims under ~~Article~~ Articles 8 and 14.

1. *Rights under Articles 3, 7, ~~and~~ 8, and 14 not limited.* This Article does not limit the rights of a holder in due course of a negotiable instrument, a holder to which a negotiable document of title has been duly negotiated, ~~or~~ a protected purchaser of a security, or a qualifying purchaser of a controllable account, controllable electronic record, or controllable payment intangible. These holders or purchasers take priority over an earlier security interest, even if perfected, to the extent provided in Articles 3, 7, ~~and~~ 8, and 14.

2. *Protection under ~~Article~~ Articles 8 and 14.* This Article does not limit the rights of or impose liability on a person to the extent that the person is protected against the assertion of a claim under Article 8 or 14.

3. *Filing not notice.* Filing under this Article does not constitute notice of a claim or defense to the holders, ~~or~~ purchasers, or persons described in subsections 1 and 2.

Sec. 32. Section 554.9332, Code 2022, is amended to read as follows:

554.9332 Transfer of money —— transfer of funds from deposit account.

1. *Transferee of tangible money.* A transferee of tangible

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money takes the money free of a security interest ~~unless the transferee acts~~ in the money if the transferee when receiving delivery of the money does not act in collusion with the debtor in violating the rights of the secured party.

2. *Transferee of electronic money.* A transferee of electronic money takes the money free of a security interest in the money if the transferee when obtaining control of the money does not act in collusion with the debtor in violating the rights of the secured party.

~~2.~~ 3. *Transferee of funds from deposit account.* A transferee of funds from a deposit account takes the funds free of a security interest in the deposit account ~~unless the transferee acts~~ if the transferee when receiving the funds does not act in collusion with the debtor in violating the rights of the secured party.

Sec. 33. Section 554.9406, subsections 1, 2, and 3, Code 2022, are amended to read as follows:

1. *Discharge of account debtor —— effect of notification.* Subject to subsections 2 through 9 and 11, an account debtor on an account, chattel paper, or a payment intangible may discharge its obligation by paying the assignor until, but not after, the account debtor receives a notification, authenticated by the assignor or the assignee, that the amount due or to become due has been assigned and that payment is to be made to the assignee. After receipt of the notification, the account debtor may discharge its obligation by paying the assignee and may not discharge the obligation by paying the assignor.

2. *When notification ineffective.* Subject to ~~subsection~~ subsections 8 and 11, notification is ineffective under subsection 1:

a. if it does not reasonably identify the rights assigned;

b. to the extent that an agreement between an account debtor and a seller of a payment intangible limits the account debtor's duty to pay a person other than the seller and the

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limitation is effective under law other than this Article; or

c. at the option of an account debtor, if the notification notifies the account debtor to make less than the full amount of any installment or other periodic payment to the assignee, even if:

(1) only a portion of the account, chattel paper, or payment intangible has been assigned to that assignee;

(2) a portion has been assigned to another assignee; or

(3) the account debtor knows that the assignment to that assignee is limited.

3. *Proof of assignment.* Subject to ~~subsection~~ subsections 8 and 11, if requested by the account debtor, an assignee shall

seasonably furnish reasonable proof that the assignment has been made. Unless the assignee complies, the account debtor may discharge its obligation by paying the assignor, even if the account debtor has received a notification under subsection 1.

Sec. 34. Section 554.9406, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 11. *Inapplicability of certain subsections.* Subsections 1 through 3 and 7 do not apply to a controllable account or controllable payment intangible.

Sec. 35. Section 554.9601, subsection 2, Code 2022, is amended to read as follows:

2. *Rights and duties of secured party in possession or control.* A secured party in possession of collateral or control of collateral under section 554.7106, 554.9104, 554.9105, 554.9105A, 554.9106, ~~or~~ 554.9107, or 554.9107A has the rights and duties provided in section 554.9207.

Sec. 36. Section 554.9605, Code 2022, is amended to read as follows:

554.9605 Unknown debtor or secondary obligor.

1. *Duties to unknown persons —— general rule.* ~~A~~ Except as provided in subsection 2, a secured party does not owe a duty based on its status as secured party:

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~~1.~~ *a.* to a person that is a debtor or obligor, unless the secured party knows:

~~a.~~ (1) that the person is a debtor or obligor;

~~b.~~ (2) the identity of the person; and

~~c.~~ (3) how to communicate with the person; or

~~2.~~ *b.* to a secured party or lienholder that has filed a financing statement against a person, unless the secured party knows:

~~a.~~ (1) that the person is a debtor; and

~~b.~~ (2) the identity of the person.

2. *When secured party owes duty to debtor notwithstanding subsection 1.* A secured party owes a duty based on its status as a secured party to a person that is a debtor if, at the time the secured party obtains control of a controllable account, controllable electronic record, or controllable payment intangible, the secured party has knowledge that the nature of the collateral or a system in which the collateral is recorded would prevent the secured party from acquiring the knowledge specified in subsection 1, paragraph *"a"*, subparagraph (1), (2), or (3).

Sec. 37. Section 554.9628, subsection 2, Code 2022, is amended to read as follows:

2. *Limitation of liability based on status as secured party.* ~~A~~ Subject to subsection 6, a secured party is not liable because of its status as secured party:

a. to a person that is a debtor or obligor, unless the

secured party knows:
(1) that the person is a debtor or obligor;
(2) the identity of the person; and
(3) how to communicate with the person; or
b. to a secured party or lienholder that has filed a financing statement against a person, unless the secured party knows:
(1) that the person is a debtor; and
(2) the identity of the person.

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Sec. 38. Section 554.9628, Code 2022, is amended by adding the following new subsection:
NEW SUBSECTION. 6. *When secured party owes duty to debtor notwithstanding subsection 2.* A secured party owes a duty based on its status as a secured party to a person that is a debtor if, at the time the secured party obtains control of a controllable account, controllable electronic record, or controllable payment intangible, the secured party has knowledge that the nature of the collateral or a system in which the collateral is recorded would prevent the secured party from acquiring the knowledge specified in subsection 2, paragraph *"a"*, subparagraph (1), (2), or (3).>

JEFF TAYLOR

S–5057

Amend House File 2154, as passed by the House, as follows:
1. Page 1, after line 31 by inserting:
<Sec. ___. Section 411.5, subsection 6, paragraph d, Code 2022, is amended by striking the paragraph.>
2. By renumbering as necessary.

COMMITTEE ON STATE GOVERNMENT
ROBY SMITH, CHAIRPERSON

S–5058

Amend the amendment, S–5052, to Senate File 2328, as follows:
1. By striking page 1, line 1, through page 17, line 13, and inserting:
<Amend Senate File 2328 as follows:
1. By striking everything after the enacting clause and inserting:
<DIVISION I
COMMUNICATIONS IN PROFESSIONAL CONFIDENCE —— CRIMINAL ACTIONS
Section 1. Section 622.10, subsection 4, paragraph a, subparagraph (2), Code 2022, is amended by adding the following new subparagraph division:

NEW SUBPARAGRAPH DIVISION. (e) For purposes of this subsection, *"exculpatory information"* means only information that tends to negate the guilt of the defendant, and not information that is merely impeaching or is substantially cumulative in nature.

DIVISION II

NO-CONTACT ORDERS

Sec. 2. Section 664A.8, Code 2022, is amended to read as follows:

664A.8 Extension of no-contact order.

~~Upon the filing of an application by the state or by the victim of any public offense referred to in section 664A.2, subsection 1 which is filed within ninety days prior to the expiration of a modified no-contact order, the~~ The court shall modify and extend the no-contact order upon the expiration of the no-contact order for an additional period of five years, unless, upon the filing of an application by the defendant within ninety days prior to the expiration of a modified no-contact order, the court finds that the defendant no longer poses a threat to the safety of the victim, persons residing with the victim, or members of the victim's family. The number of modifications extending the no-contact order permitted by this section is not limited.

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DIVISION III

DOMESTIC ABUSE ASSAULT PENALTIES

Sec. 3. Section 708.2A, subsection 6, paragraph a, Code 2022, is amended by striking the paragraph.

DIVISION IV

LIMITATION OF CRIMINAL ACTIONS INVOLVING CERTAIN SEXUAL OFFENSES

Sec. 4. Section 802.2B, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 5A. Continuous sexual abuse of a child in violation of section 709.23.

NEW SUBSECTION. 5B. Kidnapping in the first degree when the person kidnapped, and as a consequence of the kidnapping, is intentionally subjected to sexual abuse in violation of section 710.2.

NEW SUBSECTION. 5C. Burglary in the first degree in violation of section 713.3, subsection 1, paragraph *"d"*.

Sec. 5. Section 802.2C, Code 2022, is amended to read as follows:

802.2C Kidnapping.

An information or indictment for kidnapping in the first, second, or third degree, except as provided in section 802.2B, committed on or with a person who is under the age of eighteen years shall be found within ten years after the person upon whom the offense is committed attains eighteen years of age, or if the person against whom the information or indictment

is sought is identified through the use of a DNA profile, an information or indictment shall be found within three years from the date the person is identified by the person's DNA profile, whichever is later.

DIVISION V

CRIMINAL SENTENCING AND CORRECTIONS

Sec. 6. Section 901.4B, subsection 2, Code 2022, is amended to read as follows:

2. After hearing any statements presented pursuant to

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subsection 1, and before imposing sentence, the court shall address any victim of the crime who is physically present at the sentencing and shall ~~allow~~ do all of the following:

a. Ask any victim or representative of the victim whether the victim has been informed by the prosecuting attorney or the prosecuting attorney's designee of the status of the case and of the prosecuting attorney's recommendation for sentencing.

b. Allow any victim to be reasonably heard, including but not limited to by presenting a victim impact statement in the manner described in section 915.21.

Sec. 7. Section 901.8, Code 2022, is amended to read as follows:

901.8 Consecutive sentences.

1. If a person is sentenced for two or more separate offenses, the sentencing judge may order the second or further sentence to begin at the expiration of the first or succeeding sentence.

2. If a person is sentenced for escape under section 719.4 or for a crime committed while confined in a detention facility or penal institution, the sentencing judge shall order the sentence to begin at the expiration of any existing sentence. If the person is presently in the custody of the director of the Iowa department of corrections, the sentence shall be served at the facility or institution in which the person is already confined unless the person is transferred by the director.

3. If a person is sentenced for two or more separate offenses contained in section 902.12, subsection 1, and one or more of the convictions is for an offense under chapter 709 or chapter 710, the sentencing judge shall require that the sentences be served consecutively.

4. Except as otherwise provided in section 903A.7, if consecutive sentences are specified in the order of commitment, the several terms shall be construed as one continuous term of imprisonment.

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Sec. 8. Section 901.11, subsections 2, 3, 4, and 5, Code 2022, are amended to read as follows:

2. At the time of sentencing, the court shall determine when a person convicted of child endangerment as described in section 902.12, subsection ~~2~~ 3, shall first become eligible for parole or work release within the parameters specified in section 902.12, subsection ~~2~~ 3, based upon all pertinent information including the person's criminal record, a validated risk assessment, and whether the offense involved multiple intentional acts or a series of intentional acts, or whether the offense involved torture or cruelty.

3. At the time of sentencing, the court shall determine when a person convicted of robbery in the first degree as described in section 902.12, subsection ~~3~~ 4, shall first become eligible for parole or work release within the parameters specified in section 902.12, subsection ~~3~~ 4, based upon all pertinent information including the person's criminal record, a validated risk assessment, and the negative impact the offense has had on the victim or other persons.

4. At the time of sentencing, the court shall determine when a person convicted of robbery in the second degree as described in section 902.12, subsection ~~4~~ 5, shall first become eligible for parole or work release within the parameters specified in section 902.12, subsection ~~4~~ 5, based upon all pertinent information including the person's criminal record, a validated risk assessment, and the negative impact the offense has had on the victim or other persons.

5. At the time of sentencing, the court shall determine when a person convicted of arson in the first degree as described in section 902.12, subsection ~~5~~ 6, shall first become eligible for parole or work release within the parameters specified in section 902.12, subsection ~~5~~ 6, based upon all pertinent information including the person's criminal record, a validated risk assessment, and the negative impact the offense has had on the victim or other persons.

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Sec. 9. NEW SECTION. **902.9A Minimum sentence —— certain felonies.**

The minimum sentence for any person convicted of a felony contained in section 902.12, and who did not receive a deferred judgment or a deferred or suspended sentence under chapter 907, shall be that prescribed by statute or, if not prescribed by statute, shall be determined as follows:

1. A class "B" felon shall be confined for no less than one year.

2. A class "C" felon shall be confined for no less than two months.

3. A class "D" felon shall be confined for no less than one month.

Sec. 10. Section 902.12, Code 2022, is amended to read as follows:

902.12 Minimum sentence for certain felonies —— eligibility

for parole or work release.

1. A person serving a sentence for conviction of any of the following felonies that occur on or after July 1, 2022, if other than a class "A" felony, shall be denied parole or work release unless the person has served at least nine-tenths of the maximum term of the person's sentence:

a. Homicide or a related crime in violation of chapter 707.

b. Assault in violation of chapter 708.

c. Terrorism in violation of chapter 708A.

d. Sexual abuse in violation of chapter 709.

e. Kidnapping or related offenses in violation of chapter 710.

f. Human trafficking in violation of chapter 710A, except for a violation of section 710A.2A.

g. Robbery, aggravated theft, or extortion in violation of chapter 711.

h. Arson in violation of chapter 712.

i. Burglary in violation of chapter 713, except for a violation of section 713.7.

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j. Criminal gang participation or gang recruitment in violation of chapter 723A.

k. Sexual exploitation of a minor in violation of section 728.12.

~~1.~~ 2. A person serving a sentence for conviction of any of the following felonies~~, including a person serving a sentence for conviction of the following felonies~~ that occur prior to July 1, ~~2002~~ 2022, shall be denied parole or work release unless the person has served at least seven-tenths of the maximum term of the person's sentence:

a. Murder in the second degree in violation of section 707.3.

b. Attempted murder in violation of section 707.11, except as provided in section 707.11, subsection 5.

c. Sexual abuse in the second degree in violation of section 709.3.

d. Kidnapping in the second degree in violation of section 710.3.

e. Robbery in the second degree in violation of section 711.3, except as determined in subsection ~~4~~ 5.

f. Vehicular homicide in violation of section 707.6A, subsection 1 or 2, if the person was also convicted under section 321.261, subsection 4, based on the same facts or event that resulted in the conviction under section 707.6A, subsection 1 or 2.

~~2.~~ 3. A person serving a sentence for a conviction of child endangerment as defined in section 726.6, subsection 1, paragraph *"b"*, that is described and punishable under section 726.6, subsection 5, shall be denied parole or work release until the person has served between three-tenths and

seven-tenths of the maximum term of the person's sentence as determined under section 901.11, subsection 2.

~~3.~~ 4. A person serving a sentence for a conviction for robbery in the first degree in violation of section 711.2 for a conviction that occurs ~~on or after July 1, 2018~~ prior to

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July 1, 2022, shall be denied parole or work release until the person has served between one-half and seven-tenths of the maximum term of the person's sentence as determined under section 901.11, subsection 3.

~~4.~~ 5. A person serving a sentence for a conviction for robbery in the second degree in violation of section 711.3 for a conviction that occurs ~~on or after July 1, 2016~~ prior to July 1, 2022, shall be denied parole or work release until the person has served between one-half and seven-tenths of the maximum term of the person's sentence as determined under section 901.11, subsection 4.

~~5.~~ 6. A person serving a sentence for a conviction for arson in the first degree in violation of section 712.2 that occurs ~~on or after July 1, 2019~~ prior to July 1, 2022, shall be denied parole or work release until the person has served between one-half and seven-tenths of the maximum term of the person's sentence as determined under section 901.11, subsection 5.

Sec. 11. Section 903A.2, subsection 1, paragraph c, Code 2022, is amended to read as follows:

c. Category "C" sentences are those sentences for attempted murder described in section 707.11, subsection 5, and sentences for the offenses described in section 902.12, subsection 1. Notwithstanding ~~paragraphs~~ paragraph *"a"* or *"b"*, an inmate serving a category "C" sentence is ineligible for a reduction of sentence under this section.

DIVISION VI

PAROLE AND WORK RELEASE

Sec. 12. Section 906.4, subsection 1, Code 2022, is amended to read as follows:

1. A parole or work release shall be ordered only for the best interest of society, any victim of the person, and the ~~offender~~ person, not as an award of clemency. The board shall release on parole or work release any person whom it has the power to so release, only when in its opinion there

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is ~~reasonable~~ a significant probability that the person can be released without detriment to the community, any victim of the person, or to the person. A person's release is not a detriment to the community, any victim of the person, or the person if the person is able and willing to fulfill the obligations of a law-abiding citizen, in the board's

determination.

Sec. 13. Section 906.5, subsection 1, paragraph a, Code 2022, is amended to read as follows:

a. The board shall establish and implement a plan by which the board systematically reviews the status of each person who has been committed to the custody of the director of the Iowa department of corrections and considers the person's prospects for parole or work release. The board shall, at least annually ~~shall~~ but no more frequently than every six months, review the status of a person other than a class "A" felon, a class "B" felon serving a sentence of more than twenty-five years, ~~or~~ a felon serving an offense punishable under section 902.9, subsection 1, paragraph *"a"*, or a felon serving a mandatory minimum sentence other than a class "A" felon, and provide the person with notice of the board's parole or work release decision.

Sec. 14. Section 906.5, subsection 1, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *c.* The board shall require that all parole hearings be recorded and maintained as public records under chapter 22 for a minimum of three years from the date of the hearing or the most recent release of an inmate on parole.

Sec. 15. Section 906.5, subsection 2, Code 2022, is amended to read as follows:

2. It is the intent of the general assembly that the board shall implement a plan of early release ~~in an effort to assist in controlling the prison population and assuring prison space for the confinement of offenders whose release would be detrimental to the citizens of this state~~ to ensure that parole

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or work release is only ordered when in the best interest of society, any victim of the person, and the person. The board shall report to the legislative services agency on a monthly basis concerning the implementation of this plan and the number of inmates paroled pursuant to this plan and the average length of stay of those paroled.

DIVISION VII

CRIME VICTIMS —— RIGHTS

Sec. 16. Section 915.11, subsection 1, Code 2022, is amended to read as follows:

1. *a.* A local police department or county sheriff's department shall advise a victim of the right to register with the county attorney, and shall provide a request-for-registration form to each victim. A local police department or county sheriff's department shall provide a telephone number and internet site to each victim to register with the automated victim notification system established pursuant to section 915.10A.

b. A local police department or county sheriff's department shall provide a victim with a pamphlet explaining the victim's

rights as a victim of a public offense or delinquent act.

Sec. 17. Section 915.20, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 1A. A local police department or county sheriff's department shall provide to the crime victim assistance division of the department of justice with the contact information for a victim of a public offense or delinquent act. A victim counselor shall contact a victim to determine whether the victim is in need of further assistance from the victim counselor or whether the victim has any questions regarding the person's rights as a victim.

Sec. 18. Section 915.38, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 3A. *a.* It is the public policy of the state that statements made by children to forensic interviewers

at child advocacy centers and child protection centers are presumptively reliable and should be admitted into evidence in the courts.

b. Notwithstanding any other provision of law, the court shall upon motion of a party admit a recorded statement of a child as defined in section 702.5, if all of the following apply:

(1) The recorded statement describes conduct that constitutes a public offense committed against or involving a child, or describes circumstances relevant to such conduct.

(2) The recorded statement was obtained by a forensic interviewer employed by an accredited child advocacy center or child protection center.

(3) The interview was conducted substantially in accordance with a nationally recognized protocol for interviewing children.

(4) The recorded statement is offered in a criminal proceeding, the opposing party was given at least ten days' notice prior to the trial commencing of the intention to admit the recorded statement, and any of the following apply:

(a) The child testifies at trial.

(b) The child has been questioned by the defendant or the defendant's attorney at a deposition or at any substantially similar setting.

(c) The child is unavailable as a witness as provided in rule of evidence 5.804(a).

(d) The court finds by a preponderance of the evidence that the child would suffer significant emotional or psychological trauma from testifying in the personal presence of the defendant at the time of the criminal proceeding.

c. A court may deny the admission of a recorded statement under this section only if the party opposing the admission

proves by clear and convincing evidence that the recorded statement is unreliable.

d. Portions of a recorded interview admitted pursuant to

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this section may be redacted under the following circumstances:

(1) By agreement of the parties.

(2) By order of the court, if the court finds by a preponderance of the evidence that redaction is necessary to either:

(a) Minimize embarrassment or trauma to the child.

(b) Effectuate a provision of the rules of evidence other than the rules against hearsay.

Sec. 19. NEW SECTION. **915.44A Limitation of evidence in sexual abuse cases.**

A defendant charged with a criminal offense under chapter 709 who has filed an application for postconviction relief upon conviction for a criminal offense under chapter 709 shall be precluded from questioning any victim or any other person regarding evidence which is inadmissible under rule of evidence 5.412 or any other successor provision. Prohibited evidence includes all of the following:

1. Reputation or opinion evidence of a victim offered to prove that a victim engaged in other sexual behavior.

2. Evidence of a victim's other sexual behavior other than reputation or opinion evidence.

3. Evidence of a victim's sexual predisposition.

Sec. 20. COMMISSION ON CONTINUING LEGAL EDUCATION —— CONTINUING LEGAL EDUCATION REQUIREMENTS. The supreme court shall amend Iowa court rule 42.2 to require all attorneys licensed in this state to complete a minimum of one hour, annually, of continuing legal education that focuses on crime victims and how to improve a crime victim's experience within the criminal justice system.

DIVISION VIII
DISCOVERY

Sec. 21. NEW SECTION. **821A.1 Subpoenas in criminal actions.**

1. A criminal defendant or counsel acting on the defendant's behalf shall not issue any subpoena for documents or other evidence except upon application to the court. Such an

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application shall not be granted unless a defendant proves by a preponderance of the evidence all of the following:

a. The evidence is material and necessary to prepare a defense.

b. The defendant has made reasonable efforts to obtain the evidence without invoking compulsory process.

c. The evidence is not available from any other source.

d. For evidence that is obtainable by the state only through

the execution of a search warrant, the defendant must show probable cause that the information sought contains exculpatory information that is not available from any other source and that there is a compelling need for the evidence to enable the defendant to present a defense at trial.

2. This section is the exclusive mechanism for a criminal defendant or counsel acting on the defendant's behalf to issue a subpoena for documents or other evidence.

3. An application made pursuant to this section shall not be filed ex parte.

4. This section shall not apply to a subpoena issued solely to secure the presence of a witness listed in the minutes of testimony at an authorized deposition or to secure the presence of a witness listed in either the minutes of testimony or in the defendant's witness list submitted for a hearing or trial.

5. The prosecuting attorney shall not be required to execute or effectuate any order or subpoena issued pursuant to this section.

6. If any documents or evidence are obtained pursuant to this section, the criminal defendant or counsel acting on the defendant's behalf must notify the prosecuting attorney within twenty-four hours of obtaining the documents or evidence. The documents or evidence received, or copies of the same, must be provided to the prosecuting attorney as soon as possible.

7. Evidence or documents obtained by a subpoena that does not comply with this section shall not be admissible in any criminal action if offered by the defendant.

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8. Any person who knowingly issues a subpoena that does not comply with this section may be declared in contempt of court.

9. Nothing in this section shall eliminate or reduce a criminal defendant's obligation to comply with section 622.10, subsection 4, when seeking privileged records.

10. Any provision of law or rule of court promulgated by the supreme court that is inconsistent with this section shall have no legal effect.

Sec. 22. NEW SECTION. **821A.2 Discovery depositions in criminal actions —— witness lists.**

1. Discovery depositions shall not be permitted in any criminal action, except upon application to the court and a showing of exceptional circumstances.

2. A criminal defendant must file a witness list when the defendant requests or receives any discretionary discovery, the date when any deposition is taken, or ten days before trial, whichever date is earliest. If the defendant fails to timely list a witness, the court shall prohibit the witness from testifying at trial absent good cause shown for the defendant's failure to timely list the witness.

3. A person who is not yet a party to a criminal action shall not be permitted to depose another person until the time

the person who is not yet a party to the criminal action is charged with or indicted for the associated criminal offense.

DIVISION IX

POSTCONVICTION RELIEF AND DISCOVERY PROCEDURE

Sec. 23. Section 822.7, Code 2022, is amended to read as follows:

822.7 Court to hear application.

The application shall be heard in, and before any judge of the court in which the conviction or sentence took place. However, if the applicant is seeking relief under section 822.2, subsection 1, paragraph *"f"*, the application shall be heard in, and before any judge of the court of the county in which the applicant is being confined. A record of the

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proceedings shall be made and preserved. All rules and statutes applicable in civil proceedings ~~including pretrial and discovery procedures~~ are available to the parties, subject to the restrictions contained in section 822.7A. The court may receive proof of affidavits, depositions, oral testimony, or other evidence, and may order the applicant brought before it for the hearing. If the court finds in favor of the applicant, it shall enter an appropriate order with respect to the conviction or sentence in the former proceedings, and any supplementary orders as to rearraignment, retrial, custody, bail, discharge, correction of sentence, or other matters that may be necessary and proper. The court shall make specific findings of fact, and state expressly its conclusions of law, relating to each issue presented. This order is a final judgment.

Sec. 24. NEW SECTION. **822.7A Postconviction relief —— discovery.**

This chapter is intended to provide a limited scope of discovery that is no broader than what is afforded to a defendant in a criminal action. Notwithstanding any other statute, rule, or law, the following limitations on discovery and procedure shall apply to a claim for postconviction relief under this chapter.

1. An applicant may conduct discovery only by order of the court to be granted upon a showing that the information sought is reasonably calculated to lead to the discovery of admissible evidence to support or defeat a claim that is adequately pled in the application and, if taken as true, constitutes a colorable claim for relief.

2. An applicant shall not be permitted to depose or otherwise conduct discovery upon the victim, as defined in section 915.10, of the underlying public offense, unless the applicant proves all of the following by clear and convincing evidence:

a. The evidence is necessary to prove the applicant is

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actually innocent of the underlying public offense and all lesser-included offenses.

b. The information is not available from any other source.

c. Contact with a victim is minimized by limitations on the method of discovery including in camera review, remote testimony, or allowing a victim to provide a written statement in lieu of testimony.

3. The privileges contained in section 622.10 shall be absolute, except that the filing of an application shall waive any privilege an applicant may claim regarding an attorney who represented the applicant in the underlying criminal action or any previous postconviction action.

4. Evidence that would be excluded in a criminal action pursuant to rule of evidence 5.412 shall not be discoverable or admissible in a postconviction action.

5. The state shall not be required to produce copies of discovery that was previously disclosed to an applicant in the underlying criminal action or a previous postconviction relief action or which the applicant was in possession of in the underlying criminal action or a previous postconviction action.

6. The state shall not be required to produce any discovery contained in a court file accessible to the applicant.

7. The state shall not be required to produce any discovery that cannot be lawfully disseminated or that is otherwise confidential by law.

8. An applicant shall not be permitted to conduct discovery or seek the appointment of an expert witness through ex parte communication or in camera review.

9. Depositions shall only be permitted upon a showing of exceptional circumstances, except that the applicant's criminal trial counsel may be deposed by the respondent upon request or by the applicant pursuant to subsection 1 and a victim may only be deposed pursuant to subsection 2.

DIVISION X

REQUIRED REPORTS TO THE GENERAL ASSEMBLY

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Sec. 25. NEW SECTION. **602.6204 Reporting requirement.**

The state court administrator shall submit to the governor and to the general assembly, not later than December 15 each year, an annual report which shall include, for the violent and sexual criminal offenses listed in section 902.12, all of the following:

1. The number of deferred judgments, deferred sentences, and suspended sentences the court entered, including the criminal offenses involved, during the previous year.

2. The number of defendants who received deferred judgments, deferred sentences, and suspended sentences during the previous year.

3. The number of cases where the court pronounced judgment and imposed sentence after a defendant failed to comply with the conditions set by the court for a deferred judgment or deferred sentence.

4. The number of cases where the court revoked a suspended sentence after a defendant failed to comply with conditions set by the court.

5. The types of violations by a defendant of the conditions imposed by the court that resulted in the court pronouncing judgment and imposing sentence or revoking a suspended sentence of a defendant. The report shall include information on whether the violations were technical violations, due to the commission of a new crime, or due to any other reason.

Sec. 26. NEW SECTION. **904.103A Recidivism —— annual report.**

1. The department, in cooperation with the board of parole, shall submit to the governor and to the general assembly, not later than December 15 each year, an annual report detailing the recidivism rate in the state specifically for the violent and sexual criminal offenses contained in section 902.12.

2. The report shall include, at a minimum, all of the following:

a. The rate of recidivism, including the percentage and number of offenders who committed another crime within three

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years of being released from the custody of the department.

b. The percentage and number of offenders paroled or placed on probation who violate the conditions of the offender's release and are reincarcerated including information regarding offenders who were returned for technical violations, and those who were returned for the commission of a new crime.

c. Whether there were victims involved in the crimes committed while an offender was paroled or on probation, and whether any of the victims were previous victims of the offender.

d. The types of offenses that caused the offender to be returned to the custody of the department.

e. The type of release that preceded the offender's return to the custody of the department.

f. The number of hearings the board of parole held before the release of an offender who subsequently violated the conditions of release and who was subsequently returned to the custody of the department.

DIVISION XI

CONDITIONAL GUILTY PLEAS

Sec. 27. NEW SECTION. **814.30 Conditional guilty pleas not allowed.**

A conditional guilty plea that reserves the right to appellate review of an adverse determination of a specified pretrial motion shall not be allowed.>>

2. Title page, by striking lines 1 through 3 and inserting

<An Act relating to criminal law including the disclosure of a defendant's privileged records in a criminal action, no-contact orders, penalties for domestic abuse>

3. Title page, by striking lines 7 and 8 and inserting <actions, postconviction relief procedure, certain reporting requirements, conditional guilty pleas, and making penalties applicable.>

JEFF REICHMAN

S–5059

Amend Senate File 2251 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

WORKFORCE ADVERTISING

Section 1. Section 7E.3, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 6. *Workforce advertising.* Ensure that companies that have no physical presence in the state shall not be allowed to advertise for workers on an internet site maintained by the department or independent agency or through any other means funded by an appropriation to the department or independent agency. However, this subsection shall not apply to advertisements for internships or other employment opportunities on an internet site or at an employee recruitment event maintained or sponsored by an institution under the control of the state board of regents or a community college.

DIVISION II

UNEMPLOYMENT INSURANCE

Sec. 2. DEPARTMENT OF WORKFORCE DEVELOPMENT —— UNEMPLOYMENT INSURANCE RULES. The department of workforce development shall adopt or amend its administrative rules pursuant to chapter 17A to allow employers to protest a payment of unemployment benefits and protest and sign a notice of claim electronically using a form created by the department. The department shall provide employees the option to submit the form by electronic mail or through an internet site maintained by the department.>

2. Title page, line 1, by striking <concerning> and inserting <relating to workers, concerning unemployment insurance and>

ADRIAN DICKEY

S–5060

Amend House File 2411, as passed by the House, as follows:

1. Page 1, after line 18 by inserting:

<Sec. ___. Section 85.27, subsection 5, Code 2022, is amended to read as follows:

5. *a.* When an artificial member or orthopedic appliance,

whether or not previously furnished by the employer, is damaged or made unusable by circumstances arising out of and in the course of employment other than through ordinary wear and tear, the employer shall repair or replace it. When any crutch, artificial member or appliance, whether or not previously furnished by the employer, either is damaged or made unusable in conjunction with a personal injury entitling the employee to disability benefits or services as provided by this section, or is damaged in connection with employee actions taken which avoid such personal injury, the employer shall repair or replace it.

b. Subject to paragraph *"a"* but notwithstanding any other provision of this section, an employer shall not be required to provide for the repair or replacement of an employee's permanent prosthetic device if the employee has an account credited to the employee pursuant to section 85.65, subsection 2, in relation to that permanent prosthetic device.

Sec. ___. Section 85.35, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 7A. *a.* If an injury relating to a claim results in the injured worker needing a medically necessary permanent prosthetic device or an alteration of an existing medically necessary permanent prosthetic device, a settlement pursuant to this section must describe the medically necessary permanent prosthetic device and identify which portion of the settlement proceeds are for the purpose of covering the estimated cost of future repair or replacement of the device.

b. Upon the approval of a settlement by the workers' compensation commissioner, moneys identified for the purpose of covering the cost of future repair or replacement of a

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permanent prosthetic device shall be paid to the treasurer of state as the custodian of the second injury fund for administration pursuant to section 85.65, subsection 2, section 85.66, and section 85.67A.

c. Notwithstanding any other provision of this chapter, moneys identified for the purpose of covering the estimated cost of future repair or replacement of a permanent prosthetic device shall not be used to calculate an injured worker's compensation schedule.

Sec. ___. Section 85.45, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4. When commuting future payments pursuant to this section, if the claim for workers' compensation benefits was related to an injury that resulted in the injured worker needing a medically necessary permanent prosthetic device or an alteration of an existing medically necessary permanent prosthetic device, a portion of the lump sum payment must be designated for the purpose of covering the estimated cost of repair or replacement of the permanent prosthetic

device. Moneys identified pursuant to this subsection shall be paid to the treasurer of state as custodian of the second injury fund for administration pursuant to section 85.65, subsection 2, section 85.66, and section 85.67A.

Sec. ___. Section 85.48, Code 2022, is amended to read as follows:

85.48 Partial commutation.

1. When partial commutation is ordered, the workers' compensation commissioner shall fix the lump sum to be paid at an amount which will equal the future payments for the period commuted, capitalized at their present value upon the basis of interest at the rate provided in section 535.3 for court judgments and decrees. Provisions shall be made for the payment of weekly compensation not included in the commutation with all remaining payments to be paid over the same period of time as though the commutation had not been made by either

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eliminating weekly payments from the first or last part of the payment period or by a pro rata reduction in the weekly benefit amount over the entire payment period.

2. When commuting future payments pursuant to this section, if the claim for workers' compensation benefits was related to an injury that resulted in the injured worker needing a medically necessary permanent prosthetic device or an alteration of an existing medically necessary permanent prosthetic device, a portion of the lump sum payment must be designated for the purposes of covering the estimated cost of repair or replacement of the permanent prosthetic device. Moneys identified pursuant to this subsection shall be paid to the treasurer of state as custodian of the second injury fund for administration pursuant to section 85.65, subsection 2, section 85.66, and section 85.67A.

Sec. ___. Section 85.61, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 01. *"Alteration"* means a material change to a permanent prosthetic device that is necessary due to an employee's injury, without which would not allow the injured employee use of the prosthetic device as effectively as prior to the injury.

Sec. ___. Section 85.65, Code 2022, is amended to read as follows:

85.65 Payments to second injury fund.

1. The employer, or, if insured, the insurance carrier in each case of compensable injury causing death, shall pay to the treasurer of state for the second injury fund the sum of twelve thousand dollars in a case where there are dependents and forty-five thousand dollars in a case where there are no dependents. The payment shall be made at the time compensation payments are begun, or at the time the burial expenses are paid in a case where there are no dependents. However, the

payments shall be required only in cases of injury resulting in death coming within the purview of this chapter and occurring

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after July 1, 1978. These payments shall be in addition to any payments of compensation to injured employees or their dependents, or of burial expenses as provided in this chapter.

2. *a.* The employer, or, if insured, the insurance carrier shall pay to the treasurer of state for the second injury fund the sum of moneys designated for the purpose of covering the estimated cost of repair or replacement of a permanent prosthetic device for an injured worker pursuant to section 85.35, 85.45, or 85.48.

b. (1) Upon receipt of moneys pursuant to paragraph *"a"*, the treasurer of state shall credit the employee for the full amount received.

(2) Moneys received by the treasurer of state pursuant to this paragraph for a permanent prosthetic device that was not medically necessary prior to an injury shall be credited to the injured worker in a new account relating to that permanent prosthetic device.

(3) Moneys received by the treasurer of state pursuant to this paragraph for an existing permanent prosthetic device that requires alteration due to an injury shall be credited to the employee's account relating to that prosthetic device if one exists, or credited to a new account if one is not in existence for that prosthetic device.

c. Moneys credited to an employee pursuant to this subsection may only be used for the purposes designated in section 85.67A and only in relation to the permanent prosthetic device for which the account was created.

Sec. ___. Section 85.66, subsection 2, Code 2022, is amended to read as follows:

2. The treasurer of state is charged with the conservation of the assets of the second injury fund. Moneys collected in the second injury fund shall be disbursed only for the purposes stated in this subchapter, and shall not at any time be appropriated or diverted to any other use or purpose. ~~Except for reimbursements to the attorney general provided for in~~

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~~section 85.67, disbursements~~ Disbursements from the fund shall only be paid by the treasurer of state ~~only~~ for reimbursements pursuant to section 85.67, for payments pursuant to section 85.67A, or upon the written order of the workers' compensation commissioner. The treasurer of state shall invest any surplus moneys of the fund in securities which constitute legal investments for state funds under the laws of this state, and may sell any of the securities in which the fund is invested, if necessary, for the proper administration or in the best

interests of the fund.

Sec. ___. NEW SECTION. **85.67A Administration of fund —— permanent prosthetic devices.**

1. For the purposes of this section:

a. "Prosthetic device" or *"device"* means a permanent prosthetic device for which an account has been established pursuant to section 85.65, subsection 2.

b. "Prosthetics supplier" means a person or business who makes or repairs permanent prosthetic devices.

c. "Voucher" means a written statement that identifies all of the following:

(1) The prosthetic device requiring repair or replacement.

(2) Whether the device appears to require repair or replacement and the reason the device requires repair or replacement.

(3) The exact amount, including taxes, necessary to pay for the repair or replacement of the device.

2. The treasurer of state shall pay moneys from an account established pursuant to section 85.65, subsection 2, to a prosthetics supplier for the replacement or repair of a prosthetic device upon the receipt of a voucher.

3. *a.* If an employee dies prior to receiving all moneys credited to the employee pursuant to section 85.65, subsection 2, the treasurer of state shall pay the remaining moneys to the employer which originally contributed such moneys.

b. If an employer cannot be paid pursuant to paragraph

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"a", the treasurer of state shall pay remaining moneys to the insurer named in relation to the claim from which the credits arose.

c. If an employer or insurer cannot be paid pursuant to paragraphs *"a"* and *"b"*, the treasurer of state shall pay remaining moneys to the employee's beneficiaries.

d. If the employee did not designate any beneficiaries, remaining moneys shall be paid to the employee's estate.

4. The labor commissioner and the commissioner of insurance may adopt rules pursuant to chapter 17A to implement this section. Such rules may include guidelines for which prosthetics suppliers may provide a repair or replacement for a prosthetic device, the form a voucher must take, and information in addition to content described in subsection 1, paragraph *"c"*, that must appear on a voucher.>

2. By renumbering as necessary.

ADRIAN DICKEY

S–5061

Amend House File 2281, as amended, passed, and reprinted by the House, as follows:

1. Page 1, by striking lines 1 through 22 and inserting:
<Section 1. NEW SECTION. **602.1601A Video conferences in judicial proceedings.**
Upon motion of any party in a criminal, juvenile, or postconviction relief proceeding, a judicial proceeding may be conducted by video conference when appropriate technology is available and if the proceeding can be conducted in an efficient manner and does not prejudice a substantial right of any party. The motion must include a statement that the party has been advised and consents to the request for a video conference proceeding. Any party may file a resistance to the proceeding being conducted by video conference. When a proceeding is uncontested, a denial of a motion to conduct a proceeding by video conference must include a good cause determination.>

COMMITTEE ON JUDICIARY
BRAD ZAUN, CHAIRPERSON

S–5062

Amend the amendment, S–3157, to House File 780, as passed by the House, as follows:
1. Page 1, by striking lines 2 through 4 and inserting:
<___. Page 1, by striking lines 3 through 8 and inserting:
<NEW SUBSECTION. 6. Rules adopted relating to physical examination requirements for licensed or registered facility personnel and the children being provided child care by the licensed or registered facility shall allow for any of the following to perform the physical examination:
a. A licensed physician as defined in section 135.1, except that a licensed physician shall not include an optometrist.
b. A physician assistant as defined in section 148C.1.
c. An advanced practice registered nurse as defined in section 152E.3.>>

MARK LOFGREN

S–5063

Amend House File 2198, as amended, passed, and reprinted by the House, as follows:
1. Page 1, after line 14 by inserting:
<Sec. ___. DEPARTMENT OF HUMAN SERVICES —— CHILD CARE CENTER STAFF RATIO RULES. The department of human services shall amend its administrative rules pursuant to chapter 17A to provide that child care centers maintain a minimum child-to-staff ratio of one child care worker for every seven children who are two years of age and a minimum child-to-staff ratio of one child care worker for every ten children who are three years of age.
Sec. ___. EFFECTIVE DATE. The following, being deemed of

immediate importance, takes effect upon enactment:
The section of this Act relating to child care center staff ratio rules.>
2. Title page, by striking lines 1 and 2 and inserting <An Act relating to child care center minimum age requirements for employees and staff-to-children ratios, and including effective date provisions.>

COMMITTEE ON HUMAN RESOURCES
JEFF EDLER, CHAIRPERSON

S–5064

Amend House File 736, as amended, passed, and reprinted by the House, as follows:
1. By striking everything after the enacting clause and inserting:
<Section 1. NEW SECTION. **249A.42A Overpayment —— subsequent ineligibility of recipient —— commencement of action and recovery.**
1. Notwithstanding any provision to the contrary, if a recipient is deemed ineligible for medical assistance following delivery of care or service by a provider, any administrative action to recover an overpayment to a provider based solely on such recipient's ineligibility shall be commenced within one year of the date the overpayment was incurred.
2. In an administrative action to recover an overpayment brought on the grounds specified in subsection 1, the department acting as the state Medicaid agency shall reimburse the provider for any recoupment of an overpayment using state-only funds for care or services delivered if all of the following conditions are met:
a. The provider verified eligibility through the eligibility and verification system or the secure web portal of, and obtained any necessary prior authorization for, the recipient on whose behalf payment was made to the provider prior to the delivery of care or service to the recipient.
b. The provider documented the eligibility verification performed and any necessary prior authorization obtained pursuant to paragraph *"a"* in a manner and format established by the department by rule, and retained the required documentation in the recipient's file.
3. The one-year limitation period prescribed under this section does not apply to recovery of an overpayment to a provider in an administrative action brought on other grounds.
4. For the purposes of this section, *"incurred"* means the same as defined in section 249A.42.>
2. Title page, by striking lines 1 through 3 and inserting

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<An Act relating to recovery of an overpayment to a provider based on specified grounds under the Medicaid program.>

COMMITTEE ON HUMAN RESOURCES
JEFF EDLER, CHAIRPERSON

S–5065

Amend House File 2248, as passed by the House, as follows:

1. Page 1, before line 1 by inserting:

<DIVISION I
AMBULATORY SURGICAL CENTER —— INFORMATION AND REFERRAL>

2. Page 2, after line 20 by inserting:

<DIVISION ___
CERTIFICATE OF NEED

Sec. ___. Section 135.61, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 2A. *"Birthing hospital"* means the same as defined in section 135.131.

NEW SUBSECTION. 15A. *"Mental health services"* means services provided by a mental health professional as defined in section 228.1 operating within the scope of the professional's practice which address mental, emotional, medical, or behavioral problems.

NEW SUBSECTION. 18A. *"Nursing facility"* means the same as defined in section 135C.1.

NEW SUBSECTION. 21A. *"Psychiatric services"* means services provided under the direction of a physician which address mental, emotional, medical, or behavioral problems.

Sec. ___. Section 135.61, subsections 12, 14, and 18, Code 2022, are amended to read as follows:

12. *"Health services"* means clinically related diagnostic, curative, or rehabilitative services, ~~and includes~~ but does not include alcoholism services, ~~drug abuse~~ substance use disorder services, ~~and~~ mental health services, psychiatric services, or obstetrical and gynecological services.

14. *"Institutional health facility"* means any of the following, without regard to whether the facilities referred to are publicly or privately owned or are organized for profit or not or whether the facilities are part of or sponsored by a health maintenance organization:

a. A hospital.

b. A health care facility.

Page 2

c. An organized outpatient health facility.

d. An outpatient surgical facility.

~~*e. A community mental health facility.*~~

~~*f. A birth center.*~~

18. *"New institutional health service"* or *"changed institutional health service"* means any of the following:

a. (1) The construction, development, or other establishment of a new institutional health facility other than a nursing facility regardless of ownership with a value in excess of five million dollars.

(2) The construction, development, or other establishment of a nursing facility regardless of ownership.

b. Relocation of an institutional health facility.

c. (1) Any capital expenditure, lease, or donation by or on behalf of an institutional health facility other than a nursing facility in excess of ~~one~~ five million ~~five hundred thousand~~ dollars within a twelve-month period.

(2) Any capital expenditure, lease, or donation by or on behalf of a nursing facility in excess of one million five hundred thousand dollars within a twelve-month period.

d. A permanent change in the bed capacity, as determined by the department, of an institutional health facility. For purposes of this paragraph, a change is permanent if it is intended to be effective for one year or more.

e. (1) Any expenditure in excess of five ~~hundred thousand~~ million dollars by or on behalf of an institutional health facility other than a nursing facility for health services which are or will be offered in or through an institutional health facility at a specific time but which were not offered on a regular basis in or through that institutional health facility within the twelve-month period prior to that time.

(2) Any expenditure in excess of five hundred thousand dollars by or on behalf of a nursing facility for health services which are or will be offered in or through a nursing facility at a specific time but which were not offered on a

Page 3

regular basis in or through that nursing facility within the twelve-month period prior to that time.

f. The deletion of one or more health services, previously offered on a regular basis by an institutional health facility or health maintenance organization or the relocation of one or more health services from one physical facility to another.

g. Any acquisition by or on behalf of a health care provider or a group of health care providers of any piece of replacement equipment with a value in excess of ~~one~~ three million ~~five hundred thousand~~ dollars, whether acquired by purchase, lease, or donation.

h. Any acquisition by or on behalf of a health care provider or group of health care providers of any piece of equipment with a value in excess of ~~one~~ three million ~~five hundred thousand~~ dollars, whether acquired by purchase, lease, or donation, which results in the offering or development of a health service not previously provided. A mobile service provided on a contract basis is not considered to have been

previously provided by a health care provider or group of health care providers.

i. (1) Any acquisition by or on behalf of an institutional health facility other than a nursing facility or a health maintenance organization of any piece of replacement equipment with a value in excess of ~~one~~ three million ~~five hundred thousand~~ dollars, whether acquired by purchase, lease, or donation.

(2) Any acquisition by or on behalf of a nursing facility of any piece of replacement equipment with a value in excess of one million five hundred thousand dollars, whether acquired by purchase, lease, or donation.

j. (1) Any acquisition by or on behalf of an institutional health facility other than a nursing facility or health maintenance organization of any piece of equipment with a value in excess of ~~one~~ three million ~~five hundred thousand~~ dollars, whether acquired by purchase, lease, or donation, which

results in the offering or development of a health service not previously provided. A mobile service provided on a contract basis is not considered to have been previously provided by an institutional health facility.

(2) Any acquisition by or on behalf of a nursing facility of any piece of equipment with a value in excess of one million five hundred thousand dollars, whether acquired by purchase, lease, or donation, which results in the offering or development of a health service not previously provided.

~~*k. Any air transportation service for transportation of patients or medical personnel offered through an institutional health facility at a specific time but which was not offered on a regular basis in or through that institutional health facility within the twelve-month period prior to the specific time.*~~

~~*l.*~~ *k.* Any mobile health service with a value in excess of ~~one~~ three million ~~five hundred thousand~~ dollars.

~~*m.*~~ *l.* Any of the following services with a value in excess of five million dollars:

(1) Cardiac catheterization service.

(2) Open heart surgical service.

(3) Organ transplantation service.

(4) Radiation therapy service applying ionizing radiation for the treatment of malignant disease using megavoltage external beam equipment.

Sec. ___. Section 135.63, subsection 1, Code 2022, is amended to read as follows:

1. A new institutional health service or changed institutional health service shall not be offered or developed in this state without prior application to the department for and receipt of a certificate of need, pursuant to this subchapter. The application shall be made upon forms

furnished or prescribed by the department and shall contain such information as the department may require under this subchapter. The application shall be accompanied by a fee

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equivalent to three-tenths of one percent of the anticipated cost of the project with a minimum fee of six hundred dollars and a maximum fee of twenty-one thousand dollars. The fee shall be remitted by the department to the treasurer of state, who shall place it in the general fund of the state. If an application is voluntarily withdrawn within thirty calendar days after submission, seventy-five percent of the application fee shall be refunded; if the application is voluntarily withdrawn more than thirty but within sixty days after submission, fifty percent of the application fee shall be refunded; if the application is withdrawn voluntarily more than sixty days after submission, twenty-five percent of the application fee shall be refunded. Notwithstanding the required payment of an application fee under this subsection, an applicant for a new institutional health service or a changed institutional health service offered or developed by an intermediate care facility for persons with an intellectual disability ~~or an intermediate care facility for persons with mental illness~~ as defined pursuant to section 135C.1 is exempt from payment of the application fee.

Sec. ___. Section 135.63, subsection 2, paragraph a, Code 2022, is amended to read as follows:

a. Private offices and private clinics of an individual physician, dentist, or other practitioner or group of health care providers, except as provided by section 135.61, subsection 18, paragraphs *"g"*, *"h"*, and ~~*"m"*~~ *"l"*, and section 135.61, subsections 20 and 21.

Sec. ___. Section 135.63, subsection 2, paragraph e, subparagraph (1), Code 2022, is amended to read as follows:

(1) Constructs, develops, renovates, relocates, or otherwise establishes an institutional health facility as specified under section 135.61, subsection 18.

Sec. ___. Section 135.63, subsection 2, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *q.* An institutional health facility that is

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a health care facility, a hospital or portion of a hospital, or any other facility that is engaged primarily in providing mental health services or psychiatric services including but not limited to an intermediate care facility for persons with mental illness as defined in section 135C.1, a psychiatric medical institution for children licensed pursuant to chapter 135H, a community mental health center organized under chapter 230A or other community mental health facility, or a state

mental health institute designated by chapter 226.

NEW PARAGRAPH. *r.* A birth center or a birthing hospital.

Sec. ___. Section 135H.6, Code 2022, is amended to read as follows:

135H.6 Inspection —— conditions for issuance.

1. The department shall issue a license to an applicant under this chapter if all the following conditions exist:

a. The department has ascertained that the applicant's medical facilities and staff are adequate to provide the care and services required of a psychiatric institution.

b. The proposed psychiatric institution is accredited by the joint commission on the accreditation of health care organizations, the commission on accreditation of rehabilitation facilities, the council on accreditation of services for families and children, or by any other recognized accrediting organization with comparable standards acceptable under federal regulation.

c. The applicant complies with applicable state rules and standards for a psychiatric institution adopted by the department in accordance with federal requirements under 42 C.F.R. §441.150 – 441.156.

~~*d. The applicant has been awarded a certificate of need pursuant to chapter 135, unless exempt as provided in this section.*~~

~~*e.*~~ *d.* The department of human services has submitted written approval of the application based on the department of human services' determination of need. The department of human

Page 7

services shall identify the location and number of children in the state who require the services of a psychiatric medical institution for children. Approval of an application shall be based upon the location of the proposed psychiatric institution relative to the need for services identified by the department of human services and an analysis of the applicant's ability to provide services and support consistent with requirements under chapter 232, particularly regarding community-based treatment. If the proposed psychiatric institution is not freestanding from a facility licensed under chapter 135B or 135C, approval under this paragraph shall not be given unless the department of human services certifies that the proposed psychiatric institution is capable of providing a resident with a living environment similar to the living environment provided by a licensee which is freestanding from a facility licensed under chapter 135B or 135C.

~~*f.*~~ *e.* The proposed psychiatric institution is under the direction of an agency which has operated a facility licensed under section 237.3, subsection 2, paragraph *"a"*, as a comprehensive residential facility for children for three years or of an agency which has operated a facility for three years providing psychiatric services exclusively to children or

adolescents and the facility meets or exceeds requirements for licensure under section 237.3, subsection 2, paragraph *"a"*, as a comprehensive residential facility for children.

~~g.~~ *f.* If a child has an emotional, behavioral, or mental health disorder, the psychiatric institution does not require court proceedings to be initiated or that a child's parent, guardian, or custodian must terminate parental rights over or transfer legal custody of the child for the purpose of obtaining treatment from the psychiatric institution for the child. Relinquishment of a child's custody shall not be a condition of the child receiving services.

2. The department of human services shall not give approval to an application which would cause the total number of beds

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licensed under this chapter for services reimbursed by the medical assistance program under chapter 249A to exceed four hundred thirty beds.

3. In addition to the beds authorized under subsection 2, the department of human services may establish not more than thirty beds licensed under this chapter at the state mental health institute at Independence. ~~The beds shall be exempt from the certificate of need requirement under subsection 1, paragraph "d".~~

4. The department of human services may give approval to conversion of beds approved under subsection 2, to beds which are specialized to provide substance abuse treatment. However, the total number of beds approved under subsection 2 and this subsection shall not exceed four hundred thirty. ~~Conversion of beds under this subsection shall not require a revision of the certificate of need issued for the psychiatric institution making the conversion.~~ Beds for children who do not reside in this state and whose service costs are not paid by public funds in this state are not subject to the limitations on the number of beds ~~and certificate of need requirements~~ otherwise applicable under this section.

5. A psychiatric institution licensed prior to July 1, 1999, may exceed the number of beds authorized under subsection 2 if the excess beds are used to provide services funded from a source other than the medical assistance program under chapter 249A. Notwithstanding subsection 1, ~~paragraphs~~ paragraph *"d"* ~~and "e"~~, and subsection 2, the provision of services using those excess beds does not require ~~a certificate of need or~~ a review by the department of human services.

6. A psychiatric institution shall be exempt from the certificate of need requirements pursuant to section 135.63.

Sec. ___. ADMINISTRATIVE RULES. The department of public health, in accordance with section 135.72, may adopt rules pursuant to chapter 17A to administer this division of this Act.

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DIVISION ___
RURAL EMERGENCY HOSPITALS

Sec. ___. Section 135B.1, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 5. *"Rural emergency hospital"* means a facility that provides rural emergency hospital services in the facility twenty-four hours per day, seven days per week; does not provide any acute care inpatient services with the exception of any distinct part of the facility licensed as a skilled nursing facility providing posthospital extended care services; and meets the criteria specified in section 135B.1A and the federal Consolidated Appropriations Act, Pub. L. No. 116–260, §125.

NEW SUBSECTION. 6. *"Rural emergency hospital services"* means the following services provided by a rural emergency hospital that do not exceed an annual per patient average of twenty-four hours in such a rural emergency hospital:

a. Emergency department services and observation care. For purposes of providing emergency department services, an emergency department of a rural emergency hospital shall be considered staffed if a physician, nurse practitioner, clinical nurse specialist, or physician assistant is available to furnish rural emergency hospital services in the facility twenty-four hours per day.

b. At the election of the rural emergency hospital, with respect to services furnished on an outpatient basis, other medical and health services as specified in regulations adopted by the United States secretary of health and human services.

Sec. ___. NEW SECTION. **135B.1A Rural emergency hospital licensure.**

1. The department shall adopt rules pursuant to chapter 17A to establish minimum standards for the licensure of rural emergency hospitals consistent with the federal Consolidated Appropriations Act, Pub. L. No. 116-260, §125, and with regulations issued by the United States secretary of health and

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human services for rural emergency hospitals.

2. To be eligible for a rural emergency hospital license, a facility shall have been, on or before December 27, 2020, one of the following:

a. A licensed critical access hospital.

b. A general hospital with not more than fifty licensed beds located in a county in a rural area as defined in section 1886(d)(2)(D) of the federal Social Security Act.

c. A general hospital with no more than fifty licensed beds that is deemed as being located in a rural area pursuant to section 1886(d)(8)(E) of the federal Social Security Act.

Sec. ___. Section 135B.2, Code 2022, is amended to read as

follows:

135B.2 Purpose.

The purpose of this chapter is to provide for the development, establishment and enforcement of basic standards for the care and treatment of individuals in hospitals and rural emergency hospitals and for the construction, maintenance and operation of such hospitals, which, in the light of existing knowledge, will promote safe and adequate treatment of such individuals in such hospitals, in the interest of the health, welfare and safety of the public.

Sec. ___. Section 135B.3, Code 2022, is amended to read as follows:

135B.3 Licensure.

No person or governmental unit, acting severally or jointly with any other person or governmental unit shall establish, conduct or maintain a hospital or rural emergency hospital in this state without a license.

Sec. ___. Section 135B.4, Code 2022, is amended to read as follows:

135B.4 Application for license.

Licenses shall be obtained from the department. Applications shall be upon forms and shall contain information as the department may reasonably require, which may include

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affirmative evidence of ability to comply with reasonable standards and rules prescribed under this chapter. Each application for license shall be accompanied by the license fee, which shall be refunded to the applicant if the license is denied and which shall be deposited into the state treasury and credited to the general fund if the license is issued. Hospitals and rural emergency hospitals having fifty beds or less shall pay an initial license fee of fifteen dollars; hospitals of more than fifty beds and not more than one hundred beds shall pay an initial license fee of twenty-five dollars; all other hospitals shall pay an initial license fee of fifty dollars.

Sec. ___. Section 135B.5, subsection 1, Code 2022, is amended to read as follows:

1. Upon receipt of an application for license and the license fee, the department shall issue a license if the applicant and hospital facilities comply with this chapter, chapter 135, and the rules of the department. Each licensee shall receive annual reapproval upon payment of five hundred dollars and upon filing of an application form which is available from the department. The annual licensure fee shall be dedicated to support and provide educational programs on regulatory issues for hospitals and rural emergency hospitals licensed under this chapter. Licenses shall be either general or restricted in form. Each license shall be issued only for the premises and persons or governmental units named in

the application and is not transferable or assignable except with the written approval of the department. Licenses shall be posted in a conspicuous place on the licensed premises as prescribed by rule of the department.

Sec. ___. Section 135B.5A, Code 2022, is amended to read as follows:

135B.5A Conversion ~~of a hospital~~ relative to certain hospitals.

1. A conversion of a long-term acute care hospital,

rehabilitation hospital, or psychiatric hospital as defined by federal regulations to a general hospital or to a specialty hospital of a different type is a permanent change in bed capacity and shall require a certificate of need pursuant to section 135.63.

2. A conversion of a critical access hospital or general hospital to a rural emergency hospital or a conversion of a rural emergency hospital to a critical access hospital or general hospital shall not require a certificate of need pursuant to section 135.63.

Sec. ___. Section 135B.7, Code 2022, is amended to read as follows:

135B.7 Rules and enforcement.

1. *a.* The department, with the approval of the state board of health, shall adopt rules setting out the standards for the different types of hospitals and for rural emergency hospitals to be licensed under this chapter. The department shall enforce the rules.

b. Rules or standards shall not be adopted or enforced which would have the effect of denying a license to a hospital, rural emergency hospital, or other institution required to be licensed, solely by reason of the school or system of practice employed or permitted to be employed by physicians in the hospital, rural emergency hospital, or other institution if the school or system of practice is recognized by the laws of this state.

2. *a.* The rules shall state that a hospital or rural emergency hospital shall not deny clinical privileges to physicians and surgeons, podiatric physicians, osteopathic physicians and surgeons, dentists, certified health service providers in psychology, physician assistants, or advanced registered nurse practitioners licensed under chapter 148, 148C, 149, 152, or 153, or section 154B.7, solely by reason of the license held by the practitioner or solely by reason of the school or institution in which the practitioner received

medical schooling or postgraduate training if the medical schooling or postgraduate training was accredited by an

organization recognized by the council on higher education accreditation or an accrediting group recognized by the United States department of education.

b. A hospital or rural emergency hospital may establish procedures for interaction between a patient and a practitioner. The rules shall not prohibit a hospital or rural emergency hospital from limiting, restricting, or revoking clinical privileges of a practitioner for violation of hospital rules, regulations, or procedures established under this paragraph, when applied in good faith and in a nondiscriminatory manner.

c. This subsection shall not require a hospital or rural emergency hospital to expand the ~~hospital's~~ current scope of service delivery solely to offer the services of a class of providers not currently providing services at the hospital or rural emergency hospital. This section shall not be construed to require a hospital or rural emergency hospital to establish rules which are inconsistent with the scope of practice established for licensure of practitioners to whom this subsection applies.

d. This section shall not be construed to authorize the denial of clinical privileges to a practitioner or class of practitioners solely because a hospital or rural emergency hospital has as employees of the hospital or rural emergency hospital identically licensed practitioners providing the same or similar services.

3. The rules shall require that a hospital or rural emergency hospital establish and implement written criteria for the granting of clinical privileges. The written criteria shall include but are not limited to consideration of all of the following:

a. The ability of an applicant for privileges to provide patient care services independently and appropriately in the

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hospital or rural emergency hospital.

b. The license held by the applicant to practice.

c. The training, experience, and competence of the applicant.

d. The relationship between the applicant's request for the granting of privileges and the hospital's or rural emergency hospital's current scope of patient care services, as well as the hospital's or rural emergency hospital's determination of the necessity to grant privileges to a practitioner authorized to provide comprehensive, appropriate, and cost-effective services.

4. The department shall also adopt rules requiring hospitals and rural emergency hospitals to establish and implement protocols for responding to the needs of patients who are victims of domestic abuse, as defined in section 236.2.

5. The department shall also adopt rules requiring

hospitals and rural emergency hospitals to establish and implement protocols for responding to the needs of patients who are victims of elder abuse, as defined in section 235F.1.

Sec. ___. Section 135B.7A, Code 2022, is amended to read as follows:

135B.7A Procedures —— orders.

The department shall adopt rules that require hospitals and rural emergency hospitals to establish procedures for authentication of all verbal orders by a practitioner within a period not to exceed thirty days following a patient's discharge.

Sec. ___. Section 135B.8, Code 2022, is amended to read as follows:

135B.8 Effective date of rules.

Any hospital or rural emergency hospital which is in operation at the time of promulgation of any applicable rules or minimum standards under this chapter shall be given a reasonable time, not to exceed one year from the date of such promulgation, within which to comply with such rules and

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minimum standards.

Sec. ___. Section 135B.9, Code 2022, is amended to read as follows:

135B.9 Inspections and qualifications for hospital and rural emergency hospital inspectors —— protection and advocacy agency investigations.

1. The department shall make or cause to be made inspections as it deems necessary in order to determine compliance with applicable rules. Hospital and rural emergency hospital inspectors shall meet the following qualifications:

a. Be free of conflicts of interest. A hospital or rural emergency hospital inspector shall not participate in an inspection or complaint investigation of a hospital or rural emergency hospital in which the inspector or a member of the inspector's immediate family works or has worked within the last two years. For purposes of this paragraph, *"immediate family member"* means a spouse; natural or adoptive parent, child, or sibling; or stepparent, stepchild, or stepsibling.

b. Complete a yearly conflict of interest disclosure statement.

c. Biennially, complete a minimum of ten hours of continuing education pertaining to hospital or rural emergency hospital operations including but not limited to quality and process improvement standards, trauma system standards, and regulatory requirements.

2. In the state resource centers and state mental health institutes operated by the department of human services, the designated protection and advocacy agency as provided in section 135C.2, subsection 4, shall have the authority to investigate all complaints of abuse and neglect of persons

with developmental disabilities or mental illnesses if the complaints are reported to the protection and advocacy agency or if there is probable cause to believe that the abuse has occurred. Such authority shall include the examination of all records pertaining to the care provided to the residents and

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contact or interview with any resident, employee, or any other person who might have knowledge about the operation of the institution.

Sec. ___. Section 135B.12, Code 2022, is amended to read as follows:

35B.12 Confidentiality.

The department's final findings or the final survey findings of the joint commission on the accreditation of health care organizations or the American osteopathic association with respect to compliance by a hospital or rural emergency hospital with requirements for licensing or accreditation shall be made available to the public in a readily available form and place. Other information relating to a hospital or rural emergency hospital obtained by the department which does not constitute the department's findings from an inspection of the hospital or rural emergency hospital or the final survey findings of the joint commission on the accreditation of health care organizations or the American osteopathic association shall not be made available to the public, except in proceedings involving the denial, suspension, or revocation of a license under this chapter. The name of a person who files a complaint with the department shall remain confidential and shall not be subject to discovery, subpoena, or other means of legal compulsion for its release to a person other than department employees or agents involved in the investigation of the complaint.

Sec. ___. Section 135B.14, Code 2022, is amended to read as follows:

135B.14 Judicial review.

Judicial review of the action of the department may be sought in accordance with chapter 17A. Notwithstanding the terms of chapter 17A, the Iowa administrative procedure Act, petitions for judicial review may be filed in the district court of the county in which the hospital or rural emergency hospital is located or to be located, and the status quo of the petitioner

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or licensee shall be preserved pending final disposition of the matter in the courts.

Sec. ___. Section 135B.15, Code 2022, is amended to read as follows:

135B.15 Penalties.

Any person establishing, conducting, managing, or operating

any hospital or rural emergency hospital without a license shall be guilty of a serious misdemeanor, and each day of continuing violation after conviction shall be considered a separate offense.

Sec. ___. Section 135B.16, Code 2022, is amended to read as follows:

135B.16 Injunction.

Notwithstanding the existence or pursuit of any other remedy, the department may, in the manner provided by law, maintain an action in the name of the state for injunction or other process against any person or governmental unit to restrain or prevent the establishment, conduct, management or operation of a hospital or rural emergency hospital without a license.

Sec. ___. Section 135B.20, subsection 3, Code 2022, is amended to read as follows:

3. *"Hospital"* ~~shall mean~~ means all hospitals and rural emergency hospitals licensed under this chapter.

Sec. ___. Section 135B.33, subsection 1, unnumbered paragraph 1, Code 2022, is amended to read as follows:

Subject to availability of funds, the Iowa department of public health shall provide technical planning assistance to local boards of health and hospital or rural emergency hospital governing boards to ensure access to ~~hospital~~ such services in rural areas. The department shall encourage the local boards of health and hospital or rural emergency hospital governing boards to adopt a long-term community health services and developmental plan including the following:

Sec. ___. Section 135B.34, subsection 7, Code 2022, is

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amended to read as follows:

7. For the purposes of this section~~, *"comprehensive preliminary background check"*~~:

a. "Comprehensive preliminary background check" means the same as defined in section 135C.1.

b. "Hospital" means a hospital or rural emergency hospital licensed under this chapter.

Sec. ___. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.>

3. Title page, line 1, after <relating to> by inserting <health care, health care facilities, and health services including>

4. Title page, lines 3 and 4, by striking <and providing for licensee discipline> and inserting <the application of the certificate of need process, and licensure of rural emergency hospitals, providing for licensee discipline, and including

effective date provisions.>

5. By renumbering as necessary.

COMMITTEE ON HUMAN RESOURCES
JEFF EDLER, CHAIRPERSON

S–5066

Amend House File 2461, as passed by the House, as follows:

1. Page 4, line 3, after <research> by inserting <or instructional>

COMMITTEE ON COMMERCE
JASON SCHULTZ, CHAIRPERSON

S–5067

Amend House File 781, as passed by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 544C.1, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 1A. *"Building equipment"* means any mechanical plumbing, electrical, or structural components, including a conveyance, designed for or located in a building or structure.

NEW SUBSECTION. 2A. *"Conveyance"* means an elevator, dumbwaiter, vertical reciprocating conveyor, escalator, or other motorized vertical transportation system.

NEW SUBSECTION. 2B. *"Direct supervision and responsible charge"* means a registered interior designer's personal supervisory control of work of which the registered interior designer has detailed professional knowledge. In respect to preparing interior technical submissions, *"direct supervision and responsible charge"* means that the registered interior designer has the exercising, directing, guiding, and restraining power over the preparation of the interior technical submission, and exercises professional judgment in all matters embodied in the interior technical submission. *"Direct supervision and responsible charge"* does not mean reviewing the interior technical submission prepared by another person unless the reviewer actually exercises supervision and control and is in responsible charge of the interior technical submission.

NEW SUBSECTION. 2C. *"Interior alteration or construction project"* means a project for an interior space or area within a proposed or existing building or structure, including construction, modification, renovation, rehabilitation, or historic preservation, that involves changing or altering any of the following:

a. The design function or layout of rooms.

b. The state of permanent fixtures or equipment.

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NEW SUBSECTION. 3A. *"Interior nonstructural element"* means an interior design element that does not require structural bracing and that is not load-bearing according to adopted code.

NEW SUBSECTION. 3B. *"Interior technical submission"* means a design, drawing, specification, study, or other technical report or calculation that establishes the scope of an interior alteration or construction project including a description of standards.

Sec. 2. Section 544C.1, subsection 3, Code 2022, is amended to read as follows:

3. *a. ~~"Interior design"~~ "Registered interior design"* means the design of interior spaces as a part of an interior alteration or construction project including the preparation of ~~documents~~ interior technical submissions relating to space planning, finish materials, furnishings, fixtures, and equipment, and the preparation of documents relating to interior construction that does not affect the ~~mechanical or structural~~ engineered systems of a building. ~~*"Interior design"* does not include services that constitute the practice of architecture or the practice of professional engineering.~~

"Registered interior design" includes all of the following:

(1) Programming, planning, pre-design analysis, and conceptual design of interior nonstructural elements, including but not limited to the selection of materials, furniture, fixtures, and equipment, but not building equipment.

(2) Alteration or construction of interior nonstructural elements and any interior technical submissions related to such alteration or construction.

(3) Preparation of a physical plan of space within a proposed or existing building or structure including all of the following:

(a) Determinations of circulation systems or patterns.

(b) Determinations of the location of exit requirements based on occupancy loads.

(c) Assessment and analysis of interior safety factors to

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comply with building codes related to interior nonstructural elements.

(4) Application of building codes, fire codes, and accessibility standards, including but not limited to the federal Americans with Disabilities Act of 1990, as applicable to interior technical submissions for interior nonstructural elements.

(5) Rendering of designs, plans, drawings, specifications, contract documents, or other interior technical submissions and administration of interior nonstructural element construction and contracts relating to nonstructural elements in interior alteration or construction of a proposed or existing building

or structure.

b. "Registered interior design" does not include any of the following:

(1) Services that constitute the practice of professional engineering or professional architecture, except as otherwise provided in this chapter.

(2) The making of changes or additions to any of the following:

(a) The structural system of a building, including changing the building's live or dead load on the structural system.

(b) The building envelope, including exterior walls, exterior wall coverings, exterior wall openings, exterior windows and doors, architectural trim, balconies and similar projections, bay and oriel windows, roof assemblies and rooftop structures, and glass and glazing for exterior use in both vertical and sloped applications in buildings and structures.

(c) The mechanical, plumbing, heating, air conditioning, ventilation, electrical, vertical transportation, fire sprinkler, or fire alarm systems.

(d) Means of egress systems, except for the exit access component.

(e) Construction that materially affects life safety systems pertaining to fire safety of structural elements or the

fire protection of structural elements, smoke evacuation and compartmentalization systems, or fire-rated vertical shafts in multi-story structures.

(f) Changes of building use to occupancies not already allowed by the current building.

(g) The construction classification of the building or structure according to the international building code.

Sec. 3. Section 544C.2, subsection 1, Code 2022, is amended to read as follows:

1. An interior design examining board is established within the bureau. The board consists of seven members: five members who are interior designers who are registered under this chapter and who have been in the active practice of registered interior design for not less than five years, the last two of which shall have been in Iowa; and two members who are not registered under this chapter and who shall represent the general public. Members shall be appointed by the governor subject to confirmation by the senate.

Sec. 4. Section 544C.5, unnumbered paragraph 1, Code 2022, is amended to read as follows:

Each applicant for registration must meet the registered interior design education and practical training requirements adopted by rule by the board, and have passed an examination prescribed by the board that is task-oriented, focused on public safety, and validated by a recognized testing agency. The bureau shall register an individual who submits

an application to the board on the form and in the manner prescribed by the board as a registered interior designer if the individual satisfies the following requirements:

Sec. 5. Section 544C.5, subsection 2, paragraphs a, b, and c, Code 2022, are amended to read as follows:

a. Four years of registered interior design education plus two years of full-time work experience in registered interior design.

b. Three years of registered interior design education plus

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three years of full-time work experience in registered interior design.

c. Two years of registered interior design education plus four years of full-time work experience in registered interior design.

Sec. 6. Section 544C.10, subsection 1, Code 2022, is amended to read as follows:

1. It is unlawful for a person to use the title, or aid or abet a person in using the title, of "registered interior designer" or any title or device indicating that the person is a registered interior designer unless the person has been issued a certificate of registration as provided in this chapter. This section does not prohibit the provision of registered interior design services, or the use of the terms "interior design" or "interior designer", by an architect or by a person who is not registered as an interior designer.

Sec. 7. Section 544C.12, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 4. A person engaged in an activity traditionally performed by an interior designer, including a professional service limited to the planning, design, and implementation of kitchen and bathroom spaces or the specification of products for kitchen and bathroom areas, in a noncommercial setting.

NEW SUBSECTION. 5. A person not registered under this chapter acting under the instruction, control, or supervision of a registered interior designer, or a person executing the plans of a registered interior designer, provided that such a person shall not be in charge of interior technical submissions.

Sec. 8. NEW SECTION. **544C.14 Registered interior designers —— stamp and seal.**

1. A registered interior designer shall have a seal with which to identify all interior technical submissions issued by the registered interior designer for use in this state. The

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seal shall be of a design, content, and size prescribed by the board. A registered interior designer shall only sign and seal

an interior technical submission within the scope of registered interior design.

2. Interior technical submissions prepared by a registered interior designer, or under a registered interior designer's direct supervision and responsible charge, shall be stamped with the impression of the registered interior designer's seal. A registered interior designer shall not impress the registered interior designer's seal on an interior technical submission if the registered interior designer was not the author of the interior technical submission or if interior technical submission was not prepared under the registered interior designer's direct supervision and responsible charge.

3. A registered interior designer may sign and seal an interior technical submission covering the scope of the registered interior design and shall have the authority to submit such interior technical submission to a state or local governmental entity for the purpose of obtaining any requisite permit for an interior alteration or construction project.

4. The placement of the registered interior designer's signature and seal shall indicate the document or part thereof for which the seal applies. The seal and date may be affixed electronically. The registered interior designer may provide, at the sole discretion of the registered interior designer, an original signature in the handwriting of the registered interior designer, a scanned copy of the document bearing an original signature, or a computer-generated signature.

5. A registered interior designer shall not affix, or permit to be affixed, the registration number, seal, or signature of the registered interior designer to any interior technical submission that the registered interior designer is not competent to perform.

6. A registered interior designer shall not sign and seal an interior technical submission that was not prepared by the

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registered interior designer or under the direct supervision and responsible charge of the registered interior designer.

Sec. 9. NEW SECTION. **544C.15 Registered interior designer stamp and seal —— conflicts of interest —— penalties.**

1. A person shall not intentionally do any of the following:

a. Affix the signature or seal of a registered interior designer to any interior technical submission without the permission of the registered interior designer.

b. Use or attempt to use the interior design registration or seal of another except as provided in section 544C.14.

c. Impersonate a registered interior designer.

d. Obtain or attempt to obtain registration from the board by fraud.

e. Make any willfully false oath or affirmation to the board.

f. As a registered interior designer, accept compensation

from a client in connection with a registered interior design project, except as payment for the provision of registered interior design services, which would reasonably appear to compromise the registered interior designer's professional judgment in serving the best interests of the client or public.

2. A person who intentionally violates a provision of subsection 1 is guilty of a simple misdemeanor.

3. A registered interior designer shall avoid conflicts of interest.

a. If an unavoidable conflict of interests arises, a registered interior designer shall do all of the following:

(1) Immediately inform the client or employer of all circumstances that may interfere with or impair the obligation of the registered interior designer to provide professional services.

(2) Notify the client or employer and withdraw from employment at any time when it is not possible to faithfully discharge the responsibilities and duties owed to the client or employer.

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b. If an unavoidable conflict of interest arises, a registered interior designer shall not do any of the following:

(1) Agree to perform professional registered interior design services for a client or employer if the registered interior designer has a significant financial or other interest that would impair or interfere with the responsibility of the registered interior designer to faithfully discharge professional interior design services on behalf of the client or employer.

(2) Accept payment from any party other than a client or employer for a particular project and not have any direct or indirect financial interest in a service or phase of a service to be provided as part of a project unless the client or employer approves of the conflict.

(3) Solicit or accept anything of value from material or equipment suppliers in return for specifying or endorsing a product.

(4) Violate the confidences of a client or employer except as otherwise required by law.

(5) Perform services for a client or employer while a full-time employee of another employer without notifying all parties concerned.

4. This section shall not limit the professional responsibility of a registered interior designer to an owner of a project when the registered interior designer is employed by a person under contract to engage in interior design practice for that project.

Sec. 10. NEW SECTION. **544C.16 Submission of interior technical submissions.**

1. A registered interior designer may sign and seal an

interior technical submission that is required for an interior alteration or construction project and that shall be kept as public record.

2. If a political subdivision of the state requires a seal or stamp on an interior technical submission that is

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submitted for an interior alteration or construction project, the political subdivision shall accept an interior technical submission impressed with the seal or stamp of a registered interior designer consistent with the provisions of section 544C.14.

Sec. 11. REPEAL. Section 544C.13, Code 2022, is repealed.>

2. Title page, lines 1 and 2, by striking <interior design, providing penalties, and including effective date provisions> and inserting <registered interior design and providing penalties>

COMMITTEE ON STATE GOVERNMENT
ROBY SMITH, CHAIRPERSON

S–5068

Amend House File 853, as passed by the House, as follows:

1. Page 2, line 28, by striking <fifteen> and inserting <thirty>

COMMITTEE ON STATE GOVERNMENT
ROBY SMITH, CHAIRPERSON

S–5069

Amend House File 2547, as passed by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. NEW SECTION. **147.11A Midwives —— reimbursement.**

1. The department may issue a specialty occupational license for medical reimbursement to an individual who is a certified professional midwife, certified nurse midwife, or certified midwife. The department shall adopt rules for the implementation of this section, including a fee to cover the administrative costs of licensure under this section.

2. For the purposes of this section:

a. "Certified midwife" means a person who holds a current, valid certification from the American midwifery certification board.

b. "Certified nurse midwife" means a registered nurse who holds a current, valid certification from the American midwifery certification board.

c. "Certified professional midwife" means a person who holds

a current, valid certification with the North American registry of midwives or its successor organization.

d. "Specialty occupational license for medical reimbursement" means a nontransferable authorization in law for an individual to qualify for payment or reimbursement from a governmental agency for providing identified medical services based on meeting personal qualifications established in law which may be recognized by a private company.

Sec. 2. CONTINGENT EFFECTIVE DATE. This Act takes effect upon the enactment of 2022 Iowa Acts, Senate File 487.>

2. Title page, by striking lines 1 and 2 and inserting <An Act relating to medical reimbursement for midwives, providing for fees, and including contingent effective date provisions.>

COMMITTEE ON STATE GOVERNMENT
ROBY SMITH, CHAIRPERSON

S–5070

Amend House File 2331, as amended, passed, and reprinted by the House, as follows:

1. Page 8, by striking lines 3 through 6 and inserting:

<Sec. ___. CONTINGENT EFFECTIVE DATE. This Act takes effect on the date the states of Minnesota, Illinois, Nebraska, Missouri, South Dakota, and Wisconsin have all adopted daylight saving time as the official time in each state throughout the year, but only if all the states have either adopted daylight saving time as the official time or enacted legislation substantially similar to this Act prior to January 1, 2033. The department of transportation shall notify the Code editor when the states of Minnesota, Illinois, Nebraska, Missouri, South Dakota, and Wisconsin have all adopted daylight saving time as the official time in each state throughout the year or have enacted legislation substantially similar to this Act.>

2. By renumbering as necessary.

COMMITTEE ON STATE GOVERNMENT
ROBY SMITH, CHAIRPERSON

S–5071

Amend House File 2340, as passed by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. NEW SECTION. **123.56 Public safety nuisances —— procedure.**

1. A public safety nuisance exists at a licensed premises for purposes of this section when it is established by clear and convincing evidence that an owner, manager, employee, contemporaneous patron, or guest of the licensed premises commits any of the following acts on the licensed premises or in any parking lots or areas, including but not limited to

public rights of way, adjacent to the licensed premises:

a. Unlawfully discharges a firearm or uses an offensive weapon, as defined in section 724.1, regardless of whether it inflicts injury or death.

b. Assaults another person with a dangerous weapon as defined in section 702.7 resulting in injury or death.

c. Engages in a riot as defined in section 723.1 on at least three separate days within any twelve-month period in which a peace officer responded for purposes of dispersing the participants in the riot. A person who willingly joins in or remains a part of a riot need not be the same person for each riot incident.

2. If the county attorney or city attorney where the licensed premises is located has reason to believe a public safety nuisance that constitutes a serious threat to the public safety exists, the county attorney or city attorney, or attorney acting at the direction of the county attorney or city attorney, may file a suit in equity in district court without bond seeking abatement of a public safety nuisance arising from a premises licensed under this chapter pursuant to the requirements of this section.

3. Upon filing a suit in equity in district court pursuant to subsection 2, the county attorney or city attorney shall notify the administrator of the action. Upon receiving notice,

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the administrator shall issue an order reducing the hours during which alcoholic beverages may be sold or consumed at retail on the licensed premises to between 6:00 a.m. and 10:00 p.m. each day of the week during the pendency of the action in equity. The county attorney or city attorney shall notify the administrator of any final action or judgment entered resulting from the action.

4. In an action seeking abatement of a public safety nuisance as provided in this section, evidence of other current violations of this chapter may be received by the court and considered in determining the remedial provisions of any abatement order. In addition, evidence of prior sanctions, violations of law, nuisance behavior, or general reputation relating to the licensed premises may be admissible in determining the reasonableness of remedial provisions of an abatement order. However, evidence of a prior conviction of the licensee, managers, employees, or contemporaneous patrons and guests is not necessary for purposes of considering or issuing an abatement order under this section. In an action under this section, the administrator may submit to the court a report as evidence on behalf of the division regarding the compliance history of the licensee or permittee for consideration by the court.

5. If the district court finds that a public safety nuisance exists, the court may enter judgment declaring the existence

of the nuisance and order such remedial action as the court determines reasonable to abate the nuisance. The abatement order may take the form of an injunction. The duration of an abatement order may be up to two years. Remedial action may include but is not limited to temporary closure of the licensed premises, revocation of the license for such period of time as is consistent with section 123.40, required change in business practice or operations, or posting of a bond. If a bond is ordered and posted, the bond shall be subject to forfeiture, in whole or in part, for any further actions contrary to the

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abatement order.

6. For purposes of this section, *"licensed premises"* means a premises where alcoholic beverages are authorized to be sold for consumption on the licensed premises and where the serving of food is only incidental to the consumption of alcoholic beverages on the premises.>

COMMITTEE ON STATE GOVERNMENT
ROBY SMITH, CHAIRPERSON

S–5072

Amend House File 2497, as passed by the House, as follows:

1. Page 1, by striking lines 10 and 11 and inserting <to cashless wagering systems where a person accesses a cash account through a mobile application used by the licensee to conduct cashless wagering. The mobile application shall include the statewide telephone number authorized by the Iowa department of public health to provide problem gambling information and extensive responsible gaming features in addition to those described in section 99D,7, subsection 23.>

2. Page 1, by striking lines 19 and 20 and inserting <apply to cashless wagering systems where a person accesses a cash account through a mobile application used by the licensee to conduct cashless wagering. The mobile application shall include the statewide telephone number authorized by the Iowa department of public health to provide problem gambling information and extensive responsible gaming features in addition to those described in section 99F.4, subsection 22.>

3. By striking page 1, line 23, through page 6, line 2, and inserting:

<Sec. ___. Section 99D.7, subsection 23, Code 2022, is amended to read as follows:

23. To establish a process to allow a person to be voluntarily excluded from advance deposit wagering as defined in section 99D.11, from an internet fantasy sports contest as defined in section 99E.1, from advance deposit sports wagering as defined in section 99F.9, and from the wagering area of a racetrack enclosure, from the gaming floor, and from the

sports wagering area, as defined in section 99F.1, of all other licensed facilities under this chapter and chapter 99F as provided in this subsection. The process shall provide that an initial request by a person to be voluntarily excluded shall be for a period of five years or life and any subsequent request following any five-year period shall be for a period of five years or life. The process established shall require that licensees be provided electronic access to names and social

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security numbers of persons voluntarily excluded through a secured interactive internet site maintained by the commission and information regarding persons voluntarily excluded shall be disseminated to all licensees under this chapter, chapter 99E, and chapter 99F. The names, social security numbers, and information regarding persons voluntarily excluded shall be kept confidential unless otherwise ordered by a court or by another person duly authorized to release such information. The process established shall also require a person requesting to be voluntarily excluded be provided information compiled by the Iowa department of public health on gambling treatment options. The state and any licensee under this chapter, chapter 99E, or chapter 99F shall not be liable to any person for any claim which may arise from this process. In addition to any other penalty provided by law, any money or thing of value that has been obtained by, or is owed to, a voluntarily excluded person as a result of wagers made by the person after the person has been voluntarily excluded shall be forfeited by the person and shall be credited to the general fund of the state. The commission shall not initiate any administrative action or impose penalties on a licensee who voluntarily reports to the commission activity described in section 99D.24, subsection 4, paragraph *"c"*.

Sec. ___. Section 99D.24, subsection 4, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *c.* Knowingly or intentionally passes a winning wager or share to another person or provides fraudulent identification in order to avoid the forfeiture of any money or thing of value as a voluntarily excluded person pursuant to the processes established under section 99D.7, subsection 23.

NEW PARAGRAPH. *d.* Knowingly or intentionally passes a winning wager or share to another person or provides fraudulent identification in order to avoid the application of a setoff as provided in section 99D.28.

Sec. ___. Section 99D.28, subsection 7, Code 2022, is

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amended to read as follows:

7. A claimant agency or licensee, acting in good faith, shall not be liable to any person for actions taken pursuant to

this section. In addition, the commission shall not initiate any administrative action or impose penalties on a licensee who voluntarily reports to the commission activity described in section 99D.24, subsection 4, paragraph *"d"*.

Sec. ___. Section 99F.4, subsection 22, Code 2022, is amended to read as follows:

22. To establish a process to allow a person to be voluntarily excluded from advance deposit wagering as defined in section 99D.11, from an internet fantasy sports contest as defined in section 99E.1, from advance deposit sports wagering as defined in section 99F.9, from the gaming floor and sports wagering area of an excursion gambling boat, from the wagering area, as defined in section 99D.2, and from the gaming floor and sports wagering area of all other licensed facilities under this chapter and chapter 99D as provided in this subsection. The process shall provide that an initial request by a person to be voluntarily excluded shall be for a period of five years or life and any subsequent request following any five-year period shall be for a period of five years or life. The process established shall require that licensees be provided electronic access to names and social security numbers of persons voluntarily excluded through a secured interactive internet site maintained by the commission and information regarding persons voluntarily excluded shall be disseminated to all licensees under this chapter, chapter 99D, and chapter 99E. The names, social security numbers, and information regarding persons voluntarily excluded shall be kept confidential unless otherwise ordered by a court or by another person duly authorized to release such information. The process established shall also require a person requesting to be voluntarily excluded be provided information compiled by the Iowa department of public health on gambling treatment

options. The state and any licensee under this chapter, chapter 99D, or chapter 99E shall not be liable to any person for any claim which may arise from this process. In addition to any other penalty provided by law, any money or thing of value that has been obtained by, or is owed to, a voluntarily excluded person as a result of wagers made by the person after the person has been voluntarily excluded shall be forfeited by the person and shall be credited to the general fund of the state. The commission shall not initiate any administrative action or impose penalties on a licensee who voluntarily reports to the commission activity described in section 99F.15, subsection 4, paragraph *"n"*.

Sec. ___. Section 99F.15, subsection 4, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *n.* Knowingly or intentionally passes a winning wager or share to another person or provides fraudulent identification in order to avoid the forfeiture of any money or

thing of value as a voluntarily excluded person pursuant to the processes established under section 99F.4, subsection 22.

NEW PARAGRAPH. *o.* Knowingly or intentionally passes a winning wager or share to another person or provides fraudulent identification in order to avoid the application of a setoff as provided in section 99F.19.

Sec. ___. Section 99F.19, subsection 7, Code 2022, is amended to read as follows:

7. A claimant agency or licensee, acting in good faith, shall not be liable to any person for actions taken pursuant to this section. In addition, the commission shall not initiate any administrative action or impose penalties on a licensee who voluntarily reports to the commission activity described in section 99F.15, subsection 4, paragraph *"o"*.>

4. Title page, line 4, after <penalties> by inserting <and making penalties applicable>

5. By renumbering as necessary.

COMMITTEE ON STATE GOVERNMENT
ROBY SMITH, CHAIRPERSON

S–5073

Amend House File 626, as passed by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 403.22, subsection 1, unnumbered paragraph 1, Code 2022, is amended to read as follows:

With respect to any urban renewal area established upon the determination that the area is an economic development area, unless exempted under section 403.22A, subsection 6, a division of revenue as provided in section 403.19 shall not be allowed for the purpose of providing or aiding in the provision of public improvements related to housing and residential development, unless the municipality assures that the project will include assistance for low and moderate income family housing.

Sec. 2. Section 403.22, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *e.* For urban renewal areas established before July 1, 2022, rebates provided under section 403.22A.

Sec. 3. NEW SECTION. **403.22A Federal targeted area —— rebate agreements.**

1. For purposes of this section, unless the context otherwise requires:

a. "Actual value added by the improvements" means the actual value added by improvements made to the qualified real estate as of the first assessment year for which the rebate was received.

b. "Federal targeted area" means an area that has previously been identified by the home owners' loan corporation or similar entity as less desirable, declining, hazardous, or risky

for mortgage lending in accordance with or as the result of implementation of the National Housing Act, Pub. L. No. 73-479, 48 Stat. 1246, the United States Housing Act of 1937, Pub. L. No. 75-412, 50 Stat. 888, or a subsequent enactment of Congress or successor provision of law prior to enactment of Tit. VIII of the Civil Rights Act of 1968, commonly referred to as the

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Fair Housing Act of 1968.

c. "Improvements" means rehabilitation and additions to existing structures as well as new construction on vacant land or on land with existing structures. However, new construction on land assessed as agricultural property shall not qualify as *"improvements"* for purposes of this section.

d. "Qualified real estate" means real property, other than land, which is located in that portion of an urban renewal area that is a federal targeted area and to which improvements have been added during the time the area was designated by ordinance under subsection 2 that have increased the actual value by at least the percentage specified in the ordinance adopted by the municipality under subsection 2, or if no percent is specified, then by at least thirty percent. *"Qualified real estate"* also means land upon which no structure existed at the start of the new construction that is located in that portion of an urban renewal area that is a federal targeted area and upon which new construction has been added during the time the area was so designated.

2. A municipality may, by ordinance, designate an urban renewal area as being eligible for the municipality to authorize property tax rebates under this section to eligible property owners within the portion of an urban renewal area that is a federal targeted area.

3. Following the designation under subsection 2, the municipality may enter into agreements to provide property tax rebates using moneys from the special fund of the municipality referred to in section 403,19, subsection 2, to owners of qualified real estate that is owner-occupied residential property containing two or fewer dwelling units. The rebate amount each year shall not exceed an amount equal to the actual value added by the improvements while the owner owned the property, not to exceed fifty thousand dollars, multiplied by the assessment limitation percentage under section 441.21, subsection 4, divided by one thousand dollars,

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and then multiplied by the consolidated levy rate or average consolidated levy rate per one thousand dollars of taxable value applicable to the property.

4. The rebate provided under an agreement shall be allowed for a period not to exceed fifteen consecutive years. Rebates

under this section shall be allowed for the authorized period as long as the qualified real estate is legally or equitably owned by the owner who added the improvements to the property or the owner's spouse and is occupied by the owner or the owner's spouse. If the military service or medical care conditions of section 425.11, subsection 1, paragraph *"d"*, subparagraph (1), subparagraph divisions (a) and (b), relating to homesteads apply to the qualified real estate, such real estate shall be considered owner occupied.

5. If the owner of qualified real estate that receives a rebate under this section sells the qualified real estate or no longer occupies the qualified real estate, the agreement shall be void for the remaining years of the agreement and if the sale or move occurs within five years of the date of the agreement, the owner shall be required to repay all rebate amounts received under the agreement.

6. An urban renewal area established on or after July 1, 2022, upon the determination that the area is an economic development area and which contains in whole or in part a federal targeted area, is exempt from the requirements of section 403.22, so long as the ordinance adopted under subsection 2 remains in effect.>

2. Title page, by striking lines 1 through 5 and inserting <An Act relating to urban renewal areas by authorizing municipalities to provide property tax rebates for certain owner-occupied residential property located in areas previously subjected to lending discrimination.>

COMMITTEE ON WAYS AND MEANS
DAN DAWSON, CHAIRPERSON

S–5074

Amend Senate File 2210 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. NEW SECTION. **135Q.1 Definitions.**

As used in this chapter, unless the context otherwise requires:

1. *"Department"* means the department of inspections and appeals.

2. *"Direct services"* means services provided to consumers through person-to-person contact. *"Direct services"* excludes services performed by persons in a health care entity setting that do not involve the provision of any service or treatment to a consumer of a health care entity. *"Direct services"* does not include the practice of medicine and surgery or osteopathic medicine and surgery by an individual licensed under chapter 148 or the practice of nursing by an advanced registered nurse practitioner or an advanced practice registered nurse licensed under chapter 152 or 152E.

3. *"Health care employment agency"* or *"agency"* means an

agency that contracts with a health care entity in this state to provide agency workers for temporary, temporary-to-hire, direct hire, or other contract or employee placements.

4. *"Health care employment agency worker"* or *"agency worker"* means an individual who contracts with or is employed by a health care employment agency to provide direct services or nursing services to health care entity consumers.

5. *"Health care entity"* means a licensed or certified facility, organization, or agency operated to provide services and supports to meet the health or personal care needs of consumers.

6. *"Managing entity"* means a business entity, owner, ownership group, chief executive officer, program administrator, director, or other decision maker whose responsibilities include directing the management or policies of a health care employment agency. *"Managing entity"* includes

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an individual who, directly or indirectly, holds a beneficial interest in a corporation, partnership, or other business entity that constitutes a managing entity.

7. *"Nursing services"* means those services which may be provided only by or under the supervision of a nurse. *"Nursing services"* does not include the practice of nursing by an advanced registered nurse practitioner or an advanced practice registered nurse licensed under chapter 152 or 152E.

Sec. 2. NEW SECTION. **135Q.2 Health care employment agency requirements —— registration —— liability —— penalties.**

1. A health care employment agency operating in the state shall register annually with the department. Each separate location of a health care employment agency shall register annually with and pay an annual registration fee of five hundred dollars to the department. The department shall issue each location a separate certification of registration upon approval of registration and payment of the fee.

2. A health care employment agency shall do all of the following:

a. Ensure that agency workers comply with all applicable requirements relating to the health requirements and qualifications of personnel in health care entity settings.

b. Document that each agency worker meets the minimum licensing, certification, training, and health requirements and the continuing education standards for the agency worker's position in the health care entity setting.

c. Maintain records for each agency worker and report, file, or otherwise provide any required documentation to external parties or regulators which would otherwise be the responsibility of the health care entity if the agency worker was employed by the health care entity.

d. Maintain professional and general liability insurance coverage with minimum per occurrence coverage of one million

dollars and aggregate coverage of three million dollars to insure against loss, damage, or expense incident to a claim

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arising out of the death or injury of any person as the result of negligence or malpractice in the provision of services by the agency or an agency worker.

3. *a.* A health care employment agency shall not do any of the following:

(1) Restrict in any manner the employment opportunities of an agency worker by including a non-compete clause in any contract with an agency worker or health care entity.

(2) In any contract with an agency worker or health care entity, require payment of liquidated damages, employment fees, or other compensation if the agency worker is subsequently hired as a permanent employee of the health care entity.

b. Any contract that violates this subsection shall be unenforceable in court.

4. A health care employment agency shall submit a report to the department on a quarterly basis for each health care entity participating in Medicare or Medicaid with whom the agency contracts that includes all of the following by provider type:

a. A detailed list of the average amount charged to the health care entity for each individual agency worker category.

b. A detailed list of the average amount paid by the agency to agency workers in each individual agency worker category.

5. *a.* A health care employment agency that violates subsection 1 or subsection 2 is subject to denial or revocation of registration for a period of one year and a monetary penalty of five hundred dollars for a first offense and five thousand dollars for each offense thereafter.

b. A health care employment agency that violates subsection 3 or that knowingly provides an agency worker who has an illegally or fraudulently obtained or issued diploma, registration, license, certification, or background check to a health care entity is subject to immediate revocation of registration. The department shall notify the agency thirty days in advance of the date of such revocation.

c. (1) The managing entity of an agency for which

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registration has been denied or revoked under this subsection shall not be eligible to apply for or be granted registration for another agency during the two-year period following the date of the denial or revocation.

(2) The department shall not approve a new registration or renew an existing registration for any agency for which the managing entity is also the managing entity of an agency for which registration has been denied or revoked during the two-year period in which registration of the violating agency

is denied or revoked.

6. The department shall establish a system for members of the public to report complaints against an agency or agency worker. The department shall investigate any complaint received and shall report the department's findings to the complaining party and the agency involved.>

MARK COSTELLO

S–5075

Amend Senate File 2276 as follows:

2. By striking everything after the enacting clause and inserting:

<Section 1. Section 135N.1, Code 2022, is amended by striking the section and inserting in lieu thereof the following:

135N.1 Direct health care agreements.

1. *Definitions.* For the purpose of this section:

a. "Direct health care agreement" means an agreement between a provider and a patient, or the patient's representative, in which the provider agrees to provide health care services for a specified period of time to the patient for a service charge.

b. "Durable power of attorney for health care" means the same as defined in section 144B.1.

c. "Health care services" means services for the diagnosis, prevention, treatment, cure, or relief of a health condition, illness, injury, or disease. *"Health care services"* includes dental care services.

d. "Patient" means an individual, or an individual and the individual's immediate family, that is a party to a direct health care agreement.

e. "Patient's representative" means a parent, guardian, or an individual holding a durable power of attorney for health care for a patient.

f. "Provider" means a health care professional licensed, accredited, registered, or certified to perform health care services consistent with the laws of this state. *"Provider"* includes an individual health care professional or other legal health care entity alone or with other health care professionals professionally associated with the individual health care professional or other legal health care entity.

g. "Service charge" means a charge for health care services provided by a provider to a patient covered by a direct health care agreement. *"Service charge"* may include a periodic retainer, a membership fee, a subscription fee, or a charge in

any other form paid by a patient to a provider under a direct health care agreement.

2. *Requirements for a valid direct health care agreement.*

a. In order to be a valid agreement, a direct health care agreement must meet all of the following requirements:

(1) Be in writing.

(2) Be signed by the provider, or an agent of the provider, and the patient or the patient's representative.

(3) Describe the scope of the health care services covered by the direct health care agreement.

(4) State each of the provider's locations where a patient may obtain health care services and specify any out-of-office health care services that are covered under the direct health care agreement.

(5) Specify the service charge and the frequency at which the service charge must be paid by the patient. A patient shall not be required to pay more than twelve months of a service charge in advance.

(6) Specify any additional costs for health care services not covered by the service charge for which the patient will be responsible.

(7) Specify the duration of the direct health care agreement, whether renewal is automatic, and if required, the procedure for renewal.

(8) Specify the terms and conditions under which the direct health care agreement may be terminated by the provider. A termination of the direct health care agreement by the provider shall include a minimum of a thirty-calendar-day advance, written notice to the patient or to the patient's representative.

(9) Specify that the direct health care agreement may be terminated at any time by the patient upon written notice to the provider.

(10) State that if the direct health care agreement is terminated by either the patient or the provider all of the

Page 3

following apply:

(a) Within thirty calendar days of the date of the notice of termination from either party, the provider shall refund all unearned service charges to the patient.

(b) Within thirty calendar days of the date of the notice of termination from either party, the patient shall pay all outstanding earned service charges to the provider.

(11) Include a notice in bold, twelve-point type that states substantially as follows:

NOTICE. This direct health care agreement is not health insurance and is not a plan that provides health coverage for purposes of any federal mandates. This direct health care agreement only covers the health care services described in this agreement. It is recommended that you obtain health insurance to cover health care services not covered under this direct health care agreement. You are personally responsible for the payment of any additional health care expenses you may

incur.

b. The provider shall provide the patient, or the patient's representative, with a fully executed copy of the direct health care agreement at the time the direct health care agreement is executed.

3. *Application for a direct health care agreement.* If a provider requires a prospective patient to complete an application for a direct health care agreement, the provider shall provide a written disclaimer on each application that informs the prospective patient of the patient's financial rights and responsibilities and that states that the provider will not bill a health insurance carrier for health care services covered under the direct health care agreement. The disclaimer shall also include the identical notice required by subsection 2, paragraph *"a"*, subparagraph (11).

4. *Notice required for changes to the terms or conditions of a direct health care agreement.*

a. A provider shall provide at least a sixty-calendar-day

Page 4

advance, written notice to a patient of any of the following changes to a direct health care agreement:

(1) Any change in the scope of the health care services covered under the agreement.

(2) Any change in the provider's locations where the patient may access health care services.

(3) Any change in the out-of-office services that are covered under the direct health care service agreement.

(4) Any change in the service charge.

(5) Any change in the additional costs for health care services not covered by the service charge.

(6) Any change in the renewal terms.

(7) Any change in the terms to terminate the agreement.

b. A provider shall provide the notice by mailing a letter to the last known address of the patient that the provider has on file. The postmark date on the letter shall be the first day of the required sixty-calendar-day notice period.

5. *Discrimination based on an individual's health status or preexisting condition.* A provider shall not do any of the following based on a patient's or prospective patient's preexisting condition or health status:

a. Refuse to accept a new patient.

b. Refuse to renew a direct health care agreement.

c. Establish an additional service charge for a direct health care agreement.

6. *A direct health care agreement is not insurance.*

a. A direct health care agreement shall be deemed to not be insurance and shall not be subject to the authority of the commissioner of insurance. Neither a provider or an agent of a provider shall be required to be licensed by the commissioner to transact the business of insurance in this state, or to

obtain a certificate issued by the commissioner to market or offer a direct health care agreement.

b. A provider shall not bill an insurer for a health care service provided under a direct health care agreement. A

Page 5

patient may submit a request for reimbursement to an insurer if permitted under the patient's policy of insurance. This paragraph does not prohibit a provider from billing a patient's insurance for a health care service provided to the patient by the provider that is not covered under the direct health care agreement.

7. *Third-party payment of a service charge.* A provider may accept payment of a service charge for a patient either directly or indirectly from a third party. A provider may accept all or part of a service charge paid by an employer on behalf of an employee who is a patient of the provider. A provider shall not enter directly into an agreement with an employer relating to a health care agreement between the provider and employees of the employer, other than an agreement to establish the timing and method of the payment of a service charge paid by the employer on behalf of the employee.

8. *Sale or transfer of a direct health care agreement.* A direct health care agreement shall not be sold or transferred by a provider without the prior written consent of the patient who is a party to the direct health care agreement. A patient shall not sell or transfer a direct health care agreement to which the patient is a party.

Sec. 2. EFFECTIVE DATE. This Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 3. APPLICABILITY. This Act applies to direct health care agreements that are fully executed on or after the date of enactment.>

CRAIG WILLIAMS

S–5076

Amend Senate File 2372 as follows:

1. Page 1, after line 10 by inserting:

<Sec. ___. Section 423.2, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 13. The department shall adopt rules pursuant to chapter 17A to administer subsection 6, paragraphs *"bu"*, *"bv"*, and *"bw"*.>

2. Page 2, by striking lines 19 through 23 and inserting:

<NEW SUBSECTION. 108. The sales price from the sale of feminine hygiene products. For purposes of this subsection, *"feminine hygiene products"* means tampons, panty liners, menstrual cups, sanitary napkins, and other similar tangible personal property designed for feminine hygiene in connection

with the human menstrual cycle.>

3. Page 2, line 24, by striking <108.> and inserting <109.>

4. Page 3, after line 13 by inserting:

<Sec. ___. EFFECTIVE DATE. The following takes effect January 1, 2024:

The section of this division of this Act amending section 423.3, subsection 47, paragraph "a", subparagraph (4).>

5. Page 6, after line 1 by inserting:

<Sec. ___. Section 422.7, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 6. *a.* For tax years beginning in the 2023 calendar year, subtract the amount of federal income taxes paid during the tax year to the extent payment is for a tax year beginning prior to January 1, 2023, and add any federal income tax refunds received during the tax year to the extent the federal income tax was deducted for a tax year beginning prior to January 1, 2023. Where married persons who have filed a joint federal income tax return file separately for state tax purposes, such total shall be divided between them according to the portion of the total paid by each. Federal income taxes paid for a tax year in which an Iowa return was not required to be filed shall not be subtracted.

Page 2

b. Notwithstanding any other provision of law to the contrary, amounts subtracted or added pursuant to this subsection shall not be included in the calculation of net income for purposes of section 422.5, subsection 3 or 3B, or section 422.13.

c. This subsection is repealed January 1, 2028.>

6. By striking page 7, line 29, through page 8, line 22.

7. By renumbering as necessary.

DAN DAWSON

S–5077

Amend Senate File 2363 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 692A.128, Code 2022, is amended to read as follows:

692A.128 Modification.

1. A sex offender ~~who is on probation, parole, work release, special sentence, or any other type of conditional release~~ may file an application in district court seeking to modify the registration requirements under this chapter.

2. ~~An~~ For an offender whose requirement to register as a sex offender commenced prior to July 1, 2022, an application shall not be granted unless all of the following apply:

a. The date of the commencement of the requirement to

register occurred at least two years prior to the filing of the application for a tier I offender and five years prior to the filing of the application for a tier II or III offender.

b. The sex offender has successfully completed all sex offender treatment programs that have been required.

c. A risk assessment has been completed and the sex offender was classified as a low risk to reoffend. The risk assessment used to assess an offender as a low risk to reoffend shall be a validated risk assessment approved by the department of corrections.

d. The sex offender is not incarcerated when the application is filed.

e. The director of the judicial district department of correctional services supervising the sex offender, or the director's designee, stipulates to the modification, and a certified copy of the stipulation is attached to the application.

3. For an offender whose requirement to register as a sex offender commenced on or after July 1, 2022, an application shall not be granted unless all of the following apply:

a. A period of time has elapsed since the offender's initial

Page 2

registration as follows:

(1) (a) Except as otherwise provided in subparagraph division (b), a tier I offender initially registered at least ten years prior to the filing of the application.

(b) A tier I offender who was under twenty years of age at the time the offender committed a violation of section 709.4, subsection 1, paragraph *"b"*, subparagraph (2), subparagraph division (d), initially registered at least five years prior to the filing of the application.

(2) A tier II or tier III offender initially registered at least fifteen years prior to the filing of the application.

b. The sex offender has successfully completed all sex offender treatment programs that have been required.

c. A risk assessment has been completed and the sex offender was classified as a low risk to reoffend. The risk assessment used to assess an offender as a low risk to reoffend shall be a validated risk assessment approved by the department of corrections.

d. The sex offender ~~is not incarcerated when the application is filed~~ has successfully completed any pretrial release, probation, parole, or work release for the offense requiring registration.

e. The director of the judicial district department of correctional services supervising the sex offender, or the director's designee, stipulates to the modification, and a certified copy of the stipulation is attached to the application.

f. The sex offender is not incarcerated when the application

is filed.

(1) A tier I offender must not have been convicted of any criminal offense other than a simple misdemeanor, or a simple or serious misdemeanor or traffic violation under chapter 321, for the ten-year period immediately preceding the filing of the application.

(2) A tier II or tier III offender shall not have been

Page 3

convicted of any criminal offense other than a simple misdemeanor, or a simple or serious misdemeanor or traffic violation under chapter 321, for the fifteen-year period immediately preceding the filing of the application.

~~3.~~ 4. The application shall be filed in the sex offender's county of principal residence.

~~4.~~ 5. Notice of any application shall be provided to the county attorney of the county of the sex offender's principal residence, the county attorney of any county in this state where a conviction requiring the sex offender's registration occurred, and the department. The county attorney where the conviction occurred shall notify the victim of an application if the victim's address is known.

~~5.~~ 6. The court may, but is not required to, conduct a hearing on the application to hear any evidence deemed appropriate by the court. The court may modify the registration requirements under this chapter by reducing the registration period.

~~6. A sex offender may be granted a modification if the offender is required to be on the sex offender registry as a result of an adjudication for a sex offense, the offender is not under the supervision of the juvenile court or a judicial district judicial department of correctional services, and the department of corrections agrees to perform a risk assessment on the sex offender. However, all other provisions of this section not in conflict with this subsection shall apply to the application prior to an application being granted except that the sex offender is not required to obtain a stipulation from the director of a judicial district department of correctional services, or the director's designee.~~

7. If the court modifies the registration requirements under this chapter, the court shall send a copy of the order to the department, the sheriff of the county of the sex offender's principal residence, any county attorney notified in subsection 4, and the victim, if the victim's address is known.>

JEFF REICHMAN

S–5078

Amend Senate File 2372 as follows:

1. Page 1, after line 10 by inserting:

<Sec. ___. Section 423.2, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 13. The department shall adopt rules pursuant to chapter 17A to administer subsection 6, paragraphs *"bu"*, *"bv"*, and *"bw"*.>

2. Page 2, by striking lines 19 through 23 and inserting:

<NEW SUBSECTION. 108. The sales price from the sale of feminine hygiene products. For purposes of this subsection, *"feminine hygiene products"* means tampons, panty liners, menstrual cups, sanitary napkins, and other similar tangible personal property designed for feminine hygiene in connection with the human menstrual cycle.>

3. Page 2, line 24, by striking <108.> and inserting <109.>

4. Page 3, after line 13 by inserting:

<Sec. ___. EFFECTIVE DATE. The following takes effect January 1, 2024:

The section of this division of this Act amending section 423.3, subsection 47, paragraph "a", subparagraph (4).>

5. By striking page 3, line 32, through page 4, line 7.

6. Page 6, after line 1 by inserting:

<Sec. ___. Section 422.7, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 6. *a.* For tax years beginning in the 2023 calendar year, subtract the amount of federal income taxes paid during the tax year to the extent payment is for a tax year beginning prior to January 1, 2023, and add any federal income tax refunds received during the tax year to the extent the federal income tax was deducted for a tax year beginning prior to January 1, 2023. Where married persons who have filed a joint federal income tax return file separately for state tax purposes, such total shall be divided between them according to the portion of the total paid by each. Federal income taxes paid for a tax year in which an Iowa return was not required to

Page 2

be filed shall not be subtracted.

b. Notwithstanding any other provision of law to the contrary, amounts subtracted or added pursuant to this subsection shall not be included in the calculation of net income for purposes of section 422.5, subsection 3 or 3B, or section 422.13.

c. This subsection is repealed January 1, 2028.>

7. By striking page 7, line 29, through page 8, line 22.

8. Title page, line 3, by striking <the automobile rental excise tax,>

9. By renumbering as necessary.

DAN DAWSON

S–5079

Amend House File 2462, as passed by the House, as follows:

1. Page 1, after line 13 by inserting:

<Sec. ___. The following amendment to the Constitution of the State of Iowa is proposed:

Article XI of the Constitution of the State of Iowa is amended by adding the following new section:

Sec. 9. **Cannabis.** The possession, growth, cultivation, processing, manufacture, preparation, packaging, transferal, consumption, and retail sale and purchase of cannabis, or products created from or including cannabis, by persons 21 years of age or older, shall be lawful and subject to regulation by the alcoholic beverages division or its successor agency, except for cannabis purchased for medical use pursuant to the recommendation of a medical professional as provided for by law. "Cannabis" means all parts of the plant genus Cannabis L., whether growing or not, the seeds thereof, and every compound, manufacture, salt, derivative, mixture, or preparation of the plant or its seeds.

The receipts from retail purchases of cannabis or products created from or which include cannabis, other than cannabis purchased for medical use pursuant to the recommendation of a medical professional as provided for by law, shall be subject to taxation by the state at a rate to be determined by the general assembly by law not to exceed twenty percent and shall be credited to the general fund of the state.

The receipts from retail purchases of cannabis, other than cannabis purchased for medical use pursuant to the recommendation of a medical professional as provided for by law, shall be subject to a supplemental tax at a rate to be determined by the general assembly by law not to exceed three percent. Revenue from this tax shall be apportioned to the municipality overseeing the location generating the receipt or, in the case of an unincorporated area, to the county overseeing that location.

The general assembly shall provide by law for the

Page 2

implementation of this section.

Sec. ___. REFERRAL AND PUBLICATION. The foregoing proposed amendment to the Constitution of the State of Iowa is referred to the general assembly to be chosen at the next general election for members of the general assembly, and shall be published as provided by law for three consecutive months previous to the date of that election.>

2. Title page, line 2, after <heroin> by inserting <, and

proposing an amendment to the Constitution of the State of Iowa relating to cannabis>

3. By renumbering as necessary.

JOE BOLKCOM
JANET PETERSEN
TONY BISIGNANO
CLAIRE A. CELSI
WILLIAM A. DOTZLER, JR.
TODD TAYLOR
JACKIE SMITH
PAM JOCHUM
ZACH WAHLS

S–5080

Amend Senate File 2131 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 96.2, Code 2022, is amended to read as follows:

96.2 Guide for interpretation.

As a guide to the interpretation and application of this chapter, the public policy of this state is declared to be as follows: Economic insecurity due to unemployment ~~is a serious menace to~~ negatively impacts the health, morals, and welfare of the people of ~~this state~~ Iowa. ~~Involuntary unemployment is therefore a subject of general interest and concern which requires appropriate action by the legislature to prevent its spread and to lighten its burden which now so often falls with crushing force upon the unemployed worker and the worker's family. The achievement of social security requires protection against this greatest hazard of our economic life. This can be provided~~ These undesirable consequences can be reduced by encouraging employers to provide more stable employment and by the systematic accumulation of funds during periods of employment to provide benefits for periods of unemployment~~, thus maintaining purchasing power and limiting the serious social consequences of poor relief assistance. The legislature, therefore, declares that in its considered judgment the public good and the general welfare of the citizens of this state require the enactment of this measure, under the police powers of the state, for the compulsory setting aside of unemployment reserves to be used for the benefit of persons~~. This chapter provides for payment of benefits to workers unemployed through no fault of their own. The policy herein is intended to encourage stabilization in employment, to provide for integrated employment and training services in support of state economic development programs, and to provide meaningful job training and employment opportunities for the unemployed, underemployed, economically disadvantaged,

Page 2

dislocated workers, and others with substantial barriers to employment. To further this public policy, the state, through its department of workforce development, will maintain close coordination among all federal, state, and local agencies whose missions affect the employment or employability of the unemployed and underemployed.

Sec. 2. Section 96.3, subsection 5, paragraph a, Code 2022, is amended to read as follows:

a. Duration of benefits. The maximum total amount of benefits payable to an eligible individual during a benefit year shall not exceed the total of the wage credits accrued to the individual's account during the individual's base period, or ~~twenty-six~~ sixteen times the individual's weekly benefit amount, whichever is the lesser. The director shall maintain a separate account for each individual who earns wages in insured work. The director shall compute wage credits for each individual by crediting the individual's account with one-third of the wages for insured work paid to the individual during the individual's base period. However, the director shall recompute wage credits for an individual who is laid off due to the individual's employer going out of business at the factory, establishment, or other premises at which the individual was last employed, by crediting the individual's account with one-half, instead of one-third, of the wages for insured work paid to the individual during the individual's base period. Benefits paid to an eligible individual shall be charged against the base period wage credits in the individual's account which have not been previously charged, in the inverse chronological order as the wages on which the wage credits are based were paid. However if the state "off" indicator is in effect and if the individual is laid off due to the individual's employer going out of business at the factory, establishment, or other premises at which the individual was last employed, the maximum benefits payable shall be extended to ~~thirty-nine~~ twenty-six times the individual's weekly benefit

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amount, but not to exceed the total of the wage credits accrued to the individual's account.

Sec. 3. Section 96.3, subsection 7, paragraph b, subparagraph (1), subparagraph division (a), Code 2022, is amended to read as follows:

(a) If the department determines that an overpayment has been made, the charge for the overpayment against the employer's account shall be removed and the account shall be credited with an amount equal to the overpayment from the unemployment compensation trust fund and this credit shall include both contributory and reimbursable employers, notwithstanding section 96.8, subsection 5. The employer shall

not be relieved of charges if benefits are paid because the employer or an agent of the employer failed to respond timely or adequately to the department's request for information relating to the payment of benefits. This prohibition against relief of charges shall apply to both contributory and reimbursable employers. If the department determines that an employer's failure to respond timely or adequately was through no fault of the employer, the employer's account shall not be charged for the overpayment.

Sec. 4. Section 96.4, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 8. The individual has satisfied a single one-week waiting period during the individual's benefit year. To satisfy the one-week waiting period, the individual, with respect to the week in question, must otherwise be eligible for benefits from this state, must not have received or have payable benefits from this state, and must not be eligible for benefits from another state.

Sec. 5. Section 96.5, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *d.* For the purposes of this subsection, *"misconduct"* means a deliberate act or omission by an employee that constitutes a material breach of the duties

and obligations arising out of the employee's contract of employment. Misconduct is limited to conduct evincing such willful or wanton disregard of an employer's interest as is found in deliberate violation or disregard of standards of behavior which the employer has the right to expect of employees, or in carelessness or negligence of such degree of recurrence as to manifest equal culpability, wrongful intent or evil design, or to show an intentional and substantial disregard of the employer's interests or of the employee's duties and obligations to the employer. Misconduct by an individual includes but is not limited to all of the following:

(1) Falsification of the individual's employment application.

(2) Knowing violation of a reasonable and uniformly enforced rule of an employer.

(3) Intentional damage of an employer's property.

(4) Dishonesty to an employer with regard to the individual's employment.

(5) Consumption of alcohol, illegal or nonprescribed prescription drugs, or an impairing substance in a manner not directed by the manufacturer, or a combination of such substances, on the employer's premises in violation of the employer's employment policies.

(6) Reporting to work under the influence of alcohol, illegal or nonprescribed prescription drugs, or an impairing substance in an off-label manner, or a combination of such

substances, on the employer's premises in violation of the employer's employment policies, unless the individual is compelled to work by the employer outside of scheduled or on-call working hours.

(7) Conduct that endangers the personal safety of the individual, coworkers, or the general public.

(8) Incarceration for an act for which one could reasonably expect to be incarcerated that results in missing work.

(9) Incarceration as a result of a misdemeanor or felony

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conviction by a court of competent jurisdiction.

(10) Excessive unexcused tardiness or absenteeism.

(11) Falsification of any work-related report, task, or job that could expose the employer or coworkers to legal liability or sanction for violation of health or safety laws.

(12) Failure to maintain any license, registration, or certification that is reasonably required by the employer or by law, or that is a functional requirement to perform the individual's regular job duties, unless the failure is not within the control of the individual.

(13) Conduct that is libelous or slanderous toward an employer or an employee of the employer if such conduct is not protected under state or federal law.

(14) Conduct creating or attempting to create dissention or animus against the employer or a coworker if such conduct is not protected under state or federal law.

(15) Theft of an employer or coworker's funds or property.

(16) Misrepresentation of time worked or work carried out that results in the individual receiving unearned wages or unearned benefits.

Sec. 6. Section 96.5, subsection 3, paragraph a, subparagraph (1), subparagraph divisions (a), (b), (c), and (d), Code 2022, are amended to read as follows:

(a) One hundred percent, if the work is offered during the first ~~five weeks~~ week of unemployment.

(b) ~~Seventy-five~~ Ninety percent, if the work is offered during the ~~sixth~~ second through the ~~twelfth~~ third week of unemployment.

(c) ~~Seventy~~ Eighty percent, if the work is offered during the ~~thirteenth~~ fourth through the ~~eighteenth~~ fifth week of unemployment.

(d) ~~Sixty-five~~ Seventy percent, if the work is offered ~~after~~ during the ~~eighteenth~~ sixth through the eighth week of unemployment.

Sec. 7. Section 96.5, subsection 3, paragraph a,

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subparagraph (1), Code 2022, is amended by adding the following new subparagraph division:

NEW SUBPARAGRAPH DIVISION. (e) Sixty percent, if the work is offered after the eighth week of unemployment.

Sec. 8. Section 96.6, subsection 3, paragraph b, Code 2022, is amended to read as follows:

b. Appeals from the initial determination shall be heard by an administrative law judge employed by the department. An administrative law judge's decision may be appealed by any party to the employment appeal board created in section 10A.601~~. The decision of the appeal board is final agency action and an appeal of the decision shall be made~~ or directly to the district court.

Sec. 9. Section 96.40, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *l.* The reduction in work hours for employees was not based on a work week exceeding forty hours.

Sec. 10. Section 96.40, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 4A. Approval of a shared work plan shall be revoked if the employer lays off any employee, whether the employee is employed within an affected unit or not, while participating in the shared work unemployment compensation program.

NEW SUBSECTION. 12. A part-time employee shall be eligible for shared work unemployment compensation program benefits, provided that the employee meets all other requirements in this section.>

DENNIS GUTH
JASON SCHULTZ

S–5081

Amend Senate File 2330 as follows:

1. Page 2, by striking lines 8 through 10 and inserting:

<There is no known private burial site, well, solid waste disposal site, underground storage tank, hazardous waste, or private sewage disposal system on the property as described in Iowa Code section 558.69, and therefore the transaction is exempt from the requirement to submit a groundwater hazard statement.>

JEFF TAYLOR

S–5082

Amend the amendment, S–5067, to House File 781, as passed by the House, as follows:

1. Page 4, line 32, by striking <registered>
2. Page 4, line 35, by striking <registered>
3. Page 5, line 3, by striking <registered>

4. Page 5, by striking lines 6 through 16.
5. By renumbering as necessary.

CHRIS COURNOYER

S–5083

Amend the amendment, S–5080, to Senate File 2131, as follows:
1. Page 3, by striking lines 22 through 30
2. By renumbering as necessary.

NATE BOULTON

S–5084

Amend the amendment, S–5080, to Senate File 2131, as follows:
1. Page 3, after line 21 by inserting:
<Sec. ___. Section 96.4, subsection 3, paragraph b, Code 2022, is amended to read as follows:
b. Notwithstanding any provision of this chapter to the contrary, the department may establish by rule a process to waive or alter the work search requirements of this subsection for a claim for benefits if an individual has a reasonable expectation that the individual will be returning to employment and is attached to a regular job or industry or a member in good standing of a union therein eligible for referral for employment. To be considered attached to a regular job or industry, an individual must be on a short-term seasonal temporary layoff. If work is not available at the conclusion of the layoff period due to short-term circumstances beyond the employer's control, the employer may request an extension of the waiver or alteration for up to two weeks from the department. For purposes of this paragraph, *"short-term seasonal temporary layoff"* means a layoff period of sixteen weeks or less due to seasonal weather conditions that impact the ability to perform work ~~related to highway construction, repair, or maintenance~~ with a specific return-to-work date verified by the employer.>
2. By renumbering as necessary.

JACKIE SMITH

S–5085

Amend the amendment, S–5080, to Senate File 2131, as follows:
1. Page 2, line 35, by striking <~~thirty-nine~~ twenty-six> and inserting <thirty-nine>
2. Page 6, after line 4 by inserting:
<Sec. ___. Section 96.5, subsection 3, paragraph b, Code

2022, is amended by adding the following new subparagraphs:

NEW SUBPARAGRAPH. (4) (a) If the individual has a reasonable expectation that the individual will be returning to employment, as defined by the department by rule, and is attached to a regular job or industry or is a member in good standing of a union therein eligible for referral for employment.

(b) To be considered attached to a regular job or industry, an individual must be on a short-term seasonal temporary layoff as defined by the department by rule.

NEW SUBPARAGRAPH. (5) If all of the following circumstances apply:

(a) The individual is unemployed due to the individual's employer temporarily ceasing operations or going out of business at the factory, establishment, or other premises at which the individual was last employed.

(b) The reason for the employer going out of business was a result of unforeseen circumstances, including but not limited to cybersecurity attacks.

(c) The individual has a reasonable expectation that the individual will be returning to employment with the employer that temporarily ceased operations or went out of business.>

3. By renumbering as necessary.

NATE BOULTON
WILLIAM A. DOTZLER, JR.
TONY BISIGNANO
PAM JOCHUM
TODD TAYLOR

S–5086

Amend Senate File 2131 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 96.2, Code 2022, is amended to read as follows:

96.2 Guide for interpretation.

As a guide to the interpretation and application of this chapter, the public policy of this state is declared to be as follows: Economic insecurity due to unemployment ~~is a serious menace to~~ negatively impacts the health, morals, and welfare of the people of ~~this state~~ Iowa. ~~Involuntary unemployment is therefore a subject of general interest and concern which requires appropriate action by the legislature to prevent its spread and to lighten its burden which now so often falls with crushing force upon the unemployed worker and the worker's family. The achievement of social security requires protection against this greatest hazard of our economic life. This can be provided~~ These undesirable consequences can be reduced by encouraging employers to provide more stable employment and by the systematic accumulation of funds during

periods of employment to provide benefits for periods of unemployment~~, thus maintaining purchasing power and limiting the serious social consequences of poor relief assistance. The legislature, therefore, declares that in its considered judgment the public good and the general welfare of the citizens of this state require the enactment of this measure, under the police powers of the state, for the compulsory setting aside of unemployment reserves to be used for the benefit of persons~~. This chapter provides for payment of benefits to workers unemployed through no fault of their own. The policy herein is intended to encourage stabilization in employment, to provide for integrated employment and training services in support of state economic development programs, and to provide meaningful job training and employment opportunities for the unemployed, underemployed, economically disadvantaged,

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dislocated workers, and others with substantial barriers to employment. To further this public policy, the state, through its department of workforce development, will maintain close coordination among all federal, state, and local agencies whose missions affect the employment or employability of the unemployed and underemployed.

Sec. 2. Section 96.3, subsection 5, paragraph a, Code 2022, is amended to read as follows:

a. Duration of benefits. The maximum total amount of benefits payable to an eligible individual during a benefit year shall not exceed the total of the wage credits accrued to the individual's account during the individual's base period, or ~~twenty-six~~ sixteen times the individual's weekly benefit amount, whichever is the lesser. The director shall maintain a separate account for each individual who earns wages in insured work. The director shall compute wage credits for each individual by crediting the individual's account with one-third of the wages for insured work paid to the individual during the individual's base period. However, the director shall recompute wage credits for an individual who is laid off due to the individual's employer going out of business at the factory, establishment, or other premises at which the individual was last employed, by crediting the individual's account with one-half, instead of one-third, of the wages for insured work paid to the individual during the individual's base period. Benefits paid to an eligible individual shall be charged against the base period wage credits in the individual's account which have not been previously charged, in the inverse chronological order as the wages on which the wage credits are based were paid. However if the state "off" indicator is in effect and if the individual is laid off due to the individual's employer going out of business at the factory,

establishment, or other premises at which the individual was last employed, the maximum benefits payable shall be extended to ~~thirty-nine~~ twenty-six times the individual's weekly benefit

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amount, but not to exceed the total of the wage credits accrued to the individual's account.

Sec. 3. Section 96.3, subsection 7, paragraph b, subparagraph (1), subparagraph division (a), Code 2022, is amended to read as follows:

(a) If the department determines that an overpayment has been made, the charge for the overpayment against the employer's account shall be removed and the account shall be credited with an amount equal to the overpayment from the unemployment compensation trust fund and this credit shall include both contributory and reimbursable employers, notwithstanding section 96.8, subsection 5. The employer shall not be relieved of charges if benefits are paid because the employer or an agent of the employer failed to respond timely or adequately to the department's request for information relating to the payment of benefits. This prohibition against relief of charges shall apply to both contributory and reimbursable employers. If the department determines that an employer's failure to respond timely or adequately was due to insufficient notification from the department, the employer's account shall not be charged for the overpayment.

Sec. 4. Section 96.5, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *d.* For the purposes of this subsection, *"misconduct"* means a deliberate act or omission by an employee that constitutes a material breach of the duties and obligations arising out of the employee's contract of employment. Misconduct is limited to conduct evincing such willful or wanton disregard of an employer's interest as is found in deliberate violation or disregard of standards of behavior which the employer has the right to expect of employees, or in carelessness or negligence of such degree of recurrence as to manifest equal culpability, wrongful intent or evil design, or to show an intentional and substantial disregard of the employer's interests or of the employee's

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duties and obligations to the employer. Misconduct by an individual includes but is not limited to all of the following:

(1) Material falsification of the individual's employment application.

(2) Knowing violation of a reasonable and uniformly enforced rule of an employer.

(3) Intentional damage of an employer's property.

(4) Consumption of alcohol, illegal or nonprescribed

prescription drugs, or an impairing substance in a manner not directed by the manufacturer, or a combination of such substances, on the employer's premises in violation of the employer's employment policies.

(5) Reporting to work under the influence of alcohol, illegal or nonprescribed prescription drugs, or an impairing substance in an off-label manner, or a combination of such substances, on the employer's premises in violation of the employer's employment policies, unless the individual is compelled to work by the employer outside of scheduled or on-call working hours.

(6) Conduct that substantially and unjustifiably endangers the personal safety of coworkers or the general public.

(7) Incarceration for an act for which one could reasonably expect to be incarcerated that results in missing work.

(8) Incarceration as a result of a misdemeanor or felony conviction by a court of competent jurisdiction.

(9) Excessive unexcused tardiness or absenteeism.

(10) Falsification of any work-related report, task, or job that could expose the employer or coworkers to legal liability or sanction for violation of health or safety laws.

(11) Failure to maintain any license, registration, or certification that is reasonably required by the employer or by law, or that is a functional requirement to perform the individual's regular job duties, unless the failure is not within the control of the individual.

(12) Conduct that is libelous or slanderous toward an

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employer or an employee of the employer if such conduct is not protected under state or federal law.

(13) Theft of an employer or coworker's funds or property.

(14) Intentional misrepresentation of time worked or work carried out that results in the individual receiving unearned wages or unearned benefits.

Sec. 5. Section 96.5, subsection 3, paragraph a, subparagraph (1), subparagraph divisions (a), (b), (c), and (d), Code 2022, are amended to read as follows:

(a) One hundred percent, if the work is offered during the first ~~five weeks~~ week of unemployment.

(b) ~~Seventy-five~~ Ninety percent, if the work is offered during the ~~sixth~~ second through the ~~twelfth~~ third week of unemployment.

(c) ~~Seventy~~ Eighty percent, if the work is offered during the ~~thirteenth~~ fourth through the ~~eighteenth~~ fifth week of unemployment.

(d) ~~Sixty-five~~ Seventy percent, if the work is offered ~~after~~ during the ~~eighteenth~~ sixth through the eighth week of unemployment.

Sec. 6. Section 96.5, subsection 3, paragraph a, subparagraph (1), Code 2022, is amended by adding the following

new subparagraph division:
NEW SUBPARAGRAPH DIVISION. (e) Sixty percent, if the work is offered after the eighth week of unemployment.
Sec. 7. Section 96.6, subsection 3, paragraph b, Code 2022, is amended to read as follows:
b. Appeals from the initial determination shall be heard by an administrative law judge employed by the department. An administrative law judge's decision may be appealed by any party to the employment appeal board created in section 10A.601~~. The decision of the appeal board is final agency action and an appeal of the decision shall be made~~ or directly to the district court.
Sec. 8. Section 96.40, subsection 2, Code 2022, is amended

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by adding the following new paragraph:
NEW PARAGRAPH. *l.* The reduction in work hours for employees was not based on a work week exceeding forty hours.
Sec. 9. Section 96.40, Code 2022, is amended by adding the following new subsections:
NEW SUBSECTION. 4A. Approval of a shared work plan shall be revoked if the employer lays off any employee, whether the employee is employed within an affected unit or not, while participating in the shared work unemployment compensation program.
NEW SUBSECTION. 12. A part-time employee shall be eligible for shared work unemployment compensation program benefits, provided that the employee meets all other requirements in this section.>

DENNIS GUTH
JASON SCHULTZ

S–5087

Amend House File 2355, as amended, passed, and reprinted by the House, as follows:
1. Page 3, after line 18 by inserting:
<Sec. ___. Section 96.4, Code 2022, is amended by adding the following new subsection:
NEW SUBSECTION. 8. The individual has satisfied a single one-week waiting period during the individual's benefit year. To satisfy the one-week waiting period, the individual, with respect to the week in question, must otherwise be eligible for benefits from this state, must not have received or have payable benefits from this state, and must not be eligible for benefits from another state.>
2. By renumbering as necessary.

DENNIS GUTH
JASON SCHULTZ

S–5088

HOUSE AMENDMENT TO
SENATE FILE 522

Amend Senate File 522, as passed by the Senate, as follows:

1. Page 4, line 22, by striking <2021> and inserting <2022>

2. Page 11, line 13, by striking <parent, spouse, adult child, or other>

3. Page 13, line 9, after <individual> by inserting <, to the detriment of the older individual>

4. Page 14, after line 24 by inserting:

<___. Nothing in this section shall be construed to impose criminal liability on a person who has made a good-faith effort to assist an older individual in the management of the older individual's benefits, property, resources, belongings, or assets when the efforts are undertaken for the preservation of the assets of the older individual or the older individual's spouse or for the safety of the older individual or the older individual's spouse.>

5. Page 17, line 1, by striking <2021> and inserting <2022>

6. Page 17, line 8, by striking <2021> and inserting <2022>

7. Page 17, line 19, by striking <2021> and inserting <2022>

8. Page 17, line 27, by striking <2021> and inserting <2022>

9. Page 17, line 34, by striking <2021> and inserting <2022>

10. Page 18, line 12, by striking <2021> and inserting <2022>

11. Page 18, line 27, by striking <2021> and inserting <2022>

12. Page 18, line 33, by striking <2021> and inserting <2022>

13. Page 19, line 10, by striking <2021> and inserting <2022>

14. Page 20, line 21, by striking <2021> and inserting <2022>

15. Page 20, line 22, by striking <2021> and inserting <2022>

16. By renumbering, redesignating, and correcting internal references as necessary.

S–5089

HOUSE AMENDMENT TO
SENATE FILE 551

Amend Senate File 551, as amended, passed, and reprinted by the Senate, as follows:

1. Page 1, after line 31 by inserting:

<Sec. ___. Section 321.423, subsection 3, paragraph a, subparagraph (2), Code 2022, is amended to read as follows:

(2) A vehicle authorized by the chief of the fire department if the vehicle is owned by a member of the fire department,

the request for authorization is made by the member on forms provided by the department, ~~and~~ necessity for authorization is demonstrated in the request, and the member has received emergency vehicle operations training.>

2. Page 1, line 33, by striking <2021> and inserting <2022>

3. Page 2, line 7, by striking <2021> and inserting <2022>

4. Title page, line 2, by striking <responding to emergency situations in> and inserting <operating>

5. By renumbering as necessary.

S–5090

HOUSE AMENDMENT TO
SENATE FILE 2285

Amend Senate File 2285, as amended, passed, and reprinted by the Senate, as follows:

1. Page 1, before line 1 by inserting:

<Section 1. NEW SECTION. **335.2A Sale of consumer fireworks —— limitation.**

A county shall not adopt or enforce any ordinance under this chapter to regulate, restrict, or prohibit the location of permanent buildings or temporary structures used for the sale of consumer fireworks pursuant to section 100.19, in any location zoned for commercial or industrial purposes.

Sec. ___. Section 414.1, subsection 1, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *f.* A city shall not adopt or enforce any regulation or restriction under this chapter to regulate, restrict, or prohibit the location of permanent buildings or temporary structures used for the sale of consumer fireworks pursuant to section 100.19, in any location zoned for commercial or industrial purposes.>

2. Page 1, line 20, by striking <section 570A.1> and inserting <section 570A.1, except when such requirement prevents the identification of an eligible and willing appointee for the planning and zoning commission or board of adjustment for at least six months from the effective date of the extension of zoning jurisdiction. The failure to identify an eligible and willing appointee who owns land that is actively used for an agricultural purpose shall be determined independently for the planning and zoning commission and the board of adjustment>

3. Page 2, after line 5 by inserting:

<Sec. ___. EFFECTIVE DATE. The following, being deemed of immediate importance, take effect upon enactment:

1. The section of this Act enacting section 335.2A.

2. The section of this Act enacting section 414.1, subsection 1, paragraph "f".>

4. Title page, by striking lines 1 through 3 and inserting

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<An Act relating to zoning by counties and cities, and including effective date provisions.>

5. By renumbering as necessary.

S–5091

Amend Senate File 2374 as follows:

1. Page 20, line 15, after <9,> by inserting <11,>

2. Page 20, after line 23 by inserting:

<11. *"Canned cocktail"* means a mixed drink or cocktail that is premixed and packaged in a metal can and contains more than ~~six and twenty-five hundredths~~ one-half of one percent of alcohol by volume but not more than fifteen percent of alcohol by volume. A mixed drink or cocktail mixed and packaged in a metal can pursuant to section 123.49, subsection 2, paragraph *"d"*, subparagraph (3), shall not be considered a canned cocktail.>

CHRIS COURNOYER

S–5092

Amend Senate File 2110 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 204.2, subsection 5, Code 2022, is amended to read as follows:

5. *"Crop site"* or *"site"* means a single contiguous ~~parcel~~ tract of agricultural land suitable for the planting, growing, or harvesting of hemp, if the ~~parcel~~ tract does not exceed ~~forty~~ three hundred twenty acres.

Sec. 2. Section 204.4, subsection 6, Code 2022, is amended to read as follows:

6. A person may hold any number of licenses at the same time. However, the person shall not hold a legal or equitable interest in a licensed crop site, if the total number of acres of all licensed crop sites in which the person holds ~~all~~ any such ~~interests~~ interest equals more than ~~forty~~ three hundred twenty acres.

Sec. 3. EFFECTIVE DATE. This Act, being deemed of immediate importance, takes effect upon enactment.>

TOM SHIPLEY

S–5093

Amend House File 2369, as passed by the House, as follows:

1. Page 1, by striking lines 8 through 22 and inserting:

<2. A person may kill, trap, or ensnare a fur-bearing animal when the killing, trapping, or ensnaring is for the protection

of a person or public or private property, including a domestic animal, with the prior permission of a duly appointed representative of the commission. If prior permission is impractical or impossible to obtain and the fur-bearing animal represents a threat to a person~~, domestic animal,~~ or private property, including a domestic animal, the fur-bearing animal may be taken without prior permission. Prior permission is not required for taking a coyote, raccoon, opossum, skunk, or groundhog for purposes described in this subsection.

3. All fur-bearing animals and all parts thereof taken as provided in ~~this section~~ subsection 2 shall be disposed of on the site or shall be relinquished to a representative of the commission.>

TOM SHIPLEY

S–5094

Amend House File 2239, as passed by the House, as follows:

1. Page 1, after line 18 by inserting:

<Sec. ___. NEW SECTION. **622.31B Admissibility of evidence in certain physical abuse and sexual offense cases.**

1. As used in this section:

a. "Child" means a person under fourteen years of age.

b. "Cognitive impairment" means a deficiency in a person's short-term or long-term memory; orientation as to person, place, and time; deductive or abstract reasoning; or judgment as it relates to safety awareness.

c. "Developmental disability" means the same as defined under the federal Developmental Disabilities Assistance and Bill of Rights Act of 2000, Pub. L. No. 106-402, as codified in 42 U.S.C. §15002(8).

d. "Intellectual disability" means a disability of children and adults who as a result of inadequately developed intelligence have a significant impairment in ability to learn or to adapt to the demands of society.

2. In a prosecution for physical abuse or a sexual offense including but not limited to a sexual offense in violation of section 709.2, 709.3, 709.4, 709.11, 709.12, 709.14, 709.15, 709.16, or 709.23, upon or against a child, a person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability, the following evidence shall be admitted as an exception to the hearsay rule if all of the requirements in subsection 3 apply:

a. Testimony by the victim concerning an out-of-court statement, whether consistent or inconsistent, made by the victim to another person that is an initial disclosure of the offense.

b. Testimony by another concerning an out-of-court statement, whether consistent or inconsistent, made by the

victim that is an initial disclosure of an offense charged for physical abuse or a sexual offense against the victim.

3. The testimony described in subsection 2 shall be admitted

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into evidence at trial as an exception to the hearsay rule if all of the following apply:

a. The party intending to offer the statement does all of the following:

(1) Notifies the adverse party of the intent to offer the statement.

(2) Provides the adverse party with the name of the witness through whom the statement will be offered.

(3) Provides the adverse party with a written summary of the statement to be offered.

b. The court finds, in a hearing conducted outside the presence of the jury, that the timing of the statement, the content of the statement, and the circumstances surrounding the making of the statement provide sufficient safeguards of reliability.

c. The child, person with an intellectual disability, person with a cognitive impairment, or a person with a developmental disability testifies at the trial.

4. If a statement is admitted pursuant to this section, the court shall instruct the jury that it is for the jury to determine the weight and credibility to be given to the statement, and in making that determination, the jury shall consider the age and maturity of the child or the disability of the person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability; the nature of the statement; the circumstances under which the statement was made, and any other relevant factors.

5. This section shall not prevent the admission of any evidence based upon forfeiture by wrongdoing.>

2. Title page, line 3, after <abuse> by inserting <, and the admissibility of evidence in a prosecution for physical abuse or a sexual offense upon or against a child, person with an intellectual disability, person with a cognitive impairment, or person with a developmental disability>

DAN DAWSON

S–5095

Amend House File 736, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. NEW SECTION. **249A.42A Overpayment —— subsequent ineligibility of recipient —— recovery —— recoupment**

—— reimbursement.

Notwithstanding any provision to the contrary, if a recipient is deemed ineligible for medical assistance following delivery of care or service by a provider, in an administrative action to recover an overpayment to the provider based solely on the grounds of such recipient's ineligibility, the department acting as the state Medicaid agency shall reimburse the provider for any recoupment of an overpayment using state-only funds for care or services delivered if all of the following conditions are met:

1. The provider verified eligibility through the eligibility and verification system or the secure web portal of, and obtained any necessary prior authorization for, the recipient on whose behalf payment was made to the provider prior to the delivery of care or service to the recipient.

2. The provider documented the eligibility verification performed and any necessary prior authorization obtained pursuant to paragraph *"a"* in a manner and format established by the department by rule, and retained the required documentation in the recipient's file.>

2. Title page, by striking lines 1 through 3 and inserting <An Act relating to recovery of an overpayment to a provider based on specified grounds under the Medicaid program.>

MARK COSTELLO

S–5096

Amend Senate File 2377 as follows:

1. Page 1, line 10, after <university> by inserting <and must meet the requirements for an endorsement area approved by the board of educational examiners for a teacher intern license>

2. Page 1, after line 23 by inserting:

<Sec. ___. Section 261.110, subsection 3, paragraphs a and b, Code 2022, are amended to read as follows:

a. The applicant was in the top ~~twenty-five~~ thirty percent academically of students exiting a teacher preparation program approved by the state board of education pursuant to section 256.7, subsection 3, or a similar teacher preparation program in another state, or had earned other comparable academic credentials.

b. The applicant is preparing to ~~teach in fields including but not limited to science, technology, engineering, or mathematics; English as a second language or special education instruction; or is preparing to teach in a hard-to-staff subject as identified by the department. The department shall take into account the varying regional needs in the state for teachers in these subject areas when applying the criterion of this paragraph. The department shall annually identify and designate hard-to-staff subjects for the purpose of this paragraph. The eligibility of an applicant who receives a~~

~~teach Iowa scholar grant and who is preparing to teach in a hard-to-staff subject as identified by the department shall not be affected in subsequent years if the department does not continue to identify that subject as a hard-to-staff subject~~ become a teacher who provides classroom instruction.>

3. Page 2, line 32, by striking <completed> and inserting <enrolled in>

4. Page 4, by striking lines 10 through 13 and inserting:

<3. The board shall adopt either the program for early retirement benefits provided in subsection 1 or the program for teacher recruitment incentives provided in subsection 2, but

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shall not adopt both concurrently. After adopting a program, the board may change programs, but only after at least five years.>

5. Page 4, line 14, by striking <3.> and inserting <4.>

6. Page 5, line 7, by striking <section of> and inserting <sections of>

7. Page 5, after line 7 by inserting:

<Sec. ___. APPLICABILITY. The following apply to school budget years beginning July 1, 2023:

1. The section of this Act amending section 279.46.

2. The section of this Act amending section 298.4.>

8. By renumbering as necessary.

AMY SINCLAIR

S–5097

Amend Senate File 2376 as follows:

1. Page 1, by striking lines 1 through 18 and inserting:

<Section 1. Section 312.2, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 18. The treasurer of state, before making the allotments provided for in this section, shall credit monthly from the road use tax fund to the state department of transportation seventy-five percent of the moneys deposited in the fund pursuant to section 321E.14, subsection 1, paragraph *"0j"*. The department shall distribute such moneys to counties having jurisdiction over secondary roads on which vehicles issued a permit pursuant to section 321E.8, subsection 1A, are authorized to operate, which moneys shall be used to inspect, maintain, repair, or construct bridges on the county's secondary roads. The department shall adopt rules pursuant to chapter 17A governing the distribution of moneys in accordance with this subsection.>

2. Page 3, by striking lines 7 through 11 and inserting

<all-systems permit issued pursuant to section 321E.8, subsection 1A, which shall be deposited in the road use tax fund.>

WAYLON BROWN

S–5098

Amend Senate File 2303 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

SHAREHOLDER NOTICES, LISTS, AND RECORDS

Section 1. Section 490.140, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 12A. *"Electronic mail"* means an electronic transmission directed to a unique electronic mail address.

NEW SUBSECTION. 12B. *"Electronic mail address"* means a destination, commonly expressed as a string of characters, consisting of a unique user name or mailbox, commonly referred to as the "local part" of the address, and a reference to an internet domain, commonly referred to as the "domain part" of the address, whether or not displayed, to which electronic mail may be sent or delivered.

Sec. 2. Section 490.141, Code 2022, is amended to read as follows:

490.141 Notices and other communications.

1. A notice under this chapter must be in writing unless oral notice is reasonable in the circumstances. Unless otherwise agreed between the sender and the recipient, words in a notice or other communication under this chapter must be in English.

2. A notice or other communication may be given by any method of delivery, except that a notice or other communication by electronic ~~transmissions~~ transmission must be in accordance with this section. If the methods of delivery are impracticable, a notice or other communication from a corporation may be given by means of a broad nonexclusionary distribution to the public, which may include a newspaper of general circulation in the area where published; radio, television, or other form of public broadcast communication; or other methods of distribution that the corporation has previously identified to its shareholders.

3. A notice or other communication to a domestic corporation or to a registered foreign corporation ~~registered to do business in this state~~ may be delivered to the corporation's registered agent at its registered office or to the secretary at the corporation's principal office shown in its most recent biennial report required by section 490.1621 or, in the case of a foreign corporation that has not yet delivered a biennial

report, in its foreign registration statement.

4. A notice or other communication from a corporation to a shareholder may be delivered by electronic mail to the electronic mail address for a shareholder required to be included in the record of shareholders maintained pursuant to section 490.1601, subsection 4, unless the shareholder has previously notified the corporation in writing that the shareholder objects to receiving notices and other communication by electronic mail. Any notice or other communication may be delivered to a shareholder by another form of electronic transmission if consented to by the shareholder or if authorized by subsection 10. Any notice or other communication from the corporation to any other person may be delivered by electronic transmission if consented to by the recipient or if authorized by subsection 10.

~~5.~~ Any consent given under this subsection ~~4~~ or subsection 10 may be revoked with respect to future notices or communications by the person who consented by giving written ~~or electronic~~ notice to the person to whom the consent was delivered. ~~Any such consent is deemed revoked~~

5. A notice or other communication shall no longer be delivered to an electronic mail address or other electronic transmission address pursuant to subsection 4, if all of the following apply:

a. The corporation ~~is unable to deliver two consecutive electronic transmissions given by the corporation in accordance with such consent~~ receives notice from the information processing system into which such notice or other

communication was entered that two consecutive notices or other communications given by electronic transmission have not been delivered to the electronic mail address or other electronic transmission address to which such notice or other communication was directed.

b. Such ~~inability~~ notice of nondelivery becomes known to the secretary, ~~or an assistant secretary or to~~ the transfer agent, or ~~other~~ another person responsible for the giving of ~~notice~~ notices or other communications for the corporation; provided, however, that the inadvertent failure to ~~treat such inability as a revocation~~ recognize such notice of nondelivery as a cessation of authority to provide a shareholder with notice by electronic mail or other electronic transmission shall not invalidate any meeting or other action.

6. Unless otherwise agreed between the sender and the recipient, ~~an~~ a notice or other communication by electronic transmission is received when all of the following apply:

a. The electronic transmission enters an information processing system ~~that the recipient has designated or uses for the purposes of receiving electronic transmissions or information of the type sent, and from which the recipient is~~

~~able to retrieve the~~ directed to any of the following:

(1) In the case of a shareholder, the electronic mail address for the shareholder required to be included in the record of shareholders maintained pursuant to section 490.1601, subsection 4, or other electronic transmission address at which the shareholder has consented to receive notice or other communications by electronic transmission.

(2) In the case of any other recipient, the electronic transmission address at which the recipient has consented to receive notice or other communications by electronic transmission.

b. The electronic transmission is in a form capable of being processed by that system.

7. Receipt of an electronic acknowledgment from an

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information processing system described in subsection 6, paragraph *"a"*, establishes that an electronic transmission was received but, by itself, does not establish that the content sent corresponds to the content received.

8. An electronic transmission is received under this section even if no person is aware of its receipt.

9. A notice or other communication, if in a comprehensible form or manner, is effective at the earliest of the following:

a. If in a physical form, the earliest of when it is actually received, or when it is left at any of the following:

(1) A shareholder's address ~~shown on~~ included in the ~~corporation's~~ record of shareholders maintained ~~by the corporation under~~ pursuant to section 490.1601, subsection 4.

(2) A director's residence or usual place of business.

(3) The domestic or registered foreign corporation's principal office.

b. If mailed by United States mail postage prepaid and ~~correctly~~ addressed to a shareholder at the shareholder's address included in the record of shareholders pursuant to section 490.1601, subsection 4, upon deposit in the ~~United States~~ mail.

c. If mailed by United States mail postage prepaid and ~~correctly~~ addressed to a recipient other than a shareholder, at the address included in the corporation's records the earliest of when it is actually received, or as follows:

(1) If sent by registered or certified mail, return receipt requested, the date shown on the return receipt signed by or on behalf of the addressee.

(2) Five days after it is deposited in the United States mail.

d. If an electronic transmission, when it is received as provided in subsection 6.

e. If oral, when communicated.

10. A notice or other communication may be in the form of an electronic transmission that cannot be directly reproduced

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in paper form by the recipient through an automated process used in conventional commercial practice only if all of the following apply:

a. The electronic transmission is otherwise retrievable in perceivable form.

b. The sender and the recipient have consented in writing to the use of such form of electronic transmission.

11. If this chapter prescribes requirements for notices or other communications in particular circumstances, those requirements govern. If articles of incorporation or bylaws prescribe requirements for notices or other communications, not inconsistent with this section or other provisions of this chapter, those requirements govern. The articles of incorporation or bylaws may authorize or require delivery of notices of meetings of directors by electronic transmission.

12. In the event that any provisions of this chapter are deemed to modify, limit, or supersede the federal Electronic Signatures in Global and National Commerce Act, 15 U.S.C. ~~§§7001~~ §7001 et seq., the provisions of this chapter shall control to the maximum extent permitted by section 102(a)(2) of that federal Act.

13. *a.* Whenever notice would otherwise be required to be given under any provision of this ~~subchapter~~ chapter to a shareholder, ~~such~~ the notice need not be given if the corporation is not permitted to deliver notice by electronic transmission pursuant to subsections 4 and 5 and any of the following apply:

(1) Notices to the shareholders of two consecutive annual meetings, and all notices of meetings during the period between such two consecutive annual meetings, have been sent to such shareholder at such shareholder's address ~~as shown on the records of the corporation~~ included in the record of shareholders maintained pursuant to section 490.1601, subsection 4, and have been returned undeliverable or could not be delivered.

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(2) All, but not less than two, payments of dividends on securities during a twelve-month period, or two consecutive payments of dividends on securities during a period of more than twelve months, have been sent to such shareholder at such shareholder's address ~~as shown on the records of the corporation~~ included in the record of shareholders maintained pursuant to section 490.1601, subsection 4, and have been returned undeliverable or could not be delivered.

(3) No address has been provided to the corporation by or on behalf of a shareholder and the corporation has not otherwise obtained an address for the shareholder that the corporation believes is reliable.

b. ~~If~~ In addition, if any such shareholder ~~shall deliver~~ to which this subsection applies delivers to the corporation a written notice setting forth such shareholder's then-current address, the requirement that notice be given to such shareholder shall be reinstated.

Sec. 3. Section 490.720, Code 2022, is amended to read as follows:

490.720 ~~Shareholders' list~~ List of shareholders for meeting.

1. After fixing a record date for a meeting, a corporation shall prepare an alphabetical list of the names of all ~~its~~ the shareholders who are entitled to notice of ~~a~~ the shareholders' meeting. If the board of directors fixes a different record date under section 490.707, subsection 5, to determine the shareholders entitled to vote at the meeting, a corporation also shall prepare an alphabetical list of the names of all ~~its~~ the shareholders who are entitled to vote at the meeting. ~~A~~ The list must be arranged by voting group, and within each voting group by class or series of shares, and ~~show~~ contain the address of, and number and class or series of shares held by, each shareholder. ~~Nothing contained in this subsection shall require~~ and, if the notice or other communications regarding the meeting has been or will be sent by the corporation to ~~include on such list the~~ a shareholder by

electronic mail ~~address~~ or other electronic ~~contact information of a~~ transmission, the electronic mail or other electronic transmission address of that shareholder.

2. *a.* The ~~shareholders'~~ list ~~for~~ of shareholders entitled to notice shall be available for inspection by any shareholder, beginning two business days after notice of the meeting is given for which the list was prepared and continuing through the meeting. The ~~shareholders' list~~ list of shareholders for notice shall be made available ~~at~~ via any of the following:

(1) ~~The~~ At the corporation's principal office or at a place identified in the meeting notice in the city where the meeting will be held.

(2) ~~A~~ On a reasonably accessible electronic network, provided that the information required to gain access to such list is provided with the notice of the meeting. The list of shareholders entitled to vote shall be similarly available for inspection promptly after the record date for voting. In the event that the corporation determines to make the list available on an electronic network, the corporation may take reasonable steps to ensure that such information is available only to shareholders of the corporation.

b. ~~A shareholders' list for voting shall be similarly available for inspection promptly after the record date for voting.~~ A shareholder, or the shareholder's agent or attorney, is entitled on written demand to inspect and, subject to the requirements of section 490.1602, subsection 3, to copy a

list of shareholders, during regular business hours and at the shareholder's expense, during the period it is available for inspection. A corporation may satisfy the shareholder's right to copy a list of shareholders by furnishing a copy in the manner described in section 490.1603, subsection 2. A shareholder and the shareholder's agent or attorney who inspects or is furnished a copy of a list of shareholders under this subsection or under subsection 3 or who copies the list under this subsection may use the information on that list only

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for purposes related to the meeting and its subject matter and must keep the information on that list confidential.

3. If the meeting is to be held at a place, the corporation shall make the list of shareholders entitled to vote available at the meeting and any adjournment, and any shareholder, or the shareholder's agent or attorney, is entitled to inspect the list at any time during the meeting ~~or~~ and any adjournment. If the meeting is to be held solely by means of remote communication, then such list shall also be ~~open to~~ available for such inspection during the meeting and any adjournment on a reasonably accessible electronic network, and the information required to access such list shall be provided with the notice of the meeting. The corporation may satisfy its obligation to make such list available for inspection during a meeting by furnishing a copy of the list in the manner described in section 490.1603, subsection 2, to the shareholders prior to the meeting.

4. If the corporation refuses to allow a shareholder, or the shareholder's agent or attorney, to inspect a ~~shareholders'~~ list of shareholders before or at the meeting or any adjournment, or copy a list as permitted by subsection 2, the district court of the county where a corporation's principal office or, if none in this state, its registered office, is located, on application of the shareholder, may summarily order the inspection or copying at the corporation's expense and may postpone the meeting for which the list was prepared until the inspection or copying is complete.

5. Refusal or failure to prepare or make available the ~~shareholders'~~ list of shareholders does not affect the validity of action taken at the meeting.

Sec. 4. Section 490.1601, subsection 4, Code 2022, is amended to read as follows:

4. A corporation shall maintain a record of its current shareholders in alphabetical order by class or series of shares showing the address of~~, and the number and class or series of~~

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~~shares held by,~~ each shareholder to which notices and other communications from the corporation are to be sent, and which

shall include the number and class or series of shares held by each such shareholder. ~~Nothing contained in this subsection shall require the corporation to include in such record the electronic mail address or other electronic contact information of~~ In addition, if a shareholder has provided an electronic mail address to the corporation or has consented to receive notices or other communications by electronic mail or other electronic transmission, the record of shareholders shall include the electronic mail or other electronic transmission address of the shareholder if notices or other communications are being delivered by the corporation to the shareholder at such electronic mail or other electronic transmission address pursuant to section 490.141, subsection 4. An electronic mail address of a shareholder shall be deemed to be provided by a shareholder if the electronic mail address is contained in a communication to the corporation by or on behalf of the shareholder unless the communication expressly indicates that the electronic mail address shall not be used to deliver notices or other communications.

DIVISION II

GRAMMATICAL CHANGES

Sec. 5. Section 490.140, subsection 57, Code 2022, is amended to read as follows:

57. *"United States"* includes a district, authority, bureau, commission, department, and any other agency of the United States.

Sec. 6. Section 490.143, subsection 1, paragraph e, subparagraph (2), Code 2022, is amended to read as follows:

(2) Has a material relationship with a director or officer who pursues or takes advantage of the business opportunity, directly~~,~~ or indirectly through or on behalf of another person.

Sec. 7. Section 490.1704, subsection 4, Code 2022, is amended to read as follows:

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4. Unless otherwise provided in the articles of incorporation, the violation by a director of the duties imposed by subsections 1 and 2 shall not constitute an intentional infliction of harm on the corporation or the shareholders for the purposes of ~~sections~~ section 490.202, subsection 2, paragraphs *"d"* and *"e"*.

DIVISION III

TERMINOLOGY CHANGES

Sec. 8. Section 490.120, subsection 5, Code 2022, is amended to read as follows:

5. The document must be in the English language. A corporate name need not be in English if written in English letters or Arabic or Roman numerals, and the certificate of ~~existence~~ registration required of foreign corporations need not be in English if accompanied by a reasonably authenticated English translation.

Sec. 9. Section 490.401, subsection 2, paragraphs c and e, Code 2022, are amended to read as follows:

c. The name of a registered foreign corporation ~~registered to do business in this state~~ or an alternate name adopted by a registered foreign corporation ~~registered to do business in this state~~ because its corporate name is unavailable.

e. The name of a foreign nonprofit corporation ~~registered~~ authorized to do business in this state or an alternate name adopted by a foreign nonprofit corporation ~~registered~~ authorized to conduct activities in this state because its real name is unavailable.

Sec. 10. Section 490.401, subsection 4, unnumbered paragraph 1, Code 2022, is amended to read as follows:

A corporation may use the name, including the fictitious name, of another domestic or foreign corporation that is used in this state if the other corporation is incorporated or ~~authorized~~ registered to ~~transact~~ do business in this state and the proposed user corporation submits documentation to the satisfaction of the secretary of state establishing any of the

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following conditions:

Sec. 11. Section 490.748, subsection 3, Code 2022, is amended to read as follows:

3. The district court may appoint an individual or domestic or registered foreign corporation~~, registered to do business in this state,~~ as a custodian or receiver and may require the custodian or receiver to post bond, with or without sureties, in an amount the district court directs.

Sec. 12. Section 490.922, subsection 5, Code 2022, is amended to read as follows:

5. If the domesticating corporation is a registered foreign corporation ~~that is registered to do business in this state under subchapter XV~~, its registration statement shall be canceled automatically when the domestication becomes effective.

Sec. 13. Section 490.1511, subsection 4, Code 2022, is amended to read as follows:

4. The registration of a registered foreign corporation ~~to do business in this state~~ ceases on the effective date of the termination as set forth in the certificate of termination, unless before that date the foreign corporation cures each ground for termination stated in the certificate of termination. If the foreign corporation cures each ground, the secretary of state shall file a statement that the certificate of termination is withdrawn.

Sec. 14. Section 490.1621, subsection 4, Code 2022, is amended to read as follows:

4. The first biennial report shall be delivered to the secretary of state between January 1 and April 1 of the first even-numbered year following the calendar year in which a

domestic corporation was incorporated or a foreign corporation was ~~authorized to transact~~ registered to do business in this state. Subsequent biennial reports must be delivered to the secretary of state between January 1 and April 1 of the following even-numbered calendar years. For purposes of this

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section, each biennial report shall contain information related to the two-year period immediately preceding the calendar year in which the report is filed.

Sec. 15. Section 496C.20, subsection 3, Code 2022, is amended to read as follows:

3. The ~~certificate of authority~~ foreign registration statement of a foreign professional corporation may be revoked by the secretary of state as provided in the Iowa business corporation Act, chapter 490, if the foreign professional corporation fails to comply with any provision of this chapter.>

BRAD ZAUN

S–5099

Amend House File 2481, as amended, passed, and reprinted by the House, as follows:

1. Page 1, line 31, by striking <~~Three~~ Five> and inserting <Three>

2. Page 1, line 32, after <submitted> by inserting <if there are less than nine applicants, four nominees shall be submitted if there are nine or ten applicants, and five nominees shall be submitted if there are eleven or more applicants>

NATE BOULTON

S–5100

Amend the amendment, S–5096, to Senate File 2377, as follows:

1. Page 1, after line 31 by inserting:

<___. Page 4, line 5, after <program.> by inserting <Under the program, the board of directors of a school district shall not do any of the following:>

___. Page 4, before line 6 by inserting:

<(1) Pay a teacher a teacher recruitment incentive that annually exceeds ten percent of the amount of the salary for an initial teacher established pursuant to section 284.15, subsection 2, paragraph *"a"*, subparagraph (1).

(2) Pay a teacher a teacher recruitment incentive in more

than five school budget years.>>

2. By renumbering as necessary.

AMY SINCLAIR

S–5101

Amend Senate File 2378 as follows:

1. Page 1, line 35, by striking <subsection> and inserting <subsections>

2. Page 2, before line 1 by inserting:

<NEW SUBSECTION. 11A. *"Mobile redemption system"* means a redemption center location at which a consumer may return empty beverage containers on which a refund value has been paid that uses innovative technology to process empty beverage containers and return the amount of the refund value to consumers.>

3. Page 2, line 16, by striking <time.> and inserting <time not to exceed ten days. A person who attempts to redeem two thousand or more empty beverage containers in one transaction with a participating dealer or a redemption center shall provide proof of residency prior to receiving refund value.>

4. Page 3, line 3, by striking <for a dealer served by the distributor> and inserting <~~for a dealer served by the distributor~~ in the distributor's geographic territory>

5. Page 4, line 2, by striking <if the> and inserting <~~if the~~>

6. Page 4, by striking line 5 and inserting <~~455C.6~~.>

7. Page 4, line 26, after <1.> by inserting <*a.*>

8. Page 4, by striking lines 32 through 34 and inserting <containers.>

9. Page 4, before line 35 by inserting:

<*b.* On and after November 15, 2023, the department of revenue shall require the registration of the universal product code for each beverage container using a method determined by the department of revenue.>

10. Page 5, line 17, after <require.> by inserting <However, on and after July 1, 2023, a redemption center does not need to provide in its notice the names and addresses of dealers to be served by the redemption center.>

11. Page 5, after line 21 by inserting:

<Sec. ___. Section 455C.6, Code 2022, is amended by adding the following new subsection:

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NEW SUBSECTION. 6. A mobile redemption system shall not be considered to be in violation of any county or city ordinance that would otherwise limit the operation of the mobile redemption system as long as the mobile redemption system operates in a location that is not zoned primarily for residential purposes.>

12. Page 6, line 9, by striking <subsection> and inserting

<subsections>

13. Page 6, after line 9 by inserting:

<NEW SUBSECTION. 6. A person who attempts to redeem beverage containers obtained outside the state commits a serious misdemeanor and is also subject to a civil penalty of five thousand dollars per violation.>

14. Page 6, line 10, by striking <6.> and inserting <7.>

15. Page 6, line 10, by striking <A> and inserting <Except as provided in subsection 6, a>

16. Page 7, after line 35 by inserting:

<Sec. ___. NEW SECTION. **455C.18 Unclaimed refund value and handling fees.**

Any amount of refund value or handling fees possessed by a distributor after the distributor has made payments required pursuant to this chapter shall be considered the property of the distributor.>

17. Page 8, line 1, by striking <455C.7, 455C.10, and 455C.14,> and inserting <455C.7 and 455C.10,>

18. By renumbering as necessary.

JASON SCHULTZ

S–5102

Amend Senate File 2366 as follows:

1. Page 2, by striking lines 24 through 26 and inserting:

<Sec. ___. RETROACTIVE APPLICABILITY. Except for section 427B.26, subsection 3, paragraph "b", as enacted in this Act, this Act applies retroactively to assessment years beginning on or after January 1, 2022.

Sec. ___. APPLICABILITY. Section 427B.26, subsection 3, paragraph "b", as enacted in this Act, applies to assessment schedules commenced under section 427B.26, subsection 2, on or after the effective date of this Act.>

2. Title page, line 2, by striking <date> and inserting <date, applicability,>

3. By renumbering as necessary.

WAYLON BROWN

S–5103

HOUSE AMENDMENT TO
SENATE FILE 2324

Amend Senate File 2324, as passed by the Senate, as follows:

1. Page 1, line 9, after <brokerage> by inserting <immediately preceding or>

S–5104

HOUSE AMENDMENT TO
SENATE FILE 586

Amend Senate File 586, as passed by the Senate, as follows:

1. Page 12, lines 7 and 8, by striking <section 534.217, subsection 2> and inserting <section 524.217, subsection 2>

2. Page 52, after line 34 by inserting:

<NEW SUBSECTION. 11. A state bank, upon the approval of the superintendent, may invest up to five percent of its aggregate capital in a tax equity financing transaction in which the state bank provides equity financing to fund a project or projects that generate tax credits and the equity-based structure of the transaction permits the transfer of such tax credits to the state bank. A state bank may take a majority financial position, but shall be a passive investor and shall not take a management position, in each such project, subject to the following:

a. The state bank shall not participate in the operation of any project or facility resulting from such a transaction or the sale of energy, if any, derived from the project.

b. The state bank shall obtain a legal opinion or otherwise demonstrate a good-faith determination that the tax credits are available before engaging in a tax equity financing transaction.

c. The tax benefits or other payments the state bank receives from the transaction shall repay the state bank's investment and provide the expected rate of return at the time of the investment.

d. Except as provided under paragraph *"c"*, the state bank shall not share in any appreciation in value of its interests in the project or in any of the real or personal assets associated with the project.

e. The state bank's total investment in any combination of shares or equity interests of any tax equity financing transactions pursuant to this subsection shall be limited to fifteen percent of its aggregate capital.>

3. Page 92, by striking lines 17 through 26.

4. Title page, lines 1 and 2, by striking <providing civil

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penalties,>

5. By renumbering as necessary.

S–5105

Amend the House amendment, S–5090, to Senate File 2285, as amended, passed, and reprinted by the Senate, as follows:

1. Page 1, line 13, after <city> by inserting <with a population of less than twenty thousand>

TONY BISIGNANO

S–5106

Amend Senate File 2369 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

PARENT OR GUARDIAN BILL OF RIGHTS

Section 1. Section 256.11, subsection 10, paragraph a, subparagraph (1), Code 2022, is amended by adding the following new subparagraph division:

NEW SUBPARAGRAPH DIVISION. (0e) The requirements of section 279.76.

Sec. 2. Section 256E.7, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *0i.* Be subject to and comply with the requirements of section 279.76 in the same manner as a school district.

Sec. 3. NEW SECTION. **279.76 Parent or guardian bill of rights.**

1. Unless otherwise prohibited by state or federal law, the board of directors of a school district shall adopt policies to ensure that all of the following parental rights are reserved to the parent or guardian of a minor child without obstruction or interference from the school district in which the minor child is enrolled:

a. The right to know what the school district in which the minor child is enrolled is teaching the minor child, including the textbooks, books, articles, outlines, handouts, presentations, videos, and any other similar materials the school district uses for student instruction. By July 1, 2025, the school district shall grant access through the internet to the curriculum used for student instruction of a minor child enrolled in the school district to the parent or guardian of the minor child.

b. The right to access and review information related to who is teaching the minor child, including guest lecturers and outside presenters.

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c. The right to access and review information related to persons who contract with or otherwise receive moneys from the school district.

d. The right to access the minor child while the minor child is in school that a reasonable person would deem necessary to ensure the health and safety of the minor child, unless otherwise prohibited by a court order.

e. The right to access and review all school records relating to the minor child; provided, however, that the school district may prohibit access to and disclosure of school records if any of the following apply:

(1) The school records are related to the minor child's reporting of the parent's or guardian's violation of any law.

(2) The school district determines based on actual threats to the health, safety, or welfare of a minor child, that providing access to or disclosing the school records may result in serious harm to the minor child.

(3) Chapter 232, subchapter III, part 2, prohibits the school record from being disclosed.

f. The right to access and review information related to the collection and transmission of information related to the minor child, including assessment information, documents created by the minor child, and teacher evaluations of the minor child.

g. Subject to section 22.7, the right to access and review information necessary to ensure the accountability and transparency of the board of directors of the school district in which the minor child is enrolled.

h. The right to access and review information related to the minor child's safety while at school.

2. *a.* The school district shall not require any student to engage in any activity, including instruction, or any test, assessment, or other means of evaluation, that involves sexually explicit material without the express prior written consent of the student's parent or guardian, which may be obtained by electronic means.

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b. The school district shall make every effort to prohibit a minor child from accessing sexually explicit material in the classroom on a device or through a computer network that is owned or otherwise provided by the school district.

c. (1) A school district that maintains in electronic form a catalog of library materials shall grant access through the internet or other suitable means to the catalog of library materials to the parent or guardian of any student enrolled in the school district. School districts that maintain a catalog of library materials in other than electronic form shall grant physical access to the catalog of library materials to the parent or guardian of any student enrolled in the school district at the school where the student attends class and at times that are convenient for the parent or guardian.

(2) The parent or guardian of a minor child enrolled in the school district may provide notice to the school district indicating the materials that the minor child shall not be allowed to check out from a library operated by the school district, and the school district shall not allow the minor child to check out the materials described in the notice.

(3) If a school district does not maintain in electronic

form a catalog of library materials, the school district shall not allow a minor child to check out sexually explicit material from a library operated by the school district without the express prior written consent of the minor child's parent or guardian, which may be obtained by electronic means.

3. The school district must receive the prior written consent of a student's parent or guardian before requiring a student to take part in any of the following activities:

a. An activity that involves the collection, disclosure, or use of personal information collected from students for the purpose of marketing or selling the information or providing the information to any other person for its marketing or sale.

b. A survey, analysis, or evaluation that reveals information concerning any of the following:

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(1) The political affiliations or beliefs of the student or the student's parent or guardian.

(2) Mental or psychological problems of the student or the student's family.

(3) Sex behavior or attitudes.

(4) Illegal, antisocial, self-incriminating, or demeaning behavior.

(5) Critical appraisals of other individuals with whom the student has close familial relationships.

(6) Legally recognized privileged or analogous relationships, such as those of attorneys, physicians, or ministers.

(7) Religious practices, affiliations, or beliefs of the student or the student's parent or guardian.

(8) Income, except when required by law to determine eligibility for participation in a program or for receiving financial assistance under such a program.

c. Any nonemergency, invasive physical examination or screening that is required as a condition of attendance, administered by the school and is scheduled in advance, and that is not necessary to protect the immediate health and safety of the student or other students.

4. The rights guaranteed to parents and guardians by this section are not a comprehensive list of the rights reserved to parents or guardians of a minor child. The enumeration of the rights contained in this section shall not be construed to limit the rights reserved to parents or guardians of a minor child.

5. The school district shall publish a copy of this section in the student handbook and on the school district's internet site.

6. For purposes of this section, unless the context otherwise requires:

a. "Material" means the same as defined in section 728.1.

b. "Minor child" means an individual under eighteen years

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of age.

c. "Sexually explicit material" means any material that meets all of the following criteria:

(1) Taken as a whole with respect to minor children, the material appeals to the prurient interest in nudity, sex, or excretion.

(2) The material depicts, describes, or represents, in a patently offensive way with respect to what is suitable for minor children, a sex act or lewd exhibition of the genitals. For purposes of this subparagraph, *"lewd exhibition of the genitals"* includes any material depicting genitalia in which the place or pose of the person in the depiction is sexually suggestive, any visual depiction that suggests sexual coyness or a willingness to engage in sexual activity, or any visual depiction that is intended or designed to elicit a sexual response from the viewer.

(3) Taken as a whole, the material lacks serious literary, artistic, political, or scientific value as to minors. For purposes of this subparagraph, material lacks serious literary, artistic, political, or scientific value as to minor children if the material contains material described in subparagraphs (1) and (2) when substantially similar material is readily available to minor children that does not contain material described in subparagraphs (1) and (2) but that conveys a substantially similar message or viewpoint.

d. "Visual depiction" includes any picture, slide, photograph, digital or electronic image, negative image, undeveloped film, motion picture, videotape, digital or electronic recording, live transmission, or any other pictorial or three-dimensional representation.

DIVISION II

STUDENT FIRST SCHOLARSHIP PROGRAM

Sec. 4. Section 256.9, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 65. Adopt rules relating to the

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administration of and applications for the student first scholarship program pursuant to section 257.11B, including but not limited to application processing timelines and information required to be submitted by a parent or guardian.

Sec. 5. Section 257.11, subsection 5, Code 2022, is amended to read as follows:

5. *Shared operational functions —— increased student opportunities —— budget years beginning in 2014 through ~~2024~~ 2034.*

a. (1) In order to provide additional funding to increase student opportunities and redirect more resources to student programming for school districts that share operational

functions, a district that shares with a political subdivision one or more operational functions of a curriculum director, master social worker, independent social worker, work-based learning coordinator, special education director, mental health professional who holds a statement of recognition issued by the board of educational examiners, a school resource officer, or school counselor, or one or more operational functions in the areas of superintendent management, business management, human resources, transportation, or operation and maintenance for at least twenty percent of the school year shall be assigned a supplementary weighting for each shared operational function. A school district that shares an operational function in the area of superintendent management shall be assigned a supplementary weighting of eight pupils for the function. A school district that shares an operational function in the area of business management, human resources, transportation, or operation and maintenance shall be assigned a supplementary weighting of five pupils for the function. A school district that shares the operational functions of a curriculum director; a master social worker or an independent social worker licensed under chapters 147 and 154C; a work-based learning coordinator; a special education director; a mental health professional who holds a statement of recognition issued by the board

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of educational examiners; a school resource officer; or a school counselor shall be assigned a supplementary weighting of three pupils for the function. The additional weighting shall be assigned for each discrete operational function shared. However, a school district may receive the additional weighting under this subsection for sharing the services of an individual with a political subdivision even if the type of operational function performed by the individual for the school district and the type of operational function performed by the individual for the political subdivision are not the same operational function, so long as both operational functions are eligible for weighting under this subsection. In such case, the school district shall be assigned the additional weighting for the type of operational function that the individual performs for the school district, and the school district shall not receive additional weighting for any other function performed by the individual. The operational function sharing arrangement does not need to be a newly implemented sharing arrangement to receive supplementary weighting under this subsection.

(2) For the purposes of this paragraph *"a"*:

(a) *"Political subdivision"* means a city, township, county, school corporation, merged area, area education agency, institution governed by the state board of regents, or any other governmental subdivision.

(b) *"School resource officer"* means the same as defined in

34 U.S.C. §10389.

~~(b)~~ (c) *"Work-based learning coordinator"* means an appropriately trained individual responsible for facilitating authentic, engaging work-based learning experiences for learners and educators in partnership with employers and others to enhance learning by connecting the content and skills that are necessary for future careers.

b. (1) Notwithstanding paragraph *"a"*, subparagraph (1), each operational function assigned a supplementary weighting

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of five pupils under paragraph *"a"*, subparagraph (1), shall instead be assigned a supplementary weighting of four pupils for the school budget years beginning July 1, 2022, ~~July 1, 2023, and July 1, 2024~~ through July 1, 2034.

(2) Notwithstanding paragraph *"a"*, subparagraph (1), each operational function assigned a supplementary weighting of three pupils under paragraph *"a"*, subparagraph (1), shall instead be assigned a supplementary weighting of two pupils for the school budget years beginning July 1, 2022, ~~July 1, 2023, and July 1, 2024~~ through July 1, 2034.

c. School districts that share operational functions with other school districts are not required to be contiguous school districts. If two or more districts sharing operational functions are not contiguous to each other, the districts separating those districts are not required to be a party to the operational functions sharing arrangement.

d. Supplementary weighting pursuant to this subsection shall be available to a school district during the period commencing with the budget year beginning July 1, 2014, through the budget year beginning July 1, ~~2024~~ 2034. The maximum amount of additional weighting for which a school district shall be eligible in a budget year is twenty-one additional pupils; provided, however, that the maximum amount of additional weighting for which a school district shall be eligible in a budget year may be increased to up to twenty-four additional pupils if approved pursuant to section 257.16E. Criteria for determining the qualification of operational functions for supplementary weighting shall be determined by the department by rule, through consideration of increased student opportunities.

e. Supplementary weighting pursuant to this subsection shall be available to an area education agency during the period commencing with the budget year beginning July 1, 2014, through the budget year beginning July 1, ~~2024~~ 2034. The minimum amount of additional funding for which an area education

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agency shall be eligible in a budget year is thirty thousand dollars, and the maximum amount of additional funding for which

an area education agency shall be eligible is two hundred thousand dollars. The department of management shall annually set a weighting for each area education agency to generate the approved operational sharing expense using the area education agency's special education cost per pupil amount and foundation level. Criteria for determining the qualification of operational functions for supplementary weighting shall be determined by the department by rule, through consideration of increased student opportunities.

f. This subsection is repealed effective July 1, ~~2025~~ 2035.

Sec. 6. NEW SECTION. **257.11B Student first scholarship program.**

1. *a.* For the school budget year beginning July 1, 2022, and each succeeding school budget year, the following resident pupils shall be eligible to receive a student first scholarship in the manner provided in this section:

(1) A pupil whose household has an annual income which is less than or equal to four hundred percent of the most recently revised poverty income guidelines published by the United States department of health and human services. The total number of student first scholarships the department of education approves for pupils pursuant to this subparagraph shall not exceed five thousand in a school year. However, if the number of student first scholarships received by pupils pursuant to subparagraph (2) is less than the number of student first scholarships reserved for pupils under subparagraph (2), the department of education may approve the difference for pupils pursuant to this subparagraph for the same school year.

(2) A pupil who has an individualized education program. The total number of student first scholarships the department of education approves for pupils pursuant to this subparagraph shall not exceed five thousand in a school year. However, if the number of student first scholarships received by pupils

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pursuant to subparagraph (1) is less than the number of student first scholarships reserved for pupils under subparagraph (1), the department of education may approve the difference for pupils pursuant to this subparagraph for the same school year.

(3) A pupil who received a student first scholarship for the immediately preceding school budget year, who is eligible to enroll in grade one through grade twelve, who meets the requirements of subparagraph (1) or (2) and who is not otherwise ineligible under this section.

b. Student first scholarships shall be made available to parents and guardians in the manner authorized under subsection 4, paragraph *"c"*, for the payment of qualified educational expenses as provided in this section.

c. No more than ten thousand student first scholarships shall be made available each school year.

d. For purposes of this subsection, *"resident"* means the

same as defined in section 282.1, subsection 2.

2. *a.* By January 1 preceding the school year for which the student first scholarship is requested, all of the following individuals may request a student first scholarship by submitting an application to the department of education, on application forms developed by the department of education, indicating the individual intends to enroll the pupil in a nonpublic school for the entirety of the school year:

(1) The parent or guardian of a pupil currently enrolled in a school district who has been enrolled in that school district for the equivalent of at least two semesters immediately preceding the school year for which the student first scholarship is requested.

(2) The parent or guardian of a pupil who is eligible to enroll in a school district for kindergarten in the next school year.

(3) The parent or guardian of pupil enrolled in a nonpublic school who received a student first scholarship in the current school year.

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b. By February 1 preceding the school year for which the student first scholarship is requested, the department of education shall determine the number of pupils in each school district approved to receive a scholarship for the following school year and shall notify the parent or guardian of each pupil approved for the following school year to receive a scholarship and the amount of the scholarship for the pupil. The department of education shall approve pupils who received a student first scholarship for the immediately preceding school budget year who are eligible to enroll in grade one through grade twelve, who meet the requirements of subsection 1, paragraph *"a"*, subparagraph (1) or (2), and who are not otherwise ineligible under this section. The department of education shall approve the remaining pupils who did not receive a student first scholarship for the immediately preceding school budget year, subject to the limitation in subsection 1, paragraph *"c"*, on a first-come, first-served basis based on the date the parent or guardian submitted the application pursuant to paragraph *"a"*.

c. Student first scholarships shall only be approved for one school year and applications must be submitted annually for student first scholarships in subsequent school years.

3. The department of education shall assign each pupil a student first scholarship in an amount equal to the sum of all the following for the same school budget year:

a. The product of the pupil's weighted enrollment that would otherwise be assigned to the pupil under this chapter if the pupil was enrolled in the pupil's district of residence multiplied by the difference between eighty-eight and four-tenths percent of the regular program state cost per pupil

and the statewide average foundation property tax per pupil.

b. The total teacher salary supplement district cost per pupil for the pupil's district of residence.

c. The total professional development supplement district cost per pupil for the pupil's district of residence.

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d. The total early intervention supplement district cost per pupil for the pupil's district of residence.

e. The total area education agency teacher salary supplement district cost per pupil for the pupil's district of residence.

f. The total area education agency professional development supplement district cost per pupil for the pupil's district of residence.

g. The total teacher leadership supplement district cost per pupil for the pupil's district of residence.

4. A student first scholarship fund is created in the state treasury under the control of the department of education consisting of moneys appropriated to the department of education for the purpose of providing student first scholarships under this section. For the fiscal year commencing July 1, 2022, and each succeeding fiscal year, there is appropriated from the general fund of the state to the department of education to be credited to the fund the amount necessary to pay all student first scholarships approved for that fiscal year. The director of the department of education has all powers necessary to carry out and effectuate the purposes, objectives, and provisions of this section pertaining to the fund, including the power to do all of the following:

a. Make and enter into contracts necessary for the administration of the fund.

b. Procure insurance against any loss in connection with the assets of the fund or require a surety bond.

c. Contract with a private financial management firm to manage the fund, in collaboration with the treasurer of state, including providing for the disbursement of student first scholarships in the form of an electronic debit card or checks that are payable directly from the pupil's account within the fund.

d. Conduct audits or other reviews necessary to properly administer the program.

e. Adopt rules for the administration of the fund and

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accounts within the fund.

5. *a.* For each pupil approved for a student first scholarship, the nonpublic school shall certify the pupil's enrollment and the department of education shall establish an account for that pupil in the student first scholarship fund. The amount of the pupil's student first scholarship shall be

deposited into the pupil's account on July 1, and such amount shall be immediately available for the payment of qualified educational expenses incurred by the parent or guardian for the pupil during that fiscal year using the payment method authorized under subsection 4, paragraph *"c"*.

b. A nonpublic school that accepts payment from a parent or guardian using funds from a pupil's account in the student first scholarship fund shall not refund, rebate, or share any portion of such payment with the parent, guardian, or pupil.

c. Moneys remaining in a pupil's account upon conclusion of the fiscal year shall remain in the pupil's account in the student first scholarship fund for the payment of qualified educational expenses in future fiscal years during which the pupil participates in the program until the pupil becomes ineligible under the program or until the remaining amounts are transferred to the state general fund under subsection 8.

6. *a.* For purposes of this section, *"qualified educational expenses"* includes tuition and fees at a nonpublic school, textbooks, fees or payments for educational therapies, including tutoring or cognitive skills training, curriculum fees, software, and materials for a course of study for a specific subject matter or grade level, tuition or fees for nonpublic online education programs, tuition for vocational and life skills education approved by the department of education, education materials and services for pupils with disabilities, including the cost of paraprofessionals and assistants who are trained in accordance with state law, standardized test fees, advanced placement examinations or examinations related to postsecondary education admission or credentialing, qualified

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education expenses, as defined in section 12D.1, excluding room and board expenses, and other expenses incurred by the parent or guardian that are directly related to the education of the pupil at a nonpublic school, including a nonpublic school accredited by an independent accrediting agency approved by the department of education. The cost of one computer or other portable computing device shall be allowed as a qualified educational expense for a pupil if the computer or portable computing device is used primarily for the education of the pupil and if such a purchase has not been made using funds from that pupil's account in any of the three immediately preceding fiscal years.

b. "Qualified educational expenses" does not include transportation costs for the pupil, the cost of food or refreshments consumed by the pupil, the cost of clothing for the pupil, or the cost of disposable materials, including but not limited to paper, notebooks, pencils, pens, and art supplies.

7. *a.* A person who makes a false claim for the purpose of obtaining a student first scholarship provided for in this

section or who knowingly receives the scholarship or makes a payment from an account within the student first scholarship fund without being legally entitled to do so is guilty of a fraudulent practice under chapter 714. The false claim for a student first scholarship or a payment from an account shall be disallowed. The department of education shall also close the pupil's account in the student first scholarship fund and transfer any remaining moneys in the account for deposit in the general fund of the state. If the improperly obtained amounts from the scholarship have been disbursed from the applicable account in the student first scholarship fund, the department of education shall recover such amounts from the parent or guardian, including by initiating legal proceedings to recover such amounts, if necessary. A parent or guardian who commits a fraudulent practice under this section is prohibited from

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participating in the student first scholarship program in the future.

b. If, prior to the end of the required attendance period of the school year, a pupil who receives a student first scholarship withdraws from enrollment in the nonpublic school or is expelled, the nonpublic school shall notify the department of education in writing of the pupil's withdrawal or expulsion, and the pupil's parent or guardian shall notify the department of education of the pupil's withdrawal or expulsion from the nonpublic school. A pupil's expulsion from the nonpublic school prior to the end of the required attendance period for the school year shall invalidate the pupil's eligibility for the student first scholarship for the school budget year. A pupil's withdrawal from a nonpublic school prior to the end of the required attendance period of the school year shall invalidate the pupil's eligibility for the student first scholarship for the school budget year unless the withdrawal is the result of a change in residence of the pupil and the pupil, following written notice by the parent or guardian and certification by the new nonpublic school to the department of education, enrolls in a different nonpublic school in this state for the remainder of the school year.

c. (1) Upon receipt of a notice of expulsion under paragraph *"b"*, the department of education shall close the pupil's account in the student first scholarship fund and transfer any remaining moneys in the account for deposit in the general fund of the state. In addition, if amounts from the scholarship for the school budget year during which the pupil is expelled have been disbursed from the expelled pupil's account in the student first scholarship fund, the department of education shall recover such amounts from the parent or guardian, including by initiating legal proceedings to recover

such amounts, if necessary.

(2) Upon receipt of a notice of withdrawal under paragraph *"b"* and a determination that the pupil's withdrawal was

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not the result of a change in residence, the department of education shall cease disbursements of remaining moneys in the pupil's account in the student first scholarship fund, close the pupil's account, and transfer any moneys remaining in the pupil's account for deposit in the general fund of the state. In addition, if amounts from the scholarship for the school budget year during which the withdrawal occurs have been disbursed from the pupil's account in the student first scholarship fund, the department of education shall recover such amounts from the parent or guardian to the extent the amount disbursed exceeds the amount of the scholarship proportionate to the remaining portion of the school year following the withdrawal, including by initiating legal proceedings to recover such amounts, if necessary.

(3) Upon receipt of a notice of withdrawal under paragraph *"b"* and a determination that the withdrawal was the result of a change in residence but that the pupil did not enroll in a different nonpublic school in this state for the remainder of the school year, the department of education shall cease disbursements of remaining moneys in the pupil's account in the student first scholarship fund, close the pupil's account, and transfer any moneys remaining in the pupil's account for deposit in the general fund of the state.

(4) If a pupil's eligibility is invalidated under the provisions of paragraph *"b"*, the pupil shall be ineligible for a student first scholarship for the following school budget year under subsection 1, paragraph *"a"*, subparagraphs (2) and (3).

8. Moneys remaining in a pupil's account when the pupil graduates from high school or turns twenty-one years of age, whichever occurs first, shall be transferred by the department of education for deposit in the general fund of the state.

9. *a.* A parent may appeal to the state board of education any administrative decision the department of education makes pursuant to this section, including but not limited to determinations of eligibility, allowable expenses, and

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removal from the program. The department shall notify the parent or guardian in writing of the appeal process at the same time the department notifies the parent or guardian of the administrative decision. The state board of education shall establish the appeals process consistent with chapter 17A and shall post such appeal process information on the state board of education's internet site.

b. The state board of education shall refer cases of

substantial misuse of student first scholarship funds to the attorney general for the purpose of collection or for the purpose of a criminal investigation if the state board of education obtains evidence of fraudulent use of an account.

10. *a.* This section shall not be construed to authorize the state or any political subdivision of the state to exercise authority over any nonpublic school or construed to require a nonpublic school to modify its academic standards for admission or educational program in order to receive payment from a parent or guardian using funds from a pupil's account in the student first scholarship fund.

b. This section shall not be construed to expand the authority of the state or any political subdivision of the state to impose regulations upon any nonpublic school that are not necessary to implement this section.

c. A nonpublic school that accepts payment from a parent or guardian using funds from a pupil's account in the student first scholarship fund is not an agent of this state or of a political subdivision of this state.

d. Rules adopted by the department of education to implement this section that impose an undue burden on a nonpublic school are invalid.

e. A nonpublic school that accepts payment from a parent or guardian using funds from a pupil's account in the student first scholarship fund shall be given the maximum freedom possible to provide for the educational needs of the school's students, consistent with state and federal law.

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Sec. 7. NEW SECTION. **257.16E Student first operational sharing fund.**

1. A student first operational sharing fund is created as a separate and distinct fund in the state treasury under the control of the department of management. Moneys in the fund include revenues credited to the fund, appropriations made to the fund, and other moneys deposited into the fund.

2. *a.* For each fiscal year beginning on or after July 1, 2023, there is appropriated annually from the general fund of the state to the department of management for deposit in the student first operational sharing fund an amount equal to the product of the number of student first scholarships approved under section 257.11B for the base year multiplied by the sum of the statewide average foundation property tax per pupil plus the difference between the amount determined under section 257.16B, subsection 2, paragraph *"c"*, subparagraph (2), and the amount determined under section 257.16B, subsection 2, paragraph *"c"*, subparagraph (1).

b. The moneys available in a fiscal year in the student first operational sharing fund shall be used to increase the maximum amount of additional weighting established pursuant to section 257.11, subsection 5, paragraph *"d"*, from twenty-one

additional pupils up to twenty-four additional pupils if the school district requests the additional weighting from the school budget review committee, and the school budget review committee approves the additional weighting after examining the need for the position requested. If the moneys in the student first operational sharing fund are insufficient to make the payments required by section 257.11, subsection 5, the remainder shall be paid as foundation aid pursuant to section 257.16.

3. Payments to school districts under this section shall be paid at the same time and in the same manner as foundation aid is paid under section 257.16, and may be included in the monthly payment of state aid under section 257.16, subsection

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4. Notwithstanding section 8.33, any moneys remaining in the student first operational sharing fund at the end of a fiscal year shall not revert to any other fund but shall remain in the student first operational sharing fund for use as provided in this section for the following fiscal year.

Sec. 8. Section 257.31, subsection 16, Code 2022, is amended to read as follows:

16. The committee shall perform the duties assigned to it under sections 257.16E, 257.32, 257.40, and 260C.18B.

Sec. 9. Section 422.7, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 51. Subtract, to the extent included, the amount of a student first scholarship under section 257.11B received by the taxpayer for payment of qualified educational expenses.

Sec. 10. STUDENT FIRST SCHOLARSHIP PROGRAM APPLICATIONS FOR THE SCHOOL YEAR BEGINNING JULY 1, 2022.

1. Notwithstanding the deadline in section 257.11B, subsection 2, paragraph "a", as enacted in this division of this Act, by May 1 preceding the school year beginning July 1, 2022, the parent or guardian of a pupil who is enrolled in a school district or who is eligible to enroll in a school district for kindergarten in the next school year, and who is requesting a student first scholarship for the school year beginning July 1, 2022, may request a student first scholarship by submitting an application to the department of education, on application forms developed by the department of education, indicating that the parent or guardian intends to enroll the pupil in a nonpublic school for the entirety of the school year beginning July 1, 2022.

2. Notwithstanding the deadline in section 257.11B, subsection 2, paragraph "b", as enacted in this division of this Act, by June 1 preceding the school year beginning July 1, 2022, the department of education shall determine the

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number of pupils in each school district approved to receive a scholarship for the following school year and shall notify the parent or guardian of each pupil approved for the following school year to receive a scholarship and the amount of the scholarship for the pupil.

Sec. 11. EMERGENCY RULES. The department of education may adopt emergency rules under section 17A.4, subsection 3, and section 17A.5, subsection 2, paragraph "b", to implement the provisions of the section of this division of this Act enacting section 256.9, subsection 65, and section 257.11B, and the rules shall be effective immediately upon filing unless a later date is specified in the rules. Any rules adopted in accordance with this section shall also be published as a notice of intended action as provided in section 17A.4.

Sec. 12. EFFECTIVE DATE. The following, being deemed of immediate importance, take effect upon enactment:

1. The section of this division of this Act enacting section 256.9, subsection 65.

2. The section of this division of this Act enacting section 257.11B.

3. The section of this division of this Act establishing deadlines for the applications for the student first scholarship program for the school year beginning July 1, 2022.

4. The section of this division of this Act authorizing the department of education to engage in emergency rulemaking.

Sec. 13. APPLICABILITY. The following applies to school budget years and fiscal years beginning on or after July 1, 2022:

The section of this division of this Act enacting section 257.11B.

Sec. 14. APPLICABILITY. The following applies to school budget years and fiscal years beginning on or after July 1, 2023:

The section of this division of this Act enacting section 257.16E.

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Sec. 15. RETROACTIVE APPLICABILITY. The following applies retroactively to tax years beginning on or after January 1, 2022:

The section of this division of this Act enacting section 422.7, subsection 51.

DIVISION III

SOCIAL STUDIES INSTRUCTION

Sec. 16. Section 256.11, subsection 5, paragraph b, Code 2022, is amended to read as follows:

b. (1) Five units of the social studies including instruction in voting statutes and procedures, voter registration requirements, the use of paper ballots and voting

systems in the election process, and the method of acquiring and casting an absentee ballot. All students shall complete a minimum of one-half unit of United States government and one unit of United States history.

(2) The one-half unit of United States government shall include ~~the~~ all of the following:

(a) The voting procedure as described in this lettered paragraph and section 280.9A. ~~The government instruction shall also include a~~

(b) A study of the Constitution of the United States and the Bill of Rights contained in the Constitution and an assessment of a student's knowledge of the Constitution and the Bill of Rights.

(c) (i) An assessment of the student's knowledge of United States government and civics that includes the nature, purpose, structure, function, and history of the United States government, the rights and responsibilities of citizens of the United States, and important United States government and civic leaders. The most recent version of the civics test developed by the United States citizenship and immigration services shall be used as the assessment required by this subparagraph division. On or before June 30 of each year, each school district and nonpublic school shall submit the results

of the assessment required by this subparagraph division to the department.

(ii) A student shall answer at least seventy percent of the questions on the civics test developed by the United States citizenship and immigration services correctly as a condition of graduation. A student who fails to answer at least seventy percent of the questions on the civics test correctly may retake the civics test as many times as necessary.

DIVISION IV

PRIVATE INSTRUCTION —— SPECIAL EDUCATION

Sec. 17. Section 299A.9, subsection 1, Code 2022, is amended to read as follows:

1. A child of compulsory attendance age who is identified as requiring special education under chapter 256B is eligible for placement under competent private instruction ~~with prior approval of the placement by the director of special education of the area education agency of the child's district of residence~~.

Sec. 18. Section 299A.9, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 3. The parent, guardian, or legal custodian of a child who is identified as requiring special education may request dual enrollment pursuant to section 299A.8. The appropriate special education services for the child shall be determined pursuant to chapter 256B and rules adopted pursuant to chapter 256B.

DIVISION V
OPEN ENROLLMENT

Sec. 19. Section 282.18, subsection 5, Code 2022, is amended to read as follows:

5. *a.* Open enrollment applications filed after March 1 of the preceding school year that do not qualify for good cause as provided in subsection 4 shall be subject to the approval of the board of the resident district and the board of the receiving district. The parent or guardian shall send

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notification to the district of residence and the receiving district that the parent or guardian seeks to enroll the parent's or guardian's child in the receiving district.

b. A decision of either board to deny an application filed under this subsection involving repeated acts of harassment of the student that the resident district cannot adequately address, a consistent failure of the resident district to reasonably respond to a student's failure to meet basic academic standards after notice provided by a parent or guardian, or a serious health condition of the student that the resident district cannot adequately address is subject to appeal under section 290.1. A decision of either board to deny an application filed under this subsection related to the sibling or stepsibling of a student described in this paragraph is also subject to appeal under section 290.1.

c. The state board shall adopt by rule the criteria for determining a resident district's consistent failure to reasonably respond to a student's failure to meet basic academic standards and shall exercise broad discretion to achieve just and equitable results that are in the best interest of the affected child or children.

Sec. 20. Section 282.18, subsection 11, paragraph a, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (08) If the pupil participates in open enrollment because the pupil's sibling or stepsibling participates in open enrollment as a result of the sibling or stepsibling's appeal under section 282.18, subsection 5, paragraph *"b"*.

DIVISION VI
PRACTITIONER PREPARATION PROGRAMS

Sec. 21. Section 256.7, subsection 3, paragraph b, Code 2022, is amended to read as follows:

b. Procedures provided for approval of programs shall include procedures for enforcement of the prescribed standards and~~, except as provided in section 256.16, subsection 3,~~ shall

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not include a procedure for the waiving of any of the standards prescribed.

Sec. 22. Section 256.16, subsection 1, paragraph a, Code 2022, is amended by striking the paragraph.

Sec. 23. Section 256.16, subsection 1, paragraph d, Code 2022, is amended to read as follows:

d. Require that each student admitted to an approved practitioner preparation program participate in pre-student teaching field experiences that include both observation and participation in teaching activities in a variety of school settings. ~~These~~ Pre-student teaching field experiences for students participating in an initial teacher preparation program shall comprise a total of at least ~~fifty~~ eighty hours in duration, at least ten hours of which shall occur prior to a student's acceptance in an approved practitioner preparation program. Pre-student teaching field experiences for students participating in a teacher intern preparation program shall comprise a total of at least fifty hours in duration. The student teaching experience shall be a minimum of fourteen weeks in duration during the student's final year of the practitioner preparation program. The program shall make every reasonable effort to offer the student teaching experience prior to a student's last semester, or equivalent, in the program, and to expand the student's student teaching opportunities beyond one semester or the equivalent.

Sec. 24. Section 256.16, subsection 2, Code 2022, is amended to read as follows:

2. A person initially applying for a license shall successfully complete a practitioner preparation program approved under section 256.7, subsection 3, and containing the subject matter specified in this section, before the initial action by the board of educational examiners under chapter 272 takes place. ~~However, this subsection shall not apply to a person who meets the requirements for an initial one-year license in accordance with subsection 3.~~

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Sec. 25. Section 256.16, subsection 3, Code 2022, is amended by striking the subsection.

Sec. 26. Section 272.2, subsection 14, paragraph b, subparagraph (5), Code 2022, is amended to read as follows:

(5) The applicant fails to meet board standards for application for an initial or renewed license. ~~However, this subparagraph shall not apply to a person who applies for an initial one-year license and submits to the board a waiver issued by the director of the department of education in accordance with section 256.16, subsection 3.~~

Sec. 27. Section 272.2, subsection 22, Code 2022, is amended by striking the subsection.

Sec. 28. HIGHER EDUCATION INSTITUTIONS —— NOTICE TO FORMER STUDENTS. All higher education institutions providing practitioner preparation shall notify students who failed to achieve the minimum passing scores set by the department of

education on the assessments administered under section 256.16, subsection 1, paragraph "a", subparagraph (2), Code 2022, before the effective date of this division of this Act, of the changes related to the completion of a practitioner preparation program provided by this division of this Act, including the student's ability to apply for an initial license from the board of educational examiners if the student completed all other requirements of a practitioner preparation program approved under section 256.7, subsection 3.

Sec. 29. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 30. APPLICABILITY. This division of this Act applies to students who attended or are attending practitioner preparation programs before, on, or after the effective date of this division of this Act.

DIVISION VII

INCIDENTS RELATED TO LICENSED PRACTITIONERS

Sec. 31. Section 232.69, subsection 1, unnumbered paragraph 1, Code 2022, is amended to read as follows:

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The classes of persons enumerated in this subsection shall make a report within twenty-four hours and as provided in section 232.70, of cases of child abuse. In addition, the classes of persons enumerated in this subsection shall make a report of abuse of a child ~~who is under twelve years of age and may make a report of abuse of a child who is twelve years of age or older,~~ which would be defined as child abuse under section 232.68, subsection 2, paragraph *"a"*, subparagraph (3) or (5), except that the abuse resulted from the acts or omissions of a person other than a person responsible for the care of the child.

Sec. 32. Section 232.69, subsection 1, paragraph b, subparagraph (4), Code 2022, is amended to read as follows:

(4) A licensed school employee, certified para-educator, holder of a coaching authorization issued under section 272.31, full-time school employee who is eighteen years of age or older, or an instructor employed by a community college.

Sec. 33. Section 232.70, subsection 6, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *0f.* If the person making the report is a licensed school employee who reasonably believes the person responsible for the injury is a licensed school employee, the identity of the licensed school employee the person making the report believes is responsible for the injury.

Sec. 34. Section 256.9, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 66. *a.* Develop and implement a process for the reporting and investigation of any incident that arises that may reasonably lead to the conclusion that an individual with a license, endorsement, certification, authorization, or

statement of recognition issued by the board of educational examiners who is employed by the board of directors of a school district or the authorities in charge of an accredited nonpublic school has committed a felony or has engaged in conduct described in section 272.15, subsection 1, paragraph

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"a", subparagraph (1), subparagraph divisions (a) through (d).

b. The process shall prohibit the boards of directors of a school district and the authorities in charge of an accredited nonpublic school from entering into any of the following:

(1) A written or oral agreement that prohibits the board of directors of the school district or the authorities in charge of an accredited nonpublic school, an employee of the school district or the accredited nonpublic school, or a contractor of the school district or the accredited nonpublic school from discussing an incident, past performance or actions, past allegations leading to discipline or adverse employment action, or employee resignation with any governmental agent, governmental officer, or any potential employer.

(2) A written or oral agreement that waives the liability of an individual with a license, endorsement, certification, authorization, or statement of recognition issued by the board of educational examiners related to or arising from an incident, past performance or action, or past allegations of wrongdoing.

c. The board of directors of a school district or the authorities in charge of an accredited nonpublic school and contractors of the school district or the accredited nonpublic school shall be immune from any civil liability arising from discussing an incident, past performance or actions, past allegations leading to discipline or adverse employment action, or employee resignation with any governmental agent, governmental officer, or any potential employer.

d. If the board of educational examiners finds that the board of directors of a school district or the authorities in charge of an accredited nonpublic school has intentionally failed to follow the process established by this subsection regarding an incident, or the reporting requirements established pursuant to section 272.15, the board of educational examiners shall assess a fine against an administrator of the school district or the accredited

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nonpublic school who failed to ensure compliance with the process of not less than five hundred dollars and not more than five thousand dollars. Payments of the fine provided in this paragraph shall be remitted to the treasurer of the state for deposit in the general fund of the state.

e. If the board of educational examiners finds that the

board of directors of a school district or the authorities in charge of an accredited nonpublic school has intentionally concealed, or attempted to conceal from any governmental agent, governmental officer, or potential employer a founded incident, or any conduct required to be reported pursuant to section 272.15, the board of educational examiners shall assess a fine against an administrator of the school district or the accredited nonpublic school who assisted in the concealment, or attempted concealment, of an incident, or any conduct required to be reported pursuant to section 272.15, of not more than ten thousand dollars. Payments of the fine provided in this paragraph shall be remitted to the treasurer of the state for deposit in the general fund of the state.

Sec. 35. Section 256E.7, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *0i.* Be subject to and comply with the requirements of section 280.32 in the same manner as a school district.

Sec. 36. Section 272.2, subsection 14, paragraph b, subparagraph (1), unnumbered paragraph 1, Code 2022, is amended to read as follows:

The person entered a plea of guilty to, ~~or~~ has been found guilty of, or the board has found by a preponderance of the evidence that the person committed, any of the following offenses, whether or not a sentence is imposed:

Sec. 37. Section 272.2, subsection 15, Code 2022, is amended to read as follows:

15. *a.* Adopt rules that require specificity in written complaints that are filed by individuals who have personal

knowledge of an alleged violation and which are accepted by the board, provide that the jurisdictional requirements as set by the board in administrative rule are met on the face of the complaint before initiating an investigation of allegations, provide that any investigation be limited to the allegations contained on the face of the complaint, provide for an adequate interval between the receipt of a complaint and public notice of the complaint, permit parties to a complaint to mutually agree to a resolution of the complaint filed with the board, allow the respondent the right to review any investigative report upon a finding of probable cause for further action by the board, require that the conduct providing the basis for the complaint occurred within three years of discovery of the event by the complainant unless good cause can be shown for an extension of this limitation, and require complaints to be resolved within one hundred eighty days unless good cause can be shown for an extension of this limitation.

b. Adopt rules that require the collection and retention of written complaints that are filed. If the board determines a written complaint is not founded, the complaint and all records

related to the complaint shall be kept confidential and are not subject to chapter 22.

c. Adopt rules that require the board to notify the public when a licensed practitioner who is the subject of an ongoing investigation initiated under paragraph *"a"* has a case pending with a finding of probable cause. This paragraph shall not be construed to require the board to disclose unfounded, closed investigations initiated under paragraph *"a"*.

d. Adopt rules that require the evaluation of complaints that did not result in any discipline or sanction if similar complaints are filed against the same licensed practitioner.

e. Adopt rules that require the board to investigate an administrator who is employed by the school that employs a licensed practitioner who is the subject of an investigation initiated under paragraph *"a"*. The rules shall require

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the board to investigate whether the administrator filed a written complaint pursuant to this subsection and whether the administrator was required to report to the board pursuant to section 272.15.

Sec. 38. Section 279.69, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 1A. Prior to hiring an individual who has been issued a license, endorsement, certification, authorization, or statement of recognition by the board of educational examiners, a school district shall view the board of educational examiner's public license information to determine if the individual has a case pending with a finding of probable cause or any licensure sanction. This subsection shall not be construed to require the board of educational examiners to disclose unfounded, closed investigations.

Sec. 39. NEW SECTION. **280.32 Incidents related to licensed practitioners —— reporting and investigation.**

The board of directors of a school district and the authorities in charge of each accredited nonpublic school shall follow the process created by the department of education pursuant to section 256.9, subsection 66, related to the reporting and investigation of an incident involving the possible commission of a felony by any person who has been issued a license, endorsement, certification, authorization, or statement of recognition by the board of educational examiners.

DIVISION VIII

BOARD OF EDUCATIONAL EXAMINERS —— RENEWAL CREDITS

Sec. 40. Section 272.2, subsection 1, paragraph c, Code 2022, is amended to read as follows:

c. Rules adopted pursuant to this subsection establishing licensure renewal requirements shall provide that up to half of the units needed for licensure renewal may be earned upon

the successful completion of an individualized professional development plan as verified by the supervising licensed evaluator, or by successful completion of professional

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development courses or programs offered by a professional development program licensed by the board, or by a practitioner preparation institution or area education agency approved by the state board of education. The rules shall require that holders of a master educator teaching license, professional service license, or professional administrator license who are employed by a school district described in chapter 274, charter school, or accredited nonpublic school may earn all renewal credits, except for the evaluator training required by section 284.10 and the mandatory reporter training required by section 232.69, through professional development activities as verified by the supervising licensed evaluator.>

2. Title page, by striking lines 1 through 10 and inserting <An Act relating to education, including establishing a student first scholarship program, a student first operational sharing fund, and a process for investigating complaints against licensed practitioners, modifying provisions related to supplementary weighting, the rights of students enrolled in school districts or charter schools, the rights of parents and guardians of those students, social studies instruction, open enrollment, competent private instruction, special education, practitioner preparation programs, mandatory reporters, and the responsibilities of the department of education, school districts, charter schools, accredited nonpublic schools, and the board of educational examiners, and including notice, effective date, applicability, and retroactive applicability provisions.>

AMY SINCLAIR

S–5107

Amend the amendment, S–5106, to Senate File 2369, as follows:

1. Page 2, by striking lines 14 through 17 and inserting:

<(2) The school district determines that a credible threat to the health, safety, or welfare of a minor child may result from providing access to or disclosing the school records.>

HERMAN C. QUIRMBACH

S–5108

Amend the amendment, S–5106, to Senate File 2369, as follows:

<1. By striking page 1, line 4, through page 31, line 27,

and inserting:

<DIVISION I

PARENT OR GUARDIAN BILL OF RIGHTS

Section 1. Section 256.11, subsection 10, paragraph a, subparagraph (1), Code 2022, is amended by adding the following new subparagraph division:

NEW SUBPARAGRAPH DIVISION. (0e) The requirements of section 279.76.

Sec. 2. Section 256E.7, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *0i.* Be subject to and comply with the requirements of section 279.76 in the same manner as a school district.

Sec. 3. NEW SECTION. **279.76 Parent or guardian bill of rights.**

1. Unless otherwise prohibited by state or federal law, the board of directors of a school district shall adopt policies to ensure that all of the following parental rights are reserved to the parent or guardian of a minor child without obstruction or interference from the school district in which the minor child is enrolled:

a. The right to know what the school district in which the minor child is enrolled is teaching the minor child, including the textbooks, books, articles, outlines, handouts, presentations, videos, and any other similar materials the school district uses for student instruction. By July 1, 2025, the school district shall grant access through the internet to the curriculum used for student instruction of a minor child enrolled in the school district to the parent or guardian of the minor child.

b. The right to access and review information related to who is teaching the minor child, including guest lecturers and

outside presenters.

c. The right to access and review information related to persons who contract with or otherwise receive moneys from the school district.

d. The right to access the minor child while the minor child is in school that a reasonable person would deem necessary to ensure the health and safety of the minor child, unless otherwise prohibited by a court order.

e. The right to access and review all school records relating to the minor child; provided, however, that the school district may prohibit access to and disclosure of school records if any of the following apply:

(1) The school records are related to the minor child's reporting of the parent's or guardian's violation of any law.

(2) The school district determines that a credible threat to the health, safety, or welfare of a minor child may result from providing access to or disclosing the school records.

(3) Chapter 232, subchapter III, part 2, prohibits the school record from being disclosed.

f. The right to access and review information related to the collection and transmission of information related to the minor child, including assessment information, documents created by the minor child, and teacher evaluations of the minor child.

g. Subject to section 22.7, the right to access and review information necessary to ensure the accountability and transparency of the board of directors of the school district in which the minor child is enrolled.

h. The right to access and review information related to the minor child's safety while at school.

2. *a.* The school district shall not require any student to engage in any activity, including instruction, or any test, assessment, or other means of evaluation, that involves obscene material without the express prior written consent of the student's parent or guardian, which may be obtained by electronic means.

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b. The school district shall make every effort to prohibit a minor child from accessing obscene material in the classroom on a device or through a computer network that is owned or otherwise provided by the school district.

c. (1) A school district that maintains in electronic form a catalog of library materials shall grant access through the internet or other suitable means to the catalog of library materials to the parent or guardian of any student enrolled in the school district. School districts that maintain a catalog of library materials in other than electronic form shall grant physical access to the catalog of library materials to the parent or guardian of any student enrolled in the school district at the school where the student attends class and at times that are convenient for the parent or guardian.

(2) The parent or guardian of a minor child enrolled in the school district may provide notice to the school district indicating the materials that the minor child shall not be allowed to check out from a library operated by the school district, and the school district shall not allow the minor child to check out the materials described in the notice.

(3) The school district shall not allow a minor child to check out obscene material from a library operated by the school district without the express prior written consent of the minor child's parent or guardian, which may be obtained by electronic means.

3. The school district must receive the prior written consent of a student's parent or guardian before requiring a student to take part in any of the following activities:

a. An activity that involves the collection, disclosure, or use of personal information collected from students for the purpose of marketing or selling the information or providing

the information to any other person for its marketing or sale.

b. A survey, analysis, or evaluation that reveals information concerning any of the following:

(1) The political affiliations or beliefs of the student or

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the student's parent or guardian.

(2) Mental or psychological problems of the student or the student's family.

(3) Sex behavior or attitudes.

(4) Illegal, antisocial, self-incriminating, or demeaning behavior.

(5) Critical appraisals of other individuals with whom the student has close familial relationships.

(6) Legally recognized privileged or analogous relationships, such as those of attorneys, physicians, or ministers.

(7) Religious practices, affiliations, or beliefs of the student or the student's parent or guardian.

(8) Income, except when required by law to determine eligibility for participation in a program or for receiving financial assistance under such a program.

c. Any nonemergency, invasive physical examination or screening that is required as a condition of attendance, administered by the school and is scheduled in advance, and that is not necessary to protect the immediate health and safety of the student or other students.

4. The rights guaranteed to parents and guardians by this section are not a comprehensive list of the rights reserved to parents or guardians of a minor child. The enumeration of the rights contained in this section shall not be construed to limit the rights reserved to parents or guardians of a minor child.

5. The school district shall publish a copy of this section in the student handbook and on the school district's internet site.

6. For purposes of this section, unless the context otherwise requires, *"obscene material"* means the same as defined in section 728.1.

DIVISION II

INCIDENTS RELATED TO LICENSED PRACTITIONERS

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Sec. 4. Section 232.69, subsection 1, unnumbered paragraph 1, Code 2022, is amended to read as follows:

The classes of persons enumerated in this subsection shall make a report within twenty-four hours and as provided in section 232.70, of cases of child abuse. In addition, the classes of persons enumerated in this subsection shall make a report of abuse of a child ~~who is under twelve years of age and~~

~~may make a report of abuse of a child who is twelve years of age or older,~~ which would be defined as child abuse under section 232.68, subsection 2, paragraph *"a"*, subparagraph (3) or (5), except that the abuse resulted from the acts or omissions of a person other than a person responsible for the care of the child.

Sec. 5. Section 232.69, subsection 1, paragraph b, subparagraph (4), Code 2022, is amended to read as follows:

(4) A licensed school employee, certified para-educator, holder of a coaching authorization issued under section 272.31, full-time school employee who is eighteen years of age or older, or an instructor employed by a community college.

Sec. 6. Section 232.70, subsection 6, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *0f.* If the person making the report is a licensed school employee who reasonably believes the person responsible for the injury is a licensed school employee, the identity of the licensed school employee the person making the report believes is responsible for the injury.

Sec. 7. Section 256.9, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 65. *a.* Develop and implement a process for the reporting and investigation of any incident that arises that may reasonably lead to the conclusion that an individual with a license, endorsement, certification, authorization, or statement of recognition issued by the board of educational examiners who is employed by the board of directors of a school district or the authorities in charge of an accredited

nonpublic school has committed a felony or has engaged in conduct described in section 272.15, subsection 1, paragraph *"a"*, subparagraph (1), subparagraph divisions (a) through (d).

b. The process shall prohibit the boards of directors of a school district and the authorities in charge of an accredited nonpublic school from entering into any of the following:

(1) A written or oral agreement that prohibits the board of directors of the school district or the authorities in charge of an accredited nonpublic school, an employee of the school district or the accredited nonpublic school, or a contractor of the school district or the accredited nonpublic school from discussing an incident, past performance or actions, past allegations leading to discipline or adverse employment action, or employee resignation with any governmental agent, governmental officer, or any potential employer.

(2) A written or oral agreement that waives the liability of an individual with a license, endorsement, certification, authorization, or statement of recognition issued by the board of educational examiners related to or arising from an incident, past performance or action, or past allegations of wrongdoing.

c. The board of directors of a school district or the authorities in charge of an accredited nonpublic school and contractors of the school district or the accredited nonpublic school shall be immune from any civil liability arising from discussing an incident, past performance or actions, past allegations leading to discipline or adverse employment action, or employee resignation with any governmental agent, governmental officer, or any potential employer.

d. If the board of educational examiners finds that the board of directors of a school district or the authorities in charge of an accredited nonpublic school has intentionally failed to follow the process established by this subsection regarding an incident, or the reporting requirements established pursuant to section 272.15, the

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board of educational examiners shall assess a fine against an administrator of the school district or the accredited nonpublic school who failed to ensure compliance with the process of not less than five hundred dollars and not more than five thousand dollars. Payments of the fine provided in this paragraph shall be remitted to the treasurer of the state for deposit in the general fund of the state.

e. If the board of educational examiners finds that the board of directors of a school district or the authorities in charge of an accredited nonpublic school has intentionally concealed, or attempted to conceal from any governmental agent, governmental officer, or potential employer a founded incident, or any conduct required to be reported pursuant to section 272.15, the board of educational examiners shall assess a fine against an administrator of the school district or the accredited nonpublic school who assisted in the concealment, or attempted concealment, of an incident, or any conduct required to be reported pursuant to section 272.15, of not more than ten thousand dollars. Payments of the fine provided in this paragraph shall be remitted to the treasurer of the state for deposit in the general fund of the state.

Sec. 8. Section 256E.7, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *0i.* Be subject to and comply with the requirements of section 280.32 in the same manner as a school district.

Sec. 9. Section 272.2, subsection 14, paragraph b, subparagraph (1), unnumbered paragraph 1, Code 2022, is amended to read as follows:

The person entered a plea of guilty to, ~~or~~ has been found guilty of, or the board has found by a preponderance of the evidence that the person committed, any of the following offenses, whether or not a sentence is imposed:

Sec. 10. Section 272.2, subsection 15, Code 2022, is amended to read as follows:

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15. *a.* Adopt rules that require specificity in written complaints that are filed by individuals who have personal knowledge of an alleged violation and which are accepted by the board, provide that the jurisdictional requirements as set by the board in administrative rule are met on the face of the complaint before initiating an investigation of allegations, provide that any investigation be limited to the allegations contained on the face of the complaint, provide for an adequate interval between the receipt of a complaint and public notice of the complaint, permit parties to a complaint to mutually agree to a resolution of the complaint filed with the board, allow the respondent the right to review any investigative report upon a finding of probable cause for further action by the board, require that the conduct providing the basis for the complaint occurred within three years of discovery of the event by the complainant unless good cause can be shown for an extension of this limitation, and require complaints to be resolved within one hundred eighty days unless good cause can be shown for an extension of this limitation.

b. Adopt rules that require the collection and retention of written complaints that are filed. If the board determines a written complaint is not founded, the complaint and all records related to the complaint shall be kept confidential and are not subject to chapter 22.

c. Adopt rules that require the board to notify the public when a licensed practitioner who is the subject of an ongoing investigation initiated under paragraph *"a"* has a case pending with a finding of probable cause. This paragraph shall not be construed to require the board to disclose unfounded, closed investigations initiated under paragraph *"a"*.

d. Adopt rules that require the evaluation of complaints that did not result in any discipline or sanction if similar complaints are filed against the same licensed practitioner.

e. Adopt rules that require the board to investigate an administrator who is employed by the school that employs a

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licensed practitioner who is the subject of an investigation initiated under paragraph *"a"*. The rules shall require the board to investigate whether the administrator filed a written complaint pursuant to this subsection and whether the administrator was required to report to the board pursuant to section 272.15.

Sec. 11. Section 279.69, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 1A. Prior to hiring an individual who has been issued a license, endorsement, certification, authorization, or statement of recognition by the board of educational examiners, a school district shall view the

board of educational examiner's public license information to determine if the individual has a case pending with a finding of probable cause or any licensure sanction. This subsection shall not be construed to require the board of educational examiners to disclose unfounded, closed investigations.

Sec. 12. NEW SECTION. **280.32 Incidents related to licensed practitioners —— reporting and investigation.**

The board of directors of a school district and the authorities in charge of each accredited nonpublic school shall follow the process created by the department of education pursuant to section 256.9, subsection 65, related to the reporting and investigation of an incident involving the possible commission of a felony by any person who has been issued a license, endorsement, certification, authorization, or statement of recognition by the board of educational examiners.

DIVISION III

BOARD OF EDUCATIONAL EXAMINERS —— RENEWAL CREDITS

Sec. 13. Section 272.2, subsection 1, paragraph c, Code 2022, is amended to read as follows:

c. Rules adopted pursuant to this subsection establishing licensure renewal requirements shall provide that up to half of the units needed for licensure renewal may be earned upon the successful completion of an individualized professional

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development plan as verified by the supervising licensed evaluator, or by successful completion of professional development courses or programs offered by a professional development program licensed by the board, or by a practitioner preparation institution or area education agency approved by the state board of education. The rules shall require that holders of a master educator teaching license, professional service license, or professional administrator license who are employed by a school district described in chapter 274, charter school, or accredited nonpublic school may earn all renewal credits, except for the evaluator training required by section 284.10 and the mandatory reporter training required by section 232.69, through professional development activities as verified by the supervising licensed evaluator.>

2. Title page, by striking lines 1 through 10 and inserting <An Act relating to education, including establishing a process for investigating complaints against licensed practitioners, modifying provisions related to the rights of students enrolled in school districts or charter schools, the rights of parents and guardians of those students, mandatory reporters, and the responsibilities of the department of education, school districts, charter schools, accredited nonpublic schools, and the board of educational examiners.>>

HERMAN C. QUIRMBACH

S–5109

Amend the amendment, S–5106, to Senate File 2369, as follows:

1. Page 1, line 19, after <district> by inserting <and the authorities in charge of an accredited nonpublic school>
2. Page 1, line 22, after <district> by inserting <or accredited nonpublic school>
3. Page 1, line 24, after <district> by inserting <or accredited nonpublic school>
4. Page 1, line 28, after <district> by inserting <or accredited nonpublic school>
5. Page 1, line 29, after <district> by inserting <or accredited nonpublic school>
6. Page 1, line 31, after <district> by inserting <or accredited nonpublic school>
7. Page 2, line 3, after <district> by inserting <or accredited nonpublic school>
8. Page 2, line 10, after <district> by inserting <or accredited nonpublic school>
9. Page 2, line 14, after <district> by inserting <or accredited nonpublic school>
10. Page 2, line 30, after <district> by inserting <or accredited nonpublic school>
11. Page 3, line 1, after <district> by inserting <or accredited nonpublic school>
12. Page 3, line 4, after <district> by inserting <or accredited nonpublic school>
13. Page 3, line 5, after <district> by inserting <or accredited nonpublic school>
14. Page 3, by striking line 9 and inserting <the school district or accredited nonpublic school. School districts or accredited nonpublic schools that maintain a catalog>
15. Page 3, line 13, after <district> by inserting <or accredited nonpublic school>
16. Page 3, by striking line 16 and inserting <the school district or accredited nonpublic school may provide notice to

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the school district or accredited nonpublic school>
17. Page 3, by striking line 19 and inserting <district or accredited nonpublic school, and the school district or accredited nonpublic school>
18. Page 3, line 21, after <district> by inserting <or accredited nonpublic school>
19. Page 3, line 22, after <district> by inserting <or accredited nonpublic school>
20. Page 3, line 24, after <district> by inserting <or accredited nonpublic school>
21. Page 3, line 27, after <district> by inserting <or accredited nonpublic school>

22. Page 4, line 29, after <district> by inserting <or accredited nonpublic school>
23. Page 4, line 30, after <district's> by inserting <or accredited nonpublic school's>

ERIC GIDDENS

S–5110

HOUSE AMENDMENT TO
SENATE FILE 577

Amend Senate File 577 as follows:
1. Page 2, line 22, by striking <July 1, 2021> and inserting <January 1, 2000>

S–5111

HOUSE AMENDMENT TO
SENATE FILE 348

Amend Senate File 348, as amended, passed, and reprinted by the Senate, as follows:
1. By striking everything after the enacting clause and inserting:
<DIVISION I
MINOR GUARDIANSHIPS
Section 1. Section 232.3, subsection 1, Code 2022, is amended to read as follows:
1. During the pendency of an action under this chapter, a party to the action is estopped from litigating concurrently the custody, guardianship, or placement of a child who is the subject of the action, in a court other than the juvenile court with jurisdiction of the pending action under this chapter. A district judge, district associate judge, juvenile court judge, magistrate, or judicial hospitalization referee, upon notice of the pendency of an action under this chapter, shall not issue an order, finding, or decision relating to the custody, guardianship, or placement of the child who is the subject of the action, under any law, including but not limited to chapter 232D, 598, or 598B~~, or 633~~.
Sec. 2. Section 232.3, Code 2022, is amended by adding the following new subsection:
NEW SUBSECTION. 3. An action which is pending under chapter 232D prior to an action being brought under this chapter shall be stayed by the court in the chapter 232D action unless the court follows the procedures in subsection 2 and authorizes a party to the action to litigate a specific issue under this chapter.
Sec. 3. Section 232D.103, Code 2022, is amended to read as follows:
232D.103 Jurisdiction.

The juvenile court has exclusive jurisdiction in a guardianship proceeding concerning a minor who is alleged to be in need of a guardianship and guardianships of minors.

Sec. 4. NEW SECTION. **232D.107 Confidentiality.**

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Official juvenile court records in guardianship proceedings shall be confidential and are not public records. Confidential records may be inspected and their contents shall be disclosed to the following without court order, provided that a person or entity who inspects or receives a confidential record under this section shall not disclose the confidential record or its contents unless required by law:

1. The judge and professional court staff.

2. The minor and the minor's counsel.

3. The minor's parent, guardian or custodian, court visitor, and any counsel representing such person.

Sec. 5. Section 232D.301, subsection 2, paragraph d, subparagraph (3), Code 2022, is amended to read as follows:

(3) Any adult who has had the primary care of the minor or with whom the minor has lived for ~~at least~~ any time during the six months ~~prior to~~ immediately preceding the filing of the petition.

Sec. 6. Section 232D.301, subsection 4, Code 2022, is amended to read as follows:

4. The petition shall state whether a limited guardianship is appropriate, and whether a conservatorship for the minor is already in existence.

Sec. 7. Section 232D.302, subsection 2, Code 2022, is amended to read as follows:

2. Notice shall be served upon the minor's known parents listed in the petition in accordance with the rules of civil procedure. If the parent has not filed a consent to the appointment of a guardian, the notice shall inform any parent named in the petition that the parent may be entitled to representation under the conditions described in section 232D.304.

Sec. 8. Section 232D.305, subsection 1, Code 2022, is amended to read as follows:

1. The court may appoint a court visitor for the minor. A person is qualified to serve as a court visitor if the court

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determines the person has demonstrated sufficient knowledge of guardianships to adequately perform the duties in subsection 3.

Sec. 9. Section 232D.305, subsection 3, paragraph b, Code 2022, is amended to read as follows:

b. Explaining to the minor, if the minor's age is appropriate, the substance of the petition, the purpose and effect of the guardianship proceeding, ~~the rights of the~~

~~minor at the hearing,~~ and the general powers and duties of a guardian.

Sec. 10. Section 232D.305, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 6. The court may order a court visitor to continue to serve if the court determines continued service would be in the best interest of the minor. If the court continues the services of the court visitor, the court may limit the direct duties of the court visitor as the court deems necessary in which case the court visitor shall thereafter continue to serve until discharged by the court. If the court does not order the court visitor to continue, the order appointing the guardian shall discharge the court visitor.

Sec. 11. Section 232D.306, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4. A hearing on the petition may be recorded if a court reporter is not used.

Sec. 12. Section 232D.307, subsection 1, Code 2022, is amended to read as follows:

1. The court shall request criminal record checks and checks of the child abuse, dependent adult abuse, and sex offender registries in this state for all proposed guardians other than financial institutions with Iowa trust powers unless a proposed guardian has undergone the required background checks in this section within the ~~twelve~~ six months prior to the filing of a petition and the background check has been provided to the court.

Sec. 13. Section 232D.401, subsection 1, Code 2022, is

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amended to read as follows:

1. The order by the court appointing a guardian for a minor shall state the basis for the order and the date on which the first reporting period for the guardianship will end.

Sec. 14. Section 232D.401, subsection 3, unnumbered paragraph 1, Code 2022, is amended to read as follows:

An order by the court appointing a guardian for a minor shall state the powers granted to the guardian until such time as the guardian files an initial care plan and such plan is approved by the court as required by section 232D.501, subsection 4. Except as otherwise limited by ~~court~~ an order appointing a guardian for a minor, the court may grant the guardian the following powers~~, which may be exercised without prior court approval~~:

Sec. 15. Section 232D.501, subsection 1, paragraph a, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (2A) The guardian's plan, if any, for applying for and receiving funds and benefits payable for the support of the minor.

Sec. 16. Section 232D.501, subsection 1, paragraph b, Code 2022, is amended by adding the following new subparagraphs:

NEW SUBPARAGRAPH. (11) The results of the guardian's efforts to apply for funds or benefits for the minor, and an accounting for the use of such funds or benefits by the guardian.

NEW SUBPARAGRAPH. (12) Any other information the guardian deems necessary for the court to consider.

Sec. 17. Section 232D.501, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 5. The guardian shall provide a copy of the verified initial care plan and verified annual report required by this section to the protected person, the protected person's attorney, if any, and court visitor, if any.

NEW SUBSECTION. 6. The court, for good cause, may extend the deadline for filing required reports. Required reports of

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a guardian which are not timely filed and which are delinquent, and for which no extension for filing has been granted by the court, shall be administered in the same manner as provided in section 633.32.

DIVISION II

ADULT GUARDIANSHIPS AND MINOR AND ADULT CONSERVATORSHIPS

Sec. 18. Section 235B.6, subsection 2, paragraph d, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (7) To a district court conducting checks of the dependent adult abuse registry for all proposed guardians and conservators pursuant to section 633.564.

Sec. 19. Section 633.556, subsections 4, 5, and 8, Code 2022, are amended to read as follows:

4. The petition shall list the name and address of the ~~petitioner and the petitioner's relationship to the respondent~~ following:

a. The respondent.

b. The petitioner and the petitioner's relationship to the respondent.

c. The proposed guardian or conservator and the reason the proposed guardian or conservator should be selected.

5. The petition shall list the name and address, to the extent known, of the following:

~~*a. The name and address of the proposed guardian and the reason the proposed guardian should be selected.*~~

~~*b.*~~ *a.* Any spouse of the respondent.

~~*c.*~~ *b.* Any adult children of the respondent.

~~*d.*~~ *c.* Any parents of the respondent.

~~*e.*~~ *d.* Any adult, who has had the primary care of the respondent or with whom the respondent has lived for ~~at least~~ any time during the six months ~~prior to~~ immediately preceding the filing of the petition, or any institution or facility where the respondent has resided ~~for at least six months prior to~~ any time during the six months immediately preceding the filing of the petition.

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~~f.~~ e. Any legal representative or representative payee of the respondent.

~~g.~~ f. Any person designated as an attorney in fact in a durable power of attorney for health care which is valid under chapter 144B, or any person designated as an agent in a durable power of attorney which is valid under chapter 633B.

8. The petition shall provide a brief description of the respondent's alleged functional limitations that make the respondent unable to communicate or carry out important decisions concerning the respondent's financial affairs if the petition is for appointment of a conservator for an adult respondent, or unable to care for the respondent's safety or provide for necessities such as food, shelter, clothing, or medical care without which physical injury or illness may occur if the petition requests the appointment of a guardian.

Sec. 20. Section 633.560, subsection 3, Code 2022, is amended to read as follows:

3. The court shall require the proposed guardian or conservator to attend the hearing on the petition but the court may excuse the proposed guardian's or conservator's attendance for good cause shown.

Sec. 21. Section 633.561, subsection 6, Code 2022, is amended to read as follows:

6. If the court determines that it would be in the respondent's best interest to have legal representation with respect to any further proceedings in a guardianship or conservatorship, the court may appoint an attorney to represent the respondent at the expense of the respondent or the respondent's estate, or if the respondent is indigent the cost of the court appointed attorney shall be assessed against the county in which the proceedings are pending.

Sec. 22. Section 633.562, subsection 1, Code 2022, is amended to read as follows:

1. If the court determines that the appointment of a court visitor would be in the best interest of the respondent, the

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court shall appoint a court visitor at the expense of the respondent or the respondent's estate, or, if the respondent is indigent, the cost of the court visitor shall be assessed against the county in which the proceedings are pending. The court may appoint any qualified person as a court visitor in a guardianship or conservatorship proceeding. A person is qualified to serve in this capacity if the court determines the person has demonstrated sufficient knowledge of guardianships or conservatorships to adequately perform the duties in subsection 3.

Sec. 23. Section 633.562, subsection 3, paragraph b, Code 2022, is amended to read as follows:

b. Explaining to the respondent the substance of the petition, the purpose and effect of the guardianship or conservatorship proceeding, ~~the rights of the respondent at the hearing,~~ and the general powers and duties of a guardian or conservator.

Sec. 24. Section 633.562, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 7. A court visitor shall be discharged from all further duties upon appointment of a guardian or conservator, unless otherwise ordered by the court. The court may order a court visitor to continue to serve if the court determines continued service would be in the best interest of the protected person. If the court continues the service of the court visitor, the court may limit the direct duties of the court visitor as the court deems necessary. The court visitor shall thereafter continue to serve until discharged by the court.

Sec. 25. Section 633.563, subsection 1, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *c.* The petition is for opening a conservatorship for a minor.

Sec. 26. Section 633.564, subsection 1, Code 2022, is amended to read as follows:

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1. The court shall request criminal record checks and checks of the child abuse, dependent adult abuse, and sexual offender registries in this state for all proposed guardians and conservators, other than financial institutions with Iowa trust powers, unless a proposed guardian or conservator has undergone the required background checks required by this section within the six months prior to the filing of a petition and the background check has been provided to the court.

Sec. 27. Section 633.569, Code 2022, is amended to read as follows:

633.569 Emergency appointment of temporary guardian or conservator.

1. A person authorized to file a petition under section ~~633.552, 633.553, or 633.554~~ 633.556 or 633.557 may file an application for the emergency appointment of a temporary guardian or conservator.

2. Such application shall state all of the following:

a. The name and address of the respondent.

0b. The name and address of the petitioner and the petitioner's relationship to the respondent.

b. The name and address of the proposed guardian or conservator and the reason the proposed guardian or conservator should be selected.

0c. The names and addresses, to the extent known, of any other persons who must be named in the petition for appointment of a guardian or conservator under section 633.556 or 633.557.

c. The reason the emergency appointment of a temporary guardian or conservator is sought.

3. The court may enter an ex parte order appointing a temporary guardian or conservator on an emergency basis under this section if the court finds that all of the following conditions are met:

a. There is not sufficient time to file a petition and hold a hearing pursuant to section ~~633.552, 633.553, or 633.554~~ 633.556, 633.557, or 633.560.

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b. The appointment of a temporary guardian or conservator is necessary to avoid immediate or irreparable harm to the respondent before a hearing with notice to the respondent can be held.

c. There is reason to believe that the basis for appointment of guardian or conservator exists under section ~~633.552, 633.553, or 633.554~~ 633.556 or 633.557.

4. Notice of a petition for the appointment of a temporary guardian or conservator and the issuance of an ex parte order appointing a temporary guardian or conservator shall be provided to the respondent, the respondent's attorney, and any other person the court determines should receive notice.

5. Upon the issuance of an ex parte order, if the respondent is an adult, the respondent may file a request for a hearing. If the respondent is a minor, the respondent, a parent having legal custody of the respondent, or any other person having legal custody of the respondent may file a written request for a hearing. Such hearing shall be held no later than seven days after the filing of a written request.

6. The powers of the temporary guardian or conservator set forth in the order of the court shall be limited to those necessary to address the emergency situation requiring the appointment of a temporary guardian or conservator.

7. The temporary guardianship or conservatorship shall terminate within thirty days after the order is issued.

8. The court may order an extension of the temporary guardianship or conservatorship for good cause shown. Prior to or contemporaneously with the filing for an application for the extension of time, the guardian or conservator shall file a report with the court setting forth all of the following:

a. All actions conducted by the guardian or conservator on behalf of the protected person from the time of the initial appointment of the guardian up to the time of the report.

b. All actions that the guardian or conservator plans to conduct on behalf of the protected person during the extension

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period.

9. The temporary guardian or conservator shall submit any

other report the court requires.

Sec. 28. Section 633.570, subsections 1 and 2, Code 2022, are amended to read as follows:

1. In a proceeding for the appointment of a guardian, the respondent shall be given written notice which advises the respondent ~~of the powers~~ that the court may grant a guardian ~~may exercise without court approval pursuant to~~ the powers set out insection 633.635, subsection 2, and the powers ~~that the guardian may exercise only with court approval pursuant to~~ set out insection 633.635, subsection 3.

2. In a proceeding for the appointment of a conservator, the respondent shall be given written notice which advises the respondent ~~of the powers~~ that the court may grant a conservator ~~may exercise without court approval pursuant to section 633.646 and the powers that the guardian may exercise only with court approval pursuant to section 633.647~~ the powers set out in sections 633.641 and 633.642.

Sec. 29. Section 633.635, subsection 1, Code 2022, is amended to read as follows:

1. The order by the court appointing a guardian shall state the factual basis for the guardianship pursuant to section 633.552 and the date on which the first reporting period for the guardianship shall end.

Sec. 30. Section 633.635, subsection 2, unnumbered paragraph 1, Code 2022, is amended to read as follows:

~~Based upon the evidence produced at the hearing~~ An order by the court appointing a guardian for an adult shall state the powers granted to the guardian until such time as the guardian files an initial care plan and such plan is approved by the court as required by section 633.669. Except as otherwise limited by an order appointing a guardian for an adult, the court may grant a guardian the following powers ~~and duties with respect to a protected personwhich may be exercised without~~

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~~prior court approval~~:

Sec. 31. Section 633.635, subsection 3, unnumbered paragraph 1, Code 2022, is amended to read as follows:

~~A~~ Notwithstanding subsection 2, a guardian may be granted the following powers which may only be exercised upon court approval:

Sec. 32. Section 633.641, subsection 3, Code 2022, is amended to read as follows:

3. If the court appoints a conservator for a protected person who has previously executed a valid power of attorney under chapter 633B, ~~the conservator shall act in accordance with the applicable provisions of chapter 633B~~ the power of attorney is suspended unless the power of attorney provides otherwise or unless the court determines the power of attorney should continue. If the power of attorney continues, the agent is accountable to the conservator as well as to the protected

person. The power of attorney shall be reinstated upon termination of the conservatorship as a result of the protected person regaining capacity.

Sec. 33. Section 633.642, Code 2022, is amended by striking the section and inserting in lieu thereof the following:

633.642 Powers of conservator.

1. An order by the court appointing a conservator shall state the basis for the conservatorship pursuant to section 633.553 or section 633.554.

2. Upon appointment by the court, and until such time as the conservator files an initial financial management plan and such plan is approved by the court as required by section 633.670, subsection 1, a conservator has the authority to exercise all powers applicable to fiduciaries pursuant to sections 633.63 through 633.162, unless expressly modified by the court.

3. In the order approving an initial financial management plan or an annual report, the court shall approve and set forth the specific powers of a conservator, which may be thereafter exercised by the conservator until further court order. Except

as otherwise ordered by the court, a conservator must give notice to persons entitled to notice and receive specific prior authorization by the court before the conservator may take any other action on behalf of the protected person.

4. Upon the filing of an appropriate oath by the conservator, the clerk of court shall issue letters of appointment. A copy of the initial order of the court shall be attached to the letters of appointment.

Sec. 34. Section 633.669, Code 2022, is amended to read as follows:

633.669 ~~Reporting requirements — assistance~~ Reports by ~~clerk~~ guardians.

1. The court shall assign a guardianship created under this chapter, and may reassign as necessary in the court's discretion, to one of following reporting tiers:

a. Tier I: A guardian assigned a tier I guardianship shall file with the court a verified annual report which shall not be waived by the court. The annual report shall include all of the following:

(1) The current mental and physical condition of the protected person.

(2) The present living arrangement of the protected person, including a description of each residence where the protected person has resided during the reporting period.

(3) A summary of the medical, educational, vocational and technical, and other professional services provided for the protected person.

(4) A description of the guardian's visits with and activities on behalf of the protected person.

(5) A recommendation as to the need for continued

guardianship.

(6) Other information requested by the court or useful in the opinion of the guardian.

b. A guardian ~~appointed by the court under this chapter~~ assigned a tier II guardianship shall file with the court the

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following ~~written~~ verified reports which shall not be waived by the court:

~~a.~~ (1) An initial care plan filed within sixty days of appointment. The information in the initial care plan shall include but not be limited to the following information:

~~(1)~~ (a) The current residence of the protected person and the guardian's plan for the protected person's living arrangements.

~~(2)~~ (b) The guardian's plan for payment of the protected person's living expenses and other expenses.

~~(3)~~ (c) The protected person's health status and health care needs, and the guardian's plan for meeting the protected person's needs for medical, dental, and other health care needs.

~~(3A)~~ (d) Whether the protected person has a living will or health care power of attorney.

~~(4)~~ (e) If applicable, the protected person's need for other professional services for mental, behavioral, or emotional health, and the guardian's plan for other professional services needed by the protected person.

~~(5)~~ (f) If applicable, the protected person's employment status, the protected person's need for educational, training, or vocational services, and the guardian's plan for meeting the educational, training, and vocational needs of the protected person.

~~(6)~~ (g) If applicable, the guardian's plan for facilitating the participation of the protected person in social activities.

~~(7)~~ (h) The guardian's plan for facilitating contacts between the protected person and the protected person's family members and other ~~significant~~ persons significant in the life of the protected person.

~~(8)~~ (i) The guardian's plan for contact with, and activities on behalf of, the protected person.

(j) The powers that the guardian requests to carry out the initial care plan.

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(k) The guardian shall file an amended plan when there has been a significant change in the circumstances or the guardian seeks to deviate significantly from the plan. The guardian must obtain court approval of the amended plan before implementing any of its provisions.

~~b.~~ (2) An annual report, filed within sixty days of the

close of the reporting period~~, unless the court otherwise orders on good cause shown~~. The information in the annual report shall include but not be limited to the following information:

~~(1)~~ (a) The current living arrangements of the protected person.

~~(2)~~ (b) The sources of payment for the protected person's living expenses and other expenses.

~~(3)~~ (c) A description, if applicable, of the following:

~~(a)~~ (i) The protected person's ~~physical and mental~~ health status and the ~~medical, dental, and other professional~~ health services provided to the protected person.

~~(b)~~ (ii) If applicable, the protected person's employment status and the educational, training, and vocational services provided to the protected person.

(iii) The guardian's facilitation of the participation of the protected person in social activities.

~~(c)~~ (iv) The contact of the protected person with family members and other significant persons.

~~(d)~~ (v) The nature and extent of the guardian's visits with, and activities on behalf of, the protected person.

~~(4)~~ (d) The guardian's recommendation as to the need for continuation of the guardianship.

~~(5)~~ (e) The ability of the guardian to continue as guardian.

~~(6)~~ (f) The need of the guardian for assistance in providing or arranging for the provision of the care and protection of the protected person.

(g) Any other information the guardian deems necessary for

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the court to consider.

~~c.~~ 1A. ~~A~~ The guardian under a tier I or II guardianship shall file a final report within thirty days of the termination of the guardianship under section 633.675 unless that time is extended by the court.

2. The court shall develop a simplified uniform reporting form for use in filing the required reports.

3. The clerk of the court shall notify the guardian in writing of the reporting requirements and shall provide information and assistance to the guardian in filing the reports.

4. Reports of guardians shall be reviewed and approved by a district court judge or referee.

5. The court, for good cause, may extend the deadline for filing required reports. Required reports of a guardian which are not timely filed and which are delinquent, and for which no extension for filing has been granted by the court, shall be administered as provided in section 633.32.

6. The guardian shall provide a copy of the reports required by this section to the protected person, the protected person's

attorney, if any, and the court visitor, if any.

Sec. 35. Section 633.670, Code 2022, is amended to read as follows:

633.670 Reports by conservators.

1. The court shall assign a conservatorship created under this chapter, and may reassign as necessary in the court's discretion, to one of following reporting tiers:

a. Tier I: A conservator assigned a tier I conservatorship shall file with the court a verified annual report which shall not be waived by the court. The annual report shall include all of the following:

(1) The balance of funds on hand at the close of the last previous accounting, and all amounts received from any source during the period covered by the accounting.

(2) All disbursements made during the period covered by the

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accounting.

(3) Any changes in investments since the last previous report, including a list of all assets, and recommendations of the conservator for the retention or disposition of any property held by the conservator.

(4) The amount of the bond and the name of the surety on the bond.

(5) The residence or physical location of the protected person.

(6) The general physical and mental condition of the protected person.

(7) Such other information as shall be necessary to show the condition of the affairs of the conservatorship.

b. Tier II: A conservator assigned a tier II conservatorship shall file ~~an~~ with the court a verified initial financial management plan for protecting, managing, investing, expending, and distributing the assets of the conservatorship estate within ninety days after appointment which shall not be waived by the court. The plan must be based on the needs of the protected person and take into account the best interest of the protected person as well as the protected person's preference, values, and prior directions to the extent known to, or reasonably ascertainable by, the conservator.

~~*a.*~~ *c.* ~~The initial plan shall include all of the following:~~

The initial financial management plan required pursuant to paragraph *"b"* shall state the protected person's age, residence, living arrangements, and sources of payment for living expenses.

~~(1) A budget containing projected expenses and resources, including an estimate of the total amount of fees the conservator anticipates charging per year and a statement or list of the amount the conservator proposes to charge for each~~

~~service the conservator anticipates providing to the protected person.~~

~~(2) A statement as to how the conservator will involve~~

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~~the protected person in decisions about management of the conservatorship estate.~~

~~(3) If ordered by the court, any step the conservator plans to take to develop or restore the ability of the protected person to manage the conservatorship estate.~~

~~(4) An estimate of the duration of the conservatorship.~~

d. If applicable, the protected person's will shall be filed with the court clerk and the protected person's prepaid burial trust and powers of attorney shall be described.

~~*b.*~~ *e.* ~~Within two days after filing the initial plan,~~ ~~the~~ The conservator shall ~~give~~ provide notice of the filing of the initial plan ~~with~~ required pursuant to paragraph *"b"* and a copy of the initial plan to the protected person, the protected person's attorney, if any, and court visitor, if any, and others as directed by the court. The notice must state that any person entitled to a copy of the plan must file any objections to the plan not later than ~~fifteen days after it is filed~~ twenty days from the date of mailing notice of filing the initial plan.

~~*c.*~~ *f.* At least twenty days after the initial plan required pursuant to paragraph *"b"* has been filed, the court shall review and determine whether the plan should be approved or revised, after considering objections filed and whether the plan is consistent with the conservator's powers and duties.

~~*d.*~~ *g.* After approval of the initial plan required pursuant to paragraph *"b"* by the court, the conservator shall provide a copy of the approved plan and order approving the plan to the protected person, the protected person's attorney, if any, and court visitor, if any, and others as directed by the court.

~~*e.*~~ *h.* The conservator assigned to a tier II conservatorship shall file an amended plan when there has been a significant change in circumstances or the conservator seeks to deviate significantly from the plan. Before the amended plan is implemented, the provisions for court approval of the plan shall be followed as provided in ~~paragraphs *"b"*, *"c"*, and *"d"*~~

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the initial financial management plan.

2. ~~A conservator shall file an inventory of the protected person's assets within ninety days after appointment which includes an oath or affirmation that the inventory is believed to be complete and accurate as far as information permits. Copies of the inventory shall be provided to the protected person, the protected person's attorney and court visitor, if any, and others as directed by the court. When the conservator~~

~~receives additional property of the protected person, or becomes aware of its existence, a description of the property shall be included in the conservator's next annual report.~~ A conservator assigned to a tier II conservatorship shall attach to the initial financial management plan an inventory of the protected person's assets and debts, which includes an oath or affirmation that the inventory is believed to be complete and accurate as far as information permits. The conservator shall provide copies of the inventory to the protected person, the protected person's attorney, if any, and the court visitor, if any, and others as directed by the court. Any objections to the inventory shall be filed in the same manner and according to the same schedule as objections to the initial financial management plan. The court shall review the inventory and determine whether the inventory should be approved at the same time as the court reviews the initial financial management plan. When the conservator receives an additional asset of the protected person or becomes aware of its existence, or becomes aware of additional debt of the protected person, a description of the asset or debt shall be included in the conservator's next annual report.

3. *a.* A conservator assigned to a tier II conservatorship shall file a ~~written and~~ verified report on an annual basis for the period since the end of the preceding report period~~.~~ ~~The court~~ which shall not ~~waive these reports~~ be waived by the court.

~~a.~~ *b.* ~~These reports shall include all of the following:~~

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The annual report required by this paragraph shall state the age, the residence, and the living arrangements of the protected person, and sources of payment for the protected person's living expenses during the reporting period.

~~(1) Balance of funds on hand at the beginning and end of the period.~~

~~(2) Disbursements made.~~

~~(3) Changes in the conservator's plan.~~

~~(4) List of assets as of the end of the period.~~

~~(5) Bond amount and surety's name.~~

~~(6) Residence and physical location of the protected person.~~

~~(7) General physical and mental condition of the protected person.~~

~~(8) Other information reflecting the condition of the conservatorship estate.~~

~~b.~~ *c.* ~~These reports shall be filed:~~ The conservator shall submit with the annual report required by this paragraph an inventory of the assets of the protected person as of the last day of the reporting period the total value of assets at the beginning and end of the reporting period.

~~(1) On an annual basis within sixty days of the end of the~~

~~reporting period unless the court orders an extension for good cause shown in accordance with the rules of probate procedure.~~

4. The conservator assigned a tier I or II conservatorship shall file a verified final report with the court as follows:

~~(2)~~ *a.* Within thirty days following removal of the conservator.

~~(3)~~ *b.* Upon the conservator's filing of a resignation and before the resignation is accepted by the court.

~~(4)~~ *c.* Within sixty days following the termination of the conservatorship.

~~(5)~~ *d.* At other times as ordered by the court.

~~*c.*~~ 5. ~~Reports required by this section shall be served on~~ The conservator shall provide a copy of the initial financial

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management plan, if applicable, the inventory of the protected person's assets, if applicable, and the annual report to the protected person, the protected person's attorney, if any, and court visitor, if any, and the veterans administration if the protected person is receiving ~~veterans~~ veterans' benefits.

6. The court, for good cause, may extend the deadline for filing required reports. Required reports of a conservator which are not timely filed and which are delinquent, and for which no extension for filing has been granted by the court, shall be administered as provided in section 633.32.

7. Reports of conservators shall be reviewed and approved by a district court judge or referee.

Sec. 36. Section 633.675, subsections 2, 3, and 5, Code 2022, are amended to read as follows:

2. The court shall terminate a guardianship for an adult if ~~it~~ the court finds ~~by clear and convincing evidence~~ that the basis for appointing a guardian pursuant to section 633.552 has not been established.

3. The court shall terminate a conservatorship if the court finds ~~by clear and convincing evidence~~ that the basis for appointing a conservator pursuant to section 633.553 or 633.554 is not satisfied.

5. The standard of proof and the burden of proof to be applied in a termination proceeding to terminate a guardianship or conservatorship for an adult shall be the same as set forth in section 633.551, subsection 2.

DIVISION III

CONFORMING CHANGES

Sec. 37. Section 633.3, subsections 9, 17, 22, and 23, Code 2022, are amended to read as follows:

9. *Conservator* —— means a person appointed by the court to have the custody and control of the property of a ~~ward~~ protected person under the provisions of this probate code.

17. *Estate* —— the real and personal property of either a decedent or a ~~ward~~ protected person, and may also refer to the

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real and personal property of a trust described in section 633.10.

22. *Guardian* —— means the person appointed by the court to have the custody of the person of the ~~ward~~ protected person under the provisions of this probate code.

23. *Guardian of the property* —— at the election of the person appointed by the court to have the custody and care of the property of a ~~ward~~ protected person, the term *"guardian of the property"* may be used, which term shall be synonymous with the term *"conservator"*.

Sec. 38. Section 633.78, subsection 1, unnumbered paragraph 1, Code 2022, is amended to read as follows:

A fiduciary under this chapter may present a written request to any person for the purpose of obtaining property owned by a decedent or by a ~~ward~~ protected person of a conservatorship for which the fiduciary has been appointed, or property to which a decedent or ~~ward~~ protected person is entitled, or for information about such property needed to perform the fiduciary's duties. The request must contain statements confirming all of the following:

Sec. 39. Section 633.78, subsection 1, paragraph b, Code 2022, is amended to read as follows:

b. The request has been signed by all fiduciaries acting on behalf of the decedent or ~~ward~~ protected person.

Sec. 40. Section 633.78, subsection 4, paragraph a, Code 2022, is amended to read as follows:

a. Damages sustained by the decedent's or ~~ward's~~ protected person's estate.

Sec. 41. Section 633.80, Code 2022, is amended to read as follows:

633.80 Fiduciary of a fiduciary.

A fiduciary has no authority to act in a matter wherein the fiduciary's decedent or ~~ward~~ protected person was merely a fiduciary, except that the fiduciary shall file a report and accounting on behalf of the decedent or ~~ward~~ protected person

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in said matter.

Sec. 42. Section 633.93, Code 2022, is amended to read as follows:

633.93 Limitation on actions affecting deeds.

No action for recovery of any real estate sold by any fiduciary can be maintained by any person claiming under the deceased, the ~~ward~~ protected person, or a beneficiary, unless brought within five years after the date of the recording of the conveyance.

Sec. 43. Section 633.112, Code 2022, is amended to read as follows:

633.112 Discovery of property.

The court may require any person suspected of having possession of any property, including records and documents, of the decedent, ~~ward~~ protected person, or the estate, or of having had such property under the person's control, to appear and submit to an examination under oath touching such matters, and if on such examination it appears that the person has the wrongful possession of any such property, the court may order the delivery thereof to the fiduciary. Such a person shall be liable to the estate for all damages caused by the person's acts.

Sec. 44. Section 633.123, subsection 1, paragraph b, subparagraph (3), Code 2022, is amended to read as follows:

(3) The needs and rights of the beneficiaries or the ~~ward~~ protected person.

Sec. 45. Section 633.580, subsections 1 and 4, Code 2022, are amended to read as follows:

1. The name, age, and last known post office address of the proposed ~~ward~~ protected person.

4. A general description of the property of the proposed ~~ward~~ protected person within this state and of the proposed ~~ward's~~ protected person's right to receive property; also, the estimated present value of the real estate, the estimated value of the personal property, and the estimated gross annual income

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of the estate. If any money is payable, or to become payable, to the proposed ~~ward~~ protected person by the United States through the United States department of veterans affairs, the petition shall so state.

Sec. 46. Section 633.591A, Code 2022, is amended to read as follows:

633.591A Voluntary petition for appointment of conservator for a minor —— standby basis.

A person having physical and legal custody of a minor may execute a verified petition for the appointment of a standby conservator of the proposed ~~ward's~~ protected person's property, upon the express condition that the petition shall be acted upon by the court only upon the occurrence of an event specified or the existence of a described condition of the mental or physical health of the petitioner, the occurrence of which event, or the existence of which condition, shall be established in the manner directed in the petition.

Sec. 47. Section 633.603, Code 2022, is amended to read as follows:

633.603 Appointment of foreign conservators.

When there is no conservatorship, nor any application therefor pending, in this state, the duly qualified foreign conservator or guardian of a nonresident ~~ward~~ protected person may, upon application, be appointed conservator of the property of such person in this state; provided that a resident conservator is appointed to serve with the foreign conservator;

and provided further, that for good cause shown, the court may appoint the foreign conservator to act alone without the appointment of a resident conservator.

Sec. 48. Section 633.604, Code 2022, is amended to read as follows:

633.604 Application.

The application for appointment of a foreign conservator or guardian as conservator in this state shall include the name and address of the nonresident ~~ward~~ protected person, and

of the nonresident conservator or guardian, and the name and address of the resident conservator to be appointed. It shall be accompanied by a certified copy of the original letters or other authority conferring the power upon the foreign conservator or guardian to act as such. The application shall also state the cause for the appointment of the foreign conservator to act as sole conservator, if such be the case.

Sec. 49. Section 633.605, Code 2022, is amended to read as follows:

633.605 Personal property.

A foreign conservator or guardian of a nonresident may be authorized by the court of the county wherein such ~~ward~~ protected person has personal property to receive the same upon compliance with the provisions of sections 633.606, 633.607 and 633.608.

Sec. 50. Section 633.607, Code 2022, is amended to read as follows:

633.607 Order for delivery.

Upon the filing of the bond as above provided, and the court being satisfied with the amount thereof, it shall order the personal property of the ~~ward~~ protected person delivered to such conservator or guardian.

Sec. 51. Section 633.633, Code 2022, is amended to read as follows:

633.633 Provisions applicable to all fiduciaries shall govern.

The provisions of this probate code applicable to all fiduciaries shall govern the appointment, qualification, oath and bond of guardians and conservators, except that a guardian shall not be required to give bond unless the court, for good cause, finds that the best interests of the ~~ward~~ protected person require a bond. The court shall then fix the terms and conditions of such bond.

Sec. 52. Section 633.633B, Code 2022, is amended to read as follows:

633.633B Tort liability of guardians and conservators.

The fact that a person is a guardian or conservator shall not

in itself make the person personally liable for damages for the acts of the ~~ward~~ protected person.

Sec. 53. Section 633.636, Code 2022, is amended to read as follows:

633.636 Effect of appointment of guardian or conservator.

The appointment of a guardian or conservator shall not constitute an adjudication that the ~~ward~~ protected person is of unsound mind.

Sec. 54. Section 633.637, Code 2022, is amended to read as follows:

633.637 Powers of ~~ward~~ protected person.

1. A ~~ward~~ protected person for whom a conservator has been appointed shall not have the power to convey, encumber, or dispose of property in any manner, other than by will if the ~~ward~~ protected person possesses the requisite testamentary capacity, unless the court determines that the ~~ward~~ protected person has a limited ability to handle the ~~ward's~~ protected person's own funds. If the court makes such a finding, the court shall specify to what extent the ~~ward~~ protected person may possess and use the ~~ward's~~ protected person's own funds.

2. Any modification of the powers of the ~~ward~~ protected person that would be more restrictive of the ~~ward's~~ protected person's control over the ~~ward's~~ protected person's financial affairs shall be based upon clear and convincing evidence and the burden of persuasion is on the conservator. Any modification that would be less restrictive of the ~~ward's~~ protected person's control over the ~~ward's~~ protected person's financial affairs shall be based upon proof in accordance with the requirements of section 633.675.

Sec. 55. Section 633.637A, Code 2022, is amended to read as follows:

633.637A Rights of ~~ward~~ protected person under guardianship.

An adult ~~ward~~ protected person under a guardianship has the

right of communication, visitation, or interaction with other persons upon the consent of the adult ~~ward~~ protected person, subject to section 633.635, subsection 2, paragraph *"i"*, and section 633.635, subsection 3, paragraph *"c"*. If an adult ~~ward~~ protected person is unable to give express consent to such communication, visitation, or interaction with a person due to a physical or mental condition, consent of an adult ~~ward~~ protected person may be presumed by a guardian or a court based on an adult ~~ward's~~ protected person's prior relationship with such person.

Sec. 56. Section 633.638, Code 2022, is amended to read as follows:

633.638 Presumption of fraud.

If a conservator be appointed, all contracts, transfers and gifts made by the ~~ward~~ protected person after the filing of the petition shall be presumed to be a fraud against the rights

and interest of the ~~ward~~ protected person except as otherwise directed by the court pursuant to section 633.637.

Sec. 57. Section 633.639, Code 2022, is amended to read as follows:

633.639 Title to ~~ward's~~ protected person's property.

The title to all property of the ~~ward~~ protected person is in the ~~ward~~ protected person and not the conservator subject, however, to the possession of the conservator and to the control of the court for the purposes of administration, sale or other disposition, under the provisions of the law. Any real property titled at any time in the name of a conservatorship shall be deemed to be titled in the ~~ward's~~ protected person's name subject to the conservator's right of possession.

Sec. 58. Section 633.640, Code 2022, is amended to read as follows:

633.640 Conservator's right to possession.

Every conservator shall have a right to, and shall take, possession of all of the real and personal property of the

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~~ward~~ protected person. The conservator shall pay the taxes and collect the income therefrom until the conservatorship is terminated. The conservator may maintain an action for the possession of the property, and to determine the title to the same.

Sec. 59. Section 633.643, Code 2022, is amended to read as follows:

633.643 Disposal of will by conservator.

When an instrument purporting to be the will of the ~~ward~~ protected person comes into the hands of a conservator, the conservator shall immediately deliver it to the court.

Sec. 60. Section 633.644, Code 2022, is amended to read as follows:

633.644 Court order to preserve testamentary intent of ~~ward~~ protected person.

Upon receiving an instrument purporting to be the will of a living ~~ward~~ protected person under the provisions of section 633.643, the court may open said will and read it. The court with or without notice, as it may determine, may enter such orders in the conservatorship as it deems advisable for the proper administration of the conservatorship in light of the expressed testamentary intent of the ~~ward~~ protected person.

Sec. 61. Section 633.645, Code 2022, is amended to read as follows:

633.645 Court to deliver will to clerk.

An instrument purporting to be the will of a ~~ward~~ protected person coming into the hands of the court under the provisions of section 633.643, shall thereafter be resealed by the court and be deposited with the clerk to be held by said clerk as provided in sections 633.286 through 633.289.

Sec. 62. Section 633.653A, Code 2022, is amended to read as follows:

633.653A Claims for cost of medical care or services.

The provision of medical care or services to a ~~ward~~ protected person who is a recipient of medical assistance under chapter

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249A creates a claim against the conservatorship for the amount owed to the provider under the medical assistance program for the care or services. The amount of the claim, after being allowed or established as provided in this part, shall be paid by the conservator from the assets of the conservatorship.

Sec. 63. Section 633.654, Code 2022, is amended to read as follows:

633.654 Form and verification of claims —— general requirements.

No claim shall be allowed against the estate of a ~~ward~~ protected person upon application of the claimant unless it shall be in writing, filed in duplicate with the clerk, stating the claimant's name and address, and describing the nature and the amount thereof, if ascertainable. It shall be accompanied by the affidavit of the claimant, or of someone for the claimant, that the amount is justly due, or if not due, when it will or may become due, that no payments have been made thereon which are not credited, and that there are no offsets to the same, to the knowledge of the affiant, except as therein stated. The duplicate of said claim shall be mailed by the clerk to the conservator or the conservator's attorney of record; however, valid contract claims arising in the ordinary course of the conduct of the business or affairs of the ~~ward~~ protected person by the conservator may be paid by the conservator without requiring affidavit or filing.

Sec. 64. Section 633.656, Code 2022, is amended to read as follows:

633.656 How claim entitled.

All claims filed against the estate of the ~~ward~~ protected person shall be entitled in the name of the claimant against the conservator as such, naming the conservator, and in all further proceedings thereon, this title shall be preserved.

Sec. 65. Section 633.660, Code 2022, is amended to read as follows:

633.660 Execution and levy prohibited.

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No execution shall issue upon, nor shall any levy be made against, any property of the estate of a ~~ward~~ protected person under any judgment against the ~~ward~~ protected person or a conservator, but the provisions of this section shall not be so construed as to prevent the enforcement of a mortgage, pledge, or other lien upon property in an appropriate proceeding.

Sec. 66. Section 633.661, Code 2022, is amended to read as follows:

633.661 Claims of conservators.

If the conservator is a creditor of the ward, the conservator shall file the claim as other creditors, and the court shall appoint some competent person as temporary conservator to represent the ~~ward~~ protected person at the hearing on the conservator's claim. The same procedure shall be followed in the case of coconservators where all such conservators are creditors of the ~~ward~~ protected person; but if one of the coconservators is not a creditor of the ~~ward~~ protected person, such disinterested conservator shall represent the ward at the hearing on any claim against the ~~ward~~ protected person by a coconservator.

Sec. 67. Section 633.662, Code 2022, is amended to read as follows:

633.662 Claims not filed.

The conservator may pay any valid claim against the estate of the ~~ward~~ protected person even though such claim has not been filed, but all such payments made by the conservator shall be at the conservator's own peril.

Sec. 68. Section 633.664, Code 2022, is amended to read as follows:

633.664 Liens not affected by failure to file claim.

Nothing in sections 633.654 and 633.658 shall affect or prevent an action or proceeding to enforce any mortgage, pledge, or other lien upon the property of the ~~ward~~ protected person.

Sec. 69. Section 633.665, Code 2022, is amended to read as follows:

633.665 Separate actions and claims.

1. Any action pending against the ~~ward~~ protected person at the time the conservator is appointed shall also be considered a claim filed in the conservatorship if notice of substitution is served on the conservator as defendant and a duplicate of the proof of service of notice of such proceeding is filed in the conservatorship proceeding.

2. A separate action based on a debt or other liability of the ~~ward~~ protected person may be commenced against the conservator in lieu of filing a claim in the conservatorship. Such an action shall be commenced by serving an original notice on the conservator and filing a duplicate of the proof of service of notice of such proceeding in the conservatorship proceeding. Such an action shall also be considered a claim filed in the conservatorship. Such an action may be commenced only in a county where the venue would have been proper if there were no conservatorship and the action had been commenced against the ~~ward~~ protected person.

Sec. 70. Section 633.667, Code 2022, is amended to read as

follows:

633.667 Payment of claims in insolvent conservatorships.

When it appears that the assets in a conservatorship are insufficient to pay in full all the claims against such conservatorship, the conservator shall report such matter to the court, and the court shall, upon hearing, with notice to all persons who have filed claims in the conservatorship, make an order for the pro rata payment of claims giving claimants the same priority, if any, as they would have if the ~~ward~~ protected person were not under conservatorship.

Sec. 71. Section 633.668, Code 2022, is amended to read as follows:

633.668 Conservator may make gifts.

For good cause shown and under order of court, a conservator may make gifts on behalf of the ~~ward~~ protected person out of

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the assets under a conservatorship to persons or religious, educational, scientific, charitable, or other nonprofit organizations to whom or to which such gifts were regularly made prior to the commencement of the conservatorship, or on a showing to the court that such gifts would benefit the ~~ward~~ protected person or the ~~ward's~~ protected person's estate from the standpoint of income, gift, estate or inheritance taxes. The making of gifts out of the assets must not foreseeably impair the ability to provide adequately for the best interests of the ~~ward~~ protected person.

Sec. 72. Section 633.673, Code 2022, is amended to read as follows:

633.673 Court costs in guardianships.

The ~~ward~~ protected person or the ~~ward's~~ protected person's estate shall be charged with the court costs of a ward's guardianship, including the guardian's fees and the fees of the attorney for the guardian. The court may, upon application, enter an order waiving payment of the court costs in indigent cases. However, if the ~~ward~~ protected person or ~~ward's~~ protected person's estate becomes financially capable of paying any waived costs, the costs shall be paid immediately.

Sec. 73. Section 633.676, Code 2022, is amended to read as follows:

633.676 Assets exhausted.

At any time that the assets of the ~~ward's~~ protected person's estate do not exceed the amount of the charges and claims against it, the court may direct the conservator to proceed to terminate the conservatorship.

Sec. 74. Section 633.677, Code 2022, is amended to read as follows:

633.677 Accounting to ~~ward~~ protected person —— notice.

Upon the termination of a conservatorship, the conservator

shall pay the costs of administration and shall render a full and complete accounting to the ~~ward~~ protected person or the ~~ward's~~ protected person's personal representative and to the

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court. Notice of the final report of a conservator shall be served on the ~~ward~~ protected person or the ~~ward's~~ protected person's personal representative, in accordance with section 633.40, unless notice is waived. An order prescribing notice may be made before or after the filing of the final report.

Sec. 75. Section 633.682, Code 2022, is amended to read as follows:

633.682 Discharge of conservator and release of bond.

Upon settlement of the final accounting of a conservator, and upon determining that the property of the ~~ward~~ protected person has been delivered to the person or persons lawfully entitled thereto, the court shall discharge the conservator and exonerate the surety on the conservator's bond.>

S–5112

HOUSE AMENDMENT TO
SENATE FILE 2290

Amend Senate File 2290, as amended, passed, and reprinted by the Senate, as follows:

1. Page 1, line 1, by striking <**15E.371**> and inserting <**159.31**>

2. Page 1, by striking lines 5 and 6 and inserting:

<*a. "Authority"* means the economic development authority.>

3. Page 1, line 8, by striking <authority> and inserting <department>

4. Page 1, line 21, by striking <authority> and inserting <department>

5. Page 1, line 24, by striking <authority> and inserting <department>

6. Page 1, line 25, by striking <authority> and inserting <department>

7. Page 1, line 26, by striking <authority> and inserting <department>

8. Page 1, line 34, by striking <The authority,> and inserting <The department,>

9. Page 1, line 34, by striking <with the department,> and inserting <with the authority,>

10. Page 2, line 16, by striking <The authority,> and inserting <The department,>

11. Page 2, line 16, by striking <with the department,> and inserting <with the authority,>

12. Page 2, line 29, by striking <authority> and inserting <department>

13. Page 2, line 30, by striking <authority> and inserting

<department>
14. Page 2, line 32, by striking <authority> and inserting
<department>
15. Page 2, line 35, by striking <authority> and inserting
<department>
16. Page 2, line 35, by striking <with the department,> and inserting <with the authority,>
17. Page 3, line 16, by striking <authority.> and inserting

Page 2

<department.>
18. Page 3, line 17, by striking <authority> and inserting
<department>
19. Page 3, line 21, by striking <authority> and inserting
<department>
20. Page 3, line 22, by striking <department,> and inserting
<authority,>
21. Title page, by striking lines 3 through 5 and inserting
<administered by the department of agriculture and land stewardship, in consultation with the economic development authority, and requiring the department to study the>

S–5113

HOUSE AMENDMENT TO
SENATE AMENDMENT TO
HOUSE FILE 2160

Amend the Senate amendment, H–8123, to House to File 2160, as passed by the House, as follows:

1. By striking page 1, line 1, through page 5, line 22, and inserting:

<Amend House File 2160, as passed by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. NEW SECTION. **714I.1 Short title.**

This chapter shall be known and may be cited as the *"Fraud in Assisted Reproduction Act"*.

Sec. 2. NEW SECTION. **714I.2 Definitions.**

For purposes of this chapter, unless the context otherwise requires:

1. *"Assisted reproduction"* means a method of causing pregnancy other than sexual intercourse involving medical or scientific intervention.

2. *"Donor"* means an individual who provides gametes intended for use in assisted reproduction, whether or not for consideration.

3. *"Gamete"* means a sperm, an egg, or any part of a sperm or an egg.

4. *"Health care professional"* means a person who is licensed, certified, or otherwise authorized or permitted by

the law of this state to administer health care in the ordinary course of business or in the practice of a profession.

5. *"Health facility"* means a hospital, clinic, sperm bank, laboratory, or other health care institution involved in the assisted reproduction process.

6. *"Human reproductive material"* means a human gamete or a human organism at any stage of development from fertilized ovum to embryo.

7. *"Patient"* means a person who has received or is receiving health services from a health care professional.

8. *"Physician"* means an individual licensed under chapter 148.

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Sec. 3. NEW SECTION. **714I.3 Prohibited practices and acts.**

1. A person shall not engage in a practice or act the person knows or reasonably should have known provides false information to a patient related to an assisted reproduction procedure or treatment including false information relating to any of the following:

a. The human reproductive material used or provided for assisted reproduction.

b. The identity of a donor of human reproductive material used or provided for assisted reproduction including but not limited to the donor's name, birthdate, or address at the time of donation.

c. A donor's medical history including but not limited to an illness of the donor at the time of donation, any past illness of the donor, or the social, genetic, or family history of the donor.

2. A physician or a health facility shall not knowingly or intentionally do any of the following:

a. Use or provide a patient with human reproductive material for assisted reproduction other than that to which the patient expressly consented in writing.

b. Use or provide a patient with human reproductive material for assisted reproduction that is not provided with the donor's consent or in a manner or to an extent other than that to which the donor consented.

3. *a.* A person that violates subsection 1 is guilty of a class "D" felony.

b. A physician or health facility that violates subsection 2 is guilty of a class "C" felony.

4. It is not a defense to a violation of this section that a patient expressly consented in writing to the use of human reproductive material from an anonymous donor.

5. A violation of this section by a physician, health care professional, or health facility is grounds for denial of an application for, denial of renewal of, or revocation of any

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license, permit, certification, or any other form of permission required to practice a profession or establish, conduct, or maintain a facility regulated by the state. A violation of this section by a physician or health care professional constitutes unprofessional conduct.

6. A person may pursue any remedy provided by law against a person that engaged in a prohibited practice or act in violation of this section.

7. Notwithstanding any provision of law to the contrary, an action brought pursuant to this section is not subject to a statute of limitations and may be commenced at any time after the date the procedure resulting in the conception through assisted reproduction in violation of this section was performed.

Sec. 4. Section 147.55, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 7A. Sexual abuse in the fourth degree in violation of section 709.4A.

Sec. 5. Section 692A.102, subsection 1, paragraph c, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (012) Sexual abuse in the fourth degree in violation of section 709.4A.

Sec. 6. NEW SECTION. **709.4A Sexual abuse in the fourth degree —— health care professionals —— civil remedies.**

1. A health care professional commits sexual abuse in the fourth degree when the health care professional implants the health care professional's own human reproductive material through assisted reproduction without the patient's prior knowledge and written consent.

2. Sexual abuse in the fourth degree is an aggravated misdemeanor.

3. A parent-child relationship between a child and a health care professional is not created for any legal purpose upon the birth of a child born as the result of being conceived through the commission of sexual abuse in the fourth degree by a health

Page 4

care professional pursuant to this section.

4. Notwithstanding any provision of law to the contrary, in addition to any other civil remedy provided by law, a patient is entitled to damages in an amount that is the basic support obligation prescribed by the child support guidelines established pursuant to section 598.21B based on the health care professional's monthly adjusted net income.

5. For the purposes of this section, *"assisted reproduction"*, *"gamete"*, *"health care professional"*, *"human reproductive material"*, and *"patient"* mean the same as defined in section 714I.2.

Sec. 7. Section 802.2, Code 2022, is amended to read as

follows:

802.2 Sexual abuse —— first, second, ~~or~~ third, or fourth degree.

1. An information or indictment for sexual abuse in the first, second, ~~or~~ third, or fourth degree committed on or with a person who is under the age of eighteen years may be commenced at any time after the commission of the offense.

2. An information or indictment for any other sexual abuse in the first, second, ~~or~~ third, or fourth degree shall be commenced within ten years after its commission, or if the person against whom the information or indictment is sought is identified through the use of a DNA profile, an information or indictment shall be commenced within three years from the date the person is identified by the person's DNA profile, whichever is later.

3. As used in this section, *"identified"* means a person's legal name is known and the person has been determined to be the source of the DNA.>

2. Title page, line 1, after <reproduction> by inserting <fraud>>

S–5114

Amend House File 604, as passed by the House, as follows:

1. Page 1, line 2, by striking <—— **language developmental milestones**>

2. Page 1, by striking lines 3 through 5 and inserting:

<1. The department of education shall work with the>

3. Page 1, by striking lines 8 through 17 and inserting <program in the department of public health for purposes of coordinating, developing, and disseminating resources for use by parents or guardians, early hearing detection and intervention programs, the state school for the deaf, area education agencies, school districts, and accredited nonpublic schools to inform deaf and hard-of-hearing children's expressive and receptive language acquisition or development.>

4. Page 1, lines 18 and 19, by striking <early language development consultant appointed by the director pursuant to paragraph *"a"*> and inserting <department of education>

5. By striking page 1, line 21, through page 2, line 15, and inserting:

<(1) Coordinating the development and collection of language milestones for each age, from birth through age eight, in American sign language, English, and other languages as needed pursuant to subsection 3, which may include milestone assessments for deaf and hard-of-hearing children.

(2) Coordinating the development and distribution of resources for parents pertaining to language development pursuant to subsection 4.

(3) Coordinating the development and distribution of resources for early interventionists, educators, hospitals, and health care providers pertaining to language development.

(4) Monitoring the need for valid and reliable language assessments and distribution of resources toward language development in American sign language and English.

(5) Coordinating a parent-friendly procedure for outreach and follow-up.

(6) Coordinating the collection of regular language

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milestone assessment data for deaf and hard—of-hearing children.

(7) Summarizing data outcomes for parents, guardians, and partner agencies to use, including the annual report published pursuant to subsection 7.

(8) Working with stakeholders to maintain a valid and reliable two-fold language assessment approach, utilizing both American sign language and English, in selecting milestones, compiling data, employing qualified personnel, and distributing resources.>

6. Page 2, line 16, by striking <*Parent resource.*>

7. Page 3, by striking lines 10 and 11 and inserting:

<3. The department of education, in consultation with the state school>

8. Page 3, by striking line 15 and inserting <assessments that may be used by qualified educators to assess American>

9. Page 3, line 24, by striking <acquisition and> and inserting <acquisition or>

10. By striking page 3, line 28, through page 4, line 3, and inserting:

<*b.* Educator tools or assessments selected under this subsection may be used, in addition to any assessment required by federal law, by the child's individualized family service plan or individualized education program team, as applicable, to track deaf and hard-of-hearing children's progress in improving expressive and receptive language skills, and to establish or modify individualized family service plans or individualized education programs.>

11. Page 4, by striking lines 4 and 5 and inserting:

<4. The department of education shall disseminate the parent resource developed>

12. Page 4, line 10, by striking <invention> and inserting <intervention>

13. By striking page 4, line 18, through page 6, line 17, and inserting:

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<5. *a.* If moneys are appropriated by the general assembly for a fiscal year for the purpose provided in this subsection, the department of education shall develop guidelines for a comprehensive family support mentoring program that meets the language and communication needs of families.

b. The department of education shall work with the early hearing detection and intervention program in the Iowa department of public health, the state school for the deaf, and the area education agencies when developing the guidelines. The department of education, in consultation with the Iowa school for the deaf, shall administer the family support mentoring program for deaf or hard-of-hearing children.

c. With the consent of the parent of the deaf or hard-of-hearing child, the family support mentoring program shall pair families based on the specific need, experience, or want of the parent of the deaf or hard-of-hearing child with another family mentor or deaf or hard-of-hearing adult mentor to provide support.

d. In establishing the family support mentoring program, the department of education may do all of the following:

(1) Hire a family support mentoring coordinator.

(2) Utilize the parent resource created in subsection 2 as well as other resources to provide families with information and guidance on language, communication, social, and emotional development of their child.

(3) Recruit family support mentors to serve the needs of the family support mentoring program. A family support mentor may be any of the following:

(a) A parent who has experience raising a child who is deaf or hard-of-hearing and who has experience supporting the child's communication and language development.

(b) A deaf or hard-of-hearing adult who serves as a deaf or hard-of-hearing role model for the children and their families. Deaf or hard-of-hearing family support mentors may provide parents with an understanding of American sign language

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and English, including instructional philosophies for both, such as bilingual bimodal, listening and spoken language, total communication, and other philosophies, as well as other forms of communication, deaf culture, deaf community, and self-identity.

(4) Train parents of a deaf or hard-of-hearing child to become family support mentors and train deaf or hard-of-hearing adults to become deaf or hard-of-hearing adult family support mentors.

(5) Reach out to parents of children identified through the early hearing detection and intervention program in the Iowa department of public health and share information about the family support mentoring program services available to such parents.

(6) Reach out to families referred by primary care providers, the area education agencies, and from other agencies who provide services to deaf or hard-of-hearing children.

(7) Provide follow-up contact, as necessary, to establish services after initial referral.

e. The department of education shall coordinate family support mentoring activities with the early hearing detection and intervention program in the Iowa department of public health, the state school for the deaf, the area education agencies, and nonprofit organizations that provide family support mentoring to parents with deaf or hard-of-hearing children.

f. The department of education shall adopt rules pursuant to chapter 17A to administer this subsection.>

14. Page 6, line 18, by striking <*Activities —— consistent with federal law.*>

15. Page 6, line 22, by striking <*Annual report.*>

16. Page 6, line 31, by striking <*Definitions.*>

17. By renumbering, redesignating, and correcting internal references as necessary.

KEN ROZENBOOM

S–5115

Amend Senate File 2171 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

STATE CHILD CARE ASSISTANCE PROGRAM ELIGIBILITY

Section 1. Section 237A.13, subsection 1, paragraph d, Code 2022, is amended to read as follows:

d. The child's parent, guardian, or custodian is absent ~~for a limited period of time~~ due to hospitalization, physical illness, or mental illness, or is present but is unable to care for the child ~~for a limited period~~ as verified by a physician.

DIVISION II

CHILD AND FAMILY SERVICES —— FOSTER CARE SERVICE PAYMENTS

Sec. 2. Section 234.1, subsection 2, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

2. *"Child"* means either a person less than eighteen years of age or a person eighteen, nineteen, or twenty years of age who meets all of the following conditions:

a. The person was placed by court order issued pursuant to chapter 232 in foster care or in an institution listed in section 218.1 and either of the following situations apply to the person:

(1) After reaching eighteen years of age, the person has remained continuously and voluntarily under the care of an individual, as defined in section 237.1, licensed to provide foster care pursuant to chapter 237 or in a supervised apartment living arrangement, in this state.

(2) The person aged out of foster care after reaching eighteen years of age and subsequently voluntarily applied for placement with an individual, as defined in section 237.1, licensed to provide foster care pursuant to chapter 237 or for

placement in a supervised apartment living arrangement, in this state.

b. The person has demonstrated a willingness to participate

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in case planning and to complete the responsibilities prescribed in the person's case permanency plan.

c. The department has made an application for the person for adult services upon a determination that it is likely the person will need or be eligible for services or other support from the adult services system.

Sec. 3. Section 234.35, subsection 3, Code 2022, is amended to read as follows:

3. Payment for foster care services provided to a child who is eighteen years of age or older shall be limited to the following:

a. ~~For a child who is eighteen years of age, family~~ Family foster care or ~~independent~~ supervised apartment living arrangements.

b. ~~For a child who is nineteen years of age, independent living arrangements.~~

~~*c.*~~ For a child who is at imminent risk of becoming homeless or failing to graduate from high school or to obtain a general education development diploma, if the services are in the child's best ~~interests~~ interest, funding is available for the services, and an appropriate alternative service is unavailable.

Sec. 4. Section 234.35, subsection 4, Code 2022, is amended by striking the subsection.

Sec. 5. Section 237.15, subsection 2, unnumbered paragraph 1, Code 2022, is amended to read as follows:

"Child receiving foster care" means a child ~~defined in section 234.1~~ who is described by any of the following circumstances:

DIVISION III
ADOPTION

Sec. 6. Section 600.5, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 9A. If the parents of the person to be adopted had their parental rights terminated pursuant to

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chapter 232, the petition shall included the names of any known siblings placed separately from the person to be adopted and either the plan for ongoing contact between the siblings if a court found that continued contact is in the best interest of each sibling or a statement that the court found continued contact between the siblings is not in the best interest of each sibling.

Sec. 7. Section 600.6, Code 2022, is amended by adding the

following new subsection:

NEW SUBSECTION. 2A. If parental rights were terminated pursuant to chapter 232, a copy of any court orders concerning whether ongoing contact between siblings not placed with the person to be adopted is in the best interest of each sibling.

Sec. 8. Section 600.8, subsection 1, paragraph a, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (4) Whether the minor person to be adopted was the subject of a termination of parental rights proceeding pursuant to chapter 232, whether there are siblings not placed with the minor person to be adopted, and whether, if there are siblings, there is an ongoing relationship between the siblings and the minor child to be adopted or a court order finding contact between the siblings is in the best interest of each sibling.

Sec. 9. Section 600.11, subsection 2, paragraph a, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (7) Any siblings of the person to be adopted due to either an ongoing relationship or a court finding that ongoing contact with the person to be adopted is in the best interest of each sibling if the person to be adopted was a minor child when the minor child's parents had their parental rights terminated pursuant to chapter 232 and the person to be adopted and the person's siblings were not placed together.

Sec. 10. Section 600.16A, subsection 2, Code 2022, is amended by adding the following new paragraph:

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NEW PARAGRAPH. *e.* Subject to section 235A.15, the juvenile court or court shall order the opening of the permanent adoption record of the juvenile court or court, the permanent termination of parental rights record under chapter 232, or both, pertaining to an adopted person who is an adult, upon request of the adopted person if the parents of the adopted person had their parental rights terminated pursuant to chapter 232.

DIVISION IV

DEPENDENT ADULT ABUSE INFORMATION REGISTRY —— DISCLOSURE OF INFORMATION

Sec. 11. Section 235B.3, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 8A. If, in the course of assessment, evaluation, or investigation of a report of dependent adult abuse, the department determines that disclosure is necessary for the protection of a dependent adult's resources, the department may disclose the initiation and status of the dependent adult abuse evaluation to the dependent adult's bank, savings association, credit union, broker-dealer as defined in section 502.102, subsection 4, investment advisor as defined in section 502.102, subsection 15, financial advisor, or other

financial institution, or the administrator as defined in section 502.102, subsection 1.

Sec. 12. Section 235B.6, subsection 2, paragraph e, Code 2022, is amended by adding the following new subparagraphs:

NEW SUBPARAGRAPH. (20) To a bank, savings association, credit union, broker-dealer as defined in section 502.102, subsection 4, investment advisor as defined in section 502.102, subsection 15, financial advisor, or other financial institution as deemed necessary by the department to protect the dependent adult's resources.

NEW SUBPARAGRAPH. (21) To the social security administration.

NEW SUBPARAGRAPH. (22) To the administrator as defined in

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section 502.102, subsection 1.

Sec. 13. Section 235B.6, subsection 3, Code 2022, is amended to read as follows:

3. Access to unfounded dependent adult abuse information is authorized only to those persons identified in subsection 2, paragraph *"a"*, paragraph *"b"*, subparagraphs (2), (5), and (6), and paragraph *"e"*, subparagraphs (2), (5), ~~and~~ (10), (20), (21), and (22).>

JEFF EDLER

S–5116

Amend Senate File 2381 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

MEDICAID —— MATERNITY CARE —— DOULA CARE

Section 1. MEDICAID REIMBURSEMENT FOR MATERNITY CARE INCLUDING DOULA CARE. Under both fee-for-service and managed care administration of Medicaid, the department of human services shall adopt rules pursuant to chapter 17A, amend any contract with a managed care organization, and apply for any Medicaid state plan amendment or waiver as may be necessary to provide for maternity care including doula care. For the purposes of this section, "doula" means a trained professional who provides continuous physical, emotional, and informational support to a pregnant person before, during, and after childbirth to improve birth outcomes, prevent stillbirths and infant deaths, and reduce maternal morbidity and mortality.

DIVISION II

MEDICAID EXTENDED POSTPARTUM COVERAGE OPTION —— APPROPRIATION

Sec. 2. MEDICAID EXTENDED POSTPARTUM COVERAGE OPTION. The department of human services shall submit a Medicaid state plan amendment to the centers for Medicare and Medicaid services of the United States department of health and human services for

approval of the option to provide twelve months of continuous postpartum coverage under the Medicaid program to pregnant women enrolled in the Medicaid program in accordance with section 1902(e)(16) of the Social Security Act.

Sec. 3. MEDICAID EXTENDED POSTPARTUM COVERAGE OPTION —— APPROPRIATION. There is appropriated from the general fund of the state to the department of human services for the following fiscal years, the following amounts or so much thereof as is necessary to fund extended postpartum coverage to pregnant women enrolled in the Medicaid program in accordance with this division of this Act:

FY 2022–2023

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..... $ 5,588,660

FY 2023–2024

..... $ 8,878,785>

2. Title page, lines 1 and 2, by striking <by creating the more options for maternal support program and>

3. Title page, line 3, after <Medicaid> by inserting <maternity and>

JANET PETERSEN

S–5117

Amend House File 2147, as passed by the House, as follows:

1. Page 1, by striking lines 1 through 9 and inserting:

<Section 1. ECONOMIC DEVELOPMENT AUTHORITY —— U.S.S. IOWA —— APPROPRIATIONS.

1. There is appropriated from the general fund of the state to the economic development authority for the fiscal year beginning July 1, 2021, and ending June 30, 2022, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For providing a grant to an entity in support of the christening and commissioning of the U.S.S. Iowa (SSN 797):

..... $ 75,000

2. There is appropriated from the veterans license fee fund created in section 35A.11 to the economic development authority for the fiscal year beginning July 1, 2021, and ending June 30, 2022, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For providing a grant to an entity in support of the christening and commissioning of the U.S.S. Iowa (SSN 797) notwithstanding section 35A.11, subsection 1:

..... $ 75,000

3. The economic development authority may use not more than five percent of the moneys appropriated in this section for purposes of administrative costs, marketing, technical assistance, and other program support.

Sec. ___. REVERSION. For purposes of section 8.33, unencumbered or unobligated moneys from an appropriation made in this Act shall not revert but shall remain available for expenditure for the purpose designated until the close of the fiscal year beginning July 1, 2023.>

2. By renumbering as necessary.

COMMITTEE ON APPROPRIATIONS
TIM KRAAYENBRINK, CHAIRPERSON

S–5118

Amend House File 2390, as amended, passed, and reprinted by the House, as follows:

1. Page 1, line 10, by striking <carry out the duties required by> and inserting <carry out duties pursuant to>

JEFF EDLER
MARK COSTELLO

S–5119

Amend Senate File 2174 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 232.2, subsection 9, Code 2022, is amended to read as follows:

9. *"Court appointed special advocate"* means a person duly certified by the child advocacy board created in section 237.16 for participation in the court appointed special advocate program and appointed by the court to ~~represent the interests of a child in any judicial proceeding to which the child is a party or is called as a witness or relating to any dispositional order involving the child resulting from such proceeding~~ carry out the duties required by section 237.24.

Sec. 2. Section 237.15, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4A. *"Fictive kin"* means an adult person who is not a relative of a child but who has an emotionally positive significant relationship with the child or the child's family.

Sec. 3. Section 237.16, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4. The department and the department of inspections and appeals shall jointly develop written protocols detailing the responsibilities of each department with regard to children under the purview of the state board. The protocols shall be reviewed by the departments on an annual basis.

Sec. 4. Section 237.17, Code 2022, is amended to read as follows:

237.17 Foster care registry.

1. The state board shall establish a registry of the placements of all children receiving foster care. The ~~department~~ agency responsible for the placement shall notify the state board of each placement ~~within five working days of the department's notification of the placement~~ in accordance

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with written protocols adopted pursuant to section 237.16, subsection 4. The notification ~~to the state board~~ shall include information identifying the child receiving foster care and placement information for that child.

2. ~~Within thirty days of the placement or two days after the dispositional hearing the~~ The agency responsible for the placement shall submit the case permanency plan and all case permanency plan revisions to ~~the state board~~ a local board in accordance with written protocols adopted pursuant to section 237.16, subsection 4. ~~All subsequent revisions of the case permanency plan shall be submitted when the revisions are developed.~~

Sec. 5. Section 237.18, Code 2022, is amended to read as follows:

237.18 Duties of state board.

The state board shall:

1. Review the activities and actions of local boards and the court appointed special advocate program.

2. Adopt rules pursuant to chapter 17A to:

a. Establish a recordkeeping system for the files of local ~~review~~ boards including individual case reviews.

b. Accumulate data and develop an annual report regarding children ~~in foster care~~ served by the state board. The report shall include:

(1) ~~Personal data~~ Data regarding the total number of days of foster care provided and the characteristics of the children receiving foster care.

(2) The number of placements of children in foster care.

~~(3) The frequency and results of court reviews.~~

c. Evaluate the ~~judicial and administrative~~ data collected ~~on foster care~~ by local boards and court appointed special advocates, and disseminate the data to the governor, ~~the supreme court, the chief judge of each judicial district,~~ the department, ~~and~~ child-placing agencies, and the state court administrator for dissemination to the supreme court and the

Page 3

chief judge of each judicial district.

d. Establish mandatory training programs for members of the state ~~and local review boards including an initial training program and periodic in-service training programs~~ board. Training shall focus on, but not be limited to, the following:

(1) ~~The history, philosophy and role of the juvenile court~~

~~in the child protection system~~ The duties of the state board.

(2) ~~Juvenile court procedures under the juvenile justice act~~ The duties of local boards.

(3) ~~The foster care administrative review process of the department of human services~~ The duties of court appointed special advocates.

(4) ~~The role and procedures of the citizen's foster care review system~~ Applicable child welfare laws and practices that influence the work of local boards and court appointed special advocates.

~~(5) The Adoption Assistance and Child Welfare Act of 1980, Pub. L. No. 96-272.~~

~~(6) The purpose of case permanency plans, and the type of information that will be available in those plans.~~

~~(7) The situations where the goals of either reuniting the child with the child's family or adoption would be appropriate.~~

~~(8) The legal processes that may lead to foster care placement.~~

~~(9) The types and number of children involved in those legal processes.~~

~~(10) The types of foster care placement available, with emphasis on the types and number of facilities available on a regional basis.~~

~~(11) The impact of specific physical or mental conditions of a child on the type of placement most appropriate and the kind of progress that should be expected in those situations.~~

e. Establish a mandatory training program and procedures for ~~the~~ local ~~review board~~ boards consistent with the provisions of section 237.20.

Page 4

~~*f.* Establish grounds and procedures for removal of a local review board member.~~

~~*g.*~~ *f.* Establish procedures and protocols for administering the court appointed special advocate program in accordance with subsection ~~7~~ 6.

3. Assign the cases of children receiving foster care to the appropriate local boards.

~~4. Assist local boards in reviewing cases of children receiving foster care, as provided in section 237.20.~~

~~5.~~ 4. Employ appropriate staff in accordance with available funding. ~~The board shall coordinate with the department of inspections and appeals regarding administrative functions of the board.~~

~~6.~~ 5. ~~In conjunction with the legislative services agency and in consultation with the department of human services, supreme court, and private foster care providers, develop and maintain~~ Maintain an evaluation program regarding citizen foster care review programming. The evaluation program shall be designed to evaluate the effectiveness of citizen reviews in improving case permanency planning and meeting case permanency

planning goals, identify the amount of time children spend in foster care placements, and identify problem issues in the foster care system. The state board shall submit an annual evaluation report to the governor and the general assembly.

~~7.~~ 6. Administer the court appointed special advocate program, including but not limited to performance of all of the following:

a. Establish standards for the program, including but not limited to standards for selection and screening of volunteers, preservice training, ~~ongoing~~ continuing education, and assignment and supervision of volunteers. Identifying information concerning a court appointed special advocate, other than the advocate's name, shall not be considered to be a public record under chapter 22.

b. Implement the court appointed special advocate program ~~in~~

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~~additional areas of the state~~ as deemed necessary to effectuate its purpose including but not limited to employing court appointed special advocate program staff as available funding provides.

c. Promote adherence to the national guidelines for state and local court appointed special advocate programs.

d. Issue an annual report of the court appointed special advocate program for submission to the general assembly, the governor, and the supreme court.

~~*e.* Employ appropriate court appointed special advocate program staff in accordance with available funding. The state board shall coordinate with the department of inspections and appeals the performance of the administrative functions of the state board.~~

~~8.~~ 7. Receive gifts, grants, or donations made for any of the purposes of the state board's programs and disburse and administer the funds received in accordance with the terms of the donor and under the direction of program staff. The funds received shall be used according to any restrictions attached to the funds and any unrestricted funds shall be retained and applied to the applicable program budget for the next succeeding fiscal year.

~~9.~~ 8. Make recommendations to the general assembly, the department, ~~to~~ child-placing agencies, the governor, and the state court administrator for dissemination to the supreme court~~,~~ and the chief judge of each judicial district~~, and to the judicial branch~~. The recommendations shall include but are not limited to identification of systemic problems in the foster care and the juvenile justice systems, specific proposals for improvements that assist the systems in being more cost-effective and better able to protect the best interests of children, and necessary changes relating to the

data collected and the annual report made under subsection 2, paragraph *"b"*.

Sec. 6. Section 237.19, Code 2022, is amended to read as

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follows:

237.19 Local citizen foster care review boards.

1. The state board shall establish local citizen foster care review boards to review cases of children receiving foster care. The department shall discontinue its foster care review process for those children reviewed by local boards as local boards are established and operating. The state board shall select a minimum of five members and ~~two alternate~~ a maximum of seven members to serve on each local board ~~in consultation with the chief judge of each judicial district~~. The actual number of local boards needed and established shall be determined by the state board. The members of each local board shall ~~consist of persons of~~, to the extent possible, reflect the various ~~social, economic,~~ racial~~,~~ and ethnic groups and various occupations of their district. A person employed by the state board, ~~or~~ the department, ~~the department of inspections and appeals,~~ or the district court, or an employee of an agency with which the department contracts for services for children under foster care, a foster parent providing foster care, or a child-placing agency shall not serve on a local board. ~~The state board shall provide the names of the members of the local boards to the department.~~

2. Vacancies on a local board shall be filled in the same manner as original appointments. ~~The members shall not receive per diem but shall receive reimbursement for actual and necessary expenses incurred in their duties as members.~~

3. A local board member shall be required to pass a background check and complete requirements as established by the state board prior to taking an oath of confidentiality to serve on a local board.

4. A local board member shall be required to receive periodic continuing education during each term of service as established by the state board.

Sec. 7. Section 237.20, subsection 1, unnumbered paragraph 1, Code 2022, is amended to read as follows:

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Review the case of each child receiving foster care assigned to ~~the~~ a local board ~~by the state board~~ in accordance with written protocols adopted pursuant to section 237.16, subsection 4, to determine whether satisfactory progress is being made toward the goals of the case permanency plan pursuant to section 237.22. The timing and frequency of a review of each case by a local board shall take into consideration the permanency goals, placement setting, and

frequency of any court reviews of the case.

Sec. 8. Section 237.20, subsection 1, paragraph a, subparagraph (2), Code 2022, is amended to read as follows:

(2) The efforts of the agency responsible for the placement of the child to locate and provide services to the child's biological or adoptive parents ~~of the child~~, legal guardians, or fictive kin providing the majority of a child's daily food, lodging, and support.

Sec. 9. Section 237.20, subsection 1, paragraphs b, c, and d, Code 2022, are amended to read as follows:

b. ~~The review shall include issues pertaining to the case permanency plan and shall not include issues that do not pertain to the case permanency plan.~~ A person notified pursuant to subsection 4 shall either attend the review or submit ~~testimony~~ a statement as requested by the local board or in accordance with a written protocol jointly developed by the state board and the department. ~~Oral testimony~~ Statements may, upon the request of ~~the testifier~~ an interested party or upon motion of the local board, be given in a private setting ~~when to do so would facilitate the presentation of evidence~~. Statements may be made in written, oral, or electronic form. Local board ~~questions~~ reviews shall pertain to the permanency plan and shall not include issues that do not pertain to the permanency plan.

c. A person who gives an oral ~~testimony~~ statement has the right to representation by counsel at the review.

d. An agency or individual providing services to the child

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shall submit ~~testimony~~ statements as requested by the local board. ~~The testimony may be written or oral, or may be a tape-recorded telephone call.~~ Written ~~testimony~~ or recorded statements from other interested parties may also be considered by the board in its review.

Sec. 10. Section 237.20, subsection 2, paragraph a, Code 2022, is amended to read as follows:

a. Submit to the appropriate court and the department within fifteen days after the review under subsection 1, the findings and recommendations of the review. The local board shall ensure that the most recent report is available for a court hearing. The report ~~to the court~~ shall include information regarding the case permanency plan and the progress in attaining the permanency goals. The report shall not include issues that do not pertain to the case permanency plan. The findings and recommendations shall include the proposed date of the next review by the local board. The local board shall notify the persons specified in subsection 4 of the findings and recommendations.

Sec. 11. Section 237.20, subsection 4, paragraph a, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (9) An intervenor.

Sec. 12. Section 237.21, subsection 2, Code 2022, is amended to read as follows:

2. Information and records relating to a child receiving foster care and to the child's family shall be provided to a court appointed special advocate, a local board, or the state board by the department, the department's agent, or a ~~child care~~ child placement agency ~~receiving purchase of service funds from the department~~ contracted by the department upon request by the court appointed special advocate or either board. A court having jurisdiction of a child receiving foster care shall release the information and records the court deems necessary to determine the needs of the child~~, if the information and records are not obtainable elsewhere,~~

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to a local board or ~~the state board~~ court appointed special advocate upon request by ~~either~~ the local board or court appointed special advocate. If confidential information and records are distributed to individual members in advance of a meeting of ~~the state board or~~ a local board, the information and records shall be clearly identified as confidential and the members shall take appropriate steps to prevent unauthorized disclosure. If confidential information and records are distributed to a court appointed special advocate or court appointed special advocate program staff, the information shall be confidential and the court appointed special advocate and court appointed special advocate program staff shall take appropriate steps to prevent unauthorized disclosure.

Sec. 13. Section 237.21, subsection 4, Code 2022, is amended to read as follows:

4. A court appointed special advocate may disclose case-related observations and recommendations to the agency assigned by the court to supervise the case, to the county attorney, or to the child's legal representative or guardian ad litem, or at a local board meeting. Case-related observations and recommendations about a child and the child's parent or about a child and the child's legal guardian may also be disclosed to the parent or guardian to which the observations and recommendations pertain or to such parent or guardian's legal representative.

Sec. 14. Section 237.22, Code 2022, is amended to read as follows:

237.22 Case permanency plan.

The agency responsible for the placement of the child shall create a case permanency plan. ~~The plan shall~~ In addition to requirements stated in section 232.2, subsection 4, the plan shall also include~~,~~ but not be limited to:

~~1. Plans for carrying out the voluntary placement agreement or judicial determination pursuant to which the child entered care.~~

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~~2.~~ 1. Time frames to meet the stated permanency goal and short-term objectives.

~~3. The type and appropriateness of the placement and services to be provided to the child.~~

~~4.~~ 2. The care and services that will be provided to the child, biological parents, the child's fictive kin, and foster parents.

~~5. How the care and services will meet the needs of the child while in care and will facilitate the child's return home or other permanent placement.~~

~~6.~~ 3. The efforts to place the child with a relative or fictive kin.

~~7.~~ 4. The rationale for an out-of-state placement, and the efforts to prevent such placement, if the child has been placed out of state.

Sec. 15. NEW SECTION. **237.24 Court appointed special advocates.**

1. A court appointed special advocate shall receive notice of all depositions, hearings, and trial proceedings in a matter to which the court appointed special advocate is appointed.

2. The duties of a court appointed special advocate with respect to a child, unless otherwise enlarged or circumscribed by a court or juvenile court with jurisdiction over the child after a finding of good cause, shall include all of the following:

a. Conducting in-person interviews with the child every thirty days, if the child's age is appropriate for the interview, and interviewing each parent, guardian, or other person having custody of the child as needed, if authorized by counsel.

b. Visiting the home, residence, or both home and residence of the child and any prospective home or residence of the child, including each time placement is changed.

c. Interviewing any person providing medical, mental health, social, educational, or other services to the child.

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d. Obtaining firsthand knowledge, if possible, of the facts, circumstances, and parties involved in the matter in which the court appointed special advocate is appointed.

e. Attending any depositions, hearings, and trial proceedings in a matter to which the court appointed special advocate is appointed for the purpose of supporting the child and advocating for the child's protection.

f. Assisting the transition committee in the development of a transition plan if the child's case permanency plan calls for the development of a transition plan.

g. (1) Submitting a written report to the juvenile court and to each of the parties identified in section 237.21,

subsection 4, prior to each court hearing unless otherwise ordered by the court.

(2) The report shall include but not be limited to the identified strengths of the child and the child's family, concerns identified by the court appointed special advocate, the court appointed special advocate's recommendations regarding the child's placement, and other recommendations the court appointed special advocate believes are in the child's best interests.

h. Submitting periodic reports to the court or juvenile court with jurisdiction over a child and interested parties detailing the child's situation as long as the child remains under the jurisdiction of the court or juvenile court.

i. Filing other reports as ordered by a court or juvenile court.>

JEFF EDLER
MARK COSTELLO

S–5120

Amend Senate File 2282 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 388.3, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 4. Any person appointed as a board member of a utility board pursuant to this section may be removed from office by the mayor with the unanimous approval of the city council for any of the following reasons:

a. For any reason enumerated in section 66.1A.

b. For habitual nonattendance of board meetings.

NEW SUBSECTION. 5. A removal pursuant to this section shall begin with a written notice, sent by certified mail to the board member stating the grounds for removal, with a copy of the notice filed with the city clerk. The board member shall be entitled to a public hearing within thirty days of the mailing of the notice, on all issues connected with the removal, unless the board member requests a later date. After the passage of thirty days or after the public hearing described provided by this subsection, the city council shall vote on whether to approve the removal of the board member.

NEW SUBSECTION. 6. The provisions of this section do not apply to a city with a population of more than two hundred thousand according to the 2020 federal decennial census.

Sec. 2. EFFECTIVE DATE. This Act, being deemed of immediate importance, takes effect upon enactment.>

JULIAN B. GARRETT

S–5121

HOUSE AMENDMENT TO
SENATE FILE 581

Amend Senate File 581, as amended, passed, and reprinted by the Senate, as follows:

1. Page 1, line 1, by striking <2021> and inserting <2022>
2. Page 1, line 3, by striking <five hundred> and inserting <seven hundred fifty>
3. Page 1, line 6, by striking <2021> and inserting <2022>
4. Page 1, line 9, by striking <2021> and inserting <2022>
5. Page 1, line 17, by striking <two> and inserting <five>
6. Page 1, after line 22 by inserting:

<Sec. ___. Section 483A.8, subsection 3, paragraph c, Code 2022, is amended to read as follows:

c. (1) The commission shall annually limit to six thousand the number of nonresidents allowed to have antlered or any sex deer hunting licenses. Of the six thousand nonresident antlered or any sex deer hunting licenses issued, fifty of the licenses shall be reserved for nonresidents who have made a reservation with a nonprofit organization that hosts guided hunting services for veterans of the armed forces of the United States. A nonresident may only receive one antlered or any sex deer hunting license under this subparagraph. If fewer than fifty nonresidents apply for a reserved license by the application deadline set by the commission by rule, any license not issued shall be made available for purchase at the same time and in the same manner as other excess nonresident antlered or any sex deer hunting licenses. Not more than thirty-five percent of the issued reserved licenses shall be bow season licenses. The nonresident applying for a reserved license shall provide with the license application evidence that the nonresident has a reservation with an eligible hunting guide service that is scheduled during a period in which the license is valid. Of the ~~six thousand~~ remaining nonresident antlered or any sex deer hunting licenses issued, not more than thirty-five percent of the licenses shall be bow season licenses.

(2) After the six thousand antlered or any sex nonresident

Page 2

deer hunting licenses have been issued, all additional licenses shall be issued for antlerless deer only. The commission shall annually determine the number of nonresident antlerless deer only deer hunting licenses that will be available for issuance.>

7. Page 1, line 23, by striking <2021> and inserting <2022>
8. By striking page 1, line 34, through page 2, line 6, and inserting <valid only in the county identified on the license. Bows, shotguns, muzzleloaders, handguns, and, in

counties authorized by the commission, centerfire rifles of a caliber no smaller than .24 may be used during the January antlerless-deer-only season.>

9. Page 2, after line 6 by inserting:

<Sec. ___. Section 483A.24, subsection 19, Code 2022, is amended to read as follows:

19. Upon payment of a fee established by rules adopted pursuant to section 483A.1 for a lifetime trout fishing license, the department shall issue a lifetime trout fishing license to a person who is at least sixty-five years of age or to a person who qualifies for the disabled veteran homestead credit under section 425.15. The department shall prepare an application to be used by a person requesting a lifetime trout fishing license under this subsection.>

10. Page 2, after line 6 by inserting:

<Sec. ___. Section 483A.8C, subsection 1, Code 2022, is amended to read as follows:

1. A nonambulatory person who is a resident may be issued one any sex deer hunting license to hunt deer with a shotgun, muzzleloading rifle, or straight wall cartridge rifle during any established deer hunting season ~~using the method of take authorized by rule for each season being hunted~~. If the tag is filled during one of the seasons, the license will not be valid in subsequent seasons. A person who applies for a license pursuant to this section shall complete a form, as required by rule, that is signed by a physician who verifies that the

Page 3

person is nonambulatory.>

11. Page 2, by striking lines 7 through 28 and inserting:

<Sec. ___. DEER POPULATION STUDY. The department of natural resources shall conduct a study to determine the estimated deer population in each county in this state, which shall include historical population numbers and population trends and be supported by historical records dating back to 1970 if such data is available, and prepare a report. The department shall review and provide scientific data relating to the environmental impact of deer populations, including the impact to crops and nut, fruit, Christmas, and lumber trees. The department shall also review the spread of disease in deer and other cervidae wildlife populations. Additionally, the report shall include information on property loss, medical costs, and fatalities due to deer-vehicle accidents and incidents of airport runway incursions by deer. In conducting the study, the department shall work with relevant representatives from the Iowa state university of science and technology agricultural extension service, the department of transportation, and the insurance division of the department of commerce. Expenses for conducting the study shall be paid from the fish and wildlife protection fund established in section 456A.17 and such payments are considered a proper use of the

funds for purposes of section 456A.27 and Article VII, section 9, of the Constitution of the State of Iowa. The department shall submit the report summarizing the results of the study to the general assembly by October 1, 2024, and every three years thereafter.>

12. Title page, line 1, by striking <deer population management> and inserting <fishing and hunting licenses and permits>

13. By renumbering as necessary.

S–5122

HOUSE AMENDMENT TO
SENATE FILE 2287

Amend Senate File 2287, as amended, passed, and reprinted by the Senate, as follows:

1. Page 4, line 3, by striking <be made by check> and inserting <make use of a traceable payment method including but not limited to payment made by check, voucher, issuance of a prepaid bank, credit, or debit card,>

S–5123

HOUSE AMENDMENT TO
SENATE FILE 333

Amend Senate File 333, as passed by the Senate, as follows:

1. Page 1, line 1, by striking <2021> and inserting <2022>
2. Page 1, line 9, by striking <2021> and inserting <2022>
3. Page 1, line 17, by striking <2021> and inserting <2022>
4. Page 2, line 26, by striking <2021> and inserting <2022>
5. Page 5, line 20, by striking <2021> and inserting <2022>
6. Page 5, line 34, by striking <2021> and inserting <2022>
7. Page 6, line 2, by striking <1.> and inserting <1.>
8. Page 6, lines 20 and 21, by striking <to a municipality pursuant to a written contract>
9. Page 6, line 23, by striking <2021> and inserting <2022>
10. Page 6, line 24, by striking <a two-hundred-watt> and inserting <an>
11. Page 6, by striking lines 29 through 31 and inserting <is operated in response to an emergency call, an incident dangerous to the public, an official training exercise, in a parade or designated public service event, for maintenance or demonstration purposes, or in>
12. Page 7, after line 1 by inserting:

<~~2.~~ 7. A towing or recovery vehicle, unless owned by the state or a municipality, as defined in section 670.1, shall not be equipped with a siren.>

13. Page 7, line 2, by striking <7.> and inserting <8.>
14. Page 7, line 12, by striking <2021> and inserting <2022>
15. Page 8, line 3, by striking <2021> and inserting <2022>

S–5124

HOUSE AMENDMENT TO
SENATE FILE 2374

Amend Senate File 2374, as amended, passed, and reprinted by the Senate, as follows:

1. Page 67, by striking line 20 and inserting <special class "C", ~~or~~ class "D" ~~liquor control~~, or>

2. Page 68, by striking line 14 and inserting <"C", special class "C", ~~or~~ class "D" ~~liquor control,~~>

3. Page 68, line 31, by striking <~~special class "C",~~> and inserting <special class "C">

4. Page 68, line 32, by striking <class "E",>

5. Page 70, line 7, by striking <~~special class "C",~~> and inserting <special class "C",>

6. Page 70, line 8, by striking <class "E",>

7. Page 70, line 21, by striking <~~special class "C",~~> and inserting <special class "C",>

8. Page 70, line 22, by striking <class "E",>

9. Page 71, after line 18 by inserting:

<DIVISION ___
RESTAURANT FOOD DELIVERY

Sec. ___. NEW SECTION. **137G.1 Definitions.**

As used in this chapter, unless the context otherwise requires:

1. *"Consent"* means a mutual acknowledgment by a restaurant and a food delivery platform, which may be obtained electronically.

2. *"Food delivery platform"* or *"platform"* means a business that acts as a third-party intermediary by taking and arranging for the delivery or pickup of orders from multiple restaurants for consumers, not including delivery or pickup orders placed directly with, and fulfilled by, a restaurant. *"Food delivery platform"* does not include websites, mobile applications, or other electronic services that do not post restaurant menus, logos, or pricing information on the platform.

3. *"Likeness"* means a mark or trade name.

4. *"Mark"* means a trademark or service mark, regardless of whether the trademark or service mark is actually registered

with the state or other entity.

5. *"Restaurant"* means a business in the state that operates its own permanent food service facilities with commercial cooking equipment on its premises and prepares and offers to sell multiple entrees for consumption on or off the premises.

6. *"Trade name"* means a name used by a person or entity to identify a person or entity's vocation.

Sec. ___. NEW SECTION. **137G.2 Restaurant and food delivery platform —— requirements —— penalties.**

1. A food delivery platform shall be prohibited from all of the following:

a. Using a restaurant's likeness without the consent of the restaurant owner or the owner's designee in a manner that could be reasonably interpreted to falsely suggest sponsorship or endorsement by the restaurant.

b. Taking and arranging for the delivery or pickup of an order from a restaurant without the consent of the restaurant owner or the owner's designee.

c. Intentionally inflating or altering a restaurant's pricing without the consent of the restaurant owner or the owner's designee, except that a food delivery platform may charge additional fees to the consumer if the fees are noted separately to the consumer.

d. Attempting to charge a restaurant, or expecting the restaurant to pay or absorb any fee, commission, or charge without the consent of the restaurant owner or the owner's designee.

2. A food delivery platform shall do all of the following:

a. Clearly provide to the consumer a mechanism to express concerns regarding an order directly to the food delivery platform.

b. Remove a restaurant from the food delivery platform's services within ten days of receiving the restaurant's request for removal unless an agreement between the food delivery platform and the restaurant states otherwise.

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3. An agreement between a food delivery platform and a restaurant to take and arrange for the delivery or pickup of orders shall include all of the following:

a. Authorization for the food delivery platform to take and arrange for the delivery and pickup of orders from the restaurant.

b. Clear identification of any fee, commission, or charge that the restaurant will be required to pay or absorb.

4. An agreement between a food delivery platform and a restaurant to take and arrange for the delivery or pickup of orders shall not include provisions, clauses, or covenants that require a restaurant to indemnify a food delivery platform, or any employee, independent contractor, or agent of the food delivery platform, for any damages or harm caused by the actions or omissions of the food delivery platform or any employee, independent contractor, or agent of the food delivery platform.

5. *a.* A provision of an agreement between a food delivery platform and a restaurant, or the obtaining of consent, that is contrary to this chapter is void and unenforceable.

b. An aggrieved restaurant or the attorney general may seek judicial enforcement of the requirements of this chapter in an action brought against a food delivery platform in the county

in which the violation occurred. The following civil penalties shall be imposed for a violation of this chapter:

(1) A one thousand dollar penalty for a first violation.

(2) A two thousand five hundred dollar penalty for a second violation.

(3) A ten thousand dollar penalty for a third and subsequent violation.

6. *a.* The attorney general or a restaurant may, in addition to penalties imposed pursuant to subsection 5, bring an action to enjoin a violation of this chapter. If the court finds a violation of this chapter, the court shall issue an injunction against a food delivery platform and may require the platform

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to pay to the injured restaurant all profits derived from, or damages resulting from, the wrongful acts and order that the wrongful acts be terminated.

b. If the court finds that the food delivery platform committed a wrongful act in bad faith in violation of this chapter by not entering into an agreement or obtaining consent, the court, in the court's discretion, shall:

(1) Enter a judgment in an amount not to exceed three times the amount of profits and damages.

(2) Award reasonable attorney's fees to the restaurant.

Sec. ___. NEW SECTION. **137G.3 Food safety —— liability.**

1. Orders delivered through a food delivery platform shall be transported in a manner that meets all of the following requirements:

a. The order shall be maintained at a holding temperature necessary to prevent spoilage.

b. All bags or containers in which orders are being transported or delivered from a restaurant to a customer shall be closed or sealed by the restaurant with a tamper-resistant method.

c. The individual delivering orders shall not have any passengers, including animals or children when orders for delivery are being transported in the vehicle, except for one adult passenger not engaging in payment for ride-share services.

d. Smoking or vaping in the vehicle while orders are in the vehicle shall be prohibited.

2. A food delivery platform transporting orders shall be liable for any harm or injury caused by a failure by the food delivery platform to meet the requirements of this chapter.

Sec. ___. APPLICABILITY. This division of this Act applies to agreements entered into between a restaurant and a food delivery platform on or after the effective date of this Act.>

10. Title page, line 1, after <Act> by inserting <concerning the regulation of food and beverages,>

Page 5

11. Title page, line 1, by striking <licensing,> and inserting <delivery of restaurant food,>
12. Title page, line 2, after <fees> by inserting <and civil penalties>
13. Title page, line 2, after <date> by inserting <and applicability>
14. By renumbering as necessary.

S–5125

HOUSE AMENDMENT TO
SENATE FILE 2376

Amend Senate File 2376, as amended, passed, and reprinted by the Senate, as follows:
1. Page 3, after line 6 by inserting:
<Sec. ___. PERMITS —— COUNTY AUTHORIZATION AND INDICATION TO DEPARTMENT OF TRANSPORTATION. On or before July 1, 2025, every county shall authorize vehicles issued a permit under section 321E.8, subsection 1A, as enacted in this Act, to operate on certain secondary roads and indicate to the department of transportation in writing, including by means of electronic communication, those secondary roads for which a permit under section 321E.8, subsection 1A, as enacted in this Act, is not valid, as described in section 321E.3, as amended in this Act.>
2. By renumbering as necessary.

S–5126

HOUSE AMENDMENT TO
SENATE FILE 2297

Amend Senate File 2297, as passed by the Senate, as follows:
1. Page 1, after line 6 by inserting:
<Sec. ___. Section 602.2103, Code 2022, is amended to read as follows:
602.2103 Operation of commission.
A quorum of the commission is four members. Only those commission members that are present at commission meetings or hearings may vote. An application by the commission to the supreme court to retire, discipline, or remove a judicial officer, or discipline or remove an employee of the judicial branch, or an action by the commission which affects the final disposition of a complaint, requires the affirmative vote of at least four commission members. Notwithstanding chapter 21 and chapter 22, all records, papers, proceedings, meetings, and hearings of the commission are confidential, but if the commission applies to the supreme court to retire, discipline, or remove a judicial officer, or to discipline or remove an

employee of the judicial branch, the application and all of the records and papers in that proceeding are public documents. If an investigation by any standing committee of the general assembly is undertaken pursuant to section 2.15, subsection 1, paragraph *"b"*, related to a charge that was brought before the commission, the standing committee shall have access to confidential information held by the commission, including all documents and actions taken regarding the issue under investigation by the standing committee.>

2. Title page, line 1, before <jury> by inserting <confidential records of the commission on judicial qualifications by standing committees of the general assembly, and>

3. By renumbering as necessary.

S–5127

HOUSE AMENDMENT TO
SENATE FILE 2378

Amend Senate File 2378, as amended, passed, and reprinted by the Senate, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 22.7, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 75. Identifying information submitted to the department of revenue from a distributor pursuant to section 455C.2, subsection 2, paragraph *"b"*. However, this subsection shall not be construed to prohibit the dissemination of aggregated information that does not identify a specific distributor.

Sec. 2. Section 455C.1, subsections 1 and 6, Code 2022, are amended to read as follows:

1. *"Beverage"* means wine as defined in section 123.3, subsection 54, alcoholic liquor as defined in section 123.3, subsection 5, beer as defined in section 123.3, subsection 7, high alcoholic content beer as defined in section 123.3, subsection 22, canned cocktail as defined in section 123.3, subsection 11, mineral water, soda water, and similar carbonated soft drinks in liquid form and intended for human consumption.

6. *"Dealer agent"* means a person who solicits or picks up empty beverage containers ~~from a dealer~~ for the purpose of returning the empty beverage containers to a distributor or manufacturer.

Sec. 3. Section 455C.1, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 11A. *"Mobile redemption system"* means a redemption center location at which a consumer may return empty beverage containers on which a refund value has been paid that uses innovative technology to process empty beverage containers

and return the amount of the refund value to consumers.

NEW SUBSECTION. 12A. *"Participating dealer"* means a dealer who accepts the return of empty beverage containers from a

Page 2

consumer.

Sec. 4. Section 455C.2, Code 2022, is amended to read as follows:

455C.2 Refund values.

1. A refund value of ~~not less than~~ five cents shall be paid by the consumer on each beverage container sold in this state by a dealer for consumption off the premises. Upon return of the empty beverage container upon which a refund value has been paid to ~~the~~ a participating dealer or ~~person operating a~~ redemption center and acceptance of the empty beverage container by the participating dealer or ~~person operating a~~ redemption center, the participating dealer or ~~person operating a~~ redemption center shall return the amount of the refund value to the consumer within a reasonable time not to exceed ten days.

2. *a.* In addition to the refund value provided in subsection 1~~of this section, a dealer, or person operating a redemption center who redeems empty beverage containers or a dealer agent shall be reimbursed by~~ the distributor required to accept the empty beverage containers under section 455C.3 shall provide reimbursement in an amount ~~which~~ that is one cent per container for containers accepted from a dealer agent and three cents per container for containers accepted from a participating dealer or redemption center. A dealer, dealer agent, or ~~person operating a~~ redemption center may compact empty metal beverage containers with the approval of the distributor required to accept the containers.

b. A distributor who pays a handling fee for beverage containers that used to contain beer, including high-alcoholic content beer, may claim a refund of the barrel tax established in section 123.136 paid by the distributor in the amount of one cent for each such beverage container accepted. The department of revenue shall prescribe forms for a distributor to use to claim a refund under this paragraph. Identifying information collected by the department of revenue pursuant to this

Page 3

paragraph that can be used to identify a specific distributor shall be considered confidential information pursuant to section 22.7, subsection 75.

Sec. 5. Section 455C.3, subsections 1, 2, and 4, Code 2022, are amended to read as follows:

1. A participating dealer shall not refuse to accept from a consumer any empty beverage container of the kind, size, and brand sold by the participating dealer, or refuse to pay to the

consumer the refund value of a beverage container as provided under section 455C.2.

2. A distributor shall accept and pick up from a participating dealer served by the distributor or a redemption center for a dealer served by the distributor at least weekly, or when the distributor delivers the beverage product if deliveries are less frequent than weekly, any empty beverage container of the kind, size, and brand sold by the distributor, and shall pay to the participating dealer or ~~person operating a~~ redemption center the refund value of a beverage container and the reimbursement as provided under section 455C.2 within one week following pickup of the containers or when the participating dealer ~~or redemption center~~ normally pays the distributor for the deposit on beverage products purchased from the distributor if less frequent than weekly. A distributor or employee or agent of a distributor is not in violation of this subsection if a redemption center is closed when the distributor attempts to make ~~a regular delivery or~~ a regular pickup of empty beverage containers. This subsection does not apply to a distributor selling alcoholic liquor to the alcoholic beverages division of the department of commerce.

4. A distributor shall accept from a dealer agent any empty beverage container of the kind, size, and brand sold by the distributor and ~~which~~ that was picked up by the dealer agent ~~from a dealer~~ within the geographic territory served by the distributor and the distributor shall pay the dealer agent the refund value of the empty beverage container and the

Page 4

reimbursement as provided in section 455C.2.

Sec. 6. Section 455C.4, Code 2022, is amended to read as follows:

455C.4 Refusal to accept containers.

1. Except as provided in section 455C.5, subsection 3, a dealer, ~~a person operating~~ a redemption center, a distributor, or a manufacturer may refuse to accept any empty beverage container ~~which~~ that does not have stated on it a refund value as provided under section 455C.2.

2. *a.* A dealer may refuse to accept and to pay the refund value of any empty beverage container if ~~the place of business of the dealer and the kind and brand of empty beverage containers are included in an order of the department approving a redemption center under section 455C.6~~ any of the following apply:

(1) The dealer holds a food establishment license under chapter 137F to prepare or serve food, has a certified food protection manager as required by the 2017 United States food and drug administration food code and supplement, and sells time/temperature control for safety food as defined in section 137F.2.

(2) The dealer has entered an agreement with an approved

redemption center for the operation of a mobile redemption system and all of the following apply:

(a) The dealer provides adequate space, utilities, and internet connection to operate the mobile redemption system.

(b) The agreement does not require additional payment to the dealer or the mobile redemption system.

(3) The dealer's place of business is in a county with a population of more than thirty thousand and within ten miles of an approved redemption center or if the dealer's place of business is in a county with a population of thirty thousand or fewer and within fifteen miles of an approved redemption center.

b. A dealer who refuses to accept and to pay the refund

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value on any empty beverage container pursuant to this subsection shall conspicuously display on the front door of the dealer's place of business a notice that the dealer does not accept empty beverage containers. The notice shall also provide the location of the nearest approved redemption center to the dealer's place of business. After the department has made available an electronic method for locating approved redemption centers pursuant to paragraph *"c"*, a dealer may direct consumers to such electronic method instead of providing the location of the nearest approved redemption center on the notice.

c. The department shall make available to the public an electronic method of locating approved redemption centers.

d. A dealer who provides space for a mobile redemption system pursuant to paragraph *"a"*, subparagraph (2), shall not be considered to be in violation of any county or city ordinance that would otherwise limit the ability of the dealer to provide such space as long as the mobile redemption system operates in a location that is not zoned primarily for residential purposes.

~~3. A dealer or a distributor may refuse to accept and to pay the refund value of an empty wine or alcoholic liquor container which is marked to indicate that it was sold by a state liquor store. The alcoholic beverages division shall not reimburse a dealer or a distributor the refund value on an empty wine or alcoholic liquor container which is marked to indicate that the container was sold by a state liquor store.~~

~~4.~~ 3. A class "E" liquor control licensee may refuse to accept and to pay the refund value on an empty alcoholic liquor container from a participating dealer or a redemption center or from a person acting on behalf of or who has received empty alcoholic liquor containers from a participating dealer or a redemption center.

~~5.~~ 4. A manufacturer or distributor may refuse to accept and to pay the refund value and reimbursement as provided in

Page 6

section 455C.2 on any empty beverage container that was picked up by a dealer agent ~~from a dealer~~ outside the geographic territory served by the manufacturer or distributor.

Sec. 7. Section 455C.5, subsection 1, Code 2022, is amended to read as follows:

1. *a.* Each beverage container sold or offered for sale in this state by a dealer shall clearly indicate the refund value of the container by embossing or by a stamp, label, or other method securely affixed to the container~~, the refund value of the container~~. The department shall specify, by rule, the minimum size of the refund value indication on the beverage containers.

b. The department of revenue shall require the registration of the universal product code for each beverage container using a method of registration determined by the department of revenue.

Sec. 8. Section 455C.6, subsection 1, Code 2022, is amended to read as follows:

1. To facilitate the return of empty beverage containers and to serve dealers of beverages, any person may establish a redemption center, subject to the approval of the department, at which consumers may return empty beverage containers and receive payment of the refund value of such beverage containers. A participating dealer may act as a redemption center for purposes of this chapter.

Sec. 9. Section 455C.12, subsections 2 and 3, Code 2022, are amended to read as follows:

2. A distributor who collects or attempts to collect a refund value on an empty beverage container when the distributor has paid the refund value on the container to a participating dealer, redemption center, or consumer is guilty of a fraudulent practice.

3. Any person who does any of the following acts is guilty of a fraudulent practice:

a. Collects or attempts to collect the refund value on the

Page 7

container a second time, with the knowledge that the refund value has once been paid by the distributor to a participating dealer, redemption center, or consumer.

b. Manufactures, sells, possesses, or applies a false or counterfeit label or indication ~~which~~ that shows or purports to show a refund value for a beverage container, with intent to use the false or counterfeit label or indication.

c. Collects or attempts to collect a refund value on a container with the use of a false or counterfeit label or indication showing a refund value, knowing the label or indication to be false or counterfeit.

Sec. 10. Section 455C.12, Code 2022, is amended by adding

the following new subsections:

NEW SUBSECTION. 6. A person who knowingly attempts to redeem a beverage container that is not properly marked as required by section 455C.5, subsection 1, shall be subject to a civil penalty not to exceed ten dollars per improperly marked beverage container, but not to exceed five thousand dollars total per attempted transaction.

NEW SUBSECTION. 7. Except as provided in subsection 6, a person who violates any provision of this chapter shall be subject to a civil penalty of two thousand dollars per violation, which shall be assessed and collected in the same manner as provided in section 455B.109. Any civil penalty collected under this chapter shall be deposited in the bottle bill fund established in section 455C.12D.

Sec. 11. NEW SECTION. **455C.12A Administrative enforcement —— compliance orders.**

The director may issue any order necessary to secure compliance with or prevent a violation of the provisions of this chapter or any rule adopted or permit or order issued pursuant to this chapter. The person to whom such compliance order is issued may cause to be commenced a contested case within the meaning of chapter 17A by filing within thirty days a notice of appeal to the commission. On appeal, the

Page 8

commission may affirm, modify, or vacate the order of the director.

Sec. 12. NEW SECTION. **455C.12B Judicial review.**

Judicial review of any order or other action of the commission or director may be sought in accordance with the terms of chapter 17A. Notwithstanding the terms of chapter 17A, petitions for judicial review may be filed in the district court of the county in which the alleged offense was committed.

Sec. 13. NEW SECTION. **455C.12C Civil actions for compliance —— penalties.**

1. The attorney general, on request of the department, shall institute any legal proceedings necessary to obtain compliance with an order of the commission or the director, including proceedings for a temporary injunction, or prosecuting any person for a violation of an order of the commission or the director, the provisions of this chapter, or any rules adopted or permit or order issued pursuant to this chapter.

2. Any person who violates any order issued pursuant to section 455C.12A shall be subject to a civil penalty not to exceed two thousand dollars for each day of such violation.

Sec. 14. NEW SECTION. **455C.12D Bottle bill fund.**

A bottle bill fund is established in the state treasury under the control of the department. The fund shall consist of moneys deposited in the fund pursuant to section 455C.12, subsection 7, and any other moneys appropriated to or deposited in the fund. Moneys in the fund are appropriated to the

department for purposes of administering and enforcing this chapter, including reimbursing the attorney general for costs incurred by the attorney general in enforcing this chapter. Notwithstanding section 8.33, moneys in the fund that remain unencumbered or unobligated at the close of a fiscal year shall not revert but shall remain available for expenditure for the purposes designated. Notwithstanding section 12C.7, subsection 2, interest or earnings on moneys in the fund shall be credited to the fund.

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Sec. 15. Section 455C.13, Code 2022, is amended to read as follows:

455C.13 ~~Distributors'~~ Collection and disposal agreements authorized.

1. A distributor, dealer, or redemption center may enter into a contract or agreement with any other distributor, manufacturer, or person for the purpose of collecting or ~~paying the refund value on, or~~ disposing of~~,~~ beverage containers as provided in this chapter.

2. For purposes of this chapter, any contracts entered into pursuant to this section for the collection or disposal of empty beverage containers shall not be deemed to interfere with the refund value pursuant to section 455C.2.

Sec. 16. Section 455C.16, Code 2022, is amended to read as follows:

455C.16 Beverage containers —— disposal at sanitary landfill prohibited.

~~Beginning July 1, 1990, the~~ The final disposal of beverage containers ~~by a dealer, distributor, or manufacturer, or person operating a redemption center, in a sanitary landfill, is prohibited. Beginning September 1, 1992~~, including the final disposal of beverage containers that used to contain alcoholic liquor as defined in section 123.3, subsection 5, by a participating dealer, distributor, ~~or~~ manufacturer, or ~~person operating a~~ redemption center in a sanitary landfill~~,~~ is prohibited.

Sec. 17. NEW SECTION. **455C.18 Unclaimed refund value and handling fees.**

Any amount of refund value or handling fees possessed by a distributor after the distributor has made payments required pursuant to this chapter shall be considered the property of the distributor.

Sec. 18. LEGISLATIVE FISCAL COMMITTEE REVIEW.

1. The legislative fiscal committee established in section 2.45 shall hold a meeting during the legislative interim

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immediately preceding the 2026 regular legislative session. During the meeting, the committee shall review the enforcement

of chapter 455C by the department of natural resources, including the collection of civil penalties, the report submitted by the attorney general pursuant to subsection 2, whether and how many redemption centers have been approved by the department, the adequacy of the reimbursement amount under section 455C.2, and any other information the committee deems important. The committee shall submit a report of its findings and recommendations to the general assembly no later than January 31, 2026.

2. The attorney general shall submit a report to the general assembly prior to the legislative fiscal committee's meeting under subsection 1. The report shall detail any legal proceedings arising under chapter 455C since January 1, 2023.

Sec. 19. REFUSAL TO ACCEPT BEVERAGE CONTAINERS.

1. A dealer may refuse to accept beverage containers before January 1, 2023, if any of the following apply:

a. The dealer has entered an agreement with an approved redemption center for the operation of a mobile redemption system and all of the following apply:

(1) The dealer provides adequate space, utilities, and internet connection to operate the mobile redemption system.

(2) The agreement does not require additional payment to the dealer or the mobile redemption system.

b. The dealer's place of business is in a county with a population of more than thirty thousand and within ten miles of an approved redemption center or if the dealer's place of business is in a county with a population of thirty thousand or fewer and within fifteen miles of an approved redemption center.

2. A dealer who refuses to accept beverage containers pursuant to this section shall conspicuously display on the front door of the dealer's place of business a notice that the dealer does not accept empty beverage containers. The

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notice shall also provide the location of the nearest approved redemption center to the dealer's place of business.

Sec. 20. EFFECTIVE DATE.

1. Except as provided in subsections 2 or 3, this Act takes effect January 1, 2023.

2. The section of this Act amending section 455C.5, subsection 1, takes effect November 15, 2023.

3. The section of this Act allowing a dealer to refuse to accept beverage containers before January 1, 2023, being deemed of immediate importance, takes effect upon enactment.>

2. Title page, by striking lines 1 through 4 and inserting <An Act relating to beverage containers control provisions, including handling fees, refund value, applicability to certain beverages, and acceptance of beverage containers, providing penalties, and including effective date provisions.>

S–5128

Amend House File 2130, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 321.234A, subsection 1, paragraph f, Code 2022, is amended to read as follows:

f. The all-terrain vehicle is operated on a ~~county roadway~~ primary road in accordance with section 321I.10, subsection 1A, a secondary road in accordance with section 321I.10, subsection 2, or a city street in accordance with section 321I.10, subsection 3.

Sec. 2. Section 321.234A, subsection 2, Code 2022, is amended to read as follows:

2. A person operating an all-terrain vehicle on a highway shall have a valid driver's license and ~~the vehicle shall be operated~~ operate the vehicle at speeds of thirty-five miles per hour or less. In addition, a person operating an all-terrain vehicle on a highway pursuant to subsection 1, paragraphs *"b"* through *"g"*, shall be at least eighteen years of age and have financial liability coverage in effect for the vehicle and carry proof of such financial liability coverage in accordance with section 321.20B.

Sec. 3. Section 321.234A, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 2A. As provided in section 321.1, an all-terrain vehicle is a motor vehicle for purposes of this chapter. Therefore, an all-terrain vehicle operated on a highway shall be equipped with the parts, lamps, and other equipment in proper condition and adjustment as required under this chapter for motor vehicles, including but not limited to the parts, lamps, and equipment required under sections 321.386, 321.387, 321.404, 321.432, and 321.437.

Sec. 4. Section 321.384, subsection 1, Code 2022, is amended to read as follows:

1. Every motor vehicle upon a highway within the state,

Page 2

at any time from sunset to sunrise, and at such other times when conditions such as fog, snow, sleet, or rain provide insufficient lighting to render clearly discernible persons and vehicles on the highway at a distance of five hundred feet ahead, shall display lighted headlamps as provided in section 321.415, subject to exceptions with respect to parked vehicles as provided in this chapter. However, an all-terrain vehicle shall display lighted headlamps as provided in section 321.415 at all times while the vehicle is operated on a highway.

Sec. 5. Section 321.385, Code 2022, is amended to read as follows:

321.385 Headlamps on motor vehicles.

Every motor vehicle other than a motorcycle, ~~or~~ motorized bicycle, or all-terrain vehicle shall be equipped with at least two headlamps with at least one on each side of the front of the motor vehicle, which headlamps shall comply with the requirements and limitations set forth in this chapter.

Sec. 6. Section 321.386, Code 2022, is amended to read as follows:

321.386 Headlamps on motorcycles, ~~and~~ motorized bicycles, and all-terrain vehicles.

Every motorcycle, ~~and~~ motorized bicycle, and all-terrain vehicle shall be equipped with at least one and not more than two headlamps which shall comply with the requirements and limitations of this chapter.

Sec. 7. Section 321I.10, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 1A. A registered all-terrain vehicle or off-road utility vehicle may be operated on an undivided two-lane primary road that is not part of the interstate road system over the most direct and accessible route between any of the following locations:

a. An all-terrain vehicle park or trail.

b. A secondary road on which such vehicles are authorized to operate under subsection 2.

Page 3

c. A city street on which such vehicles are authorized to operate under subsection 3.

d. The vehicle operator's residence.

Sec. 8. Section 321I.10, subsections 2 and 3, Code 2022, are amended to read as follows:

2. *a.* A registered all-terrain vehicle or off-road utility vehicle may be operated on any of the ~~roadways of that portion of county highways designated by the county board of supervisors for such use during a specified period~~ following secondary roads:

(1) An unpaved secondary road.

(2) A paved, undivided two-lane secondary road over the most direct and accessible route between any of the following locations:

(a) An all-terrain vehicle park or trail.

(b) Another secondary road on which such vehicles are authorized to operate under this paragraph.

(c) A city street on which such vehicles are authorized to operate under subsection 3.

(d) The vehicle operator's residence.

(3) A paved, undivided secondary road or segment thereof, if authorized by the county board of supervisors. The ~~county~~ board ~~of supervisors~~ shall evaluate the traffic conditions on all ~~county highways~~ such secondary roads under its jurisdiction and designate roadways on which all-terrain vehicles or off-road utility vehicles may be operated ~~for the specified~~

~~period~~ without unduly interfering with or constituting an undue hazard to conventional motor vehicle traffic. In designating such roadways, the board may authorize all-terrain vehicles and off-road utility vehicles to stop at service stations or convenience stores along a designated roadway.

b. Notwithstanding paragraph *"a"*, a county may prohibit by ordinance the operation of all-terrain vehicles and off-road utility vehicles on a secondary road or segment thereof under its jurisdiction pursuant to an agreement with a local

Page 4

all-terrain vehicle or off-road utility vehicle club or organization. Such an agreement shall be in writing and shall be valid for not more than five years unless renewed. Such an agreement may be renewed any number of times, with each renewal valid for not more than five years. For purposes of this paragraph, *"local all-terrain vehicle or off-road utility vehicle club or organization"* means a group that represents at least seven residents of the county each of whom own a registered all-terrain vehicle or off-road utility vehicle.

3. ~~Cities~~ A city may regulate the operation of registered all-terrain vehicles and off-road utility vehicles and may designate streets under the jurisdiction of ~~cities~~ the city within ~~their respective~~ its corporate limits, and two-lane primary and secondary road extensions in the city, which may be used for the operation of ~~registered all-terrain vehicles or registered off-road utility~~ such vehicles. In designating such streets, the city may authorize all-terrain vehicles and off-road utility vehicles to stop at service stations or convenience stores along a designated street. However, a city shall not charge a fee to operate a registered all-terrain vehicle or off-road utility vehicle within the city.

Sec. 9. Section 321I.10, subsection 5, unnumbered paragraph 1, Code 2022, is amended to read as follows:

An all-terrain vehicle or off-road utility vehicle may make a direct crossing of a highway that is not part of the interstate road system provided all of the following occur:

Sec. 10. Section 321I.10, subsection 5, paragraph e, Code 2022, is amended to read as follows:

e. The crossing is made from a street, roadway, or highway ~~designated as an all-terrain vehicle trail by a state agency, county, or city~~ on which the all-terrain vehicle or off-road utility vehicle is authorized to operate to a street, roadway, or highway ~~designated as an all-terrain vehicle trail by a state agency, county, or city~~ on which such vehicle is authorized to operate.>

CARRIE KOELKER
WAYLON BROWN

S–5129

Amend House File 2573, as passed by the House, as follows:

1. Page 1, by striking lines 1 through 28 and inserting:

<Section 1. Section 13.2, subsection 1, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *p.* Submit a report by January 15 of each year to the co-chairpersons and ranking members of the joint appropriations subcommittee on the justice system detailing any moneys paid to the state as a result of a national settlement of litigation with entities that manufactured, marketed, sold, distributed, dispensed, or promoted opioids. The report shall include the total amount of moneys received each year from the settlement of litigation, the current balance of any funds maintained for the receipt of opioid settlement moneys, and how any moneys received were spent during the prior report period.

Sec. ___. Section 135.190, subsection 1, paragraph d, Code 2022, is amended to read as follows:

d. "Person in a position to assist" means a family member, friend, caregiver, health care provider, employee of a substance abuse treatment facility, school employee, or other person who may be in a place to render aid to a person at risk of experiencing an opioid-related overdose.

Sec. ___. Section 135.190, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4A. A school district may obtain a valid prescription for an opioid antagonist and maintain a supply of opioid antagonists in a secure location at each location where a student may be present for use as provided in this section.>

2. Title page, by striking lines 1 and 2 and inserting <An Act requiring an annual report concerning opioid settlement litigation funds, creating an opioid antagonist medication fund, and allowing school districts to obtain opioid antagonist prescriptions.>

3. By renumbering as necessary.

COMMITTEE ON APPROPRIATIONS
TIM KRAAYENBRINK, CHAIRPERSON

S–5130

Amend the amendment, S–5063, to House File 2198, as amended, passed, and reprinted by the House, as follows:

1. Page 1, after line 2 by inserting

<___. Page 1, line 12, after <supervision.> by inserting <At least thirty days prior to a child care center adopting a policy that would allow a person under eighteen years of age to provide child care to school age children without additional supervision, the child care center shall provide written notice of the prospective policy change to the parents of children currently attending the child care center.>>

2. Page 1, line 11, after <age.> by inserting <At least

thirty days prior to a child care center increasing its child-to-staff ratio, the child care center shall provide written notice of the prospective child-to-staff ratio increase to the parents of children currently attending the child care center.>

3. By renumbering, redesignating, and correcting internal references as necessary.

PAM JOCHUM
TONY BISIGNANO
JOE BOLKCOM
NATE BOULTON
CLAIRE A. CELSI
WILLIAM A. DOTZLER, JR.
ERIC GIDDENS
ROBERT M. HOGG
KEVIN KINNEY
JIM LYKAM
LIZ MATHIS
JANET PETERSEN
HERMAN C. QUIRMBACH
AMANDA RAGAN
JACKIE SMITH
TODD TAYLOR
SARAH TRONE GARRIOTT
ZACH WAHLS

S–5131

Amend Senate File 2379 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I
RETALIATION

Section 1. Section 562B.32, subsection 1, paragraph d, Code 2022, is amended to read as follows:

d. For exercising any of the rights and remedies pursuant to this chapter or chapter 216.

Sec. 2. Section 562B.32, subsection 2, Code 2022, is amended to read as follows:

2. If the landlord acts in violation of subsection 1 of this section, the tenant is entitled to the remedies provided in section 562B.24 and has a defense in an action for possession. In an action by or against the tenant, evidence of a complaint within ~~six months~~ one year prior to the alleged act of retaliation creates a presumption that the landlord's conduct was in retaliation. The presumption does not arise if the tenant made the complaint after notice of termination of the rental agreement. For the purpose of this subsection, *"presumption"* means that the trier of fact must find the existence of the fact presumed unless and until evidence is introduced which would support a finding of its nonexistence.

DIVISION II
RENTAL AGREEMENTS

Sec. 3. Section 562B.7, subsection 10, Code 2022, is amended to read as follows:

10. *"Rent"* means a payment to be made to the landlord under the rental agreement, including base rent, utilities, late fees, and other payments made by the tenant to the landlord under the rental agreement.

Sec. 4. Section 562B.10, subsection 5, Code 2022, is amended to read as follows:

5. Rental agreements shall be for a term of one year unless otherwise specified in the rental agreement. Rental agreements

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shall be canceled by at least ~~sixty~~ ninety days' written notice given by either party. A landlord shall not cancel a rental agreement solely for the purpose of making the tenant's mobile home space available for another mobile home.

Sec. 5. Section 562B.14, subsection 7, Code 2022, is amended to read as follows:

7. Each tenant shall be notified, in writing, of any rent increase at least ~~sixty~~ ninety days before the effective date. Such effective date shall not be sooner than the expiration date of the original rental agreement or any renewal or extension thereof.

Sec. 6. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 7. APPLICABILITY. This division of this Act applies to rent increases first noticed under chapter 562B occurring on or after the effective date of this division of this Act.

DIVISION III
DISCLOSURE OF UTILITY CHARGES

Sec. 8. Section 562B.14, subsection 6, Code 2022, is amended to read as follows:

6. *a.* The landlord or any person authorized to enter into a rental agreement on the landlord's behalf shall provide a written explanation of utility rates, charges and services to the prospective tenant before the rental agreement is signed unless the utility charges are paid by the tenant directly to the utility company.

b. Tenants shall be notified of any increase in utility rates or charges in the manner set forth in subsection 7 for rent increases, unless the landlord does not receive at least ninety days prior notice of such increase from the utility provider, in which case no prior notice of the increase from the landlord to the tenant is required for the increase to be effective.

c. Nothing in this chapter shall authorize a landlord to meter a premises contrary to applicable law, rule, or tariff,

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or assess a utility charge to the tenant contrary to applicable law, rule, or tariff.

DIVISION IV

WRONGFUL FAILURE TO PROVIDE ESSENTIAL SERVICES

Sec. 9. NEW SECTION. **562B.23A Wrongful failure to supply running water or essential services.**

1. If contrary to the rental agreement or section 562B.16 the landlord deliberately or negligently fails to supply running water or other essential services, the tenant may give written notice to the landlord specifying the breach and may do one of the following:

a. Procure reasonable amounts of water or other essential services during the period of the landlord's noncompliance and deduct the actual and reasonable cost from the rent.

b. Recover damages based upon the diminution in the fair market value of the mobile home space.

c. Recover any rent already paid for the period of the landlord's noncompliance which shall be reimbursed on a pro rata basis.

2. If the tenant proceeds under this section, the tenant may not proceed under section 562B.22 as to that breach.

3. The rights under this section do not arise until the tenant has given notice to the landlord or if the condition was caused by the deliberate or negligent act or omission of the tenant, a member of the tenant's family, or other person on the premises with the consent of the tenant.

Sec. 10. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION V

DENIAL OF RENTAL OR REFUSAL OF SALE

Sec. 11. Section 562B.19, subsection 3, paragraph c, Code 2022, is amended to read as follows:

c. Deny any resident of a manufactured home community or mobile home park the right to sell that person's mobile home at a price of the person's own choosing, but may reserve

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the right to approve the purchaser of such mobile home as a tenant but such permission may not be unreasonably withheld, provided however, that the landlord may, in the event of a sale to a third party, in order to upgrade the quality of the manufactured home community or mobile home park, require that any mobile home in a rundown condition or in disrepair be removed from the manufactured home community or park within sixty days. If the landlord does not approve the purchaser as a tenant, the landlord shall provide the purchaser with written notice of such denial and the general reason for the denial, but the landlord shall not be required to provide a specific reason for the denial.

DIVISION VI
PROHIBITED RENTAL AGREEMENT PROVISION —— HOME EQUIPMENT

Sec. 12. Section 562B.11, subsection 1, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *e.* Agrees to modify the mobile home, manufactured home, or modular home in a way that would substantially impair the ability of the tenant to move the home from the mobile home space, unless such modification is required by federal law, including but not limited to the model manufactured home installation standards, 24 C.F.R. pt. 3285, the manufactured home construction and safety standards, 24 C.F.R. pt. 3280, or the manufactured home procedural and enforcement regulations, 24 C.F.R. pt. 3282, or by state or local law, the manufacturer's installation instructions, any requirement arising from the landlord's financing of the home or of the mobile home park or manufactured home community in which the home is located, or unless such modification is otherwise necessary for the safe and proper installation of the home.

DIVISION VII
LANDLORD SALES

Sec. 13. NEW SECTION. **562B.17A Sale of mobile home by landlord.**

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1. Any sale of a mobile home located in a manufactured home community or mobile home park by a landlord or landlord's agent shall be by written agreement and the landlord shall, upon the buyer's fulfillment of all payment and other terms under the agreement, produce and assign the current certificate of title obtained from the department of transportation. The agreement shall state the basic terms of sale, including the total cost of the mobile home, and, in the case of an installment contract, finance charges, annual percentage rate, and the frequency and amount of each installment payment.

2. If such sale does not comply with this section, the court may award monetary or equitable relief, including voiding the sale, and the buyer may recover damages incurred, amounts paid as a rental deposit in excess of two months' rent, and reasonable attorney fees.

3. A claim under subsection 2 may be combined with an action under chapter 648.

Sec. 14. Section 648.19, subsection 1, Code 2022, is amended to read as follows:

1. An action under this chapter shall not be filed in connection with any other action, with the exception of a claim for rent or recovery as provided in section 555B.3, 562A.24, 562A.32, 562B.17A, 562B.22, 562B.25, or 562B.27, nor shall it be made the subject of counterclaim.

DIVISION VIII
SALE OF MANUFACTURED HOME COMMUNITY OR MOBILE HOME PARK

Sec. 15. NEW SECTION. **562B.16A Sale of manufactured home community or mobile home park —— notices.**

Upon termination of the landlord's interest in the manufactured home community or mobile home park, the landlord's successor in interest shall have the same legal obligations, rights, and remedies of the landlord, including with respect to all rental agreements.

Sec. 16. APPLICABILITY. This division of this Act applies to manufactured home community or mobile home park sale

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transactions made on or after the effective date of this division of this Act.

DIVISION IX

REGULATION BY COUNTIES AND CITIES —— CONTINUING NONCONFORMING USES

Sec. 17. Section 335.3, subsection 2, Code 2022, is amended to read as follows:

2. *a.* ~~When~~ Except as provided in paragraph *"b"*, when there is a replacement of a preexisting manufactured, modular, or mobile home with ~~another~~ any other manufactured, modular, or mobile home containing no more than the original number of dwelling units, or a replacement of a preexisting site-built dwelling unit with a manufactured, modular, or mobile home or site-built dwelling unit, within a manufactured home community or a mobile home park, the board of supervisors shall not adopt or enforce any ordinance, regulation, or restriction, or impose any conditions on the replacement home, home site upon which the home sits, or the owner's property that were not required of the preexisting home, home site, or property, that would prevent the continuance of the property owner's lawful nonconforming use that had existed relating to the preexisting home ~~unless any of the following apply:~~, home site upon which the home sat, or the owner's property.

b. Paragraph *"a"* does not apply if any of the following conditions exist:

~~*a.*~~ (1) ~~A discontinuance is necessary for~~ The replacement of the preexisting home with the replacement home would substantially increase the risk to the safety of life or property.

~~*b.*~~ (2) The property owner has discontinued and abandoned the nonconforming use ~~has been discontinued~~ for the period of time established by ordinance, unless such discontinuance is caused by circumstances outside the control of the property owner. The period of time so established shall be not less than one year. For purposes of this subparagraph,

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circumstances outside the control of the property owner include floods, fires, destructive thunderstorm events such

as derechos and tornadoes, and similar catastrophic events causing widespread or localized severe property damage. For purposes of this subparagraph, a property owner shall not be considered to have discontinued and abandoned the nonconforming use if the property owner demonstrates that the applicable home site continues to be available for use as a home site for a replacement home.

~~c.~~ (3) The replacement results in the overall nature and character of the present use being substantially or entirely different from the original lawful preexisting nonconforming use.

~~d.~~ (4) The replacement results in an obstruction to a shared driveway or shared sidewalk providing vehicular or pedestrian access to other homes and uses unless the property owner makes modifications to such shared driveway or sidewalk that extinguishes such obstruction or the effects of such obstruction.

Sec. 18. Section 414.1, subsection 1, paragraph c, Code 2022, is amended to read as follows:

c. (1) ~~When~~ Except when provided in subparagraph (2), when there is a replacement of a preexisting manufactured, modular, or mobile home with ~~another~~ any other manufactured, modular, or mobile home containing no more than the original number of dwelling units, or a replacement of a preexisting site-built dwelling unit with a manufactured, modular, or mobile home or site-built dwelling unit, within a manufactured home community or a mobile home park, the city shall not adopt or enforce any ordinance, regulation, or restriction, or impose any conditions on the replacement home, home site upon which the home sits, or the owner's property that were not required of the preexisting home, home site, or property, that would prevent the continuance of the property owner's lawful nonconforming use that had existed relating to the preexisting home ~~unless~~

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~~any of the following apply:~~, home site upon which the home sat, or the owner's property.

(2) Subparagraph (1) does not apply if any of the following conditions exist:

~~(1)~~ (a) ~~A discontinuance is necessary for~~ The replacement of the preexisting home with the replacement home would substantially increase the risk to the safety of life or property.

~~(2)~~ (b) The property owner has discontinued and abandoned the nonconforming use ~~has been discontinued~~ for the period of time established by ordinance, unless such discontinuance is caused by circumstances outside the control of the property owner. The period of time so established shall be not less than one year. For purposes of this subparagraph division, circumstances outside the control of the property owner include floods, fires, destructive thunderstorm events such as

derechos and tornadoes, and similar catastrophic events causing widespread or localized severe property damage. For purposes of this subparagraph division, a property owner shall not be considered to have discontinued and abandoned the nonconforming use if the property owner demonstrates that the applicable home site continues to be available for use as a home site for a replacement home.

~~(3)~~ (c) The replacement results in the overall nature and character of the present use being substantially or entirely different from the original lawful preexisting nonconforming use.

~~(4)~~ (d) The replacement results in an obstruction to a shared driveway or shared sidewalk providing vehicular or pedestrian access to other homes and uses unless the property owner makes modifications to such shared driveway or sidewalk that extinguishes such obstruction or the effects of such obstruction.

DIVISION X
FORCIBLE ENTRY AND DETAINER

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Sec. 19. Section 648.5, subsections 1 and 3, Code 2022, are amended to read as follows:

1. *a.* An action for forcible entry and detainer shall be brought in a county where all or part of the premises is located. Such an action shall be tried as an equitable action. Upon receipt of the petition, the court shall set a date, time, and place for hearing. The court shall set the date of hearing no later than eight days from the filing date, except that the court shall set a later hearing date no later than fifteen days from the date of filing if the plaintiff requests or consents to the later date of hearing.

b. The requirement regarding the setting of the initial hearing in paragraph *"a"* is not a jurisdictional requirement and does not affect the court's subject matter jurisdiction to hear the action for forcible entry and detainer.

3. Service of original notice by mail is deemed completed four days after the notice is deposited in the mail and postmarked for delivery, whether or not the recipient signs a receipt for the original notice. In computing the time for completion of service, the first day shall be excluded and the final day shall be included regardless of whether the fourth day is a Saturday, Sunday, or federal holiday.

DIVISION XI
ABANDONED MOBILE HOMES

Sec. 20. Section 555B.3, Code 2022, is amended to read as follows:

555B.3 Action for abandonment —— jurisdiction.

A real property owner not requesting notification by the sheriff as provided in section 555B.2 may bring an action alleging abandonment in the court within the county where the

real property is located ~~provided that there is no lien on the mobile home or personal property other than a tax lien pursuant to chapter 435~~. The action shall be tried as an equitable action. Unless commenced as a small claim, the petition shall be presented to a district judge. Upon receipt

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of the petition, either the court or the clerk of the district court shall set a date for a hearing not later than fourteen days from the date of the receipt of the petition, except where there is a lien on the mobile home or personal property other than a tax lien, the court or the clerk of the district court shall set a date for a hearing no sooner than twenty-five days from the date of the receipt of the petition so as to allow for service on the lienholder.

Sec. 21. Section 555B.4, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 4. If a lien other than a tax lien exists on the mobile home or personal property at the time an action for abandonment is initiated, the personal service pursuant to the Iowa rules of civil procedure shall be made upon the lienholder no less than twenty days before the hearing. The notice to the lienholder shall describe the mobile home and shall state the docket, case number, date, and time at which the hearing is scheduled, and the lienholder's right to assert a claim to the mobile home at the hearing. The notice shall state that failure to assert a claim to the mobile home within the judicial proceedings is deemed a waiver of all rights, title, claims, and interest in the mobile home and deemed to be consent to the sale or disposal of the mobile home. If personal service cannot be completed in time to give the lienholder the minimum notice required by this subsection, the court may set a new hearing date.

NEW SUBSECTION. 5. In the event a tenant who was sole owner of a mobile home dies during the term of the rental agreement resulting in the mobile home being abandoned, service shall be made in accordance with section 562B.10, subsection 7.

Sec. 22. Section 555B.8, subsections 2 and 3, Code 2022, are amended to read as follows:

2. ~~If~~ Except as otherwise ordered by the court, if the mobile home owner or other claimant asserts a claim to the property, the judgment shall be satisfied before the mobile

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home owner or other claimant may take possession of the mobile home or personal property.

3. If no claim is asserted to the mobile home or personal property or if the judgment is not satisfied at the time of entry, an order shall be entered allowing the real property owner to sell or otherwise dispose of the mobile home and

personal property pursuant to section 555B.9. ~~If~~ Except as otherwise ordered by the court, if a claimant satisfies the judgment at the time of entry, the court shall enter an order permitting and directing the claimant to remove the mobile home or personal property from its location within a reasonable time to be fixed by the court. The court shall also determine the amount of further rent or storage charges to be paid by the claimant to the real property owner at the time of removal.

Sec. 23. Section 555B.9, subsections 1, 2, and 4, Code 2022, are amended to read as follows:

1. Pursuant to an order for disposal under section 555B.8, subsection 3, the real property owner shall dispose of the mobile home and personal property by public or private sale in a commercially reasonable manner. If the personal property owner, lienholder, or other claimant has asserted a claim to the mobile home or personal property within the judicial proceedings, that person shall be notified of the sale by restricted certified mail not less than five days before the sale. The notice is deemed given upon the mailing. The real property owner may buy at any public sale, and if the mobile home or personal property is of a type customarily sold in a recognized market or is the subject of widely distributed standard price quotations, the real property owner may buy at a private sale.

2. A sale pursuant to subsection 1 transfers to the purchaser for value, all of the mobile home owner's rights in the mobile home and personal property, and discharges the real property owner's interest in the mobile home and personal property, ~~and~~ any tax lien, and any other lien. The purchaser

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takes free of all rights and interests even though the real property owner fails to comply with the requirements of this chapter or of any judicial proceedings, if the purchaser acts in good faith.

4. Notwithstanding subsections 1 through 3, the real property owner may propose to retain the mobile home and personal property in satisfaction of the judgment obtained pursuant to section 555B.8. Written notice of the proposal shall be sent to the mobile home owner, lienholder, or other claimant, if that person has asserted a claim to the mobile home or personal property in the judicial proceedings. If the real property owner receives objection in writing from the mobile home owner, lienholder, or other claimant within twenty-one days after the notice was sent, the real property owner shall dispose of the mobile home and personal property pursuant to subsection 1. If no written objection is received by the real property owner within twenty-one days after the notice was sent, the mobile home and personal property may be retained. Retention of the mobile home and personal property discharges the judgment of the real property owner, ~~and~~ any tax

lien, and any other lien.

Sec. 24. Section 555B.9, subsection 3, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *0c.* Third, to satisfy any other lien for which a claim was asserted pursuant to section 555B.4, subsection 4.

Sec. 25. Section 562B.10, subsection 7, Code 2022, is amended to read as follows:

7. *a.* If a tenant who was sole owner of a mobile home dies during the term of a rental agreement then that person's heirs at law or ~~legal~~ the personal representative of the decedent's estate, or the landlord shall have the right to cancel the tenant's lease by giving sixty days' written notice to the person's heirs at law or ~~legal~~ the personal representative of the decedent's estate, or to the landlord, whichever

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is appropriate, and the heirs at law or the ~~legal~~ personal representative of the decedent's estate, shall have the same rights, privileges and liabilities of the original tenant, provided that such heirs at law and personal representative of the estate shall not have the right to occupy or otherwise use the home or mobile home space as a tenant unless approved by the landlord as a tenant. In the event the landlord, after such a written notice is given and the tenant's lease is canceled, brings an action for forcible entry and detainer or action for abandonment, the estate of the tenant and the person's located heirs at law or personal representative shall be named as defendants in the action. The landlord may serve notice upon such defendants pursuant to the method set forth in section 562B.27A, subsection 1, paragraph *"c"*, or by mailing notice by both regular mail and certified mail, as defined in section 618.15, to the defendant's last known address.

b. (1) If a tenant who was sole owner of a mobile home dies during the term of a rental agreement resulting in the mobile home being abandoned as provided in section 562B.27, subsection 1, and the landlord cannot, despite due diligence, locate such a tenant's heirs at law or personal representative, then the landlord may bring an action for abandonment as provided in section 555B.3, naming as defendants the estate of the tenant and all unknown heirs at law of the tenant, and, upon the landlord's filing of an affidavit that personal service cannot be had on any heirs at law, personal representative, or estate of the tenant, the court shall permit original notice of such action to be served by publication pursuant to subparagraph (2).

(2) Publication of original notice shall be made once each week for three consecutive weeks in a newspaper of general circulation published in the county where the petition is

filed, pursuant to the Iowa rules of civil procedure. Service is complete after the third consecutive weekly publication.

(3) In the event any tax lien or other liens exist on

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the mobile home, the landlord may proceed with an action for abandonment as provided in section 555B.3, except that the notice shall be provided to the county treasurer as provided in section 555B.4, subsection 3, if a tax lien exists, and personal service pursuant to the Iowa rules of civil procedure shall be made upon any lienholder no less than twenty days before the hearing. Any notice to a lienholder shall state that failure to assert a claim to the mobile home is deemed a waiver of all rights, title, claims, and interest in the mobile home and is deemed consent to the sale or disposal of the mobile home. If personal service upon the lienholder cannot be completed in time to give the lienholder the minimum notice required by this subsection, the court may set a new hearing date.>

2. Title page, lines 5 and 6, by striking <the repeal of the manufactured home community and mobile home tax,> and inserting <regulation by counties and cities of continuing nonconforming uses of manufactured, modular, and mobile homes,>

AMY SINCLAIR

S–5132

Amend Senate File 2240 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 633.301, Code 2022, is amended to read as follows:

633.301 Copy of will for executor.

~~When~~ Upon request by the executor, when a will has been admitted to probate and certified pursuant to section 633.300, the clerk shall cause a certified copy thereof to be placed in the hands of the executor to whom letters are issued. The clerk shall retain the will in a separate file provided for that purpose until the time for contest has expired, and promptly thereafter shall place it with the files of the estate.>

2. Title page, by striking lines 1 through 3 and inserting <An Act relating to the provision of certified copies of wills.>

JULIAN B. GARRETT

S–5133

Amend House File 2078, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 633.279, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 3. *Electronic presence requirements.* For electronic presence, the testator must provide verbal answers to all of the following questions, asked in substantially the following manner before signing:

a. Are you currently married? If so, please state the name of your spouse.

b. Please state the names of anyone who assisted you in accessing the video conference today.

c. Please state the names of anyone who assisted you in preparing or reviewing the documents you are signing today.

d. Where are you currently located?

e. Who is in the room with you?

NEW SUBSECTION. 4. *Retention of remote execution record.* A will for which a communication technology was used must be video recorded. The attorney for the testator using communication technology for the signing of a will, or other party facilitating the remote signing of a will if the testator has no attorney, shall retain the video recording, or cause the video recording to be retained by a repository designated by or on behalf of the person required to retain the video recording. Unless the testator dies sooner or terminates the relationship with the attorney or other person required to retain the record, the video recording must be retained for a period of at least ten years after the video recording is made.

NEW SUBSECTION. 5. *Execution of remote will in counterparts.* When a will is executed using a communication technology under this section, the original document may be executed in one or more counterparts by parties located in different locations, and all such counterparts may be

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aggregated to comprise the complete will of the testator.

NEW SUBSECTION. 6. *Remote wills under disaster proclamation deemed to satisfy this section.* Any wills executed using the remote signing procedures permitted under the proclamation of disaster emergency of the governor issued March 22, 2020, shall be deemed to satisfy the presence requirements of this section if the will was executed during the effective dates of the proclamation of disaster emergency.

NEW SUBSECTION. 7. *Definition.* For purposes for this section, *"presence"* means any manner, physical or electronic, in which the witnesses and testator can see and hear the acts of each other in real time using a communication technology

that meets the requirements of section 9B.14A, subsection 1, paragraph *"a"*.

Sec. 2. Section 633.301, Code 2022, is amended to read as follows:

633.301 Copy of will for executor.

~~When~~ Upon request by the executor, when a will has been admitted to probate and certified pursuant to section 633.300, the clerk shall cause a certified copy thereof to be placed in the hands of the executor to whom letters are issued. The clerk shall retain the will in a separate file provided for that purpose until the time for contest has expired, and promptly thereafter shall place it with the files of the estate.>

2. Title page, by striking line 1 and inserting <An Act relating to wills, including witness requirements for the execution of a will and procedure for wills to be admitted into probate.>

JULIAN B. GARRETT

S–5134

Amend House File 2562, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 562A.9, subsection 4, Code 2022, is amended to read as follows:

4. For rental agreements in which the rent does not exceed seven hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds twelve dollars per day or a total amount of sixty dollars per month. For rental agreements in which the rent is greater than seven hundred dollars per month but less than one thousand four hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds twenty dollars per day or a total amount of one hundred dollars per month. For rental agreements in which the rent is at least one thousand four hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds two percent of the rent per day or a total amount of ten percent of the rent per month.

Sec. 2. Section 562B.10, subsections 4 and 5, Code 2022, are amended to read as follows:

4. For rental agreements in which the rent does not exceed seven hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds twelve dollars per day or a total amount of sixty dollars per month. For rental agreements in which the rent is greater than seven hundred dollars per month but less than one thousand four hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds twenty dollars per day or a total amount of one hundred dollars per month. For rental agreements in which the rent is

at least one thousand four hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds two percent of the rent per day or a total amount of ten percent of the rent per month.

5. *a.* Rental agreements shall be for a term of one year

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unless otherwise specified in the rental agreement. Rental agreements shall be canceled by at least sixty days' written notice given by either party. A notice to cancel under this subsection initiated by a landlord shall be for good cause. A landlord shall not cancel a rental agreement solely for the purpose of making the tenant's mobile home space available for another mobile home.

b. For purposes of this subsection, *"good cause"* means a violation of this chapter by the tenant, a material violation of the manufactured home community or mobile home park rules or regulations, a change in the use of the land on which the mobile home park is located, or material noncompliance with the rental agreement by the tenant.

Sec. 3. NEW SECTION. **562B.12A Increasing rent.**

A landlord shall not increase the rent on any tenant in a mobile home park unless the landlord has provided notice at least one hundred eighty days in advance of the rent increase.

Sec. 4. EFFECTIVE DATE. This Act, being deemed of immediate importance, takes effect upon enactment.>

2. Title page, by striking lines 1 through 9 and inserting <An Act providing for remedies, procedures, and requirements applicable to landlords under specified circumstances and including effective date provisions.>

ZACH WAHLS

S–5135

Amend House File 2562, as amended, passed, and reprinted by the House, as follows:

1. Page 2, by striking lines 28 through 30 and inserting <provider, in which case the landlord shall provide notice to the tenant within five business days of receiving the notice from the utility provider.>

HERMAN C. QUIRMBACH

S–5136

Amend House File 2562, as amended, passed, and reprinted by the House, as follows:

1. By striking page 1, line 31, through page 2, line 1, and inserting:

<5. Rental agreements shall be for a term of one year

unless ~~otherwise specified in the rental agreement~~ a tenant in writing requests a shorter term or tenant and landlord agree in writing to a longer term. Rental agreements shall be ~~canceled~~ terminated by at least ~~sixty~~ ninety days' written notice given by either party before the term is due to expire. A landlord shall not cancel a rental agreement solely for the purpose of making the tenant's mobile home space available for another mobile home.>

HERMAN C. QUIRMBACH

S–5137

Amend House File 2562, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

GROUNDS FOR TERMINATION OF TENANCY

Section 1. Section 562B.10, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4A. A landlord may only terminate a tenancy if the tenant engages in any of the following or for any of the following reasons:

a. A material noncompliance with the rental agreement.

b. A material violation of the manufactured home community or mobile home park rules or regulations.

c. Any other violation of this chapter for which termination is a remedy.

d. A legitimate and material business reason the impact of which is not specific to one tenant.

e. A change in the use of the land if change in the use of the land is included in the rental agreement as grounds for termination or nonrenewal.

Sec. 2. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 3. APPLICABILITY. This division of this Act applies to terminations of tenancies on or after the effective date of this division of this Act.

DIVISION II

RETALIATION

Sec. 4. Section 562B.32, subsection 1, paragraph d, Code 2022, is amended to read as follows:

d. For exercising any of the rights and remedies pursuant to this chapter or chapter 216.

Sec. 5. Section 562B.32, subsection 2, Code 2022, is amended to read as follows:

2. If the landlord acts in violation of subsection 1

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of this section, the tenant is entitled to the remedies provided in section 562B.24 and has a defense in an action for possession. In an action by or against the tenant, evidence of a complaint within ~~six months~~ one year prior to the alleged act of retaliation creates a presumption that the landlord's conduct was in retaliation. The presumption does not arise if the tenant made the complaint after notice of termination of the rental agreement. For the purpose of this subsection, *"presumption"* means that the trier of fact must find the existence of the fact presumed unless and until evidence is introduced which would support a finding of its nonexistence.

Sec. 6. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION III

CONSUMER FRAUD

Sec. 7. Section 562B.4, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 3. A violation of this chapter by a landlord, or an agent of the landlord, is an unlawful practice under section 714.16.

Sec. 8. Section 714.16, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *q.* It is an unlawful practice for a landlord or the landlord's agent to violate any of the provisions of chapter 562B.

Sec. 9. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 10. APPLICABILITY. This division of this Act applies to violations of chapter 562B occurring on or after the effective date of this division of this Act.

DIVISION IV

RENT INCREASES

Sec. 11. Section 562B.14, subsection 7, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

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7. *a.* A landlord shall not increase the amount of rent due by any tenant in a manufactured home community or mobile home park unless the tenant is notified, in writing, of the rent increase at least one hundred eighty days before the effective date of the rent increase. The effective date of any increase in the amount of rent shall not be less than one year after either the effective date of the most recent rent increase or the beginning of the tenancy, whichever is later.

b. (1) Subject to paragraph *"a"*, a landlord may increase the amount of rent due by any tenant in an amount greater than the average annual increase of the consumer price index for all urban consumers in the midwest region for the most recently

available preceding thirty-six-month period, if the landlord demonstrates the increase is justified for all of the following conditions:

(a) The landlord, during the preceding twelve-month period, has not been found in violation of any provision of this chapter that threatens the health or safety of the tenants of or visitors to the manufactured home community or mobile home park that persists for more than fifteen days, beginning on the day the landlord received notice of such violation.

(b) The proposed rent increase is directly related to operating, maintaining, or improving the manufactured home community or mobile home park, and is justified by one or more of the following factors:

(i) The completion and cost of any capital improvements or repair work in the manufactured home community or mobile home park, as distinguished from ordinary repair, replacement, and maintenance.

(ii) An increase in property taxes due on the manufactured home community or mobile home park.

(iii) If the landlord is responsible for payment of one or more utilities, an increase in utility expenses within the manufactured home community or mobile home park.

(iv) An increase in insurance costs and financing

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associated with the manufactured home community or mobile home park.

(v) An increase in reasonable operating and maintenance expenses relating to the manufactured home community or mobile home park.

(vi) An increase in market rent. For purposes of this section, *"market rent"* means that rent which would result from market forces absent an unequal bargaining position between the landlord and tenants. In determining market rent, relevant considerations include rents charged to recent new tenants of the manufactured home community or mobile home park or rents charged by comparable manufactured home communities or mobile home parks. To be comparable, a manufactured home community or mobile home park must be within the competitive area and must offer similar facilities, services, amenities, and management.

(c) The department of revenue shall monitor the consumer price index for all urban consumers in the midwest region and report the relevant data to the consumer protection division of the office of the attorney general for periodic publication.

c. The written notice of a rent increase provided to the tenant shall include the specific reasons for the increase including the justification under paragraph *"b"*, if applicable.

d. A decrease in the number or quality of amenities, services, or utilities provided under the rental agreement without a corresponding and proportionate reduction in rent shall be considered a rent increase for the purposes of this

chapter.

Sec. 12. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 13. APPLICABILITY. The following applies to rent increases under chapter 562B occurring on or after the effective date of this division of this Act:

Section 562B.14, subsection 7, paragraphs "a" and "d", as enacted in this division of this Act.

Sec. 14. APPLICABILITY. The following applies to rent

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increases under chapter 562B occurring on or after July 1, 2022:

Section 562B.14, subsection 7, paragraphs "b" and "c", as enacted in this division of this Act.

DIVISION V

LANDLORD REMEDIES AND PROCEDURES

Sec. 15. Section 555B.3, Code 2022, is amended to read as follows:

555B.3 Action for abandonment —— jurisdiction.

A real property owner not requesting notification by the sheriff as provided in section 555B.2 may bring an action alleging abandonment in the court within the county where the real property is located ~~provided that there is no lien on the mobile home or personal property other than a tax lien pursuant to chapter 435~~. The action shall be tried as an equitable action. Unless commenced as a small claim, the petition shall be presented to a district judge. Upon receipt of the petition, either the court or the clerk of the district court shall set a date for a hearing not later than fourteen days from the date of the receipt of the petition, except when there is a lien on the mobile home or personal property, other than a tax lien, the court or the clerk of the district court shall set a date for a hearing no sooner than twenty-five days from the date of the receipt of the petition so as to allow for service on the lienholder.

Sec. 16. Section 555B.4, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4. If a lien, other than a tax lien, exists on the mobile home or personal property at the time an action for abandonment is initiated, personal service pursuant to rule of civil procedure 1.305 shall be made upon the lienholder no less than twenty days before the hearing. The notice to the lienholder shall describe the mobile home and shall state the docket, case number, date, time at which the hearing is scheduled, and the lienholder's right to assert a claim to

Page 6

the mobile home at the hearing. The notice shall also state that failure to assert a claim to the mobile home within the

judicial proceedings is deemed a waiver of all right, title, claim, and interest in the mobile home and is deemed consent to the sale or disposal of the mobile home. If personal service upon the lienholder cannot be completed in time to give the lienholder the minimum notice required by this section, the court may set a new hearing date.

Sec. 17. Section 555B.8, subsections 2 and 3, Code 2022, are amended to read as follows:

2. ~~If~~ Except as otherwise ordered by the court, if the mobile home owner or other claimant asserts a claim to the property, the judgment shall be satisfied before the mobile home owner or other claimant may take possession of the mobile home or personal property.

3. If no claim is asserted to the mobile home or personal property or if the judgment is not satisfied at the time of entry, an order shall be entered allowing the real property owner to sell or otherwise dispose of the mobile home and personal property pursuant to section 555B.9. ~~If~~ Except as otherwise ordered by the court, if a claimant satisfies the judgment at the time of entry, the court shall enter an order permitting and directing the claimant to remove the mobile home or personal property from its location within a reasonable time to be fixed by the court. The court shall also determine the amount of further rent or storage charges to be paid by the claimant to the real property owner at the time of removal.

Sec. 18. Section 555B.9, subsections 1, 2, 3, and 4, Code 2022, are amended to read as follows:

1. Pursuant to an order for disposal under section 555B.8, subsection 3, the real property owner shall dispose of the mobile home and personal property by public or private sale in a commercially reasonable manner. If the personal property, lienholder, owner, or other claimant has asserted a claim to the mobile home or personal property within the judicial

Page 7

proceedings, that person shall be notified of the sale by restricted certified mail not less than five days before the sale. The notice is deemed given upon the mailing. The real property owner may buy at any public sale, and if the mobile home or personal property is of a type customarily sold in a recognized market or is the subject of widely distributed standard price quotations, the real property owner may buy at a private sale.

2. A sale pursuant to subsection 1 transfers to the purchaser for value, all of the mobile home owner's rights in the mobile home and personal property, and discharges the real property owner's interest in the mobile home and personal property, ~~and~~ any tax lien, and any other lien. The purchaser takes free of all rights and interests even though the real property owner fails to comply with the requirements of this chapter or of any judicial proceedings, if the purchaser acts

in good faith.

3. The proceeds of the sale of mobile home and personal property shall be distributed as follows:

a. First, to satisfy the real property owner's judgment obtained under section 555B.8.

b. Second, to satisfy any tax lien for which a claim was asserted pursuant to section 555B.4, subsection 3.

0c. Third, to satisfy any other lien for which a claim was asserted pursuant to section 555B.4, subsection 4.

c. Any surplus remaining after the proceeds are distributed shall be held by the real property owner for six months. If the mobile home owner fails to claim the surplus in that time, the surplus may be retained by the real property owner. If a deficiency remains after distribution of the proceeds, the mobile home owner is liable for the amount of the deficiency.

4. Notwithstanding subsections 1 through 3, the real property owner may propose to retain the mobile home and personal property in satisfaction of the judgment obtained pursuant to section 555B.8. Written notice of the proposal

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shall be sent to the mobile home owner, lienholder, or other claimant, if that person has asserted a claim to the mobile home or personal property in the judicial proceedings. If the real property owner receives objection in writing from the mobile home owner, lienholder, or other claimant within twenty-one days after the notice was sent, the real property owner shall dispose of the mobile home and personal property pursuant to subsection 1. If no written objection is received by the real property owner within twenty-one days after the notice was sent, the mobile home and personal property may be retained. Retention of the mobile home and personal property discharges the judgment of the real property owner, ~~and~~ any tax lien, and any other lien.

Sec. 19. Section 562A.9, subsection 4, Code 2022, is amended to read as follows:

4. For rental agreements in which the rent does not exceed seven hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds twelve dollars per day or a total amount of sixty dollars per month. For rental agreements in which the rent is greater than seven hundred dollars per month but less than one thousand four hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds twenty dollars per day or a total amount of one hundred dollars per month. For rental agreements in which the rent is at least one thousand four hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds two percent of the rent per day or a total amount of ten percent of the rent per month.

Sec. 20. Section 562B.10, subsections 4 and 7, Code 2022, are amended to read as follows:

4. For rental agreements in which the rent does not exceed seven hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds twelve dollars per day or a total amount of sixty dollars per month. For rental agreements in which the rent is greater than seven hundred dollars per

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month but less than one thousand four hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds twenty dollars per day or a total amount of one hundred dollars per month. For rental agreements in which the rent is at least one thousand four hundred dollars per month, a rental agreement shall not provide for a late fee that exceeds two percent of the rent per day or a total amount of ten percent of the rent per month.

7. *a.* If a tenant who was sole owner of a mobile home dies during the term of a rental agreement then that person's heirs or legal representative or the landlord shall have the right to cancel the tenant's lease by giving sixty days' written notice to the person's heirs or legal representative or to the landlord, whichever is appropriate, and the heirs or the legal representative shall have the same rights, privileges and liabilities of the original tenant.

b. (1) If a tenant who was sole owner of a mobile home dies during the term of a rental agreement resulting in the mobile home being abandoned as provided in section 562B.27, subsection 1, and the landlord cannot, despite due diligence, locate such tenant's heirs or legal representatives, then the landlord may bring an action for abandonment as provided in section 555B.3, naming as defendants the estate of the tenant and any and all unknown heirs of the tenant and, upon the landlord's filing of an affidavit that personal service cannot be had on any heir, legal representative, or estate of the tenant, the court shall permit original notice of such action to be served by publication pursuant to subparagraph (2) of this paragraph.

(2) Publication of the original notice shall be made once each week for three consecutive weeks in a newspaper of general circulation published in the county where the petition is filed, as provided in rules of civil procedure 1.313 and 1.314. Service is complete after the third consecutive weekly publication.

(3) In the event any tax lien or other lien exists on

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the mobile home, the landlord may proceed with an action for abandonment as provided in section 555B.3, except that:

(a) Notice shall be provided to the county treasurer as provided in section 555B.4, subsection 3, if a tax lien exists.

(b) Personal service pursuant to rule of civil procedure 1.305 shall be made upon any lienholder no less than twenty

days before the hearing.

(4) Any notice to a lienholder shall state that failure to assert a claim to the mobile home is deemed a waiver of all right, title, claim, and interest in the mobile home and is deemed consent to the sale or disposal of the mobile home. If personal service upon the lienholder cannot be completed in time to give the lienholder the minimum notice required by subparagraph (3), the court may set a new hearing date.

Sec. 21. Section 648.5, subsection 1, Code 2022, is amended to read as follows:

1. An action for forcible entry and detainer shall be brought in a county where all or part of the premises is located. Such an action shall be tried as an equitable action. Upon receipt of the petition, the court shall set a date, time, and place for hearing. The court shall set the date of hearing no later than eight days from the filing date, except that the court shall set a later hearing date no later than fifteen days from the date of filing if the plaintiff requests or consents to the later date of hearing. The requirement regarding the setting of the initial hearing is not a jurisdictional requirement and does not affect the court's subject matter jurisdiction to hear the action for forcible entry and detainer.

DIVISION VI

MANUFACTURED HOUSING PROGRAM FUND

Sec. 22. Section 16.45, subsection 1, Code 2022, is amended to read as follows:

1. A manufactured housing program fund is created within the authority to further the goal of providing affordable

housing to Iowans. The moneys in the fund are to be used for the purpose of providing funding to financial institutions or other lenders to finance the purchase by an individual of a manufactured home that is in compliance with all laws, rules, and standards that are applicable to manufactured homes and manufactured housing. ~~The manufactured housing program fund is designed exclusively for manufactured homes sited on leased land.~~

DIVISION VII

TENANT COUNTERCLAIM FOR LANDLORD NONCOMPLIANCE

Sec. 23. Section 562B.25, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 5. *a.* In an action for possession based upon nonpayment of the rent or in an action for rent where the tenant is in possession, the tenant may counterclaim for an amount which the tenant may recover under the rental agreement or this chapter. In that event, the court from time to time may order the tenant to pay into court all or part of the rent accrued and thereafter accruing, and shall determine the amount due to each party. The party to whom a net amount is owed

shall be paid first from the money paid into court, and the balance by the other party. If rent does not remain due after application of this section, judgment shall be entered for the tenant in the action for possession. If the defense or counterclaim by the tenant is without merit and is not raised in good faith, the landlord may recover reasonable attorney fees.

b. In an action for rent where the tenant is not in possession, the tenant may counterclaim as provided in paragraph *"a"*, but the tenant is not required to pay any rent into court.

Sec. 24. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 25. APPLICABILITY. This division of this Act applies to actions for possession filed on or after the effective date

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of this division of this Act.

DIVISION VIII

UTILITY CHARGES

Sec. 26. Section 562B.14, subsection 6, Code 2022, is amended to read as follows:

6. The landlord or any person authorized to enter into a rental agreement on the landlord's behalf shall provide a written explanation of utility rates, fees, charges, and services, subject to section 562B.16, subsection 3, to the prospective tenant before the rental agreement is signed unless the utility charges are paid by the tenant directly to the utility company.

Sec. 27. Section 562B.16, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 3. A landlord that is responsible for payment of utilities being provided to the tenant shall not charge to the tenant an amount in excess of the actual cost of the utility and as specified in writing under section 562B.14, subsection 6. In addition to the actual cost of the utility, a landlord that is responsible for the payment of one or more utilities being provided to the tenant may impose a monthly utility administration fee to each tenant not to exceed five dollars per month. The amount of the utility administration fee shall not exceed five dollars per month regardless of the number of utilities being provided or the actual cost of the utilities being provided.

Sec. 28. Section 562B.25, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 2A. The failure of a tenant to pay utility charges that exceed the actual cost of the utility provided as required by section 562B.16, subsection 3, shall not be considered noncompliance with the rental agreement.

Sec. 29. Section 714H.3, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *h.* Section 562B.16, subsection 3.

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DIVISION IX

UNLAWFUL OUSTER

Sec. 30. Section 562B.24, Code 2022, is amended to read as follows:

562B.24 Tenant's remedies for landlord's unlawful ouster, exclusion or diminution of services.

If the landlord unlawfully removes or excludes the tenant from the manufactured home community or mobile home park or willfully diminishes services to the tenant by interrupting or causing the interruption of electric, gas, water or other essential service to the tenant, the tenant may recover possession, require the restoration of essential services or terminate the rental agreement and, in either case, recover an amount not to exceed two months' periodic rent, ~~and~~ twice the actual damages sustained by the tenant, and reasonable attorney fees. If the rental agreement is terminated, the landlord shall return all prepaid rent and security.

Sec. 31. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 32. APPLICABILITY. This division of this Act applies to actions under section 562B.24 filed on or after the effective date of this division of this Act.

DIVISION X

WRONGFUL FAILURE TO PROVIDE ESSENTIAL SERVICES

Sec. 33. NEW SECTION. **562B.23A Wrongful failure to supply running water or essential services.**

1. If contrary to the rental agreement or section 562B.16 the landlord deliberately or negligently fails to supply running water or other essential services, the tenant may give written notice to the landlord specifying the breach and may do one of the following:

a. Procure reasonable amounts of water or other essential services during the period of the landlord's noncompliance and deduct the actual and reasonable cost from the rent.

b. Recover damages based upon the diminution in the fair

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market value of the mobile home or mobile home space.

c. Recover any rent already paid for the period of the landlord's noncompliance which shall be reimbursed on a pro rata basis.

2. If the tenant proceeds under this section, the tenant may not proceed under section 562B.22 as to that breach.

3. The rights under this section do not arise until the tenant has given notice to the landlord or if the condition was

caused by the deliberate or negligent act or omission of the tenant, a member of the tenant's family, or other person on the premises with the consent of the tenant.

Sec. 34. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 35. APPLICABILITY. This division of this Act applies to actions under section 562B.23A filed on or after the effective date of this division of this Act.

DIVISION XI

TENANT CORRECTING DEFICIENCIES

Sec. 36. Section 562B.25, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4A. In any action by a landlord for possession based upon nonpayment of rent, proof by the tenant of all of the following shall be a defense to any action or claim for possession by the landlord, and the amounts expended by the tenant in correcting the deficiencies shall be deducted from the amount claimed by the landlord as unpaid rent:

a. That the landlord failed to comply either with the rental agreement or with section 562B.16.

b. That the tenant notified the landlord at least seven days prior to the due date of the tenant's rent payment of the tenant's intention to correct the condition constituting the breach referred to in paragraph *"a"* at the landlord's expense.

c. That the reasonable cost of correcting the condition constituting the breach is equal to or less than one month's periodic rent.

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d. That the tenant in good faith caused the condition constituting the breach to be corrected prior to receipt of written notice of the landlord's intention to terminate the rental agreement for nonpayment of rent.

Sec. 37. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 38. APPLICABILITY. This division of this Act applies to actions by a landlord for possession filed on or after the effective date of this division of this Act.

DIVISION XII

DENIAL OF RENTAL OR REFUSAL OF SALE

Sec. 39. Section 562B.19, subsection 3, paragraphs a and c, Code 2022, are amended to read as follows:

a. Deny rental unless the tenant or prospective tenant cannot conform to manufactured home community or park rules and regulations. A decision to deny rental shall conform to recognized principles, rules, and standards generally accepted by the professional manufactured home community or park industry to ensure the commercially reasonable safety and financial security of comparable manufactured home communities or mobile home parks. A landlord shall deliver the decision in writing to the tenant or prospective tenant as soon as

commercially feasible and shall provide the basis for a denial in writing to the tenant or prospective tenant at the time of the decision.

c. Deny any resident of a manufactured home community or mobile home park the right to sell that person's mobile home at a price of the person's own choosing, but may reserve the right to approve the purchaser of such mobile home as a tenant but such permission shall only be withheld for a legitimate business reason within the recognized principles, rules, and standards described in paragraph *"a"*, and may not be unreasonably withheld, provided however, that the landlord may, in the event of a sale to a third party, in order to upgrade the quality of the manufactured home community or mobile home

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park, require that any mobile home in a rundown condition or in disrepair be removed from the manufactured home community or park within sixty days. If the landlord refuses to approve the purchaser of the mobile home as a tenant, a legitimate business reason for the refusal shall be provided in writing to the resident who is selling the mobile home.

DIVISION XIII

PROHIBITED RENTAL AGREEMENT PROVISION —— HOME EQUIPMENT

Sec. 40. Section 562B.11, subsection 1, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *e.* Agrees to modify the physical characteristics or equipment of the mobile home, manufactured home, or modular home if the modification impairs the ability of the tenant to move the home from the mobile home space, unless otherwise required by federal or state law or by local ordinance.

DIVISION XIV

RENTAL AGREEMENT TERMS

Sec. 41. Section 562B.11, subsection 1, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *f.* Authorizes imposition of fines, penalties, or fees solely as a punishment or in amounts in excess of actual damages or costs incurred.

NEW PARAGRAPH. *g.* Authorizes a person to confess judgment on a claim arising out of the rental agreement.

NEW PARAGRAPH. *h.* Authorizes prohibitions, limitations, additional deposits, or other restrictive policies that are not based on ordinary wear and tear expected to occur during a tenancy or that are not based on community safety standards.

Sec. 42. Section 562B.11, subsection 3, Code 2022, is amended to read as follows:

3. A provision prohibited by this section included in a rental agreement is unenforceable. If a landlord ~~or tenant~~ knowingly and willfully uses a rental agreement containing provisions known to be prohibited by this chapter, the ~~other~~

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~~party~~ tenant may recover actual damages sustained by the tenant and not more than three months' periodic rent and reasonable attorney fees.

DIVISION XV
RENTAL DEPOSITS

Sec. 43. Section 562B.7, subsection 12, Code 2022, is amended to read as follows:

12. *"Rental deposit"* means a deposit of money to secure performance of a ~~mobile home space~~ rental agreement under this chapter ~~other than a deposit which is exclusively in advance payment of rent~~.

Sec. 44. Section 562B.13, subsection 2, Code 2022, is amended to read as follows:

2. All rental deposits shall be held by the landlord for the tenant, who is a party to the agreement, in a bank, credit union, or savings and loan association which is insured by an agency of the federal government. Rental deposits shall not be commingled with the personal funds of the landlord. All rental deposits may be held in a trust account, which may be a common trust account and which may be an interest-bearing account. Any interest earned on a rental deposit during the first five years of a tenancy shall be the property of the landlord.

Sec. 45. Section 562B.13, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 9. The court may, in any action on a rental agreement, award reasonable attorney fees to the prevailing party.

DIVISION XVI
LANDLORD SALES

Sec. 46. NEW SECTION. **562B.17A Sale of mobile home by landlord.**

1. Any sale of a mobile home located in a manufactured home community or mobile home park by a landlord or landlord's agent shall be by written agreement and the landlord shall produce and assign the current certificate of title obtained

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from the department of transportation. The agreement shall state the basic terms of sale, including the total cost of the mobile home, finance charges, annual percentage rate, and the frequency and amount of each installment payment. Such agreement shall comply with the finance charge rate limitation in section 103A.58, subsection 1.

2. Any such sale that does not comply with this section may be voided by the buyer and the buyer may recover damages incurred, amounts paid as a rental deposit in excess of two months' rent for the mobile home, and reasonable attorney fees.

3. A claim under subsection 2 may be combined with an action under chapter 648.

Sec. 47. Section 648.19, subsection 1, Code 2022, is amended to read as follows:

1. An action under this chapter shall not be filed in connection with any other action, with the exception of a claim for rent or recovery as provided in section 555B.3, 562A.24, 562A.32, 562B.17A, 562B.22, 562B.25, or 562B.27, nor shall it be made the subject of counterclaim.

DIVISION XVII

NONJUDICIAL FORECLOSURE

Sec. 48. Section 654.18, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 5. Actions under this section initiated on or after July 1, 2022, shall not be allowed for property consisting of a mobile home as defined in section 562B.7.

Sec. 49. Section 655A.9, Code 2022, is amended to read as follows:

655A.9 Application of chapter.

1. This chapter does not apply to real estate used for an agricultural purpose as defined in section 535.13, or to a one or two family dwelling which is, at the time of the initiation of the foreclosure, occupied by a legal or equitable titleholder.

2. Actions under this chapter initiated on or after July 1,

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2022, shall not be allowed for property consisting of a mobile home as defined in section 562B.7.

Sec. 50. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.>

2. Title page, by striking lines 1 through 8 and inserting

<An Act relating to property law by modifying provisions relating to rental properties, manufactured home communities, mobile home parks, and manufactured mobile home communities, modifying provisions governing actions relating to such properties, making penalties applicable, and including effective date and applicability provisions.>

ZACH WAHLS
SARAH TRONE GARRIOTT

S–5138

Amend House File 2507, as amended, passed, and reprinted by the House, as follows:

1. Page 20, line 24, by striking <*a.*>
2. Page 20, line 26, by striking <(1)> and inserting <*a.*>
3. Page 20, line 28, by striking <(2)> and inserting <*b.*>
4. Page 20, line 30, by striking <(3)> and inserting <*c.*>
5. Page 20, line 34, by striking <(a)> and inserting <(1)>
6. Page 21, line 1, by striking <(b)> and inserting <(2)>
7. Page 21, line 2, by striking <(c)> and inserting <(3)>

8. Page 21, line 4, by striking <(d)> and inserting <(4)>
9. Page 21, line 10, by striking <(e)> and inserting <(5)>
10. Page 21, line 12, by striking <(4)> and inserting <*d.*>
11. Page 21, line 12, after <physician> by inserting <, physician assistant,>
12. Page 21, lines 18 and 19, by striking <paragraph *"a"*, subparagraph (2) or (3),> and inserting <paragraph *"b"* or *"c"*,>
13. Page 22, lines 9 through 11, by striking <*"a"*, subparagraph (3), the court may identify a category listed in subsection 2, paragraph *"a"*, subparagraph (3),> and inserting <*"c"*, the court may identify a category listed in subsection 2, paragraph *"c"*,>
14. Page 22, lines 22 and 24, by striking <*"a"*, subparagraph (3), subparagraph division (b), (c), (d), or (e),> and inserting <*"c"*, subparagraph (2), (3), (4), or (5),>
15. Page 22, line 28, by striking <*"a"*, subparagraph (2) or (3),> and inserting <*"b"* or *"c"*,>
16. Page 23, lines 17 and 18, by striking <*"a"*, subparagraph (2) or (3),> and inserting <~~*"a"*~~ *"b"* or *"c"*,>
17. Page 24, lines 12 and 13, by striking <*"a"*, subparagraph (3), subparagraph division (b), (c), (d), or (e),> and inserting <*"c"*, subparagraph (2), (3),(4), or (5),>
18. Page 24, line 21, by striking <*"a"*,> and inserting <*"c"*,>
19. Page 25, line 21, by striking <paragraph a,>
20. Page 25, line 22, by striking <paragraph> and inserting

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<subsection>
21. Page 25, line 24, before <*a.*> by inserting <1.>
22. Page 41, line 35, before <Contingent> by inserting <1.>
23. Page 41, line 35, by striking <these purposes,> and inserting <juvenile delinquent graduated sanctions services,>
24. Page 42, line 2, by striking <1.> and inserting <*a.*>
25. Page 42, line 6, by striking <2.> and inserting <*b.*>
26. Page 42, line 9, by striking <3.> and inserting <*c.*>
27. Page 42, line 14, by striking <4.> and inserting <*d.*>
28. Page 42, after line 16 by inserting:

<2. The supreme court shall prescribe rules to implement this section.>

29. Page 42, by striking lines 22 through 32 and inserting:

<1. *a.* Notwithstanding any other provision of law to the contrary, and subject to subsection 2, for the fiscal years beginning on or after July 1, 2020, federal funds received by the state pursuant to Tit. IV-B or Tit. IV-E of the federal Social Security Act or the federal Family First Prevention Services Act of 2018, Pub. L. No. 115-123, as the result of the expenditure of state funds by the judicial branch, including state funds expended during a previous state fiscal year, are appropriated to the judicial branch to be used as additional funding for juvenile court services, juvenile

delinquent graduated sanctions services, and court-ordered services, including but not limited to qualified expenses and administrative costs.

b. Notwithstanding section 8.33, moneys appropriated to the judicial branch under paragraph *"a"* that remain unencumbered or unobligated at the close of the fiscal year shall not revert to the general fund of the state but shall remain available to the judicial branch for expenditure for juvenile court services, juvenile delinquent graduated sanctions services, and court-ordered services, including but not limited to qualified expenses and administrative costs, for the next two succeeding fiscal years.

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2. The department of human services may retain and is appropriated the portion of the federal funds received pursuant to subsection 1 in an amount equal to the administrative costs incurred by the department of human services in obtaining such funds.>

30. Title page, line 6, after <provisions> by inserting <, and making appropriations>

JEFF EDLER

S–5139

Amend Senate File 2257 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

JUVENILE JUSTICE —— CONSTRUCTION AND DEFINITIONS

Section 1. Section 232.1, Code 2022, is amended to read as follows:

232.1 Rules of construction.

This chapter shall be liberally construed to the end that each child under the jurisdiction of the court shall receive, preferably in the child's own home, the care, guidance and control that will best serve the child's welfare and the best interest of the state. When a child is removed from the control of the child's parents, the court shall secure the least restrictive care for the ~~child care as nearly as possible equivalent to that which should have been given by the parents~~ child's placement with a preference for placement with the child's family or a fictive kin.

Sec. 2. Section 232.2, subsection 6, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

6. *"Child in need of assistance"* means a child who has been found to meet the grounds for adjudication pursuant to section 232.96A.

Sec. 3. Section 232.2, subsection 9, Code 2022, is amended to read as follows:

9. *"Court appointed special advocate"* means a person duly certified by the child advocacy board created in section 237.16 for participation in the court appointed special advocate program and appointed by the court to ~~represent the interests of a child in any judicial proceeding to which the child is a party or is called as a witness or relating to any dispositional order involving the child resulting from such proceeding~~ carry out duties pursuant to section 237.24.

Sec. 4. Section 232.2, Code 2022, is amended by adding the

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following new subsections:

NEW SUBSECTION. 20A. *"Fictive kin"* means an adult person who is not a relative of a child but who has an emotionally positive significant relationship with the child or the child's family.

NEW SUBSECTION. 20B. *"Foster care"* means the provision of parental nurturing, including but not limited to the furnishing of food, lodging, training, education, supervision, treatment, or other care, to a child on a full-time basis by a person, including an adult relative or fictive kin of the child, and where the child is under the placement, care, or supervision of the department, juvenile court services, or tribes with whom the department has entered into an agreement pursuant to a court order or voluntary placement, but not including a guardian of the child.

Sec. 5. Section 232.2, subsection 21, paragraph a, Code 2022, is amended to read as follows:

a. "Guardian" means a person who is not the parent of a child, but who has been appointed by a court ~~or juvenile court~~ having jurisdiction over the child, to have a permanent self-sustaining relationship with the child and to make important decisions which have a permanent effect on the life and development of that child and to promote the general welfare of that child. A guardian may be a court ~~or a juvenile court~~. Guardian does not mean conservator, as defined in section 633.3, although a person who is appointed to be a guardian may also be appointed to be a conservator.

Sec. 6. Section 232.2, subsection 22, paragraph a, Code 2022, is amended to read as follows:

a. "Guardian ad litem" means a person appointed by the court to represent the interests of a child in any judicial proceeding to which the child is a party~~, and includes a court appointed special advocate, except that a court appointed special advocate shall not file motions or petitions pursuant to section 232.54, subsection 1, paragraphs *"a"* and *"d"*, section~~

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~~232.103, subsection 2, paragraph *"c"*, and section 232.111~~.

Sec. 7. Section 232.2, subsection 22, paragraph b,

unnumbered paragraph 1, Code 2022, is amended to read as follows:

Unless otherwise enlarged or circumscribed after a finding of good cause by a court or juvenile court having jurisdiction over the child or by operation of law, the duties of a guardian ad litem with respect to a child shall include the following:

Sec. 8. Section 232.2, subsection 22, paragraph b, Code 2022, is amended by adding the following new subparagraphs:

NEW SUBPARAGRAPH. (8) Submitting a written report to the juvenile court and to each of the parties detailing compliance with this subsection. If the guardian ad litem is also appointed to represent the child as an attorney, the written report shall contain an assessment of this dual role and whether there is a need for the court to appoint a separate guardian ad litem. A written report shall be submitted for each court hearing unless otherwise ordered by the court.

NEW SUBPARAGRAPH. (9) Providing a sibling of a child not placed with the child with the reasons why the child and the sibling have not been placed together and an explanation of the efforts being made to facilitate placement together or why efforts to place the child and sibling together are not appropriate. This subparagraph shall not apply if the sibling's age or mental state makes such explanations inappropriate.

Sec. 9. Section 232.2, subsection 22, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *e.* In determining the best interests of the child, rather than relying solely on a guardian ad litem's life experiences or instinct, a guardian ad litem shall, with the primary goal of achieving permanency for the child by preserving the child's family or reunifying the child with the child's family, do all of the following:

(1) Determine the child's circumstances through a full,

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independent, and efficient investigation, including the information gathered from the child's medical, mental health, and education professionals, social workers, other relevant experts, and other sources obtained in accordance with this subsection.

(2) Assess the child and the totality of the child's circumstances at the time of each placement determination, including any potential trauma to the child that may be caused by any recommended action.

(3) Examine all options available to the child in light of the permanency plans.

(4) Incorporate a child's expressed wishes in recommendations and reports.

Sec. 10. Section 232.2, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 35A. *"Neglect"* means the failure on the

part of a person responsible for the care of a child to provide for adequate food, shelter, clothing, medical or mental health treatment, supervision, or other care necessary for the child's health and welfare when financially able to do so or when offered financial or other reasonable means to do so.

Sec. 11. Section 232.2, subsection 42, Code 2022, is amended to read as follows:

42. ~~*"Physical abuse or neglect"* or *"abuse or neglect"*~~ *"Physical abuse"* means any nonaccidental physical injury suffered by a child as the result of the acts or omissions of the child's parent, guardian, or custodian or other person legally responsible for the child.

Sec. 12. Section 232.2, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 045A. *"Putative father"* means a person who has been identified by the mother of a child as the child's potential biological father or a person who claims to be the biological father of a child and who was not married to the child's mother at the time of the child's birth, when all of

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the following circumstances apply:

a. Biological testing has not excluded the person as the child's biological father.

b. No legal father has been established, biological testing excludes the previously identified father, or previous paternity has otherwise been disestablished.

c. Information sufficient to identify and find the person has been provided to the county attorney by the mother, the person, or a party to proceedings under this chapter.

d. The person has not been found by a court to be uncooperative with genetic testing.

Sec. 13. Section 232.2, subsection 46A, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

46A. *"Relative"* means an individual related to a child within the fourth degree of consanguinity or affinity, by marriage, or through adoption. For purposes of subchapters III and IV, *"relative"* includes the parent of a sibling of the child if the sibling's parent's parental rights were not previously terminated in relation to the child.

Sec. 14. Section 232.2, subsection 52, Code 2022, is amended to read as follows:

52. *"Sibling"* means an individual who is related to another individual by blood, adoption, or affinity through a common legal or biological parent, regardless of whether a common legal or biological parent's parental rights have been terminated.

Sec. 15. Section 232.3, subsection 1, Code 2022, is amended to read as follows:

1. During the pendency of an action under this chapter, a

party to the action is estopped from litigating concurrently the custody, guardianship, or placement of a child who is the subject of the action, in a court other than the juvenile court. A district judge, district associate judge, magistrate, or judicial hospitalization referee, upon notice

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of the pendency of an action under this chapter, shall not issue an order, finding, or decision relating to the custody, guardianship, or placement of the child who is the subject of the action, under any law, including but not limited to chapter 232D, 598, 598B, or 633.

DIVISION II

JUVENILE DELINQUENCY PROCEEDINGS —— TAKING A CHILD INTO CUSTODY

Sec. 16. Section 232.19, subsection 1, paragraph c, Code 2022, is amended to read as follows:

c. By a peace officer, when the peace officer has reasonable grounds to believe the child has run away from the child's parents, guardian, or custodian, for the purposes of determining whether the child shall be reunited with the child's parents, guardian, or custodian, or placed in shelter care~~, or, if the child is a chronic runaway and the county has an approved county runaway treatment plan, placed in a runaway assessment center under section 232.196~~.

DIVISION III

JUVENILE DELINQUENCY PROCEEDINGS —— JUDICIAL PROCEEDINGS

Sec. 17. Section 232.37, subsection 4, Code 2022, is amended to read as follows:

4. Service of summons or notice shall be made personally by the sheriff by delivering a copy of the summons or notice to the person being served. If the court determines that personal service of a summons or notice is impracticable, the court may order service by certified mail addressed to the last known address, by publication, or by electronic mail or other electronic means with the consent of the party to be served. Service of summons or notice shall be made not less than five days before the time fixed for hearing. Service of summons, notice, subpoenas or other process, after an initial valid summons or notice, shall be made in accordance with the rules of the court governing such service in civil actions.

Sec. 18. Section 232.57, subsection 2, paragraphs d, e, f, and g, Code 2022, are amended to read as follows:

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d. The parent has been convicted of the murder of another child ~~of the parent~~.

e. The parent has been convicted of the voluntary manslaughter of another child ~~of the parent~~.

f. The parent has been convicted of aiding or abetting, attempting, conspiring in, or soliciting the commission of

the murder or voluntary manslaughter of another child ~~of the parent~~.

g. The parent has been convicted of a felony assault which resulted in serious bodily injury of the child or of another child ~~of the parent~~.

DIVISION IV

CHILD IN NEED OF ASSISTANCE PROCEEDINGS —— CHILD ABUSE REPORTING, ASSESSMENT, AND REHABILITATION

Sec. 19. Section 232.67, Code 2022, is amended to read as follows:

232.67 Legislative findings —— purpose and policy.

Children in this state are in urgent need of protection from abuse. It is the purpose and policy of ~~this part 2 of~~ subchapter III to provide the greatest possible protection to victims or potential victims of abuse through encouraging the increased reporting of suspected cases of abuse, ensuring the thorough and prompt assessment of these reports, and providing rehabilitative services, where appropriate and whenever possible to abused children and their families which will stabilize the home environment so that the family can remain intact without further danger to the child. The state recognizes removing a child from the child's family will cause the child harm and that the harm caused by a child's removal must be weighed against the potential harm in allowing a child to remain with the child's family.

Sec. 20. Section 232.68, subsection 2, paragraph a, subparagraph (4), subparagraph division (a), Code 2022, is amended to read as follows:

(a) The failure on the part of a person responsible for

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the care of a child to provide for the adequate food, shelter, clothing, medical or mental health treatment, supervision, or other care necessary for the child's health and welfare when financially able to do so or when offered financial or other reasonable means to do so and the failure occurred within five years of a report.

Sec. 21. Section 232.68, subsection 2, paragraph a, subparagraph (7), Code 2022, is amended to read as follows:

(7) The person responsible for the care of a child, in the presence of a child, as defined in section ~~232.2, subsection 6, paragraph *"p"*~~ 232.96A, subsection 16, paragraph *"e"*, unlawfully uses, possesses, manufactures, cultivates, or distributes a dangerous substance, as defined in section ~~232.2, subsection 6, paragraph *"p"*~~ 232.96A, subsection 16, paragraph *"f"*, or knowingly allows such use, possession, manufacture, cultivation, or distribution by another person in the presence of a child; possesses a product with the intent to use the product as a precursor or an intermediary to a dangerous substance in the presence of a child; or unlawfully uses, possesses, manufactures, cultivates, or distributes a

dangerous substance specified in section ~~232.2, subsection 6, paragraph "p", subparagraph (2), subparagraph division (a), (b), or (c)~~ 232.96A, subsection 16, paragraph *"f"*, subparagraph (1), (2), or (3), in a child's home, on the premises, or in a motor vehicle located on the premises and the incident occurred within five years of a report to the department.

Sec. 22. Section 232.70, subsection 1, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

1. Each report made by a mandatory reporter, as defined in section 232.69, subsection 1, or a permissive reporter, as defined in section 232.69, subsection 2, shall be oral.

Sec. 23. Section 232.71B, subsection 11, Code 2022, is amended to read as follows:

11. *Multidisciplinary team.* In each county or multicounty

area in which more than fifty child abuse reports are made per year, the department shall establish a multidisciplinary team, as defined in section 235A.13, subsection 8. Upon the department's request, a multidisciplinary team shall assist the department in the assessment, diagnosis, and disposition of a child abuse assessment and the subsequent provision of services.

DIVISION V

CHILD IN NEED OF ASSISTANCE PROCEEDINGS —— TEMPORARY CUSTODY OF A CHILD

Sec. 24. Section 232.78, subsection 1, paragraph b, Code 2022, is amended to read as follows:

b. ~~It appears~~ The court has found that substantial evidence exists to demonstrate that the need for removal outweighs the potential harm removal of the child would cause the child, including but not limited to any physical, emotional, social, and mental trauma the removal may cause the child.

c. The court finds that the child's immediate removal is necessary to avoid imminent danger to the child's life or health. The circumstances or conditions indicating the presence of such imminent danger shall include but are not limited to any of the following:

(1) The refusal or failure of the person responsible for the care of the child to comply with the request of a peace officer, juvenile court officer, or child protection worker for such person to obtain and provide to the requester the results of a physical or mental examination of the child. The request for a physical examination of the child may specify the performance of a medically relevant test.

(2) The refusal or failure of the person responsible for the care of the child or a person present in the person's home to comply with a request of a peace officer, juvenile court

officer, or child protection worker for such a person to submit to and provide to the requester the results of a medically relevant test of the person.

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Sec. 25. Section 232.78, subsection 7, Code 2022, is amended to read as follows:

7. Any order entered under this section authorizing temporary removal of a child must include ~~both~~ all of the following:

a. A determination made by the court that continuation of the child in the child's home would be contrary to the welfare of the child. Such a determination must be made on a case-by-case basis. The grounds for the court's determination must be explicitly documented and stated in the order. However, preserving the safety of the child must be the court's paramount consideration. If imminent danger to the child's life or health exists at the time of the court's consideration, the determination shall not be a prerequisite to the removal of the child.

b. A determination made by the court that the necessity of the removal of the child from the child's home, due to an imminent risk to the child's life or health, is greater than the potential harm including but not limited to physical, emotional, social, and mental trauma the removal may cause the child.

~~*b.*~~ *c.* A statement informing the child's parent that the consequences of a permanent removal may include termination of the parent's rights with respect to the child.

Sec. 26. Section 232.78, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 8. *a.* If the juvenile court determines that the child should be temporarily removed from the child's home under this section, the court shall consider placing the child in the custody of another parent of the child. If the juvenile court determines placing custody of the child with any of the child's parents is not in the child's best interests, the child's custody shall be transferred to the department for placement of the child in any of the following categories in the following order of priority:

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(1) An adult relative of the child including but not limited to adult siblings and parents of siblings.

(2) A fictive kin.

(3) Any other suitable placement identified by the child's relatives.

(4) An individual licensed to provide foster care pursuant to chapter 237. If the child is placed with a licensed foster care provider, the department shall assign decision-making

authority to the foster care provider for the purpose of applying the reasonable and prudent parent standard during the child's placement.

(5) A group care facility, shelter care facility, or other residential treatment facility.

b. (1) If the court places custody of the child with the department pursuant to paragraph *"a"*, the court may identify a category listed in paragraph *"a"* for placement of the child, but the department shall have the authority to select the specific person or facility within that category for placement, subject to court review at the request of an interested party.

(2) The court shall give deference to the department's decision for placement of a child. A party opposed to the department's placement of a child shall have the burden to prove the department failed to act in the child's best interests by unreasonably or irresponsibly failing to discharge its duties in selecting a suitable placement for the child.

c. A juvenile court shall not order placement of a child in a category listed in paragraph *"a"*, subparagraph (2), (3), (4), or (5), without a specific finding that placement with a relative is not in the child's best interests and shall provide reasons for the court's finding.

Sec. 27. Section 232.79, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *0c.* Make every reasonable effort to place the child with an adult relative or a fictive kin of the child.

Sec. 28. Section 232.79A, Code 2022, is amended to read as

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follows:

232.79A Children without adult supervision.

If a peace officer determines that a child does not have adult supervision because the child's parent, guardian, or other person responsible for the care of the child has been arrested and detained or has been unexpectedly incapacitated, and that no adult who is legally responsible for the care of the child can be located within a reasonable period of time, the peace officer shall attempt to place the child with an adult relative of the child~~, an adult person who cares for the child, or another adult person who is known to the child~~ or a fictive kin. The person with whom the child is placed is authorized to give consent for emergency medical treatment of the child and shall not be held liable for any action arising from giving the consent. Upon the request of the peace officer, the department shall assist in making the placement. The placement shall not exceed a period of twenty-four hours and shall be terminated when a person who is legally responsible for the care of the child is located and takes custody of the child. If a person who is legally responsible for the care of the child cannot be located within the twenty-four hour period or a placement in accordance with

this section is unavailable, the provisions of section 232.79 shall apply. If the person with whom the child is placed charges a fee for the care of the child, the fee shall be paid from funds provided in the appropriation to the department for protective child care.

Sec. 29. NEW SECTION. **232.79B Safety plans.**

1. For the purposes of this section, "safety plan" means a short-term, time-limited agreement entered into between the department and a child's parent designed to address signs of imminent or impending danger to a child identified by the department.

2. Upon the department's determination that potential harm to a child may be mitigated by the development of a safety

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plan, the department may enter into a safety plan with the child's parent.

3. A safety plan shall not be construed as a removal from parental custody absent a court order placing the child with a person or facility other than the parent who entered into the safety plan.

4. The department shall adopt rules to implement this section.

Sec. 30. Section 232.82, Code 2022, is amended to read as follows:

232.82 Removal of sexual offenders, ~~and~~ physical abusers, and domestic abusers from the residence pursuant to court order.

1. Notwithstanding section 561.15, if it is alleged by a person authorized to file a petition under section 232.87, subsection 2, or by the court on its own motion, that a parent, guardian, custodian, or an adult member of the household in which a child resides has committed a sexual offense with or against the child, pursuant to chapter 709 or section 726.2, or ~~a~~ physical abuse as defined ~~by~~ in section 232.2, subsection 42, or domestic abuse assault as defined in section 708.2A, against the child or another household member at a location or in a manner a reasonably prudent person would know the child could see, hear, or otherwise experience, the juvenile court may enter an ex parte order requiring the alleged sexual offender, ~~or~~ physical abuser, or domestic abuser to vacate the child's residence upon a showing that probable cause exists to believe that the sexual offense, ~~or~~ physical abuse, or domestic abuse has occurred and that substantial evidence exists to believe that the presence of the alleged sexual offender, ~~or~~ physical abuser, or domestic abuser in the child's residence presents a danger to the child's life or physical, emotional, or mental health.

2. If an order is entered under subsection 1 and a petition has not yet been filed under this chapter, the petition shall be filed under section 232.87 by the county attorney, the

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department of human services, or a juvenile court officer within three days of the entering of the order.

3. The juvenile court may order on its own motion, or shall order upon the request of the alleged sexual offender, ~~or~~ physical abuser, or domestic abuser a hearing to determine whether the order to vacate the residence should be upheld, modified, or vacated. The hearing shall be held within thirty days of removal of the alleged sexual offender, physical abuser, or domestic abuser from the residence. The juvenile court may in any later child in need of assistance proceeding uphold, modify, or vacate the order to vacate the residence.

Sec. 31. Section 232.84, subsection 2, Code 2022, is amended to read as follows:

2. ~~Within~~ Unless the custody of a child is transferred from one of the child's parents to another parent of the child, within thirty days after the entry of an order under this chapter ~~transferring custody of a child to an agency for placement~~ removing a child from the custody of a parent or parents of the child, the ~~agency~~ department shall exercise due diligence in identifying and providing notice to the child's grandparents, aunts, uncles, adult siblings, parents of the child's siblings, and adult relatives suggested by the child's parents, subject to exceptions due to the presence of family or domestic violence.

Sec. 32. Section 232.84, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 4. The agency may share information as necessary to explore a child's potential placement with any adult relative who may receive notice pursuant to subsection 2.

NEW SUBSECTION. 5. If an adult relative entitled to notice pursuant to subsection 2 is later discovered by or identified to the department, the department shall provide notice to that relative within thirty days of that relative becoming known to the department.

Sec. 33. NEW SECTION. **232.96A Child in need of assistance**

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adjudication.

The court may adjudicate a child in need of assistance if such child is unmarried and meets any of the following requirements:

1. The child's parent, guardian, or other custodian has abandoned or deserted the child.

2. The child's parent, guardian, other custodian, or other member of the household in which the child resides has physically abused or neglected the child, or is imminently likely to physically abuse or neglect the child.

3. The child has suffered or is imminently likely to suffer harmful effects as a result of any of the following:

a. Mental injury caused by the acts of the child's parent, guardian, or custodian.

b. The failure of the child's parent, guardian, custodian, or other member of the household in which the child resides to exercise a reasonable degree of care in supervising the child.

c. The child's parent, guardian, custodian, or person responsible for the care of a child as defined in section 232.68, has knowingly disseminated or exhibited obscene material, as defined in section 728.1, to the child.

4. The child has been, or is imminently likely to be, sexually abused by the child's parent, guardian, custodian, or other member of the household in which the child resides.

5. The child is in need of medical treatment to cure, alleviate, or prevent serious physical injury or illness and whose parent, guardian, or custodian is unwilling or unable to provide such treatment.

6. The child is in need of treatment to cure or alleviate serious mental illness or disorder, or emotional damage as evidenced by severe anxiety, depression, withdrawal, or untoward aggressive behavior toward the child's self or others and the child's parent, guardian, or custodian is unwilling to provide such treatment.

7. The child's parent, guardian, or custodian fails to

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exercise a minimal degree of care in supplying the child with adequate food, clothing, or shelter and refuses other means made available to provide such essentials.

8. The child has committed a delinquent act as a result of pressure, guidance, or approval from a parent, guardian, custodian, or other member of the household in which the child resides.

9. The child has been the subject of or a party to sexual activities for hire or who poses for live display or for photographic or other means of pictorial reproduction or display which is designed to appeal to the prurient interest, is patently offensive, and taken as a whole, lacks serious literary, scientific, political, or artistic value.

10. The child is without a parent, guardian, or other custodian.

11. The child's parent, guardian, or other custodian for good cause desires to be relieved of the child's care and custody.

12. The child for good cause desires to have the child's parents relieved of the child's care and custody.

13. The child is in need of treatment to cure or alleviate chemical dependency and whose parent, guardian, or custodian is unwilling or unable to provide such treatment.

14. The child's parent, guardian, or custodian suffers from a mental incapacity, a mental condition, imprisonment, or drug or alcohol abuse that results in the child not receiving

adequate care or being imminently likely not to receive adequate care.

15. The child's body has an illegal drug present as a direct and foreseeable consequence of the acts or omissions of the child's parent, guardian, or custodian. The presence of the drug shall be determined in accordance with a medically relevant test as defined in section 232.73.

16. The child's parent, guardian, custodian, or other adult member of the household in which a child resides does any of

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the following:

a. Unlawfully uses, possesses, manufactures, cultivates, or distributes a dangerous substance in the presence of the child.

b. Knowingly allows the use, possession, manufacture, cultivation, or distribution of a dangerous substance by another person in the presence of the child.

c. Possesses a product with the intent to use the product as a precursor or an intermediary to a dangerous substance in the presence of the child.

d. Unlawfully uses, possesses, manufactures, cultivates, or distributes a dangerous substance listed in paragraph *"f"*, subparagraph (1), (2), or (3), in the child's home, on the premises, or in a motor vehicle located on the premises.

e. For the purposes of this subsection, "*in the presence of a child"* means in the physical presence of a child or occurring under other circumstances in which a reasonably prudent person would know that the use, possession, manufacture, cultivation, or distribution of a dangerous substance may be seen, smelled, ingested, or heard by a child.

f. For the purposes of this subsection, *"dangerous substance"* means any of the following:

(1) Amphetamine, its salts, isomers, or salts of its isomers.

(2) Methamphetamine, its salts, isomers, or salts of its isomers.

(3) A chemical or combination of chemicals that poses a reasonable risk of causing an explosion, fire, or other danger to the life or health of persons who are in the vicinity while the chemical or combination of chemicals is used or is intended to be used in any of the following:

(a) The process of manufacturing an illegal or controlled substance.

(b) As a precursor in the manufacturing of an illegal or controlled substance.

(c) As an intermediary in the manufacturing of an illegal

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or controlled substance.

(4) Cocaine, its salts, isomers, salts of its isomers, or

derivatives.

(5) Heroin, its salts, isomers, salts of its isomers, or derivatives.

(6) Opium and opiate, and any salt, compound, derivative, or preparation of opium or opiate.

17. The child is a newborn infant whose parent has voluntarily released custody of the child in accordance with chapter 233.

DIVISION VI

CHILD IN NEED OF ASSISTANCE PROCEEDINGS —— JUDICIAL PROCEEDINGS

Sec. 34. Section 232.89, subsection 1, Code 2022, is amended to read as follows:

1. Upon the filing of a petition the parent, guardian, putative father, or custodian identified in the petition shall have the right to counsel in connection with all subsequent hearings and proceedings. If that person desires but is financially unable to employ counsel, the court shall appoint counsel. A putative father is not a necessary party to a proceeding until the putative father's paternity is established.

Sec. 35. Section 232.89, subsection 2, paragraph a, Code 2022, is amended to read as follows:

a. If the child is represented by counsel and the court determines there is a conflict of interest between the child and the child's parent, guardian, putative father, or custodian and that the retained counsel could not properly represent the child as a result of the conflict, the court shall appoint other counsel to represent the child, who shall be compensated pursuant to the provisions of subsection 3.

Sec. 36. Section 232.89, subsection 4, Code 2022, is amended to read as follows:

4. The same person may serve both as the child's counsel and as guardian ad litem. However, the court may appoint a

separate guardian ad litem, if the same person cannot properly represent the legal interests of the child as legal counsel and also represent the best ~~interest~~ interests of the child as guardian ad litem in accordance with section 232.2, subsection 22, paragraph *"e"*, or a separate guardian ad litem is required to fulfill the requirements of subsection 2. If a child's guardian ad litem is also acting as an attorney for the child, each report submitted to a court by the guardian ad litem shall contain a statement indicating whether a separate guardian ad litem is required based on the guardian ad litem's interviews and investigations conducted until the time a report is submitted to the court.

Sec. 37. Section 232.91, subsections 1, 2, 3, and 4, Code 2022, are amended to read as follows:

1. Any hearings or proceedings under this subchapter subsequent to the filing of a petition shall not take place

without the presence of the child's parent, guardian, custodian, or guardian ad litem in accordance with and subject to section 232.38. A parent without custody ~~may petition the court to~~ shall be made a party to proceedings under this subchapter.

2. An agency, facility, institution, ~~or person~~ adult relative with a substantial relationship to the child, fictive kin, ~~including a foster parent or an individual providing preadoptive care,~~ or individual providing custodial care to the child may petition the court to be made a party to proceedings under this subchapter.

3. Any person who is entitled under section 232.88 to receive notice of a hearing concerning a child shall be given the opportunity to be heard in any other review or hearing involving the child. A foster parent, adult relative, or other individual with whom a child has been placed for preadoptive care shall have the right to be heard in any proceeding involving the child. If a child is of an age appropriate to attend the hearing but the child does not attend, the court

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shall determine if the child was informed of the child's right to attend the hearing. A presumption exists that it is in the best interests of a child ~~fourteen~~ ten years of age or older to attend all hearings.

4. If a child is of an age appropriate to attend a hearing but the child does not attend, the court shall determine if the child was informed of the child's right to attend the hearing. A presumption exists that it is in the best interests of a child ~~fourteen~~ ten years of age or older to attend all hearings and all staff or family meetings involving placement options or services provided to the child. The department shall allow the child to attend all such hearings and meetings unless the attorney for the child finds the child's attendance is not in the best interests of the child. If the child is excluded from attending a hearing or meeting, the department shall maintain a written record detailing the reasons for excluding the child. Notwithstanding sections 232.147 through 232.151, a copy of the written record shall be made available to the child upon the request of the child after reaching the age of majority.

Sec. 38. NEW SECTION. **232.94B Continuances.**

A court may grant a continuance in a child in need of assistance proceeding or a termination of a parent-child relationship proceeding only for good cause shown.

Sec. 39. Section 232.95, subsection 2, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

2. *a.* Upon such hearing, the court may do any of the following:

(1) Return the child to a person with legal custody of the child pending a final order of disposition.

(2) Remove the child from home and place the child with a parent of the child pending a final order of disposition.

(3) Remove the child from home and place custody of the child with the department for placement of the child, pending a final order of disposition, in any of the following categories

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in the following order of priority:

(a) An adult relative of the child including but not limited to adult siblings and parents of siblings.

(b) A fictive kin.

(c) Any other suitable placement identified by the child's relatives.

(d) An individual licensed to provide foster care pursuant to chapter 237. If the child is placed with a licensed foster care provider, the department shall assign decision-making authority to the foster care provider for the purpose of applying the reasonable and prudent parent standard during the child's placement.

(e) A group care facility, shelter care facility, or other residential treatment facility.

(4) Authorize a physician or hospital to provide medical or surgical procedures if such procedures are necessary to safeguard the child's life or health.

Sec. 40. Section 232.95, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 5. *a.* If the court orders a removal pursuant to subsection 2, paragraph *"a"*, subparagraph (2) or (3), the court shall, in addition, make a determination that continuation of the child in the child's home would be contrary to the welfare of the child, and that reasonable efforts have been made to prevent or eliminate the need for removal of the child from the child's home. The court shall also make a finding that substantial evidence exists to demonstrate that the need for removal due to an imminent risk to the child's life or health is greater than the potential harm including but not limited to any physical, emotional, social, or mental trauma the removal may cause the child.

b. The court's determination regarding continuation of the child in the child's home and regarding reasonable efforts, including those made to prevent removal and those made to finalize any permanency plan in effect as well as any

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determination by the court that reasonable efforts are not required, must be made on a case-by-case basis. The grounds for each determination must be specifically documented and stated in the court order. However, preserving the safety of the child must be the court's paramount consideration. If imminent danger to the child's life or health exists at the

time of the court's consideration, the determinations otherwise required under this paragraph shall not be a prerequisite for an order for temporary removal of the child.

NEW SUBSECTION. 6. *a.* (1) If the court places custody of the child with the department pursuant to subsection 2, paragraph *"a"*, subparagraph (3), the court may identify a category listed in subsection 2, paragraph *"a"*, subparagraph (3), for placement of the child, but the department shall have the authority to select the specific person or facility within that category for placement, subject to court review at the request of an interested party.

(2) The court shall give deference to the department's decision for placement of a child. A party opposed to the department's placement of a child shall have the burden to prove the department failed to act in the child's best interests by unreasonably or irresponsibly failing to discharge its duties in selecting a suitable placement for the child.

b. The court shall not order placement of a child in a category identified in subsection 2, paragraph *"a"*, subparagraph (3), subparagraph division (b), (c), (d), or (e), without a specific finding that placement with an adult relative is not in the child's best interests and providing reasons for the finding.

c. If the court orders the removal of a child pursuant to subsection 2, paragraph *"a"*, subparagraph (2) or (3), the order shall also include a statement informing the child's parent that the consequences of a permanent removal may include termination of the parent's rights with respect to the child.

Sec. 41. Section 232.96, subsection 6, Code 2022, is amended

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to read as follows:

6. A report, study, record, or other writing or an audiotape or videotape recording made by the department of human services, a juvenile court officer, a peace officer, a child protection center, or a hospital relating to a child in a proceeding under this subchapter is admissible notwithstanding any objection to hearsay statements contained in it provided it is relevant and material and provided its probative value substantially outweighs the danger of unfair prejudice to the child's parent, guardian, or custodian. The circumstances of the making of the report, study, record or other writing or an audiotape or videotape recording, including the maker's lack of personal knowledge, may be proved to affect its weight.

Sec. 42. Section 232.96, subsection 10, Code 2022, is amended to read as follows:

10. If the court enters an order adjudicating the child to be a child in need of assistance, the court, if it has not previously done so, may issue an order authorizing temporary removal of the child from the child's home as set forth in section 232.95, subsection 2, paragraph *"a"*, subparagraph (2)

or (3), pending a final order of disposition. The order shall include ~~both~~ all of the following:

a. A determination that continuation of the child in the child's home would be contrary to the welfare of the child, ~~and~~ that reasonable efforts~~, as defined in section 232.102,~~ have been made to prevent or eliminate the need for removal of the child from the child's home and the court has found that substantial evidence exists to demonstrate that the need for removal due to an imminent risk to the child's life or health is greater than the potential harm including but not limited to any physical, emotional, social, or mental trauma the removal may cause the child. The court's determination regarding continuation of the child in the child's home, and regarding reasonable efforts, including those made to prevent removal and those made to finalize any permanency plan in effect, as

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well as any determination by the court that reasonable efforts are not required, must be made on a case-by-case basis. The grounds for each determination must be explicitly documented and stated in the court order. However, preserving the safety of the child is the paramount consideration. If imminent danger to the child's life or health exists at the time of the court's consideration, the determinations otherwise required under this paragraph shall not be a prerequisite for an order for temporary removal of the child.

b. A statement informing the child's parent that the consequences of a permanent removal may include termination of the parent's rights with respect to the child.

c. If the court orders a removal of a child pursuant to this subsection and placement of a child pursuant to section 232.95, subsection 2, paragraph *"a"*, subparagraph (3), subparagraph division (b), (c), (d), or (e), a specific finding that placement with an adult relative is not in the child's best interests and the reasons for the finding.

Sec. 43. Section 232.96, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 11. *a.* If the court places custody of the child with the department pursuant to subsection 10, the court may identify a category listed in section 232.95, subsection 2, paragraph *"a"*, for placement of the child, but the department shall have the authority to select the specific person or facility within that category for placement, subject to court review at the request of an interested party.

b. The court shall give deference to the department's decision for placement of a child. A party opposed to the department's placement of a child shall have the burden to prove the department failed to act in the child's best interests by unreasonably or irresponsibly failing to discharge

its duties in selecting a suitable placement for the child.

Sec. 44. Section 232.97, subsection 3, Code 2022, is amended to read as follows:

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3. The social report shall not be disclosed except as provided in this section and except as otherwise provided in this chapter. At least five days prior to the hearing at which the disposition is determined, the ~~court~~ department shall ~~send~~ file a copy of the social report ~~to~~ with the court and the court shall restrict access of the social report to counsel for the child, counsel for the child's parent, guardian, or custodian, the department, the court appointed special advocate, a local board as defined in section 237.15, the county attorney, the state's counsel, and the guardian ad litem. The court may in its discretion order counsel not to disclose parts of the report to the child, or to the parent, guardian, or custodian ~~if disclosure would seriously harm the treatment or rehabilitation of the child or would violate a promise of confidentiality given to a source of information~~. If the report indicates the child or parent has behaved in a manner that threatened the safety of another person, has committed a violent act causing bodily injury to another person, or has committed sexual abuse, or the child has been a victim ~~or perpetrator~~ of sexual abuse, unless otherwise ordered by the court, the child's parent, guardian, or foster parent or other person with custody of or providing substantial care to the child shall be provided with that information.

Sec. 45. Section 232.102, subsection 1, paragraph a, Code 2022, is amended by striking the paragraph and inserting in lieu thereof the following:

a. After a dispositional hearing, the court may enter an order transferring the legal custody of the child to a parent of the child. If the court finds that custody with either of the child's parents is not in the child's best interests, the child's custody shall be transferred to the department for placement of the child in any of the following categories in the following order of priority:

(1) An adult relative of the child including but not limited to adult siblings and parents of siblings.

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(2) A fictive kin.

(3) Any other suitable placement identified by the child's relatives.

(4) An individual licensed to provide foster care pursuant to chapter 237. If the child is placed with a licensed foster care provider, the department shall assign decision-making authority to the foster care provider for the purpose of applying the reasonable and prudent parent standard during the

child's placement.

(5) A group care facility, shelter care facility, or other residential treatment facility.

b. (1) If the court places custody of the child with the department pursuant to paragraph *"a"*, the court may identify a category listed in paragraph *"a"* for placement of the child, but the department shall have the authority to select the specific person or facility within that category for placement, subject to court review at the request of an interested party.

(2) The court shall give deference to the department's decision for placement of a child. A party opposed to the department's placement of a child shall have the burden to prove the department failed to act in the child's best interests by unreasonably or irresponsibly failing to discharge its duties in selecting a suitable placement for the child.

c. A court shall not order placement of a child in a category identified in paragraph *"a"*, subparagraph (2), (3), (4), or (5) without a specific finding that placement with an adult relative is not in the child's best interests and providing reasons for the court's finding.

d. If the child is fourteen years of age or older, the order shall specify the services needed to assist the child in preparing for the transition from foster care to adulthood. If the child has a case permanency plan, the court shall consider the written transition plan of services and needs assessment developed for the child's case permanency plan. If the child does not have a case permanency plan containing the transition

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plan and needs assessment at the time the order is entered, the written transition plan and needs assessment shall be developed and submitted for the court's consideration no later than six months from the date of the transfer order. The court shall modify the initial transfer order as necessary to specify the services needed to assist the child in preparing for the transition from foster care to adulthood. If the transition plan identifies services or other support needed to assist the child when the child becomes an adult and the court deems it to be beneficial to the child, the court may authorize the individual who is the child's guardian ad litem or court appointed special advocate to continue a relationship with and provide advice to the child for a period of time beyond the child's eighteenth birthday.

Sec. 46. Section 232.102, subsection 2, Code 2022, is amended to read as follows:

2. The court shall not order group foster care placement of the child which is a charge upon the state ~~if that placement is not in accordance with the service area plan for group foster care established pursuant to section 232.143 for the departmental service area in which the court is located~~ unless the group foster care meets the requirements established by the

department by rule.

Sec. 47. Section 232.102, subsections 5, 11, and 12, Code 2022, are amended by striking the subsections.

Sec. 48. Section 232.102, subsection 10, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

10. Unless prohibited by court order or the department or juvenile court services finds that allowing the visitation would not be in the child's best interests, the department or juvenile court services may authorize reasonable visitation between the child and the child's adult relative or a fictive kin.

Sec. 49. NEW SECTION. **232.102A Reasonable efforts.**

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1. For the purposes of this subchapter:

a. "Reasonable efforts" means the efforts made to preserve and unify a family prior to the out-of-home placement of a child in foster care or to eliminate the need for removal of the child or make it possible for the child to safely return to the family's home. Reasonable efforts include but are not limited to giving consideration, if appropriate, to interstate placement of a child in the permanency planning decisions involving the child and giving consideration to in-state and out-of-state placement options at a permanency hearing and when using concurrent planning. If returning the child to the family's home is not appropriate or not possible, reasonable efforts shall include the efforts made in a timely manner to finalize a permanency plan for the child. A child's health and safety shall be the paramount concern in making reasonable efforts. Reasonable efforts may include but are not limited to family-centered services, if the child's safety in the home can be maintained during the time the services are provided. In determining whether reasonable efforts have been made, the court shall consider all of the following:

(1) The type, duration, and intensity of services or support offered or provided to the child and the child's family. If family-centered services were not provided, the court record shall enumerate the reasons the services were not provided, including but not limited to whether the services were not available, not accepted by the child's family, judged to be unable to protect the child and the child's family during the time the services would have been provided, judged to be unlikely to be successful in resolving the problems which would lead to removal of the child, or other services were found to be more appropriate.

(2) The relative risk to the child of remaining in the child's home versus removal of the child.

b. "Family-centered services" means services and other support intended to safely maintain a child with the child's

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family or with an adult relative, to safely and in a timely manner return a child to the home of the child's parent or relative, or to promote achievement of concurrent planning goals by identifying and helping the child secure placement for adoption, with a guardian, or with other alternative permanent family connections. Family-centered services include services adapted to the individual needs of a family in regard to the specific services and other support provided to the child's family and the intensity and duration of service delivery and services intended to preserve a child's connections to the child's neighborhood, community, and family and to improve the overall capacity of the child's family to provide for the needs of the children in the family.

2. Family interactions shall continue regardless of a parent's failure to comply with the requirements of a court order or the department, provided there is no finding by a court or the department that such interaction would be detrimental to the child.

3. The performance of reasonable efforts to place a child for adoption or with a guardian may be made concurrently with making reasonable efforts as defined in this section.

4. If the court determines by clear and convincing evidence that aggravated circumstances exist supported by written findings of fact based upon evidence in the record, the court may waive the requirement for making reasonable efforts. The existence of aggravated circumstances is indicated by any of the following:

a. The parent has abandoned the child.

b. The court finds the circumstances described in section 232.116, subsection 1, paragraph *"i"*, are applicable to the child.

c. The parent's parental rights have been terminated under section 232.116 or involuntarily terminated by an order of a court of competent jurisdiction in another state with respect to another child who is a member of the same family, and there

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is clear and convincing evidence to show that the offer or receipt of services would not be likely within a reasonable period of time to correct the conditions which led to the child's removal.

d. The parent has been convicted of the murder of another child.

e. The parent has been convicted of the voluntary manslaughter of another child.

f. The parent has been convicted of aiding or abetting, attempting, conspiring in, or soliciting the commission of the murder or voluntary manslaughter of another child.

g. The parent has been convicted of a felony assault which

resulted in serious bodily injury to the child or another child.

5. Prior services the state provided to the family shall not be considered in making a determination as to whether a waiver of reasonable efforts is appropriate.

Sec. 50. Section 232.103, subsection 2, paragraph b, Code 2022, is amended to read as follows:

b. The child's parent, guardian or custodian, except that such motion may be filed by that person not more often than once every ~~six months~~ sixty days except with leave of court for good cause shown.

Sec. 51. Section 232.103A, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 8. A court-appointed attorney shall be paid by the state public defender's office for work done relating to a bridge order.

Sec. 52. Section 232.104, subsection 2, paragraph d, subparagraphs (1) and (2), Code 2022, are amended by striking the subparagraphs and inserting in lieu thereof the following:

(1) Transfer sole custody of the child from one parent to another parent.

(2) Transfer guardianship and custody of the child to an adult relative, a fictive kin, or another suitable person.

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Sec. 53. Section 232.104, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4A. A court shall apply the priority of placement requirements of section 232.102, subsection 1, paragraphs *"a"* and *"c"*, when entering a permanency order pursuant to subsection 2, paragraph *"d"*.

Sec. 54. Section 232.108, subsections 1, 2, and 3, Code 2022, are amended to read as follows:

1. If the court orders the transfer of custody of a child and siblings to the department or other agency for placement under ~~this subchapter, under subchapter II, relating to juvenile delinquency proceedings, or under any other provision of~~ this chapter, the department or other agency shall make ~~a~~ reasonable ~~effort~~ efforts to place the child and siblings together ~~in the same placement~~ whenever possible if such placement is in the best interests of each child. The requirement of this subsection remains applicable to custody transfer orders made at separate times ~~and~~ provided the requirement will not jeopardize the stability of placements and is in the best interests of each child. The requirement of this subsection also applies in addition to efforts made ~~by the department or agency~~ to place the child with ~~a~~ an adult relative.

2. If the requirements of subsection 1 apply but the siblings are not placed in the same placement together, the ~~department or other agency~~ child's attorney or guardian ad

litem shall provide the siblings with the reasons why and the efforts being made to facilitate such placement, or why making efforts for such placement is not appropriate. An explanation is not required if the ages or mental states of the siblings make such an explanation inappropriate. Unless visitation or ongoing interaction with siblings is suspended or terminated by the court, the department ~~or agency~~ shall make reasonable ~~effort~~ efforts to provide for ~~frequent~~ visitation or other ongoing interaction between the child and the child's siblings

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from the time of the child's out-of-home placement until the child returns home or is in a permanent placement. The department shall make reasonable efforts for such visitations or interactions to occur at least once every thirty days unless more frequent or less frequent visitation is ordered by the court based on the child's circumstances.

3. A person who wishes to assert a sibling relationship with a child who is subject to an order under this chapter for an out-of-home placement and to request ~~frequent~~ visitation or other ongoing interaction with the child may file a motion or petition with the court with jurisdiction over the child. Unless the court determines it would not be in the child's best ~~interest~~ interests, upon finding that the person is a sibling of the child, the provisions of this section providing for frequent visitation or other ongoing interaction between the siblings shall apply. Nothing in this section is intended to provide or expand a right to counsel under this chapter beyond the right provided and persons specified in sections 232.89 and 232.113.

DIVISION VII

TERMINATION OF PARENT-CHILD RELATIONSHIP PROCEEDINGS

Sec. 55. Section 232.111, subsection 2, paragraph a, subparagraphs (2), (4), (5), and (6), Code 2022, are amended to read as follows:

(2) A court has determined aggravated circumstances exist and has waived the requirement for making reasonable efforts ~~under~~, as defined in section ~~232.102~~ 232.102A because the court has found the circumstances described in section 232.116, subsection 1, paragraph *"i"*, are applicable to the child.

(4) The parent has been convicted of the murder or the voluntary manslaughter of another child ~~of the parent~~.

(5) The parent has been convicted of aiding or abetting, attempting, conspiring in, or soliciting the commission of the murder or voluntary manslaughter of another child ~~of the parent~~.

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(6) The parent has been convicted of a felony assault which resulted in serious bodily injury of the child or of another

child ~~of the parent~~.

Sec. 56. Section 232.112, subsection 3, Code 2022, is amended to read as follows:

3. Notice under this section shall be served personally, sent by restricted certified mail, or sent by electronic mail or other electronic means with the consent of the party to be served, whichever is determined by the court to be the most effective means of notification. If the court determines that personal service is impracticable, the court may order service by publication. Such notice shall be made according to the rules of civil procedure relating to an original notice where not inconsistent with the provisions of this section. Notice by personal delivery and notice sent by electronic mail or other electronic means with the consent of the party to be served shall be served not less than seven days prior to the hearing on termination of parental rights. Notice by restricted certified mail shall be sent not less than fourteen days prior to the hearing on termination of parental rights. A notice by restricted certified mail which is refused by the necessary party given notice shall be sufficient notice to the party under this section.

Sec. 57. Section 232.116, subsection 1, paragraph d, subparagraph (1), Code 2022, is amended to read as follows:

(1) The court has previously adjudicated the child to be a child in need of assistance after finding the child to have been physically or sexually abused or neglected as the result of the acts or omissions of one or both parents, or the court has previously adjudicated a child who is a member of the same family to be a child in need of assistance after such a finding. This paragraph shall not be construed to require that a finding of sexual abuse or neglect requires a finding of a nonaccidental physical injury.

Sec. 58. Section 232.116, subsection 1, paragraph i,

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subparagraph (1), Code 2022, is amended to read as follows:

(1) The child meets the definition of child in need of assistance based on a finding of physical or sexual abuse or neglect as a result of the acts or omissions of one or both parents. This paragraph shall not be construed to require that a finding of sexual abuse or neglect requires a finding of a nonaccidental physical injury.

Sec. 59. Section 232.116, subsection 1, paragraph l, subparagraphs (1) and (2), Code 2022, are amended by striking the subparagraphs and inserting in lieu thereof the following:

(1) The child has been adjudicated a child in need of assistance pursuant to section 232.96 and custody has been transferred from the child's parents for placement pursuant to section 232.102.

(2) The parent has a severe substance-related disorder as described by either of the following:

(a) The severe substance-related disorder meets the definition for that term as defined in the most current edition of the diagnostic and statistical manual prepared by the American psychiatric association, and the parent presents a danger to self or others as evidenced by prior acts.

(b) The disorder is evidenced by continued and repeated use through the case, the parent's refusal to obtain a substance abuse evaluation or treatment after given the opportunity to do so, and the parent presents a danger to self or others as evidenced by prior acts.

Sec. 60. Section 232.117, subsection 3, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

3. If the court concludes that facts sufficient to sustain the petition have been established by clear and convincing evidence, the court may order parental rights terminated. If the court terminates the parental rights of a child's parent, the court shall transfer the guardianship and custody of the child to a parent of the child whose parental rights have not

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been terminated. If the court finds guardianship and custody with the child's parents is not in the child's best interests, guardianship and custody shall be transferred for placement of the child in any of the following categories in the following order of priority:

a. The department if the department had custody of the child at the time of the filing of the petition for termination of parental rights, or if custody with the department is necessary to facilitate the permanency or adoption goal, unless the department waives its priority.

b. An adult relative of the child, including but not limited to adult siblings or parents of siblings.

c. A fictive kin.

d. A child-placing agency or other suitable private agency, facility, or institution which is licensed or otherwise authorized by law to receive and to provide care for the child.

Sec. 61. Section 232.117, subsection 4, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

4. If the court orders a termination of parental rights and siblings are not placed together but have an existing relationship, the court shall order ongoing contact between the siblings in accordance with section 232.108 if the court finds that either visitation or ongoing interaction is in the best interests of each sibling. This subsection shall not be construed to require visitation between a child and a parent whose parental rights have been terminated as to that child, even if a sibling remains with the parent.

Sec. 62. Section 232.118, subsection 1, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *a.* The moving party or a party opposed to the actions of the guardian has the burden to establish that the court-appointed guardian failed to act in the child's best interests by unreasonably or irresponsibly failing to discharge the guardian's duties in finding a suitable adoptive home for

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the child.

NEW PARAGRAPH. *b.* The court shall give deference to the decision of the guardian.

DIVISION VIII

FAMILY IN NEED OF ASSISTANCE PROCEEDINGS

Sec. 63. Section 232.126, subsection 2, Code 2022, is amended to read as follows:

2. The court may appoint a court appointed special advocate ~~to act as guardian ad litem~~. The court appointed special advocate shall receive notice of and may attend all depositions, hearings, and trial proceedings to support the child and advocate for the protection of the child. The court appointed special advocate shall not be allowed to separately introduce evidence or to directly examine or cross-examine witnesses. The court appointed special advocate shall submit reports to the court and the parties to the proceedings containing the information required in reports submitted by a court appointed special advocate under section ~~232.89, subsection 5~~ 237.24, subsection 2, paragraphs *"g"* and *"h"*. In addition, the court appointed special advocate shall file other reports to the court as required by the court.

Sec. 64. Section 232.127, subsection 8, Code 2022, is amended to read as follows:

8. The court shall not order group foster care placement of the child which is a charge upon the state ~~if that placement is not in accordance with the service area plan for group foster care established pursuant to section 232.143 for the departmental service area in which the court is located~~ unless the group foster care meets requirements as established by the department by rule.

Sec. 65. NEW SECTION. **237.24 Court appointed special advocates.**

1. A court appointed special advocate shall receive notice of all depositions, hearings, and trial proceedings in a matter to which the court appointed special advocate is appointed.

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2. The duties of a court appointed special advocate with respect to a child, unless otherwise enlarged or circumscribed by a court or juvenile court with jurisdiction over the child after a finding of good cause, shall include all of the following:

a. Conducting in-person interviews with the child every

thirty days, if the child's age is appropriate for the interview, and interviewing each parent, guardian, or other person having custody of the child as needed, if authorized by counsel.

b. Visiting the home, residence, or both home and residence of the child and any prospective home or residence of the child, including each time placement is changed.

c. Interviewing any person providing medical, mental health, social, educational, or other services to the child.

d. Obtaining firsthand knowledge, if possible, of the facts, circumstances, and parties involved in the matter in which the court appointed special advocate is appointed.

e. Attending any depositions, hearings, and trial proceedings in a matter to which the court appointed special advocate is appointed for the purpose of supporting the child and advocating for the child's protection.

f. Assisting the transition committee in the development of a transition plan if the child's case permanency plan calls for the development of a transition plan.

g. (1) Submitting a written report to the juvenile court and to each of the parties identified in section 237.21, subsection 4, prior to each court hearing unless otherwise ordered by the court.

(2) The report shall include but not be limited to the identified strengths of the child and the child's family, concerns identified by the court appointed special advocate, the court appointed special advocate's recommendations regarding the child's placement, and other recommendations the court appointed special advocate believes are in the child's

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best interests.

h. Submitting periodic reports to the court or juvenile court with jurisdiction over a child and interested parties detailing the child's situation as long as the child remains under the jurisdiction of the court or juvenile court.

i. Filing other reports as ordered by a court or juvenile court.

DIVISION IX

JUVENILE COURT EXPENSES AND COSTS —— SHELTER AND DETENTION HOMES

Sec. 66. Section 232.141, subsection 8, Code 2022, is amended to read as follows:

8. This subsection applies only to placements in a juvenile shelter care home which is publicly owned, operated as a county or multicounty shelter care home, organized under a chapter 28E agreement, or operated by a private juvenile shelter care home. If the actual and allowable costs of a child's shelter care placement exceed the amount the department is authorized to pay ~~in accordance with law and administrative rule~~, the unpaid costs may be recovered from the child's custodial parent's

county of residence. However, the maximum amount of the unpaid costs which may be recovered under this subsection is limited to the difference between the amount the department is authorized to pay and the statewide average of the actual and allowable rates ~~in effect in May of the preceding fiscal year for reimbursement of juvenile shelter care homes~~ as reasonably determined by the department annually. ~~In no case shall the~~ A home may only be reimbursed for ~~more than~~ the lesser of the home's actual and allowable costs or the statewide average of the actual and allowable rates as determined by the department in effect on the date the costs were paid. The unpaid costs are payable pursuant to filing of verified claims against the child's custodial parent's county of residence. A detailed statement of the facts upon which a claim is based shall accompany the claim. Any dispute between counties arising from

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filings of claims pursuant to this subsection shall be settled in the manner provided to determine residency in section 331.394.

Sec. 67. Section 232.142, subsections 3, 4, 5, and 6, Code 2022, are amended to read as follows:

3. A county or multicounty juvenile detention home approved pursuant to this section shall receive financial aid from the state in a manner approved by the director, the director of the department of human rights, or a designee of the director of the department of human rights. Aid paid by the state shall be at least ten percent and not more than fifty percent of the total cost of the establishment, improvements, operation, and maintenance of the home. This subsection is repealed July 1, 2023.

4. The director, the director of the department of human rights, or a designee of the director of the department of human rights shall adopt minimal rules and standards for the establishment, maintenance, and operation of such homes as shall be necessary to effect the purposes of this chapter. The rules shall apply the requirements of section 237.8, concerning employment and evaluation of persons with direct responsibility for a child or with access to a child when the child is alone and persons residing in a child foster care facility, to persons employed by, residing in, or volunteering for a home approved under this section. The director shall, upon request, give guidance and consultation in the establishment and administration of the homes and programs for the homes. This subsection is repealed July 1, 2023.

5. The director, the director of the department of human rights, or a designee of the director of the department of human rights shall approve annually all such homes established and maintained under the provisions of this chapter. A home

shall not be approved unless it complies with minimal rules and standards adopted by the director and has been inspected by the department of inspections and appeals. The statewide number

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of beds in the homes approved by the director shall not exceed two hundred seventy-two beds beginning July 1, 2017. This subsection is repealed July 1, 2023.

6. A juvenile detention home fund is created in the state treasury under the authority of the department or the department of human rights as the department and the department of human rights agree. The fund shall consist of moneys deposited in the fund pursuant to section 602.8108. The moneys in the fund shall be used for the costs of the establishment, improvement, operation, and maintenance of county or multicounty juvenile detention homes in accordance with annual appropriations made by the general assembly from the fund for these purposes. This subsection is repealed July 1, 2023.

Sec. 68. Section 232.142, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 7. A county or multicounty juvenile detention home approved pursuant to this section shall receive financial aid from the state in a manner approved by the director of the department of human rights or a designee of the director of the department of human rights. Aid paid by the state shall be at least ten percent and not more than fifty percent of the total cost of the establishment, improvements, operation, and maintenance of the home.

NEW SUBSECTION. 8. The director of the department of human rights or a designee of the director of the department of human rights shall adopt minimal rules and standards for the establishment, maintenance, and operation of such homes as shall be necessary to effect the purposes of this chapter. The rules shall apply the requirements of section 237.8, concerning employment and evaluation of persons with direct responsibility for a child or with access to a child when the child is alone and persons residing in a child foster care facility, to persons employed by, residing in, or volunteering for a home approved under this section. The director shall, upon request, give guidance and consultation in the establishment

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and administration of the homes and programs for the homes.

NEW SUBSECTION. 9. The director of the department of human rights or a designee of the director of the department of human rights shall approve annually all such homes established and maintained under the provisions of this chapter. A home shall not be approved unless it complies with minimal rules and standards adopted by the director and has been inspected by the department of inspections and appeals. The statewide number

of beds in the homes approved by the director shall not exceed two hundred seventy-two beds.

NEW SUBSECTION. 10. The juvenile detention home fund in the state treasury shall be under the authority of the department of human rights. The fund shall consist of moneys deposited in the fund pursuant to section 602.8108. The moneys in the fund shall be used for the costs of the establishment, improvement, operation, and maintenance of county or multicounty juvenile detention homes in accordance with annual appropriations made by the general assembly from the fund for these purposes.

DIVISION X

JUVENILE JUSTICE REFORM —— DECATEGORIZATION OF CHILD WELFARE AND JUVENILE JUSTICE FUNDING INITIATIVE —— EARLY INTERVENTION PROGRAMS

Sec. 69. Section 232.188, subsection 5, paragraph b, unnumbered paragraph 1, Code 2022, is amended to read as follows:

Notwithstanding section 8.33, moneys designated for a project's decategorization services funding pool that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure as directed by the project's governance board for child welfare and juvenile justice systems enhancements and other purposes of the project for the next ~~two~~ three succeeding fiscal years. Such moneys shall be known as *"carryover funding"*. Moneys may be made available to a funding pool from one or more of the following sources:

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Sec. 70. NEW SECTION. **232.192 Early intervention and follow-up programs.**

Contingent on a specific appropriation for these purposes, juvenile court services shall do the following:

1. Develop or expand programs providing specific life skills and interpersonal skills training for adjudicated delinquent youth who pose a low or moderate risk to the community.

2. Develop or expand a school-based program addressing truancy and school behavioral problems for youth ages twelve through seventeen.

3. Develop or expand an intensive tracking and supervision program for adjudicated delinquent youth at risk for placement who have been released from resident facilities, which shall include telephonic or electronic tracking and monitoring and intervention by juvenile authorities.

4. Develop or expand supervised community treatment for adjudicated delinquent youth who experience significant problems and who constitute a moderate community risk.

DIVISION XI

JUDICIAL BRANCH NONREVERSION OF CERTAIN MONEYS —— CHILD WELFARE AND JUVENILE JUSTICE

Sec. 71. NONREVERSION OF CERTAIN MONEYS RELATED TO CHILD WELFARE AND JUVENILE JUSTICE.

1. Notwithstanding section 8.33, moneys received by the state beginning July 1, 2020, pursuant to Tit. IV-B or Tit. IV-E of the federal Social Security Act as reimbursement for claims or pursuant to the federal Family First Prevention Services Act of 2018, Pub. L. No. 115-123 as transition funds, that remain unencumbered or unobligated at the close of the fiscal year shall not revert to the general fund of the state but shall remain available for expenditure for child welfare and juvenile justice services including but not limited to reimbursement of qualified expenses and administrative costs until expended.

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Sec. 72. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 73. RETROACTIVE APPLICABILITY. This division of this Act applies retroactively to the fiscal year beginning July 1, 2020.

DIVISION XII
CONFORMING CODE CHANGES

Sec. 74. Section 232.52, subsection 3, paragraph c, Code 2022, is amended to read as follows:

c. Notwithstanding subsection 2, the court shall not order group foster care placement of the child which is a charge upon the state ~~if that placement is not in accordance with the service area plan for group foster care established pursuant to section 232.143 for the departmental service area in which the court is located~~ unless the group foster care placement meets requirements as established by the department by rule.

Sec. 75. Section 232.70, subsection 4, Code 2022, is amended by striking the subsection.

Sec. 76. Section 232.71B, subsection 16, Code 2022, is amended to read as follows:

16. *Conclusion of family assessment.* At the conclusion of a family assessment, the department shall transfer the case, if appropriate, to a contracted provider to review the service plan for the child and family. The contracted provider shall make a referral to the department abuse hotline if a family's noncompliance with a service plan places a child at risk. If any of the criteria for child abuse as defined in section 232.68, subsection 2, paragraph *"a"*, are met, the department shall commence a child abuse assessment. If any of the criteria for a child in need of assistance~~, as defined in~~ pursuant to section ~~232.2, subsection 6~~ 232.96A, are met, the department shall determine whether to request a child in need of assistance petition.

Sec. 77. Section 232.83, subsection 2, unnumbered paragraph 1, Code 2022, is amended to read as follows:

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Anyone authorized to conduct a preliminary investigation in response to a complaint may apply for, or the court on its own motion may enter an ex parte order authorizing a physician or hospital to conduct an outpatient physical examination or authorizing a physician, a psychologist certified under section 154B.7, or a community mental health center accredited pursuant to chapter 230A to conduct an outpatient mental examination of a child if necessary to identify the nature, extent, and causes of any injuries, emotional damage, or other such needs of a child as specified in section ~~232.2, subsection 6, paragraph *"c"*, *"e"*, or *"f"*~~ 232.96A, subsection 3, 5, or 6, provided that all of the following apply:

Sec. 78. Section 232.89, subsection 5, Code 2022, is amended by striking the subsection.

Sec. 79. Section 232.98, subsection 1, paragraph b, subparagraph (1), Code 2022, is amended to read as follows:

(1) Probable cause exists to believe that the child is a child in need of assistance pursuant to section ~~232.2, subsection 6, paragraph *"e"* or *"f"*~~ 232.96A, subsection 5 or 6.

Sec. 80. Section 232.102, subsection 9, unnumbered paragraph 1, Code 2022, is amended to read as follows:

An agency, facility, institution, or person to whom custody of the child has been transferred pursuant to this section shall file a written report with the court at least every six months concerning the status and progress of the child. The court shall hold a periodic dispositional review hearing for each child in placement pursuant to this section in order to determine whether the child should be returned home, an extension of the placement should be made, a permanency hearing should be held, or a termination of the parent-child relationship proceeding should be instituted. The placement shall be terminated and the child returned to the child's home if the court finds by a preponderance of the evidence that the child will not suffer harm in the manner specified in section ~~232.2, subsection 6~~ 232.96A. If the placement is extended,

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the court shall determine whether additional services are necessary to facilitate the return of the child to the child's home, and if the court determines such services are needed, the court shall order the provision of such services. When the child is not returned to the child's home and if the child has been previously placed in a licensed foster care facility, the department or agency responsible for the placement of the child shall consider placing the child in the same licensed foster care facility.

Sec. 81. Section 232.117, subsection 5, Code 2022, is amended to read as follows:

5. If after a hearing the court does not order the

termination of parental rights but finds that there is clear and convincing evidence that the child is a child in need of assistance, ~~under~~ pursuant to section ~~232.2, subsection 6~~ 232.96A, due to the acts or omissions of one or both of the child's parents the court may adjudicate the child to be a child in need of assistance and may enter an order in accordance with the provisions of section 232.100, 232.101, 232.102, or 232.104.

Sec. 82. Section 234.6, subsection 1, paragraph e, subparagraph (3), Code 2022, is amended to read as follows:

(3) Family-centered services, as defined in section ~~232.102, subsection 10, paragraph "b"~~ 232.102A, subsection 1, paragraph *"b"*.

Sec. 83. Section 234.35, subsection 1, paragraph e, Code 2022, is amended to read as follows:

e. When a court has entered an order transferring the legal custody of the child to a foster care placement pursuant to section 232.46, section 232.52, subsection 2, paragraph *"d"*, or section 232.102, subsection 1. However, payment shall not be made for a group foster care placement ~~shall be limited to those placements which conform to a service area group foster care plan established pursuant to section 232.143~~unless the group foster care meets requirements as established by the

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department by rule.

Sec. 84. Section 234.35, subsection 1, paragraph i, Code 2022, is amended by striking the paragraph.

Sec. 85. Section 234.35, subsection 3, paragraph a, Code 2022, is amended to read as follows:

a. ~~For a child who is eighteen years of age, family~~ Family foster care or ~~independent~~ supervised apartment living arrangements.

Sec. 86. Section 234.35, subsection 3, paragraph b, Code 2022, is amended by striking the paragraph.

Sec. 87. Section 234.35, subsection 4, Code 2022, is amended by striking the subsection.

Sec. 88. Section 237.21, subsection 5, Code 2022, is amended to read as follows:

5. Members of the state board and local boards, court appointed special advocates, and the employees of the department and the department of inspections and appeals are subject to standards of confidentiality pursuant to sections 217.30, 228.6, subsection 1, sections 235A.15, 600.16, and 600.16A. Members of the state and local boards, court appointed special advocates, and employees of the department and the department of inspections and appeals who disclose information or records of the board or department, other than as provided in subsections 2, 3, and 4, ~~sections 232.89 and~~ section 232.126, and section 237.20, subsection 2, are guilty of a simple misdemeanor.

Sec. 89. Section 709A.5, Code 2022, is amended to read as follows:

709A.5 Interpretative clause.

For the purposes of this chapter the word *"dependency"* shall mean all the conditions as enumerated in section ~~232.2, subsection 6~~ 232.96A.

DIVISION XIII

REPEALS

Sec. 90. REPEAL. Sections 232.107, 232.143, 232.175,

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232.176, 232.177, 232.178, 232.179, 232.180, 232.181, 232.182, 232.183, 232.195, and 232.196, Code 2022, are repealed.

Sec. 91. FUTURE REPEAL. Sections 232.189 and 232.191, Code 2022, are repealed effective July 1, 2023.

DIVISION XIV

EFFECTIVE DATES

Sec. 92. EFFECTIVE DATE. The following take effect July 1, 2023:

1. The section of this Act enacting section 232.142, subsections 7, 8, 9, and 10.

2. The section of this Act enacting section 232.192.

DIVISION XV

APPLICABILITY

Sec. 93. APPLICABILITY. The section of this Act enacting section 232.79B shall apply beginning on the effective date specified in rules adopted by the department of human services pursuant to chapter 17A to implement that section.>

2. Title page, line 5, after <date> by inserting <, applicability, and retroactive applicability>

JEFF EDLER

S–5140

Amend House File 2549, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. NEW SECTION. **261.117 Mental health professional loan repayment program.**

1. *Definitions.* For purposes of this section, unless the context otherwise requires:

a. "Commission" means the college student aid commission.

b. "Eligible institution" means an institution of higher learning governed by the state board of regents or an accredited private institution as defined in section 261.9.

c. "Eligible loan" means a mental health professional's total federally guaranteed Stafford loan amount under the federal family education loan program or the federal direct loan program, a mental health professional's federal grad plus

loans, or a mental health professional's federal Perkins loan, including principal and interest.

d. "Eligible practice area" means a city in Iowa that is within a federal mental health shortage area, as designated by the health resources and services administration of the United States department of health and human services.

e. "Mental health professional" means a nonprescribing individual who meets all of the following qualifications:

(1) The individual holds at least a master's degree from an eligible institution in a mental health field, including psychology, counseling and guidance, social work, marriage and family therapy, or mental health counseling.

(2) The individual holds a current Iowa license if practicing in a field covered by an Iowa licensure law.

(3) The individual has at least two years of post-degree clinical experience, supervised by another individual in the mental health field, in assessing mental health needs and problems and in providing appropriate mental health services.

(4) The individual is not eligible for the rural Iowa

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advanced nurse practitioner and physician assistant loan repayment program established pursuant to section 261.114.

f. "Part-time practice" means at least seventy percent of a forty-hour workweek.

2. *Program established.* A mental health professional loan repayment program is established to be administered by the commission for purposes of providing loan repayments for mental health professionals who agree to practice in an eligible practice area and meet the requirements of this section.

3. *Program agreements.*

a. The mental health professional and the commission shall enter into a program agreement. Under the agreement, to receive loan repayments pursuant to subsection 5, a mental health professional shall agree to and shall engage in either of the following:

(1) Full-time practice as a mental health professional in an eligible practice area for a period of five consecutive years after entering into the agreement.

(2) Part-time practice as a mental health professional in an eligible practice area for a period of seven consecutive years after entering into the agreement.

b. A mental health professional who entered into a program agreement pursuant to paragraph *"a"* may apply to the commission to amend the agreement to allow the mental health professional to switch to part-time practice or full-time practice, as applicable. The commission and the mental health professional may consent to amend the agreement under which the mental health professional shall engage in part-time practice in an eligible practice area for an extended period of part-time practice determined by the commission to be proportional to

the amount of full-time practice remaining under the original agreement.

c. The commission shall give priority to mental health professionals who are residents of Iowa and, if requested by the adjutant general, to mental health professionals who are

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members of the Iowa national guard.

4. *Satisfaction of practice obligation.*

a. An obligation to engage in full-time or part-time practice under a program agreement entered into pursuant to subsection 3 shall be considered satisfied when any of the following conditions is met:

(1) The terms of the agreement are completed.

(2) The individual who entered into the agreement dies.

(3) The individual who entered into the agreement, due to a permanent disability, is unable to practice as a mental health professional.

b. If a mental health professional fails to fulfill the obligation to engage in practice in accordance with subsection 3, the mental health professional shall be subject to repayment to the commission of loan repayment amounts the commission paid to the mental health professional pursuant to subsection 5 plus interest as specified by rule.

5. *Loan repayment amounts.* The annual amount of loan repayment the commission may make to a mental health professional who enters into a program agreement pursuant to subsection 3, if the mental health professional is in compliance with obligations under the agreement, shall be eight thousand dollars for an eligible loan. The total amount of loan repayments from the commission to a mental health professional under this subsection shall not exceed forty thousand dollars.

6. *Refinanced loans.* A mental health professional who receives a loan repayment pursuant to subsection 5 and who refinances an eligible loan by obtaining a private educational loan may continue to receive loan repayment under this section if the amount of loan repayment does not exceed the lesser of the amount specified in subsection 5 or the balance of the loan repayment amount the mental health professional qualified to receive with the eligible loan.

7. *Mental health professional loan repayment fund.* A mental

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health professional loan repayment fund is created for deposit of moneys appropriated to or received by the commission for use under the mental health professional loan repayment program. Notwithstanding section 8.33, moneys deposited in the mental health professional loan repayment fund shall not revert to any fund of the state at the end of any fiscal year but shall remain

in the mental health professional loan repayment fund and be continuously available for loan repayment under the program. Notwithstanding section 12C.7, subsection 2, interest or earnings on moneys deposited in the mental health professional loan repayment fund shall be credited to the fund.

8. *Report.* The commission shall submit in a report to the general assembly by January 1, annually, the number of mental health professionals who received loan repayment pursuant to this section, where the mental health professionals practiced, the amount paid to each mental health professional, and other information identified by the commission as indicators of outcomes of the program.

9. *Rules.* The commission shall adopt rules pursuant to chapter 17A to administer this section.>

2. Title page, by striking lines 2 and 3 and inserting

<professional loan repayment program within the college student aid commission.>

CHRIS COURNOYER

S–5141

Amend Senate File 2195 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. NEW SECTION. **261.117 Mental health practitioner loan repayment program —— trust fund —— appropriation.**

1. *Program established.* The commission shall establish a mental health practitioner loan repayment program for the purposes of providing loan repayments for mental health practitioners who agree to practice in service commitment areas for at least five years and who meet the requirements of this section.

2. *Eligibility.* An individual is eligible to apply to enter into a program agreement with the commission if the individual is enrolled full-time in a curriculum leading to employment as a mental health practitioner. A recipient of a loan repayment award under section 261.113, 261.114, 261.115, or 261.116 shall not be eligible for a loan repayment award under this chapter.

3. *Program agreements.* A program agreement shall be entered into by an eligible student and the commission when the eligible student begins the final year of study in an academic program leading to eligibility for employment as a mental health practitioner. Under the agreement, to receive loan repayments pursuant to subsection 5, an eligible student shall agree to and shall fulfill all of the following requirements:

a. Receive a graduate-level credential qualifying the credential recipient for employment as a mental health practitioner.

b. Receive a license to practice in this state.

c. Within nine months of meeting the requirements of a

mental health practitioner, engage in full-time practice as a mental health practitioner for a period of five years in a service commitment area.

d. During the five-year period of full-time practice, be enrolled as an actively participating Medicaid provider.

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4. *Priorities in making awards.* In making awards under this section, the commission shall give priority to:

a. Eligible students who are residents of Iowa upon enrolling in a university and who agree to practice in a service commitment area located in a mental health professional shortage area.

b. Service commitment areas that are located in mental health professional shortage areas.

5. *Loan repayment amounts.*

a. The amount of loan repayment an eligible student who enters into an agreement pursuant to subsection 3 shall receive if in compliance with obligations under the agreement shall be as follows:

(1) For a psychiatrist, forty thousand dollars annually with a maximum of two hundred thousand dollars for an eligible loan, not to exceed the total loan amount.

(2) For a psychologist or a mental health professional, eight thousand dollars annually with a maximum of forty thousand dollars for an eligible loan, not to exceed the total loan amount.

(3) For a physician assistant practicing under the supervision of a psychiatrist, or for a psychiatric advanced registered nurse practitioner, ten thousand dollars annually with a maximum of fifty thousand dollars, not to exceed the total loan amount.

b. If the total amount of the eligible student's loan upon graduation is less than the maximum amount specified, the commission shall divide the total amount of the eligible student's eligible loan by five to determine the annual amount of loan repayment the loan recipient is eligible to receive.

c. Payments under this section may be made for each year of eligible practice during a period of five consecutive years.

6. *Refinanced loans.* A loan repayment recipient who refinances an eligible loan by obtaining a private educational loan may continue to receive loan repayment under this section

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if the amount of loan repayment does not exceed the lesser of the amount specified in subsection 5 or the balance of the loan repayment amount the loan repayment recipient qualified to receive with the eligible loan.

7. *Program agreement limitation.* The commission shall by rule determine the number of agreements entered into annually

based upon the funding available.

8. *Selection of service commitment area.* A loan repayment recipient shall notify the commission of the recipient's service commitment area prior to beginning practice in the area in accordance with subsection 3, paragraph *"c"*. Priority shall be given to recipients who select service commitment areas located in mental health professional shortage areas. The commission may waive the requirement that the loan repayment recipient practice in the same service commitment area for all five years.

9. *Rules for additional loan repayment.* The commission shall adopt rules to provide, in addition to loan repayment provided to eligible students pursuant to this section and subject to the availability of surplus funds, loan repayment to a psychiatrist, a psychologist, a mental health professional, a physician assistant practicing under the supervision of a psychiatrist, or a psychiatric advanced registered nurse practitioner, who, as provided in subsection 3, received a degree from a university, obtained a license to practice in this state, and is engaged in full-time practice in the respective profession in a service commitment area.

10. *Part-time practice —— agreement amended.* A person who entered into an agreement pursuant to subsection 3 may apply to the commission to amend the agreement to allow the person to engage in less than the full-time practice specified in the agreement and under subsection 3, paragraph *"c"*. The commission and the person may consent to amend the agreement under which the person shall engage in less than full-time practice in a service commitment area for an extended period of part-time

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practice determined by the commission to be proportional to the amount of full-time practice remaining under the original agreement. For purposes of this subsection, *"less than the full-time practice"* means at least seventy percent of a forty-hour workweek.

11. *Postponement and satisfaction of service obligation.*

a. The obligation to engage in practice in accordance with subsection 3 shall be postponed for the following purposes:

(1) Active duty status in the armed forces, the armed forces military reserve, or the national guard.

(2) Service in volunteers in service to America.

(3) Service in the federal peace corps.

(4) A period of service commitment to the United States public health service commissioned corps.

(5) A period of religious missionary work conducted by an organization exempt from federal income taxation pursuant to section 501(c)(3) of the Internal Revenue Code.

(6) Any period of temporary medical incapacity during which the person obligated is unable, due to a medical condition, to engage in full-time practice as required under subsection 3,

paragraph *"c"*.

b. Except for a postponement under paragraph *"a"*, subparagraph (6), an obligation to engage in practice under an agreement entered into pursuant to subsection 3 shall not be postponed for more than two years from the time the full-time practice was to have commenced under the agreement.

c. An obligation to engage in full-time practice under an agreement entered into pursuant to subsection 3 shall be considered satisfied when any of the following conditions are met:

(1) The terms of the agreement are completed.

(2) The person who entered into the agreement dies.

(3) The person who entered into the agreement, due to a permanent disability, is unable to practice as a mental health practitioner.

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d. If a loan repayment recipient fails to fulfill the obligation to engage in practice in accordance with subsection 3, the recipient shall be subject to repayment to the commission of the loan amount plus interest as specified by rule. A loan repayment recipient who fails to meet the requirements of the obligation to engage in practice in accordance with subsection 3 may also be subject to repayment of moneys advanced by the service commitment area as provided in any agreement with the service commitment area.

12. *Trust fund established.* A mental health practitioner loan repayment program trust fund is created in the state treasury as a separate fund under the control of the commission. The commission shall remit all repayments made pursuant to this section to the trust fund. All moneys deposited or paid into the trust fund are appropriated and made available to the commission to be used for meeting the requirements of this section. Moneys in the trust fund up to the total amount that an eligible student may receive for an eligible loan in accordance with this section and upon fulfilling the requirements of subsection 3, shall be considered encumbered for the duration of the agreement entered into pursuant to subsection 3. Notwithstanding section 8.33, any balance in the trust fund on June 30 of each fiscal year shall not revert to the general fund of the state, but shall be available for purposes of this section in subsequent fiscal years.

13. *Report.* The commission shall submit in a report to the general assembly by January 1, annually, the number of individuals who received loan repayment pursuant to this section, where the participants practiced, the amount paid to each program participant, and other information identified by the commission as indicators of outcomes of the program.

14. *Rules.* The commission shall adopt rules pursuant to chapter 17A to administer this section.

15. *Definitions.* For purposes of this section:

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a. "Advanced registered nurse practitioner" means a person licensed as a registered nurse under chapter 152 or 152E who is licensed by the board of nursing as an advanced registered nurse practitioner.

b. "Eligible loan" means the recipient's total federally guaranteed Stafford loan amount under the federal family education loan program or the federal direct loan program, the recipient's federal grad plus loans, or the recipient's federal Perkins loan, including principal and interest.

c. "Mental health practitioner" means a psychiatrist, a psychologist, a mental health professional, a physician assistant practicing under the supervision of a psychiatrist, or a psychiatric advanced registered nurse practitioner.

d. "Mental health professional" means an individual who meets all of the following qualifications:

(1) The individual holds at least a master's degree in a mental health field, including psychology, counseling and guidance, social work, marriage and family therapy, or mental health counseling.

(2) The individual holds a current Iowa license if practicing in a field covered by an Iowa licensure law.

(3) The individual has at least two years of post-degree clinical experience, supervised by another individual in the mental health field, in assessing mental health needs and problems and in providing appropriate mental health services.

e. "Mental health professional shortage area" means a mental health health professional shortage area designated by the health resources and services administration of the United States department of health and human services.

f. "Psychiatric advanced registered nurse practitioner" means an individual currently licensed as a registered nurse under chapter 152 or 152E who holds a national certification in psychiatric mental health care and who is licensed by the board of nursing as an advanced registered nurse practitioner.

g. "Service commitment area" means a city in Iowa that

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provides the following contribution amounts for deposit in the mental health practitioner loan repayment trust fund for each loan recipient in the community who is participating in the loan repayment program:

(1) For a psychiatrist, twenty thousand dollars.

(2) For a psychologist or a mental health professional, four thousand dollars.

(3) For a physician assistant practicing under the

supervision of a psychiatrist, or for a psychiatric advanced registered nurse practitioner, five thousand dollars.

Sec. 2. MENTAL HEALTH PRACTITIONER LOAN REPAYMENT PROGRAM TRUST FUND —— APPROPRIATION. There is appropriated from the general fund of the state to the college student aid commission for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

For deposit in the mental health practitioner loan repayment program trust fund established pursuant to section 261.117, to be used for the purposes of the program:

..... $ 1,500,000>

2. Title page, by striking lines 1 and 2 and inserting

<An Act relating to the establishment of a mental health practitioner loan repayment program, and providing an appropriation.>

CHRIS COURNOYER

S–5142

Amend the amendment, S–5128, to House File 2130, as amended, passed, and reprinted by the House, as follows:

1. Page 1, line 8, by striking <road> and inserting <highway>

2. Page 2, after line 25 by inserting:

<Sec. ___. Section 321I.8, subsection 2, Code 2022, is amended to read as follows:

2. The department shall remit the fees, including user fees collected pursuant to section 321I.5, to the treasurer of state, who shall place the money in a special all-terrain vehicle fund. The money is appropriated to the department for the all-terrain vehicle programs of the state. The programs shall include grants, subgrants, contracts, or cost-sharing of all-terrain vehicle programs with political subdivisions or incorporated private organizations or both in accordance with rules adopted by the commission. All-terrain vehicle fees may be used for the establishment, maintenance, and operation of all-terrain vehicle recreational riding areas through the awarding of grants administered by the department, but shall not be used for law enforcement purposes outside of a designated off-highway vehicle recreational riding area or for purchasing, installing, or maintaining signs along a highway outside of a designated off-highway vehicle recreational riding area. All-terrain vehicle recreational riding areas established, maintained, or operated by the use of such grants shall not be operated for profit. All programs using cost-sharing, grants, subgrants, or contracts shall establish and implement an education instruction program either singly or in cooperation with other all-terrain vehicle programs. All-terrain vehicle fees may be used to support all-terrain vehicle programs on a usage basis. At least fifty percent of

the special fund shall be available for political subdivisions or incorporated private organizations or both. Moneys from the special fund not used by the political subdivisions or incorporated private organizations or both shall remain in the

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fund and may be used by the department for the administration of the all-terrain vehicle programs. Notwithstanding section 8.33, moneys in the special fund shall not revert to the general fund of the state at the end of a fiscal year. Notwithstanding section 12C.7, subsection 2, interest or earnings on moneys in the special fund shall remain in the fund.>

3. Page 2, line 30, by striking <primary road> and inserting <primary highway>

4. By renumbering as necessary.

CARRIE KOELKER
WAYLON BROWN

S–5143

Amend House File 2128, as amended, passed, and reprinted by the House, as follows:

1. Page 1, line 15, by striking <214A.35,> and inserting <214A.36,>

2. Page 1, line 21, by striking <motor fuel> and inserting <gasoline>

3. Page 1, line 23, by striking <motor fuel> and inserting <gasoline>

4. Page 1, line 28, by striking <motor fuel> and inserting <gasoline>

5. Page 1, line 29, by striking <motor fuel> and inserting <gasoline>

6. Page 1, line 30, by striking <motor fuel> and inserting <gasoline>

7. Page 1, line 31, by striking <motor fuel> and inserting <gasoline>

8. Page 2, line 1, by striking <motor fuel> and inserting <gasoline>

9. Page 2, line 4, by striking <motor fuel> and inserting <gasoline>

10. Page 2, lines 27 and 28, by striking <motor fuel> and inserting <gasoline>

11. Page 2, line 30, by striking <motor fuel> and inserting <gasoline>

12. Page 3, line 16, by striking <motor fuel> and inserting <gasoline>

13. Page 4, line 26, before <**E-15**> by inserting <**alternative**>

14. Page 4, line 31, before <E-15> by inserting

<alternative>

15. Page 5, line 7, before <E-15> by inserting <alternative>

16. Page 5, line 8, by striking <motor fuel> and inserting <gasoline>

17. Page 5, line 15, by striking <motor fuel> and inserting <gasoline>

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18. Page 5, line 25, by striking <motor fuel> and inserting <gasoline>

19. Page 6, by striking lines 23 and 24 and inserting <event has occurred. A terminable event occurs on the date that any of the following apply:>

20. Page 7, by striking line 9 and inserting <all gasoline storage tanks that are>

21. Page 7, line 10, after <any> by inserting <number>

22. Page 7, line 12, by striking <motor fuel> and inserting <gasoline>

23. Page 7, line 14, by striking <motor fuel> and inserting <gasoline>

24. Page 7, line 16, by striking <motor fuel> and inserting <gasoline>

25. Page 7, line 18, by striking <motor fuel> and inserting <gasoline>

26. Page 7, lines 23 and 24, by striking <may file and review> and inserting <shall file and analyze>

27. Page 7, line 29, by striking <motor fuel> and inserting <gasoline>

28. Page 7, line 33, before <E-15> by inserting <alternative>

29. Page 7, line 34, by striking <motor fuel> and inserting <gasoline>

30. Page 8, by striking lines 6 through 15 and inserting:

<(a) The total estimated cost of improvement which equals the sum of all of the following:

(i) The reasonable cost of assessing the retail motor fuel site to determine the estimated cost of improving the retail motor fuel site as described in subparagraph subdivision (ii).

(ii) The estimated cost of improving the retail motor fuel site to comply with the alternative E-15 access standard based on the department's analysis of the inspection report described in paragraph *"a"*. The estimated cost of improving the retail motor fuel site shall only include costs used to calculate the

Page 3

amount of standard financial incentives that could be awarded by the renewable fuel infrastructure board to a retail dealer participating in the renewable fuel infrastructure program for retail motor fuel sites as provided in section 159A.14.>

31. Page 8, line 19, after <under> by inserting <tier III

of>

32. Page 8, line 22, before <E-15> by inserting <alternative>

33. Page 8, line 27, by striking <is applying for> and inserting <may apply for, is applying for,>

34. Page 9, after line 3 by inserting:

<Sec. ___. NEW SECTION. **214A.36 Exemption from E-15 access standard for small retail motor fuel sites —— by order issued by secretary of agriculture.**

1. *a.* The secretary of agriculture shall issue a small retail motor fuel site exemption administrative order to a retail dealer. The administrative order shall exempt the retail dealer from complying with the E-15 access standard, as otherwise required in section 214A.32, at a small retail motor fuel site owned or operated by the retail dealer.

b. To qualify as a small retail motor fuel site under this section, all of the following must apply:

(1) Prior to January 1, 2023, the retail motor fuel site included gasoline storage and dispensing infrastructure.

(2) The retail motor fuel site's average total gasoline gallonage was limited to three hundred thousand gallons or less for the qualifying phase as provided in this section.

2. *a.* A retail dealer may apply for an administrative order as described in subsection 1 by submitting an application to the department in a manner and according to procedures required by the department.

b. The retail dealer must sign the application which shall include a statement that the retail dealer swears and affirms that all information in the application completed by the retail dealer is true and correct.

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3. *a.* Upon request by the department of agriculture and land stewardship, the department of revenue shall certify the average total gasoline gallonage for the retail motor fuel site computed for the qualifying phase beginning on January 1, 2020, and ending on December 31, 2022.

b. The computation described in paragraph *"a"* shall be based on site-by-site information for the retail motor fuel site in reports required to be filed for determination periods by the retail dealer with the department of revenue pursuant to chapter 452A, subchapter II. However, if the department of revenue cannot obtain site-by-site information for the retail motor fuel site from such reports, the department of revenue may use other methods, including records maintained by the department of revenue under chapter 422, to compute the retail motor fuel site's gallonage for all or any part of that qualifying phase.

c. A retail dealer who submits an application under this section shall waive the confidentiality of information in the department of revenue's certification identifying the

retail dealer or retail motor fuel site otherwise applicable under chapter 422 or 452A. The information maintained by the department of agriculture and land stewardship under this section is a confidential record under section 22.7 and shall be used by the department of agriculture and land stewardship for the limited purposes of evaluating the retail dealer's application for approval and issuing an administrative order described in subsection 1. The certification may be used in a criminal proceeding alleging the retail dealer committed perjury as described in section 214A.11 when completing the application. The application shall include a notice of the waiver. The department of agriculture and land stewardship shall redact such identifying information in any record otherwise requiring disclosure by that department under chapter 22.

d. The department of revenue, in cooperation with the

Page 5

department of agriculture and land stewardship, may adopt rules to administer this subsection.

4. The department shall publish on its internet site for each quarter of a calendar year information aggregated from administrative orders described in subsection 1 that shall be limited to the following:

a. The total number of administrative orders issued.

b. The total number of administrative orders in effect.

5. *a.* The secretary of agriculture shall terminate the administrative order described in subsection 1 if a terminable event has occurred. A terminable event occurs on the date that any of the following apply:

(1) The failure of a retail dealer to be licensed as required under section 214.2 to use a commercial weighing and measuring device when dispensing gasoline at the retail motor fuel site.

(2) The cessation of the retail dealer's business of advertising for sale or selling gasoline at the retail motor fuel site.

(3) The installation, replacement, or conversion of a gasoline storage tank located at the retail motor fuel site.

b. The department may require that a retail dealer notify the department that a terminable event as described in paragraph *"a"* is planned to occur, is occurring, or has occurred.

6. *a.* This section shall be implemented on January 1, 2023.

b. This subsection is repealed January 2, 2023.>

35. Page 9, line 4, by striking **<214A.36>** and inserting **<214A.37>**

36. Page 9, line 13, by striking <SUSPENDING OR WAIVING> and inserting <SUSPENDING, WAIVING, OR EXEMPTING>

37. Page 9, after line 29 by inserting:

<4. The secretary of agriculture may issue a small retail

motor fuel site exemption administrative order as provided in section 214A.36, as enacted in this part of this division of

Page 6

this Act, prior to January 1, 2023, if the secretary determines it is necessary to issue the order prior to that date.>

38. Page 9, by striking lines 30 and 31 and inserting:

<Sec. ___. ADOPTION OF RULES IMPLEMENTING E-15 ACCESS STANDARD, E-15 INCOMPATIBLE INFRASTRUCTURE WAIVER ORDER, AND SMALL RETAIL MOTOR FUEL SITE EXEMPTION ADMINISTRATIVE ORDER.>

39. Page 10, after line 6 by inserting:

<3. The department of agriculture and land stewardship shall adopt rules pursuant to chapter 17A prior to January 1, 2023, as necessary to administer and enforce a small retail motor fuel site exemption administrative order as provided in section 214A.36, as enacted in this part of this division of this Act.>

40. Page 10, by striking lines 9 and 10.

41. Page 11, line 11, by striking <that is> and inserting <that includes>

42. Page 11, after line 35 by inserting:

<NEW SUBSECTION. 10A. *"Determination period"* means any twelve-month period beginning on January 1 and ending on December 31 in which a retail dealer who owns or operates a retail motor fuel site sells and dispenses gasoline or diesel fuel from that retail motor fuel site as calculated by the department of revenue in chapter 452A, subchapter II.>

43. Page 12, after line 4 by inserting:

<NEW SUBSECTION. 16A. *"Gasoline dispenser"* means a type of motor fuel dispenser that is part of gasoline storage and dispensing infrastructure.

NEW SUBSECTION. 16B. *"Gasoline storage and dispensing infrastructure"* or *"gasoline infrastructure"* means motor fuel storage and dispensing infrastructure used to do any of the following:

a. Store and dispense gasoline, including ethanol blended gasoline or biobutanol blended gasoline.

b. Store, blend, and dispense gasoline, including ethanol blended gasoline or biobutanol blended gasoline.

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NEW SUBSECTION. 16C. *"Gasoline storage tank"* means a type of motor fuel storage tank used to store an accumulation of gasoline.>

44. Page 12, by striking lines 10 through 12 and inserting:

<Sec. ___. NEW SECTION. **214A.1A Administration and enforcement.**

1. This chapter shall be administered and enforced by the department which may adopt rules under chapter 17A to carry out the provisions of this chapter.

2. The department may adopt rules necessary to administer and enforce this chapter in conjunction with chapter 214.>

45. Page 12, by striking lines 15 through 29 and inserting:

<1. *a.* The department shall adopt rules ~~pursuant to chapter 17A for carrying out this chapter. The rules may include but are not limited to specifications~~ establishing departmental standards relating to motor ~~fuel, including but not limited to renewable fuel such as ethanol blended gasoline, biobutanol blended gasoline, biodiesel, biodiesel blended fuel,~~ fuels and motor fuel components ~~such as an oxygenate~~.

b. In the interest of uniformity, the department shall adopt by reference ~~other~~ in part or in whole, as some of its departmental standards described in paragraph *"a"*, applicable specifications ~~relating to tests and standards for motor fuel, including renewable fuel and motor fuel components,~~ adopted by ASTM international and applicable requirements established by the United States environmental protection agency ~~and A.S.T.M. international~~.>

46. Page 13, by striking lines 10 through 24.

47. Page 13, after line 30 by inserting:

<Sec. ___. Section 214A.11, subsection 1, Code 2022, is amended to read as follows:

1. Except as otherwise provided in ~~subsection 2~~ subsection 3, a person who violates a provision of this chapter is guilty of a serious misdemeanor or is subject to an alternative civil enforcement action under subsection 2. Each day that

a continuing violation occurs shall be considered a separate offense.>

48. Page 13, line 31, by striking <subsection 2,>

49. Page 13, line 32, by striking <paragraphs> and inserting <subsection>

50. Page 13, line 33, by striking <NEW PARAGRAPH. *c.*> and inserting <NEW SUBSECTION. 3. *a.*>

51. Page 14, line 3, by striking <*"c"*> and inserting <*"a"*>

52. Page 14, line 6, by striking <NEW PARAGRAPH. *d.*> and inserting <*b.*>

53. Page 14, line 15, by striking <*"d"*> and inserting <*"b"*>

54. Page 14, after line 17 by inserting:

<*c.* (1) A retail dealer who submits an application for a small retail motor fuel site exemption administrative order under section 214A.36 that the retail dealer knows is not true and correct commits perjury as provided in section 720.2.

(2) (a) This paragraph *"c"* shall be implemented on January 1, 2023.

(b) This subparagraph is repealed January 2, 2023.>

55. Page 15, by striking line 3.

56. Page 15, by striking line 9 and inserting:

<a. Section 214A.3>

57. Page 15, line 28, by striking <214A.36> and inserting

<214A.37>

58. Page 16, by striking lines 18 through 22 and inserting <or *"gasoline infrastructure"* means the same as defined in section 214A.1.>

59. Page 16, by striking lines 25 and 26 and inserting:

<Sec. ___. Section 455G.31, subsection 1, paragraph a, Code 2022, is amended by striking the paragraph.>

60. Page 16, line 29, by striking <~~2.~~> and inserting <2.>

61. Page 16, lines 31 and 32, by striking <~~E-9~~ E-10> and inserting <E-9>

62. Page 16, after line 35 by inserting:

<Sec. ___. Section 455G.31, subsection 3, Code 2022, is

Page 9

amended by striking the subsection.>

63. Page 28, line 21, by striking <motor fuel,> and inserting <motor fuel or special fuel,>

64. Page 28, line 22, by striking <same> and inserting <applicable>

65. Page 28, after line 23 by inserting:

<Sec. ___. Section 452A.31, subsection 1, Code 2022, is amended to read as follows:

1. A determination period is any twelve-month period beginning on January 1 and ending on December 31 in which a retail dealer who owns or operates a retail motor fuel site sells and dispenses gasoline or diesel fuel from that site as regulated by the department of agriculture and land stewardship pursuant to chapters 214 and 214A.>

66. By striking page 31, line 23, through page 32, line 2, and inserting:

c. (1) The retail dealer shall prepare and ~~submit~~ file the report with the department in a manner and according to procedures required by the department in compliance with section 452A.61. However, the department may require that the retail dealer file the report with the department by electronic transmission. The department may require that retail dealers report to the department on an annual, quarterly, or monthly basis. The department, upon application by a retail dealer, may grant a reasonable extension of time to file the report.

(2) If a retail dealer fails to file the report as required by this section or fails to maintain records required to file the report the department may impose a civil penalty of not more than one hundred dollars per occurrence in addition to any other penalty provided by law. The penalty amount shall be deposited into the general fund of the state.>

67. Page 32, before line 3 by inserting:

<Sec. ___. Section 452A.33, subsection 1, paragraph d, Code 2022, is amended to read as follows:

d. The information included in a report submitted by a

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retail dealer is deemed to be a trade secret, protected as a confidential record pursuant to section 22.7. However, upon request by the department of agriculture and land stewardship pursuant to section 159A.14 or 214A.36, the department of revenue shall certify a retail motor fuel site's average total gasoline gallonage for a qualifying phase as provided in each of those sections.>

68. Page 36, before line 5 by inserting:

<PART A

RENEWABLE FUEL INFRASTRUCTURE PROGRAM FOR RETAIL MOTOR FUEL SITES>

69. Page 38, by striking lines 4 through 11 and inserting:

<*b.* The application shall allow the department to determine all of the following:

(1) The tier designation of the retail motor fuel site as provided in subsection 4B.

(2) Whether the retail dealer would be in compliance with the general E-15 access standard or the alternative E-15 access standard as provided in section 214A.32 if that standard were implemented on the date the application was filed.

(3) Whether the person is a retail dealer assigned special status. The department shall assign the person special status if the person does not comply with the E-15 access standard as provided in section 214A.32 and the person is ineligible to be issued an E-15 incompatible infrastructure class 2 waiver order for that retail motor fuel site as provided in section 214A.35, subsection 6.>

70. Page 38, by striking lines 12 through 24.

71. Page 38, line 25, by striking <*d.*> and inserting <*c.*>

72. Page 38, after line 27 by inserting:

<d. An application shall automatically expire if the application has not been approved or disapproved by the board as provided in this section within twenty-four months after the department files the submitted application.

e. The infrastructure board shall not delay approving an

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application or financing agreement to install, replace, or convert ethanol infrastructure based on its priority status as provided in subsection 4B.>

73. By striking page 38, line 30, through page 39, line 4, and inserting:

<The infrastructure board shall approve ~~cost-share~~ financing agreements ~~executed~~ entered into by the department and persons that the infrastructure board determines are eligible as provided in this section, according to terms and conditions required by the infrastructure board. ~~The infrastructure board shall determine the amount of the financial incentives to be awarded to a person participating in the program.~~ In order to

be eligible to participate in the program, all of the following must apply:>

74. Page 39, before line 5 by inserting:

<Sec. ___. Section 159A.14, subsection 3, paragraph b, subparagraph (4), Code 2022, is amended to read as follows:

(4) A statement certifying that the infrastructure shall only be used to comply with the provisions of this section and as specified in the ~~cost-share~~ financing agreement, unless granted a waiver by the infrastructure board pursuant to this section.

Sec. ___. Section 159A.14, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 4A. A financing agreement shall be for a five-year period. The financing agreement shall include provisions for standard financial incentives or standard financial incentives and supplemental financial incentives as provided in this section. The infrastructure board may approve multiple improvements to the same retail motor fuel site for the full amount available for both ethanol infrastructure and biodiesel infrastructure so long as the improvements for ethanol infrastructure and for biodiesel infrastructure are made under separate financing statements.

a. For the term of a financing agreement to improve a

Page 12

retail motor fuel site by installing, replacing, or converting ethanol infrastructure, the participating person must use the ethanol infrastructure to store and dispense, or store, blend, and dispense, ethanol blended gasoline classified as E-15 or higher.

b. For the term of a financing agreement to improve a retail motor fuel site by installing, replacing, or converting biodiesel infrastructure, the participating person must use the biodiesel infrastructure to store and dispense, or store, blend, and dispense, biodiesel blended fuel classified as B-5 or higher. However, at least for the period beginning April 1 and ending October 31 of each year, the participating person must use the biodiesel infrastructure to store and dispense, or store, blend, and dispense, biodiesel blended fuel classified as B-11 or higher.

NEW SUBSECTION. 4B. *a.* The infrastructure board shall award standard financial incentives to improve a retail motor fuel site by installing, replacing, or converting ethanol infrastructure designated by the department as a tier I site or tier II site. The department's designation shall be based on all of the following:

(1) The total number of retail motor fuel sites that store and dispense gasoline, or store, blend, and dispense gasoline, that are owned or operated in this state by the eligible person on the date of the application.

(2) The retail motor fuel site's average total gasoline

gallonage for the qualifying phase that includes the three calendar years immediately prior to the year that the eligible person submitted the application.

(a) Upon request by the department of agriculture and land stewardship, the department of revenue shall certify the average total gasoline gallonage for the retail motor fuel site computed for the qualifying phase. The computation shall be based on site-by-site information for the retail motor fuel site in reports required to be filed for determination periods

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by the retail dealer with the department of revenue pursuant to chapter 452A, subchapter II. However, if the department of revenue cannot obtain site-by-site information for the retail motor fuel site from such reports, the department of revenue may use other methods, including records maintained by the department of revenue under chapter 422, to compute the retail motor fuel site's gallonage for all or any part of that qualifying phase.

(b) A person who submits an application under this section shall waive the confidentiality of information in the department of revenue's certification identifying the person or retail motor fuel site otherwise applicable under chapter 422 or 452A. The information maintained by the department of agriculture and land stewardship under this section is a confidential record under section 22.7 and shall be used by the department of agriculture and land stewardship and the infrastructure board for the limited purpose of evaluating the eligible person's application for approval and entering into a financing agreement with the participating person. The application shall include a notice of the waiver. The department of agriculture and land stewardship or the infrastructure board shall redact such identifying information in any record otherwise requiring disclosure by that department under chapter 22.

(c) The department of revenue, in cooperation with the department of agriculture and land stewardship, may adopt rules to administer this subparagraph.

b. (1) For a tier I site, all of the following apply:

(a) The eligible person must own or operate a total of ten or fewer of the retail motor fuel sites described in paragraph *"a"* regardless of their designations.

(b) The eligible person must not have stored and dispensed E-15 gasoline at the retail motor fuel site at any time prior to submitting the application.

(c) The retail motor fuel site's average total gasoline

Page 14

gallonage as certified by the department of revenue as provided in paragraph *"a"* must not be more than one hundred forty

thousand gallons.

(2) The amount of standard financial incentives awarded to improve the tier I site is ninety percent of the actual cost of making the improvement or sixty-three thousand nine hundred dollars, whichever is less.

c. (1) For a tier II site, all of the following apply:

(a) The eligible person must own or operate a total of ten or fewer retail motor fuel sites described in paragraph *"a"* regardless of their designations.

(b) The eligible person must not have stored and dispensed E-15 gasoline at the retail motor fuel site at any time prior to submitting the application.

(c) The retail motor fuel site's average total gasoline gallonage as certified by the department of revenue as provided in paragraph *"a"* must be more than one hundred forty thousand gallons but not more than four hundred fifty thousand gallons.

(2) The amount of standard financial incentives awarded to improve the tier II site is seventy-five percent of the actual cost of making the improvements or fifty-three thousand two hundred fifty dollars, whichever is less.

d. The infrastructure board shall award standard financial incentives to improve a retail motor fuel site by installing, replacing, or converting ethanol infrastructure at a tier III site as designated by the department.

(1) Any retail motor fuel site not designated as a tier I site under paragraph *"b"* or a tier II site under paragraph *"c"* shall be designated as a tier III site.

(2) The amount of standard financial incentives awarded to improve the tier III site is seventy percent of the actual cost of making the improvement or fifty thousand dollars, whichever is less.

e. The infrastructure board shall establish a system to rank applications to improve a retail motor fuel site by installing,

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replacing, or converting ethanol infrastructure according to an order or priority order as follows:

(1) For the first priority, a retail motor fuel site assigned a special status as provided in subsection 2.

(2) For the second priority, a retail motor fuel site that is a tier I site as provided in this subsection.

(3) For the third priority, a retail motor fuel site that is a tier II site as provided in this subsection.

(4) For the fourth priority, a tier III site as provided in this subsection. Among tier III sites, the infrastructure board shall prioritize a retail motor fuel site that included motor fuel storage and dispensing infrastructure used to store and dispense gasoline prior to January 1, 2023.

NEW SUBSECTION. 4C. The amount of standard financial incentives awarded to an eligible person to improve a retail motor fuel site by installing, replacing, or converting

biodiesel infrastructure is seventy percent of the actual cost of making the improvement or fifty thousand dollars, whichever is less.

Sec. ___. Section 159A.14, subsection 5, unnumbered paragraph 1, Code 2022, is amended by striking the unnumbered paragraph and inserting in lieu thereof the following:

The department may provide for dedicated financing to an eligible person who receives standard financing under subsection 4B or 4C, subject to all of the following:

Sec. ___. Section 159A.14, subsection 5, paragraph a, Code 2022, is amended by striking the paragraph and inserting in lieu thereof the following:

a. If the department determines that a participating person is assigned special status because the participating person is ineligible to be issued an E-15 incompatible infrastructure class 2 waiver order for the retail motor fuel site as provided in subsection 2, the infrastructure board may approve one or multiple awards of standard financial incentives to make improvements to that retail motor fuel site subject to all of

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the following:

(1) The total amount of awards shall not be reduced by the amount of any standard or special financial incentives awarded to improve the retail motor fuel site under a prior financing agreement, notwithstanding subsection 4A.

(2) The total amount of awards for ethanol infrastructure under the financing agreement to be entered into by the retail dealer and department shall not exceed the limitations provided in subsection 4B.>

75. Page 39, line 5, after <subsection 5,> by inserting <paragraph b,>

76. By striking page 39, line 7, through page 41, line 6, and inserting:

<*b.* In addition to any standard financial incentives awarded to a participating person under ~~paragraph "a",~~ subsections 4B and 4C, the participating person may be awarded supplemental financial incentives to make improvements to a retail motor fuel site to ~~do any of the following:~~>

77. Page 41, by striking lines 24 and 25 and inserting <incentives under this ~~subparagraph~~ paragraph *"b"* and standard financial incentives under ~~paragraph "a"~~ subsection 4B or 4C to improve the>

78. Page 42, after line 4 by inserting:

<Sec. ___. Section 159A.14, subsection 6, unnumbered paragraph 1, Code 2022, is amended to read as follows:

A participating person shall not use the infrastructure to store and dispense motor fuel other than the type of renewable fuel approved by the board in the ~~cost-share~~ financing agreement, unless one of the following applies:>

79. Page 42, after line 16 by inserting:

<Sec. ___. EFFECTIVE DATE. This part of this division of this Act takes effect January 1, 2023.

PART B

RULEMAKING

Sec. ___. ADMINISTRATIVE RULES. The department of

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agriculture and land stewardship shall submit a notice of intended action to the administrative rules coordinator and the Iowa administrative code editor pursuant to section 17A.4, subsection 1, paragraph "a", not later than July 1, 2022, for the adoption of rules required to implement part A of this division of this Act.

Sec. ___. EFFECTIVE DATE. This part of this division of this Act, being deemed of immediate importance, takes effect upon enactment.>

80. By striking page 42, line 17, through page 43, line 3.

81. By renumbering as necessary.

COMMITTEE ON WAYS AND MEANS
DAN DAWSON, CHAIRPERSON

S–5144

Amend Senate File 2338 as follows:

1. Page 1, by striking lines 1 through 3 and inserting:

<Section 1. 2017 Iowa Acts, chapter 149, section 4, as amended by 2018 Iowa Acts, chapter 1170, section 3, and 2019 Iowa Acts, chapter 7, section 1, is amended to read as follows:

SEC. 4. REPEAL. The section of this Act amending section 321.477 is repealed July 1, ~~2022~~ 2023.>

WAYLON BROWN

S–5145

Amend the House amendment, S–5121, to Senate File 581, as amended, passed, and reprinted by the Senate, as follows:

1. By striking page 1, line 9, through page 2, line 5.

2. Page 2, after line 13 by inserting:

<Sec. ___. Section 483A.24, subsection 3, unnumbered paragraph 1, Code 2022, is amended to read as follows:

The director shall provide up to ~~seventy-five~~ one hundred twenty-five nonresident deer hunting licenses for allocation as provided in this subsection.

Sec. ___. Section 483A.24, subsection 3, paragraph b, Code 2022, is amended to read as follows:

b. ~~Twenty-five~~ Seventy-five of the nonresident deer hunting licenses shall be allocated as provided in subsection 5.

Sec. ___. Section 483A.24, subsection 5, unnumbered paragraph 1, Code 2022, is amended to read as follows:

~~Twenty-five~~ Seventy-five of the nonresident deer hunting licenses ~~and wild turkey hunting licenses~~ allocated under ~~subsections 3 and 4~~ subsection 3 and twenty-five of the wild turkey hunting licenses allocated under subsection 4 shall be available for issuance to nonresidents who have served in the armed forces of the United States on active federal service and who were disabled during the veteran's military service or who are serving in the armed forces of the United States on active federal service and have been disabled during military service to enable the disabled person to participate in a hunt that is conducted by an organization that conducts hunting experiences in this state for disabled persons. The licenses shall be issued as follows:>

3. Page 2, line 29, by striking <straight wall cartridge rifle> and inserting <any handgun or rifle described in section 481A.48>

4. By renumbering, redesignating, and correcting internal references as necessary.

KEN ROZENBOOM

S–5146

Amend the House amendment, S–3175, to Senate File 529, as amended, passed, and reprinted by the Senate, as follows:

1. By striking page 1, line 1, through page 2, line 20, and inserting:

<Amend the Senate File 529, as passed by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. NEW SECTION. **714I.1 Short title.**

This chapter shall be known and may be cited as the *"Fraud in Assisted Reproduction Act"*.

Sec. 2. NEW SECTION. **714I.2 Definitions.**

For purposes of this chapter, unless the context otherwise requires:

1. *"Assisted reproduction"* means a method of causing pregnancy other than sexual intercourse involving medical or scientific intervention.

2. *"Donor"* means an individual who provides gametes intended for use in assisted reproduction, whether or not for consideration.

3. *"Gamete"* means a sperm, an egg, or any part of a sperm or an egg.

4. *"Health care professional"* means a person who is licensed, certified, or otherwise authorized or permitted by the law of this state to administer health care in the ordinary course of business or in the practice of a profession.

5. *"Health facility"* means a hospital, clinic, sperm bank, laboratory, or other health care institution involved in the assisted reproduction process.

6. *"Human reproductive material"* means a human gamete or a human organism at any stage of development from fertilized ovum to embryo.

7. *"Live birth"* means the same as defined in section 144.1.

8. *"Patient"* means a person who has received or is receiving health services from a health care professional.

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9. *"Spouse"* means the spouse of a patient who undergoes assisted reproduction at the time of conception, birth, or at any time during the period between conception and birth of a child through assisted reproduction.

Sec. 3. NEW SECTION. **714I.3 Prohibited practices and acts.**

1. A person shall not engage in a practice or act the person knows or reasonably should have known provides false information to a patient related to an assisted reproduction procedure or treatment including false information relating to any of the following:

a. The human reproductive material used or provided for assisted reproduction.

b. The identity of a donor of human reproductive material used or provided for assisted reproduction including but not limited to the donor's name, birthdate, or address at the time of donation.

c. A donor's medical history including but not limited to an illness of the donor at the time of donation, any past illness of the donor, or the social, genetic, or family history of the donor.

2. A health care professional or a health facility shall not knowingly or intentionally do any of the following:

a. Use or provide a patient with human reproductive material for assisted reproduction other than that to which the patient expressly consented in writing.

b. Use or provide a patient with human reproductive material for assisted reproduction that is not provided with the donor's consent or in a manner or to an extent other than that to which the donor consented.

3. It is not a defense to a violation of this section that a patient expressly consented in writing to the use of human reproductive material from an anonymous donor.

4. A violation of this section by a health care professional or health facility constitutes grounds for denial of an application for, denial of renewal of, or revocation of any

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license, permit, certification, or any other form of permission required to practice a profession or establish, conduct, or maintain a facility regulated by the state. A violation of this section by a health care professional constitutes unprofessional conduct.

Sec. 4. NEW SECTION. **714I.4 Private right of action —— damages.**

1. A cause of action for damages against any person in violation of section 714I.3, subsection 2, may be brought in accordance with the following:

a. (1) (a) By the patient or the spouse of the patient, if the patient conceives and gives birth to a child through assisted reproduction in violation of section 714I.3, subsection 2.

(b) By a child born as the result of being conceived through assisted reproduction in violation of section 714I.3, subsection 2, if the patient who conceived and gave birth to such child or the patient's spouse is deceased or is otherwise unable to bring such cause of action.

(2) A patient, or the spouse of the patient, has a separate cause of action under this paragraph *"a"* for each conception and birth of a child through assisted reproduction performed in violation of section 714I.3, subsection 2.

b. (1) By the patient or the spouse of the patient, if the patient conceives through assisted reproduction in violation of section 714I.3, subsection 2, but the conception does not result in the live birth of the child.

(2) A cause of action is barred under this paragraph *"b"* if the conception does not result in a live birth because of an induced termination of pregnancy required to be reported pursuant to section 144.29A or because the patient or the patient's spouse intentionally terminates the pregnancy in violation of section 707.7.

2. A cause of action for damages may be brought by a donor whose human reproductive material resulted in the conception

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or conception and birth of a child conceived through assisted reproduction in violation of section 714I.3 or whose human reproductive material was used without the donor's consent or in a manner or to an extent other than that to which the donor consented in violation of section 714I.3.

3. In addition to compensatory or punitive damages, a prevailing plaintiff who brings an action under subsection 1, paragraph *"a"*, is entitled to all of the following:

a. (1) If the health care professional used the health care professional's own human reproductive material for assisted reproduction in violation of section 714I.3, subsection 2, the health care professional is determined through blood or genetic testing to be a biological parent as defined in section 600A.2 of the child, and the action is brought within the time limitations specified in section 614.8, damages in an amount that is the sum of all of the following:

(a) The basic support obligation prescribed by the child support guidelines established pursuant to section 598.21B based on the health care professional's monthly adjusted net

income for the time period specified for support for a child under section 598.1, subsection 9.

(b) Medical support as defined in section 252E.1.

(c) A postsecondary education subsidy as defined in section 598.1.

(d) Such other sums as described in section 252A.3, subsection 12, giving due regard to the circumstances of the plaintiff.

(2) A determination that the health care professional is a biological parent of the child or the awarding of damages under this paragraph *"a"* does not create a parent-child relationship between the child and the health care professional for any legal purpose.

b. Statutory damages in the amount of two hundred thousand dollars. Such damages shall be awarded to the prevailing plaintiff regardless of whether the child born as the result of

Page 5

being conceived through assisted reproduction in violation of section 714I.3, subsection 2, is deceased at the time the civil action is commenced or at the time a violation is found.

c. Costs attributable to the assisted reproduction procedure or treatment process.

d. Court costs.

e. Reasonable attorney fees.

4. In addition to compensatory or punitive damages, a prevailing plaintiff who brings an action under subsection 1, paragraph *"b"*, is entitled to all of the following:

a. Statutory damages in the amount of five thousand dollars.

b. Costs attributable to the assisted reproduction procedure or treatment process.

c. Court costs.

d. Reasonable attorney fees.

5. In addition to compensatory or punitive damages, a prevailing plaintiff who brings an action under subsection 2 is entitled to all of the following:

a. Statutory damages in the amount of five thousand dollars.

b. Court costs.

c. Reasonable attorney fees.

6. Notwithstanding any provision of law to the contrary, an action brought pursuant to this section is not subject to a statute of limitations and may be commenced at any time.

Sec. 5. Section 147.55, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 7A. Sexual abuse in the fourth degree in violation of section 709.4A.

NEW SUBSECTION. 7B. Fraud in assisted reproduction in violation of section 714I.3.

Sec. 6. Section 692A.102, subsection 1, paragraph c, Code 2022, is amended by adding the following new subparagraph:

NEW SUBPARAGRAPH. (012) Sexual abuse in the fourth

degree in violation of section 709.4A, subsection 3, if the perpetrator is a health care professional as defined in section

Page 6

714I.2, who used the health care professional's own human reproductive material for assisted reproduction in violation of section 714I.3, subsection 2.

Sec. 7. NEW SECTION. **709.4A Sexual abuse in the fourth degree —— health care professionals.**

1. A health care professional commits sexual abuse in the fourth degree when the health care professional uses or provides a patient with human reproductive material for assisted reproduction other than that to which the patient expressly consented in writing in violation of section 714I.3, subsection 2.

2. Sexual abuse in the fourth degree is an aggravated misdemeanor.

3. *a.* Notwithstanding subsection 2, sexual abuse in the fourth degree is a class "D" felony if the health care professional uses or provides the health care professional's own human reproductive material for assisted reproduction in violation of section 714I.3, subsection 2.

b. A parent-child relationship between a child and a health care professional is not created for any legal purpose when the child is born as the result of being conceived through commission of sexual abuse in the fourth degree as described in this subsection.

4. For the purposes of this section, *"assisted reproduction"*, *"gamete"*, *"health care professional"*, *"human reproductive material"*, and *"patient"* mean the same as defined in section 714I.2.

Sec. 8. NEW SECTION. **802.2E Sexual abuse —— fourth degree.**

An information or indictment for sexual abuse in the fourth degree may be commenced at any time after the commission of the offense.>>

ANNETTE SWEENEY

S–5147

Amend the House amendment, S–5121, to Senate File 581, as amended, passed, and reprinted by the Senate, as follows:

1. By striking page 1, line 9, through page 2, line 5.

2. Page 2, by striking lines 7 through 12.

3. Page 2, after line 13 by inserting:

<Sec. ___. Section 483A.24, subsection 3, unnumbered paragraph 1, Code 2022, is amended to read as follows:

The director shall provide up to ~~seventy-five~~ one hundred twenty-five nonresident deer hunting licenses for allocation as provided in this subsection.

Sec. ___. Section 483A.24, subsection 3, paragraph b, Code

2022, is amended to read as follows:

b. ~~Twenty-five~~ Seventy-five of the nonresident deer hunting licenses shall be allocated as provided in subsection 5.

Sec. ___. Section 483A.24, subsection 5, unnumbered paragraph 1, Code 2022, is amended to read as follows:

~~Twenty-five~~ Seventy-five of the nonresident deer hunting licenses ~~and wild turkey hunting licenses~~ allocated under ~~subsections 3 and 4~~ subsection 3 and twenty-five of the wild turkey hunting licenses allocated under subsection 4 shall be available for issuance to nonresidents who have served in the armed forces of the United States on active federal service and who were disabled during the veteran's military service or who are serving in the armed forces of the United States on active federal service and have been disabled during military service to enable the disabled person to participate in a hunt that is conducted by an organization that conducts hunting experiences in this state for disabled persons. The licenses shall be issued as follows:>

4. Page 2, line 29, by striking <straight wall cartridge rifle> and inserting <any handgun or rifle described in section 481A.48>

5. By renumbering, redesignating, and correcting internal references as necessary.

KEN ROZENBOOM

S–5148

Amend Senate File 2331 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. PSYCHIATRIC INTENSIVE INPATIENT CARE REIMBURSEMENT —— MEDICAID. No later than January 1, 2023, the department of human services shall implement a tiered rate reimbursement methodology for psychiatric intensive inpatient care under the Medicaid program based on the level of patient acuity and other factors as recommended in the inpatient bed tracking study committee report submitted to the governor and the general assembly on December 1, 2021.>

JEFF EDLER

S–5149

Amend House File 2558, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. JUDICIAL BRANCH.

1. There is appropriated from the general fund of the state to the judicial branch for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so

much thereof as is necessary, to be used for the purposes designated:

a. For salaries of supreme court justices, appellate court judges, district court judges, district associate judges, associate juvenile judges, associate probate judges, judicial magistrates and staff, state court administrator, clerk of the supreme court, district court administrators, clerks of the district court, juvenile court officers, board of law examiners, board of examiners of shorthand reporters, and commission on judicial qualifications; receipt and disbursement of child support payments; reimbursement of the auditor of state for expenses incurred in completing audits of the offices of the clerks of the district court during the fiscal year beginning July 1, 2022; and maintenance, equipment, and miscellaneous purposes:

..... $ 190,100,550

From the moneys appropriated in this paragraph, the judicial branch shall fund the appointment of four new district associate judge positions and the associated support staff.

b. For deposit in the revolving fund created pursuant to section 602.1302, subsection 3, for jury and witness fees, mileage, costs related to summoning jurors, costs and fees for interpreters and translators, and reimbursement of attorney fees paid by the state public defender:

..... $ 3,600,000

2. The judicial branch, except for purposes of internal processing, shall use the current state budget system, the

Page 2

state payroll system, and the Iowa finance and accounting system in administration of programs and payments for services, and shall not duplicate the state payroll, accounting, and budgeting systems.

3. The judicial branch shall submit monthly financial statements to the legislative services agency and the department of management containing all appropriated accounts in the same manner as provided in the monthly financial status reports and personal services usage reports of the department of administrative services. The monthly financial statements shall include a comparison of the dollars and percentage spent of budgeted versus actual revenues and expenditures on a cumulative basis for full-time equivalent positions and dollars.

4. The judicial branch shall focus efforts upon the collection of delinquent fines, penalties, court costs, fees, surcharges, or similar amounts.

5. It is the intent of the general assembly that the offices of the clerks of the district court operate in all 99 counties and be accessible to the public as much as is reasonably possible in order to address the relative needs of the citizens of each county. An office of the clerk of the district court

shall be open regular courthouse hours.

6. In addition to the requirements for transfers under section 8.39, the judicial branch shall not change the appropriations from the amounts appropriated to the judicial branch in this Act, unless notice of the revisions is given to the legislative services agency prior to the effective date. The notice shall include information on the judicial branch's rationale for making the changes and details concerning the workload and performance measures upon which the changes are based.

7. The judicial branch shall submit a semiannual update to the legislative services agency specifying the amounts of fines, surcharges, and court costs collected using the Iowa

Page 3

court information system since the last report. The judicial branch shall continue to facilitate the sharing of vital sentencing and other information with other state departments and governmental agencies involved in the criminal justice system through the Iowa court information system.

8. The judicial branch shall provide a report to the general assembly by January 1, 2023, concerning the amounts received and expended from the court technology and modernization fund created in section 602.8108, subsection 7, during the fiscal year beginning July 1, 2021, and ending June 30, 2022, and the plans for expenditures from each fund during the fiscal year beginning July 1, 2022, and ending June 30, 2023.

Sec. 2. CIVIL TRIALS —— LOCATION. Notwithstanding any provision to the contrary, for the fiscal year beginning July 1, 2022, and ending June 30, 2023, if all parties in a case agree, a civil trial including a jury trial may take place in a county contiguous to the county with proper jurisdiction, even if the contiguous county is located in an adjacent judicial district or judicial election district. If the trial is moved pursuant to this section, court personnel shall treat the case as if a change of venue occurred.

Sec. 3. TRAVEL REIMBURSEMENT. Notwithstanding section 602.1509, for the fiscal year beginning July 1, 2022, and ending June 30, 2023, a judicial officer may waive travel reimbursement for any travel outside the judicial officer's county of residence to conduct official judicial business.

Sec. 4. JUDICIAL OFFICER —— UNPAID LEAVE. Notwithstanding the annual salary rates for judicial officers established by this Act for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the supreme court may by order place all judicial officers on unpaid leave status on any day employees of the judicial branch are placed on temporary layoff status. The biweekly pay of the judicial officers shall be reduced accordingly for the pay period in which the unpaid leave date occurred in the same manner as for noncontract employees of the

Page 4

judicial branch. Through the course of the fiscal year, the judicial branch may use an amount equal to the aggregate amount of salary reductions due to the judicial officer unpaid leave days for any purpose other than for judicial salaries.

Sec. 5. IOWA COMMUNICATIONS NETWORK. It is the intent of the general assembly that the judicial branch utilize the Iowa communications network or other secure electronic communications in lieu of traveling for the fiscal year beginning July 1, 2022, and ending June 30, 2023.

Sec. 6. STATE COURT —— JUSTICES, JUDGES, AND MAGISTRATES.

1. The salary rates specified in subsection 2 are for the fiscal year beginning July 1, 2022, effective for the pay period beginning June 24, 2022, and for subsequent fiscal years until otherwise provided by the general assembly. The salaries provided for in this section shall be paid from moneys allocated to the judicial branch from the salary adjustment fund, or if the allocation is not sufficient, from moneys appropriated to the judicial branch pursuant to this Act or any other Act of the general assembly.

2. The following annual salary rates shall be paid to the persons holding the judicial positions indicated during the fiscal year beginning July 1, 2022, effective with the pay period beginning June 24, 2022, and for subsequent pay periods:

a. Chief justice of the supreme court:
..... $ 196,106

b. Each justice of the supreme court:
..... $ 187,326

c. Chief judge of the court of appeals:
..... $ 175,619

d. Each associate judge of the court of appeals:
..... $ 169,765

e. Each chief judge of a judicial district:
..... $ 163,910

f. Each district judge except the chief judge of a judicial district:

Page 5

..... $ 158,056

g. Each district associate judge:
..... $ 140,495

h. Each associate juvenile judge:
..... $ 140,495

i. Each associate probate judge:
..... $ 140,495

j. Each judicial magistrate:
..... $ 43,318

k. Each senior judge:
..... $ 9,366

3. Persons receiving the salary rates established

under this section shall not receive any additional salary adjustments provided by this Act or any other Act of the general assembly.

Sec. 7. Section 46.3, subsections 1 and 3, Code 2022, are amended to read as follows:

1. The governor shall appoint ~~five~~ six eligible electors of each judicial election district to the district judicial nominating commission.

3. No more than ~~a simple majority~~ half of the commissioners appointed shall be of the same gender.

Sec. 8. Section 46.6, subsection 2, Code 2022, is amended to read as follows:

2. The ~~judge of longest service in the district shall serve as the chair of a particular district judicial nominating commission. If the judges of longest service in the district are of equal service, the eldest of such judges shall be chairperson of the particular judicial nominating commission~~ commissioners of the district judicial nominating commission shall elect a chairperson from their own number. The chairperson shall serve a two-year term that expires on April 30 of even-numbered years. A commissioner may be reelected for a second or third term as chairperson. If a chairperson of a judicial nominating commission desires to be relieved

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of the duties of chairperson while retaining the status of commissioner, the chairperson shall notify the governor and the other commissioners of the commission. At the next meeting of the commission, the commissioners shall elect a new chairperson for the remainder of the two-year term.

Sec. 9. Section 602.1301, subsection 2, paragraph b, Code 2022, is amended to read as follows:

b. Before December 1, the supreme court shall submit to the director of the department of management an estimate of the total expenditure requirements of the judicial branch. The director of the department of management shall submit this estimate received from the supreme court to the governor ~~for inclusion without change in the governor's proposed budget for the succeeding fiscal year~~. The estimate shall also be submitted to the chairpersons of the committees on appropriations.

Sec. 10. Section 602.9116, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 3. The court administrator shall submit to the general assembly a copy of each actuarial valuation and annual actuarial update.>

COMMITTEE ON APPROPRIATIONS
TIM KRAAYENBRINK, CHAIRPERSON

S–5150

Amend House File 2560, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

DEPARTMENT OF AGRICULTURE AND LAND STEWARDSHIP

GENERAL FUND APPROPRIATIONS

Section 1. GENERAL FUND —— DEPARTMENT.

1. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of supporting the department, including its divisions, for administration, regulation, and programs; for salaries, support, maintenance, and miscellaneous purposes; and for not more than the following full-time equivalent positions:

..... $ 18,960,194

..... FTEs 395.00

2. Of the amount appropriated in subsection 1, the following amount is transferred to Iowa state university of science and technology, to be used for the university's midwest grape and wine industry institute:

..... $ 325,000

3. The department shall submit a report each quarter of the fiscal year to the legislative services agency, the department of management, the members of the joint appropriations subcommittee on agriculture and natural resources, and the chairpersons and ranking members of the senate and house committees on appropriations. The report shall describe in detail the expenditure of moneys appropriated in this section to support the department's administration, regulation, and programs.

DESIGNATED APPROPRIATIONS

MISCELLANEOUS FUNDS

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Sec. 2. UNCLAIMED PARI-MUTUEL WAGERING WINNINGS —— HORSE AND DOG RACING. There is appropriated from the moneys available under section 99D.13 to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of supporting the department's administration and enforcement of horse and dog racing law pursuant to section 99D.22, including for salaries, support, maintenance, and miscellaneous purposes:

..... $ 305,516

Sec. 3. RENEWABLE FUEL INFRASTRUCTURE FUND —— MOTOR FUEL INSPECTION. There is appropriated from the renewable fuel infrastructure fund created in section 159A.16 to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of the inspection of motor fuel, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 500,000

SPECIAL APPROPRIATIONS

GENERAL FUND

Sec. 4. DAIRY REGULATION.

1. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of performing functions pursuant to section 192.109, including conducting a survey of grade "A" milk and certifying the results to the secretary of agriculture:

..... $ 189,196

2. Notwithstanding section 8.33, moneys appropriated in

Page 3

this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 5. LOCAL FOOD AND FARM PROGRAM.

1. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of supporting the local food and farm program pursuant to chapter 267A:

..... $ 75,000

2. The department shall enter into a cost-sharing agreement with Iowa state university of science and technology to support the local food and farm program coordinator position as part of the university's cooperative extension service in agriculture and home economics pursuant to chapter 267A.

3. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 6. AGRICULTURAL EDUCATION.

1. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the

fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of allocating moneys to an Iowa association affiliated with a national organization which promotes agricultural education providing for future farmers:

..... $ 25,000

2. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the

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close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 7. FOREIGN ANIMAL DISEASES AFFLICTING LIVESTOCK.

There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For deposit in the foreign animal disease preparedness and response fund created in section 163.3B:

..... $ 750,000

Sec. 8. FARMERS WITH DISABILITIES PROGRAM.

1. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of supporting a program for farmers with disabilities:

..... $ 180,000

2. The moneys appropriated in subsection 1 shall be used for the public purpose of providing a grant to a national nonprofit organization with over 80 years of experience in assisting children and adults with disabilities and special needs. The moneys shall be used to support a nationally recognized program that began in 1986 and has been replicated in at least 30 other states, but which is not available through any other entity in this state, and that provides assistance to farmers with disabilities in all 99 counties to allow the farmers to remain in their own homes and be gainfully engaged in farming through provision of agricultural worksite and home modification consultations, peer support services, services to families, information and referral, and equipment loan services.

3. Notwithstanding section 8.33, moneys appropriated in

Page 5

this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain

available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 9. LOESS HILLS DEVELOPMENT AND CONSERVATION FUND.

1. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For deposit in the loess hills development and conservation fund created pursuant to section 161D.2:

..... $ 400,000

2. a. Of the amount appropriated to the loess hills development and conservation fund in subsection 1, $360,000 shall be allocated to the fund's hungry canyons account.

b. Not more than 10 percent of the moneys allocated to the fund's hungry canyons account as provided in paragraph "a" may be used for administrative costs.

3. a. Of the amount appropriated to the loess hills development and conservation fund in subsection 1, $40,000 shall be allocated to the fund's loess hills alliance account.

b. Not more than 10 percent of the moneys allocated to the fund's loess hills alliance account as provided in paragraph "a" may be used for administrative costs.

Sec. 10. SOUTHERN IOWA DEVELOPMENT AND CONSERVATION FUND.

1. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For deposit in the southern Iowa development and conservation fund created pursuant to section 161D.12:

..... $ 250,000

2. Not more than 10 percent of the moneys appropriated

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to the fund as provided in subsection 1 may be used for administrative costs.

Sec. 11. GRAIN REGULATION. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For the administration and enforcement of chapters 203 and 203C, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 350,000

Sec. 12. VALUE ADDED AGRICULTURE GRANT PROGRAM.

1. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023,

the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For the administration and execution of a value added agriculture grant program to identify, evaluate, and support programs and services which add value to agriculture products, enable new technology, and support marketing strategies:

..... $ 463,000

2. The department shall adopt rules pursuant to chapter 17A necessary to implement and administer this section.

3. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

DIVISION II

DEPARTMENT OF NATURAL RESOURCES

Sec. 13. GENERAL FUND —— DEPARTMENT.

1. There is appropriated from the general fund of the state to the department of natural resources for the fiscal year

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beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of supporting the department, including its divisions, for administration, regulation, and programs; for salaries, support, maintenance, and miscellaneous purposes; and for not more than the following full-time equivalent positions:

..... $ 12,093,061

..... FTEs 1,145.95

2. Of the number of full-time equivalent positions authorized to the department pursuant to subsection 1, 50.00 full-time equivalent positions shall be allocated by the department for seasonal employees for purposes of providing maintenance, upkeep, and sanitary services at state parks. This subsection shall not impact conservation officer, park ranger, or park manager positions within the department.

3. The department shall submit a report each quarter of the fiscal year to the legislative services agency, the department of management, the members of the joint appropriations subcommittee on agriculture and natural resources, and the chairpersons and ranking members of the senate and house committees on appropriations. The report shall describe in detail the expenditure of moneys appropriated under this section to support the department's administration, regulation, and programs.

Sec. 14. STATE FISH AND GAME PROTECTION FUND —— REGULATION AND ADVANCEMENT OF OUTDOOR ACTIVITIES.

1. There is appropriated from the state fish and game protection fund created pursuant to section 456A.17 to the department of natural resources for the fiscal year beginning

July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of supporting the regulation or advancement of hunting, fishing, or trapping, or the protection, propagation,

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restoration, management, or harvest of fish or wildlife, including for administration, regulation, law enforcement, and programs; and for salaries, support, maintenance, equipment, and miscellaneous purposes:

..... $ 47,541,987

2. Notwithstanding section 455A.10, the department may use the unappropriated balance remaining in the state fish and game protection fund to provide for the funding of health and life insurance premium payments from unused sick leave balances of conservation peace officers employed in a protection occupation who retire, pursuant to section 97B.49B.

3. Notwithstanding section 455A.10, the department of natural resources may use the unappropriated balance remaining in the state fish and game protection fund for the fiscal year beginning July 1, 2022, and ending June 30, 2023, as is necessary to fund salary adjustments for departmental employees for which the general assembly has made an operating budget appropriation in subsection 1.

Sec. 15. GROUNDWATER PROTECTION FUND —— WATER QUALITY. There is appropriated from the groundwater protection fund created in section 455E.11 to the department of natural resources for the fiscal year beginning July 1, 2022, and ending June 30, 2023, from those moneys which are not allocated pursuant to that section, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of supporting the department's protection of the state's groundwater, including for administration, regulation, and programs, and for salaries, support, maintenance, equipment, and miscellaneous purposes:

..... $ 3,455,850

DESIGNATED APPROPRIATIONS
MISCELLANEOUS FUNDS

Sec. 16. SPECIAL SNOWMOBILE FUND —— SNOWMOBILE PROGRAM. There is appropriated from the special snowmobile

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fund created under section 321G.7 to the department of natural resources for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of administering and enforcing the state snowmobile programs:

..... $ 100,000

Sec. 17. UNASSIGNED REVENUE FUND —— UNDERGROUND STORAGE TANKS SECTION EXPENSES. There is appropriated from the unassigned revenue fund administered by the Iowa comprehensive petroleum underground storage tank fund board established pursuant to section 455G.4 to the department of natural resources for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of paying for administration expenses of the department's underground storage tanks section:

..... $ 200,000

SPECIAL APPROPRIATIONS
GENERAL FUND

Sec. 18. FLOODPLAIN MANAGEMENT AND DAM SAFETY.

1. There is appropriated from the general fund of the state to the department of natural resources for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of supporting floodplain management and dam safety:

..... $ 1,510,000

2. Of the amount appropriated in subsection 1, up to $400,000 may be used by the department to acquire or install stream gages for purposes of tracking and predicting flood events and for compiling necessary data to improve flood frequency analysis.

3. Notwithstanding section 8.33, moneys appropriated in

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subsection 1 that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 19. FORESTRY HEALTH MANAGEMENT.

1. There is appropriated from the general fund of the state to the department of natural resources for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For purposes of providing for forestry health management programs:

..... $ 500,000

2. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 20. STATE PARK OPERATIONS. There is appropriated from the general fund of the state to the department of natural

resources for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For supporting operations at state parks, including maintenance and repair of grounds and facilities:

..... $ 1,000,000

DIVISION III

IOWA STATE UNIVERSITY

SPECIAL GENERAL FUND APPROPRIATIONS

Sec. 21. VETERINARY DIAGNOSTIC LABORATORY.

1. There is appropriated from the general fund of the state to Iowa state university of science and technology for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

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For purposes of supporting the college of veterinary medicine for the operation of the veterinary diagnostic laboratory and for not more than the following full-time equivalent positions:

..... $ 4,400,000

..... FTEs 51.00

2. a. Iowa state university of science and technology shall not reduce the amount that it allocates to support the college of veterinary medicine from any other source due to the appropriation made in this section.

b. Paragraph "a" does not apply to a reduction made to support the college of veterinary medicine, if the same percentage of reduction imposed on the college of veterinary medicine is also imposed on all of Iowa state university of science and technology's budget units.

3. If by June 30, 2023, Iowa state university of science and technology fails to allocate the moneys appropriated in this section to the college of veterinary medicine in accordance with this section, the moneys appropriated in this section for that fiscal year shall revert to the general fund of the state.

Sec. 22. LIVESTOCK DISEASE RESEARCH.

1. There is appropriated from the general fund of the state to Iowa state university of science and technology for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For deposit in the livestock disease research fund created in section 267.8:

..... $ 170,390

2. Moneys appropriated under subsection 1 shall be used by Iowa state university of science and technology to support animal disease research in areas of importance to livestock

producers.

DIVISION IV
STATE UNIVERSITY OF IOWA

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SPECIAL GENERAL FUND APPROPRIATION
AGRICULTURAL SAFETY AND HEALTH

Sec. 23. IOWA'S CENTER FOR AGRICULTURAL SAFETY AND HEALTH (I-CASH).

1. There is appropriated from the general fund of the state to the state university of Iowa for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For supporting the operations of Iowa's center for agricultural safety and health, as part of the university's college of public health, and in cooperation with the department of agriculture and land stewardship, to anticipate, recognize, and prevent occupational illness and injury among members of the agricultural community:

..... $ 128,154

2. a. As a condition of the appropriation made in subsection 1, the state university of Iowa shall retain the director of Iowa's center for agricultural safety and health employed on the effective date of this division of this Act for at least the same number of hours for the fiscal year beginning July 1, 2022, as worked by the director during the fiscal year beginning July 1, 2021.

b. As a condition of the appropriation made in subsection 1, the state university of Iowa shall not reduce the amount allocated to support Iowa's center for agricultural safety from any other source due to the appropriation made in subsection 1.

3. If by June 30, 2023, the state university of Iowa fails to use the moneys appropriated in subsection 1 in accordance with the purposes and conditions of subsections 1 and 2, any unencumbered or unobligated moneys appropriated in subsection 1 for the fiscal year beginning July 1, 2022, and ending June 30, 2023, shall revert to the general fund of the state. In addition, if moneys are required to be reverted pursuant to section 8.33, the state university of Iowa shall transfer to

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the general fund of the state from any otherwise unencumbered or unobligated moneys from any other general fund appropriation or from any moneys available from other funding sources an amount equal to the amount appropriated in subsection 1 less any amount reverted to the general fund of the state pursuant to section 8.33.

DIVISION V
ENVIRONMENT FIRST FUND

GENERAL APPROPRIATIONS

Sec. 24. DEPARTMENT OF AGRICULTURE AND LAND STEWARDSHIP. There is appropriated from the environment first fund created in section 8.57A to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. CONSERVATION RESERVE ENHANCEMENT PROGRAM (CREP)

a. For the conservation reserve enhancement program to restore and construct wetlands for the purposes of intercepting tile line runoff, reducing nutrient loss, improving water quality, and enhancing agricultural production practices:

..... $ 1,000,000

b. Not more than 10 percent of the moneys appropriated in paragraph "a" may be used for costs of administration and implementation of soil and water conservation practices.

c. Notwithstanding any other provision of law, the department may use moneys appropriated in this subsection, in combination with other appropriate environment first fund appropriations, for cost sharing to match United States department of agriculture, natural resources conservation service, wetlands reserve enhancement program (WREP) funding available to Iowa.

2. WATERSHED PROTECTION

a. For continuation of a program that provides multiobjective resource protections for flood control, water

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quality, erosion control, and natural resource conservation:

..... $ 900,000

b. Not more than 10 percent of the moneys appropriated in paragraph "a" may be used for costs of administration and implementation of soil and water conservation practices.

3. CONSERVATION RESERVE PROGRAM (CRP)

a. To encourage and assist farmers in enrolling in and the implementation of the federal conservation reserve program and to work with them to enhance their revegetation efforts to improve water quality and habitat:

..... $ 900,000

b. Not more than 10 percent of the moneys appropriated in paragraph "a" may be used for costs of administration and implementation of soil and water conservation practices.

4. SOIL AND WATER CONSERVATION

a. For use by the department in providing for soil and water conservation:

..... $ 8,325,000

b. (1) Of the amount appropriated in paragraph "a", for transfer to the hungry canyons account of the loess hills development and conservation fund created in section 161D.2:

..... $ 140,000

(2) Not more than 10 percent of the moneys transferred to the fund's hungry canyons account as provided in subparagraph (1) may be used for administrative costs.

c. Of the remaining amount appropriated in paragraph "a", for use by the department in providing for soil and water conservation administration, the conservation of soil and water resources, or the support of soil and water conservation districts:

..... $ 8,185,000

d. Of the amount appropriated in paragraph "c" that the department allocates to a soil and water conservation district, the first $15,000 may be expended by the district for the purpose of providing financial incentives under section 161A.73

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to establish management practices for the control of soil erosion on land that is row-cropped, including but not limited to nontill planting, ridge-till planting, and contouring strip-cropping. Of any remaining amount of that appropriation allocated by the department to a district, 30 percent may be expended by the district for that same purpose.

e. Not more than 5 percent of the moneys appropriated in paragraph "c" may be allocated for cost sharing to address complaints filed under section 161A.47.

f. Of the moneys appropriated in paragraph "c", 5 percent shall be allocated for financial incentives to establish practices to protect watersheds above publicly owned lakes of the state from soil erosion and sediment as provided in section 161A.73.

g. The state soil conservation and water quality committee established by section 161A.4 may allocate moneys appropriated in paragraph "c" to conduct research and demonstration projects to promote conservation tillage and nonpoint source pollution control practices.

h. The allocation of moneys as financial incentives as provided in section 161A.73 may be used in combination with moneys allocated by the department of natural resources.

i. Not more than 15 percent of the moneys appropriated in paragraph "c" may be used for costs of administration and implementation of soil and water conservation practices.

5. SOIL AND WATER CONSERVATION —— ADMINISTRATION

a. For use by the department for costs of administration and implementation of soil and water conservation practices:

..... $ 3,800,000

b. Of the moneys appropriated in paragraph "a", $150,000 is allocated to support field staff providing technical assistance.

Sec. 25. DEPARTMENT OF NATURAL RESOURCES. There is appropriated from the environment first fund created in section 8.57A to the department of natural resources for the fiscal

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year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. STATE PARKS MAINTENANCE AND OPERATIONS

For regular maintenance and operations of state parks and staff time associated with these activities:

..... $ 6,235,000

2. GEOGRAPHIC INFORMATION SYSTEM (GIS)

To provide local watershed managers with geographic information system data for their use in developing, monitoring, and displaying results of their watershed work:

..... $ 195,000

3. WATER QUALITY MONITORING

For continuing the establishment and operation of water quality monitoring stations:

..... $ 2,955,000

4. PUBLIC WATER SUPPLY SYSTEM ACCOUNT

For deposit in the public water supply system account of the water quality protection fund created in section 455B.183A:

..... $ 500,000

5. REGULATION OF ANIMAL FEEDING OPERATIONS

For the regulation of animal feeding operations, including as provided for in chapters 459, 459A, and 459B:

..... $ 1,320,000

6. AMBIENT AIR QUALITY

For the abatement, control, and prevention of ambient air pollution in this state, including measures as necessary to assure attainment and maintenance of ambient air quality standards from particulate matter:

..... $ 425,000

7. FLOODPLAIN MANAGEMENT AND DAM SAFETY

For supporting floodplain management and dam safety:

..... $ 375,000

Sec. 26. STATE UNIVERSITY OF IOWA —— IOWA GEOLOGICAL SURVEY. There is appropriated from the environment first

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fund created in section 8.57A to the state university of Iowa for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. OPERATIONS

For purposes of supporting the operations of the Iowa geological survey of the state as created within the state university of Iowa pursuant to section 456.1, including but not limited to providing analysis; data maintenance, collection, and compilation; investigative programs; and information for water supply development and protection:

..... $ 200,000

2. WATER RESOURCE MANAGEMENT

For purposes of supporting the Iowa geological survey in measuring, assessing, and evaluating the quantity of water sources in this state and assisting the department of natural resources in regulating water quantity as provided in chapter 455B, subchapter III, part 4, pursuant to sections 455B.262B and 456.14:

..... $ 495,000

Sec. 27. REVERSION.

1. a. Except as provided in paragraph "b", and notwithstanding section 8.33, moneys appropriated for the fiscal year beginning July 1, 2022, in this division of this Act that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year, or until the project for which the appropriation was made is completed, whichever is earlier.

b. Notwithstanding section 8.33, moneys appropriated for the fiscal year beginning July 1, 2022, in this division of this Act to the department of agriculture and land stewardship to provide financial assistance for the establishment of permanent soil and water conservation practices that remain unencumbered or unobligated at the close of the fiscal year

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shall not revert but shall remain available for expenditure for the purposes designated until the close of the fiscal year beginning July 1, 2025.

2. Subsection 1 does not apply to moneys transferred pursuant to this division of this Act to the loess hills development and conservation fund created in section 161D.2 which shall not revert as provided in that section.

DIVISION VI

ENVIRONMENT FIRST FUND

SPECIAL APPROPRIATIONS

Sec. 28. WATER QUALITY INITIATIVE —— DEPARTMENT OF AGRICULTURE AND LAND STEWARDSHIP.

1. There is appropriated from the environment first fund created in section 8.57A to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For deposit in the water quality initiative fund created in section 466B.45, for purposes of supporting the water quality initiative administered by the division of soil conservation and water quality as provided in section 466B.42, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 2,375,000

2. a. The moneys appropriated in subsection 1 shall be used to support projects in subwatersheds as designated by the

division that are part of high-priority watersheds identified by the water resources coordinating council established pursuant to section 466B.3.

b. The moneys appropriated in subsection 1 shall be used to support projects in watersheds generally, including regional watersheds, as designated by the division and high-priority watersheds identified by the water resources coordinating council established pursuant to section 466B.3.

3. In supporting projects in subwatersheds and watersheds

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as provided in subsection 2, all of the following apply:

a. The demonstration projects shall utilize water quality practices as described in the Iowa nutrient reduction strategy as defined in section 455B.171.

b. The division shall implement demonstration projects as provided in paragraph "a" by providing for participation by persons who hold a legal interest in agricultural land used in farming. To every extent practical, the division shall provide for collaborative participation by such persons who hold a legal interest in agricultural land located within the same subwatershed.

c. The division shall implement a demonstration project on a cost-share basis as determined by the division. However, except for edge-of-field practices, the state's share of the amount shall not exceed 50 percent of the estimated cost of establishing the practice as determined by the division or 50 percent of the actual cost of establishing the practice, whichever is less.

d. The demonstration projects shall be used to educate other persons about the feasibility and value of establishing similar water quality practices. The division shall promote field day events for purposes of allowing interested persons to establish water quality practices on their agricultural land.

e. The division shall conduct water quality evaluations within supported subwatersheds. Within a reasonable period after accumulating information from such evaluations, the division shall create an aggregated database of water quality practices. Any information identifying a person holding a legal interest in agricultural land or specific agricultural land shall be a confidential record under section 22.7.

4. The moneys appropriated in subsection 1 shall be used to support education and outreach in a manner that encourages persons who hold a legal interest in agricultural land used for farming to implement water quality practices, including the establishment of such practices in watersheds generally, and

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not limited to subwatersheds or high-priority watersheds.

5. The moneys appropriated in subsection 1 may be used

to contract with persons to coordinate the implementation of efforts provided in this section.

6. The moneys appropriated in subsection 1 may be used by the department to support urban soil and water conservation efforts, which may include but are not limited to management practices related to bioretention, landscaping, the use of permeable or pervious pavement, and soil quality restoration. The moneys shall be allocated on a cost-share basis as provided in chapter 161A.

7. Notwithstanding any other provision of law to the contrary, the department may use moneys appropriated in subsection 1 to carry out the provisions of this section on a cost-share basis in combination with other moneys available to the department from a state or federal source.

8. Not more than 10 percent of the moneys appropriated in this section may be used to pay for the costs of administering and implementing the water quality initiative by the department's division of soil conservation and water quality as provided in section 466B.42 and this section.

DIVISION VII

IOWA RESOURCES ENHANCEMENT AND PROTECTION FUND

Sec. 29. REAP —— IN LIEU OF GENERAL FUND APPROPRIATION. In lieu of the standing appropriation in section 455A.18, there is appropriated from the environment first fund created in section 8.57A to the Iowa resources enhancement and protection fund for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, to be allocated as provided in section 455A.19:

..... $ 12,000,000

Sec. 30. REAP —— OPEN SPACES ACCOUNT —— STATE PARK MAINTENANCE AND REPAIR. Notwithstanding section 455A.19, subsection 1, paragraph "a", subparagraph (1), of the moneys allocated to the open spaces account of the Iowa resources

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enhancement and protection fund, up to $1,000,000 may be used by the department of natural resources for state park maintenance and repair for the fiscal year beginning July 1, 2022, and ending on June 30, 2023.

DIVISION VIII

DEPARTMENT OF AGRICULTURE AND LAND STEWARDSHIP GENERAL FUND DEDICATED APPROPRIATIONS

Sec. 31. CHOOSE IOWA PROMOTION PROGRAM.

1. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For deposit in the choose Iowa fund established pursuant to section 159.31A, if enacted in 2022 Iowa Acts, House File 2581:

..... $ 500,000

2. This section is contingent on the establishment of a choose Iowa promotional program as provided in chapter 159, if enacted in 2022 Iowa Acts, House File 2581.

DIVISION IX

STATUTORY PROVISIONS —— DALS —— VALUE ADDED AGRICULTURAL GRANT PROGRAM

Sec. 32. 2021 Iowa Acts, chapter 143, section 12, is amended to read as follows:

SEC. 12. VALUE ADDED AGRICULTURE GRANT PROGRAM.

1. There is appropriated from the general fund of the state to the department of agriculture and land stewardship for the fiscal year beginning July 1, 2021, and ending June 30, 2022, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For the administration and execution of a value added agriculture grant program to identify, evaluate, and support programs and services which add value to agriculture products, enable new technology, and support marketing strategies:

..... $ 250,000

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2. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 33. EFFECTIVE DATE. The section of this division of this Act amending 2021 Iowa Acts, chapter 143, section 12, takes effect upon enactment.

DIVISION X

STATUTORY PROVISIONS —— STATE PARK HOUSING

Sec. 34. NEW SECTION. **456A.13B Occupancy of state housing in state parks.**

1. If an employee of the department occupies a state-owned residence located within a state park on January 1, 2022, the employee may continue to occupy that residence until December 31, 2023, under the same terms and conditions that applied on the date that the employee first occupied the residence.

2. This section is repealed on January 1, 2024.

Sec. 35. EFFECTIVE DATE. The following, being deemed of immediate importance, takes effect upon enactment:

The section of this division of this Act enacting section 456A.13B.>

COMMITTEE ON APPROPRIATIONS
TIM KRAAYENBRINK, CHAIRPERSON

S–5151

Amend House File 2564, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

FY 2022–2023 APPROPRIATIONS

Section 1. DEPARTMENT OF CULTURAL AFFAIRS.

1. There is appropriated from the general fund of the state to the department of cultural affairs for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

a. ADMINISTRATION

For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions for the department:

..... $ 168,637

..... FTEs 55.24

The department of cultural affairs shall coordinate activities with the tourism office of the economic development authority to promote attendance at the state historical building and at the state's historic sites.

Full-time equivalent positions authorized under this paragraph are funded, in full or in part, using moneys appropriated under this paragraph and paragraphs "c" through "g".

b. COMMUNITY CULTURAL GRANTS

For planning and programming for the community cultural grants program established under section 303.3:

..... $ 172,090

c. HISTORICAL DIVISION

For the support of the historical division:

..... $ 3,142,351

d. HISTORIC SITES

For the administration and support of historic sites:

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..... $ 426,398

e. ARTS DIVISION

For the support of the arts division:

..... $ 1,317,188

Of the moneys appropriated in this paragraph, the department shall allocate $300,000 for purposes of the film office.

f. IOWA GREAT PLACES

For the Iowa great places program established under section 303.3C:

..... $ 150,000

g. CULTURAL TRUST GRANTS

For grant programs administered by the Iowa arts council including those programs supporting the long-term financial stability and sustainability of nonprofit cultural organizations:

..... $ 150,000

2. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 2. GOALS AND ACCOUNTABILITY —— ECONOMIC DEVELOPMENT.

1. For the fiscal year beginning July 1, 2022, the goals for the economic development authority shall be to expand and stimulate the state economy, increase the wealth of Iowans, and increase the population of the state.

2. To achieve the goals in subsection 1, the economic development authority shall do all of the following for the fiscal year beginning July 1, 2022:

a. Concentrate its efforts on programs and activities that result in commercially viable products and services.

b. Adopt practices and services consistent with free market, private sector philosophies.

c. Ensure economic growth and development throughout the state.

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d. Work with businesses and communities to continually improve the economic development climate along with the economic well-being and quality of life for Iowans.

e. Coordinate with other state agencies to ensure that they are attentive to the needs of an entrepreneurial culture.

f. Establish a strong and aggressive marketing image to showcase Iowa's workforce, existing industry, and potential. A priority shall be placed on recruiting new businesses, business expansion, and retaining existing Iowa businesses. Emphasis shall be placed on entrepreneurial development through helping entrepreneurs secure capital, and developing networks and a business climate conducive to entrepreneurs and small businesses.

g. Encourage the development of communities and quality of life to foster economic growth.

h. Prepare communities for future growth and development through development, expansion, and modernization of infrastructure.

i. Develop public-private partnerships with Iowa businesses in the tourism industry, Iowa tour groups, Iowa tourism organizations, and political subdivisions in this state to assist in the development of advertising efforts.

j. Develop, to the fullest extent possible, cooperative efforts for advertising with contributions from other sources.

Sec. 3. ECONOMIC DEVELOPMENT AUTHORITY.

1. APPROPRIATION

a. There is appropriated from the general fund of the state to the economic development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the

purposes designated in this subsection, and for not more than the following full-time equivalent positions:
..... $ 13,318,553
..... FTEs 105.85
b. (1) For salaries, support, miscellaneous purposes,

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programs, marketing, and the maintenance of an administration division, a business development division, a community development division, a small business development division, and other divisions the authority may organize.
(2) The full-time equivalent positions authorized under this section are funded, in whole or in part, by the moneys appropriated under this subsection or by other moneys received by the authority, including certain federal moneys.
(3) For business development operations and programs, international trade, export assistance, workforce recruitment, and the partner state program.
(4) For transfer to a fund created pursuant to section 15.313 for purposes of financing strategic infrastructure projects.
(5) For community economic development programs, tourism operations, community assistance, plans for Iowa green corps and summer youth programs, the main street and rural main street programs, the school-to-career program, the community development block grant, and housing and shelter-related programs.
(6) For achieving the goals and accountability, and fulfilling the requirements and duties required under this Act.
c. Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated in this subsection until the close of the succeeding fiscal year.
2. FINANCIAL ASSISTANCE RESTRICTIONS
a. A business creating jobs through moneys appropriated in subsection 1 shall be subject to contract provisions requiring new and retained jobs to be filled by individuals who are citizens of the United States who reside within the United States, or any person authorized to work in the United States pursuant to federal law, including legal resident aliens residing in the United States.

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b. Any vendor who receives moneys appropriated in subsection 1 shall adhere to such contract provisions and provide periodic assurances as the state shall require that the jobs are filled solely by citizens of the United States who reside within the United States, or any person authorized to work in the United States, pursuant to federal law, including

legal resident aliens residing in the United States.

c. A business that receives financial assistance from the authority from moneys appropriated in subsection 1 shall only employ individuals legally authorized to work in this state. In addition to all other applicable penalties provided by current law, all or a portion of the assistance received by a business which is found to knowingly employ individuals not legally authorized to work in this state is subject to recapture by the authority.

3. USES OF APPROPRIATIONS

a. From the moneys appropriated in subsection 1, the authority may provide financial assistance in the form of a grant to a community economic development entity for conducting a local workforce recruitment effort designed to recruit former citizens of the state and former students at colleges and universities in the state to meet the needs of local employers.

b. From the moneys appropriated in subsection 1, the authority may provide financial assistance to early stage industry companies being established by women entrepreneurs.

c. From the moneys appropriated in subsection 1, the authority may provide financial assistance in the form of grants, loans, or forgivable loans for advanced research and commercialization projects involving value-added agriculture, advanced technology, or biotechnology.

d. The authority shall not use any moneys appropriated in subsection 1 for purposes of providing financial assistance for the Iowa green streets pilot project or for any other program or project that involves the installation of geothermal systems for melting snow and ice from streets or sidewalks.

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4. WORLD FOOD PRIZE

In lieu of the standing appropriation in section 15.368, there is appropriated from the general fund of the state to the economic development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount for the world food prize:

..... $ 375,000

5. IOWA COMMISSION ON VOLUNTEER SERVICE

a. There is appropriated from the general fund of the state to the economic development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount for allocation to the Iowa commission on volunteer service for purposes of the Iowa state commission grant program, the Iowa's promise and Iowa mentoring partnership programs, and for not more than the following full-time equivalent positions:

..... $ 168,201

..... FTEs 12.70

Of the moneys appropriated in this subsection, the authority shall allocate $75,000 for purposes of the Iowa state

commission grant program and $93,201 for purposes of the Iowa's promise and Iowa mentoring partnership programs.

b. Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

6. COUNCILS OF GOVERNMENTS —— ASSISTANCE

There is appropriated from the general fund of the state to the economic development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount to be used for the purposes of providing financial assistance to Iowa's councils of governments:

..... $ 250,000

7. FUTURE READY IOWA REGISTERED APPRENTICESHIP DEVELOPMENT PROGRAM

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a. There is appropriated from the general fund of the state to the economic development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount to be used for the funding of the future ready Iowa registered apprenticeship development program under chapter 15C, to encourage small to midsize businesses to start or grow registered apprenticeships:

..... $ 760,000

b. Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

8. BUTCHERY INNOVATION AND REVITALIZATION PROGRAM

a. There is appropriated from the general fund of the state to the economic development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, for the purpose designated:

For support of the butchery innovation and revitalization program established in section 15E.370:

..... $ 633,325

b. There is appropriated from the Iowa skilled worker and job creation fund created in section 8.75 to the Iowa economic development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For support of the butchery innovation and revitalization program established in section 15E.370:

..... $ 366,675

9. TOURISM OFFICE

a. There is appropriated from the general fund of the state to the economic development authority for the fiscal year

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beginning July 1, 2021, and ending June 30, 2022, the following amount for the tourism office to be used for advertising, promoting, placement, and implementation of the economic development authority's strategic plan for tourism and travel:
..... $ 1,100,000

b. Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

c. The economic development authority shall submit an annual report on or before January 15 to the general assembly regarding the tourism office's activities funded with moneys appropriated under this subsection. The report shall be provided in an electronic format and shall include metrics and criteria that allow the general assembly to quantify and evaluate the effectiveness and economic impact of the tourism office's activities related to advertising, promoting, placement, and implementation of the economic development authority's strategic plan for tourism and travel.

10. SCIENCE, TECHNOLOGY, ENGINEERING, AND MATHEMATICS INTERNSHIPS

a. There is appropriated from the Iowa skilled worker and job creation fund created in section 8.75 to the Iowa economic development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For the funding of internships for students studying in the fields of science, technology, engineering, and mathematics with eligible Iowa employers as provided in section 15.411, subsection 3, paragraph "c":
..... $ 633,325

b. No more than 3 percent of the moneys appropriated in this subsection may be used by the authority for costs associated

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with administration of the internship program.

c. Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated in subsequent fiscal years.

11. FUTURE READY IOWA —— VOLUNTEER MENTORING PROGRAM

a. There is appropriated from the Iowa skilled worker and job creation fund created in section 8.75 to the economic

development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For allocation to the Iowa commission on volunteer services to be used for establishing a volunteer mentor program to support implementation of the future ready Iowa skilled workforce last-dollar scholarship program in section 261.131 and the future ready Iowa skilled workforce grant program created in section 261.132, and for not more than the following full-time equivalent positions:

..... $ 400,000

..... FTEs 1.15

b. Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

12. STEM BEST AND EMPOWER RURAL IOWA

a. There is appropriated from the Iowa skilled worker and job creation fund created in section 8.75 to the economic development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

STEM best:

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..... $ 700,000

Empower rural Iowa program:

..... $ 700,000

b. Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

c. The authority shall adopt rules pursuant to chapter 17A to establish criteria for the distribution of the moneys appropriated in this subsection.

Sec. 4. LIMITATIONS OF STANDING APPROPRIATIONS —— FY 2022–2023. Notwithstanding the standing appropriations in the following designated sections for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the amounts appropriated from the general fund of the state pursuant to those sections for the following purposes shall not exceed the following amounts:

1. For operational support grants and community cultural grants under section 99F.11, subsection 4, paragraph "d", subparagraph (1):

..... $ 448,403

2. For the purposes of regional tourism marketing under

section 99F.11, subsection 4, paragraph "d", subparagraph (2):
..... $ 1,443,700

Sec. 5. FINANCIAL ASSISTANCE REPORTING —— ECONOMIC DEVELOPMENT AUTHORITY. The economic development authority shall submit an annual report to the general assembly no later than November 1, 2022, that details the amount of every direct loan, forgivable loan, tax credit, tax exemption, tax refund, grant, or any other financial assistance awarded to a person during the prior fiscal year by the authority under an economic development program administered by the authority. The report shall identify the county where the project associated with each such award is located.

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Sec. 6. INSURANCE ECONOMIC DEVELOPMENT. From the moneys collected by the insurance division in excess of the anticipated gross revenues under section 505.7, subsection 3, during the fiscal year beginning July 1, 2022, $100,000 shall be transferred to the economic development authority for insurance economic development and international insurance economic development.

Sec. 7. IOWA FINANCE AUTHORITY.

1. There is appropriated from the general fund of the state to the Iowa finance authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used to provide reimbursement for rent expenses to eligible persons under the home and community-based services rent subsidy program established in section 16.55:
..... $ 658,000

2. Of the moneys appropriated in this section, not more than $35,000 may be used for administrative costs.

3. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 8. IOWA FINANCE AUTHORITY AUDIT. The auditor of state is requested to review the audit of the Iowa finance authority performed by the auditor hired by the authority.

Sec. 9. PUBLIC EMPLOYMENT RELATIONS BOARD.

1. There is appropriated from the general fund of the state to the public employment relations board for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

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..... $ 1,492,452
..... FTEs 10.00

2. Of the moneys appropriated in this section, the board shall allocate $15,000 for maintaining an internet site that allows access to a searchable database of collective bargaining information.

Sec. 10. DEPARTMENT OF WORKFORCE DEVELOPMENT. There is appropriated from the general fund of the state to the department of workforce development for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. DIVISION OF LABOR SERVICES

a. For the division of labor services, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 3,491,252
..... FTEs 58.46

b. From the contractor registration fees, the division of labor services shall reimburse the department of inspections and appeals for all costs associated with hearings under chapter 91C, relating to contractor registration.

2. DIVISION OF WORKERS' COMPENSATION

a. For the division of workers' compensation, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 3,321,044
..... FTEs 26.15

b. The division of workers' compensation shall charge a $100 filing fee for workers' compensation cases. The filing fee shall be paid by the petitioner of a claim. However, the fee can be taxed as a cost and paid by the losing party, except in cases where it would impose an undue hardship or be unjust under the circumstances. The moneys generated by the filing fee allowed under this paragraph are appropriated to the

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department of workforce development to be used for purposes of administering the division of workers' compensation.

3. WORKFORCE DEVELOPMENT OPERATIONS

a. For the operation of field offices, the workforce development board, and for not more than the following full-time equivalent positions:

..... $ 6,675,650
..... FTEs 188.63

b. Of the moneys appropriated in paragraph "a", the department shall allocate $150,000 to the state library for the purpose of licensing an online resource which prepares persons to succeed in the workplace through programs which improve job

skills and vocational test-taking abilities.

4. OFFENDER REENTRY PROGRAM

a. For the development and administration of an offender reentry program to provide offenders with employment skills, and for not more than the following full-time equivalent positions:

..... $ 387,158

..... FTEs 5.00

b. The department of workforce development shall partner with the department of corrections to provide staff within the correctional facilities resources to improve offenders' abilities to find and retain productive employment.

5. INTEGRATED INFORMATION FOR IOWA SYSTEM

For the payment of services provided by the department of administrative services related to the integrated information for Iowa system:

..... $ 228,822

6. SUMMER YOUTH INTERN PILOT PROGRAM

For the funding of a summer youth intern pilot program that will help young people at risk of not graduating from high school to explore and prepare for high-demand careers through summer work experience, including the development of soft skills:

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..... $ 250,000

7. NONREVERSION

Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 11. GENERAL FUND —— EMPLOYEE MISCLASSIFICATION PROGRAM. There is appropriated from the general fund of the state to the department of workforce development for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For enhancing efforts to investigate employers that misclassify workers, and for not more than the following full-time equivalent positions:

..... $ 379,631

..... FTEs 3.15

Sec. 12. SPECIAL EMPLOYMENT SECURITY CONTINGENCY FUND.

1. There is appropriated from the special employment security contingency fund to the department of workforce development for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for field offices:

..... $ 2,416,084

2. Any remaining additional penalty and interest revenue

collected by the department of workforce development is appropriated to the department for the fiscal year beginning July 1, 2022, and ending June 30, 2023, to accomplish the mission of the department.

Sec. 13. UNEMPLOYMENT COMPENSATION RESERVE FUND —— FIELD OFFICES. Notwithstanding section 96.9, subsection 8, paragraph "e", there is appropriated from interest earned on the unemployment compensation reserve fund to the department of workforce development for the fiscal year beginning July

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1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For the operation of field offices:

..... $ 2,200,000

Sec. 14. VIRTUAL ACCESS WORKFORCE DEVELOPMENT OFFICES. The department of workforce development shall require a unique identification login for all users of workforce development centers operated through electronic means.

Sec. 15. UNEMPLOYMENT COMPENSATION PROGRAM. Notwithstanding section 96.9, subsection 4, paragraph "a", moneys credited to the state by the secretary of the treasury of the United States pursuant to section 903 of the Social Security Act are appropriated to the department of workforce development and shall be used by the department for the administration of the unemployment compensation program only. This appropriation shall not apply to any fiscal year beginning after December 31, 2022.

Sec. 16. IOWA SKILLED WORKER AND JOB CREATION FUND.

1. There is appropriated from the Iowa skilled worker and job creation fund created in section 8.75 to the following departments, agencies, and institutions for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

a. ECONOMIC DEVELOPMENT AUTHORITY

(1) For the purposes of providing assistance as described in section 15.335B for the high quality jobs program:

..... $ 11,700,000

From the moneys appropriated in this subparagraph, the economic development authority may use not more than $1,000,000 for purposes of providing infrastructure grants to main street communities under the main street Iowa program and may allocate not more than $300,000 for the purposes of supporting statewide worker education and quality preapprenticeship programs.

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(2) As a condition of receiving moneys appropriated in this lettered paragraph "a", an entity shall testify upon the

request of the joint appropriations subcommittee on economic development regarding the expenditure of such moneys.

b. STATE BOARD OF REGENTS AND REGENTS INSTITUTIONS

(1) STATE BOARD OF REGENTS. For capacity building infrastructure in areas related to technology commercialization, marketing and business development efforts in areas related to technology commercialization, entrepreneurship, and business growth, and infrastructure projects and programs needed to assist in implementation of activities under chapter 262B:

..... $ 3,000,000

(a) Of the moneys appropriated pursuant to this subparagraph (1), 35 percent shall be allocated for Iowa state university of science and technology, 35 percent shall be allocated for the state university of Iowa, and 30 percent shall be allocated for the university of northern Iowa.

(b) The institutions shall provide a one-to-one match of additional moneys for the activities funded with moneys appropriated under this subparagraph (1).

(c) The state board of regents shall submit a report by January 15, 2023, to the governor and the general assembly regarding the activities, projects, and programs funded with moneys appropriated under this subparagraph (1). The report shall be provided in an electronic format and shall include a list of metrics and criteria mutually agreed to in advance by the board of regents and the economic development authority. The metrics and criteria shall allow the governor's office and the general assembly to quantify and evaluate the progress of the board of regents institutions with regard to their activities, projects, and programs in the areas of technology commercialization, entrepreneurship, regional development, and market research.

(2) IOWA STATE UNIVERSITY OF SCIENCE AND TECHNOLOGY. For

small business development centers, the research park, and the center for industrial research and service, and for not more than the following full-time equivalent positions:

..... $ 2,424,302

..... FTEs 50.95

(a) Of the moneys appropriated in this subparagraph (2), Iowa state university of science and technology shall allocate at least $735,728 for purposes of funding small business development centers. Iowa state university of science and technology may allocate the appropriated moneys to the various small business development centers in any manner necessary to achieve the purposes of this subparagraph.

(b) Iowa state university of science and technology shall do all of the following:

(i) Direct expenditures for research toward projects that will provide economic stimulus for Iowa.

(ii) Provide emphasis to providing services to Iowa-based companies.

(c) It is the intent of the general assembly that the industrial incentive program focus on Iowa industrial sectors and seek contributions and in-kind donations from businesses, industrial foundations, and trade associations, and that moneys for the center for industrial research and service industrial incentive program shall be allocated only for projects which are matched by private sector moneys for directed contract research or for nondirected research. The match required of small businesses as defined in section 15.102 for directed contract research or for nondirected research shall be $1 for each $3 of state funds. The match required for other businesses for directed contract research or for nondirected research shall be $1 for each $1 of state funds. The match required of industrial foundations or trade associations shall be $1 for each $1 of state funds.

(d) Iowa state university of science and technology shall report annually to the general assembly the total amount of

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private contributions, the proportion of contributions from small businesses and other businesses, and the proportion for directed contract research and nondirected research of benefit to Iowa businesses and industrial sectors.

(3) STATE UNIVERSITY OF IOWA. For the state university of Iowa research park and for university of Iowa pharmaceuticals located at the research park, including salaries, support, maintenance, equipment, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 209,279

..... FTEs 6.00

The state university of Iowa shall do all of the following:

(a) Direct expenditures for research toward projects that will provide economic stimulus for Iowa.

(b) Provide emphasis to providing services to Iowa-based companies.

(4) STATE UNIVERSITY OF IOWA. For the purpose of implementing the entrepreneurship and economic growth initiative, and for not more than the following full-time equivalent positions:

..... $ 2,000,000

..... FTEs 8.00

(5) UNIVERSITY OF NORTHERN IOWA. For the metal casting center, the center for business growth and innovation, and the institute for decision making, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 1,066,419

..... FTEs 10.00

(a) Of the moneys appropriated in this subparagraph,

the university of northern Iowa shall allocate at least $617,638 for purposes of support of entrepreneurs through the university's center for business growth and innovation and advance Iowa program.

(b) The university of northern Iowa shall do all of the

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following:

(i) Direct expenditures for research toward projects that will provide economic stimulus for Iowa.

(ii) Provide emphasis to providing services to Iowa-based companies.

(6) As a condition of receiving moneys appropriated in this lettered paragraph "b", an entity shall testify upon the request of the joint appropriations subcommittee on economic development regarding the expenditure of such moneys.

c. DEPARTMENT OF WORKFORCE DEVELOPMENT

To develop a long-term sustained program to train unemployed and underemployed central Iowans with skills necessary to advance to higher-paying jobs with full benefits:

..... $ 100,000

(1) The department of workforce development shall begin a request for proposals process, issued for purposes of this lettered paragraph "c", no later than September 1, 2022.

(2) As a condition of receiving moneys appropriated under this lettered paragraph "c", an entity shall testify upon the request of the joint appropriations subcommittee on economic development regarding the expenditure of such moneys.

d. DEPARTMENT OF WORKFORCE DEVELOPMENT

For the funding of a future ready Iowa coordinator in the department, and for not more than the following full-time equivalent positions:

..... $ 150,000

..... FTEs 1.00

2. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 17. GENERAL FUND —— CERTAIN REGENTS INSTITUTIONS.

1. There is appropriated from the general fund of the state to the following institutions for the fiscal year beginning

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July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

a. IOWA STATE UNIVERSITY OF SCIENCE AND TECHNOLOGY

In cooperation with the Iowa economic development authority, for support of a biosciences innovation ecosystem, to

strengthen Iowa's leadership positions in the area of bio-based chemicals, digital agriculture, vaccines, and medical devices, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 2,623,481

..... FTEs 10.01

b. STATE UNIVERSITY OF IOWA

In cooperation with the Iowa economic development authority, for support of a biosciences innovation ecosystem, to strengthen Iowa's leadership positions in the area of bio-based chemicals, digital agriculture, vaccines, and medical devices, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 874,494

..... FTEs 4.35

c. UNIVERSITY OF NORTHERN IOWA

For equipment and technology to expand the university's additive manufacturing capabilities related to investment castings technology and industry support, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 394,321

..... FTEs 2.73

The university of northern Iowa shall make a good-faith effort to coordinate with private entities to seek moneys to supplement this appropriation to support the expansion of the university's additive manufacturing capabilities.

2. Notwithstanding section 8.33, moneys appropriated in

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subsection 1, paragraphs "a" and "b", that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

DIVISION II

BEER AND LIQUOR CONTROL FUND —— STATEWIDE TOURISM MARKETING SERVICES AND EFFORTS

Sec. 18. NEW SECTION. **15.275 Statewide tourism marketing services and efforts.**

1. From the moneys transferred to the authority from the beer and liquor control fund pursuant to section 123.17, subsection 7, the authority shall award contracts to one or more entities to conduct statewide tourism marketing services and efforts and to provide services to campaigns, workshops, and conferences that promote travel and tourism throughout the state. Each contract awarded by the authority shall specify that the entity must conduct statewide tourism marketing services and efforts that meet all of the following requirements:

a. The marketing services and efforts shall be of

professional quality and shall be coordinated with, and not duplicate, existing programs or services conducted by the authority that are related to tourism marketing.

b. The marketing services and efforts shall include hosting and leveraging tourism advocacy events.

c. The marketing services and efforts shall be accessible to tourism-focused organizations.

d. The marketing services and efforts shall advocate for the travel and tourism industry and the sectors connected to Iowa's visitor economy to leverage public and private partnerships to market and promote the state as a travel destination.

2. The authority shall report to the general assembly on or before September 1 of each fiscal year on the effectiveness of each entity that conducted statewide tourism marketing services and efforts in the immediately preceding fiscal year pursuant

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to a contract awarded under subsection 1. The report shall be provided in an electronic format and shall include metrics and criteria that allow the general assembly to quantify and evaluate the effectiveness and economic impact of each entity's statewide tourism marketing services and efforts.

Sec. 19. Section 123.17, subsection 7, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

7. After any transfers provided for in subsections 3, 5, and 6, and before any other transfer to the general fund, the department of commerce shall transfer to the economic development authority from the beer and liquor control fund two million dollars annually for statewide tourism marketing services and efforts pursuant to section 15.275.

DIVISION III

HOUSING RENEWAL PILOT PROGRAM

Sec. 20. HOUSING RENEWAL PILOT PROGRAM.

1. For purposes of this section, "nonprofit Iowa affiliate" means a nonprofit Iowa affiliate of a nonprofit international organization whose primary activity is the promotion of the construction, remodeling, or rehabilitation of one-family or two-family dwellings for use by low-income families.

2. a. A housing renewal program fund is created in the state treasury under the control of the Iowa finance authority. The fund shall consist of moneys appropriated to or deposited in the fund. Moneys in the fund are appropriated to the authority to establish and administer a housing renewal pilot program.

b. For the fiscal year beginning July 1, 2022, and ending June 30, 2023, there is appropriated from the general fund of the state to the Iowa finance authority five hundred thousand dollars for deposit in the housing renewal program fund.

c. Notwithstanding section 12C.7, subsection 2, interest or

earnings on moneys in the housing renewal program fund shall be credited to the fund. Payment of interest, recaptures of grant

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awards, and other repayments under the housing renewal pilot program shall be deposited in the fund.

3. a. The Iowa finance authority shall provide moneys from the housing renewal program fund to a nonprofit Iowa affiliate that shall use the moneys to award grants under the housing renewal pilot program to eligible participants.

b. Eligible participants under paragraph "a" shall use a grant awarded under the housing renewal pilot program only for purposes of the acquisition, rehabilitation, and resale of ownership units; the acquisition and demolition of blighted structures; and the redevelopment of ownership units.

4. Twenty-five percent of moneys appropriated to the housing renewal program fund shall be allocated to rural communities in the eighty-eight least populated counties in the state.

5. a. The nonprofit Iowa affiliate may partner with a city, a county, a consortium of local governments, or an organization exempt from taxation pursuant to section 501(c)(3) of the Internal Revenue Code; however, the nonprofit Iowa affiliate shall determine the geographic location of all projects for which a grant is awarded.

b. The nonprofit Iowa affiliate shall not award a grantee more than one hundred thousand dollars per ownership unit. A grantee may use up to five percent of a grant for administration expenses related to the grantee's project.

c. (1) A grantee shall have thirty-six months from the date a contract is executed between the nonprofit Iowa affiliate and the grantee for the grantee's project. The grantee's project shall be considered complete when all grant funds awarded to the grantee have been expended, and all ownership units that are covered by the contract are finished and available for sale.

(2) If a grantee has no project activity within thirty-six months from the date a contract is executed between the nonprofit Iowa affiliate and the grantee, the grant award shall

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be returned to the Iowa finance authority for deposit in the housing renewal program fund.

d. A grantee shall sell each completed ownership unit to a homebuyer whose income is under the one hundred twenty percent area median income and who must occupy the ownership unit as the homebuyer's primary residence. The deed to the ownership unit must contain a restrictive resale requirement that prohibits the homebuyer or a subsequent owner from selling the ownership unit to a person with an income above the one

hundred twenty percent area median income for five calendar years from the date the grantee sold the ownership unit to the first homebuyer whose income is under the one hundred twenty percent area median income.

6. A grantee may use income generated from the sale of an ownership unit only for the purpose of additional eligible expenses under the housing renewal pilot program.

7. The Iowa finance authority shall not use more than five percent of moneys allocated to the housing renewal program fund for administration and oversight of the housing renewal pilot program.

8. The Iowa finance authority shall adopt rules pursuant to chapter 17A to administer this division.

9. The Iowa finance authority, in coordination with the nonprofit Iowa affiliate, shall submit a report to the general assembly on or before December 31, 2023, describing the community, economic, and financial impact of the housing renewal pilot program.

DIVISION IV

HIGH QUALITY JOBS TAX CREDITS

Sec. 21. Section 15.119, subsection 2, paragraph a, subparagraph (2), Code 2022, is amended to read as follows:

(2) In allocating tax credits pursuant to this subsection for the fiscal year beginning July 1, ~~2021~~ 2022, and for each fiscal year thereafter, the authority shall not allocate more than ~~seventy~~ sixty-eight million dollars for purposes of this

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paragraph.

DIVISION V

EMPLOYER CHILD CARE TAX CREDIT

Sec. 22. NEW SECTION. **237A.31 Employer child care tax credit.**

1. The taxes imposed under chapter 422, subchapter II or III, the franchise tax imposed under chapter 422, subchapter V, the gross premiums tax under chapter 432, or the moneys and credits tax imposed under section 533.329 shall be reduced by an employer child care tax credit equal to the amount of the federal employer-provided child care tax credit provided in section 45F of the Internal Revenue Code the taxpayer was eligible for in the same tax year.

2. Any credit in excess of the tax liability is not refundable but the excess for the tax year may be credited to the tax liability for the following five years or until depleted, whichever is earlier.

3. *a.* The aggregate amount of tax credits authorized pursuant to this section shall not exceed an aggregate limit of two million dollars annually.

b. To receive a tax credit, a taxpayer must submit an application to the economic development authority in the form and manner prescribed by the authority by rule. The economic

development authority shall issue certificates under this section on a first-come, first-served basis, which certificates may be redeemed for tax credits. The economic development authority shall issue such certificates so that not more than the amount authorized for such tax credits under paragraph *"a"* may be claimed.

4. The department of revenue, in consultation with the economic development authority, shall adopt rules pursuant to chapter 17A to administer this section.

Sec. 23. NEW SECTION. **422.12O Employer child care tax credit.**

1. The taxes imposed under this subchapter, less the credits

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allowed under section 422.12, shall be reduced by an employer child care tax credit allowed pursuant to section 237A.31.

2. An individual may claim the tax credit allowed a partnership, S corporation, limited liability company, estate, or trust electing to have the income taxed directly to the individual. The amount claimed by the individual shall be based upon the pro rata share of the individual's earnings of a partnership, S corporation, limited liability company, estate, or trust.

Sec. 24. Section 422.33, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 32. The taxes imposed under this subchapter shall be reduced by an employer child care tax credit allowed pursuant to section 237A.31.

Sec. 25. Section 422.60, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 15. The taxes imposed under this division shall be reduced by an employer child care tax credit allowed pursuant to section 237A.31.

Sec. 26. NEW SECTION. **432.12O Employer child care tax credit.**

The taxes imposed under this chapter shall be reduced by an employer child care tax credit allowed pursuant to section 237A.31.

Sec. 27. Section 533.329, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *m.* The moneys and credits tax imposed under this section shall be reduced by an employer child care tax credit allowed pursuant to section 237A.31.

Sec. 28. APPLICABILITY. This division of this Act applies to tax years beginning on or after January 1, 2023.>

2. Title page, by striking lines 5 through 8 and inserting

<regents and certain regents institutions, providing for

properly related matters, and including applicability provisions.>

COMMITTEE ON APPROPRIATIONS
TIM KRAAYENBRINK, CHAIRPERSON

S–5152

Amend House File 2559, as amended, passed, and reprinted by the House as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I
FY 2022–2023 APPROPRIATIONS

Section 1. DEPARTMENT OF JUSTICE.

1. There is appropriated from the general fund of the state to the department of justice for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

a. For the general office of attorney general for salaries, support, maintenance, and miscellaneous purposes, including the prosecuting attorneys training program, matching funds for federal violence against women grant programs, victim assistance grants, the office of drug control policy prosecuting attorney program, and odometer fraud enforcement, and for not more than the following full-time equivalent positions:

..... $ 6,530,099
..... FTEs 217.00

As a condition of receiving the appropriation provided in this lettered paragraph, the department of justice shall maintain a record of the estimated time incurred representing each agency or department.

The general office of attorney general may temporarily exceed and draw more than the amount appropriated in this lettered paragraph and incur a negative cash balance as long as there are receivables equal to or greater than the negative balances and the amount appropriated in this lettered paragraph is not exceeded at the close of the fiscal year.

b. For victim assistance grants:

..... $ 5,016,708

The moneys appropriated in this lettered paragraph shall be

used to provide grants to care providers providing services to crime victims of domestic abuse or to crime victims of rape and sexual assault.

The balance of the victim compensation fund established in section 915.94 may be used to provide salary and support of not more than 24.00 full-time equivalent positions and to

provide maintenance for the victim compensation functions of the department of justice. In addition to the full-time equivalent positions authorized pursuant to this paragraph, 7.00 full-time equivalent positions are authorized and shall be used by the department of justice to employ one accountant and four program planners. The department of justice may employ the additional 7.00 full-time equivalent positions authorized pursuant to this paragraph that are in excess of the number of full-time equivalent positions authorized only if the department of justice receives sufficient federal moneys to maintain employment for the additional full-time equivalent positions during the current fiscal year. The department of justice shall only employ the additional 7.00 full-time equivalent positions in succeeding fiscal years if sufficient federal moneys are received during each of those succeeding fiscal years.

The department of justice shall transfer at least $150,000 from the victim compensation fund established in section 915.94 to the victim assistance grant program established in section 13.31.

Notwithstanding section 8.33, moneys appropriated in this lettered paragraph that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

c. For legal services for persons in poverty grants as provided in section 13.34:

..... $ 2,634,601

d. To improve the department of justice's cybersecurity and

Page 3

technology infrastructure:

..... $ 202,060

2. a. The department of justice, in submitting budget estimates for the fiscal year beginning July 1, 2023, pursuant to section 8.23, shall include a report of funding from sources other than amounts appropriated directly from the general fund of the state to the department of justice or to the office of consumer advocate. These funding sources shall include but are not limited to reimbursements from other state agencies, commissions, boards, or similar entities, and reimbursements from special funds or internal accounts within the department of justice. The department of justice shall also report actual reimbursements for the fiscal year beginning July 1, 2021, and actual and expected reimbursements for the fiscal year beginning July 1, 2022.

b. The department of justice shall include the report required under paragraph "a", as well as information regarding any revisions occurring as a result of reimbursements actually received or expected at a later date, in a report to the general assembly. The department of justice shall submit the

report on or before January 15, 2023.

3. a. The department of justice shall fully reimburse the costs and necessary related expenses incurred by the Iowa law enforcement academy to continue to employ one additional instructor position who shall provide training for human trafficking-related issues throughout the state.

b. The department of justice shall obtain the moneys necessary to reimburse the Iowa law enforcement academy to employ such an instructor from unrestricted moneys from either the victim compensation fund established in section 915.94 or the human trafficking victim fund established in section 915.95 or the human trafficking enforcement fund established in 2015 Iowa Acts, chapter 138, section 141.

Sec. 2. OFFICE OF CONSUMER ADVOCATE. There is appropriated from the department of commerce revolving fund created in

Page 4

section 546.12 to the office of consumer advocate of the department of justice for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 3,199,004

..... FTEs 18.00

Sec. 3. DEPARTMENT OF CORRECTIONS —— FACILITIES.

1. There is appropriated from the general fund of the state to the department of corrections for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

a. For the operation of the Fort Madison correctional facility, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 43,937,403

b. For the operation of the Anamosa correctional facility, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 36,849,581

c. For the operation of the Oakdale correctional facility, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 56,250,842

d. For the Oakdale correctional facility for department-wide institutional pharmaceuticals and miscellaneous purposes:

..... $ 8,556,620

e. For the operation of the Newton correctional facility,

including salaries, support, maintenance, and miscellaneous purposes:

Page 5

..... $ 30,318,214

f. For the operation of the Mount Pleasant correctional facility, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 28,464,947

g. For the operation of the Rockwell City correctional facility, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 11,043,114

h. For the operation of the Clarinda correctional facility, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 27,175,874

Moneys received by the department of corrections as reimbursement for services provided to the Clarinda youth corporation are appropriated to the department and shall be used for the purpose of operating the Clarinda correctional facility.

i. For the operation of the Mitchellville correctional facility, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 24,823,392

j. For the operation of the Fort Dodge correctional facility, including salaries, support, maintenance, and miscellaneous purposes:

..... $ 32,636,226

k. For reimbursement of counties for temporary confinement of prisoners, as provided in sections 901.7, 904.908, and 906.17, and for offenders confined pursuant to section 904.513:

..... $ 1,195,319

l. For federal prison reimbursement, reimbursements for out-of-state placements, and miscellaneous contracts:

..... $ 234,411

2. The department of corrections shall use moneys appropriated in subsection 1 to continue to contract for the

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services of a Muslim imam and a Native American spiritual leader.

Sec. 4. DEPARTMENT OF CORRECTIONS —— ADMINISTRATION.

There is appropriated from the general fund of the state to the department of corrections for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. For general administration, including salaries and the

adjustment of salaries throughout the department, support, maintenance, employment of an education director to administer a centralized education program for the correctional system, and miscellaneous purposes:

..... $ 6,321,190

a. It is the intent of the general assembly that each lease negotiated by the department of corrections with a private corporation for the purpose of providing private industry employment of inmates in a correctional institution shall prohibit the private corporation from utilizing inmate labor for partisan political purposes for any person seeking election to public office in this state and that a violation of this requirement shall result in a termination of the lease agreement.

b. It is the intent of the general assembly that as a condition of receiving the appropriation provided in this subsection the department of corrections shall not enter into a lease or contractual agreement pursuant to section 904.809 with a private corporation for the use of building space for the purpose of providing inmate employment without providing that the terms of the lease or contract establish safeguards to restrict, to the greatest extent feasible, access by inmates working for the private corporation to personal identifying information of citizens.

2. For educational programs for inmates at state penal institutions:

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..... $ 2,608,109

a. To maximize the funding for educational programs, the department shall establish guidelines and procedures to prioritize the availability of educational and vocational training for inmates based upon the goal of facilitating an inmate's successful release from the correctional institution.

b. The director of the department of corrections may transfer moneys from Iowa prison industries and the canteen operating funds established pursuant to section 904.310, for use in educational programs for inmates.

c. Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available to be used only for the purposes designated in this subsection until the close of the succeeding fiscal year.

3. For the development and operation of the Iowa corrections offender network (ICON) data system:

..... $ 2,000,000

4. For offender mental health and substance abuse treatment:

..... $ 28,065

5. For department-wide duties, including operations, costs, and miscellaneous purposes:

..... $ 243,797

Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 5. JUDICIAL DISTRICT DEPARTMENTS OF CORRECTIONAL SERVICES.

1. There is appropriated from the general fund of the state to the department of corrections for the fiscal year beginning July 1, 2022, and ending June 30, 2023, for salaries, support, maintenance, and miscellaneous purposes, the following amounts,

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or so much thereof as is necessary, to be used for the purposes designated:

a. For the first judicial district department of correctional services:

..... $ 16,207,339

It is the intent of the general assembly that the first judicial district department of correctional services maintains the drug courts operated by the district department.

b. For the second judicial district department of correctional services:

..... $ 12,789,649

It is the intent of the general assembly that the second judicial district department of correctional services maintains two drug courts to be operated by the district department.

c. For the third judicial district department of correctional services:

..... $ 7,710,790

d. For the fourth judicial district department of correctional services:

..... $ 6,193,805

e. For the fifth judicial district department of correctional services, including funding for electronic monitoring devices for use on a statewide basis:

..... $ 23,440,024

It is the intent of the general assembly that the fifth judicial district department of correctional services maintains the drug court operated by the district department.

f. For the sixth judicial district department of correctional services:

..... $ 16,755,370

It is the intent of the general assembly that the sixth judicial district department of correctional services maintains the drug court operated by the district department.

g. For the seventh judicial district department of correctional services:

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..... $ 9,672,851

It is the intent of the general assembly that the seventh judicial district department of correctional services maintains the drug court operated by the district department.

h. For the eighth judicial district department of correctional services:

..... $ 9,238,778

2. Each judicial district department of correctional services, within the moneys available, shall continue programs and plans established within that district to provide for intensive supervision, sex offender treatment, diversion of low-risk offenders to the least restrictive sanction available, job development, and expanded use of intermediate criminal sanctions.

3. Each judicial district department of correctional services shall provide alternatives to prison consistent with chapter 901B. The alternatives to prison shall ensure public safety while providing maximum rehabilitation to the offender. A judicial district department of correctional services may also establish a day program.

4. The governor's office of drug control policy shall consider federal grants made to the department of corrections for the benefit of each of the eight judicial district departments of correctional services as local government grants, as defined pursuant to federal regulations.

5. The department of corrections shall continue to contract with a judicial district department of correctional services to provide for the rental of electronic monitoring equipment which shall be available statewide.

6. The public safety assessment shall not be utilized in pretrial hearings when determining whether to detain or release a defendant before trial, and the use of the public safety assessment pilot program shall be terminated as of the effective date of this subsection, until such time the use of the public safety assessment has been specifically authorized

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by the general assembly.

Sec. 6. DEPARTMENT OF CORRECTIONS —— REALLOCATION OF APPROPRIATIONS. Notwithstanding section 8.39, within the moneys appropriated in this Act to the department of corrections, the department may reallocate the moneys appropriated and allocated as necessary to best fulfill the needs of the correctional institutions, administration of the department, and the judicial district departments of correctional services. However, in addition to complying with the requirements of sections 904.116 and 905.8 and providing notice to the legislative services agency, the department of corrections shall also provide notice to the department

of management, prior to the effective date of the revision or reallocation of an appropriation made pursuant to this section. The department of corrections shall not reallocate an appropriation or allocation for the purpose of eliminating any program.

Sec. 7. INTENT —— REPORTS.

1. The department of corrections, in cooperation with townships, the Iowa cemetery associations, and other nonprofit or governmental entities, may use inmate labor during the fiscal year beginning July 1, 2022, to restore or preserve rural cemeteries and historical landmarks. The department, in cooperation with the counties, may also use inmate labor to clean up roads, major water sources, and other water sources around the state.

2. On a quarterly basis, the department shall provide a status report regarding private-sector employment to the general assembly beginning on July 1, 2022. The report shall include the number of offenders employed in the private sector, the combined number of hours worked by the offenders, the total amount of allowances, and the distribution of allowances pursuant to section 904.702, including any moneys deposited in the general fund of the state.

Sec. 8. ELECTRONIC MONITORING REPORT. The department of

Page 11

corrections shall submit a report on electronic monitoring to the general assembly by January 15, 2023. The report shall specifically address the number of persons being electronically monitored and break down the number of persons being electronically monitored by offense committed. The report shall also include a comparison of any data from the prior fiscal year with the current fiscal year.

Sec. 9. STATE AGENCY PURCHASES FROM PRISON INDUSTRIES.

1. As used in this section, unless the context otherwise requires, "state agency" means the government of the state of Iowa, including but not limited to all executive branch departments, agencies, boards, bureaus, and commissions, the judicial branch, the general assembly and all legislative agencies, institutions within the purview of the state board of regents, and any corporation whose primary function is to act as an instrumentality of the state.

2. State agencies are encouraged to purchase products from Iowa state industries, as defined in section 904.802, when purchases are required and the products are available from Iowa state industries. State agencies shall obtain bids from Iowa state industries for purchases of office furniture during the fiscal year beginning July 1, 2022, exceeding $5,000 or in accordance with applicable administrative rules related to purchases for the agency.

Sec. 10. IOWA LAW ENFORCEMENT ACADEMY.

1. There is appropriated from the general fund of the

state to the Iowa law enforcement academy for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

a. For salaries, support, maintenance, and miscellaneous purposes, including jailer training and technical assistance, and for not more than the following full-time equivalent positions:

..... $ 1,239,824

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..... FTEs 30.25

b. The Iowa law enforcement academy may temporarily exceed and draw more than the amount appropriated in this subsection and incur a negative cash balance as long as there are receivables equal to or greater than the negative balance and the amount appropriated in this subsection is not exceeded at the close of the fiscal year.

2. The Iowa law enforcement academy may select at least five automobiles of the department of public safety, division of state patrol, prior to turning over the automobiles to the department of administrative services to be disposed of by public auction, and the Iowa law enforcement academy may exchange any automobile owned by the academy for each automobile selected if the selected automobile is used in training law enforcement officers at the academy. However, any automobile exchanged by the academy shall be substituted for the selected vehicle of the department of public safety and sold by public auction with the receipts being deposited in the depreciation fund maintained pursuant to section 8A.365 to the credit of the department of public safety, division of state patrol.

3. The Iowa law enforcement academy shall provide training for domestic abuse and human trafficking-related issues throughout the state. The training shall be offered at no cost to the attendees and the training shall not replace any existing domestic abuse or human trafficking training offered by the academy.

Sec. 11. STATE PUBLIC DEFENDER. There is appropriated from the general fund of the state to the office of the state public defender of the department of inspections and appeals for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time

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equivalent positions:
..... $ 30,112,503
..... FTEs 234.00

Moneys received by the office of the state public defender pursuant to Tit. IV-E of the federal Social Security Act remaining unencumbered and unobligated at the end of the fiscal year shall not revert, but shall be transferred to the Tit. IV-E juvenile justice improvement fund to remain available for expenditures by the office of the state public defender in succeeding fiscal years for the purposes allowed by Tit. IV-E of the federal Social Security Act.

2. For payments on behalf of eligible adults and juveniles from the indigent defense fund, in accordance with section 815.11:
..... $ 42,160,374

Moneys received by the office of the state public defender pursuant to Tit. IV-E of the federal Social Security Act remaining unencumbered and unobligated at the end of the fiscal year shall not revert, but shall be transferred to the Tit. IV-E juvenile justice improvement fund to remain available for expenditures by the office of the state public defender in succeeding fiscal years for the purposes allowed by Tit. IV-E of the federal Social Security Act.

3. TITLE IV-E JUVENILE JUSTICE IMPROVEMENT FUND —— OFFICE OF THE STATE PUBLIC DEFENDER. A Tit. IV-E juvenile justice improvement fund is created in the state treasury. The fund shall consist of moneys received by the office of the state public defender pursuant to Tit. IV-E of the federal Social Security Act that remain unencumbered and unobligated at the end of a fiscal year. Moneys deposited in the fund are appropriated to and shall be administered by the office of the state public defender and shall be available for expenditure by the office of the state public defender in succeeding fiscal years for the purposes allowed by Tit. IV-E of the federal Social Security Act.

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Sec. 12. BOARD OF PAROLE. There is appropriated from the general fund of the state to the board of parole for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 1,308,724
..... FTEs 10.53

Sec. 13. DEPARTMENT OF PUBLIC DEFENSE.

1. There is appropriated from the general fund of the

state to the department of public defense, for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 7,014,705

..... FTEs 248.00

2. The department of public defense may temporarily exceed and draw more than the amount appropriated in this section and incur a negative cash balance as long as there are receivables of federal funds equal to or greater than the negative balance and the amount appropriated in this section is not exceeded at the close of the fiscal year.

Sec. 14. DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY MANAGEMENT.

1. There is appropriated from the general fund of the state to the department of homeland security and emergency management for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

For salaries, support, maintenance, and miscellaneous

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purposes, and for not more than the following full-time equivalent positions:

..... $ 2,289,389

..... FTEs 26.41

2. The department of homeland security and emergency management may temporarily exceed and draw more than the amount appropriated in this section and incur a negative cash balance as long as there are receivables of federal funds equal to or greater than the negative balance and the amount appropriated in this section is not exceeded at the close of the fiscal year.

Sec. 15. DEPARTMENT OF PUBLIC SAFETY. There is appropriated from the general fund of the state to the department of public safety for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. For administrative functions, including salaries and the adjustment of salaries throughout the department, the criminal justice information system, and for not more than the following full-time equivalent positions:

..... $ 5,946,368

..... FTEs 45.00

2. For the division of criminal investigation, including the state's contribution to the peace officers' retirement, accident, and disability system provided in chapter 97A in the amount of the state's normal contribution rate, as defined in

section 97A.8, multiplied by the salaries for which the moneys are appropriated, to meet federal fund matching requirements, and for not more than the following full-time equivalent positions:

..... $ 19,712,633

..... FTEs 180.00

3. For the criminalistics laboratory fund created in section 691.9:

..... $ 650,000

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Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

4. a. For the division of narcotics enforcement, including the state's contribution to the peace officers' retirement, accident, and disability system provided in chapter 97A in the amount of the state's normal contribution rate, as defined in section 97A.8, multiplied by the salaries for which the moneys are appropriated, to meet federal fund matching requirements, and for not more than the following full-time equivalent positions:

..... $ 8,613,894

..... FTEs 67.00

The division of narcotics enforcement is authorized an additional 1.00 full-time equivalent position pursuant to this lettered paragraph that is in excess of the number of full-time equivalent positions authorized for the previous fiscal year only if the division of narcotics enforcement receives sufficient federal moneys to maintain employment for the additional full-time equivalent positions during the current fiscal year. The division of narcotics enforcement shall only employ the additional full-time equivalent positions in succeeding fiscal years if sufficient federal moneys are received during each of those succeeding fiscal years.

b. For the division of narcotics enforcement for undercover purchases:

..... $ 209,042

5. For the division of state fire marshal, for fire protection services as provided through the state fire service and emergency response council as created in the department, and for the state's contribution to the peace officers' retirement, accident, and disability system provided in chapter 97A in the amount of the state's normal contribution rate,

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as defined in section 97A.8, multiplied by the salaries for which the moneys are appropriated, and for not more than the

following full-time equivalent positions:
..... $ 5,602,778
..... FTEs 49.00

6. For the division of state patrol, for salaries, support, maintenance, workers' compensation costs, and miscellaneous purposes, including the state's contribution to the peace officers' retirement, accident, and disability system provided in chapter 97A in the amount of the state's normal contribution rate, as defined in section 97A.8, multiplied by the salaries for which the moneys are appropriated, and for not more than the following full-time equivalent positions:
..... $ 71,409,788
..... FTEs 506.00

It is the intent of the general assembly that members of the state patrol be assigned to patrol the highways and roads in lieu of assignments for inspecting school buses for the school districts.

7. For deposit in the sick leave benefits fund established in section 80.42 for all departmental employees eligible to receive benefits for accrued sick leave under the collective bargaining agreement:
..... $ 279,517

8. For costs associated with the training and equipment needs of volunteer fire fighters:
..... $ 1,025,520

Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure only for the purpose designated in this subsection until the close of the succeeding fiscal year.

9. For the public safety interoperable and broadband communications fund established in section 80.44:
..... $ 115,661

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10. For the office to combat human trafficking established pursuant to section 80.45, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 200,742
..... FTEs 2.00

11. For costs associated with the training and equipment needs of volunteer fire fighters:
..... $ 50,000

12. For deposit in the public safety equipment fund established in section 80.48 for the purchase, maintenance, and replacement of equipment used by the department:
..... $ 2,500,000

Notwithstanding section 8.39, the department of public safety may reallocate moneys appropriated in this section as necessary to best fulfill the needs provided for in the

appropriation. However, the department shall not reallocate moneys appropriated to the department in this section unless notice of the reallocation is given to the legislative services agency and the department of management prior to the effective date of the reallocation. The notice shall include information regarding the rationale for reallocating the moneys. The department shall not reallocate moneys appropriated in this section for the purpose of eliminating any program.

Sec. 16. GAMING ENFORCEMENT.

1. There is appropriated from the gaming enforcement revolving fund created in section 80.43 to the department of public safety for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For any direct support costs for agents and officers of the division of criminal investigation's excursion gambling boat, gambling structure, and racetrack enclosure enforcement activities, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following

Page 19

full-time equivalent positions:

..... $ 10,556,268

..... FTEs 65.00

2. For each additional license to conduct gambling games on an excursion gambling boat, gambling structure, or racetrack enclosure issued during the fiscal year beginning July 1, 2022, there is appropriated from the gaming enforcement fund to the department of public safety for the fiscal year beginning July 1, 2022, and ending June 30, 2023, an additional amount of not more than $300,000 to be used for full-time equivalent positions.

3. The department of public safety, with the approval of the department of management, may employ no more than three special agents for each additional riverboat or gambling structure regulated after July 1, 2023, and three special agents for each racing facility which becomes operational during the fiscal year which begins July 1, 2023. Positions authorized in this subsection are in addition to the full-time equivalent positions otherwise authorized in this section.

Sec. 17. CIVIL RIGHTS COMMISSION.

1. There is appropriated from the general fund of the state to the Iowa state civil rights commission for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 1,343,051

..... FTEs 27.00

2. The Iowa state civil rights commission may enter into a contract with a nonprofit organization to provide legal assistance to resolve civil rights complaints.

Sec. 18. CRIMINAL AND JUVENILE JUSTICE PLANNING DIVISION.

1. There is appropriated from the general fund of the state

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to the criminal and juvenile justice planning division of the department of human rights for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount or so much thereof as is necessary, to be used for the purposes designated:

a. For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 1,318,547

..... FTEs 8.89

b. (1) For a single grant to a program located in a city with a higher than average juvenile crime rate as determined by the criminal and juvenile justice planning division and a population greater than 80,000 as determined by the 2010 federal decennial census, which may be used for studying, planning, programming, and capital, that is committed to deterring juvenile delinquency through early intervention in the criminal justice system by providing a comprehensive, multifaceted delivery of social services and which shall meet the guiding principles and standards for assessment centers set forth by the national assessment center association:

..... $ 140,000

(2) The program shall use no more than 5 percent of the grant for administrative costs.

(3) A city shall not receive a grant under this paragraph, or a similar grant from the state of Iowa, for more than two consecutive fiscal years unless no other city meets the requirements specified in subparagraph (1).

2. The justice advisory board and the juvenile justice advisory council shall coordinate their efforts in carrying out their respective duties relative to juvenile justice.

Sec. 19. DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY MANAGEMENT. There is appropriated from the 911 emergency communications fund created in section 34A.7A to the department of homeland security and emergency management for the fiscal

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year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For implementation, support, and maintenance of the functions of the administrator and program manager under chapter 34A and to employ the auditor of the state to perform

an annual audit of the 911 emergency communications fund:
..... $ 300,000

Sec. 20. CONSUMER EDUCATION AND LITIGATION —— FARM MEDIATION AND PROSECUTIONS, APPEALS, AND CLAIMS.

Notwithstanding section 714.16C, there is appropriated from the consumer education and litigation fund to the department of justice for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. For farm mediation services as specified in section 13.13, subsection 2:
..... $ 300,000

2. For salaries, support, maintenance, and miscellaneous purposes for criminal prosecutions, criminal appeals, and performing duties pursuant to chapter 669:
..... $ 2,000,000

DIVISION II
INDIGENT DEFENSE

Sec. 21. Section 815.7, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 6A. For appointments made on or after July 1, 2022, the reasonable compensation shall be calculated on the basis of seventy-eight dollars per hour for class "A" felonies, seventy-three dollars per hour for class "B" felonies, and sixty-eight dollars per hour for all other cases.

DIVISION III
DEPARTMENT OF PUBLIC SAFETY

Sec. 22. Section 80.48, subsection 1, Code 2022, is amended to read as follows:

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1. A public safety equipment fund is created in the state treasury under the control of the department. The fund shall consist of moneys appropriated to or deposited in the fund. Moneys in the fund are appropriated to the department for the purchase, maintenance, and replacement of equipment used by the department, including any installation and licensing costs. The department is authorized to designate moneys in the fund for the future purchase, maintenance, and replacement of equipment used by the department, including any installation and licensing costs.>

COMMITTEE ON APPROPRIATIONS
TIM KRAAYENBRINK, CHAIRPERSON

S–5153

Amend House File 2579, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

REBUILD IOWA INFRASTRUCTURE FUND

Section 1. REBUILD IOWA INFRASTRUCTURE FUND —— APPROPRIATIONS. There is appropriated from the rebuild Iowa infrastructure fund to the following departments and agencies for the following fiscal years, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. DEPARTMENT OF ADMINISTRATIVE SERVICES

a. For safety and security on the state capitol complex, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 1,000,000

b. For deposit in the monument maintenance account created in section 8A.321 for purposes of maintenance of state monuments on the capitol complex grounds:

FY 2022–2023:

..... $ 500,000

2. DEPARTMENT OF AGRICULTURE AND LAND STEWARDSHIP

a. (1) For deposit in the water quality initiative fund created in section 466B.45 for purposes of supporting the water quality initiative administered by the division of soil conservation and water quality as provided in section 466B.42, including salaries, support, maintenance, and miscellaneous purposes, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 8,200,000

(2) (a) The moneys appropriated in this lettered paragraph shall be used to support demonstration projects in subwatersheds as designated by the department that are part

Page 2

of high-priority watersheds identified by the water resources coordinating council.

(b) The moneys appropriated in this lettered paragraph shall be used to support demonstration projects in watersheds generally, including regional watersheds, as designated by the division and high-priority watersheds identified by the water resources coordinating council.

(3) In supporting projects in watersheds and subwatersheds as provided in subparagraph (2), all of the following shall apply:

(a) The demonstration projects shall utilize water quality practices as described in the latest revision of the document entitled "Iowa Nutrient Reduction Strategy" initially presented in November 2012 by the department of agriculture and land stewardship, the department of natural resources, and Iowa state university of science and technology.

(b) The division shall implement demonstration projects as provided in subparagraph division (a) by providing

for participation by persons who hold a legal interest in agricultural land used in farming. To every extent practical, the division shall provide for collaborative participation by such persons who hold a legal interest in agricultural land located within the same subwatershed.

(c) The division shall implement demonstration projects on a cost-share basis as determined by the division. Except for edge-of-field practices, the state's share of the amount shall not exceed 50 percent of the estimated cost of establishing the practice as determined by the division or 50 percent of the actual cost of establishing the practice, whichever is less.

(d) The demonstration projects shall be used to educate other persons about the feasibility and value of establishing similar water quality practices. The division shall promote field day events for purposes of allowing interested persons to establish water quality practices on their agricultural land.

(e) The division shall conduct water quality evaluations

Page 3

within supported subwatersheds. Within a reasonable period after accumulating information from such evaluations, the division shall create an aggregated database of water quality practices. Any information identifying a person holding a legal interest in agricultural land or specific agricultural land shall be a confidential record.

(4) The moneys appropriated in this lettered paragraph shall be used to support education and outreach in a manner that encourages persons who hold a legal interest in agricultural land used for farming to implement water quality practices, including the establishment of such practices in watersheds generally, and not limited to subwatersheds or high-priority watersheds.

(5) The moneys appropriated in this lettered paragraph may be used to contract with persons to coordinate the implementation of efforts provided in this paragraph.

(6) The moneys appropriated in this lettered paragraph may be used by the department to support urban soil and water conservation efforts, which may include but are not limited to management practices related to bioretention, landscaping, the use of permeable or pervious pavement, and soil quality restoration. The moneys shall be allocated on a cost-share basis as provided in chapter 161A.

(7) Notwithstanding any other provision of law to the contrary, the department may use moneys appropriated in this lettered paragraph to carry out the provisions of this paragraph on a cost-share basis in combination with other moneys available to the department from a state or federal source.

(8) Not more than 10 percent of the moneys appropriated in this lettered paragraph may be used for costs of administration and implementation of the water quality initiative administered

by the soil conservation division.

b. For deposit in the renewable fuels infrastructure fund created in section 159A.16 for renewable fuel infrastructure

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programs:

FY 2022–2023:

..... $ 10,000,000

The appropriation made in this paragraph shall be in lieu of the standing appropriation in section 159A.17 for the fiscal year beginning July 1, 2022, and ending June 30, 2023.

c. For updating the maximum return to nitrogen modeling system for fertilizer management notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 1,000,000

Any information received, collected, or held for purposes of this paragraph is a confidential record exempt from public release if the information identifies a person who holds a legal interest in agricultural land or who has previously held a legal interest in agricultural land, a person who is involved or who has previously been involved in managing the agricultural land or producing crops or livestock on the agricultural land, or the identifiable location of the agricultural land.

3. DEPARTMENT FOR THE BLIND

For building repairs for the building located at 524 Fourth Street, Des Moines, Iowa:

FY 2022–2023:

..... $ 196,900

4. DEPARTMENT OF CORRECTIONS

a. For kitchen equipment at the Clarinda treatment complex:

FY 2022–2023:

..... $ 750,000

b. For various infrastructure projects at correctional facilities:

FY 2022–2023:

..... $ 4,900,000

5. DEPARTMENT OF CULTURAL AFFAIRS

a. For deposit in the Iowa great places program fund created

Page 5

in section 303.3D for Iowa great places program projects that meet the definition of "vertical infrastructure" in section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 1,000,000

b. For grants to nonprofit organizations committed to strengthening communities through youth development, healthy living, and social responsibility for costs associated with

the renovation and maintenance of facility infrastructure at facilities located in cities with a population of less than 28,000 as determined by the 2020 federal decennial census:

FY 2022–2023:

..... $ 250,000

6. ECONOMIC DEVELOPMENT AUTHORITY

a. For deposit in the community attraction and tourism fund created in section 15F.204:

FY 2022–2023:

..... $ 10,000,000

b. For deposit in the sports tourism infrastructure program fund created in section 15F.404 for financing sports tourism infrastructure projects:

FY 2022–2023:

..... $ 12,000,000

Of the moneys appropriated in this paragraph, the authority shall provide financial assistance from the sports tourism program infrastructure fund for sports tourism infrastructure projects subject to the requirements of section 15F.401 applicable to sports tourism infrastructure projects and this paragraph. Financial assistance shall not be provided to reimburse costs incurred prior to the approval of the financial assistance and shall not be provided until all financing for the sports tourism infrastructure project is secured and documented. An applicant for financial assistance from moneys appropriated in this paragraph shall demonstrate the availability of matching moneys for financing the sports

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tourism infrastructure project in the form of a private and public partnership with financing from city, county, and private sources. Financial assistance shall be provided for sports tourism infrastructure projects that draw a national and international audience and attract a significant number of visitors from outside the state. However, financial assistance shall not be provided for sports tourism infrastructure projects located in a reinvestment district as defined and approved by the authority pursuant to section 15J.4 or to applicants that have received a rebate of sales tax imposed and collected by retailers pursuant to section 423.4, subsection 5.

c. For providing financial assistance to a city or nonprofit organization hosting the national junior olympics, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 150,000

d. For equal distribution to regional sports authority districts certified by the authority pursuant to section 15E.321, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 500,000

7. DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY MANAGEMENT

For costs associated with completing a study by the United States army corps of engineers concerning flood prevention improvements to a levee located in the largest city in a county with a population between 45,000 and 50,000 as determined by the 2020 federal decennial census, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 650,000

8. DEPARTMENT OF HUMAN SERVICES

a. For renovation and repair at department facilities:

FY 2022–2023:

..... $ 3,161,000

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b. For a grant to a nonprofit agency that provides expert care for children with medical complexity by providing infrastructure funding for expanding its facilities to provide behavioral analysis treatment for eligible individuals:

FY 2022–2023:

..... $ 750,000

c. For a grant to a nonprofit organization specializing in brain injury rehabilitation by providing post-acute inpatient and outpatient rehabilitation, as well as long-term skilled, supported, and independent living services for people who have sustained a traumatic brain injury due to a stroke, tumor, aneurysm, or other brain injury, in a city with a population between 67,500 and 68,500 as determined by the 2020 federal decennial census, for costs associated with the construction of an outpatient therapy center:

FY 2022–2023:

..... $ 1,000,000

9. DEPARTMENT OF NATURAL RESOURCES

a. For implementation of lake projects that have established watershed improvement initiatives and community support in accordance with the department's annual lake restoration plan and report, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 9,600,000

b. For state park infrastructure improvements:

FY 2022–2023:

..... $ 5,000,000

c. For water trails and low head dam safety grants:

FY 2022–2023:

..... $ 1,500,000

d. For costs associated with renovation and improvements at the Fort Atkinson state preserve:

FY 2022–2023:

..... $ 350,000

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e. For deposit in the on-stream impoundment restoration fund created in section 456A.33C, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 500,000

f. For grants to communities or organizations for tree planting projects through the community forestry grant program, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 250,000

10. DEPARTMENT OF PUBLIC DEFENSE

a. For major maintenance projects at national guard armories and facilities:

FY 2022–2023:

..... $ 2,100,000

b. For improvement projects for Iowa national guard installations and readiness centers to support operations and training requirements:

FY 2022–2023:

..... $ 2,100,000

c. For construction improvement projects at the Camp Dodge facility:

FY 2022–2023:

..... $ 550,000

d. The department of public defense shall report to the general assembly by December 15, 2022, regarding the projects the department has funded or intends to fund from moneys appropriated to the department pursuant to this subsection.

11. DEPARTMENT OF PUBLIC SAFETY

a. For payments and other costs due under a financing agreement entered into by the treasurer of state for building the statewide interoperable communications system pursuant to section 29C.23, subsection 2, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

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..... $ 4,330,150

b. For deposit in the public safety equipment fund created in section 80.48, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 2,500,000

c. For construction of a new facility for fire fighter training:

FY 2022–2023:

..... $ 2,100,000

12. BOARD OF REGENTS

For allocation by the state board of regents to the state

university of Iowa, Iowa state university of science and technology, and the university of northern Iowa to reimburse the institutions for deficiencies in the operating funds resulting from the pledging of tuition, student fees and charges, and institutional income to finance the cost of providing academic and administrative buildings and facilities and utility services at the institutions:

FY 2022–2023:

..... $ 27,900,000

13. STATE FAIR AUTHORITY

For the renovation and repair of the state fair barns:

FY 2022–2023:

..... $ 6,000,000

FY 2023–2024:

..... $ 6,000,000

14. DEPARTMENT OF TRANSPORTATION

a. For acquiring, constructing, and improving recreational trails within the state:

FY 2022–2023:

..... $ 2,500,000

b. For deposit in the public transit infrastructure grant fund created in section 324A.6A, for projects that meet the definition of vertical infrastructure in section 8.57,

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subsection 5, paragraph "c":

FY 2022–2023:

..... $ 1,500,000

c. For deposit in the railroad revolving loan and grant fund created in section 327H.20A, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2022–2023:

..... $ 2,000,000

d. For vertical infrastructure improvements at the commercial service airports within the state:

FY 2022–2023:

..... $ 1,900,000

e. For vertical infrastructure improvements at general aviation airports within the state:

FY 2022–2023:

..... $ 1,000,000

15. TREASURER OF STATE

For distribution in accordance with chapter 174 to qualified fairs that belong to the association of Iowa fairs for county fair vertical infrastructure improvements:

FY 2022–2023:

..... $ 1,060,000

16. JUDICIAL BRANCH

a. For construction projects at the Woodbury county law enforcement center:

FY 2022–2023:

..... $ 165,000

b. For renovations and furniture at justice centers:
FY 2022–2023:

..... $ 624,518

Sec. 2. REVERSION. For purposes of section 8.33, unless specifically provided otherwise, unencumbered or unobligated moneys from an appropriation made in this division of this Act shall not revert but shall remain available for expenditure for the purposes designated until the close of the fiscal year that

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ends two years after the end of the fiscal year for which the appropriation is made. However, if the project or projects for which such appropriation was made are completed in an earlier fiscal year, unencumbered or unobligated moneys shall revert at the close of that same fiscal year.

DIVISION II
TECHNOLOGY REINVESTMENT FUND

Sec. 3. TECHNOLOGY REINVESTMENT FUND. There is appropriated from the technology reinvestment fund created in section 8.57C to the following departments and agencies for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. DEPARTMENT OF CORRECTIONS

a. For software upgrades to emergency response radios:

..... $ 350,000

b. For security cameras, staff phone systems, and automation systems at correctional facilities:

..... $ 2,415,954

2. DEPARTMENT OF EDUCATION

a. For the continued development and implementation of an educational data warehouse that will be utilized by teachers, parents, school district administrators, area education agency staff, department of education staff, and policymakers:

..... $ 600,000

Of the moneys appropriated in this lettered paragraph, the department may use a portion for an e-transcript data system capable of tracking students throughout their education via interconnectivity with multiple schools.

b. For maintenance and lease costs associated with connections for part III of the Iowa communications network:

..... $ 2,727,000

c. To the public broadcasting division for the replacement of equipment:

..... $ 1,000,000

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3. DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY MANAGEMENT

For the continuing implementation of a statewide mass

notification and emergency messaging system:
..... $ 400,000
4. DEPARTMENT OF HUMAN RIGHTS
a. For the cost of equipment and computer software for the continued development and implementation of Iowa's criminal justice information system:
..... $ 1,400,000
b. For the costs associated with the justice enterprise data warehouse:
..... $ 187,980
5. DEPARTMENT OF HUMAN SERVICES
For technology costs associated with the state poison control center:
..... $ 34,000
6. IOWA TELECOMMUNICATIONS AND TECHNOLOGY COMMISSION
For firewall and distributed denial-of-service attack protection for the Iowa communications network:
..... $ 1,510,724
7. DEPARTMENT OF INSPECTIONS AND APPEALS
a. For costs associated with the enhancement of the health facilities database:
..... $ 250,000
b. For costs associated with the implementation of the food safety data system enhancement and integration with the govconnectiowa portal:
..... $ 410,000
c. For costs associated with the creation of electronic forms within the e-filing system:
..... $ 100,000
8. DEPARTMENT OF MANAGEMENT
a. For the continued development and implementation of a searchable database that can be placed on the internet for budget and financial information:

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..... $ 45,000
b. For the continued development and implementation of the comprehensive electronic grant management system:
..... $ 70,000
c. For the upgrade of the local government budget and property tax system:
..... $ 120,000
d. For the annual licensing of a searchable database that is placed on the internet for budget and financial information:
..... $ 382,131
9. DEPARTMENT OF PUBLIC DEFENSE
For technology projects:
..... $ 500,000
10. DEPARTMENT OF PUBLIC SAFETY
For costs associated with the implementation of body-worn cameras and licensing:

..... $ 385,000

11. DEPARTMENT OF REVENUE

For tax system modernization:

..... $ 4,070,460

12. JUDICIAL BRANCH

a. For costs associated with the connection of district phone systems to the judicial branch building system:

..... $ 40,464

b. For costs associated with installation and repurpose of courtroom sound systems:

..... $ 610,000

Sec. 4. REVERSION. For purposes of section 8.33, unless specifically provided otherwise, unencumbered or unobligated moneys from an appropriation made in this division of this Act shall not revert but shall remain available for expenditure for the purposes designated until the close of the fiscal year that ends two years after the end of the fiscal year for which the appropriation is made. However, if the project or projects for which such appropriation was made are completed in an earlier

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fiscal year, unencumbered or unobligated moneys shall revert at the close of that same fiscal year.

DIVISION III

CHANGES TO PRIOR APPROPRIATIONS

Sec. 5. 2018 Iowa Acts, chapter 1162, section 1, subsection 10, paragraph b, as amended by 2020 Iowa Acts, chapter 1120, section 8, is amended to read as follows:

b. For construction of a new veterinary diagnostic laboratory at Iowa state university of science and technology, to include reimbursement of infrastructure costs incurred by the university for construction of the laboratory in prior fiscal years:

FY 2018–2019:

..... $ 1,000,000

FY 2019–2020:

..... $ 12,500,000

FY 2020–2021:

..... $ 8,900,000

FY 2021–2022:

..... $12,500,000

FY 2022–2023:

..... $ ~~12,500,000~~

28,600,000

~~FY 2023–2024:~~

~~..... $ 16,100,000~~

Sec. 6. 2018 Iowa Acts, chapter 1162, section 4, is amended to read as follows:

SEC. 4. REVERSION.

1. ~~For~~ Except as provided in subsection 2, for purposes of section 8.33, unless specifically provided otherwise,

unencumbered or unobligated moneys made from an appropriation in this division of this Act shall not revert but shall remain available for expenditure for the purposes designated until the close of the fiscal year that ends three years after the end of the fiscal year for which the appropriation is made. However,

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if the project or projects for which such appropriation was made are completed in an earlier fiscal year, unencumbered or unobligated moneys shall revert at the close of that same fiscal year.

2. For purposes of section 8.33, unless specifically provided otherwise, unencumbered or unobligated moneys from an appropriation made in section 3, subsection 4, of this division of this 2018 Act shall not revert but shall remain available for expenditure for the purposes designated until the close of the fiscal year that ends four years after the end of the fiscal year for which the appropriation is made, or until the project for which the appropriation was made is completed, whichever is earlier.

Sec. 7. 2019 Iowa Acts, chapter 137, section 2, is amended to read as follows:

SEC. 2. REVERSION.

1. ~~For~~ Except as provided in subsection 2, for purposes of section 8.33, unless specifically provided otherwise, unencumbered or unobligated moneys from an appropriation made in this division of this Act shall not revert but shall remain available for expenditure for the purposes designated until the close of the fiscal year that ends two years after the end of the fiscal year for which the appropriation is made. However, if the project or projects for which such appropriation was made are completed in an earlier fiscal year, unencumbered or unobligated moneys shall revert at the close of that same fiscal year.

2. For purposes of section 8.33, unless specifically provided otherwise, unencumbered or unobligated moneys from an appropriation made in section 1, subsection 14, of this division of this 2019 Act shall not revert but shall remain available for expenditure for the purpose designated until the close of the fiscal year that begins July 1, 2022.

Sec. 8. 2019 Iowa Acts, chapter 137, section 4, is amended to read as follows:

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SEC. 4. REVERSION.

1. ~~For~~ Except as otherwise provided in subsections 2 and 3, for purposes of section 8.33, unless specifically provided otherwise, unencumbered or unobligated moneys from an appropriation made in this division of this Act shall not revert but shall remain available for expenditure for the

purposes designated until the close of the fiscal year that ends two years after the end of the fiscal year for which the appropriation is made. However, if the project or projects for which such appropriation was made are completed in an earlier fiscal year, unencumbered or unobligated moneys shall revert at the close of that same fiscal year.

2. For purposes of section 8.33, unless specifically provided otherwise, unencumbered or unobligated moneys from an appropriation made in section 3, subsection 6, of this division of this 2019 Act shall not revert but shall remain available for expenditure for the purposes designated until the close of the fiscal year that begins July 1, 2023, or until the project for which the appropriation was made is completed, whichever is earlier.

3. For purposes of section 8.33, unless specifically provided otherwise, unencumbered or unobligated moneys from an appropriation made in section 3, subsection 11, paragraph c, of this division of this 2019 Act shall not revert but shall remain available for expenditure for the purposes designated until the close of the fiscal year that begins July 1, 2022, or until the project for which the appropriation was made is completed, whichever is earlier.

Sec. 9. 2020 Iowa Acts, chapter 1120, section 1, subsection 10, paragraph b, is amended to read as follows:

b. For the renovation and construction of an industrial technology center at the university of northern Iowa to include reimbursement of infrastructure costs incurred by the university for construction of the facility in the prior fiscal year:

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FY 2021–2022:

..... $ 13,000,000

FY 2022–2023:

..... $ ~~18,000,000~~ 26,500,000

~~FY 2023–2024:~~

~~..... $ 8,500,000~~

Sec. 10. 2021 Iowa Acts, chapter 167, section 1, subsection 7, is amended to read as follows:

7. DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY MANAGEMENT

For costs associated with school safety, flood mitigation, or other emergency services programs, notwithstanding section 8.57, subsection 5, paragraph "c":

FY 2021–2022

..... $ 2,500,000

~~FY 2022–2023~~

~~..... $ 2,000,000~~

Sec. 11. 2021 Iowa Acts, chapter 167, section 1, subsection 10, paragraph d, is amended to read as follows:

d. For costs associated with the construction of a readiness

center in West Des Moines:
FY 2021–2022:
..... $ 1,800,000
FY 2022–2023:
..... $ ~~1,850,000~~
3,700,000
~~FY 2023–2024:~~
~~..... $ 1,850,000~~

Sec. 12. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION IV
MISCELLANEOUS PROVISIONS

Sec. 13. Section 8.57C, subsection 3, paragraph a, subparagraph (3), Code 2022, is amended to read as follows:

(3) For the fiscal year beginning July 1, ~~2022~~ 2023, and for

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each subsequent fiscal year thereafter, the sum of seventeen million five hundred thousand dollars.

Sec. 14. Section 8.57C, subsection 3, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *j.* There is appropriated from the rebuild Iowa infrastructure fund for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the sum of twenty million five hundred thousand dollars to the technology reinvestment fund, notwithstanding section 8.57, subsection 5, paragraph *"c"*.

Sec. 15. Section 15.261, Code 2022, is amended to read as follows:

15.261 Vacant ~~state~~ buildings demolition fund.

1. A vacant ~~state~~ buildings demolition fund is created in the state treasury under the control of the authority. The fund shall consist of all moneys appropriated to the fund.

2. Moneys in the vacant ~~state~~ buildings demolition fund are appropriated to the authority for purposes of funding a grant program for the demolition of vacant buildings owned by the state or by a county that has purchased real property from the federal government which are no longer used for a state or federal purpose. Grant program criteria shall provide that no more than fifty percent of the cost of a project for the demolition of vacant buildings shall be funded from a grant under the program. The authority shall give preference to applicants that have not previously been awarded money from this fund.

3. Notwithstanding section 12C.7, subsection 2, interest or earnings on moneys deposited in the vacant ~~state~~ buildings demolition fund shall be credited to the vacant ~~state~~ buildings demolition fund. Notwithstanding section 8.33, moneys credited to the vacant ~~state~~ buildings demolition fund shall not revert at the close of a fiscal year.

Sec. 16. Section 15.262, Code 2022, is amended to read as follows:

15.262 Vacant ~~state~~ buildings rehabilitation fund.

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1. A vacant ~~state~~ buildings rehabilitation fund is created in the state treasury under the control of the authority. The fund shall consist of all moneys appropriated to the fund.

2. Moneys in the vacant ~~state~~ buildings rehabilitation fund are appropriated to the authority for purposes of funding a loan program for the rehabilitation or redevelopment of vacant buildings owned by the state or by a county that has purchased real property from the federal government which are no longer used for a state or federal purpose. The authority shall give preference to applicants that have not previously been awarded money from this fund.

3. Notwithstanding section 12C.7, subsection 2, interest or earnings on moneys deposited in the vacant ~~state~~ buildings rehabilitation fund shall be credited to the vacant ~~state~~ buildings rehabilitation fund. Notwithstanding section 8.33, moneys credited to the vacant ~~state~~ buildings rehabilitation fund shall not revert at the close of a fiscal year.

Sec. 17. Section 159A.16, subsection 3, Code 2022, is amended to read as follows:

3. Moneys in the renewable fuel infrastructure fund are appropriated to the department exclusively to support and market the renewable fuel infrastructure programs as provided in sections 159A.14 and 159A.15, and as allocated in financial incentives by the renewable fuel infrastructure board created in section 159A.13. ~~Up to fifty~~

a. For each fiscal year, not more than one million two hundred fifty thousand dollars shall be allocated to support the renewable fuel infrastructure program for retail motor fuel sites as provided in section 159A.14 to finance the installation, replacement, or conversion of biodiesel infrastructure as provided in that section.

b. For each fiscal year, not more than one hundred thousand dollars shall be allocated ~~each fiscal year~~ to the department to support the administration of the programs. ~~The~~

c. For each fiscal year, the department may use up to

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three quarters of one ~~and one-half~~ percent of the program funds to market the programs. Otherwise the moneys shall not be transferred, used, obligated, appropriated, or otherwise encumbered except to allocate as financial incentives under the programs.

Sec. 18. Section 602.11101, subsection 1, paragraph e, subparagraph (2), Code 2022, is amended to read as follows:

(2) Until July 1, 1986, the county shall remain responsible for the compensation of and operating costs for court employees not presently designated for state financing and

for miscellaneous costs of the judicial branch related to furnishings, supplies, and equipment purchased, leased, or maintained for the use of judicial officers, referees, and their staff. Effective July 1, 1986, the state shall assume the responsibility for the compensation of and operating costs for court employees presently designated for state financing and for miscellaneous costs of the judicial branch related to furnishings, supplies, and equipment purchased, leased, or maintained for the use of judicial officers, referees, and their staff. However, the county shall at all times remain responsible for the provision of suitable courtrooms, offices, and other physical facilities pursuant to section 602.1303, subsection 1, including paint, wall covering, and fixtures in the facilities. In addition, however, effective July 1, 2023, if a county expends moneys for the renovation or construction of suitable courtrooms, offices, and other physical facilities pursuant to section 602.1303, that requires the purchase of furnishings, supplies, and equipment for the use of judicial officers, referees, and their staff as a result of that renovation or construction, the state shall be responsible for only seventy-five percent of the cost of the purchase.

Sec. 19. DES MOINES AREA REGIONAL TRANSIT AUTHORITY ALTERNATIVE FUNDING ADVISORY COMMITTEE —— REPORT.

1. The department of transportation shall establish a Des Moines area regional transit authority alternative funding

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advisory committee to study the most effective and efficient methods to increase funding for the Des Moines area regional transit authority that are alternative to an increase in property taxes.

2. The committee shall consist of five voting members and four ex officio, nonvoting members.

a. The voting members of the committee shall be composed of all of the following:

(1) The director of the department of transportation or a designee.

(2) The director of the department of revenue or a designee.

(3) A Polk county supervisor appointed by the governor.

(4) A member of a city council or mayor of a city in Polk county in which the Des Moines area regional transit authority operates, appointed by the governor.

(5) A representative of the Des Moines area regional transit authority appointed by the Des Moines area regional transit authority.

b. The ex officio, nonvoting members of the committee shall be two state representatives, one appointed by the speaker of the house of representatives and one by the minority leader of the house of representatives, and two state senators, one appointed by the majority leader of the senate and one by the minority leader of the senate.

3. Staffing services shall be provided by the department of transportation in coordination with the department of revenue.

4. The committee shall submit a report containing its findings and recommendations to the general assembly on or before December 15, 2022.

5. This section is repealed January 1, 2023.

Sec. 20. EFFECTIVE DATE. The following, being deemed of immediate importance, take effect upon enactment:

The sections of this division of this Act amending sections 15.261 and 15.262.

Sec. 21. RETROACTIVE APPLICABILITY. The following apply

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retroactively to June 1, 2020:

The sections of this division of this Act amending sections 15.261 and 15.262.

DIVISION V

SPORTS TOURISM PROGRAM

Sec. 22. Section 15F.401, subsection 1, paragraph a, Code 2022, is amended to read as follows:

a. The authority shall establish, and, at the direction of the board, shall administer a sports tourism marketing and infrastructure program to provide financial assistance for projects that promote sporting events or for infrastructure projects supporting sporting events for organizations of accredited colleges and universities, professional sporting events, and other sporting events in the state.

Sec. 23. Section 15F.401, subsection 2, paragraph a, Code 2022, is amended to read as follows:

a. (1) A city or county in the state or a public entity, including a convention and visitors bureau or a district, may apply to the authority for financial assistance from the sports tourism marketing program fund created in section 15F.403 for a project that actively and directly promotes sporting events for accredited colleges and universities, professional sporting events, and other sporting events in the area served by the city, county, or public entity.

(2) A city or county in the state or a public entity, including a convention and visitors bureau or a district, may apply to the authority for financial assistance from the sports tourism infrastructure program fund created in section 15F.404 for an infrastructure project that actively and directly supports sporting events for accredited colleges and universities, professional sporting events, and other sporting events in the area served by the city, county, or public entity.

Sec. 24. Section 15F.401, subsections 5 and 6, Code 2022, are amended to read as follows:

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5. The board shall make final funding decisions on each application and may approve, deny, defer, or modify applications for financial assistance under the sports tourism marketing and infrastructure program, in its discretion, in order to fund as many projects with the moneys available as possible. The board and the authority may negotiate with applicants regarding the details of projects and the amount and terms of any award. The total amount of financial assistance provided to an applicant from the sports tourism marketing program fund created in section 15F.403 in any one fiscal year shall not exceed five hundred thousand dollars. In making final funding decisions pursuant to this subsection, the board and the authority are exempt from chapter 17A.

6. *a.* A city, county, or public entity may use financial assistance received under the program from the sports tourism marketing fund created in section 15F.403 for marketing and promotions. Whether an activity or individual cost item is directly related to the promotion of the sporting event shall be within the discretion of the authority.

b. All applications to the authority for financial assistance from the sports tourism marketing fund created in section 15F.403 shall be made at least ninety days prior to an event's scheduled date.

c. A city, county, or public entity shall not use financial assistance received under the program from the sports tourism marketing fund created in section 15F.403 or the sports tourism infrastructure fund created in section 15F.404 as reimbursement for completed projects.

Sec. 25. Section 15F.402, subsections 1 and 2, Code 2022, are amended to read as follows:

1. Applications for assistance under the sports tourism marketing and infrastructure program established in section 15F.401 shall be submitted to the authority. For those applications that meet the eligibility criteria, the authority shall forward the applications to the board and provide a staff

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review analysis and evaluation to the sports tourism program review committee referred to in subsection 2 and to the board.

2. A review committee composed of five members of the board shall review sports tourism marketing and infrastructure program applications forwarded to the board and make recommendations regarding the applications to the authority. The review committee shall consist of members of the board, with one member from each congressional district under section 15F.102, subsection 2, paragraph *"a"*, and one member from the state at large under section 15F.102, subsection 2, paragraph *"b"*.

Sec. 26. Section 15F.403, subsection 1, paragraph a, Code

2022, is amended to read as follows:

a. The authority shall establish a fund pursuant to section 15.106A, subsection 1, paragraph *"o"*, for purposes of financing sports tourism marketing projects as described in this subchapter. The fund established for purposes of this section may be administered as a revolving fund and may consist of any moneys appropriated by the general assembly for purposes of this section.

Sec. 27. Section 15F.403, subsection 2, paragraph a, Code 2022, is amended to read as follows:

a. Moneys in the fund are appropriated to the authority for purposes of providing financial assistance to cities, counties, and public entities under the sports tourism marketing program established and administered pursuant to this subchapter.

Sec. 28. NEW SECTION. **15F.404 Sports tourism infrastructure program fund.**

1. *a.* The authority shall establish a fund pursuant to section 15.106A, subsection 1, paragraph *"o"*, for purposes of financing sports tourism infrastructure projects as described in this subchapter. The fund established for purposes of this section may be administered as a revolving fund and may consist of any moneys appropriated by the general assembly for purposes of this section.

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b. Notwithstanding section 8.33, moneys in a fund established for purposes of this section at the end of each fiscal year shall not revert to any other fund but shall remain in the fund for expenditure for subsequent fiscal years.

c. Notwithstanding section 12C.7, subsection 2, interest or earnings on moneys in the fund shall be credited to the fund.

2. *a.* Moneys in the fund are appropriated to the authority for purposes of providing financial assistance to cities, counties, and public entities under the sports tourism marketing and infrastructure program established and administered pursuant to this subchapter.

b. The board in its discretion shall allocate the available moneys in the fund among the programs described in paragraph *"a"* in the amounts determined by the board.

c. The authority may use not more than five percent of the moneys in the fund at the beginning of each fiscal year for purposes of administrative costs, technical assistance, and other program support.

Sec. 29. SPORTS TOURISM MARKETING PROGRAM —— SPORTS WAGERING RECEIPTS FUND. There is appropriated from the sports wagering receipts fund created in section 8.57, subsection 6, to the economic development authority for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For deposit in the sports tourism marketing program fund

created in section 15F.403 for financing sports tourism marketing projects:
..... $ 1,500,000>

2. Title page, line 3, by striking <fund and> and inserting <fund,>

3. Title page, line 3, after <reinvestment fund,> by inserting <and the sports wagering receipts fund,>

COMMITTEE ON APPROPRIATIONS
TIM KRAAYENBRINK, CHAIRPERSON

S–5154

Amend House File 2575, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I
FY 2022–2023 APPROPRIATIONS
DEPARTMENT FOR THE BLIND

Section 1. ADMINISTRATION. There is appropriated from the general fund of the state to the department for the blind for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 2,893,503
..... FTEs 87.98

COLLEGE STUDENT AID COMMISSION

Sec. 2. There is appropriated from the general fund of the state to the college student aid commission for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. ADMINISTRATION

For general administration salaries, support, maintenance, and miscellaneous purposes, and for the administration of the future ready Iowa skilled workforce last-dollar scholarship program in accordance with section 261.131, including salaries, support, maintenance, and miscellaneous purposes related to the future ready Iowa skilled workforce last-dollar scholarship program, and for not more than the following full-time equivalent positions:
..... $ 591,533
..... FTEs 4.95

2. HEALTH CARE PROFESSIONAL RECRUITMENT PROGRAM

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For the loan repayment program for health care professionals established pursuant to section 261.115:
..... $ 500,973

3. NATIONAL GUARD SERVICE SCHOLARSHIP PROGRAM

For purposes of providing national guard service scholarships under the program established in section 261.86:
..... $ 4,700,000

4. ALL IOWA OPPORTUNITY SCHOLARSHIP PROGRAM

a. For purposes of the all Iowa opportunity scholarship program established pursuant to section 261.87:
..... $ 3,229,468

b. For the fiscal year beginning July 1, 2022, if the moneys appropriated by the general assembly to the college student aid commission for purposes of the all Iowa opportunity scholarship program exceed $500,000, "eligible institution" as defined in section 261.87 shall, during the fiscal year beginning July 1, 2022, include accredited private institutions as defined in section 261.9.

5. TEACH IOWA SCHOLAR PROGRAM

For purposes of the teach Iowa scholar program established pursuant to section 261.110:
..... $ 650,000

6. RURAL IOWA PRIMARY CARE LOAN REPAYMENT PROGRAM

For purposes of the rural Iowa primary care loan repayment program established pursuant to section 261.113:
..... $ 2,504,933

7. HEALTH CARE LOAN REPAYMENT PROGRAM

For purposes of the health care loan repayment program established pursuant to section 261.116:
..... $ 500,000

8. RURAL VETERINARIAN LOAN REPAYMENT PROGRAM

For purposes of the rural veterinarian loan repayment program established pursuant to section 261.120:
..... $ 700,000

9. FUTURE READY IOWA SKILLED WORKFORCE LAST-DOLLAR

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SCHOLARSHIP PROGRAM

For deposit in the future ready Iowa skilled workforce last-dollar scholarship fund established pursuant to section 261.131:
..... $ 23,927,005

10. MENTAL HEALTH PRACTITIONER LOAN REPAYMENT PROGRAM

a. For deposit in the mental health practitioner loan repayment program trust fund established pursuant to section 261.117, as enacted by 2022 Iowa Acts, House File 2549, or Senate File 2195, if enacted:
..... $ 520,000

b. Moneys appropriated in this subsection are contingent

upon the enactment of 2022 Iowa Acts, House File 2549, if enacted.

Sec. 3. CHIROPRACTIC LOAN FUNDS. Notwithstanding section 261.72, the moneys deposited in the chiropractic loan revolving fund created pursuant to section 261.72, for the fiscal year beginning July 1, 2022, and ending June 30, 2023, may be used for purposes of the chiropractic loan forgiveness program established in section 261.73.

Sec. 4. WORK-STUDY APPROPRIATION. Notwithstanding section 261.85, for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the amount appropriated from the general fund of the state to the college student aid commission for the work-study program under section 261.85 shall be zero.

DEPARTMENT OF EDUCATION

Sec. 5. There is appropriated from the general fund of the state to the department of education for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. GENERAL ADMINISTRATION

a. For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

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..... $ 5,975,526
..... FTEs 65.00

b. By January 15, 2023, the department shall submit a written report to the general assembly detailing the department's antibullying programming and current and projected expenditures for such programming for the fiscal year beginning July 1, 2022.

2. CAREER AND TECHNICAL EDUCATION ADMINISTRATION

For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 598,197
..... FTEs 9.21

3. VOCATIONAL REHABILITATION SERVICES DIVISION

a. For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 6,116,328
..... FTEs 249.00

For purposes of optimizing the job placement of individuals with disabilities, the division shall make its best efforts to work with community rehabilitation program providers for job placement and retention services for individuals with significant disabilities and most significant disabilities. By January 15, 2023, the division shall submit a written report to the general assembly regarding the division's outreach efforts

with community rehabilitation program providers.
b. For matching moneys for programs to enable persons with severe physical or mental disabilities to function more independently, including salaries and support, and for not more than the following full-time equivalent positions:
..... $ 84,823
..... FTEs 1.00
c. For the entrepreneurs with disabilities program established pursuant to section 259.4, subsection 9:

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..... $ 138,506
d. For costs associated with centers for independent living:
..... $ 86,457
4. STATE LIBRARY
a. For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 2,532,594
..... FTEs 21.00
b. For the enrich Iowa program established under section 256.57:
..... $ 2,464,823
5. PUBLIC BROADCASTING DIVISION
For salaries, support, maintenance, capital expenditures, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 7,870,316
..... FTEs 58.36
6. CAREER AND TECHNICAL EDUCATION
For reimbursement for career and technical education expenditures made by regional career and technical education planning partnerships in accordance with section 258.14:
..... $ 2,952,459
7. SCHOOL FOOD SERVICE
For use as state matching moneys for federal programs that shall be disbursed according to federal regulations, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 2,176,797
..... FTEs 24.48
8. EARLY CHILDHOOD IOWA FUND —— GENERAL AID
For deposit in the school ready children grants account of the early childhood Iowa fund created in section 256I.11:
..... $ 23,406,799

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a. From the moneys deposited in the school ready children grants account for the fiscal year beginning July 1, 2022, and

ending June 30, 2023, not more than $265,950 is allocated for the early childhood Iowa office and other technical assistance activities. Moneys allocated under this lettered paragraph may be used by the early childhood Iowa state board for the purpose of skills development and support for ongoing training of staff. However, except as otherwise provided in this subsection, moneys shall not be used for additional staff or for the reimbursement of staff.

b. Of the amount appropriated in this subsection for deposit in the school ready children grants account of the early childhood Iowa fund, $2,318,018 shall be used for efforts to improve the quality of early care, health, and education programs. Moneys allocated pursuant to this lettered paragraph may be used for additional staff and for the reimbursement of staff. The early childhood Iowa state board may reserve a portion of the allocation, not to exceed $88,650, for the technical assistance expenses of the early childhood Iowa state office, including the reimbursement of staff, and shall distribute the remainder to early childhood Iowa areas for local quality improvement efforts through a methodology identified by the early childhood Iowa state board to make the most productive use of the funding, which may include use of the distribution formula, grants, or other means.

c. Of the amount appropriated in this subsection for deposit in the school ready children grants account of the early childhood Iowa fund, $825,030 shall be used for support of professional development and training activities for persons working in early care, health, and education by the early childhood Iowa state board in collaboration with the professional development component groups maintained by the early childhood Iowa stakeholders alliance pursuant to section 256I.12, subsection 7, paragraph "b", and the early childhood Iowa area boards. Expenditures shall be limited to

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professional development and training activities agreed upon by the parties participating in the collaboration as approved by the early childhood Iowa state board.

d. Of the amount appropriated in this subsection for deposit in the school ready children grants account of the early childhood Iowa fund, $200,000 shall be used to invest in this state's early childhood database system that integrates state administrative data to provide results that inform and improve the early childhood system of programs and services in this state.

9. BIRTH TO AGE THREE SERVICES

a. For expansion of the federal Individuals with Disabilities Education Improvement Act of 2004, Pub. L. No. 108-446, as amended to January 1, 2018, birth through age three services due to increased numbers of children qualifying for those services:

..... $ 1,721,400

b. From the moneys appropriated in this subsection, $383,769 shall be allocated to the child health specialty clinics administered by the state university of Iowa in order to provide additional support for infants and toddlers who are born prematurely, drug-exposed, or medically fragile.

10. EARLY HEAD START PROJECTS

a. For early head start projects:

..... $ 574,500

b. The moneys appropriated in this subsection shall be used for implementation and expansion of early head start pilot projects addressing the comprehensive cognitive, social, emotional, and developmental needs of children from birth to age three, including prenatal support for qualified families. The projects shall promote healthy prenatal outcomes and healthy family functioning, and strengthen the development of infants and toddlers in low-income families. Priority shall be given to those organizations that have previously qualified for and received state funding to administer an early head start

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project.

11. TEXTBOOKS OF NONPUBLIC SCHOOL PUPILS

a. To provide moneys for costs of providing textbooks to each resident pupil who attends a nonpublic school as authorized by section 301.1:

..... $ 852,000

b. Funding under this subsection is limited to $30 per pupil and shall not exceed the comparable services offered to resident public school pupils.

12. STUDENT ACHIEVEMENT AND TEACHER QUALITY PROGRAM

For purposes of the student achievement and teacher quality program established pursuant to chapter 284, and for not more than the following full-time equivalent positions:

..... $ 2,965,467

..... FTEs 6.00

13. STATEWIDE STUDENT ASSESSMENT

For distribution to the Iowa testing program by the department of education on behalf of school districts and accredited nonpublic schools to offset the costs associated with a statewide student assessment administered in accordance with section 256.7, subsection 21, paragraph "b":

..... $ 3,000,000

From the moneys appropriated in this subsection, not more than $300,000 shall be distributed to the Iowa testing programs within the university of Iowa college of education to offset the costs of administering the statewide student assessment at accredited nonpublic schools.

14. STATEWIDE CLEARINGHOUSE TO EXPAND WORK-BASED LEARNING

For support costs associated with the creation of a statewide clearinghouse to expand work-based learning as a part

of the future ready Iowa initiative:
..... $ 300,000
15. POSTSECONDARY SUMMER CLASSES FOR HIGH SCHOOL STUDENTS PROGRAM
For support costs associated with the creation of a program

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to provide additional moneys for resident high school pupils enrolled in grades 9 through 12 to attend a community college for college-level classes or attend a class taught by a community college-employed instructor during the summer and outside of the regular school year through a contractual agreement between a community college and a school district under the future ready Iowa initiative:
..... $ 600,000
Notwithstanding section 8.33, moneys received by the department pursuant to this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes specified in this subsection until the close of the succeeding fiscal year.
16. JOBS FOR AMERICA'S GRADUATES
For school districts to reinforce combined efforts and regional initiatives that accelerate paraeducator and teacher credential attainment and to provide direct services to the most at-risk middle school or high school students enrolled in school districts through direct intervention by a jobs for America's graduates specialist:
..... $ 8,146,450
17. ATTENDANCE CENTER PERFORMANCE/GENERAL INTERNET SITE AND DATA SYSTEM SUPPORT
For administration of a process for school districts to establish specific performance goals and to evaluate the performance of each attendance center operated by the district in order to arrive at an overall school performance grade and report card for each attendance center, for internet site and data system support, and for not more than the following full-time equivalent positions:
..... $ 250,000
..... FTEs 1.85
18. ONLINE STATE JOB POSTING SYSTEM
For purposes of administering the online state job posting

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system in accordance with section 256.27:
..... $ 230,000
19. SUCCESSFUL PROGRESSION FOR EARLY READERS
For distribution to school districts for implementation of section 279.68, subsection 2, relating to successful progression for early readers:

..... $ 7,824,782

20. EARLY WARNING SYSTEM FOR LITERACY

For purposes of purchasing a statewide license for an early warning assessment and administering the early warning system for literacy established in accordance with section 279.68 and rules adopted in accordance with section 256.7, subsection 31:

..... $ 1,915,000

The department shall administer and distribute to school districts and accredited nonpublic schools the early warning assessment system that allows teachers to screen and monitor student literacy skills from prekindergarten through grade six. The department may charge school districts and accredited nonpublic schools a fee for the system not to exceed the actual costs to purchase a statewide license for the early warning assessment minus the moneys received by the department under this subsection. The fee shall be determined by dividing the actual remaining costs to purchase the statewide license for the school year by the number of pupils assessed under the system in the current fiscal year. School districts may use moneys received pursuant to section 257.10, subsection 11, and moneys received for purposes of implementing section 279.68, subsection 2, to pay the early warning assessment system fee.

21. IOWA READING RESEARCH CENTER

a. For purposes of the Iowa reading research center in order to implement, in collaboration with the area education agencies, the provisions of section 256.9, subsection 49, paragraph "c":

..... $ 600,000

b. From moneys appropriated in this subsection, not more

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than $250,000 shall be used for collaborations with the state board of education relating to the approval of practitioner preparation programs pursuant to section 256.7, subsection 3, paragraph "c", and with the board of educational examiners for the establishment and continuing oversight of the advanced dyslexia specialist endorsement pursuant to section 272.2, subsection 23. For the fiscal year beginning July 1, 2022, and ending June 30, 2023, the center shall submit a report to the general assembly and the legislative services agency detailing the expenditures of moneys used for purposes of this paragraph "b".

c. Notwithstanding section 8.33, moneys received by the department pursuant to this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes specified in this subsection until the close of the succeeding fiscal year.

22. COMPUTER SCIENCE PROFESSIONAL DEVELOPMENT INCENTIVE FUND

For deposit in the computer science professional development

incentive fund established under section 284.6A:
..... $ 500,000
23. CHILDREN'S MENTAL HEALTH SCHOOL-BASED TRAINING AND SUPPORT
a. For distribution to area education agencies for school-based children's mental health services, including mental health awareness training for educators:
..... $ 3,383,936
b. Of the moneys appropriated in this subsection for distribution to area education agencies, $200,000 shall be used for purposes of implementing a children's grief and loss rural pilot program to serve Iowa children in rural school districts or accredited nonpublic schools. The pilot program shall be administered by, and the moneys allocated pursuant to this paragraph shall be distributed to, an existing statewide

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not-for-profit health care organization that currently provides grief and loss services to children. For the fiscal year beginning July 1, 2022, and ending June 30, 2023, the health care organization receiving moneys pursuant to this paragraph shall prepare a report, in collaboration with the department of education, detailing the expenditures of moneys used for the purposes of this program and its outcomes, which shall be submitted to the general assembly by September 30, 2023.
24. BEST BUDDIES IOWA
For school districts to create opportunities for one-to-one friendships, integrated employment, and leadership development for students with intellectual and developmental disabilities:
..... $ 35,000
The department of education shall establish criteria for the distribution of moneys appropriated under this subsection and shall require an organization receiving moneys under this subsection to annually report student identifying data for students participating in the program to the department in the manner prescribed by the department as a condition of receiving such moneys.
25. ADULT EDUCATION AND LITERACY PROGRAMS
For distribution as grants to community colleges for the purpose of adult basic education programs for students requiring instruction in English as a second language:
..... $ 500,000
In issuing grants under this subsection, the department shall use the same application process and criteria as are used for purposes of awarding grants to community colleges for the purpose of adult basic education programs for students requiring instruction in English as a second language using moneys that are appropriated to the department from the Iowa skilled worker and job creation fund.
26. MIDWESTERN HIGHER EDUCATION COMPACT

a. For distribution to the midwestern higher education compact to pay Iowa's member state annual obligation:

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..... $ 115,000

b. Notwithstanding section 8.33, moneys appropriated for distribution to the midwestern higher education compact pursuant to this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purpose designated until the close of the succeeding fiscal year.

27. NONPUBLIC SCHOOL CONCURRENT ENROLLMENT PAYMENTS TO COMMUNITY COLLEGES

For payments to community colleges for the concurrent enrollment of accredited nonpublic school students under section 261E.8, subsection 2, paragraph "b":

..... $ 1,000,000

Notwithstanding section 8.33, moneys received by the department pursuant to this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes specified in this subsection until the close of the succeeding fiscal year.

28. COMMUNITY COLLEGES

For general state financial aid to merged areas as defined in section 260C.2 in accordance with chapters 258 and 260C:

..... $ 221,658,161

Notwithstanding the allocation formula in section 260C.18C, the moneys appropriated in this subsection shall be allocated as follows:

a. Merged Area I

..... $ 10,901,112

b. Merged Area II

..... $ 10,991,321

c. Merged Area III

..... $ 10,128,121

d. Merged Area IV

..... $ 5,027,789

e. Merged Area V

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..... $ 12,590,460

f. Merged Area VI

..... $ 9,755,374

g. Merged Area VII

..... $ 14,902,662

h. Merged Area IX

..... $ 18,919,128

i. Merged Area X

..... $ 34,639,366

j. Merged Area XI
..... $ 37,667,676
k. Merged Area XII
..... $ 12,311,796
l. Merged Area XIII
..... $ 13,442,325
m. Merged Area XIV
..... $ 5,121,413
n. Merged Area XV
..... $ 16,000,872
o. Merged Area XVI
..... $ 9,258,746

Sec. 6. LIMITATIONS OF STANDING APPROPRIATION FOR AT-RISK CHILDREN. Notwithstanding the standing appropriation in section 279.51 for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the amount appropriated from the general fund of the state to the department of education for programs for at-risk children under section 279.51 shall be not more than $10,524,389. The amount of any reduction in this section shall be prorated among the programs specified in section 279.51, subsection 1, paragraphs "a", "b", and "c".

STATE BOARD OF REGENTS

Sec. 7. There is appropriated from the general fund of the state to the state board of regents for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the

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purposes designated:

1. OFFICE OF STATE BOARD OF REGENTS

a. For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 764,642
..... FTEs 2.48

For the fiscal year beginning July 1, 2022, and ending June 30, 2023, the state board of regents shall submit a quarterly financial report to the general assembly and the legislative services agency in a format agreed upon by the state board of regents office and the legislative services agency. The report submitted for the quarter ending December 31, 2022, shall include the five-year graduation rates for the regents universities.

b. For distribution to the western Iowa regents resource center:
..... $ 268,297

c. For allocation by the state board of regents to the state university of Iowa, the Iowa state university of science and technology, and the university of northern Iowa to support new strategic initiatives, meet needs caused by enrollment increases, meet the demand for new courses and services, to

fund new but unavoidable or mandated cost increases, and to support any other initiatives important to the core functions of the universities:
..... $ 5,500,000
2. STATE UNIVERSITY OF IOWA
a. General university
For salaries, support, maintenance, equipment, financial aid, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 215,605,480
..... FTEs 5,058.55
b. Oakdale campus

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For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 2,103,819
..... FTEs 38.25
c. State hygienic laboratory
For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 4,822,610
..... FTEs 102.51
d. Family practice program
For allocation by the dean of the college of medicine, with approval of the advisory board, to qualified participants to carry out the provisions of chapter 148D for the family practice residency education program, including salaries and support, and for not more than the following full-time equivalent positions:
..... $ 2,220,598
..... FTEs 2.71
e. Child health care services
For specialized child health care services, including childhood cancer diagnostic and treatment network programs, rural comprehensive care for hemophilia patients, and the Iowa high-risk infant follow-up program, including salaries and support, and for not more than the following full-time equivalent positions:
..... $ 634,502
..... FTEs 4.16
f. Statewide cancer registry
For the statewide cancer registry, and for not more than the following full-time equivalent positions:
..... $ 143,410
..... FTEs 2.10
g. Substance abuse consortium

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For distribution to the Iowa consortium for substance abuse research and evaluation, and for not more than the following full-time equivalent positions:

..... $ 53,427

..... FTEs .99

h. Center for biocatalysis

For the center for biocatalysis, and for not more than the following full-time equivalent positions:

..... $ 696,342

..... FTEs 6.28

i. Primary health care initiative

For the primary health care initiative in the college of medicine, and for not more than the following full-time equivalent positions:

..... $ 624,374

..... FTEs 6.23

From the moneys appropriated in this lettered paragraph, $254,889 shall be allocated to the department of family practice at the state university of Iowa college of medicine for family practice faculty and support staff.

j. Birth defects registry

For the birth defects registry, and for not more than the following full-time equivalent positions:

..... $ 36,839

..... FTEs .38

k. Larned A. Waterman Iowa nonprofit resource center

For the Larned A. Waterman Iowa nonprofit resource center, and for not more than the following full-time equivalent positions:

..... $ 156,389

..... FTEs 2.75

l. Iowa online advanced placement academy science, technology, engineering, and mathematics initiative

For the Iowa online advanced placement academy science, technology, engineering, and mathematics initiative established

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pursuant to section 263.8A:

..... $ 463,616

m. Iowa flood center

For the Iowa flood center for use by the university's college of engineering pursuant to section 466C.1:

..... $ 1,154,593

3. IOWA STATE UNIVERSITY OF SCIENCE AND TECHNOLOGY

a. General university

For salaries, support, maintenance, equipment, financial aid, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 172,144,766

..... FTEs 3,647.42

b. Agricultural experiment station

For the agricultural experiment station salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 29,462,535

..... FTEs 546.98

c. Cooperative extension service in agriculture and home economics

For the cooperative extension service in agriculture and home economics salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 18,307,366

..... FTEs 385.34

(1) From the moneys appropriated in this lettered paragraph, $150,000 shall be used for the costs incurred by the Iowa agricultural extension association as host of the 2023 national meeting of the national association of county agricultural agents.

(2) Notwithstanding section 8.33, if moneys appropriated in this lettered paragraph remain unencumbered or unobligated at the close of the fiscal year, an amount not more than $150,000

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shall not revert but shall remain available for costs incurred by the Iowa agricultural extension association as host of the 2023 national meeting of the national association of county agricultural agents until the close of the succeeding fiscal year.

4. UNIVERSITY OF NORTHERN IOWA

a. General university

For salaries, support, maintenance, equipment, financial aid, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 98,296,620

..... FTEs 1,250.28

b. Recycling and reuse center

For purposes of the recycling and reuse center, and for not more than the following full-time equivalent positions:

..... $ 172,768

..... FTEs 1.93

c. Science, technology, engineering, and mathematics (STEM) collaborative initiative

For purposes of the science, technology, engineering, and mathematics (STEM) collaborative initiative established pursuant to section 268.7, and for not more than the following full-time equivalent positions:

..... $ 6,354,848

..... FTEs 5.50

(1) Except as otherwise provided in this lettered

paragraph, the moneys appropriated in this lettered paragraph shall be expended for salaries, staffing, institutional support, activities directly related to recruitment of kindergarten through grade 12 mathematics and science teachers, and for ongoing mathematics and science programming for students enrolled in kindergarten through grade 12.

(2) The university of northern Iowa shall work with the community colleges to develop STEM professional development programs for community college instructors and STEM curriculum

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development.

(3) From the moneys appropriated in this lettered paragraph, not less than $500,000 shall be used to provide technology education opportunities to high school, career academy, and community college students through a public-private partnership, as well as opportunities for students and faculties at these institutions to secure broad-based information technology certification. The partnership shall provide all of the following:

(a) A research-based curriculum.

(b) Online access to the curriculum.

(c) Instructional software for classroom and student use.

(d) Certification of skills and competencies in a broad base of information technology-related skill areas.

(e) Professional development for teachers.

(f) Deployment and program support, including but not limited to integration with current curriculum standards.

(4) Notwithstanding section 8.33, of the moneys appropriated in this lettered paragraph that remain unencumbered or unobligated at the close of the fiscal year, an amount equivalent to not more than 5 percent of the amount appropriated in this lettered paragraph shall not revert but shall remain available for expenditure for summer programs for students until the close of the succeeding fiscal year.

d. Real estate education program:

For purposes of the real estate education program, and for not more than the following full-time equivalent positions:

..... $ 123,523

..... FTEs .86

5. IOWA SCHOOL FOR THE DEAF

For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 11,089,039

..... FTEs 121.00

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6. IOWA BRAILLE AND SIGHT SAVING SCHOOL

For salaries, support, maintenance, and miscellaneous

purposes, and for not more than the following full-time equivalent positions:

..... $ 4,654,408

..... FTEs 56.00

Sec. 8. ENERGY COST-SAVINGS PROJECTS —— FINANCING. For the fiscal year beginning July 1, 2022, and ending June 30, 2023, the state board of regents may use notes, bonds, or other evidences of indebtedness issued under section 262.48 to finance projects that will result in energy cost savings in an amount that will cause the state board to recover the cost of the projects within an average of six years.

Sec. 9. PRESCRIPTION DRUG COSTS. The department of administrative services shall pay the Iowa school for the deaf and the Iowa braille and sight saving school the moneys collected from the counties during the fiscal year beginning July 1, 2022, for expenses relating to prescription drug costs for students attending the Iowa school for the deaf and the Iowa braille and sight saving school.

DIVISION II

WORKFORCE TRAINING PROGRAMS —— APPROPRIATIONS FY 2022–2023

Sec. 10. There is appropriated from the Iowa skilled worker and job creation fund created in section 8.75 to the following departments, agencies, and institutions for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. COLLEGE STUDENT AID COMMISSION

For purposes of providing skilled workforce shortage tuition grants in accordance with section 261.130:

..... $ 5,000,000

2. DEPARTMENT OF EDUCATION

a. For deposit in the workforce training and economic development funds created pursuant to section 260C.18A:

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..... $ 15,100,000

From the moneys appropriated in this lettered paragraph, not more than $100,000 shall be used by the department for administration of the workforce training and economic development funds created pursuant to section 260C.18A.

b. For distribution to community colleges for the purposes of implementing adult education and literacy programs pursuant to section 260C.50:

..... $ 5,500,000

(1) From the moneys appropriated in this lettered paragraph, $3,883,000 shall be allocated pursuant to the formula established in section 260C.18C.

(2) From the moneys appropriated in this lettered paragraph, not more than $150,000 shall be used by the department for implementation of adult education and literacy programs pursuant to section 260C.50.

(3) From the moneys appropriated in this lettered paragraph, not more than $1,257,000 shall be distributed as grants to community colleges for the purpose of adult basic education programs for students requiring instruction in English as a second language. The department shall establish an application process and criteria to award grants pursuant to this subparagraph to community colleges. The criteria shall be based on need for instruction in English as a second language in the region served by each community college as determined by factors including data from the latest federal decennial census and outreach efforts to determine regional needs.

(4) From the moneys appropriated in this lettered paragraph, $210,000 shall be transferred to the department of human services for purposes of administering a program to provide access to international resources to Iowans and new Iowans to provide economic and leadership development resulting in Iowa being a more inclusive and welcoming place to live, work, and raise a family. The program shall provide supplemental support services for international refugees to

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improve learning, English literacy, life skills, cultural competencies, and integration in a county with a population over 350,000 as determined by the 2010 federal decennial census. The department of human services shall utilize a request for proposals process to identify the entity best qualified to implement the program.

c. For capital projects at community colleges that meet the definition of the term "vertical infrastructure" in section 8.57, subsection 5, paragraph "c":

..... $ 6,000,000

Moneys appropriated in this lettered paragraph shall be disbursed pursuant to section 260G.6, subsection 3. Projects that qualify for moneys appropriated in this lettered paragraph shall include at least one of the following:

(1) Accelerated career education program capital projects.

(2) Major renovations and major repair needs, including health, life, and fire safety needs, including compliance with the federal Americans with Disabilities Act.

d. For deposit in the pathways for academic career and employment fund established pursuant to section 260H.2:

..... $ 5,000,000

From the moneys appropriated in this lettered paragraph, not more than $200,000 shall be allocated by the department for implementation of regional industry sector partnerships pursuant to section 260H.7B and for not more than 1.00 full-time equivalent position.

e. For deposit in the gap tuition assistance fund established pursuant to section 260I.2:

..... $ 2,000,000

f. For deposit in the statewide work-based learning

intermediary network fund created pursuant to section 256.40:
..... $ 1,500,000
From the moneys appropriated in this lettered paragraph, not more than $50,000 shall be used by the department to provide statewide support for work-based learning.

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g. For support costs associated with administering a workforce preparation outcome reporting system for the purpose of collecting and reporting data relating to the educational and employment outcomes of workforce preparation programs receiving moneys pursuant to this subsection:
..... $ 200,000
3. Notwithstanding section 8.33, moneys appropriated in this section of this division of this Act that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

DIVISION III
CLASSROOM MANAGEMENT AND TRANSPORTATION REIMBURSEMENT

Sec. 11. DEPARTMENT OF EDUCATION —— THERAPEUTIC CLASSROOM INCENTIVE FUND. There is appropriated from the general fund of the state to the department education for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:
For deposit in the therapeutic classroom incentive fund established pursuant to section 256.25:
..... $ 2,351,382

Sec. 12. DEPARTMENT OF EDUCATION —— THERAPEUTIC CLASSROOM TRANSPORTATION CLAIMS REIMBURSEMENT. There is appropriated from the general fund of the state to the department of education for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:
For payment of school district claims for reimbursement submitted under section 256.25A, subsection 1, paragraph "a":
..... $ 500,000
Notwithstanding section 8.33, moneys appropriated pursuant to this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain

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available for expenditure for the purposes specified in this section for the following fiscal year.

DIVISION IV
APPROPRIATIONS —— STANDING LIMITED

Sec. 13. Section 261.25, subsections 1 and 2, Code 2022, are amended to read as follows:

1. There is appropriated from the general fund of the state to the commission for each fiscal year the sum of ~~forty-eight million eight hundred ninety-six thousand fifty~~ fifty million one hundred eighteen thousand four hundred fifty-one dollars for tuition grants to qualified students who are enrolled in accredited private institutions.

2. There is appropriated from the general fund of the state to the commission for each fiscal year the sum of ~~four~~ five hundred ~~fifty-six thousand two hundred twenty~~ thousand dollars for tuition grants for qualified students who are enrolled in eligible institutions. Of the moneys appropriated under this subsection, not more than one hundred thousand dollars annually shall be used for tuition grants to qualified students who are attending an eligible institution under section 261.9, subsection 3, paragraph *"b"*.

DIVISION V

STATE PROGRAM ALLOCATION

Sec. 14. Section 284.13, subsection 1, paragraphs a, b, c, e, f, and g, Code 2022, are amended to read as follows:

a. For the fiscal year beginning July 1, ~~2021~~ 2022, and ending June 30, ~~2022~~ 2023, to the department, the amount of five hundred eight thousand two hundred fifty dollars for the issuance of national board certification awards in accordance with section 256.44. Of the amount allocated under this paragraph, not less than eighty-five thousand dollars shall be used to administer the ambassador to education position in accordance with section 256.45.

b. For the fiscal year beginning July 1, ~~2021~~ 2022, and ending June 30, ~~2022~~ 2023, up to seven hundred twenty-eight

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thousand two hundred sixteen dollars to the department for purposes of implementing the professional development program requirements of section 284.6, assistance in developing model evidence for teacher quality committees established pursuant to section 284.4, subsection 1, paragraph *"b"*, and the evaluator training program in section 284.10. A portion of the funds allocated to the department for purposes of this paragraph may be used by the department for administrative purposes and for not more than four full-time equivalent positions.

c. For the fiscal year beginning July 1, ~~2021~~ 2022, and ending June 30, ~~2022~~ 2023, an amount up to one million seventy-seven thousand eight hundred ten dollars to the department for the establishment of teacher development academies in accordance with section 284.6, subsection 10. A portion of the funds allocated to the department for purposes of this paragraph may be used for administrative purposes.

e. For the fiscal year beginning July 1, ~~2021~~ 2022, and ending June 30, ~~2022~~ 2023, to the department an amount up to twenty-five thousand dollars for purposes of the fine arts beginning teacher mentoring program established under section

256.34.

f. For the fiscal year beginning July 1, ~~2021~~ 2022, and ending June 30, ~~2022~~ 2023, to the department an amount up to six hundred twenty-six thousand one hundred ninety-one dollars shall be used by the department for a delivery system, in collaboration with area education agencies, to assist in implementing the career paths and leadership roles considered pursuant to sections 284.15, 284.16, and 284.17, including but not limited to planning grants to school districts and area education agencies, technical assistance for the department, technical assistance for districts and area education agencies, training and staff development, and the contracting of external expertise and services. In using moneys allocated for purposes of this paragraph, the department shall give priority to school districts with certified enrollments of fewer than six hundred

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students. A portion of the moneys allocated annually to the department for purposes of this paragraph may be used by the department for administrative purposes and for not more than five full-time equivalent positions.

g. For the fiscal year beginning July 1, ~~2022~~ 2023, and for each subsequent fiscal year, to the department, ten million dollars for purposes of implementing the supplemental assistance for high-need schools provisions of section 284.11. Annually, of the moneys allocated to the department for purposes of this paragraph, up to one hundred thousand dollars may be used by the department for administrative purposes and for not more than one full-time equivalent position.

DIVISION VI

PROGRAMS FOR AT-RISK CHILDREN

Sec. 15. Section 279.51, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 3A. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated.

Sec. 16. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION VII

IOWA GEOLOGICAL SURVEY

Sec. 17. Section 456.5A, subsection 2, Code 2022, is amended to read as follows:

2. Not later than January 10, 2022, and not later than January 10 of each subsequent five-year period, the state geologist shall publish a new long-range budget plan for the next planning period. The long-range budget plan shall describe how moneys appropriated, expected to ~~the~~ be appropriated, or otherwise available or expected to be

available to the Iowa geological survey for each fiscal year of that planning period are to be expended in a manner that

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best allows the Iowa geological survey to exercise its powers and carry out its duties or functions. The long-range budget plan shall include any performance goals and measures required by law or established by the state geologist. The state geologist shall annually evaluate the Iowa geological survey's progress in attaining those performance goals and shall revise the long-term budget plan as the state geologist determines necessary or desirable.

DIVISION VIII

THERAPEUTIC CLASSROOM INCENTIVE GRANT PROGRAM —— APPLICATIONS

Sec. 18. Section 256.25, subsection 3, Code 2022, is amended to read as follows:

3. The department shall develop a grant application and selection and evaluation criteria. Selection criteria shall include a method for prioritizing grant applications submitted by school districts ~~located in mental health and disability services regions providing children's behavioral health services in accordance with chapter 331, subchapter III, part 6, with those proposing to serve the most students given highest priority~~. First priority shall be given to applications submitted by school districts that submitted an application pursuant to this section for the previous fiscal year. Second priority shall be given to applications submitted by school districts that, pursuant to subsection 2, are collaborating and partnering with one or more school districts, area education agencies, accredited nonpublic schools, nonprofit agencies, or institutions that provide mental health services for children. Third priority shall be given to applications submitted by school districts located in mental health and disability services regions providing behavioral health services for children in accordance with chapter 331, subchapter III, part 6. Grant awards shall be distributed as equitably as possible among small, medium, and large school districts. For purposes of this subsection, a small school district is a district with an actual enrollment

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of fewer than six hundred pupils; a medium school district is a district with an actual enrollment that is at least six hundred pupils, but less than two thousand five hundred pupils; and a large school district is a district with an actual enrollment of two thousand five hundred or more pupils.

Sec. 19. APPLICABILITY. This division of this Act applies to grant applications submitted pursuant to section 256.25 on or after July 1, 2022.

DIVISION IX

CHARTER SCHOOL FUNDING

Sec. 20. Section 256E.8, subsection 2, paragraphs a, b, and c, Code 2022, are amended to read as follows:

a. The ~~school district of residence shall pay to the~~ charter school in which the student is enrolled ~~in the manner required under section 282.18, and pursuant to the timeline in section 282.20, subsection 3,~~ shall receive under paragraph *"c"* an amount equal to the sum of the state cost per pupil for the previous school year plus the teacher leadership supplement state cost per pupil for the previous fiscal year as provided in section 257.9 plus any moneys received by the school district of residence for the student as a result of the non-English speaking weighting under section 280.4, subsection 3, for the previous school year multiplied by the state cost per pupil for the previous year. If a student is an eligible pupil under section 261E.6, the charter school shall pay the tuition reimbursement amount to an eligible postsecondary institution as provided in section 261E.7.

b. For a student requiring special education, the school district of residence shall pay to the charter school, pursuant to the timeline in section 282.20, subsection 3, the actual costs incurred in providing the appropriate special education.

c. ~~For each student enrolled in the charter school who was not included in the actual enrollment of the district of residence under section 257.6, subsection 1, in the previous school year, the~~ The amount ~~otherwise~~ required to be paid to

the charter school under paragraph *"a"* ~~or "b"~~ shall ~~instead~~ be paid by the department to the charter school ~~for~~ during the ~~student's initial year of enrollment~~ school year for which the student is enrolled in the charter school. The amount paid to the charter school under this paragraph shall result in an equal reduction to the school district of residence's state aid payment amount under chapter 257 for the school budget year following the school year for which the payment to the charter school is made, so long as the student was counted in the district of residence's actual enrollment in the school year for which the student attended the charter school.

Sec. 21. Section 256E.8, subsection 4, Code 2022, is amended to read as follows:

4. If necessary, and pursuant to rules adopted by the state board, funding amounts required under this section for the first school year of a new charter school shall be based on enrollment estimates for the charter school included in the charter school contract. The department shall adopt rules to establish a process for determining estimated enrollments for charter school funding purposes in school years after the first school year of a charter school. ~~Initial amounts~~ Amounts paid using estimated enrollments shall be reconciled during ~~the~~ subsequent ~~payment~~ payments based on actual enrollment of the

charter school during ~~the first~~ each school year.

Sec. 22. EMERGENCY RULES. The department of education may adopt emergency rules under section 17A.4, subsection 3, and section 17A.5, subsection 2, paragraph "b", to implement the provisions of this division of this Act and the rules shall be effective immediately upon filing unless a later date is specified in the rules. Any rules adopted in accordance with this section shall also be published as a notice of intended action as provided in section 17A.4.

Sec. 23. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.>

2. Title page, by striking lines 5 and 6 and inserting

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<properly related matters, and including effective date and applicability provisions.>

CHRIS COURNOYER

S–5155

Amend House File 2578, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

DEPARTMENT ON AGING —— FY 2022–2023

Section 1. DEPARTMENT ON AGING. There is appropriated from the general fund of the state to the department on aging for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For aging programs for the department on aging and area agencies on aging to provide citizens of Iowa who are 60 years of age and older with case management, Iowa's aging and disabilities resource center, and other services which may include but are not limited to adult day, respite care, chore, information and assistance, and material aid, for information and options counseling for persons with disabilities who are 18 years of age or older, and for salaries, support, administration, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 11,304,082

..... FTEs 27.00

1. Funds appropriated in this section may be used to supplement federal funds under federal regulations. To receive funds appropriated in this section, a local area agency on aging shall match the funds with moneys from other sources according to rules adopted by the department. Funds appropriated in this section may be used for elderly services not specifically enumerated in this section only if approved

by an area agency on aging for provision of the service within the area.

2. Of the funds appropriated in this section, $418,700 is transferred to the economic development authority for the Iowa commission on volunteer services to be used for the retired and

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senior volunteer program.

3. a. The department on aging shall establish and enforce procedures relating to expenditure of state and federal funds by area agencies on aging that require compliance with both state and federal laws, rules, and regulations, including but not limited to all of the following:

(1) Requiring that expenditures are incurred only for goods or services received or performed prior to the end of the fiscal period designated for use of the funds.

(2) Prohibiting prepayment for goods or services not received or performed prior to the end of the fiscal period designated for use of the funds.

(3) Prohibiting prepayment for goods or services not defined specifically by good or service, time period, or recipient.

(4) Prohibiting the establishment of accounts from which future goods or services which are not defined specifically by good or service, time period, or recipient, may be purchased.

b. The procedures shall provide that if any funds are expended in a manner that is not in compliance with the procedures and applicable federal and state laws, rules, and regulations, and are subsequently subject to repayment, the area agency on aging expending such funds in contravention of such procedures, laws, rules and regulations, not the state, shall be liable for such repayment.

4. Of the funds appropriated in this section, $812,000 shall be used for the purposes of chapter 231E and to administer the prevention of elder abuse, neglect, and exploitation program pursuant to section 231.56A, in accordance with the requirements of the federal Older Americans Act of 1965, 42 U.S.C. §3001 et seq., as amended.

5. Of the funds appropriated in this section, $1,000,000 shall be used to fund continuation of the aging and disability resource center lifelong links to provide individuals and caregivers with information and services to plan for and

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maintain independence.

6. Of the funds appropriated in this section, $850,000 shall be used by the department on aging, in collaboration with the department of human services and affected stakeholders, to continue to expand the pilot initiative to provide long-term care options counseling utilizing support planning

protocols, to assist non-Medicaid eligible consumers who indicate a preference to return to the community and are deemed appropriate for discharge, to return to their community following a nursing facility stay; and shall be used by the department on aging to fund home and community-based services to enable older individuals to avoid more costly utilization of residential or institutional services and remain in their homes. The department on aging shall submit a report regarding the outcomes of the pilot initiative to the governor and the general assembly by December 15, 2022.

DIVISION II

OFFICE OF LONG-TERM CARE OMBUDSMAN —— FY 2022–2023

Sec. 2. OFFICE OF LONG-TERM CARE OMBUDSMAN. There is appropriated from the general fund of the state to the office of long-term care ombudsman for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For salaries, support, administration, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 1,149,821

..... FTEs 16.00

DIVISION III

DEPARTMENT OF PUBLIC HEALTH —— FY 2022–2023

Sec. 3. DEPARTMENT OF PUBLIC HEALTH. There is appropriated from the general fund of the state to the department of public health for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is

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necessary, to be used for the purposes designated:

1. ADDICTIVE DISORDERS

For reducing the prevalence of the use of tobacco, alcohol, and other drugs, and treating individuals affected by addictive behaviors, including gambling, and for not more than the following full-time equivalent positions:

..... $ 23,659,379

..... FTEs 12.00

a. (1) Of the funds appropriated in this subsection, $4,020,894 shall be used for the tobacco use prevention and control initiative, including efforts at the state and local levels, as provided in chapter 142A. The commission on tobacco use prevention and control established pursuant to section 142A.3 shall advise the director of public health in prioritizing funding needs and the allocation of moneys appropriated for the programs and initiatives. Activities of the programs and initiatives shall be in alignment with the United States centers for disease control and prevention best practices for comprehensive tobacco control programs that include the goals of preventing youth initiation of

tobacco usage, reducing exposure to secondhand smoke, and promotion of tobacco cessation. To maximize resources, the department shall determine if third-party sources are available to instead provide nicotine replacement products to an applicant prior to provision of such products to an applicant under the initiative. The department shall track and report to the governor and the general assembly any reduction in the provision of nicotine replacement products realized by the initiative through implementation of the prerequisite screening.

(2) (a) The department shall collaborate with the alcoholic beverages division of the department of commerce for enforcement of tobacco laws, regulations, and ordinances and to engage in tobacco control activities approved by the division of tobacco use prevention and control of the department of

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public health as specified in the memorandum of understanding entered into between the divisions.

(b) For the fiscal year beginning July 1, 2022, and ending June 30, 2023, the terms of the memorandum of understanding, entered into between the division of tobacco use prevention and control of the department of public health and the alcoholic beverages division of the department of commerce, governing compliance checks conducted to ensure licensed retail tobacco outlet conformity with tobacco laws, regulations, and ordinances relating to persons under 21 years of age, shall continue to restrict the number of such checks to one check per retail outlet, and one additional check for any retail outlet found to be in violation during the first check.

b. (1) Of the funds appropriated in this subsection, $19,638,485 shall be used for problem gambling and substance-related disorder prevention, treatment, and recovery services, including a 24-hour helpline, public information resources, professional training, youth prevention, and program evaluation.

(2) Of the amount allocated under this paragraph, $306,000 shall be utilized by the department of public health, in collaboration with the department of human services, to maintain a single statewide 24-hour crisis hotline for the Iowa children's behavioral health system that incorporates warmline services which may be provided through expansion of existing capabilities maintained by the department of public health as required pursuant to 2018 Iowa Acts, chapter 1056, section 16.

c. The requirement of section 123.17, subsection 5, is met by the appropriations and allocations made in this division of this Act for purposes of substance-related disorder treatment and addictive disorders for the fiscal year beginning July 1, 2022.

2. HEALTHY CHILDREN AND FAMILIES

For promoting the optimum health status for children and adolescents from birth through 21 years of age, and families,

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and for not more than the following full-time equivalent positions:

..... $ 5,816,681

..... FTEs 14.00

a. Of the funds appropriated in this subsection, not more than $734,000 shall be used for the healthy opportunities for parents to experience success (HOPES)-healthy families Iowa (HFI) program established pursuant to section 135.106.

b. In order to implement the legislative intent stated in sections 135.106 and 256I.9, priority for home visitation program funding shall be given to programs using evidence-based or promising models for home visitation.

c. Of the funds appropriated in this subsection, $3,075,000 shall be used for continuation of the department's initiative to provide for adequate developmental surveillance and screening during a child's first five years. The funds shall be used first to fully fund the current sites to ensure that the sites are fully operational, with the remaining funds to be used for expansion to additional sites. The full implementation and expansion shall include enhancing the scope of the initiative through collaboration with the child health specialty clinics to promote healthy child development through early identification and response to both biomedical and social determinants of healthy development; by monitoring child health metrics to inform practice, document long-term health impacts and savings, and provide for continuous improvement through training, education, and evaluation; and by providing for practitioner consultation particularly for children with behavioral conditions and needs. The department of public health shall also collaborate with the Iowa Medicaid enterprise and the child health specialty clinics to integrate the activities of the first five initiative into the establishment of patient-centered medical homes, community utilities, accountable care organizations, and other integrated care models developed to improve health quality and population

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health while reducing health care costs. To the maximum extent possible, funding allocated in this paragraph shall be utilized as matching funds for medical assistance program reimbursement.

d. Of the funds appropriated in this subsection, $64,000 shall be distributed to a statewide dental carrier to provide funds to continue the donated dental services program patterned after the projects developed by the dental lifeline network to provide dental services to indigent individuals who are elderly or with disabilities.

e. Of the funds appropriated in this subsection, $156,000 shall be used to provide audiological services and hearing aids for children.

f. Of the funds appropriated in this subsection, $23,000 is transferred to the university of Iowa college of dentistry for provision of primary dental services to children. State funds shall be matched on a dollar-for-dollar basis. The university of Iowa college of dentistry shall coordinate efforts with the department of public health, oral and health delivery system bureau, to provide dental care to underserved populations throughout the state.

g. Of the funds appropriated in this subsection, $50,000 shall be used to address youth suicide prevention.

h. Of the funds appropriated in this subsection, $40,000 shall be used to support the Iowa effort to address the survey of children who experience adverse childhood experiences known as ACEs.

i. Of the funds appropriated in this subsection, up to $494,000 shall be used for childhood obesity prevention.

3. CHRONIC CONDITIONS

For serving individuals identified as having chronic conditions or special health care needs, and for not more than the following full-time equivalent positions:

..... $ 4,258,373

..... FTEs 10.00

a. Of the funds appropriated in this subsection, $188,000

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shall be used for grants to individual patients who have an inherited metabolic disorder to assist with the costs of medically necessary foods and formula.

b. Of the funds appropriated in this subsection, $1,055,000 shall be used for the brain injury services program pursuant to section 135.22B, including $861,000 for contracting with an existing nationally affiliated and statewide organization whose purpose is to educate, serve, and support Iowans with brain injury and their families, for resource facilitator services in accordance with section 135.22B, subsection 9, and for contracting to enhance brain injury training and recruitment of service providers on a statewide basis. Of the amount allocated in this paragraph, $95,000 shall be used to fund 1.00 full-time equivalent position to serve as the state brain injury services program manager.

c. Of the funds appropriated in this subsection, $144,000 shall be used for the public purpose of continuing to contract with an existing nationally affiliated organization to provide education, client-centered programs, and client and family support for people living with epilepsy and their families. The amount allocated in this paragraph in excess of $50,000 shall be matched dollar-for-dollar by the organization specified. Funds allocated under this paragraph shall be

distributed in their entirety for the purpose specified on July 1, 2022.

d. Of the funds appropriated in this subsection, $809,000 shall be used for child health specialty clinics.

e. Of the funds appropriated in this subsection, $384,000 shall be used by the regional autism assistance program established pursuant to section 256.35, and administered by the child health specialty clinic located at the university of Iowa hospitals and clinics. The funds shall be used to enhance interagency collaboration and coordination of educational, medical, and other human services for persons with autism, their families, and providers of services, including delivering

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regionalized services of care coordination, family navigation, and integration of services through the statewide system of regional child health specialty clinics and fulfilling other requirements as specified in chapter 225D. The university of Iowa shall not receive funds allocated under this paragraph for indirect costs associated with the regional autism assistance program.

f. Of the funds appropriated in this subsection, $577,000 shall be used for the comprehensive cancer control program to reduce the burden of cancer in Iowa through prevention, early detection, effective treatment, and ensuring quality of life. Of the funds allocated in this paragraph "f", $150,000 shall be used to support a melanoma research symposium, a melanoma biorepository and registry, basic and translational melanoma research, and clinical trials.

g. Of the funds appropriated in this subsection, $97,000 shall be used for cervical and colon cancer screening, and $177,000 shall be used to enhance the capacity of the cervical cancer screening program to include provision of recommended prevention and early detection measures to a broader range of low-income women.

h. Of the funds appropriated in this subsection, $506,000 shall be used for the center for congenital and inherited disorders.

4. COMMUNITY CAPACITY

For strengthening the health care delivery system at the local level, and for not more than the following full-time equivalent positions:

..... $ 6,519,306

..... FTEs 13.00

a. Of the funds appropriated in this subsection, $95,000 is allocated for continuation of the child vision screening program implemented through the university of Iowa hospitals and clinics in collaboration with early childhood Iowa areas. The program shall submit a report to the department regarding

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the use of funds allocated under this paragraph "a". The report shall include the objectives and results for the program year including the target population and how the funds allocated assisted the program in meeting the objectives; the number, age, and location within the state of individuals served; the type of services provided to the individuals served; the distribution of funds based on service provided; and the continuing needs of the program.

b. Of the funds appropriated in this subsection, $48,000 shall be used for a grant to a statewide association of psychologists, that is affiliated with the American psychological association, to be used for continuation of a program to rotate intern psychologists in placements that serve urban and rural mental health professional shortage areas. Once an intern psychologist begins service, the intern psychologist may continue serving in the location of the intern psychologist's placement, notwithstanding any change in the mental health professional shortage area designation of such location. The intern psychologist may also provide services via telehealth, to underserved populations, and to Medicaid members. For the purposes of this paragraph "b", "mental health professional shortage area" means a geographic area in this state that has been designated by the United States department of health and human services, health resources and services administration, bureau of health professionals, as having a shortage of mental health professionals.

c. Of the funds appropriated in this subsection, the following amounts are allocated to be used as follows to support the goals of increased access, health system integration, and engagement:

(1) Not less than $600,000 is allocated to the Iowa prescription drug corporation for continuation of the pharmaceutical infrastructure for safety net providers as described in 2007 Iowa Acts, chapter 218, section 108, and for the prescription drug donation repository program created in

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chapter 135M. Funds allocated under this subparagraph shall be distributed in their entirety for the purpose specified on July 1, 2022.

(2) Not less than $334,000 is allocated to free clinics and free clinics of Iowa for necessary infrastructure, statewide coordination, provider recruitment, service delivery, and provision of assistance to patients in securing a medical home inclusive of oral health care. Funds allocated under this subparagraph shall be distributed in their entirety for the purpose specified on July 1, 2022.

(3) Not less than $25,000 is allocated to the Iowa association of rural health clinics for necessary

infrastructure and service delivery transformation. Funds allocated under this subparagraph shall be distributed in their entirety for the purpose specified on July 1, 2022.

(4) Not less than $225,000 is allocated to the Polk county medical society for continuation of the safety net provider patient access to specialty health care initiative as described in 2007 Iowa Acts, chapter 218, section 109. Funds allocated under this subparagraph shall be distributed in their entirety for the purpose specified on July 1, 2022.

d. Of the funds appropriated in this subsection, $191,000 is allocated for the purposes of health care and public health workforce initiatives.

e. Of the funds appropriated in this subsection, $96,000 shall be used for a matching dental education loan repayment program to be allocated to a dental nonprofit health service corporation to continue to develop the criteria and implement the loan repayment program.

f. Of the funds appropriated in this subsection, $100,000 shall be used for the purposes of the Iowa donor registry as specified in section 142C.18.

g. Of the funds appropriated in this subsection, $96,000 shall be used for continuation of a grant to a nationally affiliated volunteer eye organization that has an established

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program for children and adults and that is solely dedicated to preserving sight and preventing blindness through education, nationally certified vision screening and training, and community and patient service programs. The contractor shall submit a report to the general assembly regarding the use of funds allocated under this paragraph "g". The report shall include the objectives and results for the program year including the target population and how the funds allocated assisted the program in meeting the objectives; the number, age, grade level if appropriate, and location within the state of individuals served; the type of services provided to the individuals served; the distribution of funds based on services provided; and the continuing needs of the program.

h. Of the funds appropriated in this subsection, $2,100,000 shall be deposited in the medical residency training account created in section 135.175, subsection 5, paragraph "a", and is appropriated from the account to the department of public health to be used for the purposes of the medical residency training state matching grants program as specified in section 135.176.

i. Of the funds appropriated in this subsection, $250,000 shall be used for the public purpose of providing funding to Des Moines university to continue a provider education project to provide primary care physicians with the training and skills necessary to recognize the signs of mental illness in patients.

j. Of the funds appropriated in this subsection, $800,000

shall be used for rural psychiatric residencies to support the annual creation and training of six psychiatric residents who will provide mental health services in underserved areas of the state. Notwithstanding section 8.33, moneys that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated for subsequent fiscal years.

k. Of the funds appropriated in this subsection, $150,000 shall be used for psychiatric training to increase access to

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mental health care services by expanding the mental health workforce via training of additional physician assistants and nurse practitioners.

1. Of the funds appropriated in this subsection, $425,000 shall be used for the creation or continuation of a center of excellence program to encourage innovation and collaboration among regional health care providers in a rural area based upon the results of a regional community needs assessment to transform health care delivery in order to provide quality, sustainable care that meets the needs of the local communities. An applicant for the funds shall specify how the funds will be expended to accomplish the goals of the program and shall provide a detailed five-year sustainability plan prior to being awarded any funding. Following the receipt of funding, a recipient shall submit periodic reports as specified by the department to the governor and the general assembly regarding the recipient's expenditure of the funds and progress in accomplishing the program goals.

5. ESSENTIAL PUBLIC HEALTH SERVICES

To provide public health services that reduce risks and invest in promoting and protecting good health over the course of a lifetime with a priority given to older Iowans and vulnerable populations:

..... $ 7,662,464

6. INFECTIOUS DISEASES

For reducing the incidence and prevalence of communicable diseases, and for not more than the following full-time equivalent positions:

..... $ 1,796,206

..... FTEs 6.00

7. PUBLIC PROTECTION

For protecting the health and safety of the public through establishing standards and enforcing regulations, and for not more than the following full-time equivalent positions:

..... $ 4,466,601

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..... FTEs 142.00

a. Of the funds appropriated in this subsection, not more

than $304,000 shall be credited to the emergency medical services fund created in section 135.25. Moneys in the emergency medical services fund are appropriated to the department to be used for the purposes of the fund.

b. Of the funds appropriated in this subsection, up to $243,000 shall be used for sexual violence prevention programming through a statewide organization representing programs serving victims of sexual violence through the department's sexual violence prevention program, and for continuation of a training program for sexual assault response team (SART) members, including representatives of law enforcement, victim advocates, prosecutors, and certified medical personnel. The amount allocated in this paragraph "b" shall not be used to supplant funding administered for other sexual violence prevention or victims assistance programs.

c. Of the funds appropriated in this subsection, up to $500,000 shall be used for the state poison control center. Pursuant to the directive under 2014 Iowa Acts, chapter 1140, section 102, the federal matching funds available to the state poison control center from the department of human services under the federal Children's Health Insurance Program Reauthorization Act allotment shall be subject to the federal administrative cap rule of 10 percent applicable to funding provided under Tit. XXI of the federal Social Security Act and included within the department's calculations of the cap.

d. Of the funds appropriated in this subsection, up to $504,000 shall be used for childhood lead poisoning provisions.

8. RESOURCE MANAGEMENT

For establishing and sustaining the overall ability of the department to deliver services to the public, and for not more than the following full-time equivalent positions:

..... $ 933,871

..... FTEs 4.00

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9. MISCELLANEOUS PROVISIONS

The university of Iowa hospitals and clinics under the control of the state board of regents shall not receive indirect costs from the funds appropriated in this section. The university of Iowa hospitals and clinics billings to the department shall be on at least a quarterly basis.

Sec. 4. DEPARTMENT OF PUBLIC HEALTH —— SPORTS WAGERING RECEIPTS FUND. There is appropriated from the sports wagering receipts fund created in section 8.57, subsection 6, to the department of public health for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For problem gambling and substance-related disorder prevention, treatment, and recovery services, including a 24-hour helpline, public information resources, professional

training, youth prevention, and program evaluation:
..... $ 1,750,000

DIVISION IV

DEPARTMENT OF VETERANS AFFAIRS —— FY 2022–2023

Sec. 5. DEPARTMENT OF VETERANS AFFAIRS. There is appropriated from the general fund of the state to the department of veterans affairs for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. DEPARTMENT OF VETERANS AFFAIRS ADMINISTRATION

For salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:
..... $ 1,229,763
..... FTEs 15.00

2. IOWA VETERANS HOME

For salaries, support, maintenance, and miscellaneous purposes:

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..... $ 7,131,552

a. The Iowa veterans home billings involving the department of human services shall be submitted to the department on at least a monthly basis.

b. The Iowa veterans home expenditure report shall be submitted monthly to the general assembly.

c. The Iowa veterans home shall continue to include in the annual discharge report applicant information to provide for the collection of demographic information including but not limited to the number of individuals applying for admission and admitted or denied admittance and the basis for the admission or denial; the age, gender, and race of such individuals; and the level of care for which such individuals applied for admission including residential or nursing level of care.

3. HOME OWNERSHIP ASSISTANCE PROGRAM

For transfer to the Iowa finance authority for the continuation of the home ownership assistance program for persons who are or were eligible members of the armed forces of the United States, pursuant to section 16.54:
..... $ 2,000,000

Sec. 6. LIMITATION OF COUNTY COMMISSIONS OF VETERAN AFFAIRS FUND STANDING APPROPRIATIONS. Notwithstanding the standing appropriation in section 35A.16 for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the amount appropriated from the general fund of the state pursuant to that section for the following designated purposes shall not exceed the following amount:

For the county commissions of veteran affairs fund under section 35A.16:
..... $ 990,000

DIVISION V
DEPARTMENT OF HUMAN SERVICES —— FY 2022–2023

Sec. 7. TEMPORARY ASSISTANCE FOR NEEDY FAMILIES BLOCK GRANT. There is appropriated from the fund created in section 8.41 to the department of human services for the fiscal year

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beginning July 1, 2022, and ending June 30, 2023, from moneys received under the federal temporary assistance for needy families (TANF) block grant pursuant to the federal Personal Responsibility and Work Opportunity Reconciliation Act of 1996, Pub. L. No. 104-193, and successor legislation, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. To be credited to the family investment program account and used for assistance under the family investment program under chapter 239B:

..... $ 5,002,006

2. To be credited to the family investment program account and used for the job opportunities and basic skills (JOBS) program and implementing family investment agreements in accordance with chapter 239B:

..... $ 5,412,060

3. To be used for the family development and self-sufficiency grant program in accordance with section 216A.107:

..... $ 2,888,980

Notwithstanding section 8.33, moneys appropriated in this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year. However, unless such moneys are encumbered or obligated on or before September 30, 2023, the moneys shall revert.

4. For field operations:

..... $ 31,296,232

5. For general administration:

..... $ 3,744,000

6. For state child care assistance:

..... $ 47,166,826

a. Of the funds appropriated in this subsection, $26,205,412 is transferred to the child care and development

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block grant appropriation made by the Eighty-ninth General Assembly, 2022 session, for the federal fiscal year beginning October 1, 2022, and ending September 30, 2023. Of this amount, $200,000 shall be used for provision of educational opportunities to registered child care home providers in order to improve services and programs offered by this category

of providers and to increase the number of providers. The department may contract with institutions of higher education or child care resource and referral centers to provide the educational opportunities. Allowable administrative costs under the contracts shall not exceed 5 percent. The application for a grant shall not exceed two pages in length.

b. Any funds appropriated in this subsection remaining unallocated shall be used for state child care assistance payments for families who are employed including but not limited to individuals enrolled in the family investment program.

7. For child and family services:

..... $ 32,380,654

8. For child abuse prevention grants:

..... $ 125,000

9. For pregnancy prevention grants on the condition that family planning services are funded:

..... $ 1,913,203

Pregnancy prevention grants shall be awarded to programs in existence on or before July 1, 2022, if the programs have demonstrated positive outcomes. Grants shall be awarded to pregnancy prevention programs which are developed after July 1, 2022, if the programs are based on existing models that have demonstrated positive outcomes. Grants shall comply with the requirements provided in 1997 Iowa Acts, chapter 208, section 14, subsections 1 and 2, including the requirement that grant programs must emphasize sexual abstinence. Priority in the awarding of grants shall be given to programs that serve areas of the state which demonstrate the highest percentage of

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unplanned pregnancies of females of childbearing age within the geographic area to be served by the grant.

10. For technology needs and other resources necessary to meet federal and state reporting, tracking, and case management requirements and other departmental needs:

..... $ 1,037,186

11. a. Notwithstanding any provision to the contrary, including but not limited to requirements in section 8.41 or provisions in 2021 Iowa Acts or 2022 Iowa Acts regarding the receipt and appropriation of federal block grants, federal funds from the temporary assistance for needy families block grant received by the state and not otherwise appropriated in this section and remaining available for the fiscal year beginning July 1, 2022, are appropriated to the department of human services to the extent as may be necessary to be used in the following priority order: the family investment program, for state child care assistance program payments for families who are employed, and for the family investment program share of system costs for eligibility determination and related functions. The federal funds appropriated in this paragraph

"a" shall be expended only after all other funds appropriated in subsection 1 for assistance under the family investment program, in subsection 6 for state child care assistance, or in subsection 10 for technology needs and other resources necessary to meet departmental needs, as applicable, have been expended. For the purposes of this subsection, the funds appropriated in subsection 6, paragraph "a", for transfer to the child care and development block grant appropriation are considered fully expended when the full amount has been transferred.

b. The department shall, on a quarterly basis, advise the general assembly and department of management of the amount of funds appropriated in this subsection that was expended in the prior quarter.

12. Of the amounts appropriated in this section,

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$12,962,008 for the fiscal year beginning July 1, 2022, is transferred to the appropriation of the federal social services block grant made to the department of human services for that fiscal year.

13. For continuation of the program providing categorical eligibility for the supplemental nutrition assistance program (SNAP) as specified for the program in the section of this division of this Act relating to the family investment program account:

..... $ 14,236

14. The department may transfer funds allocated in this section to the appropriations made in this division of this Act for the same fiscal year for general administration and field operations for resources necessary to implement and operate the services referred to in this section and those funded in the appropriation made in this division of this Act for the same fiscal year for the family investment program from the general fund of the state.

15. With the exception of moneys allocated under this section for the family development and self-sufficiency grant program, to the extent moneys allocated in this section are deemed by the department not to be necessary to support the purposes for which they are allocated, such moneys may be used in the same fiscal year for any other purpose for which funds are allocated in this section or in section 8 of this division of this Act for the family investment program account. If there are conflicting needs, priority shall first be given to the family investment program account as specified under subsection 1 of this section and used for the purposes of assistance under the family investment program in accordance with chapter 239B, followed by state child care assistance program payments for families who are employed, followed by other priorities as specified by the department.

Sec. 8. FAMILY INVESTMENT PROGRAM ACCOUNT.

1. Moneys credited to the family investment program (FIP)

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account for the fiscal year beginning July 1, 2022, and ending June 30, 2023, shall be used to provide assistance in accordance with chapter 239B.

2. The department may use a portion of the moneys credited to the FIP account under this section as necessary for salaries, support, maintenance, and miscellaneous purposes, including administrative and information technology costs associated with rent reimbursement and other income assistance programs administered by the department.

3. The department may transfer funds allocated in subsection 4, excluding the allocation under subsection 4, paragraph "b", to the appropriations made in this division of this Act for the same fiscal year for general administration and field operations for resources necessary to implement and operate the services referred to in this section and those funded in the appropriations made in section 7 for the temporary assistance for needy families block grant and in section 9 for the family investment program from the general fund of the state in this division of this Act for the same fiscal year.

4. Moneys appropriated in this division of this Act and credited to the FIP account for the fiscal year beginning July 1, 2022, and ending June 30, 2023, are allocated as follows:

a. To be retained by the department of human services to be used for coordinating with the department of human rights to more effectively serve participants in FIP and other shared clients and to meet federal reporting requirements under the federal temporary assistance for needy families block grant:

..... $ 10,000

b. To the department of human rights for staffing, administration, and implementation of the family development and self-sufficiency grant program in accordance with section 216A.107:

..... $ 7,192,834

(1) Of the funds allocated for the family development

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and self-sufficiency grant program in this paragraph "b", not more than 5 percent of the funds shall be used for the administration of the grant program.

(2) The department of human rights may continue to implement the family development and self-sufficiency grant program statewide during fiscal year 2022-2023.

(3) The department of human rights may engage in activities to strengthen and improve family outcomes measures and data collection systems under the family development and

self-sufficiency grant program.

c. For the diversion subaccount of the FIP account:

..... $ 1,293,000

A portion of the moneys allocated for the diversion subaccount may be used for field operations, salaries, data management system development, and implementation costs and support deemed necessary by the director of human services in order to administer the FIP diversion program. To the extent moneys allocated in this paragraph "c" are deemed by the department not to be necessary to support diversion activities, such moneys may be used for other efforts intended to increase engagement by family investment program participants in work, education, or training activities, or for the purposes of assistance under the family investment program in accordance with chapter 239B.

d. For the SNAP employment and training program:

..... $ 66,588

(1) The department shall apply the federal SNAP employment and training state plan in order to maximize to the fullest extent permitted by federal law the use of the 50 percent federal reimbursement provisions for the claiming of allowable federal reimbursement funds from the United States department of agriculture pursuant to the federal SNAP employment and training program for providing education, employment, and training services for eligible SNAP participants, including but not limited to related dependent care and transportation

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expenses.

(2) The department shall continue the categorical federal SNAP eligibility at 160 percent of the federal poverty level and continue to eliminate the asset test from eligibility requirements, consistent with federal SNAP program requirements. The department shall include as many SNAP households as is allowed by federal law. The eligibility provisions shall conform to all federal requirements including requirements addressing individuals who are disqualified for committing an intentional program violation or are otherwise ineligible.

e. For the JOBS program, not more than:

..... $ 12,018,258

5. Of the child support collections assigned under FIP, an amount equal to the federal share of support collections shall be credited to the child support recovery appropriation made in this division of this Act. Of the remainder of the assigned child support collections received by the child support recovery unit, a portion shall be credited to the FIP account, a portion may be used to increase recoveries, and a portion may be used to sustain cash flow in the child support payments account. If as a consequence of the appropriations and allocations made in this section the resulting amounts

are insufficient to sustain cash assistance payments and meet federal maintenance of effort requirements, the department shall seek supplemental funding. If child support collections assigned under FIP are greater than estimated or are otherwise determined not to be required for maintenance of effort, the state share of either amount may be transferred to or retained in the child support payments account.

Sec. 9. FAMILY INVESTMENT PROGRAM GENERAL FUND. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose

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designated:

To be credited to the family investment program (FIP) account and used for family investment program assistance under chapter 239B and other costs associated with providing needs-based benefits or assistance:

..... $ 41,003,978

1. Of the funds appropriated in this section, $6,606,198 is allocated for the JOBS program.

2. Of the funds appropriated in this section, $4,313,854 is allocated for the family development and self-sufficiency grant program.

3. a. Notwithstanding section 8.39, for the fiscal year beginning July 1, 2022, if necessary to meet federal maintenance of effort requirements or to transfer federal temporary assistance for needy families block grant funding to be used for purposes of the federal social services block grant or to meet cash flow needs resulting from delays in receiving federal funding or to implement, in accordance with this division of this Act, activities currently funded with juvenile court services, county, or community moneys and state moneys used in combination with such moneys; to comply with federal requirements; or to maximize the use of federal funds; the department of human services may transfer funds within or between any of the appropriations made in this division of this Act and appropriations in law for the federal social services block grant to the department for the following purposes, provided that the combined amount of state and federal temporary assistance for needy families block grant funding for each appropriation remains the same before and after the transfer:

(1) For the family investment program.

(2) For state child care assistance.

(3) For child and family services.

(4) For field operations.

(5) For general administration.

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b. This subsection shall not be construed to prohibit the use of existing state transfer authority for other purposes. The department shall report any transfers made pursuant to this subsection to the general assembly.

4. Of the funds appropriated in this section, $195,000 shall be used for a contract for tax preparation assistance to low-income Iowans to expand the usage of the earned income tax credit. The purpose of the contract is to supply this assistance to underserved areas of the state. The department shall not retain any portion of the allocation under this subsection for administrative costs.

5. Of the funds appropriated in this section, $70,000 shall be used for the continuation of the parenting program, as specified in 441 IAC ch. 100, relating to parental obligations, in which the child support recovery unit participates, to support the efforts of a nonprofit organization committed to strengthening the community through youth development, healthy living, and social responsibility headquartered in a county with a population over 450,000 according to the 2020 certified federal census. The funds allocated in this subsection shall be used by the recipient organization to develop a larger community effort, through public and private partnerships, to support a broad-based multi-county parenthood initiative that promotes payment of child support obligations, improved family relationships, and full-time employment.

6. The department may transfer funds appropriated in this section, excluding the allocation in subsection 2 for the family development and self-sufficiency grant program, to the appropriations made in this division of this Act for general administration and field operations as necessary to administer this section, section 7 for the temporary assistance for needy families block grant, and section 8 for the family investment program account.

Sec. 10. CHILD SUPPORT RECOVERY. There is appropriated from the general fund of the state to the department of human

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services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For child support recovery, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 15,942,885

..... FTEs 459.00

1. The department shall expend up to $24,000, including federal financial participation, for the fiscal year beginning July 1, 2022, for a child support public awareness campaign. The department and the office of the attorney general shall

cooperate in continuation of the campaign. The public awareness campaign shall emphasize, through a variety of media activities, the importance of maximum involvement of both parents in the lives of their children as well as the importance of payment of child support obligations.

2. Federal access and visitation grant moneys shall be issued directly to private not-for-profit agencies that provide services designed to increase compliance with the child access provisions of court orders, including but not limited to neutral visitation sites and mediation services.

3. The appropriation made to the department for child support recovery may be used throughout the fiscal year in the manner necessary for purposes of cash flow management, and for cash flow management purposes the department may temporarily draw more than the amount appropriated, provided the amount appropriated is not exceeded at the close of the fiscal year.

Sec. 11. HEALTH CARE TRUST FUND —— MEDICAL ASSISTANCE —— FY 2022–2023. Any funds remaining in the health care trust fund created in section 453A.35A for the fiscal year beginning July 1, 2022, and ending June 30, 2023, are appropriated to the department of human services to supplement the medical assistance program appropriations made in this division of this Act, for medical assistance reimbursement and associated costs,

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including program administration and costs associated with program implementation.

Sec. 12. MEDICAID FRAUD FUND —— MEDICAL ASSISTANCE —— FY 2022–2023. Any funds remaining in the Medicaid fraud fund created in section 249A.50 for the fiscal year beginning July 1, 2022, and ending June 30, 2023, are appropriated to the department of human services to supplement the medical assistance appropriations made in this division of this Act, for medical assistance reimbursement and associated costs, including program administration and costs associated with program implementation.

Sec. 13. MEDICAL ASSISTANCE. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

For medical assistance program reimbursement and associated costs as specifically provided in the reimbursement methodologies in effect on June 30, 2022, except as otherwise expressly authorized by law, consistent with options under federal law and regulations, and contingent upon receipt of approval from the office of the governor of reimbursement for each abortion performed under the program:

..... $ 1,510,127,388

1. Iowans support reducing the number of abortions performed in our state. Funds appropriated under this section

shall not be used for abortions, unless otherwise authorized under this section.

2. The provisions of this section relating to abortions shall also apply to the Iowa health and wellness plan created pursuant to chapter 249N.

3. The department shall utilize not more than $60,000 of the funds appropriated in this section to continue the AIDS/HIV health insurance premium payment program as established in 1992 Iowa Acts, Second Extraordinary Session, chapter 1001, section

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409, subsection 6. Of the funds allocated in this subsection, not more than $5,000 may be expended for administrative purposes.

4. Of the funds appropriated in this Act to the department of public health for addictive disorders, $950,000 for the fiscal year beginning July 1, 2022, is transferred to the department of human services for an integrated substance-related disorder managed care system. The departments of human services and public health shall work together to maintain the level of mental health and substance-related disorder treatment services provided by the managed care contractors. Each department shall take the steps necessary to continue the federal waivers as necessary to maintain the level of services.

5. The department shall aggressively pursue options for providing medical assistance or other assistance to individuals with special needs who become ineligible to continue receiving services under the early and periodic screening, diagnostic, and treatment program under the medical assistance program due to becoming 21 years of age who have been approved for additional assistance through the department's exception to policy provisions, but who have health care needs in excess of the funding available through the exception to policy provisions.

6. Of the funds appropriated in this section, up to $3,050,082 may be transferred to the field operations or general administration appropriations in this division of this Act for operational costs associated with Part D of the federal Medicare Prescription Drug Improvement and Modernization Act of 2003, Pub. L. No. 108-173.

7. Of the funds appropriated in this section, up to $442,100 may be transferred to the appropriation in this division of this Act for health program operations to be used for clinical assessment services and prior authorization of services.

8. A portion of the funds appropriated in this section may

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be transferred to the appropriations in this division of this Act for general administration, health program operations, the

children's health insurance program, or field operations to be used for the state match cost to comply with the payment error rate measurement (PERM) program for both the medical assistance and children's health insurance programs as developed by the centers for Medicare and Medicaid services of the United States department of health and human services to comply with the federal Improper Payments Information Act of 2002, Pub. L. No. 107-300, and to support other reviews and quality control activities to improve the integrity of these programs.

9. Of the funds appropriated in this section, a sufficient amount is allocated to supplement the incomes of residents of nursing facilities, intermediate care facilities for persons with mental illness, and intermediate care facilities for persons with an intellectual disability, with incomes of less than $50 in the amount necessary for the residents to receive a personal needs allowance of $50 per month pursuant to section 249A.30A.

10. One hundred percent of the nonfederal share of payments to area education agencies that are medical assistance providers for medical assistance-covered services provided to medical assistance-covered children, shall be made from the appropriation made in this section.

11. A portion of the funds appropriated in this section may be transferred to the appropriation in this division of this Act for health program operations to be used for administrative activities associated with the money follows the person demonstration project.

12. Of the funds appropriated in this section, $349,011 shall be used for the administration of the health insurance premium payment program, including salaries, support, maintenance, and miscellaneous purposes.

13. a. The department may increase the amounts allocated for salaries, support, maintenance, and miscellaneous purposes

associated with the medical assistance program, as necessary, to sustain cost management efforts. The department shall report any such increase to the general assembly and the department of management.

b. If the savings to the medical assistance program from ongoing cost management efforts exceed the associated cost for the fiscal year beginning July 1, 2022, the department may transfer any savings generated for the fiscal year due to medical assistance program cost management efforts to the appropriation made in this division of this Act for health program operations or general administration to defray the costs associated with implementing the efforts.

14. For the fiscal year beginning July 1, 2022, and ending June 30, 2023, the replacement generation tax revenues required to be deposited in the property tax relief fund pursuant to section 437A.8, subsection 4, paragraph "d", and section

437A.15, subsection 3, paragraph "f", shall instead be credited to and supplement the appropriation made in this section and used for the allocations made in this section.

15. a. Of the funds appropriated in this section, up to $50,000 may be transferred by the department to the appropriation made in this division of this Act to the department for the same fiscal year for general administration to be used for associated administrative expenses and for not more than 1.00 full-time equivalent position, in addition to those authorized for the same fiscal year, to be assigned to implementing the children's mental health home project.

b. Of the funds appropriated in this section, up to $400,000 may be transferred by the department to the appropriation made to the department in this division of this Act for the same fiscal year for Medicaid program-related general administration planning and implementation activities. The funds may be used for contracts or for personnel in addition to the amounts appropriated for and the positions authorized for general administration for the fiscal year.

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c. Of the funds appropriated in this section, up to $3,000,000 may be transferred by the department to the appropriations made in this division of this Act for the same fiscal year for general administration or health program operations to be used to support the development and implementation of standardized assessment tools for persons with mental illness, an intellectual disability, a developmental disability, or a brain injury.

16. Of the funds appropriated in this section, $150,000 shall be used for lodging expenses associated with care provided at the university of Iowa hospitals and clinics for patients with cancer whose travel distance is 30 miles or more and whose income is at or below 200 percent of the federal poverty level as defined by the most recently revised poverty income guidelines published by the United States department of health and human services. The department of human services shall establish the maximum number of overnight stays and the maximum rate reimbursed for overnight lodging, which may be based on the state employee rate established by the department of administrative services. The funds allocated in this subsection shall not be used as nonfederal share matching funds.

17. Of the funds appropriated in this section, up to $3,383,880 shall be used for administration of the state family planning services program pursuant to section 217.41B, and of this amount, the department may use up to $200,000 for administrative expenses.

18. Of the funds appropriated in this section, $1,545,530 shall be used and may be transferred to other appropriations in this division of this Act as necessary to administer the

provisions in the division of this Act relating to Medicaid program administration.

19. The department shall comply with the centers for Medicare and Medicaid services' guidance related to Medicaid program and children's health insurance program maintenance

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of effort provisions, including eligibility standards, methodologies, procedures, and continuous enrollment, to receive the enhanced federal medical assistance percentage under section 6008(b) of the federal Families First Coronavirus Response Act, Pub. L. No. 116-127. The department shall utilize and implement all tools, processes, and resources available to expediently return to normal eligibility and enrollment operations in compliance with federal guidance and expectations.

20. A portion of the funds appropriated in this section may be transferred to the appropriation made in this division of this Act for the children's health insurance program, if the children's health insurance program appropriation is insufficient to cover the designated purposes of that appropriation.

21. The department of human services shall submit a Medicaid state plan amendment to the centers for Medicare and Medicaid services to request the addition of functional family therapy and multisystemic therapy for youth as covered services under the Medicaid program. The department shall include functional family therapy and multisystemic therapy under the Medicaid program as covered services upon receipt of federal approval.

Sec. 14. HEALTH PROGRAM OPERATIONS. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

For health program operations:

..... $ 17,446,343

1. The department of inspections and appeals shall provide all state matching funds for survey and certification activities performed by the department of inspections and appeals. The department of human services is solely responsible for distributing the federal matching funds for such activities.

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2. Of the funds appropriated in this section, $50,000 shall be used for continuation of home and community-based services waiver quality assurance programs, including the review and streamlining of processes and policies related to oversight and quality management to meet state and federal requirements.

3. Of the amount appropriated in this section, up to

$200,000 may be transferred to the appropriation for general administration in this division of this Act to be used for additional full-time equivalent positions in the development of key health initiatives such as development and oversight of managed care programs and development of health strategies targeted toward improved quality and reduced costs in the Medicaid program.

4. Of the funds appropriated in this section, $1,000,000 shall be used for planning and development, in cooperation with the department of public health, of a phased-in program to provide a dental home for children.

5. a. Of the funds appropriated in this section, $188,000 shall be credited to the autism support program fund created in section 225D.2 to be used for the autism support program created in chapter 225D, with the exception of the following amount of this allocation which shall be used as follows:

b. Of the funds allocated in this subsection, $25,000 shall be used for the public purpose of continuation of a grant to a nonprofit provider of child welfare services that has been in existence for more than 115 years, is located in a county with a population between 220,000 and 250,000 according to the 2020 federal decennial census, is licensed as a psychiatric medical institution for children, and provides school-based programming, to be used for support services for children with autism spectrum disorder and their families.

Sec. 15. STATE SUPPLEMENTARY ASSISTANCE.

1. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following

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amount, or so much thereof as is necessary, to be used for the purpose designated:

For the state supplementary assistance program:

..... $ 7,349,002

2. The department shall increase the personal needs allowance for residents of residential care facilities by the same percentage and at the same time as federal supplemental security income and federal social security benefits are increased due to a recognized increase in the cost of living. The department may adopt emergency rules to implement this subsection.

3. If during the fiscal year beginning July 1, 2022, the department projects that state supplementary assistance expenditures for a calendar year will not meet the federal pass-through requirement specified in Tit. XVI of the federal Social Security Act, section 1618, as codified in 42 U.S.C. §1382g, the department may take actions including but not limited to increasing the personal needs allowance for residential care facility residents and making programmatic adjustments or upward adjustments of the residential care

facility or in-home health-related care reimbursement rates prescribed in this division of this Act to ensure that federal requirements are met. In addition, the department may make other programmatic and rate adjustments necessary to remain within the amount appropriated in this section while ensuring compliance with federal requirements. The department may adopt emergency rules to implement the provisions of this subsection.

4. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated, including for liability amounts associated with the supplemental nutrition assistance program payment error rate, until the close of the succeeding fiscal year.

Sec. 16. CHILDREN'S HEALTH INSURANCE PROGRAM.

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1. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

For maintenance of the healthy and well kids in Iowa (hawk-i) program pursuant to chapter 514I, including supplemental dental services, for receipt of federal financial participation under Tit. XXI of the federal Social Security Act, which creates the children's health insurance program:

..... $ 38,661,688

2. Of the funds appropriated in this section, $158,850 is allocated for continuation of the contract for outreach with the department of public health.

3. A portion of the funds appropriated in this section may be transferred to the appropriations made in this division of this Act for field operations or health program operations to be used for the integration of hawk-i program eligibility, payment, and administrative functions under the purview of the department of human services, including for the Medicaid management information system upgrade.

Sec. 17. CHILD CARE ASSISTANCE. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

For child care programs:

..... $ 40,816,931

1. Of the funds appropriated in this section, $34,966,931 shall be used for state child care assistance in accordance with section 237A.13.

2. Nothing in this section shall be construed or is intended as or shall imply a grant of entitlement for services

to persons who are eligible for assistance due to an income level consistent with the waiting list requirements of section

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237A.13. Any state obligation to provide services pursuant to this section is limited to the extent of the funds appropriated in this section.

3. A list of the registered and licensed child care facilities operating in the area served by a child care resource and referral service shall be made available to the families receiving state child care assistance in that area.

4. Of the funds appropriated in this section, $5,850,000 shall be credited to the early childhood programs grants account in the early childhood Iowa fund created in section 256I.11. The moneys shall be distributed for funding of community-based early childhood programs targeted to children from birth through five years of age developed by early childhood Iowa areas in accordance with approved community plans as provided in section 256I.8.

5. The department may use any of the funds appropriated in this section as a match to obtain federal funds for use in expanding child care assistance and related programs. For the purpose of expenditures of state and federal child care funding, funds shall be considered obligated at the time expenditures are projected or are allocated to the department's service areas. Projections shall be based on current and projected caseload growth, current and projected provider rates, staffing requirements for eligibility determination and management of program requirements including data systems management, staffing requirements for administration of the program, contractual and grant obligations and any transfers to other state agencies, and obligations for decategorization or innovation projects.

6. A portion of the state match for the federal child care and development block grant shall be provided as necessary to meet federal matching funds requirements through the state general fund appropriation made for child development grants and other programs for at-risk children in section 279.51.

7. If a uniform reduction ordered by the governor under

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section 8.31 or other operation of law, transfer, or federal funding reduction reduces the appropriation made in this section for the fiscal year, the percentage reduction in the amount paid out to or on behalf of the families participating in the state child care assistance program shall be equal to or less than the percentage reduction made for any other purpose payable from the appropriation made in this section and the federal funding relating to it. The percentage reduction to the other allocations made in this section shall be the same as

the uniform reduction ordered by the governor or the percentage change of the federal funding reduction, as applicable. If there is an unanticipated increase in federal funding provided for state child care services, the entire amount of the increase, except as necessary to meet federal requirements including quality set asides, shall be used for state child care assistance payments. If the appropriations made for purposes of the state child care assistance program for the fiscal year are determined to be insufficient, it is the intent of the general assembly to appropriate sufficient funding for the fiscal year in order to avoid establishment of waiting list requirements.

8. Notwithstanding section 8.33, moneys advanced for purposes of the programs developed by early childhood Iowa areas, advanced for purposes of wraparound child care, or received from the federal appropriations made for the purposes of this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert to any fund but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 18. JUVENILE INSTITUTION. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

1. a. For operation of the state training school at Eldora

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and for salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 17,606,871

..... FTEs 207.00

b. Of the funds appropriated in this subsection, $91,000 shall be used for distribution to licensed classroom teachers at this and other institutions under the control of the department of human services based upon the average student yearly enrollment at each institution as determined by the department.

2. A portion of the moneys appropriated in this section shall be used by the state training school at Eldora for grants for adolescent pregnancy prevention activities at the institution in the fiscal year beginning July 1, 2022.

3. Of the funds appropriated in this subsection, $212,000 shall be used by the state training school at Eldora for a substance use disorder treatment program at the institution for the fiscal year beginning July 1, 2022.

4. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the

close of the succeeding fiscal year.

Sec. 19. CHILD AND FAMILY SERVICES.

1. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

For child and family services:

..... $ 93,571,677

2. The department may transfer funds appropriated in this section as necessary to pay the nonfederal costs of services reimbursed under the medical assistance program, state child

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care assistance program, or the family investment program which are provided to children who would otherwise receive services paid under the appropriation in this section. The department may transfer funds appropriated in this section to the appropriations made in this division of this Act for general administration and for field operations for resources necessary to implement and operate the services funded in this section.

3. Of the funds appropriated in this section, up to $40,500,000 is allocated for group foster care maintenance and services.

4. In accordance with the provisions of section 232.188, the department shall continue the child welfare and juvenile justice funding initiative during fiscal year 2022–2023. Of the funds appropriated in this section, $1,717,000 is allocated specifically for expenditure for fiscal year 2022–2023 through the decategorization services funding pools and governance boards established pursuant to section 232.188.

5. A portion of the funds appropriated in this section may be used for emergency family assistance to provide other resources required for a family participating in a family preservation or reunification project or successor project to stay together or to be reunified.

6. Of the funds appropriated in this section, a sufficient amount is allocated for shelter care and the child welfare emergency services contracting implemented to provide for or prevent the need for shelter care.

7. Federal funds received by the state during the fiscal year beginning July 1, 2022, as the result of the expenditure of state funds appropriated during a previous state fiscal year for a service or activity funded under this section are appropriated to the department to be used as additional funding for services and purposes provided for under this section. Notwithstanding section 8.33, moneys received in accordance with this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert to any fund but

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shall remain available for the purposes designated until the close of the succeeding fiscal year.

8. a. Of the funds appropriated in this section, up to $3,290,000 is allocated for the payment of the expenses of court-ordered services provided to juveniles who are under the supervision of juvenile court services, which expenses are a charge upon the state pursuant to section 232.141, subsection 4. Of the amount allocated in this paragraph "a", up to $1,556,000 shall be made available to provide school-based supervision of children adjudicated under chapter 232, of which not more than $15,000 may be used for the purpose of training. A portion of the cost of each school-based liaison officer shall be paid by the school district or other funding source as approved by the chief juvenile court officer.

b. Of the funds appropriated in this section, up to $748,000 is allocated for the payment of the expenses of court-ordered services provided to children who are under the supervision of the department, which expenses are a charge upon the state pursuant to section 232.141, subsection 4.

c. Notwithstanding section 232.141 or any other provision of law to the contrary, the amounts allocated in this subsection shall be distributed to the judicial districts as determined by the state court administrator and to the department's service areas as determined by the administrator of the department of human services' division of child and family services. The state court administrator and the division administrator shall make the determination of the distribution amounts on or before June 15, 2022.

d. Notwithstanding chapter 232 or any other provision of law to the contrary, a district or juvenile court shall not order any service which is a charge upon the state pursuant to section 232.141 if there are insufficient court-ordered services funds available in the district court or departmental service area distribution amounts to pay for the service. The chief juvenile court officer and the departmental service area

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manager shall encourage use of the funds allocated in this subsection such that there are sufficient funds to pay for all court-related services during the entire year. The chief juvenile court officers and departmental service area managers shall attempt to anticipate potential surpluses and shortfalls in the distribution amounts and shall cooperatively request the state court administrator or division administrator to transfer funds between the judicial districts' or departmental service areas' distribution amounts as prudent.

e. Notwithstanding any provision of law to the contrary, a district or juvenile court shall not order a county to pay for any service provided to a juvenile pursuant to an order

entered under chapter 232 which is a charge upon the state under section 232.141, subsection 4.

f. Of the funds allocated in this subsection, not more than $83,000 may be used by the judicial branch for administration of the requirements under this subsection.

g. Of the funds allocated in this subsection, $17,000 shall be used by the department of human services to support the interstate commission for juveniles in accordance with the interstate compact for juveniles as provided in section 232.173.

9. Of the funds appropriated in this section, $12,253,000 is allocated for juvenile delinquent graduated sanctions services. Any state funds saved as a result of efforts by juvenile court services to earn a federal Tit. IV-E match for juvenile court services administration may be used for the juvenile delinquent graduated sanctions services.

10. Of the funds appropriated in this section, $1,658,000 is transferred to the department of public health to be used for the child protection center grant program for child protection centers located in Iowa in accordance with section 135.118. The grant amounts under the program shall be equalized so that each center receives a uniform base amount of $245,000, and so that the remaining funds are awarded through a funding formula

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based upon the volume of children served. To increase access to child protection center services for children in rural areas, the funding formula for the awarding of the remaining funds shall provide for the awarding of an enhanced amount to eligible grantees to develop and maintain satellite centers in underserved regions of the state.

11. Of the funds appropriated in this section, $4,025,000 is allocated for the preparation for adult living program pursuant to section 234.46.

12. Of the funds appropriated in this section, $227,000 shall be used for the public purpose of continuing a grant to a nonprofit human services organization, providing services to individuals and families in multiple locations in southwest Iowa and Nebraska for support of a project providing immediate, sensitive support and forensic interviews, medical exams, needs assessments, and referrals for victims of child abuse and their nonoffending family members.

13. Of the funds appropriated in this section, $300,000 is allocated for the foster care youth council approach of providing a support network to children placed in foster care.

14. Of the funds appropriated in this section, $202,000 is allocated for use pursuant to section 235A.1 for continuation of the initiative to address child sexual abuse implemented pursuant to 2007 Iowa Acts, chapter 218, section 18, subsection 21.

15. Of the funds appropriated in this section, $630,000 is

allocated for the community partnership for child protection sites.

16. Of the funds appropriated in this section, $371,000 is allocated for the department's minority youth and family projects under the redesign of the child welfare system.

17. Of the funds appropriated in this section, $851,000 is allocated for funding of the community circle of care collaboration for children and youth in northeast Iowa.

18. Of the funds appropriated in this section, at least

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$147,000 shall be used for the continuation of the child welfare provider training program.

19. Of the funds appropriated in this section, $211,000 shall be used for continuation of the central Iowa system of care program grant for the purposes of funding community-based services and other supports with a system of care approach for children with serious emotional disturbance and their families through a nonprofit provider that is located in a county with a population of more than 450,000 according to the 2020 certified federal census, is licensed as a psychiatric medical institution for children, and was a system of care grantee prior to July 1, 2022.

20. Of the funds appropriated in this section, $235,000 shall be used for the public purpose of the continuation and expansion of a system of care program grant implemented in Cerro Gordo and Linn counties to utilize a comprehensive and long-term approach for helping children and families by addressing the key areas in a child's life of childhood basic needs, education and work, family, and community.

21. Of the funds appropriated in this section, $110,000 shall be used for the public purpose of funding community-based services and other supports with a system of care approach for children with a serious emotional disturbance and their families through a nonprofit provider of child welfare services that has been in existence for more than 115 years, is located in a county with a population of more than 230,000 according to the 2020 certified federal census, is licensed as a psychiatric medical institution for children, and was a system of care grantee prior to July 1, 2022.

22. If a separate funding source is identified that reduces the need for state funds within an allocation under this section, the allocated state funds may be redistributed to other allocations under this section for the same fiscal year.

23. Of the funds appropriated in this section, a portion may be used for family-centered services for purposes of complying

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with the federal Family First Prevention Services Act of 2018, Pub. L. No. 115-123, and successor legislation.

24. Of the funds appropriated in this section, $3,850,718 shall be used to support placements in qualified residential treatment programs.

Sec. 20. ADOPTION SUBSIDY.

1. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

a. For adoption subsidy payments and related costs and for other operations and services provided for under paragraph "b" and paragraph "c", subparagraph (2):

..... $ 40,596,007

b. Of the funds appropriated in this section, up to $11,000,000 may be transferred to the appropriation for department-wide duties in this division of this Act to be used for facility operations.

c. (1) Of the funds appropriated in this section remaining after the transfer of funds under paragraph "b", a sufficient amount is allocated for adoption subsidy payments and related costs.

(2) Any funds appropriated in this section remaining after the allocation under subparagraph (1) are designated and allocated as state savings resulting from implementation of the federal Fostering Connections to Success and Increasing Adoptions Act of 2008, Pub. L. No. 110-351, and successor legislation, as determined in accordance with 42 U.S.C. §673(a)(8), and shall be used for post-adoption services and for other purposes allowed under these federal laws, Tit. IV-B or Tit. IV-E of the federal Social Security Act.

(a) The department of human services may transfer funds allocated in this subparagraph (2) to the appropriation for child and family services in this division of this Act for the

purposes designated in this subparagraph (2).

(b) Notwithstanding section 8.33, moneys allocated under this subparagraph (2) shall not revert to any fund but shall remain available for the purposes designated in this subparagraph (2) until expended.

2. The department may transfer funds appropriated in this section remaining after the transfer of funds under subsection 1, paragraph "b", to the appropriation made in this division of this Act for general administration for costs paid from the appropriation relating to adoption subsidy.

3. Federal funds received by the state during the fiscal year beginning July 1, 2022, as the result of the expenditure of state funds during a previous state fiscal year for a service or activity funded under this section are appropriated to the department to be used as additional funding for the services and activities funded under this section.

Notwithstanding section 8.33, moneys received in accordance with this subsection that remain unencumbered or unobligated at the close of the fiscal year shall not revert to any fund but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

4. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for the purposes designated until the close of the succeeding fiscal year.

Sec. 21. JUVENILE DETENTION HOME FUND. Moneys deposited in the juvenile detention home fund created in section 232.142 during the fiscal year beginning July 1, 2022, and ending June 30, 2023, are appropriated to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, for distribution of an amount equal to a percentage of the costs of the establishment, improvement, operation, and maintenance of county or multicounty juvenile detention homes in the fiscal year beginning July 1, 2021. Moneys appropriated

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for distribution in accordance with this section shall be allocated among eligible detention homes, prorated on the basis of an eligible detention home's proportion of the costs of all eligible detention homes in the fiscal year beginning July 1, 2021. The percentage figure shall be determined by the department based on the amount available for distribution for the fund. Notwithstanding section 232.142, subsection 3, the financial aid payable by the state under that provision for the fiscal year beginning July 1, 2022, shall be limited to the amount appropriated for the purposes of this section.

Sec. 22. FAMILY SUPPORT SUBSIDY PROGRAM.

1. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

For the family support subsidy program subject to the enrollment restrictions in section 225C.37, subsection 3:

..... $ 949,282

2. At least $931,536 of the moneys appropriated in this section is transferred to the department of public health for the family support center component of the comprehensive family support program under chapter 225C, subchapter V.

3. If at any time during the fiscal year, the amount of funding available for the family support subsidy program is reduced from the amount initially used to establish the figure for the number of family members for whom a subsidy is to be provided at any one time during the fiscal year, notwithstanding section 225C.38, subsection 2, the department shall revise the figure as necessary to conform to the amount

of funding available.

Sec. 23. CONNER DECREE. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary,

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to be used for the purpose designated:

For building community capacity through the coordination and provision of training opportunities in accordance with the consent decree of Conner v. Branstad, No. 4-86-CV-30871(S.D. Iowa, July 14, 1994):

..... $ 33,632

Sec. 24. MENTAL HEALTH INSTITUTES.

1. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

a. For operation of the state mental health institute at Cherokee as required by chapters 218 and 226 for salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 15,613,624

..... FTEs 169.00

b. For operation of the state mental health institute at Independence as required by chapters 218 and 226 for salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 19,688,928

..... FTEs 208.00

2. a. Notwithstanding sections 218.78 and 249A.11, any revenue received from the state mental health institute at Cherokee or the state mental health institute at Independence pursuant to 42 C.F.R. §438.6(e) may be retained and expended by the mental health institute.

b. Notwithstanding sections 218.78 and 249A.11, any COVID-19 related funding received through federal funding sources by the state mental health institute at Cherokee or the state mental health institute at Independence may be retained and expended by the mental health institute.

3. Notwithstanding any provision of law to the contrary,

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a Medicaid member residing at the state mental health institute at Cherokee or the state mental health institute at Independence shall retain Medicaid eligibility during the period of the Medicaid member's stay for which federal financial participation is available.

4. Notwithstanding section 8.33, moneys appropriated in

this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 25. STATE RESOURCE CENTERS.

1. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, to be used for the purposes designated:

a. For the state resource center at Glenwood for salaries, support, maintenance, and miscellaneous purposes:

..... $ 16,288,739

b. For the state resource center at Woodward for salaries, support, maintenance, and miscellaneous purposes:

..... $ 13,409,294

2. The department may continue to bill for state resource center services utilizing a scope of services approach used for private providers of intermediate care facilities for persons with an intellectual disability services, in a manner which does not shift costs between the medical assistance program, mental health and disability services regions, or other sources of funding for the state resource centers.

3. The state resource centers may expand the time-limited assessment and respite services during the fiscal year.

4. If the department's administration and the department of management concur with a finding by a state resource center's superintendent that projected revenues can reasonably be expected to pay the salary and support costs for a new

employee position, or that such costs for adding a particular number of new positions for the fiscal year would be less than the overtime costs if new positions would not be added, the superintendent may add the new position or positions. If the vacant positions available to a resource center do not include the position classification desired to be filled, the state resource center's superintendent may reclassify any vacant position as necessary to fill the desired position. The superintendents of the state resource centers may, by mutual agreement, pool vacant positions and position classifications during the course of the fiscal year in order to assist one another in filling necessary positions.

5. If existing capacity limitations are reached in operating units, a waiting list is in effect for a service or a special need for which a payment source or other funding is available for the service or to address the special need, and facilities for the service or to address the special need can be provided within the available payment source or other funding, the superintendent of a state resource center may authorize opening not more than two units or other facilities

and begin implementing the service or addressing the special need during fiscal year 2022–2023.

6. Notwithstanding section 8.33, and notwithstanding the amount limitation specified in section 222.92, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 26. SEXUALLY VIOLENT PREDATORS.

1. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

For costs associated with the commitment and treatment of

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sexually violent predators in the unit located at the state mental health institute at Cherokee, including costs of legal services and other associated costs, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 13,891,276

..... FTEs 140.00

2. Unless specifically prohibited by law, if the amount charged provides for recoupment of at least the entire amount of direct and indirect costs, the department of human services may contract with other states to provide care and treatment of persons placed by the other states at the unit for sexually violent predators at Cherokee. The moneys received under such a contract shall be considered to be repayment receipts and used for the purposes of the appropriation made in this section.

3. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.

Sec. 27. FIELD OPERATIONS.

1. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For field operations, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 65,894,438

..... FTEs 1,589.00

2. Priority in filling full-time equivalent positions shall be given to those positions related to child protection

services and eligibility determination for low-income families.

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Sec. 28. GENERAL ADMINISTRATION. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

For general administration, including salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 15,842,189

..... FTEs 296.00

1. The department shall report at least monthly to the general assembly concerning the department's operational and program expenditures.

2. Of the funds appropriated in this section, $150,000 shall be used for the provision of a program to provide technical assistance, support, and consultation to providers of home and community-based services under the medical assistance program.

3. Of the funds appropriated in this section, $50,000 is transferred to the Iowa finance authority to be used for administrative support of the council on homelessness established in section 16.2D and for the council to fulfill its duties in addressing and reducing homelessness in the state.

4. Of the funds appropriated in this section, $200,000 shall be transferred to and deposited in the administrative fund of the Iowa ABLE savings plan trust created in section 12I.4, to be used for implementation and administration activities of the Iowa ABLE savings plan trust.

5. Of the funds appropriated in this section, $200,000 is transferred to the economic development authority for the Iowa commission on volunteer services to continue to be used for the RefugeeRISE AmeriCorps program established under section 15H.8 for member recruitment and training to improve the economic well-being and health of economically disadvantaged refugees in local communities across Iowa. Funds transferred may be used to supplement federal funds under federal regulations.

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6. Of the funds appropriated in this section, up to $300,000 shall be used as follows:

a. To fund not more than 1.00 full-time equivalent position to address the department's responsibility to support the work of the children's behavioral health system state board and implementation of the services required pursuant to section 331.397.

b. To support the cost of establishing and implementing new or additional services required pursuant to sections 331.397 and 331.397A.

c. Of the amount allocated, $32,000 shall be transferred to the department of public health to support the costs of establishing and implementing new or additional services required pursuant to sections 331.397 and 331.397A.

7. Of the funds appropriated in this section, $800,000 shall be used for the renovation and construction of certain nursing facilities, consistent with the provisions of chapter 249K.

8. Of the funds appropriated under this section, $500,000 shall be used for the purposes of program administration and provision of pregnancy support services through the more options for maternal support program created in this Act.

Sec. 29. DEPARTMENT-WIDE DUTIES. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purposes designated:

For salaries, support, maintenance, and miscellaneous purposes at facilities under the purview of the department of human services:

..... $ 4,172,123

Sec. 30. VOLUNTEERS. There is appropriated from the general fund of the state to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

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For development and coordination of volunteer services:

..... $ 84,686

Sec. 31. MEDICAL ASSISTANCE, STATE SUPPLEMENTARY ASSISTANCE, AND SOCIAL SERVICE PROVIDERS REIMBURSED UNDER THE DEPARTMENT OF HUMAN SERVICES.

1. a. (1) (a) Notwithstanding any provision of law to the contrary, for the fiscal year beginning July 1, 2022, case-mix nursing facilities shall be reimbursed in accordance with the methodology in effect on June 30, 2022.

(b) For the fiscal year beginning July 1, 2022, non-case-mix and special population nursing facilities shall be reimbursed in accordance with the methodology in effect on June 30, 2022.

(c) For managed care claims, the department of human services shall adjust the payment rate floor for nursing facilities, annually, to maintain a rate floor that is no lower than the Medicaid fee-for-service case-mix adjusted rate calculated in accordance with subparagraph division (a) and 441 IAC 81.6. The department shall then calculate adjusted reimbursement rates, including but not limited to add-on payments, annually, and shall notify Medicaid managed care organizations of the adjusted reimbursement rates within 30 days of determining the adjusted reimbursement rates. Any adjustment of reimbursement rates under this subparagraph division shall be budget neutral to the state budget.

(d) For the fiscal year beginning July 1, 2022, Medicaid managed care long-term services and supports capitation rates shall be adjusted to reflect the case-mix adjusted rates specified pursuant to subparagraph division (a) for the patient populations residing in Medicaid-certified nursing facilities.

(2) Medicaid managed care organizations shall adjust facility-specific rates based upon payment rate listings issued by the department. The rate adjustments shall be applied prospectively from the effective date of the rate letter issued by the department.

b. (1) For the fiscal year beginning July 1, 2022, the

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department shall establish the fee-for-service pharmacy dispensing fee reimbursement at $10.38 per prescription, until a cost of dispensing survey is completed. The actual dispensing fee shall be determined by a cost of dispensing survey performed by the department and required to be completed by all medical assistance program participating pharmacies every two years, adjusted as necessary to maintain expenditures within the amount appropriated to the department for this purpose for the fiscal year. A change in the dispensing fee shall become effective following federal approval of the Medicaid state plan.

(2) The department shall utilize an average acquisition cost reimbursement methodology for all drugs covered under the medical assistance program in accordance with 2012 Iowa Acts, chapter 1133, section 33.

c. (1) For the fiscal year beginning July 1, 2022, reimbursement rates for outpatient hospital services shall remain at the rates in effect on June 30, 2022, subject to Medicaid program upper payment limit rules, and adjusted as necessary to maintain expenditures within the amount appropriated to the department for this purpose for the fiscal year.

(2) For the fiscal year beginning July 1, 2022, reimbursement rates for inpatient hospital services shall remain at the rates in effect on June 30, 2022, subject to Medicaid program upper payment limit rules, and adjusted as necessary to maintain expenditures within the amount appropriated to the department for this purpose for the fiscal year.

(3) For the fiscal year beginning July 1, 2022, under both fee-for-service and managed care administration of the Medicaid program, critical access hospitals shall be reimbursed for inpatient and outpatient services based on the hospital-specific critical access hospital cost adjustment factor methodology utilizing the most recent and complete cost

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reporting period as applied prospectively within the funds appropriated for such purpose for the fiscal year.

(4) For the fiscal year beginning July 1, 2022, the graduate medical education and disproportionate share hospital fund shall remain at the amount in effect on June 30, 2022, except that the portion of the fund attributable to graduate medical education shall be reduced in an amount that reflects the elimination of graduate medical education payments made to out-of-state hospitals.

(5) In order to ensure the efficient use of limited state funds in procuring health care services for low-income Iowans, funds appropriated in this Act for hospital services shall not be used for activities which would be excluded from a determination of reasonable costs under the federal Medicare program pursuant to 42 U.S.C. §1395x(v)(1)(N).

d. For the fiscal year beginning July 1, 2022, reimbursement rates for hospices and acute psychiatric hospitals shall be increased in accordance with increases under the federal Medicare program or as supported by their Medicare audited costs.

e. For the fiscal year beginning July 1, 2022, independent laboratories and rehabilitation agencies shall be reimbursed using the same methodology in effect on June 30, 2022.

f. (1) For the fiscal year beginning July 1, 2022, reimbursement rates for home health agencies shall continue to be based on the Medicare low utilization payment adjustment (LUPA) methodology with state geographic wage adjustments. The department shall continue to update the rates every two years to reflect the most recent Medicare LUPA rates.

(2) For the fiscal year beginning July 1, 2022, the department shall create a reimbursement rate structure that provides incentives to home health care providers located in rural areas and providing home health care to Medicaid members, within the $1,777,082 appropriated for this purpose. The rate structure shall include a telehealth component to incentivize

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the provision of necessary supervision for skilled care without requiring travel time. For the purposes of this subparagraph (2), "rural area" means an area that is not an Iowa core based statistical area as defined by the federal office of management and budget.

(3) For the fiscal year beginning July 1, 2022, rates for private duty nursing and personal care services under the early and periodic screening, diagnostic, and treatment program benefit shall be calculated based on the methodology in effect on June 30, 2022.

g. For the fiscal year beginning July 1, 2022, federally qualified health centers and rural health clinics shall receive

cost-based reimbursement for 100 percent of the reasonable costs for the provision of services to recipients of medical assistance.

h. For the fiscal year beginning July 1, 2022, the reimbursement rates for dental services shall remain at the rates in effect on June 30, 2022.

i. (1) For the fiscal year beginning July 1, 2022, reimbursement rates for non-state-owned psychiatric medical institutions for children shall be based on the reimbursement methodology in effect on June 30, 2022.

(2) As a condition of participation in the medical assistance program, enrolled providers shall accept the medical assistance reimbursement rate for any covered goods or services provided to recipients of medical assistance who are children under the custody of a psychiatric medical institution for children.

j. For the fiscal year beginning July 1, 2022, unless otherwise specified in this Act, all noninstitutional medical assistance provider reimbursement rates shall remain at the rates in effect on June 30, 2022, except for area education agencies, local education agencies, infant and toddler services providers, home and community-based services providers including consumer-directed attendant care providers under a

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section 1915(c) or 1915(i) waiver, targeted case management providers, and those providers whose rates are required to be determined pursuant to section 249A.20, or to meet federal mental health parity requirements.

k. Notwithstanding any provision to the contrary, for the fiscal year beginning July 1, 2022, the reimbursement rate for anesthesiologists shall remain at the rates in effect on June 30, 2022, and updated on January 1, 2023, to align with the most current Iowa Medicare anesthesia rate.

l. Notwithstanding section 249A.20, for the fiscal year beginning July 1, 2022, the average reimbursement rate for health care providers eligible for use of the federal Medicare resource-based relative value scale reimbursement methodology under section 249A.20 shall remain at the rate in effect on June 30, 2022; however, this rate shall not exceed the maximum level authorized by the federal government.

m. For the fiscal year beginning July 1, 2022, the reimbursement rate for residential care facilities shall not be less than the minimum payment level as established by the federal government to meet the federally mandated maintenance of effort requirement. The flat reimbursement rate for facilities electing not to file annual cost reports shall not be less than the minimum payment level as established by the federal government to meet the federally mandated maintenance of effort requirement.

n. (1) For the fiscal year beginning July 1, 2022, the

reimbursement rates for inpatient mental health services provided at hospitals shall remain at the rates in effect on June 30, 2022, subject to Medicaid program upper payment limit rules and adjusted as necessary to maintain expenditures within the amount appropriated to the department for this purpose for the fiscal year; and psychiatrists shall be reimbursed at the medical assistance program fee-for-service rate in effect on June 30, 2022.

(2) Notwithstanding any conflicting application of

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subparagraph (1), if 2022 Iowa Acts, House File 2546, is enacted, by January 1, 2023, the department of human services shall implement a tiered rate reimbursement methodology for psychiatric intensive inpatient care utilizing the tiered rate reimbursement methodology developed in accordance with that Act, subject to the limitations of the appropriation made for this purpose.

o. For the fiscal year beginning July 1, 2022, community mental health centers may choose to be reimbursed for the services provided to recipients of medical assistance through either of the following options:

(1) For 100 percent of the reasonable costs of the services.

(2) In accordance with the alternative reimbursement rate methodology approved by the department of human services in effect on June 30, 2022.

p. For the fiscal year beginning July 1, 2022, the reimbursement rate for providers of family planning services that are eligible to receive a 90 percent federal match shall remain at the rates in effect on June 30, 2022.

q. For the fiscal year beginning July 1, 2022, reimbursement rates for intermediate care facility for persons with an intellectual disability providers shall be increased over the rates in effect on June 30, 2022, within the $1,339,971 appropriated for this purpose. The entire rate increase shall be used for wages and associated costs specific to wages, benefits, and required withholding of direct support professionals and frontline management.

r. For the fiscal year beginning July 1, 2022, the reimbursement rates for emergency medical service providers shall remain at the rates in effect on June 30, 2022, or as approved by the centers for Medicare and Medicaid services of the United States department of health and human services.

s. For the fiscal year beginning July 1, 2022, reimbursement rates for substance-related disorder treatment programs licensed under section 125.13 shall remain at the rates in

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effect on June 30, 2022.

t. For the fiscal year beginning July 1, 2022, assertive

community treatment per diem rates shall remain at the rates in effect on June 30, 2022.

u. For the fiscal year beginning July 1, 2022, the reimbursement rate for family-centered services providers shall be established by contract.

v. For the fiscal year beginning July 1, 2022, the reimbursement rate for air ambulance services shall remain at the rate in effect on June 30, 2022.

w. For the fiscal year beginning July 1, 2022, all applied behavioral analysis services reimbursement rates shall be increased over the rates in effect on June 30, 2022, within the $385,000 appropriated for this purpose.

x. For the fiscal year beginning July 1, 2022, all behavioral health intervention services reimbursement rates shall be increased over the rates in effect on June 30, 2022, within the $1,277,082 appropriated for this purpose. The entire rate increase shall be used for wages and associated costs specific to wages, benefits, and required withholding of direct support professionals and frontline management.

2. For the fiscal year beginning July 1, 2022, the reimbursement rate for providers reimbursed under the in-home-related care program shall not be less than the minimum payment level as established by the federal government to meet the federally mandated maintenance of effort requirement.

3. Unless otherwise directed in this section, when the department's reimbursement methodology for any provider reimbursed in accordance with this section includes an inflation factor, this factor shall not exceed the amount by which the consumer price index for all urban consumers increased during the most recently ended calendar year.

4. Notwithstanding section 234.38, for the fiscal year beginning July 1, 2022, the foster family basic daily maintenance rate and the maximum adoption subsidy rate for

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children ages 0 through 5 years shall be $16.78, the rate for children ages 6 through 11 years shall be $17.45, the rate for children ages 12 through 15 years shall be $19.10, and the rate for children and young adults ages 16 and older shall be $19.35. For youth ages 18 to 23 who have exited foster care, the preparation for adult living program maintenance rate shall be up to $602.70 per month as calculated based on the age of the participant. The maximum payment for adoption subsidy nonrecurring expenses shall be limited to $500 and the disallowance of additional amounts for court costs and other related legal expenses implemented pursuant to 2010 Iowa Acts, chapter 1031, section 408, shall be continued.

5. For the fiscal year beginning July 1, 2022, the maximum reimbursement rates for social services providers under contract shall remain at the rates in effect on June 30, 2022, or the provider's actual and allowable cost plus inflation for

each service, whichever is less. However, if a new service or service provider is added after June 30, 2022, the initial reimbursement rate for the service or provider shall be based upon a weighted average of provider rates for similar services.

6. a. For the fiscal year beginning July 1, 2022, the reimbursement rates for resource family recruitment and retention contractors shall be established by contract.

b. For the fiscal year beginning July 1, 2022, the reimbursement rates for supervised apartment living foster care providers shall be established by contract.

7. For the fiscal year beginning July 1, 2022, the reimbursement rate for group foster care providers shall be the combined service and maintenance reimbursement rate established by contract.

8. The group foster care reimbursement rates paid for placement of children out of state shall be calculated according to the same rate-setting principles as those used for in-state providers, unless the director of human services or the director's designee determines that appropriate care cannot

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be provided within the state. The payment of the daily rate shall be based on the number of days in the calendar month in which service is provided.

9. a. For the fiscal year beginning July 1, 2022, the reimbursement rate paid for shelter care and the child welfare emergency services implemented to provide or prevent the need for shelter care shall be established by contract.

b. For the fiscal year beginning July 1, 2022, the combined service and maintenance components of the per day reimbursement rate paid for shelter care services shall be based on the financial and statistical report submitted to the department. The maximum per day reimbursement rate shall be the maximum per day reimbursement rate in effect on June 30, 2022, as increased within the $649,029 appropriated for this purpose. The department shall reimburse a shelter care provider at the provider's actual and allowable unit cost, plus inflation, not to exceed the maximum reimbursement rate.

10. For the fiscal year beginning July 1, 2022, the department shall calculate reimbursement rates for intermediate care facilities for persons with an intellectual disability at the 80th percentile. Beginning July 1, 2022, the rate calculation methodology shall utilize the consumer price index inflation factor applicable to the fiscal year beginning July 1, 2022.

11. Effective July 1, 2022, child care provider reimbursement rates shall remain at the rates in effect on June 30, 2022. The department shall set rates in a manner so as to provide incentives for a nonregistered provider to become registered by applying any increase only to registered and licensed providers.

12. The department may adopt emergency rules to implement this section.

Sec. 32. EMERGENCY RULES.

1. If necessary to comply with federal requirements including time frames, or if specifically authorized by a

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provision of this division of this Act, the department of human services or the mental health and disability services commission may adopt administrative rules under section 17A.4, subsection 3, and section 17A.5, subsection 2, paragraph "b", to implement the provisions of this division of this Act and the rules shall become effective immediately upon filing or on a later effective date specified in the rules, unless the effective date of the rules is delayed or the applicability of the rules is suspended by the administrative rules review committee. Any rules adopted in accordance with this section shall not take effect before the rules are reviewed by the administrative rules review committee. The delay authority provided to the administrative rules review committee under section 17A.8, subsections 9 and 10, shall be applicable to a delay imposed under this section, notwithstanding a provision in those subsections making them inapplicable to section 17A.5, subsection 2, paragraph "b". Any rules adopted in accordance with the provisions of this section shall also be published as a notice of intended action as provided in section 17A.4.

2. If during a fiscal year, the department of human services is adopting rules in accordance with this section or as otherwise directed or authorized by state law, and the rules will result in an expenditure increase beyond the amount anticipated in the budget process or if the expenditure was not addressed in the budget process for the fiscal year, the department shall notify the general assembly and the department of management concerning the rules and the expenditure increase. The notification shall be provided at least 30 calendar days prior to the date notice of the rules is submitted to the administrative rules coordinator and the administrative code editor.

Sec. 33. REPORTS. Unless otherwise provided, any reports or other information required to be compiled and submitted under this Act during the fiscal year beginning July 1, 2022, shall be submitted on or before the dates specified for submission

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of the reports or information.

Sec. 34. EFFECTIVE UPON ENACTMENT. The following provision of this division of this Act, being deemed of immediate importance, takes effect upon enactment:

The provision relating to section 232.141 and directing the state court administrator and the division administrator of

the department of human services division of child and family services to make the determination, by June 15, 2022, of the distribution of funds allocated for the payment of the expenses of court-ordered services provided to juveniles which are a charge upon the state.

DIVISION VI

HEALTH CARE ACCOUNTS AND FUNDS —— FY 2022–2023

Sec. 35. PHARMACEUTICAL SETTLEMENT ACCOUNT. There is appropriated from the pharmaceutical settlement account created in section 249A.33 to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for the purpose designated:

Notwithstanding any provision of law to the contrary, to supplement the appropriations made in this Act for health program operations under the medical assistance program for the fiscal year beginning July 1, 2022, and ending June 30, 2023:

..... $ 234,193

Sec. 36. QUALITY ASSURANCE TRUST FUND —— DEPARTMENT OF HUMAN SERVICES. Notwithstanding any provision to the contrary and subject to the availability of funds, there is appropriated from the quality assurance trust fund created in section 249L.4 to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, for the purposes designated:

To supplement the appropriation made in this Act from the general fund of the state to the department of human services for medical assistance for the same fiscal year:

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..... $ 56,305,139

Sec. 37. HOSPITAL HEALTH CARE ACCESS TRUST FUND —— DEPARTMENT OF HUMAN SERVICES. Notwithstanding any provision to the contrary and subject to the availability of funds, there is appropriated from the hospital health care access trust fund created in section 249M.4 to the department of human services for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amounts, or so much thereof as is necessary, for the purposes designated:

To supplement the appropriation made in this Act from the general fund of the state to the department of human services for medical assistance for the same fiscal year:

..... $ 33,920,554

Sec. 38. MEDICAL ASSISTANCE PROGRAM —— NONREVERSION FOR FY 2022–2023. Notwithstanding section 8.33, if moneys appropriated for purposes of the medical assistance program for the fiscal year beginning July 1, 2022, and ending June 30, 2023, from the general fund of the state, the quality assurance trust fund, and the hospital health care access trust fund, are in excess of actual expenditures for the medical assistance

program and remain unencumbered or unobligated at the close of the fiscal year, the excess moneys shall not revert but shall remain available for expenditure for the purposes of the medical assistance program until the close of the succeeding fiscal year.

DIVISION VII

DECATEGORIZATION CARRYOVER FUNDING

Sec. 39. DECATEGORIZATION CARRYOVER FUNDING FY 2020 —— TRANSFER TO MEDICAID PROGRAM. Notwithstanding section 232.188, subsection 5, paragraph "b", any state-appropriated moneys in the funding pool that remained unencumbered or unobligated at the close of the fiscal year beginning July 1, 2019, and were deemed carryover funding to remain available for the two succeeding fiscal years that still remain unencumbered or unobligated at the close of the fiscal year beginning July 1,

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2021, shall not revert but shall be transferred to the medical assistance program for the fiscal year beginning July 1, 2022.

Sec. 40. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 41. RETROACTIVE APPLICABILITY. This division of this Act applies retroactively to July 1, 2021.

DIVISION VIII

TRANSFER OF PROPERTY TAX RELIEF FUND BALANCE

Sec. 42. TRANSFER OF PROPERTY TAX RELIEF FUND BALANCE —— FY 2021–2022. Notwithstanding any provision to the contrary, any funds remaining in the property tax relief fund created in section 426B.1 at the close of the fiscal year beginning July 1, 2021, shall be transferred to the region incentive fund created in the mental health and disability services regional service fund pursuant to section 225C.7A.

Sec. 43. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION IX

PRIOR APPROPRIATIONS AND OTHER PROVISIONS

FAMILY INVESTMENT PROGRAM GENERAL FUND

Sec. 44. 2021 Iowa Acts, chapter 182, section 9, is amended by adding the following new subsection:

NEW SUBSECTION. 7. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for one-time purposes, and may be transferred to the appropriation in this division of this Act for general administration for technology purposes, until the close of the succeeding fiscal year.

CHILD AND FAMILY SERVICES

Sec. 45. 2021 Iowa Acts, chapter 182, section 19, is amended by adding the following new subsection:

NEW SUBSECTION. 24. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or

unobligated at the close of the fiscal year shall not revert

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but shall remain available for the purposes designated until the close of the succeeding fiscal year.

ADOPTION SUBSIDY

Sec. 46. 2021 Iowa Acts, chapter 182, section 20, is amended by adding the following new subsection:

NEW SUBSECTION. 4. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for the purposes designated until the close of the succeeding fiscal year.

FIELD OPERATIONS

Sec. 47. 2021 Iowa Acts, chapter 182, section 27, is amended by adding the following new subsection:

NEW SUBSECTION. 3. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for one-time expenditure purposes until the close of the succeeding fiscal year.

GENERAL ADMINISTRATION

Sec. 48. 2021 Iowa Acts, chapter 182, section 28, is amended by adding the following new subsection:

NEW SUBSECTION. 8. Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for one-time expenditure purposes until the close of the succeeding fiscal year.

Sec. 49. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION X

PUBLIC HEALTH EMERGENCY PROVISIONS COVID-19 REGULATIONS

Sec. 50. COVID-19 FEDERAL REGULATIONS. For the time period beginning on the effective date of this division of this Act, and ending June 30, 2023, notwithstanding state administrative rules to the contrary, to the extent federal regulations relating to the COVID-19 pandemic differ from state

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administrative rules, including applicable federal waivers, the federal regulations are controlling during the pendency of the federally declared state of emergency and for such period of time following the end of the federally declared state of emergency applicable to the respective federal regulations.

DIVISION XI

HEALTH AND HUMAN SERVICES REALIGNMENT

Sec. 51. TRANSITION OF DEPARTMENT OF HUMAN SERVICES AND DEPARTMENT OF PUBLIC HEALTH INTO DEPARTMENT OF HEALTH AND HUMAN SERVICES.

1. Definitions. For the purposes of this section:
a. "Department of health and human services" or "department" means the department of health and human services created under this section.
b. "Transition department" means the department of human services or the department of public health.
c. "Transition departments" means the department of human services and the department of public health.
d. "Transition period" means the period beginning July 1, 2022, and ending June 30, 2023.
2. Creation of department of health and human services —— transition period —— powers and duties. Notwithstanding any conflicting provision of law to the contrary, there is created a department of health and human services. During the transition period, the department of health and human services shall have and may exercise all of the policymaking functions, regulatory and enforcement powers, rights, duties, and responsibilities of the department of human services and the department of public health as prescribed by law or rule in effect on July 1, 2022, including but not limited to those relating to:
a. All obligations and contracts of a transition department, including obligations and contracts related to a grant program.
b. All property and records in the custody of a transition

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department.
c. All funds appropriated to a transition department by the general assembly and all state, federal, and other funds for which expenditure by a transition department is authorized.
d. Complaints, investigations, contested cases, causes of action, and statutes of limitations involving a transition department.
(1) All complaints, investigations, contested cases, or a remand of an action by a reviewing court pending before a transition department or an authorized person of a transition department shall continue without change in status before the department and shall be governed by the laws and rules applicable to the complaint, investigation, contested case, or remand action or proceeding in effect on July 1, 2022.
(2) Any cause of action or statute of limitation relating to a transition department shall not be affected as a result of the transition and such cause of action or statute of limitation shall apply to the department.
e. Rules, policies, and forms. All rules, policies, and forms adopted by or on behalf of a transition department shall become rules, policies, and forms of the department and shall remain in effect unless altered by the department.
f. Licenses, permits, and certifications. All licenses, permits, and certifications issued by a transition department

shall continue in effect as a license, permit, or certification of the department in accordance with the law or rule governing the license, permit, or certification in effect on July 1, 2022, until the license, permit, or certification expires, is suspended or revoked, or otherwise becomes invalid by the terms of such law or rule.

g. References to a department or director. All references to the department of public health or the department of human services in law or in rule shall be interpreted to mean the department of health and human services, and all references to the director of public health or the director of human services

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shall be interpreted to mean the director of the department of health and human services.

h. Departmental structure.

(1) Any transition department, transition department subunit, or transition department body created or established by law and in existence on July 1, 2022, shall continue in full force and effect and shall not be permanently abolished, merged, or otherwise altered until amended, repealed, or supplemented by action of the general assembly.

(2) This paragraph shall not prohibit a transition department, transition department subunit, or transition department body created or established by law in existence on July 1, 2022, from sharing or coordinating responsibilities or functions under their respective purviews nor prohibit the director from temporarily integrating such departments, subunits, or bodies or the responsibilities or functions under their respective purviews in furtherance of the transition plan during the transition period.

3. Transition period leadership. During the transition period, the director of human services shall continue to act as the director of human services, shall assume the duties of the director of public health, shall act as the director of the department of health and human services, and may thereby exercise any policymaking functions, regulatory and enforcement powers, rights, duties, and responsibilities of the director of human services and the director of public health including those duties prescribed by law for the department of human services or the department of public health in effect on July 1, 2022. Nothwithstanding any provision to the contrary, the director of the department of health and human services shall also be vested with administrative authority to direct transition department employees with regard to the implementation of statutory directives for the transition departments or the boards, commissions, or other bodies administratively supported by the transition departments,

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including boards administering the requirements of chapter 272C.

4. Federal authorization and effective date of authorizations. If a transition department or the department determines that a waiver or authorization from the federal government is necessary to administer any provision of this section, the department shall request the waiver or authorization, and notwithstanding any other effective date to the contrary, the provision shall take effect only upon receipt of federal approval.

5. Initial written transition plan.

a. On or before September 30, 2022, the transition departments or department shall publish on their respective internet sites an initial written transition plan for merging the functions of the transition departments into the department of health and human services effective July 1, 2023, in order to do all of the following:

(1) More efficiently and effectively manage health and human services programs that are the responsibility of the state.

(2) Establish a health and human services policy for the state.

(3) Promote health and the quality of life in the health and human services field.

b. The transition plan shall describe, at a minimum, all of the following:

(1) The tasks that require completion before July 1, 2023, including a description of how the transition departments shall solicit comment from stakeholders, including employees of the transition departments, clients and partners of the transition departments, members of the public, and members of the general assembly.

(2) The proposed organizational structure of the department, at a minimum, including the division level of the table of organization. Any personnel in the state merit

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system of employment who are mandatorily transferred due to the transition shall be so transferred without any loss in salary, benefits, or accrued years of service.

(3) Proposed changes to any transition department boards, commissions, committees, councils, or other bodies and their functions.

(4) Office space and infrastructure requirements related to the transition.

(5) Any work site location changes for transitioning employees.

(6) The transition of service delivery sites.

(7) Procedures for the transfer and reconciliation of

budgeting and funding between the transition departments and the department.

(8) The transition of technology services of the transition departments to the department.

(9) Any additional known tasks that may require completion after the transition on July 1, 2023.

c. The written transition plan published under paragraph "b" shall:

(1) Include a detailed timeline for the completion of the tasks described.

(2) Be updated quarterly during the remainder of the transition period.

(3) Describe how information will be provided to clients of the transition departments and the department regarding any changes in service delivery.

(4) Describe how the transition to the department will be funded, including how expenses associated with the transition will be managed; how funding for services provided by the transition departments will be managed to ensure provision of services by the transition departments and the department without interruption; and how federal funds will be used by or transferred between the transition departments and the department to ensure provision of services by the transition

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departments and the department without interruption.

6. Statutory and administrative rule updates.

a. Legislative changes required to implement the transition. Additional legislation is necessary to fully implement the transition. The director of the department of health and human services shall, in compliance with section 2.16, prepare draft legislation for submission to the legislative services agency, as necessary, for consideration by the general assembly during the 2023 legislative session, to implement the transition effective July 1, 2023. Notwithstanding any provision to the contrary in section 2.16, the draft legislation shall be submitted to the legislative services agency by October 1, 2022.

b. Update of administrative code required by the transition. In updating references and the format in the Iowa administrative code, in order to correspond to the transferring of duties of the transition departments, the administrative rules coordinator and the administrative rules review committee, in consultation with the administrative code editor, shall collectively develop a schedule for the necessary updating of the Iowa administrative code.

DIVISION XII

NON-STATE GOVERNMENT-OWNED NURSING FACILITY QUALITY OF CARE RATE ADD-ON PROGRAM

Sec. 52. Section 249L.2, subsections 6 and 7, Code 2022, are amended by striking the subsections.

Sec. 53. Section 249L.2, subsection 8, Code 2022, is amended to read as follows:

8. *"Nursing facility"* means a licensed nursing facility as defined in section 135C.1 that is a freestanding facility or a nursing facility operated by a hospital licensed pursuant to chapter 135B, but does not include a distinct-part skilled nursing unit or a swing-bed unit operated by a hospital, or a nursing facility owned by the state or federal government or other governmental unit. ~~*"Nursing facility"* includes a~~

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~~non-state government-owned nursing facility if the nursing facility participates in the non-state government-owned nursing facility quality of care rate add-on program.~~

Sec. 54. REPEAL. 2019 Iowa Acts, chapter 85, sections 103, 104, and 108, are repealed.

Sec. 55. REPEAL. 2020 Iowa Acts, chapter 1063, section 390, is repealed.

DIVISION XIII

HEARING AIDS AND AUDIOLOGIC SERVICES FUNDING PROGRAM —— FY 2021–2022 NONREVERSION

Sec. 56. 2021 Iowa Acts, chapter 182, section 3, subsection 2, paragraph e, is amended to read as follows:

e. Of the funds appropriated in this subsection, $156,000 shall be used to provide audiological services and hearing aids for children. Notwithstanding section 8.33, moneys appropriated in this paragraph that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year. The amount that does not revert shall be reported by the department to the general assembly.

Sec. 57. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION XIV

ADMISSION OR TRANSFER OF PERSONS WITH A DIAGNOSIS OF AN INTELLECTUAL DISABILITY TO A STATE MENTAL HEALTH INSTITUTE

Sec. 58. Section 4.1, subsection 9A, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

9A. *"Intellectual disability"* means a diagnosis of intellectual disability or intellectual developmental disorder, global developmental delay, or unspecified intellectual disability or intellectual developmental disorder which diagnosis shall be made only when the onset of the person's condition was during the developmental period and based on an

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assessment of the person's intellectual functioning and level of adaptive skills. A diagnosis of intellectual disability

shall be made by a licensed psychologist or psychiatrist who is professionally trained to administer the tests required to assess intellectual functioning and to evaluate a person's adaptive skills and shall be made in accordance with the criteria provided in the current version of the diagnostic and statistical manual of mental disorders published by the American psychiatric association.

Sec. 59. Section 226.8, Code 2022, is amended to read as follows:

226.8 Persons with a diagnosis of an intellectual disability ~~not receivable —— exception~~ —— admission or transfer to state mental health institute.

1. ~~A~~ Admission or transfer pursuant to section 222.7 to a state mental health institute of a person ~~who has~~ with a diagnosis of an intellectual disability, as defined in section 4.1, shall ~~not be admitted, or transferred pursuant to section 222.7, to a state mental health institute unless a professional diagnostic evaluation indicates that such~~ only occur under the following conditions:

a. If all of the following requirements are met:

(1) The person has been determined by the state mental health institute to meet admission criteria for inpatient psychiatric care.

(2) The state mental health institute has determined the person will benefit from psychiatric treatment or from some other specific program available at the state mental health institute ~~to which it is proposed to admit or transfer the person~~.

(3) There is sufficient capacity available at the state mental health institute to support the needs of the person.

b. If determined appropriate for the person at the sole discretion of the director of human services, the administrator, or the director's or administrator's designee.

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2. Charges for the care of any person with a diagnosis of an intellectual disability admitted to a state mental health institute shall be made by the institute in the manner provided by chapter 230, but the liability of any other person to any ~~county~~ mental health and disability services region for the cost of care of such person with a diagnosis of an intellectual disability shall be as prescribed by section 222.78.

DIVISION XV

HEALTH-RELATED DATA

Sec. 60. Section 11.41, subsection 3, Code 2022, is amended to read as follows:

3. If the information, records, instrumentalities, and properties sought by the auditor of state are required by law to be kept confidential, the auditor of state shall have access to the information, records, instrumentalities, and properties, but shall maintain the confidentiality of all such information

and is subject to the same penalties as the lawful custodian of the information for dissemination of the information. However, the auditor of state shall not have access to the income tax returns of individuals or to an individual's name or residential address from a reportable disease report under section 139A.3.

Sec. 61. Section 135.166, subsection 2, Code 2022, is amended to read as follows:

2. Unless otherwise authorized or required by state or federal law, data collected under this section shall not include the social security number or name of the individual subject of the data.

Sec. 62. Section 139A.3, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 1A. A state or local agency employee or agent shall not have access to personally identifiable information included in a reportable disease report provided to or maintained by the department, a local board, or a local department, unless the employee or agent has completed data

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confidentiality training.

DIVISION XVI

MEDICAID AND HAWK-I PROGRAMS —— INSURANCE PROVISIONS APPLICABILITY

Sec. 63. NEW SECTION. **505.34 Medical assistance and hawk-i programs —— applicability of subtitle.**

1. The medical assistance program under chapter 249A and the healthy and well kids in Iowa (hawk-i) program under chapter 514I shall not be subject to this subtitle unless otherwise provided by law.

2. A managed care organization acting pursuant to a contract with the department of human services to administer the medical assistance program under chapter 249A, or the healthy and well kids in the Iowa (hawk-i) program under chapter 514I, shall not be subject to this subtitle unless otherwise provided by law.

Sec. 64. Section 514B.32, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 5. The provisions of this chapter shall be applicable to a managed care organization acting pursuant to a contract with the department of human services to administer the medical assistance program under chapter 249A, or the healthy and well kids in Iowa (hawk-i) program under chapter 514I, only with respect to licensure and solvency standards as evidenced by the managed care organization obtaining and maintaining a certificate of authority, and maintaining compliance with the solvency standards set forth in this chapter.

Sec. 65. Section 514I.2, subsection 9, Code 2022, is amended to read as follows:

9. *"Participating insurer"* means any of the following:

a. An entity licensed by the division of insurance of the department of commerce to provide health insurance in Iowa that has contracted with the department to provide health insurance coverage to eligible children under this chapter.

b. A managed care organization acting pursuant to a contract

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with the department of human services to administer the hawk-i program.

Sec. 66. Section 514I.5, subsection 9, Code 2022, is amended to read as follows:

9. The hawk-i board shall monitor the capacity of Medicaid managed care organizations acting pursuant to a contract with the department to administer the hawk-i program to specifically and appropriately address the unique needs of children and children's health delivery.

DIVISION XVII

MORE OPTIONS FOR MATERNAL SUPPORT PROGRAM —— MEDICAID POSTPARTUM COVERAGE REPORT

Sec. 67. NEW SECTION. **217.41C More options for maternal support program.**

1. *a.* The department of human services shall create the more options for maternal support program, a statewide program to promote healthy pregnancies and childbirth through nonprofit organizations that provide pregnancy support services.

b. The more options for maternal support program is designed to do all of the following:

(1) Provide an approach and personalized support to pregnant women to provide stabilization to families.

(2) Promote improved pregnancy outcomes, including reducing abortions, by helping women practice sound health-related behaviors and improve prenatal nutrition.

(3) Improve child health and development by helping parents provide responsible and competent care for their children.

(4) Improve family economic self-sufficiency by linking parents to services that address individual economic and social needs.

c. For the purposes of this section, *"pregnancy support services"* means those nonmedical services that promote childbirth by providing information, counseling, and support services that assist pregnant women or women who believe they may be pregnant to choose childbirth and to make informed

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decisions regarding the choice of adoption or parenting with respect to their children.

2. The program may provide and support all of the following pregnancy support services:

a. Nutritional services and education.

b. Housing, education, and employment assistance during

pregnancy and up to one year following a birth.

c. Adoption education, planning, and services.

d. Child care assistance if necessary for a pregnant woman to receive pregnancy support services.

e. Parenting education and support services for up to one year following a child's birth.

f. Material items which are supportive of pregnancy and childbirth including but not limited to cribs, car seats, clothing, diapers, formula, or other safety devices.

g. Information regarding health care benefits, including but not limited to available Medicaid coverage for pregnancy care and health care coverage for a child following birth.

h. A call center for information or to schedule appointments.

i. Medical information and referrals for medical care, including but not limited to pregnancy tests, sexually transmitted infection tests, other health screenings, ultrasound services, prenatal care, and birth classes and planning.

j. Counseling, mentoring, educational information, and classes relating to pregnancy, parenting, adoption, life skills, and employment readiness.

3. The department of human services shall issue a request for proposals to select a program administrator for the program. A program administrator shall meet all of the following requirements:

a. Be a nonprofit entity incorporated in this state with a tax-exempt status pursuant to section 501(c)(3) of the Internal Revenue Code.

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b. Have systems and processes in place that have been used for at least three years to successfully manage a statewide network of subcontractors providing pregnancy support services.

c. Have a commitment to promoting healthy pregnancies and childbirth instead of abortion as a fundamental part of the program administrator's mission.

d. Create and maintain a network of subcontractors to provide pregnancy support services.

e. Maintain records for each subcontractor.

f. Monitor compliance with the terms and conditions of a subcontractor.

4. A subcontractor providing pregnancy support services under the program shall meet all of the following requirements:

a. Be a nonprofit organization incorporated in this state with a tax-exempt status pursuant to section 501(c)(3) of the Internal Revenue Code.

b. Have a minimum of one year of operational experience in either providing core pregnancy support services or managing a network of providers of pregnancy support services as a subcontractor.

c. Have a primary mission of promoting healthy pregnancies and childbirth instead of abortion.

d. Have a system of financial accountability consistent with generally accepted accounting principles, including an annual budget.

e. Have a board that hires and supervises a director who manages the organization's operations.

f. Offer, at a minimum, counseling for women who are or may be experiencing unplanned pregnancies.

g. Provide confidential and free pregnancy support and other program services.

h. Provide each pregnant woman with accurate information on the developmental characteristics of unborn children and babies.

i. Ensure that program funds are not used to provide

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or refer pregnant women for terminations of pregnancy, or to encourage or affirmatively counsel a pregnant woman to terminate a pregnancy unless the pregnant woman's attending physician confirms the termination of pregnancy is medically necessary to prevent the pregnant woman's death.

j. Maintain confidentiality of all data, files, and records related to the program services provided to persons accessing program services in compliance with state and federal laws.

5. The department of human services shall publish the program administrator and subcontractor criteria on the department's internet site.

6. The department of human services shall adopt rules pursuant to chapter 17A to administer the program, and shall provide technical assistance to the program administrator, monitor the program administrator for adherence to state and federal requirements, and collect and maintain program data.

7. Beginning October 1, 2023, and on or before October 1 annually thereafter, the department of human services shall submit to the general assembly the following program information relative to the prior fiscal year:

a. The total number of subcontractors by geographical region and the total number of unduplicated clients served by each subcontractor by gender and age.

b. A description of outreach efforts by the administrator, subcontractors, and the department.

c. Total program expenditures.

d. The amounts attributable to the administrator contract and to each contract with the subcontractors.

e. The outcomes based on outcome measures included in the contracts with the administrator and each subcontractor.

Sec. 68. MEDICAID POSTPARTUM COVERAGE —— REPORT. The department of human services shall review data regarding the postpartum coverage available to recipients of

pregnancy-related Medicaid coverage and shall submit a report to the general assembly by December 15, 2022, that includes

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the number of recipients of postpartum services, the services utilized, and the costs of such services for the period beginning January 1, 2020, through June 30, 2022, as well as information regarding the number of states that have expanded Medicaid postpartum coverage beyond sixty days, such states' postpartum coverage expansion period, the amount of cost savings realized by the states that expanded coverage to twelve months postpartum, and whether a state expanded coverage pursuant to a Medicaid waiver or a state plan amendment.

DIVISION XVIII

MENTAL HEALTH AND DISABILITY SERVICES REGIONS

Sec. 69. Section 331.389, Code 2022, is amended to read as follows:

331.389 Mental health and disability services regions —— criteria.

1. ~~a.~~ Local access to mental health and disability services ~~for adults~~ shall be provided ~~either~~ by ~~counties organized into~~ a regional service system ~~or by individual counties that are exempted as provided by this subsection. The department of human services shall encourage counties to enter into a regional system when the regional approach is likely to increase the availability of services to residents of the state who need the services~~ comprised of mental health and disability services regions approved by the director of the department. It is the intent of the general assembly that the ~~adult~~ residents of this state should have access to needed mental health and disability services regardless of the location of their residence.

~~*b. If a county has been exempted prior to July 1, 2014, from the requirement to enter into a regional service system, the county and the county's board of supervisors shall fulfill all requirements and be eligible as a region under this chapter and chapters 222, 225, 225C, 226, 227, 229, and 230 for a regional service system, regional service system management plan, regional governing board, and regional administrator, and any*~~

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~~other provisions applicable to a region of counties providing local mental health and disability services. Additionally, a county exempted under this subsection shall be considered a region for purposes of chapter 426B.~~

2. The director of human services shall approve ~~any~~ a region meeting the requirements of subsection 3.

3. Each county in the state shall participate in an approved mental health and disability services region~~, unless exempted pursuant to subsection 1~~. A region exempted from

the requirement to form a multicounty region prior to July 1, 2014, shall adhere to and fulfill all of the requirements of a multicounty region. A mental health and disability services region shall comply with all of the following requirements, as applicable:

a. The counties comprising ~~the~~ a multicounty region are contiguous.

b. ~~The~~ A multicounty region has at least three counties.

c. The region ~~has the capacity to provide~~ provides required core services and ~~perform~~ performs all other required functions.

d. At least one community mental health center or a federally qualified health center with providers qualified to provide psychiatric services, either directly or through contractual arrangements with mental health professionals qualified to provide psychiatric services, is located within the region, has the capacity to provide outpatient services for the region, and is ~~either~~ under contract with the region ~~or has provided documentation of intent to contract with the region to provide the services~~.

e. A hospital with an inpatient psychiatric unit or a state mental health institute is located in or within reasonably close proximity to the region, has the capability to provide inpatient services for the region, and is ~~either~~ under contract with the region ~~or has provided documentation of intent to contract with the region to provide the services~~.

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f. The regional administrator structure ~~proposed for or~~ utilized by the region ~~has~~ demonstrates clear lines of accountability and the regional administrator functions as a lead agency utilizing ~~shared county staff or other~~ appropriate means of limiting administrative costs.

4. ~~County formation of a~~ A mental health and disability services region is subject to all of the following:

a. ~~On or before April 1, 2013, counties voluntarily participating in a~~ The approved region ~~have complied~~ shall comply with all of the following ~~formation~~ criteria:

(1) ~~The~~ Any counties ~~forming~~ comprising the region ~~have been~~ shall be identified ~~and the board of supervisors of the counties have approved a written letter of intent to join together to form the region~~.

(2) (a) The ~~proposed~~ region complies with the requirements in subsection 3.

~~(3)~~ (b) The department ~~provides~~ shall provide written notice to the ~~boards of supervisors of the counties identified for the region in the letter of intent~~ a region's regional administrator that the ~~counties have complied~~ region is in compliance with the requirements in subsection 3.

b. Upon the department's determination that a region is in compliance with the ~~provisions of paragraph "a"~~ requirements of

subsection 3, the ~~participating counties are~~ region shall be eligible for technical assistance provided by the department.

c. ~~The department shall work with any county that has not agreed to be part of a region in accordance with paragraph "a" and with the regions forming around the county to resolve issues preventing the county from joining a region.~~ In addition to the regional governance agreement requirements in section 331.392, the department may compel the county and region to engage in mediation for resolution of a dispute. The costs incurred for mediation shall be paid by the county and the region in dispute according to their governance agreement. ~~A county that has not agreed to be part of a~~

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~~region in accordance with paragraph "a" shall be assigned by the department to a region, unless exempted prior to July 1, 2014. A county assigned by the department to a region shall be included in that region's amended governance agreement pursuant to this section as of an effective date designated by the department. The assigned county and region shall operate according to the region's existing governance agreement until the regional governance agreement is amended.~~

d. (1) ~~On or before December 31, 2013, all counties shall be part of a region that is in compliance with the provisions of paragraph "a" other than meeting the April 1, 2013, date.~~ If the department withdraws approval for a region, or if a county is not approved by the department as a single county region and otherwise not assigned to a region, the department may assign the county or counties no longer assigned to an approved region to an approved region.

(2) An approved region that has a county assigned to the region pursuant to subparagraph (1) shall amend the region's existing governance agreement to include the assigned county. The amended governance agreement shall include an effective date designated by the department.

(3) A county assigned to a region by the department pursuant to subparagraph (1) shall operate according to the governance agreement in existence at the time the county was assigned to the region until the region's amended governance agreement created pursuant to subparagraph (2) becomes effective.

e. ~~On or before June 30, 2014, unless exempted prior to July 1, 2014, all counties~~ A region shall be in compliance with all of the following ~~mental health and disability services region implementation~~ criteria:

(1) The board of supervisors of each county participating in ~~the~~ a multicounty region has voted to approve a chapter 28E agreement.

(2) The duly authorized representatives of all the counties participating in ~~the~~ a multicounty region have signed the

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chapter 28E agreement that is in compliance with section 331.390.

(3) The ~~county board of supervisors' or supervisors' designee~~ members ~~and other members~~ of the region's governing board have been appointed in accordance with section 331.390.

(4) Executive staff for the region's regional administrator have been identified ~~or engaged~~.

(5) ~~An initial draft of a~~ A regional service management ~~transition~~ plan has been developed which identifies ~~the steps to be taken by the region to do~~ all of the following:

(a) ~~Designate local~~ Local access points for the disability services administered by the region.

(b) ~~Designate the~~ The region's targeted case manager providers funded by the medical assistance program.

(c) ~~Identify the~~ The service provider network for the region.

(d) ~~Define the~~ The service access and service authorization process ~~to be~~ utilized ~~for~~ by the region.

(e) ~~Identify the~~ The information technology and data management capacity ~~to be~~ employed to support regional functions.

(f) ~~Establish business~~ Business functions, funds accounting procedures, and other administrative processes.

(g) ~~Comply with data~~ Data reporting and other information technology requirements identified by the department.

(6) The department has approved the region's chapter 28E agreement ~~and the initial draft of the regional management transition plan~~ unless the county was exempted from the requirements of subparagraph (1) prior to July 1, 2014.

(7) The department has approved the region's regional management plan.

~~*f.* If the department, in consultation with the state commission, determines that a region is in substantial compliance with the implementation criteria in paragraph "e" and has sufficient operating capacity to begin operations, the~~

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~~region may commence partial or full operations prior to July 2014.~~

5. *a.* If the department determines that a region ~~or an exempted county~~ is not adequately fulfilling the requirements under this chapter for a regional service system, the department shall address the region ~~or county~~ in the following order:

(1) Require compliance with a corrective action plan.

(2) Reduce the amount of the annual state funding provided for the regional service system ~~or exempted county~~, including amounts received under section 225C.7A, not to exceed fifteen percent of the amount.

(3) Withdraw approval for the region ~~or for the county exemption, as applicable~~.

b. The department shall rely on all information available, including annual audits submitted under section 331.391, regional governance agreements submitted under section 331.392, and annual service and budget plans submitted under section 331.393 in determining whether a region ~~or an exempted county~~ is adequately fulfilling the requirements for a regional service system. The department may request and review financial documents, contracts, and other audits, and may perform on-site reviews and interviews to gather information.

Sec. 70. Section 331.390, subsection 1, Code 2022, is amended to read as follows:

1. *a.* The counties comprising a mental health and disability services region shall enter into an agreement under chapter 28E to form a regional administrator under the control of a governing board to function on behalf of those counties.

b. A region exempted from the requirement to enter into a chapter 28E agreement prior to July 1, 2014, shall submit written documents demonstrating that the region has formed a regional administrator under the control of a governing board to function on behalf of that region and otherwise comply with the requirements of this section.

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Sec. 71. Section 331.391, subsection 1, Code 2022, is amended to read as follows:

1. The funding under the control of the governing board shall be maintained in a combined account. A county exempted ~~under section 331.389, subsection 1~~ from joining a multicounty region prior to July 1, 2014, shall maintain a county mental health and disability services fund for the deposit of funding received under section 225C.7A and appropriations specifically authorized to be made from the county mental health and disability services fund shall not be made from any other fund of the county. A county mental health and disability services fund established by an exempt county, to the extent feasible, shall be considered to be the same as a region combined account and shall be subject to the same requirements as a region's combined account.

Sec. 72. Section 331.392, subsection 1, Code 2022, is amended to read as follows:

1. *a.* In addition to compliance with the applicable provisions of chapter 28E, the chapter 28E agreement entered into by the counties comprising a mental health and disability services region in forming the regional administrator to function on behalf of the counties shall comply with the requirements of this section.

b. Documents submitted by a region exempted from the requirement to enter into a chapter 28E agreement prior to July 1, 2014, pursuant to section 331.390, subsection 1, paragraph

"b", shall also demonstrate compliance with the requirements of this section.

Sec. 73. Section 331.393, subsection 1, Code 2022, is amended to read as follows:

1. *a.* The mental health and disability services provided by counties operating as a region shall be delivered in accordance with a regional service system management plan approved by the region's governing board and implemented by the regional administrator in accordance with this section. The

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requirements for a regional service system management plan and plan format shall be specified in rule adopted by the state commission pursuant to a recommendation made by the department. A regional management plan shall include an annual service and budget plan, a policies and procedures manual, and an annual report. ~~Each region's initial plan shall be submitted to the department by April 1, 2014.~~

b. A region, regardless of whether the region is a single county or multicounty region, shall comply with all requirements of this section.

Sec. 74. Section 331.393, subsection 6, Code 2022, is amended by striking the subsection.

Sec. 75. Section 331.910, subsection 2, paragraph d, Code 2022, is amended to read as follows:

d. "Region" means a mental health and disability services region formed in accordance with section 331.389 ~~or a county that has been exempted by the director of human services from being required to be a part of a mental health and disability services region in accordance with section 331.389~~.

DIVISION XIX

HEALTH CARRIERS —— TELEHEALTH

Sec. 76. Section 514C.34, subsection 3, Code 2022, is amended to read as follows:

3. *a.* Health care services that are delivered by telehealth must be appropriate and delivered in accordance with applicable law and generally accepted health care practices and standards prevailing at the time the health care services are provided, including all rules adopted by the appropriate professional licensing board, pursuant to chapter 147, having oversight of the health care professional providing the health care services.

b. A health carrier shall not exclude a health care professional who provides services for mental health conditions, illnesses, injuries, or diseases and who is physically located out-of-state from participating as a

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provider, via telehealth, under a policy, plan, or contract offered by the health carrier in the state if all of the

following requirements are met:

(1) The health care professional is licensed in this state by the appropriate professional licensing board and is able to deliver health care services for mental health conditions, illnesses, injuries, or diseases via telehealth in compliance with paragraph *"a"*.

(2) The health care professional is able to satisfy the same criteria that the health carrier uses to qualify a health care professional who is located in the state, and who holds the same license as the out-of-state professional, to participate as a provider, via telehealth, under a policy, plan, or contract offered by the health carrier in the state.

Sec. 77. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 78. APPLICABILITY. This division of this Act applies to health carriers that deliver, issue for delivery, continue, or renew a policy, contract, or plan in this state on or after the effective date of this Act.

DIVISION XX

NURSING FACILITY CONSTRUCTION OR EXPANSION RELIEF

Sec. 79. Section 249K.2, subsection 4, Code 2022, is amended to read as follows:

4. *"Major renovations"* means construction or facility improvements to a nursing facility in which the total amount expended exceeds ~~one million five~~ seven hundred fifty thousand dollars.

Sec. 80. Section 249K.5, subsection 2, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *c.* The nursing facility for which relief or an exception is requested is proposing replacement or enhancement of an HVAC, as defined in section 105.2, system for improved infection control.

Sec. 81. ADMINISTRATIVE RULES —— ADOPTION AND

AMENDMENT. The department of human services shall adopt or amend rules pursuant to chapter 17A to administer this division of this Act. Specifically, the department shall amend rules relating to nursing facility additional requirements for all requests for the capital cost per diem instant relief add-on and enhanced nondirect care rate component limit to provide that with regard to the additional requirements a nursing facility must meet, the facility has Medicaid utilization at or above forty percent for the two-month period before the request for additional reimbursement is submitted. Medicaid utilization for this purpose is calculated as total nursing facility Medicaid patient days divided by total in-house patient days as reported on the facility's most current financial and statistical report.

DIVISION XXI

PSYCHIATRY RESIDENCY PROGRAM

Sec. 82. NEW SECTION. **135.180 State-funded psychiatry residency program —— fund —— appropriations.**

1. The university of Iowa hospitals and clinics shall administer a state-funded psychiatry residency program in cooperation with the state mental health institutes at Independence and Cherokee, the state resource center at Woodward, the state training school at Eldora, and the Iowa medical and classification center at Oakdale. The university of Iowa hospitals and clinics shall expand the psychiatry residency program to provide additional residency positions by providing financial support for residency positions which are in excess of the federal residency cap established by the federal Balanced Budget Act of 1997, Pub. L. No. 105-33. Participating residents shall complete a portion of their psychiatry training at one of the state mental health institutes, the state resource center, the state training school, or the Iowa medical and classification center at Oakdale. For accreditation-required clinical experiences not available at the state mental health institutes, the state

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resource center, the state training school, or the Iowa medical and classification center at Oakdale, the psychiatry residency program and its residents may utilize clinical rotations at the university of Iowa hospitals and clinics and its affiliates across the state.

2. The university of Iowa hospitals and clinics shall apply to the accreditation council for graduate medical education for approval of twelve additional residency positions for each class of residents and the psychiatry residency program shall award the total number of residency positions approved for each class of residents. Preference in the awarding of residency positions shall be given to candidates who are residents of Iowa, attended and earned an undergraduate degree from an Iowa college or university, or attended and earned a medical degree from a medical school in Iowa.

3. A psychiatry residency program fund is created in the state treasury consisting of the moneys appropriated or credited to the fund by law. Notwithstanding section 8.33, moneys in the fund at the end of each fiscal year shall not revert to any other fund but shall remain in the psychiatry residency program fund for use in subsequent fiscal years. Moneys in the fund are appropriated to the university of Iowa hospitals and clinics to be used for the purposes of the program. For the fiscal years beginning on or after July 1, 2023, there is appropriated from the general fund of the state to the psychiatry residency program fund one hundred thousand dollars for each residency position approved and awarded under the program.>

MARK COSTELLO

S–5156

Amend the amendment, S–5154, to House File 2575, as amended, passed, and reprinted by the House, as follows:

1. Page 19, line 25, by striking <5.50> and inserting <7.00>

2. Page 30, after line 34 by inserting:

<DIVISION ___

FY 2021–2022 APPROPRIATION —— COOPERATIVE EXTENSION SERVICE IN AGRICULTURE AND HOME ECONOMICS

Sec. ___. 2021 Iowa Acts, chapter 170, section 10, subsection 3, paragraph c, is amended to read as follows:

c. Cooperative extension service in agriculture and home economics

For the cooperative extension service in agriculture and home economics salaries, support, maintenance, and miscellaneous purposes, and for not more than the following full-time equivalent positions:

..... $ 18,157,366

..... FTEs 385.34

(1) From the moneys appropriated in this lettered paragraph, $150,000 shall be used for the costs incurred by the Iowa agricultural extension association as host of the 2023 national meeting of the national association of county agricultural agents.

(2) Notwithstanding section 8.33, if moneys appropriated in this lettered paragraph remain unencumbered or unobligated at the close of the fiscal year, an amount of not more than $150,000 shall not revert but shall remain available until the close of the fiscal year that begins July 1, 2023, for costs incurred by the Iowa agricultural extension association as host of the 2023 national meeting of the national association of county agricultural agents.

Sec. ___. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.>

3. By renumbering as necessary.

CHRIS COURNOYER

S–5157

Amend House File 2080, as amended, passed, and reprinted by the House, as follows:

1. Page 1, line 11, after <examiners,> by inserting <school resource officer,>

2. Page 1, line 29, after <examiners;> by inserting <a school resource officer;>

3. Page 2, after line 15 by inserting:

<Sec. ___. Section 257.11, subsection 5, paragraph a, subparagraph (2), Code 2022, is amended by adding the following new subparagraph division:

NEW SUBPARAGRAPH DIVISION. (0b) *"School resource officer"* means the same as defined in 34 U.S.C. §10389.>

4. Title page, by striking line 3 and inserting <school resource officer, superintendent management, and special education director,>

5. By renumbering as necessary.

CHRIS COURNOYER

S–5158

Amend Senate File 2231 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 505.26, subsection 1, paragraph b, Code 2022, is amended to read as follows:

b. "Pharmacy benefits manager" means the same as defined in section ~~510B.1~~ 510C.1.

Sec. 2. Section 507B.4, subsection 3, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *t. Pharmacy benefits managers.* Any violation of chapter 510B by a pharmacy benefits manager.

Sec. 3. Section 510B.1, Code 2022, is amended by striking the section and inserting in lieu thereof the following:

510B.1 Definitions.

As used in this chapter, unless the context otherwise requires:

1. *"Clean claim"* means a claim that has no defect or impropriety, including a lack of any required substantiating documentation, or other circumstances requiring special treatment, that prevents timely payment from being made on the claim.

2. *"Commissioner*" means the commissioner of insurance.

3. *"Cost-sharing"* means any coverage limit, copayment, coinsurance, deductible, or other out-of-pocket cost obligation imposed by a health benefit plan on a covered person.

4. *"Covered person"* means a policyholder, subscriber, or other person participating in a health benefit plan that has a prescription drug benefit managed by a pharmacy benefits manager.

5. *"Health benefit plan"* means the same as defined in section 514J.102.

6. *"Health care professional"* means the same as defined in section 514J.102.

7. *"Health carrier"* means an entity subject to the insurance laws and regulations of this state, or subject

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to the jurisdiction of the commissioner, including an insurance company offering sickness and accident plans, a health maintenance organization, a nonprofit health service corporation, a plan established pursuant to chapter 509A for public employees, or any other entity providing a plan

of health insurance, health care benefits, or health care services. *"Health carrier"* does not include the department of human services, or a managed care organization acting pursuant to a contract with the department of human services to administer the medical assistance program under chapter 249A or the healthy and well kids in Iowa (hawk-i) program under chapter 514I.

8. *"Maximum allowable cost"* means the maximum amount that a pharmacy will be reimbursed by a pharmacy benefits manager or a health carrier for a generic drug, brand-name drug, biologic product, or other prescription drug, and that may include any of the following:

a. Average acquisition cost.

b. National average acquisition cost.

c. Average manufacturer price.

d. Average wholesale price.

e. Brand effective rate.

f. Generic effective rate.

g. Discount indexing.

h. Federal upper limits.

i. Wholesale acquisition cost.

j. Any other term used by a pharmacy benefits manager or a health carrier to establish reimbursement rates for a pharmacy.

9. *"Maximum allowable cost list"* means a list of prescription drugs that includes the maximum allowable cost for each prescription drug and that is used, directly or indirectly, by a pharmacy benefits manager.

10. *"Pharmacist"* means the same as defined in section 155A.3.

11. *"Pharmacy"* means the same as defined in section 155A.3.

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12. *"Pharmacy acquisition cost"* means the cost to a pharmacy for a prescription drug as invoiced by a wholesale distributor, and reduced by any discounts, rebates, or other price concessions applicable to the prescription drug that are not shown on the invoice and are known at the time that the pharmacy files an appeal with a pharmacy benefits manager.

13. *"Pharmacy benefits manager"* means the same as defined in section 510C.1.

14. *"Pharmacy benefits manager affiliate"* means a pharmacy or a pharmacist that directly or indirectly through one or more intermediaries, owns or controls, is owned and controlled by, or is under common ownership or control of, a pharmacy benefits manager.

15. *"Pharmacy network"* or *"network"* means pharmacies that have contracted with a pharmacy benefits manager to dispense or sell prescription drugs to covered persons of a health benefit plan for which the pharmacy benefits manager manages the prescription drug benefit.

16. *"Prescription drug"* means the same as defined in section

155A.3.

17. *"Prescription drug benefit"* means the same as defined in section 510C.1.

18. *"Prescription drug order"* means the same as defined in section 155A.3.

19. *"Rebate"* means the same as defined in section 510C.1.

20. *"Wholesale distributor"* means the same as defined in section 155A.3.

Sec. 4. Section 510B.4, Code 2022, is amended to read as follows:

510B.4 Performance of duties —— good faith —— conflict of interest.

1. A pharmacy benefits manager shall ~~perform the pharmacy benefits manager's duties exercising~~ exercise good faith and fair dealing in the performance of ~~its~~ the pharmacy benefits manager's contractual obligations toward ~~the covered entity~~ a

health carrier.

2. A pharmacy benefits manager shall notify ~~the covered entity~~ a health carrier in writing of any activity, policy, practice ownership interest, or affiliation of the pharmacy benefits manager that presents any conflict of interest.

3. A pharmacy benefits manager shall act in the best interest of each health carrier for whom the pharmacy benefits manager manages a prescription drug benefit provided by the health carrier, and shall discharge its duties in accordance with applicable state and federal law.

4. A pharmacy benefits manager, health carrier, or health benefit plan shall not discriminate against a pharmacy or a pharmacist with respect to participation, referral, reimbursement of a covered service, or indemnification if a pharmacist is acting within the scope of the pharmacist's license.

Sec. 5. Section 510B.5, Code 2022, is amended to read as follows:

510B.5 Contacting covered ~~individual~~ persons —— requirements.

A pharmacy benefits manager, unless authorized pursuant to the terms of its contract with a ~~covered entity~~ health carrier, shall not contact any covered ~~individual~~ person without the express written permission of the ~~covered entity~~ health carrier.

Sec. 6. Section 510B.6, Code 2022, is amended to read as follows:

510B.6 ~~Dispensing of substitute~~ Substitute prescription ~~drug for prescribed drug~~ drugs.

1. The following provisions shall apply ~~when~~ if a pharmacy benefits manager requests the dispensing of a substitute prescription drug for a ~~prescribed~~ drug ~~to~~ prescribed for a covered ~~individual~~ person:

a. The pharmacy benefits manager may request the

substitution of a lower priced generic and therapeutically equivalent prescription drug for a higher priced ~~prescribed~~

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prescription drug.

b. If the substitute prescription drug's net cost to the covered ~~individual~~ person or ~~covered entity~~ to the health carrier exceeds the cost of the ~~prescribed~~ prescription drug originally prescribed for the covered person, the substitution shall be made only for medical reasons that benefit the covered ~~individual~~ person.

2. A pharmacy benefits manager shall obtain the approval of the prescribing ~~practitioner~~ health care professional prior to requesting any substitution under this section.

3. A pharmacy benefits manager shall not substitute an equivalent prescription drug contrary to a prescription drug order that prohibits a substitution.

Sec. 7. Section 510B.7, Code 2022, is amended by striking the section and inserting in lieu thereof the following:

510B.7 Pharmacy networks.

1. A pharmacy located in the state shall not be prohibited from participating in a pharmacy network provided that the pharmacy accepts the same terms and conditions as the pharmacy benefits manager imposes on the pharmacies in the network.

2. A pharmacy benefits manager shall not assess, charge, or collect any form of remuneration that passes from a pharmacy or a pharmacist in a pharmacy network to the pharmacy benefits manager including but not limited to claim processing fees, performance-based fees, network participation fees, or accreditation fees.

Sec. 8. Section 510B.8, Code 2022, is amended by striking the section and inserting in lieu thereof the following:

510B.8 Prescription drugs —— point of sale.

1. A covered person shall not be required to make a cost-sharing payment at the point of sale for a prescription drug in an amount that exceeds the total amount that the pharmacy at which the covered person fills the covered person's prescription drug order is reimbursed.

2. A pharmacy benefits manager shall not prohibit a pharmacy

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from disclosing the availability of a lower-cost prescription drug option to a covered person, or from selling a lower-cost prescription drug option to a covered person.

3. Any amount paid by a covered person for a prescription drug purchased pursuant to this section shall be applied to any deductible imposed by the covered person's health benefit plan in accordance with the health benefit plan coverage documents.

4. A covered person shall not be prohibited from filling a prescription drug order at any pharmacy located in the

state provided that the pharmacy accepts the same terms and conditions as the pharmacies participating in the covered person's health benefit plan's network.

5. Excluding incentives in value-based programs established by a health carrier or a pharmacy benefits manager to promote the use of higher quality pharmacies, a pharmacy benefits manager shall not impose different cost-sharing or additional fees on a covered person based on the pharmacy at which the covered person fills the covered person's prescription drug order.

6. A pharmacy benefits manager shall not require a covered person, as a condition of payment or reimbursement, to purchase pharmacy services, including prescription drugs, exclusively through a mail-order pharmacy.

7. *a.* For purposes of calculating a covered person's contribution toward the covered person's cost-sharing, a pharmacy benefits manager shall include all cost-sharing paid by the covered person and all cost-sharing paid by any other person on behalf of the covered person.

b. If application of paragraph *"a"* will result in health savings account ineligibility under section 223 of the Internal Revenue Code, paragraph "a" shall only apply to the covered person's deductible for a health savings account qualified-high deductible health plan after the covered person has satisfied the minimum deductible under section 223 of the Internal Revenue Code, except for items or services that are preventive

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care, in which case, the requirement shall apply regardless of if the minimum deductible under section 223 of the Internal Revenue Code has been satisfied. For purposes of this section, *"preventive care"* means the same as under section 223(c)(2)(C) of the Internal Revenue Code.

c. Paragraph *"a"* shall not apply to cost-sharing paid by a covered person, or to cost-sharing paid by any other person on behalf of the covered person, for a specialty drug or for a prescription drug for which a medically appropriate A-rated generic equivalent or an interchangeable biological product is available to the covered person.

d. Paragraph *"a"* shall not apply to a state-regulated high-deductible health plan to the extent application of paragraph *"a"* will result in the state-regulated high-deductible health plan not qualifying as a high-deductible health plan under section 223 of the Internal Revenue Code.

e. If paragraph *"a"* conflicts with a federal law or a federal regulation as applied to a specific health carrier or to a specific circumstance, paragraph *"a"* shall apply to all health carriers and in all circumstances in which the federal law or federal regulation does not conflict.

Sec. 9. NEW SECTION. **510B.8A Maximum allowable cost lists.**

1. Prior to placement of a particular prescription drug on a

maximum allowable cost list, a pharmacy benefits manager shall ensure that all of the following requirements are met:

a. The particular prescription drug must be listed as therapeutically and pharmaceutically equivalent in the most recent edition of the publication entitled "Approved Drug Products with Therapeutic Equivalence Evaluations", published by the United States food and drug administration, otherwise known as the orange book.

b. The particular prescription drug must not be obsolete or temporarily unavailable.

c. The particular prescription drug must be available for purchase, without limitations, by all pharmacies in the state

from a national or regional wholesale distributor that is licensed in the state.

2. For each maximum allowable cost list that a pharmacy benefits manager uses in the state, the pharmacy benefits manager shall do all of the following:

a. Provide each pharmacy in a pharmacy network reasonable access to the maximum allowable cost list to which the pharmacy is subject.

b. Update the maximum allowable cost list within seven calendar days from the date of an increase of ten percent or more in the pharmacy acquisition cost of a prescription drug on the list by one or more wholesale distributors doing business in the state.

c. Update the maximum allowable cost list within seven calendar days from the date of a change in the methodology, or a change in the value of a variable applied in the methodology, on which the maximum allowable cost list is based.

d. Provide a reasonable process for each pharmacy in a pharmacy network to receive prompt notice of all changes to the maximum allowable cost list to which the pharmacy is subject.

Sec. 10. NEW SECTION. **510B.8C Pharmacy benefits manager affiliates —— reimbursement.**

A pharmacy benefits manager shall not reimburse any pharmacy located in the state in an amount less than the amount that the pharmacy benefits manager reimburses a pharmacy benefits manager affiliate for dispensing the same prescription drug as dispensed by the pharmacy. The reimbursement amount shall be calculated on a per unit basis based on the same generic product identifier or generic code number.

Sec. 11. NEW SECTION. **510B.8D Clean claims.**

After the date of receipt of a clean claim submitted by a pharmacy in a pharmacy network, a pharmacy benefits manager shall not retroactively reduce payment on the claim, either directly or indirectly except in the following circumstances:

a. The claim is found not to be a clean claim during the

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course of a routine audit.

b. The claim submission was fraudulent.

c. The claim submission was a duplicate submission of a claim for which the pharmacy had already received payment.

Sec. 12. NEW SECTION. **510B.8E Appeals and disputes.**

1. A pharmacy benefits manager shall provide a reasonable process to allow a pharmacy to appeal a maximum allowable cost or reimbursement rate for a specific prescription drug for any of the following reasons:

a. The pharmacy benefits manager violated section 510B.8A.

b. The maximum allowable cost or the reimbursement rate is below the pharmacy acquisition cost.

2. The appeal process must include all of the following:

a. A dedicated telephone number at which a pharmacy may contact the pharmacy benefits manager and speak directly with an individual involved in the appeal process.

b. A dedicated electronic mail address or internet site for the purpose of submitting an appeal directly to the pharmacy benefits manager.

c. A period of at least thirty business days after the date of a pharmacy's initial submission of a clean claim during which the pharmacy may initiate an appeal.

3. A pharmacy benefits manager shall respond to an appeal within seven business days after the date on which the pharmacy benefits manager receives the appeal.

a. If the pharmacy benefits manager grants a pharmacy's appeal, the pharmacy benefits manager shall do all of the following:

(1) Adjust the maximum allowable cost or the reimbursement rate of the prescription drug that is the subject of the appeal and provide the national drug code number that the adjustment is based on to the appealing pharmacy.

(2) Permit the appealing pharmacy to reverse and resubmit the claim that is the subject of the appeal.

(3) Make the adjustment pursuant to subparagraph (1)

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applicable to all of the following:

(a) Each pharmacy that is under common ownership with the pharmacy that submitted the appeal.

(b) Each pharmacy in the state that demonstrates the inability to purchase the prescription drug for less than the established maximum allowable cost or reimbursement rate.

b. If the pharmacy benefits manager denies a pharmacy's appeal, the pharmacy benefits manager shall do all of the following:

(1) Provide the appealing pharmacy the national drug code number and the name of a wholesale distributor licensed pursuant to section 155A.17 from which the pharmacy can obtain

the prescription drug at or below the maximum allowable cost or reimbursement rate.

(2) If the prescription drug identified by the national drug code number provided by the pharmacy benefits manager pursuant to subparagraph (1) is not available below the pharmacy acquisition cost from the wholesale distributor from whom the pharmacy purchases the majority of its prescription drugs for resale, the pharmacy benefits manager shall adjust the maximum allowable cost or the reimbursement rate above the appealing pharmacy's pharmacy acquisition cost, and permit the pharmacy to reverse and resubmit each claim affected by the pharmacy's inability to procure the prescription drug at a cost that is equal to or less than the previously appealed maximum allowable cost or the reimbursement rate.

Sec. 13. Section 510B.9, Code 2022, is amended to read as follows:

510B.9 ~~Submission, approval, and use of prior~~ Prior authorization ~~form~~.

A pharmacy benefits manager shall ~~file with and have approved by the commissioner a single prior authorization form as provided in section 505.26~~ comply with all applicable prior authorization requirements pursuant to section 505.26. ~~A pharmacy benefits manager shall use the single prior~~

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~~authorization form as provided in section 505.26.~~

Sec. 14. Section 510B.10, Code 2022, is amended by striking the section and inserting in lieu thereof the following:

510B.10 Enforcement.

1. The commissioner may take any enforcement action under the commissioner's authority to enforce compliance with this chapter.

2. After notice and hearing, the commissioner may issue any order or impose any penalty pursuant to section 507B.7, and may suspend or revoke a pharmacy benefits manager's certificate of registration as a third-party administrator upon a finding that the pharmacy benefits manager violated this chapter, or any applicable requirements pertaining to third-party administrators under chapter 510.

3. A pharmacy benefits manager shall be subject to the commissioner's authority to conduct an examination pursuant to chapter 507.

4. A pharmacy benefits manager is subject to the commissioner's authority to conduct a proceeding pursuant to chapter 507B. The procedures set forth in chapter 507B regarding proceedings shall apply to a proceeding related to a pharmacy benefits manager under this chapter.

5. A pharmacy benefits manager is subject to the commissioner's authority to conduct an examination, audit, or inspection pursuant to chapter 510 for third-party administrators. The procedures set forth in chapter 510 for

third-party administrators shall apply to an examination, audit, or inspection of a pharmacy benefits manager under this chapter.

6. If the commissioner conducts an examination of a pharmacy benefits manager under chapter 507; a proceeding under chapter 507B; or an examination, audit, or inspection under chapter 510, all information received from the pharmacy benefits manager, and all notes, work papers, or other documents related to the examination, proceeding, audit, or inspection shall

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be confidential records pursuant to chapter 22 and shall be accorded the same confidentiality as notes, work papers, investigatory materials, or other documents related to the examination of an insurer as provided in section 507.14.

7. A violation of this chapter shall be an unfair or deceptive act or practice in the business of insurance pursuant to section 507B.4, subsection 3.

Sec. 15. NEW SECTION. **510B.11 Rules.**

The commissioner may adopt rules pursuant to chapter 17A to administer this chapter.

Sec. 16. NEW SECTION. **510B.12 Severability.**

If a provision of this chapter or its application to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of this chapter which can be given effect without the invalid provision or application, and to this end the provisions of this chapter are severable.

Sec. 17. REPEAL. Section 510B.3, Code 2022, is repealed.

Sec. 18. APPLICABILITY. 1. This Act applies to pharmacy benefits managers that manage a health carrier's prescription drug benefit in the state on or after the effective date of this Act.

2. The following applies to all health benefit plans delivered, issued for delivery, continued, or renewed in this state on or after January 1, 2023:

The section of this Act amending section 510B.8, subsection 7.>

MIKE KLIMESH

S–5159

Amend House File 2384, as amended, passed, and reprinted by the House, as follows:

1. Page 1, by striking lines 1 through 4 and inserting:

<DIVISION I

PHARMACY BENEFITS MANAGERS, PHARMACIES, AND PRESCRIPTION DRUG BENEFITS>

2. Page 1, after line 26 by inserting:

<___. *"Facility"* means an institution providing health

care services or a health care setting, including but not limited to hospitals and other licensed inpatient centers, ambulatory surgical or treatment centers, skilled nursing centers, residential treatment centers, diagnostic, laboratory and imaging centers, and rehabilitation and other therapeutic health settings.>

3. Page 1, by striking lines 27 through 30 and inserting:

<___. *"Health benefit plan"* means a policy, contract, certificate, or agreement offered or issued by a third-party payor to provide, deliver, arrange for, pay for, or reimburse any of the costs of health care services.

___. *"Health care professional"* means a physician or other health care practitioner licensed, accredited, registered, or certified to perform specified health care services consistent with state law.

___. *"Health care provider"* means a health care professional or a facility.>

4. Page 2, by striking lines 1 through 9 and inserting <corporation, or a plan established pursuant to chapter 509A for public employees. *"Health carrier"* does not include any of the following:>

5. Page 2, before line 10 by inserting:

<*a.* The department of human services.

b. A managed care organization acting pursuant to a contract with the department of human services to administer the medical assistance program under chapter 249A or the healthy and well kids in Iowa (hawk-i) program under chapter 514I.

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c. A policy or contract providing a prescription drug benefit pursuant to 42 U.S.C. ch. 7, subch. XVIII, part D.

d. A plan offered or maintained by a multiple employer welfare arrangement established under chapter 513D before January 1, 2022.>

6. Page 3, by striking lines 4 and 5 and inserting:

<___. *"Pharmacy benefits manager"* means a person who, pursuant to a contract or other relationship with a third-party payor, either directly or through an intermediary, manages a prescription drug benefit provided by the third-party payor.>

7. Page 3, by striking lines 18 and 19 and inserting:

<___. *"Prescription drug benefit"* means a health benefit plan providing for third-party payment or prepayment for prescription drugs.>

8. Page 3, by striking line 22 and inserting:

<___. *"Rebate"* means all discounts and other negotiated price concessions paid directly or indirectly by a pharmaceutical manufacturer or other entity, other than a covered person, in the prescription drug supply chain to a pharmacy benefits manager, and which may be based on any of the following:

a. A pharmaceutical manufacturer's list price for a

prescription drug.

b. Utilization.

c. To maintain a net price for a prescription drug for a specified period of time for the pharmacy benefits manager in the event the pharmaceutical manufacturer's list price increases.

d. Reasonable estimates of the volume of a prescribed drug that will be dispensed by a pharmacy to covered persons.

___. *"Third-party payor"* means any entity other than a covered person or a health care provider that is responsible for any amount of reimbursement for a prescription drug benefit. *"Third-party payor"* includes health carriers and other entities that provide a plan of health insurance or health

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care benefits. *"Third-party payor"* does not include any of the following:

a. The department of human services.

b. A managed care organization acting pursuant to a contract with the department of human services to administer the medical assistance program under chapter 249A or the healthy and well kids in Iowa (hawk-i) program under chapter 514I.

c. A policy or contract providing a prescription drug benefit pursuant to 42 U.S.C. ch. 7, subch. XVIII, part D.>

9. Page 3, line 33, by striking <health carrier> and inserting <third-party payor>

10. Page 3, line 35, by striking <health carrier> and inserting <third-party payor>

11. Page 4, line 4, by striking <health carrier> and inserting <third-party payor>

12. Page 4, line 6, by striking <health carrier> and inserting <third-party payor>

13. Page 4, line 8, before <A> by inserting <A health carrier, or a pharmacy benefits manager providing pharmacy benefits management services on behalf of a health carrier pursuant to a contract or other arrangement for compensation, shall not discriminate against a pharmacy or pharmacist with respect to participation.>

14. Page 4, line 8, by striking <or>

15. Page 4, line 9, by striking <plan> and inserting <plan, or third-party payor>

16. Page 4, line 10, by striking <participation.>

17. Page 4, line 18, by striking <health carrier> and inserting <third-party payor>

18. Page 4, lines 20 and 21, by striking <health carrier> and inserting <third-party payor>

19. Page 4, line 35, by striking <health> and inserting <third-party payor>

20. Page 5, line 1, by striking <carrier>

21. Page 5, by striking line 14 and inserting:

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<___. A pharmacy benefits manager providing pharmacy benefits management services on behalf of a health carrier pursuant to a contract or other arrangement for compensation shall not prohibit a pharmacy located in the state>

22. Page 6, by striking lines 5 through 9 and inserting:

<___. A pharmacy benefits manager providing pharmacy benefits management services on behalf of a health carrier pursuant to a contract or other arrangement for compensation shall not prohibit a covered person from filling a prescription drug order at any pharmacy located in the state provided that the pharmacy accepts the same terms and conditions as the pharmacies participating in the pharmacy benefits manager's pharmacy network for the health carrier of the covered person.>

23. Page 7, by striking lines 3 through 18 and inserting:

<*c.* (1) Paragraph *"a"* shall not apply to cost-sharing paid by a covered person, or to cost-sharing paid by any other person on behalf of the covered person, for a specialty drug for which a medically appropriate A-rated generic equivalent is available to the covered person.

(2) Notwithstanding subparagraph (1), paragraph *"a"* shall apply to cost-sharing paid by a covered person, or to cost-sharing paid by any other person on behalf of the covered person, for a specialty drug for which a medically appropriate A-rated generic equivalent is available to the covered person in the following circumstances:

(a) The prescribing health care professional has determined that the prescribed specialty drug is medically necessary.

(b) The covered person obtained access to the prescribed specialty drug via a prior authorization, a step therapy protocol, or the covered person's health carrier's exception and appeal process.>

24. Page 12, line 16, before <Act> by inserting <division of this>

25. Page 12, line 17, by striking <health carrier's>

26. Page 12, line 23, before <Act> by inserting <division

Page 5

of this>

27. Page 12, after line 24 by inserting:

<DIVISION ___

PHARMACY BENEFITS MANAGER REPORTING

Sec. ___. Section 510C.1, Code 2022, is amended to read as follows:

510C.1 Definitions.

As used in this chapter unless the context otherwise requires:

1. *"Administrative fees"* means a fee or payment, other than a rebate, under a contract between a pharmacy benefits manager and a pharmaceutical drug manufacturer in connection with the

pharmacy benefits manager's management of a ~~health carrier's~~ third-party payor's prescription drug benefit, that is paid by a pharmaceutical drug manufacturer to a pharmacy benefits manager or is retained by the pharmacy benefits manager.

2. *"Aggregate retained rebate percentage"* means the percentage of all rebates received by a pharmacy benefits manager that is not passed on to the pharmacy benefits manager's ~~health carrier~~ third-party payor clients.

3. *"Commissioner"* means the commissioner of insurance.

4. *"Covered person"* means the same as defined in section ~~514J.102~~ 510B.1.

5. *"Formulary"* means a complete list of prescription drugs eligible for coverage under a health benefit plan.

6. *"Health benefit plan"* means the same as defined in section ~~514J.102~~ 510B.1.

7. *"Health carrier"* means the same as defined in section ~~514J.102~~ 510B.1.

~~8. *"Health carrier administrative service fee"* means a fee or payment under a contract between a pharmacy benefits manager and a health carrier in connection with the pharmacy benefits manager's administration of the health carrier's prescription drug benefit that is paid by a health carrier to a pharmacy benefits manager or is otherwise retained by a pharmacy benefits manager.~~

~~9.~~ 8. *"Pharmacy benefits manager"* means ~~a person who, pursuant to a contract or other relationship with a health carrier, either directly or through an intermediary, manages a prescription drug benefit provided by the health carrier~~ the same as defined in section 510B.1.

~~10.~~ 9. *"Prescription drug benefit"* means ~~a health benefit plan providing for third-party payment or prepayment for prescription drugs~~ the same as defined in section 510B.1.

~~11.~~ 10. *"Rebate"* means ~~all discounts and other negotiated price concessions paid directly or indirectly by a pharmaceutical manufacturer or other entity, other than a covered person, in the prescription drug supply chain to a pharmacy benefits manager, and which may be based on any of the following:~~ the same as defined in section 510B.1.

~~a. A pharmaceutical manufacturer's list price for a prescription drug.~~

~~b. Utilization.~~

~~c. To maintain a net price for a prescription drug for a specified period of time for the pharmacy benefits manager in the event the pharmaceutical manufacturer's list price increases.~~

~~d. Reasonable estimates of the volume of a prescribed drug that will be dispensed by a pharmacy to covered persons.~~

11. *"Third-party payor"* means the same as defined in section 510B.1.

12. *"Third-party payor administrative service fee"* means a fee or payment under a contract between a pharmacy benefits manager and a third-party payor in connection with the pharmacy benefits manager's administration of the third-party payor's prescription drug benefit that is paid by a third-party payor to a pharmacy benefits manager or is otherwise retained by a pharmacy benefits manager.

Sec. ___. Section 510C.2, subsection 1, unnumbered paragraph 1, Code 2022, is amended to read as follows:

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Each pharmacy benefits manager shall provide a report annually by February 15 to the commissioner that contains all of the following information regarding prescription drug benefits provided to covered persons of each ~~health carrier~~ third-party payor with whom the pharmacy benefits manager has contracted during the prior calendar year:

Sec. ___. Section 510C.2, subsection 1, paragraphs c, d, e, and g, Code 2022, are amended to read as follows:

c. The aggregate dollar amount of all ~~health carrier~~ third-party payor administrative service fees received by the pharmacy benefits manager.

d. The aggregate dollar amount of all rebates received by the pharmacy benefits manager that the pharmacy benefits manager did not pass through to the ~~health carrier~~ third-party payor.

e. The aggregate amount of all administrative fees received by the pharmacy benefits manager that the pharmacy benefits manager did not pass through to the ~~health carrier~~ third-party payor.

g. Across all ~~health carrier~~ third-party payor clients with whom the pharmacy benefits manager was contracted, the highest and the lowest aggregate retained rebate percentages.

Sec. ___. Section 510C.2, subsection 2, paragraph a, subparagraph (1), Code 2022, is amended to read as follows:

(1) The identity of a specific ~~health carrier~~ third-party payor.

Sec. ___. Section 510C.2, subsection 2, paragraph b, Code 2022, is amended to read as follows:

b. Information provided under this section by a pharmacy benefits manager to the commissioner that may reveal the identity of a specific ~~health carrier~~ third-party payor, the price charged by a specific pharmaceutical manufacturer for a specific prescription drug or class of prescription drugs, or the amount of rebates provided for a specific prescription drug or class of prescription drugs shall be considered a

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confidential record and be recognized and protected as a trade secret pursuant to section 22.7, subsection 3.>

28. By renumbering, redesignating, and correcting internal references as necessary.

MIKE KLIMESH

S–5160

Amend House File 2497, as passed by the House, as follows:

1. Page 1, by striking lines 10 and 11 and inserting <to cashless wagering systems where a person accesses a cash account through a mobile application used by the licensee to conduct cashless wagering. The mobile application shall include the statewide telephone number authorized by the Iowa department of public health to provide problem gambling information and extensive responsible gaming features in addition to those described in section 99D.7, subsection 23.>

2. Page 1, by striking lines 19 and 20 and inserting <apply to cashless wagering systems where a person accesses a cash account through a mobile application used by the licensee to conduct cashless wagering. The mobile application shall include the statewide telephone number authorized by the Iowa department of public health to provide problem gambling information and extensive responsible gaming features in addition to those described in section 99F.4, subsection 22.>

3. By striking page 1, line 23, through page 6, line 2, and inserting:

<Sec. ___. Section 99D.7, subsection 23, Code 2022, is amended to read as follows:

23. To establish a process to allow a person to be voluntarily excluded from advance deposit wagering as defined in section 99D.11, from an internet fantasy sports contest as defined in section 99E.1, from advance deposit sports wagering as defined in section 99F.9, and from the wagering area of a racetrack enclosure, from the gaming floor, and from the sports wagering area, as defined in section 99F.1, of all other licensed facilities under this chapter and chapter 99F as provided in this subsection. The process shall provide that an initial request by a person to be voluntarily excluded shall be for a period of five years or life and any subsequent request following any five-year period shall be for a period of five years or life. The process established shall require that licensees be provided electronic access to names and social

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security numbers of persons voluntarily excluded through a secured interactive internet site maintained by the commission and information regarding persons voluntarily excluded shall be disseminated to all licensees under this chapter, chapter 99E, and chapter 99F. The names, social security numbers, and information regarding persons voluntarily excluded shall be kept confidential unless otherwise ordered by a court or by

another person duly authorized to release such information. The process established shall also require a person requesting to be voluntarily excluded be provided information compiled by the Iowa department of public health on gambling treatment options. The state and any licensee under this chapter, chapter 99E, or chapter 99F shall not be liable to any person for any claim which may arise from this process. In addition to any other penalty provided by law, any money or thing of value that has been obtained by, or is owed to, a voluntarily excluded person as a result of wagers made by the person after the person has been voluntarily excluded shall be forfeited by the person and shall be credited to the general fund of the state. The commission shall not initiate any administrative action or impose penalties on a licensee who voluntarily reports to the commission activity described in section 99D.24, subsection 4, paragraph *"c"*.

Sec. ___. Section 99D.24, subsection 4, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *c.* Knowingly or intentionally passes a winning wager or share to another person or provides fraudulent identification in order to avoid the forfeiture of any money or thing of value as a voluntarily excluded person pursuant to the processes established under section 99D.7, subsection 23.

NEW PARAGRAPH. *d.* Knowingly or intentionally passes a winning wager or share to another person or provides fraudulent identification in order to avoid the application of a setoff as provided in section 99D.28.

Sec. ___. Section 99D.28, subsection 7, Code 2022, is

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amended to read as follows:

7. A claimant agency or licensee, acting in good faith, shall not be liable to any person for actions taken pursuant to this section. In addition, the commission shall not initiate any administrative action or impose penalties on a licensee who voluntarily reports to the commission activity described in section 99D.24, subsection 4, paragraph *"d"*.

Sec. ___. Section 99F.4, subsection 22, Code 2022, is amended to read as follows:

22. To establish a process to allow a person to be voluntarily excluded from advance deposit wagering as defined in section 99D.11, from an internet fantasy sports contest as defined in section 99E.1, from advance deposit sports wagering as defined in section 99F.9, from the gaming floor and sports wagering area of an excursion gambling boat, from the wagering area, as defined in section 99D.2, and from the gaming floor and sports wagering area of all other licensed facilities under this chapter and chapter 99D as provided in this subsection. The process shall provide that an initial request by a person to be voluntarily excluded shall be for a period of five years or life and any subsequent request

following any five-year period shall be for a period of five years or life. The process established shall require that licensees be provided electronic access to names and social security numbers of persons voluntarily excluded through a secured interactive internet site maintained by the commission and information regarding persons voluntarily excluded shall be disseminated to all licensees under this chapter, chapter 99D, and chapter 99E. The names, social security numbers, and information regarding persons voluntarily excluded shall be kept confidential unless otherwise ordered by a court or by another person duly authorized to release such information. The process established shall also require a person requesting to be voluntarily excluded be provided information compiled by the Iowa department of public health on gambling treatment

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options. The state and any licensee under this chapter, chapter 99D, or chapter 99E shall not be liable to any person for any claim which may arise from this process. In addition to any other penalty provided by law, any money or thing of value that has been obtained by, or is owed to, a voluntarily excluded person as a result of wagers made by the person after the person has been voluntarily excluded shall be forfeited by the person and shall be credited to the general fund of the state. The commission shall not initiate any administrative action or impose penalties on a licensee who voluntarily reports to the commission activity described in section 99F.15, subsection 4, paragraph *"n"*.

Sec. ___. Section 99F.15, subsection 4, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *n.* Knowingly or intentionally passes a winning wager or share to another person or provides fraudulent identification in order to avoid the forfeiture of any money or thing of value as a voluntarily excluded person pursuant to the processes established under section 99F.4, subsection 22.

NEW PARAGRAPH. *o.* Knowingly or intentionally passes a winning wager or share to another person or provides fraudulent identification in order to avoid the application of a setoff as provided in section 99F.19.

Sec. ___. Section 99F.19, subsection 7, Code 2022, is amended to read as follows:

7. A claimant agency or licensee, acting in good faith, shall not be liable to any person for actions taken pursuant to this section. In addition, the commission shall not initiate any administrative action or impose penalties on a licensee who voluntarily reports to the commission activity described in section 99F.15, subsection 4, paragraph *"o"*.>

4. Page 6, by striking lines 5 through 20.

5. Page 7, by striking lines 12 through 15 and inserting <a collegiate team from this state is a participant, or placing a wager on the performance of athletes>

Page 5

6. Page 9, after line 25 by inserting:

<DIVISION ___

GAMBLING GAME LICENSE MORATORIUM

Sec. ___. NEW SECTION. **99F.5A Limitations on issuance of licenses to conduct gambling games.**

1. Commencing June 1, 2022, the total number of licenses issued by the commission to conduct gambling games on an excursion gambling boat, at a gambling structure, or at a pari-mutuel racetrack shall not exceed nineteen subject to the requirements of this section.

2. Licenses to conduct gambling games shall be restricted to those counties where an excursion gambling boat, gambling structure, or racetrack enclosure was operating and licensed to conduct gambling games on June 1, 2022.

3. The commission shall be authorized to take any of the following actions concerning the issuance of licenses to conduct gambling games:

a. A gambling games licensee may move to a new location within the same county and retain the gambling games license.

b. A licensed facility may be sold and a new gambling games license issued for operation in the same county.

c. If a license to conduct gambling games is surrendered, not renewed, or revoked, a new gambling games license may be issued for operation in the same county.

4. This section is repealed June 30, 2024.

Sec. ___. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. ___. RETROACTIVE APPLICABILITY. This division of this Act applies retroactively to June 1, 2022.

DIVISION ___

SIMULCASTING LICENSURE AND TAXATION

Sec. ___. NEW SECTION. **99D.9D Alternative simulcasting licensure —— horse and dog races.**

1. An entity that has entered into an agreement with the Iowa horsemen's benevolent and protective association for

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source market fees related to simultaneously telecast horse or dog races may submit an application to the commission for a license under this chapter to conduct pari-mutuel wagering on simultaneously telecast horse or dog races, subject to the requirements of this section. Unless inconsistent with the requirements of this section, an entity submitting an application for a license under this section shall comply with all requirements for submitting an application for a license under this chapter.

2. If an application for a license under subsection 1 is approved by the commission pursuant to the requirements of this section and section 99D.9, the entity submitting the

application shall be granted a license under this section to conduct pari-mutuel wagering on simultaneously telecast horse or dog races conducted at a facility of a licensee authorized to conduct gambling games under chapter 99D or chapter 99F pursuant to an agreement with the licensee of that facility as authorized by this section. A licensee issued a license pursuant to this section shall comply with all requirements of this chapter applicable to licensees unless otherwise inconsistent with the provisions of this section.

3. A license issued pursuant to this section shall authorize the licensee to enter into an agreement with any licensee authorized to operate an excursion gambling boat or gambling structure under chapter 99F to conduct, without the requirement to conduct live horse or dog races at the facility, pari-mutuel wagering on simultaneously telecast horse or dog races at the facility of the licensee authorized to operate an excursion gambling boat or gambling structure under chapter 99F.

4. The commission shall establish an annual license fee and regulatory fee for any entity issued a license under this section to conduct pari-mutuel wagering on simultaneously telecast horse or dog races as authorized by this section. The commission shall not impose any other fees for simultaneously telecast horse or dog races conducted by any licensee under

Page 7

this section.

5. The commission shall require that an annual audit be conducted and submitted to the commission, in a manner determined by the commission, concerning the operation of the simultaneously telecast horse or dog races by any licensee under this section.

Sec. ___. Section 99D.15, subsection 4, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

4. A tax is imposed on the gross sum wagered by the pari mutuel method on horse races and dog races which are simultaneously telecast, in lieu of the taxes imposed pursuant to subsection 1 or 3. The rate of tax is determined as follows:

a. If wagering on simultaneously telecast horse races and dog races is not conducted by a licensee under section 99D.9D, a tax of two percent is imposed on the gross sum wagered by the pari-mutuel method on horse races and dog races which are simultaneously telecast. The tax revenue from simulcast horse races under this paragraph shall be distributed as provided in subsection 1 and the tax revenue from simulcast dog races under this paragraph shall be distributed as provided in subsection 3.

b. If wagering on simultaneously telecast horse races and dog races is conducted by a licensee under section 99D.9D, a tax of two percent is imposed on the gross sum wagered by the pari-mutuel method on horse races and dog races which

are simultaneously telecast in excess of twenty-five million dollars in a calendar year. Of the tax revenue collected from simulcast horse races under this paragraph, one-half of one percent of the gross sum wagered shall be remitted to the treasurer of the county in which a horse racetrack is located in this state and licensed under this chapter. The remaining amount of tax revenue shall be deposited with the commission.>

7. Title page, line 3, by striking <and> and inserting <limitations on gambling game licenses, and simulcasting

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licensure and taxation,>

8. Title page, line 4, after <penalties> by inserting <and making penalties applicable, and including effective date and retroactive applicability provisions>

9. By renumbering, redesignating, and correcting internal references as necessary.

ROBY SMITH

S–5161

Amend the amendment, S–5155, to House File 2578, as amended, passed, and reprinted by the House, as follows:

1. Page 13, line 35, by striking <4,466,601> and inserting <4,706,601>

2. Page 14, line 19, by striking <$500,000> and inserting <$740,000>

JACKIE SMITH

S–5162

Amend the amendment, S–5153, to House File 2579, as amended, passed, and reprinted by the House, as follows:

1. Page 6, by striking lines 26 through 28 and inserting <improvements to a levee, notwithstanding section>

2. Page 22, lines 25 and 26, by striking <entity, including> and inserting <entity that is>

3. Page 22, line 26, by striking <district,> and inserting <district>

4. Page 22, line 33, after <entity.> by inserting <However, financial assistance shall not be provided to an applicant from the sports tourism infrastructure program fund created in section 15F.404 for infrastructure projects located in a reinvestment district as defined and approved by the authority pursuant to section 15J.4 or to applicants that have received a rebate of sales tax imposed and collected by retailers pursuant to section 423.4, subsection 5.>

5. Page 22, line 34, by striking <subsections 5> and inserting <subsections 4, 5,>

6. Page 22, after line 35 by inserting:

<4. a. An applicant shall demonstrate matching funds in order to receive financial assistance pursuant to this section. The amount of matching funds that may be required shall be at the board's discretion subject to the requirements of this subsection.

b. An applicant under the program shall not receive financial assistance from the sports tourism marketing program fund created in section 15F.403 or the sports tourism infrastructure program fund created in section 15F.404 in an amount exceeding fifty percent of the total cost of the project.

c. An applicant under the program shall not receive financial assistance from the sports tourism infrastructure program fund created in section 15F.404 until all financing for the sports tourism infrastructure project is secured and documented and the applicant can demonstrate the availability

Page 2

of matching moneys for financing the sports tourism infrastructure project in the form of a private and public partnership with financing from city, county, and private sources.>

7. Page 25, line 9, before <public> by inserting <eligible>

8. By renumbering as necessary.

CRAIG JOHNSON

S–5163

Amend the amendment, S–5152, to House File 2559, as amended, passed, and reprinted by the House, as follows:

1. Page 22, after line 10 by inserting:

<DIVISION ___

COLLECTIVE BARGAINING

Sec. ___. Section 20.1, subsection 2, paragraph a, Code 2022, is amended to read as follows:

a. Determining appropriate bargaining units, amending the composition of previously determined bargaining units represented by a certified employee organization, reconsidering and altering the composition of previously determined bargaining units which are not represented by a certified employee organization, and conducting representation elections.

Sec. ___. Section 20.3, subsection 11, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *g.* An employee of the Iowa department of corrections who is responsible for the custody and supervision of inmates through ongoing direct inmate contact, to enforce and maintain discipline, safety, and security within a correctional facility.

NEW PARAGRAPH. *h.* A jailer or detention officer who performs duties as a jailer, including but not limited to the

transportation of inmates, who is certified as having completed jailer training pursuant to chapter 80B, and who is employed by a county as a jailer.

NEW PARAGRAPH. *i.* An emergency dispatcher for a county sheriff.

NEW PARAGRAPH. *j.* A probation or parole officer employed by the Iowa department of corrections.

NEW PARAGRAPH. *k.* A residential officer employed by the department of corrections working at a community-based corrections residential facility.

Sec. ___. Section 20.13, Code 2022, is amended to read as follows:

20.13 Bargaining unit determination, amendment, and reconsideration.

1. ~~Board~~ The board's determination of an appropriate bargaining unit shall be upon petition filed by a public employer, public employee, or employee organization. Except as provided in subsection 4, the board's amendment of the composition of a represented bargaining unit shall be upon petition filed by the employer or certified representative of the bargaining unit. The board's reconsideration of the composition of a previously determined bargaining unit which is not represented by a certified representative shall be upon the combined petition of an employee organization which also seeks a representation election pursuant to section 20.14, subsection 2.

2. Within thirty days of receipt of a petition, the board shall conduct a public hearing, receive written or oral testimony, and promptly thereafter file an order defining the appropriate bargaining unit, amending or refusing to amend the composition of a represented bargaining unit or reconsidering and altering or refusing to alter the composition of an unrepresented bargaining unit. In defining the unit, or determining whether a unit should be amended or altered in response to a petition for amendment or reconsideration, the board shall take into consideration, along with other relevant factors, the principles of efficient administration of government, the existence of a community of interest among public employees, the history and extent of public employee organization, geographical location, and the recommendations of the parties involved.

~~3. Appeals from such order shall be governed by the provisions of chapter 17A.~~

~~4.~~ 3. Professional and nonprofessional employees shall not be included in the same bargaining unit unless a majority of both agree.

4. Notwithstanding the provisions of subsection 1, a petition to amend the composition of a represented bargaining

Page 3

unit by the removal of public safety employees may be filed by a public safety employee who is a member of the bargaining unit. If the petition is accompanied by evidence satisfactory to the board that the public safety employees in the bargaining unit do not constitute at least thirty percent of the employees in the unit and that a majority of the public safety employees in the unit support the petition, the board shall conduct a hearing within thirty days of its finding such evidence satisfactory and shall promptly thereafter issue an order granting or denying the requested amendment. If the board amends the composition of the bargaining unit by removing public safety employees, those employees may immediately be the subject of a separate bargaining unit determination petition filed in accordance with subsection 1.

5. Appeals from such orders shall be governed by the provisions of chapter 17A.

Sec. ___. Section 20.15, Code 2022, is amended by striking the section and inserting in lieu thereof the following:

20.15 Elections.

1. Upon the filing of a petition for certification of an employee organization, the board shall submit a question to the public employees at an election in the bargaining unit found appropriate by the board. The question on the ballot shall permit the public employees to vote for no bargaining representation or for any employee organization which has petitioned for certification or which has presented proof satisfactory to the board of support of ten percent or more of the public employees in the appropriate unit.

2. If a majority of the votes cast on the question is for no bargaining representation, the public employees in the bargaining unit found appropriate by the board shall not be represented by an employee organization. If a majority of the votes cast on the question is for a listed employee organization, then that employee organization shall represent the public employees in the bargaining unit found appropriate

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by the board.

3. If none of the choices on the ballot receives the vote of a majority of the public employees voting, the board shall conduct a runoff election among the two choices receiving the greatest number of votes.

4. Upon written objections filed by any party to the election within ten days after notice of the results of the election, if the board finds that misconduct or other circumstances prevented the public employees eligible to vote from freely expressing their preferences, the board may invalidate the election and hold a second election for the public employees.

5. Upon completion of a valid election in which the majority choice of the employees voting is determined, the board shall certify the results of the election and shall give reasonable notice of the order to all employee organizations listed on the ballot, the public employers, and the public employees in the appropriate bargaining unit.

6. *a.* A petition for certification as exclusive bargaining representative of a bargaining unit shall not be considered by the board for a period of one year from the date of the noncertification of an employee organization as the exclusive bargaining representative of that bargaining unit following a certification election. A petition for certification as the exclusive bargaining representative of a bargaining unit shall also not be considered by the board if the bargaining unit is at that time represented by a certified exclusive bargaining representative.

b. A petition for the decertification of the exclusive bargaining representative of a bargaining unit shall not be considered by the board for a period of one year from the date of its certification, or within one year of its continued certification following a decertification election, or during the duration of a collective bargaining agreement which, for purposes of this section, shall be deemed not to exceed two

Page 5

years. However, if a petition for decertification is filed during the duration of a collective bargaining agreement, the board shall award an election under this section not more than one hundred eighty days and not less than one hundred fifty days prior to the expiration of the collective bargaining agreement. If an employee organization is decertified, the board may receive petitions under section 20.14, provided that no such petition and no election conducted pursuant to such petition within one year from decertification shall include as a party the decertified employee organization.

7. A collective bargaining agreement with the state, its boards, commissions, departments, and agencies shall be for two years. The provisions of a collective bargaining agreement or arbitrator's award affecting state employees shall not provide for renegotiations which would require the refinancing of salary and fringe benefits for the second year of the term of the agreement, except as provided in section 20.17, subsection

6. The effective date of any such agreement shall be July 1 of odd-numbered years, provided that if an exclusive bargaining representative is certified on a date which will prevent the negotiation of a collective bargaining agreement prior to July 1 of odd-numbered years for a period of two years, the certified collective bargaining representative may negotiate a one-year contract with the public employer which shall be effective from July 1 of the even-numbered year to July 1 of the succeeding odd-numbered year when new contracts shall

become effective.

Sec. ___. Section 22.7, subsections 69 and 70, Code 2022, are amended to read as follows:

69. The evidence of public employee support for the certification~~, retention and recertification,~~ or decertification of an employee organization as defined in section 20.3 that is submitted to the public employment relations board as provided in section 20.14 or 20.15.

70. Information indicating whether a public employee

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voted in a certification~~, retention and recertification,~~ or decertification election held pursuant to section 20.15 or how the employee voted on any question on a ballot in such an election.

Sec. ___. Section 602.1401, subsection 3, paragraph b, Code 2022, is amended to read as follows:

b. For purposes of chapter 20, the certified representative, which on July 1, 1983, represents employees who become judicial branch employees as a result of 1983 Iowa Acts, ch. 186, shall remain the certified representative when the employees become judicial branch employees and thereafter, unless the public employee organization is ~~not retained and recertified or is~~ decertified in an election held under section 20.15 or amended or absorbed into another certified organization pursuant to chapter 20. Collective bargaining negotiations shall be conducted on a statewide basis and the certified employee organizations which engage in bargaining shall negotiate on a statewide basis, although bargaining units shall be organized by judicial district. The public employment relations board shall adopt rules pursuant to chapter 17A to implement this subsection.

Sec. ___. Section 905.4, subsection 2, Code 2022, is amended to read as follows:

2. Employ a director having the qualifications required by section 905.6 to head the district department's community-based correctional program and, within a range established by the Iowa department of corrections, fix the compensation of and have control over the director and the district department's staff. For purposes of collective bargaining under chapter 20, employees of the district board who are not exempt from chapter 20 are employees of the state, and the employees of all of the district boards shall be included within one collective bargaining unit. Furthermore, employees of the district board shall be considered state employees for purposes of section 8A.415, subsection 2.

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Sec. ___. DIRECTIVES TO PUBLIC EMPLOYMENT RELATIONS BOARD.

1. The public employment relations board shall cancel any

elections scheduled or in process pursuant to section 20.15, subsection 2, Code 2022, as of the effective date of this division of this Act.

2. Notwithstanding section 20.15, subsection 1, paragraph "c", Code 2022, the public employment relations board shall consider a petition for certification of an employee organization as the exclusive representative of a bargaining unit for which an employee organization was not retained and recertified as the exclusive representative of that bargaining unit regardless of the amount of time that has elapsed since the retention and recertification election at which an employee organization was not retained or recertified.

DIVISION ___

HEALTH INSURANCE COVERAGE —— SURVIVING SPOUSE AND CHILDREN OF CERTAIN DEPARTMENT OF CORRECTIONS EMPLOYEES

Sec. ___. Section 509A.13D, subsection 3, Code 2022, is amended to read as follows:

3. The governing body of the state shall ~~not~~ be required to pay for the full cost of the health insurance under this section~~; however, the governing body of the state may pay the full cost or a portion of the cost of the health insurance. If the full cost or a portion of the cost of the coverage is not paid by the governing body of the state, the surviving spouse and each surviving child who is eligible for health insurance under this section may elect to continue coverage by paying that portion of the cost of the health insurance not paid by the governing body of the state.~~

DIVISION ___

ASSAULTS ON PERSONS ENGAGED IN CERTAIN OCCUPATIONS

Sec. ___. Section 708.3A, subsections 3 and 4, Code 2022, are amended to read as follows:

3. A person who commits an assault, as defined in section 708.1, against a peace officer, jailer, correctional staff,

member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, whether paid or volunteer, who knows that the person against whom the assault is committed is a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, and who causes bodily injury or mental illness, is guilty of ~~an aggravated misdemeanor~~ a class "D" felony.

4. Any other assault, as defined in section 708.1, committed against a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider,

employee of the department of human services, employee of the department of revenue, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, whether paid or volunteer, by a person who knows that the person against whom the assault is committed is a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, is ~~a serious misdemeanor~~ an aggravated misdemeanor.

Sec. ___. Section 708.3A, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 4A. Any person who commits an assault, as defined in section 708.1, against a jailer or correctional staff while the person is in the custody and control of the department of corrections in a correctional institution, community-based correctional facility, or an institution under the management of the Iowa department of corrections which

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is used for the purposes of confinement of persons who have committed public offenses, or a county jail or other facility used for purposes of confinement of persons who have committed public offenses, shall, upon conviction of a violation of this section, in addition to any other sentence imposed, lose one-half of all earned time accumulated pursuant to section 903A.2 for a first conviction, and shall lose all earned time accumulated pursuant to section 903A.2 for a second or subsequent conviction.

NEW SUBSECTION. 4B. If the county attorney of the county where a violation of this section occurs against a jailer or correctional staff by a person who is in the custody and control of the department of corrections while in any correctional institution or a county jail or other facility used for purposes of confinement fails to prosecute the case against the person, the area prosecutions division of the attorney general's office may elect to prosecute the case.

DIVISION ___

DEPARTMENT OF CORRECTIONS

Sec. ___. Section 904.108, subsection 1, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *p.* Establish a training program for employees of the department with ongoing direct contact with inmates in self-defense and other de-escalation techniques when confronted with potentially violent interactions involving inmates. The training program shall include an in-person component.

NEW PARAGRAPH. *q.* Establish uniform safety practices to be implemented at all correctional institutions under the control of the department that provide guidelines designed to

protect the safety of employees and inmates at correctional institutions.

NEW PARAGRAPH. *r.* Adopt rules to allow an employee of the department who has witnessed a trauma event to take between five and thirty days of paid leave depending upon the

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severity of the trauma event. If the appointing authority of a correctional institution determines that an employee has been held hostage, the employee shall be eligible for a paid leave of absence of up to ninety days, as determined by a licensed physician, to allow for recovery from mental and physical stress and any related conditions. Such paid leave shall not be charged against the employee's sick leave account.

NEW PARAGRAPH. *s.* Establish protocols for allowing employees of the department with ongoing direct contact with inmates access to information identified in section 904.602, subsection 2, for purposes of the administration of the department's programs of services or assistance to inmates.

Sec. ___. DEPARTMENT OF CORRECTIONS —— CONTRACT EMPLOYEES. The Iowa department of corrections shall not enter into an employment contract with a person to perform a function of the department and provide the contract employee with pay or benefits in excess of pay and benefits provided an employee of the state performing similar work.

Sec. ___. DEPARTMENT OF CORRECTIONS —— CONTRABAND AND SURVEILLANCE CAMERAS —— TRAUMA EVENTS.

1. For fiscal years beginning on or after July 1, 2022, the department of corrections shall increase funding for screening for contraband and surveillance cameras at all state correctional facilities and for upgrades to provide for an enhanced technology system to improve the safety and efficiency of operations at all state correctional facilities.

2. The department of corrections shall amend its administrative rules pursuant to chapter 17A to allow an employee of the department who has witnessed a trauma event to take between five and thirty days of paid leave depending upon the severity of the trauma event. If the appointing authority of a correctional institution determines that an employee has been held hostage, the employee shall be eligible for a paid leave of absence of up to ninety days, as determined by a licensed physician, to allow for recovery from stress and

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any related conditions. Such paid leave shall not be charged against the employee's sick leave account.>

2. By renumbering as necessary.

TODD TAYLOR
NATE BOULTON

S–5164

Amend Senate File 2129 as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 84A.1B, subsection 14, unnumbered paragraph 1, Code 2022, is amended to read as follows:

Create, and update as necessary, a list of high-demand jobs statewide for purposes of the future ready Iowa registered apprenticeship programs created in chapter 15C, the summer youth intern pilot program established under section 84A.12, the Iowa employer innovation program established under section 84A.13, the future ready Iowa skilled workforce last-dollar scholarship program established under section 261.131, the future ready Iowa skilled workforce grant program established under section 261.132, and postsecondary summer classes for high school students as provided under section 261E.8, subsection 8. In addition to the list created by the workforce development board under this subsection, each community college, in consultation with regional career and technical education planning partnerships, and with the approval of the board of directors of the community college, may identify and maintain a list of not more than five regional high-demand jobs in the community college region, and shall share the lists with the workforce development board. The lists submitted by community colleges under the subsection may be used in that community college region for purposes of programs identified under this subsection. The workforce development board shall have full discretion to select and prioritize statewide high-demand jobs after consulting with business and education stakeholders, as appropriate, and seeking public comment. The workforce development board may add to the list of high-demand jobs as it deems necessary. For purposes of this subsection, *"high-demand job"* means a job in the state that the workforce development board, or a community college in accordance with this subsection, has identified in accordance with this subsection. In creating a list under this subsection, the

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following criteria, at a minimum, shall apply to the list of high-demand jobs created by the workforce development board but not a list created by a community college:

Sec. 2. Section 261.131, subsection 1, paragraph g, subparagraph (1), subparagraph division (a), Code 2022, is amended to read as follows:

(a) A graduate of an Iowa high school, or a person who completed private instruction under chapter 299A, or a person who is a recipient of a high school equivalency diploma, and who prior to becoming an adult learner enrolls full-time or part-time during the academic year~~,~~ or ~~part-time for a~~ summer semester~~,~~ in an eligible program at an eligible institution.>

2. Title page, by striking lines 1 through 3 and inserting
<An Act relating to employment, including modifying provisions related to the list of high-demand jobs created by community colleges and students who are eligible to receive a scholarship from the future ready Iowa skilled workforce last-dollar scholarship fund.>

AMY SINCLAIR

S–5165

Amend the amendment, S–5152, to House File 2559, as amended, passed, and reprinted by the House, as follows:
1. Page 15, line 21, by striking <5,946,368> and inserting <6,946,368>
2. Page 15, after line 22 by inserting:
<a. Of the moneys appropriated in this subsection, $1,000,000 shall be used by the department to award grants to municipal police departments and county sheriff departments for the following purposes:
(1) For the purchase of equipment and training, the establishment of information storage and retrieval procedures and facilities, and other expenses properly related to initiating a program for peace officers to wear and operate body cameras while on duty in the community.
(2) For recruiting, training, and paying a portion of the first-year salary and benefits of a community mental health advocate position within a municipal police department or county sheriff department.
b. A municipal police department or county sheriff department may make separate applications for each of the two purposes specified in paragraph "a" to assist peace officers in identifying individuals who may be in need of mental health services and to facilitate the connection of such individuals to mental health providers. Grant awards may be made for up to $50,000 per grant awarded. The department shall allocate at least 30 percent of available funds for grants for each of the two purposes specified in paragraph "a", provided that adequate qualified applications are received in each category. The department shall distribute funds as equitably as possible to achieve a balanced distribution of funds geographically within the state and among large and small communities. In the alternative, grant funds may be used by a police department or county sheriff's department to pay the first-year costs of contracting with an outside agency to perform similar functions.

c. Notwithstanding section 8.33, any of the $1,000,000 allocated under paragraph "a" remaining on June 30 of a fiscal year shall not revert to the general fund of the state but

shall remain available for expenditure purposes designated for subsequent fiscal years.>

HERMAN C. QUIRMBACH

S–5166

Amend House File 2165, as amended, passed, and reprinted by the House, as follows:

1. Page 1, by striking lines 1 through 35.

2. Title page, by striking lines 1 through 5 and inserting <An Act modifying provisions relating to eligibility for scholarships under the future ready Iowa skilled workforce last-dollar scholarship program.>

3. By renumbering as necessary.

AMY SINCLAIR

S–5167

Amend the amendment, S–5152, to House File 2559, as amended, passed, and reprinted by the House, as follows:

1. Page 11, line 35, by striking <1,239,824> and inserting <2,239,824>

2. Page 12, after line 1 by inserting:

<Of the moneys appropriated in this lettered paragraph, $1,000,000 shall be used by the Iowa law enforcement academy to assist local law enforcement agencies with the tuition costs associated with attending the Iowa law enforcement academy.>

3. By renumbering as necessary.

NATE BOULTON

S–5168

Amend House File 2496, as passed by the House, as follows:

1. Page 1, line 8, after <question.> by inserting <This paragraph is repealed July 1, 2023.>

2. Page 1, lines 29 and 30, by striking <The officer's right to receive written notice at least ten days before the prosecuting agency considers placing the> and inserting <The officer's right to receive written notice before the prosecuting agency places the>

3. Page 2, by striking lines 11 through 14.

4. Page 2, lines 15 and 16, by striking <At least ten days before a prosecuting agency considers placing an officer's name on a Brady-Giglio list, the> and inserting <Before a prosecuting agency places an officer's name on a Brady-Giglio list, the>

5. Page 4, line 9, by striking <thirty> and inserting <ten>

6. Page 4, by striking lines 11 through 17.
7. Page 4, before line 32 by inserting:
<___. This subsection does not create a private cause of action against a prosecuting agency or an employee of a prosecuting agency.>
8. By renumbering, redesignating, and correcting internal references as necessary.

DAN DAWSON

S–5169

Amend the amendment, S–5154, to House File 2575, as amended, passed, and reprinted by the House as follows:
1. Page 30, after line 34 by inserting:
<DIVISION ___
WAIVER OF FEES
Sec. ___. Section 272C.14, Code 2022, as amended by 2022 Iowa Acts, Senate File 2383, section 22, is amended to read as follows:
272C.14 Waiver of fees.
1. A licensing board, agency, or department~~, or the board of educational examiners~~ shall waive any fee charged to an applicant for a license if the applicant's household income does not exceed two hundred percent of the federal poverty income guidelines and the applicant is applying for the license for the first time in this state.
2. A licensing board, agency, or department~~, or the board of educational examiners~~ shall waive an initial application fee and one renewal fee for an applicant that has been honorably or generally discharged from federal active duty or national guard duty, as those terms are defined in section 29A.1, that would otherwise be charged within five years of the discharge.
Sec. ___. 2022 Iowa Acts, Senate File 2383, section 23, is amended by striking the section and inserting in lieu thereof the following:
SEC. 23. IMPLEMENTATION. Each board, as defined in section 272C.1, shall adopt rules pursuant to chapter 17A as necessary to implement the section of this division of this Act amending section 272C.14, by January 11, 2023.>
2. By renumbering as necessary.

AMY SINCLAIR

S–5170

HOUSE AMENDMENT TO
SENATE FILE 2367

Amend Senate File 2367, as passed by the Senate, as follows:
1. By striking everything after the enacting clause and inserting:

<DIVISION I

SALES, USE, AND EXCISE TAX —— RETURNS DUE

Section 1. Section 9C.3, subsection 3, Code 2022, is amended to read as follows:

3. The application shall state whether or not the applicant has an Iowa retailers sales or use tax permit and if the applicant has such permit, shall state the number of such permit.

Sec. 2. Section 9C.5, Code 2022, is amended to read as follows:

9C.5 Issuance of license.

Upon receiving an application for a transient merchant's license, the secretary of state shall investigate or cause to be investigated, the reputation and character of the applicant. If, upon making such investigation, the secretary of state is satisfied that the statements and representations contained in the application are true, and that the applicant is of good reputation and character, and the holder of an Iowa ~~retailer's~~ sales or use tax permit, and if a foreign corporation, has authority to do business in the state of Iowa, the secretary shall issue to the applicant a license as a transient merchant upon payment of the fee as herein prescribed for the period of time requested in said application and for use at the location and place where it is stated in said application the sale will be held or the business conducted, both of which shall be set out in said license. Such license shall be valid only for the period of time and at the location and place described therein.

Sec. 3. Section 99G.30A, subsection 2, paragraph c, Code 2022, is amended to read as follows:

c. Frequency of deposits and ~~quarterly~~ monthly reports of the monitor vending machine excise tax with the department of revenue are governed by the tax provisions in section 423.31.

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Monitor vending machine excise tax collections shall not be included in computation of the total tax to determine frequency of filing under section 423.31.

Sec. 4. Section 321.105A, subsection 4, paragraph b, Code 2022, is amended to read as follows:

b. Section 422.25, subsection 4, sections 422.30, 422.67, and 422.68, section 422.69, subsection 1, sections 422.70, 422.71, 422.72, 422.74, and 422.75, section 423.14, subsection 2, and sections 423.23, 423.24, 423.25, ~~423.32,~~423.33, 423.35, 423.37 through 423.42, 423.45, and 423.47, consistent with the provisions of this section, apply with respect to the fees for new registration authorized under this section in the same manner and with the same effect as if the fees for new registration were retail use taxes within the meaning of those statutes.

Sec. 5. Section 421.26, Code 2022, is amended to read as follows:

421.26 Personal liability for tax due.

If a licensee or other person under section 452A.65, a retailer or purchaser under chapter 423A, 423B, 423C, 423D, or 423E, or section 423.14, 423.14A, 423.29, 423.31, ~~423.32,~~ or 423.33, or a user under section 423.34, or a permit holder or licensee under section 453A.13, 453A.16, or 453A.44 fails to pay a tax under those sections when due, an officer of a corporation or association, notwithstanding section 489.304, a member or manager of a limited liability company, or a partner of a partnership, having control or supervision of or the authority for remitting the tax payments and having a substantial legal or equitable interest in the ownership of the corporation, association, limited liability company, or partnership, who has intentionally failed to pay the tax is personally liable for the payment of the tax, interest, and penalty due and unpaid. However, this section shall not apply to taxes on accounts receivable. The dissolution of a corporation, association, limited liability company,

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or partnership shall not discharge a person's liability for failure to remit the tax due.

Sec. 6. Section 423.2, subsection 1, paragraph b, Code 2022, is amended to read as follows:

b. Sales of building materials, supplies, and equipment to owners, contractors, subcontractors, or builders for the erection of buildings or the alteration, repair, or improvement of real property are retail sales of tangible personal property in whatever quantity sold. Where the owner, contractor, subcontractor, or builder is also a retailer holding a ~~retail~~ sales or use tax permit and transacting retail sales of building materials, supplies, and equipment, the person shall purchase such items of tangible personal property without liability for the tax if such property will be subject to the tax at the time of resale or at the time it is withdrawn from inventory for construction purposes. The sales tax shall be due in the reporting period when the materials, supplies, and equipment are withdrawn from inventory for construction purposes or when sold at retail. The tax shall not be due when materials are withdrawn from inventory for use in construction outside of Iowa and the tax shall not apply to tangible personal property purchased and consumed by the manufacturer as building materials in the performance by the manufacturer or its subcontractor of construction outside of Iowa. The sale of carpeting is not a sale of building materials. The sale of carpeting to owners, contractors, subcontractors, or builders shall be treated as the sale of ordinary tangible personal property and subject to the tax imposed under this subsection and the use tax.

Sec. 7. Section 423.3, subsection 39, paragraph a, subparagraph (2), Code 2022, is amended to read as follows:

(2) The sale of all or substantially all of the tangible personal property, or specified digital products, or services held or used by a seller in the course of the seller's trade or business for which the seller is required to hold a sales

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or use tax permit when the seller sells or otherwise transfers the trade or business to another person who shall engage in a similar trade or business.

Sec. 8. Section 423.3, subsection 80, paragraph d, Code 2022, is amended to read as follows:

d. Subject to the limitations in paragraph *"c"*, where the owner, contractor, subcontractor, or builder is also a retailer holding a retail sales or use tax permit and transacting retail sales of building materials, supplies, and equipment, the tax shall not be due when materials are withdrawn from inventory for use in construction performed for a designated exempt entity if an exemption certificate is received from such entity.

Sec. 9. Section 423.3, subsection 104, paragraph b, subparagraph (1), Code 2022, is amended to read as follows:

(1) *"Commercial enterprise"* means the same as defined in section 423.3, subsection 47, paragraph *"d"*, subparagraph (1), but also includes professions and occupations, and includes public utilities as defined in section 476.1, subsection 3.

Sec. 10. Section 423.5, subsection 2, Code 2022, is amended to read as follows:

2. The excise tax is imposed upon every person using the property within this state until the tax has been paid directly to the county treasurer, the state department of transportation, a retailer, or the department. This tax is imposed on every person using the services or the product of the services in this state until the user has paid the tax either to an Iowa sales or use tax permit holder or to the department.

Sec. 11. Section 423.14, subsection 2, paragraph b, Code 2022, is amended to read as follows:

b. The tax upon the use of all tangible personal property and specified digital products other than that enumerated in paragraph *"a"*, which is sold by a seller who is a retailer or its agent that is not otherwise required to collect sales tax

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under the provisions of this chapter, may be collected by the retailer or agent and remitted to the department, pursuant to the provisions of paragraph *"e"*, and sections 423.24, 423.29, 423.30, ~~423.32~~ 423.31, and 423.33.

Sec. 12. Section 423.14A, subsection 3, paragraph c, subparagraph (2), Code 2022, is amended to read as follows:

(2) A marketplace facilitator shall collect sales and

use tax on the entire sales price or purchase price paid by a purchaser on each Iowa sale subject to sales and use tax that is made or facilitated by the marketplace facilitator, regardless of whether the marketplace seller for whom an Iowa sale is made or facilitated has or is required to have a ~~retail~~ sales or use tax permit or would have been required to collect sales and use tax had the sale not been facilitated by the marketplace facilitator, and regardless of the amount of the sales price or purchase price that will ultimately accrue to or benefit the marketplace facilitator, the marketplace seller, or any other person. This sales and use tax collection responsibility of a marketplace facilitator applies but shall not be limited to sales facilitated through a computer software application, commonly referred to as in-app purchases, or through another specified digital product.

Sec. 13. Section 423.31, subsections 1, 3, 5, and 6, Code 2022, are amended to read as follows:

1. *a.* ~~Each~~ Except as provided in paragraph *"b"*, each person subject to this section and section 423.36 and in accordance with the provisions of this section and section 423.36 shall, on or before the last day of the month following the close of each calendar ~~quarter~~ month during which such person is or has become or ceased being subject to the provisions of this section and section 423.36, make, sign, and file electronically a return for the calendar ~~quarter~~ month in the form as may be required. Returns shall show information relating to sales prices including tangible personal property, specified digital products, and services converted to the use of such person,

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the amounts of sales prices excluded and exempt from the tax, the amounts of sales prices subject to tax, a calculation of tax due, and any other information for the period covered by the return as may be required. Returns shall be signed by the retailer or the retailer's authorized agent and must be certified by the retailer to be correct in accordance with forms and rules prescribed by the director. A person required to file a sales or use tax return who is unable to do so may request permission from the director to file a return by another method.

b. Notwithstanding paragraph *"a"*, each person subject to this section who collects and remits less than one thousand two hundred dollars in sales or use tax to the department per calendar year may file a return on or before the last day of the month following the close of the calendar year.

3. ~~The sales tax forms prescribed by the director shall be referred to as "retailers tax deposit". Deposit forms shall be signed by the retailer or the retailer's duly authorized agent, and shall be duly certified by the retailer or agent to be correct.~~ The director may authorize incorporated banks and trust companies or other depositories authorized by law which

are depositories or financial agents of the United States, or of this state, to receive any sales or use tax imposed under this chapter, in the manner, at the times, and under the conditions the director prescribes. The director shall prescribe the manner, times, and conditions under which the receipt of the tax by those depositories is to be treated as payment of the tax to the department.

5. *a.* Upon making application and receiving approval from the director, a person and its affiliates that make retail sales of tangible personal property, specified digital products, or taxable enumerated services may make deposits and file a consolidated sales or use tax return for the affiliated group, pursuant to rules adopted by the director. A person and each affiliate that files a consolidated return are jointly and

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severally liable for all tax, penalty, and interest found due for the tax period for which a consolidated return is filed or required to be filed.

b. A business required to file a consolidated sales or use tax return shall file a form entitled "schedule of consolidated business locations" with its ~~quarterly~~ sales or use tax return that shows the taxpayer's consolidated permit number, the permit number for each Iowa business location, the state sales tax amount by business location, and the amount of state sales tax due on goods consumed that are not assigned to a specific business location. Consolidated ~~quarterly~~ sales or use tax returns that are not accompanied by the schedule of consolidated business locations form are considered incomplete and are subject to penalty under section 421.27.

6. If necessary or advisable in order to ~~insure~~ ensure the payment of the tax, the director may require returns and payment of the tax to be made for other than ~~quarterly~~ monthly periods, the provisions of this section or other provision to the contrary notwithstanding.

Sec. 14. Section 423.31, subsection 2, Code 2022, is amended by striking the subsection.

Sec. 15. Section 423.33, subsection 1, paragraph a, Code 2022, is amended to read as follows:

a. If a purchaser fails to pay sales tax to the retailer required to collect the tax, then in addition to all of the rights, obligations, and remedies provided, a use tax is payable by the purchaser directly to the department, and sections 423.31, ~~423.32,~~423.37, 423.38, 423.39, 423.40, 423.41, and 423.42 apply to the purchaser.

Sec. 16. Section 423.33, subsection 3, Code 2022, is amended to read as follows:

3. *Event sponsor's liability for sales tax.* A person sponsoring a flea market or a craft, antique, coin, or stamp show or similar event shall obtain from every retailer selling tangible personal property, specified digital products, or

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taxable services at the event proof that the retailer possesses a valid sales or use tax permit or secure from the retailer a statement, taken in good faith, that tangible personal property, specified digital products, or services offered for sale are not subject to sales tax. Failure to do so renders a sponsor of the event liable for payment of any sales tax, interest, and penalty due and owing from any retailer selling property or services at the event. Sections 423.31, ~~423.32,~~423.37, 423.38, 423.39, 423.40, 423.41, and 423.42 apply to the sponsors. For purposes of this subsection, a *"person sponsoring a flea market or a craft, antique, coin, or stamp show or similar event"* does not include a marketplace facilitator as defined in section 423.14A, subsection 1, an organization which sponsors an event determined to qualify as an event involving casual sales pursuant to section 423.3, subsection 39, or the state fair or a fair as defined in section 174.1.

Sec. 17. Section 423.34, Code 2022, is amended to read as follows:

423.34 Liability of user.

Any person who uses any tangible personal property, specified digital products, or services enumerated in section 423.2 upon which the use tax has not been paid, either to the county treasurer or to a retailer or direct to the department as required by this subchapter, shall be liable for the payment of tax, and shall on or before the last day of the month next succeeding each ~~quarterly~~ monthly period pay the use tax upon all tangible personal property, specified digital products, or services used by the person during the preceding ~~quarterly~~ monthly period in the manner and accompanied by such returns as the director shall prescribe. All of the provisions of sections ~~423.32~~ 423.31 and 423.33 with reference to the returns and payments shall be applicable to the returns and payments required by this section.

Sec. 18. Section 423.36, subsection 4, paragraph b, Code 2022, is amended to read as follows:

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b. If an applicant is making sales outside Iowa for use in this state or furnishing services outside Iowa, the product or result of which will be used in this state, that applicant shall be issued one sales or use tax permit by the department applicable to these out-of-state sales or services.

Sec. 19. Section 423.36, subsection 4, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *c.* If an applicant is required to collect sales or use tax and is not included in the definition of a retailer maintaining a place of business in this state in section 423.1, subsection 48, paragraph *"a"*, subparagraph (1), the applicant shall be issued one sales or use tax permit by

the department regardless of the number of locations from which sales are made.

Sec. 20. Section 423.36, subsections 7 and 8, Code 2022, are amended to read as follows:

7. *a.* Sellers who are not regularly engaged in selling at retail and do not have a permanent place of business, but who are temporarily engaged in selling from trucks, portable roadside stands, concessionaires at state, county, district, or local fairs, carnivals, or the like, shall report and remit the sales tax on a ~~temporary~~ seasonal basis, under rules the director shall provide for the efficient collection of the sales tax. This subsection applies to sellers who are temporarily engaged in furnishing services.

b. Persons engaged in selling tangible personal property, specified digital products, or furnishing services shall not be required to obtain or retain a sales or use tax permit for a place of business at which taxable sales of tangible personal property, specified digital products, or taxable performance of services will not occur.

8. The provisions of subsection 1, dealing with the lawful right of a retailer to transact business, as applicable, apply to persons having receipts from furnishing services enumerated in section 423.2, except that a person holding a permit

pursuant to subsection 1 shall not be required to obtain any separate sales or use tax permit for the purpose of engaging in business involving the services.

Sec. 21. Section 423.40, subsections 1, 2, 3, and 5, Code 2022, are amended to read as follows:

1. In addition to the sales or use tax or additional sales or use tax, the taxpayer shall pay a penalty as provided in section 421.27. The taxpayer shall also pay interest on the sales or use tax or additional sales or use tax at the rate in effect under section 421.7 for each month counting each fraction of a month as an entire month, computed from the date the ~~semimonthly or monthly tax deposit form or~~ return was required to be filed. The penalty and interest shall be paid to the department and disposed of in the same manner as other receipts under this subchapter. Unpaid penalties and interest may be enforced in the same manner as the taxes imposed by this chapter.

2. *a.* Any person who knowingly sells tangible personal property, specified digital products, tickets or admissions to places of amusement and athletic events, or gas, water, electricity, or communication service at retail, or engages in the furnishing of services enumerated in section 423.2, in this state without procuring a permit to collect tax, as provided in section 423.36, or who violates section 423.24 and the officers of any corporation who so act are guilty of a serious misdemeanor.

b. A person who knowingly sells tangible personal property, specified digital products, tickets or admissions to places of amusement and athletic events, or gas, water, electricity, or communication service at retail, or engages in the furnishing of services enumerated in section 423.2, in this state after the person's sales or use tax permit has been revoked and before it has been restored as provided in section 423.36, subsection 6, and the officers of any corporation who so act are guilty of an aggravated misdemeanor.

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3. A person who willfully attempts in any manner to evade any tax imposed by this chapter or the payment of the tax or a person who makes or causes to be made a false or fraudulent ~~semimonthly or monthly tax deposit form or~~ return with intent to evade any tax imposed by subchapter II or III or the payment of the tax is guilty of a class "D" felony.

5. A person required to pay sales or use tax, or to make, sign, or file a ~~tax deposit form or~~ return or supplemental return, who willfully makes a false or fraudulent ~~tax deposit form or~~ return, or willfully fails to pay at least ninety percent of the tax or willfully fails to make, sign, or file the ~~tax deposit form or~~ return, at the time required by law, is guilty of a fraudulent practice.

Sec. 22. Section 423.45, subsection 4, paragraph b, Code 2022, is amended to read as follows:

b. The sales tax liability for all sales of tangible personal property and specified digital products and all sales of services is upon the seller and the purchaser unless the seller takes from the purchaser a valid exemption certificate stating under penalty of perjury that the purchase is for a nontaxable purpose and is not a retail sale as defined in section 423.1, or the seller is not obligated to collect tax due, or unless the seller takes a fuel exemption certificate pursuant to subsection 5. If the tangible personal property, specified digital products, or services are purchased tax free pursuant to a valid exemption certificate and the tangible personal property, specified digital products, or services are used or disposed of by the purchaser in a nonexempt manner, the purchaser is solely liable for the taxes and shall remit the taxes directly to the department and sections 423.31, ~~423.32,~~423.37, 423.38, 423.39, 423.40, 423.41, and 423.42 shall apply to the purchaser.

Sec. 23. Section 423.45, subsection 5, paragraph c, Code 2022, is amended to read as follows:

c. The seller may accept a completed fuel exemption

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certificate, as prepared by the purchaser, for three years unless the purchaser files a new completed exemption

certificate. If the fuel is purchased tax free pursuant to a fuel exemption certificate which is taken by the seller, and the fuel is used or disposed of by the purchaser in a nonexempt manner, the purchaser is solely liable for the taxes, and shall remit the taxes directly to the department and sections 423.31, ~~423.32,~~423.37, 423.38, 423.39, 423.40, 423.41, and 423.42 shall apply to the purchaser.

Sec. 24. Section 423.50, subsection 1, Code 2022, is amended to read as follows:

1. Only one remittance of tax per return is required ~~except as provided in this subsection~~. ~~Sellers that collect more than thirty thousand dollars in sales and use taxes for this state during the preceding calendar year shall be required to make additional remittances as required under rules adopted by the director. The filing of a return is not required with an additional remittance.~~

Sec. 25. Section 423.57, Code 2022, is amended to read as follows:

423.57 Statutes applicable.

The director shall administer this subchapter as it relates to the taxes imposed in this chapter in the same manner and subject to all the provisions of, and all of the powers, duties, authority, and restrictions contained in sections 423.14, 423.14A, 423.14B, 423.15, 423.16, 423.17, 423.19, 423.20, 423.21, 423.22, 423.23, 423.24, 423.25, 423.29, 423.31, ~~423.32,~~423.33, 423.34, 423.34A, 423.35, 423.37, 423.38, 423.39, 423.40, 423.41, and 423.42, section 423.43, subsection 1, and sections 423.45, 423.46, and 423.47.

Sec. 26. Section 423.58, Code 2022, is amended to read as follows:

423.58 Collection, permit, and tax return exemption for certain out-of-state businesses.

Notwithstanding sections 423.14, 423.14A, 423.14B, 423.29,

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423.31, ~~423.32,~~ and 423.36, a person meeting the requirements of section 29C.24 is not required to obtain a sales or use tax permit, collect and remit sales and use tax, or make and file applicable sales or use tax returns, as provided in section 29C.24, subsection 3, paragraph *"a"*, subparagraph (2).

Sec. 27. Section 423A.6, subsection 4, Code 2022, is amended to read as follows:

4. Section 422.25, subsection 4, sections 422.30, 422.67, and 422.68, section 422.69, subsection 1, sections 422.70, 422.71, 422.72, 422.74, and 422.75, section 423.14, subsection 1, and sections 423.23, 423.24, 423.25, 423.31, 423.33, 423.35, 423.37 through 423.42, and 423.47, consistent with the provisions of this chapter, apply with respect to the taxes authorized under this chapter, in the same manner and with the same effect as if the state and local hotel and motel taxes were retail sales taxes within the meaning of those statutes.

Notwithstanding this subsection, the director shall provide for ~~quarterly~~ monthly filing of returns and for other than ~~quarterly~~ monthly filing of returns both as prescribed in section 423.31. The director may require all persons who are engaged in the business of deriving any sales price subject to tax under this chapter to register with the department. All taxes collected under this chapter by a retailer, lodging provider, lodging facilitator, lodging platform, or any other person are deemed to be held in trust for the state of Iowa and the local jurisdictions imposing the taxes.

Sec. 28. Section 423B.5, subsection 3, Code 2022, is amended to read as follows:

3. A tax permit other than the state sales or use tax permit required under section 423.36 shall not be required by local authorities.

Sec. 29. Section 423B.6, subsection 2, paragraph c, Code 2022, is amended to read as follows:

c. Frequency of deposits and ~~quarterly~~ monthly reports of a local sales and services tax with the department of revenue are

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governed by the tax provisions in section 423.31. Local tax collections shall not be included in computation of the total tax to determine frequency of filing under section 423.31.

Sec. 30. Section 423C.4, Code 2022, is amended to read as follows:

423C.4 Administration and enforcement.

All powers and requirements of the director of revenue to administer the state sales tax law under chapter 423 are applicable to the administration of the tax imposed under section 423C.3, including but not limited to section 422.25, subsection 4, sections 422.30, 422.67, and 422.68, section 422.69, subsection 1, sections 422.70 through 422.75, section 423.14, subsection 1, and sections 423.15, 423.23, 423.24, 423.25, 423.31, 423.33, 423.35 and 423.37 through 423.42, 423.45, 423.46, and 423.47. However, as an exception to the powers specified in section 423.31, the director shall only require the filing of ~~quarterly~~ monthly reports.

Sec. 31. Section 423D.4, subsection 3, Code 2022, is amended to read as follows:

3. Section 422.25, subsection 4, sections 422.30, 422.67, and 422.68, section 422.69, subsection 1, sections 422.70, 422.71, 422.72, 422.74, and 422.75, section 423.14, subsection 1, and sections 423.23, 423.24, 423.25, 423.31 through 423.35, 423.37 through 423.42, and 423.47, consistent with the provisions of this chapter, apply with respect to the tax authorized under this chapter, in the same manner and with the same effect as if the excise taxes on equipment sales or use were retail sales taxes within the meaning of those statutes. Notwithstanding this subsection, the director shall provide for ~~quarterly~~ monthly filing of returns and for other than

~~quarterly~~ monthly filing of returns both as prescribed in section 423.31. All taxes collected under this chapter by a retailer or any user are deemed to be held in trust for the state of Iowa.

Sec. 32. Section 423G.5, subsection 3, Code 2022, is amended

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to read as follows:

3. Section 422.25, subsection 4, sections 422.30, 422.67, and 422.68, section 422.69, subsection 1, sections 422.70, 422.71, 422.72, 422.74, and 422.75, section 423.14, subsection 1, and sections 423.23, 423.24, 423.25, 423.31 through 423.35, 423.37 through 423.42, and 423.47, consistent with the provisions of this chapter, shall apply with respect to the tax authorized under this chapter, in the same manner and with the same effect as if the excise taxes on the sale or furnishing of a water service were retail sales taxes within the meaning of those statutes. Notwithstanding this subsection, the director shall provide for ~~quarterly~~ monthly filing of returns and for other than ~~quarterly~~ monthly filing of returns both as prescribed in section 423.31. All taxes collected under this chapter by a retailer or any user are deemed to be held in trust for the state of Iowa.

Sec. 33. Section 728.1, subsection 6, Code 2022, is amended to read as follows:

6. *"Place of business"* means the premises of a business required to obtain a sales or use tax permit pursuant to chapter 423, the premises of a nonprofit or not-for-profit organization, and the premises of an establishment which is open to the public at large or where entrance is limited by a cover charge or membership requirement.

Sec. 34. Section 728.5, subsection 1, unnumbered paragraph 1, Code 2022, is amended to read as follows:

An owner, manager, or person who exercises direct control over a place of business required to obtain a sales or use tax permit shall be guilty of a serious misdemeanor under any of the following circumstances:

Sec. 35. REPEAL. Section 423.32, Code 2022, is repealed.

Sec. 36. TEMPORARY PENALTY AND INTEREST GRACE PERIOD. A taxpayer shall file a return and pay tax pursuant to section 423.31, subsection 1, as amended by this division of this Act. However, if a taxpayer is unable to file a return or pay tax in

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accordance with the changes to section 423.31, subsection 1, as amended by this division of this Act, by July 1, 2022, the taxpayer shall file returns and pay tax for tax periods ending on or before September 30, 2022, according to the taxpayer's registration as of June 30, 2022, and such a taxpayer shall not incur a penalty for doing so. Interest on unpaid payments

for such taxpayers unable to file a return or pay a tax in accordance with the changes to section 423.31, subsection 1, as amended by this division of this Act, shall be suspended until October 1, 2022.

Sec. 37. AUTHORITY TO MODIFY PERMITS. Notwithstanding any provision of law to the contrary, the department of revenue shall have authority to convert, renumber, or combine existing sales tax, retailer's use tax, and consumer's use tax permits for taxpayers holding multiple tax permits in accordance with section 423.31, subsection 1, as amended by this division of this Act.

Sec. 38. IMPLEMENTATION —— EMERGENCY RULES. The department of revenue may adopt emergency rules under section 17A.4, subsection 3, and section 17A.5, subsection 2, paragraph "b", to implement the provisions of this division of this Act and the rules shall be effective immediately upon filing unless a later date is specified in the rules. Any rules adopted in accordance with this section shall also be published as a notice of intended action as provided in section 17A.4.

Sec. 39. EFFECTIVE DATE. The following, being deemed of immediate importance, takes effect upon enactment:

The section of this division of this Act enacting emergency rules relating to the implementation of this division of this Act.

Sec. 40. EFFECTIVE DATE. The following takes effect January 1, 2023:

The section of this division of this Act amending section 423.3, subsection 104, paragraph "b", subparagraph (1).

DIVISION II

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SALES AND USE TAX EXEMPTIONS

Sec. 41. Section 423.3, subsection 47, paragraph a, subparagraph (4), Code 2022, is amended by striking the subparagraph.

Sec. 42. Section 423.3, subsection 68, paragraph c, subparagraph (1), subparagraph division (a), Code 2022, is amended to read as follows:

(a) *"Clothing"* includes but is not limited to the following: aprons, household and shop; athletic supporters; baby receiving blankets; bathing suits and caps; beach capes and coats; belts and suspenders; boots; coats and jackets; costumes; ~~diapers (children and adults, including disposable diapers);~~ earmuffs; footlets; formal wear; garters and garter belts; girdles; gloves and mittens for general use; hats and caps; hosiery; insoles for shoes; lab coats; neckties; overshoes; pantyhose; rainwear; rubber pants; sandals; scarves; shoes and shoelaces; slippers; sneakers; socks and stockings; steel-toed shoes; underwear; uniforms, athletic and nonathletic; and wedding apparel.

Sec. 43. Section 423.3, Code 2022, is amended by adding the

following new subsections:

NEW SUBSECTION. 108. The sales price from the sale of feminine hygiene products. For purposes of this subsection, *"feminine hygiene products"* means tampons, panty liners, menstrual cups, sanitary napkins, and other similar tangible personal property designed for feminine hygiene in connection with the human menstrual cycle.

NEW SUBSECTION. 109. The sales price from the sale of a child or adult diaper, whether cloth or disposable.

Sec. 44. EFFECTIVE DATE. Except as otherwise provided, this division of this Act takes effect January 1, 2023.

Sec. 45. EFFECTIVE DATE. The following takes effect January 1, 2024:

The section of this division of this Act amending section 423.3, subsection 47, paragraph "a", subparagraph (4).

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DIVISION III

DISTRIBUTIONS OF REVENUE TO LOCAL GOVERNMENTS AND SCHOOL DISTRICTS

Sec. 46. Section 423B.7, subsection 2, paragraph a, Code 2022, is amended to read as follows:

a. The director of revenue by ~~August 15 of each fiscal year~~ the last day of each month shall ~~send~~ transfer to each city or county where the local option tax is imposed~~, an estimate of~~ the amount of tax moneys remitted to the department attributable to each city or county ~~will receive for the year and for each month of the year~~ from the preceding month. ~~At the end of each month, the director may revise the estimates for the year and remaining months.~~

Sec. 47. Section 423B.7, subsection 2, paragraphs b and c, Code 2022, are amended by striking the paragraphs.

Sec. 48. Section 423F.2, subsection 4, paragraph a, Code 2022, is amended to read as follows:

a. The director of revenue by ~~August 15 of each fiscal year~~ the last day of each month shall ~~send~~ transfer to each school district ~~an estimate of~~ the amount of tax moneys remitted to the department attributable to each school district ~~will receive for the year and for each month of the year~~ from the preceding month. ~~At the end of each month, the director may revise the estimates for the year and remaining months.~~

Sec. 49. Section 423F.2, subsection 4, paragraph b, Code 2022, is amended by striking the paragraph and inserting in lieu thereof the following:

b. On or before August 15 of each fiscal year the director of revenue shall provide to each school district an estimate of the amount of tax moneys to be distributed to each school district for the current fiscal year.

Sec. 50. Section 423F.2, subsection 4, paragraph c, Code 2022, is amended by striking the paragraph.

Sec. 51. TRANSITION PROVISION FOR LOCAL OPTION SALES TAX AND SECURING AN ADVANCED VISION FOR EDUCATION —— TRANSFER

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AMOUNTS. Notwithstanding any other provision of law to the contrary, the department of revenue shall estimate monthly local option sales tax and securing an advanced vision for education transfer amounts through the end of the 2022 calendar year. The department of revenue shall transfer estimated amounts to each local government or school district for the months of July, August, and September 2022. Beginning with the October 2022 transfer, the department shall not use estimated amounts and shall transfer the amount of tax attributable to each local government or school district for the tax remitted in September 2022. Any adjustment amount that is necessary to the July, August, or September 2022 estimated transfer amount to reflect the accurate attributable amount shall be made by the department of revenue or the local government or school district by the close of business on December 30, 2022.

DIVISION IV

LIABILITY OF SELLERS USING CERTIFIED SERVICE PROVIDER

Sec. 52. Section 423.48, subsection 3, paragraph a, Code 2022, is amended to read as follows:

a. A model 1 seller's obligation to calculate, collect, and remit sales and use taxes shall be performed by its certified service provider, except for the seller's obligation to remit tax on its own purchases. As the seller's agent, the certified service provider is liable for its model 1 seller's sales and use tax due Iowa on all sales transactions it processes for the seller except as set out in this section. A seller that contracts with a certified service provider is not liable to the state for sales or use tax due on transactions processed by the certified service provider unless the ~~seller misrepresents the types of items or services it sells or commits fraud~~ certified service provider establishes that the certified service provider is not liable in accordance with the agreement. In the absence of ~~probable cause to believe that the seller has committed fraud or made a material misrepresentation~~ liability relief established by the certified

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service provider, the seller is not subject to audit on the transactions processed by the certified service provider. A model 1 seller is subject to audit for transactions not processed by the certified service provider. The director is authorized to perform a system check of the model 1 seller and review the seller's procedures to determine if the certified service provider's system is functioning properly and the extent to which the seller's transactions are being processed by the certified service provider.

DIVISION V

AUTHORITY TO CANCEL VARIOUS PERMITS ISSUED BY THE DEPARTMENT

Sec. 53. Section 421.17, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 37. Notwithstanding any other provision of law to the contrary, to cancel the following permits upon verification by the department of revenue the permits are no longer in use: income tax withholding, sales or use tax, or motor fuel tax.

DIVISION VI

ECONOMIC DEVELOPMENT AUTHORITY SALES AND USE TAX REFUND INCENTIVES

Sec. 54. Section 15.331A, subsection 2, Code 2022, is amended to read as follows:

2. To receive the refund, a claim shall be filed by the eligible business with the department of revenue as follows:

a. The contractor or subcontractor shall state under oath, on forms provided by the department of revenue, the amount of the sales of tangible personal property or services rendered, furnished, or performed including water, sewer, gas, and electric utility services upon which sales or use tax has been paid prior to the ~~project~~ contract completion, and shall file the forms with the eligible business before final settlement is made.

b. The eligible business shall, ~~not more than one year~~ after ~~project~~ contract completion, make application to the department

of revenue for any refund of the amount of the sales and use taxes paid pursuant to chapter 423 upon any tangible personal property, or services rendered, furnished, or performed, including water, sewer, gas, and electric utility services. The application shall be made in the manner and upon forms to be provided by the department of revenue, and the department of revenue shall audit the claim and, if approved, issue a warrant to the eligible business in the amount of the sales or use tax which has been paid to the state of Iowa under a contract. The application must be made within one year after the project completion date. A claim filed by the eligible business in accordance with this section shall not be denied by reason of a limitation provision set forth in chapter 421 or 423.

c. The eligible business shall inform the department of revenue in writing after ~~project~~ contract completion. ~~For purposes of this section, *"project completion"* means the first date upon which the average annualized production of finished product for the preceding ninety-day period at the manufacturing facility operated by the eligible business is at least fifty percent of the initial design capacity of the facility.~~

Sec. 55. Section 15.331A, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4. For purposes of this section, *"contract completion"* means the date of completion of a written contract relating to the construction or equipping of the facility that is part of the project of the eligible business.

Sec. 56. Section 15.331C, subsections 1 and 2, Code 2022, are amended to read as follows:

1. ~~An~~ In lieu of the sales and use tax refund provided in section 15.331A, an eligible business may claim a tax credit in an amount equal to the sales and use taxes paid by a third-party developer under chapter 423 for gas, electricity, water, or sewer utility services, goods, wares, or merchandise, or on services rendered, furnished, or performed to or for a

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contractor or subcontractor and used in the fulfillment of a written contract relating to the construction or equipping of a facility of the eligible business. Taxes attributable to intangible property and furniture and furnishings shall not be included, but taxes attributable to racks, shelving, and conveyor equipment to be used in a warehouse or distribution center shall be included. Any credit in excess of the tax liability for the tax year may be credited to the tax liability for the following seven years or until depleted, whichever occurs earlier. An eligible business may elect to receive a refund of all or a portion of an unused tax credit.

2. A third-party developer shall state under oath, on forms provided by the department of revenue, the amount of taxes paid as described in subsection 1 and shall submit such forms to the department of revenue. The taxes paid shall be itemized to allow identification of the taxes attributable to racks, shelving, and conveyor equipment to be used in a warehouse or distribution center. The eligible business shall make application to the department of revenue in the manner and form prescribed by the department of revenue, and within the time for applying for a sales and use tax refund under section 15.331A. After timely receiving the form from the third-party developer and application from the eligible business, the department of revenue shall audit the claim and, if approved, shall issue a tax credit certificate to the eligible business equal to the sales and use taxes paid by a third-party developer under chapter 423 for gas, electricity, water, or sewer utility services, goods, wares, or merchandise, or on services rendered, furnished, or performed to or for a contractor or subcontractor and used in the fulfillment of a written contract relating to the construction or equipping of a facility. The department of revenue shall also issue a tax credit certificate to the eligible business equal to the taxes paid and attributable to racks, shelving, and conveyor equipment to be used in a warehouse or distribution center.

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The aggregate combined total amount of tax refunds under section 15.331A for taxes paid and attributable to racks, shelving, and conveyor equipment to be used in a warehouse or distribution center and of tax credit certificates issued by the department of revenue under this section for the taxes paid and attributable to racks, shelving, and conveyor equipment to be used in a warehouse or distribution center shall not exceed five hundred thousand dollars in a fiscal year. If an applicant for a tax credit certificate does not receive a refund or certificate for the taxes paid and attributable to racks, shelving, and conveyor equipment to be used in a warehouse or distribution center, the application shall be considered in succeeding fiscal years. The eligible business shall not claim a tax credit under this section unless a tax credit certificate issued by the department of revenue is included with the taxpayer's tax return for the tax year for which the tax credit is claimed. A tax credit certificate shall contain the eligible business's name, address, tax identification number, the amount of the tax credit, and other information deemed necessary by the department of revenue.

Sec. 57. Section 15.355, subsection 2, Code 2022, is amended by striking the subsection and inserting in lieu thereof the following:

2. *a.* A housing business may claim a refund of the sales and use taxes paid under chapter 423 prior to the completion of the housing project that are directly related to a housing project and specified in the agreement.

b. To receive a refund, a claim shall be filed by the housing business with the department of revenue as follows:

(1) The contractor or subcontractor shall state under oath, on forms provided by the department of revenue, the amount of sales and use taxes paid under chapter 423 prior to the completion of the housing project that are directly related to a housing project and specified in the agreement.

(2) The contractor or subcontractor shall file the forms

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with the housing business before final settlement is made.

(3) (a) The housing business shall, after the agreement completion date, make application to the department of revenue for any refund of the amount of sales and use taxes paid under chapter 423 prior to the completion of the housing project that were directly related to a housing project and specified in the agreement. The application shall be made in the manner and upon forms to be provided by the department of revenue. The department of revenue shall audit the claim and, if approved, issue a warrant to the housing business. The application must be made within one year after the agreement completion date. A claim filed by the housing business in accordance with

this subsection shall not be denied by reason of a limitation provision set forth in chapter 421 or 423.

(b) For purposes of this subparagraph, *"agreement completion date"* means the date on which the authority notifies the department of revenue that all applicable requirements of the agreement entered into pursuant to section 15.354, subsection 3, paragraph *"a"*, and all applicable requirements of this part, including the rules the authority and the department of revenue adopt pursuant to section 15.356, are satisfied.

c. A contractor or subcontractor who willfully makes a false claim under oath in violation of the provisions of this subsection shall be guilty of a simple misdemeanor and in addition to any other penalty, the contractor or subcontractor shall be liable for the payment of the tax and any applicable penalty and interest.

Sec. 58. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 59. APPLICABILITY. This division of this Act applies to claims for refunds filed on or after the effective date of this division of this Act.

DIVISION VII

FRANCHISE TAX

Sec. 60. Section 422.63, Code 2022, is amended to read as

follows:

422.63 Amount of tax.

1. The franchise tax is imposed annually in an amount equal to ~~five~~ the percent specified in subsection 2 of the net income received or accrued during the taxable year. If the net income of the financial institution is derived from its business carried on entirely within the state, the tax shall be imposed on the entire net income, but if the business is carried on partly within and partly without the state, the portion of net income reasonably attributable to the business within the state shall be specifically allocated or equitably apportioned within and without the state under rules of the director.

2. *a.* For tax years beginning prior to January 1, 2023, five percent.

b. For tax years beginning on or after January 1, 2023, but before January 1, 2024, four and seven-tenths percent.

c. For tax years beginning on or after January 1, 2024, but before January 1, 2025, four and four-tenths percent.

d. For tax years beginning on or after January 1, 2025, but before January 1, 2026, four and one-tenth percent.

e. For tax years beginning on or after January 1, 2026, but before January 1, 2027, three and eight-tenths percent.

f. For tax years beginning on or after January 1, 2027, three and one-half percent.

DIVISION VIII

MANUFACTURED FOOD —— SALES TAX EXEMPTION

Sec. 61. Section 423.3, subsection 49, Code 2022, is amended to read as follows:

49. a. The sales price from the sale of carbon dioxide in a liquid, solid, or gaseous form, electricity, steam, and other taxable services and the lease or rental of tangible personal property when used by a manufacturer ~~of food products~~ to primarily produce ~~marketable food products for human consumption~~ food or food ingredients, including but not limited to treatment of material to change its form, context,

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or condition, in order to produce the food ~~product~~ or food ingredients, maintenance of quality or integrity of the food ~~product~~ or food ingredients, changing or maintenance of temperature levels necessary to avoid spoilage or to hold the food ~~product~~ or food ingredients in marketable condition, maintenance of environmental conditions necessary for the safe or efficient use of machinery and material used to produce the food ~~product~~ or food ingredients, sanitation and quality control activities, formation of packaging, placement into shipping containers, and movement of the material or food ~~product~~ or food ingredients until shipment from the building of manufacture.

b. For purposes of this subsection, *"food or food ingredients"* means the same as *"food and food ingredients"* as defined in subsection 57, paragraph *"d"*, and includes tangible personal property that could be sold for ingestion or chewing by humans but is sold for another use.

Sec. 62. REFUNDS. Refunds of taxes, interest, or penalties which arise from the enactment of this division of this Act, for sales or services occurring between January 1, 2019, and the effective date of this division of this Act, shall be limited to one hundred thousand dollars in the aggregate for any calendar year in which claims are eligible for a refund and shall not be allowed unless refund claims are filed by October 1, 2022, notwithstanding any other law to the contrary. If the amount of claims totals more than one hundred thousand dollars in the aggregate for any calendar year in which claims are eligible for a refund, the department of revenue shall prorate the one hundred thousand dollars in the aggregate among all the claimants for that particular calendar year in relation to the amounts of the claimants' valid claims.

Sec. 63. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 64. RETROACTIVE APPLICABILITY. This division of this Act applies retroactively to January 1, 2019.

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DIVISION IX

MOTOR FUEL REPORTING REQUIREMENT —— PENALTY

Sec. 65. Section 452A.33, subsection 1, paragraph c, Code 2022, is amended to read as follows:

c. (1) The retail dealer shall prepare and ~~submit~~ file the report with the department in a manner and according to procedures required by the department in compliance with section 452A.61. However, the department may require that the retail dealer file the report with the department by electronic transmission. The department may require that retail dealers report to the department on an annual, quarterly, or monthly basis. The department, upon application by a retail dealer, may grant a reasonable extension of time to file the report.

(2) If a retail dealer fails to file the report as required by this section or fails to maintain records required to file the report the department may impose a civil penalty of not more than one hundred dollars per occurrence in addition to any other penalty provided by law. The penalty amount shall be deposited into the general fund of the state.

DIVISION X

SOLAR ENERGY SYSTEM TAX CREDIT

Sec. 66. Section 422.11L, subsection 4, paragraph a, Code 2022, is amended to read as follows:

a. ~~The~~ Except as provided in subsection 7, the cumulative value of tax credits claimed annually by applicants pursuant to this section shall not exceed five million dollars. Of this amount, at least one million dollars shall be reserved for claims associated with or resulting from residential solar energy system installations. In the event that the total amount of claims submitted for residential solar energy system installations in a tax year is an amount less than one million dollars, the remaining unclaimed reserved amount shall be made available for claims associated with or resulting from nonresidential solar energy system installations received for the tax year.

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Sec. 67. Section 422.11L, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 7. *a.* Notwithstanding any other law to the contrary, the department may review or reconsider the following as if the credit did not expire:

(1) Applications for installations that were completed prior to the 2022 calendar year that were denied solely due to the expiration of the credit provided in subsection 1, paragraph *"a"*, regardless of whether the applicant appealed the denial.

(2) Pending applications and new applications for the credit provided in subsection 1, paragraph *"a"*, for installations that were completed during the 2021 calendar year as long as the application is received by June 30, 2022.

(3) The department shall use the original submission date of applications described in this paragraph to determine the order

for reviewing such applications.

b. The cumulative value of tax credits in subsection 3, paragraph *"d"*, subparagraph (2), shall not limit the amount of annual tax credits that may be awarded for valid applications that qualify pursuant to this subsection.

c. A tax credit awarded pursuant to this subsection may be first claimed for the tax year beginning during the 2022 calendar year.

Sec. 68. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 69. RETROACTIVE APPLICABILITY. A tax credit award issued pursuant to this division of this Act applies retroactively to tax years beginning on or after January 1, 2022.

DIVISION XI

INDIVIDUAL INCOME TAX EXCLUSION —— CERTAIN PREMIUM PAY AND BONUSES

Sec. 70. Section 422.7, Code 2022, is amended by adding the following new subsection:

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NEW SUBSECTION. 63. *a.* (1) Subtract to the extent included the amount, not to exceed one thousand dollars, of premium pay, as defined in 42 U.S.C. §802(g)(3), received by a certified peace officer who was designated by the governor as an eligible worker under 42 U.S.C. §802(g)(2).

(2) Subtract, to the extent included, the amount, not to exceed one thousand dollars, of premium pay, as defined in 42 U.S.C. §802(g)(3), received by a correctional officer or medical staff member at a correctional facility who was designated by the governor as an eligible worker under 42 U.S.C. §802(g)(2).

(3) Subtract to the extent included the amount, not to exceed one thousand dollars, of premium pay, as defined in 42 U.S.C. §802(g)(3), received by a teacher employed by an independently accredited school or a teacher employed by the state who was designated by the governor as an eligible worker under 42 U.S.C. §802(g)(2).

(4) Subtract to the extent included the amount of a teacher retention payment, not to exceed one thousand dollars, received by a teacher that was funded from moneys received by the state from the elementary and secondary school emergency relief funds pursuant to the federal Coronavirus Response and Relief Supplemental Appropriations Act, 2021, Pub. L. No. 116-260, or the federal American Rescue Plan Act of 2021, Pub. L. No. 117-2.

(5) Subtract to the extent included the amount of a teacher retention payment, not to exceed one thousand dollars, received by a teacher employed by a private school or specially accredited school, that was funded from the private sector worker premium pay program administered by the department of

education that was funded from state moneys.

(6) Subtract to the extent included the amount of a recruitment and retention bonus, not to exceed one thousand dollars, received by a child care worker through the recruitment and retention bonus program administered by the

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department of human services.

b. An employer or any payor of an amount to an individual under paragraph *"a"* pursuant to a program described in paragraph *"a"* shall report the amount paid to each individual to the department of revenue in the manner and form required by the department.

c. Notwithstanding any provision of law to the contrary, public records related to the distribution of funds under this subsection shall be kept confidential to the extent that the release of such information would reveal the personal identifying information of a peace officer defined in section 801.4, subsection 11.

d. The department may adopt rules pursuant to chapter 17A to administer this subsection.

e. This subsection is repealed January 1, 2026.

Sec. 71. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 72. RETROACTIVE APPLICABILITY. This division of this Act applies retroactively to January 1, 2022, for tax years beginning on or after January 1, 2022, but before January 1, 2023, for payments received in the 2022 calendar year.>

2. Title page, by striking lines 1 through 7 and inserting

<An Act relating to state taxation by specifying when returns are due, striking sales tax exemptions and exempting other products, and modifying distributions of revenue to local governments and school districts, the liability of sellers, the franchise tax, motor fuel tax reporting, tax refunds and credits, and the individual state income tax, and providing penalties, and including effective date, applicability, and retroactive applicability provisions.>

S–5171

Amend the amendment, S–5149, to House File 2558, as amended, passed, and reprinted by the House, as follows:

1. By striking page 5, line 16, through page 6, line 5.

2. By renumbering as necessary.

NATE BOULTON

S–5172

Amend the amendment, S–5149, to House File 2558, as amended, passed, and reprinted by the House, as follows:

1. Page 6, after line 5 by inserting:

<Sec. ___. Section 602.1205, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 3. *a.* The district court shall try civil cases in the order in which cases are initiated by the filing of a petition, provided that the following cases shall be entitled to a preference:

(1) Actions that have been revived pursuant to section 614.1, subsection 12, paragraph *"b"*, or section 614.8A, subsection 2.

(2) An action in which the interests of justice, as determined by the supreme court, will be served by early trial.

b. The court shall adopt rules to implement this subsection.

c. Unless the court otherwise orders, notice of a motion for preference shall be served with the petition by the party serving the petition, or ten days after such service by any other party.>

2. Page 6, after line 21 by inserting:

<Sec. ___. Section 614.1, subsection 12, Code 2022, is amended to read as follows:

12. *Sexual abuse or sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction.*

a. (1) ~~An~~ If the victim was eighteen years of age or older, an action for damages for injury suffered as a result of sexual abuse, as defined in section 709.1, by a counselor, therapist, school employee, or adult providing training or instruction, as defined in section 709.15, or as a result of sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction shall be brought within five years of the date the victim was last treated by the counselor or therapist, or within five years of the date the victim was last enrolled in or attended the school.

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(2) If the victim was a minor, an action for damages for injury suffered as a result of sexual abuse, as defined in section 709.1, by a counselor, therapist, school employee, or adult providing training or instruction, as defined in section 709.15, or as a result of sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction shall be brought at any time.

b. (1) Notwithstanding paragraph *"a"*, subparagraph (2), every claim or cause of action brought against any party alleging intentional or negligent acts or omissions by a person for physical, psychological, or other injury or condition suffered as a result of conduct which would constitute sexual abuse as defined in section 709.1, by a counselor, therapist, school employee, or adult providing training or instruction, as defined in section 709.15, or as a result of sexual exploitation by a counselor, therapist, school employee, or

adult providing training or instruction, which is barred as of the effective date of this Act because the applicable period of limitation has expired or the plaintiff previously failed to file a petition, is revived, and action thereon may be commenced not later than three years after the effective date of the Act.

(2) Dismissal of a previous action, ordered before the effective date of the Act, on grounds that such previous action was time-barred, or for failure of a party to file a petition, shall not be grounds for dismissal of a revival action pursuant to this paragraph.

Sec. ___. Section 614.8, Code 2022, is amended to read as follows:

614.8 Minors and persons with mental illness.

1. ~~The~~ Except as provided in section 614.1, subsection 12, or section 614.8A, the times limited for actions in this chapter, or for complaints or claims in chapter 216, 669, or 670, except those brought for penalties and forfeitures, are extended in favor of persons with mental illness, so that they

shall have one year from and after the termination of the disability within which to file a complaint pursuant to chapter 216, to make a claim pursuant to chapter 669 or 670, or to otherwise commence an action.

2. Except as provided in section 614.1, subsection 9 or 12, or section 614.8A, the times limited for actions in this chapter, or for complaints or claims in chapter 216, 659A, 669, or 670, except those brought for penalties and forfeitures, are extended in favor of minors, so that they shall have one year from and after attainment of majority within which to file a complaint pursuant to chapter 216, to make a claim pursuant to chapter 669, or to otherwise commence an action.

Sec. ___. Section 614.8A, Code 2022, is amended to read as follows:

614.8A ~~Damages~~ Commencement of action for minor or child sexual abuse and other sexual offenses —— no time limitation.

~~An action for damages for injury suffered as a result of sexual abuse which occurred when the injured person was a child, but not discovered until after the injured person is of the age of majority, shall be brought within four years from the time of discovery by the injured party of both the injury and the causal relationship between the injury and the sexual abuse.~~

1. Notwithstanding the times limited for actions in this chapter, an action relating to injuries suffered as a result of sexual abuse as defined in section 802.2, and injuries suffered as a result of other sexual offenses including lascivious acts with a child in violation of section 709.8, assault with intent to commit sexual abuse in violation of section 709.11, indecent contact with a child in violation of section 709.12, lascivious

conduct with a minor in violation of section 709.14, sexual misconduct with a juvenile in violation of section 709.16, subsection 2, child endangerment in violation of section 726.6, or sexual exploitation of a minor in violation of section 728.12, which occurred when the injured party was a minor may

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be brought at any time.

2. *a.* Notwithstanding subsection 1, every claim or cause of action brought against any party alleging intentional or negligent acts or omissions by a person for physical, psychological, or other injury or condition suffered as a result of conduct which would constitute sexual abuse as defined in section 709.1, by a counselor, therapist, or school employee as defined in section 709.15, subsection 1, or as a result of sexual exploitation by a counselor, therapist, or school, which is barred as of the effective date of this Act because the applicable period of limitation has expired or the plaintiff previously failed to file a petition, is hereby revived, and action thereon may be commenced not later than three years after the effective date of this Act.

b. Dismissal of a previous action, ordered before the effective date of this Act, on grounds that such previous action was time-barred, or of failure of a party to file a petition, shall not be grounds for dismissal of a revival action pursuant to this section.>

3. By renumbering as necessary.

JANET PETERSEN

S–5173

Amend House File 2468, as amended, passed, and reprinted by the House, as follows:

1. Page 1, after line 8 by inserting:

<Sec. ___. Section 602.1205, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 3. *a.* The district court shall try civil cases in the order in which cases are initiated by the filing of a petition, provided that the following cases shall be entitled to a preference:

(1) Actions that have been revived pursuant to section 614.1, subsection 12, paragraph *"b"*, or section 614.8A, subsection 2.

(2) An action in which the interests of justice, as determined by the supreme court, will be served by early trial.

b. The court shall adopt rules to implement this subsection.

c. Unless the court otherwise orders, notice of a motion for preference shall be served with the petition by the party

serving the petition, or ten days after such service by any other party.

Sec. ___. Section 614.1, subsection 12, Code 2022, is amended to read as follows:

12. *Sexual abuse or sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction.*

a. (1) ~~An~~ If the victim was eighteen years of age or older, an action for damages for injury suffered as a result of sexual abuse, as defined in section 709.1, by a counselor, therapist, school employee, or adult providing training or instruction, as defined in section 709.15, or as a result of sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction shall be brought within five years of the date the victim was last treated by the counselor or therapist, or within five years of the date the victim was last enrolled in or attended the school.

(2) If the victim was a minor, an action for damages for

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injury suffered as a result of sexual abuse, as defined in section 709.1, by a counselor, therapist, school employee, or adult providing training or instruction, as defined in section 709.15, or as a result of sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction shall be brought at any time.

b. (1) Notwithstanding paragraph *"a"*, subparagraph (2), every claim or cause of action brought against any party alleging intentional or negligent acts or omissions by a person for physical, psychological, or other injury or condition suffered as a result of conduct which would constitute sexual abuse as defined in section 709.1, by a counselor, therapist, school employee, or adult providing training or instruction, as defined in section 709.15, or as a result of sexual exploitation by a counselor, therapist, school employee, or adult providing training or instruction, which is barred as of the effective date of this Act because the applicable period of limitation has expired or the plaintiff previously failed to file a petition, is revived, and action thereon may be commenced not later than three years after the effective date of the Act.

(2) Dismissal of a previous action, ordered before the effective date of this Act, on grounds that such previous action was time-barred, or for failure of a party to file a petition, shall not be grounds for dismissal of a revival action pursuant to this paragraph.

Sec. ___. Section 614.8, Code 2022, is amended to read as follows:

614.8 Minors and persons with mental illness.

1. ~~The~~ Except as provided in section 614.1, subsection 12, or section 614.8A, the times limited for actions in this

chapter, or for complaints or claims in chapter 216, 669, or 670, except those brought for penalties and forfeitures, are extended in favor of persons with mental illness, so that they shall have one year from and after the termination of the

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disability within which to file a complaint pursuant to chapter 216, to make a claim pursuant to chapter 669 or 670, or to otherwise commence an action.

2. Except as provided in section 614.1, subsection 9 or 12, or section 614.8A, the times limited for actions in this chapter, or for complaints or claims in chapter 216, 659A, 669, or 670, except those brought for penalties and forfeitures, are extended in favor of minors, so that they shall have one year from and after attainment of majority within which to file a complaint pursuant to chapter 216, to make a claim pursuant to chapter 669, or to otherwise commence an action.

Sec. ___. Section 614.8A, Code 2022, is amended to read as follows:

614.8A ~~Damages~~ Commencement of action for minor or child sexual abuse and other sexual offenses —— no time limitation.

~~An action for damages for injury suffered as a result of sexual abuse which occurred when the injured person was a child, but not discovered until after the injured person is of the age of majority, shall be brought within four years from the time of discovery by the injured party of both the injury and the causal relationship between the injury and the sexual abuse.~~

1. Notwithstanding the times limited for actions in this chapter, an action relating to injuries suffered as a result of sexual abuse as defined in section 802.2, and injuries suffered as a result of other sexual offenses including lascivious acts with a child in violation of section 709.8, assault with intent to commit sexual abuse in violation of section 709.11, indecent contact with a child in violation of section 709.12, lascivious conduct with a minor in violation of section 709.14, sexual misconduct with a juvenile in violation of section 709.16, subsection 2, child endangerment in violation of section 726.6, or sexual exploitation of a minor in violation of section 728.12, which occurred when the injured party was a minor may be brought at any time.

Page 4

2. *a.* Notwithstanding subsection 1, every claim or cause of action brought against any party alleging intentional or negligent acts or omissions by a person for physical, psychological, or other injury or condition suffered as a result of conduct which would constitute sexual abuse as defined in section 709.1, by a counselor, therapist, or school employee as defined in section 709.15, subsection 1, or as a

result of sexual exploitation by a counselor, therapist, or school, which is barred as of the effective date of this Act because the applicable period of limitation has expired or the plaintiff previously failed to file a petition, is hereby revived, and action thereon may be commenced not later than three years after the effective date of this Act.

b. Dismissal of a previous action, ordered before the effective date of this Act, on grounds that such previous action was time-barred, or of failure of a party to file a petition, shall not be grounds for dismissal of a revival action pursuant to this section.>

2. Page 1, line 9, by striking <This Act> and inserting <The section of this Act enacting section 679A.20>

3. Title page, line 2, by striking <proceedings and including> and inserting <proceedings, modifying the periods of time to bring certain civil actions, including by victims of sexual abuse, minors, and persons with mental illness, entitling certain cases to a preference in trial order, and including effective date provisions and>

4. By renumbering as necessary.

JACKIE SMITH

S–5174

Amend House File 2431, as amended, passed, and reprinted by the House, as follows:

1. Page 1, before line 1 by inserting:

<DIVISION I

RAW MILK

Section 1. NEW SECTION. **137D.2A Raw milk, raw milk products, and raw milk dairy products.**

A home food processing establishment shall not advertise for sale, offer for sale, sell or otherwise distribute, or use raw milk, a raw milk product, or a raw milk dairy product as provided in section 192.145.

Sec. ___. Section 137F.1, subsection 8, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *o.* (1) The premises of a raw milk dairy where raw milk is produced, processed, labeled, marketed, or distributed by a raw milk producer in compliance with section 192.145.

(2) The premises of a raw milk dairy where a raw milk product or a raw milk dairy product is manufactured, labeled, marketed, or distributed by a raw milk producer in compliance with section 192.145.

Sec. ___. Section 137F.1, subsection 9, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *d.* (1) The premises of a raw milk dairy where raw milk is produced, processed, labeled, marketed, or distributed by a raw milk producer in compliance with section 192.145.

(2) A premises of a raw milk dairy where a raw milk product or raw milk dairy product is manufactured, labeled, marketed, or distributed by a raw milk producer in compliance with section 192.145.

Sec. ___. NEW SECTION. **137F.8B Raw milk, raw milk products, and raw milk dairy products.**

A food establishment or farmers market shall not advertise for sale, offer for sale, sell or otherwise distribute, or use

Page 2

raw milk, a raw milk product, or a raw milk dairy product, regardless of whether the food establishment or farmers market is regulated by the department under this chapter or another chapter, another state agency, or a municipality.

Sec. ___. Section 159.6, subsection 6, Code 2022, is amended to read as follows:

6. Regulation and inspection of foods, drugs, and other articles, as provided in ~~Title V,~~ subtitle 4~~, but~~. However, chapter 205 ~~of that subtitle~~ shall be enforced as provided in that chapter. Except as expressly authorized in subtitle 4, the department shall not regulate any of the following:

a. The production, processing, labeling, marketing, or distribution of raw milk by a raw milk producer in compliance with section 192.145.

b. The manufacture, labeling, marketing, or distribution of a raw milk product or raw milk dairy product by a raw milk producer in compliance with section 192.145.

Sec. ___. Section 191.2, subsection 5, Code 2022, is amended to read as follows:

5. ~~All bottles, containers, and packages~~ *Bottles, containers, and packages.* Except as provided in subsection 5A, a container or package enclosing milk or a milk ~~products~~ product shall be conspicuously labeled or marked with all of the following:

a. The name of the contents as given in the definitions of this chapter and chapters 190 and 192.

b. The word "reconstituted" or "recombined" if the product is made by reconstitution or recombination.

c. The grade of the contents.

d. The word "pasteurized" ~~if the contents are pasteurized and the identity of.~~ The package or container shall identify the plant where the milk or milk product is pasteurized.

~~*e.* The word "raw" if the contents are raw and the name or other identity of the producer.~~

~~*f.*~~ *e.* The designation vitamin "D" and the number of

Page 3

U.S.P. units per quart in the case of vitamin "D" milk or milk products.

~~*g.*~~ *f.* The volume or proportion of water to be added for

recombining in the case of concentrated milk or milk products.

~~*h.*~~ *g.* The words "nonfat milk solids added" and the percentage added if such solids have been added, except that this requirement shall not apply to reconstituted or recombined milk and milk products.

~~*i.*~~ *h.* The words "artificially sweetened" in the name if nonnutritive or artificial sweeteners or both are used.

~~*j.*~~ *i.* The common name of stabilizers, distillates, and ingredients, provided that:

(1) Only the identity of the milk producer shall be required on cans delivered to a milk plant as provided in chapter 192 ~~which~~ that receives only grade "A" raw milk for pasteurization, and ~~which~~ that immediately dumps, washes, and returns the cans to the milk producer.

(2) The identity of both milk producer and the grade shall be required on cans delivered to a milk plant as provided in chapter 192 ~~which~~ that receives both grade "A" raw milk for pasteurization and ungraded raw milk and ~~which~~ that immediately dumps, washes, and returns the cans to the milk producer.

(3) In the case of concentrated milk products, the specific name of the product shall be substituted for the generic term "concentrated milk products", e.g., "homogenized concentrated milk", "concentrated skim milk", "concentrated chocolate milk", "concentrated chocolate flavored low fat milk".

(4) In the case of flavored milk or flavored reconstituted milk, the name of the principal flavor shall be substituted for the word "flavored".

(5) In the case of cultured milk and milk products, the special type culture used may be substituted for the word "cultured", e.g., "acidophilus buttermilk", "Bulgarian buttermilk", and "yogurt".

Sec. ___. Section 191.2, Code 2022, is amended by adding the

Page 4

following new subsection:

NEW SUBSECTION. 5A. *Raw milk, raw milk products, and raw milk dairy products.* A container holding raw milk, a raw milk product, or a raw milk dairy product sold by a raw milk producer shall be labeled as required in section 191.9A.

Sec. ___. NEW SECTION. **191.9A Raw milk dairies —— sale of raw milk, raw milk products, and raw milk dairy products.**

1. A raw milk producer who sells raw milk, a raw milk product, or a raw milk dairy product to an individual in compliance with section 192.145 shall label the container holding the raw milk, raw milk product, or raw milk dairy product. The label shall be permanently affixed to the container. The words on the label shall be printed using upper case letters in at least twelve point boldface type. If the container includes a main informational or advertising panel, the label shall be part of the panel.

2. *a.* For a container holding raw milk, the label shall

state the following:

Notice to Consumers

This container holds raw milk not subject to state inspection or other public health regulations that require pasteurization and grading.

b. For a container holding a raw milk product or raw milk dairy product, the label shall state the following:

Notice to Consumers

This container holds a raw milk product or raw milk dairy product that is not subject to state inspection or other public health regulations that require pasteurization and grading.

Sec. ___. Section 192.103, subsections 1 and 2, Code 2022, are amended to read as follows:

1. Only grade "A" pasteurized milk and milk products shall be sold to the final consumer, or to restaurants, soda fountains, grocery stores, or similar establishments~~. However, in an~~ except as follows:

a. In an emergency, the sale of pasteurized milk and milk

Page 5

products ~~which~~ that have not been graded, or the grade of which is unknown, may be authorized by the secretary, in which case, such products shall be labeled "ungraded".

b. A raw milk producer may sell raw milk, a raw milk product, or a raw milk dairy product to an individual in compliance with section 192.145.

2. ~~No~~ A person shall not within the state produce, provide, sell, offer, or expose for sale, or have in possession with intent to sell, any milk or milk product ~~which~~ that is adulterated or misbranded. However, in an emergency, the sale of pasteurized milk and milk products ~~which~~ that have not been graded, or the grade of which is unknown, may be authorized by the secretary, in which case such products shall be labeled "ungraded".

Sec. ___. NEW SECTION. **192.144 Definitions.**

As used in this subchapter, unless the context otherwise requires:

1. *"Dairy animal"* means a cow, goat, or sheep that is actively producing milk.

2. *"Dairy product"* means a product, other than a milk product, in which milk is the principal ingredient at any temperature and in either a manufactured or unmanufactured state. To the extent that it is not classified as a milk product, a dairy product includes but is not limited to butter, cheese, cream, cottage cheese, ricotta cheese, kefir, or ice cream.

3. *"Manufacture"* means to convert or condition personal property by changing the form, composition, quality, or character of a product, and includes activities associated with a creamery or cheese factory.

4. *"Raw milk"* means milk that is not pasteurized or graded.

5. *"Raw milk dairy"* means an operation where not more than a total of ten dairy animals are maintained, and milk produced from any of those animals is not pasteurized or graded.

6. *"Raw milk dairy product"* means a dairy product that

Page 6

includes raw milk or a raw milk product.

7. *"Raw milk producer"* means a person who owns or operates a raw milk dairy.

8. *"Raw milk product"* means a milk product that includes raw milk.

Sec. ___. NEW SECTION. **192.145 Raw milk dairies —— production, processing, marketing, and distribution.**

1. A raw milk producer may elect to process, market, or distribute raw milk produced at the raw milk producer's raw milk dairy in compliance with this section. A raw milk producer may also elect to use the raw milk to manufacture, market, or distribute a raw milk product or raw milk dairy product at the raw milk producer's raw milk dairy in compliance with this section. If a raw milk producer makes either election, all of the following apply:

a. The raw milk producer shall not pasteurize or grade milk produced from dairy animals maintained at the raw milk dairy.

b. The raw milk producer shall ensure the health and safety of consumers of the raw milk produced from dairy animals maintained at the raw milk dairy by doing all of the following:

(1) Each month, test each dairy animal to determine a coliform count and standard plate count. The raw milk producer shall maintain a record of each test. The raw milk producer shall retain the record at the raw milk dairy for at least three years.

(2) Each twelve-month period, employ a licensed veterinarian to examine each dairy animal to determine the dairy animal's health status. The examination must at least include a blood test for common diseases afflicting the type of dairy animal being examined.

2. A raw milk producer shall only take an order for the distribution of raw milk at the raw milk producer's raw milk dairy where the raw milk was produced. The raw milk producer shall only distribute the raw milk to an individual placing the order. The raw milk producer may distribute the raw milk to

Page 7

the individual without charge or on a retail basis.

a. The raw milk producer shall post the summary of the test to determine the coliform count and standard plate count of the dairy animals maintained at the raw milk dairy as provided in subsection 1. The summary shall be posted at the raw milk dairy's distribution point for the raw milk. The individual being distributed the raw milk may examine the records for the

three-year period that the records are required to be retained by the raw milk producer under subsection 1.

b. If the raw milk producer sells raw milk in a container, the container shall be labeled as provided in section 191.9A.

c. The raw milk producer shall distribute the raw milk directly to the individual at the raw milk dairy or to a location specified by the individual. However, a person shall not deliver the raw milk to a place of business where food items are distributed on a retail basis, including but not limited to a home food processing establishment regulated under chapter 137D or a food establishment or farmers market regulated under chapter 137F. The raw milk shall only be used for consumption by the individual, members of the individual's household, and the individual's nonpaying guests or nonpaying employees.

d. A person shall not resell raw milk.

3. A raw milk producer shall only take an order for the distribution of a raw milk product or raw milk dairy product at the raw milk producer's raw milk dairy where the raw milk product or raw milk dairy product is manufactured. The raw milk producer shall only distribute the raw milk product or raw milk dairy product to an individual placing the order. The raw milk producer may distribute the raw milk product or raw milk dairy product to the individual without charge or on a retail basis.

a. The raw milk producer shall post the summary of the most recent test to determine the coliform count and standard plate count of dairy animals maintained at the raw milk dairy as

Page 8

provided in subsection 1. The summary shall be posted at the raw milk dairy's distribution point for the raw milk products or raw milk dairy products. The individual being distributed the raw milk product or raw milk dairy product may examine the records for the three-year period that the records are required to be retained by the raw milk producer under subsection 1.

b. If the raw milk producer sells a raw milk product or raw milk dairy product in a container, the container shall be labeled as provided in section 191.9A.

c. The raw milk producer shall distribute the raw milk product or raw milk dairy product directly to the individual at the raw milk dairy or to a location specified by the individual. However, a person shall not deliver the raw milk product or raw milk dairy product to a place of business where food items are distributed on a retail basis, including but not limited to a home food processing establishment regulated under chapter 137D or a food establishment or farmers market regulated under chapter 137F. The raw milk product or raw milk dairy product shall only be used for consumption by the individual, members of the individual's household, or the individual's nonpaying guests or nonpaying employees.

d. A person shall not resell the raw milk product or raw milk dairy product.

4. Based on an affidavit signed by a licensed physician certifying that in the physician's opinion an individual contracted an illness as a direct result of consuming raw milk produced at a raw milk dairy, or consuming a raw milk product or a raw milk dairy product manufactured at a raw milk dairy, the Iowa department of public health acting under chapter 135 or a local board of health acting under chapter 137 may demand that the raw milk producer provide it with all records of tests to determine the coliform count and standard plate count of dairy animals maintained at the raw milk dairy as required in subsection 1.

5. The department shall not adopt rules to administer or

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enforce this section.

6. This chapter does not apply to a receiving station, transfer station, milk handler, milk grader, or milk plant. A raw milk dairy is not a food establishment, food processing plant, or other person regulated under chapter 137F or other chapter regulating such entities.

Sec. ___. NEW SECTION. **194.22 Raw milk dairies —— production, processing, manufacturing, marketing, and distribution —— exceptions.**

This chapter does not apply to any of the following:

1. The production, processing, marketing, and distribution of raw milk, if the raw milk is produced by a raw milk producer at a raw milk dairy in compliance with section 192.145.

2. The manufacture, marketing, and distribution of a raw milk product or raw milk dairy product, if the raw milk product or raw milk dairy product is manufactured by a raw milk producer at a raw milk dairy in compliance with section 192.145.

DIVISION ___

HOME FOOD PROCESSING ESTABLISHMENTS AND OTHER HOME-BASED BUSINESSES>

2. Title page, line 1, after <of> by inserting <raw milk dairies and>

3. Title page, line 3, by striking <civil>

4. By renumbering as necessary.

TONY BISIGNANO

S–5175

Amend the amendment, S–5129, to House File 2573, as passed by the House, as follows:

1. Page 1, by striking lines 2 through 32 and inserting:

<___. Page 1, after line 28 by inserting:

<Sec. ___. Section 135.190, subsection 1, paragraph d, Code

2022, is amended to read as follows:

d. "Person in a position to assist" means a family member, friend, caregiver, health care provider, employee of a substance abuse treatment facility, school employee, or other person who may be in a place to render aid to a person at risk of experiencing an opioid-related overdose.

Sec. ___. Section 135.190, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 4A. A school district may obtain a valid prescription for an opioid antagonist and maintain a supply of opioid antagonists in a secure location at each location where a student may be present for use as provided in this section.>

___. Page 3, after line 4 by inserting:

<Sec. ___. APPROPRIATION —— OPIOID SETTLEMENT FUND. There is appropriated from the opioid settlement fund created in section 12.51 to the department of justice for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the following amount, or so much thereof as is necessary, to be used for a medication addiction treatment program administered by the university of Iowa hospitals and clinics:

..... $ 3,800,000

Notwithstanding section 8.33, moneys appropriated in this section that remain unencumbered or unobligated at the close of the fiscal year shall not revert but shall remain available for expenditure for the purposes designated until the close of the succeeding fiscal year.>

___. Title page, by striking line 2 and inserting <to opioid use, allowing school districts to obtain opioid antagonist prescriptions, and making an appropriation.>>

2. By renumbering as necessary.

JULIAN B. GARRETT

S–5176

Amend House File 771, as amended, passed, and reprinted by the House, as follows:

1. Page 1, line 5, by striking <**or bronchodilator**> and inserting <**bronchodilator canisters, or bronchodilator**>

2. Page 2, line 5, after <canister> by inserting <or bronchodilator canister>

3. Page 2, line 11, after <canister> by inserting <or a bronchodilator canister>

4. Page 2, line 17, after <canister> by inserting <, bronchodilator canister>

5. Page 2, line 20, after <canister> by inserting <, bronchodilator canister>

6. Page 2, line 30, after <canister> by inserting <or a bronchodilator canister>

7. Page 2, line 35, after <canister> by inserting <or a bronchodilator canister>

8. Page 3, line 4, after <canister> by inserting <, a

bronchodilator canister>
9. Page 3, line 8, after <canister> by inserting <or a bronchodilator canister>
10. Page 3, line 11, after <canister> by inserting <or a bronchodilator canister>
11. Page 3, line 24, by striking <and spacer or> and inserting <, a bronchodilator canister and spacer, or>
12. Page 3, line 32, by striking <and spacer or> and inserting <, a bronchodilator canister and spacer, or>
13. Page 4, line 7, after <**auto-injector**> by inserting <, **bronchodilator canister,**>
14. Page 4, line 22, by striking <or a > and inserting <, a bronchodilator canister, or a>
15. Page 4, line 32, after <auto-injectors> by inserting <, bronchodilator canisters,>
16. Page 5, line 3, after <auto-injectors> by inserting <, bronchodilator canisters,>
17. Page 5, line 5, after <auto-injectors> by inserting <,

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bronchodilator canisters,>
18. Page 5, line 8, after <auto-injectors> by inserting <, bronchodilator canisters,>
19. Page 5, line 11, by striking <or> and inserting <, bronchodilator canisters, or>
20. Page 5, line 16, after <auto-injector> by inserting <, a bronchodilator canister,>
21. Page 5, line 26, after <auto-injector> by inserting <, a bronchodilator canister,>
22. Page 5, line 33, after <canister> by inserting <or a bronchodilator canister>
23. Page 6, line 6, by striking <or> and inserting <, the bronchodilator canister, or the>
24. Page 6, line 15, after <auto-injectors> by inserting <, bronchodilator canisters,>
25. Title page, line 2, after <bronchodilators> by inserting <, bronchodilator canisters,>
26. By renumbering as necessary.

KEN ROZENBOOM

S–5177

HOUSE AMENDMENT TO
SENATE AMENDMENT TO
HOUSE FILE 2558

Amend the Senate amendment, H–8387, to House File 2558, as amended, passed, and reprinted by the House, as follows:
1. Page 5, by striking lines 16 through 22 and inserting:
<Sec. ___. Section 46.3, subsection 3, Code 2022, is amended

to read as follows:

3. No more than ~~a simple majority~~ half of the commissioners appointed shall be of the same gender.>

2. By striking page 5, line 23, through page 6, line 5, and inserting:

<Sec. ___. Section 46.6, subsection 2, Code 2022, is amended to read as follows:

2. The judge of longest service in the district shall serve ~~as the chair of a particular~~ on the district judicial nominating commission. If the judges of longest service in the district are of equal service, the eldest of such judges shall ~~be chairperson of the particular~~ serve on the judicial nominating commission. The commissioners of the district judicial nominating commission shall elect a chairperson from their own number. The chairperson shall serve a two-year term that expires on April 30 of even-numbered years. A commissioner may be reelected for a second or third term as chairperson. If a chairperson of a judicial nominating commission desires to be relieved of the duties of chairperson while retaining the status of commissioner, the chairperson shall notify the governor and the other commissioners of the commission. At the next meeting of the commission, the commissioners shall elect a new chairperson for the remainder of the two-year term.>

3. By renumbering as necessary.

S–5178

Amend House File 2130, as amended, passed, and reprinted by the House, as follows:

1. By striking everything after the enacting clause and inserting:

<Section 1. Section 321.234A, subsection 1, paragraph f, Code 2022, is amended to read as follows:

f. The all-terrain vehicle is operated on a ~~county roadway~~ primary highway in accordance with section 321I.10, subsection 1A, a secondary road in accordance with section 321I.10, subsection 2, or a city street in accordance with section 321I.10, subsection 3.

Sec. 2. Section 321.234A, subsection 2, Code 2022, is amended to read as follows:

2. A person operating an all-terrain vehicle on a highway shall have a valid driver's license and ~~the vehicle shall be operated~~ operate the vehicle at speeds of thirty-five miles per hour or less. In addition, a person operating an all-terrain vehicle on a highway pursuant to subsection 1, paragraphs *"b"* through *"g"*, shall be at least eighteen years of age and have financial liability coverage in effect for the vehicle and carry proof of such financial liability coverage in accordance with section 321.20B.

Sec. 3. Section 321.234A, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 2A. As provided in section 321.1, an all-terrain vehicle is a motor vehicle for purposes of this chapter. Therefore, an all-terrain vehicle operated on a highway shall be equipped with the parts, lamps, and other equipment in proper condition and adjustment as required under this chapter for motor vehicles, including but not limited to the parts, lamps, and equipment required under sections 321.386, 321.387, 321.404, 321.432, and 321.437.

Sec. 4. Section 321.384, subsection 1, Code 2022, is amended to read as follows:

1. Every motor vehicle upon a highway within the state,

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at any time from sunset to sunrise, and at such other times when conditions such as fog, snow, sleet, or rain provide insufficient lighting to render clearly discernible persons and vehicles on the highway at a distance of five hundred feet ahead, shall display lighted headlamps as provided in section 321.415, subject to exceptions with respect to parked vehicles as provided in this chapter. However, an all-terrain vehicle shall display lighted headlamps as provided in section 321.415 at all times while the vehicle is operated on a highway.

Sec. 5. Section 321.385, Code 2022, is amended to read as follows:

321.385 Headlamps on motor vehicles.

Every motor vehicle other than a motorcycle, ~~or~~ motorized bicycle, or all-terrain vehicle shall be equipped with at least two headlamps with at least one on each side of the front of the motor vehicle, which headlamps shall comply with the requirements and limitations set forth in this chapter.

Sec. 6. Section 321.386, Code 2022, is amended to read as follows:

321.386 Headlamps on motorcycles, ~~and~~ motorized bicycles, and all-terrain vehicles.

Every motorcycle, ~~and~~ motorized bicycle, and all-terrain vehicle shall be equipped with at least one and not more than two headlamps which shall comply with the requirements and limitations of this chapter.

Sec. 7. Section 321I.8, subsection 2, Code 2022, is amended to read as follows:

2. The department shall remit the fees, including user fees collected pursuant to section 321I.5, to the treasurer of state, who shall place the money in a special all-terrain vehicle fund. The money is appropriated to the department for the all-terrain vehicle programs of the state. The programs shall include grants, subgrants, contracts, or cost-sharing of all-terrain vehicle programs with political subdivisions or incorporated private organizations or both in accordance

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with rules adopted by the commission. All-terrain vehicle fees may be used for the establishment, maintenance, and operation of all-terrain vehicle recreational riding areas through the awarding of grants administered by the department, but shall not be used for law enforcement purposes outside of a designated off-highway vehicle recreational riding area or for purchasing, installing, or maintaining signs along a highway outside of a designated off-highway vehicle recreational riding area. All-terrain vehicle recreational riding areas established, maintained, or operated by the use of such grants shall not be operated for profit. All programs using cost-sharing, grants, subgrants, or contracts shall establish and implement an education instruction program either singly or in cooperation with other all-terrain vehicle programs. All-terrain vehicle fees may be used to support all-terrain vehicle programs on a usage basis. At least fifty percent of the special fund shall be available for political subdivisions or incorporated private organizations or both. Moneys from the special fund not used by the political subdivisions or incorporated private organizations or both shall remain in the fund and may be used by the department for the administration of the all-terrain vehicle programs. Notwithstanding section 8.33, moneys in the special fund shall not revert to the general fund of the state at the end of a fiscal year. Notwithstanding section 12C.7, subsection 2, interest or earnings on moneys in the special fund shall remain in the fund.

Sec. 8. Section 321I.10, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 1A. A registered all-terrain vehicle or off-road utility vehicle may be operated on an undivided two-lane primary highway that is not part of the interstate road system over the most direct and accessible route between any of the following locations:

a. An all-terrain vehicle park or trail.

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b. A secondary road on which such vehicles are authorized to operate under subsection 2.

c. A city street on which such vehicles are authorized to operate under subsection 3.

d. The vehicle operator's residence.

Sec. 9. Section 321I.10, subsections 2 and 3, Code 2022, are amended to read as follows:

2. *a.* A registered all-terrain vehicle or off-road utility vehicle may be operated on any of the ~~roadways of that portion of county highways designated by the county board of supervisors for such use during a specified period~~ following secondary roads:

(1) An unpaved secondary road.

(2) A paved, undivided two-lane secondary road over the most direct and accessible route between any of the following locations:

(a) An all-terrain vehicle park or trail.

(b) Another secondary road on which such vehicles are authorized to operate under this paragraph.

(c) A city street on which such vehicles are authorized to operate under subsection 3.

(d) The vehicle operator's residence.

(3) A paved, undivided secondary road or segment thereof, if authorized by the county board of supervisors. The ~~county~~ board ~~of supervisors~~ shall evaluate the traffic conditions on all ~~county highways~~ such secondary roads under its jurisdiction and designate roadways on which all-terrain vehicles or off-road utility vehicles may be operated ~~for the specified period~~ without unduly interfering with or constituting an undue hazard to conventional motor vehicle traffic. In designating such roadways, the board may authorize all-terrain vehicles and off-road utility vehicles to stop at service stations or convenience stores along a designated roadway.

b. Notwithstanding paragraph *"a"*, a county may prohibit the operation of all-terrain vehicles and off-road utility vehicles

on a secondary road or segment thereof under its jurisdiction as follows:

(1) When the secondary road or segment thereof is closed to motor vehicle traffic pursuant to section 306.41.

(2) When the secondary road or segment thereof is designated as a detour route pursuant to section 306.41.

(3) For any other secondary road or segment thereof, for no more than seven consecutive days and no more than thirty days in a calendar year when the prohibited days are established by ordinance.

3. ~~Cities~~ A city may regulate the operation of registered all-terrain vehicles and off-road utility vehicles and may designate streets under the jurisdiction of ~~cities~~ the city within ~~their respective~~ its corporate limits, and two-lane primary and secondary road extensions in the city, which may be used for the operation of ~~registered all-terrain vehicles or registered off-road utility~~ such vehicles. In designating such streets, the city may authorize all-terrain vehicles and off-road utility vehicles to stop at service stations or convenience stores along a designated street. However, a city shall not charge a fee to operate a registered all-terrain vehicle or off-road utility vehicle within the city.

Sec. 10. Section 321I.10, subsection 5, unnumbered paragraph 1, Code 2022, is amended to read as follows:

An all-terrain vehicle or off-road utility vehicle may make a direct crossing of a highway that is not part of the

interstate road system provided all of the following occur:

Sec. 11. Section 321I.10, subsection 5, paragraph e, Code 2022, is amended to read as follows:

e. The crossing is made from a street, roadway, or highway ~~designated as an all-terrain vehicle trail by a state agency, county, or city~~ on which the all-terrain vehicle or off-road utility vehicle is authorized to operate to a street, roadway, or highway ~~designated as an all-terrain vehicle trail by a state agency, county, or city~~ on which such vehicle is

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authorized to operate.>

CARRIE KOELKER
WAYLON BROWN

S–5179

Amend Senate File 2384 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I
STANDING APPROPRIATIONS AND RELATED MATTERS

Section 1. LIMITATIONS OF STANDING APPROPRIATIONS —— FY 2022–2023. Notwithstanding the standing appropriation in the following designated section for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the amount appropriated from the general fund of the state pursuant to that section for the following designated purpose shall not exceed the following amount:

For payment of claims for nonpublic school pupil transportation under section 285.2:

..... $ 8,997,091

If total approved claims for reimbursement for nonpublic school pupil transportation exceed the amount appropriated in accordance with this section, the department of education shall prorate the amount of each approved claim.

Sec. 2. INSTRUCTIONAL SUPPORT STATE AID —— FY 2022–2023. In lieu of the appropriation provided in section 257.20, subsection 2, the appropriation for the fiscal year beginning July 1, 2022, and ending June 30, 2023, for paying instructional support state aid under section 257.20 for the fiscal year is zero.

Sec. 3. SPECIAL FUNDS —— SALARY ADJUSTMENTS —— UNAPPROPRIATED MONEYS —— FY 2022–2023. For the fiscal year beginning July 1, 2022, and ending June 30, 2023, salary adjustments otherwise provided may be funded as determined by the department of management, subject to any applicable constitutional limitation, using unappropriated moneys remaining in the department of commerce revolving fund, the gaming enforcement revolving fund, the gaming regulatory

revolving fund, the primary road fund, the road use tax fund, the fish and game protection fund, and the Iowa public

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employees' retirement fund, and in other departmental revolving, trust, or special funds for which the general assembly has not made an operating budget appropriation.

Sec. 4. Section 257.35, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 16A. *a.* Notwithstanding subsection 1, and in addition to the reductions applicable pursuant to subsection 2 and paragraph *"b"* of this subsection, the state aid for area education agencies and the portion of the combined district cost calculated for these agencies related to expenditures other than expenditures for professional development for the fiscal year beginning July 1, 2022, and ending June 30, 2023, shall be reduced by the department of management by fifteen million dollars. The reduction for each area education agency shall be prorated based on the reduction that the agency received in the fiscal year beginning July 1, 2003.

b. Notwithstanding subsection 1, and in addition to the reductions applicable pursuant to subsection 2 and paragraph *"a"* of this subsection, the state aid for area education agencies and the portion of the combined district cost calculated for these agencies related to professional development expenditures for the fiscal year beginning July 1, 2022, and ending June 30, 2023, shall be reduced by the department of management by an amount equal to the sum of the area education agency professional development supplement district cost for all area education agencies determined under section 257.37A, subsection 2, for the budget year beginning July 1, 2022. The reduction for each area education agency shall be equal to the area education agency's professional development district cost determined under section 257.37A, subsection 2, for the budget year beginning July 1, 2022. The amounts reduced under this paragraph shall be considered funds paid to school districts and area education agencies under chapter 284 for purposes of requirements for providing professional development opportunities.

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DIVISION II

CORRECTIVE PROVISIONS

Sec. 5. Section 45.1, subsection 7, paragraph a, Code 2022, as amended by 2022 Iowa Acts, House File 2466, section 3, is amended to read as follows:

a. For a supervisor district with a population of greater than fifteen thousand but ~~fewer~~ no more than fifty thousand according to the most recent federal decennial census, nomination petitions shall include at least fifty signatures.

Sec. 6. Section 80E.2, subsection 2, Code 2022, as amended by 2022 Iowa Acts, House File 2367, section 2, is amended to read as follows:

2. The prosecuting attorney, certified alcohol and drug counselor, certified substance abuse prevention specialist, substance use disorder treatment program director, member representing the Iowa peace officers association, member representing the Iowa state police association, the member representing the Iowa state sheriffs' and deputies' association, and the member ~~representing the Iowa police chiefs association~~ who is a police chief shall be appointed by the governor, subject to senate confirmation, for four-year terms beginning and ending as provided in section 69.19. A vacancy on the council shall be filled for the unexpired term in the same manner as the original appointment was made.

Sec. 7. Section 124.204, subsection 2, paragraph cl, as enacted by 2022 Iowa Acts, House File 2201, section 1, is amended to read as follows:

cl. N-(1-phenethylpiperidin-4-yl) -N-phenylcyclopentanecarboxamide. Other name: ~~cyclopentanyl~~ cyclopentyl fentanyl.

Sec. 8. Section 147.77, subsection 1, paragraph l, as enacted by 2022 Iowa Acts, House File 803, section 51, is amended to read as follows:

l. The department of public safety, with respect to rules relating to permits to carry weapons, that a person who is

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an unlawful user of or addicted to any controlled substance includes any person who is a current user of a controlled substance in a manner other than as prescribed by a licensed physician.

Sec. 9. Section 147.77, subsection 1, paragraph p, subparagraph (3), as enacted by 2022 Iowa Acts, House File 803, section 51, is amended to read as follows:

(3) For applications for a license to practice asbestos removal, that except as noted in rule, only worker and contractor/supervisor license applicants must submit ~~a~~ the respiratory protection and physician's certification forms.

Sec. 10. Section 249A.42A, subsection 2, as enacted by 2022 Iowa Acts, House File 736, section 1, is amended to read as follows:

2. The provider documented the eligibility verification performed and any necessary prior authorization obtained pursuant to ~~paragraph "a"~~ subsection 1 in a manner and format established by the department by rule, and retained the required documentation in the recipient's file.

Sec. 11. Section 261.116, subsection 7, Code 2022, as amended by 2022 Iowa Acts, Senate File 2383, section 16, if enacted, is amended to read as follows:

6. *Health care award fund.* A health care award fund is

created for deposit of moneys appropriated to or received by the commission for use under the program. Notwithstanding section 8.33, moneys deposited in the health care award fund shall not revert to any fund of the state at the end of any fiscal year but shall remain in the award fund and be continuously available for use under the program. Notwithstanding section 12C.7, subsection 2, interest or earnings on moneys deposited in the health care award fund shall be credited to the fund.

Sec. 12. Section 441.1, subsection 3, paragraph d, as enacted by 2022 Iowa Acts, Senate File 384, section 1, is amended to read as follows:

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d. The provisions of chapter 28E are applicable to this ~~section~~ subsection.

Sec. 13. Section 600.5, subsection 9A, as enacted by 2022 Iowa Acts, House File 2252, section 6, is amended to read as follows:

9A. If the parents of the person to be adopted had their parental rights terminated pursuant to chapter 232, the petition shall ~~included~~ include the names of any known siblings placed separately from the person to be adopted and either the plan for ongoing contact between the siblings if a court found that continued contact is in the best interest of each sibling or a statement that the court found continued contact between the siblings is not in the best interest of each sibling.

Sec. 14. Section 692A.102, subsection 1, paragraph c, subparagraph (012), if enacted by 2022 Iowa Acts, Senate File 529, section 6, is amended to read as follows:

NEW SUBPARAGRAPH. (012) Sexual abuse in the fourth degree in violation of section 709.4A, subsection 3, if the perpetrator is a health care professional as defined in section 714I.2, who used or provided the health care professional's own human reproductive material for assisted reproduction in violation of section 714I.3, subsection 2.

Sec. 15. 2022 Iowa Acts, House File 2200, section 3, is amended to read as follows:

SEC. 3. APPLICABILITY. This Act applies to direct health care agreements that are fully executed on or after the effective date of ~~enactment~~ this Act.

Sec. 16. 2022 Iowa Acts, House File 2201, section 7, is amended by striking the section and inserting in lieu thereof the following:

SEC. 7. Section 124.206, subsection 2, paragraph a, unnumbered paragraph 1, Code 2022, is amended by striking the unnumbered paragraph and inserting in lieu thereof the following:

Opium and opiate, and any salt, compound, derivative,

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or preparation of opium or opiate excluding apomorphine, thebaine-derived butorphanol, dextrorphan, nalbuphine, naldemedine, nalmefene, naloxegol, naloxone, 6beta-naltrexol, naltrexone, and samidorphan, and their respective salts, but including the following:

Sec. 17. 2022 Iowa Acts, Senate File 2295, section 184, is amended by striking the section and inserting in lieu thereof the following:

SEC. 184. 2020 Iowa Acts, chapter 1064, sections 17 and 18, are amended by striking the sections and inserting in lieu thereof the following:

SEC. 17. Section 422.12D, subsection 2, Code 2022, is amended to read as follows:

2. The director of revenue shall draft the income tax form to allow the designation of contributions to the veterans trust fund and to the volunteer fire fighter preparedness fund as one checkoff on the tax return. The department of revenue, on or before January 31, shall transfer one-half of the total amount designated on the tax return forms due in the preceding calendar year to the veterans trust fund and the remaining one-half to the volunteer fire fighter preparedness fund. However, before a checkoff pursuant to this section shall be permitted, all liabilities on the books of the department ~~of administrative services~~ and accounts identified as owing under section ~~8A.504~~ 421.65 shall be satisfied.

SEC. 18. Section 422.12L, subsection 2, Code 2022, is amended to read as follows:

2. The director of revenue shall draft the income tax form to allow the designation of contributions to the foundation fund on the tax return. The department, on or before January 31, shall transfer the total amount designated on the tax form due in the preceding year to the foundation fund. However, before a checkoff pursuant to this section shall be permitted, all liabilities on the books of the department ~~of administrative services~~ and accounts identified as owing under

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section ~~8A.504~~ 421.65 shall be satisfied.

Sec. 18. CONTINGENT REPEAL. 2022 Iowa Acts, House File 2581, section 13, if enacted, is repealed.

Sec. 19. CODE EDITOR DIRECTIVES.

1. If Senate File 496 is enacted during the 2022 session of the Eighty-ninth General Assembly, the Code editor is directed to transfer the Code sections as enacted by that Act as follows:

a. Section 94.1 to section 94B.1.

b. Section 94.2 to section 94B.2.

2. The Code editor is directed to renumber section 331.301, subsection 18, as enacted by 2022 Iowa Acts, House File 728, to

become section 331.301, subsection 21.

3. The Code editor shall correct internal references in the Code and in any enacted legislation as necessary due to the enactment of this section.

Sec. 20. EFFECTIVE DATE. The following, being deemed of immediate importance, take effect upon enactment:

1. The section of this division of this Act amending section 124.204, subsection 2, paragraph "cl".

2. The section of this division of this Act amending 2022 Iowa Acts, House File 2200, section 3.

3. The section of this division of this Act amending 2022 Iowa Acts, House File 2201, section 7.

Sec. 21. RETROACTIVE APPLICABILITY. The following apply retroactively to May 2, 2022:

1. The section of this division of this Act amending section 124.204, subsection 2, paragraph "cl".

2. The section of this division of this Act amending 2022 Iowa Acts, House File 2201, section 7.

Sec. 22. RETROACTIVE APPLICABILITY. The section of this division of this Act amending 2022 Iowa Acts, House File 2200, section 3, applies retroactively to May 12, 2022.

DIVISION III

OFFICE OF THE CHIEF INFORMATION OFFICER

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Sec. 23. Section 8B.2, Code 2022, is amended to read as follows:

8B.2 Office ~~created~~ established —— chief information officer ~~appointed~~ selected.

1. The office of the chief information officer is ~~created as an independent agency and is attached to the department of administrative services for accounting and fiscal services. The department of administrative services shall provide such additional assistance and administrative support services to the office as the department of administrative services and the office determines maximizes the efficiency and effectiveness of both the department and office~~ established within the department of management.

2. The chief information officer, who shall be the head of the office, shall be ~~appointed by the governor to serve at the pleasure of the governor and is subject to confirmation by the senate. If the office becomes vacant, the vacancy shall be filled in the same manner as provided for the original appointment~~ selected by the director of the department of management. The director of the department of management shall set the salary of the chief information officer.

3. The person ~~appointed~~ selected as the chief information officer for the state shall be professionally qualified by education and have no less than five years' experience in the field of information technology, and a working knowledge of financial management. ~~The chief information officer shall~~

~~not be a member of any local, state, or national committee of a political party, an officer or member of a committee in any partisan political club or organization, or hold or be a candidate for a paid elective public office. The chief information officer is subject to the restrictions on political activity provided in section 8A.416.~~

Sec. 24. Section 8D.3, subsection 2, paragraph b, Code 2022, is amended to read as follows:

b. The auditor of state or the auditor's designee and

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the chief information officer ~~appointed~~ selected pursuant to section 8B.2 or the chief information officer's designee shall serve as nonvoting, ex officio members of the commission.

Sec. 25. Section 11.5B, subsection 15, Code 2022, is amended to read as follows:

15. Office of the chief information officer of the department of management.

Sec. 26. 2008 Iowa Acts, chapter 1191, section 14, subsection 7, as amended by 2010 Iowa Acts, chapter 1193, section 26, is amended to read as follows:

7. The following are range 7 positions: administrator of the public broadcasting division of the department of education, director of the department of corrections, director of the department of education, director of human services, director of the department of economic development, executive director of the Iowa telecommunications and technology commission, executive director of the state board of regents, director of transportation, director of the department of workforce development, director of revenue, director of public health, state court administrator, director of the department of management, ~~chief information officer,~~ state debt coordinator, and director of the department of administrative services.

Sec. 27. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

Sec. 28. APPLICABILITY. This division of this Act, as it relates to the salary of the chief information officer, applies with the pay period beginning after the effective date of this division of this Act, and subsequent pay periods.

DIVISION IV

CONDUCT OF ELECTIONS —— FUNDING

Sec. 29. NEW SECTION. **49.17 Conduct of elections —— funding.**

1. The state commissioner or a county commissioner or political subdivision of the state shall only accept funding

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from the following sources for the purposes of conducting an election:

a. Lawful appropriations of public moneys from the government of the United States.

b. Lawful appropriations of public moneys from the state of Iowa.

c. Lawful appropriations of public moneys from a political subdivision of the state for the conduct of an election in the political subdivision.

2. The state commissioner, a county commissioner, or a political subdivision of the state shall not accept or expend a grant, gift, or other source of funding from a source other than those listed in subsection 1, including from a private person, corporation, partnership, political party, nonparty political organization, committee as defined in section 68A.102, or other organization for the purpose of conducting an election.

3. This section does not prohibit the state commissioner or a county commissioner or political subdivision from issuing and collecting fees as otherwise provided by law.

4. This section does not apply to the contribution of a building for use as a polling place pursuant to section 49.21.

Sec. 30. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION V

DIRECT MASS MAILING

Sec. 31. Section 68A.405A, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 3. For the purposes of this section, *"direct mass mailing"* means a mailing, regardless of whether the mailing was sent in response to a request or due to the recipient's enrollment in a program, that provides information to the recipient about a person, policy, product, service, program, initiative, law, legislation, event, or activity promoted by the statewide elected official that is all of the

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following:

a. Printed material delivered by the United States mail or other delivery service.

b. Sent to more than two hundred physical addresses.

c. Substantially similar or identical as regards each mailing.

d. Sent at the same time or within a thirty-day period.

NEW SUBSECTION. 4. Notwithstanding subsection 3, a mailing that is sent to any participant in a program or the participant's address within sixty days of an election in which an office listed in section 39.9 is to appear on the ballot shall be considered a direct mass mailing for the purposes of subsection 1 if the purpose of the mailing is to provide a participant with information relevant to the participant's existing account with a program sponsored and administered by the statewide elected official who sent the mailing.

DIVISION VI
OPEN ENROLLMENT

Sec. 32. Section 256F.9, Code 2022, is amended to read as follows:

256F.9 Procedures after revocation —— student enrollment.

If a charter school or innovation zone school contract is revoked in accordance with this chapter, a nonresident student who attended the school, and any siblings of the student~~, shall be determined to have shown "good cause" as provided in section 282.18, subsection 4, paragraph "b", and~~ may submit an application to another school district according to section 282.18 ~~at any time~~. Applications and notices required by section 282.18 shall be processed and provided in a prompt manner. ~~The application and notice deadlines in section 282.18 do not apply to a nonresident student application under these circumstances.~~

Sec. 33. Section 282.18, subsection 2, paragraphs a and b, Code 2022, are amended to read as follows:

a. ~~By March 1 of the preceding school year for students entering grades one through twelve, or by September 1 of the current school year for students entering kindergarten or for prekindergarten students enrolled in special education programs and included in the school district's basic enrollment under section 257.6, subsection 1, paragraph "a", subparagraph (1), the~~ A parent or guardian shall send notification to the district of residence and the receiving district, on forms prescribed by the department of education, that the parent or guardian intends to enroll the parent's or guardian's child in a public school in another school district. ~~If a parent or guardian fails to file a notification that the parent intends to enroll the parent's or guardian's child in a public school in another district by the deadline specified in this subsection, the procedures of subsection 4 apply.~~

b. The board of the receiving district shall enroll the pupil in a school in the receiving district ~~for the following school year~~ unless the receiving district has insufficient classroom space for the pupil. The board of directors of a receiving district may adopt a policy granting the superintendent of the school district authority to approve open enrollment applications. If the request is granted, the board shall transmit a copy of the form to the parent or guardian and the school district of residence within five days after board action~~, but not later than June 1 of the preceding school year~~. The parent or guardian may withdraw the request at any time prior to the ~~start of the school year~~ board's action on the application. A denial of a request by the board of a receiving district is not subject to appeal.

Sec. 34. Section 282.18, subsection 3, paragraph a, Code 2022, is amended to read as follows:

a. The superintendent of a district subject to court-ordered desegregation may deny a request for transfer under this section if the superintendent finds that enrollment or release of a pupil will adversely affect the district's implementation of the desegregation order, unless the transfer is requested

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by a pupil whose sibling is already participating in open enrollment to another district, or unless the request for transfer is submitted to the district ~~in a timely manner as required under subsection 2~~ prior to implementation of the desegregation order by the district. If a transfer request would facilitate implementation of a desegregation order, the district shall give priority to granting the request over other requests.

Sec. 35. Section 282.18, subsections 4, 5, and 15, Code 2022, are amended by striking the subsections.

Sec. 36. Section 282.18, subsection 6, Code 2022, is amended to read as follows:

6. A request under this section is for a period of not less than one year. If the request is for more than one year and the parent or guardian desires to have the pupil enroll in a different district, the parent or guardian may petition the current receiving district ~~by March 1 of the previous school year~~ for permission to enroll the pupil in a different district for a period of not less than one year. Upon receipt of such a request, the current receiving district board may act on the request to transfer to the other school district at the next regularly scheduled board meeting after the receipt of the request. The new receiving district shall enroll the pupil in the district unless there is insufficient classroom space in the district or the district is subject to court-ordered desegregation and enrollment of the pupil would adversely affect implementation of the desegregation order. A denial of a request to change district enrollment ~~within the approved period~~ is not subject to appeal. ~~However, a~~ A pupil who has been in attendance in another district under this section may return to the district of residence and enroll at any time, once the parent or guardian has notified the district of residence and the receiving district in writing of the decision to enroll the pupil in the district of residence.

Sec. 37. Section 282.18, subsection 7, Code 2022, is amended

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by adding the following new paragraph:

NEW PARAGRAPH. *c.* If a pupil participating in open enrollment attends school in the receiving district for less than a full school year, payment from the district of residence to the receiving district shall be prorated on a per diem basis.

Sec. 38. Section 282.18, subsection 11, paragraph a, subparagraph (8), Code 2022, is amended to read as follows:

(8) If the pupil participates in open enrollment because of circumstances that meet the definition of good cause ~~under subsection 4, paragraph "b"~~. For purposes of this subparagraph, *"good cause"* means a change in a child's residence due to a change in family residence, a change in a child's residence from the residence of one parent or guardian to the residence of different parent or guardian, a change in the state in which the family residence is located, a change in a child's parents' marital status, a guardianship or custody proceeding, placement in foster care, adoption, participation in a foreign exchange program, initial placement of a prekindergarten student in a special education program requiring specially designed instruction, or participation in a substance abuse or mental health treatment program, a change in the status of a child's resident district such as removal of accreditation by the state board, surrender of accreditation, or permanent closure of a nonpublic school, revocation of a charter school contract as provided in section 256E.10 or 256F.8, the failure of negotiations for a whole grade sharing, reorganization, dissolution agreement, or the rejection of a current whole grade sharing agreement, or reorganization plan.

Sec. 39. Section 290.1, Code 2022, is amended to read as follows:

290.1 Appeal to state board.

An affected pupil, or the parent or guardian of an affected pupil who is a minor, who is aggrieved by a decision or order of the board of directors of a school corporation in a matter

of law or fact~~, or a decision or order of a board of directors under section 282.18, subsection 5,~~ may, within thirty days after the rendition of the decision or the making of the order, appeal the decision or order to the state board of education; the basis of the proceedings shall be an affidavit filed with the state board by the party aggrieved within the time for taking the appeal, which affidavit shall set forth any error complained of in a plain and concise manner.

Sec. 40. EMERGENCY RULES. The department of education may adopt emergency rules under section 17A.4, subsection 3, and section 17A.5, subsection 2, paragraph "b", to implement the provisions of this division of this Act and the rules shall be effective immediately upon filing unless a later date is specified in the rules. Any rules adopted in accordance with this section shall also be published as a notice of intended action as provided in section 17A.4.

Sec. 41. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION VII

SHARED OPERATIONAL FUNCTIONS

Sec. 42. Section 257.11, subsection 5, paragraph a, Code 2022, is amended to read as follows:

a. (1) In order to provide additional funding to increase student opportunities and redirect more resources to student programming for school districts that share operational functions, a district that shares with a political subdivision one or more operational functions of a curriculum director, master social worker, independent social worker, work-based learning coordinator, special education director, mental health professional who holds a statement of recognition issued by the board of educational examiners, college and career transition counselor or coordinator, or school counselor, or one or more operational functions in the areas of superintendent management, business management, human resources, transportation, or operation and maintenance for at

least twenty percent of the school year shall be assigned a supplementary weighting for each shared operational function. A school district that shares an operational function in the area of superintendent management shall be assigned a supplementary weighting of eight pupils for the function. A school district that shares an operational function in the area of business management, human resources, transportation, or operation and maintenance shall be assigned a supplementary weighting of five pupils for the function. A school district that shares the operational functions of a curriculum director; a master social worker or an independent social worker licensed under chapters 147 and 154C; a work-based learning coordinator; a special education director; a mental health professional who holds a statement of recognition issued by the board of educational examiners; a college and career transition counselor or coordinator; or a school counselor shall be assigned a supplementary weighting of three pupils for the function. The additional weighting shall be assigned for each discrete operational function shared. However, a school district may receive the additional weighting under this subsection for sharing the services of an individual with a political subdivision even if the type of operational function performed by the individual for the school district and the type of operational function performed by the individual for the political subdivision are not the same operational function, so long as both operational functions are eligible for weighting under this subsection. In such case, the school district shall be assigned the additional weighting for the type of operational function that the individual performs for the school district, and the school district shall not receive additional weighting for any other function performed by the individual. The operational function sharing arrangement does not need to be a newly implemented sharing arrangement to

receive supplementary weighting under this subsection.

(2) For the purposes of this paragraph *"a"*:

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(a) *"College and career transition counselor or coordinator"* means a licensed school counselor or an appropriately trained individual responsible for providing direct services to students, parents, families, schools, and postsecondary institutions to support college preparation and postsecondary success, such as college preparation, financial aid processing, and transition to postsecondary institution enrollment.

~~(a)~~ (b) *"Political subdivision"* means a city, township, county, school corporation, merged area, area education agency, institution governed by the state board of regents, or any other governmental subdivision.

~~(b)~~ (c) *"Work-based learning coordinator"* means an appropriately trained individual responsible for facilitating authentic, engaging work-based learning experiences for learners and educators in partnership with employers and others to enhance learning by connecting the content and skills that are necessary for future careers.

DIVISION VIII

DELINQUENT ACT —— POSSESSION OF DANGEROUS WEAPONS OR FIREARMS BY MINORS

Sec. 43. Section 232.2, subsection 12, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *e.* The violation of section 724.4E which is committed by a child.

Sec. 44. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION IX

ASSAULT —— NATIONAL GUARD MEMBERS

Sec. 45. Section 708.3A, subsections 1, 2, 3, and 4, Code 2022, are amended to read as follows:

1. A person who commits an assault, as defined in section 708.1, against a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member

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engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, whether paid or volunteer, with the knowledge that the person against whom the assault is committed is a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian

employee of a law enforcement agency, civilian employee of a fire department, or fire fighter and with the intent to inflict a serious injury upon the peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, is guilty of a class "D" felony.

2. A person who commits an assault, as defined in section 708.1, against a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, whether paid or volunteer, who knows that the person against whom the assault is committed is a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter and who uses or displays a dangerous weapon in

connection with the assault, is guilty of a class "D" felony.

3. A person who commits an assault, as defined in section 708.1, against a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, whether paid or volunteer, who knows that the person against whom the assault is committed is a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, and who causes bodily injury or mental illness, is guilty of an aggravated misdemeanor.

4. Any other assault, as defined in section 708.1, committed against a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard

duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, whether paid or volunteer, by a person who knows that the person against whom the assault is committed is a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, is a serious misdemeanor.

Sec. 46. Section 708.3A, subsection 5, Code 2022, is amended

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by adding the following new paragraphs:

NEW PARAGRAPH. *f. "National guard"* means the same as defined in section 29A.1.

NEW PARAGRAPH. *g. "National guard duty"* means the same as defined in section 29A.1.

NEW PARAGRAPH. *h. "State active duty"* means the same as defined in section 29A.1.

DIVISION X

DEPENDENT ADULT ABUSE RESULTING IN DEATH

Sec. 47. Section 726.26, if enacted by 2022 Iowa Acts, Senate File 522, section 6, is amended by adding the following new subsection:

NEW SUBSECTION. 2A. A caretaker who intentionally or recklessly commits dependent adult abuse is guilty of murder in the second degree in violation of section 707.3 if the intentional or reckless dependent adult abuse results in the death of the dependent adult.

DIVISION XI

HEALTH CARE PROVIDER REFERRAL TO AMBULATORY SURGICAL CENTER

Sec. 48. NEW SECTION. **147.163 Provision of information —— referral to ambulatory surgical center —— licensee discipline.**

1. A health care provider who determines that a patient is a candidate for outpatient surgery based on the patient's medical status and surgical service needs, and refers the patient to an ambulatory surgical center as an option for the surgery, shall provide the patient with a written document listing the factors the patient should consider to make a fully informed decision about the patient's recommended course of care. The considerations shall include all of the following:

a. The differences in ownership; licensure, certification, or accreditation; and payment alternatives between the ambulatory surgical center and a hospital.

b. The types of medical personnel generally involved in the patient's surgical service and the capacity of the ambulatory surgical center and a hospital to comply with the personnel

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requirements.

c. The capacity of the ambulatory surgical center and a hospital to respond to medical complications and emergencies that may arise from the surgical service.

d. The proximity of the ambulatory surgical center to a hospital and the protocols in place for transfer of a patient from the ambulatory surgical center to the hospital for emergency care.

e. The type of anesthesia generally used for the patient's surgical service and the capacity of the ambulatory surgical center and a hospital to comply with requirements relative to the use of anesthesia.

2. For the purposes of this section:

a. "Ambulatory surgical center" means a distinct facility that operates exclusively for the purpose of providing surgical services to patients not requiring hospitalization and in which the expected duration of services does not exceed twenty-four hours following an admission. *"Ambulatory surgical center"* includes a facility that otherwise meets the definition of ambulatory surgical center whether or not licensed, certified, or accredited as an ambulatory surgical center and which may or may not operate on a partially cash-only or completely cash-only basis. *"Ambulatory surgical center"* does not include individual or group practice offices of private physicians or podiatrists that do not contain a distinct area used for outpatient surgical treatment on a regular basis, or that only provide surgery routinely provided in a physician's or podiatrist's office using local anesthesia or conscious sedation; individual or group practice offices of private dentists; or a portion of a licensed hospital designated for outpatient surgical treatment.

b. "Health care provider" means a person who is licensed, certified, or otherwise authorized or permitted by the laws of this state to administer health care in the ordinary course of business or in the practice of a profession.

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c. "Hospital" means the same as defined in section 135B.1.

3. A health care provider who violates this section is subject to licensee discipline by the appropriate licensing or disciplinary authority.

DIVISION XII

HEALTH CARE EMPLOYMENT AGENCIES

Sec. 49. RETROACTIVE APPLICABILITY. 2022 Iowa Acts, House File 2521, applies retroactively to any contract between a health care employment agency and an agency worker or health care entity referred to under section 135Q.2, subsection 3, as enacted by 2022 Iowa Acts, House File 2521, that was entered into or executed on or after January 1, 2019.

DIVISION XIII
PHYSICAL EXAMINATIONS BY LICENSED PHYSICIANS

Sec. 50. Section 237A.12, Code 2022, is amended by adding the following new subsection:

NEW SUBSECTION. 6. Rules adopted relating to physical examination requirements for licensed or registered facility personnel and the children being provided child care by the licensed or registered facility shall allow for any licensed physician as defined in section 135.1 to perform the physical examination.

DIVISION XIV
BEVERAGE CONTAINERS CONTROL

Sec. 51. Section 455C.2, subsection 2, paragraph b, if enacted by 2022 Iowa Acts, Senate File 2378, section 4, is amended to read as follows:

b. A distributor who pays a handling fee for ~~beverage containers~~ a beverage container that was sold for consumption off the premises and that used to contain beer, including high-alcoholic content beer, may claim a refund of the barrel tax established in section 123.136 paid by the distributor in the amount of one cent for each such beverage container accepted by the distributor. The department of revenue shall prescribe forms for a distributor to use to claim a refund

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under this paragraph. Identifying information collected by the department of revenue pursuant to this paragraph that can be used to identify a specific distributor shall be considered confidential information pursuant to section 22.7, subsection 75.

Sec. 52. EFFECTIVE DATE. This division of this Act takes effect January 1, 2023.

DIVISION XV
FUNERAL SERVICES —— CORRECTION

Sec. 53. Section 523A.505, subsection 1, as enacted by 2022 Iowa Acts, House File 2155, section 4, is amended to read as follows:

1. A sales agent, and any person who owns at least five percent of a preneed seller business, shall have an ongoing duty to disclose to the commissioner all felony crimes and those misdemeanor-level crimes involving dishonesty or false statement for which the sales agent or person has been found guilty, or for which the sales agent or person has pled guilty or no contest. Such disclosure shall be made to the commissioner within thirty calendar days of the date that the sales agent or person has been found guilty by a court of competent jurisdiction, or of the date the sales agent or person pleads ~~not~~ guilty or no contest.

DIVISION XVI
COUNTY JURISDICTION —— CEMETERIES

Sec. 54. Section 331.325, subsection 3, Code 2022, is

amended by adding the following new paragraph:

NEW PARAGRAPH. *d.* A cemetery that does not otherwise qualify to be under the jurisdiction and control of a county board of supervisors or county cemetery commission may designate a portion of the cemetery as a pioneer section if at least fifty percent of the burials in that portion occurred at least one hundred years prior to the designation. Upon approval by the cemetery, the county board of supervisors, and the county cemetery commission, the county cemetery commission

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may use its resources to restore and maintain the pioneer section of the cemetery as though that section was a pioneer cemetery. However, a cemetery with a designated pioneer section and the pioneer section itself shall not be considered a pioneer cemetery.

Sec. 55. NEW SECTION. **523I.403 Pioneer section —— management by county cemetery commission.**

A cemetery may designate a portion of the cemetery as a pioneer section to be restored and maintained by the county cemetery commission as provided in section 331.325, subsection 3, paragraph *"d"*.

DIVISION XVII
HOME-BASED BUSINESSES

Sec. 56. Section 137D.1, subsection 4, unnumbered paragraph 1, Code 2022, as amended by 2022 Iowa Acts, House File 2431, section 2, if enacted, is amended to read as follows:

"Homemade food item" means a food that is produced and, if packaged, packaged at a home food processing establishment. *"Homemade food item"* includes food that is not time/temperature control for safety food, but does not include such food if produced and sold under section 137F.20. *"Homemade food item"* does not include unpasteurized fruit or vegetable juice, raw sprout seeds, foods containing game animals, fish or shellfish, alcoholic beverages, bottled water, packaged ice, consumable hemp products, food that will be further processed by a food processing plant, time/temperature control for safety food packaged using a reduced oxygen packaging method, milk or milk products regulated under chapter 192 or 194, and meat, meat food products, poultry, or poultry products regulated under chapter 189A, except for any of the following products when sold directly to the end consumer:

Sec. 57. Section 137F.1, subsection 2A, paragraph a, if enacted by 2022 Iowa Acts, House File 2431, section 8, is amended to read as follows:

a. Milk or milk products regulated under chapter 192 or

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194.>

2. Title page, by striking lines 1 through 5 and

inserting <An Act relating to state and local finances by making appropriations, providing for legal and regulatory responsibilities, providing for other properly related matters, providing penalties, making penalties applicable, and including effective date, applicability, and retroactive applicability provisions.>

JACK WHITVER

S–5180

Amend the amendment, S–5179, to Senate File 2384, as follows:

1. Page 20, after line 7 by inserting:

<DIVISION ___

CONTROLLED SUBSTANCES —— COCAINE AND COCAINE BASE

Sec. ___. Section 124.401, subsection 1, paragraph a, subparagraph (2), subparagraph division (b), Code 2022, is amended to read as follows:

(b) Cocaine~~,~~ or cocaine base or its salts, optical and geometric isomers, or salts of isomers.

Sec. ___. Section 124.401, subsection 1, paragraph a, subparagraph (3), Code 2022, is amended by striking the subparagraph.

Sec. ___. Section 124.401, subsection 1, paragraph b, subparagraph (2), subparagraph division (b), Code 2022, is amended to read as follows:

(b) Cocaine~~,~~ or cocaine base or its salts, optical and geometric isomers, or salts of isomers.

Sec. ___. Section 124.401, subsection 1, paragraph b, subparagraph (3), Code 2022, is amended by striking the subparagraph.

Sec. ___. Section 124.401, subsection 1, paragraph c, subparagraph (2), subparagraph division (b), Code 2022, is amended to read as follows:

(b) Cocaine~~,~~ or cocaine base or its salts, optical and geometric isomers, or salts of isomers.

Sec. ___. Section 124.401, subsection 1, paragraph c, subparagraph (3), Code 2022, is amended by striking the subparagraph.

Sec. ___. Section 232.22, subsection 1, paragraph e, Code 2022, is amended to read as follows:

e. There is probable cause to believe that the child has committed a delinquent act involving possession with intent to deliver any of the following controlled substances:

~~(1) A mixture or substance containing cocaine base, also~~

~~known as crack cocaine, and if the act was committed by an adult, it would be a violation of section 124.401, subsection 1, paragraph *"a"*, subparagraph (3), paragraph *"b"*, subparagraph~~

~~(3), or paragraph "c", subparagraph (3).~~

~~(2)~~ (1) A mixture or substance containing cocaine~~,~~ or cocaine base or its salts, optical and geometric isomers, and salts of isomers, and if the act was committed by an adult, it would be a violation of section 124.401, subsection 1, paragraph *"a"*, subparagraph (2), subparagraph division (b), paragraph *"b"*, subparagraph (2), subparagraph division (b), or paragraph *"c"*, subparagraph (2), subparagraph division (b).

~~(3)~~ (2) A mixture or substance containing methamphetamine, its salts, isomers, or salts of isomers, or analogs of methamphetamine, and if the act was committed by an adult, it would be a violation of section 124.401, subsection 1.>

2. By renumbering as necessary.

ZACH NUNN

S–5181

Amend the amendment, S–5179, to Senate File 2384, as follows:

1. By striking page 1, line 1, through page 25, line 8, and inserting:

<Amend Senate File 2384 as follows:

1. By striking everything after the enacting clause and inserting:

<DIVISION I

STANDING APPROPRIATIONS AND RELATED MATTERS

Section 1. LIMITATIONS OF STANDING APPROPRIATIONS —— FY 2022–2023. Notwithstanding the standing appropriation in the following designated section for the fiscal year beginning July 1, 2022, and ending June 30, 2023, the amount appropriated from the general fund of the state pursuant to that section for the following designated purpose shall not exceed the following amount:

For payment of claims for nonpublic school pupil transportation under section 285.2:

..... $ 8,997,091

If total approved claims for reimbursement for nonpublic school pupil transportation exceed the amount appropriated in accordance with this section, the department of education shall prorate the amount of each approved claim.

Sec. 2. INSTRUCTIONAL SUPPORT STATE AID —— FY 2022–2023. In lieu of the appropriation provided in section 257.20, subsection 2, the appropriation for the fiscal year beginning July 1, 2022, and ending June 30, 2023, for paying instructional support state aid under section 257.20 for the fiscal year is zero.

DIVISION II

DIRECT MASS MAILING

Sec. 3. Section 68A.405A, Code 2022, is amended by adding the following new subsections:

NEW SUBSECTION. 3. For the purposes of this section, *"direct mass mailing"* means a mailing, regardless of whether

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the mailing was sent in response to a request or due to the recipient's enrollment in a program, that provides information to the recipient about a person, policy, product, service, program, initiative, law, legislation, event, or activity promoted by the statewide elected official that is all of the following:

a. Printed material delivered by the United States mail or other delivery service.

b. Sent to more than two hundred physical addresses.

c. Substantially similar or identical as regards each mailing.

d. Sent at the same time or within a thirty-day period.

NEW SUBSECTION. 4. Notwithstanding subsection 3, a mailing that is sent to any participant in a program or the participant's address within sixty days of an election in which an office listed in section 39.9 is to appear on the ballot shall be considered a direct mass mailing for the purposes of subsection 1 if the purpose of the mailing is to provide a participant with information relevant to the participant's existing account with a program sponsored and administered by the statewide elected official who sent the mailing.

DIVISION III

DELINQUENT ACT —— POSSESSION OF DANGEROUS WEAPONS OR FIREARMS BY MINORS

Sec. 4. Section 232.2, subsection 12, Code 2022, is amended by adding the following new paragraph:

NEW PARAGRAPH. *e.* The violation of section 724.4E which is committed by a child.

Sec. 5. EFFECTIVE DATE. This division of this Act, being deemed of immediate importance, takes effect upon enactment.

DIVISION IV

ASSAULT —— NATIONAL GUARD MEMBERS

Sec. 6. Section 708.3A, subsections 1, 2, 3, and 4, Code 2022, are amended to read as follows:

1. A person who commits an assault, as defined in section

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708.1, against a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, whether paid or volunteer, with the knowledge that the person against whom the assault is committed is a peace officer, jailer, correctional staff,

member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter and with the intent to inflict a serious injury upon the peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, is guilty of a class "D" felony.

2. A person who commits an assault, as defined in section 708.1, against a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, whether paid or volunteer, who knows that the person against whom the assault is committed is a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department

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of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter and who uses or displays a dangerous weapon in connection with the assault, is guilty of a class "D" felony.

3. A person who commits an assault, as defined in section 708.1, against a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, whether paid or volunteer, who knows that the person against whom the assault is committed is a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, and who causes bodily injury or mental illness, is guilty of an aggravated misdemeanor.

4. Any other assault, as defined in section 708.1, committed

against a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, whether paid or volunteer, by a person who knows that the person against whom the assault is committed is a peace officer, jailer, correctional staff, member or employee of the board of parole, health care provider, employee of the department of human services, employee of the department of revenue, national guard member engaged in national guard duty

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or state active duty, civilian employee of a law enforcement agency, civilian employee of a fire department, or fire fighter, is a serious misdemeanor.

Sec. 7. Section 708.3A, subsection 5, Code 2022, is amended by adding the following new paragraphs:

NEW PARAGRAPH. *f. "National guard"* means the same as defined in section 29A.1.

NEW PARAGRAPH. *g. "National guard duty"* means the same as defined in section 29A.1.

NEW PARAGRAPH. *h. "State active duty"* means the same as defined in section 29A.1.

DIVISION V

DEPENDENT ADULT ABUSE RESULTING IN DEATH

Sec. 8. Section 726.26, if enacted by 2022 Iowa Acts, Senate File 522, section 6, is amended by adding the following new subsection:

NEW SUBSECTION. 2A. A caretaker who intentionally or recklessly commits dependent adult abuse is guilty of murder in the second degree in violation of section 707.3 if the intentional or reckless dependent adult abuse results in the death of the dependent adult.>

2. Title page, by striking lines 1 through 5 and inserting <An Act relating to state and local finances by making appropriations, providing for legal and regulatory responsibilities, providing for other properly related matters, providing penalties, and making penalties applicable.>

JOE BOLKCOM

S–5182

Amend House File 2384, as amended, passed, and reprinted by the House, as follows:

1. Page 1, by striking lines 1 through 4 and inserting:

<DIVISION I

PHARMACY BENEFITS MANAGERS, PHARMACIES, AND PRESCRIPTION DRUG BENEFITS>

2. Page 1, after line 26 by inserting:

<___. *"Facility"* means an institution providing health care services or a health care setting, including but not limited to hospitals and other licensed inpatient centers, ambulatory surgical or treatment centers, skilled nursing centers, residential treatment centers, diagnostic, laboratory and imaging centers, and rehabilitation and other therapeutic health settings.>

3. Page 1, by striking lines 27 through 30 and inserting:

<___. *"Health benefit plan"* means a policy, contract, certificate, or agreement offered or issued by a third-party payor to provide, deliver, arrange for, pay for, or reimburse any of the costs of health care services.

___. *"Health care professional"* means a physician or other health care practitioner licensed, accredited, registered, or certified to perform specified health care services consistent with state law.

___. *"Health care provider"* means a health care professional or a facility.>

4. Page 2, by striking lines 1 through 9 and inserting <corporation, or a plan established pursuant to chapter 509A for public employees. *"Health carrier"* does not include any of the following:>

5. Page 2, before line 10 by inserting:

<*a.* The department of human services.

b. A managed care organization acting pursuant to a contract with the department of human services to administer the medical assistance program under chapter 249A or the healthy and well kids in Iowa (hawk-i) program under chapter 514I.

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c. A policy or contract providing a prescription drug benefit pursuant to 42 U.S.C. ch. 7, subch. XVIII, part D.

d. A plan offered or maintained by a multiple employer welfare arrangement established under chapter 513D before January 1, 2022.>

6. Page 3, by striking lines 4 and 5 and inserting:

<___. *"Pharmacy benefits manager"* means a person who, pursuant to a contract or other relationship with a third-party payor, either directly or through an intermediary, manages a prescription drug benefit provided by the third-party payor.>

7. Page 3, by striking lines 18 and 19 and inserting:

<___. *"Prescription drug benefit"* means a health benefit plan providing for third-party payment or prepayment for prescription drugs.>

8. Page 3, by striking line 22 and inserting:

<___. *"Rebate"* means all discounts and other negotiated price concessions paid directly or indirectly by a pharmaceutical manufacturer or other entity, other than a covered person, in the prescription drug supply chain to a pharmacy benefits manager, and which may be based on any of the

following:

a. A pharmaceutical manufacturer's list price for a prescription drug.

b. Utilization.

c. To maintain a net price for a prescription drug for a specified period of time for the pharmacy benefits manager in the event the pharmaceutical manufacturer's list price increases.

d. Reasonable estimates of the volume of a prescribed drug that will be dispensed by a pharmacy to covered persons.

___. *"Third-party payor"* means any entity other than a covered person or a health care provider that is responsible for any amount of reimbursement for a prescription drug benefit. *"Third-party payor"* includes health carriers and other entities that provide a plan of health insurance or health

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care benefits. *"Third-party payor"* does not include any of the following:

a. The department of human services.

b. A managed care organization acting pursuant to a contract with the department of human services to administer the medical assistance program under chapter 249A or the healthy and well kids in Iowa (hawk-i) program under chapter 514I.

c. A policy or contract providing a prescription drug benefit pursuant to 42 U.S.C. ch. 7, subch. XVIII, part D.>

9. Page 3, line 33, by striking <health carrier> and inserting <third-party payor>

10. Page 4, line 4, by striking <health carrier> and inserting <third-party payor>

11. Page 4, line 6, by striking <health carrier> and inserting <third-party payor>

12. Page 4, by striking lines 8 through 13.

13. Page 5, by striking lines 14 through 17.

14. By striking page 6, line 1, through page 7, line 18.

15. By striking page 9, line 2, through page 10, line 23.

16. Page 12, line 16, before <Act> by inserting <division of this>

17. Page 12, line 17, by striking <health carrier's>

18. Page 12, by striking lines 20 through 24 and inserting:

<DIVISION ___

PHARMACY BENEFITS MANAGER REPORTING

Sec. ___. Section 510C.1, Code 2022, is amended to read as follows:

510C.1 Definitions.

As used in this chapter unless the context otherwise requires:

1. *"Administrative fees"* means a fee or payment, other than a rebate, under a contract between a pharmacy benefits manager and a pharmaceutical drug manufacturer in connection with the

pharmacy benefits manager's management of a ~~health carrier's~~ third-party payor's prescription drug benefit, that is paid

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by a pharmaceutical drug manufacturer to a pharmacy benefits manager or is retained by the pharmacy benefits manager.

2. *"Aggregate retained rebate percentage"* means the percentage of all rebates received by a pharmacy benefits manager that is not passed on to the pharmacy benefits manager's ~~health carrier~~ third-party payor clients.

3. *"Commissioner"* means the commissioner of insurance.

4. *"Covered person"* means the same as defined in section ~~514J.102~~ 510B.1.

5. *"Formulary"* means a complete list of prescription drugs eligible for coverage under a health benefit plan.

6. *"Health benefit plan"* means the same as defined in section ~~514J.102~~ 510B.1.

7. *"Health carrier"* means the same as defined in section ~~514J.102~~ 510B.1.

~~8. *"Health carrier administrative service fee"* means a fee or payment under a contract between a pharmacy benefits manager and a health carrier in connection with the pharmacy benefits manager's administration of the health carrier's prescription drug benefit that is paid by a health carrier to a pharmacy benefits manager or is otherwise retained by a pharmacy benefits manager.~~

~~9.~~ 8. *"Pharmacy benefits manager"* means ~~a person who, pursuant to a contract or other relationship with a health carrier, either directly or through an intermediary, manages a prescription drug benefit provided by the health carrier~~ the same as defined in section 510B.1.

~~10.~~ 9. *"Prescription drug benefit"* means ~~a health benefit plan providing for third-party payment or prepayment for prescription drugs~~ the same as defined in section 510B.1.

~~11.~~ 10. *"Rebate"* means ~~all discounts and other negotiated price concessions paid directly or indirectly by a pharmaceutical manufacturer or other entity, other than a covered person, in the prescription drug supply chain to a pharmacy benefits manager, and which may be based on any of the~~

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~~following:~~ the same as defined in section 510B.1.

~~*a.* A pharmaceutical manufacturer's list price for a prescription drug.~~

~~*b.* Utilization.~~

~~*c.* To maintain a net price for a prescription drug for a specified period of time for the pharmacy benefits manager in the event the pharmaceutical manufacturer's list price increases.~~

~~*d.* Reasonable estimates of the volume of a prescribed drug~~

~~that will be dispensed by a pharmacy to covered persons.~~

11. *"Third-party payor"* means the same as defined in section 510B.1.

12. *"Third-party payor administrative service fee"* means a fee or payment under a contract between a pharmacy benefits manager and a third-party payor in connection with the pharmacy benefits manager's administration of the third-party payor's prescription drug benefit that is paid by a third-party payor to a pharmacy benefits manager or is otherwise retained by a pharmacy benefits manager.

Sec. ___. Section 510C.2, subsection 1, unnumbered paragraph 1, Code 2022, is amended to read as follows:

Each pharmacy benefits manager shall provide a report annually by February 15 to the commissioner that contains all of the following information regarding prescription drug benefits provided to covered persons of each ~~health carrier~~ third-party payor with whom the pharmacy benefits manager has contracted during the prior calendar year:

Sec. ___. Section 510C.2, subsection 1, paragraphs c, d, e, and g, Code 2022, are amended to read as follows:

c. The aggregate dollar amount of all ~~health carrier~~ third-party payor administrative service fees received by the pharmacy benefits manager.

d. The aggregate dollar amount of all rebates received by the pharmacy benefits manager that the pharmacy benefits manager did not pass through to the ~~health carrier~~ third-party

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payor.

e. The aggregate amount of all administrative fees received by the pharmacy benefits manager that the pharmacy benefits manager did not pass through to the ~~health carrier~~ third-party payor.

g. Across all ~~health carrier~~ third-party payor clients with whom the pharmacy benefits manager was contracted, the highest and the lowest aggregate retained rebate percentages.

Sec. ___. Section 510C.2, subsection 2, paragraph a, subparagraph (1), Code 2022, is amended to read as follows:

(1) The identity of a specific ~~health carrier~~ third-party payor.

Sec. ___. Section 510C.2, subsection 2, paragraph b, Code 2022, is amended to read as follows:

b. Information provided under this section by a pharmacy benefits manager to the commissioner that may reveal the identity of a specific ~~health carrier~~ third-party payor, the price charged by a specific pharmaceutical manufacturer for a specific prescription drug or class of prescription drugs, or the amount of rebates provided for a specific prescription drug or class of prescription drugs shall be considered a confidential record and be recognized and protected as a trade secret pursuant to section 22.7, subsection 3.

DIVISION ___
EMERGENCY RULEMAKING

Sec. ___. EMERGENCY RULES. The insurance division of the department of commerce may adopt emergency rules under section 17A.4, subsection 3, and section 17A.5, subsection 2, paragraph "b", to implement the provisions of this Act and the rules shall be effective immediately upon filing unless a later date is specified in the rules. Any rules adopted in accordance with this section shall also be published as a notice of intended action as provided in section 17A.4.

DIVISION ___
EFFECTIVE DATE

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Sec. ___. EFFECTIVE DATE. This Act, being deemed of immediate importance, takes effect upon enactment.>

19. Title page, line 2, after <including> by inserting <effective date and>

20. By renumbering, redesignating, and correcting internal references as necessary.

MIKE KLIMESH

RESOLUTIONS ADOPTED

EIGHTY-NINTH GENERAL ASSEMBLY
2022 REGULAR SESSION

SENATE CONCURRENT RESOLUTIONS

Senate Concurrent Resolution 103: filed February 21, 2022; adopted by the Senate on February 23, 2022; printed on Senate Journal page 381; adopted by the House on March 14, 2022; printed on House Journal page 566.

Senate Concurrent Resolution 105: filed May 24, 2022; adopted by the Senate on May 24, 2022; printed on Senate Journal page 934; adopted by the House on May 24, 2022; printed on House Journal page 938.

SENATE RESOLUTIONS

Senate Resolution 101: filed January 19, 2022; adopted by the Senate on February 9, 2022.

SENATE RESOLUTION 101
By Committee on Ethics

A Resolution relating to the requirements under the Senate Code of Ethics for filing personal financial disclosure forms by senators and candidates for senate.

BE IT RESOLVED BY THE SENATE, That Rule 11 of the Senate Code of Ethics for the Eighty-ninth General Assembly, as adopted during the 2021 Session in Senate Resolution 1, is amended as follows:

11. DISCLOSURE REQUIRED BY SENATORS. Each senator shall file with the secretary of the senate within ten days after the adoption of the code of ethics by the senate, and within ten days after the convening of the second session of the general assembly, a financial statement under section 68B.35 on forms provided by the secretary of the senate setting forth the following information:

The nature of each business in which the senator is engaged and the nature of the business of each company in which the senator has a financial interest.

A senator shall not be required to file a ~~report~~ financial statement or be assumed to have a financial

interest if the annual income derived from the investment in stocks, bonds, bills, notes, mortgages, or other securities offered for sale through recognized financial brokers is less than one thousand dollars.

Disclosures required under this rule shall be as of the date filed unless provided to the contrary,

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and shall be amended to include interests and changes encompassed by this rule that occur while the general assembly is in session. All filings under this rule shall be open to public inspection in the office of the secretary of the senate at all reasonable times.

The secretary of the senate shall inform the ethics committee of the financial statements which are filed and shall report to the ethics committee the names of any senators who appear not to have filed complete financial statements. The chairperson of the ethics committee shall request in writing that a senator who has failed to complete the ~~report~~ financial statement or appears to have filed an incomplete ~~report~~ financial statement do so within five days, and, upon the failure of the senator to comply, the ethics committee shall require the senator to appear before the committee.

BE IT FURTHER RESOLVED, That the Senate Code of Ethics for the Eighty-ninth General Assembly, as adopted during the 2021 Session in Senate Resolution 1, is amended by adding the following new rule:

11A. DISCLOSURE REQUIRED BY CANDIDATES FOR SENATE.

Each candidate for senate shall file with the secretary of the senate within fourteen days after the deadline for the filing of nomination papers or fourteen days after the nominating convention, as applicable, a financial statement under section 68B.35 on forms provided by the secretary of the senate setting forth the following information:

The nature of each business in which the candidate for senate is engaged and the nature of the business

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of each company in which the candidate for senate has a financial interest. A candidate for senate shall not be required to file a financial statement or be assumed to have a financial interest if the annual income derived from the investment in stocks, bonds, bills, notes, mortgages, or other securities offered for sale through recognized financial brokers is less than one thousand dollars.

Disclosures required under this rule shall be for the year preceding the year in which the election is to be held. All filings under this rule shall be open to

public inspection in the office of the secretary of the senate at all reasonable times.

The secretary of the senate shall provide information to persons interested in becoming candidates for senate of the duty to file financial statements under this rule and the applicable deadlines.

The secretary of the senate shall inform the ethics committee of the financial statements that are filed and shall report to the ethics committee the names of any candidates for senate who appear not to have filed complete financial statements. The secretary of the senate shall request that a candidate for senate who has failed to complete the financial statement or appears to have filed an incomplete financial report to do so within five days. If a candidate for senate does not file a complete financial statement within five days, the candidate shall be fined fifty dollars, payable to the Iowa senate for deposit in the

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general fund, and the ethics committee may require the candidate to appear before the committee.

BE IT FURTHER RESOLVED, That Rule 15 of the Senate Code of Ethics for the Eighty-ninth General Assembly, as adopted during the 2021 Session in Senate Resolution 1, is amended as follows:

15. COMPLAINTS. Complaints or charges against any senator, candidate for senate, lobbyist, or ~~any~~ client of a lobbyist shall be in writing, made under penalty of perjury, and filed with the secretary of the senate. When filed with the secretary of the senate, the secretary shall immediately advise the chairperson of the ethics committee of the receipt of the complaint.

Complaint forms shall be available from the secretary of the senate, or the chairperson of the ethics committee, but a complaint shall not be rejected for failure to use an approved form if the complaint substantially complies with senate requirements.

A complainant may submit exhibits and affidavits attached to the complaint.

BE IT FURTHER RESOLVED, That Rule 16, paragraph "a" of the Senate Code of Ethics for the Eighty-ninth General Assembly, as adopted during the 2021 Session in Senate Resolution 1, is amended as follows:

a. *Persons entitled.* Complaints may be filed by any person believing that a senator, candidate for senate, lobbyist, or client of a lobbyist has violated the senate ethics code, the joint rules governing lobbyists, or chapter 68B, as applicable. A violation of the criminal law may be considered to be a violation

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of this code of ethics if the violation constitutes a serious misdemeanor or greater, or a repetitive and flagrant violation of the law.

BE IT FURTHER RESOLVED, That Rule 19, paragraph "f", subparagraph (2) of the Senate Code of Ethics for the Eighty-ninth General Assembly, as adopted during the 2021 Session in Senate Resolution 1, is amended as follows:

(2) That the senator, candidate for senate, lobbyist, or client of a lobbyist be censured or reprimanded, and recommend the appropriate form of censure or reprimand.

BE IT FURTHER RESOLVED, That Rule 20 of the Senate Code of Ethics for the Eighty-ninth General Assembly, as adopted during the 2021 Session in Senate Resolution 1, is amended as follows:

20. COMMITTEE AUTHORIZED TO MEET. The senate ethics committee is authorized to meet at the discretion of the chairperson to conduct hearings and other business that properly may come before it. If the committee submits a report seeking senate action against a senator, candidate for senate, lobbyist, or client of a lobbyist after the second regular session of a general assembly has adjourned sine die, the report shall be submitted to and considered by the subsequent general assembly. However, the report may be submitted to and considered during any special session which may take place after the second regular session of a general assembly has adjourned sine die, but before the convening of the next general assembly.

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BE IT FURTHER RESOLVED, That Rule 21, paragraph "b" of the Senate Code of Ethics for the Eighty-ninth General Assembly, as adopted during the 2021 Session in Senate Resolution 1, is amended as follows:

b. *Form and contents of requests.* A request for a formal advisory opinion shall be in writing and may pertain to any subject matter that is related to the application of the senate code of ethics, the joint rules governing lobbyists, or chapter 68B to any person who is subject to the authority of the ethics committee. Requests shall contain one or more specific questions and shall relate either to future conduct or be stated in the hypothetical. A request for an advisory opinion shall not specifically name any individual or contain any other specific identifying information, unless the request relates to the requester's own conduct. However, any request

may contain information which identifies the kind of individual who may be affected by the subject matter of the request. Examples of this latter kind of identifying information may include references to conduct of a category of individuals, such as but not limited to conduct of legislators, legislative staff, candidates for senate, lobbyists, or clients of lobbyists.

BE IT FURTHER RESOLVED, That Rules 23, 24, and 25 of the Senate Code of Ethics for the Eighty-ninth General Assembly, as adopted during the 2021 Session in Senate Resolution 1, are amended as follows:

23. COMPLAINT FILING FORM. The following form

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shall be used to file a complaint under these rules:

THE SENATE

Ethics Complaint Form

Re: _____ (Senator/Candidate for Senate/Lobbyist/Client of Lobbyist), of _____, Iowa.

I, _____ (Complainant), residing at _____, in the City of _____, State of _____, hereby complain that _____ (Senator/Candidate for Senate/Lobbyist/Client of Lobbyist), whose address is _____, has violated the Senate Code of Ethics, chapter 68B, or Joint Rules Governing Lobbyists in that:

(Explain the basis for the complaint here. Use additional pages, if necessary.)

Under penalty of perjury, I certify that the above complaint is true and correct as I verily believe.

_____

Signature of Complainant

SUBSCRIBED AND AFFIRMED to before me this _____ day of _____, _____.

_____

Notary Public in and for the

State of _____

24. COMPLAINT NOTICE FORM. The following form shall be used for notice of a complaint under these rules:

STATE OF IOWA

THE SENATE

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COMMITTEE ON ETHICS)

IOWA STATE SENATE)

)

On The Complaint Of) NOTICE OF COMPLAINT
)
_____)
)
And Involving)
)
_____)
)
TO _____,
Senator or Candidate for Senate or Lobbyist or
Client of Lobbyist named above:
You are hereby notified that there is now on file with the Secretary of the Senate, State Capitol, Des Moines, Iowa, a complaint which alleges that you have committed a violation of the Senate's Code of Ethics, chapter 68B, or Joint Rules Governing Lobbyists.
A copy of the complaint and the Senate rules for processing the same are attached hereto and made a part of this notice.
You are further notified and requested to file your written answer to the complaint within ten days of the date upon which the notice was caused to be delivered to you, (date) _____, _____.
Your answer is to be filed with the Secretary of the Senate, State Capitol, Des Moines, Iowa.
Dated this _____ day of _____, _____.
_____

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Chairperson, Senate Ethics
Committee,
or Secretary of the Senate
25. HEARING NOTICE FORM. The following form shall be used for notice of a hearing under these rules:
STATE OF IOWA
THE SENATE
COMMITTEE ON ETHICS)
IOWA STATE SENATE)
)
On The Complaint Of) NOTICE OF HEARING
)
_____)
)
And Involving)
)
_____)
)
TO _____,
Senator or Candidate for Senate or Lobbyist or
Client of Lobbyist named above:
You are hereby notified that there is now on file

with the Secretary of the Senate, State Capitol, Des Moines, Iowa, a complaint which alleges that you have committed a violation of the Senate's Code of Ethics, chapter 68B, or Joint Rules Governing Lobbyists.

A copy of the complaint and the Senate rules for processing the same are attached hereto and made a part of this notice.

You are further notified that, after preliminary

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review, the committee has caused a public hearing to be scheduled on (date)_____, _____, at (hour) _____ (a.m.) (p.m.), in Room ____, State Capitol, Des Moines, Iowa.

At the hearing, you will have the right to appear in person, be represented by legal counsel at your own expense, present statements and evidence, and examine and cross-examine witnesses. The committee shall not be bound by formal rules of evidence, but shall receive relevant evidence, subject to limitations on repetitiveness. Any evidence taken shall be under oath.

The committee may continue the hearing to a future date if necessary for appropriate reasons or purposes.

You are further notified that the committee will receive such evidence and take such action as warranted by the evidence.

Dated this _____ day of _____, _____.

_____

Chairperson, Senate Ethics
Committee,
or Secretary of the Senate

Senate Resolution 103: filed February 24, 2022; adopted by the Senate on March 8, 2022.

SENATE RESOLUTION 103
By Koelker

A Resolution designating March 8, annually, as Utility Worker Appreciation Day.

WHEREAS, the profession of utility workers is steeped in personal, family, and professional tradition; and

WHEREAS, utility workers are often first responders during storms and other catastrophic events, working to make the scene safe for their fellow public safety heroes; and

WHEREAS, utility workers work with thousands of volts of electricity high atop power lines 24 hours per

day, 365 days a year; and
WHEREAS, utility workers keep electricity flowing by working in deep trenches, welding gas lines to seal or make repairs, performing leak detection, and ensuring pipeline integrity to safely deliver natural gas to customers; and
WHEREAS, utility workers ensure that our water supply is safe and reliable and that our wastewater is cleaned before re-entering Iowa's waterways; and
WHEREAS, utility workers such as wind turbine technicians, power plant operators, line clearance tree trimmers, distributors, and dispatchers work around the clock to keep our generation plants, wind turbines, and solar energy sites operating efficiently and ensuring the flow of energy to businesses, homes, and factories even during the worst disasters; and
WHEREAS, utility workers must often work under

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dangerous conditions far from their families to construct and maintain the energy infrastructure of the state of Iowa, especially during the Iowa derecho in August 2020 and throughout the COVID-19 pandemic, and utility workers have continued to maintain the state infrastructure despite all the obstacles with which they are confronted; and
WHEREAS, utility workers put their lives on the line every day with little recognition from the community regarding the danger of their work; NOW THEREFORE,
BE IT RESOLVED BY THE SENATE, That the Senate designates March 8, annually, as Utility Worker Appreciation Day, and calls upon the people of Iowa to be particularly mindful of the dangerous work done under extreme conditions day in and day out by these dedicated public safety workers and show their appreciation at every opportunity.

Senate Resolution 104: filed March 1, 2022; adopted by the Senate on March 10, 2022.

SENATE RESOLUTION 104
By Rozenboom

A Resolution honoring the achievements and contributions of Gene Elliott.
WHEREAS, Mr. Gene Elliott, a senior amateur golfer, is a resident of West Des Moines, Iowa, and an Iowa native, having been born in Fairfield, Iowa; and
WHEREAS, the State of Iowa has an unparalleled interest in the game of golf, as evidenced by having

more golf courses per capita than any other state, and the most nine-hole golf courses in the nation; and

WHEREAS, Mr. Elliott has distinguished himself as being the top-ranked senior amateur golfer in the United States and in the world as of January 14, 2022; and

WHEREAS, Mr. Elliott accomplished a feat only achieved by two other individuals in the history of golf by winning the Canadian Senior Amateur in 2020, the British Senior Amateur Championship in 2021, and the United States Senior Amateur in 2021; and

WHEREAS, Mr. Elliott has won dozens of other state and national golf tournaments; and

WHEREAS, Mr. Elliott was recently recognized in the national publication "Golfweek" and named the 2021 Yancey Ford Award winner for significant contributions to senior amateur golf; and

WHEREAS, Mr. Elliott has been a great ambassador for the State of Iowa and the United States, playing nationally and internationally and gaining the respect of golfers throughout the world; and

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WHEREAS, Mr. Elliott has had an impact well beyond the Hawkeye State and developed friendships throughout the world of golf; and

WHEREAS, Mr. Elliott was inducted into the Iowa Golf Association Hall of Fame in 2012; and

WHEREAS, Mr. Elliott has been a role model for thousands of golfers throughout the State of Iowa and the United States by conducting himself in a gentlemanly manner with civility during national and international competitions; and

WHEREAS, Mr. Elliott has promoted the game of golf on a state, national, and international level encouraging youth to play by the rules and be civil while in competition; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Senate recognizes and honors Mr. Gene Elliott for his numerous accomplishments while promoting the game of golf, for emphasizing civility and the importance of playing by the rules, and for being an ambassador for the State of Iowa throughout the United States and the world; and

BE IT FURTHER RESOLVED, That upon passage of this resolution the Secretary of the Senate shall provide a copy of this resolution to Mr. Elliott.

Senate Resolution 105: filed March 1, 2022; adopted by the Senate on March 16, 2022.

SENATE RESOLUTION 105

By Nunn, Wahls, Bisignano, Bolkcom, Boulton, Brown, Carlin, Celsi, Chapman, Costello, Cournoyer, Dawson, Dickey, Dotzler, Driscoll, Edler, Garrett, Giddens, Goodwin, Green, Guth, Hogg, Jochum, Johnson, Kinney, Klimesh, Koelker, Kraayenbrink, Lofgren, Lykam, Mathis, Petersen, Quirmbach, Ragan, Reichman, Rowley, Rozenboom, Schultz, Shipley, Sinclair, J. Smith, R. Smith, Sweeney, T. Taylor, Trone Garriott, Williams, and Zaun

A Resolution reaffirming Iowa's commitment to its relationship with the Ukrainian people and supporting Ukraine's efforts to remain an independent and autonomous nation.

WHEREAS, the relationship between Ukraine and the United States is marked by strong bilateral trade, educational and cultural exchange, and tourism; and

WHEREAS, the State of Iowa's ties with Ukraine are demonstrated by its sister-state relationship with Cherkasy Oblast, and sister-city relationships between Newton and Smila, Osklaloosa and Shpola, and Muscatine and Drohobych; and

WHEREAS, Ukraine and the State of Iowa have enjoyed a long and mutually beneficial trade relationship and anticipate continuing trade growth, including exports of tractors, farm implement vehicles, and seeders, planters, and transplanting tools; and

WHEREAS, in 2021, the State of Iowa exported $73,485,215 of commodities to Ukraine and imported $3,011,563 of commodities from Ukraine; and

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WHEREAS, Ukraine shares with the United States and the State of Iowa the common values of freedom, democracy, human rights, and rule of law; and

WHEREAS, Ukraine has been an independent and autonomous nation maintaining fair and free elections since 1991; and

WHEREAS, Russian military forces have committed an unprovoked and unjustified attack on the people of Ukraine; and

WHEREAS, Russian President Vladimir Putin has chosen a premeditated war that will bring a catastrophic loss of life and suffering; and

WHEREAS, Russia is solely responsible for the loss of life, destruction, and human suffering that its attack will bring; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Senate affirms that the people of Iowa stand in solidarity

with the people of Ukraine; and
BE IT FURTHER RESOLVED, That the Senate stands clearly against Russia's flagrant aggression, authoritarianism, and attack on democracy; and
BE IT FURTHER RESOLVED, That the Senate supports the right of all persons to live in a free society, the right to self-determination, and the right to live without fear of attack, foreign or domestic, anywhere in the world.

Senate Resolution 107: filed March 23, 2022; adopted by the Senate on March 23, 2022.

SENATE RESOLUTION 107
By Committee on Rules and Administration

A Resolution to honor Joshua William Bronsink.
WHEREAS, Joshua (Josh) William Bronsink was born in Fort Collins, Colorado, on March 5, 1974, as the oldest of seven children; and
WHEREAS, Josh and Kelly Bronsink were united in marriage on September 21, 2002, and shared a family with their two beloved children, Samuel and Audrey Bronsink; and
WHEREAS, Josh, a graduate of Perry High School and the University of Northern Iowa, began work in the Senate on September 19, 2001; and
WHEREAS, during his career as a legislative analyst with the Senate Republican Caucus Staff, Josh staffed a number of interim and standing committees, including the State Government Committee, and beginning in 2011 the Human Resources Committee which was closest to his heart; and
WHEREAS, in handling complex and contentious legislative issues, Josh exhibited a presence of calm, deliberation, conviction, and astute judgment; and
WHEREAS, to work with Josh, and to know him as a friend, was to appreciate his gentle manner, humor, and commitment to family, hope, and faith; and
WHEREAS, Josh passed away on March 11, 2022, leaving us to remember his dedication to the process of advancing policy objectives to improve the lives of others; NOW THEREFORE,
BE IT RESOLVED BY THE SENATE, That the Senate

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recognizes Joshua William Bronsink for his years of service and his contributions to the Iowa General Assembly and especially to the Senate; and

BE IT FURTHER RESOLVED, That members and staff of the Senate extend their deepest sympathies to Josh's family, including Kelly, Samuel, and Audrey Bronsink.

Senate Resolution 108: filed March 23, 2022; adopted by the Senate on March 23, 2022.

SENATE RESOLUTION 108
By Sweeney

A Resolution recognizing National Agriculture Week.

WHEREAS, Iowa has 84,900 farms accounting for 30.5 million acres of land dedicated to farming with more than 95 percent of Iowa farms owned by families; and

WHEREAS, Iowa consistently ranks first nationally in the production of corn, hogs, and eggs; first or second nationally in the production of soybeans; fourth nationally in the number of cattle and calves fed; seventh nationally in turkey production; and twelfth nationally in milk production; and

WHEREAS, Iowa consistently ranks first in the production of ethanol and biodiesel fuel; and

WHEREAS, in 2020, Iowa generated $26.2 billion in agricultural cash receipts; and

WHEREAS, March 21 through March 27 is National Agriculture Week, dedicated to increasing the public awareness of agriculture's vital role in our society and recognizing this nation's unique role in producing food, fiber, and fuel for the world; and

WHEREAS, this year's National Agriculture Week includes National Agriculture Day commemorated on March 22, with the first such occasion celebrated 49 years ago, when persons gathered to nationally recognize this country's unique mission to provide the world with the necessities of life; and

WHEREAS, this year's National Agriculture Week includes a Celebration of Modern Agriculture on the National Mall in Washington, D.C., hosting a wide

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range of events in tribute to American agriculture and honoring its farmers and ranchers; and

WHEREAS, this year's National Agriculture Week is an opportunity to encourage persons to understand how food, fuel, fiber, and pharmaceuticals are produced,

to appreciate the function of farmers and ranchers in producing abundant and affordable supplies of food, fuel, fiber, and pharmaceuticals, to acknowledge the essential role of agriculture in maintaining a vibrant economy, and to allow the next generation to consider career opportunities in agriculture; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Senate recognizes March 21 through March 27 as National Agriculture Week, and encourages all Iowans as residents of one of the leading agricultural states in the nation to commemorate and celebrate the invaluable contributions made by this nation's farmers and ranchers and especially Iowa farmers; and

BE IT FURTHER RESOLVED, That a copy of this resolution be sent to the Agriculture Council of America.

Senate Resolution 110: filed April 5, 2022; adopted by the Senate on April 5, 2022.

SENATE RESOLUTION 110
By Committee on Rules and Administration

A Resolution honoring Senator Joe Bolkcom for his service in the Iowa Senate.

WHEREAS, Senator Joseph L. Bolkcom was born in Bloomington, Minnesota, engendering in him a lifelong allegiance to the Minnesota Twins and Vikings, and grew up in Moline, Illinois, part of a large Irish-Catholic family nurtured by his parents, Lloyd and Nancy, who instilled in their nine children a love for reading and learning, the virtues of hard work and perseverance, an appreciation for one's own good fortune and the plight of those less fortunate, the importance of social justice and activism, a passion for politics rooted in compassion, and a love of their Irish heritage; and

WHEREAS, Senator Bolkcom received his A.A. degree in political science from Black Hawk College, a B.A. in sociology from St. Ambrose University, and an M.A. in public affairs from the University of Iowa, and helped found and direct two senior advocacy organizations, worked for the Johnson County Health Department, and served on the Johnson County Board of Supervisors; and

WHEREAS, Senator Bolkcom was first elected to the Iowa Senate in 1998, and during his six terms has continued the proud tradition of progressive public servants from Johnson County, serving on numerous boards and committees; as a member of the Appropriations, Commerce, Environment and Energy Independence, Human Resources, Judiciary, Labor and Business Relations, Natural Resources, Natural

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Resources and Environment, Rules and Administration, State Government, and Ways and Means standing committees and the Health and Human Services Appropriations Subcommittee; as Ranking Member of the Appropriations, Ethics, Local Government, and Ways and Means standing committees and the Health and Human Rights Appropriations Subcommittee; as Vice Chairperson of the Health and Human Services Appropriations Subcommittee; as Chairperson of the Ways and Means standing committee; and as Assistant Majority Leader, Assistant Democratic Leader, and Majority Whip; and

WHEREAS, Senator Bolkcom's accomplishments include helping to expand Iowa's earned income tax credit; increase the price of tobacco products and end smoking in public places and workplaces; deter car title loan sharks; extend overdue civil rights protections to LGBTQ Iowans; strengthen voting rights; bring health care and mental health services to Iowa families; address environmental challenges; create solar tax credit incentives; and establish and expand the Iowa medical cannabis program as well as work to decriminalize recreational marijuana; and

WHEREAS, Senator Bolkcom has also addressed these fundamental issues as the Outreach and Community Education Director for the University of Iowa Center for Global and Regional Environmental Research and the Iowa Flood Center and through his involvement in organizations such as the Iowa Civil Liberties Union; the Iowa Chapter of the Sierra Club; the American Federation of Teachers, Local 716; the Iowa Bicycle

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Coalition; and the Progressive States Network; and

WHEREAS, while Senator Bolkcom describes himself as a vegetarian, runner, cyclist, gardener, cook, vintage tie collector, and pro-science and his legislative philosophy as doing extensive research and listening to all sides, the signature debating style of this relentless champion for the environment, human and civil rights, public education, those living in poverty, Iowa's working families, and those who have no voice, may best be described, by those on the receiving end, as resembling a finishing move, a concept familiar to this pro wrestling aficionado from the time he shuttled World Wide Wrestling Federation superstar Andre "The Giant" Roussimoff around in his father's Cadillac; and

WHEREAS, while Senator Bolkcom has expressed heartfelt gratitude for the trust, guidance, and strong

support he has received from the people of Iowa City and Johnson County and has called his legislative seat one of the best political jobs in the country, his colleagues, on both sides of the aisle, acknowledge that as he retires from the Senate, Senator Bolkcom leaves big shoes to fill and that his experience, hard work, and commitment to the people of Iowa will be missed beyond measure; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Senate honors Senator Joe Bolkcom for his years of service in the Iowa Senate, and wishes him, his spouse Kris Bell, and their family more quality time on the trails and all the best in the years to come.

Senate Resolution 111: filed April 11, 2022; adopted by the Senate on April 12, 2022.

SENATE RESOLUTION 111
By Committee on Rules and Administration

A Resolution honoring Senator Jim Lykam for his years of service in the Iowa General Assembly.

WHEREAS, Senator Jim Lykam was born and raised in Davenport, and graduated from Palmer Junior College with an associate of arts degree in business; and

WHEREAS, Senator Lykam has spent his entire life in the city of Davenport and knows the city like the back of his hand, even as the city has changed over the years to adapt to the dynamic Mississippi River; and

WHEREAS, Senator Lykam was first elected to the Iowa House of Representatives in 1989, where he represented portions of Davenport and Scott County nonconsecutively for 16 years; and

WHEREAS, Senator Lykam was first elected to the Iowa Senate in 2016 to represent District 45, which includes part of the city of Davenport and southern Scott County along the Mississippi River; and

WHEREAS, Senator Lykam's civic service includes membership on the Davenport Planning and Zoning Commission and the Park and Recreation Advisory Committee, which included service as the chairperson of the baseball subcommittee; and

WHEREAS, Senator Lykam's promotion of youth baseball also included service as the vice president of the Davenport Colt League and the manager of the West Pony League; and

WHEREAS, Senator Lykam's tenure in the General Assembly included membership on the Appropriations,

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Natural Resources and Environment, State Government, Transportation (Ranking Member), and Commerce (Ranking Member) standing committees; the Administration and Regulation Appropriations and the Transportation, Infrastructure, and Capitals Appropriations (Ranking Member) subcommittees; the Capital Projects Committee, the Statewide Interoperable Communications System Board, and the Care of Animals in Commercial Enterprises Study Committee; and the Legislative Council; and

WHEREAS, during the 73rd General Assembly, Senator Lykam served on the House Committee on Natural Resources and Outdoor Recreation, which sponsored legislation that would create the Resources Enhancement and Protection Fund, which has since invested millions of dollars to expand environmental and recreational opportunities in Iowa; and

WHEREAS, as a lifelong animal lover who as a kid would bring home dogs and tell his mother that they followed him home, Senator Lykam managed legislation that required commercial establishments selling cats and dogs to ensure that the establishments provided a humane standard of care for such animals, and also led efforts to pass legislation to help law enforcement combat illegal dog fighting; and

WHEREAS, Senator Lykam supported legislation to limit the ability of a person to purchase large quantities of pseudoephedrine to prevent its use in producing methamphetamine; and

WHEREAS, Senator Lykam's legislative career has

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been exemplified by his support for efforts to expand economic opportunities for his district, encourage public health and safety, and promote the well-being of animals; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Senate honors and thanks Senator Jim Lykam for his years of public service in the Iowa General Assembly and wishes him all the best as he spends more time with his wife, Barb, their son, Jeff, and their dog, Sassy.

Senate Resolution 112: filed April 11, 2022; adopted by the Senate on April 12, 2022.

SENATE RESOLUTION 112
By Committee on Rules and Administration

A Resolution honoring Senator Jim Carlin for his service in the Iowa Senate.

WHEREAS, Senator Jim Carlin was first elected to the Iowa House of Representatives in 2016 and to the Iowa Senate in 2017 representing District 3, which covers portions of Plymouth and Woodbury counties; and

WHEREAS, through his service with the United States Army and over 20 years' work as a trial attorney, Senator Carlin brought an extensive legal background and knowledge of veterans issues to the Senate; and

WHEREAS, during his time in the Senate, Senator Carlin has fought for fiscal responsibility, tax reform, and restraints on government, and defended the rights and freedom of Iowans; and

WHEREAS, during his Senate tenure, Senator Carlin has served on the Education, Ethics (Vice Chairperson), Human Resources, Labor and Business Relations, Natural Resources and Environment, State Government, Transportation, Veterans Affairs (Chairperson), and Ways and Means standing committees; the Education (Vice Chairperson) and Justice System (Vice Chairperson) appropriations subcommittees; the Administrative Rules Review Committee; the Child Care Advisory Committee, Commercial Air Service Retention and Expansion Committee, Family Development and Self-Sufficiency Council, and Statewide Fire and Police Retirement System Board of Trustees; and

WHEREAS, Senator Carlin has further demonstrated

his commitment to civic engagement through his involvement with the Giving Exchange, Siouxland Chamber of Commerce, National Federation of Independent Businesses, National Rifle Association, American Legion, Iowa's Family Leader, Morningside Assembly of God Church, Dismas Charities, Upward Sports, and Morningside College Mustangs; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Iowa Senate honors Senator Jim Carlin for his five years of public service in the Iowa Senate and wishes him all the best in the years to come.

Senate Resolution 113: filed April 11, 2022; adopted by the Senate on April 12, 2022.

SENATE RESOLUTION 113
By Committee on Rules and Administration

A Resolution honoring Senator Tim Goodwin for his years of service in the Iowa Senate.

WHEREAS, Senator Tim Goodwin was raised in the Danville and Burlington area, graduating from Burlington High School, attending the University of Iowa on a baseball scholarship, and earning a bachelor's degree in physical education and a master's degree in sports management from Western Illinois University; and

WHEREAS, Senator Goodwin began his professional career in public relations working for the Boston Celtics and the New York Knicks of the National Basketball Association; and

WHEREAS, Senator Goodwin returned to Iowa to pursue a career in education, serving as a teacher and a coach for 5 years and a high school administrator for 10 years throughout southeast Iowa; and

WHEREAS, Senator Goodwin was first elected to the Iowa Senate in 2020 to represent District 44, which includes all of Des Moines and Louisa counties and portions of Muscatine County; and

WHEREAS, during his legislative tenure, Senator Goodwin has served on the Commerce, Education, State Government, and Ways and Means (Vice Chairperson) standing committees; the Administration and Regulation Appropriations Subcommittee; and the Tax Expenditure and Public Retirement Systems committees; and

WHEREAS, Senator Goodwin also served on the

Investment Board of the Iowa Public Employees' Retirement System and the Midwestern Higher Education Compact; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Senate honors Senator Tim Goodwin for his years of service in the Iowa Senate and wishes him and his family all the best in the years to come.

Senate Resolution 114: filed April 11, 2022; adopted by the Senate on April 12, 2022.

SENATE RESOLUTION 114
By Committee on Rules and Administration

A Resolution honoring Senator Zach Nunn for his service in the Iowa Senate.

WHEREAS, Senator Zach Nunn was first elected to the Iowa House of Representatives in 2014 and to the Iowa Senate in 2018 representing District 15, which covers portions of Polk and Jasper counties; and

WHEREAS, through his service as a Lieutenant Colonel in the United States Air Force, Commander in the Iowa Air National Guard, and as Director of Cybersecurity for the National Security Council, and employment as an entrepreneur, Senator Nunn brought an extensive knowledge of military and foreign affairs and business to the Senate; and

WHEREAS, during his time in the Senate, Senator Nunn has championed fiscal responsibility, limited government, personal liberty, and cybersecurity; and

WHEREAS, during his time in the House of Representatives, then-Representative Nunn served as House Majority Whip and House Assistant Majority Leader, and served on the Administration and Rules, Commerce, Economic Growth (Vice Chairperson), Judiciary (Chairperson), Veterans Affairs, and Ways and Means standing committees; the Education Appropriations Subcommittee (Vice Chairperson); the Administration (Vice Chairperson), International Relations, and Tax Expenditure committees of the Legislative Council; and the Criminal and Juvenile Justice Planning Advisory Council, Economic Development Authority Board,

Interstate Compact for Adult Offender Supervision State Council, Public Safety Advisory Board, and Telecommunications Company Property Tax Review Committee; and

WHEREAS, during his Senate tenure, Senator Nunn has served on the Commerce, Judiciary, Labor and Business Relations, and Ways and Means standing committees; the Justice System Appropriations Subcommittee (Vice Chairperson); the International Relations Committee of the Legislative Council (Chairperson); and the Iowa Innovation Council; and

WHEREAS, Senator Nunn has further demonstrated his commitment to civic engagement through his involvement with the Saints John and Paul's Knights of Columbus,

Altoona Chamber of Commerce, Altoona Veterans of Foreign Wars, Bondurant American Legion, Newton Chamber of Commerce, Drake University's National Alumni Board, and Harkin Institute for Public Policy and Citizen Engagement Board, and as Co-Founder of Task Force Argo's Afghanistan Evacuation Airlift; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Iowa Senate honors Senator Zach Nunn for his four years of public service in the Iowa Senate and wishes him all the best in the years to come.

Senate Resolution 116: filed April 13, 2022; adopted by the Senate on April 13, 2022.

SENATE RESOLUTION 116
By Committee on Rules and Administration

A Resolution honoring Senator Craig Johnson for his service in the Iowa Senate.

WHEREAS, Senator Craig Johnson was first elected to the Iowa Senate in November 2016; and

WHEREAS, Senator Johnson's work in construction, management, and investment took him from Antarctica back to his hometown of Independence, Iowa, where he worked tirelessly through Vision Iowa to help build the Heartland Acres Agribition Center; and

WHEREAS, during his legislative tenure, Senator Johnson has served on a variety of legislative committees, including the Appropriations, Commerce, Education, Human Resources, Judiciary, and State Government (Vice Chairperson) standing committees; the Transportation, Infrastructure, and Capital Appropriations Subcommittee (Chair); and the State Government Efficiency Review Committee; and

WHEREAS, Senator Johnson has also served on the Capitol Planning Commission; and

WHEREAS, Senator Johnson was a founding member of the Independence Area Dollars for Scholars, which he continues to support; and

WHEREAS, Senator Johnson was selected as the Iowa Restaurant Association's 2020 Legislator of the Year; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Senate honors Senator Craig Johnson for his years of service in the Iowa Senate, and wishes him all the best in the years

to come.

Senate Resolution 117: filed April 13, 2022; adopted by the Senate on April 13, 2022.

SENATE RESOLUTION 117
By Committee on Rules and Administration

A Resolution honoring Senator Robert Hogg for his service in the Iowa Senate.

WHEREAS, Senator Robert Hogg was first elected to the Iowa House of Representatives in 2002, and after two terms he was elected to the Iowa Senate in 2006, representing the Cedar Rapids area; and

WHEREAS, Senator Hogg, a fourth-generation Iowan, has long resided in Cedar Rapids with his wife, Kathryn, and children, Robert, Dorothy, and Isabel, and has continued a Cedar Rapids tradition of sending capable, dedicated, and experienced representation to the Statehouse; and

WHEREAS, through his employment as an attorney, Senator Hogg brought an extensive legal background to the Senate; and

WHEREAS, during his time in the Senate, Senator Hogg has championed Cedar Rapids' historic flood recovery, as well as statewide flood recovery and mitigation efforts including the creation of the Iowa Flood Center; solar power and other renewable energy initiatives; protecting Iowa's environment and preserving Iowa's natural resources; Iowa's preschool program, STEM education, and other education initiatives; the Smokefree Air Act, the child safety seat law, expansion of civil rights protections, and other public health, safety, and equity matters; and expanded worker training programs; and has literally written the book on combating climate change; and

WHEREAS, during his Senate tenure, Senator Hogg has served as Minority Leader of the Senate and served on the Appropriations, Education, Environment and Energy Independence (Vice Chairperson), Ethics, Government Oversight (Chairperson), Judiciary (Chairperson), Local Government (Ranking Member), Natural Resources and Environment (Ranking Member), Rebuild Iowa (Chairperson), Rules and Administration (Ranking Member), and Ways and Means standing committees; the Economic Development and Justice System (Vice Chairperson) appropriations subcommittees; the Administrative Rules Review Committee; the State Government Efficiency Review Committee; the Administration, Service, and Studies Committees of the

Legislative Council; and the Business Disaster Case Management Task Force, Climate Change Advisory Council, Criminal and Juvenile Justice Planning Advisory Council, Criminal Justice Information System Advisory Committee, Flood Mitigation Board, Governmental Public Health Advisory Council, Midwestern Higher Education Compact, Public Safety Advisory Board, Rebuild Iowa Coordinating Council, Task Force on the Prevention of Sexual Abuse of Children, and Watershed Improvement Review Board; and served on numerous interim study committees; and

WHEREAS, Senator Hogg has further demonstrated his commitment to civic engagement through his involvement with Christ Episcopal Church, the Indian Creek Nature Center, and the Linn County Bar Association, and his recent participation in the United Nations Framework

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Convention on Climate Change; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Iowa Senate honors Senator Robert Hogg for his 20 years of public service to the people of Iowa and wishes him all the best in the years to come.

Senate Resolution 118: filed April 13, 2022; adopted by the Senate on April 13, 2022.

SENATE RESOLUTION 118
By Committee on Rules and Administration

A Resolution honoring Senator Liz Mathis for her years of service in the Iowa Senate.

WHEREAS, Senator Liz Mathis was born and raised in DeWitt, and graduated from the University of Iowa in 1980 with a bachelor's degree in communication, theater arts, and journalism; and

WHEREAS, Senator Mathis was first elected to the Iowa Senate in 2011 to represent District 18 and was reelected in 2012 to represent District 34, both of which include Marion, Hiawatha, Robins, and portions of rural Linn County; and

WHEREAS, Senator Mathis's professional accomplishments include serving in multiple roles with Four Oaks, a child welfare agency, and as a news anchor telling the stories of Iowa residents; and

WHEREAS, Senator Mathis is active in the eastern Iowa community, serving as a member of the Wartburg College Board of Regents, the Marion Cares Advisory Board, the Rotary Club of Cedar Rapids, and the University of Iowa President's Club, among other

groups; and
WHEREAS, Senator Mathis's tenure in the Iowa Senate included membership on the Agriculture, Appropriations, Commerce, Human Resources (Chairperson), and Veterans Affairs (Vice Chairperson) standing committees; the Agriculture and Natural Resources Appropriations (Ranking Member) and Administration and Regulation Appropriations (Chairperson) subcommittees; the

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Health Policy Oversight Committee; and the Career and Technical Education Implementation and Elder Abuse Prevention and Intervention study committees; and
WHEREAS, Senator Mathis used her role on the Committee on Agriculture to help Iowa family farmers and farming communities; and
WHEREAS, Senator Mathis has worked to support Iowa families while they have struggled with health care, the COVID-19 pandemic, and natural disasters, and the emotional and economic challenges that have come with those obstacles; and
WHEREAS, Senator Mathis's legislative career has been exemplified by her support for efforts to promote the health and safety of Iowans, particularly those in vulnerable populations; NOW THEREFORE,
BE IT RESOLVED BY THE SENATE, That the Iowa Senate honors and thanks Senator Liz Mathis for her years of public service in the Iowa Senate and wishes her and her family all the best in the years to come.

Senate Resolution 119: filed April 13, 2022; adopted by the Senate on April 13, 2022.

SENATE RESOLUTION 119
By Whitver

A Resolution deferring action on the confirmation of certain appointments submitted by the Governor.
BE IT RESOLVED BY THE SENATE, That the Senate, under the provisions of section 2.32, subsection 7, defers the consideration of the confirmation of all appointments that have been or are submitted by the Governor during the last thirty days of the second regular session of the eighty-ninth general assembly, and which have not otherwise been acted upon, to the next regular session of the general assembly.

Senate Resolution 120: filed April 13, 2022; adopted by the Senate on April 13, 2022.

SENATE RESOLUTION 120
By Whitver

A Resolution deferring action on the confirmation of certain appointments.

BE IT RESOLVED BY THE SENATE, That the Senate, under the provisions of section 2.32, subsections 5 and 7, defers the consideration of the confirmation of all appointments that have been or are submitted by the Governor or by an appointing authority other than the Governor by, on, or after April 15, 2022, and that have not yet been confirmed by the Senate by April 15, 2022.

Senate Resolution 121: filed April 18, 2022; adopted by the Senate on April 18, 2022.

SENATE RESOLUTION 121
By Committee on Rules and Administration

A Resolution honoring Senator Amanda Ragan for her service in the Iowa Senate.

WHEREAS, Senator Amanda Ragan, having been raised in a tight-knit north Iowa community on a cattle farm near Rockwell, and earning her A.A. degree from North Iowa Community College and her B.A. degree, graduating cum laude, from Buena Vista University while balancing work and family commitments, learned the value of hard work and resilience as well as the importance of helping others, especially in times of need; and

WHEREAS, guided by these lessons and reflecting Virginia Woolf's maxim that "One cannot think well, love well, sleep well, if one has not dined well", Senator Ragan became the executive director of both Mason City Meals on Wheels and the Community Kitchen of North Iowa, Inc., an independent nonprofit with a mission of working to meet the nutritional, social, emotional, and educational hungers of people in the north Iowa area; and

WHEREAS, Senator Ragan, recognizing that these basic hungers are universal and resonate with Iowans across the state, ran for and was elected to the Iowa Senate in a special election in 2002, and during her six terms has served as a member of the Agriculture, Appropriations, Economic Growth, Education, Human Resources, Local Government, Natural Resources, Natural Resources and Environment, Rules and Administration, State Government, and Veterans Affairs

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standing committees and the Health and Human Services Appropriations Subcommittee, and has held the positions of Senate Democratic Whip, Assistant Majority Leader, Assistant Minority Leader, Minority Whip, Agriculture Committee Vice Chairperson, and Human Resources Committee and Health and Human Services Appropriations Subcommittee Chairperson, Vice Chairperson, and Ranking Member; and

WHEREAS, among other issues, Senator Ragan has focused on expanding affordable health care; protecting the rights of workers and raising the state's minimum wage; improving the lives of seniors, low-income Iowans, and Iowans with disabilities; expanding services and protections for veterans and service members; expanding access to quality and affordable child care, early childhood programs, and higher education and boosting funding to K-12 public schools; increasing voter registration and participation; and expanding civil rights for Iowans; and

WHEREAS, Senator Ragan has served on innumerable committees, boards, and commissions and has been recognized by a wide range of entities as, among other accolades, a champion, protector, voice for, and hero of children, the underserved, persons with disabilities, and seniors; a friend of agriculture; a champion of renewable fuels; the Iowa Public Health Official of the Year; and the Herbert Hoover Library Association Uncommon Public Servant of the Year; and

WHEREAS, Senator Ragan is known to be one of the first to arrive at and one of the last to leave the

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Senate chamber each day, relishing the privilege of serving the constituents she has met at the tens of thousands of doors knocked in her community; and

WHEREAS, unlike those River City self-described "Iowa stubborn" who can stand touching noses for a week at a time and never see eye-to-eye, Senator Ragan has always been willing to listen and to reach across the aisle, demonstrating the rare mixture in policymaking of pragmatism and real-world experience with an empathetic voice, all laced with a dry wit; and

WHEREAS, as Senator Ragan retires from the Senate, also having recently retired from her dual executive director roles, she will have more time to spend with her husband Jim Ragan, a retired U.S. Air Force Lt. Col., their two children, Edith (Joe) and Charles (Kate), and their four grandchildren, Amanda, William, Isaac, and Ivy, while continuing to advocate for her

beloved north Iowa community and make Iowa a better place; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, That the Senate honors Senator Amanda Ragan for her years of service in the Senate, and wishes her and her family all the best in the years to come.

Senate Resolution 122: filed April 18, 2022; adopted by the Senate on April 18, 2022.

SENATE RESOLUTION 122
By Committee on Rules and Administration

A Resolution honoring Senator Craig Williams for his service in the Iowa Senate.

WHEREAS, Senator Craig Williams was first elected to the Iowa Senate in November 2020 after having lived in Manning, Iowa, since 1991; and

WHEREAS, Senator Williams got his start in politics in 1982 by volunteering to work on the reelection campaign for United States House Minority Leader Bob Michel, and has since served as the chairman of the Carrol County Republican Central Committee as well as on the Iowa Republican State Central Committee; and

WHEREAS, Senator Williams brought to the Senate extensive experience in agricultural business; and

WHEREAS, during his legislative tenure, Senator Williams has served on a variety of legislative committees, including the Appropriations, Commerce, Government Oversight (Vice Chairperson), and Local Government standing committees, and the Agriculture and Natural Resources Appropriations Subcommittee; and

WHEREAS, Senator Williams has also served on the Commission on Aging and the Iowa Capital Investment Board; NOW THEREFORE,

BE IT RESOLVED BY THE SENATE, that the Senate honors Senator Craig Williams for his years of service in the Iowa Senate, and wishes him all the best in the years to come.

Senate Resolution 123: filed April 19, 2022; adopted by the Senate on April 19, 2022.

SENATE RESOLUTION 123
By Committee on Rules and Administration

A Resolution honoring Senator Roby Smith for his service in the Iowa Senate.

WHEREAS, Senator Roby Smith was first elected to the Iowa Senate in November 2010 to serve Senate district 41 and has proudly served Senate district 47 since

2013; and
WHEREAS, Senator Smith earned a bachelor of science degree in business administration with a minor in communications and brought valuable experience in small business ownership to the Senate; and
WHEREAS, Senator Smith has served on numerous legislative committees during his time in the Senate, including the Commerce, Rules and Administration, State Government (Chairperson), Ways and Means, and Local Government (Ranking Member) standing committees, the Tax Expenditure Committee of the legislative council, and the State Government Efficiency Review Committee (Co-Chairperson); and
WHEREAS, Senator Smith has also served on the Statewide Fire and Police Retirement System Board of Trustees; and
WHEREAS, during his tenure in the Senate, Senator Smith has worked tirelessly to reform elections in Iowa, lessen the burdens of professional licensure and regulation on Iowans, and increase the efficiency of the operations of the boards, commissions, and departments of the state; and
WHEREAS, despite his numerous legislative

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commitments, Senator Smith has remained active in his community, including by serving on the Scott Community College Foundation Board and as an instructor for Junior Achievement of the Heartland; NOW THEREFORE,
BE IT RESOLVED BY THE SENATE, That the Senate honors Senator Roby Smith for his years of service in the Iowa Senate, and wishes him all the best in the years to come.

MEMORIALS

IN MEMORIAM

SENATORS

Quentin Anderson.....May 7, 1932 – December 27, 2019

Dick Dearden .....June 3, 1938 – November 2, 2019

Gene Fraise ..... May 7, 1932 – November 27, 2020

Charles "Bill" Hutchins ..... March 29, 1931 – December 8, 2019

Gene V. Kennedy .....October 28, 1927 – March 7, 2021

William "Bill" Palmer. ..... January 13, 1935 – February 22, 2020

Richard Vande Hoef.....May 15, 1925 – December 20, 2020

Mark Zieman.....January 17, 1945 – September 8, 2019

QUENTIN ANDERSON

Quentin Anderson was born May 7, 1932 to George and Lena Anderson. Quentin grew up on the family farm east of Ellston.

Working hard and investing in the community was a trait handed down by his father. He worked the farm, running the Anderson Saw Mill and the Ellston Grain Elevator.

Quentin graduated from Ellston Community School and later attended the American Institute of Business. He also served in the United States Army, serving 17 months overseas during the Korean War.

He was united in marriage to Rita Hewlett of Grand River on October 29, 1957. To this union two children were born.

Quentin was first elected to the Iowa House of Representatives in 1963. He served in the House for the 60th and 61st General Assemblies. He then was elected to the Iowa Senate – serving during the 63rd and 64th General Assemblies. Lastly, he returned to the Iowa House serving for the 65th General Assembly.

During his time in the Legislature, he was a strong voice to protect rural areas. His work on legislation to change the inheritance tax, personal property tax and tax on livestock had a major impact across the state. He believed in less government control and more individual opportunity.

Building Sun Valley Lake and the community surrounding it was a vision shared with his father. That completed project has made a tremendous impact on the local and county economy.

Senator Anderson was both a Ringgold County Democrat and Republican.

Senator Quentin Anderson passed away on December 27, 2019 at the age of 87.

NOW, THEREFORE, BE IT RESOLVED BY THE SENATE OF THE EIGHTY-NINTH GENERAL ASSEMBLY OF IOWA: That in the passing of the Honorable Quentin Anderson, the State has lost an honored citizen and faithful and useful public servant, and that the Senate by this resolution expresses its appreciation of his service to the State and tenders its sympathy and kindest regards to the members of his family.

BE IT FURTHER RESOLVED: That a copy of this resolution be spread upon the Journal of the Senate and that the Secretary of the Senate be instructed to forward an enrolled copy to the family of the deceased.

Mark Costello
Tom Shipley
Kevin Kinney
Committee

DICK DEARDEN

Dick Leslie Dearden was born on June 3, 1938 in Des Moines to Helen Mae and Harry Joseph Dearden.

He graduated from East High School and served in the Iowa National Guard from 1956 to 1962. He later worked in manufacturing and the grocery industry.

In 1959 he married the love of his life, Sharon. To this union three children were added.

It was in 1964 that both he and his wife Sharon took an interest in politics and volunteered for the first-time door knocking for President Johnson and Governor Hughes. From then on, he worked in every Presidential and Gubernatorial election. Together they became the Dynamic Duo.

He served as Polk County Democratic Chair from 1979 to 1981 and was a National Delegate for President Clinton in 1996. He was elected to the Iowa Senate in 1994 and served until 2017.

Dick enjoyed time with his family and friends, fishing, hunting and gardening as well. He was a member of AMVETS, Izaak Walton League, Pheasants Forever, Ducks Unlimited and AFSCME retirees to name a few.

He was a great friend to working people, a champion for organized labor and a leader on environmental issues while chairing the Senate Natural Resources Committee. He voted to protect communities by requiring carbon monoxide detectors in certain buildings and he dedicated time to ensuring his constituents had access to affordable health care. One bill that he worked tirelessly on was the "Dove bill".

He was a humble man who believed what he did was not about him – but for those he served.

Senator Dearden was a Polk County Democrat.

Senator Dick Dearden passed away on November 2, 2019 at the age of 81.

NOW, THEREFORE, BE IT RESOLVED BY THE SENATE OF THE EIGHTY-NINTH GENERAL ASSEMBLY OF IOWA: That in the passing of the Honorable Dick Dearden, the State has lost an honored citizen and faithful and useful public servant, and that the Senate by this resolution expresses its appreciation of his service to the State and tenders its sympathy and kindest regards to the members of his family.

BE IT FURTHER RESOLVED: That a copy of this resolution be spread upon the Journal of the Senate and that the Secretary of the Senate be instructed to forward an enrolled copy to the family of the deceased.

Nate Boulton
Todd Taylor
Brad Zaun
Committee

GENE FRAISE

Eugene Fraise was born on May 7, 1932 in rural West Point, Iowa to Theodore and Viola Fraise.

On December 31, 1949 he married the love of his life, Faye Pumphrey and they enjoyed over 70 years of marriage. To this union 4 children were born.

Gene's life was one of dedication to his family and friends, farming and serving the people of Iowa. He was born and raised in the West Point area where he established his roots raising his family and farming. His passion for serving the community led him to be the Lee County Supervisor for seven years and serving in the Iowa Senate for 27 years! He was proud to be the longest serving Senator in District 42 of Southeast Iowa. He took great pride in serving the people of Iowa.

One of his proudest accomplishments was being instrumental in the building of the 61 Bypass, the Bridgeport Bridge project and serving as the only non-lawyer Judiciary committee head in the history of the State of Iowa. Above all of these worthy accomplishments – he believed his family was his greatest achievement.

While Senator Fraise served on many committees during his time in the Legislature, worth noting is his membership in an "unofficial" legislative group known as the "Knot Hole Gang". This group consisted of several of his peers and involved fishing trips to Canada, eating their catch for breakfast and sharing endless stories with their friends and family about their outings. It was hard for him to contain his laughter as he told stories of sharing hidden candy bars – and the importance of being on the right boat [with supplies] in the event you got separated from the others. He cherished the life-long friendships made with these colleagues from the Hill and their spouses as a result of the formation of this group. The friendships grew for decades and created wonderful memories for all.

Senator Fraise was a Lee County Democrat.

Senator Eugene "Gene" Fraise passed away on November 27, 2020 at the age of 88.

NOW, THEREFORE, BE IT RESOLVED BY THE SENATE OF THE EIGHTY-NINTH GENERAL ASSEMBLY OF IOWA: That in the passing of the Honorable Eugene Fraise, the State has lost an honored citizen and faithful and useful public servant, and that the Senate by this resolution expresses its appreciation of his service to the State and tenders its sympathy and kindest regards to the members of his family.

BE IT FURTHER RESOLVED: That a copy of this resolution be spread upon the Journal of the Senate and that the Secretary of the Senate be instructed to forward an enrolled copy to the family of the deceased.

Kevin Kinney
Jeff Reichman
Todd Taylor
Committee

CHARLES "BILL" HUTCHINS

Charles "Bill" Hutchins was born March 29, 1931 to Jack and Hazel Hutchins.

Bill attended Audubon Community Schools, graduating in 1948. Shortly after graduation he enlisted in the United States Air Force – serving during the Korean Conflict.

In 1955 Bill married Jo Ann Reser. To this union four daughters were born. They established their home in Guthrie Center and owned and operated a dry-cleaning business for over 35 years.

Bill first ran for the House of Representatives in 1972. He served in the House until 1976. He was then elected to the Iowa Senate in 1977 and served until 1992. During his time in the Senate – he was an assistant leader and eventually served as Senate Majority Leader. Due to his wife's declining health, he retired during his 5th term in the Senate.

Sen. Hutchins was also a member of the "Knot Hole Gang" and the adventures, trips, stories and friendships formed were so important to him, he continued scheduling meetings well after his years of serving on the Hill. The men would gather (along with their spouses), and share both a meal and stories as they relived wonderful times together.

After his retirement from the Legislature Senator Hutchins joined a consulting and lobbying firm and later purchased that firm and Charles W. Hutchins and Associates, Inc was formed. This firm represented many organizations and clients.

Bill married Marlene Wille in October of 2003 in Phoenix Arizona. During his retirement years, he enjoyed hunting, golfing, fishing and an occasional casino or two.

Senator Hutchins was an Audubon County Democrat.

Senator Bill Hutchins passed away December 8, 2019 at the age of 88.

NOW, THEREFORE, BE IT RESOLVED BY THE SENATE OF THE EIGHTY-NINTH GENERAL ASSEMBLY OF IOWA: That in the passing of the Honorable Charles "Bill" Hutchins, the State has lost an honored citizen and faithful and useful public servant, and that the Senate by this resolution expresses its appreciation of his service to the State and tenders its sympathy and kindest regards to the members of his family.

BE IT FURTHER RESOLVED: That a copy of this resolution be spread upon the Journal of the Senate and that the Secretary of the Senate be instructed to forward an enrolled copy to the family of the deceased.

Eric Giddens
Amanda Ragan
Craig Williams
Committee

GENE V. KENNEDY

Gene V. Kennedy was born October 28, 1927 in Le Mars, Iowa to Eugene and Lillian Kennedy. He later attended Trinity College in Sioux City and received a B. A. from Loras College in Dubuque.

He married, the love of his life, Dorothy Evelyn Sell on May 21, 1952. They shared just short of 70 married years together. To this union, 8 children were born.

Gene served on the Iowa Highway Patrol – out of Red Oak Iowa. They later moved to Dubuque and after owning a business there, he was urged to run for the Iowa Legislature.

Gene served terms in both the Iowa House and the Iowa Senate. During these years, he prioritized issues that involved law enforcement, and private schools – including the Iowa Tuition Grant Bill.

After his terms in the Legislature, he joined the Lobby. It was there that he spent the majority of his years at the Capitol. Gene believed that it was important for legislators to get to know each other and spend time together outside of the Chamber – so the infamous "Tuesday Night Parties" were born. While these nights were filled with wonderful food, cooked by Dorothy, it also allowed legislators to really get to know each other and their families, they were a huge success!

Senator Kennedy was also a member of the unofficial "Knot Hole Gang" and he could share endless stories of how to catch, clean and cook fish. The years spent with his closest legislative friends in this group spanned decades. He was forever grateful for their friendships.

Senator Kennedy was a Dubuque County Democrat

Senator Gene V. Kennedy passed away on March 7, 2021 at the age of 93

NOW, THEREFORE, BE IT RESOLVED BY THE SENATE OF THE EIGHTY-NINTH GENERAL ASSEMBLY OF IOWA: That in the passing of the Honorable Gene V. Kennedy, the State has lost an honored citizen and faithful and useful public servant, and that the Senate by this resolution expresses its appreciation of his service to the State and tenders its sympathy and kindest regards to the members of his family.

BE IT FURTHER RESOLVED: That a copy of this resolution be spread upon the Journal of the Senate and that the Secretary of the Senate be instructed to forward an enrolled copy to the family of the deceased.

Tony Bisignano
Pam Jochum
Carrie Koelker
Committee

WILLIAM "BILL" PALMER

William D. Palmer was born on January 13, 1935 to George and Florence Palmer.

Bill grew up in Des Moines, Iowa and graduated from East High School. He lived his entire life as a proud east-sider, where he owned Palmer Insurance Agency for 30 years.

Bill married Evelyn Johnson in June of 1953 – to this union 3 children were born. He later married Evadna and they were blessed to share over 29 years together.

His service in the Iowa Legislature included both the House of Representatives, serving from 1965 to 1969 and the Iowa Senate from 1969 to 1999. During this time, he was on the Commerce, Labor and Business Relations, Small Business and Economic Development and Ways and Means Committees.

Yet another "unofficial" club in which he belonged, Senator Palmer was a distinguished member of a bipartisan group of Senators known as Montana Mafia. While the name may sound alarming, it was named after a well-known and frequently visited restaurant known as Montana's, which was located at the bottom of the hill from the Capitol. Many stories were shared and a lot of food consumed by this group of legislators. He was also the original owner and creator of the Depot Bar at the Iowa State Fair.

Although he believed, at times, his limited education would prevent him from interacting with his Legislative peers – it only took one conversation with him to know that he was well versed on just about any subject. He really enjoyed spending time talking with everyone – and his ability to engage in conversation was truly one of his strongest assets.

Senator Palmer was able to look beyond his own personal choices and look at the bigger picture, recognizing what could potentially help the majority of people. This was evident when he voted with members of his own caucus and the new Republican majority in passing the smoke free legislation.

Senator Palmer was a Polk County Democrat.

Senator Bill Palmer passed away on February 22, 2020 at the age of 85.

NOW, THEREFORE, BE IT RESOLVED BY THE SENATE OF THE EIGHTY-NINTH GENERAL ASSEMBLY OF IOWA: That in the passing of the Honorable William "Bill" Palmer, the State has lost an honored citizen and faithful and useful public servant, and that the Senate by this resolution expresses its appreciation of his service to the State and tenders its sympathy and kindest regards to the members of his family.

BE IT FURTHER RESOLVED: That a copy of this resolution be spread upon the Journal of the Senate and that the Secretary of the Senate be instructed to forward an enrolled copy to the family of the deceased.

Tony Bisignano
Janet Petersen
Brad Zaun
Committee

RICHARD VANDE HOEF

Richard Vande Hoef was born on May 15, 1925 to Paul and Maggie Vande Hoef on a farm south of Boyden, Iowa. He grew up on the farm near Boyden, but he felt his help was needed on the farm rather than to continue pursuing an education.

Shortly before his 19th birthday Rich was drafted in the United States Army and served until 1946, during World War II. After returning home he was united in marriage on September 4, 1946 to Harriet Vander Maten at the First Reformed Church in Boyden, Iowa. To this union four children were born.

Rich was elected State Senator in 1980 and served in the Iowa Senate for 12 years. After the 1990 reapportionment, he served six years in the Iowa House of Representatives.

While serving in the Legislature, he was a member of the Human Resources, Transportation and Chair of the Local Government committees.

Upon his retirement from the legislature in 1998, he moved his family to Sibley Iowa. He retained an interest and engagement in civic activities and considered his work on Hawkeye Point, and its development as an attractive asset to the area, as one of his greatest accomplishments.

Rich received many awards such as the Osceola County Farm Bureau Service to Agriculture Award. He was also a member and Elder of Ocheyedan Christian Reformed Church, American Legion, Osceola County Cattleman's Association and Pork Producers.

Senator Vande Hoef was an Osceola County Republican

Senator Richard Vande Hoef passed away on December 20, 2020 at the age of 95.

NOW, THEREFORE, BE IT RESOLVED BY THE SENATE OF THE EIGHTY-NINTH GENERAL ASSEMBLY OF IOWA: That in the passing of the Honorable Richard Vande Hoef, the State has lost an honored citizen and faithful and useful public servant, and that the Senate by this resolution expresses its appreciation of his service to the State and tenders its sympathy and kindest regards to the members of his family.

BE IT FURTHER RESOLVED: That a copy of this resolution be spread upon the Journal of the Senate and that the Secretary of the Senate be instructed to forward an enrolled copy to the family of the deceased.

David Rowley
Jackie Smith
Jeff Taylor
Committee

MARK ZIEMAN

Mark Zieman was born January 17, 1945 to Lyle and Leah Zieman in Postville Iowa. He graduated from Postville High School in 1963 and then went on to attend Iowa State University.

Mark was united in marriage to Jennifer Overland on August 8, 1964. To this union four children were born. He was a farmer starting in 1965 and also owned Cherry Valley Enterprises and Hi-Way Lanes. Following in his father's footsteps – he served as a State Senator from 2001 to 2008.

While serving in the Legislature, he served on the Agriculture, Appropriations, Economic Growth, Local Government and Transportation committees.

He was always one to give generously of his time, serving in various capacities throughout his life including being a church council member at St. Paul Lutheran Church, past Chairman of the Board of the Iowa Motor Truck Association, past President of Tri City Golf Club and past Chairman of the Allamakee County Republican Central Committee to name a few.

Mark was an avid bowler. He attended the national bowling tournament for 25 consecutive years and he bowled a perfect 300 game at the state bowling tournament in 2005.

He enjoyed RV adventures, fishing trips, golf, playing cards, crop tours and cheering on the Cubs. The thing he loved the most was spending time with his family.

Senator Zieman was an Allamakee County Republican.

Senator Mark Zieman passed away on September 8, 2019 at the age of 74.

NOW, THEREFORE, BE IT RESOLVED BY THE SENATE OF THE EIGHTY-NINTH GENERAL ASSEMBLY OF IOWA: That in the passing of the Honorable Mark Zieman, the State has lost an honored citizen and faithful and useful public servant, and that the Senate by this resolution expresses its appreciation of his service to the State and tenders its sympathy and kindest regards to the members of his family.

BE IT FURTHER RESOLVED: That a copy of this resolution be spread upon the Journal of the Senate and that the Secretary of the Senate be instructed to forward an enrolled copy to the family of the deceased.

William A. Dotzler, Jr.
Craig Johnson
Mike Klimesh
Committee

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Amendments offered – 870
Bills and resolutions introduced – 61, 62, 74, 75, 117, 149, 200, 220, 304, 316, 416, 422, 501
Bill subcommittee assignments – 63, 98, 103, 120, 121, 126, 144, 151, 160, 171, 180, 193, 224, 225, 251, 263, 278, 321, 370, 383, 402, 484, 501, 513, 623, 691, 725, 734, 846
Senate committee appointments – 45

TRANSPORTATION, COMMITTEE ON
Appointees, investigation of – 235, 286, 427, 532, 573, 671
Appointments to – 38, 111
Bills and resolutions introduced – 166, 157, 244, 319, 345, 346
Bills referred to – 34, 75, 95, 115, 116, 118, 134, 140, 147, 149, 166, 168, 191, 200, 262, 374, 389, 500, 510, 541, 621, 622
Committee meeting reports – 73, 114, 155, 190, 216, 313, 421, 507
Committee reports on bills – 162, 172, 258, 259, 333, 355, 356, 508
Study bills – 76, 118, 119, 142, 204, 220, 221, 249, 277
Subcommittee assignments – 80, 98, 99, 119–122, 127, 143, 144, 152, 170, 171, 193, 204, 205, 224, 250, 252, 278, 279, 400, 401

TRONE GARRIOTT, SARAH – Senator, Polk County; Democrat
Amendments filed – 271, 395, 490, 770, 791
Amendments offered – 271, 395, 490
Bills and resolutions introduced – 61, 62, 74, 75, 117, 166–168, 177, 192, 202, 203, 219, 416, 422, 501
Bill subcommittee assignments – 79, 81, 110, 111, 120, 126, 127, 136, 151, 171, 180, 193, 205, 212, 223, 225, 250, 293, 400, 423, 471, 501
Certificates of recognition – 399, 839, 852–855
Senate committee appointments – 45

UNFINISHED BUSINESS CALENDAR
Bills placed on – 312, 552, 553, 620

VETERANS AFFAIRS, COMMITTEE ON
Appointees, investigation of – 236, 286, 297, 427, 532, 573, 727, 730
Appointments to – 38
Bills and resolutions introduced – 190, 262, 263, 301
Bills referred to – 93, 106, 218, 276, 303, 387, 388, 391, 445, 621
Committee meeting reports – 33, 139, 174, 261, 291, 421, 469, 725
Committee reports on bills – 144, 197, 266, 267, 310, 425, 472
Study bills – 103, 169
Subcommittee assignments – 79, 104, 120, 121, 171, 251, 321, 401, 402, 447

WAHLS, ZACH – Senator, Johnson County; Democrat, Minority Leader
Addresses to Senate – 4, 930
Amendments filed – 584, 770, 791
Amendments offered – 791
Bills and resolutions introduced – 61, 62, 74, 75, 117, 166–168, 177, 192, 416, 422, 501, 682
Bill subcommittee assignments – 725
Senate committee appointments – 45

WAYS AND MEANS, COMMITTEE ON
Amendments filed – 563, 813
Appointees, investigation of – 236, 287, 384, 533, 574, 730
Appointments to – 38
Bills and resolutions introduced – 211, 400, 446, 470, 483, 560, 561, 690, 691
Bills referred to – 108, 124, 133, 140, 141, 163, 175, 177, 211, 288, 298, 316, 317, 334, 375, 389, 452, 488, 506, 559, 622, 674, 695, 713, 714
Committee meeting reports – 74, 200, 382, 440, 470, 554, 681, 812
Committee reports on bills – 214, 384, 402, 403, 447, 472, 486, 556, 561–563, 691, 692, 813
Study bills – 118, 150, 158, 249, 304, 369, 449, 470, 483, 484, 513, 782
Subcommittee assignments – 62, 63, 99, 119–121, 151, 152, 159, 161, 179, 193, 252, 278, 304, 321, 369, 370, 383, 400, 401, 446, 449, 472, 484, 501, 502, 513, 514, 592, 691, 734, 752, 782

WHITVER, JACK – Senator, Polk County; Republican, Majority Leader
Addresses to Senate – 6, 931
Amendments filed – 924
Amendments offered – 924
Bills and resolutions introduced – 344, 682, 758
Senate committee appointments – 45

WILLIAMS, CRAIG STEVEN – Senator, Carroll County; Republican
Amendments filed – 582
Amendments offered – 582
Bills and resolutions introduced – 177, 276, 422
Bill subcommittee assignments – 100, 103, 120, 121, 126, 143, 144, 160, 180, 181, 193, 225, 250–252, 400, 401, 423, 449, 471, 508, 561, 645, 667, 725, 846
Honors received – 763
Senate committee appointments – 45, 46

WITHDRAWAL OF BILLS – *See* BILLS, *subhead* Withdrawals

ZAUN, BRAD – Senator, Polk County; Republican, President Pro Tem of Senate
Amendments filed – 632
Amendments offered – 341, 589, 632
Bills and resolutions introduced – 74, 93, 107, 133, 134, 165, 167, 246, 422
Bill subcommittee assignments – 63, 79, 81, 119, 121, 135, 143, 151, 160, 161, 172, 192, 223, 224, 250–252, 370, 423, 501, 507, 513, 691, 752
Senate committee appointments – 46

ZUMBACH, DAN – Senator, Delaware County; Republican
Bills introduced – 149
Bill subcommittee assignments – 99, 111, 120–122, 144, 152, 160, 170–172, 204, 224, 725
Senate committee appointments – 46